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House of Representatives

The House met at 9 a.m. and was called to order by the Speaker pro tempore (Mr. CUELLAR).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
October 1, 2020.

I hereby appoint the Honorable HENRY CUELLAR to act as Speaker pro tempore on this day.

NANCY PELOSI,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 7, 2020, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with time equally allocated between the parties and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 10:50 a.m.

HONORING KATIE DORSETT AND MARY MCALLISTER

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from North Carolina (Ms. ADAMS) for 5 minutes.

Ms. ADAMS. Mr. Speaker, I rise this morning to honor two exceptional North Carolina women who left us this year, former Senator Dr. Katie Dorsett and former Representative Mary McAllister. I admired and was friends with both of them.

They were both educators who went into public service, proud products of historically Black colleges and universities. Both advocates on behalf of African Americans, they founded and led organizations to combat sickle cell anemia.

They both knew the highs of winning elected office and doing exceptional work for their constituents and the lows of personal tragedy. Both women were predeceased by a child they loved like a best friend.

They were both county commissioners and State legislators and, most of all, trailblazers.

Katie Dorsett was the first Black woman on the Greensboro City Council, and I was proud to follow in her footsteps. After serving on the city council, she was elected to the county board of commissioners and went on to serve in Governor Hunt's administration and the North Carolina State Senate. We served together in the General Assembly, and Katie was a longtime friend and mentor whose friendship I cherished.

When the Greensboro News and RECORD remembered her in July, they wrote: ''She carried herself with dignity and always spoke her mind.''

That was Katie. She was a great leader and a strong advocate for her community, and the State of North Carolina is poorer without her.

Mary McAllister was also a legislator, a county commissioner who broke barriers for Black women. She was the first Black woman to win a countywide election in Cumberland County, North Carolina. She changed the way the county commission elected commissioners so she wouldn't be the last.

A fountain of confidence, Mary had a sense of humor, and she could build relationships with anyone. She wasn't afraid to stand up to the good ol' boys club in the legislature, and we became fast friends. It is no surprise that her first campaign slogan was ''Mary Has Moxie.''

I am humbled to have the opportunity to honor these strong, phenomenal women on the floor today.

Thank you, Mary, and thank you, Katie, for opening doors for the next generation of Black women leaders. I am here on the floor of the U.S. House today because you crossed the threshold first.

COUNTERING THREAT OF CHINESE COMMUNIST PARTY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. JOYCE) for 5 minutes.

Mr. JOYCE of Pennsylvania. Mr. Speaker, after months of hard work and collaboration, the China Task Force has released our final report, which includes more than 400 solutions to counter the growing threat of the Chinese Communist Party. This report is the framework for combating the aggressive Chinese Communist regime.

After meeting with more than 130 experts, we developed realistic and achievable solutions that take a comprehensive approach to strengthening America's national security and holding the Chinese Government accountable.

We realized that out of our 400 recommendations, 180 are legislative solutions, of which 64 percent are bipartisan and one-third have already passed either the House or the Senate.

Mr. Speaker, these are commonsense solutions that we can vote on today to strengthen our strategic position for tomorrow.

As the only physician serving on the China Task Force, it was my privilege to delve into opportunities to strengthen our supply chains and ensure that Americans are never again beholden to the Chinese Government for key medicines or healthcare supplies.

On the Health and Technology Subcommittee, I led efforts to strengthen

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the supply chains for medicines, semiconductors, and other vital materials.

Congress has passed several provisions aimed at advancing research and the manufacturing of critical medical supplies here in the United States. We also created new reporting requirements to help us better understand international supply chains and counter vulnerabilities in the system.

To bolster our technology supply chain, I cosponsored H.R. 7178, the CHIPS Act, to increase domestic production of advanced semiconductors, which will help Americans to develop next-generation telecom technology, fully automated systems, and, importantly, new weapons systems.

I also introduced the ORE Act, H.R. 7812, to incentivize the domestic production of rare earth materials, which is key to breaking the Chinese monopoly on critical supply chains.

America cannot allow China to win the race to next-generation technology. We want innovative breakthroughs to happen here in this country, and the China Task Force is making progress through the legislative process.

As a leader on the competitiveness committee, I focused on issues ranging from combating Chinese Communist-sponsored theft of intellectual property to exposing the influence of the Chinese in U.S. research institutions and countering the importation of illicit fentanyl.

Too often, American companies are being coerced to surrender intellectual property to the Chinese Government in order to gain entry into the Chinese marketplace. In extreme cases, we hear of outright theft by Chinese hackers and agents. The China Task Force has produced recommendations that direct the Federal Government to ramp up investigations of individuals acting as pawns of the Chinese Communist Party and enforce antitheft laws.

Our Nation has also seen wholesale efforts of the Chinese Government to steal research and gain influence at United States universities. In my own backyard, the FBI arrested a former Penn State researcher suspected of espionage. The task force has compiled provisions to increase transparency and accountability in the higher education system, and I introduced legislation to close loopholes and force the disclosure of all foreign money in our research systems.

Finally, we must stop illicit fentanyl from reaching our communities and killing our neighbors. The China Task Force has produced recommendations to stop the importation of these devastating analogues from China.

In the House, I cosponsored legislation to hold foreign nations, including China, accountable if they fail to cooperate with U.S. narcotics control efforts and prosecute the production of fentanyl in their countries. I thank Senator TOOMEY for championing this provision in the Senate.

By implementing these solutions, we can make America safer, stronger, and better equipped to lead in the 21st century.

The China Task Force final report is a framework. It is our playbook to make a difference. While our work on this report has finished, our commitment to this cause must and will continue. Phase two starts today.

RETIRING WILLIE O'REE'S NO. 22

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. QUIGLEY) for 5 minutes.

Mr. QUIGLEY. Mr. Speaker, in sports there are many ways to honor great players. Most sports have all-stars, MVP honors, and halls of fame.

In some cases, teams choose to retire the number of their biggest stars to recognize their careers and legacies. But in a few rare cases, a league can choose to retire a player's number for every team.

That is how Major League Baseball chose to honor the monumental achievements and impact of Jackie Robinson's iconic No. 42. And that is why the NHL should retire Willie O'Ree's No. 22.

Willie is recognized as both an ambassador and a pioneer of the sport. O'Ree broke the NHL's color barrier and helped end segregation in professional hockey. He changed the game for the better, and he deserves this distinguished honor.

He made his debut in the NHL in 1958. His groundbreaking journey through the NHL inspired hundreds of other players, both men and women, and laid the groundwork for Hispanic, indigenous, and Asian players in the NHL, as well as the growth of the women's game.

But what makes Willie O'Ree's impact more impressive is the global impact he has made in the sport of ice hockey. There is no better way to say this: If Willie O'Ree had not broken the color barrier when he did, thousands of young hockey players would not be exposed to this sport.

Hundreds of organizations that provide inner-city youth opportunities to develop and expand social skills would not be here today. Athletic skills and professional skills through the sport of ice hockey would be drastically reduced, and the hockey community in the United States would remain far too homogenous.

In short, without Willie O'Ree, there is no American hockey culture that embodies and reflects the diverse makeup of our country. That is why I was proud to introduce the Willie O'Ree Congressional Gold Medal Act in this Congress to celebrate this man of profound strength who pushed the sport to embrace diversity and promote inclusion for all.

I hope you will join me in cosponsoring this resolution that highlights Willie's incredible moral character, impeccable hockey skills, and contributions to American history and culture.

Mr. Speaker, I look forward to seeing Willie's jersey retired in the near future, and for Willie to celebrate this special moment with his family.

RECOGNIZING CASEWORKERS IN ILLINOIS' 15TH DISTRICT

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. SHIMKUS) for 5 minutes.

Mr. SHIMKUS. Mr. Speaker, I rise today to continue to thank my staff for excellent service to the constituents of my district and sometimes to those even outside my district.

In our organization, caseworkers live and work in Illinois. They work out of my district offices, which I have historically spread out throughout my large, mainly rural district. During this Congress, my offices have been in Maryville, Effingham, Harrisburg, and Danville.

My caseworkers are my representatives to that region. They also welcome visitors and forward legislative concerns to my legislative assistant, but their primary job is that of casework.

What is a case? A case is a concern, request, or correction by my constituents who feel that they are not receiving due benefits or having trouble just getting answers from the Federal Government. Our job is to get them an answer. I was always careful never to promise that I could solve their problem; I only promise that we would try. My caseworkers did all the work.

Mr. Speaker, those district caseworkers are:

Ballard, Mary; Buettner, Ruth; Bugger, Doug; Carlson, Brad; Davis, Rodney; Detmers, Deb (Fansler); Dillman, Jen; Flanigan, Matt; Graham, Donna; Hall, Mike; Hamilton, Daniel; Hanson, John; Hantz, Chuck; Healy, Holly (Linder); Hoffman, Doug.

Jamison, Reno; Madigan Andrea; Maxwell, Mary Ellen/Maria (Madonia); Merriman, Angie; Nelson, Jed; Newcomb, Nate; Holloway, Kay D.; Pickett, Matt; Pruitt, Jen; Rice, Matt; Rohan, Dora; Shull, Kristen; Tomaszewski, Steve; Von Burg, Peggy; Weber, Amy.

Mr. Speaker, over the years, my office has been able to assist literally thousands of people with their problems with the Federal Government. Here are just a few examples of things that they have been able to accomplish.

One of my constituents was born in Mississippi in the 1930s at home with a midwife. In her seventies, she tried to get a passport for a once-in-a-lifetime trip to Spain, but her birth was never recorded, and her parents were deceased.

My office assisted her in obtaining school records, baptismal certificates, marriage license, children's birth certificates, and certified letters from old friends. These documents, combined with a Census search showing her living with her grandmother in Mississippi in the 1940s, finally was ample information for her to obtain a passport.

Mr. Speaker, I have been able to present medals to deserving veterans across my district. Often the veterans

do not want to talk about their experience, but their awards are important to their children and their grandchildren. One of these veterans was the uncle of my veterans affairs caseworker, Doug Bugger. Another is a veteran from Robinson, Illinois, who had been shot and taken prisoner by the Germans during the Battle of the Bulge. After receiving the awards, he gave an interview to the Robinson Daily News and used a photograph of him with his medals, including his Purple Heart. Helping in the recovery of these military awards helps these veterans relay their experiences to family and friends.

Social Security disability is a long and frustrating process. One gentleman had been approved but had waited nearly a year for his backpay when he came to my Harrisburg office. It turned out it was coded incorrectly in the Social Security system. Within 2 weeks, my office got the situation corrected, and he received his backpay.

Some of our happiest casework is to help families with overseas adoptions, like the family that was in the process of adopting a child from Haiti just as the pandemic was shutting everything down. My office was able to work with the Embassy to get child humanitarian parole to come to the United States of America.

□ 0915

Mr. Speaker, I can go on and on like most offices could talking about the work that their caseworkers do. I don't have time to do that, so I will include these additional stories in the RECORD.

A veteran came to one of my Traveling Help Desks. He had recently undergone a partial amputation of his foot. The VA doctor missed the diagnosis, so a private doctor performed the procedure. The VA was refusing to pay for the surgery, but after our inquiry, the VA agreed the surgery was necessary and it was their mistake in missing the diagnosis and paid the bill for $1,712.76.

A veteran had fallen off a crane during his time in the military. This resulted in a 3-inch gash to the head and subsequent severe seizures. He had been trying to get disability from the VA for 10 years. After our inquiry, he was granted a 100% service-connected disability and approved retroactively for 10 years (estimated $227,440) and now receives $1,940 per month.

A veteran requested our assistance in obtaining his father's silver star from WWI. We were able to obtain this, as well as his other medals and I presented them to the family at a family reunion. The family made a box for the medals and gave them to the American Legion to display. The family was very happy.

A constituent contacted our office on behalf of her husband. Medicare was denying his claims because there was an error in the paperwork that showed her husband had employer-provided insurance, when in fact he had been retired since 1986. Her husband was terminally ill, and she was spending a lot of time trying to resolve this situation. She had called more than 50 places before she called our office. After contacting our office, we were able to have the problem fixed and have the claims reprocessed and paid.

A union contacted our office on the issue of wage differentiation concerning government employees in Illinois. After our inquiry, it was determined there was an error when the wage differentiation was made, and a salary adjustment was made.

The local FSA was not allowing some constituents to mow their property that was enrolled in the CRP program. Not mowing the land would result in trees growing on the property, which would defeat the purpose of having the land in CRP. After an inquiry from our office, the state revised their rules.

A constituent came to us because Social Security was showing him as deceased, when in fact it was his wife who had passed away on May 20 of this year. We were able to expedite a correction of his records and have his retirement benefits reinstated. This was a Social Security Administration error.

A constituent received a notice from the IRS that after paying her debt of $2,400 from her quarterly taxes of 9/87 and 12/87 on her previous business, she now owed $3,184 in interest and penalties. She was never aware of the interest and penalties as she had repeatedly asked for a statement from the IRS for her $100.00 payments and federal tax returns they had also been keeping. Also, she had never received the original bills because her business closed in 1990, and they had been sending these notices to that address. We ended up going with her to an IRS problem solving day and staying with her through several hours of negotiations. Eventually, her balance was zeroed. She was very grateful and ended up testifying at our IRS hearings.

A constituent was applying for a teaching position at one of the local schools. He needed transcripts from his alma mater in Oklahoma to obtain his provisional teaching certificate. The school was telling him they could not provide this because they did not keep records prior to 1985. We were able to intervene with the school, and obtain a letter verifying his completion of a 72-hour course from a former instructor. This worked for the teaching certificate and he received the job.

A constituent contacted our office regarding his request to help him obtain an answer from AT&T Broadband Services concerning the free internet service for schools that they have advertised. He contacted AT&T several times but never felt he got a straight answer as to when the service was going to be available to the school. I met with AT&T representatives and told them of this situation. AT&T got in touch with him and the school was hooked up. I was able to visit the school and see the technology area. The kids all sent me a thank you note.

A constituent worked at a small local newspaper. She had contacted us for assistance with child support enforcement. Her ex was in the Navy and then became a pilot. According to the law, he could lose his passport for being over $5,000 in arrears. He owed $10,330 and we were able to work with the appropriate enforcement agencies and he ended up paying $5,500 of his debt and his monthly payment increased from $200 a month to $1,000 a month. She was very grateful to our office.

The Edwards County Coroner informed my office that the remains of a Sgt. Kenneth Cunningham of Albion had been identified 45 years after his plane went down over the Kon Tum Province in Vietnam. The coroner and family were working to bring the remains home for a burial and were having some difficulty with the bureaucracy. We were able to talk to the Defense Department and help with the arrangements the family wanted. The family was able to be at the airport in Louisville, Kentucky when he arrived, and the Patriot Guard accompanied Sgt. Cunningham back to Albion where citizens lined up along the route to pay their respects. The VFW distributed 500 flags along the route and more than 200 local volunteers lined the route from the town to the cemetery with over 2,400 flags.

A constituent sought my help in March of this year during the COVID–19 pandemic to bring his daughter and his grandson back to the United States on the repatriation flights the Department of State offered. Working with the father and the State Department they both made it back to the United States two and half weeks after contacting us.

Also, in March we assisted 5 constituents stranded in Honduras after the border had been closed. They had problems receiving their transit letters from the U.S. Embassy so they could travel to the airport. We were able to assist, and they were able to get seats on a plane chartered by a church out of Lincoln, Nebraska.

The Sny Island Levee Drainage District protects 110,000 acres of prime farmland in west central Illinois. Due to the change in flow of the Mississippi, this privately owned and maintained levee was threatened with failing. We helped coordinate emergency repairs by the Corp of Engineers to protect the navigation channel at that location. This also protected the farmland.

"Lights On for Route 20" was a movement for a four-lane road between Springfield and Taylorville. Lobbied intensely by the local communities and concerned parents we were able to designate one million dollars for engineering. This was a small investment versus the total costs. This investment did get the attention of the state representative and the state senator who requested that this project be included in the governor's Build Illinois project list. We now have a four-lane road between Springfield and Taylorville.

Mr. Speaker, some cases resolve quickly. Many cases take months and even years to resolve. My caseworkers always show compassion and concern to my constituents. They answer their calls; they return their calls; and for that, I say thanks. I am very proud of the service that they have given to the people of southern Illinois.

CHANGE IS SWEEPING ACROSS AMERICA

The SPEAKER pro tempore. The Chair recognizes the gentleman from Texas (Mr. GREEN) for 5 minutes.

Mr. GREEN of Texas. Mr. Speaker, and still I rise in the name of liberty and justice for all.

Mr. Speaker, there is something happening in our country. It appears to me that the inescapable, irreversible winds of change are sweeping across our land. It seems to me that the people in this country have seen things that they did not anticipate they would see. They didn't expect to see what happened to George Floyd. They didn't expect to understand what has happened to

Breonna Taylor. And the people in this country seem to want to see change take place.

I am amazed at how one question by a moderator at an event has made a significant impact. The simple question was, and I am paraphrasing: Would you denounce white supremacy?

It was a simple question. It did not get the appropriate answer. As a result, people are starting to believe that we ought not allow an answer that is inappropriate to be acceptable.

I am just amazed at how persons across the aisle—and I am grateful to them—persons across the aisle have said that there should have been the appropriate answer given, which is: I condemn white supremacy; I condemn the supremacist.

That is the answer, simple, easy answer.

And persons across the aisle are sending a clear and perspicuous message to the Chief Executive Officer: He needs to change that response—walk it back; talk it back; crawl it back; just take it back.

I don't know that he will, but I do know this: When we have my friends across the aisle making it clear that this was wrong, something is happening here, and I am grateful to my friends. I thank you for taking the bold position that you are taking, not allowing this to be just another one of the many episodes wherein inappropriate statements have been made and not challenged. I thank you for what you have done, all of you, those who have said you need to condemn white supremacy.

Something strange is happening. There is a change taking place, and I am grateful to have lived long enough to see this change occur.

RECOGNIZING LAKE COUNTY MANAGER JEFF COLE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Florida (Mr. SPANO) for 5 minutes.

Mr. SPANO. Mr. Speaker, I rise today to recognize Mr. Jeff Cole for his 30 years of distinguished service to the citizens of Florida, culminating this year with his retirement as the Lake County manager.

Mr. Cole began his public service career in 1990, supporting the Brevard County Board of County Commissioners. In 1994, he embarked on a 21-year journey with the St. Johns River Water Management District, overseeing intergovernmental affairs and public and media outreach.

His long record of accomplishments brought him to Lake County in 2016, where he took on heightened responsibilities and focused on enhancing government efficiencies and accountability, while improving the quality of life in Lake County.

Through challenges ranging from Hurricane Irma to COVID–19, Mr. Cole remained accessible and demonstrated unwavering leadership and dedication to our community.

Mr. Speaker, I wish Jeff and his wife, Audrey, the very best in the next chapter of their lives together. From the bottom of my heart, I thank Jeff for his commitment to our citizens and the legacy that he is leaving behind. He will be missed.

REMEMBERING SPECIALIST ALEXANDER J. MILLER

Mr. SPANO. Mr. Speaker, I rise today to remember Specialist Alexander J. Miller, a young soldier who served our Nation in the Armed Forces and was, sadly, killed in combat in Nuristan province, Afghanistan, on July 31, 2009.

Alex attended East Ridge High School in Clermont, Florida and, soon after graduation, enlisted in the U.S. Army, being assigned to the 1st Battalion, 32nd Infantry Regiment, 3rd Brigade Combat Team, 10th Mountain Division, Light Infantry, based in Fort Drum, New York.

Alex hoped to attend the University of Central Florida after completing his tour of duty, but that dream vanished when insurgents attacked his unit.

Miller was awarded two medals posthumously: the Purple Heart and the Bronze Star.

May his memory and sacrifices be a reminder to all of us of his service and love of country.

Our thoughts and prayers remain with the entirety of the Miller family and his community these many years later.

REMEMBERING FIRST LIEUTENANT IVAN D. LECHOWICH

Mr. SPANO. Mr. Speaker, today I rise to celebrate the legacy of a local resident and hero of Florida's 15th District, First Lieutenant Ivan Lechowich.

Lieutenant Lechowich was a devoted husband and loving father who served his country in uniform and was, sadly, killed in Ghazni province, Afghanistan, on September 28, 2011.

Lieutenant Lechowich graduated from the International Baccalaureate Program at King High School, earned his undergraduate degree from the University of Florida in 2007, and, after joining the U.S. Army in 2009, deployed to Afghanistan 2 years later.

Ivan was serving as a Sapper Platoon leader for the 515th Sapper Company out of Fort Leonard Wood, Missouri, when an improvised explosive device took his life.

Ivan was awarded the Purple Heart, Bronze Star, Army Commendation Medal, and NATO Medal.

To his beloved wife, Jenn; daughter, Natalie Marie; and the rest of the Lechowich family, our district and community still mourns the loss of Ivan these many years later. May his memory and many sacrifices be a reminder of his love for his family and his Nation.

REMEMBERING SERGEANT DANIEL MCKINNON ANGUS

Mr. SPANO. Mr. Speaker, I rise today in memory of Sergeant Daniel McKinnon Angus, a local hero in Florida's 15th District, who was killed in action in Afghanistan on January 24, 2010.

Daniel graduated from Armwood High School in 2000 and, in 2003, joined the U.S. Marine Corps where he knew he belonged and hoped to make a career of serving his community and country.

Daniel stood out among his peers and received the Combat Action Ribbon, two Good Conduct Medals, the Afghanistan and Iraq Campaign Medals, the Global War on Terrorism Service Medal, and a number of service decorations.

Daniel loved spending time with his wife, Bonnie, and his 1-year-old daughter. Now 11 years old, may she always know and treasure the knowledge of her father's heroism.

Men and women like Daniel who are willing to lay down their lives in defense of our country and in support of others many miles away are what make our Nation the greatest on Earth. Let us never take their sacrifice or that of their surviving families in vain.

HONORING DR. GOVINDAPPA VENKATASWAMY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. KRISHNAMOORTHI) for 5 minutes.

Mr. KRISHNAMOORTHI. Mr. Speaker, today, on the 102nd anniversary of his birth, I rise to honor Dr. Govindappa Venkataswamy, an Indian ophthalmologist who devoted his life to preventing blindness in India and across the world.

Dr. Venkataswamy's work preserved the vision of millions of men, women, and children, allowing them the blessing of sight and the opportunity to enjoy independent, productive lives.

Though Dr. V suffered from a severe form of rheumatoid arthritis that left his hands permanently disfigured, he defied all odds to become an expert ophthalmologist and mastered the art of cataract surgery.

Having witnessed the terrible impact of blindness on those without the means to pay for their own care, Dr. V pursued an extraordinarily ambitious program to end preventable blindness in India.

In 1976, Dr. V and members of his family founded the first of what would later become a network of Aravind Eye Hospitals in Madurai, India.

The Aravind Eye Care System has been acclaimed by Harvard Business School and is the focus of an HBS case study. It has also been recognized for excellence in publications, including Fast Company, Forbes, and The Wall Street Journal, and it has inspired healthcare organizations throughout the developing world.

From its humble beginning in Madurai, the Aravind Eye Care System now provides care to over 4 million patients and performs over 500,000 surgeries each year in hospitals and clinics throughout south India.

Dr. V passed away in 2006, but his legacy continues to give eyesight to those who otherwise would be blind, and his story continues to inspire millions.

His life is best celebrated by his own words:

When we identify ourselves with all that is in the world, there is no exploitation. It is ourselves we are helping. It is ourselves we are healing.

RECOGNIZING FIRE PREVENTION WEEK

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. THOMPSON) for 5 minutes.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise as a former State certified firefighter one from Pennsylvania. As we kick off the month of October, I mention that next week is Fire Prevention Week.

In 1925, President Calvin Coolidge established Fire Prevention Week, and today it is the longest running public health observance in the Nation. It is celebrated each year during the week of October 9 to commemorate the devastating Great Chicago Fire.

This is an opportunity to educate one another on simple measures we can all take to prevent fires at home. You can bolster your family's safety by testing your fire alarms monthly, giving home heaters appropriate space, and having an escape plan if, God forbid, your home does catch fire.

We must also do more to prevent wildfires. As former chairman of the Subcommittee on Conservation and Forestry, I have been a part of many conversations, meetings, and hearings about how we can better prevent forest devastation as a result of wildfires.

We continue to see devastating wildfires on the West Coast. Homes, businesses, and forests are burning to the ground. The air quality is dangerous, and millions of Americans are at risk.

For decades, the health and resiliency of our national forests have been in decline due to a lack of management and, more recently, extreme environmental policies.

With nearly 90 million acres of forestland in need of urgent treatment, Congress needs to finally act and provide the tools and authorities to enable the Forest Service to proactively manage. Doing so will directly help prevent wildfire outbreaks, support our local communities, and restore the health of our Nation's forests. And a healthy forest is one of the largest carbon sinks in the world.

The 2018 House-passed farm bill contained bipartisan, commonsense forest management provisions to help prevent loss of life and property from these fires. These bipartisan authorities were created with input from the U.S. Forest Service under both the Obama and Trump administrations. These were ideas that were well vetted through hearings and markups and supported by the House Agriculture Committee and on the floor.

However, Senate Democrats have refused to even discuss these needed reforms. Since these provisions were rejected, 3.5 million acres of Forest Service land have burned.

Wildfire response and recovery efforts should not be a partisan issue. We are blessed as a nation to have hundreds of millions of acres of beautiful forestlands, and the best way to prevent forest fires is through a well-managed forest.

Mr. Speaker, well-managed forests, again, are the largest carbon sinks in the world and the greatest filters for our watersheds that originate in those forests. Our forests provide great opportunities for outdoor recreation, but they are also unparalleled environmental tools. Our national forests serve as some of the Nation's largest carbon sinks.

This Fire Prevention Week, I would like to encourage everyone to brush up on their fire safety measures, and I reiterate just how crucial healthy forests are in preventing wildfires.

I thank the brave men and women who are on the front lines fighting those devastating fires out West.

MORE COVID RELIEF IS NEEDED

The SPEAKER pro tempore. The Chair recognizes the gentleman from Connecticut (Mr. COURTNEY) for 5 minutes.

Mr. COURTNEY. Mr. Speaker, as we stand here on October 1, a few hours ago the leadership of airline industries all across America announced very sad news for their workforce. The fact of the matter is that, with CARES Act money expiring at midnight last night, massive layoffs are now going to be implemented over the next few days and weeks.

American Airlines and United Airlines, together, about 32,000 workers are going to be laid off today, this morning. Again, other airlines are doing exactly the same thing.

The impact, the ripple effect in terms of the collapse of consumer demand because international air travel is virtually nonexistent, domestic air travel is way down and it is going to stay down for months to come, has resulted, again, in a ripple effect in the aerospace industry.

□ 0930

Raytheon Technologies up in New England, which is the parent company of Pratt & Whitney, announced 16,000 layoffs, again, because the commercial airline industry's demand is basically drying up.

Boeing industry announced 16,000 layoffs also because of the same reason. The commercial sector in terms of airline orders, again, has completely dried up.

They are not the only sector that are still struggling in this COVID recession. Talk to any restaurant owner in any district all across America, talk to anyone who is involved in the tourism destination.

Disney announced 23,000 layoffs on Monday, again, because of the collapse in visits because of the COVID pandemic.

In Connecticut, we have two large, Native-American casinos, Foxwoods and Mohegan. They have started partial operations, but still, half their workforce, again, has not been recalled, again, because it is just not safe for people to have gatherings in large density.

Tuesday night, the President of the United States, before the American people, made the claim that: nothing to worry about; we are in a V-shaped recovery.

Well, tell that to the airline workers. Tell that to the people in the restaurant and hospitality sector. Tell that to the people in the tourism sector.

Again, all across America, 780,000 new unemployment claims yesterday across this country.

We are not in a V-shaped recovery. We have got a lot of businesses out there working their tails off to get back to work and to get normalcy back. But the fact of the matter is, as Jerome Powell, President Trump's own chairman of the Federal Reserve Board, has said repeatedly: Until we get control of COVID, we are not going to have a sustained economic recovery that is going to bring back the jobs that, again, we have lost in the millions.

So here we are. We are on the verge, again, of another wave of job losses in this country. And the question of the day is whether Congress is going to step up like it did four times previously on a bipartisan basis to pass COVID relief? The CARES Act being, obviously, the biggest one back in March, which, again, the American people are desperate for us to move out on.

A couple of days ago, the Speaker released a package, which for the first time included a COVID relief extension for airline workers, which, again, would avoid the bloodbath that is going to happen in terms of jobs in the next few hours in this country.

Finally, we have seen the Secretary of the Treasury show up here at the building 130 days after we passed the Heroes Act to have a serious conversation about getting some COVID relief out there to, again, stabilize this economy.

We can do this. And I say that because we have done it four times already acting on a bipartisan basis.

What we have to do, though, is just sort of drop the happy talk about the fact that this virus, we are on the other side of it, nothing to worry about, V-shaped recovery.

It is really just almost insulting to the American people to spin that kind of message out there when people are struggling, having their unemployment

benefits run out, their economic impact payments have long since been spent, they have got rent due, they have got utility bills due. They want to go back to work, but the fact of the matter is, we are still not there yet where we can have a sustained economic recovery.

Mr. Speaker, I plead with my colleagues on the other side, who, again, have whip notices going out to oppose any Heroes 2.0 or anything like it, to please just think about the success that we did back in March when we passed the CARES package, which to this day is still providing some benefit. Those new rapid tests that the President announced a couple of days ago, which is a wonderful development, was paid for by the CARES Act, but we need more.

And Jerome Powell has warned us repeatedly since May that the CARES Act was a great achievement by Congress, but we need to have more fiscal stimulus until we get past this pandemic.

Again, the clock is now ticking.

And, again, Mr. Speaker, for the sake of all of us and our fellow citizens, please let's come together and get a COVID relief bill passed this week.

RECOGNIZING MEMBERS OF THE ARMED FORCES

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from North Carolina (Ms. FOXX) for 5 minutes.

Ms. FOXX of North Carolina. Mr. Speaker, in November, thousands of marines will graduate from Marine Corps Infantry Training Battalion. These brave men and women will go on to serve and protect the United States and our allies across the world.

One such marine is Rece T. Rader from Winston-Salem. His mother, Angela, recently wrote to me about his graduation from boot camp at Parris Island and his subsequent move to Camp Geiger.

In her letter, she spoke passionately about how COVID–19 has made it incredibly hard for military families to celebrate alongside their loved ones who have completed their program requirements.

Her story applies to so many families, and it highlights the importance of recognizing the many accomplishments of these airmen, marines, soldiers, sailors, and guardsmen.

COVID–19 has disrupted the lives of all Americans in many ways.

It is, however, very unfortunate that COVID–19 has deprived the servicemembers of the physical and moral support that comes with the attendance of their families at graduation ceremonies.

To all servicemembers who are currently preparing for duty: We are incredibly proud of you. Your hard work and dedication have not gone unnoticed, and you serve as the role models that young people look to for inspiration.

Today and every day, we should celebrate your accomplishments and the strides you continue to make.

Though we may not be able to congratulate you all in person, please know we will always celebrate you no matter how close or how far away you may be.

May God bless you, your families, and the United States of America.

LIFE IS WINNING

Ms. FOXX of North Carolina. Mr. Speaker, life is winning.

Recently, a great new book by Marjorie Dannenfelser, President of the Susan B. Anthony List, has been published that is entitled, ''Life Is Winning.''

Currently, I am halfway through the book, but can wholeheartedly recommend it to anyone who is interested in learning about the fight for life in our country and to learn more about the role of elected officials in this fight.

Many people, publicly known and unknown, have been working diligently to preserve what our Declaration of Independence says we are guaranteed: life, liberty, and the pursuit of happiness.

Mr. Speaker, without question, life is the fundamental component to liberty and the pursuit of happiness.

Mr. Speaker, I thank Marjorie, all the staff at Susan B. Anthony, the staff at National Right to Life, and the wonderful people at the State and local levels who pray diligently and work every day to promote the culture of life, which we know is supported by a majority of Americans.

Mr. Speaker, I thank President Trump and Vice-President PENCE for their steadfast support of life. They understand that life must be protected and fought for at every turn.

CONTRACT DAY

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from the Virgin Islands (Ms. PLASKETT) for 5 minutes.

Ms. PLASKETT. Mr. Speaker, today we have been asked to wear white to honor Ruth Bader Ginsburg. She represents the tremendous struggle and fight for women's equality.

In the Virgin Islands, today, October 1, is formally known as Contract Day. It honors and celebrates four women, our four queens, that led the St. Croix Labor Rebellion of 1878, also known to us as Fireburn.

After slaves in the Danish West Indies organized, fought, and took their freedom from chattel slavery in 1848, a new type of slavery was formed in a labor bill in the following year to regulate the conditions of the now free workers.

The law stipulated a day wage, and confined workers to one plantation each year that could only change on Contract Day, October 1.

Former slaves worked on the same plantations as before, with little to no improvement in their living conditions, healthcare, education, income, and their movement was restricted. I am sure many of my African-American brothers and sisters recall this happening in the United States after the Civil War.

The newly freed workers found that the low wages and new restrictions made living impossible. It was freedom in name only.

These conditions, along with the inability to vote, to participate in any aspect of the Danish Government at the time, created an incredibly untenable life.

Before October 1 of 1878, rumors circulated that the law was going to improve. When the workers realized on October 1 that those rumors were false, the frustration and anger from the past 30 years of unfair treatment and harsh labor practices after obtaining freedom ignited a protest that led to a rebellion in Frederiksted on the Island of St. Croix.

That rebellion, that uprising, was led by four women, our Virgin Island Queens: Mary Thomas, Mathilda Macbean, Susanna ''Bottom Belly'' Abrahamson, and Axeline ''Queen Agnes'' Salomon demanded all plantations improve workers' wages and repeal the Labor Act of 1849 that kept workers in serf-like conditions. More than half of the city of Frederiksted burned, along with the estates, the plantations across the western and northern part of the island.

The Danish Crown jailed about 400 and executed more than 100 people. Women were burned at the stake after molasses was poured on them, but their heroic and sacrificial acts, like those who earned our freedom 30 years prior, inspired change.

My ancestors, men and women, were willing not only to fight, but to die for the cause of equality and the dignity of a living wage and fair working conditions.

That fight, of course, continues today, not just for Virgin Islanders, but for indigenous people throughout our Nation and territories.

October is part of Indigenous Peoples Day, honoring the centuries-long struggle of people against the horrors of genocide, colonialism, imperialism, and the present conditions of unfair labor laws, discrimination, and unequal voting rights.

From Carib Indians fighting off Columbus on the island of Ay Ay—what is now the island of St. Croix in the Virgin Islands, the first place of armed resistance to Columbus in the New World—to the four queens, as I mentioned, of Fireburn; D. Hamilton Jackson, honored in November, fighting the Danish Crown for freedom of speech, people on my island and all over the world continue to demand and fight for freedom, equality, and fairness.

Much like the atmosphere of the Danish West Indies, our Nation is in a tumultuous but necessary time of change.

Let us heed that change. Let us do it peacefully, organized, with leaders.

The attention drawn to practices of systemic racism and police brutality against people of color has sparked a collective worldwide cry for justice, not just in this country, but governments around the world.

Protests, removal of statues of oppressors of people of color are taking place in this Nation and throughout the world.

What will this body do? What will this Congress do? How long will this Congress, this body, be part of the inequality of 4 million people living in the territories? Telling us, as I hear often from my colleagues, ''It is so unfair. I wish it were different.'' But not doing anything to change those laws, the systemic laws that were written over 100 years ago that makes it so continually without end for us.

I pray that the spirit of those queens charge me with renewed conviction to keep pushing.

I pray that there is no Fireburn here, but what comes must come.

THREE PIECES OF GOOD NEWS, ONE PIECE OF BAD NEWS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Wisconsin (Mr. GROTHMAN) for 5 minutes.

Mr. GROTHMAN. Mr. Speaker, normally, or frequently, people use this microphone to give negative news, and I would like to lead off with three little positive stories that I don't think have been in the news enough, and then we will talk about a story—I don't know if it is true or not—but we are going to ask for a committee hearing.

First of all, I was at a committee about 10 days ago in which we had a hearing on Afghanistan. So many of us back home have heard stories, attended funerals of people, people frequently in the National Guard, who have died fighting in Afghanistan.

We have now gone 7 months without any combat deaths in Afghanistan. I don't think that story has been told enough. I am kind of really surprised it hasn't been told a lot during this campaign season, but it hasn't.

So let's celebrate the fact that we have gone 7 months, hard to believe, without a combat casualty in Afghanistan.

Now, the second piece of good news. I was talking to the head of the border patrol, and it was not long ago, about 15, 16 months ago, when 90,000 people a month were apprehended at the southern border and allowed in the United States, frequently given a hearing, an asylum hearing. But they were allowed in the United States, frequently lost track of, and people who we weren't appropriately vetting becoming a permanent part of our American fabric.

□ 0945

In the last month, in part due to three different things—a negotiation that President Trump had with Mexico, where when we apprehend people, we send them back to Mexico, pending the asylum hearing; secondly, negotiations with Central America, where people walking through Central America headed to the United States are kept in Central America; and third, a directive that if people try to come into this country because of fears of COVID–19, they are also immediately turned around and led back—we now have gone from about 90,000 people to under 2,000, as a matter of fact, he told me under 1,000 people a month being let in this country who are apprehended or talked to by the Border Patrol.

There are still people who sneak across the border who are not apprehended by the Border Patrol. But among these people who they touch, we have gone from 90,000 to under 1,000. That is good news, and I am surprised how many people, even on the floor of this institution, do not know what an improvement we have had at the border.

The third piece of good news I am going to give a tip of the hat to, when I drove in 2 weeks ago, I took an Uber from the airport. I talked to the Uber driver, who not only was driving for Uber, but he also had a job, I believe he told me, with CVS, and he was living the American Dream.

When I asked him what was great about America, he said anybody can make it in America, the land of opportunity.

Here you have an Afghan Uber driver. He wasn't of European heritage. I don't believe he was Christian. I don't believe in the family growing up he could speak English. But despite all these disadvantages, he is living the American Dream—and it wasn't rocket science—driving an Uber, working at CVS.

I hope we remember him as other Congressmen, for whatever political reason, want to tear down America and say you can't make it in America. I will tell you, if that Afghan Uber driver can make it in America and live the American Dream, anybody can live the American Dream.

But now I would like to ask for a hearing because I had some, perhaps, bad news back home. I talked to a woman who had two children. One is $30,000 in debt, one is $40,000 in debt, from taking out student loans. She told me that she felt that if she and her husband weren't married, there would have been government programs, and her children wouldn't be so in debt.

She has raised good kids. Those kids are going to pay off their loans, even if they were discriminated against because their parents were married, or not.

But it occurred to me, at a time when so much of the rhetoric in this institution is about discrimination, we ought to have a hearing on the Education and Labor Committee: Is it really true that we have government programs out here penalizing people for getting married?

I would ask, again, that my wonderful chairman of the Education and Labor Committee have a hearing on this topic. We can find out whether it is the official policy of the United States, when determining government grants helping people go through school, that we discriminate against children of married couples. And they have to delay having children, delay buying a house, as they have to pay off their student loans.

So I would like to have a hearing. I hope what my constituent told me is not true, that it is the official policy of the United States Government to discriminate against people who decide to get married. But I am afraid it might be, and that is why I would like to have a hearing.

RECOGNIZING SERVICE OF CAROL BRICK-TURIN

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Florida (Ms. WASSERMAN SCHULTZ) for 5 minutes.

Ms. WASSERMAN SCHULTZ. Mr. Speaker, it is with great pleasure that I rise to recognize the remarkable career of Carol Brick-Turin.

After 12 years, Ms. Brick-Turin is retiring as the executive director of the Greater Miami Jewish Federation's Jewish Community Relations Council.

Carol originally moved to Washington, D.C., to join the U.S. Department of Agriculture, where she worked on public policy issues for more than a decade. A graduate of Cornell University with a bachelor of science degree in agricultural economics, she was recruited to join the Foreign Agricultural Service and served as a diplomat in Brussels, Belgium, in the U.S. Mission to the European Community.

She was the first married female to serve as an agricultural attache in the history of the FAS.

Carol attended the Foreign Service Institute, completed a study program taught by faculty of the Jewish Theological Seminary, and attended the University of Tel Aviv in 1973, both before and after the Yom Kippur War.

Having raised her children as Zionists, she now has three grandchildren who were born in Jerusalem, in addition to her two granddaughters in Miami.

As the JCRC's executive director, Carol has adroitly mobilized and energized Miami's Jewish community on many levels. She has led our citizen activists in building relationships with Members of Congress on both sides of the aisle, key to the success of the pro-Israel movement and the national agenda supported by the Jewish Council for Public Affairs.

We have worked together to address a multitude of issues facing our community, from the surge of anti-Semitism and senseless gun violence plaguing our schools and places of worship to ensuring we maintain our strong U.S.-Israel relationship.

Carol's commitment to Miami's Jewish community and the State of Israel is exemplary, and I am proud to call her my very dear friend.

I will miss her guidance and wisdom, but our loss is her husband, Alan, and her family's gain.

I wish her a hearty mazel tov on her retirement, and I am grateful for her invaluable work and her dear friendship.

RECOGNIZING SWISHER ACQUISITION, INC.

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Missouri (Mrs. HARTZLER) for 5 minutes.

Mrs. HARTZLER. Mr. Speaker, I rise today to recognize Swisher Acquisition, Inc., of Warrensburg, Missouri, on their success producing American-made products.

Swisher-branded products were chosen to participate in the White House's fourth annual Made in America Product Showcase on October 5. This event celebrates the hard work and dedication of American workers, businesses, and their products. Businesses from each of the 50 States have been invited to display their American-made products at the White House.

It is an honor and achievement for Swisher Acquisition, Inc. to be selected to represent the great State of Missouri, and I am proud to represent them in Congress.

Swisher Acquisition, Inc. is an outdoor power equipment manufacturer dating back to 1945. All products are American-made and commercially graded and carried in stores around the world, such as Home Depot, Cabela's, Atwoods, and more.

At the showcase, the Swisher Brand Outdoor Power Equipment; ESP Branded Safe Rooms, Tornado, and Storm Shelters; Swisher Branded Agricultural Products; and the new 2021 Huckleberry's Hammers and LogOX Brand Products will be on display.

I encourage all to take the opportunity to view all displayed American-made products and see the outcome of American ingenuity.

Please join me in congratulating Swisher Acquisition, Inc. on this tremendous accomplishment.

RECOGNIZING ALL SAINTS' CHURCH

Mrs. HARTZLER. Mr. Speaker, I rise today to recognize the All Saints' Church in Nevada, Missouri, and to celebrate its 150th year of incorporation as a parish on All Saints Day, which will be recognized on November 1.

In November 1870, the All Saints' Church in Nevada was officially organized, and their church building was completed. The parish began making positive impacts in their local community that continue today.

The All Saints' parish expresses their love for their fellow neighbors through supporting the community outreach food pantry with donations of food and volunteering.

All Saints' also has been a pivotal supporting figure through their care for domestic violence victims and their selfless service to their neighbors and strangers alike.

I want to congratulate the All Saints' Church in Nevada, Missouri, for 150 years of service to the Lord and to the community. I wish them God's continued blessings in the coming year.

May your next 150 years be just as impactful as your first 150 years.

HONORING THE LIFE AND SERVICE OF WILLIAM LANE

Mrs. HARTZLER. Mr. Speaker, last June marks the 70th anniversary of the beginning of the Korean war. I rise today to honor a selfless hero of that war, William Lane. He is a resident of Lebanon, Missouri, and a veteran of both the Korean and Vietnam conflicts.

Sergeant First Class Lane was a medic in the 24th Infantry Division, among the first contingent of U.S. soldiers sent to Korea in 1950. He frequently risked his life to render medical assistance and evacuate wounded soldiers in the Battles of Chonan, Taejon, and the Pusan Perimeter.

Assigned to the 3rd Infantry Regiment, his unit sustained a casualty rate of 39 percent by mid-August. By the end of the month, there were only 184 men of the original 1,898. This casualty rate is equivalent to some of the bloodiest battles of World War II.

Without the efforts of men like Sergeant Lane and his fellow soldiers, the outcome of the war may have been decisively different. Sergeant Lane would later go on to serve his country for 21 years in the United States Army.

From the frozen tundra of Korea to the jungles of Vietnam, Sergeant Lane went wherever his Nation called him. I commend him for his service, and I thank him for his commitment to defending our Nation and the freedom-loving people of Korea and Vietnam.

RECOGNIZING BATES COUNTY MEMORIAL HOSPITAL

Mrs. HARTZLER. Mr. Speaker, I rise today to recognize the Bates County Memorial Hospital and their continuous community service over the last 60 years.

In 1926, a dedicated community servant, Mrs. S.C. Stayton, saw a need for a local rural hospital in the growing city of Butler, Missouri. After renting a two-story house, she furnished the five rooms upstairs for patients, and the first patient was admitted shortly after, on June 17, 1926.

In 1932, during the Great Depression, Stayton convinced the city to purchase property for a new hospital. On September 16, 1960, Bates County Memorial Hospital officially opened. In its first 5 months, 564 patients were admitted, and 87 babies were born.

Over the years, Bates County Memorial has gone through many additions, improvements, and regulation demands. However, Stayton's original vision remains, a vision of keeping a healthy hospital presence in rural communities.

Please join me in congratulating Bates County Memorial Hospital on 60 years of service and giving a huge thank-you to all the staff for continuing to serve during these uncertain times.

SPEAKING TO THE SOULS OF AMERICA

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Texas (Ms. JACKSON LEE) for 5 minutes.

Ms. JACKSON LEE. Mr. Speaker, I am so glad that my colleague invoked God's name on the floor of the House. As I stand here, I can read the words ''In God We Trust.''

We are blessed by a Nation that has the right and the protections to express our faith, our love of the God we love. And so I thought this morning I was compelled to come to the floor because I believe in a God of love, and my Christian faith believes in the sacrifice He made so that we might live and, as well, to recognize that He protects us all.

As we go through this road of trepidation with COVID–19, as I mourn for more than 200,000 Americans, many of whom lost their lives because of ill-fated policies by the administration, I thought it was imperative that I speak to the souls of America because, as my predecessor, the Honorable Barbara Jordan, I have faith in this Nation. She was a good mentor for me and many others. She was a patriot, and I have tried to be every day of my life.

I honor the men and women who put on the uniform, young boys and girls almost, young men and women throughout the ages. I acknowledge the fact that, even with bondage in their DNA, slaves volunteered, ex-slaves, to fight in the Civil War, but they fought in wars before, including the Revolutionary War.

The heritage of African Americans and Black Americans in this country is wrapped in the love of the Nation. The times that we have stepped out to be able to demand justice for our Nation and for everyone, it has not been against the flag; it has been to empower the flag to symbolize the right thing.

How many people realize the number of African Americans who died during the civil rights movement? I didn't say the Civil War. We lost many in the civil rights movement.

□ 1000

Yes, we know, tragically, brave men and women who were not Black who came to help lost their lives. The three Mississippi boys, Viola Liuzzo, and others lost their lives because they believed in a better America.

Then I am reminded of the beginnings of the takeover of a beautiful country called Germany by Nazism. The words that I remember in a historical perspective is: It was the silence that killed us.

Dr. King said that it is not the good people who fail, but it is those who

stand by silently and say nothing—so, too, the head of this Nation.

It might have been a lot of bickering on Tuesday night in your mind, Mr. Speaker, but I can say to you that it was a painful experience for so many when we could not hear the simple words of condemnation of white supremacy, even when, as the senior member of the Homeland Security Committee, I have heard over and over again, a member of the Judiciary Committee, Director Wray of the FBI that the most dangerous domestic terrorist threat in the United States—not my words, his words—is white supremacy, or those words coming, as well, from the head of the Homeland Security Department, the Secretary.

I offered an amendment to the National Defense Authorization Act that was adopted that directs the Secretary of Defense to report to Congress the extent, if any, of the threat to national security posed by domestic terrorist groups and organizations motivated by a belief system of white supremacy such as boogaloo boys and proud boys extremists. I am proud of the House. Obviously, it was adopted in a bipartisan commitment. I am proud that Members joined in by their acquiescence and affirmation that this is not America.

But over these last couple of days, social media is raging. When that question was posed to the existing and sitting President of the United States, we heard these words when they asked would you condemn the proud boys' violence, ''stand back and stand by.''

Mr. Speaker, as I close, let me say that white supremacy is going to strangle us and our values. I beg of this leadership and I beg of all of us to stand against it, to fight against it, and to save lives, because those lives are precious American lives, and we are not that way. We are better than this, Mr. Speaker.

Mr. Speaker, I rise in opposition to efforts to legitimize violent White Nationalists groups.

Over the last several months, I have raised concerns over the role that Boogaloo and Proud Boys have played in bringing an element of violence into the otherwise peaceful protests following the death of George Floyd.

During the House Consideration of the NOAA, I offered an amendment that was adopted to directs the Secretary of Defense to report to Congress the extent, if any, of the threat to national security posed by domestic terrorist groups and organizations motivated by a belief system of white supremacy, such as the Boogaloo and Proud Boys extremists.

During the first Presidential debate the President had the opportunity to condemn Proud Boys, which he could not or would not do.

In the light of day, he claims ignorance of who or what Proud Boys is—which sounds like the same words he used about not knowing David Duke—a former Grand Wizard of the KKK who endorsed him during his first Presidential Election.

The President in the interviews with Robert Woodward has proven himself to be anything but ignorant or uninformed.

He has shown his willingness to use his knowledge for his benefit while keeping his knowledge hidden from others at their expense.

What I know is that Congress has been briefed on the national security threat posed by Proud Boys and Boogaloo Boys, which means the President has also been briefed.

On May 30, 2019, the FBI issued an Intelligence Bulletin on Anti-Government, Identity Based, and Fringe Political Conspiracy Theories Very Likely Motivate Some Domestic Extremists to Commit Criminal, Sometimes Violent Activity, which includes the activities associated with Proud Boys and Boogaloo Boys.

Proud Boys is described by the Southern Poverty Law Center as a hate group.

The ADL describes Proud Boys as:

> Ideology: Primarily alt lite: Misogynistic, Islamophobic, transphobic and anti-immigration. Some members espouse white supremacist and anti-Semitic ideologies and/or engage with white supremacist groups.

In sum, the Proud Boys is a far-right neofascist organization that admits only men as members and promotes political violence.

The group believes men—especially white men—and Western culture are under siege; their views have elements of white genocide conspiracy theory.

While the group claims it does not support white supremacist views, its members often participate in racist rallies, events, and organizations.

The organization glorifies violence, and members engage in violence at events they attend; the Southern Poverty Law Center has called it an ''altright fight club''.

The President's message when asked about condemning the White Supremist Group—Proud Boys, was to say to them ''Stand Back and Stand By.''

It surprises absolutely no one that ''Stand Back and Stand By,'' means to be ready .

Ready for what?

The intelligence community has been sending warnings to the White House and Congress that groups like Proud Boys are a threat to our national security and have been waiting for someone like the President to incite others to join them in order to grow their numbers to spread violence.

As I speak, the Internet is ablaze with activity from the Proud Boys in celebration and elation of their favorable recognition of the President.

Proud Boys created a new image to signify the President's message to them, ''Stand Back and Stand By.''

We know from experience how people like members of Proud Boys react when they believe they have legitimacy from the President; they take it as a license to continue their violent activities as we said four years ago, culminating in Charlottesville, Virginia.

Proud Boys may use the phrase ''Stand Back and Stand By'' to describe the overwhelming majority of white Americans who are not aware of or interested in the activities of the group or any white supremist group, but may intend to support this President in November despite his obvious flaws.

The unfortunate truth for voters who think their vote this November is not at risk of sending an affirming nod to Proud Boys or groups like them—then they should think again.

President's own acts makes this election no longer about Red or Blue States, Democrats and Republicans, but about whether you condone racism, misogyny, or political and election violence.

White Nationalists will interpret every white voter's vote for Trump as a vindication of their hate, misogyny, and rage against non-whites and independent women.

Let us not be fooled, these groups hate a lot of things—and the color of a person's skin is just one of those things—they also hate women who are educated, who are leaders, who dare to think for themselves; they hate white men who form families with persons of other races, and they hate white men who will hire, promote, and support persons of color and women in employment; they hate education, public order, peace and justice that adhere to equality for all.

They do love one thing—violence.

Our role as Members of Congress is to defend and protect the American people, no matter their race, ethnicity, gender, sexual orientation, or country of origin.

White Nationalists have been busy looking for fights and igniting violence at peaceful street protests.

We saw them in Charlottesville, Virginia and have seen them trying to end state and local measures to slow the spread of COVID–19 and carrying out violence at George Floyd protests.

Now the President is inviting Proud Boys to polling locations during ballot casting.

COVID–19 is presenting a heightened barrier and challenge to voting in the November 3rd election.

The validity of the American vote and the ability for Americans to exercise their vote is in jeopardy from a President who seems to be at war with the free and fair election process.

Over the years, it has become increasingly hard for citizens to realize their voting rights—particularly for African Americans and other minorities, as well as for students, the elderly, and individuals with disabilities.

Voter suppression measures across the country in the past included: new voter ID laws, reductions and cuts to polling places and early voting, and purging of voter rolls, but today there are challenges being made to mail-in voting during a time of COVID–19 when in-person voting would pose health risks to many voters.

The doubts the President is seeking to create around mail-in voting are resulting in significant burdens for individuals seeking to exercise their most fundamental constitutional right.

With varied systems of election administration and technology, polling place practices, and inexperienced poll workers, there is a real and dangerous threat that White Nationalists may take this opening provided by the President to compromise our nation's electoral process.

During a time when the voting rights of minorities and all Americans are under the greatest attack since the passage of the Voting Rights Act, it is imperative that the federal government take all necessary steps to ensure that the right to vote and the entire electoral process is fully protected and upheld.

It is important to know and understand that the Voting Rights Act and the Civil Rights Act never mention color, ethnicity, or race.

Both of these laws are to preserve and protect basic human rights and dignity owed to each person.

This may be the election year when the voting rights of a majority of Americans may need both of these laws.

That is why I am asking the Department of Justice, pursuant to its statutory authority and consistent with its historic role as a guardian of civil rights and liberties, to take immediate action and investigate the full scope of vulnerabilities, security threats and breaches to our electoral and voting process posed by groups like Proud Boys.

This President finds it too difficult to call out those among us who are the truly abhorrent and objectionable because they are at the heart of his political base.

The violence seen during the recent national movement to end the deaths of unarmed black men while in police custody is not the start of the events that have led to the Boogaloo movement or Proud Boys activity.

Groups like these have been around for over a century, most notable is the KKK, which is why they should not be invited to visit polling locations during a public election.

According to the Southern Poverty Law Center (SPLC), in the immediate aftermath of Election Day, a wave of hate crimes and lesser hate incidents swept the country with 1,094 bias incidents recorded in the first 34 days following Trump's Election on November 8, 2016.

Of these incidents, the SPLC reports that anti-immigrant incidents (315) remain the most reported, followed by antiblack (221), anti-Muslim (112), and anti-LGBT (109).

Anti-Trump incidents numbered 26 (6 of which were also anti-white in nature, with 2 non-Trump related anti-white incidents reported).

The threats from White Nationalist groups range from decentralized and leaderless accelerationist networks using social media platforms, such as the Boogaloo movement, to more structured, far-right militia extremist groups.

The ideologies undergirding these movements or groups have some similarities to other anti-government and white supremacist beliefs but are often not tied to a single, monolithic ideology.

In addition, in many cases, their adherents' decentralized, and coded use of digital tools poses unique challenges for law enforcement and government officials to identify and track their activity.

These developments in domestic terrorism, as reported in the media and government intelligence reports—coupled with recent arrests and successful violent attacks carried out by ''Boogaloo boys'' and militia extremists—are troubling.

My concern is that as the nation moves towards a historic national election, the activity of violence instigators like Boogaloo Boys or Proud Boys will increase and lead to attacks becoming more frequent.

This view is heightened given the President's instructions to Proud Boys to ''Stand Back'' and ''Stand By.''

The domestic terrorism issues of greatest concern to me are:

The number of incidents, although small in number, that have involved government employees, contractors or military personnel;

The targeting of places of worship;

Politically motivated attacks or attempted attacks; and

Use of Social media for domestic and international hate groups to collaborate and stoke hate.

Icreasingly everyday the President confirms his candidacy as candidate of white supremacy.

A quote from Lincoln's address to Congress in December 1862 come to mind, when he said to this body:

''Fellow-citizens, we cannot escape history. We of this Congress and this administration, will be remembered in spite of ourselves. No personal significance, or insignificance, can spare one or another of us. The fiery trial through which we pass, will light us down, in honor or dishonor, to the latest generation. We say we are for the Union. The world will not forget that we say this. We know how to save the Union. The world knows we do know how to save it. We—even we here—hold the power and bear the responsibility.''

Due to the rise in online activity of these groups spurred by the President's comments many law enforcement jurisdictions around the nation must prepare for the violence that may come as these groups seek to act out in advance of the election.

This will put additional strain on the budgets of local and state law enforcement agencies already burdened with COVID–19 emergency measures and tight budgets caused by the economic collapse due to this Administration's mismanagement of COVID–19.

Congress must send a unified message that there is no place in the body politic for these groups or these views.

I invite my colleagues on both sides of the aisle to do what the President did not do by joining me and Vice President Biden and millions of Americans in condemning the White Supremist Groups.

OPPOSITION TO DEFUNDING POLICE DEPARTMENTS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Indiana (Mr. BAIRD) for 5 minutes.

Mr. BAIRD. Mr. Speaker, I rise today to recognize the heroic efforts of West Lafayette Police Officer Brian Danosky.

On the morning of August 27, Officer Danosky found 22-year-old Troy Moffitt, who was bleeding from a gunshot wound. Not knowing if the shooter was still in the area, Officer Danosky ignored the danger to his life and rushed to save Mr. Moffitt. Officer Danosky applied a tourniquet to Moffitt's leg, an act that saved Mr. Moffitt's life.

Officer Danosky went above and beyond the call of duty and risked his own safety to save the life of a citizen he swore to protect and serve. For that, Officer Danosky will be the third officer in the last 10 years to receive the Silver Merit Award.

I commend Officer Danosky for his act of bravery, and on behalf of all Hoosiers in the Fourth District, I thank him for his service.

Mr. Speaker, I offer Officer Danosky's story to my colleagues not only to highlight his heroic actions, but to remind them that our police officers are dedicated public servants who want to protect their communities.

Unfortunately, there is a growing movement to disparage and defund our law enforcement officers. There are even some in this Congress who advocate defunding police departments. We are already seeing the disastrous effects happening over our country in cities where they slice police budgets.

New York City took $1 billion from their police budget amid rising crime. In July, the city saw a 59 percent increase in murders compared to last year.

The city of Minneapolis is pushing to eliminate their police department at a time when they are seeing a spike in murders.

What makes this rise in crime even more tragic is that the victims are often from underserved communities, the same communities, we are told, that will benefit from fewer police officers in their neighborhoods.

These communities are no different from the communities in my district. They want the same thing: good jobs, good schools, safe communities, and a place to raise their families.

I will continue to support our police officers and oppose any efforts to defund them.

SUPPORTING THE SECOND AMENDMENT

Mr. BAIRD. Mr. Speaker, I rise today to support the millions of Americans who are exercising their Second Amendment right and becoming law-abiding gun owners.

As people across our Nation and across our country watch riots and crime consume our cities and the elected leaders in those cities do little or nothing to stop it, people will ensure they have the means to defend themselves and their family. These millions of Americans who are purchasing these firearms are exercising their God-given and constitutional right to self-defense.

Since March of this year, at least 1.5 million firearms have been sold every month. I pledge to these new gun owners that I will not only work to restore law and order to our communities, but also protect the Second Amendment and make certain every American has the right to protect themselves and their families.

E PLURIBUS UNUM

Mr. BAIRD. Mr. Speaker, I rise today to remind my fellow citizens that, despite our differences and beliefs and our deep divisions, we can still come together as one nation under one flag.

We remember the words stitched on our Nation's first seal, ''e pluribus unum,'' ''out of many, one.'' No matter where you came from, what creed you follow, or the color of your skin, we are one nation united under the banner of freedom.

This great experiment in self-government that we call the United States of America has been able to achieve great things like defeating Nazi Germany and landing a man on the Moon because we came together as one. When we stand shoulder to shoulder, there is no obstacle our country can't overcome.

I ask every American to reflect and remember the bonds that unite us and

that they are stronger than those that divide us.

CELEBRATING INDEPENDENT RESTAURANTS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. BLUMENAUER) for 5 minutes.

Mr. BLUMENAUER. Mr. Speaker, I rise today to celebrate the Independent Restaurant Coalition who have been my partners on the RESTAURANTS Act that is currently being negotiated between the Speaker and the White House. This coalition has willed this legislation into effect.

It is comprised of chefs Jose Andres, Nina Compton, Andrew Zimmern, Tom Colicchio, Naomi Pomeroy, Gregory Gourdet, Erika Polmar, Bobbie Stuckey, Robert St. John, and Will Guidara.

Mr. Speaker, these key leaders have represented 500,000 independent restaurants across America and their 11 million workers. They are sort of the point of the spear for the 180-member steering committee who have extended themselves in an extraordinary fashion in helping craft targeted legislation. They make the case to the American public that restaurants—independent restaurants—are the cornerstone and the very fabric of our communities.

It is hard to imagine your city or mine, Mr. Speaker, without these independent restaurants. For many people it is the first job that they get. They are representative of minorities, and they are disproportionately women-owned. They have an energy and a vitality. They provide an area for Americans to come together. In the time of COVID–19, we miss that opportunity to gather, and we need to take action to make sure that they remain in business.

That is what the coalition has done. Uniting behind the RESTAURANTS Act, they have made the case to people all across the country. They have driven Members in the House and the Senate to cosponsor legislation—well over 200 in the House and 40 companion bills in the Senate—making the case that there is something that we can do.

The need here is to have a tailored approach. Without something specific for independent restaurants, we face 85 percent of them closing their doors permanently by the end of the year. The restaurant industry of these independent restaurants are the hardest hit segment of the American economy. In April alone they accounted for half the unemployed.

We have united behind a proposal of $120 billion in direct grants to restaurants. The PPP simply isn't working for them. It is too cumbersome; the time constraints don't work; and, as a practical matter, we don't need to change the format that we have developed. We have extensive research that documents if we are able to extend this $120 billion lifeline to the independent restaurants, then we will avoid over $183 billion of costs for unemployment and having these institutions file bankruptcy rather than paying their taxes. They support the supply chains in every community. That includes not just the restaurant workers and owners but deals with the people who supply them with the linens, the fruits, the vegetables, and the wine. This is an extensive supply chain that stretches throughout the local economy.

The good news is that we have progress. The Heroes Act includes the RESTAURANTS Act in its entirety with the full $120 billion. Yesterday there was extensive discussion with our leadership and the White House. We had earlier conversations in the White House with leaders from the Independent Restaurant Coalition. I heard from Will Guidara from New York City about the interaction he had with Secretary Mnuchin, and President Trump was there as a part of it.

This is something that we can do. We can come together, support this provision in the Heroes Act, and negotiate out in terms of the final package to make sure that we protect this lifeline for these vital institutions for all our communities.

I deeply appreciate the interest and momentum that has been developed in both the House and Senate; the people who are stepping forward to help their independent restaurants and the members of the coalition; and, most of all, I want to thank the members of the coalition who represent this critical industry and a potential solution to those problems.

BREAST CANCER AWARENESS MONTH

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Indiana (Mrs. BROOKS) for 5 minutes.

Mrs. BROOKS of Indiana. Mr. Speaker, October is Breast Cancer Awareness Month, so it is fitting that I rise today in support of H.R. 4078, the EARLY Act Reauthorization, which passed the House earlier this week. I am honored to have co-led this bipartisan legislation with my good friend, colleague, and breast cancer survivor, Representative DEBBIE WASSERMAN SCHULTZ.

This is an important public health bill to ensure that young women throughout the United States understand the importance of breast health and the value of regular breast cancer screenings.

This bipartisan bill raises public awareness about breast health and educates healthcare providers to encourage early detection of breast cancer. It also supports initiatives and research to help identify high-risk women by collecting family histories and educating patients about early warning signs.

These programs are vitally important. We all know the statistics. One in eight women in the United States will be diagnosed with breast cancer over her lifetime, and many women with breast cancer typically have no symptoms.

This disease has taken far too many of our loved ones. In 2017, breast cancer was the number one most diagnosed cancer type in the United States and the number two most deadly.

Earlier this year, I lost a very dear friend to this terrible disease, Judy Christofilis. She and I had volunteered in the Junior League in Indianapolis over 20 years ago. She was a successful accountant, a pillar of the Indianapolis community, and, above all, a dedicated philanthropist.

She was on the board of the Indianapolis Day Nursery, Indiana's oldest and largest early childhood education nonprofit. She was extremely active in the Junior League of Indianapolis and the Indianapolis Art Center.

But in the last decade of her life, when she was battling breast cancer, she was a founding member of the Indianapolis American Cancer Society Guild and served as its treasurer. The guild's mission is to support the central Indiana office of the American Cancer Society by generating awareness, raising funds, and providing support for community outreach programs to achieve the shared goal of savings lives by helping people stay well, get well, find cures, and fight back.

□ 1015

This mission epitomizes Judy's fight against breast cancer. She battled metastatic breast cancer for more than a decade. Her resilience, and spirit, served as an inspiration to me and so many others in our community.

Her story is just a reminder of why breast cancer screening is vitally important, and it is often the best and only way to identify this cancer in its earliest stages. Women—even young women—are susceptible to this deadly disease, which is why regular breast screenings are so crucially important.

Our bill reauthorizes the program through fiscal year 2024, and it funds CDC programs to identify gaps in education and awareness, particularly among young women and healthcare providers. It supports young survivors through grants to organizations focused on helping them cope with the many unique challenges they face as young women and in implementing a targeted media campaign to reach young and higher-risk women.

The science is clear: Early detection is the single most effective way to stop these cancers before they become deadly.

In my very last conversation with Judy before she passed away in March of this year, she asked me to keep up the fight for all people battling cancer. This bill, in large part, for me, is dedicated to my very dear, close friend Judy Christofolis. She truly is one of my heroes.

Mr. Speaker, I urge our Senate colleagues to pass this important bill this month during Breast Cancer Awareness Month.

U.S. CENTER FOR SAFESPORT

Mrs. BROOKS of Indiana. Mr. Speaker, I urge my colleagues to pass S. 2330, the Empowering Olympic Paralympic and Amateur Athletes Act of 2020.

This bill is the result of several years of work that began in 2016. Indiana's very own Indianapolis Star broke the story about former USA Gymnastics' team doctor, Larry Nassar's abuse of athletes under his care. Several years have passed since Dr. Nassar went to prison, but Congress has continued to work to ensure this kind of abuse never happens again.

In 2017, I led the charge in the House to address the horrible situation by introducing the Protecting Young Victims from Sexual Abuse Act. I was grateful to see it pass the House and see it get signed into law.

That law established the U.S. Center for SafeSport as the entity responsible for developing policies that all U.S. Olympic governing bodies must implement to better protect their athletes and, most critically, the center was charged with investigating claims of abuse against amateur U.S. athletes.

The center has received hundreds of claims they are responsible for investigating. And, today, with the passage of this bill later today, we will help ensure they will be able to fulfill that mandate.

When it was originally conceived, the center was not provided a steady revenue stream, but today S. 2330 will require the U.S. Olympic and Paralympic Committee to provide direct funding to the U.S. Center for SafeSport to guarantee it stays committed to protecting athletes.

This reform, along with many others included in Empowering Olympic, Paralympic, and Amateur Athletes Act, will bring much-needed further reform to ensure our young athletes will not have to suffer at the hands of another in their quest for gold.

Mr. Speaker, I urge all my colleagues to support this measure.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until 11 a.m. today.

Accordingly (at 10 o'clock and 18 minutes a.m.), the House stood in recess.

□ 1100

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Ms. DEAN) at 11 a.m.

PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Loving God, we give You thanks for giving us another day.

Send us Your spirit of peace. Inspire the Members of the people's House this day with Your spirit of wisdom, patience, and understanding in the work they do.

Throughout our country, the effects of the coronavirus plague continue. Keep safe those who are in harm's way: healthcare professionals, those engaged in delivering goods and services to our communities, and teachers at all levels.

Comfort and send Your spirit of healing to those who suffer from illness and those who mourn those who have died.

Lord God, have mercy on us.

May all that is done this day be for Your greater honor and glory.

Amen.

THE JOURNAL

The SPEAKER pro tempore. Pursuant to section 4(a) of House Resolution 967, the Journal of the last day's proceedings is approved.

PLEDGE OF ALLEGIANCE

The SPEAKER pro tempore. Will the gentleman from California (Mr. SCHIFF) come forward and lead the House in the Pledge of Allegiance.

Mr. SCHIFF led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

EVERY AMERICAN DESERVES QUALITY HEALTHCARE

(Mr. SCHIFF asked and was given permission to address the House for 1 minute.)

Mr. SCHIFF. Madam Speaker, Martin Luther King, Jr. once said: ''Of all the forms of inequality, injustice in health is the most shocking and the most inhuman because it often results in physical death.''

As our Nation confronts the crisis of coronavirus, we must also confront the crisis of systemic racism in our society. Nowhere is the fight for racial justice more urgent than in the field of health.

The legislation I introduced this week would create a clear and forcible standard for equal healthcare, treating it as a civil rights issue, as it is, and provide strong tools to identify inequitable care and correct it wherever it is found.

I acknowledge and thank Dwayne Hall, whose own family experience with bias in healthcare was a driving force behind this legislation and without whose leadership this bill would not have been possible.

Every American deserves quality care and every American deserves equal care. I look forward to working with my colleagues on this bill to make health equity a reality in this country.

HONORING BLAKE HURST

(Mrs. WAGNER asked and was given permission to address the House for 1 minute.)

Mrs. WAGNER. Madam Speaker, I rise today to honor the tremendous service of a leader in Missouri agriculture, Mr. Blake Hurst.

Starting out as a young farmer in northwest Missouri, Blake rose through the ranks of the Missouri Farm Bureau to become a statewide board member, vice president, and, finally, president in 2010. Over his tenure, Blake brought the organization to new heights and developed a national reputation for his expertise in agriculture policy.

After decades of service, Blake plans to retire this year and spend more time on his farm with his loving wife, Julie, and their beautiful family.

Madam Speaker, I thank Blake for his unwavering support for Missouri farmers and wish him the very best as he begins this new chapter in his life.

AMERICA CAN AGAIN BE A WELCOMING NATION

(Mr. HIGGINS of New York asked and was given permission to address the House for 1 minute.)

Mr. HIGGINS of New York. Madam Speaker, one of the first actions of this administration was to shut down our Nation's doors to families, women, and children around the world fleeing violence and seeking refuge within our borders.

These bans showed a lack of decency and empathy, and they ignored the lessons of history. Immigrants built America, and they helped sustain and expand all that is good in a just and free society.

The President's ignorance of this history is perhaps the point of his policy, one that he uses to exploit and divide. Reports now show that the country intends to admit only 15,000 refugees this year, down from nearly 100,000 4 years ago.

The refugee community in western New York has helped revitalize entire neighborhoods, bringing diversity, culture, and new economic opportunity.

The organizations that support refugees, like the International Institute of Buffalo, Journey's End, Jewish Family Services, and others, continue to do their work with dwindling Federal support, but still they continue to do their good work.

I believe that we can once again be a generous and welcoming nation to the world's most vulnerable. It is imperative for our future that we do so.

The SPEAKER pro tempore. Members are reminded to refrain from engaging in personalities toward the President.

COMMEMORATING THE LIFE OF WINSTON GROOM

(Mr. BYRNE asked and was given permission to address the House for 1 minute.)

Mr. BYRNE. Madam Speaker, I rise today to commemorate the life of a man I was proud to call a constituent and a friend, the great author Winston Groom.

Winston passed away recently in Fairhope, Alabama, after a long and vibrant life whose words touched untold millions around the globe. Most of America knows Winston is the author of ''Forrest Gump,'' the timeless American novel adapted into the classic film of the same name.

Winston and I share a hometown, Mobile, and, as adults, lived near each other in Fairhope. I was blessed to be able to develop a friendship with Winston over the past several decades.

Our State of Alabama, particularly southwest Alabama, is renowned for the quality of writers we have produced. We are also renowned for the colorful qualities of many of those writers.

Winston was not only an incredible talent who will leave a lasting impact on the literary world, but one of the most colorful characters to ever call Alabama home. As Forrest Gump would say: ''That's all I have to say about that.''

I wish Winston's family all the best, and I thank them for sharing Winston with the world.

DEMOCRATS ARE FIGHTING FOR ALL AMERICANS

(Mr. HOYER asked and was given permission to address the House for 1 minute.)

Mr. HOYER. Madam Speaker, since the beginning of this Congress, House Democrats have fought for the people. From lowering healthcare costs to raising wages by rebuilding America, to cleaning up corruption and strengthening democracy, House Democrats have passed major legislation and shown the American people what our priorities are.

At the same time, sadly, Republicans have also made clear what their priorities are, priorities the American people, in my view, do not share, for example, and particularly, on healthcare.

For years, Madam Speaker, President Trump and Republicans have been telling the American people that they have a plan that is better than the Affordable Care Act which will cover more Americans. As a matter of fact, the President said he would cover everybody at a lower cost and higher quality. Not a single Member of this House can rise and say, ''I know what the President's bill is,'' because they have never seen it after 3 years and 8 months.

But after years with no plan being put forward, it is clear exactly what their plan really is: Eliminate the Affordable Care Act and offer nothing in return. They continue to tell the American people, ''You are on your own.''

They tried to repeal or undermine the Affordable Care Act more than 65 times in Congress and failed. Now they are trying to overturn the law in court, and they are attempting to ram a Supreme Court nominee through in order to do what they failed to do through the legislative process, of course, after saying that we ought not to consider a Supreme Court nominee in an election year because we ought to let the people speak.

In fact, the people spoke in 2016 and voted for Hillary Clinton by over a 3 million disparity. Republicans didn't care. They wanted to know what the electoral college said. And, of course, that is our Constitution, but it is not the people speaking.

The fight over this nominee is very much about the ability of Americans to access quality, affordable healthcare.

When Democrats came into the majority, we took immediate action, Madam Speaker, to defend the Affordable Care Act in court and stand up for its protections for more than 130 million Americans with preexisting conditions.

What can we expect if Republicans succeed in ending the Affordable Care Act?

Free preventative screenings and services, gone.

The guarantee of coverage for those with preexisting conditions without higher premiums, gone.

The ability to get covered under your parents' plans if you are younger than 26, gone.

The ban on lifetime and annual limits of coverage, gone.

That is what we are defending for the people and what we will continue to protect.

Madam Speaker, we also took real action to lower prescription drug costs with the passage of H.R. 3 and other legislation—not a gimmick like President Trump's meaningless executive orders or his illegal coupon cards that endanger the future of Medicare, but real action to benefit those who need more affordable prescription drugs.

And when an unprecedented, deadly pandemic swept across the globe and on to our shores, House Democrats led the way with swift action, enacting four bipartisan laws and passing a fifth bill, the Heroes Act, 4½ months ago. No action in the United States Senate for 3½ months, and then a lame effort, which was not supported by Republicans in the Senate and certainly no Democrats in the Senate.

President Trump and the Republican Senate, however, have blocked the Heroes Act so necessary for those on unemployment, so necessary for those who are trying to feed their families, so necessary for family support, so necessary for small businesses, so necessary for hospital workers and those who are administering testing, and so necessary for the States and localities that are hiring police, firefighters, sanitation workers—the critical personnel necessary to help confront this virus.

Where Democrats have said we are in this together, President Trump has said it is what it is.

Let me say to the American people: What it is does not have to be.

House Democrats have shown that there is a better way to lead and a more responsible way to govern in this crisis.

Democrats have also been fighting to make our economy work, Madam Speaker, for the people while Republicans fight to make our economy work for the wealthy. That is why they are fighting about the tax provision that they put into the CARES Act, which we think ought to be deleted because it is for the wealthy, not for those who are struggling.

In 2017, President Trump and Republicans enacted an unpaid-for $1.5 trillion tax cut where 83 percent, more than 8 out of 10 Americans who got relief in that tax act were some of the wealthiest people in America, the top 1 percent. That bill also raised taxes on 86 million middle-class households.

In contrast, Madam Speaker, House Democrats have used our majority to benefit working families and grow our economy. We voted to raise the minimum wage and ensure equal pay for equal work for women. It lies unattended in the United States Senate. Senator MCCONNELL will not bring it up.

We invested in new infrastructure and clean energy innovation that drives growth of new, high-paying American jobs. It sits untended in the United States Senate.

□ 1115

House Democrats have been working to make government more transparent and accountable to the people.

Our majority moved swiftly, Madam Speaker, to pass the strongest and most comprehensive government reform legislation in decades, the For the People Act.

That bill will hold government officials more accountable, increase transparency and ethical standards, and increase voter protections while instituting national redistricting reforms.

Where is it? In the Senate left untended, unconsidered by the United States Senate, because it is on MCCONNELL's desk and he will not move it.

While this President and Republicans continue to make it harder for Americans to vote, and sow confusion and uncertainty about balloting, House Democrats passed H.R. 4 to restore the John Lewis Act, to restore the protections in the Voting Rights Act that so many fought for, demonstrated for, and died for.

But unfortunately, too many in this country are trying to make it more difficult, not easier, to cast that central facet of being a citizen in a democracy, the right to vote.

That is one of the 340 bipartisan bills that are languishing on Senator MCCONNELL's desk. He will not call them up before the Senate for a vote, muzzling democracy.

That is 340 important bipartisan bills blocked, stalled, or ignored.

Madam Speaker, let's not forget that we began our majority in the middle of a damaging and irresponsible government shutdown, the longest shutdown that I have experienced in the 40 years I have been here.

We moved swiftly to end that shutdown and prioritize the passage of funding bills last year and this year before the end of July in order to prevent another shutdown of our government.

So last year we passed 8 of the 10 appropriation bills by June 26. This year, we passed 8 of those 10, notwithstanding COVID, by July 26.

The Senate has not passed out of committee a single appropriation bill, not one, Madam Speaker.

What have they been doing? Judge after judge after judge after judge. That is what they are doing, to serve their ideological agenda, hoping that they can control through the courts that which they cannot control in the democratic process.

We have shown, Madam Speaker, what it means to govern for the people, and over the next few weeks, Americans will have a chance to choose the direction our country follows in the years ahead. They know that Republicans have failed them: no healthcare bill, no infrastructure bill that the President talked about in the campaign, ''I am going to invest in infrastructure.'' No bill has been presented by the President to do that, no healthcare bill.

They know that our Republican colleagues have failed them through their inaction and irresponsibility.

And they know, Madam Speaker, that Democrats have offered a serious agenda of leadership, have demonstrated the capacity to govern responsibly, and have shown ourselves always to be for the people.

Madam Speaker, today we will be considering a bill. We are in negotiations. I hope those negotiations work. Frankly, Speaker PELOSI and Secretary Mnuchin reached four bipartisan deals. Mr. MEADOWS was not chief of staff, of course, at that point in time. Let us hope that we can reach a bipartisan deal.

We were supposed to consider our Heroes 2 bill, our offer, our proffer, our statement of what we think is necessary to uplift the American people, to let them know they are not on their own, we are with them, we are together.

We will consider that bill today if there is not an agreement. I hope there is an agreement. I hope we have a bipartisan piece of legislation that we can pass in the near future, because the American people need it, and that is what we have done in the past. Let's hope we can do it today.

BREAST CANCER AWARENESS MONTH

(Mr. GUEST asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. GUEST. Madam Speaker, October is Breast Cancer Awareness Month, a time to call attention to this deadly disease, to recognize the advancement our Nation has made in the battle against breast cancer, and to spread information about the fight to save the lives of those impacted.

It is estimated that more than 275,000 new cases of breast cancer will be diagnosed this year. For this reason, it is vital that those at risk take proper steps to reduce their risk for this disease.

Our medical personnel have made great progress in our fight to cure breast cancer, but we must continue to do more.

Madam Speaker, I hope everybody will join me this month in spreading awareness about breast cancer, comforting those who have been impacted or are fighting cancer right now, and thanking our medical personnel for their dedication to treat and cure this deadly disease.

DON'T TAKE THE RIGHT TO VOTE FOR GRANTED

(Ms. SCANLON asked and was given permission to address the House for 1 minute.)

Ms. SCANLON. Madam Speaker, our elections are foundational to our democracy, the pulse of our Nation, and the most sacred form of protest that we as Americans have at our disposal.

We, the people, have a right to vote without obstruction, without fear, without intimidation, and with the assurance that every vote will be counted.

Madam Speaker, I want to take a minute to assure the American people who are receiving mail-in ballots for the first time, making a plan to vote on election day, looking for locations where early voting is taking place, signing up to volunteer, or feeling a sense of uncertainty as we participate in one of the most important elections of our lifetime: your vote is safe, your vote is secure, and your vote matters.

And, Madam Speaker, to the young people who will be casting their votes for the first time: you are the future of this country, and we need you to participate in our government now more than ever.

To those who have lost faith in our government: we, the people, are the gatekeepers of our democracy, and our participation has never been more important.

There is far too much on the line for us to take voting for granted.

THE GIFT OF ADOPTION

(Mr. MURPHY of North Carolina asked and was given permission to address the House for 1 minute.)

Mr. MURPHY of North Carolina. Madam Speaker, I would like to reach out today to the thousands of Americans who have opened their homes to the gift of adoption. Giving a child a home and a better life is one of the greatest gifts we can give.

I especially want to applaud Judge Amy Coney Barrett's effort to help bring two children from Haiti out of the depths of despair to a better life here in America.

I was doing medical relief work in Haiti after the 2010 earthquake, which made 80,000 children orphans instantly. Children who would literally be 10 feet apart from their parents would be separated in the chaos, never to see them again.

The Barrett family did a beautiful thing by adopting an orphaned child in the aftermath of this horrible disaster. Her family gave a toddler a new life after one of the worst earthquakes in recorded history.

Unfortunately, some misguided souls in this country have turned that beautiful act of kindness into one of creating racial division rather than unity. They purport evil motives in a selfless act of sacrifice just to create further division in our Nation.

Judge Coney Barrett is now a Supreme Court nominee. Let her example of knocking down racial barriers and creating unity rather than division be an example for all of us to follow.

I look forward to her successful placement on the Nation's highest court.

WE ARE A NATION IN CRISIS

(Ms. DEAN asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. DEAN. Madam Speaker, more than 207,000 Americans are dead, and there is no end in sight. One in six Americans is jobless.

These are not just numbers. These are people. They have lost their livelihoods, their health, their careers. Many have lost everything. It did not have to be this way.

Our Nation had its first confirmed COVID case in January, and yet 9 months later, there is no national testing strategy, no leadership from the White House.

We have a President who would rather save face, save power to himself, than save lives, who corrosively continues to play politics as people die.

We are a Nation in crisis. People are in despair.

Government has a role to play. We must act with urgency and decency as we support one another with direct cash relief, funds for State and local governments, widespread testing, and the guarantee of free COVID treatment and vaccines for all.

Let us live up to Elijah Cummings' command: ''We are better than this.''

THE UNITED STATES SUPPORTS INDIA

(Mr. BURCHETT asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BURCHETT. Madam Speaker, it is in the best interests of the United States of America to build and maintain strong partnerships with our allies across the globe.

In that spirit, I rise today in recognition of our important relationship with one of those allies, the Republic of India.

India, the world's largest democracy, is under constant threat from the Chinese Communist Party. The Chinese Communist Party has been acting aggressively towards India in recent years and infringing on Indian territory.

India is an effective counterweight to the Chinese Communist Party's desire for dominance in southeast Asia, Madam Speaker, and a strong India is critical to preventing expansion of the Chinese Communist Party's global influence.

I am proud to stand on the floor of the House of Representatives today with a strong, clear message for our friends in India: The United States supports you in your struggle against Chinese aggressors. Together, our two democratic, free nations will stand against the communism that only seeks to rob citizens of their individuality and beliefs.

HONORING JONATHAN ''J.T.'' TENNANT

(Mr. CARTER of Georgia asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CARTER of Georgia. Madam Speaker, I rise today to honor 20-year veteran harbor pilot Jonathan ''J.T.'' Tennant of Brunswick, Georgia, who played a pivotal role in ensuring the safety of all crew members aboard the Golden Ray carrier when it shipwrecked over a year ago on September 8, 2019.

If you visit St. Simons Island in Georgia's First Congressional District, it is hard to miss the Golden Ray, which is a 656-foot-long car carrier that remains capsized in the St. Simons Sound.

As the investigation into the incident by the U.S. Coast Guard and the National Transportation Safety Board continues, we have been able to gain valuable insight from crew members and others involved.

Although he had steered a city-block-sized cargo ship from the Brunswick River to the St. Simons Sound several thousand times, nothing could have prepared J.T. for what happened the morning of September 8.

The Golden Ray was sailing normally, but the rudder and the propeller came up out of the water to where J.T. had no operational control of the vessel, and it started capsizing rapidly.

He endured flames melting the steel and smoke emanating from airboxes the entire length of the ship.

As testament to his extensive experience piloting more than 5,000 ships in and out of the Port of Brunswick, J.T. drove the Golden Ray as far up on the Sound as possible that day to ensure all 23 mariners aboard were safe and rescued.

When you see the giant cargo ship in the Sound and realize there was no loss of life, it is nothing short of a miracle and a testament to the hardworking crew, including J.T.

Although it is an unfortunate situation, I am thankful for the courage and determination J.T. and the entire crew displayed that day.

A DOMESTIC MINERAL SUPPLY CHAIN IS ESSENTIAL FOR OUR NATIONAL SECURITY

(Mr. LAMALFA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LAMALFA. Madam Speaker, for decades, America's mining industry has suffered at the hands of foreign competition from China.

Yesterday, President Trump signed an executive order to expand the domestic mining industry, supporting thousands of American mining jobs and reducing our dependence on China for critical minerals.

A domestic mineral supply chain is essential for our national security, because they are used for military, infrastructure, and energy projects.

America certainly should not be depending on China for precious materials that are critical to our national defense. This should rest solely in our hands.

By streamlining development of critical minerals at home and creating jobs for American workers along the way, this executive order is a win-win.

With all the push for renewable energy in this country and electric vehicles, we certainly need to have this supply chain come from our country and not somewhere else.

Madam Speaker, I am grateful for President Trump's bold action to continue our economic growth while also taking bold action against a foreign adversary.

□ 1130

CHILDHOOD CANCER HEARING LOSS

(Mr. BUDD asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BUDD. Madam Speaker, over 15,000 American children are diagnosed with cancer every year. Having the most innocent among us receive such a gut-wrenching diagnosis is devastating.

Thankfully, incredible progress has been made in treating cancer among children. As more kids become survivors, we need to make a concerted effort to improve their lives and to strive to develop treatments that do not carry permanent side effects.

For example, I have constituents whose children have experienced permanent hearing loss, which can occur when young patients undergo chemotherapy. That is why I recently sent a letter to the Agency for Healthcare Research and Quality asking them to identify any research efforts to reverse this loss of hearing.

We owe it to our young survivors to help them thrive and maintain a high quality of life. I encourage Federal researchers to keep producing the medical miracles that will help our kids prevail in the fight against cancer.

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF H. RES. 1153, CONDEMNING UNWANTED, UNNECESSARY MEDICAL PROCEDURES ON INDIVIDUALS WITHOUT THEIR FULL, INFORMED CONSENT, AND PROVIDING FOR CONSIDERATION OF H. RES. 1154, CONDEMNING QANON AND REJECTING THE CONSPIRACY THEORIES IT PROMOTES

Ms. SCANLON, from the Committee on Rules, submitted a privileged report (Rept. No. 116–557) on the resolution (H. Res. 1164) providing for consideration of the resolution (H. Res. 1153) condemning unwanted, unnecessary medical procedures on individuals without their full, informed consent, and providing for consideration of the resolution (H. Res. 1154) condemning QAnon and rejecting the conspiracy theories it promotes, which was referred to the House Calendar and ordered to be printed.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Ms. DEAN). Pursuant to clause 4 of rule I, the following enrolled bill was signed by the Speaker on Wednesday, September 30, 2020:

H.R. 8337, making continuing appropriations for fiscal year 2021, and for other purposes.

PROVIDING FOR CONSIDERATION OF H. RES. 1153, CONDEMNING UNWANTED, UNNECESSARY MEDICAL PROCEDURES ON INDIVIDUALS WITHOUT THEIR FULL, INFORMED CONSENT, AND PROVIDING FOR CONSIDERATION OF H. RES. 1154, CONDEMNING QANON AND REJECTING THE CONSPIRACY THEORIES IT PROMOTES

Ms. SCANLON. Madam Speaker, by direction of the Committee on Rules, I

call up House Resolution 1164 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 1164

Resolved, That upon adoption of this resolution it shall be in order without intervention of any point of order to consider in the House the resolution (H. Res. 1153) condemning unwanted, unnecessary medical procedures on individuals without their full, informed consent. The amendment to the resolution printed in the report of the Committee on Rules accompanying this resolution shall be considered as adopted. The resolution, as amended, shall be considered as read. The previous question shall be considered as ordered on the resolution and preamble, as amended, to adoption without intervening motion or demand for division of the question except one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary.

SEC. 2. Upon adoption of this resolution it shall be in order without intervention of any point of order to consider in the House the resolution (H. Res. 1154) condemning QAnon and rejecting the conspiracy theories it promotes. The resolution shall be considered as read. The previous question shall be considered as ordered on the resolution and preamble to adoption without intervening motion or demand for division of the question except one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on the Judiciary.

The SPEAKER pro tempore. The gentlewoman from Pennsylvania is recognized for 1 hour.

Ms. SCANLON. Madam Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentlewoman from Arizona (Mrs. LESKO), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Ms. SCANLON. Madam Speaker, I ask unanimous consent that all Members be given 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Pennsylvania?

There was no objection.

Ms. SCANLON. Madam Speaker, on Wednesday, the Rules Committee met and reported a rule, House Resolution 1164, providing for consideration of H. Res. 1153, condemning unwanted, unnecessary medical procedures on individuals without their full, informed consent, under a closed rule.

The rule self-executes a manager's amendment offered by Chairman NADLER, which clarifies the last statement in the resolved clause. The rule provides 1 hour of debate, equally divided and controlled by the chair and ranking minority member of the Judiciary Committee.

The rule also provides for consideration of H. Res. 1154, condemning QAnon and rejecting the conspiracy theories it promotes, under a closed rule. The rule provides 1 hour of debate, equally divided and controlled by the chair and ranking minority member of the Judiciary Committee.

Madam Speaker, I am proud to offer the rule for two timely and necessary resolutions, one that addresses allegations of gross human rights violations conducted under the watch of the United States Government and the other a long-overdue resolution that forcefully condemns QAnon, an anti-Semitic, racist, and, frankly, unhinged conspiracy theory that has infiltrated the internet and infected the rightwing of our Nation's politics.

Let's start with H. Res. 1153, offered by my colleague, Congresswoman JAYAPAL of the House Judiciary Committee, in response to some of most repulsive and inhumane allegations ever directed at a U.S. Federal agency.

In mid-September, just a couple of weeks ago, a whistleblower came forward to disclose that women who have been detained for immigration offenses at Irwin County Detention Center in Georgia, operated by a private prison company, LaSalle Corrections, have been subjected to a pattern of nonconsensual and inappropriate medical treatment, including forced partial and full sterilization.

This complaint was submitted to the Office of Inspector General at the Department of Homeland Security and outlined concerns raised by a nurse at the facility and numerous immigrant detainees at the facility.

While the IG's investigation is just beginning, many of the central allegations in the complaint have already been confirmed in reporting by The New York Times and by a delegation of a dozen of my colleagues who visited the detention center last weekend, interviewed women who had suffered through these procedures, and consulted with medical professionals who have reviewed the women's medical records relating to those incidents.

Madam Speaker, I include in the RECORD The New York Times article from yesterday entitled ''Immigrants Say They Were Pressured Into Unneeded Surgeries.''

[From the New York Times, Sept. 29, 2020]

IMMIGRANTS SAY THEY WERE PRESSURED INTO UNNEEDED SURGERIES

(By Caitlin Dickerson, Seth Freed Wessler, and Miriam Jordan)

IMMIGRANTS DETAINED AT AN ICE-CONTRACTED CENTER IN GEORGIA SAID THEY HAD INVASIVE GYNECOLOGY PROCEDURES THAT THEY LATER LEARNED MIGHT HAVE BEEN UNNECESSARY

Wendy Dowe was startled awake early one morning in January 2019, when guards called her out of her cellblock in the Irwin County immigration detention center in rural Georgia, where she had been held for four months. She would be having surgery that day, they said.

Still groggy, the 48-year-old immigrant from Jamaica, who had been living without legal status in the United States for two decades before she was picked up by immigration authorities, felt a swell of dread come over her. An outside gynecologist who saw patients in immigration custody told her that the menstrual cramping she had was caused by large cysts and masses that needed to be removed, but she was skeptical. The doctor insisted, she said, and as a detainee—brought to the hospital in handcuffs and shackles—she felt pressured to consent.

It was only after she was deported to Jamaica and had her medical files reviewed by several other doctors that she knew she had been right to raise questions.

A radiologist's report, based on images of her internal organs from her time at Irwin, described her uterus as being a healthy size, not swollen with enlarged masses and cysts, as the doctor had written in his notes. The cysts she had were small, and the kind that occur naturally and do not usually require surgical intervention.

''I didn't have to do any of it,'' Ms. Dowe said.

The Irwin County Detention Center in Ocilla, Ga., drew national attention this month after a nurse, Dawn Wooten, filed a whistle-blower complaint claiming that detainees had told her they had had their uteruses removed without their full understanding or consent.

Since then, both ICE and the hospital in Irwin County have released data that show that two full hysterectomies have been performed on women detained at Irwin in the past three years. But firsthand accounts are now emerging from detainees, including Ms. Dowe, who underwent other invasive gynecological procedures that they did not fully understand and, in some cases, may not have been medically necessary.

At least one lawyer brought the complaints about gynecological care to the attention of the center's top officials in 2018, according to emails obtained by The New York Times, but the outside referrals continued.

The Times interviewed 16 women who were concerned about the gynecological care they received while at the center, and conducted a detailed review of the medical files of seven women who were able to obtain their records. All 16 were treated by Dr. Mahendra Amin, who practices gynecology in the nearby town of Douglas and has been described by ICE officials as the detention center's ''primary gynecologist.''

The cases were reviewed by five gynecologists—four of them board-certified and all with medical school affiliations—who found that Dr. Amin consistently overstated the size or risks associated with cysts or masses attached to his patients' reproductive organs. Small or benign cysts do not typically call for surgical intervention, where large or otherwise troubling ones sometimes do, the experts said.

The doctors stressed that in some cases the medical files might not have been complete and that additional information could potentially shift their analyses. But they noted that Dr. Amin seemed to consistently recommend surgical intervention, even when it did not seem medically necessary at the time and nonsurgical treatment options were available.

In almost every woman's chart, Dr. Amin listed symptoms such as heavy bleeding with clots and chronic pelvic pain, which could justify surgery. But some of the women said they never experienced or reported those symptoms to him.

Both the reviewing doctors and all of the women interviewed by The Times raised concerns about whether Dr. Amin had adequately explained the procedures he performed or provided his patients with less invasive alternatives. Spanish-speaking women said a nurse who spoke Spanish was only sporadically present during their exams.

The diagnoses and procedures are ''poorly supported'' and ''not well documented,'' said Dr. Sara Imershein, a clinical professor at George Washington University and the Washington, D.C., chair of the American College of Obstetricians and Gynecologists.

Even if the patients had reported the symptoms recorded by Dr. Amin, ''there

would have been many avenues to pursue before rushing to surgery,'' she said. ''Advil for one.''

''He is overly aggressive in his treatment and does not explore appropriate medical management before turning to procedures or surgical intervention,'' said Dr. Deborah Ottenheimer, a forensic evaluator and instructor at the Weill Cornell Medical School Human Rights Clinic.

But the doctors who reviewed the cases noted that aggressive overtreatment is all too common among doctors—especially with patients who do not have the resources to seek a second opinion.

Dr. Ada Rivera, medical director of the ICE Health Service Corps, said in a statement that the whistle-blower's allegations ''raise some very serious concerns that deserve to be investigated quickly and thoroughly.'' She added, ''If there is any truth to these allegations, it is my commitment to make the corrections necessary to ensure we continue to prioritize the health, welfare and safety of ICE detainees.''

Dr. Amin's lawyer, Scott Grubman, said in a statement that the physician ''strongly disputes any allegations that he treated any patient with anything other than the utmost care and respect.''

''Dr. Amin also strongly disputes that any patient was treated without full informed consent,'' the statement continued. Mr. Grubman said that patient privacy laws prevented him from discussing any specific patient's treatment, but in each case it ''was medically necessary, performed within the standard of care, and done only after obtaining full informed consent.''

The statement added that Dr. Amin always uses an interpreter when treating patients who do not speak English and ''always attempts to treat his patients with more conservative treatment, including medicine and less invasive procedures, before even recommending surgery,'' which he views as a last resort.

Independent doctors that provide treatment for ICE detainees are paid for the procedures they perform with Department of Homeland Security funds. Procedures like the ones that Dr. Amin performed are normally billed at thousands of dollars each.

Dr. Amin's billings had previously come to the attention of federal authorities. In 2013, the Justice Department named him in a civil case alleging that he and several other doctors had overbilled Medicare and Medicaid by, among other things, performing unnecessary procedures on terminal patients and leaving the emergency room staffed by nurses while billing for diagnoses and treatments as if they had been performed by doctors. The case was settled for $520,000 with no admission of fault on the part of the defendants.

I COULD NOT ASK ANY QUESTIONS

In many cases, Dr. Amin's patients said they were confused about why they ended up being sent to his office in the first place—some after raising medical issues that had nothing to do with gynecology.

Yuridia, a 36-year-old immigrant from Mexico, sought out a nurse at the center soon after she arrived because she was having pain in her rib after a fight with her abusive ex-partner just before she was picked up by ICE. She asked to be identified by her first name because she feared for her safety.

She was sent for a medical exam at Dr. Amin's office, where she said he began to prepare an ultrasound machine. ''I was assuming they were going to check my rib,'' she said. ''The next thing I know, he's doing a vaginal exam.''

Dr. Amin recorded in his notes that Yuridia had cysts in her ovaries and scheduled a surgery to remove them. He also wrote that she had complained of heavy menstruation and pelvic pain. She said that she never experienced or reported those conditions and that she had not asked to see a gynecologist.

Weeks later, she underwent surgery. Pathology reports show that she did not have dangerous cysts, but small ones of the kind that occur naturally in most women and do not call for surgical intervention.

Yuridia said she had expected only a minor procedure that would be performed vaginally, but she was surprised when she woke up to find three incisions on her abdomen and a piece of skin missing from her genital area.

''I woke up and I was alone, and I was in pain and everyone spoke English so I could not ask any questions,'' Yuridia said. Three days later, still sore and recovering, she was deported.

Yuridia's case bears striking similarities to others that the panel of doctors reviewed. Many of them led to two surgical procedures performed simultaneously: ''dilation and curettage,'' often referred to as a ''D & C,'' which involves inserting tools into a woman's vagina and scraping tissue from the uterus, and laparoscopy, in which three incisions are made to insert a camera into the abdominal cavity to examine or perform procedures on the reproductive organs.

The cases suggest a pattern of ''excessively aggressive surgical intervention without adequate trial of medical remedies,'' Dr. Ottenheimer said.

A REPORT REVEALS LONGSTANDING COMPLAINTS

It was the Irwin County center's handling of the coronavirus pandemic that inspired Ms. Wooten, the nurse whose whistle-blower complaint was first reported by The Intercept, to come forward about another issue that troubled her: Dr. Amin's surgeries. She said in an interview that she had for years noticed that an inordinate number of women were being referred to Dr. Amin. She said she would hear reports that they had undergone surgeries but that they had no idea why the surgeries were performed.

''After they get up from general anesthesia,'' Ms. Wooten said, the women would ask, ''Why'd I have this surgery?''

''And I don't have an answer for why,'' she said. ''I am just as shocked as they are. Nobody explained it to them.''

Data from ICE inspection reports show that the center, which is operated by a private prison company, Lasalle Corrections, refers more than 1,000 detainees a year for outside medical care, far more than most other immigration detention centers of the same size. It is not clear how many of these referrals are for gynecological care. Lasalle Corrections did not respond to requests for comment.

Concerns from women detained at Irwin emerged long before Ms. Wooten came forward.

Ms. Dowe, after being told by Dr. Amin that she had a mass the size of a ''cantaloupe'' on her uterus, had reached out in early 2019 to Donald Anthonyson, an immigrant advocate she had met through a fellow detainee. She was asking for help, Mr. Anthonyson said.

''She expressed real concerns about going to that doctor,'' he said. ''She was concerned about what was happening to her and what she was hearing from other women.''

Unlike some of the women who had no gynecological complaints, Ms. Dowe was experiencing intense menstrual cramping, which the doctors who reviewed her case said could sometimes justify the procedure she underwent—but only if the patient understands the options and elects to move forward. Even then, the doctors raised questions about several seemingly healthy and naturally occurring cysts that Dr. Amin might have removed unnecessarily while he was operating on her.

After the procedure, Dr. Amin wrote in his notes that Ms. Dowe requested a second surgery—a full abdominal hysterectomy and removal of her ovaries.

But Ms. Dowe insists she never made any such request. A note in her medical records from the detention center appears to corroborate her denial. ''Detainee is requesting a second opinion to have a hysterectomy,'' it reads, ''OB/GYN scheduled hysterectomy and patient refused.''

Complaints about Dr. Amin had also been raised with senior officials long before Ms. Dowe's case.

In November 2018, a woman named Nancy Gonzalez Hidalgo was left shaken after several visits with the physician, during which she said he performed rough vaginal ultrasounds and ignored her when she cried out in pain. Ms. Gonzalez Hidalgo's lawyers sent an email to the warden of the center, David Paulk.

In the email, Erin Argueta, a lawyer at the Southern Poverty Law Center, explained that Ms. Gonzalez Hidalgo's health was worsening because of complications she was experiencing from an earlier miscarriage.

''Nancy hesitated to seek medical attention because her last experience with Dr. Amin was so painful and traumatic that she did not want to be sent back to him,'' Ms. Argueta wrote.

She referred in her email to several previous verbal complaints about Dr. Amin that lawyers had taken to the center's inmates services director, Marteka George. ''Ms. George stated that this was not the first time someone complained about Dr. Amin, and she said that she would look into whether Nancy could see a different provider,'' the lawyer wrote.

The warden responded twice, stating on Nov. 30 that Ms. Gonzalez Hidalgo had been scheduled for an appointment with an outside provider ''that is unassociated with Dr. Amin.'' The other doctor, Warden Paulk said, was ''reportedly well thought of by his patients.''

Warden Paulk did not respond to requests for comment.

Other women who questioned Dr. Amin's care in the past said they had also faced challenges when they tried to seek answers.

On the morning of Aug. 14, Mileidy Cardentey Fernandez said, there was no interpreter present at the Irwin County Hospital when she was presented with consent forms in English to sign for a procedure she was undergoing that day.

She asked the technician, ''Spanish, please? Little English.'' The woman urged her to sign the forms—and so she did.

Afterward, she said, she filled out a form on numerous occasions at the detention center requesting her medical records but got no response.

''I wanted to know everything they had done,'' she said. ''I made requests for the biopsy, analyses, and they don't want to give them to me. They said they don't have the results. How can they not have the results?''

When she was released from detention on Sept. 21, she called her daughter in Virginia and then headed straight to Dr. Amin's clinic with her lawyer to demand her records, which she received.

Some women said they had managed to avoid surgeries by Dr. Amin but not without facing resistance.

Enna Perez Santos said she objected when Dr. Amin suggested that she undergo a procedure similar to the ones that other women had complained about. Dr. Amin, she said,

counseled her that it was a mistake to forgo the treatment and he wrote in his notes that she had asked to speak to a mental health care provider.

Back at the detention center on the same day, Ms. Perez Santos was given a psychiatric evaluation. ''I am nervous about my upcoming procedure,'' Ms. Perez Santos told the examiner, according to the practitioner's notes. ''I am worried because I saw someone else after they had surgery, and what I saw scared me.''

Ms. Perez Santos was brought three more times to Dr. Amin's office over the next several months, she recalled. Each time, she said, Dr. Amin raised the prospect of a surgery. She felt ''pressured'' to agree, she said, but each time she told him she did not consent.

Three board certified gynecologists who reviewed Ms. Perez Santos's medical files say that her instincts appear to have been correct. ''Based on what I see here, Amin was inappropriately suggesting a D & C scope,'' Dr. Ottenheimer said. ''There is nothing at all there to support the procedure.''

Ms. SCANLON. Madam Speaker, the whistleblower complaint raises multiple serious questions which should concern every Member of this body and the administration.

First, these women were apparently subjected to unnecessary and inappropriate medical care without their consent, which, in many cases, has rendered them unable to have children, one of the most precious decisions a family can make.

Second, think about the circumstances. Many of these women did not speak English and had no access to interpreters to explain the procedures to which they were subjected. They were being held in detention, awaiting adjudication of their legal applications to stay in this country, not for any crime. But they had no access to family members, their family doctors, or legal counsel.

Many report that they went to the doctor for unrelated medical conditions and only learned that they had been subjected to surgery after the fact.

Finally, we must determine how such outrageous and inhumane treatment of human beings in the custody of a U.S. agency could be allowed to occur, and we must hold that agency, as well as the detention center, the facility, the private prison operator, and the medical personnel, accountable.

I cannot even begin to express how appalling these allegations are and the stain that, if found to be accurate in their entirety, they will leave on this country.

I am sure there is not a single Member of this body who doesn't want to see a full independent investigation into these claims, and that is exactly why we are offering this resolution today.

This resolution expresses the sense of Congress that this investigation must begin immediately. Any delay is simply unacceptable.

Members of this body have already been forced to intervene in ICE's attempts to deport witnesses central to the investigation since the complaint was filed. This further affirms the necessity for the investigation and that the very nature of how Federal agencies like ICE and DHS are operating under this administration, in violation of the rule of law and without accountability, that this is unacceptable.

Our current administration is aware of the structural flaws in our immigration system and exploits them to great political effect. What we are left with is a leader and a party that vilify immigrants as a tool for political gain. Then they systematically round up and detain immigrants in some of the most horrific ways possible, using private detention centers, separating children from their parents, denying basic medical treatment such as flu shots or COVID prevention, and inflicting lifelong trauma on our fellow humans, creatures of God.

The allegations from the Irwin County detention facility are repugnant, but they are consistent with a pattern of inhumane and similar injustices that have been perpetrated by this administration. ICE and DHS operate with impunity under a President who is using them as a secret police force.

I hope all of my colleagues will join me in passing this necessary resolution, but more than that, I hope that we can come together to reform our broken immigration system.

Our current system harms significantly more than it helps, inflicting physical and emotional pain without protecting our borders. We are long overdue for serious changes that will better reflect our values and interests as a country.

Next, Madam Speaker, we have H. Res. 1154, a resolution condemning the rightwing conspiracy theory QAnon.

I am not entirely sure where to start with QAnon, but basic research tells us it is a rightwing conspiracy theory concocted in some of the darkest corners of the internet that purports to hail President Trump as a savior of the country by combating shadowy members of a deep state who kidnap children in order to drink their blood.

This is a theory so ludicrous that it could be considered absurd if not for the thousands of Americans who have fully bought into these premises and the rash of violence, hatred, and criminal activity that these wild theories have encouraged.

In August 2020, a woman in Colorado was arrested and charged with attempted kidnapping of her daughter, who had been placed in foster care as her mother was deemed unfit to care for her. The woman is a fervent QAnon follower and was even found to have consulted other QAnon believers in a plot to kidnap her son, also in the foster care system.

Then there is the case of an Arizona man who was a QAnon follower. He was charged with aggravated assault and making terroristic threats after he was inspired by QAnon theories to use an armored van to block a bridge over the Hoover Dam and demand release of a report he believed existed that would expose the deep state, whatever that is.

The court ultimately blocked his guilty plea as the judge determined that the sentencing would have been too lenient for the crimes he had committed.

One of the most high-profile QAnon incidents came after an alleged leader of the Gambino crime family in New York was murdered by a QAnon supporter who, according to his testimony, believed that the murder would assist President Trump.

While my colleagues on the other side of the aisle continue to flirt with these fringe conspiracy theories, including riling up their base with allegations of invasions by antifa, which have been debunked by the administration's own FBI, QAnon and those who have bought into it are genuine threats to our democracy.

We are talking about a coordinated, sophisticated cult that is poisoning the brains of more and more Americans each day.

In our Rules Committee meeting last night, many of my colleagues claim to have never even heard of this deadly cult. I cannot possibly believe that these skilled political operatives are so clueless, but that is beside the point.

President Trump is certainly aware, and his tacit support and encouragement of these dangerous narratives are a threat to the law and order he so noisily embraces.

I hope that every single one of my Republican colleagues joins us in condemning QAnon today for the sanity of this country. It is particularly important that we do so now because the Republican Caucus may not be united on this front in the next Congress.

Madam Speaker, with more than 15 QAnon believers on the ballot this November across the country, it appears likely that at least one or two of them may be taking seats in Congress next term.

In the meantime, every single Member on both sides of the aisle must take their share of blame if these Hallowed Halls are going to be contaminated by Representatives of a deranged conspiracy theory.

In any case, I look forward to seeing how Minority Leader MCCARTHY will find a spot for this kind of expertise next Congress.

Madam Speaker, I reserve the balance of my time.

□ 1145

Mrs. LESKO. Madam Speaker, I yield myself such time as I may consume, and I thank Representative SCANLON for yielding me the customary 30 minutes.

Madam Speaker, this rule consists of two nonbinding resolutions, H. Res. 1153, regarding allegations made against the Irwin County Detention Center, and H. Res. 1154, condemning QAnon and rejecting the conspiracy theories it promotes.

First, H. Res. 1153 is a complete disregard to our Nation's due process system. If the accusations from the

women at Irwin County Detention Center are true, they are obviously horrific, and this resolution would be, obviously, an appropriate response.

However, we don't know anything for certain yet. In fact, the Office of the Inspector General and the Department of Homeland Security are currently conducting investigations.

We could open up a committee investigation, too. We could go through a normal committee oversight process where we have a hearing and bring in witnesses to get to the truth. That would be appropriate, not this.

Guess what. ICE agrees with us. Acting ICE Director Tony Pham issued a statement on September 18, 2020, saying: ''The recent allegations by the independent contracted employee raise some very serious concerns that deserve to be investigated quickly and thoroughly. ICE welcomes the efforts of both the Office of the Inspector General as well as the Department of Homeland Security's parallel review.

''As a former prosecutor, individuals found to have violated our policies and procedures should be held accountable. If there is any truth to these allegations, it is my commitment to make the corrections necessary to ensure we continue to prioritize the health, welfare, and safety of ICE detainees.''

In fact, I, along with my colleague from New Jersey, Representative CHRIS SMITH, sent a letter to DHS last week to state that the allegations are alarming and must be investigated thoroughly.

It also said in our letter that these accounts don't comport with the statement of Dr. Ada Rivera, the medical director of the ICE Health Services Corps, who stated that, since 2018, only two individuals at Irwin County Detention Center were referred to certified, credentialed medical professionals at gynecological healthcare facilities for hysterectomies. Dr. Rivera also said that detainees are afforded informed consent, and a medical procedure like a hysterectomy would never be performed against a detainee's will.

On September 18, the Associated Press published an article citing the results of its own internal investigation. It stated that the AP's review did not find evidence of mass hysterectomies as alleged in a widely shared complaint filed by a nurse at the detention center.

The AP also noted that one attorney investigating the case had found that Dr. Amin has performed surgery or other gynecological treatment on at least eight women detained at Irwin County Detention Center since 2017, including one hysterectomy.

As a member of the Homeland Security Committee and the co-chair of the Bipartisan Women's Caucus, I am very concerned about these accusations in this situation. However, what happened in this body to due process?

The way the House is moving forward today on this resolution sets a very dangerous precedent. For instance, in the resolution itself, it states: ''Whereas these allegations indicate a failure by U.S. Immigration and Customs Enforcement to conduct rigorous oversight to protect the health and safety of people in its custody.''

However, we do not even know if the allegations are true. It should, instead, read: ''If true, these actions indicate a failure.''

We can't just base it on allegations. This is an example of my Democratic colleagues' acting first and learning later.

Right now, we need to investigate, not bring a resolution condemning ICE to the floor. This is backwards, and it is just wrong. America needs to see us together on this issue. Unfortunately, my Democratic colleagues clearly do not want to work with Republicans to make that a reality.

Madam Speaker, this rule also contains H. Res. 1154.

At the outset, let me be clear, Republicans are concerned with and do not embrace QAnon.

I have to admit, although I must confess I know little to nothing about this idea, organization, whatever it is, if what they say on Wikipedia is true, then, of course, we oppose it. In fact, on August 20, the House Republican leader, Mr. MCCARTHY, stated very clearly that there is no place for QAnon in the Republican Party.

It is a serious issue, and Republicans don't discriminate on which dangerous organizations or groups we take seriously. We don't just condemn groups because it is politically convenient. Because, unlike many of our colleagues across the aisle, we also take the threat of antifa seriously.

It is clear, unfortunately, that many of my Democratic colleagues refuse to condemn antifa. Chairman NADLER said here right on the floor of the U.S. House of Representatives something to the effect that antifa was a myth, a fantasy. Just the other night, Vice President Biden refused to condemn antifa at the debate.

That is why, last night, I offered an amendment to this resolution in the Rules Committee to include condemning antifa, so we, as a governing body, could unite against at least two threatening groups and ideologies, not just one.

Unfortunately, all of my Rules Committee Democratic colleagues voted against my commonsense amendment, even though FBI Director Wray, himself, testified recently in Judiciary Committee: ''Antifa is a real thing. It is not fiction.'' In other words, antifa is not a myth as some on the other side believe. According to the FBI and the Department of Justice, antifa is involved in the rioting and looting across our Nation.

So while I do wish that the majority would have included a resolution condemning antifa in this rule for floor consideration today, I am glad Republicans can put country first and agree when a group poses a threat.

Madam Speaker, I urge opposition to the rule, and I reserve the balance of my time.

Ms. SCANLON. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, I am so pleased to hear that we should all be working together to get to the bottom of this, because that is exactly what the resolution puts forward. It says that these are allegations. It doesn't say that they are conclusively proved. But the resolution asks for an investigation, and it asks our government to pull out all the stops to do that.

The reason we need a resolution and a sense of Congress about this is because we see ICE and the Department of Homeland Security undermining this investigation already. When the news broke 2 weeks ago, they promptly moved to deport one of the central witnesses. One of our colleagues, SHEILA JACKSON LEE, had to get that witness removed from a plane. She was on the tarmac ready to be sent overseas, where she then would not be available to testify.

That same person was given humanitarian relief. She is allowed to stay in the country. Today, this morning, as we speak here, she reported to check in to ICE, as she was required to and as most immigrants do in our system, and when she reported, they tried to arrest her and deport her again.

As we speak, Members of this body are having to work to keep ICE from undermining this investigation. So, yes, we need this resolution to move forward.

Madam Speaker, I yield 3½ minutes to the gentleman from Massachusetts (Mr. MCGOVERN), who is the distinguished chairman of the Committee on Rules.

Mr. MCGOVERN. Madam Speaker, I want to thank the distinguished member of the Rules Committee, Ms. SCANLON, for yielding me the time.

Madam Speaker, I rise in strong support of this rule and the underlying resolutions. We must pass the resolution from Congresswoman JAYAPAL. Medical procedures being done on immigrants without their consent harkens back to a dark time in our Nation's history when medical abuse against the poor and people of color happened again and again and again.

I rise today, though, to discuss the bipartisan resolution condemning the collective delusion known as QAnon. I don't say that description lightly, Madam Speaker, but we all must call it what it is: a sick cult.

We are not talking about a group of people with just some differing political views. Americans respect political disagreement. But what we do not respect and what this House should not tolerate are people using conspiracy theories from the darkest corners of the internet to spread hate and lies.

QAnon isn't some harmless distraction. It is an extremist ideology that exploits children and opens the door to

real-life violence. That is what we are talking about here: reality versus delusion; political discussion versus political violence.

Just ask the sponsor of this resolution, Congressman MALINOWSKI. In an interview that was published yesterday, he talked about the death threats and hundreds of hate-filled attacks sent to him from QAnon supporters after introducing this bill.

He is not the only Member of Congress who has been targeted. Sadly, there are candidates across the country running to serve in Congress who peddle this trash.

It is sick; it is wrong; and it is dangerous.

It is frustrating that the President wouldn't condemn QAnon. He says they like him. But, then again, I never thought I would see the day when a President of the United States would tell a white supremacist group to stand down and stand by in a national debate. He didn't use a dog whistle; he used a blow horn.

Extreme views like these are dangerous.

Are we really going to stand by and do nothing, Madam Speaker?

That is not who we are as a nation. All of us, especially my Republican colleagues, must condemn QAnon or risk being complicit in their dangerous hate peddling.

So let's make it crystal clear: This is a sick and a twisted ideology.

Mrs. LESKO. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, let's be clear: I already said it, but we agree. We condemn QAnon, but we also ask the majority to condemn antifa.

Why is the majority condemning one group and not the other group? That is the point.

But let me go on to what my colleague, Representative SCANLON, said on H. Res. 1153. This was said in the Rules Committee last night, too, that all this resolution does is call for an investigation.

That is inaccurate. This resolution goes beyond that. In fact, it says it right here, and I said it last night. It says: ''Whereas these allegations indicate a failure by U.S. Immigration and Customs Enforcement.''

So, if all it did was call for an investigation, fine, but that is not what it all does. It says: Whereas these allegations indicate a failure by ICE.

Madam Speaker, you saw in the comments that Representative SCANLON gave that she was going after ICE. That is what this is about.

Madam Speaker, I yield 5 minutes to the gentleman from Georgia (Mr. AUSTIN SCOTT).

□ 1200

Mr. AUSTIN SCOTT of Georgia. Madam Speaker, I thank my colleague for yielding, and I thank all of my colleagues for their comments.

Madam Speaker, I would like to focus my comments on the attacks on the Irwin County Hospital and the staff at the Irwin County Hospital. And one of the things that I would like to make very clear is: While I was not invited to the event at the Irwin County Detention Center that my colleagues had—even though it is in my district—I was on the telephone with people who were there at the time, including our local hospital administrator. I have been to that facility, and one of the things I want everybody in this Congress to understand is, surgical procedures are not done at the Irwin County Detention facility. They are not. They are done at the Irwin County Hospital.

So when you talk about procedures being done at the Irwin County Detention facility, it is just false. They are done at the Irwin County Hospital. The detention facility is not set up to do surgical procedures.

So the question is: How do we get here?

Well, there was a whistleblower complaint filed by a group named Project South on September 14, 2020. I have a copy of the complaint. The complaint focuses on COVID and the challenges that the facility may or may not have had with COVID. And every facility in the United States, including this Congress, had challenges with personal protective equipment and COVID, and how we were handling those issues.

Now, in this complaint, which focuses predominantly on COVID, they make an allegation of hysterectomies. And I read to you from one of the AP articles: ''But a lawyer who helped filed the complaint said she never spoke to any women who had hysterectomies. Priyanka Bhatt, staff attorney at the advocacy group Project South, told The Washington Post that she included the hysterectomy allegations because she wanted to trigger an investigation to determine if they were true.''

And the investigation has been triggered. And we all want the investigation to go forward, and we want the facts to come out. And nobody wants the facts to come out more than those of us who live in that area. Nobody wants the facts to come out more than the doctor and the hospital and the staff at that hospital and the people who work at the detention facility.

Madam Speaker, I share with you a couple of quotes from some other AP articles. This is from The Washington Post: ''The advocacy group that filed the complaint, Project South, did not make the hysterectomy allegations the focus of its September 14 complaint to DHS, a complaint that alleged there is poor medical care and novel coronavirus risks at the ICE facility.''

The attorney at Project South who was the lead investigator for the complaint said in an interview with The Washington Post that she did not speak to or identify any women who had undergone a hysterectomy.

Madam Speaker, I include in the RECORD the Washington Post article.

[From the Washington Post, Sept. 22, 2020]

HOSPITAL WHERE ACTIVISTS SAY ICE DETAINEES WERE SUBJECTED TO HYSTERECTOMIES SAYS JUST TWO WERE PERFORMED THERE

(By Nick Miroff)

A hospital in rural Georgia where a physician has been accused of performing a large number of hysterectomies on immigrant detainees said its records show that just two women in immigration custody have been referred to the hospital for the procedure since 2017.

Heath Clark, an attorney for ERH Healthcare, which operates the Irwin County Hospital, said both of the procedures were performed by Mahendra Amin, the physician whom activists have accused of carrying out forced sterilizations on immigrant women in U.S. Customs and Immigration Enforcement custody.

According to a complaint filed last week by immigrant advocates and attorneys, a former nurse who worked at the Irwin County Detention Center, Dawn Wooten, claimed that a doctor known as ''the uterus collector'' was subjecting female ICE detainees to unwanted hysterectomies. The doctor was later identified in news reports as Amin. Through attorneys, he has denied the accusations, and calls to his office were not answered Tuesday.

Clark said hospital records show that Wooten's claims are ''demonstrably false.''

''These allegations are disturbing and sensational, but they are not supported by reality,'' said Clark, speaking by phone from Nashville. ''Dr. Amin is a longtime member of the Irwin County Hospital medical staff and has been in good standing for the entirety of his service to the Irwin County community.''

The allegations of forced sterilizations received significant attention from lawmakers, news organizations and human rights groups last week. Attorneys who represent several women have come forward to say that their clients received gynecological treatments from Amin that they did not agree to or fully understand, including one former Irwin detainee, Pauline Binam. Binam said that one of her fallopian tubes was removed without consent.

Binam's deportation to Cameroon was halted last week at the behest of Rep. Sheila Jackson Lee (D–Tex.).

Amin has a private clinic near the detention facility, but the hospital is the only place where such a procedure would be performed in small Irwin County, Clark said. Amin does not have an ownership stake in the hospital, contrary to some news reports, Clark said.

Rep. Bonnie Watson Coleman (D–N.J.), one of the lawmakers who participated in a virtual hearing Monday to discuss the ICE report, called Wooten's allegations of sterilization procedures on ICE detainees ''one of the most inhumane things I have ever heard.''

Rep. Pramila Jayapal (D–Wash.) wrote a letter signed by 173 lawmakers demanding a DHS inspector general investigation.

''There may be at minimum 17 to 18 women who were subjected to unnecessary medical gynecological procedures from just this one doctor, often without appropriate consent or knowledge, and with the clear intention of sterilization,'' Jayapal said.

In a subsequent interview, Jayapal acknowledged that she did not know the details of each of those cases, but the number she cited referred to the clients of attorneys with whom she had spoken.

The advocacy group that filed the complaint, Project South, did not make the hysterectomy allegations the focus of its Sept. 14 complaint to DHS, a complaint that alleged there is poor medical care and novel

coronavirus risks at the ICE facility. But it was the allegations of forced sterilizations that triggered a firestorm.

''The rate at which the hysterectomies have occurred have been a red flag for Ms. Wooten and other nurses at ICDC,'' the Project South complaint said, without identifying other nurses.

According to Project South, ''Ms. Wooten explained: 'We've questioned among ourselves like goodness he's taking everybody's stuff out . . . . That's his specialty, he's the uterus collector. I know that's ugly . . . is he collecting these things or something . . . . Everybody he sees, he's taking all their uteruses out or he's taken their tubes out.'''

Priyanka Bhatt, the attorney at Project South who was the lead investigator for the complaint, said in an interview with The Washington Post that she did not speak to or identify any women who had undergone a hysterectomy. Bhatt said she included the allegations to spark an investigation into their validity.

The legal director at Project South, Azadeh Shahshahani, said by email Tuesday: ''We have already heard from multiple attorneys representing numerous women who have suffered abuses reflected by Ms. Wooten's whistleblowing disclosures. Some of these women are considering speaking up because Ms. Wooten courageously stepped forward. There has been a troubling pattern of misreporting on the health and welfare of detained immigrants held inside ICE facilities, and we look forward to Congress, the Inspector General, and all other relevant offices conducting a full investigation and applying immediate, necessary, corrective actions.''

ICE said its own records show that two female detainees at Irwin have been referred for hysterectomies since 2018. Officials at ICE said the agency would have records of such procedures, which would require the approval of a supervising medical officer at the agency. ICE officials say they are cooperating with investigators.

Mr. AUSTIN SCOTT of Georgia. Madam Speaker, here is another article from Reuters: ''Mexican Foreign Minister Marcelo Ebrard said on Thursday that the government has not yet found any proof of forced sterilization of Mexican women being held at migrant detention facilities in the United States.''

Madam Speaker, I include in the RECORD this article.

[From Reuters, Sept. 24, 2020]

NO EVIDENCE OF STERILIZATION OF MIGRANT MEXICAN WOMEN, SAYS FOREIGN MINISTER

(By Reuters Staff)

MEXICO CITY (Reuters).—Mexican Foreign Minister Marcelo Ebrard said on Thursday that the government has not yet found any proof of forced sterilization of Mexican women being held in migrant detention facilities in the United States.

The comments came after U.S. immigration officials earlier this month said a federal watchdog would investigate complaints made by a whistleblower nurse in a Georgia immigration detention facility who alleged detainees had improperly received hysterectomies and other gynecological procedures.

Ebrard told reporters that 20 of 24 female Mexican nationals being held at detention centers in the U.S. states of Georgia and Texas had been interviewed and none of them had been subjected to such procedures.

He added, however, that an investigation was ongoing as more women still needed to be interviewed.

Ebrard at the time described such potential abuse as ''unacceptable'' and said that if the procedures were confirmed, measures would have to be taken, without giving details.

Mr. AUSTIN SCOTT of Georgia. Madam Speaker, now somewhere between September 14 and September 25, H. Res. 1153 was drafted. And I think that that date is extremely important because the resolution was drafted before you even went to the ICE detention facility in Irwin County. It was drafted before you even got on the site to see what was actually happening. The hospital administrator was there at the facility on the 26th. And there are a couple of things I want to point out:

One, the hospital administrator is a lady. She is a good lady and she is a good hospital administrator. And the doctor is an immigrant.

Now, everyone who came to that facility had the opportunity to meet with the hospital administrator, and every single one of you refused the opportunity to get the facts from the hospital administrator.

Never mind the facts. And you wonder why people hate us up here.

Madam Speaker, I have a statement I would read from the Irwin County Hospital, who wants a complete and thorough investigation: ''Irwin County Hospital is aware of various allegations of misconduct against individuals being detained at the Irwin County Detention Center.

''Irwin County Hospital is committed to the safety and welfare of everyone in our care, including patients referred for care from the Irwin County Detention Center. From 2017 to the present, two individuals in detention at the Irwin County Detention Center were referred to Irwin County Hospital for hysterectomies.''

You have made accusations of mass sterilization. You should be embarrassed by your conduct.

You don't want an investigation because you don't want the facts.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mrs. LESKO. Madam Speaker, I yield an additional 1 minute to the gentleman from Georgia.

Mr. AUSTIN SCOTT of Georgia. Madam Speaker, ''From 2017 to the present, two individuals in detention at the Irwin County Detention Center were referred to Irwin County Hospital for hysterectomies. Mahendra Amin, MD, performed these two procedures. Dr. Amin is a long-time member of the Irwin County Hospital medical staff and has been in good standing for the entirety of his service to the Irwin County community.

''Irwin County Hospital is and will continue to cooperate with any and all regulatory investigations related to healthcare services provided at Irwin County Hospital.''

Dr. Amin has only performed two hysterectomies in 3.5 years on detainees at Irwin County Hospital. This has been acknowledged by independent reviews by ICH, ICDC, ICE, and even the Associated Press.

Independent peer review has confirmed those cases were medically necessary.

Irwin County Hospital is the closest hospital facility to the Irwin County Detention Center.

The CEO of Irwin County Hospital was available to the Hispanic Caucus during their visit to the detention center. The warden made the Caucus aware of her presence at the facility and availability and no questions nor interaction was made by the Caucus. You absolutely refused to even speak to the lady that runs the local hospital because you don't want the facts.

Madam Speaker, I include in the RECORD this statement released by the hospital.

Irwin County Hospital is aware of various allegations of misconduct against individuals being detained at the Irwin County Detention Center.

Irwin County Hospital is committed to the safety and welfare of everyone in our care, including patients referred for care from the Irwin County Detention Center. From 2017 to the present, two individuals in detention at the Irwin County Detention Center were referred to Irwin County Hospital for hysterectomies. Mahendra Amin, MD performed these two procedures. Dr. Amin is a long-time member of the Irwin County Hospital medical staff and has been in good standing for the entirety of his service to the Irwin County community.

Irwin County Hospital is and will continue to cooperate with any and all regulatory investigations related to healthcare care services provided at Irwin County Hospital.

Ms. SCANLON. Madam Speaker, I yield 2 minutes to the gentleman from California (Mr. CORREA).

Mr. CORREA. Madam Speaker, I thank Ms. SCANLON for yielding, and I rise in support of H. Res. 1153.

First of all, let me say to my colleague from Georgia, I was there on that trip and I was not aware that the hospital administrator was offering to meet with us. I was meeting with the people that would want to meet with me and would want to talk to me. As a matter of fact, I had a lot of discussions with a lot of members of ICE while I was there.

As a member of the Committee on Homeland Security, I have visited a number of ICE detention centers, especially in the State of California. But I must say nothing has prepared me or had prepared me for what I had found, what I saw and what I heard at the Irwin Detention Center.

This was the first time that I have heard individuals in ICE custody desperate to be let out—anywhere—to get out. Women crying, asking not to be left alone. They cried that we—please not forget us—don't forget them.

And yet, their stories had one very common theme. When asking for medical care, when asking for gynecological care, the care they received was without their consent and they had no idea what was going on, what they were doing to them.

The medical doctor that was delivering the healthcare—and I believe my colleague from Georgia mentioned his name—is a doctor that has allegedly been fined half a million dollars. He and his medical practice paid half a million dollars in fines.

So I would ask, why does the U.S. Government, why would ICE, contract with a healthcare provider that has been fined half a million dollars?

And if these women complained about their medical problems, they were placed in what was called isolation for observation. Many of them described it as solitary confinement for days. Solitary confinement that caused psychological pain. These women were scared. They were traumatized, they were scared to ask for further medical treatment and they wanted to be sent home.

The SPEAKER pro tempore. The time of the gentleman has expired.

Ms. SCANLON. Madam Speaker, I yield an additional 30 seconds to the gentleman from California.

Mr. CORREA. Madam Speaker, first, we had child separations. Now we have mistreatment of women. This has to stop.

We need investigations. We need oversight. We need accountability. This is not going away.

Madam Speaker, I thank my colleague, Ms. JAYAPAL, for bringing this resolution forward, and I ask all the Members of this body to support this resolution.

Mrs. LESKO. Madam Speaker, yield myself such time as I may consume. Again, we are all for investigations. Two investigations are already going on; one by the office of Inspector General; one by DHS. I wrote a letter, along with Representative CHRIS SMITH, to the DHS Secretary Chad Wolf last week, saying: Please investigate this, get back to us.

The problem that I have with this resolution is that it also condemns ICE, just based on allegations that haven't even been investigated. The findings haven't been done yet. So how can you condemn an agency based on allegations that haven't even been proven yet? That is the point.

That is what Mr. SCOTT was trying to say. There are opposing viewpoints. One side said this happened, another said it didn't.

So last night, in addition, in Rules Committee, I said: Why don't we postpone this resolution until October 9? Give it a week. Let's go through committee and find out what is exactly going on. Let's have DHS come in. But, no, they opposed that, too.

Madam Speaker, I yield 5 minutes to the gentleman from Georgia (Mr. COLLINS), my good friend.

Mr. COLLINS of Georgia. Madam Speaker, it is not a surprise why we are here. To the gentlewoman from Arizona, it is not a surprise. They have nothing else to put on the floor except political statements a month before an election and to further an agenda that they don't like with ICE and the immigration process, which we have heard now in the Committee on the Judiciary for well over 2 years. Again, there are no actionable items that actually can fix them but a lot of talk.

So let's continue with this just amazing reason we are here on the floor. Because the majority has embraced this absurd and baseless accusation that employees and doctors at the Irwin County Detention Facility in my State of Georgia are engaged in a conspiracy—this is amazing—with local doctors to systematically sterilize illegal aliens.

They have proven to the American people that no story is too outlandish to use in furtherance of their radical agenda.

It would be a completely different situation if we were standing here today to take action on substantiated claims of mistreatment, but we are not.

We are here today so that the majority can attempt to squeeze one last bit of value out of the false claims propagated by Project South's complaint about the Irwin County Detention Center in Ocilla, Georgia. The left knows these complaints are not true, but they are hoping we will ignore the mountain of evidence contradicting them—Madam Speaker, I have news for them—we are not.

If claims of mass hysterectomies were true, or even if they were substantiated by the smallest amount of evidence, then there would be swift action. But to the contrary—and to the dismay of my Democrat colleagues—the claims of mass hysterectomies were quickly proven false mere days after the complaint was released. In fact, as Mr. SCOTT said, just days later, both the hospital and the detention center confirmed only two such hysterectomies were performed since 2017.

Madam Speaker, that didn't stop the whistleblower. That didn't stop Project South. That didn't stop us from bringing this show to the floor of the House.

In fact, in the complaint Ms. Wooten called the doctor at the center a uterus collector. Where does he go to get his reputation back from somebody who in a group who makes basic claims?

I need to remind Project South; they don't have speech and debate privileges like we do. They ought to be careful about who they are slandering and how they are doing it.

Ms. Wooten said she has spoken out about several inmates who have had hysterectomies. Even more sensationalized, Ms. Wooten stated that: Everybody he sees has a hysterectomy—just about everybody. This is what she is saying about the doctor.

Project South alleges that a detainee at the facility had talked to five different women detained between October and December 2019 who had hysterectomies done. But both the detention facility and the local hospital have clear evidence directly contradicting this hearsay: records showing that only two detainees have had hysterectomies since 2017. Let that sink in: Only two since 2017.

How can they claim mass hysterectomies performed by the uterus collector are true? The simple answer is they are not.

In fact, Project South's attorneys and lead investigator admitted to The Washington Post that she had not even spoken to or identified a detainee claiming to have undergone a hysterectomy. The group providing these claims has no evidence to back them up, but nonetheless, we are here embracing them and continuing to perpetrate a falsehood. Sounds like a little bit of another resolution that we are dealing with here today.

As the facts have come out to disprove these absurd claims, did the Democrats acknowledge they were wrong? No. There has been no acknowledgment of their wrong. They conveniently shifted their argument to uninformed consent and expanded the allegation to medical procedures generally and the lack of adequate translation services to strengthen their faulty arguments. But even those failed.

According to the employees at the facility, the center has 24-hour access to interpreters for virtually every language, which they consistently utilize. In fact, they even have several remote interpreters who specialize in relaying medical terms and advice to non-English speakers.

Clearly, the majority does not care about the credibility of their witnesses and their whistleblowers. They want the publicity. They want the political aspect of this because we are coming to the real reason. As long as they espouse these claims, it allows them to continue their attack on two places: The President and law enforcement. We have seen this during the sham impeachment, and we are seeing it here again today.

The Democrats have already expended a lot of time and effort trying to make the claim in this complaint true by writing letters to DHS IG and traveling to Ocilla. In fact, just 2 days after the release of Project South's complaint, 173 Democrats wrote DHS IG urging an investigation centering their call almost entirely on Ms. Wooten's debunked claims of mass hysterectomies.

Madam Speaker, now that is a mass progression to something—173 on a debunked complaint that has already been done. They have conveniently failed to update the DHS IG and the American public that their claims of a eugenics conspiracy in south Georgia have been proven false.

They have also conveniently failed to mention that, according to its website, Project South is committed to ending the use of local police to enforce what they characterize as the Federal Government's draconian and racist immigration policies. Further, the group

boasts a goal of shutting down immigration centers and is a frequent user of the hashtag, #abolishICE.

To set the record straight, Representative AUSTIN SCOTT and I wrote a letter to the DHS IG to shed light on the developments that followed Project South's complaint and the group's anti-law enforcement, anti-Trump agenda.

□ 1215

The SPEAKER pro tempore. The time of the gentleman has expired.

Mrs. LESKO. Madam Speaker, I yield an additional 3 minutes to the gentleman from Georgia.

Mr. COLLINS of Georgia. Madam Speaker, in the quest of their further radical agenda, the left has cast a shadow over an entire town in Georgia.

This is more than just political fodder here for this floor when the majority has nothing else to put on this floor and is wasting the American people's time here. This goes back to disparaging a respected doctor in the community, an Indian-American immigrant, who provides free medical services to low-income patients simply for political gain. The doctor has been viciously slandered by the left's accusation that he carried out mass hysterectomies.

Frankly, he should sue these organizations.

It is truly sad to see the lengths that the majority is willing to go to advance their own misguided policies, and they should apologize to the doctor and to the center.

It is clear to me that Project South has ulterior motives, and it is dangerous that the majority is permitting the group's complaint to serve as the foundation of a resolution when so many of the claims have already failed under scrutiny, and the credibility of the entire complaint is shattered by Project South's anti-ICE motives.

Despite Democrats' wishes, the American people deserve to know the truth, and they deserve to see the motives behind the claim. An investigation is always there; an investigation can start. But it is pretty amazing that the investigation—173 of my majority colleagues rushed to sign a letter without even knowing the facts, and especially because it has salacious details that they could get at ICE and to get at a system that they don't like, actually protecting the American public, enforcing our immigration laws.

Project South is an anti-law enforcement organization that has a stated mission of shutting down detention facilities. They included patently false claims in a complaint to the DHS IG.

Detention facilities like the Irwin County Detention Center serve an important purpose in upholding our Nation's immigration laws, and efforts like this one to disparage them and shut them down by choosing to ignore facts in favor of fiction is disgraceful, not even meeting with the hospital administrator.

Again, what are we here for? This is shown to be exactly what it is. This train is on the tracks. We are putting this up here for political purposes because, frankly, Madam Speaker, the majority has nothing else to put up, so let's get a last couple of days in to throw at our favorite targets: ICE and this administration. And who cares who we hurt, a hospital, a community, and a doctor who simply was doing his job.

This is an investigation that needs to happen, and the smear needs to stop now.

Ms. SCANLON. Madam Speaker, I yield myself such time as I may consume.

Wow, that was hard to follow. Just to take a couple pieces there.

There is no allegation here of mass hysterectomies. What there are allegations of, which have been strengthened over the intervening 2 weeks, are allegations that numerous women were subjected to inappropriate medical care. And their medical records, as we begin to receive them, are starting to confirm that there were a variety of procedures that were committed upon these people without their consent, including total and partial sterilization, but a range of procedures.

You know, Madam Speaker and I both come from Pennsylvania. We have seen this kind of corruption before in our prison systems, where you have a private prison system that gets involved in providing care—in Pennsylvania, it was called the ''kids for cash'' scandal, where public officials were being given kickbacks for interning children.

Now, is that what is going on here? The investigation may substantiate that or it may not, but there is a lot that needs to be dug into: the appropriateness of the medical care, whether someone was profiting off what happened there, the humanity of what happened to these women. All of that needs to be looked into.

That is what the resolution is asking for, that this be investigated, because the allegations are so serious, and everything we have seen so far has supported them.

Now, the IG is moving to investigate, and Congress has started to investigate. While there was a general invitation to folks to attend the codel that went down there last week, nearly a dozen of our colleagues did go. They met with people down there.

This is just a first step. There will be hearings. We will get to talk to the professionals from the community.

No one is saying that the investigation is complete, and no one is saying that it is completely proven, but it is absolutely something this body must do: to act, to make sure that our government agencies are not participating in a scheme that deprives people of their basic human rights.

Madam Speaker, I yield 3 minutes to the gentlewoman from New Hampshire (Ms. KUSTER).

Ms. KUSTER of New Hampshire. Madam Speaker, I thank the gentlewoman from Pennsylvania for the time to speak as colead on this important resolution, to establish a thorough investigation. I know that we have colleagues across the aisle who want this investigation, and I ask them to join us today.

Before having the privilege to serve in Congress, I was an adoption attorney for 25 years. I sat with 300 birth mothers as they make the most profound, private, and consequential decision of their lifetime.

In America, the government should not interfere in this most personal and intimate decision. Any type of sterilization, without consent, is a shocking and wrong interference.

I ask my colleagues: How many hysterectomies would be sufficient for a resolution? Would a partial hysterectomy without consent, for those who hold themselves out to be pro-life? These are women who want to have children. We can find common ground.

In America, the government should not interfere, and that is why I and so many Members of this Congress were shocked and horrified, first, to read about the whistleblower complaint; then the expose in The New York Times, with even more detail; and, finally, to speak with our colleagues, the codel that took the time to go to Irwin, Georgia, over the weekend and to sit and speak with the women who have had unspeakable surgery on them without their consent or understanding.

This chilling report outlines invasive gynecological procedures, ranging from full abdominal hysterectomy to the removal of ovaries and fallopian tubes.

We will acknowledge, not every surgery was a full hysterectomy, but that should not keep us from helping these women who have come forward detailing the pain and the trauma that these procedures have inflicted with life-changing consequences.

These procedures, performed without consent, in some cases result in the woman's inability to ever have a child, to ever bear a life. We have removed that life choice without her consent. And women who want to bear a child should have that right.

In America, the decision of whether to have a child rests squarely with women and is protected by the United States Constitution and 50 years of precedent under the law; yet we find ourselves amidst a renewed national conversation about whether women can make healthcare decisions about their own bodies and whether they can have the choice to bear a child.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Ms. SCANLON. Madam Speaker, I yield an additional 30 seconds to the gentlewoman from New Hampshire (Ms. KUSTER).

Ms. KUSTER of New Hampshire. Madam Speaker, these are the most difficult and private decisions that women will make, and the government should never have a role in that decision.

So make no mistake about it: Women's reproductive health and well-being is under attack in America, and whether that battleground may be a detention facility in Georgia or the highest court in the land, we must speak out, in unequivocal terms, to condemn efforts that take away a woman's ability to make her own healthcare decisions, including when and whether to bear a child.

Mrs. LESKO. Madam Speaker, I yield myself such time as I may consume.

If we defeat the previous question, I will offer an amendment to the rule to immediately consider Small Business Committee Ranking Member STEVE CHABOT's H.R. 8265, to reopen the Paycheck Protection Program to America's 30 million small businesses.

Madam Speaker, I ask unanimous consent to insert the text of my amendment in the RECORD, along with extraneous material, immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Arizona?

There was no objection.

Mrs. LESKO. This amendment would ensure our Nation's smallest and most vulnerable firms get the support they need by allowing an opportunity for a second PPP loan with specific funds set aside for small businesses with 10 or fewer employees, expand the list of eligible covered expenses, simplify the loan forgiveness process, and extend PPP through the end of 2020.

Madam Speaker, I yield 3 minutes to the gentleman from Texas (Mr. ROY).

Mr. ROY. Madam Speaker, to this body, I say enough, enough of the swamp games.

The House needn't wait for the powers that be to meet in a dark room and come out and tell us what so-called deal has been cut, whether it is the Speaker, the Treasury Secretary, or anybody else. And I shouldn't have to learn what is in the bill from K Street on Twitter.

Nor should the House take up a partisan $2 trillion bill with no chance of becoming law, and you know exactly that is what it is.

This is the people's House. We should act like it. We should debate. We should vote. We should actually do our job and amend.

To my House Democratic freshman colleagues: Your Speaker is playing political games with people's lives.

We are used to it. We are used to the Speaker playing games:

With immigrant's lives, shouting: kids in cages, for Obama policies rather than supporting security;

Refusing to call out antifa, or refusing to come to this floor and have this body stand with our law enforcement officers—not once;

Supporting Iran over Israel;

Refusing to stand against the extermination of babies born alive;

Seeking to destroy American oil and gas and energy freedom and cheap energy in favor of radical Green New Deal policies;

Working to take away your private doctors, taking away your private insurance; and

Killing 6 months of this body's time with partisan impeachment proceedings.

But this is a whole other level.

In June, the Heroes Act, $3 trillion in partisan hackery with no chance of passage.

But in June, I, along with freshman Democrats, led by my friend DEAN PHILLIPS, worked together and passed the PPP Flexibility Act. We saved jobs.

We now know that, according to the S&P, 13.6 million jobs have been saved nationally; in the district I represent, 90,000 jobs, 18,500 businesses, $633 million.

But small businesses are still struggling. Forty-seven percent of PPP borrowers say they need additional support to survive.

Right now, we have a bipartisan piece of legislation specifically designed and ready to help small businesses, but we are not debating or voting on it. Instead, the Speaker chooses what? Political messaging resolutions that won't do a darn thing.

Worse yet, the Speaker is again purposely choosing legislation that is designed to fail: a tax cut that will go exclusively to the wealthy; banking for marijuana businesses; PPP loans to Planned Parenthood; billions to bail out State and local governments; environmental justice grants; weed diversity studies; soil health studies; stimulus checks for illegal immigrants; bailouts for Amtrak; and bailouts for the National Endowment for the Arts. And the kicker? Refusing to call out antifa.

And the one thing cut from the first Heroes Act? Law enforcement funding: $300 million for COPS grants, $300 million for State and local law enforcement officers.

Why won't the Speaker—why won't Democrats—stand with our law enforcement? Why won't they stand for small businesses instead of playing games on the floor of this House, the people's House? It is an absolute abomination.

I urge my colleagues to reject the ways of the swamp. Let's unite together and vote ''no'' on the previous question and work to help small businesses right now.

Ms. SCANLON. Madam Speaker, of course, I look forward to joining my colleagues in passing another round of coronavirus relief, as we did unanimously or near unanimously the first four times, because we know our communities, our colleges, our schools, our State and local governments, our law enforcement officers, our healthcare systems all need that relief that has been held up by the Senate and the White House since May.

Madam Speaker, I yield 1 minute to the gentleman from Tennessee (Mr. COHEN).

Mr. COHEN. Madam Speaker, I came here for the purpose of commending Representatives MALINOWSKI and RIGGLEMAN for bringing the resolution condemning QAnon and its baseless, racist theories. But having heard some of the remarks today, I have to tell you: Speaker PELOSI is standing up for American values and standing up for the least of us, while the Republicans are standing for the most of us.

The Republicans passed a $150 billion tax break for the richest Americans, people like Donald Trump who don't pay taxes. They get a 4-year backlog to file losses in real estate deals to cut out their taxes.

They won't do anything for children in a child tax credit, but they think that that policy of giving people, on average, a $1.6 million tax benefit to the richest 1 percent is good values. That is not good values. That is bad values.

That is not good values; that is bad values. And the Republicans ought to object to that because it is making them the party of greed and tax weaselers and the bad people in America and not caring about the least of these.

□ 1230

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Texas (Mr. CLOUD) for the purpose of a unanimous consent request.

Mr. CLOUD. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to help small businesses and the families they represent.

The SPEAKER pro tempore. The Chair would advise that all time has been yielded for the purpose of debate only.

Does the gentlewoman from Pennsylvania yield for the purpose of this unanimous consent request?

Ms. SCANLON. No, Madam Speaker. I do not yield for that purpose, and I have no intention of doing so during this debate.

The SPEAKER pro tempore. The gentlewoman from Pennsylvania does not yield; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Minnesota (Mr. STAUBER) for the purpose of a unanimous consent request.

Mr. STAUBER. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentlewoman from Indiana (Mrs. WALORSKI) for the purpose of a unanimous consent request.

Mrs. WALORSKI. Madam Speaker, I ask unanimous consent to call up H.R.

8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Texas (Mr. ROY) for the purpose of a unanimous consent request.

Mr. ROY. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses and continue the benefits that we have done through bipartisan work previously.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

The Chair would advise Members that even though a unanimous consent request is not entertained, embellishments accompanying such request constitute debate and will become an imposition on the time of the Member who yielded for that purpose.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Pennsylvania (Mr. SMUCKER) for the purpose of a unanimous consent request.

Mr. SMUCKER. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payrolls of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Georgia (Mr. AUSTIN SCOTT) for the purpose of a unanimous consent request.

Mr. AUSTIN SCOTT of Georgia. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payrolls of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Washington (Mr. NEWHOUSE) for the purpose of a unanimous consent request.

Mr. NEWHOUSE. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on payrolls of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Oklahoma (Mr. KEVIN HERN) for the purpose of a unanimous consent request.

Mr. KEVIN HERN of Oklahoma. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from South Carolina (Mr. NORMAN) for the purpose of a unanimous consent request.

Mr. NORMAN. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Louisiana (Mr. JOHNSON) for the purpose of a unanimous consent request.

Mr. JOHNSON of Louisiana. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Arkansas (Mr. HILL) for the purpose of a unanimous consent request.

Mr. HILL of Arkansas. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Georgia (Mr. CARTER) for the purpose of a unanimous consent request.

Mr. CARTER of Georgia. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Texas (Mr. BABIN) for the purpose of a unanimous consent request.

Mr. BABIN. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from North Carolina (Mr. WALKER) for the purpose of a unanimous consent request.

Mr. WALKER. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Indiana (Mr. BAIRD) for the purpose of a unanimous consent request.

Mr. BAIRD. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Kansas (Mr. WATKINS) for the purpose of a unanimous consent request.

Mr. WATKINS. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Arkansas (Mr. CRAWFORD) for the purpose of a unanimous consent request.

Mr. CRAWFORD. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees

on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Florida (Mr. KELLER) for the purpose of a unanimous consent request.

Mr. KELLY of Pennsylvania. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from California (Mr. LAMALFA) for the purpose of a unanimous consent request.

Mr. LAMALFA. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from California (Mr. GARCIA) for the purpose of a unanimous consent request.

Mr. GARCIA of California. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from California (Mr. CALVERT) for the purpose of a unanimous consent request.

Mr. CALVERT. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Pennsylvania (Mr. KELLY) for the purpose of a unanimous consent request.

Mr. KELLY of Pennsylvania. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Iowa (Mr. KING) for the purpose of a unanimous consent request.

Mr. KING of Iowa. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses and keep our businesses open and functioning.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I reserve the balance of my time.

Ms. SCANLON. Madam Speaker, I yield 2 minutes to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Madam Speaker, let me thank the gentlewoman from Pennsylvania and thank my colleagues for this vigorous discussion and the unanimous consent.

I want to give them comfort. Tomorrow, we will be able to vote on the Heroes bill that we ask each and every one of them to support to provide moneys not only for small businesses but nonprofits and faith institutions because we believe in the American people, and we are going to keep them working.

I look forward to them joining this bipartisan effort, supporting the Heroes bill that we have offered under the leadership of Speaker PELOSI.

□ 1245

I rise today to support both H. Res. 1153 and H. Res. 1154.

I traveled to Irwin County this past weekend, but my exposure to this tragedy was not just that day; just last week, with butterflies in my stomach, if you will, and concern for a young woman, 29 years old, about to enter onto a plane that she obviously was directed to go to a place that she had never been, or had not been since she was 2 years old, a young woman from Cameroon who did have, who admits that her fallopian tube was removed without her consent.

So people of color are not unused to having medical procedures without our consent. Women are not unused to and unfamiliar with having medical procedures without their consent.

Think about these women, speaking mostly a different language, detained for civil matters, and that is, not being statused. Young women, women intimidated in the midst of COVID–19 in a facility where there is one physician who is supposed to be an OB/GYN, and you are carted off like cattle in a bus with one diagnosis: Oh, you need a fallopian tube removed.

Let my friends on the other side of the aisle be reminded that they have been throwing the word ''uterus'' and other words around the floor of the House.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Ms. SCANLON. Madam Speaker, I yield the gentlewoman from Texas an additional 30 seconds.

Ms. JACKSON LEE. Madam Speaker, this is not a condemnation of ICE. Read the language. It just says that they should engage in more vigorous oversight, and they are doing that with an inspector general's investigation.

Look at this. This is from one of the women:

Liberty, we are daughters and we are mothers, but you are stopping us from doing that.

And H. Res. 1154 that I join in supporting, as well, condemning QAnon, talks about a better America, that we are not the way it is described in this resolution.

I ask my colleagues to support this rule and the underlying bills because we are daughters and we are mothers, and what is going on there is an atrocious condition that should not exist.

I ask my colleagues to join me, and I thank my good friend from Pennsylvania for yielding.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Ohio (Mr. CHABOT) for the purpose of a unanimous consent request.

Mr. CHABOT. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program bill that I introduced to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair would advise that all time has been yielded for the purpose of debate only.

Does the gentlewoman from Pennsylvania yield for the purpose of this unanimous consent request?

Ms. SCANLON. Madam Speaker, I do not yield.

The SPEAKER pro tempore. The gentlewoman from Pennsylvania does not yield; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Florida (Mr. BILIRAKIS) for the purpose of a unanimous consent request.

Mr. BILIRAKIS. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll for America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Ohio (Mr.

BALDERSON) for the purpose of a unanimous consent request.

Mr. BALDERSON. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Pennsylvania (Mr. JOYCE) for the purpose of a unanimous consent request.

Mr. JOYCE of Pennsylvania. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Colorado (Mr. TIPTON) for the purpose of a unanimous consent request.

Mr. TIPTON. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to be able to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from North Carolina (Mr. BISHOP) for the purpose of a unanimous consent request.

Mr. BISHOP of North Carolina. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Pennsylvania (Mr. MEUSER) for the purpose of a unanimous consent request.

Mr. MEUSER. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Alabama (Mr. PALMER) for the purpose of a unanimous consent request.

Mr. PALMER. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Kansas (Mr. MARSHALL) for the purpose of a unanimous consent request.

Mr. MARSHALL. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from Texas (Mr. OLSON) for the purpose of a unanimous consent request.

Mr. OLSON. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentlewoman from North Carolina (Ms. FOXX) for the purpose of a unanimous consent request.

Ms. FOXX of North Carolina. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield to the gentleman from North Carolina (Mr. BUDD) for the purpose of a unanimous consent request.

Mr. BUDD. Madam Speaker, I ask unanimous consent to call up H.R. 8265 to extend the Paycheck Protection Program to keep millions of employees on the payroll of America's small businesses.

The SPEAKER pro tempore. The Chair understands that the gentlewoman from Pennsylvania has not yielded for that purpose; therefore, the unanimous consent request cannot be entertained.

Mrs. LESKO. Madam Speaker, I yield myself the balance of my time.

Madam Speaker, in closing, we need to help the American people. The House should be considering a bipartisan COVID–19 relief package right now, not binding resolutions that simply have the purpose of making political points.

Our constituents need us, so let's get to work on a bipartisan package that could actually be signed into law because, let's face it, anything else is worthless to the American people.

Madam Speaker, I urge ''no'' on the previous question, ''no'' on the underlying measure, and I yield back the balance of my time.

Ms. SCANLON. Madam Speaker, I yield myself the balance of my time.

We are in trying times. We have an erratic administration that operates with the primary, if not exclusive, goal of winning reelection at any cost and a Republican Party willing to do anything necessary to aid in that goal.

We are in the midst of a global pandemic that has already upended virtually every facet of our lives. Millions of people are unemployed or facing unemployment, and over 207,000 of our friends and neighbors have died.

Many of my constituents are facing eviction or are struggling to find food for their families.

The fact that much of this suffering could be alleviated if not for the apathy of Senate Republicans is tough to reckon with, but the American people know who is on their side.

This Congress has passed more than 600 bills, and a quarter of them have become law. Over 350 bipartisan bills lie untouched on MITCH MCCONNELL's desk while he focuses all of his energy on confirming as many rightwing judges as he can.

We stand ready to negotiate, and we will pass a COVID relief bill every day and twice on Sundays if that is what we have to do to get MITCH MCCONNELL's attention. And we will do it while passing other legislation that is for the benefit of all the American people—not just a select few, not just for those who dodge taxes—because that is what governing is, and that is what we will continue to do.

We have a duty to provide an equal opportunity for all Americans to live, work, and thrive in this country, and that is a responsibility the administration and Senate majority leader have abdicated.

So for all of the criticism lobbed from the other side of the aisle for taking up important resolutions like the ones we do today while a COVID package still hasn't been signed into law, your words are misplaced and you know exactly who to blame.

We were elected to govern, and that is exactly what we are going to do. You are more than welcome to join us, but we are not going to let you stand in our way while we move to protect human

rights and advance the best interests of the American people.

Madam Speaker, I urge all of my colleagues to support the rule and underlying legislation.

The text of the material previously referred to by Mrs. LESKO is as follows:

AMENDMENT TO HOUSE RESOLUTION 1164

At the end of the resolution, add the following:

SEC. 3. Immediately upon adoption of this resolution, the House shall proceed to the consideration in the House of the bill (H.R. 8265) to amend the Small Business Act and the CARES Act to establish a program for second draw loans and make other modifications to the paycheck protection program, and for other purposes. All points of order against consideration of the bill are waived. The bill shall be considered as read. All points of order against provisions in the bill are waived. The previous question shall be considered as ordered on the bill and on any amendment thereto to final passage without intervening motion except: (1) one hour of debate equally divided and controlled by the chair and ranking minority member of the Committee on Small Business; and (2) one motion to recommit.

SEC. 4. Clause 1(c) of rule XIX shall not apply to the consideration of H.R. 8265.

Ms. SCANLON. Madam Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mrs. LESKO. Madam Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

Pursuant to clause 8 of rule XX, further proceedings on this question are postponed.

QUESTION OF PERSONAL PRIVILEGE

Mr. KING of Iowa. Madam Speaker, I rise to raise a question of personal privilege.

The SPEAKER pro tempore. The Chair has been made aware of a valid basis for the gentleman's point of personal privilege.

The gentleman from Iowa is recognized for 1 hour.

Mr. KING of Iowa. Madam Speaker, I appreciate being recognized here on the floor of the United States House of Representatives, and throughout the years I have had the privilege to serve Iowans and Americans here. This is a great deliberative body, although sometimes we miss the facts.

And I know that there is a phrase that I heard back in a political era, which is, whenever you lose a vote, you can sometimes use this analysis:

Nor is the people's judgment always true: the most can err as grossly as the few.

And that has happened a number of times in my 18 years that I have served in this Congress. This is the 116th Congress, and if someone were to ask me, well, what was your favorite session of Congress, I don't have to worry about the 116th being on that list.

□ 1300

But I rise to focus on a specific circumstance here, and that is a misquote of me that was driven into just a national feeding frenzy. It was validated by this Congress, this misquote.

And when I stood on the floor of this Congress and made a statement to describe what likely happened in an interview with The New York Times that took place in early January of 2019, I made the point on what that statement was, and the statement was regarding white nationalists, white supremacists. There always was a pause between those two odious ideologies and the term ''western civilization.''

I advised Congress that there would be a distinct pause to demonstrate a new thought started rather than jamming those three ideologies together.

Who would compare white nationalism and white supremacy, those odious ideologies, who would compare them to western civilization, the very foundation of American civilization, the foundation of the First World, and here, America, the flagship of western civilization today? There is no comparison and should never be equated between the two.

Yet, I didn't tie that thought together, but the stenographers did.

And I am not here to be a critic, because they have done terrific work for me over the years, and their skill set, and their professionalism are second to none. They are the best in the world, as far as I am concerned, but if they can make a mistake, so can The New York Times, which is my point.

So in this narrative, Madam Speaker, I will take you back a little way. And I want the Congress to know what all has transpired here that brought us to the point of the feeding frenzy and the political lynch mob that was here that day on about January 12 or so, or January 13, and it was this: that during my election in the year 2018, November of 2018, there was a national media focus on attacking me. That happens in other races, but I don't know that it ever happened as intensively as it did in my race.

In any case, we came through that with a 3.4 percent victory, and I thought that was the end of it. I expected that I would come back. You know, even your political opposition needs a rest from time to time, and so after the election is when they take a deep breath, retool, and get ready for the legislative session.

But I sat down with a political operative, who was one of the top political campaign managers at the presidential level in the Nation, and a successful one at that. He came in to give me a little bit of his advice, and as I am listening to that, he said: They are going to try again. They are going to try again to drive you out of office with a national media assault on you, and they are going to attack you with everything. They will throw everything at you. He didn't say but the kitchen sink, but I got the message.

And when he first brought that up, Madam Speaker, I passed it off, because I didn't take it seriously. Nothing like that had ever happened before in the history of this country that I knew.

And he brought it up a second time, and I passed it off again, because I didn't take it seriously. But the third time, he got my attention.

And the third time he brought it up, he said: They are going to make another run at you.

This was the day before Thanksgiving of 2018, by the way. He said: They are going to make another run at you, and they believe that they were—this meaning Democrats, yes, but also Republicans, establishment, the swamp creatures, the elitists, those folks, and also the media. They are going to make another run, because they believe that the midterm elections of 2018 were a bit distracting, they had other races to be concerned about, and so, therefore, they couldn't bring all their guns to bear on this Member of Congress from the Fourth District of Iowa.

So he did have my attention by then. And as much as it didn't seem plausible, his advice to me was this: They have a messenger that they will send to the President, a messenger whom the President trusts and who has his ear, who is going to be directed to convince the President to send out a negative tweet on Congressman KING, and that negative tweet will be the trigger that launches another media assault, all the broadsides that they can get on this Member of Congress. And he used these words: And they believe they can force you to resign.

Now, that is a hard concept to get into your head when nothing like that had ever happened before and there was no substance for that to be based upon, but he did convince me.

So I set about preempting this, at his advice, and I did, to the extent I could, preempted it at the White House. And I think history proves that that has been successful. President Trump has not taken a shot at me, even though there were many others who couldn't resist the press's temptation to take a cheap shot, but the President did not. So I take it that the effort to preempt it at the White House was at least partially successful.

Yet, I couldn't get a meeting with the messenger until January 8, 2019. So on January 8, I had that meeting with the person that was at least named as the potential messenger, and in that conversation, I was assured: I would never do that to you, STEVE. Be assured that that won't happen.

Well, I was fairly confident that those words were honest, and actually felt pretty happy about it when I walked out of that meeting. But I also suspected that the people that were

around that individual might find out about the meeting that I had just finished and might know that I understood the gambit that was going to be run against me. That was January 8.

January 9, amazingly, I have a primary opponent that announced on Twitter at 11:23 a.m.—He might have announced earlier than that, except he was busy deleting all of his tweets for the previous 10 years, and then once the tweets were deleted—He announced on Twitter that he was going to challenge me in a primary. He didn't have a website, didn't have a roll-out plan, didn't have a media plan, didn't have an interview set up. He just sent out a tweet.

So that seems to me that he hadn't been planning that very long. I think he got a phone call the night before that morning that said: You are going to have to announce now. That was January 9.

January 10, The New York Times story came out. And The New York Times story that has been the subject of this turmoil here on the floor of the House that had the whole Nation fixated on a few words, it actually turned out to be about 13 words.

It is still pretty stunning to think how you can mobilize the United States Congress over whether or not there is a hyphen or a period where it ought to be.

But here is what we have, Madam Speaker. We have to protect the Constitution of the United States, and the First Amendment of the Constitution is freedom of speech, religion, press, and peaceable assembly.

And freedom of speech, whatever our speech is—I know that I was sitting in a meeting with some folks in Europe about 2 or 3 years ago, and they are prosecuting people for what they call hate speech and for asking a rhetorical question. I have a couple of friends over there that I happen to know that have been persecuted, prosecuted, and convicted for hate speech that was actually just a rhetorical question.

I was making the case to them, I said: You need American-style constitutional protection for freedom of speech. You don't have freedom of speech here in Europe, and you are going to be a lot more robust society, you can address your problems and have open discussion, but you shut down any dialogue by hate speech prosecutions.

And they said: We have more freedom of speech than you have in America.

Now, that will bring a person up short, Madam Speaker. And so I asked: Why?

And his answer was: In America you can start a corporation, you can be a CEO, you can write a check to an unfavored not-for-profit group—or a profit group, excuse me—and once the public finds out about that, then they put that out all over the internet and they just—they named the people that had lost their companies because of a tweet or because of a donation to an unpreferred entity.

And as they made their case, I realized they kind of stumped me a little bit. We have freedom of speech in the Constitution. But they said they don't lock people up for hate speech, they just prosecute them, convict them, turn them loose, and they generally learn their lesson. But here, we have watched since that time, since that time back in—this conversation took place in August 2018, freedom of speech has been diminished in this country incrementally. And it is a tragedy that we are going down that path.

But here in this Congress, here is what happened: from the meeting that took place on January 8, the announcement of one primary opponent on January 9, The New York Times story on January 10, and after that, there was nothing I could have said or done that was going to change the inertia that was created.

They actually carried out what they had given me the heads-up they were going to do. They actually brought all media broadsides against me. And it didn't matter what was fact and what was fiction. It mattered that they had mobilized all those forces because they thought that they could force me to resign.

And for what purpose? I can give you a lot of reasons, Madam Speaker, but I think what is better to do at this point is to examine The New York Times.

The New York Times interview took place on January 5 of 2019 on a phone call that I received from the reporter Trip Gabriel right about 8:30 in the morning.

I had advised him that he should go through my communications director, but I also had told him that I thought I would be open at about 8:30 until 10:30 that day.

So he called me directly. And I had just gotten out of the shower to get ready to come down here and go to work. I didn't get a chance to check the email from my communications director first. That came in at 7:48 a.m., and it said: Don't do the interview. It is a trap. I have been trying to shut this reporter down. I know he is coming at you with a trap. Don't do the interview.

I didn't see that until much, much later. Had I seen that, there wouldn't have been an interview.

But it was 56 minutes long. And there is no tape. And as far as I can determine, there aren't even any notes that are available to the public.

And we have asked him: What was the question that you asked? What was the leading question? What was the context of the answer that I gave?

And KEVIN MCCARTHY is critical of me, because he says that he can remember every word that he has used in the last 6 months in an interview, and that includes also the punctuation, because that is the topic we were talking about.

I don't think that is even humanly possible. I don't think anybody can do that.

And Trip Gabriel says: Don't worry about whether I am accurate or not, because I can type as fast as anybody can talk.

Well, I have asked our wonderful stenographers down here how fast they can type, and what I learned was at about 130 words on a conventional keyboard is just about the limit to be certified, but maybe 150 or 160 on the magic keyboard that is going right down there right now.

And I say: Can you keep up with me when I am talking at a fast pace?

And they say: No. I have to listen to the tape.

But I respect the professionalism we have here. Anybody can make a mistake.

And then I asked about the precision of punctuation when you are doing a transcript on the keyboards even that we have here, let alone the conventional one that Trip Gabriel was using. And they say: Well, we will get the words right if you talk at a pace that we can keep up, but we can't guarantee the punctuation.

So there is a great big difference in whether— there is a great big difference in whether the meaning of a phrase has got a hyphen in it or whether it has a comma in it.

Trip Gabriel put in a comma, and he insists he is right. And I would ask, how could he know? How could he know whether he is right or not, because his memory is not any better than KEVIN MCCARTHY, not as good as KEVIN MCCARTHY says it is.

So I want to go through this. So what happened shortly after that, this thing all hit, and on Monday early in the month of January, I had a meeting with our leader here, and it lasted about an hour. And it wasn't a happy meeting for either one of us, but he was determined, he was determined that I am wrong, The New York Times is right.

And I don't know how our leader can defend President Trump against The New York Times and attack me for the opposite.

If you just Google, lying New York Times, you get hundreds of hits on a Google of lying New York Times. Their credibility has been essentially destroyed.

And this little piece, I would say this: 18 years in this Congress, 45 years in the construction business, 6 years in the Iowa Senate, our family goes back three generations on the dirt that we are on right now where we live, and throughout all that time, The New York Times and others have sent reporters into my neighborhood to try to find somebody that has got something derogatory to say about me or some insult to my character, and they have failed every time; The New York Times, The Washington Post, Huffington Post, you can name all of them. It used to be The Weekly Standard, and they rightfully are defunct now because of their overreach and their political bias that they rolled out. But in

all that time, they have never found a single person.

And no one has gone on record in this Congress in 18 years, serving on the Judiciary Committee for 16 of those years, the most polarized committee on the Hill and the most racially diverse committee on the Hill, and not one of those folks, and many of them trade in the race issue, has ever made a statement that I had been disrespectful or disparaging in any way whatsoever.

□ 1315

And so there is no substance. I have no accusers, no individual accusers that have stood up. But this whole mass of people in this place were accusers on that day in early January of 2019.

So I am here to assert that—I am asking this Congress and this CONGRESSIONAL RECORD to correct the RECORD and to place a hyphen in the terms from that day where I said I was going to pause—I did pause; I have watched the videotape of it since then several times—that the language be: white nationalist, white supremacist, hyphen.

That is a pause, and it is a new thought, and the new thought then became: Western civilization, now how did that language become offensive? Why did I sit in classes teaching me about the merits of our history and our civilization just to watch Western civilization become a derogatory term in political discourse today?

The very statement itself refutes The New York Times' characterization. It refutes the characterization that was delivered at me by KEVIN MCCARTHY and others. It refutes the characterization that was the presumption of this Congress. But the presumption of this Congress didn't look at the evidence. They didn't look at the facts. They just got swept up in the herd mentality and went ahead and did what they did.

And by the way, the resolution that was brought, I believe, by Mr. CLYBURN that day, the resolution was actually honest because it said: whereas Congressman KING has been quoted as saying.

And that was the qualifier, and then they put the quote in out of The New York Times. Well, I was quoted as saying that. That was an honest statement. It was a misquote. They didn't bother saying that. But I was misquoted in The New York Times, but the way it was printed in the resolution was accurate. And all the other whereases that rejected the odious ideologies were all accurate.

My own rejection of it in the previous week was stronger than the resolution itself. I wish they had used my language. Mine was stronger, and mine was better, but I agreed with all the words that were in that. And I asked this body, vote ''yes'' on this resolution.

I had, I will say, dozens of friends here that were prepared to come to this floor and vote against that resolution in order to guard my back, just on the principle that they knew I am not the person that that resolution implied that I am.

But, instead, rather than divide our conference, rather than divide this Congress, rather than ask them to vote against a resolution that happened to be technically true, I asked them all, instead, vote for this resolution because it is technically true, and that is not the argument.

Now, only one person voted against it; that was the gentleman from Illinois, Chicago. BOBBY RUSH, former Black Panther, voted against the resolution because he thought I should have been sanctioned or censured even more.

Well, aren't we supposed to look at evidence in this place? Do facts matter? Does reason matter? Or are we just caught up in the political inertia of what goes on, and we try to fit ourselves into the stream so that we don't stand out very much?

So I have given you some of that, but none of the context of my quote was included in The New York Times story.

We called up Trip Gabriel and said: What question did you ask me?

He—first, I asked him: Do you have a tape? He would not even answer the question of whether he had a tape.

Then we asked him: What question did you ask Congressman KING that brought forth this answer that is only about just a handful of words, 13 words altogether, and what is the context of that? What was the question? What was the answer? Did you feed those words to him, and did he repeat them back to you?

And he wouldn't answer that question either. It took two phone calls to squeeze some out.

But what we learned was he didn't expect that that would be the quote that would do it. That is almost an exact quote out of him. He didn't think that that would be the quote. He thought it would be something else in the article.

So that indicates to me he knew it was a hit job when he did the interview, and that is also what Mark Steyn says. He says that is not a good faith interview request, and this is said just the day after this incident.

And Mark Steyn went on to say—he said: He made a mistake, STEVE KING. He agreed to give an interview on national immigration policy to The New York Times. That is not a good faith interview request. They are only asking you, and he should know this, they are only asking you to stitch you up, to talk to you for 3 hours and get you to use one phrase in there that they can lift out and kill you with.

Well, I think Mark Steyn had that figured out, and I think he is really accurate. He went on to say: This guy, STEVE KING, was trapped. Trapped. The words he said about when did that become controversial, he meant the phrase, Western civilization.

How come Mark Steyn knows this the day after and this Congress can't understand this 2 years after?

And he went on to say: He is not a white supremacist. He is not a white nationalist. It is all stupid talk.

So you have just surrendered the phrase, Western civilization. I don't get that, said Mark Steyn. I don't see what is in it for conservatism in surrendering that phrase and accepting the left's view that the term, Western civilization, is beyond the pale.

He also said that conservatives, Republicans, have trouble finding a hill that they believe is worth dying on. But when you sacrifice this issue and that issue and another issue, and you get to Western civilization and you sacrifice the hill of the very foundation of the First World, our country, and the founding of our country, the founding documents, the ideology that I would trace you all the way back to Moses and bring through the Greeks and the Romans in Western Europe and the rule of law and free enterprise capitalism and the industrial revolution and God-given liberty and natural law and the deep reading and understanding that was done by our Founders who shaped this country, who found America to be and shaped America to be a giant petri dish for God-given liberty.

Think of what it was like. Here is this land, this huge Western Hemisphere that hadn't seen any aspect of what we consider to be modern life. And on this land, here came, at the dawn of the industrial revolution, the idea—it will be Adam Smith, he wrote ''Wealth of Nations'', published 1776, the same year the Declaration was published. And this petri dish, this giant petri dish of freedom and liberty and rule of law and unlimited natural resources—so we thought at the time—and the concept of manifest destiny and the wars that were fought to secure those things, all of that, all of that that is so rich in America's history and makes us the greatest Nation the world has seen, but we can't defend Western civilization?

And I will say, 2 years ago, when this came down, people didn't understand what is happening. But today, Western civilization is under assault, and I have been 100 percent correct on this. I have been more correct on this than I thought I was going to be, Mr. Speaker.

But I would just want to add that nobody in America ever sat in the class to learn about the merits of white nationalism or white supremacism, and the content of that quote makes it clear. All the contemporaneous evidence supports what I have been saying.

In fact, all of the things that I have said since then, no one has found a hole in any of them. No one has said this is marginally untrue or untrue. No one has ever looked at the language that I have used and said that it isn't accurate.

In fact, what I have done is I introduced a fact-check document, and that fact-check document was first published March 6, 2019. KEVIN MCCARTHY

gave me 24 hours to prove a negative—24 hours. Well, he didn't actually. I asked for 24 hours. He gave me 1 hour.

Now, philosophers have—and everywhere from philosophers to barflies have argued for centuries that it is impossible to prove a negative. Well, no, it is logically possible to prove a negative, and I did that. And I did it in a fact-check document filed in this Congress and published on my website February 3—excuse me—March 6 of 2019. And then some other facts came to bear, and I published a follow-up of that.

I deleted nothing from this. I just added some more facts. And that was published February 3 of this year, 2020.

So some of the things that I want people to think about is, I had done—we had done the LexisNexis search and asked it: Had STEVE KING ever said white nationalist anywhere in history? We went back to the year 2000. That is about as far as we can trust the records, I think. And at no time, I had never, ever been quoted as ever even uttering the words that identify that odious ideology.

And so when I was asked: What is a white nationalist by DAVE PRICE on a television station in Des Moines, Iowa, it caught me off guard because I hadn't been ever asked to define it before. I had never said the term before. In fact, I didn't use that term when I answered the question.

But I did say it is a derogatory term. It might have meant something different 1, 2, or 3 years ago, but today it means racist. That was my definition off the cuff from a question that I didn't anticipate. Maybe it could have been a little more artful, but it is true, and it is true because the term has been weaponized and essentially unused.

And so, we looked through the record of LexisNexis and said: Where is the first documented instance of where I ever used the phrase white nationalist? And that turns out to be in an interview that was done right before Christmas of 2018 with the Christian Science Monitor. And there, I was making the case that some of this language has been weaponized. And did I use the terms—I said, I used the terms—if I can find it here, I added a couple of other terms that were part of that, such as, well, racist is weaponized; Nazi is weaponized; fascist is weaponized; white nationalism is weaponized; and white supremacy is weaponized. Now they are trying to weaponize Western civilization. When that happens, our civilization will be on its way out the door.

But I was clearly making a statement, defending Western civilization and rejecting the odious ideologies.

So we looked it up, and I asked the question—just a minute. This, Mr. Speaker, is a chart of LexisNexis that charts the frequency of the utilization of the term, white nationalist or white nationalism, a derivative of that. So it goes back to the year 2000, and you can see all the way up till 2015, it is virtually unused. It wasn't in our American vernacular. No one could be expected to have the precise and perfect definition for that in their head from a—I will say—a quick response type of a question if we are not using it in our language.

It wasn't in our political discourse. It may be in academia. That is probably where—one to 200 times a year is about what that is down on the bottom.

And then you see that 2015, it picked up just a little bit. But 2016, it went from virtually unused to 10,000 times a year. And then, in 2017, it went to 30,000 times a year. 2018, it is still up there at 20,000 times a year.

This term, white nationalism, was weaponized, and it was used against conservatives. They knew they had worn out the term racism, so they had to come up with some new terms, and that was one of them.

Here is another example. This is the year. This is the year 2016. It was, I could say, almost virtually unused up until November of 2016. And what happened in November of 2016? Oh, Donald Trump was elected President wasn't he, on about November 8.

And the following Sunday, about the 12th or 13th of November, the top people in the Democratic Party met at the Mandarin Hotel here in Washington, D.C. The articles that I read about it are articles that were written around their star person there, George Soros, who was in that hotel and presumably led some of the discussions that were there and contributed, likely, to the cause.

And so from the moment that they went into that hotel, that Sunday, it doesn't really show very much utilization of it. But on the following day, Monday, it shoots off the charts. There is no question that this synchronizes almost exactly with the meeting in the Mandarin Hotel, which, I believe, strategically decided: We are going to launch white nationalism and white supremacy as weaponized terms, and we are going to use them against Republicans.

So this is actually, Mr. Speaker, the picture of November itself and broken down day by day. And so you can see, the 11th, the 12th, here is the 13th. That was Monday. They called into the hotel. Thirteen is Sunday, excuse me. And so they were checking in.

But on Monday, here we go. Tuesday, that is how they triggered the weaponization of language, and that is what I was describing in that interview, although I thought I was right because my guts were speaking to me. My instincts were speaking to me. I didn't have the data, but it is pretty clear that I was more right than I imagined that I would be.

That is the circumstances that we are dealing with here, and the hyperactivity of a planned ambush of a Member of Congress in an effort to try to drive him out of office and force him to resign, based upon false stories and false allegations without substance.

□ 1330

So I will take you to this, Mr. Speaker. We went to Congressional Research Services, CRS, and asked them: Who has been removed from all of their committees presumably for disciplinary reasons? And what do you know about as far as you can go back in the search engine or into modern history?

We found out that James Traficant was removed from all of his committees. He was subsequently convicted of a Federal felony and went to prison—several Federal felonies, as a matter of fact.

Then we have had, I can think of two, three cases since that time, fairly contemporary. I don't want to say their names because I remain a person who—well, I regret what they were convicted of, but, nonetheless, it is this.

There have been five Members of Congress who were removed from their committees for disciplinary reasons in all of modern history according to CRS. One of them is fairly recent down in Kansas. The other two, in addition to James Traficant, were subsequently convicted of Federal felonies. So the charges on the Kansas issue are Federal felonies.

So here I stand, the sole person in 233 years of the American Republic who has been denied a full-throated representation of his 750,000 constituents by an arbitrary decision of the leader of the Republican Party, who had no evidence except his faith that the dishonest reporter of The New York Times was more honest than a very honest Member of Congress standing before him.

No one in this Congress has ever asserted that I misinformed them willfully. Maybe I made a couple of mistakes on data, and if I caught them, I went back and fixed it as quickly as I could. But that assertion has never been made. There has never been made of any personal disparagement, as I said earlier. All of that holds together.

No one in this body has ever heard me utter even a swearword under my breath. Yet this is what happens to the freedom of speech and representation.

I would add this. I had more votes for me in the previous election in November of 2018 than either the current leader of the Republican Party or the Conference chair, yet they have got a sanctimonious attitude about what is right and what is wrong.

So I would assert, Mr. Speaker, that the CONGRESSIONAL RECORD did err. It is easy to determine that because there is a C–SPAN tape. We have a tape of one thing, and that was there is a distinct difference between the two odious ideologies and Western civilization. I made the point. I did the pause. It is natural for me to talk and think that way. It is not natural for me to advocate for something that I disagree with.

Further, this fact-checked document makes it real clear that of all of the time that it has been out here, a year and a half or better, not a soul has

found anything false in it, anything mischaracterized, anything biased, or any hole in the logic that says that could not have happened with The New York Times. It is a false and erroneous misquote is the nicest way that I can put that.

Mr. Speaker, I have gone through a number of these things that are the factual components of it, but here is another piece: How often was white nationalist used in this Congress? I said it was virtually unused for all those years on up until 2018. We went back through the CONGRESSIONAL RECORD and did a search, too. I will just read you the text of this fact-checked document, Mr. Speaker, to give you some of the flavor of it.

It says: Another indicator of the recent weaponization of the phrase ''white nationalism'' can be found in a study of the CONGRESSIONAL RECORD. According to the CRS, no Member of Congress has ever said, in their original words, the term ''white nationalist'' on the House floor prior to President Donald Trump being elected.

That is out of a CRS report.

So how could it be that, oh, that is attributed to me, and there is a thought process that is attributed to me?

But it says that KEVIN MCCARTHY's decision to remove KING from all three of his committees for a misquote of The New York Times is unprecedented with no analogous case to mine. Apart from party switches/level of party support, KING is only the fourth Member of Congress' history—that is this report prior to the Kansas incident I mentioned—according to the CRS to be stripped of all committee assignments, and he is the only one who was removed from committees for a reason that has no basis—no basis in history, in House or Conference rules or Federal law. Or, I will say, no basis in truth either.

So one has to come to a conclusion here as to what actually happened.

Mr. Speaker, you can believe the version of events that are relied upon by KEVIN MCCARTHY to strip KING of committee assignments, but if that is so, one must believe that an unreasonable but sensational interpretation for which no evidence exists is more likely to be accurate than a reasonable, noncontroversial interpretation which is internally supported by context clues and externally supported by data and other contemporaneous published accounts.

One must also believe that The New York Times, which is a hostile, liberal paper, which has had other articles about me, STEVE KING, written by the same author thoroughly debunked as completely bogus, set aside its animus in this particular case and wrote an objective article for the first time on me.

This document that I am speaking from contains hyperlinks to source material. Parties interested in reviewing this can go to my website steveking.house.gov and pull one of these documents down.

Mr. Speaker, another piece of this was Brit Hume, a legendary journalist and reporter. Brit Hume is publicly no fan of STEVE KING. He read through an article that was written by Trip Gabriel just about on January 15 of 2019, and Trip Gabriel brought up a whole series of quotes that proves that I am a racist. Brit Hume read down through that and said that it is completely bogus. Most of the articles and most of the quotes don't have anything to do with race whatsoever, and none of the comments were racist. That is Brit Hume.

Between Brit Hume, Mark Steyn, and multiple others who are objective, I think we get the idea of what happened here.

Going home to spend time with my grandchildren is not what I regret, Mr. Speaker, but what I regret is the precedent that is established here that there is no place to appeal.

I recall when I was first elected to the Iowa Senate, I had what turned out to be a future constituent who found himself in an administrative law judge position where the administrative law judges had ruled against him. It was a domestic issue. I knew that he was honest; I knew that he was the target; and I knew he was the victim of stack of lies. So I set about trying to get him an appeal so that his case could be heard.

As I checked the fences, so to speak, as we say in Iowa, or perhaps Texas as well, as we checked the fences, it always will go under the next one, the next one, the next one. But once you went around, it was a corral, and there was no way for him. He is back appealing to the very person who ruled against him in the first place.

So, Mr. Speaker, what you are really down to is you can go through some motions, but you have to ask the decider to change their mind. That is the only appeal. When you have got the pressure of a nation, the media pressure and the political politics that go on here, then they are not going to change their mind. There is too much narcissism involved for that.

By the way, there is a significant amount of mendacity, while we are talking about personal characteristics, because KEVIN MCCARTHY promised me that he would go to the Steering Committee and ask them to restore me to all of my committees. That happened April 19 of this year. I have the transcript of that phone call. Yet, when McCarthy was asked about that in a press conference, he denied it and made me out to be the liar. That is another piece that has got to be changed in the history of all of this.

What I regret is, if there is a due process, then there needs to be a place where there can be an appeal. There needs to be a place to roll the facts out and there needs to be a way that you can put people who sit in judgment, who actually have to evaluate the facts and be subjected to criticism for their decision that they would make. None of that exists in this Congress. It may exist over on the other side of the aisle, but it doesn't exist on this side of the aisle.

So I have my obligations here, and one of the obligations is to deliver the truth. I am confident everything I have said here today is objectively true. I have dug through this for a good, long period of time.

After the primary election, I sat down on my deck out on the east side before the Sun came up in the morning and took my keyboard and began to type. After a few weeks, I had 60,000-some words, and that is a book. That will be in print real soon. The title of that is ''Walking Through the Fire.''

I was able to call Andrew Breitbart, a close, personal friend. When he tragically passed away at age 43 several years ago, I was given the honor to give the eulogy for him at the national memorial here in Washington, D.C., for Andrew Breitbart, whose imprint is on our society to this day.

Andrew would say to us: Walk towards the fire. Walk towards the fire. Their bullets aren't real. They just want to scare you. They want to shut you up. They don't like your ideology, so they will attack you personally, and they will call you a whole series of names.

He was more eloquent about that than I.

I started out the book that way, ''Walk towards the fire,'' but the title of my book is ''Walking Through the Fire'' because, once that fire was lit in front of me, I could have either turned and run or walked through it. I said: If you are going to do this to me, you are going to have to shoot me down in the middle of Main Street at high noon with everybody watching.

That is pretty much what happened. They mounted that kind of effort and did everything they could to destroy my reputation.

But the facts stand the same. I have no accusers. All of the logic of this fact-checked document supports what I have told you here today, Mr. Speaker, all of it. There is not a hole in it. No one has found a hole in it, even when it would behoove them to find a hole in it or several holes in it.

I think that my reputation here among the people who know me is solid. But, also, I will have a shorter list of friends maintenance after this last experience over these 2 years.

I don't regret going home. I don't regret spending more time with my grandchildren.

I got a phone call from one of our county chairs here a month and a half or so ago. He said: I am calling to tell you that God is showing you how much He loves you because He is guaranteeing you more time. He is sending you home to spend more time with your grandchildren.

That is as good a way to put that as you can.

I have made good friends here in this place, but the list of them is shorter

than I thought it was. So I think it is very important that people coming into this Congress, the freshmen whom I have never gotten a chance to know over a 2-year period of time because, if they are seen talking to STEVE KING, the leader might not give them the committee assignment that they want, I didn't get to know them. That is too bad. I am sure there are good people there. But that list is shorter than I thought it would be.

We need more and deeper character in this Congress, and we need to tie back to facts and policy. What I have seen happen here in the time that I have been in this Congress is, when young Members come in, they come in pretty strong ideologically, for the most part. They want to make a difference, and they want to pass legislation. They are policy people, and they are ideological people.

And I meet them and I like them and I like the spark that is in their eyes, but pretty quickly, sometimes there are even one or two or three, even on the first day, who decide: Mine is going to be a political equation. Over time, they give up on the policy. They give up on the ideology. They find out that their job is to either work for this team or work for this team over here. They slowly become a political barometer. And when an issue comes up in front of them and they have to make a decision, the question will be: How does this help me? If it doesn't help them, then that question is: How do I avoid dealing with this issue?

I came here to correct the wrongs that I had seen in life and to fix the injustices. I didn't anticipate I would see them so starkly in front of me, but I have. So I wanted to come to the floor here today, Mr. Speaker, and let you know some of these things that I am thinking about. Hopefully, this body will learn from the experiences that we have all been part of here. The freshmen need to be thinking about this and have an independent voice.

Mr. Speaker, I have said that one of the ways that you can have an independent voice here in this Congress—and perhaps the only way you can have an independent voice—is you have to have constituents who will support you; you have to have a fundraising network that is independent from the people who can take it away from you; and you have to have a national media voice so that the truth restrains the people who want to undercut you.

There is a major component that I left out of my presentation here, Mr. Speaker, and that is I am a Member of Congress from Iowa. I am the dean of the Iowa congressional delegation.

I have been engaged in the first-in-the-Nation Iowa caucus for a long time, and I am the only Member that I know of at this elected level who has ever made an endorsement of a Presidential candidate and taken all the heat from the other candidates that comes from that, but I think it is important to do that.

I have had, along with just a handful of other people, an extraordinary opportunity to get to know these Presidential candidates one on one, 17 of them the last time. I brought 12 of them into a Freedom Summit down in Des Moines to launch the national Presidential race. I put 1,250 people in the seats and standing room only. They were rock-ribbed, principled, full-spectrum, constitutional Christian conservatives.

□ 1345

And when they heard something they liked, they stood, stomped their feet, and applauded and cheered.

When they heard something they didn't like, they might look at their watch, boo, hiss, or walk away.

They were sorting these candidates and batching up with what they believed in. The conservatives did well that day, but the moderates didn't do so well. And a couple of moderates didn't show up. So when I see that, when the moderates don't show up and the conservatives do show up, and—let's see, Walker got a big bounce out of that that day, Donald Trump got a big bounce, TED CRUZ got a big bounce, Ben Carson got a big bounce that day. They all spoke at the Freedom Summit. And that helped launch them into a very competitive Presidential campaign.

I did everything I could to provide access to the candidates so that they could be in Iowa and meeting these caucus-goers and shaking hands and doing the things necessary to have a chance at the nomination. That functions really well. But what we did, we built the platform around that. And the platform for the Presidential candidates was actually built in Iowa. And then we put three or four of those candidates on that platform, once they come out of the Iowa Caucus, and we send them off to New Hampshire. New Hampshire does pretty good, but sometimes they will pull a nail or two out. And then they will take that platform and send those candidates down to South Carolina and, thankfully, they put a lot of those nails back in.

So by the time you are done with South Carolina, the platform for the nominees is settled. And that is the platform that makes it to the national convention. That is the platform that arrives in the Oval Office. That is the platform that exists there today.

When I walk into the Oval Office, and I look around, I think, My gosh, we really did accomplish this. We accomplished the agenda on immigration, for example, and we accomplished the agenda to repeal ObamaCare. We didn't get it all done, but it is on there.

I have in my pocket a picture of all the promises that Donald Trump made, there are a lot of checkmarks behind the ones that have been accomplished. Those promises, many of them were made in Iowa at the launch of this.

And that is one of the things that has brought out the opposition, the establishment people in this country don't want conservatives to have a loud voice on who the nominees are going to be. But I say, the heart of the heartland is where the families are. It is where the small businesses are. Where we are the farthest away from the big businesses, we are insulated from that. So our ideology—Democrat and Republican—is closer to the real people than you might find if you go someplace where there is an expensive media market.

In launching Democrat and Republican candidates, we must have that hands-on where they have to meet people and get to know the American people. We want real candidates out there on that stage. And the folks that had the money—for example, Jeb Bush spent $139 million, and he got something like three or five delegates. He is not very happy with how that opportunity didn't exist for him in a way that it might have for a TED CRUZ or a Ben Carson or a Donald Trump or a Scott Walker. So they decided that they don't want to have that voice in northwest Iowa. And that is a big piece of this as well.

Mr. Speaker, the forces behind this, the forces of the swamp that have mobilized themselves like never before and pulled off something that had never been accomplished before and done with—I will say a strategy and millions of dollars, and a network of media that was coordinated across this country is all part of this. It is all part of my book. I can't begin to express it all here in the time that I have, but I do appreciate the time that I have been allowed here on the floor of the House of Representatives.

Mr. Speaker, I want you to know that I appreciate serving with you, a man of a happy attitude that expresses it across the aisles in a bipartisan way.

Mr. Speaker, I urge this Congress to take a look at the C–SPAN tape, correct the CONGRESSIONAL RECORD, put the hyphen in where it belongs, and recognize that I have been right on this all along. No one has found a hole in anything that I have said. You can look through every word put out the last 2 years. Everything I have said stands up. It doesn't stand up with the New York Times. It doesn't stand up with KEVIN MCCARTHY. It stands up when I say it.

I make that point as I step aside here because it is a challenge. Show me where I am wrong. Show me where I have been—I should say—where I haven't been factual. No one has been able to do that. They won't be able to do that. The fact-checked document stands on its own. It is completely logical, and it proves a negative, even though philosophers have long said that is not possible to do.

Mr. Speaker, I appreciate being recognized here to address you on the floor of the House of Representatives, and I yield back the balance of my time.

MESSAGES FROM THE PRESIDENT

Messages in writing from the President of the United States was communicated to the House by Miss Kaitlyn Roberts, one of his secretaries.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Mr. CUELLAR). Pursuant to clause 8 of rule XX, the Chair will postpone further proceedings today on motions to suspend the rules on which the yeas and nays are ordered.

The House will resume proceedings on postponed questions at a later time.

CRIMINAL JUDICIAL ADMINISTRATION ACT OF 2020

Ms. GARCIA of Texas. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 8124) to amend title 18, United States Code, to provide for transportation and subsistence for criminal justice defendants, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 8124

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Criminal Judicial Administration Act of 2020''.

SEC. 2. TRANSPORTATION AND SUBSISTENCE FOR CRIMINAL JUSTICE ACT DEFENDANTS.

Section 4285 of title 18, United States Code, is amended in the first sentence—

(1) by striking ''when the interests of justice would be served thereby and the United States judge or magistrate judge is satisfied, after appropriate inquiry, that the defendant is financially unable to provide the necessary transportation to appear before the required court on his own'' and inserting ''when the United States judge or magistrate judge is satisfied that the defendant is indigent based on appointment of counsel pursuant to section 3006A, or, after appropriate inquiry, that the defendant is financially unable to provide necessary transportation on his own''; and

(2) by striking ''to the place where his appearance is required,'' and inserting ''(1) to the place where each appearance is required and (2) to return to the place of the person's arrest or bona fide residence,'';

(3) by striking ''to his destination,'' and inserting ''which includes money for both lodging and food, during travel to the person's destination and during any proceeding at which the person's appearance is required''.

SEC. 3. EFFECTIVE USE OF MAGISTRATE JUDGES TO DECIDE POSTJUDGMENT MOTIONS.

Section 3401 of title 18, United States Code, is amended—

(1) in subsection (b)—

(A) in the second sentence, by striking ''and'' after ''trial, judgment,'';

(B) in the second sentence, by inserting '', and rulings on all post-judgment motions'' after ''sentencing'';

(C) in the third sentence, by striking ''and'' after ''trial, judgment,''; and

(D) in the third sentence, by inserting '', and rulings on all post-judgment motions'' after ''sentencing'';

(2) in subsection (c), by striking '', with the approval of a judge of the district court,''; and

(3) by inserting after subsection (i) the following:

''(j) A magistrate judge who exercises trial jurisdiction under this section, in either a petty offense case or a misdemeanor case in which the defendant has consented to a magistrate judge, may also rule on all post-judgment motions in that case, including but not limited to petitions for writs of habeas corpus, writs of coram nobis, motions to vacate a sentence under section 2255 of title 28, and motions related to mental competency under chapter 313 of this title.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from Texas (Ms. GARCIA) and the gentleman from Pennsylvania (Mr. RESCHENTHALER) each will control 20 minutes.

The Chair recognizes the gentlewoman from Texas.

GENERAL LEAVE

Ms. GARCIA of Texas. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks and include extraneous material on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Texas?

There was no objection.

Ms. GARCIA of Texas. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, H.R. 8124, the Criminal Judicial Administration Act of 2020 is a bipartisan piece of legislation that makes two very modest but important amendments to current law, promoting the efficient, effective, and fair administration of justice.

The first part of this bill concerns out-of-custody criminal defendants, particularly those who are released pending trial to live in communities that are located far from the courthouse where their cases are being heard.

The majority of Federal criminal defendants are detained pending trial, and the United States Marshals Service is responsible for housing and transporting them to court hearings, including trial. In addition, under current law, the court may order the U.S. marshals to provide funds for a criminal defendant who is released pending trial but cannot afford the cost of travel to cover the defendant's travel to the location of the courthouse for hearings or trial.

However, the defendant must fund their own way back home, and a defendant in this position would not be able to receive financial support from the U.S. marshals for subsistence, such as lodging and meals. For an indigent defendant, these costs are sometimes insurmountable.

For instance, a defendant from Hawaii who must attend their 2-week trial in the Southern District of New York, would have to figure out how to pay for 2 weeks of lodging in New York City, or a defendant released to live at home on the Navajo Reservation, who has a pretrial hearing at the Federal courthouse in Phoenix, Arizona, may not be able to afford gas for the 6-hour ride back home.

For years, our Federal courts have struggled with how to assist indigent defendants when they find themselves in these difficult situations. But unfortunately, the courts' efforts have come up against the text of the statute. This bill would authorize courts in the interest of justice to order the U.S. marshals to cover roundtrip travel and subsistence for defendants who must attend court hearings but cannot afford to pay this on their own. The Judicial Conference of the United States has urged us to correct this grave unfairness. I am pleased to see that we are finally doing that with this bill.

The second part of this bill concerning Federal magistrate judges is also supported by the Judicial Conference. Magistrate judges have trial jurisdiction over certain misdemeanors, except for class A misdemeanors, for which the maximum sentence is up to 1 year in custody. With a defendant's consent, however, a magistrate judge may exercise trial jurisdiction over a case involving a class A misdemeanor.

Magistrate judges frequently do so and often hear class A misdemeanor cases all the way through judgment and sentencing. Under current law, a magistrate's jurisdiction ends after judgment is entered in a misdemeanor case and post-judgment jurisdiction reverts to the district court.

Indeed, magistrate judges are not authorized to hear post-judgment motions, such as motions to vacate a sentence, even though they are the ones that handled the entire matter at the trial level and are best equipped to hear such post-judgment motions.

Among other things, this bill would authorize a magistrate judge to hear post-judgment motions in misdemeanor cases in which she or he exercised trial jurisdiction. This amendment clearly improves judicial economy. It makes perfect sense. This is a straightforward and bipartisan measure that will help our criminal justice system in a more effective and fair manner.

Mr. Speaker, I reserve the balance of my time.

Mr. RESCHENTHALER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 8124, the Criminal Judicial Administration Act of 2020.

This bill strengthens existing laws about transportation and subsistence for indigent criminal defendants. It does this when they are brought to court proceedings.

H.R. 8124 allows a magistrate judge to decide post-judgment motions in a misdemeanor case where the magistrate judge was the judge who handled the underlying misdemeanor case.

This bill will also improve the efficiency of our court systems by allowing our courts to manage caseloads in a more efficient and economic manner.

I thank the bipartisan effort of my colleagues, the sponsors of this legislation, Representatives JEFFRIES and ROBY.

Mr. Speaker, I urge my colleagues to join me in supporting this bill, and I reserve the balance of my time.

Ms. GARCIA of Texas. Mr. Speaker, I yield 4 minutes to the gentleman from New York (Mr. JEFFRIES).

Mr. JEFFRIES. Mr. Speaker, I thank the distinguished gentlewoman from Texas for her leadership and for yielding.

Mr. Speaker, I rise in support of H.R. 8124, the Criminal Judicial Administration Act of 2020.

This bipartisan bill will bring more efficiency and fairness to the criminal justice system by making two commonsense improvements to the administration of justice in America.

First, the bill would authorize courts to direct the U.S. Marshals Service to provide subsistence and return transportation to the very small group of noncustodial defendants who are required to travel to court proceedings but are financially unable to cover the costs of doing so. While current law provides subsistence and travel to proceedings, there is a gap in the statute.

H.R. 8124 will expand the statute to cover transportation, lodging, and food for defendants who are innocent until proven guilty, as they return home from these proceedings.

Second, the bill will authorize magistrate judges to decide post-judgment motions in misdemeanor cases in which they have already exercised trial jurisdiction. Magistrate judges try and sentence individuals in misdemeanor cases, but to consider a post-judgment motion, current law requires a referral by a district judge or the party's consent.

This provision in H.R. 8124 will facilitate judicial economy and help reduce the caseloads of Article III district court judges by removing this requirement. The more efficient we can make our court system, the more effective and just it will be. These two noncontroversial changes would meaningfully improve the ability of our Federal courts to deliver equity and justice to the people that they serve.

The Judicial Conference of the United States, the national policymaking body for our Federal court system, supports this important and necessary legislation.

I thank the Committee on the Judiciary, and both sides of the aisle, for approving this bill by voice vote last month.

I would also like to thank my colleague and partner, Representative MARTHA ROBY, the ranking member of the Subcommittee on Courts, Intellectual Property, and the Internet, for partnering with me on this effort.

I urge all of my colleagues to vote ''yes'' on H.R. 8124.

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Mr. RESCHENTHALER. Madam Speaker, I reserve the balance of my time.

Ms. GARCIA of Texas. Mr. Speaker, the Criminal Judicial Administration Act of 2020 is a modest but important bill. I commend our colleagues, Representatives JEFFRIES and ROBY, for their leadership in bringing these important issues to our attention.

I strongly urge my colleagues to join me in supporting this bipartisan bill, and I yield back the balance of my time.

Mr. RESCHENTHALER. Mr. Speaker, I just want to say that, once again, I urge my colleagues to vote ''yes'' on H.R. 8124, the Criminal Judicial Administration Act of 2020, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from Texas (Ms. GARCIA) that the House suspend the rules and pass the bill, H.R. 8124, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

PROTECTING THE HEALTH AND WELLNESS OF BABIES AND PREGNANT WOMEN IN CUSTODY ACT

Ms. BASS. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 7718) to address the health needs of incarcerated women related to pregnancy and childbirth, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 7718

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Protecting the Health and Wellness of Babies and Pregnant Women in Custody Act''.

SEC. 2. DATA COLLECTION.

(a) IN GENERAL.—Beginning not later than 1 year after the date of the enactment of this Act, pursuant to the authority under section 302 of the Omnibus Crime Control and Safe Streets Act of 1968 (34 U.S.C. 10132), the Director of the Bureau of Justice Statistics shall include in the National Prisoner Statistics Program and Annual Survey of Jails statistics relating to the health needs of incarcerated pregnant women in the criminal justice system at the Federal, State, tribal, and local levels, including—

(1) demographic and other information about incarcerated women who are pregnant, in labor, or in postpartum recovery, including the race, ethnicity, and age of the pregnant woman;

(2) the provision of pregnancy care and services provided for such women, including—

(A) whether prenatal, delivery, and post-delivery check-up visits were scheduled and provided;

(B) whether a social worker, psychologist, doula or other support person, or pregnancy or parenting program was offered and provided during pregnancy and delivery;

(C) whether a nursery or residential program to keep mothers and infants together post-delivery was offered and whether such a nursery or residential program was provided;

(D) the number of days the mother stayed in the hospital post-delivery;

(E) the number of days the infant remained with the mother post-delivery; and

(F) the number of days the infant remained in the hospital after the mother was discharged;

(3) the location of the nearest hospital with a licensed obstetrician-gynecologist in proximity to where the inmate is housed and the length of travel required to transport the inmate;

(4) whether a written policy or protocol is in place to respond to unexpected childbirth, labor, deliveries, and medical complications related to the pregnancies of incarcerated pregnant women and for incarcerated pregnant women experiencing labor or medical complications related to pregnancy outside of a hospital;

(5) the number of incarcerated women who are determined by a health care professional to have a high-risk pregnancy;

(6) the total number of incarcerated pregnant women and the number of incarcerated women who became pregnant while incarcerated;

(7) the number of incidents in which an incarcerated woman who is pregnant, in labor, or in postpartum recovery is placed in restrictive housing, the reason for such restriction or placement, and the circumstances under which each incident occurred, including the duration of time in restrictive housing, during—

(A) pregnancy;

(B) labor;

(C) delivery;

(D) postpartum recovery; and

(E) the 6-month period after delivery; and

(8) the disposition of the custody of the infant post-delivery.

(b) PERSONALLY IDENTIFIABLE INFORMATION.—Data collected under this paragraph may not contain any personally identifiable information of any incarcerated pregnant woman.

SEC. 3. CARE FOR FEDERALLY INCARCERATED WOMEN RELATED TO PREGNANCY AND CHILDBIRTH.

(a) IN GENERAL.—The Director of the Bureau of Prisons shall ensure that appropriate services and programs are provided to women in custody, to address the health and safety needs of such women related to pregnancy and childbirth. The warden of each Bureau of Prisons facility that houses women shall ensure that these services and programs are implemented for women in custody at that facility.

(b) SERVICES AND PROGRAMS PROVIDED.—The Director of the Bureau of Prisons shall ensure that the following services and programs are available to women in custody:

(1) ACCESS TO COMPLETE APPROPRIATE HEALTH SERVICES FOR THE LIFE CYCLE OF WOMEN.—The Director of the Bureau of Prisons shall provide to each woman in custody who is of reproductive age pregnancy testing, contraception, and testing for sexually transmitted diseases and provide each woman with the option to decline such services.

(2) COMPLIANCE WITH PROTOCOLS RELATING TO HEALTH OF A PREGNANT WOMAN.—On confirmation of the pregnancy of a woman in custody by clinical diagnostics and assessment, the chief health care professional of a Bureau of Prisons facility that houses women shall ensure that a summary of all appropriate protocols directly pertaining to the safety and well-being of the woman are

provided to the woman and that such protocols are complied with, including an assessment of undue safety risks and necessary changes to accommodate the woman where and when appropriate, as it relates to—

(A) housing or transfer to a lower bunk for safety reasons;

(B) appropriate bedding or clothing to respond to a woman's changing physical requirements and the temperature in housing units;

(C) regular access to water and bathrooms;

(D) a diet that complies with the nutritional standards established by the Secretary of Agriculture and the Secretary of Health and Human Services in the Dietary Guidelines for Americans report published pursuant to section 301 of the National Nutrition Monitoring and Related Research Act of 1990 (7 U.S.C. 5341(a)(3)), and that includes—

(i) any appropriate dietary supplement, including prenatal vitamins;

(ii) timely and regular nutritious meals;

(iii) additional caloric content in meals provided;

(iv) a prohibition on withholding food from an incarcerated pregnant woman or serving any food that is used as a punishment, including nutraloaf or any food similar to nutraloaf that is not considered a nutritious meal; and

(v) such other modifications to the diet of the woman as the Director of the Bureau of Prisons determines to be necessary after consultation with the Secretary of Health and Human Services and consideration of such recommendations as the Secretary may provide;

(E) modified recreation and transportation, in accordance with standards within the obstetrical and gynecological care community, to prevent overexertion or prolonged periods of inactivity; and

(F) such other changes to living conditions as the Director of the Bureau of Prisons may require after consultation with the Secretary of Health and Human Services and consideration of such recommendations as the Secretary may provide.

(3) EDUCATION AND SUPPORT SERVICES.—

(A) PREGNANCY IN CUSTODY.—In the case of a woman who is pregnant at intake or who becomes pregnant while in custody, that woman shall, at intake or not later than 48 hours after pregnancy is confirmed, as appropriate, receive prenatal education, counseling, and birth support services provided by a provider trained to provide such services, including—

(i) information about the parental rights of the woman, including the right to place the child in kinship care, and notice of the rights of the child;

(ii) information about family preservation support services that are available to the woman;

(iii) information about the nutritional standards referred to in paragraph (2)(D);

(iv) information pertaining to the health and safety risks of pregnancy, childbirth, and parenting, including postpartum depression;

(v) information on breastfeeding, lactation, and breast health;

(vi) appropriate educational materials, resources, and services related to pregnancy, childbirth, and parenting;

(vii) information and notification services for incarcerated parents regarding the risk of debt repayment obligations associated with their child's participation in social welfare programs, including assistance under any State program funded under part A of title IV of the Social Security Act (42 U.S.C. 601 et seq.) or benefits under the supplemental nutrition assistance program, as defined in section 3 of the Food and Nutrition Act of 2008 (7 U.S.C. 2012), or any State program carried out under that Act; and

(viii) information from the Office of Child Support Enforcement of the Department of Health and Human Services regarding seeking or modifying child support while incarcerated, including how to participate in the Bureau of Prison's Inmate Financial Responsibility Program under subpart B of title 28, Code of Federal Regulations (or any successor program).

(B) BIRTH WHILE IN CUSTODY OR PRIOR TO CUSTODY.—In the case of a woman who gave birth in custody or who experienced any other pregnancy outcome during the 6-month period immediately preceding intake, that woman shall receive counseling provided by a licensed or certified provider trained to provide such services, including—

(i) information about the parental rights of the woman, including the right to place the child in kinship care, and notice of the rights of the child; and

(ii) information about family preservation support services that are available to the woman.

(4) TESTING.—Not later than 1 day after an incarcerated woman notifies an employee of the Bureau of Prisons that the woman may be pregnant, a Bureau of Prisons healthcare care professional shall administer a pregnancy test to determine whether the woman is pregnant.

(5) EVALUATIONS.—Each woman in custody who is pregnant or whose pregnancy results in a birth or any other pregnancy outcome during the 6-month period immediately preceding intake or any time in custody thereafter shall be evaluated not later than 4 days after intake or confirmation of pregnancy through evidence-based screening and assessment for substance use disorders or mental health conditions, including postpartum depression or depression related to a pregnancy outcome or early child care. Screening shall include identification of any of the following risk factors:

(A) An existing mental or physical health condition or substance use disorder.

(B) Being underweight or overweight.

(C) Multiple births or a previous still birth.

(D) A history of preeclampsia.

(E) A previous Caesarean section.

(F) A previous miscarriage.

(G) Being older than 35 or younger than 15.

(H) Being diagnosed with the human immunodeficiency virus, hepatitis, diabetes, or hypertension.

(I) Such other risk factors as the chief health care professional of a Bureau of Prisons facility that houses women may determine to be appropriate.

(6) UNEXPECTED BIRTHS RULEMAKING.—Not later than 180 days after the date of enactment of this Act, the Attorney General shall make rules establishing procedures for responding to unexpected childbirth deliveries, labor complications, and medical complications related to pregnancy if a woman in custody is unable to access a hospital in a timely manner.

(7) TREATMENT.—In the case of any woman in custody who, after an evaluation under paragraph (4), is diagnosed as having a substance use disorder or a mental health disorder, that woman shall be entitled to treatment in accordance with the following:

(A) Treatment shall include participation in a support group, including a 12-step program, such as Alcoholics Anonymous, Narcotics Anonymous, and Cocaine Anonymous or a comparable nonreligious program.

(B) Treatment may include psychosocial interventions and medication.

(C) In the case that adequate treatment cannot be provided to a woman in custody in a Bureau of Prisons facility, the Director of the Bureau of Prisons shall transfer the woman to a residential reentry program that offers such treatment pursuant to section 508 of the Public Health Service Act (42 U.S.C. 290bb–1).

(D) To the extent practicable, treatment for substance use disorders provided pursuant to this section shall be conducted in a licensed hospital.

SEC. 4. USE OF RESTRICTIVE HOUSING AND RESTRAINTS ON INCARCERATED PREGNANT WOMEN DURING PREGNANCY, LABOR, AND POSTPARTUM RECOVERY PROHIBITED.

(a) IN GENERAL.—Section 4322 of title 18, United States Code, is amended to read as follows:

"§ 4322. Use of restraints and restrictive housing on incarcerated women during the period of pregnancy, labor, and postpartum recovery prohibited and to improve pregnancy care for women in Federal prisons

''(a) PROHIBITION.—Except as provided in subsection (b), beginning on the date on which pregnancy is confirmed by a health care professional and ending not earlier than 12 weeks after delivery, an incarcerated woman in the custody of the Bureau of Prisons, or in the custody of the United States Marshals Service pursuant to section 4086, shall not be placed in restraints or held in restrictive housing.

''(b) EXCEPTIONS.—

''(1) USE OF RESTRAINTS.—The prohibition under subsection (a) shall not apply if the senior Bureau of Prisons official or United States Marshals Service official overseeing women's health and services and a health care professional responsible for the health and safety of the incarcerated woman determines that the use of restraints is appropriate for the medical safety of the woman, and the health care professional reviews such determination not later than every 6 hours after such use is initially approved until such use is terminated.

''(2) SITUATIONAL USE.—The individualized determination described under paragraph (1) shall only apply to a specific situation and must be reaffirmed through the same process to use restraints again in any future situation involving the same woman.

''(3) ACCESS TO CARE.—Immediately upon the cessation of the use of restraints or restrictive housing as outlined in this subsection, the Director of the Bureau of Prisons or the United States Marshal Service shall provide the incarcerated woman with immediate access to physical and mental health assessments and all recommended treatment.

''(4) RESPONSE TO BEHAVIORAL RISKS IN THE BUREAU OF PRISONS.—

''(A) RESTRICTIVE HOUSING.—The prohibition under subsection (a) relating to restrictive housing shall not apply if the Director of the Bureau of Prisons or a senior Bureau of Prisons official overseeing women's health and services, in consultation with senior officials in health services, makes an individualized determination that restrictive housing is required as a temporary response to behavior that poses a serious and immediate risk of physical harm.

''(B) REVIEW.—The official who makes a determination under subparagraph (A) shall review such determination every 4 hours for the purpose of removing an incarcerated woman as quickly as feasible from restrictive housing.

''(C) RESTRICTIVE HOUSING PLAN.—The official who makes a determination under subparagraph (A) shall develop an individualized plan to move an incarcerated woman to less restrictive housing within a reasonable amount of time, not to exceed 2 days.

''(D) MONITORING.—An incarcerated woman who is placed in restrictive housing pursuant to this paragraph shall be—

''(i) monitored every hour;

''(ii) placed in a location visible to correctional officers; and

''(iii) prohibited from being placed in solitary confinement if the incarcerated woman is in her third trimester.

''(c) REPORTS.—

''(1) REPORT TO THE DIRECTOR AND HEALTH CARE PROFESSIONAL AFTER THE USE OF RESTRAINTS.—If an official identified in subsection (b)(1) or a correctional officer uses restraints on an incarcerated woman under subsection (b), that official (or an officer or marshal designated by that official) or correctional officer shall submit, not later than 30 days after placing the woman in restraints, to the Director of the Bureau of Prisons or the Director of the U.S. Marshal Service, as applicable, a written report which describes the facts and circumstances surrounding the use of restraints, and includes each of the following:

''(A) A description of all attempts to use alternative interventions and sanctions before the restraints were used.

''(B) A description of the circumstances that led to the use of restraints.

''(C) Strategies the facility is putting in place to identify more appropriate alternative interventions should a similar situation arise again.

''(2) REPORT TO CONGRESS.—Beginning on the date that is 6 months after the date of enactment of the Protecting the Health and Wellness of Babies and Pregnant Women in Custody Act, and every 6 months thereafter for a period of 10 years, the Attorney General shall submit to the Committees on the Judiciary of the House of Representatives and the Senate a report on—

''(A) the reasoning upon which the determination to use restraints was made;

''(B) the details of the use of restraints, including the type of restraints used and length of time during which restraints were used; and

''(C) any resulting physical effects on the prisoner observed by or known to the corrections official or United States Marshal, as applicable.

''(3) REPORT TO THE DIRECTOR AND HEALTH CARE PROFESSIONAL AFTER PLACEMENT IN RESTRICTIVE HOUSING.—If an official identified in subsection (b)(3), correctional officer, or United States Marshal places or causes an incarcerated woman to be placed in restrictive housing under such subsection, that official, correctional officer, or United States Marshal shall submit, not later than 30 days after placing or causing the placement of the incarcerated woman in restrictive housing, to the Director of the Bureau of Prisons or the Director of the United States Marshals Service, as applicable, and to the health care professional responsible for the health and safety of the woman, a written report which describes the facts and circumstances surrounding the restrictive housing placement, and includes the following:

''(A) The reasoning upon which the determination for the placement was made.

''(B) The details of the placement, including length of time of placement and how frequently and how many times the determination was made subsequent to the initial determination to continue the restrictive housing placement.

''(C) A description of all attempts to use alternative interventions and sanctions before the restrictive housing was used.

''(D) Any resulting physical effects on the woman observed by or reported by the health care professional responsible for the health and safety of the woman.

''(E) Strategies the facility is putting in place to identify more appropriate alternative interventions should a similar situation arise again.

''(4) REPORT TO CONGRESS.—Beginning on the date that is 6 months after the date of enactment of the Protecting the Health and Wellness of Babies and Pregnant Women in Custody Act, and every 6 months thereafter for a period of 10 years, the Attorney General shall submit to the Committees on the Judiciary of the House of Representatives and the Senate a report on the information described in paragraph (3).

''(d) NOTICE.—Not later than 24 hours after the confirmation of an incarcerated woman's pregnancy by a health care professional, that woman shall be notified, orally and in writing, by an appropriate health care professional, correctional officer, or United States Marshal, as applicable—

''(1) of the restrictions on the use of restraints and restrictive housing placements under this section;

''(2) of the incarcerated woman's right to make a confidential report of a violation of restrictions on the use of restraints or restrictive housing placement; and

''(3) that the facility staff have been advised of all rights of the incarcerated woman under subsection (a).

''(e) VIOLATION REPORTING PROCESS.—Not later than 180 days after the date of enactment of this Act, the Director of the Bureau of Prisons and the Director of the United States Marshals Service shall establish processes through which an incarcerated person may report a violation of this section.

''(f) NOTIFICATION OF RIGHTS.—The warden of the Bureau of Prisons facility where a pregnant woman is in custody shall notify necessary facility staff of the pregnancy and of the incarcerated pregnant woman's rights under subsection (a).

''(g) RETALIATION.—It shall be unlawful for any Bureau of Prisons or United States Marshal Service employee to retaliate against an incarcerated person for reporting under the provisions of subsection (e) a violation of subsection (a).

''(h) EDUCATION.—Not later than 90 days after the date of enactment of the Protecting the Health and Wellness of Babies and Pregnant Women in Custody Act, the Director of the Bureau of Prisons and the Director of the United States Marshals Service shall each develop education guidelines regarding the physical and mental health needs of incarcerated pregnant women, and the use of restraints and restrictive housing placements on incarcerated women during the period of pregnancy, labor, and postpartum recovery, and shall incorporate such guidelines into appropriate education programs.

''(i) DEFINITION.—In this section:

''(1) RESTRAINTS.—The term 'restraints' means any physical or mechanical device used to control the movement of an incarcerated pregnant woman's body, limbs, or both.

''(2) RESTRICTIVE HOUSING.—The term 'restrictive housing' means any type of detention that involves—

''(A) removal from the general inmate population, whether voluntary or involuntary;

''(B) placement in a locked room or cell, whether alone or with another inmate; and

''(C) inability to leave the room or cell for the vast majority of the day.''.

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of chapter 317 of title 18, United States Code, is amended by amending the item relating to section 4322 to read as follows:

''4322. Use of restraints and restrictive housing on incarcerated women during the period of pregnancy, labor, and postpartum recovery prohibited and to improve pregnancy care for women in Federal prisons.''.

SEC. 5. TREATMENT OF WOMEN WITH HIGH-RISK PREGNANCIES.

(a) IN GENERAL.—Chapter 303 of title 18, United States Code, is amended by adding at the end the following:

''§ 4051. Treatment of incarcerated pregnant women

''(a) HIGH-RISK PREGNANCY HEALTH CARE.—The Director of the Bureau of Prisons shall ensure that each incarcerated pregnant woman receives health care appropriate for a high-risk pregnancy, including obstetrical and gynecological care, during pregnancy and post-partum recovery.

''(b) HIGH-RISK PREGNANCIES.—

''(1) IN GENERAL.—The Director of the Bureau of Prisons shall transfer any incarcerated woman, who is determined by a health care professional to have a high-risk pregnancy and who agrees to be transferred, to a Residential Reentry Center with adequate health care during her pregnancy and postpartum recovery.

''(2) PRIORITY.—The Residential Reentry Center to which an incarcerated pregnant woman is transferred pursuant to paragraph (1) shall be in a geographical location that is close to the family members of the incarcerated pregnant woman. In the case that a Residential Reentry Center is unavailable, the incarcerated pregnant woman shall be transferred to alternative housing, including housing with a family member.

''(3) TRANSPORTATION.—To transport an incarcerated pregnant woman to a Residential Reentry Center, the Director of the Bureau of Prisons shall provide to the woman a mode of transportation that has been approved by the woman's health care professional, at no expense to the woman.

''(4) MONITORING.—In the case that an incarcerated pregnant woman transferred to alternative housing pursuant to this section is monitored electronically, an ankle monitor may not be used on the woman, unless there is no feasible alternative for monitoring the woman.

''(5) SERVICE OF SENTENCE.—Any time accrued at a Residential Reentry Center or alternative housing as a result of a transfer made pursuant to this section shall be credited toward service of the incarcerated pregnant woman's sentence.

''(6) CREDIT FOR PRETRIAL CUSTODY.—In the case of an incarcerated pregnant woman, any time accrued in pretrial custody shall be credited toward service of the woman's sentence.

''(c) DEFINITIONS.—In this section:

''(1) FAMILY MEMBER.—The term 'family member' means any individual related by blood or affinity whose close association with the incarcerated pregnant woman is the equivalent of a family relationship, including a parent, sibling, child, or individual standing in loco parentis.

''(2) RESIDENTIAL REENTRY CENTER.—The term 'Residential Reentry Center' means a Bureau of Prisons contracted residential reentry center.

''(3) HEALTH CARE PROFESSIONAL.—

''(A) IN GENERAL.—The term 'health care professional' means—

''(i) a doctor of medicine or osteopathy who is authorized to practice medicine or surgery by the State in which the doctor practices;

''(ii) any physician's assistant or nurse practitioner who is supervised by a doctor of medicine or osteopathy described in clause (i); or

''(iii) any other person determined by the Secretary to be capable of providing health care services.

''(B) OTHER HEALTH CARE SERVICES.—A person is capable of providing health care services if the person is—

''(i) a podiatrist, dentist, clinical psychologist, optometrist, or chiropractor (limited to treatment consisting of manual manipulation of the spine to correct a subluxation as demonstrated by X-ray to exist) authorized to practice in the State and performing within the scope of their practice as defined under State law;

''(ii) a nurse practitioner, nurse-midwife, clinical social worker, or physician's assistant who is authorized to practice under State law and who is performing within the scope of their practice as defined under State law; and

''(iii) any health care professional from whom an employer or the employer's group health plan's benefits manager will accept certification of the existence of a serious health condition to substantiate a claim for benefits.

''(C) AUTHORIZED TO PRACTICE IN THE STATE.—The term 'authorized to practice in the State' means that a professional must be authorized to diagnose and treat physical or mental health conditions under the laws of the State in which the professional practices and where the facility is located.

''(4) HIGH-RISK PREGNANCY.—The term 'high-risk pregnancy' means, with respect to an incarcerated woman, that the pregnancy threatens the health or life of the woman or pregnancy, as determined by a health care professional.

''(5) POST-PARTUM RECOVERY.—The term 'post-partum recovery' means the 3-month period beginning on the date on which an incarcerated pregnant woman gives birth.''.

(b) CONFORMING AMENDMENT.—The table of sections for chapter 303 of title 18, United States Code, is amended by adding at the end the following:

''4051. Treatment of incarcerated pregnant women.''.

SEC. 6. EXEMPTION OF INCARCERATED PREGNANT WOMEN FROM THE REQUIREMENTS FOR SUITS BY PRISONERS.

Section 7 of the Civil Rights of Institutionalized Persons Act (42 U.S.C. 1997e) is amended—

(1) in subsection (a), by inserting after the period at the end the following: ''This subsection shall not apply with respect to an incarcerated pregnant woman who brings an action relating to or affecting the woman's pregnancy.''; and

(2) in subsection (d)(1), insert '', except an incarcerated pregnant woman,'' before ''who is confined''.

SEC. 7. DEFINITIONS.

In this Act:

(1) IN CUSTODY.—The term ''in custody'' means, with respect to an individual, that the individual is under the supervision of a Federal, State, tribal or local correctional facility, including pretrial and contract facilities, and juvenile or medical or mental health facilities.

(2) OTHER PREGNANCY OUTCOME.—The term ''other pregnancy outcome'' means a pregnancy that ends in stillbirth, miscarriage, or ectopic pregnancy.

(3) POSTPARTUM RECOVERY.—The term ''postpartum recovery'' means the 12-week period, or longer as determined by the health care professional responsible for the health and safety of the incarcerated pregnant woman, following delivery, and shall include the entire period that the incarcerated pregnant woman is in the hospital or infirmary.

(4) RESTRAINTS.—The term ''restraints'' means any physical or mechanical device used to control the movement of an incarcerated pregnant woman's body, limbs, or both.

(5) RESTRICTIVE HOUSING.—The term ''restrictive housing'' means any type of detention that involves—

(A) removal from the general inmate population, whether voluntary or involuntary;

(B) placement in a locked room or cell, whether alone or with another inmate; and

(C) inability to leave the room or cell for the vast majority of the day.

SEC. 8. EDUCATION AND TECHNICAL ASSISTANCE.

The Director of the National Institute of Corrections shall provide education and technical assistance, in conjunction with the appropriate public agencies, at State and local correctional facilities that house women and facilities in which incarcerated women go into labor and give birth, in order to educate the employees of such facilities, including health personnel, on the dangers and potential mental health consequences associated with the use of restrictive housing and restraints on incarcerated women during pregnancy, labor, and postpartum recovery, and on alternatives to the use of restraints and restrictive housing placement.

SEC. 9. BUREAU OF PRISONS STAFF AND U.S. MARSHALS TRAINING.

(a) BUREAU OF PRISONS TRAINING.—Beginning not later than 180 days after the date of enactment of this Act, and biannually thereafter, the Director of the Bureau of Prisons shall train each correctional officer at any Bureau of Prisons women's facility to carry out the requirements of this Act.

(b) NEW HIRES.—Beginning not later than 180 days after the date of enactment of this Act, the Director of the Bureau of Prisons shall train any newly hired correctional officer at a Bureau of Prisons facility that houses women to carry out the requirements of this Act not later than 30 days after the date on which the officer is hired.

(c) U.S. MARSHAL TRAINING.—Beginning not later than 180 days after the date of enactment of this Act, and biannually thereafter, the Director of the U.S. Marshals Service shall ensure that each Deputy U.S. Marshal is trained pursuant to the guidelines described in subsection (d). Newly hired deputies shall receive such training not later than 30 days after the date on which such deputy starts employment.

(d) GUIDELINES.—The Director of the Bureau of Prisons and the United States Marshals Service shall each develop guidelines on the treatment of incarcerated women during pregnancy, labor, and postpartum recovery and incorporate such guidelines in the training required under this section. Such guidelines shall include guidance on—

(1) the transportation of incarcerated pregnant women;

(2) housing of incarcerated pregnant women;

(3) nutritional requirements for incarcerated pregnant women; and

(4) the right of a health care professional to request that restraints not be used.

SEC. 10. GAO STUDY ON STATE AND LOCAL CORRECTIONAL FACILITIES.

The Comptroller General of the United States shall conduct a study of services and protections provided for pregnant incarcerated women in local and State correctional settings, including policies on obstetrical and gynecological care, education on nutrition, health and safety risks associated with pregnancy, mental health and substance use treatment, access to prenatal and post-delivery support services and programs, the use of restraints and restrictive housing placement, and the extent to which the intent of such policies are fulfilled.

SEC. 11. GAO STUDY ON FEDERAL PRETRIAL DETENTION FACILITIES.

(a) STUDY.—The Comptroller General of the United States shall conduct a study of services and protections provided for pregnant women who are incarcerated in Federal pretrial detention facilities. Specifically, the study shall examine—

(1) what available data indicate about pregnant women detained or held in Federal pretrial detention facilities;

(2) existing U.S. Marshals Service policies and standards that address the care of pregnant women in Federal pretrial detention facilities; and

(3) what is known about the care provided to pregnant women in Federal pretrial detention facilities.

(b) REPORT AND BEST PRACTICES.—Not later than 2 years after the date of enactment of this Act, the Comptroller General shall submit a report of the results of the study conducted under subsection (a) to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives. The report shall identify best practices for ensuring that Federal pretrial detention facilities implement services and protections for pregnant women consistent with this Act and shall provide recommendations on how to implement these best practices among all Federal pretrial detention facilities.

(c) DEFINITION.—For purposes of this section, the term ''Federal pretrial detention facilities'' includes State, local, private, or other facilities under contract with the U.S. Marshals Service for the purpose of housing Federal pretrial detainees.

SEC. 12. PWIC GRANT PROGRAM.

Section 508 of the Omnibus Crime Control and Safe Streets Act of 1968 (34 U.S.C. 10151 et seq.) is amended to read as follows:

''SEC. 508. PREGNANT WOMEN IN CUSTODY GRANT PROGRAM.

''(a) SHORT TITLE.—This section may be cited as the 'Pregnant Women in Custody Grant Program of 2020' or the 'PWIC Act of 2020'.

''(b) ESTABLISHMENT.—The Attorney General may make grants to eligible entities that have established a program to promote the health needs of incarcerated pregnant women in the criminal justice system at the State, tribal, and local levels or have declared their intent to establish such a program. Eligible entities shall—

''(1) promote the safety and wellness of pregnant women in custody;

''(2) provide services for obstetrical and gynecological care, for women in custody;

''(3) facilitate resources and support services for nutrition and physical and mental health, for women in custody;

''(4) establish and maintain policies that are substantially similar to the limitations imposed under section 4322 of title 18, United States Code, limiting the use of restraints on pregnant women in custody; and

''(5) maintain, establish, or build post-delivery lactation and nursery care or residential programs to keep the infant with the mother and to promote and facilitate bonding skills for incarcerated pregnant women and women with dependent children.

''(c) GRANT PERIOD.—A grant awarded under this section shall be for a period of not more than 5 years.

''(d) ELIGIBLE ENTITY.—An entity is eligible for a grant under this section if the entity is—

''(1) a State or territory department of corrections;

''(2) a tribal entity that operates a correctional facility; or

''(3) a unit of local government that operates a prison or jail that houses women; or

''(4) a locally-based nonprofit organization, that has partnered with a State or unit of local government that operates a correctional facility, with expertise in providing health services to incarcerated pregnant women.

''(e) APPLICATION.—To receive a grant under this section, an eligible entity shall

submit an application to the Attorney General at such time, in such manner, and containing such information as the Attorney General may require, including a detailed description of the need for the grant and an account of the number of individuals the grantee expects to benefit from the grant.

''(f) ADMINISTRATIVE COSTS.—Not more than 5 percent of a grant awarded under this section may be used for costs incurred to administer such grant.

''(g) CONSTRUCTION COSTS.—Notwithstanding any other provision of this Act, no funds provided under this section may be used, directly or indirectly, for construction projects, other than new construction or upgrade to a facility used to provide lactation, nursery, obstetrical, or gynecological services.

''(h) PRIORITY FUNDING FOR STATES THAT PROVIDE PROGRAMS AND SERVICES FOR INCARCERATED WOMEN RELATED TO PREGNANCY AND CHILDBIRTH.—In determining the amount provided to a State or unit of local government under this section, the Attorney General shall give priority to States or units of local government that have enacted laws or policies and implemented services or pilot programs for incarcerated pregnant women aimed at enhancing the safety and wellness of pregnant women in custody, including providing services for obstetrical and gynecological care, resources and support services for nutrition and physical and mental health, and post-delivery lactation and nursery care or residential programs to keep the infant with the mother and to promote and facilitate bonding skills for incarcerated pregnant women and women with dependent children.

''(i) SUBGRANT PRIORITY.—A State that receives a grant under this section shall prioritize subgrants to a unit of local government within the State that has established a pilot program that enhances safety and wellness of pregnant women in custody.

''(j) FEDERAL SHARE.—

''(1) IN GENERAL.—The Federal share of a grant under this section may not exceed 75 percent of the total costs of the projects described in the grant application.

''(2) WAIVER.—The requirement of paragraph (1) may be waived by the Assistant Attorney General upon a determination that the financial circumstances affecting the applicant warrant a finding that such a waiver is equitable.

''(k) COMPLIANCE AND REDIRECTION OF FUNDS.—

''(1) IN GENERAL.—Not later than 1 year after an eligible entity receives a grant under this section, such entity shall implement a policy that is substantially similar to the policy under section 3 of Protecting the Health and Wellness of Babies and Pregnant Women in Custody Act.

''(2) EXTENSION.—The Attorney General may provide a 120-day extension to an eligible entity that is making good faith efforts to collect the information required under paragraph (1).

''(l) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section, to remain available until expended—

''(1) for fiscal year 2021, $5,000,000;

''(2) for fiscal year 2022, $5,000,000;

''(3) for fiscal year 2023, $5,000,000;

''(4) for fiscal year 2024, $6,000,000; and

''(5) for fiscal year 2025, $6,000,000.

''(m) FUNDS TO BE SUPPLEMENTAL.—To receive a grant under this section, the eligible entity shall certify to the Attorney General that the amounts received under the grant shall be used to supplement, not supplant, non-Federal funds that would otherwise be available for programs or services in the prison where funds will be used.

''(n) UNOBLIGATED AND UNSPENT FUNDS.—Funds made available pursuant to this section that remain unobligated for a period of 6 months after the end of the fiscal year for which the funds have been appropriated shall be awarded to other recipients of this grant.

''(o) CIVIL RIGHTS OBLIGATION.—A recipient of a grant under this section shall be subject to the nondiscrimination requirement under section 40002(b)(13) of the Violence Against Women Act of 1994 (34 U.S.C. 12291(b)(13)).

''(p) DEFINITIONS.—In this section, the term 'in custody' means, with respect to an individual, that the individual is under the supervision of a Federal, State, tribal, or local correctional facility, including pretrial and contract facilities, and juvenile or medical or mental health facilities.''.

SEC. 13. PLACEMENT IN PRERELEASE CUSTODY.

Section 3624(c)(1) of title 18, United States Code, is amended by adding at the end the following: ''Notwithstanding any other provision of this paragraph, in the case of a pregnant woman in custody, if that woman's due date is within the final year of her term of imprisonment, that woman may be placed into prerelease custody beginning not earlier than the date that is 2 months prior to that woman's due date.''.

SEC. 14. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from California (Ms. BASS) and the gentleman from Pennsylvania (Mr. RESCHENTHALER) each will control 20 minutes.

The Chair recognizes the gentlewoman from California.

GENERAL LEAVE

Ms. BASS. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from California?

There was no objection.

Ms. BASS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I worked with Representatives KATHERINE CLARK and BRENDA LAWRENCE, along with my colleagues on the other side of the aisle, GUY RESCHENTHALER and DEBBIE LESKO, to introduce the bipartisan H.R. 7718, Protecting the Health and Wellness of Babies and Pregnant Women in Custody Act, which will improve the prenatal and postpartum care women receive while in BOP custody and provides additional funding for States to do the same.

Since the early 1980s, the number of women in Federal and State custody has increased by 700 percent. Women are the fastest growing segment of the incarcerated population, and women are incarcerated mainly for nonviolent offenses. Over 60 percent of women in prison are mothers with children under the age of 18.

The purpose of this bill is to take a comprehensive look at how women are cared for while in custody. This bill addresses a series of health-related concerns raised by women in custody as well as the American College of Obstetricians and Gynecologists.

This bill would require that once a determination that a woman is pregnant is made, that her doctor devise a plan that would allow for reasonable accommodations for her care while in custody. This plan would be provided to the warden of each prison.

The plan would take into account a woman's individual healthcare needs during pregnancy and postpartum, which includes access to healthcare professionals, such as OB/GYNs, nurses, doulas, and midwives, to address the conditions in prison that, if modified, would significantly improve her chances of having a healthy pregnancy.

Reasonable accommodations include food and nutrition and access to nutritious food. According to healthcare professionals, good maternal nutrition can contribute positively to the delivery of a healthy newborn of an appropriate weight.

We have heard stories of women who are incarcerated given an additional peanut butter and jelly sandwich to address their nutritional needs. This is obviously not adequate for a woman who is pregnant.

Another accommodation is transferring a woman from a top bunk to a lower bunk, as pregnant women are at high risk for falls, and falls are dangerous for pregnancies. In addition, women who are pregnant need access to bathrooms and water for the duration of their pregnancy. I know it sounds strange, but in some prisons, this is actually an issue.

Meeting the healthcare needs of women has a positive impact on the pregnancy and allowing women access to OB/GYNs as their primary caregiver is vital.

Birth by caesarean section, on average, can cost $7,000 to $10,000 more than a natural birth, and dealing with women appropriately during pregnancy reduces the number of caesarean sections.

For women who are determined to have pregnancies that are considered at high risk by their doctor, it might be appropriate to say incarceration in a prison is not the best way and maybe women could be housed closer to home in halfway houses.

After a baby is born, birth mothers will be provided with postpartum care and also will receive information regarding family preservation and their parental rights.

So this is a comprehensive bill, and I advise all of my colleagues to support the bill.

Mr. Speaker, I reserve the balance of my time.

Mr. RESCHENTHALER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, the bipartisan Protecting the Health and Wellness of Babies and Pregnant Women in Custody Act will improve care and outcomes for pregnant women in prison as well as for their children.

I was proud to introduce this important legislation with Representatives BASS, LESKO, and CLARK. I just want to say that Chairwoman BASS was incredible to work with. In particular, we did one virtual meeting, which consisted of tear-jerking stories that really addressed the need for change in this area.

Mr. Speaker, women are the fastest growing population in Federal prisons, yet the system was designed with just men in mind.

In 2018, Congress and President Trump took action to address these inequities with the FIRST STEP Act. H.R. 7718 will build upon that critical work by addressing the unique healthcare needs of incarcerated women who are pregnant, as well as those of their babies, which will ensure positive outcomes for their families.

H.R. 7718 establishes minimum standards of care for pregnant women, unborn children, and newborns in Federal custody. Further, the bill limits the use of restraints and restrictive housing for pregnant women and postpartum prisoners.

By providing incarcerated women with access to pregnancy-related healthcare and services, we can ensure better outcomes for mothers and babies.

Again, I want to thank Chairwoman BASS, Representative LESKO, and Representative CLARK for working with me on this important piece of legislation.

Mr. Speaker, I urge the House to support this important legislation, and I reserve the balance of my time.

Ms. BASS. Mr. Speaker, I yield myself such time as I may consume. To date, the United States incarcerates more women than any other country in the world. However, Federal, State, and local facilities have not fully met the needs of pregnant women in their care. I would like to share a few stories with you.

Last Congress, Pamela Winn, while she sat in the Chamber during the passage of the FIRST STEP Act, was a registered nurse who specialized in obstetrics. She knew her pregnancy was in distress after she fell while her wrists and ankles were shackled in her 20th week of pregnancy.

For weeks after the fall, Ms. Winn asked for medical help, which she did not receive. She began bleeding in her cell and was brought to the hospital in shackles. While still in the hospital, Ms. Winn asked the guard what happened to her baby, and he told her that her baby was thrown in the trash. That is how Ms. Winn discovered she miscarried.

No one should experience what she had to endure.

Andrea Circle Bear is the first woman to die in custody as a result of COVID–19. Ms. Circle Bear entered custody while pregnant and contracted COVID–19 while in BOP's care. She later gave birth on a ventilator by caesarean and died without meeting her child.

Ms. Circle Bear, the mother of five children, was a high-risk pregnancy and could have easily been released. She was in on a drug charge. Instead, she now leaves behind six children.

Recently, I spoke with Nicole Bennett, who lives in Los Angeles. Nicole is the mother of four and shared her experience being pregnant with her second child while in custody. Ms. Bennett did not receive proper prenatal care or nutrition. She was shackled during labor and immediately after.

Ms. Bennett, like most women in custody, was not a violent offender. Yet, she was not allowed to hold her infant daughter when she was born. It would be 6 months before Ms. Bennett saw her daughter again.

Today, her daughter is 8 years old, and Ms. Bennett still carries a lot of guilt and pain for being shackled, not having access to proper prenatal care, and having her child in custody without friends or family. Ms. Bennett firmly believes this impacted her ability to bond with her child.

Tammy Jackson is a woman struggling with mental illness. She was brought into custody while in her final trimester. Ms. Jackson informed the officers that she was in labor, and it took 6 hours for her to receive medical help. Ms. Jackson gave birth to her child in her cell, alone.

Diana Sanchez could not pay for her bond for a traffic violation while in her final trimester of pregnancy. Ms. Sanchez requested medical help after she began experiencing severe cramps. She informed the on-duty nurse, as well as the officers on duty, yet Ms. Sanchez was left alone in her cell for 5 hours and gave birth alone in her cell. The entire nightmare was caught on video. You can see Ms. Sanchez screaming. She should not have been left alone in her cell in her third trimester, and she should have received medical care from an obstetrician.

This is a comprehensive and strong bipartisan bill, and I urge all of my colleagues to support H.R. 7718. Support pregnant women in custody.

Mr. Speaker, I reserve the balance of my time.

Mr. RESCHENTHALER. Mr. Speaker, I, again, want to urge my colleagues to vote ''yes'' on H.R. 7718, the Protecting the Health and Wellness of Babies and Pregnant Women in Custody Act.

Again, I reiterate that it was an absolute honor to work with Chairwoman BASS on this important piece of legislation.

Mr. Speaker, I yield back the balance of my time.

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Ms. BASS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, one day I hope that these mothers mentioned here earlier are the last to have experienced not receiving appropriate care while in custody and pregnant.

As we begin to institute criminal justice reform to stem the increase of people entering the system, we must improve the resources provided to those who are currently in custody. Support H.R. 7718. Support pregnant women in custody.

Mr. Speaker, I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, as a senior member of the Committee on the Judiciary and Co-Chair of the Congressional Children's Caucus, I rise in strong support of H.R. 7718, the ''Protecting the Health and Wellness of Babies and Pregnant Women in Custody Act,'' introduced by our colleague Congresswoman BASS of California.

This legislation requires the Bureau of Justice Statistics to collect and report data relating to the demographics and physical and mental health needs of incarcerated women who are pregnant, in labor, or in post-partum recovery, at the Federal, State, tribal, and local levels.

In addition, the bill will help ensure that appropriate medical services and programs related to pregnancy and childbirth are provided in the Bureau of Prisons (BOP) and made available to women in custody.

The bill also prohibits the use of restraints or restrictive housing, while in BOP or U.S. Marshals Service custody, during the period of pregnancy, labor, and postpartum recovery, unless these measures are necessary.

Over the past four decades, the total U.S. prison population has skyrocketed.

There are almost 2.3 million people currently in our nation's prisons and jails, 36 which represents a more than 500 percent increase over the last 40 years.

During the period from 1980 to the present, the federal prison population has grown from approximately 25,000 to 180,000—an increase of over 600 percent.

A topic that is not as widely discussed is the fact that women are the fastest-growing segment of the incarcerated population.

In the same time period, the number of women in the state prison population has grown by 834 percent, at more than double the pace of men.

Today, the overall incarcerated population has begun to decrease slightly, although almost all of the reduction has been among men, and the proportion of incarcerated women remains on the rise.

Since 2000, the jail incarceration rate for women has risen 26 percent while the rate for men has fallen by 5 percent.

In addition, at the present time, there are more women in prison than at any point in U.S. history.

Nationally, 64 out of every 100,000 women were in prison in 2016.

Since 2013, the percentage of women prosecuted federally has consistently hovered around 13 percent.

At the state level, the rate at which women are incarcerated varies greatly; the state with the highest rate of female imprisonment is Oklahoma and the states with the lowest incarceration rates for women are Rhode Island and Massachusetts.

In 35 states, women's incarceration numbers have been higher than men's, and in a few states, the growth of women's prison populations have counteracted any reductions in men's incarceration numbers.

Further, women in jail are the fastest growing correctional population in the country, increasing 14-fold between 1970 and 2014.

This trend is even greater in small counties, where there has been a 31-fold increase between 1970 and 2014.

Significantly, nearly half of all incarcerated women are held in jails.

Mr. Speaker, somewhere between 3 percent and 6 percent of women entering the prison system are pregnant, with the highest rates of pregnancies being in local jails.

Statistics from the Bureau of Prisons show that there were 171 pregnancies in federal prison in 2018.

While the prison health care system is barely adequate for men, it fails to meet incarcerated women's basic needs.

The situation is even more dire for pregnant women in prison who have additional and unique health needs.

A significant portion of women come into the prison system with a history of poverty, substance abuse, and trauma and abuse.

Women who enter prison are also less likely to have had access to regular health care before their incarceration, especially appropriate prenatal care.

Moreover, women in prison are more likely to suffer from undiagnosed chronic illnesses, such as diabetes and high blood pressure, that can cause a high-risk pregnancy.

Another salutary aspect of H.R. 7718 is that provides education and technical assistance by the National Institute of Corrections to state and local corrections facilities on appropriate medical care for pregnant women and to ensure training of BOP correctional officers at facilities housing women and of deputy U.S. Marshals, on the requirements of the bill.

Finally, the legislation directs GAO to study and report to Congress the services and protections provided for pregnant incarcerated women in local and State correctional settings and in Federal pretrial detention facilities and authorizes the Attorney General to make grants to State, tribal, and local governments, to promote and support the health needs of incarcerated pregnant women.

Mr. Speaker, H.R. 7718 complements and expands on the SIMARRA Act I introduced in the 114th and 115th Congress (i.e., H.R. 5130, H.R. 3410) and incorporated in the Violence Against Women Reauthorization Act, legislation which directs the Bureau of Prisons to establish a pilot program to allow incarcerated women who give birth and children born during such incarceration to reside together in a separate prison housing unit.

I strongly support this legislation and urge all Members to join me in voting to pass H.R. 7718, the ''Protecting the Health and Wellness of Babies and Pregnant Women in Custody Act.''

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from California (Ms. BASS) that the House suspend the rules and pass the bill, H.R. 7718, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

MESSAGE FROM THE SENATE

A message from the Senate by Ms. Byrd, one of its clerks, announced that the Senate has passed without amendment bills of the House of the following titles:

H.R. 561. An act to amend title 38, United States Code, to improve the oversight of contracts awarded by the Secretary of Veterans Affairs to small business concerns owned and controlled by veterans, and for other purposes.

H.R. 991. An act to extend certain provisions of the Caribbean Basin Economic Recovery Act until September 30, 2030, and for other purposes.

H.R. 3399. An act to amend the Nutria Eradication and Control Act of 2003 to include California in the program, and for other purposes.

The message also announced that the Senate has passed bills of the following titles in which the concurrence of the House is requested:

S. 910. An act to reauthorize and amend the National Sea Grant College Program Act, and for other purposes.

S. 1069. An act to require the Secretary of Commerce, acting through the Administrator of the National Oceanic and Atmospheric Administration, to establish a constituent-driven program to provide a digital information platform capable of efficiently integrating coastal data with decision-support tools, training, and best practices and to support collection of priority coastal geospatial data to inform and improve local, State, regional, and Federal capacities to manage the coastal region, and for other purposes.

S. 3681. An act to require a joint task force on air travel during and after the COVID–19 Public Health Emergency, and for other purposes.

S. 4403. An act to amend the Nutria Eradication and Control Act of 2003 to include California in the program, and for other purposes.

FIGHT NOTARIO FRAUD ACT OF 2020

Ms. BASS. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 8225) to amend title 18, United States Code, to prohibit certain types of fraud in the provision of immigration services, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 8225

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Fight Notario Fraud Act of 2020''.

SEC. 2. FRAUD PROHIBITED.

(a) IN GENERAL.—Chapter 47 of title 18, United States Code, is amended by adding at the end the following new section:

''§ 1041. Schemes to defraud persons in any matter arising under immigration laws

''(a) FRAUD.—Any person who knowingly executes a scheme or artifice, in connection with any matter authorized by or arising under the immigration laws, or any matter that such person claims or represents is authorized by or arises under the immigration laws to—

''(1) defraud any other person; or

''(2) obtain or receive money or anything else of value from any other person by means of false or fraudulent pretenses, representations, or promises,

shall be fined under this title, imprisoned not more than 1 year, or both.

''(b) MISREPRESENTATION.—Any person who knowingly makes a false representation that such person is an attorney or an accredited representative (as such term is defined under section 1292.1(a)(4) of title 8, Code of Federal Regulations (or any successor regulation)) in any matter arising under the immigration laws shall be fined under this title, imprisoned not more than 1 year, or both.

''(c) THREATS AND RETALIATION.—Any person who violates subsection (a) and knowingly—

''(1) threatens to report another person to Federal authorities or State law enforcement authorities working in conjunction with or pursuant to Federal authority;

''(2) acts to adversely affect another person's immigration status, perceived immigration status, or attempts to secure immigration status that—

''(A) impacts or results in the removal of the person from the United States;

''(B) leads to the loss of immigration status; or

''(C) causes the person seeking to apply for an immigration benefit to lose an opportunity to apply for such an immigration benefit that would have provided immigration status and for which a person was prima facie eligible; or

''(3) demands or retains money or anything else of value for services fraudulently performed or not performed or withholds or threatens to withhold services promised to be performed,

shall be fined under this title, imprisoned not more than 1 year, or both.

''(d) GRAVITY OF OFFENSE.—

''(1) CUMULATIVE LOSS.—Any person who violates subsection (a), (b), or (c) such that the cumulative loss to all victims exceeds $10,000 may be imprisoned not more than 3 years, fined under this title, or both.

''(2) RETALIATION.—Any person who violates subsection (a) or (b) and causes the harm described in subsection (c)(2) may be imprisoned not more than 3 years, fined under this title, or both.

''(e) INFORMATION SHARING AND ENFORCEMENT.—

''(1) IN GENERAL.—The Immigrant and Employee Rights Section of the Civil Rights Division of the Department of Justice—

''(A) shall have primary enforcement responsibility for this section and shall be consulted prior to a United States Attorney initiating an action under this section;

''(B) shall establish procedures to receive and investigate complaints of fraudulent immigration schemes from the public that are consistent with the procedures for receiving and investigating complaints of unfair immigration-related employment practices; and

''(C) shall maintain and publish on the internet, information aimed at protecting consumers from fraudulent immigration schemes, as well as a list of individuals who have been convicted of unlawful conduct under this section or have been found by a State or Federal agency to have unlawfully provided immigration services.

''(2) SPECIAL UNITED STATES ATTORNEYS.—The Attorney General shall establish no fewer than 15 Special United States Attorney positions in districts the Attorney General determines, after analyzing data following each decennial census, to be most affected by the fraud described in subsections (a), (b), and (c).

''(3) RESTITUTION.—There shall be deposited in the Crime Victims Fund established under section 1402 of the Victims of Crime Act of 1984 (34 U.S.C. 20101) any restitution ordered for an offense under this section if the victim of such offense cannot reasonably be located.

''(f) SEVERABILITY.—If any provision of this section, or the application of such a provision to any person or circumstance, is held to be unconstitutional, the remainder of this section and the application of the remaining provisions of this section to any person or circumstance shall not be affected thereby.

''(g) IMMIGRATION LAWS.—In this section, the term 'immigration laws' has the meaning given that term in section 101(a)(17) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(17)).''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 47 of title 18, United States Code, is amended by adding at the end the following:

''1041. Schemes to defraud persons in any matter arising under immigration laws.''.

SEC. 3. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from California (Ms. BASS) and the gentleman from Pennsylvania (Mr. RESCHENTHALER) each will control 20 minutes.

The Chair recognizes the gentlewoman from California.

GENERAL LEAVE

Ms. BASS. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks and include extraneous material on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from California?

There was no objection.

Ms. BASS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, H.R. 8225, the Fight Notario Fraud Act of 2020, would address notario fraud, the practice of the provision of unauthorized immigration legal services, which has not been effectively curbed by existing Federal, State, and local efforts.

The practice continues to cause irreparable harm to immigrant communities. Notario fraud proliferates all over the United States because there is an overwhelming need for representation in immigration proceedings.

In any given year, United States Citizenship and Immigration Services receives approximately 6 million applications from individuals and businesses seeking an immigration benefit, humanitarian relief, or naturalization. Immigration proceedings are notoriously and unusually complex, as one editorial described them, dizzyingly Byzantine. The high demand for assistance with this complex set of laws attracts charlatans who prey on unsuspecting victims.

Unfortunately, efforts to curb notario fraud for the past several decades have fallen short. Education campaigns by local governments, bar associations, and grassroots organizations have raised public awareness and have stemmed notario fraud somewhat.

While 34 States and the District of Columbia have some type of statute outlawing the unauthorized practice of immigration law, only a handful have more comprehensive laws, like California, Illinois, New York, and Washington. Most jurisdictions address the issue by limiting the activities of licensed notaries public. But this is rarely effective, and even where laws have been enacted at the State level, these efforts have done little to meaningfully rein in notario fraud.

Leadership from the Department of Justice is needed. The Federal Government plays a singular role in immigration proceedings, so it must also undertake efforts to protect the integrity of the immigration process and to protect vulnerable victims from fraud and illegal deceit.

We must strengthen the ability of Federal prosecutors to hold notarios accountable for their malfeasance.

Congress must act carefully when creating new crimes. There must be strong need and justification for them, but this is one instance where State and local efforts have fallen short, and Federal enforcement has been almost nonexistent.

This bill's comprehensive approach would not only criminalize notario fraud at the Federal level and in 16 States that have yet to enact such legislation, but it would also establish an enforcement apparatus within the Department of Justice to combat fraudulent notario schemes nationwide.

Importantly, this bill requires the Department of Justice to post information on the internet aimed at protecting consumers from fraud, including maintaining a public list of individuals who have been convicted of unlawful conduct under this bill or have been found by the State or Federal agency to have unlawfully provided immigration services.

The Fight Notario Fraud Act will help prevent fraud and protect vulnerable victims. Mr. Speaker, I urge all of my colleagues to support this legislation, and I reserve the balance of my time.

Mr. RESCHENTHALER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, H.R. 8225, the Fight Notario Fraud Act of 2020, addresses a problem that already has a remedy in current law.

The U.S. Department of Justice and State and local officials fight against fraud every day, including fraud related to immigration laws. In addition, the Executive Office for Immigration Review maintains a Fraud and Abuse Prevention Program as a centralized place for anyone to make complaints about issues of fraud, immigration scams, and the unauthorized practice of immigration law.

These existing efforts to fight immigration fraud are working. For example, in San Antonio, Texas, the DOJ charged Eric Jon Alva and his wife, Jessica Rivas Alva, in a scheme to defraud undocumented immigrants by falsely claiming to work on behalf of two San Antonio attorneys. Although they pled guilty and were sentenced to 6 months in Federal prison, they could have been sentenced up to 5 years, and that is 5 years under current law.

By contrast, the bill before us today would impose only a 1-year sentence for similar crimes. In rare circumstances, the defendant may receive a 3-year sentence.

So the Democrats' response to a problem in the immigrant community is apparently to go soft on crime and reduce the penalties for immigration fraud. That doesn't make sense.

We also should not be in the business of complicating the immigration system, but this bill does just that.

This bill prohibits the unauthorized practice of law specific to immigration, but the unauthorized practice of law, no matter the type, is already illegal.

Additionally, by dedicating prosecutors specifically to notario fraud and creating burdensome requirements for prosecuting this fraud, H.R. 8225 could leave other types of immigration crimes understaffed and unaddressed.

Mr. Speaker, I truly appreciate the sentiment behind this bill, I truly do, but if we are going to create a new category of immigration fraud, we should make it as strong as existing law and work to simplify, not to complicate, the current system. Immigrants following the legal system deserve as much.

Mr. Speaker, I reserve the balance of my time.

Ms. BASS. Mr. Speaker, I yield 3 minutes to the gentlewoman from Texas (Ms. GARCIA).

Ms. GARCIA of Texas. Mr. Speaker, I rise today on the House floor to express my strong and unwavering support for the Fight Notario Fraud Act of 2020.

This bill would hold public notaries accountable that abuse their power to take advantage of vulnerable communities with language barriers or who cannot read or who cannot fully understand the legal system.

Many Spanish-speaking immigrants, for example, turn to notaries because in their home countries a notario publico refers to a lawyer.

H.R. 8225 criminalizes notario fraud schemes to ensure that no one can take advantage of the literal-sounding translation of notario publico.

Significantly, some grifters have fraudulently used the notary public title to hold themselves out as authorized to provide advice and services.

When I was a legal aid lawyer, I remember seeing firsthand many deceitful practices at the expense of poor

people due to the language barrier, due to the immigration status, or due to the fact that people could not read the papers that they brought to the notario publicos. That was wrong then, and it is still wrong today.

As Members of Congress, we have a responsibility to protect the well-being and livelihoods of the most vulnerable among us, including American families across the country. Certainly, courts have recognized the widespread prevalence of notario fraud, and the negative impact on immigrants and their families is clear.

Mr. Speaker, I want to thank my comadre and good friend, Congresswoman DEBBIE MUCARSEL-POWELL of south Florida, for exemplary leadership on this issue and for sponsoring this bill. I urge all of my colleagues to vote in favor of this very important legislation. Let's put an end to these fraudulent schemes.

Mr. RESCHENTHALER. Mr. Speaker, I have no further speakers at this time, and I am prepared to close. I yield myself such time as I may consume.

Mr. Speaker, I have concerns that H.R. 8225 will only further complicate the immigration system and hurt rather than help the very people it is meant to protect. So with immigrants in mind, I have concerns with this bill as written.

Mr. Speaker, I yield back the balance of my time.

Ms. BASS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, the harms brought by notario schemes can be devastating. This bill's combination of enforcement and public education is critically needed to protect some of the most unsuspecting and vulnerable victims of fraud.

The Department of Justice must refocus its efforts to target notario fraud, and we are enabling them to do so with this bill.

Mr. Speaker, I thank Representative MUCARSEL-POWELL for championing this issue, and I urge my colleagues to join me in supporting this bill.

Mr. Speaker, I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, as a senior member of the Committee on the Judiciary, I rise in strong support of H.R. 8225, the ''Fight Notario Fraud Act,'' introduced by the gentlelady from Florida, Congresswoman Murcasel-Powell.

I support this legislation because it protects persons who are the most vulnerable in society against unconscionable predatory conduct from fraudulent ''notarios públicos'' who use the ''notary public'' title to hold themselves out as authorized to provide immigration legal advice and services.

Specifically, H.R. 8225 would criminalize the provision of fraudulent legal services, certain misrepresentations by individuals who claim to be authorized to practice immigration law, and threats and retaliation associated with the provision of fraudulent legal services.

Additionally, the bill would require the Attorney General to create no fewer than 15 Special United States Attorney positions to prosecute notario fraud crimes.

Mr. Speaker, the roots of modern ''notario fraud'' in the United States stem from a practice in parts of Latin America where ''notarios públicos,'' (which could be literally translated to ''notaries public'') are lawyers and, as such, are authorized to provide legal services.

Unlike in the United States, because ''notario pblicos'' in Latin America have a law license and can represent others in court, many Spanish-speaking immigrants in the United States turn to notaries thinking they are attorneys able to represent them in legal proceedings, especially cases involving immigration claims.

On account of linguistic and cultural differences in meaning, notario fraud disproportionately targets immigrants from Latin America who are not fluent English speakers or familiar with the difference between the Latin American and American legal systems.

Notarios often gain the trust of the immigrant families they defraud, making extravagant promises and preying on the desperation of families.

The effect of the breach of trust can often be dire and multifaceted. Notarios often make mistakes in these filings and proceedings, which can result in irreversibly negative immigration consequences for their clients.

A notario's legal errors can lead to an unfavorable review in immigration courts and may prejudice the immigrant-appellant on appeal.

Fly-by-night notarios may skip town with important documentation immigrants need to file for immigration relief or they may apply for relief without the immigrant-applicant's knowledge.

A notario's advice to a parent may impact the separate and independent relief a child applicant may have.

Currently, equitable relief for this malfeasance is not available in the immigration proceedings and, even worse, defrauded immigrants can be charged with filing false claims.

Immigrants have been defrauded of hundreds or even thousands of dollars by unscrupulous notarios only to find out they will not receive the services they were promised and, in some cases, these individuals find themselves in worse conditions than when they originally sought help with their immigration matters.

After they discover that they have been bilked, many immigrants are afraid to report notaries; by some estimates, only one in every hundred cases are reported.

In one civil action initiated by the Federal Trade Commission in 2011, investigators recovered evidence of 2,785 defrauded immigrants, but only 99 consumer complaints associated with the notario grifter—a reporting rate of 3.55 percent.

Because many of the victims of notarios also do not have legal immigration status, they fear negative immigration outcomes if they attempt to bring a complaint.

Courts across the country have recognized the widespread prevalence of notario fraud.

The proposed explicit criminalization of notario fraud is necessary to focus criminal fraud prosecution on widespread scams that target some of the least sophisticated and most vulnerable individuals in our society.

I strongly support this legislation and urge all Members to join me in voting for its passage.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from California (Ms. BASS) that the House suspend the rules and pass the bill, H.R. 8225, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

EMPOWERING OLYMPIC, PARALYMPIC, AND AMATEUR ATHLETES ACT OF 2020

Ms. BASS. Mr. Speaker, I move to suspend the rules and pass the bill (S. 2330) to amend the Ted Stevens Olympic and Amateur Sports Act to provide for congressional oversight of the board of directors of the United States Olympic and Paralympic Committee and to protect amateur athletes from emotional, physical, and sexual abuse, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 2330

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Empowering Olympic, Paralympic, and Amateur Athletes Act of 2020''.

SEC. 2. FINDINGS.

Congress makes the following findings:

(1) The courageous voice of survivors is a call to action to end emotional, physical, and sexual abuse in the Olympic and Paralympic movement.

(2) Larry Nassar, the former national team doctor for USA Gymnastics, sexually abused over 300 athletes for over two decades because of ineffective oversight by USA Gymnastics and the United States Olympic Committee.

(3) While the case of Larry Nassar is unprecedented in scale, the case is hardly the only recent incident of sexual abuse in amateur sports.

(4) Survivors of Larry Nassar's abuse and all survivors of abuse in the Olympic and Paralympic movement deserve justice and redress for the wrongs the survivors have suffered.

(5) After a comprehensive congressional investigation, including interviews and statements from survivors, former and current organization officials, law enforcement, and advocates, Congress found that the United States Olympic Committee and USA Gymnastics fundamentally failed to uphold their existing statutory purposes and duty to protect amateur athletes from sexual, emotional, or physical abuse.

(6) USA Gymnastics and the United States Olympic Committee knowingly concealed abuse by Larry Nassar, leading to the abuse of dozens of additional amateur athletes during the period beginning in the summer of 2015 and ending in September 2016.

(7) Ending abuse in the Olympic and Paralympic movement requires enhanced oversight to ensure that the Olympic and Paralympic movement does more to serve athletes and protect their voice and safety.

SEC. 3. DEFINITIONS.

Section 220501(b) of title 36, United States Code, is amended—

(1) in paragraph (4), by striking ''United States Center for Safe Sport'' and inserting ''United States Center for SafeSport'';

(2) in paragraph (6), by striking ''United States Olympic Committee'' and inserting ''United States Olympic and Paralympic Committee'';

(3) by amending paragraph (8) to read as follows:

''(8) 'national governing body' means an amateur sports organization, a high-performance management organization, or a paralympic sports organization that is certified by the corporation under section 220521.'';

(4) by striking paragraph (9);

(5) by redesignating paragraphs (4), (5), (6), (7), (8), and (10) as paragraphs (5), (6), (7), (8), (9), and (12), respectively;

(6) by inserting after paragraph (3) the following:

''(4) 'Athletes' Advisory Council' means the entity established and maintained under section 220504(b)(2)(A) that—

''(A) is composed of, and elected by, amateur athletes to ensure communication between the corporation and currently active amateur athletes; and

''(B) serves as a source of amateur-athlete opinion and advice with respect to policies and proposed policies of the corporation.''; and

(7) by inserting after paragraph (9), as so redesignated, the following:

''(10) 'protected individual' means any amateur athlete, coach, trainer, manager, administrator, or official associated with the corporation or a national governing body.

''(11) 'retaliation' means any adverse or discriminatory action, or the threat of an adverse or discriminatory action, including removal from a training facility, reduced coaching or training, reduced meals or housing, and removal from competition, carried out against a protected individual as a result of any communication, including the filing of a formal complaint, by the protected individual or a parent or legal guardian of the protected individual relating to the allegation of physical abuse, sexual harassment, or emotional abuse, with—

''(A) the Center;

''(B) a coach, trainer, manager, administrator, or official associated with the corporation;

''(C) the Attorney General;

''(D) a Federal or State law enforcement authority;

''(E) the Equal Employment Opportunity Commission; or

''(F) Congress.''.

SEC. 4. MODERNIZATION OF THE TED STEVENS OLYMPIC AND AMATEUR SPORTS ACT.

(a) IN GENERAL.—Chapter 2205 of title 36, United States Code, is amended—

(1) in the chapter heading, by striking ''**UNITED STATES OLYMPIC COMMITTEE**'' and inserting ''**UNITED STATES OLYMPIC AND PARALYMPIC COMMITTEE**'';

(2) in section 220502, by amending subsection (c) to read as follows:

''(c) REFERENCES TO UNITED STATES OLYMPIC ASSOCIATION AND UNITED STATES OLYMPIC COMMITTEE.—Any reference to the United States Olympic Association or the United States Olympic Committee is deemed to refer to the United States Olympic and Paralympic Committee.'';

(3) in section 220503—

(A) in paragraph (3), by striking ''and the Pan-American Games'' each place it appears and inserting ''the Pan-American Games, and the Parapan American Games''; and

(B) in paragraph (4), by striking ''and Pan-American Games'' and inserting ''the Pan-American Games, and the Parapan American Games'';

(4) in section 220504(b)(3), by striking ''or the Pan-American Games'' and inserting ''the Pan-American Games, or the Parapan American Games'';

(5) in section 220505(c)—

(A) in paragraph (3), by striking ''and the Pan-American Games'' and inserting ''the Pan-American Games, and the Parapan American Games'';

(B) by amending paragraph (4) to read as follows:

''(4) certify national governing bodies for any sport that is included on the program of the Olympic Games, the Paralympic Games, the Pan-American Games, or the Parapan American Games;''; and

(C) in paragraph (5), by inserting ''the Parapan American Games,'' after ''the Pan-American Games,'';

(6) in section 220506—

(A) in subsection (a)—

(i) in paragraph (1), by striking ''United States Olympic Committee'' and inserting ''United States Olympic and Paralympic Committee'';

(ii) in paragraph (2), by striking ''3 TaiGeuks'' and inserting ''3 Agitos''; and

(iii) in paragraph (4), by inserting '' 'Parapan American','' after '' 'Pan-American','';

(B) in subsection (b), by inserting ''the Parapan American team,'' after ''the Pan-American team,''; and

(C) in subsection (c)(3), by striking ''or Pan-American Games activity'' and inserting ''Pan-American, or Parapan American Games activity'';

(7) in section 220509(a)—

(A) in the first sentence, by inserting ''the Parapan American Games,'' after ''the Pan-American Games,''; and

(B) in the second sentence, by striking ''or the Pan-American Games'' and inserting ''the Pan-American Games, or the Parapan American Games'';

(8) in section 220512, by striking ''and Pan-American Games'' and inserting ''Pan-American Games, and Parapan American Games'';

(9) in section 220523(a), by striking ''and the Pan-American Games'' each place it appears and inserting ''the Pan-American Games, and the Parapan American Games'';

(10) in section 220528(c)—

(A) in subparagraph (A), by striking ''or in both the Olympic and Pan-American Games'' and inserting ''or in each of the Olympic Games, the Paralympic Games, the Pan-American Games, and the Parapan American Games''; and

(B) by amending subparagraph (B) to read as follows:

''(B) any Pan-American Games or Parapan American Games, for a sport in which competition is held in the Pan-American Games or the Parapan American Games, as applicable, but not in the Olympic Games or the Paralympic Games.''; and

(11) in section 220531, by striking ''United States Olympic Committee'' each place it appears and inserting ''United States Olympic and Paralympic Committee''.

(b) CONFORMING AMENDMENT.—The table of chapters for part B of subtitle II of title 36, United States Code, is amended by striking the item relating to chapter 2205 and inserting the following:

''2205. United States Olympic and Paralympic Committee 220501''. .....

SEC. 5. CONGRESSIONAL OVERSIGHT OF UNITED STATES OLYMPIC AND PARALYMPIC COMMITTEE AND NATIONAL GOVERNING BODIES.

(a) IN GENERAL.—Chapter 2205 of title 36, United States Code, is amended—

(1) by redesignating the second subchapter designated as subchapter III (relating to the United States Center for SafeSport), as added by section 202 of the Protecting Young Victims from Sexual Abuse and Safe Sport Authorization Act of 2017 (Public Law 115–126; 132 Stat. 320) as subchapter IV; and

(2) by adding at the end the following:

''SUBCHAPTER V—DISSOLUTION OF BOARD OF DIRECTORS OF CORPORATION AND TERMINATION OF RECOGNITION OF NATIONAL GOVERNING BODIES

''§ 220551. Definitions

''In this subchapter, the term 'joint resolution' means a joint resolution—

''(1) which does not have a preamble; and

''(2) for which—

''(A)(i) the title is only as follows: 'A joint resolution to dissolve the board of directors of the United States Olympic and Paralympic Committee'; and

''(ii) the matter after the resolving clause—

''(I) is as follows: 'That Congress finds that dissolving the board of directors of the United States Olympic and Paralympic Committee would not unduly interfere with the operations of chapter 2205 of title 36, United States Code'; and

''(II) prescribes adequate procedures for forming a board of directors of the corporation as expeditiously as possible and in a manner that safeguards the membership and voting power of the representatives of amateur athletes at all times, consistent with the membership and voting power of amateur athletes under section 220504(b)(2); or

''(B)(i) the title is only as follows: 'A joint resolution relating to terminating the recognition of a national governing body'; and

''(ii) the matter after the resolving clause is only as follows: 'That Congress determines that _____, which is recognized as a national governing body under section 220521 of title 36, United States Code, has failed to fulfill its duties, as described in section 220524 of title 36, United States Code', the blank space being filled in with the name of the applicable national governing body.

''§ 220552. Dissolution of board of directors of corporation and termination of recognition of national governing bodies

''(a) DISSOLUTION OF BOARD OF DIRECTORS OF CORPORATION.—Effective on the date of enactment of a joint resolution described in section 220551(2)(A) with respect to the board of directors of the corporation, such board of directors shall be dissolved.

''(b) TERMINATION OF RECOGNITION OF NATIONAL GOVERNING BODY.—Effective on the date of enactment of a joint resolution described in section 220551(2)(B) with respect to a national governing body, the recognition of the applicable amateur sports organization as a national governing body shall cease to have force or effect.''.

(b) TECHNICAL AND CONFORMING AMENDMENTS.—The table of sections for chapter 2205 of title 36, United States Code, is amended—

(1) by striking the second item relating to subchapter III (relating to the United States Center for SafeSport), as added by section 202 of the Protecting Young Victims from Sexual Abuse and Safe Sport Authorization Act of 2017 (Public Law 115–126; 132 Stat. 320) and inserting the following:

''SUBCHAPTER IV—UNITED STATES CENTER FOR SAFESPORT''; AND

(2) by adding at the end the following:

''SUBCHAPTER V—DISSOLUTION OF BOARD OF DIRECTORS OF CORPORATION AND TERMINATION OF RECOGNITION OF NATIONAL GOVERNING BODIES

''220551. Definitions.

''220552. Dissolution of board of directors of corporation and termination of recognition of national governing bodies.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect on the date that is 1 year after the date of the enactment of this Act.

SEC. 6. MODIFICATIONS TO UNITED STATES OLYMPIC AND PARALYMPIC COMMITTEE.

(a) PURPOSES OF THE CORPORATION.—Section 220503 of title 36, United States Code, is amended—

(1) in paragraph (9), by inserting ''and access to'' after ''development of'';

(2) in paragraph (14), by striking ''; and'' and inserting a semicolon;

(3) in paragraph (15), by striking the period at the end and inserting ''; and''; and

(4) by adding at the end the following:

''(16) to effectively oversee the national governing bodies with respect to compliance with and implementation of the policies and procedures of the corporation, including policies and procedures on the establishment of a safe environment in sports as described in paragraph (15).''.

(b) MEMBERSHIP AND REPRESENTATION.—Section 220504 of title 36, United States Code, is amended—

(1) in subsection (a), by inserting '', and membership shall be available only to national governing bodies'' before the period at the end;

(2) in subsection (b), by amending paragraph (2) to read as follows:

''(2) amateur athletes who are actively engaged in amateur athletic competition or who have represented the United States in international amateur athletic competition, including through provisions that—

''(A) establish and maintain an Athletes' Advisory Council;

''(B) ensure that the chair of the Athletes' Advisory Council, or the designee of the chair, holds voting power on the board of directors of the corporation and in the committees and entities of the corporation;

''(C) require that—

''(i) not less than ⅓ of the membership of the board of directors of the corporation shall be composed of, and elected by, such amateur athletes; and

''(ii) not less than 20 percent of the membership of the board of directors of the corporation shall be composed of amateur athletes who—

''(I) are actively engaged in representing the United States in international amateur athletic competition; or

''(II) have represented the United States in international amateur athletic competition during the preceding 10-year period; and

''(D) ensure that the membership and voting power held by such amateur athletes is not less than ⅓ percent of the membership and voting power held in the board of directors of the corporation and in the committees and entities of the corporation, including any panel empowered to resolve grievances;''; and

(3) by adding at the end the following:

''(c) CONFLICT OF INTEREST.—An athlete who represents athletes under subsection (b)(2) shall not be employed by the Center, or serve in a capacity that exercises decision-making authority on behalf of the Center, during the 2-year period beginning on the date on which the athlete ceases such representation.

''(d) CERTIFICATION REQUIREMENTS.—The bylaws of the corporation shall include a description of all generally applicable certification requirements for membership in the corporation.''.

(c) DUTIES.—

(1) IN GENERAL.—Section 220505 of title 36, United States Code, is amended—

(A) in the section heading, by striking ''**Powers**'' and inserting ''**Powers and duties**''; and

(B) by adding at the end the following:

''(d) DUTIES.—

''(1) IN GENERAL.—The duty of the corporation to amateur athletes includes the adoption, effective implementation, and enforcement of policies and procedures designed—

''(A) to immediately report to law enforcement and the Center any allegation of child abuse of an amateur athlete who is a minor;

''(B) to ensure that each national governing body has in place policies and procedures to report immediately any allegation of child abuse of an amateur athlete, consistent with—

''(i) the policies and procedures developed under subparagraph (C) of section 220541(a)(1); and

''(ii) the requirement described in paragraph (2)(A) of section 220542(a); and

''(C) to ensure that each national governing body and the corporation enforces temporary measures and sanctions issued pursuant to the authority of the Center.

''(2) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to preempt or otherwise abrogate the duty of care of the corporation under State law or the common law.''.

(2) CONFORMING AMENDMENT.—The table of sections for chapter 2205 of title 36, United States Code, is amended by striking the item relating to section 220505 and inserting the following:

''220505. Powers and duties.''.

(d) RESTRICTIONS.—

(1) POLICY WITH RESPECT TO ASSISTING MEMBERS OR FORMER MEMBERS IN OBTAINING JOBS.—Section 220507 of title 36, United States Code, is amended by adding at the end the following:

''(c) POLICY WITH RESPECT TO ASSISTING MEMBERS OR FORMER MEMBERS IN OBTAINING JOBS.—The corporation shall develop 1 or more policies that prohibit any individual who is an employee, contractor, or agent of the corporation from assisting a member or former member in obtaining a new job (except the routine transmission of administrative and personnel files) if the individual knows that such member or former member violated the policies or procedures of the Center related to sexual misconduct or was convicted of a crime involving sexual misconduct with a minor in violation of applicable law.''.

(2) POLICY WITH RESPECT TO TERMS AND CONDITIONS OF EMPLOYMENT.—

(A) IN GENERAL.—Section 220507 of title 36, United States Code, as amended by paragraph (1), is further amended by adding at the end the following:

''(d) POLICY REGARDING TERMS AND CONDITIONS OF EMPLOYMENT.—The corporation shall establish a policy—

''(1) not to disperse bonus or severance pay to any individual named as a subject of an ethics investigation by the ethics committee of the corporation, until such individual is cleared of wrongdoing by such investigation; and

''(2) that provides that—

''(A) if the ethics committee determines that an individual has violated the policies of the corporation—

''(i) the individual is no longer entitled to bonus or severance pay previously withheld; and

''(ii) the compensation committee of the corporation may reduce or cancel the withheld bonus or severance pay; and

''(B) in the case of an individual who is the subject of a criminal investigation, the ethics committee shall investigate the individual.''.

(B) APPLICABILITY.—The amendment made by subparagraph (A) shall not apply to any term of employment for the disbursement of bonus or severance pay that is in effect as of the day before the date of the enactment of this Act.

(e) RESOLUTION OF DISPUTES AND PROTECTING ABUSE VICTIMS FROM RETALIATION.—Section 220509 of title 36, United States Code, is amended—

(1) in subsection (a), in the first sentence, by inserting ''complaints of retaliation or'' after ''relating to'';

(2) by amending subsection (b) to read as follows:

''(b) OFFICE OF THE ATHLETE OMBUDS.—

''(1) IN GENERAL.—The corporation shall hire and provide salary, benefits, and administrative expenses for an ombudsman and support staff for athletes.

''(2) DUTIES.—The Office of the Athlete Ombuds shall—

''(A) provide independent advice to athletes at no cost about the applicable provisions of this chapter and the constitution and bylaws of the corporation, national governing bodies, international sports federations, the International Olympic Committee, the International Paralympic Committee, and the Pan-American Sports Organization, and with respect to the resolution of any dispute involving the opportunity of an amateur athlete to participate in the Olympic Games, the Paralympic Games, the Pan-American Games, the Parapan American Games, world championship competition or other protected competition as defined in the constitution and bylaws of the corporation;

''(B) assist in the resolution of athlete concerns;

''(C) provide independent advice to athletes with respect to—

''(i) the role, responsibility, authority, and jurisdiction of the Center; and

''(ii) the relative value of engaging legal counsel; and

''(D) report to the Athletes' Advisory Council on a regular basis.

''(3) HIRING PROCEDURES; VACANCY; TERMINATION.—

''(A) HIRING PROCEDURES.—The procedure for hiring the ombudsman for athletes shall be as follows:

''(i) The Athletes' Advisory Council shall provide the corporation's executive director with the name of 1 qualified person to serve as ombudsman for athletes.

''(ii) The corporation's executive director shall immediately transmit the name of such person to the corporation's executive committee.

''(iii) The corporation's executive committee shall hire or not hire such person after fully considering the advice and counsel of the Athletes' Advisory Council.

''(B) VACANCY.—If there is a vacancy in the position of the ombudsman for athletes, the nomination and hiring procedure set forth in this paragraph shall be followed in a timely manner.

''(C) TERMINATION.—The corporation may terminate the employment of an individual serving as ombudsman for athletes only if—

''(i) the termination is carried out in accordance with the applicable policies and procedures of the corporation;

''(ii) the termination is initially recommended to the corporation's executive committee by either the corporation's executive director or by the Athletes' Advisory Council; and

''(iii) the corporation's executive committee fully considers the advice and counsel of the Athletes' Advisory Council prior to deciding whether or not to terminate the employment of such individual.

''(4) CONFIDENTIALITY.—

''(A) IN GENERAL.—The Office of the Athlete Ombuds shall maintain as confidential any information communicated or provided

to the Office of the Athlete Ombuds in confidence in any matter involving the exercise of the official duties of the Office of the Athlete Ombuds.

''(B) EXCEPTION.—The Office of the Athlete Ombuds may disclose information described in subparagraph (A) as necessary to resolve or mediate a dispute, with the permission of the parties involved.

''(C) JUDICIAL AND ADMINISTRATIVE PROCEEDINGS.—

''(i) IN GENERAL.—The ombudsman and the staff of the Office of the Athlete Ombuds shall not be compelled to testify or produce evidence in any judicial or administrative proceeding with respect to any matter involving the exercise of the duties of the Office of the Athlete Ombuds.

''(ii) WORK PRODUCT.—Any memorandum, work product, notes, or case file of the Office of the Athlete Ombuds—

''(I) shall be confidential; and

''(II) shall not be—

''(aa) subject to discovery, subpoena, or any other means of legal compulsion; or

''(bb) admissible as evidence in a judicial or administrative proceeding.

''(D) APPLICABILITY.—The confidentiality requirements under this paragraph shall not apply to information relating to—

''(i) applicable federally mandated reporting requirements;

''(ii) a felony personally witnessed by a member of the Office of the Athlete Ombuds;

''(iii) a situation, communicated to the Office of the Athlete Ombuds, in which an individual is at imminent risk of serious harm; or

''(iv) a congressional subpoena.

''(E) DEVELOPMENT OF POLICY.—

''(i) IN GENERAL.—Not later than 180 days after the date of the enactment of the Empowering Olympic, Paralympic, and Amateur Athletes Act of 2020, the Office of the Athlete Ombuds shall develop and publish in the Federal Register a confidentiality and privacy policy consistent with this paragraph.

''(ii) DISTRIBUTION.—The Office of the Athlete Ombuds shall distribute a copy of the policy developed under clause (i) to—

''(I) employees of the national governing bodies; and

''(II) employees of the corporation.

''(iii) PUBLICATION BY NATIONAL GOVERNING BODIES.—Each national governing body shall—

''(I) publish the policy developed under clause (i) on the internet website of the national governing body; and

''(II) communicate to amateur athletes the availability of the policy.

''(5) PROHIBITION ON RETALIATION.—No employee, contractor, agent, volunteer, or member of the corporation shall take or threaten to take any action against an athlete as a reprisal for disclosing information to or seeking assistance from the Office of the Athlete Ombuds.

''(6) INDEPENDENCE IN CARRYING OUT DUTIES.—The board of directors of the corporation or any other member or employee of the corporation shall not prevent or prohibit the Office of the Athlete Ombuds from carrying out any duty or responsibility under this section.''; and

(3) by adding at the end the following:

''(c) RETALIATION.—

''(1) IN GENERAL.—The corporation, the national governing bodies, or any officer, employee, contractor, subcontractor, or agent of the corporation or a national governing body may not retaliate against any protected individual as a result of any communication, including the filing of a formal complaint, by a protected individual or a parent or legal guardian of the protected individual relating to an allegation of physical abuse, sexual harassment, or emotional abuse.

''(2) DISCIPLINARY ACTION.—If the corporation finds that an employee of the corporation or a national governing body has retaliated against a protected individual, the corporation or national governing body, as applicable, shall immediately terminate the employment of, or suspend without pay, such employee.

''(3) DAMAGES.—

''(A) IN GENERAL.—With respect to a protected individual the corporation finds to have been subject to retaliation, the corporation may award damages, including damages for pain and suffering and reasonable attorney fees.

''(B) REIMBURSEMENT FROM NATIONAL GOVERNING BODY.—In the case of a national governing body found to have retaliated against a protected individual, the corporation may demand reimbursement from the national governing body for damages paid by the corporation under subparagraph (A).''.

(f) REPORTS AND AUDITS.—

(1) IN GENERAL.—Section 220511 of title 36, United States Code, is amended to read as follows:

''§ 220511. Reports and audits

''(a) REPORT.—

''(1) SUBMISSION TO PRESIDENT AND CONGRESS.—Not less frequently than annually, the corporation shall submit simultaneously to the President and to each House of Congress a detailed report on the operations of the corporation for the preceding calendar year.

''(2) MATTERS TO BE INCLUDED.—Each report required by paragraph (1) shall include the following:

''(A) A comprehensive description of the activities and accomplishments of the corporation during such calendar year.

''(B) Data concerning the participation of women, disabled individuals, and racial and ethnic minorities in the amateur athletic activities and administration of the corporation and national governing bodies.

''(C) A description of the steps taken to encourage the participation of women, disabled individuals, and racial minorities in amateur athletic activities.

''(D) A description of any lawsuit or grievance filed against the corporation, including any dispute initiated under this chapter.

''(E) The agenda and minutes of any meeting of the board of directors of the corporation that occurred during such calendar year.

''(F) A report by the compliance committee of the corporation that, with respect to such calendar year—

''(i) identifies—

''(I) the areas in which the corporation has met compliance standards; and

''(II) the areas in which the corporation has not met compliance standards; and

''(ii) assesses the compliance of each member of the corporation and provides a plan for improvement, as necessary.

''(G) A detailed description of any complaint of retaliation made during such calendar year, including the entity involved, the number of allegations of retaliation, and the outcome of such allegations.

''(3) PUBLIC AVAILABILITY.—The corporation shall make each report under this subsection available to the public on an easily accessible internet website of the corporation.

''(b) AUDIT.—

''(1) IN GENERAL.—Not less frequently than annually, the financial statements of the corporation for the preceding fiscal year shall be audited in accordance with generally accepted auditing standards by—

''(A) an independent certified public accountant; or

''(B) an independent licensed public accountant who is certified or licensed by the regulatory authority of a State or a political subdivision of a State.

''(2) LOCATION.—An audit under paragraph (1) shall be conducted at the location at which the financial statements of the corporation normally are kept.

''(3) ACCESS.—An individual conducting an audit under paragraph (1) shall be given full access to—

''(A) all records and property owned or used by the corporation, as necessary to facilitate the audit; and

''(B) any facility under audit for the purpose of verifying transactions, including any balance or security held by a depository, fiscal agent, or custodian.

''(4) REPORT.—

''(A) IN GENERAL.—Not later than 180 days after the end of the fiscal year for which an audit is carried out, the auditor shall submit a report on the audit to the Committee on Commerce, Science, and Transportation of the Senate, the Committee on the Judiciary of the House of Representatives, and the chair of the Athletes' Advisory Council.

''(B) MATTERS TO BE INCLUDED.—Each report under subparagraph (A) shall include the following for the applicable fiscal year:

''(i) Any statement necessary to present fairly the assets, liabilities, and surplus or deficit of the corporation.

''(ii) An analysis of the changes in the amounts of such assets, liabilities, and surplus or deficit.

''(iii) A detailed statement of the income and expenses of the corporation, including the results of any trading, manufacturing, publishing, or other commercial endeavor.

''(iv) A detailed statement of the amounts spent on stipends and services for athletes.

''(v) A detailed statement of the amounts spent on compensation and services for executives and administration officials of the corporation, including the 20 employees of the corporation who receive the highest amounts of compensation.

''(vi) A detailed statement of the amounts allocated to the national governing bodies.

''(vii) Such comments and information as the auditor considers necessary to inform Congress of the financial operations and condition of the corporation.

''(viii) Recommendations relating to the financial operations and condition of the corporation.

''(ix) A description of any financial conflict of interest (including a description of any recusal or other mitigating action taken), evaluated in a manner consistent with the policies of the corporation, of—

''(I) a member of the board of directors of the corporation; or

''(II) any senior management personnel of the corporation.

''(C) PUBLIC AVAILABILITY.—

''(i) IN GENERAL.—The corporation shall make each report under this paragraph available to the public on an easily accessible internet website of the corporation.

''(ii) PERSONALLY IDENTIFIABLE INFORMATION.—A report made available under clause (i) shall not include the personally identifiable information of any individual.''.

(2) CONFORMING AMENDMENT.—The table of sections for chapter 2205 of title 36, United States Code, is amended by striking the item relating to section 220511 and inserting the following:

''220511. Reports and audits.''.

(g) ANNUAL AMATEUR ATHLETE SURVEY.—

(1) IN GENERAL.—Subchapter I of chapter 2205 of title 36, United States Code, is amended by adding at the end the following:

"§ 220513. Annual amateur athlete survey

''(a) IN GENERAL.—Not less frequently than annually, the corporation shall cause an independent third-party organization, under contract, to conduct an anonymous survey of amateur athletes who are actively engaged in amateur athletic competition with respect to—

''(1) their satisfaction with the corporation and the applicable national governing body; and

''(2) the behaviors, attitudes, and feelings within the corporation and the applicable national governing body relating to sexual harassment and abuse.

''(b) CONSULTATION.—A contract under subsection (a) shall require the independent third-party organization to develop the survey in consultation with the Center.

''(c) PROHIBITION ON INTERFERENCE.—If the corporation or a national governing body makes any effort to undermine the independence of, introduce bias into, or otherwise influence a survey under subsection (a), such activity shall be reported immediately to Congress.

''(d) PUBLIC AVAILABILITY.— The corporation shall make the results of each such survey available to the public on an internet website of the corporation.''.

(2) CONFORMING AMENDMENT.—The table of sections for chapter 2205 of title 36, United States Code, is amended by inserting after the item relating to 220512 the following:

''220513. Annual amateur athlete survey.''.

SEC. 7. MODIFICATIONS TO NATIONAL GOVERNING BODIES.

(a) CERTIFICATION OF NATIONAL GOVERNING BODIES.—

(1) IN GENERAL.—Section 220521 of title 36, United States Code, is amended—

(A) in the section heading, by striking ''**Recognition of amateur sports organizations as national governing bodies**'' and inserting ''**Certification of national governing bodies**'';

(B) by amending subsection (a) to read as follows:

''(a) IN GENERAL.—With respect to each sport included on the program of the Olympic Games, the Paralympic Games, the Pan-American Games, or the Parapan American Games, the corporation—

''(1) may certify as a national governing body an amateur sports organization, a high-performance management organization, or a paralympic sports organization that files an application and is eligible for such certification under section 220522; and

''(2) may not certify more than 1 national governing body.'';

(C) in subsection (b), by striking ''recognizing'' and inserting ''certifying'';

(D) in subsection (c), by striking ''recognizing'' and inserting ''certifying''; and

(E) by amending subsection (d) to read as follows:

''(d) REVIEW OF CERTIFICATION.—Not later than 8 years after the date of the enactment of the Empowering Olympic, Paralympic, and Amateur Athletes Act of 2020, and not less frequently than once every 4 years thereafter, the corporation—

''(1) shall review all matters related to the continued certification of an organization as a national governing body;

''(2) may take action the corporation considers appropriate, including placing conditions on the continued certification of an organization as a national governing body;

''(3) shall submit to Congress a summary report of each review under paragraph (1); and

''(4) shall make each such summary report available to the public.''.

(2) TECHNICAL AND CONFORMING AMENDMENTS.—

(A) Chapter 2205 of title 36, United States Code, is amended—

(i) in section 220504(b), by amending paragraph (1) to read as follows:

''(1) national governing bodies, including through provisions that establish and maintain a National Governing Bodies' Council that is composed of representatives of the national governing bodies who are selected by their boards of directors or other governing boards to ensure effective communication between the corporation and the national governing bodies;'';

(ii) in section 220512, by striking ''or paralympic sports organization'';

(iii) in section 220522—

(I) by striking subsection (b); and

(II) in subsection (a)—

(aa) by striking ''recognized'' each place it appears and inserting ''certified'';

(bb) by striking ''recognition'' each place it appears and inserting ''certification'';

(cc) in paragraph (6), by striking ''the Olympic Games or the Pan-American Games'' and inserting ''the Olympic Games, the Paralympic Games, the Pan-American Games, or the Parapan American Games'';

(dd) in paragraph (11)—

(AA) in the matter preceding subparagraph (A), by inserting '', high-performance management organization, or paralympic sports organization'' after ''amateur sports organization''; and

(BB) in subparagraph (B), by striking ''amateur sports'' and inserting ''applicable'';

(ee) in paragraph (14), by striking ''or the Pan-American Games'' and inserting ''the Pan-American Games, or the Parapan American Games''; and

(ff) by striking the subsection designation and heading and all that follows through ''An amateur sports organization'' and inserting ''An amateur sports organization, a high-performance management organization, or a paralympic sports organization'';

(iv) in section 220524, by striking ''amateur sports'' each place it appears;

(v) in section 220528—

(I) by striking ''recognition'' each place it appears and inserting ''certification'';

(II) by striking ''recognize'' each place it appears and inserting ''certify''; and

(III) in subsection (g), in the subsection heading, by striking ''RECOGNITION'' and inserting ''CERTIFICATION'';

(vi) in section 220531—

(I) by striking '', each national governing body, and each paralympic sports organization'' each place it appears and inserting ''and each national governing body''; and

(II) in subsection (c)(2), by striking ''each paralympic sports organization,'';

(vii) in section 220541(d)(3), by striking subparagraph (C);

(viii) in section 220542—

(I) by striking ''or paralympic sports organization'' each place it appears; and

(II) in subsection (a)(2)—

(aa) in subparagraph (A), in the matter preceding clause (i), by striking '', a paralympic sports organization,'';

(bb) in subparagraph (E), by striking ''or a paralympic sports organization of each national governing body and paralympic sports organization''; and

(cc) in subparagraph (F)(i)—

(AA) by striking '', or an adult'' and inserting ''or an adult'';

(BB) by striking '', paralympic sports organization,''; and

(CC) by striking '', paralympic sports organizations,''.

(B) The table of sections for chapter 2205 of title 36, United States Code, is amended by striking the item relating to section 220521 and inserting the following:

''220521. Certification of national governing bodies.''.

(b) ELIGIBILITY REQUIREMENTS WITH RESPECT TO GOVERNING BOARDS.—Section 220522 of title 36, United States Code, as amended by subsection (a)(2), is further amended—

(1) in paragraph (2), by inserting '', including the ability to provide and enforce required athlete protection policies and procedures'' before the semicolon;

(2) in paragraph (4)(B)—

(A) by striking ''conducted in accordance with the Commercial Rules of the American Arbitration Association'' and inserting ''which arbitration under this paragraph shall be conducted in accordance with the standard commercial arbitration rules of an established major national provider of arbitration and mediation services based in the United States and designated by the corporation with the concurrence of the Athletes' Advisory Council and the National Governing Bodies' Council''; and

(B) by striking ''Commercial Rules of Arbitration'' and inserting ''standard commercial rules of arbitration of such designated provider'';

(3) in paragraph (5), in the matter preceding subparagraph (A), by inserting ''except with respect to the oversight of the organization,'' after ''sport,'';

(4) by redesignating paragraphs (10) through (15) as paragraphs (11) through (16), respectively;

(5) by inserting after paragraph (9) the following:

''(10) ensures that the selection criteria for individuals and teams that represent the United States are—

''(A) fair, as determined by the corporation in consultation with the national governing bodies, the Athletes' Advisory Council, and the United States Olympians and Paralympians Association;

''(B) clearly articulated in writing and properly communicated to athletes in a timely manner; and

''(C) consistently applied, using objective and subjective criteria appropriate to the applicable sport;'';

(6) by striking paragraph (13), as so redesignated, and inserting the following:

''(13) demonstrates, based on guidelines approved by the corporation, the Athletes' Advisory Council, and the National Governing Bodies' Council, that—

''(A) its board of directors and other such governing boards have established criteria and election procedures for, and maintain among their voting members, individuals who—

''(i) are elected by amateur athletes; and

''(ii) are actively engaged in amateur athletic competition, or have represented the United States in international amateur athletic competition, in the sport for which certification is sought;

''(B) any exception to such guidelines by such organization has been approved by—

''(i) the corporation; and

''(ii) the Athletes' Advisory Council; and

''(C) the voting power held by such individuals is not less than ⅓ of the voting power held by its board of directors and other such governing boards;'';

(7) in paragraph (15), as so redesignated, by striking ''; and'' and inserting a semicolon;

(8) in paragraph (16), as so redesignated, by striking the period at the end and inserting a semicolon; and

(9) by adding at the end the following:

''(17) commits to submitting annual reports to the corporation that include, for each calendar year—

''(A) a description of the manner in which the organization—

''(i) carries out the mission to promote a safe environment in sports that is free from abuse of amateur athletes (including emotional, physical, and sexual abuse); and

''(ii) addresses any sanctions or temporary measures required by the Center;

''(B) a description of any cause of action or complaint filed against the organization that was pending or settled during the preceding calendar year; and

''(C) a detailed statement of—

''(i) the income and expenses of the organization; and

''(ii) the amounts expended on stipends, bonuses, and services for amateur athletes, organized by the level and gender of the amateur athletes;

''(18) commits to meeting any minimum standard or requirement set forth by the corporation; and

''(19) provides protection from retaliation to protected individuals.''.

(c) GENERAL DUTIES OF NATIONAL GOVERNING BODIES.—Section 220524 of title 36, United States Code, is amended—

(1) in the matter preceding paragraph (1), by striking ''For the sport'' and inserting the following:

''(a) IN GENERAL.—For the sport'';

(2) in subsection (a), as so designated—

(A) in paragraph (8), by striking ''; and'' and inserting a semicolon;

(B) in paragraph (9), by striking the period at the end and inserting a semicolon; and

(C) by adding at the end the following:

''(10) develop 1 or more policies that prohibit any individual who is an employee, contractor, or agent of the national governing body from assisting a member or former member in obtaining a new job (except for the routine transmission of administrative and personnel files) if the individual knows that such member or former member violated the policies or procedures of the Center related to sexual misconduct or was convicted of a crime involving sexual misconduct with a minor in violation of applicable law or the policies or procedures of the Center;

''(11) promote a safe environment in sports that is free from abuse of any amateur athlete, including emotional, physical, and sexual abuse;

''(12) take care to promote a safe environment in sports using information relating to any temporary measure or sanction issued pursuant to the authority of the Center;

''(13) immediately report to law enforcement any allegation of child abuse of an amateur athlete who is a minor; and

''(14) have in place policies and procedures to report immediately any allegation of child abuse of an amateur athlete, consistent with—

''(A) the policies and procedures developed under subparagraph (C) of section 220541(a)(1); and

''(B) the requirement described in paragraph (2)(A) of section 220542(a).''; and

(3) by adding at the end the following:

''(b) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to preempt or otherwise abrogate the duty of care of a national governing body under State law or the common law.''.

(d) ELIMINATION OF EXHAUSTION OF REMEDIES REQUIREMENT.—Section 220527 of title 36, United States Code, is amended—

(1) by striking subsection (b);

(2) in subsection (c), by striking ''If the corporation'' and all that follows through ''subsection (b)(1) of this section, it'' and inserting ''The corporation''; and

(3) by redesignating subsections (c) and (d) as subsections (b) and (c), respectively.

(e) ARBITRATION OF CORPORATION DETERMINATIONS.—Section 220529(a) of title 36, United States Code, is amended by striking ''any regional office of the American Arbitration Association'' and inserting ''the arbitration and mediation provider designated by the corporation under section 220522(a)(4)''.

(f) ENSURE LIMITATIONS ON COMMUNICATIONS ARE INCLUDED IN LIMITATIONS ON INTERACTIONS.—Section 220530(a) of title 36, United States Code, is amended—

(1) in paragraph (2), by inserting '', including communications,'' after ''interactions''; and

(2) in paragraph (4), by striking ''makes'' and all that follows through the period at the end and inserting the following: ''makes—

''(A) a report under paragraph (1); or

''(B) any other report relating to abuse of any amateur athlete, including emotional, physical, and sexual abuse.''.

SEC. 8. MODIFICATIONS TO UNITED STATES CENTER FOR SAFESPORT.

(a) DESIGNATION OF UNITED STATES CENTER FOR SAFESPORT.—

(1) IN GENERAL.—Section 220541 of title 36, United States Code, is amended—

(A) in the section heading by striking ''**SAFE SPORT**'' and inserting ''**SAFESPORT**'';

(B) by amending subsection (a) to read as follows:

''(a) DUTIES OF CENTER.—

''(1) IN GENERAL.—The United States Center for SafeSport shall—

''(A) serve as the independent national safe sport organization and be recognized worldwide as the independent national safe sport organization for the United States;

''(B) exercise jurisdiction over the corporation and each national governing body with regard to safeguarding amateur athletes against abuse, including emotional, physical, and sexual abuse, in sports;

''(C) maintain an office for education and outreach that shall develop training, oversight practices, policies, and procedures to prevent the abuse, including emotional, physical, and sexual abuse, of amateur athletes participating in amateur athletic activities through national governing bodies;

''(D) maintain an office for response and resolution that shall establish mechanisms that allow for the reporting, investigation, and resolution, pursuant to subsection (c), of alleged sexual abuse in violation of the Center's policies and procedures;

''(E) ensure that the mechanisms under subparagraph (D) provide fair notice and an opportunity to be heard and protect the privacy and safety of complainants;

''(F) maintain an office for compliance and audit that shall—

''(i) ensure that the national governing bodies and the corporation implement and follow the policies and procedures developed by the Center to prevent and promptly report instances of abuse of amateur athletes, including emotional, physical, and sexual abuse; and

''(ii) establish mechanisms that allow for the reporting and investigation of alleged violations of such policies and procedures;

''(G) publish and maintain a publicly accessible internet website that contains a comprehensive list of adults who are barred by the Center; and

''(H) ensure that any action taken by the Center against an individual under the jurisdiction of the Center, including an investigation, the imposition of sanctions, and any other disciplinary action, is carried out in a manner than provides procedural due process to the individual, including, at a minimum—

''(i) the provision of written notice of the allegations against the individual;

''(ii) a right to be represented by counsel or other advisor;

''(iii) an opportunity to be heard during the investigation;

''(iv) in a case in which a violation is found, a reasoned written decision by the Center; and

''(v) the ability to challenge, in a hearing or through arbitration, interim measures or sanctions imposed by the Center.

''(2) RULES OF CONSTRUCTION.—Nothing in this subsection shall be construed—

''(A) to preclude the Center from imposing interim measures or sanctions on an individual before an opportunity for a hearing or arbitration;

''(B) to require the Center to meet a burden of proof higher than the preponderance of the evidence;

''(C) to give rise to a claim under State law or to create a private right of action; or

''(D) to render the Center a state actor.'';

(C) in subsection (b), by striking ''subsection (a)(3)'' and inserting ''subsection (a)(1)(C)'';

(D) in subsection (d), as amended by section 7(a)(2)—

(i) in paragraph (3), by inserting after subparagraph (B) the following:

''(C) the corporation;'';

(ii) by redesignating paragraph (3) as paragraph (4); and

(iii) by inserting after paragraph (2) the following:

''(3) REMOVAL TO FEDERAL COURT.—

''(A) IN GENERAL.—Any civil action brought in a State court against the Center relating to the responsibilities of the Center under this section, section 220542, or section 220543, shall be removed, on request by the Center, to the district court of the United States in the district in which the action was brought, and such district court shall have original jurisdiction over the action without regard to the amount in controversy or the citizenship of the parties involved.

''(B) RULE OF CONSTRUCTION.—Nothing in this chapter shall be construed to create a private right of action.''; and

(E) by adding at the end the following:

''(e) TRAINING MATERIALS.—The office for education and outreach referred to in subsection (a)(1)(C) shall—

''(1) develop training materials for specific audiences, including coaches, trainers, doctors, young children, adolescents, adults, and individuals with disabilities; and

''(2) not less frequently than every 3 years, update such training materials.

''(f) INDEPENDENCE.—

''(1) PROHIBITION WITH RESPECT TO FORMER EMPLOYEES AND BOARD MEMBERS.—A former employee or board member of the corporation or a national governing body shall not work or volunteer at the Center during the 2-year period beginning on the date on which the former employee or board member ceases employment with the corporation or national governing body.

''(2) ATHLETES SERVING ON BOARD OF DIRECTORS OF NATIONAL GOVERNING BODY.—

''(A) IN GENERAL.—An athlete serving on the board of directors of a national governing body who is not otherwise employed by the national governing body, may volunteer at, or serve in an advisory capacity to, the Center.

''(B) INELIGIBILITY FOR EMPLOYMENT.—An athlete who has served on the board of directors of a national governing body shall not be eligible for employment at the Center during the 2-year period beginning on the date on which the athlete ceases to serve on such board of directors.

''(3) CONFLICTS OF INTEREST.—An executive or attorney for the Center shall be considered to have an inappropriate conflict of interest if the executive or attorney also represents the corporation or a national governing body.

''(4) INVESTIGATIONS.—

''(A) IN GENERAL.—The corporation and the national governing bodies shall not interfere in, or attempt to influence the outcome of, an investigation.

''(B) REPORT.—In the case of an attempt to interfere in, or influence the outcome of, an investigation, not later than 72 hours after such attempt, the Center shall submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Energy and Commerce of the House of Representatives a report describing the attempt.

''(C) WORK PRODUCT.—

''(i) IN GENERAL.—Any decision, report, memorandum, work product, notes, or case file of the Center—

''(I) shall be confidential; and

''(II) shall not be subject to discovery, subpoena, or any other means of legal compulsion in any civil action in which the Center is not a party to the action.

''(ii) RULE OF CONSTRUCTION.—Nothing in this subparagraph shall be construed to prohibit the Center from providing work product described in clause (i) to a law enforcement agency for the purpose of assisting in a criminal investigation.

''(g) FUNDING.—

''(1) MANDATORY PAYMENTS.—

''(A) FISCAL YEAR 2020.—Not later than 30 days after the date of the enactment of this subsection, the corporation shall make a mandatory payment of $20,000,000 to the Center for operating costs of the Center for fiscal year 2020.

''(B) SUBSEQUENT FISCAL YEARS.—Beginning on January 1, 2020, the corporation shall make a mandatory payment of $20,000,000 to the Center on January 1 each year for operating costs of the Center.

''(2) FUNDS FROM NATIONAL GOVERNING BODIES.—The corporation may use funds received from 1 or more national governing bodies to make a mandatory payment required by paragraph (1).

''(3) FAILURE TO COMPLY.—

''(A) IN GENERAL.—The Center may file a lawsuit to compel payment under paragraph (1).

''(B) PENALTY.—For each day of late or incomplete payment of a mandatory payment under paragraph (1) after January 1 of the applicable year, the Center shall be allowed to recover from the corporation an additional $20,000.

''(4) ACCOUNTABILITY.—

''(A) IN GENERAL.—Amounts transferred to the Center by the corporation or a national governing body shall be used, in accordance with section 220503(15), primarily for the purpose of carrying out the duties and requirements under sections 220541 through 220543 with respect to the investigation and resolution of allegations of sexual misconduct, or other misconduct, made by amateur athletes.

''(B) USE OF FUNDS.—

''(i) IN GENERAL.—Of the amounts made available to the Center by the corporation or a national governing body in a fiscal year for the purpose described in section 220503(15)—

''(I) not less than 50 percent shall be used for processing the investigation and resolution of allegations described in subparagraph (A); and

''(II) not more than 10 percent may be used for executive compensation of officers and directors of the Center.

''(ii) RESERVE FUNDS.—

''(I) IN GENERAL.—If, after the Center uses the amounts as allocated under clause (i), the Center does not use the entirety of the remaining amounts for the purpose described in subparagraph (A), the Center may retain not more than 25 percent of such amounts as reserve funds.

''(II) RETURN OF FUNDS.—The Center shall return to the corporation and national governing bodies any amounts, proportional to the contributions of the corporation and national governing bodies, that remain after the retention described in subclause (I).

''(iii) LOBBYING AND FUNDRAISING.—Amounts made available to the Center under this paragraph may not be used for lobbying or fundraising expenses.

''(h) COMPLIANCE AUDITS.—

''(1) IN GENERAL.—Not less frequently than annually, the Center shall carry out an audit of the corporation and each national governing body—

''(A) to assess compliance with policies and procedures developed under this subchapter; and

''(B) to ensure that consistent training relating to the prevention of child abuse is provided to all staff of the corporation and national governing bodies who are in regular contact with amateur athletes and members who are minors subject to parental consent.

''(2) CORRECTIVE MEASURES.—

''(A) IN GENERAL.—The Center may impose on the corporation or a national governing body a corrective measure to achieve compliance with the policies and procedures developed under this subchapter or the training requirement described in paragraph (1)(B).

''(B) INCLUSIONS.—A corrective measure imposed under subparagraph (A) may include the implementation of an athlete safety program or specific policies, additional compliance audits or training, and the imposition of a probationary period.

''(C) ENFORCEMENT.—

''(i) IN GENERAL.—On request by the Center, the corporation shall—

''(I) enforce any corrective measure required under subparagraph (A); and

''(II) report the status of enforcement with respect to a national governing body within a reasonable timeframe.

''(ii) METHODS.—The corporation may enforce a corrective measure through any means available to the corporation, including by withholding funds from a national governing body, limiting the participation of the national governing body in corporation events, and decertifying a national governing body.

''(iii) EFFECT OF NONCOMPLIANCE.—If the corporation fails to enforce a corrective measure within 72 hours of a request under clause (i), the Center may submit to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Energy and Commerce of the House of Representatives a report describing the noncompliance.

''(3) ANNUAL REPORT.—

''(A) IN GENERAL.—Not less frequently than annually, the Center shall submit to Congress a report on the findings of the audit under paragraph (1) for the preceding year and the status of any corrective measures imposed as a result of the audit.

''(B) PUBLIC AVAILABILITY.—

''(i) IN GENERAL.—Each report under subparagraph (A) shall be made available to the public.

''(ii) PERSONALLY IDENTIFIABLE INFORMATION.—A report made available to the public shall not include the personally identifiable information of any individual.

''(i) REPORTS TO CORPORATION.—Not later than 30 days after the end of each calendar quarter that begins after the date of the enactment of the Empowering Olympic, Paralympic, and Amateur Athletes Act of 2020, the Center shall submit to the corporation a statement of the following:

''(1) The number and nature of misconduct complaints referred to the Center, by sport.

''(2) The number and type of pending misconduct complaints under investigation by the Center.

''(3) The number of misconduct complaints for which an investigation was terminated or otherwise closed by the Center.

''(4) The number of such misconduct complaints reported to law enforcement agencies by the Center for further investigation.

''(5) The number of discretionary cases accepted or declined by the Center, by sport.

''(6) The average time required for resolution of such cases and misconduct complaints.

''(7) Information relating to the educational activities and trainings conducted by the office of education and outreach of the Center during the preceding quarter, including the number of educational activities and trainings developed and provided.

''(j) CERTIFICATIONS OF INDEPENDENCE.—

''(1) IN GENERAL.—Not later than 180 days after the end of a fiscal year, the Comptroller General of the United States shall make available to the public a certification relating to the Center's independence from the corporation.

''(2) ELEMENTS.—A certification required by paragraph (1) shall include the following:

''(A) A finding of whether a violation of a prohibition on employment of former employees or board members of the corporation under subsection (f) has occurred during the year preceding the certification.

''(B) A finding of whether an executive or attorney for the Center has had an inappropriate conflict of interest during that year.

''(C) A finding of whether the corporation has interfered in, or attempted to influence the outcome of, an investigation by the Center.

''(D) Any recommendations of the Comptroller General for resolving any potential risks to the Center's independence from the corporation.

''(3) AUTHORITY OF COMPTROLLER GENERAL.—

''(A) IN GENERAL.—The Comptroller General may take such reasonable steps as, in the view of the Comptroller General, are necessary to be fully informed about the operations of the corporation and the Center.

''(B) SPECIFIC AUTHORITIES.—The Comptroller General shall have—

''(i) access to, and the right to make copies of, any and all nonprivileged books, records, accounts, correspondence, files, or other documents or electronic records, including emails, of officers, agents, and employees of the Center or the corporation; and

''(ii) the right to interview any officer, employee, agent, or consultant of the Center or the corporation.

''(C) TREATMENT OF PRIVILEGED INFORMATION.—If, under this subsection, the Comptroller General seeks access to information contained within privileged documents or materials in the possession of the Center or the corporation, the Center or the corporation, as the case may be, shall, to the maximum extent practicable, provide the Comptroller General with the information without compromising the applicable privilege.''.

(2) TECHNICAL AND CONFORMING AMENDMENTS.—

(A) Subchapter IV of chapter 2205 of title 36, United States Code, as redesignated by section 5(a)(1), is amended in the subchapter heading by striking ''SAFE SPORT'' and inserting ''SAFESPORT''.

(B) The table of sections for chapter 2205 of title 36, United States Code, is amended by striking the item relating to section 220541 and inserting the following:

''220541. Designation of United States Center for SafeSport.''.

(b) ADDITIONAL DUTIES OF CENTER.—Section 220542 of title 36, United States Code, is amended—

(1) in the section heading, by striking the period at the end; and

(2) in subsection (a)—

(A) in paragraph (1), by striking ''; and'' and inserting a semicolon; and

(B) in paragraph (2)—

(i) in subparagraph (A), by striking clauses (i) and (ii) and inserting the following:

''(i) law enforcement consistent with section 226 of the Victims of Child Abuse Act of 1990 (34 U.S.C. 20341); and

''(ii) the Center, whenever such members or adults learn of facts leading them to suspect reasonably that an amateur athlete who is a minor has suffered an incident of child abuse;'';

(ii) by redesignating subparagraphs (B) through (F) as subparagraphs (E) through (I), respectively;

(iii) by inserting after subparagraph (A) the following:

''(B) a requirement that the Center shall immediately report to law enforcement consistent with section 226 of the Victims of Child Abuse Act of 1990 (34 U.S.C. 20341) any allegation of child abuse of an amateur athlete who is a minor, including any report of such abuse submitted to the Center by a minor or by any person who is not otherwise required to report such abuse;

''(C) 1 or more policies that prohibit any individual who is an employee, contractor, or agent of the Center from assisting a member or former member in obtaining a new job (except for the routine transmission of administrative and personnel files) if the individual knows that such member or former member violated the policies or procedures of the Center related to sexual misconduct or was convicted of a crime involving sexual misconduct with a minor in violation of applicable law;

''(D) a requirement that the Center, including any officer, agent, attorney, or staff member of the Center, shall not take any action to notify an alleged perpetrator of abuse of an amateur athlete of any ongoing investigation or accusation unless—

''(i) the Center has reason to believe an imminent hazard will result from failing to so notify the alleged perpetrator; or

''(ii) law enforcement—

''(I) authorizes the Center to take such action; or

''(II) declines or fails to act on, or fails to respond to the Center with respect to, the allegation within 72 hours after the time at which the Center reports to law enforcement under subparagraph (B);'';

(iv) in subparagraph (F), as so redesignated, by inserting '', including communications,'' after ''interactions'';

(v) by amending subparagraph (G), as so redesignated, to read as follows:

''(G) procedures to prohibit retaliation by the corporation or any national governing body against any individual who makes—

''(i) a report under subparagraph (A) or (E); or

''(ii) any other report relating to abuse of any amateur athlete, including emotional, physical, and sexual abuse;'';

(vi) in subparagraph (H), as so redesignated, by striking ''; and'' and inserting a semicolon;

(vii) in subparagraph (I), as so redesignated, by striking the period at the end of clause (ii) and inserting a semicolon; and

(viii) by adding at the end the following:

''(J) a prohibition on the use in a decision of the Center under section 220541(a)(1)(D) of any evidence relating to other sexual behavior or the sexual predisposition of the alleged victim, or the admission of any such evidence in arbitration, unless the probative value of the use or admission of such evidence, as determined by the Center or the arbitrator, as applicable, substantially outweighs the danger of—

''(i) any harm to the alleged victim; and

''(ii) unfair prejudice to any party; and

''(K) training for investigators on appropriate methods and techniques for ensuring sensitivity toward alleged victims during interviews and other investigative activities.''.

(c) RECORDS, AUDITS, AND REPORTS.—Section 220543 of title 36, United States Code, is amended—

(1) by striking subsection (b) and inserting the following:

''(b) AUDITS AND TRANSPARENCY.—

''(1) ANNUAL AUDIT.—

''(A) IN GENERAL.—Not less frequently than annually, the financial statements of the Center for the preceding fiscal year shall be audited by an independent auditor in accordance with generally accepted accounting principles—

''(i) to ensure the adequacy of the internal controls of the Center; and

''(ii) to prevent waste, fraud, or misuse of funds transferred to the Center by the corporation or the national governing bodies.

''(B) LOCATION.—An audit under subparagraph (A) shall be conducted at the location at which the financial statements of the Center normally are kept.

''(C) REPORT.—Not later than 180 days after the date on which an audit under subparagraph (A) is completed, the independent auditor shall issue an audit report.

''(D) CORRECTIVE ACTION PLAN.—

''(i) IN GENERAL.—On completion of the audit report under subparagraph (C) for a fiscal year, the Center shall prepare, in a separate document, a corrective action plan that responds to any corrective action recommended by the independent auditor.

''(ii) MATTERS TO BE INCLUDED.—A corrective action plan under clause (i) shall include the following for each such corrective action:

''(I) The name of the person responsible for the corrective action.

''(II) A description of the planned corrective action.

''(III) The anticipated completion date of the corrective action.

''(IV) In the case of a recommended corrective action based on a finding in the audit report with which the Center disagrees, or for which the Center determines that corrective action is not required, an explanation and a specific reason for noncompliance with the recommendation.

''(2) ACCESS TO RECORDS AND PERSONNEL.—With respect to an audit under paragraph (1), the Center shall provide the independent auditor access to all records, documents, and personnel and financial statements of the Center necessary to carry out the audit.

''(3) PUBLIC AVAILABILITY.—

''(A) IN GENERAL.—The Center shall make available to the public on an easily accessible internet website of the Center—

''(i) each audit report under paragraph (1)(C);

''(ii) the Internal Revenue Service Form 990 of the Center for each year, filed under section 501(c) of the Internal Revenue Code of 1986; and

''(iii) the minutes of the quarterly meetings of the board of directors of the Center.

''(B) PERSONALLY IDENTIFIABLE INFORMATION.—An audit report or the minutes made available under subparagraph (A) shall not include the personally identifiable information of any individual.

''(4) RULE OF CONSTRUCTION.—For purposes of this subsection, the Center shall be considered a private entity.

''(c) REPORT.—The Center shall submit an annual report to Congress, including—

''(1) a strategic plan with respect to the manner in which the Center shall fulfill its duties under sections 220541 and 220542;

''(2) a detailed description of the efforts made by the Center to comply with such strategic plan during the preceding year;

''(3) any financial statement necessary to present fairly the assets, liabilities, and surplus or deficit of the Center for the preceding year;

''(4) an analysis of the changes in the amounts of such assets, liabilities, and surplus or deficit during the preceding year;

''(5) a detailed description of Center activities, including—

''(A) the number and nature of misconduct complaints referred to the Center;

''(B) the total number and type of pending misconduct complaints under investigation by the Center;

''(C) the number of misconduct complaints for which an investigation was terminated or otherwise closed by the Center; and

''(D) the number of such misconduct complaints reported to law enforcement agencies by the Center for further investigation;

''(6) a detailed description of any complaint of retaliation made during the preceding year by an officer or employee of the Center or a contractor or subcontractor of the Center that includes—

''(A) the number of such complaints; and

''(B) the outcome of each such complaint;

''(7) information relating to the educational activities and trainings conducted by the office of education and outreach of the Center during the preceding year, including the number of educational activities and trainings developed and provided; and

''(8) a description of the activities of the Center.

''(d) DEFINITIONS.—In this section—

''(1) 'audit report' means a report by an independent auditor that includes—

''(A) an opinion or a disclaimer of opinion that presents the assessment of the independent auditor with respect to the financial records of the Center, including whether such records are accurate and have been maintained in accordance with generally accepted accounting principles;

''(B) an assessment of the internal controls used by the Center that describes the scope of testing of the internal controls and the results of such testing; and

''(C) a compliance assessment that includes an opinion or a disclaimer of opinion as to whether the Center has complied with the terms and conditions of subsection (b); and

''(2) 'independent auditor' means an independent certified public accountant or independent licensed public accountant, certified or licensed by a regulatory authority of a State or a political subdivision of a State, who meets the standards specified in generally accepted accounting principles.''.

SEC. 9. EXEMPTION FROM AUTOMATIC STAY IN BANKRUPTCY CASES.

Section 362(b) of title 11, United States Code, is amended—

(1) in paragraph (27), by striking ''and'' at the end;

(2) in paragraph (28), by striking the period at the end and inserting ''; and''; and

(3) by inserting after paragraph (28) the following:

''(29) under subsection (a)(1) of this section, of any action by—

''(A) an amateur sports organization, as defined in section 220501(b) of title 36, to replace a national governing body, as defined in that section, under section 220528 of that title; or

''(B) the corporation, as defined in section 220501(b) of title 36, to revoke the certification of a national governing body, as defined in that section, under section 220521 of that title.''.

SEC. 10. ENHANCED CHILD ABUSE REPORTING.

Section 226(c)(9) of the Victims of Child Abuse Act of 1990 (34 U.S.C. 20341(c)(9)) is amended—

(1) by striking ''adult who is authorized'' and inserting the following: ''adult who—

''(A) is authorized'';

(2) in subparagraph (A), as so designated, by inserting ''or'' after the semicolon at the end; and

(3) by adding at the end the following:

''(B) is an employee or representative of the United States Center for SafeSport;''.

SEC. 11. COMMISSION ON THE STATE OF U.S. OLYMPICS AND PARALYMPICS.

(a) ESTABLISHMENT.—There is established within the legislative branch a commission, to be known as the ''Commission on the State of U.S. Olympics and Paralympics'' (referred to in this section as the ''Commission'').

(b) COMPOSITION.—

(1) IN GENERAL.—The Commission shall be composed of 16 members, of whom—

(A) 4 members shall be appointed by the chairman of the Committee on Commerce, Science, and Transportation of the Senate;

(B) 4 members shall be appointed by the ranking member of the Committee on Commerce, Science, and Transportation of the Senate;

(C) 4 members shall be appointed by the chairman of the Committee on Energy and Commerce of the House of Representatives; and

(D) 4 members shall be appointed by the ranking member of the Committee on Energy and Commerce of the House of Representatives.

(2) CO-CHAIRS.—Of the members of the Commission—

(A) 1 co-chair shall be designated by the chairman of the Committee on Commerce, Science, and Transportation of the Senate; and

(B) 1 co-chair shall be designated by the chairman of the Committee on Energy and Commerce of the House of Representatives.

(3) QUALIFICATIONS.—

(A) IN GENERAL.—Each member appointed to the Commission shall have the following qualifications:

(i) Experience in 1 or more of the following:

(I) Amateur, Olympic and Paralympic, or professional athletics.

(II) Elite athletic coaching.

(III) Public service relating to sports.

(IV) Professional advocacy for increased minority participation in sports.

(V) Olympic and Paralympic sports administration or professional sports administration.

(ii) Expertise in bullying prevention and the promotion of a healthy organizational culture.

(B) OLYMPIC OR PARALYMPIC ATHLETES.—Not fewer than 8 members appointed under paragraph (1) shall be current or former Olympic or Paralympic athletes.

(c) INITIAL MEETING.—Not later than 30 days after the date on which the last member is appointed under paragraph (1), the Commission shall hold an initial meeting.

(d) QUORUM.—11 members of the Commission shall constitute a quorum.

(e) NO PROXY VOTING.—Proxy voting by members of the Commission shall be prohibited.

(f) STAFF.—The co-chairs of the Commission shall appoint an executive director of the Commission, and such staff as appropriate, with compensation.

(g) PUBLIC HEARINGS.—The Commission shall hold 1 or more public hearings.

(h) TRAVEL EXPENSES.—Members of the Commission shall serve without pay, but shall receive travel expenses in accordance with sections 5702 and 5703 of title 5, United States Code.

(i) DUTIES OF COMMISSION.—

(1) STUDY.—

(A) IN GENERAL.—The Commission shall conduct a study on matters relating to the state of United States participation in the Olympic and Paralympic Games.

(B) MATTERS STUDIED.—The study under subparagraph (A) shall include—

(i) a review of the most recent reforms undertaken by the United States Olympic and Paralympic Committee;

(ii) a description of proposed reforms to the structure of the United States Olympic and Paralympic Committee;

(iii) an assessment as to whether the board of directors of the United States Olympic and Paralympic Committee includes diverse members, including athletes;

(iv) an assessment of United States athlete participation levels in the Olympic and Paralympic Games;

(v) a description of the status of any United States Olympic and Paralympic Committee licensing arrangement;

(vi) an assessment as to whether the United States is achieving the goals for the Olympic and Paralympic Games set by the United States Olympic and Paralympic Committee;

(vii) an analysis of the participation in amateur athletics of—

(I) women;

(II) disabled individuals; and

(III) minorities;

(viii) a description of ongoing efforts by the United States Olympic and Paralympic Committee to recruit the Olympic and Paralympic Games to the United States;

(ix) an evaluation of the functions of the national governing bodies (as defined in section 220501 of title 36, United States Code) and an analysis of the responsiveness of the national governing bodies to athletes with respect to the duties of the national governing bodies under section 220524(a)(3) of title 36, United States Code; and

(x) an assessment of the finances and the financial organization of the United States Olympic and Paralympic Committee.

(2) REPORT.—

(A) IN GENERAL.—Not later than 270 days after the date of the enactment of this Act, the Commission shall submit to Congress a report on the results of the study conducted under paragraph (1), including a detailed statement of findings, conclusions, recommendations, and suggested policy changes.

(B) PUBLIC AVAILABILITY.—The report required by subparagraph (A) shall be made available to the public on an internet website of the United States Government that is available to the public.

(j) POWERS OF COMMISSION.—

(1) SUBPOENA AUTHORITY.—The Commission may subpoena an individual the testimony of whom may be relevant to the purpose of the Commission.

(2) FURNISHING INFORMATION.—On request by the executive director of the Commission, the head of a Federal agency shall furnish information to the Commission.

(k) TERMINATION OF COMMISSION.—The Commission shall terminate 90 days after the date on which the Commission submits the report under subsection (i)(2).

(l) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated such sums as may be necessary to carry out this section.

SEC. 12. SEVERABILITY.

If any provision of this Act, or an amendment made by this Act, is determined to be unenforceable or invalid, the remaining provisions of this Act and the amendments made by this Act shall not be affected.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from California (Ms. BASS) and the gentleman from Pennsylvania (Mr. RESCHENTHALER) each will control 20 minutes.

The Chair recognizes the gentlewoman from California.

GENERAL LEAVE

Ms. BASS. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks and include extraneous material on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from California?

There was no objection.

Ms. BASS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of S. 2330, the Empowering Olympic, Paralympic, and Amateur Athletes Act of 2020, a bipartisan bill that restores integrity to the Olympic movement and provides much-needed protections to our country's amateur athletes in the wake of the Larry Nassar sexual abuse scandal.

S. 2330 was introduced after bipartisan investigations, launched in both the House and the Senate, revealed systemic failures within the Olympic community that contributed to widespread instances of sexual abuse of athletes, including minors.

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These include a lack of effective oversight of the U.S. Olympic and Paralympic Committee and amateur sports national governing bodies, the failure of these organizations to uphold their duty to protect athletes from abuse by failing to report allegations of wrongdoings to appropriate law enforcement authorities, and concealing these failures and neglecting to enact serious reforms.

S. 2330 addresses these issues through a series of governance and oversight reforms, including increasing the liability of the USOPC and NGB for failing to take appropriate action in response to allegations of abuse, providing congressional authority to dissolve the USOPC board and decertified NGBs, increasing the level of amateur athletes' representations on the USOPC board and NGB governing structures, and requiring the USOPC to establish clear procedures and reporting requirements to protect athletes.

Importantly, the bill also strengthens the work and independence of the Center for SafeSport, the nonprofit organization that is responsible for investigating allegations of sexual abuse against athletes. The bill requires USOPC to provide the Center for SafeSport $20 million in funding each year to cover its operating costs.

The bill also prevents potential conflicts of interest by prohibiting individuals who are employed by the USOPC or an NGB from serving the Center for SafeSport and limiting the ability of former employers and board members from serving.

S. 2330 is supported by the USOPC, the Center for SafeSport, and a coalition of hundreds of Olympic and

Paralympic athletes, coaches, sports leaders, and sexual abuse survivors.

The bill passed by the Senate by unanimous consent on August 4, 2020, and its companion bill, H.R. 7881, has bipartisan support here in the House as well.

I commend the work of Senators BLUMENTHAL and MORAN, as well as Representatives TED LIEU, JOHN CURTIS, DIANA DEGETTE, SUSAN BROOKS, ANN KUSTER, and MICHAEL BURGESS for their tireless work on this bill.

I urge all of my colleagues to vote in favor of this bill, and I reserve the balance of my time.

Mr. RESCHENTHALER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of S. 2330, the Empowering Olympic, Paralympic, and Amateur Athletes Act of 2020.

In 2016, we were shaken by the revelations of abuse that permeated USA Gymnastics and the Olympic community. While the blame for this abuse falls squarely at the feet of the predator, USA Gymnastics and the U.S. Olympic & Paralympic Committee also failed the victims.

In 2017, the U.S. Olympic Committee created the U.S. Center for SafeSport. SafeSport is an independent organization entrusted with responding to reports of abuse and misconduct within the Olympic Committee.

S. 2330 supports the work that SafeSport is doing and helps address the shortcomings in the committee that allowed the abuse to occur. One of the most important reforms in this bill is a requirement that athletes serve on the governing bodies that oversee their sports, ensuring that athletes finally get a seat at the table.

I thank Senator MORAN and the other Senators who investigated these issues and developed these important reforms.

I urge my colleagues to support this important piece of legislation.

Mr. Speaker, I have no further speakers, and I yield back the balance of my time.

Ms. BASS. Mr. Speaker, I again acknowledge the leadership and commitment of so many of my colleagues who worked in a bipartisan fashion on this important bill.

Mr. Speaker, I support S. 2330, and I yield back the balance of my time.

Ms. DEGETTE. Mr. Speaker, I rise today in support of the Empowering Olympic, Paralympic and Amateur Athletes Act.

The Olympics are meant to be a celebration. A coming together of our Nation's finest, who have given their all to represent us on the world's stage.

And yet, over the past several years, abuse allegations have filtered into every corner of the Olympic sports.

USOP—the very body that was created to care for our athletes—became more concerned about protecting its brand than the athletes themselves. We know now that USOPC and USA Gymnastics officials knew about the horrific sexual assault allegations brought against Larry Nassar, and still chose to ignore them.

It is long past time for a change.

Our Olympic athletes devote their entire lives to representing the United States of America. Today, Congress is making good on our promise to represent them.

This legislation includes my bill to form an independent, blue-ribbon commission to study and reform the Nation's top sport's governing body.

The 16-member independent commission would be made up of, at least, eight Olympic or Paralympic athletes and will be tasked with studying how the U.S. Olympic and Paralympic Committee operates, and provide Congress a list of recommendations to better protect the nation's top athletes.

A gold medal is not worth the lives that have been torn apart because of this.

I'm thrilled that we're passing this bill, but today's victory is only the first step towards much needed reform of the U.S. Olympic and Paralympic Committee.

I look forward to continuing to work with the USOPC, National Governing Bodies, and athletes across the nation so that we may strive towards a more resilient Team USA.

We must continue to find ways to give our athletes a voice in the process—and to ensure that it's putting their well-being above all else.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from California (Ms. BASS) that the House suspend the rules and pass the bill, S. 2330.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

CORRECTING THE ENROLLMENT OF S. 2330

Ms. BASS. Mr. Speaker, I ask unanimous consent to take from the Speaker's table the concurrent resolution (S. Con. Res. 46) to correct the enrollment of S. 2330, and ask for its immediate consideration in the House.

The Clerk read the title of the concurrent resolution.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from California?

There was no objection.

The text of the concurrent resolution is as follows:

S. CON. RES. 46

Resolved by the Senate (the House of Representatives concurring), That in the enrollment of S. 2330, an Act to amend the Ted Stevens Olympic and Amateur Sports Act to provide for congressional oversight of the board of directors of the United States Olympic and Paralympic Committee and to protect amateur athletes from emotional, physical, and sexual abuse, and for other purposes, the Secretary of the Senate shall—

(1) in subsection (b)(2)(D) of section 220504 of title 36, United States Code, as amended by section 6(b)(2) of the Act, strike ''percent'';

(2) in subsection (a)(1)(H) of section 220541 of title 36, United States Code, as added by section 8(a)(1)(B) of the Act, strike ''in a manner than'' and insert ''in a manner that'';

(3) in subsection (f)(4)(B) of section 220541 of title 36 United States Code, as added by section 8(a)(1)(E) of the Act, insert ''and the Committee on the Judiciary'' after ''the Committee on Energy and Commerce'';

(4) amend paragraph (1) of section 220541(g) of title 36, United States Code, as added by section 8(a)(1)(E) of the Act, to read as follows:

''(1) MANDATORY PAYMENTS.—

''(A) FISCAL YEAR 2021.—On January 4, 2021, the corporation shall make a mandatory payment of $20,000,000 to the Center for operating costs of the Center for fiscal year 2021.

''(B) SUBSEQUENT FISCAL YEARS.—For fiscal year 2022 and each fiscal year thereafter, the corporation shall make a mandatory payment of $20,000,000 to the Center not later than the close of business on the first regular business day in January.''; and

(5) in subsection (h)(2)(C)(iii) of section 220541 of title 36, United States Code, as added by section 8(a)(1)(E) of the Act, insert ''and the Committee on the Judiciary'' after ''the Committee on Energy and Commerce''.

The concurrent resolution was concurred in.

A motion to reconsider was laid on the table.

PROMOTING ALZHEIMER'S AWARENESS TO PREVENT ELDER ABUSE ACT

Ms. BASS. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 6813) to amend the Elder Abuse Prevention and Prosecution Act to improve the prevention of elder abuse and exploitation of individuals with Alzheimer's disease and related dementias.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 6813

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Promoting Alzheimer's Awareness to Prevent Elder Abuse Act''.

SEC. 2. ADDRESSING ALZHEIMER'S DISEASE IN BEST PRACTICES.

(a) IN GENERAL.—Section 101(b) of the Elder Abuse Prevention and Prosecution Act (34 U.S.C. 21711(b)) is amended—

(1) by redesignating subparagraphs (A), (B), and (C) of paragraph (2) as clauses (i), (ii), and (iii), respectively, and adjusting the margin accordingly;

(2) by redesignating paragraphs (1), (2), and (3) as subparagraphs (A), (B), and (C), respectively, and adjusting the margin accordingly;

(3) by striking ''Not later than'' and inserting the following:

''(1) IN GENERAL.—Not later than'';

(4) in paragraph (1)(B), as so redesignated—

(A) in clause (ii), by inserting '', including witnesses who have Alzheimer's disease and related dementias'' after ''other legal issues''; and

(B) in clause (iii), by striking ''elder abuse cases,'' and inserting ''elder abuse cases (including victims and witnesses who have Alzheimer's disease and related dementias),''; and

(5) by adding at the end the following:

''(2) TRAINING MATERIALS.—

''(A) IN GENERAL.—In creating or compiling replication guides and training materials under paragraph (1)(B), the Elder Justice Coordinator shall consult with the Secretary of Health and Human Services, State, local, and Tribal adult protective services, aging,

social, and human services agencies, Federal, State, local, and Tribal law enforcement agencies, and nationally recognized nonprofit associations with relevant expertise, as appropriate.

''(B) UPDATING.—The Elder Justice Coordinator shall—

''(i) review the best practices identified and replication guides and training materials created or compiled under paragraph (1)(B) to determine if the replication guides or training materials require updating; and

''(ii) perform any necessary updating of the replication guides or training materials.''.

(b) APPLICABILITY.—The amendments made by subsection (a) shall—

(1) take effect on the date of enactment of this Act; and

(2) apply on and after the date that is 1 year after the date of enactment of this Act.

SEC. 3. REPORT ON OUTREACH.

(a) IN GENERAL.—Section 101(c)(2) of the Elder Abuse Prevention and Prosecution Act (34 U.S.C. 21711(c)(2)) is amended—

(1) by redesignating subparagraphs (A) through (D) as clauses (i) through (iv), respectively, and adjusting the margin accordingly;

(2) by striking ''a report detailing'' and inserting the following: ''a report—

''(A) detailing''; and

(3) by adding at the end the following:

''(B) with respect to the report by the Attorney General, including a link to the publicly available best practices identified under subsection (b)(1)(B) and the replication guides and training materials created or compiled under such subsection.''.

(b) APPLICABILITY.—The amendments made by subsection (a) shall apply with respect to the report under section 101(c)(2) of the Elder Abuse Prevention and Prosecution Act (34 U.S.C. 21711(c)(2)) submitted during the second year beginning after the date of enactment of this Act, and each year thereafter.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from California (Ms. BASS) and the gentleman from Pennsylvania (Mr. RESCHENTHALER) each will control 20 minutes.

The Chair recognizes the gentlewoman from California.

GENERAL LEAVE

Ms. BASS. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks and include extraneous material on the bill under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from California?

There was no objection.

Ms. BASS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in strong support of H.R. 6813, the Promoting Alzheimer's Awareness to Prevent Elder Abuse Act. This bill requires the Justice Department's training materials to address treating, protecting, and caring for people living with Alzheimer's and related dementias.

More than 5 million Americans are currently living with Alzheimer's or dementia. One study estimates that over 50 percent of these individuals may experience some type of elder abuse. Neglect is the most often reported type of abuse, followed by financial exploitation.

Building upon the Elder Abuse Prevention and Prosecution Act of 2017, H.R. 6813 addresses the need for better training of law enforcement officers, first responders, social workers, prosecutors, and judges. This legislation would strengthen the best practices and training materials available to medical professionals and financial services personnel who interact with this special population.

Significantly, the bill would also establish a new requirement to address situations in which individuals living with Alzheimer's or dementia may be involved in a criminal case as a victim or a witness.

In addition, the bill requires greater collaboration and consultation between government agencies at the Federal, State, and local levels, as well as with nationally recognized nonprofit associations with relevant expertise.

According to one recent report, deaths attributed to Alzheimer's disease and dementia rose to more than 20 percent above normal this summer. In June alone, there were more than 61,000 dementia-related deaths, 10,000 more than the same period last year. Increased isolation, stress, and staff shortages at nursing homes are all likely contributing factors to the higher-than-normal death toll.

Our seniors living in long-term care facilities are particularly vulnerable and isolated given current physical distancing measures that limit contact with family members and other visits. Most of these residents have some form of cognitive impairment and are at an even greater risk of mistreatment or exploitation. This legislation would expand the quality and scope of dementia-specific training materials, leading to improved practices and processes to combat elder abuse and exploitation.

As this public health crisis continues, our senior citizens face even greater risk. This legislation addresses an important and timely need for this uniquely vulnerable population.

I thank Representative DEUTCH for introducing this legislation that has strong bipartisan support and for his leadership in expanding protections for our vulnerable citizens living with Alzheimer's and dementia.

Mr. Speaker, I ask my colleagues to join me in supporting this important bill, and I reserve the balance of my time.

Mr. RESCHENTHALER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I am glad that today the House is considering the Promoting Alzheimer's Awareness to Prevent Elder Abuse Act, which I introduced with fellow Judiciary Committee member Representative TED DEUTCH.

Elder abuse, which includes financial fraud, physical abuse, and neglect affects at least 10 percent of senior citizens each year. Seniors living with Alzheimer's and other forms of dementia are especially vulnerable to elder abuse.

It is estimated that up to 50 percent of these individuals fall prey to fraud, exploitation, and other harm. Often seniors suffering from these conditions have a harder time communicating with first responders and other professionals, which, in turn, makes it harder to provide help.

H.R. 6813 will help Americans struggling with Alzheimer's and dementia by equipping first responders and caregivers with essential tools to prevent and respond to incidents of elder abuse. Specifically, this legislation directs the Department of Justice to develop best practices for assisting professionals, including law enforcement, emergency personnel, and medical professionals who encounter and support people living with Alzheimer's and other forms of dementia.

I continue to hear from seniors in southwestern Pennsylvania about the strain COVID–19 has placed on their lives and the prevalence of virus-related scams. I hope this bill will alleviate some of those burdens.

Again, I thank my colleague, Representative TED DEUTCH, for working with me to help stop elder abuse and to protect our Nation's seniors. I urge my colleagues to support this legislation.

I reserve the balance of my time, Mr. Speaker.

Ms. BASS. Mr. Speaker, I yield 4 minutes to the gentleman from Florida (Mr. DEUTCH).

Mr. DEUTCH. Mr. Speaker, I thank my friend from California for yielding.

I stand in strong support of H.R. 6813, the Promoting Alzheimer's Awareness to Prevent Elder Abuse Act. This bill is as simple as it is bipartisan.

Too many of the folks who are charged with protecting older Americans don't have the specialized knowledge and training needed to assist people with Alzheimer's and other forms of dementia. This knowledge gap will be a growing problem as our Nation's population continues to age.

In 2019, there were about 5.8 million people in the United States who were living with Alzheimer's. By 2050, the population is estimated to grow to close to 14 million people. And while not all of those with dementia are seniors, 81 percent of people living with Alzheimer's in the United States are 75 years of age or older.

People living with Alzheimer's and other forms of dementia are especially vulnerable to the ongoing coronavirus pandemic, and they are frequent targets for fraud and other scams. This means more interactions between people with Alzheimer's and first responders, adult protective services, the courts, and others in the community.

Families and other caregivers know the challenges of dementia. These diseases steal so much from their loved ones, but caregivers step up every day to help people with dementia stay safe and stay healthy. Unfortunately, the strategies and caregiving practices that they use aren't known by others who are charged with preventing elder abuse and fraud.

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This bill will close that gap in knowledge.

The bipartisan Promoting Alzheimer's Awareness to Prevent Elder Abuse Act will ensure that first responders, court officers, and other social services personnel have access to the best practices and necessary training to assist people with Alzheimer's.

This bill will bring everyone together—the Department of Justice; Department of Health and Human Services; State, local, and Tribal adult protective services; law enforcement, aging, social, and human services agencies; and nonprofit associations—to develop best practices and training materials to get everyone on the same page to help.

By ensuring that everyone knows how to support people with Alzheimer's, we can better protect against fraud and abuse.

Mr. Speaker, I thank my colleague from Pennsylvania, Congressman RESCHENTHALER, for his strong work and strong support of this bill. We have built a strong, bipartisan coalition that supports this legislation.

Mr. Speaker, I also want to extend appreciation to the Alzheimer's Association for their expertise and for their advocacy. They have done so much to support people with Alzheimer's and their caregivers. This bill will put Federal Government support behind their important work. It will help to support people with Alzheimer's and other forms of dementia. It will help their caregivers who look out for this vulnerable population.

Mr. Speaker, I strongly urge passage of this bill.

Mr. RESCHENTHALER. Mr. Speaker, I reserve the balance of my time.

Ms. BASS. Mr. Speaker, I yield 2 minutes to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Mr. Speaker, I thank the gentlewoman from California (Ms. BASS) for yielding me the time.

I hope my time has not started running. We are trying to be COVID–19 safe.

Mr. Speaker, let me thank the sponsor of this bill, Mr. DEUTCH, and his bipartisan cosponsors, and indicate my strong support for H.R. 6813, Promoting Alzheimer's Awareness to Prevent Elder Abuse, and to let him know that this is something that I think is enormously important and is seen throughout our districts.

As I talk about this legislation, however, let me say what a pleasure it was for me to do a video to celebrate our virtual walk right in Houston, Texas, 2020 Walk to End Alzheimer's, where thousands will be walking in their front yards, they will be walking in backyards, they will be walking on trails, they will be walking in parks. They will be committed to ending Alzheimer's through the Houston Alzheimer's Association and the region.

Mr. Speaker, I want to thank them for their great leadership. I have joined them every year at the University of Houston. These are committed and dedicated caretakers and others who want to make sure that they keep seniors safe.

This bipartisan legislation strengthens the Elder Abuse Prevention and Prosecution Act passed by Congress in 2017 by providing for better collection and use of data on elder abuse and requiring the Department of Justice's Elder Justice coordinator to develop best practices and training materials for professionals treating, protecting, and caring for people living with Alzheimer's and related dementia.

This is an important initiative with a companion bill.

According to the National Council on Aging, seniors who have been abused have a 300 percent higher risk of death when compared to those who have not been mistreated. Combine that with COVID–19 and caretakers getting COVID–19 and sometimes strange persons coming in to take care of your loved one. This is an important initiative.

During the current pandemic, the health and safety of people living with Alzheimer's and other forms of dementia are at an even greater risk. Approximately 7 out of 10 residents in long-term facilities have some form of cognitive impairment, with 29 percent having mild impairment, 23 percent moderate impairment, and 19 percent severe impairment.

We know when the misguided recommendations came from the Federal Government that it was only elders that got COVID–19, we understood that, of course, that was not true, but we know COVID–19 was in nursing homes.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Ms. BASS. Mr. Speaker, I yield an additional 15 seconds to the gentlewoman from Texas.

Ms. JACKSON LEE. Mr. Speaker, so this is, of course, a very important initiative for helping to safeguard our elder population.

But more importantly, I want to say that we need to end Alzheimer's, or dementia, as we know it, and I join my colleagues in supporting this very important legislation.

I know Mr. DEUTCH's commitment to fighting Alzheimer's, ending it in our lifetime, providing a cure, and also to end elder abuse.

Mr. Speaker, I ask everyone to support H.R. 6813.

Mr. Speaker, as a senior member of the Committee on the Judiciary and as a cosponsor, I rise in strong support of H.R. 6813, the ''Promoting Alzheimer's Awareness to Prevent Elder Abuse Act,'' introduced by Congressman DEUTCH of Florida.

This bipartisan legislation strengthens the Elder Abuse Prevention and Prosecution Act passed by Congress in 2017, by providing for better collection and use of data on elder abuse and requiring the Department of Justice's Elder Justice Coordinator to develop best practices and training materials for professionals treating, protecting, and caring for people living with Alzheimer's and related dementias.

Companion legislation (S. 3703) passed the Senate on August 6, 2020.

Mr. Speaker, according to the National Council on Aging, seniors who have been abused have a 300 percent higher risk of death when compared to those who have not been mistreated.

During the current pandemic, the health and safety of people living with Alzheimer's and other forms of dementia are at even greater risk.

Approximately seven out of ten residents in long-term care facilities have some form of cognitive impairment, with 29 percent having mild impairment, 23 percent moderate impairment, and 19 percent severe impairment.

According to one study, over 50 percent of nursing home staff admitted to mistreating (e.g. physical violence, mental abuse, neglect) older patients within the prior year.

With current social isolation measures limiting contact with family members and other visitors, these individuals are at even greater risk of abuse and exploitation.

Several federal agencies currently collect elder abuse data on an ongoing basis. Two distinct data sets include the National Adult Mistreatment Report System (NAMRS) (which collects state-level adult protective services data) and the Financial Crimes Enforcement Network (FinCEN) (which collects data on suspected elder financial exploitation submitted by financial institutions).

Although many cases may go unreported, the National Adult Mistreatment Report System (NAMRS) (which collects state-level adult protective services data) reflects data on elder abuse cases reported to state and local authorities.

Based on the most currently reported data, neglect comprised the highest percentage across types of elder abuse, followed by financial exploitation.

Financial exploitation causes large economic losses for elders, families, businesses, and government programs, and one of the key factors that makes the elderly more susceptible to financial exploitation is cognitive decline.

According to data collected by the Financial Crimes Enforcement Network (FinCEN), financial exploitation lasts longer than average in cases where the targeted person has a diminished cognitive capacity.

Such person are particularly vulnerable to scams as their condition makes it more difficult for them to communicate the crimes to law enforcement or to seek critical assistance from first responders or other social services personnel.

People living with Alzheimer's or dementia often have difficulty understanding or explaining situations; and their behaviors may be misunderstood as uncooperative, disruptive or combative.

The Elder Abuse Prevention and Prosecution Act required the Justice Department to create training materials to help criminal justice, health care, and social services personnel assess and respond to elder abuse cases.

Under the Act, the Elder Justice Coordinator is responsible for evaluating training models to determine best practices and creating or compiling and making publicly available replication guides and training materials for law enforcement officers, first responders, social workers,

prosecutors, judges, individuals working in victim services, adult protective services, medical personnel, mental health personnel, financial services personnel, and any other individuals that encounter and support people living with Alzheimer's and other types of dementia.

The legislation before us builds upon existing requirements for training materials by requiring the Elder Justice Coordinator to engage in greater consultation with relevant entities and stakeholders.

H.R. 6813 would also require further training materials relating to victims and witnesses who have Alzheimer's disease and related dementias.

One study determined that a significant subset of individuals with dementia illnesses could reliably report on emotional events and were even able to report details of the event accurately and to recall the same event with the same accuracy after a short time delay.

Crime victims with dementia should be evaluated for their ability to remember emotional events in order to determine whether they can provide testimony about the criminal events.

This legislation would require the Elder Justice Coordinator to develop specific training materials for these types of cases.

The bill also aligns with the latest recommendations from the National Plan to Address Alzheimer's Disease, which includes disseminating information on abuse of this vulnerable population and educating law enforcement about interacting with these individuals.

Mr. Speaker, dementia-specific training materials will improve the quality of professionals' interactions with individuals living with Alzheimer's and other dementia, and will also help protect them from elder abuse and exploitation.

Mr. Speaker, in this time when the nation is being ravaged by the coronavirus pandemic, greater dissemination of best practices and improved training materials will help first responders, law enforcement, medical professionals and other individuals effectively interact with people living with Alzheimer's and other dementia who are targeted by fraud and in need.

I strongly support this legislation and urge all Members to join me in voting for its passage.

Mr. RESCHENTHALER. Mr. Speaker, in closing, I just wanted to again reiterate what an honor it was to work with my friend and colleague, Representative TED DEUTCH, on this important piece of legislation.

Mr. Speaker, I once again urge my colleagues to vote ''yes'' on H.R. 6813, and I yield back the balance of my time.

Ms. BASS. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, this issue touches millions of families across America who have a loved one living with Alzheimer's or dementia.

For this vulnerable population, there is far too great a risk of elder abuse, neglect, or financial exploitation, and the current pandemic has taken a tremendous toll. Across the country, residents of long-term care facilities are facing increased risk around COVID–19, as well as greater mortality rates.

Therefore, Mr. Speaker, I ask my colleagues to join me in supporting passage of H.R. 6813 today, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from California (Ms. BASS) that the House suspend the rules and pass the bill, H.R. 6813.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

AMERICA'S CONSERVATION ENHANCEMENT ACT

Mrs. DINGELL. Mr. Speaker, I move to suspend the rules and pass the bill (S. 3051) to improve protections for wildlife, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 3051

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''America's Conservation Enhancement Act''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.

TITLE I—WILDLIFE ENHANCEMENT, DISEASE, AND PREDATION

Sec. 101. Theodore Roosevelt Genius Prize for reducing human-predator conflict.
Sec. 102. Losses of livestock due to depredation by federally protected species.
Sec. 103. Depredation permits for black vultures and common ravens.
Sec. 104. Chronic Wasting Disease Task Force.
Sec. 105. Invasive species.
Sec. 106. North American Wetlands Conservation Act.
Sec. 107. National Fish and Wildlife Foundation Establishment Act.
Sec. 108. Modification of definition of sport fishing equipment under Toxic Substances Control Act.
Sec. 109. Reauthorization of Chesapeake Bay Program.
Sec. 110. Reauthorization of Chesapeake Bay Initiative Act of 1998.
Sec. 111. Chesapeake watershed investments for landscape defense.

TITLE II—NATIONAL FISH HABITAT CONSERVATION THROUGH PARTNERSHIPS

Sec. 201. Purpose.
Sec. 202. Definitions.
Sec. 203. National Fish Habitat Board.
Sec. 204. Fish Habitat Partnerships.
Sec. 205. Fish Habitat Conservation Projects.
Sec. 206. Technical and scientific assistance.
Sec. 207. Coordination with States and Indian Tribes.
Sec. 208. Interagency Operational Plan.
Sec. 209. Accountability and reporting.
Sec. 210. Effect of this title.
Sec. 211. Nonapplicability of Federal Advisory Committee Act.
Sec. 212. Funding.
Sec. 213. Prohibition against implementation of regulatory authority by Federal agencies through Partnerships.

TITLE III—MISCELLANEOUS

Sec. 301. Study to review conservation factors.
Sec. 302. Study and report on expenditures.
Sec. 303. Use of value of land for cost sharing.

TITLE I—WILDLIFE ENHANCEMENT, DISEASE, AND PREDATION

SEC. 101. THEODORE ROOSEVELT GENIUS PRIZE FOR REDUCING HUMAN-PREDATOR CONFLICT.

(a) IN GENERAL.—Section 7001(d) of the John D. Dingell, Jr. Conservation, Management, and Recreation Act (16 U.S.C. 742b note; Public Law 116–9) is amended—

(1) by striking ''paragraph (7)(A)'' each place such term appears and inserting ''paragraph (8)(A)'';

(2) by striking ''paragraph (7)(B)'' each place such term appears and inserting ''paragraph (8)(B)'';

(3) in paragraph (6)(C)(iv), by striking ''subparagraph (C)'' and inserting ''clause (iii)'';

(4) by redesignating paragraph (7) as paragraph (8);

(5) by inserting after paragraph (6) the following:

''(7) THEODORE ROOSEVELT GENIUS PRIZE FOR REDUCING HUMAN-PREDATOR CONFLICT.—

''(A) DEFINITIONS.—In this paragraph:

''(i) BOARD.—The term 'Board' means the Reducing Human-Predator Conflict Technology Advisory Board established by subparagraph (C)(i).

''(ii) PRIZE COMPETITION.—The term 'prize competition' means the Theodore Roosevelt Genius Prize for reducing human-predator conflict established under subparagraph (B).

''(B) AUTHORITY.—Not later than 180 days after the date of enactment of the America's Conservation Enhancement Act, the Secretary shall establish under section 24 of the Stevenson-Wydler Technology Innovation Act of 1980 (15 U.S.C. 3719) a prize competition, to be known as the 'Theodore Roosevelt Genius Prize for reducing human-predator conflict'—

''(i) to encourage technological innovation with the potential to advance the mission of the United States Fish and Wildlife Service with respect to reducing the frequency of human-predator conflict using nonlethal means; and

''(ii) to award 1 or more prizes annually for a technological advancement that promotes reducing human-predator conflict using nonlethal means, which may include the application and monitoring of tagging technologies.

''(C) ADVISORY BOARD.—

''(i) ESTABLISHMENT.—There is established an advisory board, to be known as the 'Reducing Human-Predator Conflict Technology Advisory Board'.

''(ii) COMPOSITION.—The Board shall be composed of not fewer than 9 members appointed by the Secretary, who shall provide expertise in—

''(I) predator-human interactions;

''(II) the habitats of large predators;

''(III) biology;

''(IV) technology development;

''(V) engineering;

''(VI) economics;

''(VII) business development and management; and

''(VIII) any other discipline, as the Secretary determines to be necessary to achieve the purposes of this paragraph.

''(iii) DUTIES.—Subject to clause (iv), with respect to the prize competition, the Board shall—

''(I) select a topic;

''(II) issue a problem statement;

''(III) advise the Secretary regarding any opportunity for technological innovation to reduce human-predator conflict using nonlethal means; and

''(IV) advise winners of the prize competition regarding opportunities to pilot and implement winning technologies in relevant fields, including in partnership with conservation organizations, Federal or State agencies, federally recognized Indian Tribes, private entities, and research institutions with expertise or interest relating to reducing human-predator conflict using nonlethal means.

''(iv) CONSULTATION.—In selecting a topic and issuing a problem statement for the prize competition under subclauses (I) and (II) of clause (iii), respectively, the Board shall consult widely with Federal and non-Federal stakeholders, including—

''(I) 1 or more Federal agencies with jurisdiction over the management of native wildlife species at risk due to conflict with human activities;

''(II) 1 or more State agencies with jurisdiction over the management of native wildlife species at risk due to conflict with human activities;

''(III) 1 or more State, regional, or local wildlife organizations, the mission of which relates to the management of native wildlife species at risk due to conflict with human activities; and

''(IV) 1 or more wildlife conservation groups, technology companies, research institutions, institutions of higher education, industry associations, or individual stakeholders with an interest in the management of native wildlife species at risk due to conflict with human activities.

''(v) REQUIREMENTS.—The Board shall comply with all requirements under paragraph (8)(A).

''(D) AGREEMENT WITH NATIONAL FISH AND WILDLIFE FOUNDATION.—

''(i) IN GENERAL.—The Secretary shall offer to enter into an agreement under which the National Fish and Wildlife Foundation shall administer the prize competition.

''(ii) REQUIREMENTS.—An agreement entered into under clause (i) shall comply with all requirements under paragraph (8)(B).

''(E) JUDGES.—

''(i) APPOINTMENT.—The Secretary shall appoint not fewer than 3 judges who shall, except as provided in clause (ii), select the 1 or more annual winners of the prize competition.

''(ii) DETERMINATION BY SECRETARY.—The judges appointed under clause (i) shall not select any annual winner of the prize competition if the Secretary makes a determination that, in any fiscal year, none of the technological advancements entered into the prize competition merits an award.

''(F) CONSULTATION WITH NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION.—The Secretary shall consult with the Secretary of Commerce, acting through the Administrator of the National Oceanic and Atmospheric Administration, in the case of a cash prize awarded under the prize competition for a technology that addresses conflict between humans and marine predators under the jurisdiction of the Secretary of Commerce, acting through the Administrator of the National Oceanic and Atmospheric Administration.

''(G) REPORT TO CONGRESS.—Not later than 60 days after the date on which a cash prize is awarded under this paragraph, the Secretary shall submit to the Committee on Environment and Public Works of the Senate and the Committee on Natural Resources of the House of Representatives a report on the prize competition that includes—

''(i) a statement by the Board that describes the activities carried out by the Board relating to the duties described in subparagraph (C)(iii);

''(ii) if the Secretary has entered into an agreement under subparagraph (D)(i), a statement by the National Fish and Wildlife Foundation that describes the activities carried out by the National Fish and Wildlife Foundation relating to the duties described in paragraph (8)(B); and

''(iii) a statement by 1 or more of the judges appointed under subparagraph (E) that explains the basis on which the winner of the cash prize was selected.

''(H) TERMINATION OF AUTHORITY.—The Board and all authority provided under this paragraph shall terminate on December 31, 2023.''; and

(6) in paragraph (8) (as redesignated)—

(A) in subparagraph (A), by striking ''or (6)(C)(i)'' and inserting ''(6)(C)(i), or (7)(C)(i)''; and

(B) in subparagraph (B)—

(i) by striking ''or (6)(D)(i)'' and inserting ''(6)(D)(i), or (7)(D)(i)''; and

(ii) in clause (i)(VII), by striking ''and (6)(E)'' and inserting ''(6)(E), and (7)(E)''.

(b) SENSE OF CONGRESS.—It is the sense of Congress that data collected from the tagging of predators can inform innovative management of those predators and innovative education activities to minimize human-predator conflict.

SEC. 102. LOSSES OF LIVESTOCK DUE TO DEPREDATION BY FEDERALLY PROTECTED SPECIES.

(a) DEFINITIONS.—In this section:

(1) DEPREDATION.—

(A) IN GENERAL.—The term ''depredation'' means actual death, injury, or destruction of livestock that is caused by a federally protected species.

(B) EXCLUSIONS.—The term ''depredation'' does not include damage to real or personal property other than livestock, including—

(i) damage to—

(I) other animals;

(II) vegetation;

(III) motor vehicles; or

(IV) structures;

(ii) diseases;

(iii) lost profits; or

(iv) consequential damages.

(2) FEDERALLY PROTECTED SPECIES.—The term ''federally protected species'' means a species that is or previously was protected under—

(A) the Act of June 8, 1940 (commonly known as the ''Bald and Golden Eagle Protection Act'') (54 Stat. 250, chapter 278; 16 U.S.C. 668 et seq.);

(B) the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.); or

(C) the Migratory Bird Treaty Act (16 U.S.C. 703 et seq.).

(3) INDIAN TRIBE.—The term ''Indian Tribe'' has the meaning given to the term ''Indian tribe'' in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304).

(4) LIVESTOCK.—

(A) IN GENERAL.—The term ''livestock'' means horses, mules and asses, rabbits, llamas, cattle, bison, swine, sheep, goats, poultry, bees, honey and beehives, or any other animal generally used for food or in the production of food or fiber.

(B) INCLUSION.—The term ''livestock'' includes guard animals actively engaged in the protection of livestock described in subparagraph (A).

(5) PROGRAM.—The term ''program'' means the grant program established under subsection (b)(1).

(6) SECRETARIES.—The term ''Secretaries'' means—

(A) the Secretary of the Interior, acting through the Director of the United States Fish and Wildlife Service; and

(B) the Secretary of Agriculture, acting through the Administrator of the Animal and Plant Health Inspection Service.

(b) GRANT PROGRAM FOR LOSSES OF LIVESTOCK DUE TO DEPREDATION BY FEDERALLY PROTECTED SPECIES.—

(1) IN GENERAL.—The Secretaries shall establish a program to provide grants to States and Indian Tribes to supplement amounts provided by States, Indian Tribes, or State agencies under 1 or more programs established by the States and Indian Tribes (including programs established after the date of enactment of this Act)—

(A) to assist livestock producers in carrying out—

(i) proactive and nonlethal activities to reduce the risk of livestock loss due to depredation by federally protected species occurring on—

(I) Federal, State, or private land within the applicable State; or

(II) land owned by, or held in trust for the benefit of, the applicable Indian Tribe; and

(ii) research relating to the activities described in clause (i); and

(B) to compensate livestock producers for livestock losses due to depredation by federally protected species occurring on—

(i) Federal, State, or private land within the applicable State; or

(ii) land owned by, or held in trust for the benefit of, the applicable Indian Tribe.

(2) ALLOCATION OF FUNDING.—

(A) REPORTS TO THE SECRETARIES.—Not later than September 30 of each year, a State or Indian Tribe desiring to receive a grant under the program shall submit to the Secretaries a report describing, for the 1-year period ending on that September 30, the losses of livestock due to depredation by federally protected species occurring on—

(i) Federal, State, or private land within the applicable State; or

(ii) land owned by, or held in trust for the benefit of, the applicable Indian Tribe.

(B) ALLOCATION.—The Secretaries shall allocate available funding to carry out this Act among States and Indian Tribes for a 1-year period ending on September 30 based on the losses described in the reports submitted for the previous 1-year period ending on September 30 under subparagraph (A).

(3) ELIGIBILITY.—To be eligible to receive a grant under paragraph (1), a State or Indian Tribe shall—

(A) designate an appropriate agency of the State or Indian Tribe to administer the 1 or more programs supplemented by the grant funds;

(B) establish 1 or more accounts to receive grant funds;

(C) maintain files of all claims received and paid under grant-funded programs, including supporting documentation; and

(D) submit to the Secretaries—

(i) annual reports that include—

(I) a summary of claims and expenditures under the program during the year; and

(II) a description of any action taken on the claims; and

(ii) such other reports as the Secretaries may require to assist the Secretaries in determining the effectiveness of assisted activities under this section.

(c) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) no State or Indian Tribe is required to participate in the program; and

(2) the program supplements, and does not replace or supplant, any State compensation programs for depredation.

(d) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $15,000,000 for each of fiscal years 2021 through 2025, of which—

(1) $5,000,000 shall be used to provide grants for the purposes described in subsection (b)(1)(A); and

(2) $10,000,000 shall be used to provide grants for the purpose described in subsection (b)(1)(B).

SEC. 103. DEPREDATION PERMITS FOR BLACK VULTURES AND COMMON RAVENS.

(a) IN GENERAL.—The Secretary of the Interior, acting through the Director of the United States Fish and Wildlife Service (referred to in this section as the ''Secretary''), may issue depredation permits to livestock producers authorizing takings of black vultures or common ravens otherwise prohibited by Federal law to prevent those vultures or common ravens from taking livestock during the calving season or lambing season.

(b) LIMITED TO AFFECTED STATES OR REGIONS.—The Secretary may issue permits under subsection (a) only to livestock producers in States and regions in which livestock producers are affected or have been affected in the previous year by black vultures or common ravens, as determined by Secretary.

(c) REPORTING.—The Secretary shall require, as a condition of a permit under subsection (a), that the permit holder shall report to the appropriate enforcement agencies the takings of black vultures or common ravens pursuant to the permit.

SEC. 104. CHRONIC WASTING DISEASE TASK FORCE.

(a) DEFINITIONS.—In this section:

(1) CERVID.—The term ''cervid'' means any species within the family Cervidae.

(2) CHRONIC WASTING DISEASE.—The term ''chronic wasting disease'' means the animal disease afflicting deer, elk, and moose populations that—

(A) is a transmissible disease of the nervous system resulting in distinctive lesions in the brain; and

(B) belongs to the group of diseases known as transmissible spongiform encephalopathies, which group includes scrapie, bovine spongiform encephalopathy, and Creutzfeldt-Jakob disease.

(3) SECRETARIES.—The term ''Secretaries'' means the Secretary of Agriculture, acting through the Administrator of the Animal and Plant Health Inspection Service, and the Secretary of the Interior, acting through the Director of the United States Geological Survey and the Director of the United States Fish and Wildlife Service, acting jointly.

(b) ESTABLISHMENT.—

(1) IN GENERAL.—The Secretaries shall establish within the United States Fish and Wildlife Service a task force, to be known as the ''Chronic Wasting Disease Task Force'' (referred to in this subsection as the ''Task Force'') after the completion of the study required by subsection (c).

(2) DUTIES.—The Task Force shall—

(A) collaborate with foreign governments to share research, coordinate efforts, and discuss best management practices to reduce, minimize, prevent, or eliminate chronic wasting disease in the United States;

(B) develop recommendations, including recommendations based on findings of the study conducted under subsection (c), and a set of best practices regarding—

(i) the interstate coordination of practices to prevent the new introduction of chronic wasting disease;

(ii) the prioritization and coordination of the future study of chronic wasting disease, based on evolving research needs;

(iii) ways to leverage the collective resources of Federal, State, and local agencies, Indian Tribes, and foreign governments, and resources from private, nongovernmental entities, to address chronic wasting disease in the United States and along the borders of the United States; and

(iv) any other area where containment or management efforts relating to chronic wasting disease may differ across jurisdictions; and

(C) develop, from the recommendations developed under subparagraph (B), an action plan that gives States, the Federal Government, Indian Tribes, and the farmed cervid industry specific recommendations to ensure consistent and coordinated management and focused, prioritized research to stop the spread of and mitigate the impacts of chronic wasting disease.

(3) MEMBERSHIP.—

(A) IN GENERAL.—The Task Force shall be composed of—

(i) 1 representative of the United States Fish and Wildlife Service with experience in chronic wasting disease, to be appointed by the Secretary of the Interior (referred to in this subsection as the ''Secretary'');

(ii) 1 representative of the United States Geological Survey;

(iii) 2 representatives of the Department of Agriculture with experience in chronic wasting disease, to be appointed by the Secretary of Agriculture—

(I) 1 of whom shall have expertise in cervid health research; and

(II) 1 of whom shall have expertise in wildlife management;

(iv) in the case of each State in which chronic wasting disease among elk, mule deer, white-tailed deer, or moose has been reported to the appropriate State agency, not more than 2 representatives, to be nominated by the Governor of the State—

(I) not more than 1 of whom shall be a representative of the State agency with jurisdiction over wildlife management or wildlife disease in the State; and

(II) in the case of a State with a farmed cervid program or economy, not more than 1 of whom shall be a representative of the State agency with jurisdiction over farmed cervid regulation in the State;

(v) in the case of each State in which chronic wasting disease among elk, mule deer, white-tailed deer, or moose has not been documented, but that has carried out measures to prevent the introduction of chronic wasting disease among those species, not more than 2 representatives, to be nominated by the Governor of the State;

(vi) not more than 2 representatives from an Indian Tribe or Tribal organization chosen in a process determined, in consultation with Indian Tribes, by the Secretary; and

(vii) not more than 5 nongovernmental members with relevant expertise appointed, after the date on which the members are first appointed under clauses (i) through (vi), by a majority vote of the State representatives appointed under clause (iv).

(B) EFFECT.—Nothing in this paragraph requires a State to participate in the Task Force.

(4) CO-CHAIRS.—The Co-Chairs of the Task Force shall be—

(A) the Federal representative described in paragraph (3)(A)(i);

(B) 1 of the Federal representatives described in paragraph (3)(A)(iii); and

(C) 1 State representative appointed under paragraph (3)(A)(iv), to be selected by a majority vote of those State representatives.

(5) DATE OF INITIAL APPOINTMENT.—

(A) IN GENERAL.—The members of the Task Force shall be appointed not later than 180 days after the date on which the study is completed under subsection (c).

(B) NOTIFICATION.—On appointment of the members of the Task Force, the Co-Chairs of the Task Force shall notify the Chairs and Ranking Members of the Committees on Environment and Public Works and Agriculture, Nutrition, and Forestry of the Senate and Natural Resources and Agriculture of the House of Representatives.

(6) VACANCIES.—Any vacancy in the members appointed to the Task Force—

(A) shall not affect the power or duty of the Task Force; and

(B) shall be filled not later than 30 days after the date of the vacancy.

(7) MEETINGS.—The Task Force shall convene—

(A) not less frequently than twice each year; and

(B) at such time and place, and by such means, as the Co-Chairs of the Task Force determine to be appropriate, which may include the use of remote conference technology.

(8) INTERSTATE ACTION PLAN.—

(A) IN GENERAL.—Not later than 1 year after the date on which the members of the Task Force are appointed, the Task Force shall submit to the Secretaries, and the heads of the State agencies with jurisdiction over wildlife disease and farmed cervid regulation of each State with a representative on the Task Force, the interstate action plan developed by the Task Force under paragraph (2)(C).

(B) COOPERATIVE AGREEMENTS.—

(i) IN GENERAL.—To the maximum extent practicable, the Secretaries, any other applicable Federal agency, and each applicable State may enter into a cooperative agreement to fund necessary actions under the interstate action plan submitted under subparagraph (A).

(ii) TARGET DATE.—The Secretaries shall make the best effort of the Secretaries to enter into any cooperative agreement under clause (i) not later than 180 days after the date of submission of the interstate action plan under subparagraph (A).

(C) MATCHING FUNDS.—

(i) IN GENERAL.—Subject to clause (ii), for each fiscal year, the Secretaries may provide funds to carry out an interstate action plan through a cooperative agreement under subparagraph (B) in the amount of funds provided by the applicable States.

(ii) LIMITATION.—The amount provided by the United States Fish and Wildlife Service under clause (i) for a fiscal year shall be not greater than $5,000,000.

(9) REPORTS.—Not later than September 30 of the first full fiscal year after the date on which the first members of the Task Force are appointed, and each September 30 thereafter, the Task Force shall submit to the Secretaries, and the heads of the State agencies with jurisdiction over wildlife disease and farmed cervid regulation of each State with a representatives on the Task Force, a report describing—

(A) progress on the implementation of actions identified in the interstate action plan submitted under paragraph (8)(A), including the efficacy of funding under the cooperative agreement entered into under paragraph (8)(B);

(B) updated resource requirements that are needed to reduce and eliminate chronic wasting disease in the United States;

(C) any relevant updates to the recommended best management practices included in the interstate action plan submitted under paragraph (8)(B) to reduce or eliminate chronic wasting disease;

(D) new research findings and emerging research needs relating to chronic wasting disease; and

(E) any other relevant information.

(c) CHRONIC WASTING DISEASE TRANSMISSION IN CERVIDAE RESOURCE STUDY.—

(1) DEFINITION OF ACADEMY.—In this subsection, the term ''Academy'' means the National Academy of Sciences.

(2) STUDY.—

(A) IN GENERAL.—The Secretaries shall enter into an arrangement with the Academy under which the Academy shall conduct, and submit to the Secretaries a report describing the findings of, a special resource study to identify the predominant pathways and mechanisms of the transmission of chronic wasting disease in wild, captive, and farmed populations of cervids in the United States.

(B) REQUIREMENTS.—The arrangement under subparagraph (A) shall provide that the actual expenses incurred by the Academy in conducting the study under subparagraph (A) shall be paid by the Secretaries, subject to the availability of appropriations.

(3) CONTENTS OF THE STUDY.—The study under paragraph (2) shall—

(A) with respect to wild, captive, and farmed populations of cervids in the United States, identify—

(i)(I) to the extent possible, the pathways and mechanisms for the transmission of chronic wasting disease within live cervid populations and cervid products, which may include pathways and mechanisms for transmission from Canada;

(II) the infection rates for each pathway and mechanism identified under subclause (I); and

(III) the relative frequency of transmission of each pathway and mechanism identified under subclause (I);

(ii)(I) anthropogenic and environmental factors contributing to new chronic wasting disease emergence events;

(II) the development of geographical areas with increased chronic wasting disease prevalence; and

(III) the overall geographical patterns of chronic wasting disease distribution;

(iii) significant gaps in current scientific knowledge regarding the transmission pathways and mechanisms identified under clause (i)(I) and potential prevention, detection, and control methods identified under clause (v);

(iv) for prioritization the scientific research projects that will address the knowledge gaps identified under clause (iii), based on the likelihood that a project will contribute significantly to the prevention or control of chronic wasting disease; and

(v) potential prevention, detection, or control measures, practices, or technologies to be used to mitigate the transmission and spread of chronic wasting disease in wild, captive, and farmed populations of cervids in the United States;

(B) assess the effectiveness of the potential prevention, detection, or control measures, practices, or technologies identified under subparagraph (A)(v); and

(C) review and compare science-based best practices, standards, and guidance regarding the prevention, detection, and management of chronic wasting disease in wild, captive, and farmed populations of cervids in the United States that have been developed by—

(i) the National Chronic Wasting Disease Herd Certification Program of the Animal and Plant Health Inspection Service;

(ii) the National Wildlife Research Center of the Animal and Plant Health Inspection Service;

(iii) the United States Geological Survey;

(iv) State wildlife and agricultural agencies, in the case of practices, standards, and guidance that provide practical, science-based recommendations to State and Federal agencies for minimizing or eliminating the risk of transmission of chronic wasting disease in the United States; and

(v) industry or academia, in the case of any published guidance on practices that provide practical, science-based recommendations to cervid producers for minimizing or eliminating the risk of transmission of chronic wasting disease within or between herds.

(4) DEADLINE.—The study under paragraph (2) shall be completed not later than 180 days after the date on which funds are first made available for the study.

(5) DATA SHARING.—The Secretaries shall share with the Academy, as necessary to conduct the study under paragraph (2), subject to the avoidance of a violation of a privacy or confidentiality requirement and the protection of confidential or privileged commercial, financial, or proprietary information, data and access to databases and research information on chronic wasting disease under the jurisdiction of—

(A) the Animal and Plant Health Inspection Service; and

(B) the United States Geological Survey.

(6) REPORT.—Not later than 60 days after the date of completion of the study, the Secretaries shall submit to the Committee on Agriculture, Nutrition, and Forestry, the Committee on Energy and Natural Resources, and the Committee on Environment and Public Works of the Senate and the Committee on Agriculture and the Committee on Natural Resources of the House of Representatives a report that describes—

(A) the findings of the study; and

(B) any conclusions and recommendations that the Secretaries determine to be appropriate.

(d) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section—

(1) for the period of fiscal years 2021 through 2025, $5,000,000 to the Secretary of the Interior, acting through the Director of the United States Fish and Wildlife Service, to carry out administrative activities under subsection (b);

(2) for fiscal year 2021, $1,200,000 to the Secretary of the Interior, acting through the Director of the United States Geological Survey, to carry out activities to fund research under subsection (c); and

(3) for fiscal year 2021, $1,200,000 to the Secretary of Agriculture, acting through the Administrator of the Animal and Plant Health Inspection Service, to carry out activities to fund research under subsection (c).

SEC. 105. INVASIVE SPECIES.

Section 10 of the Fish and Wildlife Coordination Act (16 U.S.C. 666c–1) is amended—

(1) in subsection (c)(2)—

(A) in subparagraph (A)—

(i) by redesignating clauses (i) and (ii) as clauses (ii) and (iii), respectively; and

(ii) by inserting before clause (ii) (as so redesignated) the following:

''(i) relevant Federal agencies;'';

(B) by redesignating subparagraphs (B) and (C) as subparagraphs (C) and (D), respectively; and

(C) by inserting after subparagraph (A) the following:

''(B) in consultation with stakeholders, including nongovernmental organizations and industry;''; and

(2) by adding at the end the following:

''(p) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section for each of fiscal years 2021 through 2025—

''(1) $2,500,000 to the Secretary of the Army, acting through the Chief of Engineers; and

''(2) $2,500,000 to the Secretary of the Interior.''.

SEC. 106. NORTH AMERICAN WETLANDS CONSERVATION ACT.

Section 7(c) of the North American Wetlands Conservation Act (16 U.S.C. 4406(c)) is amended by striking ''not to exceed—'' in the matter preceding paragraph (1) and all that follows through paragraph (5) and inserting ''not to exceed $60,000,000 for each of fiscal years 2021 through 2025.''.

SEC. 107. NATIONAL FISH AND WILDLIFE FOUNDATION ESTABLISHMENT ACT.

(a) BOARD OF DIRECTORS OF FOUNDATION.—

(1) IN GENERAL.—Section 3 of the National Fish and Wildlife Foundation Establishment Act (16 U.S.C. 3702) is amended—

(A) in subsection (b)—

(i) by striking paragraph (2) and inserting the following:

''(2) APPOINTMENT OF DIRECTORS.—After consulting with the Secretary of Commerce and considering the recommendations submitted by the Board, the Secretary of the Interior shall appoint 28 Directors who, to the maximum extent practicable, shall—

''(A) be knowledgeable and experienced in matters relating to the conservation of fish, wildlife, or other natural resources; and

''(B) represent a balance of expertise in ocean, coastal, freshwater, and terrestrial resource conservation.''; and

(ii) by striking paragraph (3) and inserting the following:

''(3) TERMS.—Each Director (other than a Director described in paragraph (1)) shall be appointed for a term of 6 years.''; and

(B) in subsection (g)(2)—

(i) in subparagraph (A), by striking ''(A) Officers and employees may not be appointed until the Foundation has sufficient funds to pay them for their service. Officers'' and inserting the following:

''(A) IN GENERAL.—Officers''; and

(ii) by striking subparagraph (B) and inserting the following:

''(B) EXECUTIVE DIRECTOR.—The Foundation shall have an Executive Director who shall be—

''(i) appointed by, and serve at the direction of, the Board as the chief executive officer of the Foundation; and

''(ii) knowledgeable and experienced in matters relating to fish and wildlife conservation.''.

(2) CONFORMING AMENDMENT.—Section 4(a)(1)(B) of the North American Wetlands Conservation Act (16 U.S.C. 4403(a)(1)(B)) is amended by striking ''Secretary of the Board'' and inserting ''Executive Director of the Board''.

(b) RIGHTS AND OBLIGATIONS OF FOUNDATION.—Section 4 of the National Fish and Wildlife Foundation Establishment Act (16 U.S.C. 3703) is amended—

(1) in subsection (c)—

(A) by striking ''(c) POWERS.—To carry out its purposes under'' and inserting the following:

''(c) POWERS.—

''(1) IN GENERAL.—To carry out the purposes described in'';

(B) by redesignating paragraphs (1) through (11) as subparagraphs (A) through (K), respectively, and indenting appropriately;

(C) in subparagraph (D) (as redesignated by subparagraph (B)), by striking ''that are insured by an agency or instrumentality of the United States'' and inserting ''at 1 or more financial institutions that are members of the Federal Deposit Insurance Corporation or the Securities Investment Protection Corporation'';

(D) in subparagraph (E) (as redesignated by subparagraph (B)), by striking ''paragraph (3) or (4)'' and inserting ''subparagraph (C) or (D)'';

(E) in subparagraph (J) (as redesignated by subparagraph (B)), by striking ''and'' at the end;

(F) by striking subparagraph (K) (as redesignated by subparagraph (B)) and inserting the following:

''(K) to receive and administer restitution and community service payments, amounts

for mitigation of impacts to natural resources, and other amounts arising from legal, regulatory, or administrative proceedings, subject to the condition that the amounts are received or administered for purposes that further the conservation and management of fish, wildlife, plants, and other natural resources; and

''(L) to do acts necessary to carry out the purposes of the Foundation.''; and

(G) by striking the undesignated matter at the end and inserting the following:

''(2) TREATMENT OF REAL PROPERTY.—

''(A) IN GENERAL.—For purposes of this Act, an interest in real property shall be treated as including easements or other rights for preservation, conservation, protection, or enhancement by and for the public of natural, scenic, historic, scientific, educational, inspirational, or recreational resources.

''(B) ENCUMBERED REAL PROPERTY.—A gift, devise, or bequest may be accepted by the Foundation even though the gift, devise, or bequest is encumbered, restricted, or subject to beneficial interests of private persons if any current or future interest in the gift, devise, or bequest is for the benefit of the Foundation.

''(3) SAVINGS CLAUSE.—The acceptance and administration of amounts by the Foundation under paragraph (1)(K) does not alter, supersede, or limit any regulatory or statutory requirement associated with those amounts.'';

(2) by striking subsections (f) and (g); and

(3) by redesignating subsections (h) and (i) as subsections (f) and (g), respectively.

(c) AUTHORIZATION OF APPROPRIATIONS.—Section 10 of the National Fish and Wildlife Foundation Establishment Act (16 U.S.C. 3709) is amended—

(1) in subsection (a), by striking paragraph (1) and inserting the following:

''(1) IN GENERAL.—There are authorized to be appropriated to carry out this Act for each of fiscal years 2021 through 2025—

''(A) $15,000,000 to the Secretary of the Interior;

''(B) $5,000,000 to the Secretary of Agriculture; and

''(C) $5,000,000 to the Secretary of Commerce.'';

(2) in subsection (b)—

(A) by striking paragraph (1) and inserting the following:

''(1) AMOUNTS FROM FEDERAL AGENCIES.—

''(A) IN GENERAL.—In addition to the amounts authorized to be appropriated under subsection (a), Federal departments, agencies, or instrumentalities are authorized to provide funds to the Foundation through Federal financial assistance grants and cooperative agreements, subject to the condition that the amounts are used for purposes that further the conservation and management of fish, wildlife, plants, and other natural resources in accordance with this Act.

''(B) ADVANCES.—Federal departments, agencies, or instrumentalities may advance amounts described in subparagraph (A) to the Foundation in a lump sum without regard to when the expenses for which the amounts are used are incurred.

''(C) MANAGEMENT FEES.—The Foundation may assess and collect fees for the management of amounts received under this paragraph.'';

(B) in paragraph (2)—

(i) in the paragraph heading, by striking ''FUNDS'' and inserting ''AMOUNTS'';

(ii) by striking ''shall be used'' and inserting ''may be used''; and

(iii) by striking ''and State and local government agencies'' and inserting '', State and local government agencies, and other entities''; and

(C) by adding at the end the following:

''(3) ADMINISTRATION OF AMOUNTS.—

''(A) IN GENERAL.—In entering into contracts, agreements, or other partnerships pursuant to this Act, a Federal department, agency, or instrumentality shall have discretion to waive any competitive process applicable to the department, agency, or instrumentality for entering into contracts, agreements, or partnerships with the Foundation if the purpose of the waiver is—

''(i) to address an environmental emergency resulting from a natural or other disaster; or

''(ii) as determined by the head of the applicable Federal department, agency, or instrumentality, to reduce administrative expenses and expedite the conservation and management of fish, wildlife, plants, and other natural resources.

''(B) REPORTS.—The Foundation shall include in the annual report submitted under section 7(b) a description of any use of the authority under subparagraph (A) by a Federal department, agency, or instrumentality in that fiscal year.''; and

(3) by adding at the end the following:

''(d) USE OF GIFTS, DEVISES, OR BEQUESTS OF MONEY OR OTHER PROPERTY.—Any gifts, devises, or bequests of amounts or other property, or any other amounts or other property, transferred to, deposited with, or otherwise in the possession of the Foundation pursuant to this Act, may be made available by the Foundation to Federal departments, agencies, or instrumentalities and may be accepted and expended (or the disposition of the amounts or property directed), without further appropriation, by those Federal departments, agencies, or instrumentalities, subject to the condition that the amounts or property be used for purposes that further the conservation and management of fish, wildlife, plants, and other natural resources.''.

(d) LIMITATION ON AUTHORITY.—Section 11 of the National Fish and Wildlife Foundation Establishment Act (16 U.S.C. 3710) is amended by inserting ''exclusive'' before ''authority''.

SEC. 108. MODIFICATION OF DEFINITION OF SPORT FISHING EQUIPMENT UNDER TOXIC SUBSTANCES CONTROL ACT.

(a) PROHIBITION.—During the 5-year period beginning on the date of enactment of this Act, the Administrator of the Environmental Protection Agency shall not take any action to regulate the lead content of sport fishing equipment or sport fishing equipment components under the Toxic Substances Control Act (15 U.S.C. 2601 et seq.).

(b) DEFINITION OF SPORT FISHING EQUIPMENT.—In this section, the term ''sport fishing equipment'' means any sport fishing equipment (as such term is defined in section 4162(a) of the Internal Revenue Code of 1986) the sale of which is subject to the tax imposed by section 4161(a) of such Code (determined without regard to any exemptions from such tax provided by section 4162 or 4221 or any other provision of such Code).

SEC. 109. REAUTHORIZATION OF CHESAPEAKE BAY PROGRAM.

Section 117 of the Federal Water Pollution Control Act (33 U.S.C. 1267) is amended by striking subsection (j) and inserting the following:

''(j) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section—

''(1) for fiscal year 2021, $90,000,000;

''(2) for fiscal year 2022, $90,500,000;

''(3) for fiscal year 2023, $91,000,000;

''(4) for fiscal year 2024, $91,500,000; and

''(5) for fiscal year 2025, $92,000,000.''.

SEC. 110. REAUTHORIZATION OF CHESAPEAKE BAY INITIATIVE ACT OF 1998.

Section 502(c) of the Chesapeake Bay Initiative Act of 1998 (Public Law 105–312) is amended by striking ''2019'' and inserting ''2025''.

SEC. 111. CHESAPEAKE WATERSHED INVESTMENTS FOR LANDSCAPE DEFENSE.

(a) DEFINITIONS.—In this section:

(1) CHESAPEAKE BAY AGREEMENTS.—The term ''Chesapeake Bay agreements'' means the formal, voluntary agreements—

(A) executed to achieve the goal of restoring and protecting the Chesapeake Bay watershed ecosystem and the living resources of the Chesapeake Bay watershed ecosystem; and

(B) signed by the Chesapeake Executive Council.

(2) CHESAPEAKE BAY PROGRAM.—The term ''Chesapeake Bay program'' means the program directed by the Chesapeake Executive Council in accordance with the Chesapeake Bay agreements.

(3) CHESAPEAKE BAY WATERSHED.—The term ''Chesapeake Bay watershed'' means the region that covers—

(A) the Chesapeake Bay;

(B) the portions of the States of Delaware, Maryland, New York, Pennsylvania, Virginia, and West Virginia that drain into the Chesapeake Bay; and

(C) the District of Columbia.

(4) CHESAPEAKE EXECUTIVE COUNCIL.—The term ''Chesapeake Executive Council'' means the council comprised of—

(A) the Governors of each of the States of Delaware, Maryland, New York, Pennsylvania, Virginia, and West Virginia;

(B) the Mayor of the District of Columbia;

(C) the Chair of the Chesapeake Bay Commission; and

(D) the Administrator of the Environmental Protection Agency.

(5) CHESAPEAKE WILD PROGRAM.—The term ''Chesapeake WILD program'' means the nonregulatory program established by the Secretary under subsection (b)(1).

(6) GRANT PROGRAM.—The term ''grant program'' means the Chesapeake Watershed Investments for Landscape Defense grant program established by the Secretary under subsection (c)(1).

(7) RESTORATION AND PROTECTION ACTIVITY.—The term ''restoration and protection activity'' means an activity carried out for the conservation, stewardship, and enhancement of habitat for fish and wildlife—

(A) to preserve and improve ecosystems and ecological processes on which the fish and wildlife depend; and

(B) for use and enjoyment by the public.

(8) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior, acting through the Director of the United States Fish and Wildlife Service.

(b) PROGRAM ESTABLISHMENT.—

(1) ESTABLISHMENT.—Not later than 180 days after the date of enactment of this Act, the Secretary shall establish a nonregulatory program, to be known as the ''Chesapeake Watershed Investments for Landscape Defense program''.

(2) PURPOSES.—The purposes of the Chesapeake WILD program are—

(A) coordinating restoration and protection activities among Federal, State, local, and regional entities and conservation partners throughout the Chesapeake Bay watershed;

(B) engaging other agencies and organizations to build a broader range of partner support, capacity, and potential funding for projects in the Chesapeake Bay watershed;

(C) carrying out coordinated restoration and protection activities, and providing for technical assistance, throughout the Chesapeake Bay watershed—

(i) to sustain and enhance restoration and protection activities;

(ii) to improve and maintain water quality to support fish and wildlife, habitats of fish and wildlife, and drinking water for people;

(iii) to sustain and enhance water management for volume and flood damage mitigation improvements to benefit fish and wildlife habitat;

(iv) to improve opportunities for public access and recreation in the Chesapeake Bay watershed consistent with the ecological needs of fish and wildlife habitat;

(v) to facilitate strategic planning to maximize the resilience of natural ecosystems and habitats under changing watershed conditions;

(vi) to engage the public through outreach, education, and citizen involvement to increase capacity and support for coordinated restoration and protection activities in the Chesapeake Bay watershed;

(vii) to sustain and enhance vulnerable communities and fish and wildlife habitat;

(viii) to conserve and restore fish, wildlife, and plant corridors; and

(ix) to increase scientific capacity to support the planning, monitoring, and research activities necessary to carry out coordinated restoration and protection activities.

(3) DUTIES.—In carrying out the Chesapeake WILD program, the Secretary shall—

(A) draw on existing plans for the Chesapeake Bay watershed, or portions of the Chesapeake Bay watershed, including the Chesapeake Bay agreements, and work in consultation with applicable management entities, including Chesapeake Bay program partners, such as the Federal Government, State and local governments, the Chesapeake Bay Commission, and other regional organizations, as appropriate, to identify, prioritize, and implement restoration and protection activities within the Chesapeake Bay watershed;

(B) adopt a Chesapeake Bay watershed-wide strategy that—

(i) supports the implementation of a shared set of science-based restoration and protection activities developed in accordance with subparagraph (A); and

(ii) targets cost-effective projects with measurable results; and

(C) establish the grant program in accordance with subsection (c).

(4) COORDINATION.—In establishing the Chesapeake WILD program, the Secretary shall consult, as appropriate, with—

(A) the heads of Federal agencies, including—

(i) the Administrator of the Environmental Protection Agency;

(ii) the Administrator of the National Oceanic and Atmospheric Administration;

(iii) the Chief of the Natural Resources Conservation Service;

(iv) the Chief of Engineers;

(v) the Director of the United States Geological Survey;

(vi) the Secretary of Transportation;

(vii) the Chief of the Forest Service; and

(viii) the head of any other applicable agency;

(B) the Governors of each of the States of Delaware, Maryland, New York, Pennsylvania, Virginia, and West Virginia and the Mayor of the District of Columbia;

(C) fish and wildlife joint venture partnerships; and

(D) other public agencies and organizations with authority for the planning and implementation of conservation strategies in the Chesapeake Bay watershed.

(c) GRANTS AND TECHNICAL ASSISTANCE.—

(1) CHESAPEAKE WILD GRANT PROGRAM.—To the extent that funds are made available to carry out this subsection, the Secretary shall establish and carry out, as part of the Chesapeake WILD program, a voluntary grant and technical assistance program, to be known as the ''Chesapeake Watershed Investments for Landscape Defense grant program'', to provide competitive matching grants of varying amounts and technical assistance to eligible entities described in paragraph (2) to carry out activities described in subsection (b)(2).

(2) ELIGIBLE ENTITIES.—The following entities are eligible to receive a grant and technical assistance under the grant program:

(A) A State.

(B) The District of Columbia.

(C) A unit of local government.

(D) A nonprofit organization.

(E) An institution of higher education as such term is defined in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a)).

(F) Any other entity that the Secretary determines to be appropriate in accordance with the criteria established under paragraph (3).

(3) CRITERIA.—The Secretary, in consultation with officials and entities described in subsection (b)(4), shall establish criteria for the grant program to help ensure that activities funded under this subsection—

(A) accomplish 1 or more of the purposes described in subsection (b)(2); and

(B) advance the implementation of priority actions or needs identified in the Chesapeake Bay watershed-wide strategy adopted under subsection (b)(3)(B).

(4) COST SHARING.—

(A) DEPARTMENT OF THE INTERIOR SHARE.—The Department of the Interior share of the cost of a project funded under the grant program shall not exceed 50 percent of the total cost of the project, as determined by the Secretary.

(B) NON-DEPARTMENT OF THE INTERIOR SHARE.—

(i) IN GENERAL.—The non-Department of the Interior share of the cost of a project funded under the grant program may be provided in cash or in the form of an in-kind contribution of services or materials.

(ii) OTHER FEDERAL FUNDING.—Non-Department of the Interior Federal funds may be used for not more than 25 percent of the total cost of a project funded under the grant program.

(5) ADMINISTRATION.—The Secretary may enter into an agreement to manage the grant program with an organization that offers grant management services.

(d) REPORTING.—Not later than 180 days after the date of enactment of this Act, and annually thereafter, the Secretary shall submit to Congress a report describing the implementation of this section, including a description of each project that has received funding under this section.

(e) AUTHORIZATION OF APPROPRIATIONS.—

(1) IN GENERAL.—There is authorized to be appropriated to carry out this section $15,000,000 for each of fiscal years 2021 through 2025.

(2) SUPPLEMENT, NOT SUPPLANT.—Funds made available under paragraph (1) shall supplement, and not supplant, funding for other activities conducted by the Secretary in the Chesapeake Bay watershed.

TITLE II—NATIONAL FISH HABITAT CONSERVATION THROUGH PARTNERSHIPS

SEC. 201. PURPOSE.

The purpose of this title is to encourage partnerships among public agencies and other interested persons to promote fish conservation—

(1) to achieve measurable habitat conservation results through strategic actions of Fish Habitat Partnerships that lead to better fish habitat conditions and increased fishing opportunities by—

(A) improving ecological conditions;

(B) restoring natural processes; or

(C) preventing the decline of intact and healthy systems;

(2) to establish a consensus set of national conservation strategies as a framework to guide future actions and investment by Fish Habitat Partnerships;

(3) to broaden the community of support for fish habitat conservation by—

(A) increasing fishing opportunities;

(B) fostering the participation of local communities, especially young people in local communities, in conservation activities; and

(C) raising public awareness of the role healthy fish habitat play in the quality of life and economic well-being of local communities;

(4) to fill gaps in the National Fish Habitat Assessment and the associated database of the National Fish Habitat Assessment—

(A) to empower strategic conservation actions supported by broadly available scientific information; and

(B) to integrate socioeconomic data in the analysis to improve the lives of humans in a manner consistent with fish habitat conservation goals; and

(5) to communicate to the public and conservation partners—

(A) the conservation outcomes produced collectively by Fish Habitat Partnerships; and

(B) new opportunities and voluntary approaches for conserving fish habitat.

SEC. 202. DEFINITIONS.

In this title:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Commerce, Science, and Transportation and the Committee on Environment and Public Works of the Senate; and

(B) the Committee on Natural Resources of the House of Representatives.

(2) BOARD.—The term ''Board'' means the National Fish Habitat Board established by section 203.

(3) DIRECTOR.—The term ''Director'' means the Director of the United States Fish and Wildlife Service.

(4) ENVIRONMENTAL PROTECTION AGENCY ASSISTANT ADMINISTRATOR.—The term ''Environmental Protection Agency Assistant Administrator'' means the Assistant Administrator for Water of the Environmental Protection Agency.

(5) INDIAN TRIBE.—The term ''Indian Tribe'' has the meaning given to the term ''Indian tribe'' in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304).

(6) NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION ASSISTANT ADMINISTRATOR.—The term ''National Oceanic and Atmospheric Administration Assistant Administrator'' means the Assistant Administrator for Fisheries of the National Oceanic and Atmospheric Administration.

(7) PARTNERSHIP.—The term ''Partnership'' means an entity designated by Congress as a Fish Habitat Partnership under section 204.

(8) REAL PROPERTY INTEREST.—The term ''real property interest'' means an ownership interest in—

(A) land; or

(B) water (including water rights).

(9) MARINE FISHERIES COMMISSIONS.—The term ''Marine Fisheries Commissions'' means—

(A) the Atlantic States Marine Fisheries Commission;

(B) the Gulf States Marine Fisheries Commission; and

(C) the Pacific States Marine Commission.

(10) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.

(11) STATE.—The term ''State'' means each of the several States, Puerto Rico, American Samoa, Guam, the Northern Mariana Islands, the United States Virgin Islands, and the District of Columbia.

(12) STATE AGENCY.—The term ''State agency'' means—

(A) the fish and wildlife agency of a State; and

(B) any department or division of a department or agency of a State that manages in the public trust the inland or marine fishery resources of the State or sustains the habitat for those fishery resources pursuant to State law or the constitution of the State.

SEC. 203. NATIONAL FISH HABITAT BOARD.

(a) ESTABLISHMENT.—

(1) FISH HABITAT BOARD.—There is established a board, to be known as the ''National Fish Habitat Board'', whose duties are—

(A) to promote, oversee, and coordinate the implementation of this title;

(B) to establish national goals and priorities for fish habitat conservation;

(C) to recommend to Congress entities for designation as Partnerships; and

(D) to review and make recommendations regarding fish habitat conservation projects.

(2) MEMBERSHIP.—The Board shall be composed of 26 members, of whom—

(A) 1 shall be a representative of the Department of the Interior;

(B) 1 shall be a representative of the United States Geological Survey;

(C) 1 shall be a representative of the Department of Commerce;

(D) 1 shall be a representative of the Department of Agriculture;

(E) 1 shall be a representative of the Association of Fish and Wildlife Agencies;

(F) 4 shall be representatives of State agencies, 1 of whom shall be nominated by a regional association of fish and wildlife agencies from each of the Northeast, Southeast, Midwest, and Western regions of the United States;

(G) 2 shall be representatives of either—

(i) Indian Tribes in the State of Alaska; or

(ii) Indian Tribes in States other than the State of Alaska;

(H) 1 shall be a representative of either—

(i) the Regional Fishery Management Councils established under section 302 of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1852); or

(ii) a representative of the Marine Fisheries Commissions;

(I) 1 shall be a representative of the Sport Fishing and Boating Partnership Council;

(J) 7 shall be representatives selected from at least one from each of the following:

(i) the recreational sportfishing industry;

(ii) the commercial fishing industry;

(iii) marine recreational anglers;

(iv) freshwater recreational anglers;

(v) habitat conservation organizations; and

(vi) science-based fishery organizations;

(K) 1 shall be a representative of a national private landowner organization;

(L) 1 shall be a representative of an agricultural production organization;

(M) 1 shall be a representative of local government interests involved in fish habitat restoration;

(N) 2 shall be representatives from different sectors of corporate industries, which may include—

(i) natural resource commodity interests, such as petroleum or mineral extraction;

(ii) natural resource user industries; and

(iii) industries with an interest in fish and fish habitat conservation; and

(O) 1 shall be an individual in a leadership position in the private sector or landowner representative of an active partnership.

(3) COMPENSATION.—A member of the Board shall serve without compensation.

(4) TRAVEL EXPENSES.—A member of the Board may be allowed travel expenses, including per diem in lieu of subsistence, at rates authorized for an employee of an agency under subchapter I of chapter 57 of title 5, United States Code, while away from the home or regular place of business of the member in the performance of the duties of the Board.

(b) APPOINTMENT AND TERMS.—

(1) IN GENERAL.—Except as otherwise provided in this section, a member of the Board described in any of subparagraphs (F) through (O) of subsection (a)(2) shall serve for a term of 3 years.

(2) INITIAL BOARD MEMBERSHIP.—

(A) IN GENERAL.—The initial Board shall consist of representatives as described in subparagraphs (A) through (F) of subsection (a)(2).

(B) REMAINING MEMBERS.—Not later than 60 days after the date of enactment of this Act, the representatives of the initial Board under subparagraph (A) shall appoint the remaining members of the Board described in subparagraphs (H) through (O) of subsection (a)(2).

(C) TRIBAL REPRESENTATIVES.—Not later than 60 days after the enactment of this Act, the Secretary shall provide to the Board a recommendation of not fewer than three Tribal representatives, from which the Board shall appoint one representative pursuant to subparagraph (G) of subsection (a)(2).

(3) STAGGERED TERMS.—Of the members described in subsection (a)(2)(J) initially appointed to the Board—

(A) two shall be appointed for a term of 1 year;

(B) two shall be appointed for a term of 2 years; and

(C) three shall be appointed for a term of 3 years.

(4) VACANCIES.—

(A) IN GENERAL.—A vacancy of a member of the Board described in subparagraph (H), (I), (J), (K), (L), (M), (N), or (O) of subsection (a)(2) shall be filled by an appointment made by the remaining members of the Board.

(B) TRIBAL REPRESENTATIVES.—Following a vacancy of a member of the Board described in subparagraph (G) of subsection (a)(2), the Secretary shall recommend to the Board a list of not fewer than three Tribal representatives, from which the remaining members of the Board shall appoint a representative to fill the vacancy.

(5) CONTINUATION OF SERVICE.—An individual whose term of service as a member of the Board expires may continue to serve on the Board until a successor is appointed.

(6) REMOVAL.—If a member of the Board described in any of subparagraphs (H) through (O) of subparagraph (a)(2) misses three consecutive regularly scheduled Board meetings, the members of the Board may—

(A) vote to remove that member; and

(B) appoint another individual in accordance with paragraph (4).

(c) CHAIRPERSON.—

(1) IN GENERAL.—The representative of the Association of Fish and Wildlife Agencies appointed under subsection (a)(2)(E) shall serve as Chairperson of the Board.

(2) TERM.—The Chairperson of the Board shall serve for a term of 3 years.

(d) MEETINGS.—

(1) IN GENERAL.—The Board shall meet—

(A) at the call of the Chairperson; but

(B) not less frequently than twice each calendar year.

(2) PUBLIC ACCESS.—All meetings of the Board shall be open to the public.

(e) PROCEDURES.—

(1) IN GENERAL.—The Board shall establish procedures to carry out the business of the Board, including—

(A) a requirement that a quorum of the members of the Board be present to transact business;

(B) a requirement that no recommendations may be adopted by the Board, except by the vote of two-thirds of all members;

(C) procedures for establishing national goals and priorities for fish habitat conservation for the purposes of this title;

(D) procedures for designating Partnerships under section 204; and

(E) procedures for reviewing, evaluating, and making recommendations regarding fish habitat conservation projects.

(2) QUORUM.—A majority of the members of the Board shall constitute a quorum.

SEC. 204. FISH HABITAT PARTNERSHIPS.

(a) AUTHORITY TO RECOMMEND.—The Board may recommend to Congress the designation of Fish Habitat Partnerships in accordance with this section.

(b) PURPOSES.—The purposes of a Partnership shall be—

(1) to work with other regional habitat conservation programs to promote cooperation and coordination to enhance fish populations and fish habitats;

(2) to engage local and regional communities to build support for fish habitat conservation;

(3) to involve diverse groups of public and private partners;

(4) to develop collaboratively a strategic vision and achievable implementation plan that is scientifically sound;

(5) to leverage funding from sources that support local and regional partnerships;

(6) to use adaptive management principles, including evaluation of project success and functionality;

(7) to develop appropriate local or regional habitat evaluation and assessment measures and criteria that are compatible with national habitat condition measures; and

(8) to implement local and regional priority projects that improve conditions for fish and fish habitat.

(c) CRITERIA FOR DESIGNATION.—An entity seeking to be designated by Congress as a Partnership shall—

(1) submit to the Board an application at such time, in such manner, and containing such information as the Board may reasonably require; and

(2) demonstrate to the Board that the entity has—

(A) a focus on promoting the health of important fish and fish habitats;

(B) an ability to coordinate the implementation of priority projects that support the goals and national priorities set by the Board that are within the Partnership boundary;

(C) a self-governance structure that supports the implementation of strategic priorities for fish habitat;

(D) the ability to develop local and regional relationships with a broad range of entities to further strategic priorities for fish and fish habitat;

(E) a strategic plan that details required investments for fish habitat conservation that addresses the strategic fish habitat priorities of the Partnership and supports and meets the strategic priorities of the Board;

(F) the ability to develop and implement fish habitat conservation projects that address strategic priorities of the Partnership and the Board; and

(G) the ability to develop fish habitat conservation priorities based on sound science and data, the ability to measure the effectiveness of fish habitat projects of the Partnership, and a clear plan as to how Partnership science and data components will be integrated with the overall Board science and data effort.

(d) REQUIREMENTS FOR RECOMMENDATION TO CONGRESS.—The Board may recommend to Congress for designation an application for a Partnership submitted under subsection (c) if the Board determines that the applicant—

(1) meets the criteria described in subsection (c)(2);

(2) identifies representatives to provide support and technical assistance to the Partnership from a diverse group of public and private partners, which may include State or local governments, nonprofit entities, Indian Tribes, and private individuals, that are focused on conservation of fish habitats to achieve results across jurisdictional boundaries on public and private land;

(3) is organized to promote the health of important fish species and important fish habitats, including reservoirs, natural lakes, coastal and marine environments, coral reefs, and estuaries;

(4) identifies strategic fish and fish habitat priorities for the Partnership area in the form of geographical focus areas or key stressors or impairments to facilitate strategic planning and decision making;

(5) is able to address issues and priorities on a nationally significant scale;

(6) includes a governance structure that—

(A) reflects the range of all partners; and

(B) promotes joint strategic planning and decision making by the applicant;

(7) demonstrates completion of, or significant progress toward the development of, a strategic plan to address declines in fish populations, rather than simply treating symptoms, in accordance with the goals and national priorities established by the Board; and

(8) promotes collaboration in developing a strategic vision and implementation program that is scientifically sound and achievable.

(e) REPORT TO CONGRESS.—

(1) IN GENERAL.—Not later than February 1 of the first fiscal year beginning after the date of enactment of this Act and each February 1 thereafter, the Board shall develop and submit to the appropriate congressional committees an annual report, to be entitled ''Report to Congress on Future Fish Habitat Partnerships and Modifications'', that—

(A) identifies each entity that—

(i) meets the requirements described in subsection (d); and

(ii) the Board recommends to Congress for designation as a Partnership;

(B) describes any proposed modifications to a Partnership previously designated by Congress under subsection (f);

(C) with respect to each entity recommended for designation as a Partnership, describes, to the maximum extent practicable—

(i) the purpose of the recommended Partnership; and

(ii) how the recommended Partnership fulfills the requirements described in subsection (d).

(2) PUBLIC AVAILABILITY; NOTIFICATION.—The Board shall—

(A) make the report publicly available, including on the internet; and

(B) provide to the appropriate congressional committees and the State agency of any State included in a recommended Partnership area written notification of the public availability of the report.

(f) DESIGNATION OR MODIFICATION OF PARTNERSHIP.—Congress shall have the exclusive authority to designate or modify a Partnership.

(g) EXISTING PARTNERSHIPS.—

(1) DESIGNATION REVIEW.—Not later than 5 years after the date of enactment of this Act, any partnership receiving Federal funds as of the date of enactment of this Act shall be subject to a designation review by Congress in which Congress shall have the opportunity to designate the partnership under subsection (f).

(2) INELIGIBILITY FOR FEDERAL FUNDS.—A partnership referred to in paragraph (1) that Congress does not designate as described in that paragraph shall be ineligible to receive Federal funds under this title.

SEC. 205. FISH HABITAT CONSERVATION PROJECTS.

(a) SUBMISSION TO BOARD.—Not later than March 31 of each year, each Partnership shall submit to the Board a list of priority fish habitat conservation projects recommended by the Partnership for annual funding under this title.

(b) RECOMMENDATIONS BY BOARD.—Not later than July 1 of each year, the Board shall submit to the Secretary a priority list of fish habitat conservation projects that includes a description, including estimated costs, of each project that the Board recommends that the Secretary approve and fund under this title for the following fiscal year.

(c) CRITERIA FOR PROJECT SELECTION.—The Board shall select each fish habitat conservation project recommended to the Secretary under subsection (b) after taking into consideration, at a minimum, the following information:

(1) A recommendation of the Partnership that is, or will be, participating actively in implementing the fish habitat conservation project.

(2) The capabilities and experience of project proponents to implement successfully the proposed project.

(3) The extent to which the fish habitat conservation project—

(A) fulfills a local or regional priority that is directly linked to the strategic plan of the Partnership and is consistent with the purpose of this title;

(B) addresses the national priorities established by the Board;

(C) is supported by the findings of the habitat assessment of the Partnership or the Board, and aligns or is compatible with other conservation plans;

(D) identifies appropriate monitoring and evaluation measures and criteria that are compatible with national measures;

(E) provides a well-defined budget linked to deliverables and outcomes;

(F) leverages other funds to implement the project;

(G) addresses the causes and processes behind the decline of fish or fish habitats; and

(H) includes an outreach or education component that includes the local or regional community.

(4) The availability of sufficient non-Federal funds to match Federal contributions for the fish habitat conservation project, as required by subsection (e).

(5) The extent to which the fish habitat conservation project—

(A) will increase fish populations in a manner that leads to recreational fishing opportunities for the public;

(B) will be carried out through a cooperative agreement among Federal, State, and local governments, Indian Tribes, and private entities;

(C) increases public access to land or water for fish and wildlife-dependent recreational opportunities;

(D) advances the conservation of fish and wildlife species that have been identified by a State agency as species of greatest conservation need;

(E) where appropriate, advances the conservation of fish and fish habitats under the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1801 et seq.) and other relevant Federal law and State wildlife action plans; and

(F) promotes strong and healthy fish habitats so that desired biological communities are able to persist and adapt.

(6) The substantiality of the character and design of the fish habitat conservation project.

(d) LIMITATIONS.—

(1) REQUIREMENTS FOR EVALUATION.—No fish habitat conservation project may be recommended by the Board under subsection (b) or provided financial assistance under this title unless the fish habitat conservation project includes an evaluation plan designed using applicable Board guidance—

(A) to appropriately assess the biological, ecological, or other results of the habitat protection, restoration, or enhancement activities carried out using the assistance;

(B) to reflect appropriate changes to the fish habitat conservation project if the assessment substantiates that the fish habitat conservation project objectives are not being met;

(C) to identify improvements to existing fish populations, recreational fishing opportunities, and the overall economic benefits for the local community of the fish habitat conservation project; and

(D) to require the submission to the Board of a report describing the findings of the assessment.

(2) ACQUISITION AUTHORITIES.—

(A) IN GENERAL.—A State, local government, or other non-Federal entity is eligible to receive funds for the acquisition of real property from willing sellers under this title if the acquisition ensures—

(i) public access for fish and wildlife-dependent recreation; or

(ii) a scientifically based, direct enhancement to the health of fish and fish populations, as determined by the Board.

(B) STATE AGENCY APPROVAL.—

(i) IN GENERAL.—All real property interest acquisition projects funded under this title must be approved by the State agency in the State in which the project is occurring.

(ii) PROHIBITION.—The Board may not recommend, and the Secretary may not provide any funding for, any real property interest acquisition that has not been approved by the State agency.

(C) ASSESSMENT OF OTHER AUTHORITIES.—The Board may not recommend, and the Secretary may not provide any funding under this title for, any real property interest acquisition unless the Partnership that recommended the project has conducted a project assessment, submitted with the funding request and approved by the Board, to demonstrate all other Federal, State, and local authorities for the acquisition of real property have been exhausted.

(D) RESTRICTIONS.—A real property interest may not be acquired pursuant to a fish habitat conservation project by a State, local government, or other non-Federal entity conducted with funds provided under this title, unless—

(i) the owner of the real property authorizes the State, local government, or other non-Federal entity to acquire the real property; and

(ii) the Secretary and the Board determine that the State, local government, or other non-Federal entity would benefit from undertaking the management of the real property being acquired because that is in accordance with the goals of a Partnership.

(e) NON-FEDERAL CONTRIBUTIONS.—

(1) IN GENERAL.—Except as provided in paragraphs (2) and (4), no fish habitat conservation project may be recommended by the Board under subsection (b) or provided financial assistance under this title unless at least 50 percent of the cost of the fish habitat conservation project will be funded with non-Federal funds.

(2) NON-FEDERAL SHARE.—Such non-Federal share of the cost of a fish habitat conservation project—

(A) may not be derived from another Federal grant program; and

(B) may include in-kind contributions and cash.

(3) SPECIAL RULE FOR INDIAN TRIBES.—Notwithstanding paragraph (1) or any other provision of law, any funds made available to an Indian Tribe pursuant to this title may be considered to be non-Federal funds for the purpose of paragraph (1).

(4) WAIVER AUTHORITY.—The Secretary, in consultation with the Secretary of Commerce with respect to marine or estuarine projects, may waive the application of paragraph (2)(A) with respect to a State or an Indian Tribe, or otherwise reduce the portion of the non-Federal share of the cost of an activity required to be paid by a State or an Indian Tribe under paragraph (1), if the Secretary determines that the State or Indian Tribe does not have sufficient funds not derived from another Federal grant program to pay such non-Federal share, or portion of the non-Federal share, without the use of loans.

(f) APPROVAL.—

(1) IN GENERAL.—Not later than 90 days after the date of receipt of the recommended priority list of fish habitat conservation projects under subsection (b), and subject to subsection (d) and based, to the maximum extent practicable, on the criteria described in subsection (c), the Secretary, after consulting with the Secretary of Commerce on marine or estuarine projects, shall approve or reject any fish habitat conservation project recommended by the Board.

(2) FUNDING.—If the Secretary approves a fish habitat conservation project under paragraph (1), the Secretary shall use amounts made available to carry out this title to provide funds to carry out the fish habitat conservation project.

(3) NOTIFICATION.—If the Secretary rejects under paragraph (1) any fish habitat conservation project recommended by the Board, not later than 90 days after the date of receipt of the recommendation, the Secretary shall provide to the Board, the appropriate Partnership, and the appropriate congressional committees a written statement of the reasons that the Secretary rejected the fish habitat conservation project.

SEC. 206. TECHNICAL AND SCIENTIFIC ASSISTANCE.

(a) IN GENERAL.—The Director, the National Oceanic and Atmospheric Administration Assistant Administrator, the Environmental Protection Agency Assistant Administrator, and the Director of the United States Geological Survey, in coordination with the Forest Service and other appropriate Federal departments and agencies, may provide scientific and technical assistance to Partnerships, participants in fish habitat conservation projects, and the Board.

(b) INCLUSIONS.—Scientific and technical assistance provided under subsection (a) may include—

(1) providing technical and scientific assistance to States, Indian Tribes, regions, local communities, and nongovernmental organizations in the development and implementation of Partnerships;

(2) providing technical and scientific assistance to Partnerships for habitat assessment, strategic planning, and prioritization;

(3) supporting the development and implementation of fish habitat conservation projects that are identified as high priorities by Partnerships and the Board;

(4) supporting and providing recommendations regarding the development of science-based monitoring and assessment approaches for implementation through Partnerships;

(5) supporting and providing recommendations for a national fish habitat assessment;

(6) ensuring the availability of experts to assist in conducting scientifically based evaluation and reporting of the results of fish habitat conservation projects; and

(7) providing resources to secure State agency scientific and technical assistance to support Partnerships, participants in fish habitat conservation projects, and the Board.

SEC. 207. COORDINATION WITH STATES AND INDIAN TRIBES.

The Secretary shall provide a notice to, and cooperate with, the appropriate State agency or Tribal agency, as applicable, of each State and Indian Tribe within the boundaries of which an activity is planned to be carried out pursuant to this title, including notification, by not later than 30 days before the date on which the activity is implemented.

SEC. 208. INTERAGENCY OPERATIONAL PLAN.

Not later than 1 year after the date of enactment of this Act, and every 5 years thereafter, the Director, in cooperation with the National Oceanic and Atmospheric Administration Assistant Administrator, the Environmental Protection Agency Assistant Administrator, the Director of the United States Geological Survey, and the heads of other appropriate Federal departments and agencies (including, at a minimum, those agencies represented on the Board) shall develop an interagency operational plan that describes—

(1) the functional, operational, technical, scientific, and general staff, administrative, and material needs for the implementation of this title; and

(2) any interagency agreements between or among Federal departments and agencies to address those needs.

SEC. 209. ACCOUNTABILITY AND REPORTING.

(a) REPORTING.—

(1) IN GENERAL.—Not later than 5 years after the date of enactment of this Act, and every 5 years thereafter, the Board shall submit to the appropriate congressional committees a report describing the progress of this title.

(2) CONTENTS.—Each report submitted under paragraph (1) shall include—

(A) an estimate of the number of acres, stream miles, or acre-feet, or other suitable measures of fish habitat, that was maintained or improved by Partnerships under this title during the 5-year period ending on the date of submission of the report;

(B) a description of the public access to fish habitats established or improved under this title during that 5-year period;

(C) a description of the improved opportunities for public recreational fishing achieved under this title; and

(D) an assessment of the status of fish habitat conservation projects carried out with funds provided under this title during that period, disaggregated by year, including—

(i) a description of the fish habitat conservation projects recommended by the Board under section 205(b);

(ii) a description of each fish habitat conservation project approved by the Secretary under section 205(f), in order of priority for funding;

(iii) a justification for—

(I) the approval of each fish habitat conservation project; and

(II) the order of priority for funding of each fish habitat conservation project;

(iv) a justification for any rejection of a fish habitat conservation project recommended by the Board under section 205(b) that was based on a factor other than the criteria described in section 205(c); and

(v) an accounting of expenditures by Federal, State, or local governments, Indian Tribes, or other entities to carry out fish habitat conservation projects under this title.

(b) STATUS AND TRENDS REPORT.—Not later than December 31, 2021, and every 5 years thereafter, the Board shall submit to the appropriate congressional committees a report that includes—

(1) a status of all Partnerships designated under this title;

(2) a description of the status of fish habitats in the United States as identified by designated Partnerships; and

(3) enhancements or reductions in public access as a result of—

(A) the activities of the Partnerships; or

(B) any other activities carried out pursuant to this title.

SEC. 210. EFFECT OF THIS TITLE.

(a) WATER RIGHTS.—Nothing in this title—

(1) establishes any express or implied reserved water right in the United States for any purpose;

(2) affects any water right in existence on the date of enactment of this Act;

(3) preempts or affects any State water law or interstate compact governing water; or

(4) affects any Federal or State law in existence on the date of enactment of the Act regarding water quality or water quantity.

(b) AUTHORITY TO ACQUIRE WATER RIGHTS OR RIGHTS TO PROPERTY.—Only a State, local government, or other non-Federal entity may acquire, under State law, water rights or rights to property with funds made available through section 212.

(c) STATE AUTHORITY.—Nothing in this title—

(1) affects the authority, jurisdiction, or responsibility of a State to manage, control, or regulate fish and wildlife under the laws and regulations of the State; or

(2) authorizes the Secretary to control or regulate within a State the fishing or hunting of fish and wildlife.

(d) EFFECT ON INDIAN TRIBES.—Nothing in this title abrogates, abridges, affects, modifies, supersedes, or alters any right of an Indian Tribe recognized by treaty or any other means, including—

(1) an agreement between the Indian Tribe and the United States;

(2) Federal law (including regulations);

(3) an Executive order; or

(4) a judicial decree.

(e) ADJUDICATION OF WATER RIGHTS.—Nothing in this title diminishes or affects the ability of the Secretary to join an adjudication of rights to the use of water pursuant to subsection (a), (b), or (c) of section 208 of the Departments of State, Justice, Commerce, and The Judiciary Appropriation Act, 1953 (43 U.S.C. 666).

(f) DEPARTMENT OF COMMERCE AUTHORITY.—Nothing in this title affects the authority, jurisdiction, or responsibility of the Department of Commerce to manage, control, or regulate fish or fish habitats under the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1801 et seq.).

(g) EFFECT ON OTHER AUTHORITIES.—

(1) PRIVATE PROPERTY PROTECTION.—Nothing in this title permits the use of funds made available to carry out this title to acquire real property or a real property interest without the written consent of each owner of the real property or real property interest, respectively.

(2) MITIGATION.—Nothing in this title authorizes the use of funds made available to carry out this title for fish and wildlife mitigation purposes under—

(A) the Federal Water Pollution Control Act (33 U.S.C. 1251 et seq.);

(B) the Fish and Wildlife Coordination Act (16 U.S.C. 661 et seq.);

(C) the Water Resources Development Act of 1986 (Public Law 99–662; 100 Stat. 4082); or

(D) any other Federal law or court settlement.

(3) CLEAN WATER ACT.—Nothing in this title affects any provision of the Federal Water Pollution Control Act (33 U.S.C. 1251 et seq.), including any definition in that Act.

SEC. 211. NONAPPLICABILITY OF FEDERAL ADVISORY COMMITTEE ACT.

The Federal Advisory Committee Act (5 U.S.C. App.) shall not apply to—

(1) the Board; or

(2) any Partnership.

SEC. 212. FUNDING.

(a) AUTHORIZATION OF APPROPRIATIONS.—

(1) FISH HABITAT CONSERVATION PROJECTS.—There is authorized to be appropriated to the Secretary $7,200,000 for each of fiscal years 2021 through 2025 to provide funds for fish habitat conservation projects approved under section 205(f), of which 5 percent is authorized only for projects carried out by Indian Tribes.

(2) ADMINISTRATIVE AND PLANNING EXPENSES.—There is authorized to be appropriated to the Secretary for each of fiscal years 2021 through 2025 an amount equal to 5 percent of the amount appropriated for the applicable fiscal year pursuant to paragraph (1)—

(A) for administrative and planning expenses under this title; and

(B) to carry out section 209.

(3) TECHNICAL AND SCIENTIFIC ASSISTANCE.—There is authorized to be appropriated for each of fiscal years 2021 through 2025 to carry out, and provide technical and scientific assistance under, section 206—

(A) $400,000 to the Secretary for use by the United States Fish and Wildlife Service;

(B) $400,000 to the National Oceanic and Atmospheric Administration Assistant Administrator for use by the National Oceanic and Atmospheric Administration;

(C) $400,000 to the Environmental Protection Agency Assistant Administrator for use by the Environmental Protection Agency;

(D) $400,000 to the Secretary for use by the United States Geological Survey; and

(E) $400,000 to the Secretary of Agriculture, acting through the Chief of the Forest Service, for use by the Forest Service.

(b) AGREEMENTS AND GRANTS.—The Secretary may—

(1) on the recommendation of the Board, and notwithstanding sections 6304 and 6305 of title 31, United States Code, and the Federal Financial Assistance Management Improvement Act of 1999 (31 U.S.C. 6101 note; Public Law 106–107), enter into a grant agreement, cooperative agreement, or contract with a Partnership or other entity to provide funds authorized by this title for a fish habitat conservation project or restoration or enhancement project;

(2) apply for, accept, and, subject to the availability of appropriations, use a grant from any individual or entity to carry out the purposes of this title; and

(3) subject to the availability of appropriations, make funds authorized by this Act available to any Federal department or agency for use by that department or agency to provide grants for any fish habitat protection project, restoration project, or enhancement project that the Secretary determines to be consistent with this title.

(c) DONATIONS.—

(1) IN GENERAL.—The Secretary may—

(A) enter into an agreement with any organization described in section 501(c)(3) of the Internal Revenue Code of 1986 that is exempt from taxation under section 501(a) of that Code to solicit private donations to carry out the purposes of this title; and

(B) accept donations of funds, property, and services to carry out the purposes of this title.

(2) TREATMENT.—A donation accepted under this title—

(A) shall be considered to be a gift or bequest to, or otherwise for the use of, the United States; and

(B) may be—

(i) used directly by the Secretary; or

(ii) provided to another Federal department or agency through an interagency agreement.

SEC. 213. PROHIBITION AGAINST IMPLEMENTATION OF REGULATORY AUTHORITY BY FEDERAL AGENCIES THROUGH PARTNERSHIPS.

Any Partnership designated under this title—

(1) shall be for the sole purpose of promoting fish conservation; and

(2) shall not be used to implement any regulatory authority of any Federal agency.

TITLE III—MISCELLANEOUS

SEC. 301. STUDY TO REVIEW CONSERVATION FACTORS.

(a) DEFINITION OF SECRETARIES.—In this section, the term ''Secretaries'' means—

(1) the Secretary of Agriculture;

(2) the Secretary of Commerce, acting through the Assistant Administrator of the National Marine Fisheries Service; and

(3) the Secretary of the Interior, acting through the Director of the United States Fish and Wildlife Service.

(b) STUDY.—To assess factors affecting successful conservation activities under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.), the Secretaries shall carry out a study—

(1)(A) to review any factors that threaten or endanger a species, such as wildlife disease, for which a listing under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) would not contribute to the conservation of the species; and

(B) to identify additional conservation measures that can be taken to protect and conserve a species described in subparagraph (A);

(2) to review any barriers to—

(A) the delivery of Federal, State, local, or private funds for such conservation activities, including statutory or regulatory impediments, staffing needs, and other relevant considerations; or

(B) the implementation of conservation agreements, plans, or other cooperative agreements, including agreements focused on voluntary activities, multispecies efforts, and other relevant considerations;

(3) to review factors that impact the ability of the Federal Government to successfully implement the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.);

(4) to develop recommendations regarding methods to address barriers identified under paragraph (2), if any;

(5) to review determinations under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) in which a species is determined to be recovered by the Secretary of the Interior, acting through the Director of the United States Fish and Wildlife Service, or the Secretary of Commerce, acting through the Assistant Administrator of the National Marine Fisheries Service, but remains listed under that Act, including—

(A) an explanation of the factors preventing a delisting or downlisting of the species; and

(B) recommendations regarding methods to address the factors described in subparagraph (A); and

(6) to review any determinations under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) in which a species has been identified as needing listing or uplisting under that Act but remains unlisted or listed as a threatened species, respectively, including—

(A) an explanation of the factors preventing a listing or uplisting of the species; and

(B) recommendations regarding methods to address the factors described in subparagraph (A).

(c) REPORT.—Not later than 1 year after the date of enactment of this Act, the Secretaries shall submit to the Committees on Appropriations and Environment and Public Works of the Senate and the Committees on Appropriations and Natural Resources of the House of Representatives and make publicly available a report describing the results of the study under subsection (b).

SEC. 302. STUDY AND REPORT ON EXPENDITURES.

(a) REPORTS ON EXPENDITURES.—

(1) FEDERAL DEPARTMENTS AND AGENCIES.—

(A) IN GENERAL.—At the determination of the Comptroller General of the United States (referred to in this section as the ''Comptroller General''), to facilitate the preparation of the reports from the Comptroller General under paragraph (2), the head of each Federal department and agency shall submit to the Comptroller General data and other relevant information that describes the amounts expended or disbursed (including through loans, loan guarantees, grants, or any other financing mechanism) by the department or agency as a direct result of any provision of the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) (including any regulation promulgated pursuant to that Act) during—

(i) with respect to the first report under paragraph (2), the 3 fiscal years preceding the date of submission of the report; and

(ii) with respect to the second report under paragraph (2), the 2 fiscal years preceding the date of submission of the report.

(B) REQUIREMENTS.—Data and other relevant information submitted under subparagraph (A) shall describe, with respect to the applicable amounts—

(i) the programmatic office of the department or agency on behalf of which each amount was expended or disbursed;

(ii) the provision of the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) (or regulation promulgated pursuant to that Act) pursuant to which each amount was expended or disbursed; and

(iii) the project or activity carried out using each amount, in detail sufficient to reflect the breadth, scope, and purpose of the project or activity.

(2) COMPTROLLER GENERAL.—Not later than 2 years and 4 years after the date of enactment of this Act, the Comptroller General shall submit to the Committees on Appropriations, Commerce, Science, and Transportation, and Environment and Public Works of the Senate and the Committee on Appropriations and Natural Resources of the House of Representatives a report that describes—

(A) the aggregate amount expended or disbursed by all Federal departments and agencies as a direct result of any provision of the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) (including any regulation promulgated pursuant to that Act) during—

(i) with respect to the first report, the 3 fiscal years preceding the date of submission of the report; and

(ii) with respect to the second report, the 2 fiscal years preceding the date of submission of the report;

(B) the provision of the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) (or regulation promulgated pursuant to that Act) pursuant to which each such amount was expended or disbursed; and

(C) with respect to each relevant department or agency—

(i) the total amount expended or disbursed by the department or agency as described in subparagraph (A); and

(ii) the information described in clauses (i) through (iii) of paragraph (1)(B).

(b) REPORT ON CONSERVATION ACTIVITIES.—

(1) FEDERAL DEPARTMENTS AND AGENCIES.—At the determination of the Comptroller General, to facilitate the preparation of the report under paragraph (2), the head of each Federal department and agency shall submit to the Comptroller General data and other relevant information that describes the conservation activities by the Federal department or agency as a direct result of any provision of the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) (including any regulation promulgated pursuant to that Act) during—

(A) with respect to the first report under paragraph (2), the 3 fiscal years preceding the date of submission of the report; and

(B) with respect to the second report under paragraph (2), the 2 fiscal years preceding the date of submission of the report.

(2) COMPTROLLER GENERAL.—Not later than 2 years and 4 years after the date of enactment of this Act, the Comptroller General shall submit to the Committees on Commerce, Science, and Transportation and Environment and Public Works of the Senate and the Committee on Natural Resources of the House of Representatives a report that—

(A) describes the conservation activities by all Federal departments and agencies for species listed as a threatened species or endangered species under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.), as reported under paragraph (1), during—

(i) with respect to the first report, the 3 fiscal years preceding the date of submission of the report; and

(ii) with respect to the second report, the 2 fiscal years preceding the date of submission of the report;

(B) is organized into categories with respect to whether a recovery plan for a species has been established;

(C) includes conservation outcomes associated with the conservation activities; and

(D) as applicable, describes the conservation activities that required interaction between Federal agencies and between Federal agencies and State and Tribal agencies and units of local government pursuant to the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.).

SEC. 303. USE OF VALUE OF LAND FOR COST SHARING.

The Pittman-Robertson Wildlife Restoration Act (16 U.S.C. 669 et seq.) is amended—

(1) by redesignating section 13 as section 14; and

(2) by inserting after section 12 the following:

''SEC. 13. VALUE OF LAND.

''Notwithstanding any other provision of law, any institution eligible to receive Federal funds under the Agricultural Research, Extension, and Education Reform Act of 1998 (7 U.S.C. 7601 et seq.) shall be allowed to use the value of any land owned by the institution as an in-kind match to satisfy any cost sharing requirement under this Act.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from Michigan (Mrs. DINGELL) and the gentleman from Virginia (Mr. WITTMAN) each will control 20 minutes.

The Chair recognizes the gentlewoman from Michigan.

GENERAL LEAVE

Mrs. DINGELL. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Michigan?

There was no objection.

Mrs. DINGELL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of S. 3051, America's Conservation Enhancement Act.

This bill is an example of Democrats and Republicans coming together to pass legislation to benefit nature, fishermen, hunters, and nature enthusiasts of all kinds.

Mr. Speaker, I thank and commend my colleagues from both sides of the aisle and the Hill for their hard work on this very important piece of legislation.

I am greatly appreciative of Representative MIKE THOMPSON for his leadership in the House and for Senators BARRASSO and CARPER for getting this package through the Senate.

Mr. Speaker, I also commend the numerous bipartisan Members of Congress for their critical contributions to this legislation.

The ACE Act could not come at a more necessary time, as we are reckoning with the tragic and dangerous impacts of the climate crisis. Scientists around the world are sounding the alarm that we are on the cusp of an extinction crisis caused by human impacts. The ACE Act protects and enhances wildlife and habitat throughout the country, and reduces conflicts between wildlife, humans, and livestock.

According to the Intergovernmental Science-Policy Platform on Biodiversity and Ecosystem Services, three-quarters of the terrestrial environment and about two-thirds of the marine environment have been significantly altered by human actions.

Protecting habitat is one of the most important things we can do for biodiversity and climate resiliency, and this bill accomplishes that in several ways.

It conserves wetlands by reauthorizing the popular and successful North American Wetlands Conservation Act.

It protects the largest estuary in the country, the Chesapeake Bay, by creating and reauthorizing several programs that restore the Bay and promote its resilience to climate change.

It also authorizes an innovative program called the National Fish Habitat Partnership, which leverages public-private partnerships to enhance fish habitat across the country, benefiting not only the fish, but the strong tradition of angling in this country.

Hunters, who are some of our best conservationists in this country, will be pleased to hear that this legislation contains provisions to combat chronic wasting disease, or CWD, a fatal disease that impacts animals like deer, elk, and moose, and which is spreading and has now been found in 26 States across this country.

Invasive species are also a growing threat to biodiversity throughout the United States, and they are managed by a multitude of agencies. Crucially, this bill addresses this issue by requiring Federal agencies to consult with one another and with stakeholders when developing strategic plans for invasive species.

The ACE Act also contains a bipartisan provision that I worked on with my colleague, Congressman DON YOUNG, for a long-term reauthorization of the National Fish and Wildlife Foundation. This strong, bipartisan program has a track record of success, and will continue to play a vital role in safeguarding our environmental legacy.

Finally, the ACE Act addresses conflicts between wildlife, livestock, and humans. The legislation creates a prize competition to spur innovations that reduce conflicts between humans and predator species. It also addresses losses of livestock due to depredation by federally-protected species.

With the ever-encroaching human footprint, there will inevitably be more conflicts between us and wildlife, and these provisions offer a responsible pathway forward.

During the pandemic, so many Americans have found respite in nature. Whether you are a hiker, an angler, a hunter, a bird-watcher, or just a wildlife enthusiast, it is so important that we protect the iconic wildlife and habitat across our Nation. Particularly in the face of the climate crisis, the time to act is now.

Mr. Speaker, I urge my colleagues to vote ''yes'' on this legislation to protect species and habitat.

Mr. Speaker, I reserve the balance of my time.

Mr. WITTMAN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in strong support of S. 3051, America's Conservation Enhancement Act.

It is an incredible honor to manage this suspension debate for the ACE Act, arguably one of the most important pieces of environmental legislation for the Chesapeake Bay, national wetlands, and fish habitat in years.

This bipartisan package of conservation and resource protection policies will have tremendous benefits for both our environment and individuals for years to come.

The ACE Act is a once-in-a-generation advancement to clean up the Chesapeake Bay and protect and conserve natural resources across America. The Chesapeake Bay is a national treasure, and the ACE Act provides additional resources and extends critical conservation programs that preserve wetlands, reduce pollution, and increase recreational opportunities both in the Commonwealth of Virginia and across our great United States.

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Title I of this bill includes important reauthorizations for programs such as

the North American Wetlands Conservation Act, the National Fish and Wildlife Foundation Establishment Act, the Chesapeake Bay Program, the Chesapeake Bay Initiative Act of 1998.

These are all very important programs, not only to the folks back home in my district, but to all Americans who wish to have clean air to breathe, clean water to drink, and an overall healthier environment where our fish and wildlife populations are sustainable and thriving.

This bill also includes initiatives important to sportsmen, such as the establishment of a chronic wasting disease task force with the goal of researching this dangerous threat to white-tailed deer, mule deer, elk populations, and moose populations.

This bill also has some practical solutions to offer farmers and ranchers vital tools to help manage their herds and protect them from predation.

Title II is a provision I am especially proud of and glad that we are advancing through the House and on to the President's desk for his signature. This includes the National Fish Habitat Conservation Through Partnerships provision, a bill that I championed. This title establishes a national fish habitat board that supports a successful public-private partnership to restore fish habitat.

I would like to thank the ranking member of the Natural Resources Committee, ROB BISHOP, and the ranking member of the Subcommittee on Water, Oceans, and Wildlife, TOM MCCLINTOCK.

I would also like to thank all of my colleagues on the other side of the aisle for their ceaseless efforts and commitment to making sure we do everything we can to conserve, protect, and enhance the resources that we are in charge of taking care of.

I look forward to continuing to advance other important provisions, but this bill, hopefully, will be on its way to the President's desk.

As co-chair of the Chesapeake Bay Watershed Task Force, I would specifically like to acknowledge my friends and colleagues in the bay delegation who have labored so hard for so long to help clean up our great Chesapeake Bay.

Representative BOBBY SCOTT, Representative JOHN SARBANES, and Representative ANDY HARRIS and I are proud to see the passage of these important provisions to protect the Chesapeake Bay.

Mr. Speaker, the American Conservation Enhancement Act does much to advance our bipartisan goals of conserving fish and wildlife populations and preserving the environment for the enjoyment of untold future generations of Americans.

The ACE Act will also give Americans increased opportunities to get out and enjoy the natural beauty and wildlife in our country, from the Gulf Coast to the Great Lakes, from Puget Sound to the Chesapeake Bay.

I urge adoption of the measure, and I reserve the balance of my time.

Mrs. DINGELL. Mr. Speaker, I yield 2 minutes to the gentlewoman from Virginia (Mrs. LURIA).

Mrs. LURIA. Mr. Speaker, I rise today in support of America's Conservation Enhancement Act and the inclusion of my bill, the Chesapeake Bay Program Reauthorization Act.

As my colleague, Mrs. DINGELL, said, this is truly an example of a bipartisan bill where we have been able to work across the aisle and across the bay, and I would like to thank my colleague, Mr. WITTMAN from Virginia, as well for his strong cooperation on this program.

The Chesapeake Bay is a national treasure, and its health is critical to the environmental and economic well-being of coastal Virginia and beyond. The Chesapeake Bay generates $33 billion in economic value annually and is home to spectacular natural beauty and ecological diversity.

The EPA's Chesapeake Bay Program coordinates regional conservation efforts and supports the work of States in meeting their restoration commitments under the Chesapeake Bay Watershed Agreement. Funding for the bay program goes directly to localities to improve conservation efforts. However, Congress has not reauthorized this program since 2005.

By passing the ACE Act and, simultaneously, my bill, Congress will reaffirm that all States in the watershed and the EPA must work together to achieve these restoration goals. This includes ensuring that all States have plans in place enabling them to achieve these goals.

I want to thank my colleagues in the House and the Senate who worked hard to secure the passage of this bill.

Again, I would like to thank Mr. WITTMAN, my colleague, Congressman BOBBY SCOTT from Virginia, as well as Mr. SARBANES from Maryland for being initial cosponsors on this bill. I urge all Members to support America's Conservation Enhancement Act.

Mr. WITTMAN. Mr. Speaker, I yield myself such time as I may consume.

I would like to reflect upon the words of Representative LURIA. This really is a true bipartisan bill.

I would like to thank not just the colleagues on the other side of the aisle but those colleagues from all of our States, Representative LURIA, the rest of the Virginia delegation. As I talked about the folks from the Chesapeake Bay delegation, everybody has an interest in this bill. It is an extraordinary effort across many, many different areas where there is common interest, and it is a great example of what we can get done when we are willing to focus on things we have in common rather than those places where we have differences.

The one thing we do have in common is the great treasures that have been bestowed upon us by our Creator and our obligation, as humanity, to protect and to enhance those resources, not only now, but for generations to come.

Mr. Speaker, I reserve the balance of my time.

Mrs. DINGELL. Mr. Speaker, I yield 2 minutes to the gentleman from Maryland (Mr. SARBANES).

Mr. SARBANES. Mr. Speaker, I rise today in support of S. 3051, America's Conservation Enhancement, or ACE, Act.

I just want to thank Congressman WITTMAN for all his work. We partnered together, as he indicated, on the Chesapeake Bay Watershed Task Force with Congressman HARRIS and Congressman SCOTT.

I want to salute the efforts of Congresswoman LURIA in introducing and authoring the Chesapeake Bay Program Reauthorization Act, which I was proud to cosponsor.

This is an exciting day. This bill has taken a winding road, as these things do. But we are close to the finish line here, and we look forward to passage of the bill. It is bipartisan. It is bicameral.

We conserve and protect fish and wildlife habitat, support outdoor recreation, and combat invasive species, as we have heard. It includes several bipartisan provisions that will protect the long-term health of the Chesapeake Bay, specifically, as I indicated, two bills: one, the Chesapeake Bay Program Reauthorization Act, and another one, the Chesapeake Watershed Investments for Landscape Defense Act, or Chesapeake WILD Act, which would establish a grant program to bolster habitat restoration and protection throughout the watershed.

It also includes a bill I was proud to introduce, the Chesapeake Bay Gateways and Watertrails Network Reauthorization Act, which would expand recreational opportunities for millions of Marylanders and bay watershed residents across the region.

It is comprehensive. It will significantly boost the health of the bay and ensure that it remains an environmental treasure and an economic driver for years to come.

As Congressman WITTMAN said, we have worked together on the Chesapeake Bay Watershed Task Force, and through that task force, we have pulled together real bipartisan support for this effort.

As the largest estuary in the U.S., the Chesapeake Bay is an important ecosystem, a model for restoration efforts throughout the country. That is, in large part, due to our successful bipartisan work at the Federal, State, and local levels.

I would like to thank Chair GRIJALVA, our House leadership, and their staffs for their work to negotiate a bipartisan and bicameral environmental conservation package.

I urge my colleagues to vote in favor of this important legislation so that our Nation's natural habitats and scenic landscapes, like the Chesapeake Bay, can be enjoyed for generations to come.

Mr. WITTMAN. Mr. Speaker, I reserve the balance of my time.

Mrs. DINGELL. Mr. Speaker, I yield 2 minutes to the gentleman from South Carolina (Mr. CUNNINGHAM).

Mr. CUNNINGHAM. Mr. Speaker, when I came to Washington, I promised that I would help to champion legislation that would make this planet a better place for future generations, and that is why I am proud the ACE Act will be signed into law.

The ACE Act is a bipartisan sportsmen's package that ensures that we leave this planet in better shape than we found it.

The ACE Act serves as a thank-you to the outdoor enthusiasts of South Carolina's First District, and the millions like them across the United States, by providing reauthorizations for vital conservation programs. The Lowcountry's hunters and anglers are some of the strongest stewards of our natural resources, and this bill is a promise that this partnership will continue for generations.

I want to thank Representative MIKE THOMPSON for his leadership. I look forward to working with my colleagues on both sides of the aisle to get the ACE Act past the House and signed into law.

Mr. WITTMAN. Mr. Speaker, I yield myself the balance of my time, and I will close quickly.

I would like to thank my colleague, Representative DINGELL, for all of her efforts.

Obviously, the Natural Resources Committee has a lot of input on this. But, again, this is a great example of what we can all do when we look at those things that we have in common.

We have been bestowed these fantastic natural resources, gifts from our Creator. We have an obligation to protect them. And what we see today is that common idea of that obligation and how we fulfill that obligation. Today really is one of those days where we should remember historically about all the different elements that have come together.

We know it is an arduous path for many of these pieces of legislation, but today should really be a reminder of what we can do when we look at those things we have in common, when we look at our responsibilities and obligations to this Nation and to the treasures that we have here before us.

Today is indeed a great day. I urge my colleagues to support this bill. It truly is an indication of what makes this Nation great.

Mr. Speaker, I yield back the balance of my time.

Mrs. DINGELL. Mr. Speaker, I yield myself such time as I may consume.

The ACE Act is the culmination of months of bipartisan work between the House, the Senate, committee staff, and key stakeholders.

I want to thank my colleague, Mr. WITTMAN, who is managing this bill today, and all of my colleagues on the Natural Resources Committee. But so many people have worked to get us here, and for me, it is almost a special moment because decades of work have resulted—today is the opening of the Detroit International Wildlife Refuge, which will benefit from this legislation. It makes me kind of emotional today.

This passage will authorize critical funding for America's fish and wildlife habitat. It is an example of what happens when we all come together to protect our natural resources.

I urge my colleagues to support this legislation, and I yield back the balance of my time.

Mr. SCOTT of Virginia. Mr. Speaker, I rise today as a co-chair of the Chesapeake Watershed Task Force in support of the Chesapeake Bay Provisions within America's Conservation Enhancement Act. I am proud to represent Virginia's 3rd Congressional District, located near the mouth of the Chesapeake Bay which President Reagan declared a ''national treasure'' in 1984, a declaration President Obama echoed in 2009. Unfortunately, President Trump has not supported the bipartisan effort to restore the Bay, proposing to slash funding for the Chesapeake Bay Program, a misguided step that I am proud to have worked with my colleagues across the aisle to correct.

America's Conservation Enhancement Act represents a crucial opportunity to support the ongoing restoration of the Chesapeake Bay. Under the Environmental Protection Agency's Total Maximum Daily Load (TMDL) mandate, some progress has been made in restoring the Bay. Current increases in underwater grasses and the blue crab population indicate these efforts are working, however, more resources and continued partnership are necessary to ensure that these gains are maintained and that the Chesapeake Bay is restored. The Chesapeake Bay provisions included in this bill would make significant progress, not just in improving the health of the Bay, but also in conserving habitat and increasing access to restoration throughout its 64,000 square-mile watershed.

I am especially pleased the America's Conservation Enhancement Act includes Chesapeake WILD, a bill I introduced with Reps. WITTMAN and SARBANES, fellow co-chairs of the Chesapeake Bay Watershed Taskforce, and Senator VAN HOLLEN. The Fish and Wildlife Service (FWS) is well equipped to leverage their expertise in wildlife and habitat conservation beyond their reserves and throughout the Chesapeake Bay Watershed. My bill fosters such partnerships by creating a grant program for on the ground restoration efforts to be carried out by the FWS. In addition to conserving fish and wildlife habitat; increasing access to recreation; mitigating flooding; and improving drinking water quality, the grant program this bill creates will also contribute to the precedent-setting effort to conserve the Chesapeake Bay.

America's Conservation Enhancement Act also includes a bill led by Rep. SARBANES and Sen. CARDIN that would reauthorize the Chesapeake Bay Gateways and Watertrails grant program. The pandemic has reminded many of the many benefits of outdoor recreation yet, for far too many, parks, trails, beaches, and other recreational areas are largely inaccessible. The reauthorization of this grant program will help remedy that by increasing access to recreation in the Bay Watershed and I am proud to be an original cosponsor of the bill.

America's Conservation Enhancement Act also includes critical legislation, led by my colleagues Rep. LURIA and Sen. CARDIN, to reauthorize the Chesapeake Bay Program. In 1978, my first year as a member of the Virginia House of Delegates, I was part of a joint Virginia-Maryland legislative advisory commission focused on determining what actions were necessary to address Bay issues. We concluded that restoring the Bay would require more than just Virginia and Maryland, but rather, the collaboration of the entire watershed. That remains true today and the level of collaboration required is made possible by the Chesapeake Bay Program.

I am also proud to have introduced this legislation with my colleagues which would also authorize an incremental increase in spending for the Bay Program, reaching $92 million annually by 2025. Strong funding for the Bay Program leading up to 2025 is essential because that is the date by which the EPA, along with the six Bay watershed states and the District of Columbia have committed to making the Bay fishable and swimmable.

Passage of America's Conservation Enhancement Act is a major step towards meeting that agreement. As critical as these measures are to the ecological and economic health of the region, we also recognize that pollution knows no boundaries. As Wendell Berry, the great poet, philosopher, and farmer wrote, we all ought to ''do unto those downstream as you would have those upstream do unto you.'' The restoration this bill supports throughout the Chesapeake Bay Watershed does more than just improve the health of the Bay—it enhances carbon sequestration, protects wildlife, improves the quality of water entering the Atlantic, and sets an important precedent for the restoration of other large watersheds and multi-jurisdictional cooperative environmental agreements.

I thank the Committee on Natural Resources and the Committee on Energy and Commerce for their work on this essential legislation and urge my colleagues to support it.

Mr. THOMPSON of California. Mr. Speaker, I rise in support of this bill and thank the Chairman for his tireless dedication to our natural resources and to supporting efforts to get folks outside to enjoy our National treasures.

The COVID–19 pandemic has made it clear just how desperately our communities need access to the outdoors for their emotional and physical well-being.

The provisions included in America's Conservation Enhancement Act will do just that by increasing access to public lands and reauthorizing wildlife conservation programs, so our hunters, anglers, and birdwatchers can continue doing what they love.

The ACE Act will create more opportunities for the people in America to enjoy the outdoors, while providing critical financial relief to the businesses around these public lands.

This legislation is a win for our environment, our economy, and for our sportsmen and women who will be able to access these lands for generations to come.

As a longtime outdoorsman, I am proud of this legislation and urge my colleagues to vote yes.

The SPEAKER pro tempore (Mr. CLEAVER). The question is on the motion offered by the gentlewoman from

Michigan (Mrs. DINGELL) that the House suspend the rules and pass the bill, S. 3051.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

DIRECT ENHANCEMENT OF SNAPPER CONSERVATION AND THE ECONOMY THROUGH NOVEL DEVICES ACT OF 2020

Mrs. DINGELL. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 5126) to require individuals fishing for Gulf reef fish to use certain descending devices, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 5126

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Direct Enhancement of Snapper Conservation and the Economy through Novel Devices Act of 2020'' or the ''DESCEND Act of 2020''.

SEC. 2. SENSE OF CONGRESS.

It is the sense of Congress that commercial and recreational fishermen (which, for the purpose of this Act shall include charter fishing) for Gulf reef fish are expected to use a venting tool or a descending device required for possession under section 3 when releasing fish that are exhibiting signs of barotrauma. The Secretary of Commerce (referred to in this Act as the ''Secretary''), in coordination with the Gulf of Mexico Fishery Management Council, should develop and disseminate to fishermen education and outreach materials related to proper use of venting tools and descending devices, and strongly encourage their use by commercial and recreational fishermen when releasing fish that are exhibiting signs of barotrauma.

SEC. 3. REQUIRED POSSESSION OF DESCENDING DEVICES.

(a) REQUIRED GEAR IN THE GULF REEF FISH FISHERY.—Title III of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1851 et seq.) is amended by adding at the end the following:

''SEC. 321. REQUIRED POSSESSION OF DESCENDING DEVICES.

''(a) REQUIRE GEAR IN THE GULF REEF FISH FISHERY.—It shall be unlawful for a person on board a commercial or recreational vessel to fish for Gulf reef fish in the Gulf of Mexico Exclusive Economic Zone without possessing on board the vessel a venting tool or a descending device that is rigged and ready for use while fishing is occurring.

''(b) SAVINGS CLAUSE.—No provision of this section shall be interpreted to affect any program or activity carried out by the Gulf Coast Ecosystem Restoration Council established by the Resources and Ecosystems Sustainability, Tourist Opportunities, and Revived Economies of the Gulf Coast States Act of 2012 (33 U.S.C. 1321 note), or any project contained in an approved Restoration Plan developed by any Natural Resources Damage Assessment Trustee Implementation Group to reduce post-release mortality from barotrauma in Gulf of Mexico Reef Fish Recreational Fisheries.

''(c) DEFINITIONS.—In this section:

''(1) DESCENDING DEVICE.—The term 'descending device' means an instrument that—

''(A) will release fish at a depth sufficient for the fish to be able to recover from the effects of barotrauma;

''(B) is a weighted hook, lip clamp, or box that will hold the fish while it is lowered to depth, or another device determined to be appropriate by the Secretary; and

''(C) is capable of—

''(i) releasing the fish automatically;

''(ii) releasing the fish by actions of the operator of the device; or

''(iii) allowing the fish to escape on its own.

''(2) VENTING TOOL.—The term 'venting tool' has the meaning given to it by the Gulf of Mexico Fishery Management Council.

''(3) GULF REEF FISH.—The term 'Gulf reef fish' means any fish chosen by the Gulf of Mexico Fishery Management Council that is in the reef Fishery Management Plan for the purposes of this Act.''.

(b) CIVIL PENALTIES.—Section 308(a) of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1858(a)) is amended by inserting ''or section 321'' after ''section 307''.

(c) EFFECTIVE DATE.—The amendments made by this Act shall take effect 1 year after the date of the enactment of this Act.

(d) CONFORMING AMENDMENT.—Title III of the table of contents of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1851 et seq.) is amended by striking the item relating to section 305 and all that follows through the end of the items relating to such title and inserting the following:

''Sec. 305. Other requirements and authority.
''Sec. 306. State jurisdiction.
''Sec. 307. Prohibited acts.
''Sec. 308. Civil penalties and permit sanctions.
''Sec. 309. Criminal offenses.
''Sec. 310. Civil forfeitures.
''Sec. 311. Enforcement.
''Sec. 312. Transition to sustainable fisheries.
''Sec. 313. North Pacific fisheries conservation.
''Sec. 314. Northwest Atlantic Ocean fisheries reinvestment program.
''Sec. 315. Regional Coastal Disaster Assistance, Transition, and Recovery Program.
''Sec. 316. Bycatch Reduction Engineering Program.
''Sec. 317. Shark Feeding.
''Sec. 318. Cooperative Research and Management Program.
''Sec. 319. Herring Study.
''Sec. 320. Restoration Study.
''Sec. 321. Required possession of descending devices.''.

(e) SUNSET.—Five years after the date of the enactment of this Act, the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1851 et seq.) is amended—

(1) in the table of contents, by striking the item relating to section 321;

(2) in section 308(a), by striking ''or section 321''; and

(3) by striking section 321.

SEC. 4. IMPROVING DISCARD MORTALITY DATA.

(a) AGREEMENT.—Not later than 60 days after the date of the enactment of this Act, the Secretary shall enter into an agreement with the National Academy of Sciences to conduct a study and produce a report on discard mortality in the Gulf of Mexico reef fish fisheries. The study shall include—

(1) assessment of gaps and biases in reporting of discards and associated discard mortality;

(2) assessment of uncertainty and likely impacts of such uncertainty in discard mortality;

(3) assessment of the effectiveness and usage rates of barotrauma-reducing devices;

(4) recommendations for future research priorities; and

(5) recommendations for standardized reporting and quantification of discards in the same metric as landings for fisheries under the Gulf of Mexico Reef Fish Fishery Management Plan.

(b) DEADLINES.—Not later than 2 years after the date of the enactment of this Act, the National Academy of Sciences shall complete the study required under subsection (a) and transmit the final report to the Secretary. Not later than 3 months after receiving the study and report in accordance with this subsection, the Secretary shall submit the study and report to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Natural Resources of the House of Representatives.

(c) PLAN.—Not later than 1 year after the Secretary receives the study and report required under subsection (a), Secretary and the Gulf of Mexico Fishery Management Council shall develop—

(1) guidance for minimum standards for quantifying and reporting discards and associated mortality in the Gulf of Mexico Reef Fish Fishery Management Plan; and

(2) a plan to assess and monitor the effectiveness and usage of barotrauma-reducing devices and the impact on discard mortality rates in Gulf of Mexico reef fish fisheries.

(d) FOLLOW-UP REPORT.—Not later than 3 years after developing minimum standards and developing the assessment and monitoring plan under subsection (c), the Secretary shall provide a detailed report on implementation to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Natural Resources of the House of Representatives.

SEC. 5. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from Michigan (Mrs. DINGELL) and the gentleman from Louisiana (Mr. GRAVES) each will control 20 minutes.

The Chair recognizes the gentlewoman from Michigan.

GENERAL LEAVE

Mrs. DINGELL. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Michigan?

There was no objection.

Mrs. DINGELL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 5126, the creatively and aptly named Direct Enhancement of Snapper Conservation and the Economy Through Novel Devices Act, or the DESCEND Act.

This bill requires every commercial and recreational fisherman to possess a venting tool or a descending device

when fishing for reef fish, like the prized red snapper, in the Gulf of Mexico EEZ.

In addition, the bill requires the Department of Commerce to contract with the National Academy of Sciences for a report on discard mortality in Gulf reef fish fisheries.

The bill also requires Commerce and the Gulf Fishery Management Council to develop guidance for reporting discards and associated mortality and to develop a plan to assess the effectiveness and usage of barotrauma-reducing devices.

□ 1515

The United States has some of the most sustainable fisheries in the world, but the issue of bycatch is still a very serious concern. Anglers sometimes catch fish that they don't want or are allowed to keep, so they need to be returned to the ocean. According to some estimates, global bycatch may amount to 10 percent of the world's total catch.

However, deepwater reef fish like snapper and grouper experience pressure changes when they are brought to the surface. This can damage the fish's swim bladder and even cause death, and it can also leave injured fish exposed to predators at the surface. If the fish are just thrown back, it is very likely that they will die, which is both a waste and unhelpful for promoting healthy fish populations.

Fishers can help reduce this mortality by using a venting tool or a descending device, which is inexpensive, and ease the pressure changes in these fish. Similar requirements exist in other parts of the country but have been held up in the Gulf.

The DESCEND Act would get around the bureaucratic roadblock and implement this commonsense, proconservation practice. This bill offers a simple path forward for reducing the mortality of some of the most prized reef fish in this country, which will serve to create the more sustainable, profitable, and enjoyable fisheries for anglers in this Nation.

Mr. Speaker, I reserve the balance of my time.

Mr. GRAVES of Louisiana. Mr. Speaker, I yield myself such time as I may consume.

I thank my friend from Michigan, and I want to thank Chairman GRIJALVA and Ranking Member BISHOP for their work on this legislation, the DESCEND Act.

Mr. Speaker, years ago, the Federal Government tried to tell our communities—all of us grew up fishing and, many, for sustenance and for recreation. It is our outdoors. The Federal Government told us that we would only get 3 to 9 days to fish for red snapper.

Mr. Speaker, when I was a kid, we did it year-round. That is our recreation. As much as I would love to have them, we don't have mountains and the other recreational opportunities that go along with those types of elevation changes.

I will say it again: Fishing is our outdoors. It is what we do at home, and that was being taken away from us.

Congressman HUFFMAN from California and I will tell you, Mr. Speaker, we totally disagreed on the solution there. He and I butted heads for years trying to work through a solution. On this bill, my most-of-the-time friend Mr. HUFFMAN and I are in lockstep. We are joined as cosponsors on this bill and are moving this one together because we believe this is the right solution, as you heard Mrs. DINGELL just explain.

What happens is that we do have a season on red snapper. You can only fish for a certain number of days a year, yet you can't tell which fish is going to bite your line when it is down under the water.

Red snapper spend the majority of their life at 100 feet or below. They have a swim bladder, as was explained, that operates somewhat like a ballast and allows them to stay at certain depths. When they are caught and reeled in, they are brought up too fast. The ballast does not exhaust, and, therefore, you have a fish that cannot go back down.

They have technologies, Mr. Speaker, as simple as ones like this, a descending device like this, where you can release the fish back down at the proper depth. They have venting tools that look like a fortified straw that also can help release the pressure. They are very easy tools to use.

Mr. Speaker, we are talking about 2½ million fish every 5 years that are discarded or lost. If we are having conflicts between recreational and commercial fishers in terms of the access to the fisheries, the pounds, the days, and we are discarding 2½ million fish every 5 years, it is a huge opportunity for us to actually grow the pie, and, as my friend from Michigan (Mrs. DINGELL) stated, to actually ensure the sustainability of these fisheries not just for us, but for our children and grandchildren for generations to come. It is a better management tool, and it is successfully used in other areas.

This legislation would provide for the use of descending and venting tools as well as freeing up additional research dollars associated with red snapper and descending tool use and the further management of the fisheries.

So I want to thank, again, Chairman GRIJALVA and Ranking Member BISHOP for their work. I want to thank Bill Ball, Christine Sur, Lora Snyder, and all the staff that did a great job working on this, as well as Dustin Davidson in our office.

Mr. Speaker, I reserve the balance of my time.

Mrs. DINGELL. Mr. Speaker, I have no further requests for time, and I would inquire whether my colleague has any remaining speakers.

Mr. GRAVES of Louisiana. Mr. Speaker, I yield 3 minutes to the gentleman from Georgia (Mr. CARTER).

Mr. CARTER of Georgia. Mr. Speaker, I thank the gentleman for yielding.

Mr. Speaker, I thank my colleagues for allowing me the time to speak on an issue that is important to my district and something I want other parts of the country to benefit from as well.

As you can see, Mr. Speaker, I know a thing or two about fishing. In fact, Mr. Speaker, it has been said that fish tremble at the mention of my name. Mr. Speaker, it has been said that, if you put me in water, I will catch fish.

This is a red snapper. This is a red snapper. It was not caught on the Gulf Coast; it was caught on the Atlantic Coast. You see, Mr. Speaker, I represent the best district in the Nation, the entire coast of Georgia, and this was caught off the coast of Georgia.

But in our district fishing, is not just a hobby, it is a way of life. In fact, it is an essential part of coastal economies. That is why it is critical that we maintain and manage our fisheries in a sustainable way.

This bill that we are discussing today, the DESCEND Act, would help do just that by expanding mandatory use of descending devices in the Gulf of Mexico when fishing for popular reef fish. We use these devices on the Atlantic Coast now. In fact, I have used them before when I have fished.

Reef fish, like red snapper that you see here, are very popular fish to fish for, but they are mostly caught, as was pointed out earlier, near the bottom of the ocean, and often they must be released because they are out of season or because of size restrictions.

Unfortunately, though, when they are reeled to the surface, as Representative GRAVES so accurately described, when they are reeled to the surface, the decreased water pressure on the fish's internal organs allow for gases to expands faster than their bodies can compensate. This makes it nearly impossible for the fish to return to the bottom, where their organs can function normally, resulting in the death of the fish that are caught and released.

Descending devices like was shown earlier by Representative GRAVES fix this issue by releasing the fish into depths sufficient enough for the fish to be able to recover from these damaging effects. This is an effective conservation practice supported by fishermen and regulators alike, and it has been successful in places like my district along the coast of Georgia in the south Atlantic and the West Coast.

I support this effort to bring this to the Gulf Coast, and I urge my colleagues to as well. It is a simple and effective approach to improve the survival of fish that are caught and released that will help maintain healthy populations going forward.

Mr. Speaker, we want to help our partners in the Gulf Coast so that perhaps, possibly, they could catch a fish this big, and certainly that is the intent, and this will certainly help them.

Mrs. DINGELL. I am prepared to close if the gentleman is, Mr. Speaker.

Mr. GRAVES of Louisiana. Mr. Speaker, I yield myself the balance of my time.

I want to thank my friend from Georgia. I appreciate him bringing that cute little picture of the fish for us to see the size. Of course, that fish was actually born in Louisiana and swam over there.

I did notice, Mr. Speaker, in the picture, my friend from Georgia appeared to be more slim than he is today, and so my explanation earlier of the swim bladder, perhaps my friend from Georgia's swim bladder is a little elevated right now from not being able to go to the gym.

In any case, Mr. Speaker, I do seriously want to thank my friend from Georgia, all the Republicans and Democrats, and Mr. WITTMAN from Virginia, everyone, for coming together and working on this legislation.

Mr. Speaker, I include in the RECORD a letter from the American Sportfishing Association, Angler Action Association, BoatUS, Center for Sportfishing Policy, Coastal Conservation Association, Congressional Sportsmen's Foundation, Guy Harvey Ocean Foundation, International Game Fish Association, Marine Retailers Association of the Americas, National Marine Manufacturers Association, Theodore Roosevelt Conservation Partnership, and Wild Oceans that expresses support for the legislation.

SEPTEMBER 29, 2020.

Hon. NANCY PELOSI,
Speaker of the House,
Washington, DC.
Hon. KEVIN MCCARTHY,
Republican Leader of the House,
Washington, DC.

DEAR SPEAKER PELOSI AND REPUBLICAN LEADER MCCARTHY: On behalf of the nation's recreational fishing and boating community, thank you for bringing H.R. 5126, Direct Enhancement of Snapper Conservation and the Economy through Novel Devices Act of 2020 (DESCEND Act), to the floor of the U.S. House of Representatives. The DESCEND Act unanimously passed the Committee on Natural Resources on March 11. We urge final passage of this bill sponsored by Congressmen GARRET GRAVES (R–La.) and JARED HUFFMAN (D–Calif.) and thank them for their leadership in support of Gulf of Mexico reef fish conservation.

The Gulf of Mexico's recreational fisheries contribute $13.5 billion to the economy annually and support 138,817 jobs. The region's recreational fishing community is comprised of 2.6 million saltwater anglers and thousands of fishing-dependent businesses who strongly support healthy marine resources. Part of this commitment to conservation includes minimizing bycatch and maximizing survival of released fish to ensure the health of our fisheries for generations to come.

Red snapper and other reef fish are often thrown overboard for a variety of reasons (e.g., being caught out of season or undersized). Due to the rapid change in pressure from being brought to the surface from depth many of these fish cannot swim back down and end up dying at the surface. As a result, hundreds of thousands of Gulf red snapper are wasted each year. This is an economic and conservation travesty. Unfortunately, a bureaucratic roadblock related to an important oil spill recovery-funded project has prevented regulation from moving forward at the Gulf of Mexico Fishery Management Council that would address this problem.

For fisheries as important and valuable as Gulf reef fish, we should be doing everything we can to conserve these fish stocks. By requiring reef fish fishermen in the Gulf of Mexico to possess devices that help fish avoid the fatal effects of barotrauma, and by clarifying that oil spill recovery funds can be used for related projects, the DESCEND Act would be a tremendous step toward reducing wasteful discard mortality and ensuring the sustainability of the iconic Gulf red snapper and other reef fish. Furthermore, it would align Gulf regulations with several West Coast states and South Atlantic federal waters where descending devices are required on board.

We are grateful for the many victories during this Congress benefiting natural resource conservation, and we hope you will add to that legacy by passing the science-based conservation measures included in the DESCEND Act.

Sincerely,

American Sportfishing Association, Angler Action Foundation, BoatU.S., Center for Sportfishing Policy, Coastal Conservation Association, Congressional Sportsmen's Foundation.

Guy Harvey Ocean Foundation, International Game Fish Association, Marine Retailers Association of the Americas, National Marine Manufacturers Association, Theodore Roosevelt Conservation Partnership, Wild Oceans.

Mr. GRAVES of Louisiana. Lastly, Mr. Speaker, I want to thank a number of people who were really instrumental in helping us to strike this bipartisan balance: Mike Leonard with the American Sportfishing Association; Cmac, with the Theodore Roosevelt Conservation Partnership; David Cresson and Rad Trascher with the Coastal Conservation Association; and Jeff Angers with the Center for Sportsfishing Policy.

Mr. Speaker, I urge adoption of the legislation, and I yield back the balance of my time.

Mrs. DINGELL. Mr. Speaker, I yield myself the balance of my time.

I want to thank my colleague, Mr. GRAVES, for all of the work that he has done.

There was a lot of discussion that we had in committee on snapper. I want to thank both of my Republican colleagues and suggest that we go fishing, because there was a trip with several colleagues here who all thought I would catch nothing, and I caught more than they all caught together, so I think we need a bipartisan fishing trip.

Having said that, Mr. Speaker, I would like to thank all of, again, the leadership of the Natural Resources Committee, the sportsmen's groups, and everybody who worked on this to try to find consensus on something that does matter.

The DESCEND Act will help safeguard our reef ecosystems and help eliminate bycatch in a sustainable way.

I thank my colleagues for the good work. Some of it got tense. I also want to thank Representative HUFFMAN for his work on the bill.

Mr. Speaker, I urge my colleagues to support this legislation, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from Michigan (Mrs. DINGELL) that the House suspend the rules and pass the bill, H.R. 5126, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

WOMEN WHO WORKED ON THE HOME FRONT WORLD WAR II MEMORIAL ACT

Mrs. DINGELL. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 5068) to authorize the Women Who Worked on the Home Front Foundation to establish a commemorative work in the District of Columbia and its environs, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 5068

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Women Who Worked on the Home Front World War II Memorial Act''.

SEC. 2. AUTHORIZATION TO ESTABLISH COMMEMORATIVE WORK.

(a) IN GENERAL.—The Women Who Worked on the Home Front Foundation may establish a commemorative work on Federal land in the District of Columbia and its environs to commemorate the commitment and service represented by women who worked on the home front during World War II.

(b) COMPLIANCE WITH STANDARDS FOR COMMEMORATIVE WORKS.—The establishment of the commemorative work under this section shall be in accordance with chapter 89 of title 40, United States Code (commonly known as the ''Commemorative Works Act'').

(c) PROHIBITION ON THE USE OF FEDERAL FUNDS.—

(1) IN GENERAL.—Federal funds may not be used to pay any expense of the establishment of the commemorative work under this section.

(2) RESPONSIBILITY OF WOMEN WHO WORKED ON THE HOME FRONT FOUNDATION.—The Women Who Worked on the Home Front Foundation shall be solely responsible for acceptance of contributions for, and payment of the expenses of, the establishment of the commemorative work under this section.

(d) DEPOSIT OF EXCESS FUNDS.—

(1) IN GENERAL.—If upon payment of all expenses for the establishment of the memorial (including the maintenance and preservation amount required by section 8906(b)(1) of title 40, United States Code), there remains a balance of funds received for the establishment of the commemorative work, the Women Who Worked on the Home Front Foundation shall transmit the amount of the balance to the Secretary of the Interior for deposit in the account provided for in section 8906(b)(3) of title 40, United States Code.

(2) ON EXPIRATION OF AUTHORITY.—If upon expiration of the authority for the commemorative work under section 8903(e) of title 40, United States Code, there remains a balance of funds received for the establishment of the commemorative work, the Women Who Worked on the Home Front Foundation shall transmit the amount of the

balance to a separate account with the National Park Foundation for memorials, to be available to the Secretary of the Interior or Administrator (as appropriate) following the process provided in section 8906(b)(4) of title 40, United States Code, for accounts established under section 8906(b)(2) or (3) of title 40, United States Code.

SEC. 3. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from Michigan (Mrs. DINGELL) and the gentleman from Virginia (Mr. WITTMAN) each will control 20 minutes.

The Chair recognizes the gentlewoman from Michigan.

GENERAL LEAVE

Mrs. DINGELL. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Michigan?

There was no objection.

Mrs. DINGELL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in strong support of H.R. 5068, the Women Who Worked on the Home Front World War II Memorial Act, introduced by Representative ELEANOR HOLMES NORTON. H.R. 5068 would authorize the establishment of a memorial to commemorate the nearly 19 million women who worked on the home front during World War II.

With mass male enlistment leaving significant vacancies in the industrial and defense industries, women across the country filled thousands of jobs that were historically held by men to support the war effort and to keep America running.

I am proud of the fact that my district is home to Rosie the Riveters, which were a good example of women being able to do it.

As the men fought abroad, these women worked in defense plants, flew military aircraft, delivered mail, and performed countless other duties necessary to keep the home front running.

In addition to the women working on the home front, nearly 350,000 women served in uniform, both at home and abroad, directly supporting the war effort as code breakers, as Air Force service pilots, and as volunteers for organizations such as the Army Nurse Corps.

The work carried out by women on the home front during World War II opened the door for women to hold more types of jobs than ever before, and it is long past time that Congress recognized their contributions to our Nation.

I would like to thank my colleague, Representative NORTON, for introducing this important legislation. I would also like to extend my gratitude to Ms. Raya Kenney, who developed the idea for this memorial when she was in fifth grade, for her tireless efforts to ensure that the millions of women who worked on the home front during World War II are recognized and celebrated.

Mr. Speaker, I urge my colleagues to vote ''yes'' on H.R. 5068, and I reserve the balance of my time.

□ 1530

Mr. WITTMAN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in strong support of H.R. 5068, which would authorize the Women Who Worked on the Home Front Foundation to establish a commemorative work in Washington, D.C., to recognize the commitment and service represented by women who worked on the home front during World War II.

These 19 million American women stepped up to support their Nation during America's involvement in World War II. Women worked in a huge variety of critical professional roles, including code breakers, aircraft testing pilots and trainers, welders, steamfitters, telegraph operators, radio and electrical engineers, crane operators, surveyors, assembly line workers, as they replaced men who were heading off to war.

Some 300,000 Virginians served in uniform and more than 11,000 never returned home. For many women, the war provided increased opportunities to serve their community, their Nation, and to aid in the war effort.

The work women did during World War II can never be fully measured, and their impact on our national welfare for the decades that followed should forever be enshrined in our national story.

The beneficial contribution women made during the war were felt locally here in Virginia, as well as across the Nation.

For example, the Richmond Engineering Company employed women welders who made bomb heads. At Newport News shipyard, women worked as crane operators, electricians, mechanics, and more, as critical members of the Defense production workforce.

In recent years, Congress also has established the Rosie the Riveter National Historical Park in California to further highlight the work of these incredible patriots during the war. Authorizing this commemorative work in our Nation's capital is another fitting tribute to the brave, strong, multitalented, intelligent women who helped us win the war.

Mr. Speaker, I urge adoption of the measure, and I reserve the balance of my time.

Mrs. DINGELL. Mr. Speaker, I yield 5 minutes to the gentlewoman from the District of Columbia.

Ms. NORTON. Mr. Speaker, I thank my good friend for yielding.

Mr. Speaker, I thank Chair GRIJALVA for taking the Women Who Worked on the Home Front World War II Memorial Act through committee and bringing it to the floor. I appreciate that he allowed me to sit in and ask questions, and he conducted a hearing and pressed it forward quickly.

Mr. Speaker, this bipartisan bill would authorize the establishment of a memorial on Federal land here in the District of Columbia commemorating the efforts of 18 million American women who kept the home front running during World War II. Women are dramatically underrepresented in our memorials.

A 17-year-old constituent of mine, Raya Kenney, the founder of the Women Who Worked on the Home Front Foundation—yes, her own foundation—came up with the idea to honor the women on the home front who supported the World War II effort. Raya wondered why the women on the home front, whose efforts were so instrumental in maintaining the stability of the country during World War II, have not received much recognition for their contributions compared to the men who fought bravely in World War II.

This bill would authorize the Women Who Worked on the Home Front Foundation to establish a memorial to honor these women. The memorial is designed to be interactive and to educate visitors on the important roles women played during World War II. No Federal funds would be required.

Between 1940 and 1945, the percentage of women in the workforce increased from 27 percent to nearly 37 percent. And by 1945, one in four married women worked outside the home. The work done by women on the home front opened doors for women in the workplace generally and had a profound effect on the job market going forward, and even up to today.

As a result of their efforts, women on the home front redefined many occupations that were especially considered men's work.

Mr. Speaker, I thank the gentlewoman for yielding.

Mr. WITTMAN. Mr. Speaker, I have no further speakers, and I yield back the balance of my time.

Mrs. DINGELL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I thank the gentleman and all the leadership on the Committee on Natural Resources, again, for making this a reality. I thank my colleague, Ms. ELEANOR HOLMES NORTON, for the work that she did.

Mr. Speaker, as we are talking about this bill, several years ago with my then-Republican colleague, Candace Miller, we did the first honor flight of the Rosie the Riveters. We went to the World War II Memorial, and it was incredible. But to have a place to take them will be very special, and I hope we are able to do it while some of them can appreciate what we are doing.

This bipartisan legislation will honor the 18 million American women who

played a key role in our Nation's war effort during World War II through their efforts on the home front.

Mr. Speaker, I urge my colleagues to support this legislation, and I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, as a cosponsor and a senior member of the House of Representatives, I rise in strong support of H.R. 5068, the "Women Who Worked on the Home Front World War II Memorial Act," which would authorize the establishment of a memorial on federal land in the District of Columbia, commemorating the efforts of the 18 million American women who kept the home front running during World War II.

I would like to thank Congresswoman ELEANOR HOLMES NORTON for introducing this important piece of legislation.

It is no secret that women are dramatically underrepresented when it comes to our memorials.

Despite being instrumental in maintaining the stability of the country during World War II, the women of World War II have not received much recognition for their contributions.

This bill would change that by authorizing the Women Who Worked on the Home Front Foundation to establish a memorial to honor these women.

The memorial is designed to be interactive and to educate visitors on the crucial roles women played during World War II.

For instance, millions of American women took jobs to support their families and the country at large during World War II, forever redefining what "women's work" looked like.

In fact, more than 10,000 women served behind the scenes of World War II as codebreakers.

Women were also trained to fly military aircraft so that male pilots could leave for combat duty overseas.

More than 1,100 female civilian volunteers flew nearly every type of military aircraft as part of the Women Airforce Service Pilots (WASP) program.

WASPs flew planes from factories to bases, transported cargo and participated in simulation strafing and target missions.

Between 1940 and 1945, the percentage of women in the workforce increased from 27 percent to nearly 37 percent, and, by 1945, one in four married women worked outside of the home.

The work done by women on the home front had a profound effect on the job market going forward.

As the nation continues to mourn the loss of the 'Notorious RBG', an unmatched constitutional scholar and Supreme Court Justice who irrevocably advanced the women's movement, I can think of no better way to honor her legacy than by voting for this bill to commemorate the women whose sacrifices and decisions to enter the workforce during World War II also helped to change perceptions about gender roles in society.

We, as Members of Congress, have a duty to recognize and celebrate these revolutionary patriots for their service to this country.

As a proud leader of this bill, I encourage my fellow colleagues to vote in favor of H.R. 5068.

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from Michigan (Mrs. DINGELL) that the House suspend the rules and pass the bill, H.R. 5068, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

MAKING CERTAIN TECHNICAL CORRECTIONS TO KLAMATH BASIN WATER SUPPLY ENHANCEMENT ACT OF 2000

Mrs. DINGELL. Mr. Speaker, I move to suspend the rules and pass the bill (S. 3758) to amend the Klamath Basin Water Supply Enhancement Act of 2000 to make certain technical corrections.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 3758

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. KLAMATH BASIN WATER SUPPLY ENHANCEMENT ACT OF 2000 TECHNICAL CORRECTIONS.

Section 4(b) of the Klamath Basin Water Supply Enhancement Act of 2000 (114 Stat. 2222; 132 Stat. 3887) is amended—

(1) in paragraph (1)—

(A) in the matter preceding subparagraph (A)—

(i) by striking ''Pursuant to the reclamation laws and subject'' and inserting ''Subject''; and

(ii) by striking ''may'' and inserting ''is authorized to''; and

(B) in subparagraph (A), by inserting '', including conservation and efficiency measures, land idling, and use of groundwater,'' after ''administer programs'';

(2) in paragraph (3)(A), by inserting ''and'' after the semicolon at the end;

(3) by redesignating the second paragraph (4) (relating to the effect of the subsection) as paragraph (5); and

(4) in paragraph (5) (as so redesignated)—

(A) by striking subparagraph (B);

(B) in subparagraph (A), by striking ''; or'' and inserting a period; and

(C) by striking ''the Secretary—'' and all that follows through ''to develop'' in subparagraph (A) and inserting ''the Secretary to develop''.

SEC. 2. CONTINUED USE OF PICK-SLOAN MISSOURI BASIN PROGRAM PROJECT USE POWER BY THE KINSEY IRRIGATION COMPANY AND THE SIDNEY WATER USERS IRRIGATION DISTRICT.

(a) AUTHORIZATION.—Notwithstanding any other provision of law and subject to subsection (b), the Secretary of the Interior (acting through the Commissioner of Reclamation) shall continue to treat the irrigation pumping units known as the ''Kinsey Irrigation Company'' in Custer County, Montana and the ''Sidney Water Users Irrigation District'' in Richland County, Montana, or any successor to the Kinsey Irrigation Company or Sidney Water Users Irrigation District, as irrigation pumping units of the Pick-Sloan Missouri Basin Program for the purposes of wheeling, administration, and payment of project use power, including the applicability of provisions relating to the treatment of costs beyond the ability to pay under section 9 of the Act of December 22, 1944 (commonly known as the ''Flood Control Act of 1944'') (58 Stat. 891, chapter 665).

(b) LIMITATION.—The quantity of power to be provided to the Kinsey Irrigation Company and the Sidney Water Users Irrigation District (including any successor to the Kinsey Irrigation Company or the Sidney Water Users Irrigation District) under subsection (a) may not exceed the maximum quantity of power provided to the Kinsey Irrigation Company and the Sidney Water Users Irrigation District under the applicable contract for electric service in effect on the date of enactment of this Act.

The SPEAKER pro tempore. Pursuant to the rule, the gentlewoman from Michigan (Mrs. DINGELL) and the gentleman from Virginia (Mr. WITTMAN) each will control 20 minutes.

The Chair recognizes the gentlewoman from Michigan.

GENERAL LEAVE

Mrs. DINGELL. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the measure under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from Michigan?

There was no objection.

Mrs. DINGELL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of S. 3758, which addresses two issues regarding Bureau of Reclamation water and power management.

First, the bill amends Klamath Basin Water Supply Enhancement Act of 2000 to support water conservation and efficiency measures in the Klamath Basin. This bill provides additional authorization for Reclamation to work with Klamath Basin irrigators on activities that align water supplies and demand.

Further, this legislation would extend the use of drought relief funding to certain conservation measures, land idling, and groundwater uses.

Second, the bill also carries provisions to make two irrigation districts in eastern Montana eligible to continue to receive project use power rates from the Bureau of Reclamation.

Mr. Speaker, I appreciate the efforts from Senators MERKLEY and WYDEN to advance this bill, and I urge my colleagues to support its adoption.

Mr. Speaker, I reserve the balance of my time.

Mr. WITTMAN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in reluctant support of S. 3758. While this bill makes important technical corrections that will provide relief to the Klamath Basin irrigators which have been hard hit by drought, it also includes a provision that perpetuates a 75-year mistake.

In 1946, the Bureau of Reclamation entered into contracts with two irrigation entities in Montana to provide project use power, better known as PUP.

Normally, these subsidized power rates are reserved for Federal projects. However, for reasons lost to history, these two entities—which are not part of any Federal project, and in fact, one is a private company—have been able to obtain and renew their project use power or PUP contracts.

Recently, the Bureau of Reclamation realized it lacked the authority to provide these two entities PUP rates and has decided to let these contracts expire December 31, 2020. It is extremely concerning that it took the Bureau of Reclamation 75 years to realize it made a mistake, which makes this situation quite unique. This unfortunate mistake by bureaucrats left more than 130 family farms in limbo, uncertain if they will be able to afford to maintain their farmland after January 1, 2021.

While we are not opposing this fix today, the committee wants to be clear that this is a one-off, unique situation. We do not see this as a pathway or precedent for other irrigation districts to follow.

Mr. Speaker, I include in the RECORD two legal opinions from the Department of the Interior, Office of the Solicitor, which indicate that the department did not have the legal authority to enter into PUP contracts with the two Pick-Sloan Missouri Basin Program entities because there is no Federal nexus.

U.S. DEPARTMENT OF THE INTERIOR,
OFFICE OF THE SOLICITOR,
Billings, MT, March 10, 2014.

Memorandum

To: Michael J. Ryan, Regional Director, Bureau of Reclamation, Great Plains Region, Billings, Attn: GP–4100 (Fern Thompson)

From: Karan L. Dunnigan, Field Solicitor, Office of the Solicitor, Rocky Mountain Region (Billings)

Subject: Authority to Enter Into a Pick-Sloan Missouri Basin Program (P–SMBP) Project Use Power (PUP) Contract with Kinsey Irrigation Company (Company)

I. QUESTION

In an October 31, 2013 memorandum, you asked: (1) whether the Bureau of Reclamation (Reclamation) had or has the authority to enter into a PUP contract with the Company; (2) if not, whether Reclamation should continue to honor its current contract with the Company until the contract expires; and (3) if so, if Reclamation should approve the Company's request for an increased contract rate of delivery.

II. BRIEF ANSWER

Reclamation does not and did not have the authority to enter into a PUP contract with the Company, because the United States has had no interest in the unit and there has been no federal nexus with the unit since the title transfer of the Kinsey facilities in the 1940's. Because Reclamation has no authority to provide PUP to the Company, Reclamation should seek to terminate the provision of PUP to Kinsey as soon as is practical. And any increased deliveries to the Company should not be at a PUP rate.

III. BACKGROUND

The Farm Security Administration constructed the Kinsey project in 1937. The project was referenced in Senate Document 191, 78th Congress, 2nd Session, 1944, and thus appears to have been contemplated to be (and indeed was briefly) a P–SMBP unit. However, in 1945 the Company purchased the federally-owned Kinsey project facilities from the United States, rendering the Kinsey project entirely private. The Kinsey project has no other federal nexus.

In 1946, Reclamation entered into a power contract with the Company, providing power at the PUP rate of 2.5 mills per kilowatt-hour. Reclamation's regional office raised concerns about providing PUP power to a private district on several occasions, but for reasons lost to history, the Commissioner of Reclamation's office instructed the region to continue providing PUP power to the district, and at the original 2.5 mill rate. The contract has been renewed and extended over the years, and currently terminates on December 31, 2020.

The Kinsey project does appear in the 1963 ''Report on Financial Position, Missouri River Basin Project'' (1963 Report) as a project entitled to PUP.

IV. ANALYSIS

Pursuant to Reclamation Law and Policy, PUP is available only where it has been specifically authorized by Congress and, unless Congress specifically provides otherwise, only to Reclamation projects. Here, while the Kinsey project was initially a federal project, and briefly an authorized unit of the P–SMBP, title transfer to the Company divested the Kinsey project of its status as an authorized P–SMPB unit and rendered it entirely private. Accordingly, the Company is not entitled to PUP.

A. Project Pumping Power

Authority to produce and supply PUP is implied in the Town Sites and Power Development Act of 1906 (Act of April 16, 1906, ch. 1631, 34 Stat. 116). PUP is further contemplated under the Reclamation Project Act of 1939, at section 9(c), which provides that:

Any sale of electric power . . . made by the Secretary in connection with the operation of any project or division of a project, shall be for such periods, not to exceed forty years, and at such rates as in his judgment will produce power revenues at least sufficient to cover an appropriate share of the construction investment at not less than 3 per center per annum . . .

Thus, under the 1939 Act, PUP must also be ''in connection with the operation of any project or division of a project.'' And under further Reclamation law and policy, PUP is only available to Reclamation projects for which PUP was explicitly authorized. The Reclamation Act of 1902 provides that ''the title to and the management and operation of the reservoirs and the works necessary for their protection and operation shall remain in the Government until otherwise provided by Congress.'' §6. So, without further authorization from Congress, Reclamation projects must be owned by the United States.

The Reclamation Manual at FAC 04–06 provides that ''[p]roject use power is used to meet the electrical service requirements of a Reclamation project pursuant to congressional authorization.'' Further, the Reclamation Manual defines Reclamation Project as ''those facilities or features of a project constructed/developed/or transferred to Reclamation under the authority of Federal Reclamation law (or the Water Conservation and Utilization Act) for which ownership is retained by the United States, unless otherwise authorized by Congress.'' As with the 1902 and 1939 Acts, under the Reclamation Manual project use power can only be provided to project facilities owned by the United States unless Congress authorizes otherwise.

The Flood Control Act of 1944 authorized the P–SMBP. Subsection (a) of Section 9 of that Act approved the general comprehensive plans set forth in H.D. 475 and S.D. 191, 78th Congress 2nd Session. S.D. 191, at page 22, provides:

In the plan proposed, irrigation pumping with its incidental power requirements plays a large part. The cost of such power will be an important element in the irrigators' annual expenses, and must be low if success is to be achieved. Experience and study indicate that the cost per kilowatt-hour should not exceed 2½ mills for energy delivered to major project pumping plants.

(The current PUP rate is of course much higher than the rate contemplated in 1944, but still a fraction of the market rate.)

The Kinsey project was a federal irrigation project, transferred to Reclamation as a part of the Flood Control Act of 1944. Therefore, the Kinsey project was briefly a P-SMPB unit. However, the Kinsey project ceased to be a Reclamation project when the Company bought it two years later. Without specific Congressional authority, facilities transferred by title transfer are no longer able to receive PUP because they are no longer federal projects.

B. The 1963 Report

Although the 1963 Report indicates in its exhibits that the Kinsey project receives PUP, we interpret this inclusion as an oversight resulting from to the fact that the Kinsey project was initially a P–SMBP unit and had continued to receive PUP.

Congress adopted the ''1963 Report'' by passing .the 1965 Garrison Diversion Unit legislation:

In addition to reauthorizing the initial stage of the Garrison diversion unit, the approval of this legislation will indicate acceptance by the Congress of the Department's recommendations with respect to the overall financial position of the Missouri River Basin project. About 3 years ago, the committee requested the Department of the Interior to study ways and means of placing the Missouri River Basin project in a sound financial position and to report its findings and recommendations to the Congress. A ''sound financial position'' was interpreted to mean that commercial power and municipal and industrial water investments would be repaid with interest in not to exceed 50 years and that irrigation investments would be repaid within 50 years plus any authorized development period, including that portion to be repaid from power revenues.

H.R. Rept. No. 282, 89th Cong., 1st Sess. 8 (1965). Identical language appeared in the 1964 report, H.R. Rept. No. 1606, 88th Cong., 2d Sess. 8 (1964), and the Senate committee report contained a similar acknowledgement, S. Rept. No. 470 (on S. 34). 89th Cong, 1st Sess. 4 (1965).

Thus, as with our recent memorandum on PUP at Frenchman-Cambridge Unit, we interpret the presence or absence of a unit in the 1963 Report as evidence of Congress's intent for that unit. But even where the Kinsey project's inclusion in the report is contrary evidence, it is not sufficient to indicate clear Congressional intent to provide PUP to a project that is otherwise completely private and without a federal nexus .

C. The Current Contract with the Company

The provision of power to the Company at a PUP rate has never been authorized, so Reclamation should seek to raise the rate or terminate the current contract as soon as it is practical. The contract contains a ''Modification of Rates'' provision allowing for the United States to promulgate a new rate schedule for the contract (General Power Contract Provisions, ¶F). The provision sets forth the procedure by which the United States gives notice to the Company of a new rate schedule, and the Company has the option to terminate its contract instead of accepting the new rate.

V. CONCLUSION

Without clear Congressional intent to the contrary, privately owned facilities are not eligible to receive PUP. The Kinsey project was transferred to the Company in 1946, and has been private for 68 years. The project has

no other federal nexus. Reclamation has no authority to provide power to the Company at PUP rates. Reclamation should stop doing so as soon as it is practical.

If you have any questions, please contact Bryan Wilson in this office.

U.S. DEPARTMENT OF THE INTERIOR,
OFFICE OF THE SOLICITOR,
Billings, Montana, November 30, 2017.

Memorandum

To: Michael J. Ryan, Regional Director, Bureau of Reclamation Great Plains Region, Billings, Attn: GP-4100 (Margaret Ventling)

From: Karen L. Dunnigan, Field Solicitor, Office of the Solicitor, Rocky Mountain Region (Billings)

Subject: Authority to Enter Into a Pick-Sloan Missouri Basin Program (P–SMBP) Project Use Power (PUP) Contract with Sidney Water Users Irrigation District (Sidney)

I. QUESTION

In a November 9, 2017 memorandum, you asked if the Bureau of Reclamation (Reclamation) is authorized to enter into a PUP contract with Sidney.

II. BRIEF ANSWER

Reclamation does not have and never had the authority to enter into a PUP contract with Sidney, because the United States never had an interest in Sidney's project, there is no federal nexuswith Sidney, and no other authority exists to allow Reclamation to provide PUP to Sidney. This situation is similar to that of Kinsey Irrigation Company, addressed in our memorandum dated March 10, 2014, except that Kinsey was originally a Reclamation project.

III. BACKGROUND

The Sidney project was constructed by the State of Montana in 1938. Reclamation entered into Contract No. L79R–449 with Sidney's predecessor-in-interest, the Montana State Water Conservation Board, on July 31, 1946, for seasonal irrigation pumping power. Contract No. L79R–449 terminated and was replaced by Contract 14–06–600–9164 on May 15, 1967. The latter contract was supplemented and extended, and ultimately was to expire on December 31, 2000. The State assigned the contract to Sidney on June 30, 1997, and the Western Area Power Administration extended the contract until December 31, 2020.

IV. ANALYSIS

Pursuant to Reclamation Law and Policy, PUP is available only where it has been specifically authorized by Congress and, unless Congress specifically provides otherwise, only to Reclamation projects. While the Kinsey project referenced above was initially a federal project, the Sidney project has never been federal or had a federal nexus. Accordingly, Sidney is not and never was entitled to PUP.

Authority to produce and supply PUP is implied in the Town Sites and Power Development Act of 1906 (Act of April 16, 1906, ch. 1631, 34 Stat. 116). PUP is further contemplated under the Reclamation Project Act of 1939, at section 9(c), which provides that:

Any sale of electric power . . . made by the Secretary in connection with the operation of any project or division of a project, shall be for such periods, not to exceed forty years, and at such rates as in his judgment will produce power revenues at least sufficient to cover an appropriate share of the construction investment at not less than 3 per center per annum . . .

Thus, under the 1939 Act, PUP must also be ''in connection with the operation of any project or division of a project.'' And under further Reclamation law and policy, PUP is only available to Reclamation projects for which PUP was explicitly authorized. The Reclamation Act of 1902 provides that ''the title to and the management and operation of the reservoirs and the works necessary for their protection and operation shall remain in the Government until otherwise provided by Congress.'' §6. So, without further authorization from Congress, Reclamation projects must be owned by the United States.

The Reclamation Manual at FAC 04–06 provides that PUP ''is used to meet the electrical service requirements of a Reclamation project pursuant to congressional authorization.'' Further, the Reclamation Manual defines a Reclamation project as ''those facilities or features of a project constructed/developed/or transferred to Reclamation under the authority of Federal Reclamation law (or the Water Conservation and Utilization Act) for which ownership is retained by the United States, unless otherwise authorized by Congress.'' As with the 1902 and 1939 Acts, under the Reclamation Manual PUP can only be provided to project facilities owned by the United States unless Congress authorizes otherwise.

The Flood Control Act of 1944 authorized the P-SMBP. Subsection (a) of Section 9 of that Act approved the general comprehensive plans set forth in H.D. 475 and S.D. 191, 78th Congress 2nd Session. S.D. 191, at page 22, provides:

In the plan proposed, irrigation pumping with its incidental power requirements plays a large part. The cost of such power will be an important element in the irrigators' annual expenses, and must be low if success is to be achieved. Experience and study indicate that the cost per kilowatt-hour should not exceed 2½ mills for energy delivered to major project pumping plants.

(The current PUP rate is of course much higher than the rate contemplated in 1944, but still a fraction of the market rate.)

Sidney was always a state project. and it is unclear why it was ever provided PUP. Without specific Congressional authority, nonfederal projects are not eligible to receive PUP.

V. CONCLUSION

Without clear Congressional intent to the contrary, non-federal facilities are not eligible to receive PUP. Sidney is not and has never been federal, and has no federal nexus. Reclamation has no authority to provide power to Sidney at PUP rates.

If you have any questions, please contact Bryan Wilson in this office.

Mr. WITTMAN. Mr. Speaker, I yield 2 minutes to the gentleman from Oregon (Mr. WALDEN).

Mr. WALDEN. Mr. Speaker, I thank my colleagues for bringing this legislation forward, and especially Chairman GRIJALVA and Ranking Member BISHOP. I also thank Oregon senators, MERKLEY and WYDEN, for their efforts on this, too.

Irrigators in the Klamath Basin, which I represent, face another drought-stricken year. There have been a lot of things we have done to help them over time. I have been involved in these issues for more than 20 years now, and it is one of the most vexing water systems in the country when you try and parse it all together and make it all work, and couple that with Federal requirements and Tribal rights, and then get a drought year, we get in really bad shape.

This year, I welcomed Secretary of Interior David Bernhardt and Bureau of Reclamation Commissioner Brenda Burman to the Klamath Basin. They got a firsthand look at what our farmers were facing there. Secretary Bernhardt was the first Secretary of the Interior to visit the Klamath Basin in about 20 years, so we are really appreciative that he took time personally to come out there.

We are thankful to the Trump administration for listening to us. They have committed to provide funding to ensure we have the best science available to make better decisions by the Federal Government when it comes to the allocation of water.

Today, in this legislation, we are providing yet another tool to help farmers. This legislation will give the Bureau of Reclamation the authority to spend $10 million each year over the next 4 years to implement measures including groundwater pumping and water movement through the Bureau of Reclamation facilities. This is simply essential for the survival of irrigated agriculture in the Basin.

Mr. Speaker, I look forward to continuing to work with Congress, the administration, and local officials to find durable, lasting solutions for the farmers, ranchers, fish, and Tribes in the Klamath Basin.

Mr. Speaker, I thank my colleagues for bringing this bill forward, and urge its passage.

Mrs. DINGELL. Mr. Speaker, I have no further requests for time, and I reserve the balance of my time.

Mr. WITTMAN. Mr. Speaker, I am prepared to close, and I yield myself such time as I may consume.

Mr. Speaker, I commend Congressman GREG WALDEN for his sponsorship of the House companion bill, H.R. 7116, that makes the needed noncontroversial technical corrections to the Klamath Basin Water Supply Act so that all the benefits can be accessed.

Congressman GIANFORTE is also supporting his constituents as the House sponsor of H.R. 3471, which mirrors Montana's provisions that are contained within S. 3758.

Again, I thank all my colleagues on both sides of the aisle who worked hard to resolve this issue so that folks in these regions can have certainty about the water that they so desperately need.

Mr. Speaker, I yield back the balance of my time.

Mrs. DINGELL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I, too, commend my colleague, Mr. WALDEN, for his leadership and trying to bring this together with Mr. GIANFORTE and finding an answer. I am going to miss my friend deeply so he better stay engaged to make sure we do this right.

I thank Mr. WITTMAN for working with him this afternoon on the passage of this and several other critical bills. And all the leadership of the Committee on Natural Resources. And, again, what happens when Republicans and Democrats work together, we can really get things done.

Mr. Speaker, this legislation will help address water conservation and the power challenges in the Klamath Basin.

Mr. Speaker, I urge my colleagues to support this legislation, and I yield back the balance of my time.

□ 1545

The SPEAKER pro tempore. The question is on the motion offered by the gentlewoman from Michigan (Mrs. DINGELL) that the House suspend the rules and pass the bill, S. 3758.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

SENATOR KAY HAGAN AIRPORT TRAFFIC CONTROL TOWER

Mr. DEFAZIO. Mr. Speaker, I ask unanimous consent to take from the Speaker's table the bill (S. 4762) to designate the airport traffic control tower located at Piedmont Triad International Airport in Greensboro, North Carolina, as the ''Senator Kay Hagan Airport Traffic Control Tower'', and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Oregon?

There was no objection.

The text of the bill is as follows:

S. 4762

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. DESIGNATION.

The airport traffic control tower located at Piedmont Triad International Airport in Greensboro, North Carolina, and any successor airport traffic control tower at that location, shall be known and designated as the ''Senator Kay Hagan Airport Traffic Control Tower''.

SEC. 2. REFERENCES.

Any reference in a law, map, regulation, document, paper, or other record of the United States to the airport traffic control tower referred to in section 1 shall be deemed to be a reference to the ''Senator Kay Hagan Airport Traffic Control Tower''.

The bill was ordered to be read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

STOP SEXUAL ASSAULT AND HARASSMENT IN TRANSPORTATION ACT

Mr. DEFAZIO. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 5139) to protect transportation personnel and passengers from sexual assault and harassment, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 5139

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Stop Sexual Assault and Harassment in Transportation Act''.

SEC. 2. FORMAL SEXUAL ASSAULT AND HARASSMENT POLICIES ON AIR CARRIERS AND FOREIGN AIR CARRIERS.

(a) IN GENERAL.—Chapter 417 of title 49, United States Code, is amended by adding at the end the following:

''§ 41727. Formal sexual assault and harassment policies

''(a) REQUIREMENT.—Not later than 180 days after the date of enactment of this section, each air carrier and foreign air carrier transporting passengers for compensation shall issue, in consultation with labor unions representing personnel of the air carrier or foreign air carrier, a formal policy with respect to transportation sexual assault or harassment incidents.

''(b) CONTENTS.—The policy required under subsection (a) shall include—

''(1) a statement indicating that no transportation sexual assault or harassment incident is acceptable under any circumstance;

''(2) procedures that facilitate the reporting of a transportation sexual assault or harassment incident, including—

''(A) appropriate public outreach activities; and

''(B) confidential phone and internet-based opportunities for reporting;

''(3) procedures that personnel should follow upon the reporting of a transportation sexual assault or harassment incident, including actions to protect affected individuals from continued sexual assault or harassment and to notify law enforcement when appropriate;

''(4) procedures that may limit or prohibit, to the extent practicable, future travel with the air carrier or foreign air carrier by any passenger who causes a transportation sexual assault or harassment incident; and

''(5) training that is required for all appropriate personnel with respect to the policy required under subsection (a), including—

''(A) specific training for personnel who may receive reports of transportation sexual assault or harassment incidents; and

''(B) recognizing and responding to potential human trafficking victims, in the same manner as required under section 44734(a)(4).

''(c) PASSENGER INFORMATION.—An air carrier or foreign air carrier described in subsection (a) shall prominently display, on the internet website of the air carrier or foreign air carrier and through the use of appropriate signage, a written statement that—

''(1) advises passengers and personnel that the carrier has adopted a formal policy with respect to transportation sexual assault or harassment incidents;

''(2) informs passengers and personnel of the other major components of the carrier's formal policy, including a statement indicating that no transportation sexual assault or harassment incident is acceptable under any circumstance; and

''(3) informs passengers and personnel of the procedure for reporting a transportation sexual assault or harassment incident.

''(d) STANDARD OF CARE.—Compliance with the requirements of this section, and any policy issued thereunder, shall not determine whether the air carrier or foreign air carrier described in subsection (a) has acted with any requisite standard of care.

''(e) DEFINITIONS.—In this section:

''(1) PERSONNEL.—The term 'personnel' means an employee or contractor of an air carrier or foreign air carrier.

''(2) SEXUAL ASSAULT.—The term 'sexual assault' means the occurrence of an act that constitutes any nonconsensual sexual act proscribed by Federal, tribal, or State law, including when the victim lacks capacity to consent.

''(3) TRANSPORTATION SEXUAL ASSAULT OR HARASSMENT INCIDENT.—The term 'transportation sexual assault or harassment incident' means the occurrence, or reasonably suspected occurrence, of an act that—

''(A) constitutes sexual assault or sexual harassment; and

''(B) is committed—

''(i) by a passenger or member of personnel of an air carrier or foreign air carrier against another passenger or member of personnel of an air carrier or foreign air carrier; and

''(ii) within an aircraft or in an area in which passengers are entering or exiting an aircraft.''.

(b) CLERICAL AMENDMENT.—The analysis for chapter 417 of title 49, United States Code, is amended by adding at the end the following:

''41727. Formal sexual assault and harassment policies.''.

SEC. 3. FORMAL SEXUAL ASSAULT AND HARASSMENT POLICIES FOR CERTAIN MOTOR CARRIERS.

(a) REQUIREMENT.—Not later than 180 days after the date of enactment of this Act, each covered motor carrier shall issue, in consultation with labor unions representing personnel of the covered motor carrier, a formal policy with respect to transportation sexual assault or harassment incidents.

(b) CONTENTS.—The policy required under subsection (a) shall include—

(1) a statement indicating that no transportation sexual assault or harassment incident is acceptable under any circumstance;

(2) procedures that facilitate the reporting of a transportation sexual assault or harassment incident, including—

(A) appropriate public outreach activities; and

(B) confidential phone and internet-based opportunities for reporting;

(3) procedures that personnel should follow upon the reporting of a transportation sexual assault or harassment incident, including actions to protect affected individuals from continued sexual assault or harassment and to notify law enforcement when appropriate;

(4) procedures that may limit, to the extent practicable, future travel with the covered motor carrier by any passenger who causes a transportation sexual assault or harassment incident; and

(5) training that is required for all appropriate personnel with respect to the policy required under subsection (a), including—

(A) specific training for personnel who may receive reports of transportation sexual assault or harassment incidents; and

(B) recognizing and responding to potential human trafficking victims.

(c) PASSENGER INFORMATION.—A covered motor carrier shall prominently display, on the internet website of the covered motor carrier and through the use of appropriate signage, a written statement that—

(1) advises passengers that the covered motor carrier has adopted a formal policy with respect to transportation sexual assault or harassment incidents;

(2) informs passengers and personnel of the other major components of the covered motor carrier's formal policy, including a statement indicating that no transportation sexual assault or harassment incident is acceptable under any circumstance; and

(3) informs passengers of the procedure for reporting a transportation sexual assault or harassment incident.

(d) STANDARD OF CARE.—Compliance with the requirements of this section, and any policy issued thereunder, shall not determine whether the covered motor carrier has acted with any requisite standard of care.

(e) DEFINITIONS.—In this section:

(1) PERSONNEL.—The term ''personnel'' means an employee or contractor of a covered motor carrier.

(2) COVERED MOTOR CARRIER.—The term ''covered motor carrier'' means a motor carrier of passengers that—

(A) conducts regularly scheduled intercity service; and

(B) is a Class I carrier (as that term is used in section 369.3(a) of title 49, Code of Federal Regulations).

(3) SEXUAL ASSAULT.—The term ''sexual assault'' means the occurrence of an act that constitutes any nonconsensual sexual act proscribed by Federal, tribal, or State law, including when the victim lacks capacity to consent.

(4) TRANSPORTATION SEXUAL ASSAULT OR HARASSMENT INCIDENT.—The term ''transportation sexual assault or harassment incident'' means the occurrence, or reasonably suspected occurrence, of an act that—

(A) constitutes sexual assault or sexual harassment; and

(B) is committed—

(i) by a passenger or member of personnel of covered motor carrier against another passenger or member of personnel of the covered motor carrier; and

(ii) within a vehicle of the motor carrier or in an area in which passengers are entering or exiting such a vehicle.

SEC. 4. FORMAL SEXUAL ASSAULT AND HARASSMENT POLICIES ON PASSENGER COMMUTER AND INTERCITY RAIL.

(a) IN GENERAL.—Chapter 241 of title 49, United States Code, is amended by adding at the end the following:

''§ 24104. Formal sexual assault and harassment policies

''(a) REQUIREMENT.—Not later than 180 days after the date of enactment of this section, each covered rail entity shall issue, in consultation with labor unions representing personnel with respect to the covered rail entity, a formal policy with respect to transportation sexual assault or harassment incidents.

''(b) CONTENTS.—The policy required under subsection (a) shall include—

''(1) a statement indicating that no transportation sexual assault or harassment incident is acceptable under any circumstance;

''(2) procedures that facilitate the reporting of a transportation sexual assault or harassment incident, including—

''(A) appropriate public outreach activities; and

''(B) confidential phone and internet-based opportunities for reporting;

''(3) procedures that personnel should follow upon the reporting of a transportation sexual assault or harassment incident, including actions to protect affected individuals from continued sexual assault or harassment and to notify law enforcement when appropriate;

''(4) procedures that may limit or prohibit, to the extent practicable, future travel with the covered rail entity by any passenger who causes a transportation sexual assault or harassment incident; and

''(5) training that is required for all appropriate personnel with respect to the policy required under subsection (a), including—

''(A) specific training for personnel who may receive reports of transportation sexual assault or harassment incidents; and

''(B) recognizing and responding to potential human trafficking victims.

''(c) PASSENGER INFORMATION.—A covered rail entity shall prominently display, on the internet website of the entity and through the use of appropriate signage, a written statement that—

''(1) advises passengers and personnel that the covered rail entity has adopted a formal policy with respect to transportation sexual assault or harassment incidents;

''(2) informs passengers and personnel of the other major components of the covered rail entity's formal policy, including a statement indicating that no transportation sexual assault or harassment incident is acceptable under any circumstance; and

''(3) informs passengers and personnel of the procedure for reporting a transportation sexual assault or harassment incident.

''(d) STANDARD OF CARE.—Compliance with the requirements of this section, and any policy issued thereunder, shall not determine whether the covered rail entity has acted with any requisite standard of care.

''(e) DEFINITIONS.—In this section:

''(1) COVERED RAIL ENTITY.—The term 'covered rail entity' means an entity providing commuter rail passenger transportation or intercity rail passenger transportation.

''(2) PERSONNEL.—The term 'personnel' means an employee or contractor of a covered rail entity.

''(3) SEXUAL ASSAULT.—The term 'sexual assault' means the occurrence of an act that constitutes any nonconsensual sexual act proscribed by Federal, tribal, or State law, including when the victim lacks capacity to consent.

''(4) TRANSPORTATION SEXUAL ASSAULT OR HARASSMENT INCIDENT.—The term 'transportation sexual assault or harassment incident' means the occurrence, or reasonably suspected occurrence, of an act that—

''(A) constitutes sexual assault or sexual harassment; and

''(B) is committed—

''(i) by a passenger or member of personnel of covered rail entity against another passenger or member of personnel of the covered rail entity; and

''(ii) within a vehicle of the covered rail entity or in an area in which passengers are entering or exiting such a vehicle.''.

(b) CLERICAL AMENDMENT.—The analysis for chapter 241 of title 49, United States Code, is amended by adding at the end the following:

''24104. Formal sexual assault and harassment policies.''.

SEC. 5. FORMAL SEXUAL ASSAULT AND HARASSMENT POLICIES ON TRANSIT.

(a) IN GENERAL.—Chapter 53 of title 49, United States Code, is amended by adding at the end the following:

''§ 5341. Formal sexual assault and harassment policies

''(a) REQUIREMENT.—Not later than 180 days after the date of enactment of this section, each covered transit entity shall issue, in consultation with labor unions representing personnel with respect to the covered transit entity, a formal policy with respect to transportation sexual assault or harassment incidents.

''(b) CONTENTS.—The policy required under subsection (a) shall include—

''(1) a statement indicating that no transportation sexual assault or harassment incident is acceptable under any circumstance;

''(2) procedures that facilitate the reporting of a transportation sexual assault or harassment incident, including—

''(A) appropriate public outreach activities; and

''(B) confidential phone and internet-based opportunities for reporting;

''(3) procedures that personnel should follow upon the reporting of a transportation sexual assault or harassment incident, including actions to protect affected individuals from continued sexual assault or harassment and to notify law enforcement when appropriate;

''(4) procedures that may limit, to the extent practicable, future travel with the covered transit entity by any passenger who causes a transportation sexual assault or harassment incident; and

''(5) training that is required for all appropriate personnel with respect to the policy required under subsection (a), including—

''(A) specific training for personnel who may receive reports of transportation sexual assault or harassment incidents; and

''(B) recognizing and responding to potential human trafficking victims.

''(c) PASSENGER INFORMATION.—A covered transit entity shall prominently display, on the internet website of the entity and through the use of appropriate signage, a written statement that—

''(1) advises passengers and personnel that the covered transit entity has adopted a formal policy with respect to transportation sexual assault or harassment incidents;

''(2) informs passengers and personnel of the other major components of the covered transit entity's formal policy, including a statement indicating that no transportation sexual assault or harassment incident is acceptable under any circumstance; and

''(3) informs passengers and personnel of the procedure for reporting a transportation sexual assault or harassment incident.

''(d) STANDARD OF CARE.—Compliance with the requirements of this section, and any policy issued thereunder, shall not determine whether the covered transit entity has acted with any requisite standard of care.

''(e) DEFINITIONS.—In this section:

''(1) COVERED TRANSIT ENTITY.—The term 'covered transit entity' means a State or local governmental entity, private nonprofit organization, or Tribe that—

''(A) operates a public transportation service; and

''(B) is a recipient or subrecipient of funds under this chapter.

''(2) PERSONNEL.—The term 'personnel' means an employee or contractor of a covered transit entity.

''(3) SEXUAL ASSAULT.—The term 'sexual assault' means the occurrence of an act that constitutes any nonconsensual sexual act proscribed by Federal, tribal, or State law, including when the victim lacks capacity to consent.

''(4) TRANSPORTATION SEXUAL ASSAULT OR HARASSMENT INCIDENT.—The term 'transportation sexual assault or harassment incident' means the occurrence, or reasonably suspected occurrence, of an act that—

''(A) constitutes sexual assault or sexual harassment; and

''(B) is committed—

''(i) by a passenger or member of personnel of covered transit entity against another passenger or member of personnel of the covered transit entity; and

''(ii) within a vehicle of the covered transit entity or in an area in which passengers are entering or exiting such a vehicle.''.

(b) CLERICAL AMENDMENT.—The analysis for chapter 53 of title 49, United States Code, is amended by adding at the end the following:

''5341. Formal sexual assault and harassment policies.''.

SEC. 6. FORMAL SEXUAL ASSAULT AND HARASSMENT POLICIES FOR PASSENGER VESSELS.

(a) IN GENERAL.—Section 3507(d) of title 46, United States Code, is amended—

(1) in paragraph (4), by striking ''and'' after the semicolon at the end;

(2) in paragraph (5), by striking the period at the end and inserting a semicolon; and

(3) by adding at the end the following:

''(6)(A) issue a formal policy with respect to sexual assault or harassment incidents that includes—

''(i) a statement indicating that no sexual assault or harassment incident is acceptable under any circumstance;

''(ii) procedures that facilitate the reporting of a sexual assault or harassment incident, including—

''(I) appropriate public outreach activities; and

''(II) confidential phone and internet-based opportunities for reporting;

''(iii) procedures that personnel should follow upon the reporting of a sexual assault or harassment incident, including actions to protect affected individuals from continued sexual assault or harassment and how to provide the information and access required under paragraph (5);

''(iv) procedures that may limit or prohibit, to the extent practicable, future travel on the vessel by any passenger who causes a transportation sexual assault or harassment incident; and

''(v) training that is required for all appropriate personnel with respect to the policy required under this paragraph, including—

''(I) specific training for personnel who may receive reports of sexual assault or harassment incidents; and

''(II) recognizing and responding to potential human trafficking victims; and

''(B) prominently display on the internet website of the vessel owner and, through the use of appropriate signage on each vessel, a written statement that—

''(i) advises passengers and crew members that the vessel owner has adopted a formal policy with respect to sexual assault or harassment incidents;

''(ii) informs passengers and personnel of the other major components of the vessel owner's formal policy, including a statement indicating that no transportation sexual assault or harassment incident is acceptable under any circumstance; and

''(iii) informs passengers and crew members of the procedure for reporting a sexual assault or harassment incident; and

''(7) have a formal policy in effect with respect to sexual assault or harassment incidents.''.

(b) REPORTING REQUIREMENT.—Section 3507(g)(3)(A)(i) of title 46, United States Code, is amended by inserting ''any sexual assault or harassment incident (as that term is defined in subsection (l) of this section) that constitutes a violation of law,'' after ''title 18 applies,''.

(c) STANDARD OF CARE.—Compliance with the requirements of the amendments made by this section, and any policy issued thereunder, shall not determine whether the applicable owner of a vessel covered by such amendments has acted with any requisite standard of care.

(d) DEFINITIONS.—Section 3507(l) of title 46, United States Code, is amended to read as follows:

''(l) DEFINITIONS.—

''(1) OWNER.—In this section and section 3508, the term 'owner' means the owner, charterer, managing operator, master, or other individual in charge of a vessel.

''(2) SEXUAL ASSAULT.—The term 'sexual assault' means the occurrence of an act that constitutes any nonconsensual sexual act proscribed by Federal, tribal, or State law, including when the victim lacks capacity to consent.

''(3) SEXUAL ASSAULT OR HARASSMENT INCIDENT.—The term 'sexual assault or harassment incident' means the occurrence, or reasonably suspected occurrence, of an act that—

''(A) constitutes sexual assault or sexual harassment; and

''(B) is committed—

''(i) by a passenger of a vessel to which this section applies or a member of the crew of such a vessel against another passenger of such vessel or a member of the crew of such a vessel; and

''(ii) within—

''(I) such a vessel; or

''(II) an area in which passengers are entering or exiting such a vessel.''.

(e) IMPLEMENTATION.—Not later than 180 days after the date of enactment of this Act, the owner of a vessel to which section 3507 of title 46, United States Code, applies shall issue the formal policy with respect to sexual assault or harassment incidents required by the amendments made by this section.

SEC. 7. CIVIL PENALTIES FOR INTERFERENCE WITH CERTAIN TRANSPORTATION PERSONNEL.

(a) IN GENERAL.—Chapter 805 of title 49, United States Code, is amended by adding at the end the following:

''§ 80505. Interference with certain transportation personnel

''(a) GENERAL RULE.—An individual who physically or sexually assaults or threatens to physically or sexually assault an employee engaged in the transportation of passengers on behalf of a covered entity, or takes any action that poses an imminent threat to the safety of a vehicle of a covered entity that is transporting passengers, including rolling stock, motorcoaches, and ferries, is liable to the United States Government for a civil penalty of—

''(1) for calendar years 2020 through 2024, not more than $35,000;

''(2) for calendar years 2025 through 2029, not more than $40,000; and

''(3) for calendar year 2030 and thereafter, not more than $45,000.

''(b) COMPROMISE AND SETOFF.—

''(1) COMPROMISE.—The Secretary of Transportation may compromise the amount of a civil penalty imposed under this section.

''(2) SETOFF.—The United States Government may deduct the amount of a civil penalty imposed or compromised under this section from amounts the Government owes the person liable for the penalty.

''(c) COVERED ENTITY DEFINED.—In this section, the term 'covered entity' means an entity that is 1 of the following:

''(1) A recipient of Federal funds under chapter 53 of this title.

''(2) A motor carrier of passengers that—

''(A) conducts regularly scheduled intercity service; and

''(B) is a Class I carrier (as that term is used in section 369.3(a) of title 49, Code of Federal Regulations).

''(3) An entity providing commuter rail passenger transportation or intercity rail passenger transportation (as those terms are defined in section 24102 of this title).

''(4) The owner of a vessel for which section 3507 of title 46 applies.

''(5) A transportation network company.''.

(b) CLERICAL AMENDMENT.—The analysis for chapter 805 of title 49, United States Code, is amended by inserting after the item relating to section 80504 the following:

''80505. Interference with certain transportation personnel.''.

(c) GRADUATED FINES FOR INTERFERENCE WITH CABIN OR FLIGHT CREW.—Section 46318(a) of title 49, United States Code, is amended by striking ''penalty of not more than $35,000.'' and inserting the following: ''penalty of—

''(1) for calendar years 2020 through 2024, not more than $35,000;

''(2) for calendar years 2025 through 2029, not more than $40,000; and

''(3) for calendar year 2030 and thereafter, not more than $45,000.''.

SEC. 8. FORMAL SEXUAL ASSAULT AND HARASSMENT POLICIES FOR TRANSPORTATION NETWORK COMPANIES AND FOR-HIRE VEHICLE COMPANIES.

(a) REQUIREMENT.—Not later than 180 days after the date of enactment of this Act, each transportation network company and for-hire vehicle company shall issue, in consultation with labor unions representing TNC drivers of each such transportation network company or FVC drivers of each for-hire vehicle company, if applicable, a formal policy with respect to transportation sexual assault or harassment incidents.

(b) CONTENTS.—The policy required under subsection (a) shall include—

(1) a statement indicating that no transportation sexual assault or harassment incident is acceptable under any circumstance;

(2) procedures that facilitate the reporting of a transportation sexual assault or harassment incident, including—

(A) appropriate public outreach activities;

(B) confidential phone and internet-based opportunities for reporting; and

(C) TNC personnel or FVC personnel trained to receive reports;

(3) procedures that TNC personnel or FVC personnel should follow upon the reporting of a transportation sexual assault or harassment incident, including actions to protect affected individuals from continued sexual assault or harassment and to notify law enforcement when appropriate;

(4) procedures that may limit or prohibit, to the extent practicable, future use of the transportation network company platform by any passenger or TNC driver, or future use of the for-hire vehicle company service by any passenger or FVC driver, who causes a transportation sexual assault or harassment incident; and

(5) training that is required for all appropriate personnel with respect to the policy required under subsection (a), including—

(A) specific training for such personnel who may receive reports of transportation sexual assault or harassment incidents; and

(B) recognizing and responding to potential human trafficking victims.

(c) PASSENGER INFORMATION.—A transportation network company or for-hire vehicle company shall prominently display, on the internet website of the company and through the use of appropriate signage, a written statement that—

(1) advises passengers that the transportation network company or for-hire vehicle company has adopted a formal policy with respect to transportation sexual assault or harassment incidents;

(2) informs passengers, TNC drivers, TNC personnel, FVC drivers, and FVC personnel of the other major components of the transportation network company's formal policy or the for-hire vehicle company's formal policy, including a statement indicating that no transportation sexual assault or harassment incident is acceptable under any circumstance; and

(3) informs passengers of the procedure for reporting a transportation sexual assault or harassment incident.

(d) STANDARD OF CARE.—Compliance with the requirements of this section, and any policy issued thereunder, shall not determine whether the transportation network company or for-hire vehicle company has acted with any requisite standard of care.

SEC. 9. DATA COLLECTION.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the Secretary of Transportation shall establish a program to annually collect and maintain data from each covered entity, or, as appropriate, a State or local entity that provides authorized transportation service, on—

(1) the number of transportation sexual assault or harassment incidents reported to

the covered entity or State or local entity that provides authorized transportation service, including—

(A) the number of incidents committed against passengers; and

(B) the number of incidents committed against personnel or, in the case of a transportation network company or for-hire vehicle company, a TNC driver or a FVC driver, respectively;

(2) the number of transportation sexual assault or harassment incidents reported to law enforcement by personnel of the covered entity or State or local entity that provides authorized transportation services; and

(3) any transportation sexual assault or harassment incidents compiled and maintained under section 3507(g)(4)(A)(i) of title 46, United States Code.

(b) DATA AVAILABILITY.—Subject to subsection (c), the Secretary shall make available to the public on the primary internet website of the Department of Transportation the data collected and maintained under subsection (a).

(c) DATA PROTECTION.—Data made available under subsection (b) shall be made available in a manner that—

(1) protects the privacy and confidentiality of individuals involved in a transportation sexual assault or harassment incident;

(2) precludes the connection of the data to any individual covered entity or a State or local entity that provides authorized transportation service; and

(3) is organized by mode of transportation.

(d) PAPERWORK REDUCTION.—Subchapter I of chapter 35 of title 44, United States Code, does not apply to this Act.

SEC. 10. CRIMINAL REPORTING PROCESS.

The Attorney General, in coordination with the Secretary of Transportation, shall expand the process required to be established under section 339B of the FAA Reauthorization Act of 2018 (Public Law 115–254) to provide for a streamlined process for any individuals involved in alleged transportation sexual assault or harassment incidents that constitute a violation of law to report those allegations to law enforcement in a manner that protects the privacy and confidentiality of individuals involved in such allegations and through the same primary internet websites as provided under subsection (b) of such section, as determined appropriate by the Attorney General.

SEC. 11. INSPECTOR GENERAL REPORT TO CONGRESS.

Not later than 18 months after the date of enactment of this Act, and every 2 years thereafter, the inspector general of the Department of Transportation shall assess compliance with the provisions of this Act and the amendments made by this Act, including the accuracy of the reporting of transportation sexual assault or harassment incidents by covered entities.

SEC. 12. DEFINITION OF SEXUAL HARASSMENT.

(a) IN GENERAL.—Not later than 180 days after the date of enactment of this Act, the Secretary of Transportation shall develop, and publish in the Federal Register, a definition of sexual harassment for purposes of the implementation of this Act and the amendments made by this Act.

(b) CONSULTATION.—In developing the definition under subsection (a), the Secretary shall consult with, and consider input from—

(1) labor unions representing transportation workers employed by covered entities; and

(2) national organizations that specialize in providing services to sexual assault victims.

SEC. 13. DEFINITIONS.

In this Act:

(1) COVERED ENTITY.—The term ''covered entity'' means an entity that is one of the following:

(A) An air carrier (as that term is defined in section 40102 of title 49, United States Code) that transports passengers for compensation.

(B) A foreign air carrier (as that term is defined in section 40102 of title 49, United States Code) that transports passengers for compensation.

(C) A State or local governmental entity, private nonprofit organization, or Tribe that—

(i) operates a public transportation service; and

(ii) is a recipient or subrecipient of funds under chapter 53 of title 49, United States Code.

(D) A motor carrier of passengers that—

(i) conducts regularly scheduled intercity service; and

(ii) is a Class I carrier (as that term is used in section 369.3(a) of title 49, Code of Federal Regulations).

(E) An entity providing commuter rail passenger transportation or intercity rail passenger transportation (as those terms are defined in section 24102 of title 49, United States Code).

(F) The owner of a vessel for which section 3507 of title 46, United States Code, applies.

(G) A transportation network company.

(H) A for-hire vehicle company.

(2) FOR-HIRE VEHICLE COMPANY.—The term ''for-hire vehicle company'' means an entity that—

(A) provides passenger transportation in a motor vehicle in exchange for compensation; and

(B) is authorized by a State or local government entity as a taxicab service, limousine service, livery service, black car service, sedan service, chauffeur service, or any other similar category of for-hire transportation service.

(3) FVC DRIVER.—The term ''FVC driver'' means an individual who is employed, contracted by, or otherwise affiliated with a for-hire vehicle company to provide transportation services to the public.

(4) FVC PERSONNEL.—The term ''FVC personnel'' means an employee or contractor of a covered for-hire vehicle company, other than a FVC driver.

(5) SEXUAL ASSAULT.—The term ''sexual assault'' means the occurrence of an act that constitutes any nonconsensual sexual act proscribed by Federal, tribal, or State law, including when the victim lacks capacity to consent.

(6) TNC DRIVER.—The term ''TNC driver'' means an individual who is employed, contracted by, or otherwise affiliated with a transportation network company to provide transportation services (also known as ride-sharing) to the public.

(7) TNC PERSONNEL.—The term ''TNC personnel'' means an employee or contractor of a covered transportation network company, other than a TNC driver.

(8) TRANSPORTATION NETWORK COMPANY.—The term ''transportation network company''—

(A) means a corporation, partnership, sole proprietorship, or other entity, that uses a digital network to connect riders to drivers affiliated with the entity in order for the driver to transport the rider using a vehicle owned, leased, or otherwise authorized for use by the driver to a point chosen by the rider; and

(B) does not include a shared-expense carpool or vanpool arrangement that is not intended to generate profit for the driver.

(9) TRANSPORTATION SEXUAL ASSAULT OR HARASSMENT INCIDENT.—The term ''transportation sexual assault or harassment incident'' means the occurrence, or reasonably suspected occurrence, of an act that—

(A) constitutes sexual assault or sexual harassment; and

(B) is committed—

(i) by a passenger, personnel, TNC driver, or FVC driver of a covered entity, against a passenger, personnel, TNC driver, or FVC driver of the covered entity; and

(ii) within—

(I) a vehicle of the covered entity that is transporting passengers, including aircraft, rolling stock, motorcoaches, and ferries; or

(II) an area in which passengers are entering or exiting such a vehicle.

SEC. 14. DETERMINATION OF BUDGETARY EFFECTS.

The budgetary effects of this Act, for the purpose of complying with the Statutory Pay-As-You-Go Act of 2010, shall be determined by reference to the latest statement titled ''Budgetary Effects of PAYGO Legislation'' for this Act, submitted for printing in the Congressional Record by the Chairman of the House Budget Committee, provided that such statement has been submitted prior to the vote on passage.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Oregon (Mr. DEFAZIO) and the gentlewoman from West Virginia (Mrs. MILLER) each will control 20 minutes.

The Chair recognizes the gentleman from Oregon.

GENERAL LEAVE

Mr. DEFAZIO. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on H.R. 5139, as amended.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Oregon?

There was no objection.

Mr. DEFAZIO. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 5139, the Stop Sexual Assault and Harassment in Transportation Act, as amended.

The number one goal in transportation of people, whether it is across town, across the ocean, in the air, on the ground, or on the sea, is that there should be comprehensive policies in place for those companies that are entrusted with their well-being. While it is estimated that 90 percent of U.S. companies have a sexual harassment policy on the books, one in five does not offer training to prevent such incidents. This can leave passengers vulnerable and personnel unequipped to adequately address incidents when they occur.

Some people may wonder whether this problem is as rampant as many may suggest and ask if there is enough robust, organized data out there that sheds light on this issue. Unfortunately, I have to say no. That is exactly the problem.

There is no accumulated data. There is no Federal clearinghouse for transportation-related sexual assault and harassment incidents.

The lack of centralized data leaves the traveling public in the dark about the risk. But in reality, sexual assault and harassment constitute a growing problem in transportation.

For example, FBI investigations of in-flight sexual assaults in passenger airplanes rose from 38 in 2014 to 119 in 2019. Those are only the ones that are reported. Many people don't report.

According to a 2018 national study, 17 percent of all respondents experienced sexual harassment while using mass transportation. Since 2016, 260 sexual assaults aboard cruise ships have been reported to the DOT. It is by far the most frequently reported crime on cruise ships.

In recent years, there may be no other industry that issue has plagued more than transportation network companies such as Uber and Lyft.

In September 2019, 14 women sued Lyft, citing the company's failure to address a sexual predator crisis among its drivers. Uber identified nearly 6,000 sexual assaults and attempted sexual assaults on its platform in 2017 and 2018 alone.

Anecdotal evidence suggests that sexual assault is a big problem with transportation network companies and traditional taxis alike, but TNCs and taxi companies don't share the data that would provide a complete picture of the problem.

In my own hometown—I live in Springfield, Oregon, but in our urban area of Eugene-Springfield, we had one of the TNCs operating. All of their drivers had been through their intensive background checks, which are laughable, but then the Eugene police insisted that they go through real background checks. They found 12 people totally disqualified by the own standards of that company, Uber: one murderer, one rapist, and 10 serious felons. They were picking up women alone from bars at 1 o'clock in the morning, et cetera. The company didn't know it.

In fact, those companies have fought—we are the last State that isn't bound by State law. They have been lobbying all the States to say you can't keep track of this; you cannot require more vigorous background checks. Unfortunately, 49 of the States have caved in to them, under threat of losing their services. My State hasn't. And, you know, this has to stop.

That is why the Committee on Transportation and Infrastructure passed my bill, H.R. 5139, the Stop Sexual Assault and Harassment in Transportation Act. This bill will:

One, require transportation providers to establish formal policies addressing sexual assault and harassment;

Two, direct employees to receive specific training for not just how to handle sexual assault or harassment incidents, but also how to recognize and respond to potential human trafficking activities, something that has been identified numerous times by flight attendants who have alerted authorities and other workers in transportation; and,

Three, charge the DOT with establishing the first-ever Federal clearinghouse for transportation-related sexual assault, harassment, and child trafficking, to allow the traveling public to fully understand the scope of the problem and spur further action.

We can no longer allow sexual violence and abuse to persist on our roads, on our waters, or in our skies. We must be doing everything in our power to ensure our transportation system is safe for those who work in it and for everyone who uses it. This bill, which will allow us to finally track, respond to, and ultimately prevent sexual assault and harassment within all areas of our transportation system, brings us one step closer to attaining that goal.

I want to acknowledge and express my appreciation for the supporters of this bill. It has been endorsed by the American Association of Justice, the Association of Flight Attendants, the Air Line Pilots Association, the Association of Professional Flight Attendants, the National Center on Sexual Exploitation, Rights4Girls, Survivors for Solutions, and the Transportation Trades Department.

I urge my colleagues to support this legislation, and I reserve the balance of my time.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON THE JUDICIARY,
Washington, DC, February 7, 2020.

Hon. PETER DEFAZIO,
Chairman, Committee on Transportation and Infrastructure,
House of Representatives, Washington, DC.

DEAR CHAIRMAN DEFAZIO: This is to advise you that the Committee on the Judiciary has now had an opportunity to review the provisions in H.R. 5139, the ''Stop Sexual Assault and Harassment in Transportation Act,'' that fall within our Rule X jurisdiction. I appreciate your consulting with us on those provisions. The Judiciary Committee has no objection to your including them in the bill for consideration on the House floor, and to expedite that consideration is willing to forgo action on H.R. 5139, with the understanding that we do not thereby waive any future jurisdictional claim over those provisions or their subject matters.

In the event a House-Senate conference on this or similar legislation is convened, the Judiciary Committee reserves the right to request an appropriate number of conferees to address any concerns with these or similar provisions that may arise in conference.

Please place this letter into the Congressional Record during consideration of the measure on the House floor. Thank you for the cooperative spirit in which you have worked regarding this matter and others between our committees.

Sincerely,

JERROLD NADLER,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITEE ON TRANSPORTATION AND INFRASTRUCTURE,
Washington, DC, February 7, 2020.

Hon. JERROLD NADLER,
Chairman, Committee on Judiciary,
House of Representatives, Washington, DC.

DEAR CHAIRMAN NADLER: Thank you for your letter regarding H.R. 5139, the Stop Sexual Assault and Harassment in Transportation Act, which was ordered to be reported out of the Committee on Transportation and Infrastructure on November 20, 2019. I appreciate your willingness to work cooperatively on this legislation.

I acknowledge that by foregoing formal consideration on H.R. 5139, the Committee on Judiciary does not waive any future jurisdictional claims to provisions in this or similar legislation, and that your Committee will be consulted and involved on any matters in your Committee's jurisdiction should this legislation move forward. In addition, should a conference on the bill be necessary, I would support your effort to seek appointment of an appropriate number of conferees to any House-Senate conference involving provisions within this legislation on which the Committee on Judiciary has a valid jurisdictional claim.

I appreciate your cooperation regarding this legislation, and I will ensure that our exchange of letters is included in the Congressional Record during floor consideration of H.R. 5139.

Sincerely,

PETER A. DEFAZIO,
Chair.

Mrs. MILLER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of the goal of H.R. 5139 to prevent incidents of sexual assault and harassment in transportation.

Passengers should feel safe while traveling, and transportation workers should feel safe in their workplace. No one condones sexual misconduct in the transportation sector, or anywhere, for that matter.

That is why the Transportation and Infrastructure Committee and Congress took such a strong bipartisan stance against this type of behavior in air transportation in the FAA Reauthorization Act of 2018.

I appreciate Chair DEFAZIO working with the minority to address technical concerns with the bill to avoid unintended implementation issues.

I urge support of this legislation, and I reserve the balance of my time.

Mr. DEFAZIO. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I thank the gentlewoman for her support and the support of the other Republican members of the committee. There were some technical issues relating to particular modes of transportation, and the minority wanted to get this bill done, and we worked out those concerns. I think everybody should support this today. Hopefully, it will be unanimous.

Mr. Speaker, there was a section that got left out of my opening remarks, and this is a stunning number.

On U.S. airlines alone, 68 percent of flight attendants say they have experienced sexual harassment during their careers. In fact, on November 8, 2019, a flight of a major airline diverted due to a passenger groping another passenger. The risk of an unwelcome and even threatening environment is real for both passengers and transportation workers alike.

Mr. Speaker, I reserve the balance of my time.

Mrs. MILLER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I don't think there is any doubt that all Members support the intent of H.R. 5139. Like all of you, I want to help ensure that sexual misconduct in transportation is eliminated.

Mr. Speaker, I urge support of this legislation, and I yield back the balance of my time.

Mr. DEFAZIO. Mr. Speaker, I yield 2 minutes to the gentlewoman from Washington, D.C. (Ms. NORTON).

Ms. NORTON. Mr. Speaker, I strongly support the Stop Sexual Assault and Harassment in Transportation Act, which would institute reporting requirements for incidents of sexual assault and harassment in passenger transportation carriers including airlines, vessels, buses, commuter and intercity passenger railroads, and transportation network companies like Uber and Lyft.

I am pleased that this bill includes provisions that direct the Department of Transportation to collect information on the number of sexual assault and harassment incidents and to make that information publicly available, which Representative Rick Crawford and I included in our bipartisan AWARE Act. I believe that until we collect this information, the full magnitude of the problem will not be understood. We have heard some of it reported by my good friend just now from Oregon just now.

In a 2018 survey of 2,000 flight attendants, one in five said they had been harassed, witnessed a passenger being sexually assaulted, or received a report of passenger-on-passenger sexual assault. Nearly 70 percent reported experiencing sexual harassment, and almost one in five reported being sexually assaulted by passengers.

In fiscal year 2014, 38 instances of in-flight sexual assault were reported to the Federal Bureau of Investigation. This number increased to 63 reported cases in 2017, but many instances of in-flight sexual assault remain unreported, because victims are fearful of contacting the authorities. FBI statistics indicate that as many as 75 percent of incidents go unreported.

On cruise ships, sex crimes outweigh any other major offense. A 2013 congressional report found that minors were victims in one-third of reported sexual assaults.

There was bipartisan support for a provision in the Federal Aviation Administration Reauthorization Act of 2018 to establish a sexual misconduct working group to develop best practices for addressing sexual misconduct on flights, employee training, and law enforcement notification.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. DEFAZIO. Mr. Speaker, I yield an additional 1 minute to the gentlewoman from Washington, D.C. (Ms. NORTON).

Ms. NORTON. This legislation builds upon that work, requiring passenger transportation carriers to establish formal policies, training, and reporting structures for sexual assault and harassment and adds penalties for individuals who physically or sexually assault or threaten to assault transportation personnel.

I support the passage of the Stop Sexual Assault and Harassment in Transportation Act so that every person can feel safe from violence and harassment while traveling.

□ 1600

Mr. DEFAZIO. Mr. Speaker, I am prepared to close, and I have no further speakers. I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, as a senior member of the House Judiciary Committee, I rise in strong support of H.R. 5139, the ''Stop Sexual Assault and Harassment in Transportation Act,'' which establishes formal sexual assault and harassment policies for the transportation industry.

I would like to thank Congressman DEFAZIO for his leadership on this vital piece of legislation.

While the United States prides itself for being an innovator and leader in transportation, we are severely lacking in our protections of personnel and travelers from sexual assault and harassment.

There have been too many accounts of women and children being sexually assaulted on airplanes and groped on crowded trains, as well as flight attendants being sexually harassed daily in their workplaces.

According to a survey of students at San José State University conducted by Metro Magazine, almost two-thirds (63 percent) of respondents had experienced some form of harassment while using transit.

Verbal harassment was the most common form of harassment, with 41 percent experiencing ''obscene/harassing language'' and 26 percent being subjected to sexual comments.

Among non-verbal types of harassment, 22 percent had been stalked and 18 percent had been victims of indecent exposure.

With respect to physical harassment, 11 percent of students had experienced groping or inappropriate touching.

These facts and figures are representative of a larger issue of sexual assault and harassment in the public transportation industry across the country.

Things must change.

H.R. 5139 seeks to help prevent sexual assaults and sexual harassment on airplanes, buses, passenger vessels, commuter and intercity passenger railroads, and ridesharing vehicles by establishing formal policies to which transportation providers must adhere.

For example, passenger transportation providers are required to facilitate the reporting of sexual harassment and assault incidents, develop procedures that limit or prohibit future travel for individuals who perpetuate these incidents, as well as train personnel to recognize and respond to such incidents.

The bill also establishes a maximum civil penalty of $35,000 for individuals who physically or sexually assault transportation personnel.

Furthermore, H.R. 5139 not only establishes a data collection program within the Department of Transportation regarding the number of incidents of sexual assault or harassment reported by transportation personnel and passengers each year, but it also streamlines the reporting process for individuals involved in an incident.

By doing so, individuals will be able to report allegations to law enforcement in a confidential and separate manner from the reporting processes offered by the transportation provider.

It is simply not enough to condemn sexual harassment and assault.

It is time for actionable solutions that stop these incidents from occurring altogether, and this bill is a great step in that direction.

I encourage my fellow colleagues to vote in favor of H.R. 5139.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Oregon (Mr. DEFAZIO) that the House suspend the rules and pass the bill, H.R. 5139, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

FRIENDLY AIRPORTS FOR MOTHERS IMPROVEMENT ACT

Mr. CARBAJAL. Mr. Speaker, I move to suspend the rules and pass the bill (S. 2638) to amend title 49, United States Code, to require small hub airports to construct areas for nursing mothers, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 2638

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Friendly Airports for Mothers Improvement Act''.

SEC. 2. MOTHERS' ROOMS.

Section 47107(w) of title 49, United States Code, is amended—

(1) in paragraph (1) by striking ''In fiscal year 2021'' and all that follows through ''the Secretary of Transportation'' and inserting ''The Secretary of Transportation'';

(2) in paragraph (1)(B) by striking ''one men's and one women's'' and inserting ''at least one men's and at least one women's'';

(3) by striking paragraph (2)(A) and inserting the following:

''(A) AIRPORT SIZE.—

''(i) IN GENERAL.—The requirements in paragraph (1) shall only apply to applications submitted by the airport sponsor of—

''(I) a medium or large hub airport in fiscal year 2021 and each fiscal year thereafter; and

''(II) an applicable small hub airport in fiscal year 2023 and each fiscal year thereafter.

''(ii) APPLICABLE SMALL HUB AIRPORT DEFINED.—In clause (i)(II), the term 'applicable small hub airport' means an airport designated as a small hub airport during—

''(I) the 3-year period consisting of 2020, 2021, and 2022; or

''(II) any consecutive 3-year period beginning after 2020.'';

(4) in paragraph (2)(B) by striking ''the date of enactment of this Act complies with the requirement in paragraph (1)'' and inserting ''October 5, 2018, complies with the requirement in paragraph (1)(A)''; and

(5) in paragraph (2)(C) by striking ''paragraph (1)'' and inserting ''paragraph (1)(A)''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California (Mr. CARBAJAL) and the gentlewoman from West Virginia (Mrs. MILLER) each will control 20 minutes.

The Chair recognizes the gentleman from California.

GENERAL LEAVE

Mr. CARBAJAL. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous material on S. 2638.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. CARBAJAL. Mr. Speaker, I yield myself such time as I may consume, and I rise in support of S. 2638, the Friendly Airports for Mothers Improvement Act.

Introduced in the Senate by Senator TAMMY DUCKWORTH from Illinois, this is a commonsense bill that requires small hub airports to maintain lactation areas for nursing mothers and a baby-changing table in men's and women's restrooms.

As a result of this legislation, small hub airports will begin to come in line with the medium and large hub airports, which were charged with meeting the same requirements as the result of the FAA Reauthorization Act of 2018.

Similar legislation was introduced in the House by Representative CAROL MILLER and passed in this Chamber December 2019.

I want to thank both Senator DUCKWORTH and Representative MILLER for their leadership on this issue and urge my colleagues to vote in favor of S. 2638.

Mr. Speaker, I reserve the balance of my time.

Mrs. MILLER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of S. 2638, the Friendly Airports for Mothers Improvement Act.

Traveling with infants is often stressful on new mothers and new fathers. I think back to when I was a young mom traveling with my sons, Chris and Sam, and now traveling with their wives, who just blessed us with our sixth grandchild, and to all moms and dads across the country who face the distinct challenges of traveling with their babies, let alone babies plus a sibling who could be a toddler, which is often the case.

This bill helps to lessen anxiety when traveling and allows mothers to have a quiet private space to care for their young ones. I introduced similar legislation, H.R. 3362, earlier this year to help accomplish this goal, and I am pleased to see this issue brought to a vote today.

As air travel continues to be one of the most preferred and popular means of transportation, we need to make sure that airport infrastructure is properly updated to fit the needs of American mothers and fathers and American families.

S. 2638 would require small hub airports to construct mothers' rooms, which are areas where mothers can nurse their children in privacy, rather than a restroom. Think how disgusting that would be. Moms know that there is nothing comforting or nurturing about nursing a baby in an unsanitary condition of an airport bathroom.

The FAA Reauthorization Act of 2018 required all large and medium hub airports to construct mothers' rooms by 2021. This bill would help fill the remaining gap and similarly require small hub airports to install mothers' rooms, extending the coverage to 97 percent of all travelers.

With the pandemic, travel has become even more difficult, so the timing of this bill couldn't be more appropriate because it emphasizes the need for Congress to come together to pass bipartisan support in the COVID crisis, without which our airports may continue to be empty.

Mr. Speaker, I urge all of my colleagues to support S. 2638, and I reserve the balance of my time.

Mr. CARBAJAL. Mr. Speaker, I reserve the balance of my time.

Mrs. MILLER. Mr. Speaker, I yield 3 minutes to the gentleman from Louisiana (Mr. GRAVES), the ranking member of the Aviation Subcommittee.

Mr. GRAVES of Louisiana. Mr. Speaker, I thank the gentlewoman from West Virginia.

Mr. Speaker, I want to thank Chairman DEFAZIO and Ranking Member SAM GRAVES for their work on this legislation.

Once again, Mr. Speaker, this is a demonstration of bipartisan cooperation, what we were sent here to do, as opposed to the politics that we have all seen that have hijacked our government in recent months. The reality is that they are real needs of the American public, and this is an example of that.

This legislation is very simple. Airports are not like traditional roadways. You have a runway that is usually, at most airports, one runway, and that is it. So when that runway goes down, that airport can't function. You can't have flights come in. You can't have commercial or general aviation operations. So this legislation, very simply, allows for incentive-based contracting, where you can reduce the amount of time that it takes you to do your construction project. It diminishes delays on vacations, family visits, business travel, and all the important things that are facilitated by our aviation infrastructure by airports.

Again, it simply allows us to more quickly address safety issues, capacity issues, and expansion issues in airports. The bottom line is this ultimately is a saver for taxpayers, because if we can resume operations, it allows the traveling public to advance and the economy to flow, and it allows aviation taxes to also continue flowing.

Mr. Speaker, again, I want to thank Mr. DEFAZIO, Congressman LARSEN, Congressman SAM GRAVES, and all those who worked together on this important legislation, and I urge adoption.

Mrs. MILLER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, as stated, the aim of this bill, ensuring that mothers and families with young children have proper facilities while traveling, is a need that is long overdue, and it is high time that we fix it.

I have a personal story. In the 1980s, I was traveling with my husband and my two sons. One was in diapers, and one was a toddler. I handed the one in diapers to my husband when I realized that the baby needed to be changed. He took the baby and the paraphernalia with him to the men's restroom to take care of the baby.

When he comes back, he hands me a child who is crying, looks at his mommy, and reaches out. My husband goes: I did the best I could with what I had.

Well, he went into a bathroom that had sinks lined up on the wall, so he had to place the baby on top of two sinks to take care of business. I will leave the rest up to you, but we did do the best we could.

Thank the Lord, we are now going to be in modern times and take care of families the way they should be, having the appropriate things in both bathrooms.

Mr. Speaker, I urge all Members to support this bill, and I yield back the balance of my time.

Mr. CARBAJAL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, affording women lactation stations is something that I was very proud to have done, as we are now doing with small airports. We did it for all county facilities in county government when I was a county supervisor.

I am really glad to see this bipartisan bill is moving forward. Mr. Speaker, I urge my colleagues to support the legislation, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from California (Mr. CARBAJAL) that the House suspend the rules and pass the bill, S. 2638.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

REINVIGORATING LENDING FOR THE FUTURE ACT

Mr. CARBAJAL. Mr. Speaker, I move to suspend the rules and pass the bill (S. 4075) to amend the Public Works and Economic Development Act of 1965 to provide for the release of certain Federal interests in connection with certain grants under that Act, and for other purposes.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 4075

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Reinvigorating Lending for the Future Act'' or the ''RLF Act''.

SEC. 2. RELEASE OF CERTAIN INTERESTS.

Section 601(d)(2) of the Public Works and Economic Development Act of 1965 (42 U.S.C. 3211(d)(2)) is amended—

(1) by striking the paragraph designation and heading and all that follows through ''The Secretary may'' and inserting the following:

''(2) RELEASE.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), the Secretary may''; and

(2) by adding at the end the following:

''(B) CERTAIN RELEASES.—

''(i) IN GENERAL.—On written request from a recipient of a grant under section 209(d), the Secretary shall release, in accordance with this subparagraph, any Federal interest in connection with the grant, if—

''(I) the request is made not less than 7 years after the final disbursement of the original grant;

''(II) the recipient has complied with the terms and conditions of the grant to the satisfaction of the Secretary;

''(III) any proceeds realized from the grant will be used for 1 or more activities that continue to carry out the economic development purposes of this Act; and

''(IV) the recipient includes in the written request a description of how the recipient will use the proceeds of the grant in accordance with subclause (III).

''(ii) DEADLINE.—

''(I) IN GENERAL.—Except as provided in subclause (II), the Secretary shall complete all closeout actions for the grant by not later than 180 days after receipt and acceptance of the written request under clause (i).

''(II) EXTENSION.—The Secretary may extend a deadline under subclause (I) by an additional 180 days if the Secretary determines the extension to be necessary.

''(iii) SAVINGS PROVISION.—Section 602 shall continue to apply to a project assisted with a grant under section 209(d) regardless of whether the Secretary releases a Federal interest under clause (i).''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California (Mr. CARBAJAL) and the gentlewoman from West Virginia (Mrs. MILLER) each will control 20 minutes.

The Chair recognizes the gentleman from California.

GENERAL LEAVE

Mr. CARBAJAL. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous material on S. 4075.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. CARBAJAL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of S. 4075, the Reinvigorating Lending for the Future Act.

This bipartisan legislation will help cut the red tape and allow greater levels of local investment in economic development projects by allowing the Economic Development Administration to waive Federal interest in certain revolving loan funds.

The EDA supports economic development by providing seed capital to revolving loan funds that offer low-interest loans to help new businesses get off the ground. Those loans are repaid with interest to the RLF manager, which then loans the funds out again to other businesses. This strategy has been highly effective, and more than 500 RLFs are in operation today.

But unlike other EDA grants, the Federal interest in these funds remain in perpetuity. RLF managers must report and the EDA must track these funds, no matter how many times they are lent out and repaid. The funds can never be repurposed for other economic development projects.

The RLF Act fixes this bureaucratic nightmare by allowing the Secretary of Commerce to release the Federal interest in these funds after 7 years, provided that the funds are used for other approved economic development projects like the development of public infrastructure or workforce training.

This bill cuts through the red tape and allows for the local control our regions need to invest in the most beneficial economic development projects for their communities.

This legislation has broad bipartisan support and is endorsed by the National Association of Development Organizations and the International Economic Development Council, two of the largest economic development advocacy groups in the country.

Mr. Speaker, I urge my fellow colleagues to support this bill, and I reserve the balance of my time.

□ 1615

Mrs. MILLER. Mr. Speaker, I yield myself such time as I may consume.

S. 4075, the RLF Act, would release the Federal interest in the Economic Development Administration's revolving loan funds after 7 years if requested by the recipient.

I thank Congressman KATKO, the ranking member of the Subcommittee on Economic Development, Public Buildings, and Emergency Management, for his leadership and work on this issue.

This fix to reduce the administrative burden of RLF funds was requested by the administration, as well as by State and local economic development officials.

Even after the funds have turned over in these RLFs, local officials continue to be saddled with unnecessary paperwork. Releasing the Federal interest when the government's role is over will also release officials of the extra paperwork.

Mr. Speaker, I urge support of this legislation, and I reserve the balance of my time.

Mr. CARBAJAL. Mr. Speaker, I reserve the balance of my time.

Mrs. MILLER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, S. 4075 will cut red tape and reduce paperwork for the communities that receive EDA grants for revolving loan funds.

Mr. Speaker, I urge support of this important legislation, and I yield back the balance of my time.

Mr. CARBAJAL. Mr. Speaker, I urge my colleagues to support this legislation, and I yield back the balance of my time.

Mr. PETERSON. Mr. Speaker, I rise today in support of the Senate companion to my bill, S. 4075 the Reinvigorating Lending for the Future Act of 2020. The U.S. Economic Development Administration and its Revolving Loan Fund program provide desperately needed loans to small businesses and local community organizations across the United States.

This funding is often a lifeline to rural communities overlooked by traditional financing. However, under current burdensome regulations, EDA RLF grantees must report on these funds ''in perpetuity''—even on loans made and paid back decades ago. I have heard from the Minnesota Association of Development Organizations, 8 of the 10 organizations serve my district, that this requirement takes away valuable time from the work at hand which is providing access to capital and supporting businesses.

Now more than ever, as many Americans are struggling to stay afloat during the COVID–19 pandemic, the RLF Act is a vital sign of support to our small businesses back home. My bill would remove this unnecessary requirement and allow local communities the freedom they need to recover their economies. This bipartisan legislation requires no additional funding, and creates more flexibility for regional economic development. The RLF Act returns decision making to the local units of government, eliminates unnecessary reporting and is just good common sense. I urge my colleagues to support this important bill.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from California (Mr. CARBAJAL) that the House suspend the rules and pass the bill, S. 4075.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

A motion to reconsider was laid on the table.

EXPEDITED DELIVERY OF AIRPORT INFRASTRUCTURE ACT OF 2020

Mr. CARBAJAL. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 5912) to amend title 49, United States Code, to permit the use of incentive payments to expedite certain federally financed airport development projects, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 5912

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Expedited Delivery of Airport Infrastructure Act of 2020''.

SEC. 2. ALLOWABLE COST STANDARDS FOR AIRPORT DEVELOPMENT PROJECTS.

(a) IN GENERAL.—Section 47110(b)(1) of title 49, United States Code, is amended—

(1) by striking ''(1) if the cost necessarily'' and inserting ''(1)(A) if the cost necessarily'';

(2) by striking the semicolon at the end and inserting ''; or''; and

(3) by adding at the end the following:

''(B) if the cost is an incentive payment incurred in carrying out the project described

in subparagraph (A) that is to be provided to a contractor upon early completion of a project, if—

''(i) such payment does not exceed the lesser of 5 percent of the initial construction contract amount or $1,000,000;

''(ii) the level of contractor's control of, or access to, the worksite necessary to shorten the duration of the project does not negatively impact the operation of the airport;

''(iii) the contract specifies application of the incentive structure in the event of unforeseeable, non-weather delays beyond the control of the contractor;

''(iv) nothing in any agreement with the contractor prevents the airport operator from retaining responsibility for the safety, efficiency, and capacity of the airport during the execution of the grant agreement; and

''(v) the Secretary determines that the use of an incentive payment is likely to increase airport capacity or efficiency or result in cost savings as a result of shortening the project's duration;''.

(b) TECHNICAL CORRECTION.—Section 47110(e)(7) of title 49, United States Code, is amended by striking ''(7) PARTNERSHIP PROGRAM AIRPORTS.—'' and inserting ''(7) PARTNERSHIP PROGRAM AIRPORTS.—''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California (Mr. CARBAJAL) and the gentleman from Missouri (Mr. GRAVES) each will control 20 minutes.

The Chair recognizes the gentleman from California.

GENERAL LEAVE

Mr. CARBAJAL. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous material on H.R. 5912, as amended.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. CARBAJAL. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in support of H.R. 5912, the Expedited Delivery of Airport Infrastructure Act of 2020, introduced by Representative SAM GRAVES, the ranking member of the House Committee on Transportation and Infrastructure. The bill incentivizes the early completion of airport projects funded by the Federal Aviation Administration's Airport Improvement Program, AIP.

Although current airline passenger traffic has declined precipitously due to the coronavirus pandemic, there will come a time when domestic and global air travel will return to its prepandemic heights and continue to grow further. Airports will once again have to keep up with growing passenger demand. This legislation will help to address this future need by allowing airports to use their AIP funding to offer incentive payments to contractors for early completion of airport development projects.

Importantly, H.R. 5912 includes conditions that ensure projects completed early do not have a negative impact on airport safety, efficiency, or capacity.

I support this legislation and urge my colleagues to do the same.

Mr. Speaker, I reserve the balance of my time.

Mr. GRAVES of Missouri. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 5912, the Expedited Delivery of Airport Infrastructure Act of 2020.

This bill, which I am very proud to have introduced, gives airports the option to use some of their Airport Improvement Program, or AIP, money to expedite early completion of airport projects.

Incentives such as these are commonly used in the surface transportation area, as encouraging early completion of road projects obviously can spare drivers additional weeks or months of congestion and sitting in traffic.

An airfield is no different. Taking a runway or taxiway out of commission can impair airport efficiency and capacity, and it results in flight delays, upset travelers, you name it.

Additionally, some airports, particularly in cold weather States, are racing against the clock to complete projects during a limited construction season. Even if a project is on schedule, an early winter or late spring can grind construction to a halt, costing the airport time and money.

This bill is going help ensure that airports have the tools necessary to avoid these situations and get runways back into service faster.

This bill allows airports to achieve cost savings. Projects completed early means a greater chance of avoiding construction price increases due to inflation.

Mr. Speaker, I urge my colleagues to support H.R. 5912, and I yield back the balance of my time.

Mr. CARBAJAL. Mr. Speaker, I urge my colleagues to support this legislation, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from California (Mr. CARBAJAL) that the House suspend the rules and pass the bill, H.R 5912, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

GREAT LAKES ST. LAWRENCE SEAWAY DEVELOPMENT CORPORATION

Mr. CARBAJAL. Mr. Speaker, I move to suspend the rules and pass the bill (H.R. 4470) to rename the Saint Lawrence Seaway Development Corporation the Great Lakes St. Lawrence Seaway Development Corporation, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 4470

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. GREAT LAKES ST. LAWRENCE SEAWAY DEVELOPMENT CORPORATION.

(a) RENAMING THE SAINT LAWRENCE SEAWAY DEVELOPMENT CORPORATION.—The Act of May 13, 1954 (33 U.S.C. 981 et seq.) is amended—

(1) in section 1 (33 U.S.C. 981), by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation''; and

(2) in section 2(b) (33 U.S.C. 982(b)), by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation''.

(b) REFERENCES.—Any reference to the Saint Lawrence Seaway Development Corporation in any law, regulation, document, record, Executive order, or other paper of the United States shall be deemed to be a reference to the Great Lakes St. Lawrence Seaway Development Corporation.

(c) TECHNICAL AND CONFORMING AMENDMENTS.—

(1) TITLE 5.—Section 5315 of title 5, United States Code, is amended by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation''.

(2) TITLE 18.—Section 2282B of title 18, United States Code, is amended by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation''.

(3) INTERNAL REVENUE CODE.—Section 9505(a)(2) of the Internal Revenue Code of 1986 (26 U.S.C. 9505(a)(2)) is amended by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation''.

(4) TITLE 31.—Section 9101(3)(K) of title 31, United States Code, is amended by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation''.

(5) WATER RESOURCES DEVELOPMENT ACT OF 1986.—The Water Resources Development Act of 1986 (33 U.S.C. 2211 et seq.) is amended—

(A) in section 206 (33 U.S.C. 2234), by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation'';

(B) in section 210(a)(1) (33 U.S.C. 2238(a)(1)), by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation'';

(C) in section 214(2)(B) (33 U.S.C. 2241(2)(B)), by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation''; and

(D) in section 1132(b) (33 U.S.C. 2309(b)), by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation'' each place it appears.

(6) TITLE 46.—Title 46, United States Code, is amended—

(A) in section 2109, by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation'';

(B) in section 8103(g), by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation'';

(C) in section 8503(c), by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation'';

(D) in section 55112(a)(3), by striking ''St. Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation'';

(E) in section 55331(3), by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation''; and

(F) in section 70032, by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation'' each place it appears.

(7) TITLE 49.—

(A) IN GENERAL.—Title 49, United States Code, is amended—

(i) in section 110—

(I) in the heading, by striking ''**Saint Lawrence Seaway Development Corporation**'' and inserting ''**Great Lakes St. Lawrence Seaway Development Corporation**''; and

(II) in subsection (a), by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation''; and

(ii) in section 6314(c)(2)(G), by striking ''Saint Lawrence Seaway Development Corporation'' and inserting ''Great Lakes St. Lawrence Seaway Development Corporation''.

(B) TABLE OF SECTIONS.—The table of sections for chapter 1 of subtitle I of title 49, United States Code, is amended by amending the item relating to section 110 to read as follows:

''110. Great Lakes St. Lawrence Seaway Development Corporation.''.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California (Mr. CARJABAL) and the gentleman from Missouri (Mr. GRAVES) each will control 20 minutes.

The Chair recognizes the gentleman from California.

GENERAL LEAVE

Mr. CARBAJAL. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous material on H.R. 4470, as amended.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. CARBAJAL. Mr. Speaker, I yield myself such time as I may consume, and rise in strong support of H.R. 4470.

This legislation, introduced by the gentlewoman from Ohio, Representative MARCY KAPTUR, is simple in its intent but strong in its meaning. H.R. 4470 would rename the Saint Lawrence Seaway Development Corporation as the Great Lakes St. Lawrence Seaway Development Corporation.

The binational Saint Lawrence Seaway is a 328-nautical-mile deep-draft waterway between the Port of Montreal and Lake Erie. It connects the Great Lakes with the Atlantic Ocean through the Saint Lawrence River. The U.S. portion of the Seaway was authorized in 1954 and is operated by the Saint Lawrence Seaway Development Corporation within the United States Department of Transportation.

This change would more accurately portray the geographical scope of the agency and would clarify the agency's mission is of benefit to the Saint Lawrence region, as well as the entire Great Lakes region.

I thank Representative KAPTUR for her work on this bill.

Mr. Speaker, I urge all Members to support H.R. 4470, and I reserve the balance of my time.

Mr. GRAVES of Missouri. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in support of H.R. 4470.

By adding the words ''Great Lakes'' to the name of the Saint Lawrence Seaway Development Corporation, the corporation will better reflect its geographic location and its economic importance to this significant region of the Nation.

Located within the Department of Transportation, the corporation is charged with operating and maintaining all U.S. infrastructure and waters of the Saint Lawrence Seaway. The corporation is also tasked with developing trade focused on driving economic activity for the entire Great Lakes-Saint Lawrence Seaway system.

I urge support of the bipartisan legislation to better represent what this federally owned corporation means to the Great Lakes.

Mr. Speaker, I reserve the balance of my time.

Mr. CARBAJAL. Mr. Speaker, I reserve the balance of my time.

Mr. GRAVES of Missouri. Mr. Speaker, I don't have any speakers.

I urge support of H.R. 4470, and I yield back the balance of my time and.

Mr. CARBAJAL. Mr. Speaker, I urge my colleagues to support the legislation, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from California (Mr. CARBAJAL) that the House suspend the rules and pass the bill, H.R. 4470, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

SAVE OUR SEAS 2.0 ACT

Mr. CARBAJAL. Mr. Speaker, I move to suspend the rules and pass the bill (S. 1982) to improve efforts to combat marine debris, and for other purposes, as amended.

The Clerk read the title of the bill.

The text of the bill is as follows:

S. 1982

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''Save Our Seas 2.0 Act''.

(b) TABLE OF CONTENTS.—The table of contents of this Act is as follows:

Sec. 1. Short title; table of contents.
Sec. 2. Definitions.

TITLE I—COMBATING MARINE DEBRIS

Subtitle A—Amendments to the Marine Debris Act

Sec. 101. Amendments to the Marine Debris Act.

Subtitle B—Marine Debris Foundation

Sec. 111. Establishment and purposes of Foundation.
Sec. 112. Board of Directors of the Foundation.
Sec. 113. Rights and obligations of the Foundation.
Sec. 114. Administrative services and support.
Sec. 115. Volunteer status.
Sec. 116. Report requirements; petition of attorney general for equitable relief.
Sec. 117. United States release from liability.
Sec. 118. Authorization of appropriations.
Sec. 119. Termination of authority.

Subtitle C—Genius Prize for Save Our Seas Innovations

Sec. 121. Definitions.
Sec. 122. Genius Prize for Save Our Seas Innovations.
Sec. 123. Agreement with the Marine Debris Foundation.
Sec. 124. Judges.
Sec. 125. Report to Congress.
Sec. 126. Authorization of appropriations.
Sec. 127. Termination of authority.

Subtitle D—Studies, Pilot Projects, and Reports

Sec. 131. Report on opportunities for innovative uses of plastic waste.
Sec. 132. Report on microfiber pollution.
Sec. 133. Study on United States plastic pollution data.
Sec. 134. Study on mass balance methodologies to certify circular polymers.
Sec. 135. Report on sources and impacts of derelict fishing gear.
Sec. 136. Expansion of derelict vessel recycling.
Sec. 137. Incentive for fishermen to collect and dispose of plastic found at sea.

TITLE II—ENHANCED GLOBAL ENGAGEMENT TO COMBAT MARINE DEBRIS

Sec. 201. Statement of policy on international cooperation to combat marine debris.
Sec. 202. Prioritization of efforts and assistance to combat marine debris and improve plastic waste management.
Sec. 203. United States leadership in international fora.
Sec. 204. Enhancing international outreach and partnership of United States agencies involved in marine debris activities.
Sec. 205. Negotiation of new international agreements.
Sec. 206. Consideration of marine debris in negotiating international agreements.

TITLE III—IMPROVING DOMESTIC INFRASTRUCTURE TO PREVENT MARINE DEBRIS

Sec. 301. Strategy for improving post-consumer materials management and water management.
Sec. 302. Grant programs.
Sec. 303. Study on repurposing plastic waste in infrastructure.
Sec. 304. Study on effects of microplastics in food supplies and sources of drinking water.
Sec. 305. Report on eliminating barriers to increase the collection of recyclable materials.

Sec. 306. Report on economic incentives to spur development of new end-use markets for recycled plastics.
Sec. 307. Report on minimizing the creation of new plastic waste.

SEC. 2. DEFINITIONS.

In this Act:

(1) CIRCULAR ECONOMY.—The term ''circular economy'' means an economy that uses a systems-focused approach and involves industrial processes and economic activities that—

(A) are restorative or regenerative by design;

(B) enable resources used in such processes and activities to maintain their highest values for as long as possible; and

(C) aim for the elimination of waste through the superior design of materials, products, and systems (including business models).

(2) EPA ADMINISTRATOR.—The term ''EPA Administrator'' means the Administrator of the Environmental Protection Agency.

(3) INDIAN TRIBE.—The term ''Indian Tribe'' has the meaning given the term ''Indian tribe'' in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304), without regard to capitalization.

(4) INTERAGENCY MARINE DEBRIS COORDINATING COMMITTEE.—The term ''Interagency Marine Debris Coordinating Committee'' means the Interagency Marine Debris Coordinating Committee established under section 5 of the Marine Debris Act (33 U.S.C. 1954).

(5) MARINE DEBRIS.—The term ''marine debris'' has the meaning given that term in section 7 of the Marine Debris Act (33 U.S.C. 1956).

(6) MARINE DEBRIS EVENT.—The term ''marine debris event'' means an event or related events that affects or may imminently affect the United States involving—

(A) marine debris caused by a natural event, including a tsunami, flood, landslide, hurricane, or other natural source;

(B) distinct, nonrecurring marine debris, including derelict vessel groundings and container spills, that have immediate or long-term impacts on habitats with high ecological, economic, or human-use values; or

(C) marine debris caused by an intentional or grossly negligent act or acts that causes substantial economic or environmental harm.

(7) NON-FEDERAL FUNDS.—The term ''non-Federal funds'' means funds provided by—

(A) a State;

(B) an Indian Tribe;

(C) a territory of the United States;

(D) one or more units of local governments or Tribal organizations (as defined in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304));

(E) a foreign government;

(F) a private for-profit entity;

(G) a nonprofit organization; or

(H) a private individual.

(8) NONPROFIT ORGANIZATION.—The term ''nonprofit organization'' means an organization that is described in section 501(c) of the Internal Revenue Code of 1986 and exempt from tax under section 501(a) of such Code.

(9) POST-CONSUMER MATERIALS MANAGEMENT.—The term ''post-consumer materials management'' means the systems, operation, supervision, and long-term management of processes and equipment used for post-use material (including packaging, goods, products, and other materials), including—

(A) collection;

(B) transport;

(C) safe disposal of waste that cannot be recovered, reused, recycled, repaired, or refurbished; and

(D) systems and processes related to post-use materials that can be recovered, reused, recycled, repaired, or refurbished.

(10) STATE.—The term ''State'' means—

(A) a State;

(B) an Indian Tribe;

(C) the District of Columbia;

(D) a territory or possession of the United States; or

(E) any political subdivision of an entity described in subparagraphs (A) through (D).

(11) UNDER SECRETARY.—The term ''Under Secretary'' means the Under Secretary of Commerce for Oceans and Atmosphere and Administrator of the National Oceanic and Atmospheric Administration.

TITLE I—COMBATING MARINE DEBRIS

Subtitle A—Amendments to the Marine Debris Act

SEC. 101. AMENDMENTS TO THE MARINE DEBRIS ACT.

The Marine Debris Act (33 U.S.C. 1951 et seq.) is amended—

(1) in section 2 by striking ''marine environment,'' and inserting ''marine environment (including waters in the jurisdiction of the United States, the high seas, and waters in the jurisdiction of other countries),'';

(2) in section 9(a)—

(A) by striking ''$10,000,000'' and inserting ''$15,000,000''; and

(B) by striking ''5 percent'' and inserting ''7 percent''; and

(3) by adding at the end the following:

''SEC. 10. PRIORITIZATION OF MARINE DEBRIS IN EXISTING INNOVATION AND ENTREPRENEURSHIP PROGRAMS.

''In carrying out any relevant innovation and entrepreneurship programs that improve the innovation, effectiveness, and efficiency of the Marine Debris Program established under section 3 without undermining the purpose for which such program was established, the Secretary of Commerce, the Secretary of Energy, the Administrator of the Environmental Protection Agency, and the heads of other relevant Federal agencies, shall prioritize efforts to combat marine debris, including by—

''(1) increasing innovation in methods and the effectiveness of efforts to identify, determine sources of, assess, prevent, reduce, and remove marine debris; and

''(2) addressing the impacts of marine debris on—

''(A) the economy of the United States;

''(B) the marine environment; and

''(C) navigation safety.''.

Subtitle B—Marine Debris Foundation

SEC. 111. ESTABLISHMENT AND PURPOSES OF FOUNDATION.

(a) ESTABLISHMENT.—There is established the Marine Debris Foundation (in this title referred to as the ''Foundation''). The Foundation is a charitable and nonprofit organization and is not an agency or establishment of the United States.

(b) PURPOSES.—The purposes of the Foundation are—

(1) to encourage, accept, and administer private gifts of property for the benefit of, or in connection with, the activities and services of the National Oceanic and Atmospheric Administration under the Marine Debris Program established under section 3 of the Marine Debris Act (33 U.S.C. 1952), and other relevant programs and agencies;

(2) to undertake and conduct such other activities as will augment efforts of the National Oceanic and Atmospheric Administration to assess, prevent, reduce, and remove marine debris and address the adverse impacts of marine debris on the economy of the United States, the marine environment, and navigation safety;

(3) to participate with, and otherwise assist, State, local, and Tribal governments, foreign governments, entities, and individuals in undertaking and conducting activities to assess, prevent, reduce, and remove marine debris and address the adverse impacts of marine debris and its root causes on the economy of the United States, the marine environment (including waters in the jurisdiction of the United States, the high seas, and waters in the jurisdiction of other countries), and navigation safety;

(4) subject to an agreement with the Secretary of Commerce, administer the Genius Prize for Save Our Seas Innovation as described in title II; and

(5) to support other Federal actions to reduce marine debris.

SEC. 112. BOARD OF DIRECTORS OF THE FOUNDATION.

(a) ESTABLISHMENT AND MEMBERSHIP.—

(1) IN GENERAL.—The Foundation shall have a governing Board of Directors (in this title referred to as the ''Board''), which shall consist of the Under Secretary and 12 additional Directors appointed in accordance with subsection (b) from among individuals who are United States citizens.

(2) REPRESENTATION OF DIVERSE POINTS OF VIEW.—To the maximum extent practicable, the membership of the Board shall represent diverse points of view relating to the assessment, prevention, reduction, and removal of marine debris.

(3) NOT FEDERAL EMPLOYEES.—Appointment as a Director of the Foundation shall not constitute employment by, or the holding of an office of, the United States for the purpose of any Federal law.

(b) APPOINTMENT AND TERMS.—

(1) APPOINTMENT.—Subject to paragraph (2), after consulting with the EPA Administrator, the Director of the United States Fish and Wildlife Service, the Assistant Secretary of State for the Bureau of Oceans and International Environmental and Scientific Affairs, and the Administrator of the United States Agency for International Development, and considering the recommendations submitted by the Board, the Under Secretary shall appoint 12 Directors who meet the criteria established by subsection (a), of whom—

(A) at least 4 shall be educated or experienced in the assessment, prevention, reduction, or removal of marine debris, which may include an individual with expertise in post-consumer materials management or a circular economy;

(B) at least 2 shall be educated or experienced in the assessment, prevention, reduction, or removal of marine debris outside the United States;

(C) at least 2 shall be educated or experienced in ocean and coastal resource conservation science or policy; and

(D) at least 2 shall be educated or experienced in international trade or foreign policy.

(2) TERMS.—

(A) IN GENERAL.—Any Director appointed after the initial appointments are made under subparagraph (B) (other than the Under Secretary), shall be appointed for a term of 6 years.

(B) INITIAL APPOINTMENTS TO NEW MEMBER POSITIONS.—Of the Directors appointed by the Under Secretary under paragraph (1), the Under Secretary shall appoint, not later than 180 days after the date of the enactment of this Act—

(i) 4 Directors for a term of 6 years;

(ii) 4 Directors for a term of 4 years; and

(iii) 4 Directors for a term of 2 years.

(3) VACANCIES.—

(A) IN GENERAL.—The Under Secretary shall fill a vacancy on the Board.

(B) TERM OF APPOINTMENTS TO FILL UNEXPIRED TERMS.—An individual appointed to fill a vacancy that occurs before the expiration

of the term of a Director shall be appointed for the remainder of the term.

(4) REAPPOINTMENT.—An individual shall not serve more than 2 consecutive terms as a Director, excluding any term of less than 6 years.

(5) CONSULTATION BEFORE REMOVAL.—The Under Secretary may remove a Director from the Board only after consultation with the Assistant Secretary of State for the Bureau of Oceans and International Environmental and Scientific Affairs, the Director of the United States Fish and Wildlife Service, and the EPA Administrator.

(c) CHAIRMAN.—The Chairman shall be elected by the Board from its members for a 2-year term.

(d) QUORUM.—A majority of the current membership of the Board shall constitute a quorum for the transaction of business.

(e) MEETINGS.—The Board shall meet at the call of the Chairman at least once a year. If a Director misses 3 consecutive regularly scheduled meetings, that individual may be removed from the Board and that vacancy filled in accordance with subsection (b).

(f) REIMBURSEMENT OF EXPENSES.—Members of the Board shall serve without pay, but may be reimbursed for the actual and necessary traveling and subsistence expenses incurred by them in the performance of the duties of the Foundation.

(g) GENERAL POWERS.—

(1) IN GENERAL.—The Board may complete the organization of the Foundation by—

(A) appointing officers and employees;

(B) adopting a constitution and bylaws consistent with the purposes of the Foundation and the provisions of this title; and

(C) undertaking of other such acts as may be necessary to carry out the provisions of this title.

(2) LIMITATIONS ON APPOINTMENT.—The following limitations apply with respect to the appointment of officers and employees of the Foundation:

(A) Officers and employees may not be appointed until the Foundation has sufficient funds to pay them for their service. Officers and employees of the Foundation shall be appointed without regard to the provisions of title 5, United States Code, governing appointments in the competitive service, and may be paid without regard to the provisions of chapter 51 and subchapter III of chapter 53 of such title relating to classification and General Schedule pay rates.

(B) The first officer or employee appointed by the Board shall be the Secretary of the Board who—

(i) shall serve, at the direction of the Board, as its chief operating officer; and

(ii) shall be knowledgeable and experienced in matters relating to the assessment, prevention, reduction, and removal of marine debris.

SEC. 113. RIGHTS AND OBLIGATIONS OF THE FOUNDATION.

(a) IN GENERAL.—The Foundation—

(1) shall have perpetual succession;

(2) may conduct business throughout the several States, territories, and possessions of the United States and abroad; and

(3) shall at all times maintain a designated agent authorized to accept service of process for the Foundation.

(b) SERVICE OF PROCESS.—The serving of notice to, or service of process upon, the agent required under subsection (a)(3), or mailed to the business address of such agent, shall be deemed as service upon or notice to the Foundation.

(c) POWERS.—

(1) IN GENERAL.—To carry out its purposes under section 111, the Foundation shall have, in addition to the powers otherwise given it under this title, the usual powers of a corporation acting as a trustee in the District of Columbia, including the power—

(A) to accept, receive, solicit, hold, administer, and use any gift, devise, or bequest, either absolutely or in trust, of real or personal property or any income therefrom or other interest therein;

(B) to acquire by purchase or exchange any real or personal property or interest therein;

(C) to invest any funds provided to the Foundation by the Federal Government in obligations of the United States or in obligations or securities that are guaranteed or insured by the United States;

(D) to deposit any funds provided to the Foundation by the Federal Government into accounts that are insured by an agency or instrumentality of the United States;

(E) to make use of any interest or investment income that accrues as a consequence of actions taken under subparagraph (C) or (D) to carry out the purposes of the Foundation;

(F) to use Federal funds to make payments under cooperative agreements to provide substantial long-term benefits for the assessment, prevention, reduction, and removal of marine debris;

(G) unless otherwise required by the instrument of transfer, to sell, donate, lease, invest, reinvest, retain or otherwise dispose of any property or income therefrom;

(H) to borrow money and issue bonds, debentures, or other debt instruments;

(I) to sue and be sued, and complain and defend itself in any court of competent jurisdiction, except that the Directors of the Foundation shall not be personally liable, except for gross negligence;

(J) to enter into contracts or other arrangements with, or provide financial assistance to, public agencies and private organizations and persons and to make such payments as may be necessary to carry out its functions; and

(K) to do any and all acts necessary and proper to carry out the purposes of the Foundation.

(2) NON-FEDERAL CONTRIBUTIONS TO THE FUND.—A gift, devise, or bequest may be accepted by the Foundation without regard to whether the gift, devise, or bequest is encumbered, restricted, or subject to beneficial interests of private persons if any current or future interest in the gift, devise, or bequest is for the benefit of the Foundation.

(d) NOTICE TO MEMBERS OF CONGRESS.—The Foundation may not make a grant of Federal funds in an amount greater than $100,000 unless, by not later than 15 days before the grant is made, the Foundation provides notice of the grant to the Member of Congress for the congressional district in which the project to be funded with the grant will be carried out.

(e) COORDINATION OF INTERNATIONAL EFFORTS.—Any efforts of the Foundation carried out in a foreign country, and any grants provided to an individual or entity in a foreign country, shall be made only with the concurrence of the Secretary of State, in consultation, as appropriate, with the Administrator of the United States Agency for International Development.

(f) CONSULTATION WITH NOAA.—The Foundation shall consult with the Under Secretary during the planning of any restoration or remediation action using funds resulting from judgments or settlements relating to the damage to trust resources of the National Oceanic and Atmospheric Administration.

SEC. 114. ADMINISTRATIVE SERVICES AND SUPPORT.

(a) PROVISION OF SERVICES.—The Under Secretary may provide personnel, facilities, and other administrative services to the Foundation, including reimbursement of expenses, not to exceed the current Federal Government per diem rates, for a period of up to 5 years beginning on the date of the enactment of this Act.

(b) REIMBURSEMENT.—The Under Secretary shall require reimbursement from the Foundation for any administrative service provided under subsection (a). The Under Secretary shall deposit any reimbursement received under this subsection into the Treasury to the credit of the appropriations then current and chargeable for the cost of providing such services.

SEC. 115. VOLUNTEER STATUS.

The Secretary of Commerce may accept, without regard to the civil service classification laws, rules, or regulations, the services of the Foundation, the Board, and the officers and employees of the Board, without compensation from the Department of Commerce, as volunteers in the performance of the functions authorized in this title.

SEC. 116. REPORT REQUIREMENTS; PETITION OF ATTORNEY GENERAL FOR EQUITABLE RELIEF.

(a) REPORT.—The Foundation shall, as soon as practicable after the end of each fiscal year, transmit to the Committee on Commerce, Science, and Transportation of the Senate and the Committee on Natural Resources, the Committee on Transportation and Infrastructure, and the Committee on Energy and Commerce of the House of Representatives a report—

(1) describing the proceedings and activities of the Foundation during that fiscal year, including a full and complete statement of its receipts, expenditures, and investments; and

(2) including a detailed statement of the recipient, amount, and purpose of each grant made by the Foundation in the fiscal year.

(b) RELIEF WITH RESPECT TO CERTAIN FOUNDATION ACTS OR FAILURE TO ACT.—If the Foundation—

(1) engages in, or threatens to engage in, any act, practice, or policy that is inconsistent with its purposes set forth in section 111(b), or

(2) refuses, fails, or neglects to discharge its obligations under this title, or threatens to do so,

the Attorney General may petition in the United States District Court for the District of Columbia for such equitable relief as may be necessary or appropriate.

SEC. 117. UNITED STATES RELEASE FROM LIABILITY.

The United States shall not be liable for any debts, defaults, acts, or omissions of the Foundation nor shall the full faith and credit of the United States extend to any obligation of the Foundation.

SEC. 118. AUTHORIZATION OF APPROPRIATIONS.

(a) AUTHORIZATION OF APPROPRIATIONS.—

(1) IN GENERAL.—There are authorized to be appropriated to the Department of Commerce to carry out this title $10,000,000 for each of fiscal years 2021 through 2024.

(2) USE OF APPROPRIATED FUNDS.—Subject to paragraph (3), amounts made available under paragraph (1) shall be provided to the Foundation to match contributions (whether in currency, services, or property) made to the Foundation, or to a recipient of a grant provided by the Foundation, by private persons and State and local government agencies.

(3) PROHIBITION ON USE FOR ADMINISTRATIVE EXPENSES.—

(A) IN GENERAL.—Except as provided in subparagraph (B), no Federal funds made available under paragraph (1) may be used by the Foundation for administrative expenses of the Foundation, including for salaries, travel and transportation expenses, and other overhead expenses.

(B) EXCEPTION.—The Secretary may allow the use of Federal funds made available

under paragraph (1) to pay for salaries during the 18-month period beginning on the date of the enactment of this Act.

(b) ADDITIONAL AUTHORIZATION.—

(1) IN GENERAL.—In addition to the amounts made available under subsection (a), the Foundation may accept Federal funds from a Federal agency under any other Federal law for use by the Foundation to further the assessment, prevention, reduction, and removal of marine debris in accordance with the requirements of this title.

(2) USE OF FUNDS ACCEPTED FROM FEDERAL AGENCIES.—Federal funds provided to the Foundation under paragraph (1) shall be used by the Foundation for matching, in whole or in part, contributions (whether in currency, services, or property) made to the Foundation by private persons and State and local government agencies.

(c) PROHIBITION ON USE OF GRANT AMOUNTS FOR LITIGATION AND LOBBYING EXPENSES.—Amounts provided as a grant by the Foundation shall not be used for—

(1) any expense related to litigation consistent with Federal-wide cost principles; or

(2) any activity the purpose of which is to influence legislation pending before Congress consistent with Federal-wide cost principles.

SEC. 119. TERMINATION OF AUTHORITY.

The authority of the Foundation under this subtitle shall terminate on the date that is 10 years after the establishment of the Foundation, unless the Foundation is reauthorized by an Act of Congress.

Subtitle C—Genius Prize for Save Our Seas Innovations

SEC. 121. DEFINITIONS.

In this subtitle:

(1) PRIZE COMPETITION.—The term ''prize competition'' means the competition for the award of the Genius Prize for Save Our Seas Innovations established under section 122.

(2) SECRETARY.—The term ''Secretary'' means the Secretary of Commerce.

SEC. 122. GENIUS PRIZE FOR SAVE OUR SEAS INNOVATIONS.

(a) IN GENERAL.—

(1) IN GENERAL.—Not later than 1 year after the date of the enactment of this Act, the Secretary shall establish under section 24 of the Stevenson-Wydler Technology Innovation Act of 1980 (15 U.S.C. 3719) a prize competition—

(A) to encourage technological innovation with the potential to reduce plastic waste, and associated and potential pollution, and thereby prevent marine debris; and

(B) to award 1 or more prizes biennially for projects that advance human understanding and innovation in removing and preventing plastic waste, in one of the categories described in paragraph (2).

(2) CATEGORIES FOR PROJECTS.—The categories for projects are:

(A) Advancements in materials used in packaging and other products that, if such products enter the coastal or ocean environment, will fully degrade without harming the environment, wildlife, or human health.

(B) Innovations in production and packaging design that reduce the use of raw materials, increase recycled content, encourage reusability and recyclability, and promote a circular economy.

(C) Improvements in marine debris detection, monitoring, and cleanup technologies and processes.

(D) Improvements or improved strategies to increase solid waste collection, processing, sorting, recycling, or reuse.

(E) New designs or strategies to reduce overall packaging needs and promote reuse.

(b) DESIGNATION.—The prize competition established under subsection (a) shall be known as the ''Genius Prize for Save Our Seas Innovations''.

(c) PRIORITIZATION.—In selecting awards for the prize competition, priority shall be given to projects that—

(1) have a strategy, submitted with the application or proposal, to move the new technology, process, design, material, or other product supported by the prize to market-scale deployment;

(2) support the concept of a circular economy; and

(3) promote development of materials that—

(A) can fully degrade in the ocean without harming the environment, wildlife, or human health; and

(B) are to be used in fishing gear or other maritime products that have an increased likelihood of entering the coastal or ocean environment as unintentional waste.

SEC. 123. AGREEMENT WITH THE MARINE DEBRIS FOUNDATION.

(a) IN GENERAL.—The Secretary may offer to enter into an agreement, which may include a grant or cooperative agreement, under which the Marine Debris Foundation established under title I may administer the prize competition.

(b) REQUIREMENTS.—An agreement entered into under subsection (a) shall comply with the following requirements:

(1) DUTIES.—The Marine Debris Foundation shall—

(A) advertise the prize competition;

(B) solicit prize competition participants;

(C) administer funds relating to the prize competition;

(D) receive Federal and non-Federal funds—

(i) to administer the prize competition; and

(ii) to award a cash prize;

(E) carry out activities to generate contributions of non-Federal funds to offset, in whole or in part—

(i) the administrative costs of the prize competition; and

(ii) the costs of a cash prize;

(F) in the design and award of the prize, consult, as appropriate with experts from—

(i) Federal agencies with jurisdiction over the prevention of marine debris or the promotion of innovative materials;

(ii) State agencies with jurisdiction over the prevention of marine debris or the promotion of innovative materials;

(iii) State, regional, or local conservation or post-consumer materials management organizations, the mission of which relates to the prevention of marine debris or the promotion of innovative materials;

(iv) conservation groups, technology companies, research institutions, scientists (including those with expertise in marine environments) institutions of higher education, industry, or individual stakeholders with an interest in the prevention of marine debris or the promotion of innovative materials;

(v) experts in the area of standards development regarding the degradation, breakdown, or recycling of polymers; and

(vi) other relevant experts of the Board's choosing;

(G) in consultation with, and subject to final approval by, the Secretary, develop criteria for the selection of prize competition winners;

(H) provide advice and consultation to the Secretary on the selection of judges under section 124 based on criteria developed in consultation with, and subject to the final approval of, the Secretary;

(I) announce 1 or more annual winners of the prize competition;

(J) subject to paragraph (2), award 1 or more cash prizes biennially of not less than $100,000; and

(K) protect against unauthorized use or disclosure by the Marine Debris Foundation of any trade secret or confidential business information of a prize competition participant.

(2) ADDITIONAL CASH PRIZES.—The Marine Debris Foundation may award more than 1 cash prize in a year—

(A) if the initial cash prize referred to in paragraph (1)(J) and any additional cash prizes are awarded using only non-Federal funds; and

(B) consisting of an amount determined by the Under Secretary after the Secretary is notified by the Marine Debris Foundation that non-Federal funds are available for an additional cash prize.

(3) SOLICITATION OF FUNDS.—The Marine Debris Foundation—

(A) may request and accept Federal funds and non-Federal funds for a cash prize or administration of the prize competition;

(B) may accept a contribution for a cash prize in exchange for the right to name the prize; and

(C) shall not give special consideration to any Federal agency or non-Federal entity in exchange for a donation for a cash prize awarded under this section.

SEC. 124. JUDGES.

(a) APPOINTMENT.—The Secretary shall appoint not fewer than 3 judges who shall, except as provided in subsection (b), select the 1 or more annual winners of the prize competition.

(b) DETERMINATION BY THE SECRETARY.—The judges appointed under subsection (a) shall not select any annual winner of the prize competition if the Secretary makes a determination that, in any fiscal year, none of the technological advancements entered into the prize competition merits an award.

SEC. 125. REPORT TO CONGRESS.

Not later than 60 days after the date on which a cash prize is awarded under this title, the Secretary shall post on a publicly available website a report on the prize competition that includes—

(1) if the Secretary has entered into an agreement under section 123, a statement by the Marine Debris Foundation that describes the activities carried out by the Marine Debris Foundation relating to the duties described in section 123; and

(2) a statement by 1 or more of the judges appointed under section 124 that explains the basis on which the winner of the cash prize was selected.

SEC. 126. AUTHORIZATION OF APPROPRIATIONS.

Of the amounts authorized under section 118(a), the Secretary of Commerce shall use up to $1,000,000 to carry out this subtitle.

SEC. 127. TERMINATION OF AUTHORITY.

The prize program will terminate after 5 prize competition cycles have been completed.

Subtitle D—Studies, Pilot Projects, and Reports

SEC. 131. REPORT ON OPPORTUNITIES FOR INNOVATIVE USES OF PLASTIC WASTE.

Not later than 2 years after the date of enactment of this Act, the Interagency Marine Debris Coordinating Committee shall submit to Congress a report on innovative uses for plastic waste in consumer products.

SEC. 132. REPORT ON MICROFIBER POLLUTION.

Not later than 2 years after the date of the enactment of this Act, the Interagency Marine Debris Coordinating Committee shall submit to Congress a report on microfiber pollution that includes—

(1) a definition of microfiber;

(2) an assessment of the sources, prevalence, and causes of microfiber pollution;

(3) a recommendation for a standardized methodology to measure and estimate the prevalence of microfiber pollution;

(4) recommendations for reducing microfiber pollution; and

(5) a plan for how Federal agencies, in partnership with other stakeholders, can lead on opportunities to reduce microfiber pollution during the 5-year period beginning on such date of enactment.

SEC. 133. STUDY ON UNITED STATES PLASTIC POLLUTION DATA.

(a) IN GENERAL.—The Under Secretary, in consultation with the EPA Administrator and the Secretary of the Interior, shall seek to enter into an arrangement with the National Academies of Sciences, Engineering, and Medicine under which the National Academies will undertake a multifaceted study that includes the following:

(1) An evaluation of United States contributions to global ocean plastic waste, including types, sources, and geographic variations.

(2) An assessment of the prevalence of marine debris and mismanaged plastic waste in saltwater and freshwater United States navigable waterways and tributaries.

(3) An examination of the import and export of plastic waste to and from the United States, including the destinations of the exported plastic waste and the waste management infrastructure and environmental conditions of these locations.

(4) Potential means to reduce United States contributions to global ocean plastic waste.

(b) REPORT.—Not later than 18 months after the date of the enactment of this Act, the Under Secretary shall submit to Congress a report on the study conducted under subsection (a) that includes—

(1) the findings of the National Academies;

(2) recommendations on knowledge gaps that warrant further scientific inquiry; and

(3) recommendations on the potential value of a national marine debris tracking and monitoring system and how such a system might be designed and implemented.

SEC. 134. STUDY ON MASS BALANCE METHODOLOGIES TO CERTIFY CIRCULAR POLYMERS.

(a) IN GENERAL.—The National Institute of Standards and Technology shall conduct a study of available mass balance methodologies that are or could be readily standardized to certify circular polymers.

(b) REPORT.—Not later than 1 year after the date of enactment of this Act, the Institute shall submit to Congress a report on the study conducted under subsection (a) that includes—

(1) an identification and assessment of existing mass balance methodologies, standards, and certification systems that are or may be applicable to supply chain sustainability of polymers, considering the full life cycle of the polymer, and including an examination of—

(A) the International Sustainability and Carbon Certification; and

(B) the Roundtable on Sustainable Biomaterials;

(2) an assessment of the environmental impacts of the full lifecycle of circular polymers, including impacts on climate change; and

(3) an assessment of any legal or regulatory barriers to developing a standard and certification system for circular polymers.

(c) DEFINITIONS.—In this section:

(1) CIRCULAR POLYMERS.—The term ''circular polymers'' means polymers that can be reused multiple times or converted into a new, higher-quality product.

(2) MASS BALANCE METHODOLOGY.—The term ''mass balance methodology'' means the method of chain of custody accounting designed to track the exact total amount of certain content in products or materials through the production system and to ensure an appropriate allocation of this content in the finished goods based on auditable bookkeeping.

SEC. 135. REPORT ON SOURCES AND IMPACTS OF DERELICT FISHING GEAR.

Not later than 2 years after the date of the enactment of this Act, the Under Secretary shall submit to Congress a report that includes—

(1) an analysis of the scale of fishing gear losses by domestic and foreign fisheries, including—

(A) how the amount of gear lost varies among—

(i) domestic and foreign fisheries;

(ii) types of fishing gear; and

(iii) methods of fishing;

(B) how lost fishing gear is transported by ocean currents; and

(C) common reasons fishing gear is lost;

(2) an evaluation of the ecological, human health, and maritime safety impacts of derelict fishing gear, and how those impacts vary across—

(A) types of fishing gear;

(B) materials used to construct fishing gear; and

(C) geographic location;

(3) recommendations on management measures—

(A) to prevent fishing gear losses; and

(B) to reduce the impacts of lost fishing gear;

(4) an assessment of the cost of implementing such management measures; and

(5) an assessment of the impact of fishing gear loss attributable to foreign countries.

SEC. 136. EXPANSION OF DERELICT VESSEL RECYCLING.

Not later than 1 year after the date of the enactment of this Act, the Under Secretary and the EPA Administrator shall jointly conduct a study to determine the feasibility of developing a nationwide derelict vessel recycling program—

(1) using as a model the fiberglass boat recycling program from the pilot project in Rhode Island led by Rhode Island Sea Grant and its partners; and

(2) including, if possible, recycling of vessels made from materials other than fiberglass.

SEC. 137. INCENTIVE FOR FISHERMEN TO COLLECT AND DISPOSE OF PLASTIC FOUND AT SEA.

(a) IN GENERAL.—The Under Secretary shall establish a pilot program to assess the feasibility and advisability of providing incentives, such as grants, to fishermen based in the United States who incidentally capture marine debris while at sea—

(1) to track or keep the debris on board; and

(2) to dispose of the debris properly on land.

(b) SUPPORT FOR COLLECTION AND REMOVAL OF DERELICT GEAR.—The Under Secretary shall encourage United States efforts, such as the Fishing for Energy net disposal program, that support—

(1) collection and removal of derelict fishing gear and other fishing waste;

(2) disposal or recycling of such gear and waste; and

(3) prevention of the loss of such gear.

TITLE II—ENHANCED GLOBAL ENGAGEMENT TO COMBAT MARINE DEBRIS

SEC. 201. STATEMENT OF POLICY ON INTERNATIONAL COOPERATION TO COMBAT MARINE DEBRIS.

It is the policy of the United States to partner, consult, and coordinate with foreign governments (at the national and subnational levels), civil society, international organizations, international financial institutions, subnational coastal communities, commercial and recreational fishing industry leaders, and the private sector, in a concerted effort—

(1) to increase knowledge and raise awareness about—

(A) the linkages between the sources of plastic waste, mismanaged waste and post-consumer materials, and marine debris; and

(B) the upstream and downstream causes and effects of plastic waste, mismanaged waste and post-consumer materials, and marine debris on marine environments, marine wildlife, human health, and economic development;

(2) to support—

(A) strengthening systems for reducing the generation of plastic waste and recovering, managing, reusing, and recycling plastic waste, marine debris, and microfiber pollution in the world's oceans, emphasizing upstream post-consumer materials management solutions—

(i) to decrease plastic waste at its source; and

(ii) to prevent leakage of plastic waste into the environment;

(B) advancing the utilization and availability of safe and affordable reusable alternatives to disposable plastic products in commerce, to the extent practicable, and with consideration for the potential impacts of such alternatives, and other efforts to prevent marine debris;

(C) deployment of and access to advanced technologies to capture value from post-consumer materials and municipal solid waste streams through mechanical and other recycling systems;

(D) access to information on best practices in post-consumer materials management, options for post-consumer materials management systems financing, and options for participating in public-private partnerships; and

(E) implementation of management measures to reduce derelict fishing gear, the loss of fishing gear, and other sources of pollution generated from marine activities and to increase proper disposal and recycling of fishing gear; and

(3) to work cooperatively with international partners—

(A) on establishing—

(i) measurable targets for reducing marine debris, lost fishing gear, and plastic waste from all sources; and

(ii) action plans to achieve those targets with a mechanism to provide regular reporting;

(B) to promote consumer education, awareness, and outreach to prevent marine debris;

(C) to reduce marine debris by improving advance planning for marine debris events and responses to such events; and

(D) to share best practices in post-consumer materials management systems to prevent the entry of plastic waste into the environment.

SEC. 202. PRIORITIZATION OF EFFORTS AND ASSISTANCE TO COMBAT MARINE DEBRIS AND IMPROVE PLASTIC WASTE MANAGEMENT.

(a) IN GENERAL.—The Secretary of State shall, in coordination with the Administrator of the United States Agency for International Development, as appropriate, and the officials specified in subsection (b)—

(1) lead and coordinate efforts to implement the policy described in section 201; and

(2) develop strategies and implement programs that prioritize engagement and cooperation with foreign governments, subnational and local stakeholders, and the private sector to expedite efforts and assistance in foreign countries—

(A) to partner with, encourage, advise and facilitate national and subnational governments on the development and execution, where practicable, of national projects, programs and initiatives to—

(i) improve the capacity, security, and standards of operations of post-consumer materials management systems;

(ii) monitor and track how well post-consumer materials management systems are functioning nationwide, based on uniform and transparent standards developed in cooperation with municipal, industrial, and civil society stakeholders;

(iii) identify the operational challenges of post-consumer materials management systems and develop policy and programmatic solutions;

(iv) end intentional or unintentional incentives for municipalities, industries, and individuals to improperly dispose of plastic waste; and

(v) conduct outreach campaigns to raise public awareness of the importance of proper waste disposal and the reduction of plastic waste;

(B) to facilitate the involvement of municipalities and industries in improving solid waste reduction, collection, disposal, and reuse and recycling projects, programs, and initiatives;

(C) to partner with and provide technical assistance to investors, and national and local institutions, including private sector actors, to develop new business opportunities and solutions to specifically reduce plastic waste and expand solid waste and post-consumer materials management best practices in foreign countries by—

(i) maximizing the number of people and businesses, in both rural and urban communities, receiving reliable solid waste and post-consumer materials management services;

(ii) improving and expanding the capacity of foreign industries to responsibly employ post-consumer materials management practices;

(iii) improving and expanding the capacity and transparency of tracking mechanisms for marine debris to reduce the impacts on the marine environment;

(iv) eliminating incentives that undermine responsible post-consumer materials management practices and lead to improper waste disposal practices and leakage;

(v) building the capacity of countries—

(I) to reduce, monitor, regulate, and manage waste, post-consumer materials and plastic waste, and pollution appropriately and transparently, including imports of plastic waste from the United States and other countries;

(II) to encourage private investment in post-consumer materials management and reduction; and

(III) to encourage private investment, grow opportunities, and develop markets for recyclable, reusable, and repurposed plastic waste and post-consumer materials, and products with high levels of recycled plastic content, at both national and local levels; and

(vi) promoting safe and affordable reusable alternatives to disposable plastic products, to the extent practicable; and

(D) to research, identify, and facilitate opportunities to promote collection and proper disposal of damaged or derelict fishing gear.

(b) OFFICIALS SPECIFIED.—The officials specified in this subsection are the following:

(1) The United States Trade Representative.

(2) The Under Secretary.

(3) The EPA Administrator.

(4) The Director of the Trade and Development Agency.

(5) The President and the Board of Directors of the Overseas Private Investment Corporation or the Chief Executive Officer and the Board of Directors of the United States International Development Finance Corporation, as appropriate.

(6) The Chief Executive Officer and the Board of Directors of the Millennium Challenge Corporation.

(7) The Commandant of the Coast Guard, with respect to pollution from ships.

(8) The heads of such other agencies as the Secretary of State considers appropriate.

(c) PRIORITIZATION.—In carrying out subsection (a), the officials specified in subsection (b) shall prioritize assistance to countries with, and regional organizations in regions with—

(1) rapidly developing economies; and

(2) rivers and coastal areas that are the most severe sources of marine debris, as identified by the best available science.

(d) EFFECTIVENESS MEASUREMENT.—In prioritizing and expediting efforts and assistance under this section, the officials specified in subsection (b) shall use clear, accountable, and metric-based targets to measure the effectiveness of guarantees and assistance in achieving the policy described in section 201.

(e) RULE OF CONSTRUCTION.—Nothing in this section may be construed to authorize the modification of or the imposition of limits on the portfolios of any agency or institution led by an official specified in subsection (b).

SEC. 203. UNITED STATES LEADERSHIP IN INTERNATIONAL FORA.

In implementing the policy described in section 201, the President shall direct the United States representatives to appropriate international bodies and conferences (including the United Nations Environment Programme, the Association of Southeast Asian Nations, the Asia Pacific Economic Cooperation, the Group of 7, the Group of 20, the Organization for Economic Co-Operation and Development (OECD), and the Our Ocean Conference) to use the voice, vote, and influence of the United States, consistent with the broad foreign policy goals of the United States, to advocate that each such body—

(1) commit to significantly increasing efforts to promote investment in well-designed post-consumer materials management and plastic waste elimination and mitigation projects and services that increase access to safe post-consumer materials management and mitigation services, in partnership with the private sector and consistent with the constraints of other countries;

(2) address the post-consumer materials management needs of individuals and communities where access to municipal post-consumer materials management services is historically impractical or cost-prohibitive;

(3) enhance coordination with the private sector—

(A) to increase access to solid waste and post-consumer materials management services;

(B) to utilize safe and affordable alternatives to disposable plastic products, to the extent practicable;

(C) to encourage and incentivize the use of recycled content; and

(D) to grow economic opportunities and develop markets for recyclable, compostable, reusable, and repurposed plastic waste materials and post-consumer materials and other efforts that support the circular economy;

(4) provide technical assistance to foreign regulatory authorities and governments to remove unnecessary barriers to investment in otherwise commercially-viable projects related to—

(A) post-consumer materials management;

(B) the use of safe and affordable alternatives to disposable plastic products; or

(C) beneficial reuse of solid waste, plastic waste, post-consumer materials, plastic products, and refuse;

(5) use clear, accountable, and metric-based targets to measure the effectiveness of such projects; and

(6) engage international partners in an existing multilateral forum (or, if necessary, establish through an international agreement a new multilateral forum) to improve global cooperation on—

(A) creating tangible metrics for evaluating efforts to reduce plastic waste and marine debris;

(B) developing and implementing best practices at the national and subnational levels of foreign countries, particularly countries with little to no solid waste or post-consumer materials management systems, facilities, or policies in place for—

(i) collecting, disposing, recycling, and reusing plastic waste and post-consumer materials, including building capacity for improving post-consumer materials management; and

(ii) integrating alternatives to disposable plastic products, to the extent practicable;

(C) encouraging the development of standards and practices, and increasing recycled content percentage requirements for disposable plastic products;

(D) integrating tracking and monitoring systems into post-consumer materials management systems;

(E) fostering research to improve scientific understanding of—

(i) how microfibers and microplastics may affect marine ecosystems, human health and safety, and maritime activities;

(ii) changes in the amount and regional concentrations of plastic waste in the ocean, based on scientific modeling and forecasting;

(iii) the role rivers, streams, and other inland waterways play in serving as conduits for mismanaged waste traveling from land to the ocean;

(iv) effective means to eliminate present and future leakages of plastic waste into the environment; and

(v) other related areas of research the United States representatives deem necessary;

(F) encouraging the World Bank and other international finance organizations to prioritize efforts to reduce plastic waste and combat marine debris;

(G) collaborating on technological advances in post-consumer materials management and recycled plastics;

(H) growing economic opportunities and developing markets for recyclable, compostable, reusable, and repurposed plastic waste and post-consumer materials and other efforts that support the circular economy; and

(I) advising foreign countries, at both the national and subnational levels, on the development and execution of regulatory policies, services, including recycling and reuse of plastic, and laws pertaining to reducing the creation and the collection and safe management of—

(i) solid waste;

(ii) post-consumer materials;

(iii) plastic waste; and

(iv) marine debris.

SEC. 204. ENHANCING INTERNATIONAL OUTREACH AND PARTNERSHIP OF UNITED STATES AGENCIES INVOLVED IN MARINE DEBRIS ACTIVITIES.

(a) FINDINGS.—Congress recognizes the success of the marine debris program of the National Oceanic and Atmospheric Administration and the Trash-Free Waters program of the Environmental Protection Agency.

(b) AUTHORIZATION OF EFFORTS TO BUILD FOREIGN PARTNERSHIPS.—The Under Secretary and the EPA Administrator shall work with the Secretary of State and the Administrator of the United States Agency for International Development to build partnerships, as appropriate, with the governments of foreign countries and to support international efforts to combat marine debris.

SEC. 205. NEGOTIATION OF NEW INTERNATIONAL AGREEMENTS.

Not later than 1 year after the date of the enactment of this Act, the Secretary of State shall submit to Congress a report—

(1) assessing the potential for negotiating new international agreements or creating a new international forum to reduce land-based sources of marine debris and derelict fishing gear, consistent with section 203;

(2) describing the provisions that could be included in such agreements; and

(3) assessing potential parties to such agreements.

SEC. 206. CONSIDERATION OF MARINE DEBRIS IN NEGOTIATING INTERNATIONAL AGREEMENTS.

In negotiating any relevant international agreement with any country or countries after the date of the enactment of this Act, the President shall, as appropriate—

(1) consider the impact of land-based sources of plastic waste and other solid waste from that country on the marine and aquatic environment; and

(2) ensure that the agreement strengthens efforts to eliminate land-based sources of plastic waste and other solid waste from that country that impact the marine and aquatic environment.

TITLE III—IMPROVING DOMESTIC INFRASTRUCTURE TO PREVENT MARINE DEBRIS

SEC. 301. STRATEGY FOR IMPROVING POST-CONSUMER MATERIALS MANAGEMENT AND WATER MANAGEMENT.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this Act, the EPA Administrator shall, in consultation with stakeholders, develop a strategy to improve post-consumer materials management and infrastructure for the purpose of reducing plastic waste and other post-consumer materials in waterways and oceans.

(b) RELEASE.—On development of the strategy under subsection (a), the EPA Administrator shall—

(1) distribute the strategy to States; and

(2) make the strategy publicly available, including for use by—

(A) for-profit private entities involved in post-consumer materials management; and

(B) other nongovernmental entities.

SEC. 302. GRANT PROGRAMS.

(a) POST-CONSUMER MATERIALS MANAGEMENT INFRASTRUCTURE GRANT PROGRAM.—

(1) IN GENERAL.—The EPA Administrator may provide grants to States to implement the strategy developed under section 301(a) and—

(A) to support improvements to local post-consumer materials management, including municipal recycling programs; and

(B) to assist local waste management authorities in making improvements to local waste management systems.

(2) APPLICATIONS.—To be eligible to receive a grant under paragraph (1), the applicant State shall submit to the EPA Administrator an application at such time, in such manner, and containing such information as the EPA Administrator may require.

(3) CONTENTS OF APPLICATIONS.—In developing application requirements, the EPA Administrator shall consider requesting that a State applicant provide—

(A) a description of—

(i) the project or projects to be carried out using grant funds; and

(ii) how the project or projects would result in the generation of less plastic waste;

(B) a description of how the funds will support disadvantaged communities; and

(C) an explanation of any limitations, such as flow control measures, that restrict access to reusable or recyclable materials.

(4) REPORT TO CONGRESS.—Not later than January 1, 2023, the EPA Administrator shall submit to the Committee on Environment and Public Works of the Senate and the Committee on Transportation and Infrastructure and the Committee on Energy and Commerce of the House of Representatives a report that includes—

(A) a description of the activities carried out under this subsection;

(B) estimates as to how much plastic waste was prevented from entering the oceans and other waterways as a result of activities funded pursuant to this subsection; and

(C) a recommendation on the utility of evolving the grant program into a new waste management State revolving fund.

(b) DRINKING WATER INFRASTRUCTURE GRANTS.—

(1) IN GENERAL.—The EPA Administrator may provide competitive grants to units of local government, Indian Tribes, and public water systems (as defined in section 1401 of the Safe Drinking Water Act (42 U.S.C. 300f)) to support improvements in reducing and removing plastic waste and post-consumer materials, including microplastics and microfibers, from drinking water or sources of drinking water, including planning, design, construction, technical assistance, and planning support for operational adjustments.

(2) APPLICATIONS.—To be eligible to receive a grant under paragraph (1), an applicant shall submit to the EPA Administrator an application at such time, in such manner, and containing such information as the EPA Administrator may require.

(c) WASTEWATER INFRASTRUCTURE GRANTS.—

(1) IN GENERAL.—The EPA Administrator may provide grants to municipalities (as defined in section 502 of the Federal Water Pollution Control Act (33 U.S.C. 1362)) or Indian Tribes that own and operate treatment works (as such term is defined in section 212 of such Act (33 U.S.C. 1292)) for the construction of improvements to reduce and remove plastic waste and post-consumer materials, including microplastics and microfibers, from wastewater.

(2) APPLICATIONS.—To be eligible to receive a grant under paragraph (1), an applicant shall submit to the EPA Administrator an application at such time, in such manner, and containing such information as the EPA Administrator may require.

(d) TRASH-FREE WATERS GRANTS.—

(1) IN GENERAL.—The EPA Administrator may provide grants to units of local government, Indian Tribes, and nonprofit organizations—

(A) to support projects to reduce the quantity of solid waste in bodies of water by reducing the quantity of waste at the source, including through anti-litter initiatives;

(B) to enforce local post-consumer materials management ordinances;

(C) to implement State or local policies relating to solid waste;

(D) to capture post-consumer materials at stormwater inlets, at stormwater outfalls, or in bodies of water;

(E) to provide education and outreach about post-consumer materials movement and reduction; and

(F) to monitor or model flows of post-consumer materials, including monitoring or modeling a reduction in trash as a result of the implementation of best management practices for the reduction of plastic waste and other post-consumer materials in sources of drinking water.

(2) APPLICATIONS.—To be eligible to receive a grant under paragraph (1), an applicant shall submit to the EPA Administrator an application at such time, in such manner, and containing such information as the EPA Administrator may require.

(e) APPLICABILITY OF FEDERAL LAW.—

(1) IN GENERAL.—The EPA Administrator shall ensure that all laborers and mechanics employed on projects funded directly, or assisted in whole or in part, by a grant established by this section shall be paid wages at rates not less than those prevailing on projects of a character similar in the locality as determined by the Secretary of Labor in accordance with subchapter IV of chapter 31 of part A of subtitle II of title 40, United States Code.

(2) AUTHORITY.—With respect to the labor standards specified in paragraph (1), the Secretary of Labor shall have the authority and functions set forth in Reorganization Plan Numbered 14 of 1950 (64 Stat. 1267; 5 U.S.C. App.) and section 3145 of title 40, United States Code.

(3) REQUIREMENTS.—The requirements of section 608 of the Federal Water Pollution Control Act (33 U.S.C. 1388) shall apply to the construction of a project carried out, in whole or in part, with assistance made available under this section in the same manner as the requirements of such section apply with respect to funds made available pursuant to title VI of such Act.

(f) LIMITATION ON USE OF FUNDS.—A grant under this section may not be used (directly or indirectly) as a source of payment (in whole or in part) of, or security for, an obligation the interest on which is excluded from gross income under section 103 of the Internal Revenue Code of 1986.

(g) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated—

(1) for the program described subsection (a), $55,000,000 for each of fiscal years 2021 through 2025; and

(2) for each of the programs described subsections (b), (c), and (d), $10,000,000 for each of fiscal years 2021 through 2025.

SEC. 303. STUDY ON REPURPOSING PLASTIC WASTE IN INFRASTRUCTURE.

(a) IN GENERAL.—The Secretary of Transportation (referred to in this section as the ''Secretary'') and the EPA Administrator shall jointly enter into an arrangement with the National Academies of Sciences, Engineering, and Medicine under which the National Academies will—

(1) conduct a study on the uses of plastic waste in infrastructure; and

(2) as part of the study under paragraph (1)—

(A) identify domestic and international examples of—

(i) the use of plastic waste materials described in that paragraph;

(ii) infrastructure projects in which the use of plastic waste has been applied; and

(iii) projects in which the use of plastic waste has been incorporated into or with other infrastructure materials;

(B) assess—

(i) the effectiveness and utility of the uses of plastic waste described in that paragraph;

(ii) the extent to which plastic waste materials are consistent with recognized specifications for infrastructure construction and other recognized standards;

(iii) relevant impacts of plastic waste materials compared to non-waste plastic materials;

(iv) the health, safety, and environmental impacts of—

(I) plastic waste on humans and animals; and

(II) the increased use of plastic waste for infrastructure;

(v) the ability of plastic waste infrastructure to withstand natural disasters, extreme weather events, and other hazards; and

(vi) plastic waste in infrastructure through an economic analysis; and

(C) make recommendations with respect to what standards or matters may need to be addressed with respect to ensuring human

and animal health and safety from the use of plastic waste in infrastructure.

(b) REPORT REQUIRED.—Not later than 2 years after the date of enactment of this Act and subject to the availability of appropriations, the Secretary and the EPA Administrator shall submit to Congress a report on the study conducted under subsection (a).

SEC. 304. STUDY ON EFFECTS OF MICROPLASTICS IN FOOD SUPPLIES AND SOURCES OF DRINKING WATER.

(a) IN GENERAL.—The EPA Administrator, in consultation with the Under Secretary, shall seek to enter into an arrangement with the National Academies of Sciences, Engineering, and Medicine under which the National Academies will conduct a human health and environmental risk assessment on microplastics, including microfibers, in food supplies and sources of drinking water.

(b) REPORT REQUIRED.—Not later than 2 years after the date of enactment of this Act, the EPA Administrator shall submit to Congress a report on the study conducted under subsection (a) that includes—

(1) a science-based definition of ''microplastics'' that can be adopted in federally supported monitoring and future assessments supported or conducted by a Federal agency;

(2) recommendations for standardized monitoring, testing, and other necessary protocols relating to microplastics;

(3) an assessment of—

(A) the extent to which microplastics are present in the food supplies and sources of drinking water; and

(B) the type, source, prevalence, and risk of microplastics in the food supplies and sources of drinking water, including—

(i) an identification of the most significant sources of those microplastics; and

(ii) a review of the best available science to determine any potential hazards of microplastics in the food supplies and sources of drinking water; and

(4) a measurement of—

(A) the quantity of environmental chemicals that adsorb to microplastics; and

(B) the quantity described in subparagraph (A) that would be available for human exposure through food supplies or sources of drinking water.

SEC. 305. REPORT ON ELIMINATING BARRIERS TO INCREASE THE COLLECTION OF RECYCLABLE MATERIALS.

Not later than 1 year after the date of enactment of this Act, the EPA Administrator shall submit to Congress a report describing—

(1) the economic, educational, technological, resource availability, legal, or other barriers to increasing the collection, processing, and use of recyclable materials; and

(2) recommendations to overcome the barriers described under paragraph (1).

SEC. 306. REPORT ON ECONOMIC INCENTIVES TO SPUR DEVELOPMENT OF NEW END-USE MARKETS FOR RECYCLED PLASTICS.

Not later than 1 year after the date of enactment of this Act, the EPA Administrator shall submit to Congress a report describing the most efficient and effective economic incentives to spur the development of additional new end-use markets for recycled plastics, including plastic film, including the use of increased recycled content by manufacturers in the production of plastic goods and packaging.

SEC. 307. REPORT ON MINIMIZING THE CREATION OF NEW PLASTIC WASTE.

(a) IN GENERAL.—The EPA Administrator, in coordination with the Interagency Marine Debris Coordinating Committee and the National Institute of Standards and Technology, shall conduct a study on minimizing the creation of new plastic waste.

(b) REPORT.—Not later than 2 years after the date of enactment of this Act, the EPA Administrator shall submit to Congress a report on the study conducted under subsection (a) that includes—

(1) an estimate of the current and projected United States production and consumption of plastics, by type of plastic, including consumer food products;

(2) an estimate of the environmental effects and impacts of plastic production and use in relation to other materials;

(3) an estimate of current and projected future recycling rates of plastics, by type of plastic;

(4) an assessment of opportunities to minimize the creation of new plastic waste, including consumer food products, by reducing, recycling, reusing, refilling, refurbishing, or capturing plastic that would otherwise be part of a waste stream; and

(5) an assessment of what post-consumer recycled content standards for plastic are technologically and economically feasible, and the impact of the standards on recycling rates.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from California (Mr. CARBAJAL) and the gentleman from Missouri (Mr. GRAVES) each will control 20 minutes.

The Chair recognizes the gentleman from California.

GENERAL LEAVE

Mr. CARBAJAL. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous material on S. 1982, as amended.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. CARBAJAL. Mr. Speaker, I yield myself such time as I may consume.

I rise in full support of S. 1982, important bipartisan legislation to further improve our national capabilities to respond to the global problem of marine debris, especially impacts caused by plastic waste on the ocean environment.

Marine debris is essentially any trash or litter that ends up in the marine environment or the Great Lakes. It originates from a wide variety of locations and often travels great distances before ending up in the ocean.

Marine debris is everywhere. It is found around every major body of water on the planet and along every shoreline in the world, no matter how remote.

These materials pose a substantial threat to marine life that might ingest or get entangled in marine debris or have their habitats degraded. But equally important, marine debris threatens public health and safety in the form of degraded water quality, increased exposure to pathogens and chemicals, and damage to vessels.

The legislation before us this afternoon incorporates the contributions of no less than six different committees that reviewed and offered several targeted amendments to improve provisions under each committee's jurisdiction.

Of note, I want to thank Chair GRIJALVA, Chair ENGEL, Chairwoman JOHNSON, Chair PALLONE, Chair PETERSON, and their respective staffs for their cooperation in refining this noncontroversial legislation so that it could be considered today.

As amended, this legislation will provide an increase in annual funding under the Marine Debris Act to $15 million, a 50 percent increase over existing authorized funding levels.

This funding increase should help to strengthen current programs administered by NOAA and the U.S. Coast Guard and prioritize efforts to combat marine debris through innovation and entrepreneurship programs.

Moreover, this legislation authorizes new approaches to address the international complexity of marine debris, most notably through the establishment of a charitable nonprofit Marine Debris Foundation.

It also provides specific direction to Federal agencies to maintain international leadership on marine debris and provides enhanced support for plastic waste mitigation.

Even though the bill is not perfect, on balance, it is a very positive addition to the legislation passed last Congress to reauthorize the Marine Debris Act.

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And considering the scale of the marine debris challenge, it stands to reason that this will not be the last bill Congress enacts to address this serious environmental problem.

Mr. Speaker, I thank my colleague from Oregon, Congresswoman SUZANNE BONAMICI, for her leadership on this issue and tireless advocacy to get this bill through the House.

In closing, Mr. Speaker, this is good, bipartisan legislation that deserves support from Members on both sides of the aisle, and I urge its passage today.

Mr. Speaker, I reserve the balance of my time.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON ENERGY AND COMMERCE,
Washington, DC, September 29, 2020.

Hon. PETER A. DEFAZIO,
Chairman, Committee on Transportation and Infrastructure, Washington, DC.

DEAR CHAIRMAN DEFAZIO: I write concerning S. 1982, the ''Save Our Seas 2.0 Act,'' which was additionally referred to the Committee on Energy and Commerce (Committee).

In recognition of the desire to expedite consideration of S. 1982, the Committee agrees to waive formal consideration of the bill as to provisions that fall within the Rule X jurisdiction of the Committee. The Committee takes this action with the mutual understanding that we do not waive any jurisdiction over the subject matter contained in this or similar legislation, and that the Committee will be appropriately consulted and involved as this bill or similar legislation moves forward so that we may address any remaining issues within our jurisdiction. I also request that you support my request to name members of the Committee to any conference committee to consider such provisions.

Finally, I would appreciate the inclusion of this letter into the Congressional Record during floor consideration of S. 1982.

Sincerely,

FRANK PALLONE, Jr.,
Chairman.

HOUSE OF REPRESENTATIVES, COMMITTEE ON TRANSPORTATION AND INFRASTRUCTURE,
Washington, DC, September 29, 2020.

Hon. FRANK PALLONE,
Chairman, Committee on Energy and Commerce, House of Representatives,
Washington, DC.

DEAR CHAIRMAN PALLONE: Thank you for your letter regarding S. 1982, the Save Our Seas 2.0 Act. I appreciate your decision to waive formal consideration of the bill.

I agree that the Committee on Energy and Commerce has valid jurisdictional claims to certain provisions in this important legislation, and I further agree that by forgoing formal consideration of the bill, the Committee on Energy and Commerce is not waiving any jurisdiction over any relevant subject matter. Additionally, I will support the appointment of conferees from the Committee on Energy and Commerce should a House-Senate conference be convened on this legislation. Finally, this exchange of letters will be included in the CONGRESSIONAL RECORD when the bill is considered on the floor.

Thank you again, and I look forward to continuing to work collaboratively with you on this important issue.

Sincerely,

PETER A. DEFAZIO,
Chair.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON NATURAL RESOURCES,
Washington, DC, September 28, 2020.

Hon. PETER A. DEFAZIO,
Chair, Committee on Transporation and Infrastructure, House of Representatives, Washington, DC.

DEAR CHAIR DEFAZIO: In recognition of the goal of expediting consideration of S. 1982, the ''Save Our Seas 2.0 Act,'' the Committee on Natural Resources agrees to waive formal consideration of the bill as to provisions that fall within the Rule X jurisdiction of the Committee on Natural Resources.

The Committee on Natural Resources takes this action with the mutual understanding that, in doing so, we do not waive any jurisdiction over the subject matter contained in this or similar legislation, and that the Committee will be appropriately consulted and involved as the bill or similar legislation moves forward so that we may address any remaining issues within our jurisdiction. Our Committee also reserves the right to seek appointment of conferees to any House-Senate conference involving this or similar legislation.

Thank you for agreeing to include our exchange of letters in the Congressional Record. I appreciate your cooperation regarding this legislation and look forward to continuing to work with you as this measure moves through the legislative process.

Sincerely,

RAÚL M. GRIJALVA,
Chair,
House Natural Resources Committee.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON TRANSPORTATION AND INFRASTRUTURE,

Hon. RAÚL M. GRIJALVA,
Chair, Committee on Natural Resources, House of Representatives,
Washington, DC, September 29, 2020.

DEAR CHAIR GRIJALVA: Thank you for your letter regarding S. 1982, the Save Our Seas 2.0 Act. I appreciate your decision to waive formal consideration of the bill.

I agree that the Committee on Natural Resources has valid jurisdictional claims to certain provisions in this important legislation, and I further agree that by forgoing formal consideration of the bill, the Committee on Natural Resources is not waiving any jurisdiction over any relevant subject matter. Additionally, I will support the appointment of conferees from the Committee on Natural Resources should a House-Senate conference be convened on this legislation. Finally, this exchange of letters will be included in the Congressional Record when the bill is considered on the floor.

Thank you again, and I look forward to continuing to work collaboratively with you on this important issue.

Sincerely,

PETER A. DEFAZIO,
Chair.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON AGRICULTURE,
Washington, DC, September 28, 2020.

Hon. PETER DEFAZIO,
Chairman, Committee on Transportation and Infrastructure, House of Representatives, Washington, DC.

DEAR MR. CHAIRMAN: This letter confirms our mutual understanding regarding S. 1982, the Save Our Seas 2.0 Act. Thank you for collaborating with the Committee on Agriculture on the matters within our jurisdiction.

The Committee on Agriculture will forego any further consideration of this bill so that it may proceed expeditiously to the House floor for consideration. However, by foregoing consideration at this time, we do not waive any jurisdiction over any subject matter contained in this or similar legislation. We request that our Committee be consulted and involved as this bill moves forward so that we may address any remaining issues in our jurisdiction. The Committee on Agriculture also reserves the right to seek appointment of an appropriate number of conferees to any House-Senate conference involving this or similar legislation and ask that you support any such request.

We would appreciate a response to this letter confirming this understanding with respect to S. 1982, and request that a copy of our letters on this matter be published in the Congressional Record during Floor consideration.

Sincerely,

COLLIN C. PETERSON,
Chairman.

HOUSE OF REPRESENTATIVES, COMMITTEE ON TRANSPORTATION AND INFRASTRUCTURE,
Washington, DC, September 29, 2020.

Hon. COLLIN PETERSON,
Chairman, Committee on Agriculture, House of Representatives, Washington, DC.

DEAR CHAIRMAN PETERSON: Thank you for your letter regarding S. 1982, the Save Our Seas 2.0 Act. I appreciate your decision to waive formal consideration of the bill.

I agree that the Committee on Agriculture has valid jurisdictional claims to certain provisions in this important legislation, and I further agree that by forgoing formal consideration of the bill, the Committee on Agriculture is not waiving any jurisdiction over any relevant subject matter. Additionally, I will support the appointment of conferees from the Committee on Agriculture should a House-Senate conference be convened on this legislation. Finally, this exchange of letters will be included in the Congressional Record when the bill is considered on the floor.

Thank you again, and I look forward to continuing to work collaboratively with you on this important issue.

Sincerely,

PETER A. DEFAZIO,
Chair.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON SCIENCE, SPACE, AND TECHNOLOGY,
Washington, DC, September 28, 2020.

Chairman PETER A. DEFAZIO,
Committee on Transportation and Infrastructure, House of Representatives, Washington, DC.

DEAR CHAIRMAN DEFAZIO: I am writing to you concerning S. 1982, the ''Save Our Seas 2.0 Act,'' which was passed by the Senate and received in the House on January 13, 2020.

In the interest of expedience in the consideration of S. 1982, the Committee on Science, Space, and Technology will waive formal consideration of the bill. This is, however, not a waiver of future jurisdictional claims by the Science Committee over the subject matter contained in S. 1982 or similar legislation.

Thank you for agreeing to include our exchange of letters in the Congressional Record during consideration of the bill in the House. Additionally, I ask that you support the appointment of Science Committee conferees during any House-Senate conference convened on this legislation.

Sincerely,

EDDIE BERNICE JOHNSON,
Chairwoman, Committee on Science, Space, and Technology.

HOUSE OF REPRESENTATIVES, COMMITTEE ON TRANSPORTATION AND INFRASTRUCTURE,
Washington, DC, September 29, 2020.

Hon. EDDIE BERNICE JOHNSON,
Chairwoman, Committee on Science, Space, and Technology, House of Representatives, Washington, DC.

DEAR CHAIRWOMAN JOHNSON: Thank you for your letter regarding S. 1982, the Save Our Seas 2.0 Act. I appreciate your decision to waive formal consideration of the bill.

I agree that the Committee on Science, Space, and Technology has valid jurisdictional claims to certain provisions in this important legislation, and I further agree that by forgoing formal consideration of the bill, the Committee on Science, Space, and Technology is not waiving any jurisdiction over any relevant subject matter. Additionally, I will support the appointment of conferees from the Committee on Science, Space, and Technology should a House-Senate conference be convened on this legislation. Finally, this exchange of letters will be included in the Congressional Record when the bill is considered on the floor.

Thank you again, and I look forward to continuing to work collaboratively with you on this important issue.

Sincerely,

PETER A. DEFAZIO,
Chair.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON FOREIGN AFFAIRS,
Washington, DC, September 29, 2020.

Hon. PETER A. DEFAZIO,
Committee on Transportation and Infrastructure, House of Representatives, Washington, DC.

DEAR CHAIRMAN DEFAZIO: I am writing to you concerning S. 1982, Save Our Seas 2.0 Act. I recognize that the bill contains provisions that fall within the jurisdiction of the Committee on Foreign Affairs.

In an effort to work cooperatively and to expedite the consideration of the bill, the

Committee on Foreign Affairs will waive referral of S. 1982. This, however, is not a waiver of future jurisdictional claims by the Committee on Foreign Affairs over this legislation or its subject matter.

Thank you for agreeing to include our exchange of letters in the Congressional Record. Additionally, I ask that you support the appointment of Committee on Foreign Affairs conferees during any House-Senate conference convened on this legislation.

Sincerely,

ELIOT L. ENGEL,
Chairman.

HOUSE OF REPRESENTATIVES,
COMMITTEE ON FOREIGN AFFAIRS,
Washington, DC, September 29, 2020.

Hon. ELIOT L. ENGEL,
Chairman, Committee on Foreign Affairs, House of Representatives, Washington, DC.

DEAR CHAIRMAN ENGEL: Thank you for your letter regarding S. 1982, the Save Our Seas 2.0 Act. I appreciate your decision to waive formal consideration of the bill.

I agree that the Committee on Foreign Affairs has valid jurisdictional claims to certain provisions in this important legislation, and I further agree that by forgoing formal consideration of the bill, the Committee on Foreign Affairs is not waiving any jurisdiction over any relevant subject matter. Additionally, I will support the appointment of conferees from the Committee on Foreign Affairs should a House-Senate conference be convened on this legislation. Finally, this exchange of letters will be included in the Congressional Record when the bill is considered on the floor.

Thank you again, and I look forward to continuing to work collaboratively with you on this important issue.

Sincerely,

PETER A. DEFAZIO,
Chair.

Mr. GRAVES of Missouri. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I am very pleased today that S. 1982, the Save Our Seas 2.0, or SOS 2.0, Act is scheduled for consideration today.

Last Congress, we passed the Save Our Seas Act building upon the work of the Marine Debris Act, which combats ocean-based solid waste pollution.

Save Our Seas 2.0 develops these existing programs by establishing a Marine Debris Foundation to enhance Federal and private efforts to combat marine debris and authorizing a genius award to promote improved ocean cleanup technology.

The bill also authorizes studies, grant programs, and international negotiations to better understand the causes of ocean pollution and improve how we prevent and eliminate this pollution.

Mr. Speaker, I commend Representative DON YOUNG for his work and leadership on the House companion to this bill. His district was hit particularly hard by marine debris arriving from Japan after the 2011 tsunami.

That tsunami drove one ghost fishing boat all the way from the coast of Japan to the Gulf of Alaska before being sunk by the U.S. Coast Guard; just one example of how far debris can travel.

Mr. Speaker, I also thank Chairman DEFAZIO for working with us on minor changes to this bill.

Mr. Speaker, I urge support for this legislation, and I reserve the balance of my time.

Mr. CARBAJAL. Mr. Speaker, I yield 3 minutes to the gentlewoman from Oregon (Ms. BONAMICI).

Ms. BONAMICI. Mr. Speaker, I thank my colleague for yielding. I also thank Chairman DEFAZIO for his ongoing efforts to help us bring this important bill to the floor today.

As the co-chair of the House Oceans Caucus, I rise in strong support of Save Our Seas 2.0, a bill to clean up marine debris.

Every minute, the equivalent of a garbage truck full of plastic is dumped into our ocean. According to the United Nations, that is more than 8 million tons a year. Plastic bottles, straws, grocery bags, cigarette butts, fishing gear, and abandoned vessels litter the ocean.

After the tsunami hit the coast of Japan in 2011, large materials, like docks and boats that carried invasive species, ended up on the shores of northwest Oregon.

Tiny pieces of plastic also make their way into marine life, blocking digestive tracts, altering growth, and in some cases killing marine mammals and fisheries.

We still don't know how long it takes for plastic to completely biodegrade. Estimates range from 450 years to never. A recent study from the Pew Charitable Trusts found that without action, by 2040, the annual flow of plastic into the ocean could nearly triple to 29 million metric tons.

Let me be clear: We need to fundamentally change our reliance on plastics. Plastics pollute our ocean and exacerbate the climate crisis. The fossil fuel and plastics industries are deeply connected, and plastics contribute a significant share of industrial emissions in the United States.

A problem this pervasive, a global problem of this magnitude, cannot be solved with a single bill. We cannot limit our action to removing existing plastic from the ocean, and we can also not recycle our way out of plastic waste that ends up on our shores.

We need comprehensive action, but today we have the opportunity to build on our foundation, a bipartisan, bicameral effort to strengthen the NOAA Marine Debris Program.

Save Our Seas 2.0 will improve the domestic response to marine debris by creating a Marine Debris Foundation to support NOAA's work, advance the removal and prevention of plastic waste, and establish a pilot program to provide incentives for the proper disposal of marine debris collected at sea.

The bill will incentivize international engagement to address marine debris by raising awareness about the sources of plastic waste and the effects of mismanaged waste and assess the potential for a new international agreement to address marine debris.

Save Our Seas 2.0 will strengthen domestic infrastructure to prevent the creation of new marine debris by establishing grant programs to assist States and localities in improving local waste management systems and review opportunities to minimize the production of new plastic waste.

The ocean is resilient, and we can help it heal, but we cannot afford to wait. We have significant work ahead to prevent marine debris and Save Our Seas 2.0 continues to build on our bipartisan foundation to protect the ocean.

Mr. Speaker, I want to close by thanking my colleague and co-chair of the House Oceans Caucus, Representative DON YOUNG from Alaska, for his partnership on this bill, and to our Senate colleagues, Senator DAN SULLIVAN and Senator SHELDON WHITEHOUSE.

Mr. Speaker, I urge all of my colleagues to support this bill to strengthen the Federal response to marine debris.

Mr. GRAVES of Missouri. Mr. Speaker, I yield such time as he may consume to the gentleman from Alaska (Mr. YOUNG), the dean of the House.

Mr. YOUNG. Mr. Speaker, I thank the gentleman, Congressman GRAVES, for yielding to me.

Again, I support this bill, S. 1982, Save Our Seas 2.0. This is a great bipartisan bill.

Mr. Speaker, I congratulate my colleague, the caucus co-chair, Congresswoman SUZANNE BONAMICI, for this bill. This is our bill. It is a Senate bill we are taking up, but we have been working on this bill.

Again, it is an issue. I agree with everything that has been said about the pollution in our oceans.

This is probably bigger than the oil spill of the Exxon Valdez, the plastics that are in our seas, and we have got to take up and address this issue.

This is just the beginning. We need to do more, but we have to take the short step first, and then we will continue to do it.

You know, in Alaska, the ocean is our highway. We need to clean it; we want to work on it. We have to address that issue at sea, too.

You know, plastic is one of those things that really does not deteriorate very rapidly, but when it does, fish will eat it, and we get condemned and contaminated fish. We do not need that in Alaska.

It will clean up our oceans, as I mentioned before, and asks for cooperation from other countries.

America is not the worst polluter. There are other countries that pollute just as equally or more, and it all collects in the middle of the Pacific Ocean. We have an area out there as big as the State of Texas full of pollution. We have to start cleaning it up and stop it if we can.

Mr. Speaker, again, as has been mentioned, I thank Chairman PETER DEFAZIO and Ranking Member GRAVES for their work, Chairman ENGEL for his work, and the staffs, especially John

Rayfield and Dave Jansen from the Transportation and Infrastructure Committee. I thank my personal staff, Kevin Swanson and Kayla Rillo. They worked very hard on this legislation, a lot of work.

The bill is truly a bipartisan bill. What a way to finish up this session, with a bipartisan bill, working together to solve a universal problem: debris in our oceans. It shows that we can work together, and I encourage continuation of this type of effort to make sure our oceans are clean forever.

Mr. Speaker, I urge my colleagues to support S. 1982. And remember, DAN SULLIVAN introduced it on the Senate side, that is why we are taking up the Senate bill, but it is really a House bill.

Mr. Speaker, I thank my ranking member and my chairman, though he is not here.

Mr. CARBAJAL. Mr. Speaker, I yield 1 minute to the gentleman from Hawaii (Mr. CASE).

Mr. CASE. Mr. Speaker, the air, land, and oceans of our Earth are in mortal danger and must be saved. But it is our oceans that are the most vast and unknown of these and with the most complex and extensive risk from climate change, to pollution, extraction, and marine debris.

Debris is especially acute in my own Pacific and its epicenter, the 1,500-mile-long Hawaiian Islands chain, which acts as a giant comb for all manner of marine trash. Fifty-two metric tons of debris clutter our Papahanaumokuakea Marine National Monument annually, with tons more on the shores of the main Hawaiian Islands.

The results are human health and safety problems, habitat destruction, wildlife entanglements, vessel damages, navigational hazards, invasive species transport, and beach and coastline destruction.

The Save Our Seas 2.0 Act ups our national ante on this critical issue by bolstering and funding actions that can make a real difference.

Mr. Speaker, I urge passage.

Mr. GRAVES of Missouri. Mr. Speaker, I don't have anyone else to speak, so with that, I urge my colleagues to support the bill, and I yield back the balance of my time.

Mr. CARBAJAL. Mr. Speaker, I urge my colleagues to support the legislation, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from California (Mr. CARBAJAL) that the House suspend the rules and pass the bill, S. 1982, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

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VACATING DEMAND FOR YEAS AND NAYS ON H.R. 5572, FAMILY SUPPORT SERVICES FOR ADDICTION ACT OF 2020

Mrs. LOWEY. Mr. Speaker, I ask unanimous consent that the ordering of the yeas and nays on the motion that the House suspend the rules and pass the bill (H.R. 5572) to establish a grant program for family community organizations that provide support for individuals struggling with substance use disorder and their families, as amended, be vacated, to the end that the Chair put the question de novo.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from New Jersey (Mr. PALLONE) that the House suspend the rules and pass the bill, as amended.

The question was taken; and (two-thirds being in the affirmative) the rules were suspended and the bill, as amended, was passed.

A motion to reconsider was laid on the table.

NORTH AMERICAN WETLANDS CONSERVATION EXTENSION ACT

Mrs. LOWEY. Mr. Speaker, pursuant to House Resolution 1161, I call up the bill (H.R. 925) to extend the authorization of appropriations for allocation to carry out approved wetlands conservation projects under the North American Wetlands Conservation Act through fiscal year 2024, with the Senate amendments thereto, and ask for its immediate consideration.

The Clerk read the title of the bill.

The SPEAKER pro tempore. The Clerk will designate the Senate amendments.

Senate amendments:

Strike all after the enacting clause and insert the following:

SECTION 1. SHORT TITLE; TABLE OF CONTENTS.

(a) SHORT TITLE.—This Act may be cited as the ''America's Conservation Enhancement Act''.

(b) TABLE OF CONTENTS.—The table of contents for this Act is as follows:

Sec. 1. Short title; table of contents.

TITLE I—WILDLIFE ENHANCEMENT, DISEASE, AND PREDATION

Sec. 101. Theodore Roosevelt Genius Prize for reducing human-predator conflict.
Sec. 102. Losses of livestock due to depredation by federally protected species.
Sec. 103. Depredation permits for black vultures and common ravens.
Sec. 104. Chronic Wasting Disease Task Force.
Sec. 105. Invasive species.
Sec. 106. North American Wetlands Conservation Act.
Sec. 107. National Fish and Wildlife Foundation Establishment Act.
Sec. 108. Modification of definition of sport fishing equipment under Toxic Substances Control Act.
Sec. 109. Reauthorization of Chesapeake Bay Program.
Sec. 110. Reauthorization of Chesapeake Bay Initiative Act of 1998.
Sec. 111. Chesapeake watershed investments for landscape defense.

TITLE II—NATIONAL FISH HABITAT CONSERVATION THROUGH PARTNERSHIPS

Sec. 201. Purpose.
Sec. 202. Definitions.
Sec. 203. National Fish Habitat Board.
Sec. 204. Fish Habitat Partnerships.
Sec. 205. Fish Habitat Conservation Projects.
Sec. 206. Technical and scientific assistance.
Sec. 207. Coordination with States and Indian Tribes.
Sec. 208. Interagency Operational Plan.
Sec. 209. Accountability and reporting.
Sec. 210. Effect of this title.
Sec. 211. Nonapplicability of Federal Advisory Committee Act.
Sec. 212. Funding.
Sec. 213. Prohibition against implementation of regulatory authority by Federal agencies through Partnerships.

TITLE III—MISCELLANEOUS

Sec. 301. Sense of the Senate regarding conservation agreements and activities.
Sec. 302. Study to review conservation factors.
Sec. 303. Study and report on expenditures.
Sec. 304. Use of value of land for cost sharing.

TITLE I—WILDLIFE ENHANCEMENT, DISEASE, AND PREDATION

SEC. 101. THEODORE ROOSEVELT GENIUS PRIZE FOR REDUCING HUMAN-PREDATOR CONFLICT.

(a) IN GENERAL.—Section 7001(d) of the John D. Dingell, Jr. Conservation, Management, and Recreation Act (16 U.S.C. 742b note; Public Law 116–9) is amended—

(1) in paragraphs (2)(C)(v), (3)(C)(v), (4)(C)(v), (5)(C)(v), and (6)(C)(v), by striking ''paragraph (7)(A)'' each place it appears and inserting ''paragraph (8)(A)'';

(2) in paragraphs (2)(D)(ii), (2)(F)(ii), (3)(D)(ii), (3)(F)(ii), (4)(D)(ii), (4)(F)(ii), (5)(D)(ii), (5)(F)(ii), (6)(D)(ii), and (6)(F)(ii) by striking ''paragraph (7)(B)'' each place it appears and inserting ''paragraph (8)(B)'';

(3) in paragraph (6)(C)(iv), in the matter preceding clause (i), by striking ''subparagraph (C)'' and inserting ''clause (iii)'';

(4) by redesignating paragraph (7) as paragraph (8);

(5) by inserting after paragraph (6) the following:

''(7) THEODORE ROOSEVELT GENIUS PRIZE FOR REDUCING HUMAN-PREDATOR CONFLICT.—

''(A) DEFINITIONS.—In this paragraph:

''(i) BOARD.—The term 'Board' means the Reducing Human-Predator Conflict Technology Advisory Board established by subparagraph (C)(i).

''(ii) PRIZE COMPETITION.—The term 'prize competition' means the Theodore Roosevelt Genius Prize for reducing human-predator conflict established under subparagraph (B).

''(B) AUTHORITY.—Not later than 180 days after the date of enactment of the America's Conservation Enhancement Act, the Secretary shall establish under section 24 of the Stevenson-Wydler Technology Innovation Act of 1980 (15 U.S.C. 3719) a prize competition, to be known as the 'Theodore Roosevelt Genius Prize for reducing human-predator conflict'—

''(i) to encourage technological innovation with the potential to advance the mission of the United States Fish and Wildlife Service with respect to reducing the frequency of human-predator conflict using nonlethal means; and

''(ii) to award 1 or more prizes annually for a technological advancement that promotes reducing human-predator conflict using nonlethal means, which may include the application and monitoring of tagging technologies.

''(C) ADVISORY BOARD.—

''(i) ESTABLISHMENT.—There is established an advisory board, to be known as the 'Reducing

Human-Predator Conflict Technology Advisory Board'.

''(ii) COMPOSITION.—The Board shall be composed of not fewer than 9 members appointed by the Secretary, who shall provide expertise in—

''(I) predator-human interactions;

''(II) the habitats of large predators;

''(III) biology;

''(IV) technology development;

''(V) engineering;

''(VI) economics;

''(VII) business development and management; and

''(VIII) any other discipline, as the Secretary determines to be necessary to achieve the purposes of this paragraph.

''(iii) DUTIES.—Subject to clause (iv), with respect to the prize competition, the Board shall—

''(I) select a topic;

''(II) issue a problem statement;

''(III) advise the Secretary regarding any opportunity for technological innovation to reduce human-predator conflict using nonlethal means; and

''(IV) advise winners of the prize competition regarding opportunities to pilot and implement winning technologies in relevant fields, including in partnership with conservation organizations, Federal or State agencies, federally recognized Indian Tribes, private entities, and research institutions with expertise or interest relating to reducing human-predator conflict using nonlethal means.

''(iv) CONSULTATION.—In selecting a topic and issuing a problem statement for the prize competition under subclauses (I) and (II) of clause (iii), respectively, the Board shall consult widely with Federal and non-Federal stakeholders, including—

''(I) 1 or more Federal agencies with jurisdiction over the management of native wildlife species at risk due to conflict with human activities;

''(II) 1 or more State agencies with jurisdiction over the management of native wildlife species at risk due to conflict with human activities;

''(III) 1 or more State, regional, or local wildlife organizations, the mission of which relates to the management of native wildlife species at risk due to conflict with human activities; and

''(IV) 1 or more wildlife conservation groups, technology companies, research institutions, institutions of higher education, industry associations, or individual stakeholders with an interest in the management of native wildlife species at risk due to conflict with human activities.

''(v) REQUIREMENTS.—The Board shall comply with all requirements under paragraph (8)(A).

''(D) AGREEMENT WITH NATIONAL FISH AND WILDLIFE FOUNDATION.—

''(i) IN GENERAL.—The Secretary shall offer to enter into an agreement under which the National Fish and Wildlife Foundation shall administer the prize competition.

''(ii) REQUIREMENTS.—An agreement entered into under clause (i) shall comply with all requirements under paragraph (8)(B).

''(E) JUDGES.—

''(i) APPOINTMENT.—The Secretary shall appoint not fewer than 3 judges who shall, except as provided in clause (ii), select the 1 or more annual winners of the prize competition.

''(ii) DETERMINATION BY SECRETARY.—The judges appointed under clause (i) shall not select any annual winner of the prize competition if the Secretary makes a determination that, in any fiscal year, none of the technological advancements entered into the prize competition merits an award.

''(F) CONSULTATION WITH NOAA.—The Secretary shall consult with the Secretary of Commerce, acting through the Administrator of the National Oceanic and Atmospheric Administration, in the case of a cash prize awarded under the prize competition for a technology that addresses conflict between marine predators under the jurisdiction of the Secretary of Commerce, acting through the Administrator of the National Oceanic and Atmospheric Administration, and humans.

''(G) REPORT TO CONGRESS.—Not later than 60 days after the date on which a cash prize is awarded under this paragraph, the Secretary shall submit to the Committee on Environment and Public Works of the Senate and the Committee on Natural Resources of the House of Representatives a report on the prize competition that includes—

''(i) a statement by the Board that describes the activities carried out by the Board relating to the duties described in subparagraph (C)(iii);

''(ii) if the Secretary has entered into an agreement under subparagraph (D)(i), a statement by the National Fish and Wildlife Foundation that describes the activities carried out by the National Fish and Wildlife Foundation relating to the duties described in paragraph (8)(B); and

''(iii) a statement by 1 or more of the judges appointed under subparagraph (E) that explains the basis on which the winner of the cash prize was selected.

''(H) TERMINATION OF AUTHORITY.—The Board and all authority provided under this paragraph shall terminate on December 31, 2023.''; and

(6) in paragraph (8) (as so redesignated)—

(A) in subparagraph (A), in the matter preceding clause (i), by striking ''or (6)(C)(i)'' and inserting ''(6)(C)(i), or (7)(C)(i)''; and

(B) in subparagraph (B)—

(i) in the matter preceding clause (i), by striking ''or (6)(D)(i)'' and inserting ''(6)(D)(i), or (7)(D)(i)''; and

(ii) in clause (i)(VII), by striking ''and (6)(E)'' and inserting ''(6)(E), and (7)(E)''.

(b) SENSE OF CONGRESS.—It is the sense of Congress that data collected from the tagging of predators can inform innovative management of those predators and innovative education activities to minimize human-predator conflict.

SEC. 102. LOSSES OF LIVESTOCK DUE TO DEPREDATION BY FEDERALLY PROTECTED SPECIES.

(a) DEFINITIONS.—In this section:

(1) DEPREDATION.—

(A) IN GENERAL.—The term ''depredation'' means actual death, injury, or destruction of livestock that is caused by a federally protected species.

(B) EXCLUSIONS.—The term ''depredation'' does not include damage to real or personal property other than livestock, including—

(i) damage to—

(I) other animals;

(II) vegetation;

(III) motor vehicles; or

(IV) structures;

(ii) diseases;

(iii) lost profits; or

(iv) consequential damages.

(2) FEDERALLY PROTECTED SPECIES.—The term ''federally protected species'' means a species that is or previously was protected under—

(A) the Act of June 8, 1940 (commonly known as the ''Bald and Golden Eagle Protection Act'') (54 Stat. 250, chapter 278; 16 U.S.C. 668 et seq.);

(B) the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.); or

(C) the Migratory Bird Treaty Act (16 U.S.C. 703 et seq.).

(3) INDIAN TRIBE.—The term ''Indian tribe'' has the meaning given the term in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304).

(4) LIVESTOCK.—

(A) IN GENERAL.—The term ''livestock'' means horses, mules and asses, rabbits, llamas, cattle, bison, swine, sheep, goats, poultry, bees, honey and beehives, or any other animal generally used for food or in the production of food or fiber.

(B) INCLUSION.—The term ''livestock'' includes guard animals actively engaged in the protection of livestock described in subparagraph (A).

(5) PROGRAM.—The term ''program'' means the grant program established under subsection (b)(1).

(6) SECRETARIES.—The term ''Secretaries'' means—

(A) the Secretary of the Interior, acting through the Director of the United States Fish and Wildlife Service; and

(B) the Secretary of Agriculture, acting through the Administrator of the Animal and Plant Health Inspection Service.

(b) GRANT PROGRAM FOR LOSSES OF LIVESTOCK DUE TO DEPREDATION BY FEDERALLY PROTECTED SPECIES.—

(1) IN GENERAL.—The Secretaries shall establish a program to provide grants to States and Indian tribes to supplement amounts provided by States, Indian tribes, or State agencies under 1 or more programs established by the States and Indian tribes (including programs established after the date of enactment of this Act)—

(A) to assist livestock producers in carrying out—

(i) proactive and nonlethal activities to reduce the risk of livestock loss due to depredation by federally protected species occurring on—

(I) Federal, State, or private land within the applicable State; or

(II) land owned by, or held in trust for the benefit of, the applicable Indian tribe; and

(ii) research relating to the activities described in clause (i); and

(B) to compensate livestock producers for livestock losses due to depredation by federally protected species occurring on—

(i) Federal, State, or private land within the applicable State; or

(ii) land owned by, or held in trust for the benefit of, the applicable Indian tribe.

(2) ALLOCATION OF FUNDING.—

(A) REPORTS TO THE SECRETARIES.—Not later than September 30 of each year, a State or Indian tribe desiring to receive a grant under the program shall submit to the Secretaries a report describing, for the 1-year period ending on that September 30, the losses of livestock due to depredation by federally protected species occurring on—

(i) Federal, State, or private land within the applicable State; or

(ii) land owned by, or held in trust for the benefit of, the applicable Indian tribe.

(B) ALLOCATION.—The Secretaries shall allocate available funding to carry out this Act among States and Indian tribes for a 1-year period ending on September 30 based on the losses described in the reports submitted for the previous 1-year period ending on September 30 under subparagraph (A).

(3) ELIGIBILITY.—To be eligible to receive a grant under paragraph (1), a State or Indian tribe shall—

(A) designate an appropriate agency of the State or Indian tribe to administer the 1 or more programs supplemented by the grant funds;

(B) establish 1 or more accounts to receive grant funds;

(C) maintain files of all claims received and paid under grant-funded programs, including supporting documentation; and

(D) submit to the Secretaries—

(i) annual reports that include—

(I) a summary of claims and expenditures under the program during the year; and

(II) a description of any action taken on the claims; and

(ii) such other reports as the Secretaries may require to assist the Secretaries in determining the effectiveness of assisted activities under this section.

(c) SENSE OF THE SENATE.—It is the sense of the Senate that—

(1) no State or Indian tribe is required to participate in the program; and

(2) the program supplements, and does not replace or supplant, any State compensation programs for depredation.

(d) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry

out this section $15,000,000 for each of fiscal years 2021 through 2025, of which—

(1) $5,000,000 shall be used to provide grants for the purposes described in subsection (b)(1)(A); and

(2) $10,000,000 shall be used to provide grants for the purpose described in subsection (b)(1)(B).

SEC. 103. DEPREDATION PERMITS FOR BLACK VULTURES AND COMMON RAVENS.

(a) IN GENERAL.—The Secretary of the Interior, acting through the Director of the United States Fish and Wildlife Service (referred to in this section as the ''Secretary''), may issue depredation permits to livestock producers authorizing takings of black vultures or common ravens otherwise prohibited by Federal law to prevent those vultures or common ravens from taking livestock during the calving season or lambing season.

(b) LIMITED TO AFFECTED STATES OR REGIONS.—The Secretary may issue permits under subsection (a) only to livestock producers in States and regions in which livestock producers are affected or have been affected in the previous year by black vultures or common ravens, as determined by Secretary.

(c) REPORTING.—The Secretary shall require, as a condition of a permit under subsection (a), that the permit holder shall report to the appropriate enforcement agencies the takings of black vultures or common ravens pursuant to the permit.

SEC. 104. CHRONIC WASTING DISEASE TASK FORCE.

(a) DEFINITION OF CHRONIC WASTING DISEASE.—In this section, the term ''chronic wasting disease'' means the animal disease afflicting deer, elk, and moose populations that—

(1) is a transmissible disease of the nervous system resulting in distinctive lesions in the brain; and

(2) belongs to the group of diseases known as transmissible spongiform encephalopathies, which group includes scrapie, bovine spongiform encephalopathy, and Creutzfeldt-Jakob disease.

(b) ESTABLISHMENT.—

(1) IN GENERAL.—There is established within the United States Fish and Wildlife Service a task force, to be known as the ''Chronic Wasting Disease Task Force'' (referred to in this subsection as the ''Task Force'').

(2) DUTIES.—The Task Force shall—

(A) collaborate with foreign governments to share research, coordinate efforts, and discuss best management practices to reduce, minimize, prevent, or eliminate chronic wasting disease in the United States;

(B) develop recommendations, including recommendations based on findings of the study conducted under subsection (c), and a set of best practices regarding—

(i) the interstate coordination of practices to prevent the new introduction of chronic wasting disease;

(ii) the prioritization and coordination of the future study of chronic wasting disease, based on evolving research needs;

(iii) ways to leverage the collective resources of Federal, State, and local agencies, Indian Tribes, and foreign governments, and resources from private, nongovernmental entities, to address chronic wasting disease in the United States and along the borders of the United States; and

(iv) any other area where containment or management efforts relating to chronic wasting disease may differ across jurisdictions;

(C) draw from existing and future academic and management recommendations to develop an interstate action plan under which States and the United States Fish and Wildlife Service agree to enact consistent management, educational, and research practices relating to chronic wasting disease; and

(D) facilitate the creation of a cooperative agreement by which States and relevant Federal agencies agree to commit funds to implement best practices described in the interstate action plan developed under subparagraph (C).

(3) MEMBERSHIP.—

(A) IN GENERAL.—The Task Force shall be composed of—

(i) 1 representative of the United States Fish and Wildlife Service with experience in chronic wasting disease, to be appointed by the Secretary of the Interior (referred to in this subsection as the ''Secretary'');

(ii) 1 representative of the United States Geological Survey;

(iii) 2 representatives of the Department of Agriculture with experience in chronic wasting disease, to be appointed by the Secretary of Agriculture—

(I) 1 of whom shall have expertise in research; and

(II) 1 of whom shall have expertise in wildlife management;

(iv) in the case of each State in which chronic wasting disease among elk, mule deer, white-tailed deer, or moose has been reported to the appropriate State agency, not more than 2 representatives, to be nominated by the Governor of the State—

(I) not more than 1 of whom shall be a representative of the State agency with jurisdiction over wildlife management or wildlife disease in the State; and

(II) in the case of a State with a farmed cervid program or economy, not more than 1 of whom shall be a representative of the State agency with jurisdiction over farmed cervid regulation in the State;

(v) in the case of each State in which chronic wasting disease among elk, mule deer, white-tailed deer, or moose has not been documented, but that has carried out measures to prevent the introduction of chronic wasting disease among those species, not more than 2 representatives, to be nominated by the Governor of the State;

(vi) not more than 2 representatives from an Indian tribe or tribal organization chosen in a process determined, in consultation with Indian tribes, by the Secretary; and

(vii) not more than 5 nongovernmental members with relevant expertise appointed, after the date on which the members are first appointed under clauses (i) through (vi), by a majority vote of the State representatives appointed under clause (iv).

(B) EFFECT.—Nothing in this paragraph requires a State to participate in the Task Force.

(4) CO-CHAIRS.—The Co-Chairs of the Task Force shall be—

(A) the Federal representative described in paragraph (3)(A)(i); and

(B) 1 State representative appointed under paragraph (3)(A)(iv), to be selected by a majority vote of those State representatives.

(5) DATE OF INITIAL APPOINTMENT.—

(A) IN GENERAL.—The members of the Task Force shall be appointed not later than 180 days after the date on which the study is completed under subsection (c).

(B) NOTIFICATION.—On appointment of the members of the Task Force, the Co-Chairs of the Task Force shall notify the Chairs and Ranking Members of the Committees on Environment and Public Works of the Senate and Natural Resources of the House of Representatives.

(6) VACANCIES.—Any vacancy in the members appointed to the Task Force—

(A) shall not affect the power or duty of the Task Force; and

(B) shall be filled not later than 30 days after the date of the vacancy.

(7) MEETINGS.—The Task Force shall convene—

(A) not less frequently than twice each year; and

(B) at such time and place, and by such means, as the Co-Chairs of the Task Force determine to be appropriate, which may include the use of remote conference technology.

(8) INTERSTATE ACTION PLAN.—

(A) IN GENERAL.—Not later than 1 year after the date on which the members of the Task Force are appointed, the Task Force shall submit to the Secretary, and the heads of the State agencies with jurisdiction over wildlife disease and farmed cervid regulation of each State with a representative on the Task Force, the interstate action plan developed by the Task Force under paragraph (2)(C).

(B) COOPERATIVE AGREEMENTS.—

(i) IN GENERAL.—To the maximum extent practicable, the Secretary, any other applicable Federal agency, and each applicable State shall enter into a cooperative agreement to fund necessary actions under the interstate action plan submitted under subparagraph (A).

(ii) TARGET DATE.—The Secretary shall make the best effort of the Secretary to enter into any cooperative agreement under clause (i) not later than 180 days after the date of submission of the interstate action plan under subparagraph (A).

(C) MATCHING FUNDS.—

(i) IN GENERAL.—Subject to clause (ii), for each fiscal year, the United States Fish and Wildlife Service shall provide funds to carry out an interstate action plan through a cooperative agreement under subparagraph (B) in the amount of funds provided by the applicable States.

(ii) LIMITATION.—The amount provided by the United State Fish and Wildlife Service under clause (i) for a fiscal year shall be not greater than $5,000,000.

(9) REPORTS.—Not later than September 30 of the first full fiscal year after the date on which the first members of the Task Force are appointed, and each September 30 thereafter, the Task Force shall submit to the Secretary, and the heads of the State agencies with jurisdiction over wildlife disease and farmed cervid regulation of each State with a representatives on the Task Force, a report describing—

(A) progress on the implementation of actions identified in the interstate action plan submitted under paragraph (8)(A), including the efficacy of funding under the cooperative agreement entered into under paragraph (8)(B);

(B) updated resource requirements that are needed to reduce and eliminate chronic wasting disease in the United States;

(C) any relevant updates to the recommended best management practices included in the interstate action plan submitted under paragraph (8)(B) to reduce or eliminate chronic wasting disease;

(D) new research findings and emerging research needs relating to chronic wasting disease; and

(E) any other relevant information.

(c) CHRONIC WASTING DISEASE TRANSMISSION IN CERVIDAE RESOURCE STUDY.—

(1) DEFINITIONS.—In this subsection:

(A) ACADEMY.—The term ''Academy'' means the National Academy of Sciences.

(B) CERVID.—The term ''cervid'' means any species within the family Cervidae.

(C) SECRETARIES.—The term ''Secretaries'' means the Secretary of Agriculture, acting through the Administrator of the Animal and Plant Health Inspection Service, and the Secretary of the Interior, acting through the Director of the United States Geological Survey, acting jointly.

(2) STUDY.—

(A) IN GENERAL.—The Secretaries shall enter into an arrangement with the Academy under which the Academy shall conduct, and submit to the Secretaries a report describing the findings of, a special resource study to identify the predominant pathways and mechanisms of the transmission of chronic wasting disease in wild, captive, and farmed populations of cervids in the United States.

(B) REQUIREMENTS.—The arrangement under subparagraph (A) shall provide that the actual expenses incurred by the Academy in conducting the study under subparagraph (A) shall be paid by the Secretaries, subject to the availability of appropriations.

(3) CONTENTS OF THE STUDY.—The study under paragraph (2) shall—

(A) with respect to wild, captive, and farmed populations of cervids in the United States, identify—

(i)(I) the pathways and mechanisms for the transmission of chronic wasting disease within live cervid populations and cervid products, which may include pathways and mechanisms for transmission from Canada;

(II) the infection rates for each pathway and mechanism identified under subclause (I); and

(III) the relative frequency of transmission of each pathway and mechanism identified under subclause (I);

(ii)(I) anthropogenic and environmental factors contributing to new chronic wasting disease emergence events;

(II) the development of geographical areas with increased chronic wasting disease prevalence; and

(III) the overall geographical patterns of chronic wasting disease distribution;

(iii) significant gaps in current scientific knowledge regarding the transmission pathways and mechanisms identified under clause (i)(I) and potential prevention, detection, and control methods identified under clause (v);

(iv) for prioritization the scientific research projects that will address the knowledge gaps identified under clause (iii), based on the likelihood that a project will contribute significantly to the prevention or control of chronic wasting disease; and

(v) potential prevention, detection, or control measures, practices, or technologies to be used to mitigate the transmission and spread of chronic wasting disease in wild, captive, and farmed populations of cervids in the United States;

(B) assess the effectiveness of the potential prevention, detection, or control measures, practices, or technologies identified under subparagraph (A)(v); and

(C) review and compare science-based best practices, standards, and guidance regarding the prevention, detection, and management of chronic wasting disease in wild, captive, and farmed populations of cervids in the United States that have been developed by—

(i) the National Chronic Wasting Disease Herd Certification Program of the Animal and Plant Health Inspection Service;

(ii) the United States Geological Survey;

(iii) State wildlife and agricultural agencies, in the case of practices, standards, and guidance that provide practical, science-based recommendations to State and Federal agencies for minimizing or eliminating the risk of transmission of chronic wasting disease in the United States; and

(iv) industry or academia, in the case of any published guidance on practices that provide practical, science-based recommendations to cervid producers for minimizing or eliminating the risk of transmission of chronic wasting disease within or between herds.

(4) DEADLINE.—The study under paragraph (2) shall be completed not later than 180 days after the date on which funds are first made available for the study.

(5) DATA SHARING.—The Secretaries shall share with the Academy, as necessary to conduct the study under paragraph (2), subject to the avoidance of a violation of a privacy or confidentiality requirement and the protection of confidential or privileged commercial, financial, or proprietary information, data and access to databases on chronic wasting disease under the jurisdiction of—

(A) the Veterinary Services Program of the Animal and Plant Health Inspection Service; and

(B) the United States Geological Survey.

(6) REPORT.—Not later than 60 days after the date of completion of the study, the Secretaries shall submit to the Committee on Agriculture, Nutrition, and Forestry, the Committee on Energy and Natural Resources, and the Committee on Environment and Public Works of the Senate and the Committee on Agriculture and the Committee on Natural Resources of the House of Representatives a report that describes—

(A) the findings of the study; and

(B) any conclusions and recommendations that the Secretaries determine to be appropriate.

(d) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section—

(1) for the period of fiscal years 2021 through 2025, $5,000,000 to the Secretary of the Interior, acting through the Director of the United States Fish and Wildlife Service, to carry out administrative activities under subsection (b);

(2) for fiscal year 2021, $1,200,000 to the Secretary of the Interior, acting through the Director of the United States Geological Survey, to carry out activities to fund research under subsection (c); and

(3) for fiscal year 2021, $1,200,000 to the Secretary of Agriculture, acting through the Administrator of the Animal and Plant Health Inspection Service, to carry out activities to fund research under subsection (c).

SEC. 105. INVASIVE SPECIES.

Section 10 of the Fish and Wildlife Coordination Act (16 U.S.C. 666c–1) is amended—

(1) in subsection (c)(2)—

(A) in subparagraph (A)—

(i) by redesignating clauses (i) and (ii) as clauses (ii) and (iii), respectively; and

(ii) by inserting before clause (ii) (as so redesignated) the following:

''(i) relevant Federal agencies;'';

(B) by redesignating subparagraphs (B) and (C) as subparagraphs (C) and (D), respectively; and

(C) by inserting after subparagraph (A) the following:

''(B) in consultation with stakeholders, including nongovernmental organizations and industry;''; and

(2) by adding at the end the following:

''(p) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section for each of fiscal years 2021 through 2025—

''(1) $2,500,000 to the Secretary of the Army, acting through the Chief of Engineers; and

''(2) $2,500,000 to the Secretary of the Interior.''.

SEC. 106. NORTH AMERICAN WETLANDS CONSERVATION ACT.

Section 7(c) of the North American Wetlands Conservation Act (16 U.S.C. 4406(c)) is amended by striking ''not to exceed—'' in the matter preceding paragraph (1) and all that follows through paragraph (5) and inserting ''not to exceed $60,000,000 for each of fiscal years 2021 through 2025.''.

SEC. 107. NATIONAL FISH AND WILDLIFE FOUNDATION ESTABLISHMENT ACT.

(a) BOARD OF DIRECTORS OF FOUNDATION.—

(1) IN GENERAL.—Section 3 of the National Fish and Wildlife Foundation Establishment Act (16 U.S.C. 3702) is amended—

(A) in subsection (b)—

(i) by striking paragraph (2) and inserting the following:

''(2) APPOINTMENT OF DIRECTORS.—After consulting with the Secretary of Commerce and considering the recommendations submitted by the Board, the Secretary of the Interior shall appoint 28 Directors who, to the maximum extent practicable, shall—

''(A) be knowledgeable and experienced in matters relating to the conservation of fish, wildlife, or other natural resources; and

''(B) represent a balance of expertise in ocean, coastal, freshwater, and terrestrial resource conservation.''; and

(ii) by striking paragraph (3) and inserting the following:

''(3) TERMS.—Each Director (other than a Director described in paragraph (1)) shall be appointed for a term of 6 years.''; and

(B) in subsection (g)(2)—

(i) in subparagraph (A), by striking ''(A) Officers and employees may not be appointed until the Foundation has sufficient funds to pay them for their service. Officers'' and inserting the following:

''(A) IN GENERAL.—Officers''; and

(ii) by striking subparagraph (B) and inserting the following:

''(B) EXECUTIVE DIRECTOR.—The Foundation shall have an Executive Director who shall be—

''(i) appointed by, and serve at the direction of, the Board as the chief executive officer of the Foundation; and

''(ii) knowledgeable and experienced in matters relating to fish and wildlife conservation.''.

(2) CONFORMING AMENDMENT.—Section 4(a)(1)(B) of the North American Wetlands Conservation Act (16 U.S.C. 4403(a)(1)(B)) is amended by striking ''Secretary of the Board'' and inserting ''Executive Director of the Board''.

(b) RIGHTS AND OBLIGATIONS OF FOUNDATION.—Section 4 of the National Fish and Wildlife Foundation Establishment Act (16 U.S.C. 3703) is amended—

(1) in subsection (c)—

(A) by striking ''(c) POWERS.—To carry out its purposes under'' and inserting the following:

''(c) POWERS.—

''(1) IN GENERAL.—To carry out the purposes described in'';

(B) by redesignating paragraphs (1) through (11) as subparagraphs (A) through (K), respectively, and indenting appropriately;

(C) in subparagraph (D) (as redesignated by subparagraph (B)), by striking ''that are insured by an agency or instrumentality of the United States'' and inserting ''at 1 or more financial institutions that are members of the Federal Deposit Insurance Corporation or the Securities Investment Protection Corporation'';

(D) in subparagraph (E) (as redesignated by subparagraph (B)), by striking ''paragraph (3) or (4)'' and inserting ''subparagraph (C) or (D)'';

(E) in subparagraph (J) (as redesignated by subparagraph (B)), by striking ''and'' at the end;

(F) by striking subparagraph (K) (as redesignated by subparagraph (B)) and inserting the following:

''(K) to receive and administer restitution and community service payments, amounts for mitigation of impacts to natural resources, and other amounts arising from legal, regulatory, or administrative proceedings, subject to the condition that the amounts are received or administered for purposes that further the conservation and management of fish, wildlife, plants, and other natural resources; and

''(L) to do acts necessary to carry out the purposes of the Foundation.''; and

(G) by striking the undesignated matter at the end and inserting the following:

''(2) TREATMENT OF REAL PROPERTY.—

''(A) IN GENERAL.—For purposes of this Act, an interest in real property shall be treated as including easements or other rights for preservation, conservation, protection, or enhancement by and for the public of natural, scenic, historic, scientific, educational, inspirational, or recreational resources.

''(B) ENCUMBERED REAL PROPERTY.—A gift, devise, or bequest may be accepted by the Foundation even though the gift, devise, or bequest is encumbered, restricted, or subject to beneficial interests of private persons if any current or future interest in the gift, devise, or bequest is for the benefit of the Foundation.

''(3) SAVINGS CLAUSE.—The acceptance and administration of amounts by the Foundation under paragraph (1)(K) does not alter, supersede, or limit any regulatory or statutory requirement associated with those amounts.'';

(2) by striking subsections (f) and (g); and

(3) by redesignating subsections (h) and (i) as subsections (f) and (g), respectively.

(c) AUTHORIZATION OF APPROPRIATIONS.—Section 10 of the National Fish and Wildlife Foundation Establishment Act (16 U.S.C. 3709) is amended—

(1) in subsection (a), by striking paragraph (1) and inserting the following:

''(1) IN GENERAL.—There are authorized to be appropriated to carry out this Act for each of fiscal years 2021 through 2025—

''(A) $15,000,000 to the Secretary of the Interior;

''(B) $5,000,000 to the Secretary of Agriculture; and

''(C) $5,000,000 to the Secretary of Commerce.'';

(2) in subsection (b)—

(A) by striking paragraph (1) and inserting the following:

''(1) AMOUNTS FROM FEDERAL AGENCIES.—

''(A) IN GENERAL.—In addition to the amounts authorized to be appropriated under subsection (a), Federal departments, agencies, or instrumentalities are authorized to provide funds to the Foundation through Federal financial assistance grants and cooperative agreements, subject to the condition that the amounts are used for purposes that further the conservation and management of fish, wildlife, plants, and other natural resources in accordance with this Act.

''(B) ADVANCES.—Federal departments, agencies, or instrumentalities may advance amounts described in subparagraph (A) to the Foundation in a lump sum without regard to when the expenses for which the amounts are used are incurred.

''(C) MANAGEMENT FEES.—The Foundation may assess and collect fees for the management of amounts received under this paragraph.'';

(B) in paragraph (2)—

(i) in the paragraph heading, by striking ''FUNDS'' and inserting ''AMOUNTS'';

(ii) by striking ''shall be used'' and inserting ''may be used''; and

(iii) by striking ''and State and local government agencies'' and inserting '', State and local government agencies, and other entities''; and

(C) by adding at the end the following:

''(3) ADMINISTRATION OF AMOUNTS.—

''(A) IN GENERAL.—In entering into contracts, agreements, or other partnerships pursuant to this Act, a Federal department, agency, or instrumentality shall have discretion to waive any competitive process applicable to the department, agency, or instrumentality for entering into contracts, agreements, or partnerships with the Foundation if the purpose of the waiver is—

''(i) to address an environmental emergency resulting from a natural or other disaster; or

''(ii) as determined by the head of the applicable Federal department, agency, or instrumentality, to reduce administrative expenses and expedite the conservation and management of fish, wildlife, plants, and other natural resources.

''(B) REPORTS.—The Foundation shall include in the annual report submitted under section 7(b) a description of any use of the authority under subparagraph (A) by a Federal department, agency, or instrumentality in that fiscal year.''; and

(3) by adding at the end the following:

''(d) USE OF GIFTS, DEVISES, OR BEQUESTS OF MONEY OR OTHER PROPERTY.—Any gifts, devises, or bequests of amounts or other property, or any other amounts or other property, transferred to, deposited with, or otherwise in the possession of the Foundation pursuant to this Act, may be made available by the Foundation to Federal departments, agencies, or instrumentalities and may be accepted and expended (or the disposition of the amounts or property directed), without further appropriation, by those Federal departments, agencies, or instrumentalities, subject to the condition that the amounts or property be used for purposes that further the conservation and management of fish, wildlife, plants, and other natural resources.''.

(d) LIMITATION ON AUTHORITY.—Section 11 of the National Fish and Wildlife Foundation Establishment Act (16 U.S.C. 3710) is amended by inserting ''exclusive'' before ''authority''.

SEC. 108. MODIFICATION OF DEFINITION OF SPORT FISHING EQUIPMENT UNDER TOXIC SUBSTANCES CONTROL ACT.

Section 3(2)(B) of the Toxic Substances Control Act (15 U.S.C. 2602(2)(B)) is amended—

(1) in clause (v), by striking ''and'' at the end;

(2) in clause (vi) by striking the period at the end and inserting '', and''; and

(3) by inserting after clause (vi) the following:

''(vii) any sport fishing equipment (as such term is defined in section 4162(a) of the Internal Revenue Code of 1986) the sale of which is subject to the tax imposed by section 4161(a) of such Code (determined without regard to any exemptions from such tax provided by section 4162 or 4221 or any other provision of such Code), and sport fishing equipment components.''.

SEC. 109. REAUTHORIZATION OF CHESAPEAKE BAY PROGRAM.

Section 117 of the Federal Water Pollution Control Act (33 U.S.C. 1267) is amended by striking subsection (j) and inserting the following:

''(j) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to carry out this section—

''(1) for fiscal year 2020, $90,000,000;

''(2) for fiscal year 2021, $90,500,000;

''(3) for fiscal year 2022, $91,000,000;

''(4) for fiscal year 2023, $91,500,000; and

''(5) for fiscal year 2024, $92,000,000.''.

SEC. 110. REAUTHORIZATION OF CHESAPEAKE BAY INITIATIVE ACT OF 1998.

Section 502(c) of the Chesapeake Bay Initiative Act of 1998 (Public Law 105–312; 112 Stat. 2963; 129 Stat. 2579; 132 Stat. 691) is amended by striking ''2019'' and inserting ''2025''.

SEC. 111. CHESAPEAKE WATERSHED INVESTMENTS FOR LANDSCAPE DEFENSE.

(a) DEFINITIONS.—In this section:

(1) CHESAPEAKE BAY AGREEMENTS.—The term ''Chesapeake Bay agreements'' means the formal, voluntary agreements—

(A) executed to achieve the goal of restoring and protecting the Chesapeake Bay watershed ecosystem and the living resources of the Chesapeake Bay watershed ecosystem; and

(B) signed by the Chesapeake Executive Council.

(2) CHESAPEAKE BAY PROGRAM.—The term ''Chesapeake Bay program'' means the program directed by the Chesapeake Executive Council in accordance with the Chesapeake Bay agreements.

(3) CHESAPEAKE BAY WATERSHED.—The term ''Chesapeake Bay watershed'' means the region that covers—

(A) the Chesapeake Bay;

(B) the portions of the States of Delaware, Maryland, New York, Pennsylvania, Virginia, and West Virginia that drain into the Chesapeake Bay; and

(C) the District of Columbia.

(4) CHESAPEAKE EXECUTIVE COUNCIL.—The term ''Chesapeake Executive Council'' means the council comprised of—

(A) the Governors of each of the States of Delaware, Maryland, New York, Pennsylvania, Virginia, and West Virginia;

(B) the Mayor of the District of Columbia;

(C) the Chair of the Chesapeake Bay Commission; and

(D) the Administrator of the Environmental Protection Agency.

(5) CHESAPEAKE WILD PROGRAM.—The term ''Chesapeake WILD program'' means the nonregulatory program established by the Secretary under subsection (b)(1).

(6) GRANT PROGRAM.—The term ''grant program'' means the Chesapeake Watershed Investments for Landscape Defense grant program established by the Secretary under subsection (c)(1).

(7) RESTORATION AND PROTECTION ACTIVITY.—The term ''restoration and protection activity'' means an activity carried out for the conservation, stewardship, and enhancement of habitat for fish and wildlife—

(A) to preserve and improve ecosystems and ecological processes on which the fish and wildlife depend; and

(B) for use and enjoyment by the public.

(8) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior, acting through the Director of the United States Fish and Wildlife Service.

(b) PROGRAM ESTABLISHMENT.—

(1) ESTABLISHMENT.—Not later than 180 days after the date of enactment of this Act, the Secretary shall establish a nonregulatory program, to be known as the ''Chesapeake Watershed Investments for Landscape Defense program''.

(2) PURPOSES.—The purposes of the Chesapeake WILD program include—

(A) coordinating restoration and protection activities among Federal, State, local, and regional entities and conservation partners throughout the Chesapeake Bay watershed;

(B) engaging other agencies and organizations to build a broader range of partner support, capacity, and potential funding for projects in the Chesapeake Bay watershed;

(C) carrying out coordinated restoration and protection activities, and providing for technical assistance, throughout the Chesapeake Bay watershed—

(i) to sustain and enhance restoration and protection activities;

(ii) to improve and maintain water quality to support fish and wildlife, habitats of fish and wildlife, and drinking water for people;

(iii) to sustain and enhance water management for volume and flood damage mitigation improvements to benefit fish and wildlife habitat;

(iv) to improve opportunities for public access and recreation in the Chesapeake Bay watershed consistent with the ecological needs of fish and wildlife habitat;

(v) to facilitate strategic planning to maximize the resilience of natural ecosystems and habitats under changing watershed conditions;

(vi) to engage the public through outreach, education, and citizen involvement to increase capacity and support for coordinated restoration and protection activities in the Chesapeake Bay watershed;

(vii) to sustain and enhance vulnerable communities and fish and wildlife habitat;

(viii) to conserve and restore fish, wildlife, and plant corridors; and

(ix) to increase scientific capacity to support the planning, monitoring, and research activities necessary to carry out coordinated restoration and protection activities.

(3) DUTIES.—In carrying out the Chesapeake WILD program, the Secretary shall—

(A) draw on existing plans for the Chesapeake Bay watershed, or portions of the Chesapeake Bay watershed, including the Chesapeake Bay agreements, and work in consultation with applicable management entities, including Chesapeake Bay program partners, such as the Federal Government, State and local governments, the Chesapeake Bay Commission, and other regional organizations, as appropriate, to identify, prioritize, and implement restoration and protection activities within the Chesapeake Bay watershed;

(B) adopt a Chesapeake Bay watershed-wide strategy that—

(i) supports the implementation of a shared set of science-based restoration and protection activities developed in accordance with subparagraph (A); and

(ii) targets cost-effective projects with measurable results; and

(C) establish the grant program in accordance with subsection (c).

(4) COORDINATION.—In establishing the Chesapeake WILD program, the Secretary shall consult, as appropriate, with—

(A) the heads of Federal agencies, including—

(i) the Administrator of the Environmental Protection Agency;

(ii) the Administrator of the National Oceanic and Atmospheric Administration;

(iii) the Chief of the Natural Resources Conservation Service;

(iv) the Chief of Engineers;
(v) the Director of the United States Geological Survey;
(vi) the Secretary of Transportation;
(vii) the Chief of the Forest Service; and
(viii) the head of any other applicable agency;
(B) the Governors of each of the States of Delaware, Maryland, New York, Pennsylvania, Virginia, and West Virginia and the Mayor of the District of Columbia;
(C) fish and wildlife joint venture partnerships; and
(D) other public agencies and organizations with authority for the planning and implementation of conservation strategies in the Chesapeake Bay watershed.
(c) GRANTS AND TECHNICAL ASSISTANCE.—
(1) CHESAPEAKE WILD GRANT PROGRAM.—To the extent that funds are made available to carry out this subsection, the Secretary shall establish and carry out, as part of the Chesapeake WILD program, a voluntary grant and technical assistance program, to be known as the ''Chesapeake Watershed Investments for Landscape Defense grant program'', to provide competitive matching grants of varying amounts and technical assistance to eligible entities described in paragraph (2) to carry out activities described in subsection (b)(2).
(2) ELIGIBLE ENTITIES.—The following entities are eligible to receive a grant and technical assistance under the grant program:
(A) A State.
(B) The District of Columbia.
(C) A unit of local government.
(D) A nonprofit organization.
(E) An institution of higher education.
(F) Any other entity that the Secretary determines to be appropriate in accordance with the criteria established under paragraph (3).
(3) CRITERIA.—The Secretary, in consultation with officials and entities described in subsection (b)(4), shall establish criteria for the grant program to help ensure that activities funded under this subsection—
(A) accomplish 1 or more of the purposes described in subsection (b)(2); and
(B) advance the implementation of priority actions or needs identified in the Chesapeake Bay watershed-wide strategy adopted under subsection (b)(3)(B).
(4) COST SHARING.—
(A) DEPARTMENT OF THE INTERIOR SHARE.—The Department of the Interior share of the cost of a project funded under the grant program shall not exceed 50 percent of the total cost of the project, as determined by the Secretary.
(B) NON-DEPARTMENT OF THE INTERIOR SHARE.—
(i) IN GENERAL.—The non-Department of the Interior share of the cost of a project funded under the grant program may be provided in cash or in the form of an in-kind contribution of services or materials.
(ii) OTHER FEDERAL FUNDING.—Non-Department of the Interior Federal funds may be used for not more than 25 percent of the total cost of a project funded under the grant program.
(5) ADMINISTRATION.—The Secretary may enter into an agreement to manage the grant program with an organization that offers grant management services.
(d) REPORTING.—Not later than 180 days after the date of enactment of this Act, and annually thereafter, the Secretary shall submit to Congress a report describing the implementation of this section, including a description of each project that has received funding under this section.
(e) AUTHORIZATION OF APPROPRIATIONS.—
(1) IN GENERAL.—There is authorized to be appropriated to carry out this section $15,000,000 for each of fiscal years 2021 through 2025.
(2) SUPPLEMENT, NOT SUPPLANT.—Funds made available under paragraph (1) shall supplement, and not supplant, funding for other activities conducted by the Secretary in the Chesapeake Bay watershed.

TITLE II—NATIONAL FISH HABITAT CONSERVATION THROUGH PARTNERSHIPS

SEC. 201. PURPOSE.

The purpose of this title is to encourage partnerships among public agencies and other interested persons to promote fish conservation—
(1) to achieve measurable habitat conservation results through strategic actions of Fish Habitat Partnerships that lead to better fish habitat conditions and increased fishing opportunities by—
(A) improving ecological conditions;
(B) restoring natural processes; or
(C) preventing the decline of intact and healthy systems;
(2) to establish a consensus set of national conservation strategies as a framework to guide future actions and investment by Fish Habitat Partnerships;
(3) to broaden the community of support for fish habitat conservation by—
(A) increasing fishing opportunities;
(B) fostering the participation of local communities, especially young people in local communities, in conservation activities; and
(C) raising public awareness of the role healthy fish habitat play in the quality of life and economic well-being of local communities;
(4) to fill gaps in the National Fish Habitat Assessment and the associated database of the National Fish Habitat Assessment—
(A) to empower strategic conservation actions supported by broadly available scientific information; and
(B) to integrate socioeconomic data in the analysis to improve the lives of humans in a manner consistent with fish habitat conservation goals; and
(5) to communicate to the public and conservation partners—
(A) the conservation outcomes produced collectively by Fish Habitat Partnerships; and
(B) new opportunities and voluntary approaches for conserving fish habitat.

SEC. 202. DEFINITIONS.

In this title:
(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—
(A) the Committee on Commerce, Science, and Transportation and the Committee on Environment and Public Works of the Senate; and
(B) the Committee on Natural Resources of the House of Representatives.
(2) BOARD.—The term ''Board'' means the National Fish Habitat Board established by section 203.
(3) DIRECTOR.—The term ''Director'' means the Director of the United States Fish and Wildlife Service.
(4) ENVIRONMENTAL PROTECTION AGENCY ASSISTANT ADMINISTRATOR.—The term ''Environmental Protection Agency Assistant Administrator'' means the Assistant Administrator for Water of the Environmental Protection Agency.
(5) INDIAN TRIBE.—The term ''Indian Tribe'' has the meaning given to the term ''Indian tribe'' in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304).
(6) NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION ASSISTANT ADMINISTRATOR.—The term ''National Oceanic and Atmospheric Administration Assistant Administrator'' means the Assistant Administrator for Fisheries of the National Oceanic and Atmospheric Administration.
(7) PARTNERSHIP.—The term ''Partnership'' means an entity designated by Congress as a Fish Habitat Partnership under section 204.
(8) REAL PROPERTY INTEREST.—The term ''real property interest'' means an ownership interest in—
(A) land; or
(B) water (including water rights).
(9) MARINE FISHERIES COMMISSIONS.—The term ''Marine Fisheries Commissions'' means—
(A) the Atlantic States Marine Fisheries Commission;
(B) the Gulf States Marine Fisheries Commission; and
(C) the Pacific States Marine Commission.
(10) SECRETARY.—The term ''Secretary'' means the Secretary of the Interior.
(11) STATE.—The term ''State'' means each of the several States, Puerto Rico, American Samoa, Guam, the Northern Mariana Islands, the United States Virgin Islands, and the District of Columbia.
(12) STATE AGENCY.—The term ''State agency'' means—
(A) the fish and wildlife agency of a State; and
(B) any department or division of a department or agency of a State that manages in the public trust the inland or marine fishery resources of the State or sustains the habitat for those fishery resources pursuant to State law or the constitution of the State.

SEC. 203. NATIONAL FISH HABITAT BOARD.

(a) ESTABLISHMENT.—
(1) FISH HABITAT BOARD.—There is established a board, to be known as the ''National Fish Habitat Board'', whose duties are—
(A) to promote, oversee, and coordinate the implementation of this title;
(B) to establish national goals and priorities for fish habitat conservation;
(C) to recommend to Congress entities for designation as Partnerships; and
(D) to review and make recommendations regarding fish habitat conservation projects.
(2) MEMBERSHIP.—The Board shall be composed of 26 members, of whom—
(A) one shall be a representative of the Department of the Interior;
(B) one shall be a representative of the United States Geological Survey;
(C) one shall be a representative of the Department of Commerce;
(D) one shall be a representative of the Department of Agriculture;
(E) one shall be a representative of the Association of Fish and Wildlife Agencies;
(F) four shall be representatives of State agencies, one of whom shall be nominated by a regional association of fish and wildlife agencies from each of the Northeast, Southeast, Midwest, and Western regions of the United States;
(G) two shall be representatives of either—
(i) Indian Tribes in the State of Alaska; or
(ii) Indian Tribes in States other than the State of Alaska;
(H) one shall be a representative of either—
(i) the Regional Fishery Management Councils established under section 302 of the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1852); or
(ii) a representative of the Marine Fisheries Commissions;
(I) one shall be a representative of the Sportfishing and Boating Partnership Council;
(J) seven shall be representatives selected from at least one from each of the following:
(i) the recreational sportfishing industry;
(ii) the commercial fishing industry;
(iii) marine recreational anglers;
(iv) freshwater recreational anglers;
(v) habitat conservation organizations; and
(vi) science-based fishery organizations;
(K) one shall be a representative of a national private landowner organization;
(L) one shall be a representative of an agricultural production organization;
(M) one shall be a representative of local government interests involved in fish habitat restoration;
(N) two shall be representatives from different sectors of corporate industries, which may include—
(i) natural resource commodity interests, such as petroleum or mineral extraction;
(ii) natural resource user industries; and
(iii) industries with an interest in fish and fish habitat conservation; and

(O) one shall be a leadership private sector or landowner representative of an active partnership.

(3) COMPENSATION.—A member of the Board shall serve without compensation.

(4) TRAVEL EXPENSES.—A member of the Board may be allowed travel expenses, including per diem in lieu of subsistence, at rates authorized for an employee of an agency under subchapter I of chapter 57 of title 5, United States Code, while away from the home or regular place of business of the member in the performance of the duties of the Board.

(b) APPOINTMENT AND TERMS.—

(1) IN GENERAL.—Except as otherwise provided in this section, a member of the Board described in any of subparagraphs (F) through (O) of subsection (a)(2) shall serve for a term of 3 years.

(2) INITIAL BOARD MEMBERSHIP.—

(A) IN GENERAL.—The initial Board shall consist of representatives as described in subparagraphs (A) through (F) of subsection (a)(2).

(B) REMAINING MEMBERS.—Not later than 60 days after the date of enactment of this Act, the representatives of the initial Board under subparagraph (A) shall appoint the remaining members of the Board described in subparagraphs (H) through (O) of subsection (a)(2).

(C) TRIBAL REPRESENTATIVES.—Not later than 60 days after the enactment of this Act, the Secretary shall provide to the Board a recommendation of not fewer than three Tribal representatives, from which the Board shall appoint one representative pursuant to subparagraph (G) of subsection (a)(2).

(3) STAGGERED TERMS.—Of the members described in subsection (a)(2)(J) initially appointed to the Board—

(A) two shall be appointed for a term of 1 year;

(B) two shall be appointed for a term of 2 years; and

(C) three shall be appointed for a term of 3 years.

(4) VACANCIES.—

(A) IN GENERAL.—A vacancy of a member of the Board described in subparagraph (H), (I), (J), (K), (L), (M), (N), or (O) of subsection (a)(2) shall be filled by an appointment made by the remaining members of the Board.

(B) TRIBAL REPRESENTATIVES.—Following a vacancy of a member of the Board described in subparagraph (G) of subsection (a)(2), the Secretary shall recommend to the Board a list of not fewer than three Tribal representatives, from which the remaining members of the Board shall appoint a representative to fill the vacancy.

(5) CONTINUATION OF SERVICE.—An individual whose term of service as a member of the Board expires may continue to serve on the Board until a successor is appointed.

(6) REMOVAL.—If a member of the Board described in any of subparagraphs (H) through (O) of subparagraph (a)(2) misses three consecutive regularly scheduled Board meetings, the members of the Board may—

(A) vote to remove that member; and

(B) appoint another individual in accordance with paragraph (4).

(c) CHAIRPERSON.—

(1) IN GENERAL.—The representative of the Association of Fish and Wildlife Agencies appointed under subsection (a)(2)(E) shall serve as Chairperson of the Board.

(2) TERM.—The Chairperson of the Board shall serve for a term of 3 years.

(d) MEETINGS.—

(1) IN GENERAL.—The Board shall meet—

(A) at the call of the Chairperson; but

(B) not less frequently than twice each calendar year.

(2) PUBLIC ACCESS.—All meetings of the Board shall be open to the public.

(e) PROCEDURES.—

(1) IN GENERAL.—The Board shall establish procedures to carry out the business of the Board, including—

(A) a requirement that a quorum of the members of the Board be present to transact business;

(B) a requirement that no recommendations may be adopted by the Board, except by the vote of two-thirds of all members;

(C) procedures for establishing national goals and priorities for fish habitat conservation for the purposes of this title;

(D) procedures for designating Partnerships under section 204; and

(E) procedures for reviewing, evaluating, and making recommendations regarding fish habitat conservation projects.

(2) QUORUM.—A majority of the members of the Board shall constitute a quorum.

SEC. 204. FISH HABITAT PARTNERSHIPS.

(a) AUTHORITY TO RECOMMEND.—The Board may recommend to Congress the designation of Fish Habitat Partnerships in accordance with this section.

(b) PURPOSES.—The purposes of a Partnership shall be—

(1) to work with other regional habitat conservation programs to promote cooperation and coordination to enhance fish populations and fish habitats;

(2) to engage local and regional communities to build support for fish habitat conservation;

(3) to involve diverse groups of public and private partners;

(4) to develop collaboratively a strategic vision and achievable implementation plan that is scientifically sound;

(5) to leverage funding from sources that support local and regional partnerships;

(6) to use adaptive management principles, including evaluation of project success and functionality;

(7) to develop appropriate local or regional habitat evaluation and assessment measures and criteria that are compatible with national habitat condition measures; and

(8) to implement local and regional priority projects that improve conditions for fish and fish habitat.

(c) CRITERIA FOR DESIGNATION.—An entity seeking to be designated by Congress as a Partnership shall—

(1) submit to the Board an application at such time, in such manner, and containing such information as the Board may reasonably require; and

(2) demonstrate to the Board that the entity has—

(A) a focus on promoting the health of important fish and fish habitats;

(B) an ability to coordinate the implementation of priority projects that support the goals and national priorities set by the Board that are within the Partnership boundary;

(C) a self-governance structure that supports the implementation of strategic priorities for fish habitat;

(D) the ability to develop local and regional relationships with a broad range of entities to further strategic priorities for fish and fish habitat;

(E) a strategic plan that details required investments for fish habitat conservation that addresses the strategic fish habitat priorities of the Partnership and supports and meets the strategic priorities of the Board;

(F) the ability to develop and implement fish habitat conservation projects that address strategic priorities of the Partnership and the Board; and

(G) the ability to develop fish habitat conservation priorities based on sound science and data, the ability to measure the effectiveness of fish habitat projects of the Partnership, and a clear plan as to how Partnership science and data components will be integrated with the overall Board science and data effort.

(d) REQUIREMENTS FOR RECOMMENDATION TO CONGRESS.—The Board may recommend to Congress for designation an application for a Partnership submitted under subsection (c) if the Board determines that the applicant—

(1) meets the criteria described in subsection (c)(2);

(2) identifies representatives to provide support and technical assistance to the Partnership from a diverse group of public and private partners, which may include State or local governments, nonprofit entities, Indian Tribes, and private individuals, that are focused on conservation of fish habitats to achieve results across jurisdictional boundaries on public and private land;

(3) is organized to promote the health of important fish species and important fish habitats, including reservoirs, natural lakes, coastal and marine environments, coral reefs, and estuaries;

(4) identifies strategic fish and fish habitat priorities for the Partnership area in the form of geographical focus areas or key stressors or impairments to facilitate strategic planning and decision making;

(5) is able to address issues and priorities on a nationally significant scale;

(6) includes a governance structure that—

(A) reflects the range of all partners; and

(B) promotes joint strategic planning and decision making by the applicant;

(7) demonstrates completion of, or significant progress toward the development of, a strategic plan to address declines in fish populations, rather than simply treating symptoms, in accordance with the goals and national priorities established by the Board; and

(8) promotes collaboration in developing a strategic vision and implementation program that is scientifically sound and achievable.

(e) REPORT TO CONGRESS.—

(1) IN GENERAL.—Not later than February 1 of the first fiscal year beginning after the date of enactment of this Act and each February 1 thereafter, the Board shall develop and submit to the appropriate congressional committees an annual report, to be entitled ''Report to Congress on Future Fish Habitat Partnerships and Modifications'', that—

(A) identifies each entity that—

(i) meets the requirements described in subsection (d); and

(ii) the Board recommends to Congress for designation as a Partnership;

(B) describes any proposed modifications to a Partnership previously designated by Congress under subsection (f);

(C) with respect to each entity recommended for designation as a Partnership, describes, to the maximum extent practicable—

(i) the purpose of the recommended Partnership; and

(ii) how the recommended Partnership fulfills the requirements described in subsection (d).

(2) PUBLIC AVAILABILITY; NOTIFICATION.—The Board shall—

(A) make the report publicly available, including on the internet; and

(B) provide to the appropriate congressional committees and the State agency of any State included in a recommended Partnership area written notification of the public availability of the report.

(f) DESIGNATION OR MODIFICATION OF PARTNERSHIP.—Congress shall have the exclusive authority to designate or modify a Partnership.

(g) EXISTING PARTNERSHIPS.—

(1) DESIGNATION REVIEW.—Not later than 5 years after the date of enactment of this Act, any partnership receiving Federal funds as of the date of enactment of this Act shall be subject to a designation review by Congress in which Congress shall have the opportunity to designate the partnership under subsection (f).

(2) INELIGIBILITY FOR FEDERAL FUNDS.—A partnership referred to in paragraph (1) that Congress does not designate as described in that paragraph shall be ineligible to receive Federal funds under this title.

SEC. 205. FISH HABITAT CONSERVATION PROJECTS.

(a) SUBMISSION TO BOARD.—Not later than March 31 of each year, each Partnership shall

submit to the Board a list of priority fish habitat conservation projects recommended by the Partnership for annual funding under this title.

(b) RECOMMENDATIONS BY BOARD.—Not later than July 1 of each year, the Board shall submit to the Secretary a priority list of fish habitat conservation projects that includes a description, including estimated costs, of each project that the Board recommends that the Secretary approve and fund under this title for the following fiscal year.

(c) CRITERIA FOR PROJECT SELECTION.—The Board shall select each fish habitat conservation project recommended to the Secretary under subsection (b) after taking into consideration, at a minimum, the following information:

(1) A recommendation of the Partnership that is, or will be, participating actively in implementing the fish habitat conservation project.

(2) The capabilities and experience of project proponents to implement successfully the proposed project.

(3) The extent to which the fish habitat conservation project—

(A) fulfills a local or regional priority that is directly linked to the strategic plan of the Partnership and is consistent with the purpose of this title;

(B) addresses the national priorities established by the Board;

(C) is supported by the findings of the habitat assessment of the Partnership or the Board, and aligns or is compatible with other conservation plans;

(D) identifies appropriate monitoring and evaluation measures and criteria that are compatible with national measures;

(E) provides a well-defined budget linked to deliverables and outcomes;

(F) leverages other funds to implement the project;

(G) addresses the causes and processes behind the decline of fish or fish habitats; and

(H) includes an outreach or education component that includes the local or regional community.

(4) The availability of sufficient non-Federal funds to match Federal contributions for the fish habitat conservation project, as required by subsection (e).

(5) The extent to which the fish habitat conservation project—

(A) will increase fish populations in a manner that leads to recreational fishing opportunities for the public;

(B) will be carried out through a cooperative agreement among Federal, State, and local governments, Indian Tribes, and private entities;

(C) increases public access to land or water for fish and wildlife-dependent recreational opportunities;

(D) advances the conservation of fish and wildlife species that have been identified by a State agency as species of greatest conservation need;

(E) where appropriate, advances the conservation of fish and fish habitats under the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1801 et seq.) and other relevant Federal law and State wildlife action plans; and

(F) promotes strong and healthy fish habitats so that desired biological communities are able to persist and adapt.

(6) The substantiality of the character and design of the fish habitat conservation project.

(d) LIMITATIONS.—

(1) REQUIREMENTS FOR EVALUATION.—No fish habitat conservation project may be recommended by the Board under subsection (b) or provided financial assistance under this title unless the fish habitat conservation project includes an evaluation plan designed using applicable Board guidance—

(A) to appropriately assess the biological, ecological, or other results of the habitat protection, restoration, or enhancement activities carried out using the assistance;

(B) to reflect appropriate changes to the fish habitat conservation project if the assessment substantiates that the fish habitat conservation project objectives are not being met;

(C) to identify improvements to existing fish populations, recreational fishing opportunities, and the overall economic benefits for the local community of the fish habitat conservation project; and

(D) to require the submission to the Board of a report describing the findings of the assessment.

(2) ACQUISITION AUTHORITIES.—

(A) IN GENERAL.—A State, local government, or other non-Federal entity is eligible to receive funds for the acquisition of real property from willing sellers under this title if the acquisition ensures—

(i) public access for fish and wildlife-dependent recreation; or

(ii) a scientifically based, direct enhancement to the health of fish and fish populations, as determined by the Board.

(B) STATE AGENCY APPROVAL.—

(i) IN GENERAL.—All real property interest acquisition projects funded under this title must be approved by the State agency in the State in which the project is occurring.

(ii) PROHIBITION.—The Board may not recommend, and the Secretary may not provide any funding for, any real property interest acquisition that has not been approved by the State agency.

(C) ASSESSMENT OF OTHER AUTHORITIES.—The Board may not recommend, and the Secretary may not provide any funding under this title for, any real property interest acquisition unless the Partnership that recommended the project has conducted a project assessment, submitted with the funding request and approved by the Board, to demonstrate all other Federal, State, and local authorities for the acquisition of real property have been exhausted.

(D) RESTRICTIONS.—A real property interest may not be acquired pursuant to a fish habitat conservation project by a State, local government, or other non-Federal entity conducted with funds provided under this title, unless—

(i) the owner of the real property authorizes the State, local government, or other non-Federal entity to acquire the real property; and

(ii) the Secretary and the Board determine that the State, local government, or other non-Federal entity would benefit from undertaking the management of the real property being acquired because that is in accordance with the goals of a Partnership.

(e) NON-FEDERAL CONTRIBUTIONS.—

(1) IN GENERAL.—Except as provided in paragraphs (2) and (4), no fish habitat conservation project may be recommended by the Board under subsection (b) or provided financial assistance under this title unless at least 50 percent of the cost of the fish habitat conservation project will be funded with non-Federal funds.

(2) NON-FEDERAL SHARE.—Such non-Federal share of the cost of a fish habitat conservation project—

(A) may not be derived from another Federal grant program; and

(B) may include in-kind contributions and cash.

(3) SPECIAL RULE FOR INDIAN TRIBES.—Notwithstanding paragraph (1) or any other provision of law, any funds made available to an Indian Tribe pursuant to this title may be considered to be non-Federal funds for the purpose of paragraph (1).

(4) WAIVER AUTHORITY.—The Secretary, in consultation with the Secretary of Commerce with respect to marine or estuarine projects, may waive the application of paragraph (2)(A) with respect to a State or an Indian Tribe, or otherwise reduce the portion of the non-Federal share of the cost of an activity required to be paid by a State or an Indian Tribe under paragraph (1), if the Secretary determines that the State or Indian Tribe does not have sufficient funds not derived from another Federal grant program to pay such non-Federal share, or portion of the non-Federal share, without the use of loans.

(f) APPROVAL.—

(1) IN GENERAL.—Not later than 90 days after the date of receipt of the recommended priority list of fish habitat conservation projects under subsection (b), and subject to subsection (d) and based, to the maximum extent practicable, on the criteria described in subsection (c), the Secretary, after consulting with the Secretary of Commerce on marine or estuarine projects, shall approve or reject any fish habitat conservation project recommended by the Board.

(2) FUNDING.—If the Secretary approves a fish habitat conservation project under paragraph (1), the Secretary shall use amounts made available to carry out this title to provide funds to carry out the fish habitat conservation project.

(3) NOTIFICATION.—If the Secretary rejects under paragraph (1) any fish habitat conservation project recommended by the Board, not later than 90 days after the date of receipt of the recommendation, the Secretary shall provide to the Board, the appropriate Partnership, and the appropriate congressional committees a written statement of the reasons that the Secretary rejected the fish habitat conservation project.

SEC. 206. TECHNICAL AND SCIENTIFIC ASSISTANCE.

(a) IN GENERAL.—The Director, the National Oceanic and Atmospheric Administration Assistant Administrator, the Environmental Protection Agency Assistant Administrator, and the Director of the United States Geological Survey, in coordination with the Forest Service and other appropriate Federal departments and agencies, may provide scientific and technical assistance to Partnerships, participants in fish habitat conservation projects, and the Board.

(b) INCLUSIONS.—Scientific and technical assistance provided under subsection (a) may include—

(1) providing technical and scientific assistance to States, Indian Tribes, regions, local communities, and nongovernmental organizations in the development and implementation of Partnerships;

(2) providing technical and scientific assistance to Partnerships for habitat assessment, strategic planning, and prioritization;

(3) supporting the development and implementation of fish habitat conservation projects that are identified as high priorities by Partnerships and the Board;

(4) supporting and providing recommendations regarding the development of science-based monitoring and assessment approaches for implementation through Partnerships;

(5) supporting and providing recommendations for a national fish habitat assessment;

(6) ensuring the availability of experts to assist in conducting scientifically based evaluation and reporting of the results of fish habitat conservation projects; and

(7) providing resources to secure State agency scientific and technical assistance to support Partnerships, participants in fish habitat conservation projects, and the Board.

SEC. 207. COORDINATION WITH STATES AND INDIAN TRIBES.

The Secretary shall provide a notice to, and cooperate with, the appropriate State agency or Tribal agency, as applicable, of each State and Indian Tribe within the boundaries of which an activity is planned to be carried out pursuant to this title, including notification, by not later than 30 days before the date on which the activity is implemented.

SEC. 208. INTERAGENCY OPERATIONAL PLAN.

Not later than 1 year after the date of enactment of this Act, and every 5 years thereafter, the Director, in cooperation with the National Oceanic and Atmospheric Administration Assistant Administrator, the Environmental Protection Agency Assistant Administrator, the Director of the United States Geological Survey, and

the heads of other appropriate Federal departments and agencies (including, at a minimum, those agencies represented on the Board) shall develop an interagency operational plan that describes—

(1) the functional, operational, technical, scientific, and general staff, administrative, and material needs for the implementation of this title; and

(2) any interagency agreements between or among Federal departments and agencies to address those needs.

SEC. 209. ACCOUNTABILITY AND REPORTING.

(a) REPORTING.—

(1) IN GENERAL.—Not later than 5 years after the date of enactment of this Act, and every 5 years thereafter, the Board shall submit to the appropriate congressional committees a report describing the progress of this title.

(2) CONTENTS.—Each report submitted under paragraph (1) shall include—

(A) an estimate of the number of acres, stream miles, or acre-feet, or other suitable measures of fish habitat, that was maintained or improved by Partnerships under this title during the 5-year period ending on the date of submission of the report;

(B) a description of the public access to fish habitats established or improved under this title during that 5-year period;

(C) a description of the improved opportunities for public recreational fishing achieved under this title; and

(D) an assessment of the status of fish habitat conservation projects carried out with funds provided under this title during that period, disaggregated by year, including—

(i) a description of the fish habitat conservation projects recommended by the Board under section 205(b);

(ii) a description of each fish habitat conservation project approved by the Secretary under section 205(f), in order of priority for funding;

(iii) a justification for—

(I) the approval of each fish habitat conservation project; and

(II) the order of priority for funding of each fish habitat conservation project;

(iv) a justification for any rejection of a fish habitat conservation project recommended by the Board under section 205(b) that was based on a factor other than the criteria described in section 205(c); and

(v) an accounting of expenditures by Federal, State, or local governments, Indian Tribes, or other entities to carry out fish habitat conservation projects under this title.

(b) STATUS AND TRENDS REPORT.—Not later than December 31, 2021, and every 5 years thereafter, the Board shall submit to the appropriate congressional committees a report that includes—

(1) a status of all Partnerships designated under this title;

(2) a description of the status of fish habitats in the United States as identified by designated Partnerships; and

(3) enhancements or reductions in public access as a result of—

(A) the activities of the Partnerships; or

(B) any other activities carried out pursuant to this title.

SEC. 210. EFFECT OF THIS TITLE.

(a) WATER RIGHTS.—Nothing in this title—

(1) establishes any express or implied reserved water right in the United States for any purpose;

(2) affects any water right in existence on the date of enactment of this Act;

(3) preempts or affects any State water law or interstate compact governing water; or

(4) affects any Federal or State law in existence on the date of enactment of the Act regarding water quality or water quantity.

(b) AUTHORITY TO ACQUIRE WATER RIGHTS OR RIGHTS TO PROPERTY.—Only a State, local government, or other non-Federal entity may acquire, under State law, water rights or rights to property with funds made available through section 212.

(c) STATE AUTHORITY.—Nothing in this title—

(1) affects the authority, jurisdiction, or responsibility of a State to manage, control, or regulate fish and wildlife under the laws and regulations of the State; or

(2) authorizes the Secretary to control or regulate within a State the fishing or hunting of fish and wildlife.

(d) EFFECT ON INDIAN TRIBES.—Nothing in this title abrogates, abridges, affects, modifies, supersedes, or alters any right of an Indian Tribe recognized by treaty or any other means, including—

(1) an agreement between the Indian Tribe and the United States;

(2) Federal law (including regulations);

(3) an Executive order; or

(4) a judicial decree.

(e) ADJUDICATION OF WATER RIGHTS.—Nothing in this title diminishes or affects the ability of the Secretary to join an adjudication of rights to the use of water pursuant to subsection (a), (b), or (c) of section 208 of the Departments of State, Justice, Commerce, and The Judiciary Appropriation Act, 1953 (43 U.S.C. 666).

(f) DEPARTMENT OF COMMERCE AUTHORITY.—Nothing in this title affects the authority, jurisdiction, or responsibility of the Department of Commerce to manage, control, or regulate fish or fish habitats under the Magnuson-Stevens Fishery Conservation and Management Act (16 U.S.C. 1801 et seq.).

(g) EFFECT ON OTHER AUTHORITIES.—

(1) PRIVATE PROPERTY PROTECTION.—Nothing in this title permits the use of funds made available to carry out this title to acquire real property or a real property interest without the written consent of each owner of the real property or real property interest, respectively.

(2) MITIGATION.—Nothing in this title authorizes the use of funds made available to carry out this title for fish and wildlife mitigation purposes under—

(A) the Federal Water Pollution Control Act (33 U.S.C. 1251 et seq.);

(B) the Fish and Wildlife Coordination Act (16 U.S.C. 661 et seq.);

(C) the Water Resources Development Act of 1986 (Public Law 99–662; 100 Stat. 4082); or

(D) any other Federal law or court settlement.

(3) CLEAN WATER ACT.—Nothing in this title affects any provision of the Federal Water Pollution Control Act (33 U.S.C. 1251 et seq.), including any definition in that Act.

SEC. 211. NONAPPLICABILITY OF FEDERAL ADVISORY COMMITTEE ACT.

The Federal Advisory Committee Act (5 U.S.C. App.) shall not apply to—

(1) the Board; or

(2) any Partnership.

SEC. 212. FUNDING.

(a) AUTHORIZATION OF APPROPRIATIONS.—

(1) FISH HABITAT CONSERVATION PROJECTS.—There is authorized to be appropriated to the Secretary $7,200,000 for each of fiscal years 2021 through 2025 to provide funds for fish habitat conservation projects approved under section 205(f), of which 5 percent is authorized only for projects carried out by Indian Tribes.

(2) ADMINISTRATIVE AND PLANNING EXPENSES.—There is authorized to be appropriated to the Secretary for each of fiscal years 2021 through 2025 an amount equal to 5 percent of the amount appropriated for the applicable fiscal year pursuant to paragraph (1)—

(A) for administrative and planning expenses under this title; and

(B) to carry out section 209.

(3) TECHNICAL AND SCIENTIFIC ASSISTANCE.—There is authorized to be appropriated for each of fiscal years 2021 through 2025 to carry out, and provide technical and scientific assistance under, section 206—

(A) $400,000 to the Secretary for use by the United States Fish and Wildlife Service;

(B) $400,000 to the National Oceanic and Atmospheric Administration Assistant Administrator for use by the National Oceanic and Atmospheric Administration;

(C) $400,000 to the Environmental Protection Agency Assistant Administrator for use by the Environmental Protection Agency;

(D) $400,000 to the Secretary for use by the United States Geological Survey; and

(E) $400,000 to the Secretary of Agriculture, acting through the Chief of the Forest Service, for use by the Forest Service.

(b) AGREEMENTS AND GRANTS.—The Secretary may—

(1) on the recommendation of the Board, and notwithstanding sections 6304 and 6305 of title 31, United States Code, and the Federal Financial Assistance Management Improvement Act of 1999 (31 U.S.C. 6101 note; Public Law 106–107), enter into a grant agreement, cooperative agreement, or contract with a Partnership or other entity to provide funds authorized by this title for a fish habitat conservation project or restoration or enhancement project;

(2) apply for, accept, and, subject to the availability of appropriations, use a grant from any individual or entity to carry out the purposes of this title; and

(3) subject to the availability of appropriations, make funds authorized by this Act available to any Federal department or agency for use by that department or agency to provide grants for any fish habitat protection project, restoration project, or enhancement project that the Secretary determines to be consistent with this title.

(c) DONATIONS.—

(1) IN GENERAL.—The Secretary may—

(A) enter into an agreement with any organization described in section 501(c)(3) of the Internal Revenue Code of 1986 that is exempt from taxation under section 501(a) of that Code to solicit private donations to carry out the purposes of this title; and

(B) accept donations of funds, property, and services to carry out the purposes of this title.

(2) TREATMENT.—A donation accepted under this title—

(A) shall be considered to be a gift or bequest to, or otherwise for the use of, the United States; and

(B) may be—

(i) used directly by the Secretary; or

(ii) provided to another Federal department or agency through an interagency agreement.

SEC. 213. PROHIBITION AGAINST IMPLEMENTATION OF REGULATORY AUTHORITY BY FEDERAL AGENCIES THROUGH PARTNERSHIPS.

Any Partnership designated under this title—

(1) shall be for the sole purpose of promoting fish conservation; and

(2) shall not be used to implement any regulatory authority of any Federal agency.

TITLE III—MISCELLANEOUS

SEC. 301. SENSE OF THE SENATE REGARDING CONSERVATION AGREEMENTS AND ACTIVITIES.

It is the sense of the Senate that—

(1) voluntary conservation agreements benefit species and the habitats on which the species rely;

(2) States, Indian Tribes, units of local government, landowners, and other stakeholders should be encouraged to participate in voluntary conservation agreements; and

(3) the Secretary of the Interior, acting through the Director of the United States Fish and Wildlife Service, and the Secretary of Commerce, acting through the Assistant Administrator of the National Marine Fisheries Service, should consider the enrollment in, and performance of, conservation agreements and investment in, and implementation of, general conservation activities by States, Indian Tribes,

units of local government, landowners, and other stakeholders in making determinations under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.).

SEC. 302. STUDY TO REVIEW CONSERVATION FACTORS.

(a) DEFINITION OF SECRETARIES.—In this section, the term ''Secretaries'' means—

(1) the Secretary of Agriculture;

(2) the Secretary of Commerce, acting through the Assistant Administrator of the National Marine Fisheries Service; and

(3) the Secretary of the Interior, acting through the Director of the United States Fish and Wildlife Service.

(b) STUDY.—To assess factors affecting successful conservation activities under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.), the Secretaries shall carry out a study—

(1) to review any factors that threaten or endanger a species for which a listing under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) would not contribute to the conservation of the species;

(2) to review any barriers to—

(A) the delivery of Federal, State, local, or private funds for such conservation activities, including statutory or regulatory impediments, staffing needs, and other relevant considerations; or

(B) the implementation of conservation agreements, plans, or other cooperative agreements, including agreements focused on voluntary activities, multispecies efforts, and other relevant considerations;

(3) to review factors that impact the ability of the Federal Government to successfully implement the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.);

(4) to develop recommendations regarding methods to address barriers identified under paragraph (2), if any;

(5) to review determinations under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) in which a species is determined to be recovered by the Secretary of the Interior, acting through the Director of the United States Fish and Wildlife Service, or the Secretary of Commerce, acting through the Assistant Administrator of the National Marine Fisheries Service, but remains listed under that Act, including—

(A) an explanation of the factors preventing a delisting or downlisting of the species; and

(B) recommendations regarding methods to address the factors described in subparagraph (A); and

(6) to review any determinations under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) in which a species has been identified as needing listing or uplisting under that Act but remains unlisted or listed as a threatened species, respectively, including—

(A) an explanation of the factors preventing a listing or uplisting of the species; and

(B) recommendations regarding methods to address the factors described in subparagraph (A).

(c) REPORT.—Not later than 1 year after the date of enactment of this Act, the Secretaries shall submit to the Committees on Appropriations and Environment and Public Works of the Senate and the Committees on Appropriations and Natural Resources of the House of Representatives and make publicly available a report describing the results of the study under subsection (b).

SEC. 303. STUDY AND REPORT ON EXPENDITURES.

(a) REPORTS ON EXPENDITURES.—

(1) FEDERAL DEPARTMENTS AND AGENCIES.—

(A) IN GENERAL.—At the determination of the Comptroller General of the United States (referred to in this section as the ''Comptroller General''), to facilitate the preparation of the reports from the Comptroller General under paragraph (2), the head of each Federal department and agency shall submit to the Comptroller General data and other relevant information that describes the amounts expended or disbursed (including through loans, loan guarantees, grants, or any other financing mechanism) by the department or agency as a direct result of any provision of the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) (including any regulation promulgated pursuant to that Act) during—

(i) with respect to the first report under paragraph (2), the 3 fiscal years preceding the date of submission of the report; and

(ii) with respect to the second report under paragraph (2), the 2 fiscal years preceding the date of submission of the report.

(B) REQUIREMENTS.—Data and other relevant information submitted under subparagraph (A) shall describe, with respect to the applicable amounts—

(i) the programmatic office of the department or agency on behalf of which each amount was expended or disbursed;

(ii) the provision of the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) (or regulation promulgated pursuant to that Act) pursuant to which each amount was expended or disbursed; and

(iii) the project or activity carried out using each amount, in detail sufficient to reflect the breadth, scope, and purpose of the project or activity.

(2) COMPTROLLER GENERAL.—Not later than 2 years and 4 years after the date of enactment of this Act, the Comptroller General shall submit to the Committees on Appropriations, Commerce, Science, and Transportation, and Environment and Public Works of the Senate and the Committee on Appropriations and Natural Resources of the House of Representatives a report that describes—

(A) the aggregate amount expended or disbursed by all Federal departments and agencies as a direct result of any provision of the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) (including any regulation promulgated pursuant to that Act) during—

(i) with respect to the first report, the 3 fiscal years preceding the date of submission of the report; and

(ii) with respect to the second report, the 2 fiscal years preceding the date of submission of the report;

(B) the provision of the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) (or regulation promulgated pursuant to that Act) pursuant to which each such amount was expended or disbursed; and

(C) with respect to each relevant department or agency—

(i) the total amount expended or disbursed by the department or agency as described in subparagraph (A); and

(ii) the information described in clauses (i) through (iii) of paragraph (1)(B).

(b) REPORT ON CONSERVATION ACTIVITIES.—

(1) FEDERAL DEPARTMENTS AND AGENCIES.—At the determination of the Comptroller General, to facilitate the preparation of the report under paragraph (2), the head of each Federal department and agency shall submit to the Comptroller General data and other relevant information that describes the conservation activities by the Federal department or agency as a direct result of any provision of the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.) (including any regulation promulgated pursuant to that Act) during—

(A) with respect to the first report under paragraph (2), the 3 fiscal years preceding the date of submission of the report; and

(B) with respect to the second report under paragraph (2), the 2 fiscal years preceding the date of submission of the report.

(2) COMPTROLLER GENERAL.—Not later than 2 years and 4 years after the date of enactment of this Act, the Comptroller General shall submit to the Committees on Commerce, Science, and Transportation and Environment and Public Works of the Senate and the Committee on Natural Resources of the House of Representatives a report that—

(A) describes the conservation activities by all Federal departments and agencies for species listed as a threatened species or endangered species under the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.), as reported under paragraph (1), during—

(i) with respect to the first report, the 3 fiscal years preceding the date of submission of the report; and

(ii) with respect to the second report, the 2 fiscal years preceding the date of submission of the report;

(B) is organized into categories with respect to whether a recovery plan for a species has been established;

(C) includes conservation outcomes associated with the conservation activities; and

(D) as applicable, describes the conservation activities that required interaction between Federal agencies and between Federal agencies and State and Tribal agencies and units of local government pursuant to the Endangered Species Act of 1973 (16 U.S.C. 1531 et seq.).

SEC. 304. USE OF VALUE OF LAND FOR COST SHARING.

The Pittman-Robertson Wildlife Restoration Act (16 U.S.C. 669 et seq.) is amended—

(1) by redesignating section 13 as section 14; and

(2) by inserting after section 12 the following:

''SEC. 13. VALUE OF LAND.

''Notwithstanding any other provision of law, any institution eligible to receive Federal funds under the Agricultural Research, Extension, and Education Reform Act of 1998 (7 U.S.C. 7601 et seq.) shall be allowed to use the value of any land owned by the institution as an in-kind match to satisfy any cost sharing requirement under this Act.''.

Amend the title so as to read: ''An Act to improve protections for wildlife, and for other purposes.''.

MOTION TO CONCUR

Mrs. LOWEY. Mr. Speaker, I have a motion at the desk.

The SPEAKER pro tempore. The Clerk will designate the motion.

The text of the motion is as follows:

Mrs. Lowey moves that the House concur in the Senate amendment to the title of H.R. 925 and that the House concur in the Senate amendment to the text of H.R. 925 with an amendment consisting of the text of Rules Committee Print 116–66.

The text of the House amendment to the Senate amendment to the text is as follows:

In lieu of the matter proposed to be inserted by the amendment of the Senate to the text of the bill, insert the following:

SECTION 1. SHORT TITLE.

This Act may be cited as ''The Heroes Act''.

SEC. 2. TABLE OF CONTENTS.

The table of contents for this Act is as follows:

Sec. 1. Short Title.
Sec. 2. Table of Contents.
Sec. 3. References.
DIVISION A—CORONAVIRUS RECOVERY SUPPLEMENTAL APPROPRIATIONS ACT, 2021
DIVISION B—PROVIDING RELIEF TO STUDENTS, INSTITUTIONS OF HIGHER EDUCATION, LOCAL EDUCATIONAL AGENCIES, AND STATE VOCATIONAL REHABILITATION AGENCIES
Title I—Higher Education Provisions
Title II—Impact Aid and Migrant Education Coronavirus Relief
Title III—Career, Technical, and Adult Education
Title IV—Disability Employment
DIVISION C—PROTECTION FOR FAMILIES AND WORKERS
Title I—Amendments to Emergency Family and Medical Leave Expansion Act and Emergency Paid Sick Leave Act

Title II—COVID–19 Every Worker Protection Act of 2020
Title III—COVID–19 Protections under Longshore and Harbor Workers' Compensation Act
Title IV—Worker's Compensation for Federal and Postal Employees Diagnosed with COVID–19
Title V—COVID–19 Workforce Development Response Activities
DIVISION D—HUMAN SERVICES AND COMMUNITY SUPPORTS
Title I—Stronger Child Abuse Prevention and Treatment
Title II—Child Nutrition and the Special Supplemental Nutrition Program for Women, Infants, and Children
Title III—Related Programs
DIVISION E—SMALL BUSINESS PROVISIONS
Title I—Funding Provisions
Title II—Modifications to the Paycheck Protection Program
Title III—Tax Provisions
Title IV—COVID–19 Economic Injury Disaster Loan Program Reform
Title V—Micro-SBIC and Equity Investment Enhancement
Title VI—Miscellaneous
DIVISION F—REVENUE PROVISIONS
Title I—Economic Stimulus
Title II—Provisions to Prevent Business Interruption
Title III—Net Operating Losses
DIVISION G—RETIREMENT PROVISIONS
Title I—Relief for Multiemployer Pension Plans
Title II—Relief for Single Employer Pension Plans
Title III—Other Retirement Related Provisions
DIVISION H—GIVING RETIREMENT OPTIONS TO WORKERS ACT
DIVISION I—CONTINUED ASSISTANCE TO UNEMPLOYED WORKERS
Title I—Extensions of CARES Act Unemployment Benefits for Workers
Title II—Additional Weeks of Benefit Eligibility
Title III—Clarifications and Improvements to Pandemic Unemployment Assistance
Title IV—Extension of Relief to States and Employers
Title V—Corrective Action for Processing Backlogs
Title VI—Additional Benefits for Mixed Earners
Title VII—Technical Corrections
DIVISION J—EMERGENCY ASSISTANCE, ELDER JUSTICE, AND CHILD AND FAMILY SUPPORT
Title I—Emergency assistance
Title II—Reauthorization of Funding for Programs to Prevent, Investigate, and Prosecute Elder Abuse, Neglect, and Exploitation
Title III—Fairness for Seniors and People with Disabilities During COVID–19
Title IV—Supporting Foster Youth and Families through the Pandemic
Title V—Pandemic State Flexibilities
DIVISION K—HEALTH PROVISIONS
Title I—Medicaid Provisions
Title II—Medicare Provisions
Title III—Private Insurance Provisions
Title IV—Application to Other Health Programs
Title V—Public Health Policies
Title VI—Public Health Assistance
Title VII—Vaccine Development, Distribution, Administration, and Awareness
Title VIII—Other Matters
DIVISION L—VETERANS AND SERVICEMEMBERS PROVISIONS
DIVISION M—CONSUMER PROTECTION AND TELECOMMUNICATIONS PROVISIONS
Title I—COVID–19 Price Gouging Prevention
Title II—E–Rate Support for Wi-Fi Hotspots, Other Equipment, Connected Devices, and Connectivity
Title III—Emergency Benefit for Broadband Service
Title IV—Continued Connectivity
Title V—Don't Break Up the T–Band
Title VI—COVID–19 Compassion and Martha Wright Prison Phone Justice
DIVISION N—AGRICULTURE PROVISIONS
Title I—Livestock and Poultry
Title II—Dairy
Title III—Specialty Crops and Other Commodities
Title IV—Commodity Credit Corporation
Title V—Conservation
Title VI—Nutrition
Title VII—Rural Development
DIVISION O—COVID–19 HERO ACT
Title I—Providing Medical Equipment for First Responders and Essential Workers
Title II—Protecting Renters and Homeowners From Evictions and Foreclosures
Title III—Protecting People Experiencing Homelessness
Title IV—Suspending Negative Credit Reporting and Strengthening Consumer and Investor Protections
Title V—Protecting Student Borrowers
Title VI—Standing Up for Small Businesses, Minority-Owned Businesses, and Non-Profits
Title VII—Promoting and Advancing Communities of Color through Inclusive Lending
Title VIII—Providing Assistance for State, Territory, Tribal, and Local Governments
Title IX—Support for a Robust Global Response to the Covid–19 Pandemic
Title X—Providing Oversight and Protecting Taxpayers
DIVISION P—ACCESS ACT
DIVISION Q—TRANSPORTATION AND INFRASTRUCTURE
Title I—Aviation
Title II—Federal Emergency Management Agency
Title III—Other matters
DIVISION R—ACCOUNTABILITY AND GOVERNMENT OPERATIONS
Title I—Accountability
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Title III—Federal Workforce
Title IV—Federal Contracting Provisions
Title V—District of Columbia
Title VI—Other Matters
DIVISION S—FOREIGN AFFAIRS PROVISIONS
Title I—Matters Relating to the Department of State
Title II—Global Health Security Act of 2020
Title III—Securing America From Epidemics Act
DIVISION T—JUDICIARY MATTERS
Title I—Immigration Matters
Title II—Prisons and jails
Title III—Victims of Crime Act Amendments
Title IV—Jabara-Heyer NO HATE Act
Title V—Bankruptcy Protections
DIVISION U—OTHER MATTERS
Title I—Presumption of Service Connection for Coronavirus Disease 2019
Title II—Coronavirus Relief Fund Amendments
Title III—Energy and Environment Provisions
Title IV—Miscellaneous Matters

SEC. 3. REFERENCES.

Except as expressly provided otherwise, any reference to ''this Act'' contained in any division of this Act shall be treated as referring only to the provisions of that division.

DIVISION A—CORONAVIRUS RECOVERY SUPPLEMENTAL APPROPRIATIONS ACT, 2021

The following sums are hereby appropriated, out of any money in the Treasury not otherwise appropriated, for the fiscal year ending September 30, 2021, and for other purposes, namely:

TITLE I

AGRICULTURE, RURAL DEVELOPMENT, FOOD AND DRUG ADMINISTRATION, AND RELATED AGENCIES

DEPARTMENT OF AGRICULTURE

AGRICULTURAL PROGRAMS

OFFICE OF INSPECTOR GENERAL

For an additional amount for ''Office of Inspector General'', $2,500,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That the funding made available under this heading in this Act shall be used for conducting audits and investigations of projects and activities carried out with funds made available to the Department of Agriculture to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided further, That such amounts shall be in addition to any other amounts available for such purposes: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RURAL DEVELOPMENT PROGRAMS

RURAL HOUSING SERVICE

SALARIES AND EXPENSES

For an additional amount for ''Salaries and Expenses'', $10,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally, including administrative expenses: Provided, That such amounts shall be in addition to any other amounts available for such purposes: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RENTAL ASSISTANCE PROGRAM

For an additional amount for ''Rental Assistance Program'', $309,000,000, to prevent, prepare for, and respond to coronavirus, including for temporary adjustment of wage income losses for residents of housing financed or assisted under section 514, 515, or 516 of the Housing Act of 1949, without regard to any existing eligibility requirements based on income: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DOMESTIC FOOD PROGRAMS

FOOD AND NUTRITION SERVICE

SPECIAL SUPPLEMENTAL NUTRITION PROGRAM FOR WOMEN, INFANTS, AND CHILDREN (WIC)

For an additional amount for the ''Special Supplemental Nutrition Program for Women, Infants, and Children'', $400,000,000: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM

For an additional amount for ''Supplemental Nutrition Assistance Program'', $10,000,000,000, to prevent, prepare for, and respond to coronavirus: Provided, That such amounts shall be in addition to any other amounts available for such purposes: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

COMMODITY ASSISTANCE PROGRAM

For an additional amount for ''Commodity Assistance Program'', $450,000,000, for the emergency food assistance program as authorized by section 27(a) of the Food and Nutrition Act of 2008 (7 U.S.C. 2036(a)) and section 204(a)(1) of the Emergency Food Assistance Act of 1983 (7

U.S.C. 7508(a)(1)): Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DEPARTMENT OF HEALTH AND HUMAN SERVICES

FOOD AND DRUG ADMINISTRATION

SALARIES AND EXPENSES

For an additional amount for ''Salaries and Expenses'', $1,500,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, domestically or internationally, for the purposes of holding one or more advisory committee meetings to discuss requests for authorization or applications for approval of vaccines for coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS—THIS TITLE

SEC. 101. For an additional amount for grants to Rural Utilities Service borrowers, as authorized in section 701 of division N of this Act, to prevent, prepare for, and respond to coronavirus, $2,600,000,000, to remain available until September 30, 2022: Provided, That such amount is designated by Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 102. For an additional amount for the Commonwealth of the Northern Mariana Islands, $14,000,000, for nutrition assistance to prevent, prepare for, and respond to coronavirus: Provided, That such amounts shall be in addition to any other amounts available for such purposes: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 103. For an additional amount for the Commonwealth of Puerto Rico, $1,236,000,000, for nutrition assistance to prevent, prepare for, and respond to coronavirus: Provided, That such amounts shall be in addition to any other amounts available for such purposes: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 104. For an additional amount for American Samoa, $9,117,000, for nutrition assistance to prevent, prepare for, and respond to coronavirus: Provided, That such amounts shall be in addition to any other amounts available for such purposes: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 105. The matter preceding the first proviso under the heading ''Commodity Assistance Program'' in title I of division B of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136), is amended by striking ''to prevent, prepare for, and respond to coronavirus, domestically or internationally,'': Provided, That the amounts repurposed pursuant to the amendment made by this section that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 106. For an additional amount for the program established under section 7522 of the Food, Conservation, and Energy Act of 2008 (7 U.S.C. 5936), to prevent, prepare for, and respond to coronavirus, $20,000,000: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 107. Section 11004 in title I of division B of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) is amended by inserting after the fourth proviso the following: ''Provided further, That the condition set forth in section 9003(f) of the Farm Security and Rural Investment Act of 2002 shall apply with respect to all construction, alteration, or repair work carried out, in whole or in part, with funds made available by this section:'': Provided, That amounts repurposed pursuant to the amendments made pursuant to this section are designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 108. For necessary expenses for salary and related costs associated with Agriculture Quarantine and Inspection Services activities pursuant to 21 U.S.C. 136a(6), and in addition to any other funds made available for this purpose, there is appropriated, out of any money in the Treasury not otherwise appropriated, $350,000,000, to remain available until September 30, 2022, to offset the loss resulting from the coronavirus pandemic of quarantine and inspection fees collected pursuant to sections 2508 and 2509 of the Food, Agriculture, Conservation, and Trade Act of 1990 (21 U.S.C. 136, 136a): Provided, That amounts made available in this section and under the heading ''Animal and Plant Health Inspection Service—Salaries and Expenses'' in the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) shall be treated as funds collected by fees authorized under sections 2508 and 2509 of the Food, Agriculture, Conservation, and Trade Act of 1990 (21 U.S.C. 136, 136a) for purposes of section 421(f) of the Homeland Security Act of 2002 (6 U.S.C. 231(f)): Provided further, That, the amounts repurposed in this section that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

TITLE II

COMMERCE, JUSTICE, SCIENCE, AND RELATED AGENCIES

DEPARTMENT OF COMMERCE

INTERNATIONAL TRADE ADMINISTRATION

OPERATIONS AND ADMINISTRATION

For an additional amount for ''Operations and Administration'', $20,000,000, to prevent, prepare for, and respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

MINORITY BUSINESS DEVELOPMENT AGENCY

MINORITY BUSINESS DEVELOPMENT

For an additional amount for ''Minority Business Development'', $25,000,000, for necessary expenses for the Business Centers and Specialty Centers, including any cost sharing requirements that may exist, for assisting minority business enterprises to prevent, prepare for, and respond to coronavirus, including identifying and accessing local, State, and Federal government assistance related to such virus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

BUREAU OF THE CENSUS

CURRENT SURVEYS AND PROGRAMS

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Current Surveys and Programs'', $10,000,000: Provided, That such sums may be transferred to the Bureau of the Census Working Capital Fund for necessary expenses incurred as a result of the coronavirus, including for payment of salaries and leave to Bureau of the Census staff resulting from the suspension of data collection for reimbursable surveys conducted for other Federal agencies: Provided, That such transfer authority is in addition to any other transfer authority provided by law: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

PERIODIC CENSUSES AND PROGRAMS

For an additional amount for ''Periodic Censuses and Programs'', $400,000,000, to remain available until September 30, 2022, to prevent, prepare for, and respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

UNITED STATES PATENT AND TRADEMARK OFFICE

SALARIES AND EXPENSES

For an additional amount for ''United States Patent and Trademark Office, Salaries and Expenses'', $95,000,000, to prevent, prepare for, and respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIONAL INSTITUTE OF STANDARDS AND TECHNOLOGY

INDUSTRIAL TECHNOLOGY SERVICES

For an additional amount for ''Industrial Technology Services'', $70,000,000, of which $50,000,000 shall be for the Hollings Manufacturing Extension Partnership to assist manufacturers to prevent, prepare for, and respond to coronavirus, and $20,000,000 shall be for the National Network for Manufacturing Innovation (also known as ''Manufacturing USA'') to prevent, prepare for, and respond to coronavirus, including to support development and manufacturing of medical countermeasures and biomedical equipment and supplies: Provided, That none of the funds provided under this heading in this Act shall be subject to cost share requirements under section 34(e)(7)(A) of the National Institute of Standards and Technology Act (15 U.S.C. 278s(e)(7)(A)): Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIONAL OCEANIC AND ATMOSPHERIC ADMINISTRATION

PROCUREMENT, ACQUISITION AND CONSTRUCTION

For an additional amount for ''Procurement, Acquisition and Construction'', $42,000,000, to prevent, prepare for, and respond to coronavirus, by supporting continuity of National Weather Service life and property related operations: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

FISHERIES PROMOTION FUND

For an additional amount for ''Fisheries Promotion Fund'', $100,000,000, to remain available until September 30, 2022, to prevent, prepare for, and respond to coronavirus, for grants authorized by the Saltonstall-Kennedy Act of 1954 (15 U.S.C. 713c): Provided, That within the amount appropriated under this heading in this Act, up

to 2 percent of funds may be transferred to the ''Operations, Research, and Facilities'' account for management, administration, and oversight of funds provided under this heading in this Act: Provided further, That such transfer authority is in addition to any other transfer authority provided by law: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

FISHERIES DISASTER ASSISTANCE

For an additional amount for ''Fisheries Disaster Assistance'', $250,000,000, for activities authorized under section 12005 of the Coronavirus Aid, Relief, and Economic Security Act of 2020 (Public Law 116–136), including for necessary expenses to provide assistance to Tribal, subsistence, commercial, and charter fishery participants affected by the novel coronavirus (COVID–19), which may include direct relief payments: Provided, That of the funds provided under this heading in this Act, $25,000,000 shall be for Tribal fishery participants who belong to Federally recognized Tribes in any of the Nation's States and territories: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DEPARTMENTAL MANAGEMENT

OFFICE OF INSPECTOR GENERAL

For an additional amount for ''Office of Inspector General'', $2,000,000, to remain available until expended to prevent, prepare for, and respond to coronavirus, including the impact of coronavirus on the work of the Department of Commerce and to carry out investigations and audits related to the funding made available for the Department of Commerce in this Act and in title II of division B of Public Law 116–136: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ADMINISTRATIVE PROVISIONS—DEPARTMENT OF COMMERCE

SEC. 201. Notwithstanding any other provision of law, the Federal share for grants provided by the Economic Development Administration under Public Law 116–93 and Public Law 116–136 shall be 100 percent: Provided, That the amounts repurposed in this section that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 202. The Secretary of Commerce may waive, in whole or in part, the matching requirements under section 306 and 306A, and the cost sharing requirements under section 315, of the Coastal Zone Management Act of 1972 (16 U.S.C. 1455, 1455a, and 1461 respectively) as necessary for fiscal years 2020, 2021, and 2022 upon written request by a coastal State.

SEC. 203. Amounts provided by this Act, or any other Act making appropriations for fiscal year 2021, for the Hollings Manufacturing Extension Partnership under the heading ''National Institute of Standards and Technology—Industrial Technology Services'' shall not be subject to cost share requirements under section 25(e)(2) of the National Institute of Standards and Technology Act (15 U.S.C. 278k(e)(2)): Provided, That the authority made available pursuant to this section shall be elective for any Manufacturing Extension Partnership Center that also receives funding from a State that is conditioned upon the application of a Federal cost sharing requirement.

DEPARTMENT OF JUSTICE

FEDERAL PRISON SYSTEM

SALARIES AND EXPENSES

For an additional amount for ''Salaries and Expenses'', $620,000,000, to prevent, prepare for, and respond to coronavirus, including the impact of coronavirus on the work of the Department of Justice, to include funding for medical testing and services, personal protective equipment, hygiene supplies and services, and sanitation services: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF INSPECTOR GENERAL

For an additional amount for ''Office of Inspector General'', $3,000,000, to remain available until expended to prevent, prepare for, and respond to coronavirus, including the impact of coronavirus on the work of the Department of Justice and to carry out investigations and audits related to the funding made available for the Department of Justice in this Act and in title II of division B of Public Law 116–136: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

STATE AND LOCAL LAW ENFORCEMENT ACTIVITIES

OFFICE ON VIOLENCE AGAINST WOMEN

VIOLENCE AGAINST WOMEN PREVENTION AND PROSECUTION PROGRAMS

For an additional amount for ''Violence Against Women Prevention and Prosecution Programs'', $375,000,000, to remain available until expended, of which—

(1) $100,000,000 is for formula grants to States and territories to combat violence against women, as authorized by part T of title I of the Omnibus Crime Control and Safe Streets Acts of 1968;

(2) $40,000,000 is for transitional housing assistance grants for victims of domestic violence, dating violence, stalking, or sexual assault, as authorized by section 40299 of the Violent Crime Control and Law Enforcement Act of 1994 (Public Law 103–322; ''1994 Act'');

(3) $100,000,000 is for formula grants to States and territories for sexual assault victims assistance, as authorized by section 41601 of the 1994 Act;

(4) $20,000,000 is for rural domestic violence and child abuse enforcement assistance grants, as authorized by section 40295 of the 1994 Act;

(5) $15,000,000 is for grants to support families in the justice system, as authorized by section 1301 of the Victims of Trafficking and Violence Protection Act of 2000 (Public Law 106–386);

(6) $50,000,000 is for grants to Tribal governments, Tribal coalitions, Tribal non-profit organizations and Tribal organizations that serve Native victims for purposes authorized under 34 U.S.C. 10441(d), 34 U.S.C. 12511(d), 34 U.S.C. 10452 and 34 U.S.C. 12511(e);

(7) $25,000,000 is for grants to enhance culturally specific services for victims of domestic violence, dating violence, sexual assault, and stalking, as authorized under 34 U.S.C. 20124 (commonly referred to as the ''Culturally Specific Services Program''); and

(8) $25,000,000 is for grants for outreach and services to underserved populations as authorized under 34 U.S.C. 20123 (commonly referred to as the ''Underserved Program''):

Provided, That a recipient of such funds shall not be subject, as a condition for receiving the funds, to any otherwise-applicable requirement to provide or obtain other Federal or non-Federal funds: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF JUSTICE PROGRAMS

STATE AND LOCAL LAW ENFORCEMENT ASSISTANCE

For an additional amount for ''State and Local Law Enforcement Assistance'', $250,000,000, to remain available until expended, for offender reentry programs and research, as authorized by the Second Chance Act of 2007 (Public Law 110–199) and by the Second Chance Reauthorization Act of 2018 (Public Law 115–391), without regard to the time limitations specified at section 6(1) of such Act, to prevent, prepare for, and respond to coronavirus: Provided, That a recipient of funds made available under this heading in this Act shall not be subject, as a condition for receiving the funds, to any otherwise-applicable requirement to provide or obtain other Federal or non-Federal funds: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

For an additional amount for ''State and Local Law Enforcement Assistance'', $600,000,000, to remain available until expended, for grants, contracts, cooperative agreements, and other assistance as authorized by the Pandemic Justice Response Act (title II of division T of this Act, referred to in this paragraph as ''the Act''): Provided, That $500,000,000 is to establish and implement policies and procedures to prevent, detect, and stop the presence and spread of COVID–19 among arrestees, detainees, inmates, correctional facility staff, and visitors to the facilities; and for pretrial citation and release grants, as authorized by the Act: Provided further, That $25,000,000 is for Rapid COVID–19 Testing, as authorized by the Act: Provided further, That $75,000,000 is for grants for Juvenile Specific Services, as authorized by the Act: Provided further, That a recipient of funds made available under this heading in this Act shall not be subject, as a condition for receiving the funds, to any otherwise-applicable requirement to provide or obtain other Federal or non-Federal funds: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

JUVENILE JUSTICE PROGRAMS

For an additional amount for ''Juvenile Justice Programs'', $100,000,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, of which $50,000,000 shall be for juvenile justice programs authorized by section 221 of the Juvenile Justice and Delinquency Prevention Act of 1974, and $50,000,000 shall be for programs authorized by the Victims of Child Abuse Act of 1990: Provided, That funds made available under this heading in this Act shall be made available without any otherwise applicable requirement that a recipient of such funds provide any other Federal funds, or any non-Federal funds, as a condition for receiving the funds made available under such heading: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SCIENCE

NATIONAL SCIENCE FOUNDATION

RESEARCH AND RELATED ACTIVITIES

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Research and Related Activities'', $2,587,000,000, to remain available until September 30, 2022, to prevent, prepare for, and respond to coronavirus, including to fund research grants: Provided, That up to $2,537,000,000 shall be for necessary expenses, including extensions of existing research grants, cooperative agreements, scholarships, fellowships, and apprenticeships: Provided further, That $1,000,000 shall be for a study on the

spread of COVID–19 related disinformation, as described in section 204 of this Act: Provided further, That, of the amount appropriated under this heading in this Act, up to 2 percent of funds may be transferred to the ''Agency Operations and Award Management'' account for management, administration, and oversight of funds provided under this heading in this Act: Provided further, That such transfer authority is in addition to any other transfer authority provided by law: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

EDUCATION AND HUMAN RESOURCES

For an additional amount for ''Education and Human Resources'', $300,000,000, to remain available until September 30, 2022, to prevent, prepare for, and respond to coronavirus, including extensions of existing research grants, cooperative agreements, scholarships, fellowships, and apprenticeships: Provided, That, of the amount appropriated under this heading in this Act, up to 2 percent of funds may be transferred to the ''Agency Operations and Award Management'' account for management, administration, and oversight of funds provided under this heading in this Act: Provided further, That such transfer authority is in addition to any other transfer authority provided by law: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ADMINISTRATIVE PROVISION—SCIENCE

STUDY ON COVID–19 DISINFORMATION

SEC. 204. (a) STUDY.—No later than 30 days after the date of enactment of this Act, the Director of the National Science Foundation shall enter into an arrangement with the National Academies of Science, Engineering, and Medicine (National Academies) to conduct a study on the current understanding of the spread of COVID–19-related disinformation on the internet and social media platforms. The study shall address the following:

(1) the role disinformation and misinformation has played in the public response to COVID–19;

(2) the sources of COVID–19-related disinformation—both foreign and domestic—and the mechanisms by which that disinformation influences the public debate;

(3) the role social media plays in the dissemination and promotion of COVID–19 disinformation and misinformation content and the role social media platforms play in the organization of groups seeking to spread COVID–19 disinformation;

(4) the potential financial returns for creators or distributors of COVID–19 disinformation, and the role such financial incentives play in the propagation of COVID–19 disinformation;

(5) potential strategies to mitigate the dissemination and negative impacts of COVID–19 disinformation, including specifically, the dissemination of disinformation on social media, including through improved disclosures; and

(6) an analysis of the limitations of these mitigation strategies, and an analysis of how these strategies can be implemented without infringing on Americans' Constitutional rights and civil liberties.

(b) REPORT.—In entering into an arrangement under this section, the Director shall request that the National Academies transmit to Congress a report on the results of the study not later than 12 months after the date of enactment of this Act.

(c) AUTHORIZATION.—There is authorized to be appropriated for the purposes of conducting the study in this section $1,000,000.

RELATED AGENCIES

LEGAL SERVICES CORPORATION

PAYMENT TO THE LEGAL SERVICES CORPORATION

For an additional amount for ''Payment to the Legal Services Corporation'', $100,000,000, for the same purposes and subject to the same conditions as the appropriations for fiscal year 2020 under this heading in title II of division B of the CARES Act (Public Law 116–136): Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

TITLE III

DEPARTMENT OF DEFENSE

OPERATION AND MAINTENANCE

OPERATION AND MAINTENANCE, ARMY

For an additional amount for ''Operation and Maintenance, Army'', $100,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OPERATION AND MAINTENANCE, NAVY

For an additional amount for ''Operation and Maintenance, Navy'', $100,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OPERATION AND MAINTENANCE, MARINE CORPS

For an additional amount for ''Operation and Maintenance, Marine Corps'', $10,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OPERATION AND MAINTENANCE, AIR FORCE

For an additional amount for ''Operation and Maintenance, Air Force'', $100,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OPERATION AND MAINTENANCE, DEFENSE-WIDE

For an additional amount for ''Operation and Maintenance, Defense-Wide'', $10,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OTHER DEPARTMENT OF DEFENSE PROGRAMS

DEFENSE HEALTH PROGRAM

For an additional amount for ''Defense Health Program'', $705,000,000, of which $175,000,000 shall be for operation and maintenance, and $530,000,000 shall be for research, development, test and evaluation, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That prior to the obligation of such funds the Assistant Secretary of Defense (Health Affairs) shall submit to the Committees on Appropriations of the House of Representatives and the Senate a spend plan on the use of funds made available under this heading in this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS—THIS TITLE

SEC. 301. For an additional amount for ''Operation and Maintenance, Army'', $400,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That such amount shall be used for necessary expenses, including salaries, cleaning, utilities and personal protective equipment, for recreational entities, childcare development centers and other entities affected by the coronavirus that derive funding from non-appropriated accounts: Provided, That prior to the obligation of such funds the Secretary of the Army shall submit to the Committees on Appropriations of the House of Representatives and the Senate a spend plan on the use of funds made available by this section: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 302. For an additional amount for ''Operation and Maintenance, Navy'', $400,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That such amount shall be used for necessary expenses, including salaries, cleaning, utilities and personal protective equipment, for recreational entities, childcare development centers and other entities affected by the coronavirus that derive funding from non-appropriated accounts: Provided, That prior to the obligation of such funds the Secretary of the Navy shall submit to the Committees on Appropriations of the House of Representatives and the Senate a spend plan on the use of funds made available by this section: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 303. For an additional amount for ''Operation and Maintenance, Air Force'', $500,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That such amount shall be used for necessary expenses, including salaries, cleaning, utilities and personal protective equipment, for recreational entities, childcare development centers and other entities affected by the coronavirus that derive funding from non-appropriated accounts: Provided, That prior to the obligation of such funds the Secretary of the Air Force shall submit to the Committees on Appropriations of the House of Representatives and the Senate a spend plan on the use of funds made available by this section: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 304. For an additional amount for ''Operation and Maintenance, Marine Corps'', $100,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That such amount shall be used for necessary expenses, including salaries, cleaning, utilities and personal protective equipment, for recreational entities, childcare development centers and other entities affected by the coronavirus that derive funding from non-appropriated accounts: Provided, That prior to the obligation of such funds the Secretary of the Navy shall submit to the Committees on Appropriations of the House of Representatives and the Senate a spend plan on the use of funds made available by this section: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

TITLE IV

ENERGY AND WATER

DEPARTMENT OF THE INTERIOR

BUREAU OF RECLAMATION

WATER AND RELATED RESOURCES

For an additional amount for ''Water and Related Resources'', $7,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DEPARTMENT OF ENERGY

ENERGY PROGRAMS

SCIENCE

For an additional amount for ''Science'', $143,000,000, for necessary expenses to offset the costs of impacts due to the coronavirus pandemic or public health measures related to the coronavirus pandemic for the following projects:

(1) Core Facility Revitalization,

(2) Large Synoptic Survey Telescope Camera,

(3) Linac Coherent Light Source II,

(4) Muon to Electron Conversion Experiment, and

(5) Super Cryogenic Dark Matter Search:

Provided,That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DEPARTMENTAL ADMINISTRATION

For an additional amount for ''Departmental Administration'', $1,300,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally, including for necessary expenses related to personal protective equipment: Provided,That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS—THIS TITLE

SEC. 401. Funds appropriated in this title may be made available to restore amounts, either directly or through reimbursement, for obligations incurred for the same purposes to prevent, prepare for, and respond to coronavirus prior to the date of enactment of this Act.

SEC. 402. (a) Requirements relating to non-Federal cost-share grants and cooperative agreements for the Delta Regional Authority under section 382D of the Agricultural Act of 1961 and Consolidated Farm and Rural Development Act (7 U.S.C. 2009aa—3) are waived for grants awarded in fiscal year 2020 and in subsequent years in response to economic distress directly related to the impacts of the Coronavirus Disease (COVID-19).

(b) Requirements relating to non-Federal cost-share grants and cooperative agreements for the Northern Border Regional Commission under section 15501(d) of title 40, United States Code, are waived for grants awarded in fiscal year 2020 and in subsequent years in response to economic distress directly related to the impacts of the Coronavirus Disease (COVID-19).

(c) Requirements relating to non-Federal cost-share grants and cooperative agreements for the Denali Commission are waived for grants awarded in fiscal year 2020 and in subsequent years in response to economic distress directly related to the impacts of the Coronavirus Disease (COVID-19).

(d) Amounts repurposed pursuant to this section that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

TITLE V

FINANCIAL SERVICES AND GENERAL GOVERNMENT

DEPARTMENT OF THE TREASURY

DEPARTMENTAL OFFICES

OFFICE OF INSPECTOR GENERAL

SALARIES AND EXPENSES

For an additional amount for ''Salaries and Expenses'', $35,000,000, to remain available until expended, to conduct monitoring and oversight of the receipt, disbursement, and use of funds made available under the ''Coronavirus State Fiscal Relief Fund'' and the ''Coronavirus Local Fiscal Relief Fund'' (collectively, ''Fiscal Relief Funds''): Provided, That, if the Inspector General of the Department of the Treasury determines that an entity receiving a payment from amounts provided by the Fiscal Relief Funds has failed to comply with the provisions governing the use of such funding, the Inspector General shall transmit any relevant information related to such determination to the Committees on Appropriations of the House of Representatives and the Senate not later than 5 days after any such determination is made: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

TREASURY INSPECTOR GENERAL FOR TAX ADMINISTRATION

SALARIES AND EXPENSES

For an additional amount for ''Salaries and Expenses'', $2,500,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

HOMEOWNER ASSISTANCE FUND

For activities and assistance authorized in section 202 of division O of this Act, $21,000,000,000, to remain available until expended: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

CORONAVIRUS STATE FISCAL RELIEF FUND

For making payments to States, territories, and Tribal governments to mitigate the fiscal effects stemming from the public health emergency with respect to the Coronavirus Disease (COVID–19), $257,000,000,000 to remain available until expended, which shall be in addition to any other amounts available for making payments to States, territories, and Tribal governments for any purpose (including payments made under section 601 of the Social Security Act), of which:

(1) $9,500,000,000 shall be for making payments to the Commonwealth of Puerto Rico, United States Virgin Islands, Guam, Commonwealth of the Northern Mariana Islands, and American Samoa: Provided, That of the amount made available in this paragraph, half shall be allocated equally among each entity specified in this paragraph, and half shall be allocated as an additional amount to each such entity in an amount which bears the same proportion to half of the total amount provided under this paragraph as the relative population of each such entity bears to the total population of all such entities;

(2) $9,500,000,000 shall be for making payments to Tribal governments, of which—

(A) $1,000,000,000 shall be allocated equally between each Tribal government; and

(B) $8,500,000,000 shall be allocated as an additional amount to each Tribal government in an amount determined by the Secretary of the Treasury, in consultation with the Secretary of the Interior and Tribal governments, that is based on increased aggregate expenditures of each such Tribal government (or a tribally-owned entity of such Tribal government) in fiscal year 2020 relative to aggregate expenditures in fiscal year 2019 by the Tribal government (or tribally-owned entity) and determined in such manner as the Secretary determines appropriate to ensure that all amounts available pursuant to this subparagraph are distributed to Tribal governments:

Provided, That not later than 24 hours before any payments for Tribal governments are distributed by the Secretary of the Treasury pursuant to this paragraph, the Secretary of the Treasury shall publish on the website of the Department of the Treasury a detailed description of the funding allocation formulas used pursuant to this paragraph, and a detailed description of the procedure and methodology used to determine such funding allocation formula: Provided Further, That not later than 7 days after any payments for Tribal governments are so distributed, the Secretary shall publish on the website of the Department of the Treasury the date and amount of all fund disbursements, broken down by individual Tribal government recipient; and

(3) $238,000,000,000 shall be for making payments to each of the 50 States and the District of Columbia, of which—

(A) an amount equal to $1,250,000,000 less the amount allocated for the District of Columbia pursuant to section 601(c)(6) of the Social Security Act, shall only be for payment to the District of Columbia, in addition to any other funding available for such purpose (including payments under subparagraph (B) of this paragraph): Provided, That the Secretary of the Treasury shall pay all amounts provided by this section directly to the District of Columbia not less than 5 days after the date of enactment of this Act; and

(B) the remainder shall be allocated between each such entity in an amount which bears the same proportion to the total amount provided under this paragraph as the average estimated number of seasonally-adjusted unemployed individuals (as measured by the Bureau of Labor Statistics Local Area Unemployment Statistics program) in each such entity in August 2020 bears to the average estimated number of seasonally-adjusted unemployed individuals in all such entities: Provided, That the Secretary of the Treasury shall adjust, on a pro rata basis, the amount allocated to each such entity pursuant to the matter preceding this proviso in this paragraph to the extent necessary to ensure a minimum payment of $500,000,000 to each such entity:

Provided, That any entity receiving a payment from funds made available under this heading in this Act shall only use such amounts to respond to, mitigate, cover costs or replace foregone revenues not projected on January 31, 2020 stemming from the public health emergency, or its negative economic impacts, with respect to the Coronavirus Disease (COVID–19): Provided further, That if the Inspector General of the Department of the Treasury determines that an entity receiving a payment from amounts provided under this heading has failed to comply with the preceding proviso, the amount equal to the amount of funds used in violation of such proviso shall be booked as a debt of such entity owed to the Federal Government, and any amounts recovered shall be deposited into the general fund of the Treasury as discretionary offsetting receipts: Provided further, That for purposes of the preceding provisos under this heading in this Act, the population of each entity described in any such proviso shall be determined based on the most recent year for which data are available from the Bureau of the Census, or in the case of an Indian tribe, shall be determined based on data certified by the Tribal government: Provided further, That an entity

receiving a payment from amounts provided under this heading may transfer funds to a private nonprofit organization (as that term is defined in paragraph (17) of section 401 of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11360(17)), or to a special-purpose unit of local government or a multi-state entity involved in the transportation of passengers or cargo: Provided further, That as used under this heading in this Act, the term ''Tribal government'' has the same meaning as specified in section 601(g) of the Social Security Act (42 U.S.C. 601(g)), as added by section 5001 of the CARES Act (Public Law 116–136) and amended by section 201 of division U of this Act, and the term ''State'' means one of the 50 States: Provided further, That the Secretary of Treasury shall make all payments prescribed under this heading in this Act not later than 30 days after the date of enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

CORONAVIRUS LOCAL FISCAL RELIEF FUND

For making payments to metropolitan cities, counties, and other units of general local government to mitigate the fiscal effects stemming from the public health emergency with respect to the Coronavirus Disease (COVID–19), $179,000,000,000, to remain available until expended, which shall be in addition to any other amounts available for making payments to metropolitan cities, counties, and other units of general local government (including payments made under section 601 of the Social Security Act), of which—

(1) $89,500,000,000 shall be for making payments to metropolitan cities and other units of general local government (as those terms are defined in section 102 of the Housing and Community Development Act of 1974 (42 U.S.C. 5302)), of which—

(A) $62,650,000,000 shall be allocated pursuant to the formula under section 106(b)(1) of the Housing and Community Development Act of 1974 (42 U.S.C. 5306(b)(1)) to metropolitan cities (as defined in section 102(a)(4) of such Act (42 U.S.C. 5302(a)(4)), including metropolitan cities that have relinquished or deferred their status as a metropolitan city as of the date of enactment of this Act; and

(B) $26,850,000,000 shall be distributed to each State (as that term is defined in section 102 of the Housing and Community Development Act of 1974 (42 U.S.C. 5302)) for use by units of general local government, other than counties or parishes, in nonentitlement areas (as defined in such section 102) of such States in an amount which bears the same proportion to the total amount provided under this subparagraph as the total population of such units of general local government within the State bears to the total population of all such units of general local government in all such States: Provided, That a State shall pass-through the amounts received under this subparagraph, within 30 days of receipt, to each such unit of general local government in an amount that bears the same proportion to the amount distributed to each such State as the population of such unit of general local government bears to the total population of all such units of general local government within each such State: Provided further, That if a State has not elected to distribute amounts allocated under this paragraph, the Secretary of the Treasury shall pay the applicable amounts under this subparagraph to such units of general local government in the State not later than 30 days after the date on which the State would otherwise have received the amounts from the Secretary; and

(2) $89,500,000,000 shall be paid directly to counties within the 50 States, the District of Columbia, the Commonwealth of Puerto Rico, the United States Virgin Islands, Guam, the Commonwealth of the Northern Mariana Islands, and American Samoa in an amount which bears the same proportion to the total amount provided under this paragraph as the relative population of each such county bears to the total population of all such entities: Provided, That no county that is an ''urban county'' (as defined in section 102 of the Housing and Community Development Act of 1974 (42 U.S.C. 5302)) shall receive less than the amount the county would otherwise receive if the amount distributed under this paragraph were allocated to metropolitan cities and urban counties under section 106(b) of the Housing and Community Development Act of 1974 (42 U.S.C. 5306(b)): Provided further, That in the case of an amount to be paid to a county that is not a unit of general local government, the amount shall instead be paid to the State in which such county is located, and such State shall distribute such amount to units of general local government within such county in an amounts that bear the same proportion as the population of such units of general local government bear to the total population of such county: Provided further, That for purposes of this paragraph, the District of Columbia shall be considered to consist of a single county that is a unit of general local government:

Provided further, That any entity receiving a payment from funds made available under this heading in this Act shall only use such amounts to respond to, mitigate, cover costs or replace foregone revenues not projected on January 31, 2020 stemming from the public health emergency, or its negative economic impacts, with respect to the Coronavirus Disease (COVID–19): Provided further, That if the Inspector General of the Department of the Treasury determines that an entity receiving a payment from amounts provided under this heading has failed to comply with the preceding proviso, the amount equal to the amount of funds used in violation of such proviso shall be booked as a debt of such entity owed to the Federal Government, and any amounts recovered shall be deposited into the general fund of the Treasury as discretionary offsetting receipts: Provided further, That for purposes of the preceding provisos under this heading in this Act, the population of each entity described in any such proviso shall be determined based on the most recent year for which data are available from the Bureau of the Census, or in the case of an Indian tribe, shall be determined based on data certified by the Tribal government: Provided further, That an entity receiving a payment from amounts provided under this heading may transfer funds to a private nonprofit organization (as that term is defined in paragraph (17) of section 401 of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11360(17)), or to a special-purpose unit of local government or a multi-state entity involved in the transportation of passengers or cargo: Provided further, That nothing in paragraph (1) or (2) shall be construed as prohibiting a unit of general local government that has formed a consolidated government, or that is geographically contained (in full or in part) within the boundaries of another unit of general local government from receiving a distribution under each of subparagraphs (A) and (B) under paragraph (1) or under paragraph (2), as applicable, based on the respective formulas specified contained therein: Provided further, That the amounts otherwise determined for distribution to units of local government under each of subparagraphs (A) and (B) under paragraph (1) and under paragraph (2) shall each be adjusted by the Secretary of the Treasury on a pro rata basis to the extent necessary to comply with the amount appropriated and the requirements specified in each paragraph and subparagraph, as applicable: Provided further, That as used under this heading in this Act, the term ''county'' means a county, parish, or other equivalent county division (as defined by the Bureau of the Census): Provided further, That for purposes of the preceding provisos under this heading in this Act, the population of an entity shall be determined based on the most recent year for which data are available from the Bureau of the Census: Provided further, That such amount is designated by Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

COVID–19 MULTI-STATE AGENCY FISCAL RELIEF FUND

For making payments to multi-State entities that are involved in the transportation of passengers or cargo and are suffering revenue losses due to the Coronavirus Disease 2019 (COVID–19) pandemic, $100,000,000, to remain available until expended, which shall be in addition to any other amounts available for making payments to States, metropolitan cities, counties, and other units of state and general local government (including payments made under section 601 of the Social Security Act), and which shall be paid directly to multi-State entities (as that term is used in 15 U.S.C. 9041(10)(D)) for use by multi-State entities: Provided, That the funds provided under this paragraph shall be allocated to a multi-State entity that is an eligible issuer and multi-State entity under the terms set forth by the Federal Reserve on June 3, 2020 for the Municipal Liquidity Facility established by the Board of Governors of the Federal Reserve System: Provided further, That such amounts shall be allocated by the Secretary of the Treasury proportionally to each multi-State entity covered under this paragraph based on an amount equal to the product obtained by multiplying the total amount appropriated to the Secretary under this paragraph and the quotient obtained by dividing—

(1) the total gross operating revenue of the multi-State entity receiving funds for fiscal year 2018; by

(2) the total gross operating revenue for fiscal year 2018 of all multi-State entities that are eligible to receive funds under this paragraph:

Provided further, That neither a State nor local government may serve as a pass-through for any amounts received by a multi-State entity: Provided further, That such sums shall be distributed directly by the Secretary to each multi-State entity not later than December 31, 2020: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

COMMUNITY DEVELOPMENT FINANCIAL INSTITUTIONS FUND PROGRAM ACCOUNT

For an additional amount for the ''Community Development Financial Institutions Fund Program Account'', $1,000,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That the Community Development Financial Institutions Fund (CDFI) shall provide grants using a formula that takes into account criteria such as certification status, financial and compliance performance, portfolio and balance sheet strength, and program capacity: Provided further, That not less than $25,000,000 shall be for financial assistance, technical assistance, and training and outreach programs designed to benefit Native American, Native Hawaiian, and Alaska Native communities: Provided further, That the CDFI Fund shall make funds provided under this heading in this Act available to grantees not later than 60 days after the date of enactment of this Act: Provided further, That funds made available under this heading may be used for administrative expenses, including administration of CDFI Fund programs and the New Markets Tax Credit Program: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ADMINISTRATIVE PROVISION—INTERNAL REVENUE SERVICE

(INCLUDING TRANSFER OF FUNDS)

SEC. 501. For an additional amount for fiscal year 2021, and in addition to the amounts otherwise available to the Internal Revenue Service for the purposes specified in this section, $359,000,000, to prevent, prepare for, and respond to coronavirus, including for costs associated with the extended filing season: Provided, That such funds may be transferred by the Commissioner to the ''Taxpayer Services'', ''Enforcement'', or ''Operations Support'' accounts of the Internal Revenue Service for an additional amount to be used solely to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided further, That the Committees on Appropriations of the House of Representatives and the Senate shall be notified in advance of any such transfer: Provided further, That such transfer authority is in addition to any other transfer authority provided by law: Provided further, That not later than 30 days after the date of enactment of this Act, the Commissioner shall submit to the Committees on Appropriations of the House of Representatives and the Senate a spending plan and subsequent quarterly reports detailing the actual and expected expenditures of such funds: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

THE JUDICIARY

COURT OF APPEALS, DISTRICT COURTS, AND OTHER JUDICIAL SERVICES

SALARIES AND EXPENSES

For an additional amount for ''Salaries and Expenses'', $25,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

INDEPENDENT AGENCIES

ELECTION ASSISTANCE COMMISSION

ELECTION RESILIENCE GRANTS

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for payments by the Election Assistance Commission to States for contingency planning, preparation, and resilience of elections for Federal office, $3,600,000,000: Provided, That of the amount provided under this heading, up to $5,000,000 may be transferred to and merged with ''Election Assistance Commission—Salaries and Expenses'': Provided further, That such transfer authority is in addition to any other transfer authority provided by law: Provided further, That under this heading the term ''State'' means each of the 50 States, the District of Columbia, the Commonwealth of Puerto Rico, Guam, American Samoa, the United States Virgin Islands, and the Commonwealth of the Northern Mariana Islands: Provided further, That the amount of the payments made to a State under this heading shall be consistent with sections 101(d) and 103 of the Help America Vote Act of 2002 (52 U.S.C. 20903): Provided further, That not later than 30 days after the date of enactment of this Act, the Election Assistance Commission shall obligate the funds to States under this heading in this Act: Provided further, That not less than 50 percent of the amount of the payment made to a State under this heading in this Act shall be allocated in cash or in kind to the units of local government which are responsible for the administration of elections for Federal office in the State: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ADMINISTRATIVE PROVISION—ELECTION ASSISTANCE COMMISSION

SEC. 502. (a) The last proviso under the heading ''Election Assistance Commission—Election Security Grants'' in the Financial Services and General Government Appropriations Act, 2020 (division C of Public Law 116–93; 133 Stat. 2461) shall not apply with respect to any payment made to a State using funds appropriated or otherwise made available to the Election Assistance Commission under the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136).

(b) The first proviso under the heading ''Election Assistance Commission—Election Security Grants'' in the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) is amended by striking ''within 20 days of each election in the 2020 Federal election cycle in that State,'' and inserting ''not later than October 30, 2021,''.

(c) The fourth proviso under the heading ''Election Assistance Commission—Election Security Grants'' in the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) is amended by striking ''December 31, 2020'' and inserting ''September 30, 2021''.

(d) A State may elect to reallocate funds allocated under the heading ''Election Assistance Commission—Election Security Grants'' in the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) or under this heading in this Act as funds allocated under the heading ''Election Assistance Commission—Election Security Grants'' in the Financial Services and General Government Appropriations Act, 2020 (division C of Public Law 116–93; 133 Stat. 2461) that were spent to prevent, prepare for, and respond to coronavirus, domestically or internationally, for the 2020 Federal election cycle; or funds allocated under the heading ''Election Assistance Commission—Election Reform Program'' in the Financial Services and Government Appropriations Act, 2018 (division E of Public Law 115–141) that were spent to prevent, prepare for, and respond to coronavirus, domestically or internationally, for the 2020 Federal election cycle.

(e) This section shall take effect as if included in the enactment of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136).

(f) The amounts repurposed pursuant to this section that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

FEDERAL COMMUNICATIONS COMMISSION

SALARIES AND EXPENSES

For an additional amount for ''Salaries and Expenses'', $24,000,000, for implementing title VIII of the Communications Act of 1934 (47 U.S.C. 641 et seq.), as added by the Broadband DATA Act (Public Law 116–130): Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

For an additional amount for ''Salaries and Expenses'', $200,000,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, domestically or internationally, including to support efforts of health care providers to address coronavirus by providing telecommunications services, information services, and devices necessary to enable the provision of telehealth services during an emergency period, as defined in section 1135(g)(1) of the Social Security Act (42 U.S.C. 1320b-5(g)(1)): Provided, That the Federal Communications Commission may rely on the rules of the Commission under part 54 of title 47, Code of Federal Regulations, in administering the amount provided under the heading in this Act if the Commission determines that such administration is in the public interest: Provided further, That up to $4,000,000 shall be used by the Office of Inspector General to audit and conduct investigations of funds made available in this Act or in the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) to the Federal Communications Commission for the provision of telehealth services during an emergency period, and that the Office of Inspector General shall report to the Committees on Appropriations of the House of Representatives and the Senate, the Committee on Energy and Commerce of the House of Representatives, and the Committee on Commerce, Science, and Transportation of the Senate each month, until all emergency telehealth funding has been obligated, on the status of approved applications, pending applications, and rejected applications for such funding, and on recommendations to improve the transparency and fairness of distribution of such funding: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

EMERGENCY CONNECTIVITY FUND

For an additional amount for the ''Emergency Connectivity Fund'', $12,000,000,000, to remain available until September 30, 2022, to prevent, prepare for, and respond to coronavirus, domestically or internationally, through the provision of funding for Wi-fi hotspots, other equipment, connected devices, and advanced telecommunications and information services to schools and libraries as authorized in section 201 of division M of this Act: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

EMERGENCY BROADBAND CONNECTIVITY FUND

For an additional amount for the ''Emergency Broadband Connectivity Fund'', $3,000,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally, through the provision of an emergency benefit for broadband service as authorized in section 301 of division M of this Act: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL SERVICES ADMINISTRATION

TECHNOLOGY MODERNIZATION FUND

For an additional amount for the ''Technology Modernization Fund'', $1,000,000,000, to remain available until September 30, 2022, for technology-related modernization activities to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIONAL ARCHIVES AND RECORDS ADMINISTRATION

RECORDS CENTER REVOLVING FUND

For an additional amount for the ''Records Center Revolving Fund'' for the Federal Record Centers Program, $92,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally, which shall be for offsetting the loss resulting from the coronavirus pandemic of the user charges collected by such Fund pursuant to subsection (c) under the heading ''Records Center Revolving Fund'' in Public Law 106–58, as amended (44 U.S.C. 2901 note): Provided, That the amount provided under this heading in this Act may be used to reimburse the Fund for obligations incurred for this purpose prior to the date of the enactment of this Act: Provided further, That such amount is provided without regard to the limitation in

subsection (d) under the heading ''Records Center Revolving Fund'' in Public Law 106–58, as amended (44 U.S.C. 2901 note): Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF PERSONNEL MANAGEMENT

OFFICE OF INSPECTOR GENERAL

SALARIES AND EXPENSES

For an additional amount for ''Salaries and Expenses'', $1,000,000, to remain available until expended to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SMALL BUSINESS ADMINISTRATION

EMERGENCY EIDL GRANTS

For an additional amount for ''Emergency EIDL Grants'' for the cost of emergency EIDL grants authorized by section 1110 of division A of the CARES Act (Public Law 116–136), $50,000,000,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That of the amount provided under this heading in this Act, $40,000,000,000 shall be for carrying out subsection (i) of such section 1110: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ADMINISTRATIVE PROVISION—SMALL BUSINESS ADMINISTRATION

SEC. 503. For fiscal year 2021, commitments for general business loans authorized under paragraphs (1) through (35) of section 7(a) of the Small Business Act (15 U.S.C. 636(a)) shall not exceed $75,000,000,000 for a combination of amortizing term loans and the aggregated maximum line of credit provided by revolving loans.

UNITED STATES POSTAL SERVICE

PAYMENT TO POSTAL SERVICE FUND

For an additional payment to the ''Postal Service Fund'', for revenue forgone due to coronavirus, $15,000,000,000, to remain available until September 30, 2022: Provided, That the Postal Service, during the coronavirus emergency, shall prioritize the purchase of, and make available to all Postal Service employees and facilities, personal protective equipment, including gloves, masks, and sanitizers, and shall conduct additional cleaning and sanitizing of Postal Service facilities and delivery vehicles: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF INSPECTOR GENERAL

SALARIES AND EXPENSES

For an additional amount for ''Salaries and Expenses'', $15,000,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS—THIS TITLE

SEC. 504. (a) OVERSIGHT OF COVERED FUNDS.—The matter preceding the first proviso under the heading ''Independent Agencies—Pandemic Response Accountability Committee'' in title V of division B of the CARES Act (Public Law 116–136) is amended by striking ''funds provided in this Act to prevent, prepare for, and respond to coronavirus, domestically or internationally'' and inserting '' 'covered funds', as that term is defined in section 15010 of this Act''.

(b) DEFINITION OF COVERED FUNDS.—Section 15010(a)(6) of division B of the Coronavirus, Aid, Relief, and Economic Security Act (Public Law 116–136) is amended—

(1) in subparagraph (A), by striking ''this Act'' and inserting ''the Coronavirus Aid, Relief, and Economic Security Act (divisions A and B) (Public Law 116–136)''; and

(2) by striking subparagraph (D) and inserting:

''(D) the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139);

''(E) all divisions of this Act; or

''(F) The Heroes Act; and''.

(c) APPOINTMENT OF CHAIRPERSON.—Section 15010(c) of division B of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) is amended—

(1) in paragraph (1), by striking ''and (D)'' and inserting ''(D), and (E)''; and

(2) in paragraph (2)(E), by inserting ''of the Council'' after ''Chairperson''.

(d) RETROACTIVE REPORTING ON LARGE COVERED FUNDS.—

(1) DEFINITIONS.—In this subsection, the terms ''agency'' and ''large covered funds'' have the meanings given those terms in section 15011 of division B of the Coronavirus, Aid, Relief, and Economic Security Act (Public Law 116–136).

(2) GUIDANCE.—

(A) IN GENERAL.—Not later than 14 days after the date of enactment of this Act, the Director of the Office of Management and Budget shall issue guidance for agencies to ensure the collection and timely reporting for the obligation and expenditure of large covered funds under division A of the CARES Act (Public Law 116–136) on and after the date of enactment of that Act.

(B) REQUIREMENT.—The guidance issued under subparagraph (A) shall require that, not later than 120 days after the date of enactment of this Act, agencies shall make all reports required under section 15011 of division B of the CARES Act (Public Law 116–136) relating to large covered funds under division A of such Act that have been expended or obligated during the period beginning on the date of enactment of the CARES Act (Public Law 116–136) and ending on the day before the date of enactment of this Act.

(C) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to affect the deadlines for reporting under section 15011 of division B of the CARES Act (Public Law 116–136) relating to large covered funds that have been expended or obligated under divisions A or B of such Act, on or after the date of enactment of this Act.

(c) DESIGNATION.—Amounts repurposed under this section that were previously designated by the Congress, respectively, as an emergency requirement or as being for disaster relief pursuant to the Balanced Budget and Emergency Deficit Control Act are designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985 or as being for disaster relief pursuant to section 251(b)(2)(D) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 505. Title V of division B of the CARES Act (Public Law 116–136) is amended by striking the fifth proviso under the heading ''General Services Administration—Real Property Activities—Federal Buildings Fund'': Provided, That the amounts repurposed pursuant to this section that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

TITLE VI

HOMELAND SECURITY

OFFICE OF INSPECTOR GENERAL

OPERATIONS AND SUPPORT

For an additional amount for ''Operations and Support'', $3,000,000, for oversight of activities supported by funds provided under ''Federal Emergency Management Agency—Disaster Relief Fund'' in title VI of division B of Public Law 116–136, in addition to amounts otherwise available for such purposes: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

FEDERAL EMERGENCY MANAGEMENT AGENCY

FEDERAL ASSISTANCE

For an additional amount for ''Federal Assistance'', $1,300,000,000, to prevent, prepare for, and respond to coronavirus, of which $500,000,000 shall be for Assistance to Firefighter Grants for the purchase of personal protective equipment and related supplies, mental health evaluations, training, and temporary infectious disease de-contamination or sanitizing facilities and equipment; of which $500,000,000 shall be for Staffing for Adequate Fire and Emergency Response Grants; of which $100,000,000 shall be for Emergency Management Performance Grants; and of which $200,000,000 shall be for the Emergency Food and Shelter Program: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS—THIS TITLE

SEC. 601. Notwithstanding any other provision of law, funds made available in this Act for ''Federal Emergency Management Agency—Federal Assistance'' in this Act shall only be used for the purposes specifically described under that heading.

SEC. 602. (a) Subsections (c)(2) and (k) of section 33 of the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2229) shall not apply to amounts appropriated for ''Federal Emergency Management Agency—Federal Assistance'' for Assistance to Firefighter Grants in this Act.

(b) Subsection (k) of section 33 of the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2229) shall not apply to amounts provided for ''Federal Emergency Management Agency—Federal Assistance'' for Assistance to Firefighter Grants in title III of division D of Public Law 116–93 and in title VI of division B of Public Law 116–136.

(c) Amounts repurposed under this section that were previously designated by the Congress as an emergency requirement or as being for disaster relief pursuant to the Balanced Budget and Emergency Deficit Control Act are designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985 or as being for disaster relief pursuant to section 251(b)(2)(D) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 603. Subsections (a)(1)(A), (a)(1)(B), (a)(1)(E), (c)(1), (c)(2), and (c)(4) of section 34 of the Federal Fire Prevention and Control Act of 1974 (15 U.S.C. 2229a) shall not apply to amounts appropriated for ''Federal Emergency Management Agency—Federal Assistance'' for Staffing for Adequate Fire and Emergency Response Grants in this Act and in division D, title III of the Consolidated Appropriations Act, 2020 (Public Law 116–93).

TITLE VII

INTERIOR, ENVIRONMENT, AND RELATED AGENCIES

DEPARTMENT OF THE INTERIOR

UNITED STATES FISH AND WILDLIFE SERVICE

RESOURCE MANAGEMENT

For an additional amount for ''Resource Management'', $45,000,000, of which $15,000,000 shall be for wildlife inspections, interdictions, and investigations and for domestic and international efforts to address wildlife trafficking; and of which $30,000,000 shall be for the care of captive species listed under the Endangered Species Act, rescued and confiscated wildlife, and other Federally-owned animals in facilities experiencing lost revenues due to the coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIONAL PARK SERVICE

NATIONAL RECREATION AND PRESERVATION

For an additional amount for ''National Recreation and Preservation'', $20,000,000 for grants as authorized by the 9/11 Memorial Act (Public Law 115–413), to prevent, prepare for, and respond to coronavirus. Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

BUREAU OF INDIAN AFFAIRS

OPERATION OF INDIAN PROGRAMS

For an additional amount for ''Operation of Indian Programs'', $900,000,000, to prevent, prepare for, and respond to coronavirus, of which—

(1) $100,000,000 shall be for housing improvement;

(2) $780,000,000 shall be for providing Tribal government services, for Tribal government employee salaries to maintain operations, and cleaning and sanitization of Tribally owned and operated facilities; and

(3) $20,000,000 shall be used to provide and deliver potable water:

Provided, That none of the funds appropriated herein shall be obligated until 3 days after the Bureau of Indian Affairs provides a detailed spend plan, which includes distribution and use of funds by Tribe, to the Committees on Appropriations of the House of Representatives and the Senate: Provided further, That such amounts shall be in addition to any other amounts available for such purposes: Provided further, That the Bureau shall notify the Committees on Appropriations of the House of Representatives and the Senate quarterly on the obligations and expenditures of the funds provided by this Act: Provided further, That assistance received herein shall not be included in the calculation of funds received by those Tribal governments who participate in the ''Small and Needy'' program: Provided further, That such amounts, if transferred to Indian Tribes and Tribal organizations under the Indian Self-Determination and Education Assistance Act (1) will be transferred on a one-time basis, (2) are non-recurring funds that are not part of the amount required by 25 U.S.C. 5325, and (3) may only be used for the purposes identified under this heading in this Act, notwithstanding any other provision of law: Provided further, That section 1308 of this Act shall not apply to tribal contracts entered into by the Bureau of Indian Affairs with this appropriation: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DEPARTMENTAL OFFICES

INSULAR AFFAIRS

ASSISTANCE TO TERRITORIES

For an additional amount for ''Assistance to Territories'', $1,000,000,000, to remain available until expended, to prevent, prepare for, respond to, and recover from coronavirus, of which (1) $993,000,000 is for Capital Improvement Project grants for hospitals and other critical infrastructure; and (2) $7,000,000 is for territorial assistance, including general technical assistance: Provided, That any appropriation for disaster assistance under this heading in this Act or previous appropriations Acts may be used as non-Federal matching funds for the purpose of hazard mitigation grants provided pursuant to section 404 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5170c): Provided further, That amounts repurposed pursuant to this section that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF INSPECTOR GENERAL

SALARIES AND EXPENSES

For an additional amount for ''Salaries and Expenses'', $5,000,000, to remain available until expended: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ENVIRONMENTAL PROTECTION AGENCY

ENVIRONMENTAL PROGRAMS AND MANAGEMENT

For an additional amount for ''Environmental Programs and Management'', $50,000,000, for environmental justice grants as described in section 302 of division U of this Act: Provided, That such amounts shall be in addition to any other amounts available for such purposes: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DEPARTMENT OF HEALTH AND HUMAN SERVICES

INDIAN HEALTH SERVICE

INDIAN HEALTH SERVICES

For an additional amount for ''Indian Health Services'', $1,734,000,000, to remain available until expended, to prevent, prepare for, respond to, and provide health services related to coronavirus, of which—

(1) $1,000,000,000 shall be used to supplement reduced third party revenue collections;

(2) $500,000,000 shall be used for direct health and telehealth services, including to purchase supplies and personal protective equipment;

(3) $140,000,000 shall be used to expand broadband infrastructure and information technology for telehealth and electronic health record system purposes;

(4) $20,000,000 shall be used to address the needs of domestic violence victims and homeless individuals and families;

(5) not less than $64,000,000 shall be for Urban Indian Organizations; and,

(6) not less than $10,000,000 shall be used to provide and deliver potable water:

Provided, That such funds shall be allocated at the discretion of the Director of the Indian Health Service, and shall be in addition to any other amounts available for such purposes: Provided further, That such amounts, if transferred to Tribes and Tribal organizations under the Indian Self-Determination and Education Assistance Act, will be transferred on a one-time basis and that these non-recurring funds are not part of the amount required by section 106 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5325), and that such amounts may only be used for the purposes identified under this heading notwithstanding any other provision of law: Provided further, That none of the funds appropriated under this heading in this Act for telehealth broadband activities shall be available for obligation until 3 days after the Indian Health Service provides to the Committees on Appropriations of the House of Representatives and the Senate, a detailed spend plan that includes the cost, location, and expected completion date of each activity: Provided further, That the Indian Health Service shall notify the Committees on Appropriations of the House of Representatives and the Senate quarterly on the obligations and expenditures of the funds provided by this Act: Provided further, That section 1308 of this Act shall not apply to tribal contracts entered into by the Bureau of Indian Affairs with this appropriation: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

INDIAN HEALTH FACILITIES

For an additional amount for ''Indian Health Facilities'', $600,000,000, to prevent, prepare for, and respond to coronavirus, to modify existing health facilities to provide isolation or quarantine space, to purchase and install updated equipment necessary, and for maintenance and improvement projects necessary to the purposes specified in this Act: Provided, That such amounts may be used to supplement amounts otherwise available for such purposes under ''Indian Health Facilities'': Provided further, That such amounts shall be in addition to any other amounts available for such purposes: Provided further, That such amounts, if transferred to Tribes and Tribal organizations under the Indian Self-Determination and Education Assistance Act, will be transferred on a one-time basis and that these non-recurring funds are not part of the amount required by section 106 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5325), and that such amounts may only be used for the purposes identified under this heading notwithstanding any other provision of law: Provided further, That the Indian Health Service shall notify the Committees on Appropriations of the House of Representatives and the Senate quarterly on the obligations and expenditures of the funds provided by this Act: Provided further, That section 1308 of this Act shall not apply to tribal contracts entered into by the Bureau of Indian Affairs with this appropriation: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIONAL FOUNDATION ON THE ARTS AND HUMANITIES

NATIONAL ENDOWMENT FOR THE ARTS

GRANTS AND ADMINISTRATION

For an additional amount for ''Grants and Administration'', $135,000,000, for grants to respond to the impacts of coronavirus: Provided, That such funds are available under the same terms and conditions as grant funding appropriated to this heading in Public Law 116–94: Provided further, That 40 percent of the funds made available under this heading in this Act shall be distributed to State arts agencies and regional arts organizations and 60 percent of such funds shall be for direct grants: Provided further, That notwithstanding any other provision of law, such funds may also be used by the recipients of such grants for purposes of the general operations of such recipients: Provided further, That the matching requirements under subsections (e), (g)(4)(A), and (p)(3) of section 5 of the National Foundation on the Arts and Humanities Act of 1965 (20 U.S.C. 954) may be waived with respect to such grants: Provided further, That such amount is designated by the

Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIONAL ENDOWMENT FOR THE HUMANITIES

GRANTS AND ADMINISTRATION

For an additional amount for ''Grants and Administration'', $135,000,000, for grants to respond to the impacts of coronavirus: Provided, That such funds are available under the same terms and conditions as grant funding appropriated to this heading in Public Law 116–94: Provided further, That 40 percent of the funds made available under this heading in this Act shall be distributed to state humanities councils and 60 percent of such funds shall be for direct grants: Provided further, That notwithstanding any other provision of law, such funds may also be used by the recipients of such grants for purposes of the general operations of such recipients: Provided further, That the matching requirements under subsection (h)(2)(A) of section 7 of the National Foundation on the Arts and Humanities Act of 1965 may be waived with respect to such grants: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

TITLE VIII

DEPARTMENTS OF LABOR, HEALTH AND HUMAN SERVICES, AND EDUCATION, AND RELATED AGENCIES

DEPARTMENT OF LABOR

EMPLOYMENT AND TRAINING ADMINISTRATION

TRAINING AND EMPLOYMENT SERVICES

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Training and Employment Services'', $2,140,000,000, to prevent, prepare for, and respond to coronavirus, of which $15,000,000 shall be transferred to ''Program Administration'' to carry out activities in this Act, Public Law 116–127 and Public Law 116–136 for full-time equivalent employees, information technology upgrades needed to expedite payments and support implementation, including to expedite policy guidance and disbursement of funds, technical assistance and other assistance to States and territories to speed payment of Federal and State unemployment benefits, and of which the remaining amounts shall be used to carry out activities under the Workforce Innovation and Opportunity Act (referred to in this Act as ''WIOA'') as follows:

(1) $485,000,000 for grants to the States for adult employment and training activities, including incumbent worker trainings, transitional jobs, on-the-job training, individualized career services, supportive services, needs-related payments, and to facilitate remote access to training services provided through a one-stop delivery system through the use of technology: Provided, That an adult shall not be required to meet the requirements of section 134(c)(3)(B) of the WIOA: Provided further, That an adult who meets the requirements described in section 2102(a)(3)(A) of Public Law 116–136 may be eligible for participation: Provided further, That priority may be given to individuals who are adversely impacted by economic changes due to the coronavirus, including individuals seeking employment, dislocated workers, individuals with barriers to employment, individuals who are unemployed, or individuals who are underemployed;

(2) $518,000,000 for grants to the States for youth activities, including supportive services, summer employment for youth, and to facilitate remote access to training services provided through a one-stop delivery system through the use of technology: Provided, That individuals described in section 2102(a)(3)(A) of Public Law 116–136 may be eligible for participation as an out-of-school youth if they meet the requirements of clauses (i) and (ii) of section 129(a)(1)(B) or as in-school youth if they meet the requirements of clauses (i) and (iii) of section 129(a)(1)(C) of the WIOA; Provided further, That priority shall be given for out-of-school youth and youth with multiple barriers to employment: Provided further, That funds shall support employer partnerships for youth employment and subsidized employment, and partnerships with community-based organizations to support such employment;

(3) $597,000,000 for grants to States for dislocated worker employment and training activities, including incumbent worker trainings, transitional jobs, on-the-job training, individualized career services, supportive services, needs-related payments, and to facilitate remote access to training services provided through a one-stop delivery system through the use of technology: Provided, That a dislocated worker shall not be required to meet the requirements of section 134(c)(3)(B) of the WIOA: Provided further, That a dislocated worker who meets the requirements described in section 2102(a)(3)(A) of Public Law 116–136 may be eligible for participation;

(4) $500,000,000 for the dislocated workers assistance national reserve; and

(5) $25,000,000 for migrant and seasonal farmworker programs under section 167 of the WIOA, including emergency supportive services of which no less than $500,000 shall be for the collection and dissemination of electronic and printed materials related to coronavirus to the migrant and seasonal farmworker population nationwide, including Puerto Rico, through a cooperative agreement, and of which $1,000,000 shall be for migrant and seasonal farmworker housing:

Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

STATE UNEMPLOYMENT INSURANCE AND EMPLOYMENT SERVICE OPERATIONS

For an additional amount for ''State Unemployment Insurance and Employment Service Operations'', $538,500,000, to prevent, prepare for, and respond to coronavirus, which may be expended from the Employment Security Administration Account in the Unemployment Trust Fund (''The Trust Fund''), of which:

(1) $38,500,000 from the Trust Fund is for national activities necessary to support the administration of the Federal-State unemployment insurance system; and

(2) $500,000,000 from the Trust Fund is for grants to States in accordance with section 6 of the Wagner-Peyser Act:

Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

WAGE AND HOUR DIVISION

SALARIES AND EXPENSES

For an additional amount for ''Wage and Hour Division'', $6,500,000 to prevent, prepare for, and respond to coronavirus, including for the administration, oversight, and coordination of worker protection activities related thereto: Provided, That the Secretary of Labor shall use funds provided under this heading to support enforcement activities and outreach efforts to make individuals, particularly low-wage workers, aware of their rights under division C and division E of Public Law 116–127 and this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OCCUPATIONAL SAFETY AND HEALTH ADMINISTRATION

SALARIES AND EXPENSES

For an additional amount for ''Occupational Safety and Health Administration'', $100,000,000 for implementation of section 202 of division B this Act, and for worker protection and enforcement activities to prevent, prepare for, and respond to coronavirus, of which $25,000,000 shall be for Susan Harwood training grants and at least $70,000,000 shall be to hire additional compliance safety and health officers, and for state plan enforcement, to protect workers from coronavirus by enforcing all applicable standards and directives, including 29 CFR 1910.132, 29 CFR 1910.134, section 5(a)(1) of the Occupational Safety and Health Act of 1970, and 29 CFR 1910.1030: Provided, That activities to protect workers from coronavirus supported by funds provided under this heading includes additional enforcement of standards and directives referenced in the preceding proviso at slaughterhouses, poultry processing plants, and agricultural workplaces: Provided further, That within 15 days of the date of enactment of this Act, the Secretary of Labor shall submit a spending and hiring plan for the funds made available under this heading, and a monthly staffing report until all funds are expended, to the Committees on Appropriations of the House of Representatives and the Senate: Provided further, That within 15 days of the date of enactment of this Act, the Secretary of Labor shall submit a plan for the additional enforcement activities described in the third proviso to the Committees on Appropriations of the House of Representatives and the Senate: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF INSPECTOR GENERAL

For an additional amount for ''Office of Inspector General'', $5,000,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus. Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ADMINISTRATIVE PROVISIONS—DEPARTMENT OF LABOR

SEC. 801. (a) There is hereby appropriated for an additional amount for fiscal year 2021 for ''Department of Labor—Employment Training Administration—State Unemployment Insurance and Employment Service Operations'', $28,600,000, to be expended from the Employment Security Administration Account in the Unemployment Trust Fund (''the Trust Fund'') to carry out title III of the Social Security Act: Provided, That such amount shall only become available for obligation if the Average Weekly Insured Unemployment (''AWIU'') for fiscal year 2021 is projected, by the Department of Labor during fiscal year 2021 to exceed 1,728,000: Provided further, That to the extent that the AWIU for fiscal year 2021 is projected by the Department of Labor to exceed 1,728,000, an additional $28,600,000 from the Trust Fund shall be made available for obligation during fiscal year 2021 for every 100,000 increase in the AWIU level (including a pro rata amount for any increment less than 100,000): Provided further, That, except as specified in this section, amounts provided herein shall be available under the same authority and conditions applicable to funds provided to carry out title III of the Social Security Act under the heading ''Department of Labor—Employment Training Administration—State Unemployment Insurance and Employment Service Operations'' in division A of Public Law 116–94: Provided further, That such amounts shall be in addition to any other funds made available in any fiscal year for such purposes: Provided further, That such amount is

designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

(b)(1) Section 101(8) of the Continuing Appropriations Act, 2021 (division A of H.R. 8337 of the 116th Congress), is amended by inserting ''except the first proviso following paragraph (6) under the heading 'Department of Labor—State Unemployment Insurance and Employment Service Operations' '' before the period.

(2) Any obligations and expenditures made for projects or activities described in this section before the date of enactment of this Act pursuant to the first proviso following paragraph (6) under the heading ''Department of Labor—State Unemployment Insurance and Employment Service Operations'' as provided by section 101 of the Continuing Appropriations Act, 2021 shall be charged to the appropriation provided by this section, consistent with section 107 of the Continuing Appropriations Act, 2021.

SEC. 802. (a) Any funds made available under this Act to support or fund apprenticeship programs shall only be used for, or provided to, apprenticeship programs as defined in subsection (b) of this section, including any funds awarded for the purposes of grants, contracts, or cooperative agreements, or the development, implementation, or administration, of an apprenticeship program.

(b) The term ''apprenticeship'' means an apprenticeship program registered under the Act of August 16, 1937 (commonly known as the ''National Apprenticeship Act'') (50 Stat. 664, chapter 663; 29 U.S.C. 50 et seq.) and that complies with the requirements of subpart A of part 29, Code of Federal Regulations, and part 30 of such title (as in effect on September 30, 2020).

DEPARTMENT OF HEALTH AND HUMAN SERVICES

HEALTH RESOURCES AND SERVICES ADMINISTRATION

PRIMARY HEALTH CARE

For an additional amount for ''Primary Health Care'', $7,600,000,000, for necessary expenses to prevent, prepare for, and respond to coronavirus, for grants and cooperative agreements under the Health Centers Program, as defined by section 330 of the Public Health Service Act, and for grants to Federally qualified health centers, as defined in section 1861(aa)(4)(B) of the Social Security Act, and for eligible entities under the Native Hawaiian Health Care Improvement Act, including maintenance or expansion of health center and system capacity and staffing levels: Provided, That sections 330(r)(2)(B), 330(e)(6)(A)(iii), and 330(e)(6)(B)(iii) shall not apply to funds provided under this heading in this Act: Provided further, That funds provided under this heading in this Act may be used to (1) purchase equipment and supplies to conduct mobile testing for SARS–CoV–2 or COVID–19; (2) purchase and maintain mobile vehicles and equipment to conduct such testing; and (3) hire and train laboratory personnel and other staff to conduct such mobile testing: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

HEALTH WORKFORCE

For an additional amount for ''Health Workforce'', $1,000,000,000, to remain available until September 30, 2022, to prevent, prepare for, and respond to coronavirus, of which $800,000,000 shall be for carrying out title III of the Public Health Service Act with respect to the health workforce and $200,000,000 shall be for carrying out section 846 of such Act: Provided, That of the amount made available under this heading in this Act for carrying out title III of the Public Health Service Act with respect to the health workforce, $100,000,000 shall be made available for purposes of providing public health services through a supplemental grant or grants to states currently participating in the NHSC State Loan Repayment Program notwithstanding section 338I(b) of the PHS Act, to make awards as authorized under section 338I(j) of the Public Health Service (PHS) Act, and notwithstanding the health professional shortage area requirements under 338I, the Secretary may develop rules needed to implement this proviso: Provided further, That for purposes of the previous proviso, notwithstanding section 338I(d)(2) of the PHS Act, no more than 10 percent of funds made available in such supplemental grants may be used by the state for administration of the State Loan Repayment Program in that state: Provided further, That for the purposes of these funds, the term ''primary health services'' and ''primary health care services'' as referenced in section 338I of the PHS Act, includes public health services, as defined by the Secretary: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

MATERNAL AND CHILD HEALTH

For an additional amount for ''Maternal and Child Health'', $500,000,000, to prevent, prepare for, and respond to coronavirus, for carrying out title V of the Social Security Act with respect to maternal and child health: Provided, That notwithstanding sections 502(a)(1) and 502(b)(1) of the Social Security Act, such funds shall be available for awards to states and territories to carry out special projects of regional and national significance pursuant to section 501(a)(2) of such Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RYAN WHITE HIV/AIDS PROGRAM

For an additional amount for ''Ryan White HIV/AIDS Program'', $100,000,000, to prevent, prepare for, and respond to coronavirus: Provided, That awards from funds provided under this heading in this Act shall be through modifications to existing contracts and supplements to existing grants and cooperative agreements under parts A, B, C, D, and F, or section 2692(a) of title XXVI of the Public Health Service Act: Provided further, That such supplements shall be awarded using a data-driven methodology determined by the Secretary of Health and Human Services: Provided further, That sections 2604(c), 2612(b), and 2651(c) of the Public Health Service Act shall not apply to funds provided under this heading in this Act: Provided further, That the Secretary may waive any penalties and administrative requirements as may attach to these funds or to funds awarded under title XXVI with respect to the Ryan White HIV/AIDS program as necessary to ensure that the funds may be used efficiently: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

CENTERS FOR DISEASE CONTROL AND PREVENTION

CDC–WIDE ACTIVITIES AND PROGRAM SUPPORT

For an additional amount for ''CDC–Wide Activities and Program Support'', $13,700,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That of the amount provided under this heading in this Act, $1,000,000,000 shall be for Public Health Emergency Preparedness cooperative agreements under section 319C–1 of the Public Health Service Act: Provided further, That, of the amount provided under this heading in this Act, $1,000,000,000 shall be for necessary expenses for grants for core public health infrastructure for State, local, Territorial, or Tribal health departments as described in section 550 of division K of this Act: Provided further, That of the amount made available under this heading in this Act for specified programs, not less than $100,000,000 shall be allocated to tribes, tribal organizations, urban Indian health organizations, or health service providers to tribes: Provided further, That of the amount made available under this heading in this Act, not less than $1,000,000,000 shall be for global disease detection and emergency response: Provided further, That of the amount provided under this heading in this Act, not less than $200,000,000 shall be for public health data surveillance and analytics infrastructure modernization: Provided further, That of the amount made available under this heading in this Act, $7,000,000,000 shall be for activities to plan, prepare for, promote, distribute, administer, monitor, and track coronavirus vaccines, as described in section 703 of division K of this Act, to ensure broad-based distribution, access, and vaccine coverage: Provided further, That of the amount made available under this heading in this Act, $1,000,000,000 shall be for necessary expenses for grants for an evidence-based public awareness campaign on the importance of vaccinations, as described in section 704 of division K of this Act: Provided further, That of the amount made available under this heading in this Act, $2,000,000,000 shall be for necessary expenses for grants to State, local, Tribal, or territorial health departments to purchase or procure personal protective equipment and other workplace safety measures for use in containment and mitigation of COVID-19 transmission among essential workers, as well as provide funding to employers of essential workers for containment and mitigation of COVID-19 transmission among essential workers in their workplaces, as described in section 651 of division K of this Act: Provided further, That of the amount made available under this heading in this Act, up to $500,000,000 shall be for activities to plan, prepare for, promote, distribute, administer, monitor, and track seasonal influenza vaccines to ensure broad-based distribution, access, and vaccine coverage: Provided further, That funds made available under this heading in this Act may reimburse CDC obligations incurred for vaccine planning, preparation, promotion, and distribution prior to the enactment of this Act: Provided further, That the Director of CDC shall report to the Committees on Appropriations of the House of Representatives and the Senate within 60 days of enactment of this Act on an enhanced seasonal influenza vaccination strategy to include nationwide vaccination goals and specific actions that CDC will take to achieve such goals: Provided further, That funds appropriated under this heading in this Act for grants may be used for the rent, lease, purchase, acquisition, construction, alteration, or renovation of non-Federally owned facilities to improve preparedness and response capability at the State and local level: Provided further, That all construction, alteration, or renovation work, carried out, in whole or in part, with funds appropriated under this heading in this Act, or under this heading in the CARES Act (Public Law 116–136), shall be subject to the requirements of section 1621(b)(1)(I) of the Public Health Service Act (42 U.S.C. 300s–1(b)(1)(I)): Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIONAL INSTITUTES OF HEALTH

NATIONAL INSTITUTE OF ALLERGY AND INFECTIOUS DISEASES

For an additional amount for ''National Institute of Allergy and Infectious Diseases'', $500,000,000, to remain available until September 30, 2024, to prevent, prepare for, and respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section

251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIONAL INSTITUTE OF MENTAL HEALTH

For an additional amount for ''National Institute of Mental Health'', $200,000,000, to remain available until September 30, 2024, to prevent, prepare for, and respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF THE DIRECTOR

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Office of the Director'', $4,021,000,000, to remain available until September 30, 2024, to prevent, prepare for, and respond to coronavirus, domestically or internationally: Provided, That not less than $3,000,000,000 of the amount provided under this heading in this Act shall be for offsetting the costs related to reductions in lab productivity resulting from the coronavirus pandemic or public health measures related to the coronavirus pandemic: Provided further, That up to $1,021,000,000 of the amount provided under this heading in this Act shall be to support additional scientific research or the programs and platforms that support research: Provided further, That funds made available under this heading in this Act may be transferred to the accounts of the Institutes and Centers of the National Institutes of Health (''NIH''): Provided further, That this transfer authority is in addition to any other transfer authority available to the NIH: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SUBSTANCE ABUSE AND MENTAL HEALTH SERVICES ADMINISTRATION

HEALTH SURVEILLANCE AND PROGRAM SUPPORT

For an additional amount for ''Health Surveillance and Program Support'', $8,500,000,000, to prevent, prepare for, and respond to coronavirus: Provided, That of the funds made available under this heading in this Act, $3,500,000,000 shall be for grants for the substance abuse prevention and treatment block grant program under subpart II of part B of title XIX of the Public Health Service Act (''PHS Act''): Provided further, That of the funds made available under this heading in this Act, $4,000,000,000 shall be for grants for the community mental health services block grant program under subpart I of part B of title XIX of the PHS Act: Provided further, That of the amount made available in the previous proviso, the Assistant Secretary is directed to provide no less than 50 percent of funds directly to facilities defined in section 1913(c) of the PHS Act: Provided further, That of the amount made available under this heading in this Act, not less than $600,000,000 is available for Certified Community Behavioral Health Clinic Expansion Grant program: Provided further, That of the amount made available under this heading in this Act, not less than $50,000,000 shall be available for suicide prevention programs: Provided further, That of the funds made available under this heading in this Act, $100,000,000 shall be for activities and services under Project AWARE: Provided further, That of the funds made available under this heading in this Act, $10,000,000 shall be for the National Child Traumatic Stress Network: Provided further, That of the amount made available under this heading in this Act, $240,000,000 is available for activities authorized under section 501(o) of the PHS Act: Provided further, That of the amount made available under this heading in this Act for specified programs, not less than $150,000,000 shall be allocated to tribes, tribal organizations, urban Indian health organizations, or health or behavioral health service providers to tribes: Provided further, That with respect to the amount appropriated under this heading in this Act the Substance Abuse and Mental Health Services Administration may waive requirements with respect to allowable activities, timelines, or reporting requirements for the Substance Abuse Prevention and Treatment Block Grant and the Community Mental Health Services Block Grant as deemed necessary to facilitate a grantee's response to coronavirus: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

CENTERS FOR MEDICARE & MEDICAID SERVICES

PROGRAM MANAGEMENT

For an additional amount for ''Program Management'', $500,000,000, to prevent, prepare for, and respond to coronavirus, for State strike teams for resident and employee safety in skilled nursing facilities and nursing facilities, including activities to support clinical care, infection control, and staffing pursuant to section 208 of division K of this Act: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ADMINISTRATION FOR CHILDREN AND FAMILIES

LOW INCOME HOME ENERGY ASSISTANCE

For an additional amount for ''Low Income Home Energy Assistance'', $4,500,000,000, to prevent, prepare for, and respond to coronavirus, for making payments under subsection (b) of section 2602 of the Low-Income Home Energy Assistance Act of 1981 (42 U.S.C. 8621 et seq.): Provided, That of the amount provided under this heading in this Act, $2,250,000,000 shall be allocated as though the total appropriation for such payments for fiscal year 2021 was less than $1,975,000,000: Provided further, That section 2607(b)(2)(B) of such Act (42 U.S.C. 8626(b)(2)(B)) shall not apply to funds made available under this heading in this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

PAYMENTS TO STATES FOR THE CHILD CARE AND DEVELOPMENT BLOCK GRANT

For an additional amount for ''Payments to States for the Child Care and Development Block Grant'', $7,000,000,000, to prevent, prepare for, and respond to coronavirus, including for Federal administrative expenses, which shall be used to supplement, not supplant State, Territory, and Tribal general revenue funds for child care assistance for low-income families within the United States (including territories) without regard to requirements in sections 658E(c)(3)(D)–(E) or section 658G of the Child Care and Development Block Grant Act: Provided, That funds provided under this heading in this Act may be used for costs of providing relief from copayments and tuition payments for families and for paying that portion of the child care provider's cost ordinarily paid through family copayments, to provide continued payments and assistance to child care providers in the case of decreased enrollment or closures related to coronavirus, and to ensure child care providers are able to remain open or reopen as appropriate and applicable: Provided further, That States, Territories, and Tribes are encouraged to place conditions on payments to child care providers that ensure that child care providers use a portion of funds received to continue to pay the salaries and wages of staff: Provided further, That lead agencies shall, for the duration of the COVID–19 public health emergency, implement enrollment and eligibility policies that support the fixed costs of providing child care services by delinking provider reimbursement rates from an eligible child's absence and a provider's closure due to the COVID–19 public health emergency: Provided further, That the Secretary shall remind States that CCDBG State plans do not need to be amended prior to utilizing existing authorities in the Child Care and Development Block Grant Act for the purposes provided herein: Provided further, That States, Territories, and Tribes are authorized to use funds appropriated under this heading in this Act to provide child care assistance to health care sector employees, emergency responders, sanitation workers, farmworkers, and other workers deemed essential during the response to coronavirus by public officials, without regard to the income eligibility requirements of section 658P(4) of such Act: Provided further, That funds appropriated under this heading in this Act shall be available to eligible child care providers under section 658P(6) of the CCDBG Act, even if such providers were not receiving CCDBG assistance prior to the public health emergency as a result of the coronavirus, for the purposes of cleaning and sanitation, and other activities necessary to maintain or resume the operation of programs: Provided further, That no later than 60 days after the date of enactment of this Act, each State, Territory, and Tribe that receives funding under this heading in this Act shall submit to the Secretary a report, in such manner as the Secretary may require, describing how the funds appropriated under this heading in this Act will be spent and that no later than 90 days after the date of enactment of this Act, the Secretary shall submit to the Committees on Appropriations of the House of Representatives and the Senate, the Committee on Education and Labor of the House of Representatives, and the Committee on Health, Education, Labor, and Pensions of the Senate a report summarizing such reports from the States, Territories, and Tribes: Provided further, That, no later than October 31, 2021, each State, Territory, and Tribe that receives funding under this heading in this Act shall submit to the Secretary a report, in such manner as the Secretary may require, describing how the funds appropriated under this heading in this Act were spent and that no later than 60 days after receiving such reports from the States, Territories, and Tribes, the Secretary shall submit to the Committees on Appropriations of the House of Representatives and the Senate, the Committee on Education and Labor of the House of Representatives, and the Committee on Health, Education, Labor, and Pensions of the Senate a report summarizing such reports from the States, Territories, and Tribes: Provided further, That payments made under this heading in this Act may be obligated in this fiscal year or the succeeding two fiscal years: Provided further, That funds appropriated under this heading in this Act may be made available to restore amounts, either directly or through reimbursement, for obligations incurred to prevent, prepare for, and respond to coronavirus, prior to the date of enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

For an additional amount for ''Payments to States for the Child Care and Development Block Grant'', $50,000,000,000, for necessary expenses to carry out the Child Care Stabilization Fund program, as authorized by section 803 of this Act: Provided, That such funds shall be available without regard to the requirements in subparagraphs (C) through (E) of section 658E(c)(3) or section 658G of the Child Care and Development Block Grant Act: Provided further, That funds made available under this heading in this Act may be made available to restore amounts, either directly or through reimbursement, for obligations incurred prior to the date of enactment of this Act for the purposes provided herein: Provided further, That such amount is designated by the Congress as being

for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

CHILD CARE STABILIZATION FUND

SEC. 803. (a) DEFINITIONS.—In this section:

(1) CCDBG TERMS.—The terms ''eligible child care provider'', ''Indian tribe'', ''lead agency'', ''tribal organization'', ''Secretary'', and ''State'' have the meanings given the terms in section 658P of the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858n) except as otherwise provided in this section.

(2) COVID–19 PUBLIC HEALTH EMERGENCY.—The term ''COVID–19 public health emergency'' means the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d) on January 31, 2020, with respect to COVID–19, including any renewal of the declaration.

(b) GRANTS.—From the amounts appropriated to carry out this section and under the authority of section 658O of the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858m) and this section, the Secretary shall award child care stabilization grants to the lead agency of each State (as defined in that section 658O), territory described in subsection (a)(1) of such section, Indian tribe, and tribal organization from allotments and payments made under subsection (c)(2), not later than 30 days after the date of enactment of this Act.

(c) SECRETARIAL RESERVATION AND ALLOTMENTS.—

(1) RESERVATION.—The Secretary shall reserve not more than 1 percent of the funds appropriated to carry out this section for the Federal administration of grants described in subsection (b). Amounts reserved by the Secretary for administrative expenses shall remain available until fiscal year 2024.

(2) ALLOTMENTS.—The Secretary shall use the remainder of the funds appropriated to carry out this section to award allotments to States, as defined in section 658O of the Child Care Development Block Grant Act of 1990 (42 U.S.C. 9858m), and payments to territories, Indian tribes, and tribal organizations in accordance with paragraphs (1) and (2) of subsection (a), and subsection (b), of section 658O of the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858m).

(d) STATE RESERVATIONS AND SUBGRANTS.—

(1) RESERVATION.—A lead agency for a State that receives a child care stabilization grant pursuant to subsection (b) shall reserve not more than 10 percent of such grant funds—

(A) to administer subgrants made to qualified child care providers under paragraph (2), including to carry out data systems building and other activities that enable the disbursement of payments of such subgrants;

(B) to provide technical assistance and support in applying for and accessing the subgrant opportunity under paragraph (2), to eligible child care providers (including to family child care providers, group home child care providers, and other non-center-based child care providers, providers in rural areas, and providers with limited administrative capacity), either directly or through resource and referral agencies or staffed family child care networks;

(C) to publicize the availability of subgrants under this section and conduct widespread outreach to eligible child care providers (including family child care providers, group home child care providers, and other non-center-based child care providers, providers in rural areas, and providers with limited administrative capacity), either directly or through resource and referral agencies or staffed family child care networks, to ensure eligible child care providers are aware of the subgrants available under this section;

(D) to carry out the reporting requirements described in subsection (f); and

(E) to carry out activities to improve the supply and quality of child care during and after the COVID–19 public health emergency, such as conducting community needs assessments, carrying out child care cost modeling, making improvements to child care facilities, increasing access to licensure or participation in the State's tiered quality rating system, and carrying out other activities described in section 658G(b) of the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858e(b)), to the extent that the lead agency can carry out activities described in this subparagraph without preventing the lead agency from fully conducting the activities described in subparagraphs (A) through (D).

(2) SUBGRANTS TO QUALIFIED CHILD CARE PROVIDERS.—

(A) IN GENERAL.—The lead agency shall use the remainder of the grant funds awarded pursuant to subsection (b) to make subgrants to qualified child care providers described in subparagraph (B), to support the stability of the child care sector during and after the COVID–19 public health emergency and to ensure the maintenance of a delivery system of child care services throughout the State that provides for child care in a variety of settings, including the settings of family child care providers, and for a variety of ages, including care for infants and toddlers. The lead agency shall provide the subgrant funds in advance of provider expenditures for costs described in subsection (e), except as provided in subsection (e)(2).

(B) QUALIFIED CHILD CARE PROVIDER.—To be qualified to receive a subgrant under this paragraph, a provider shall be an eligible child care provider that—

(i) was providing child care services on or before March 1, 2020; and

(ii) on the date of submission of an application for the subgrant, was either—

(I) open and available to provide child care services; or

(II) closed due to the COVID–19 public health emergency.

(C) SUBGRANT AMOUNT.—The lead agency shall make subgrants, from amounts awarded pursuant to subsection (b), to qualified child care providers, and the amount of such a subgrant to such a provider shall—

(i) be based on the provider's stated average operating expenses during the period (of not longer than 6 months) before March 1, 2020, or before the provider's last day of operation for a provider that operates seasonally, and at minimum cover such operating expenses for the intended length of the subgrant;

(ii) account for increased costs of providing or preparing to provide child care as a result of the COVID–19 public health emergency, such as provider and employee compensation and existing benefits (existing as of March 1, 2020) and the implementation of new practices related to sanitization, group size limits, and social distancing;

(iii) be adjusted for payments or reimbursements made to an eligible child care provider to carry out the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9857 et seq.) or the Head Start Act (42 U.S.C. 9831 et seq.) if the period of such payments or reimbursements overlaps with the period of the subgrant award; and

(iv) be adjusted for payments or reimbursements made to an eligible child care provider through the Paycheck Protection Program set forth in section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)), as added by section 1102 of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) if the period of such payments or reimbursements overlaps with the period of the subgrant award.

(D) APPLICATION.—

(i) ELIGIBILITY.—To be eligible to receive a subgrant under this paragraph, a child care provider shall submit an application to a lead agency at such time and in such manner as the lead agency may require. Such application shall include—

(I) a good-faith certification that the ongoing operations of the child care provider have been impacted as a result of the COVID–19 public health emergency;

(II) for a provider described in subparagraph (B)(ii)(I), an assurance that, for the duration of the subgrant—

(aa) the provider will give priority for available slots (including slots that are only temporarily available) to—

(AA) children of essential workers (such as health care sector employees, emergency responders, sanitation workers, farmworkers, child care employees, and other workers determined to be essential during the response to coronavirus by public officials), children of workers whose places of employment require their attendance, children experiencing homelessness, children with disabilities, children at risk of child abuse or neglect, and children in foster care, in States, tribal communities, or localities where stay-at-home or related orders are in effect; or

(BB) children of workers whose places of employment require their attendance, children experiencing homelessness, children with disabilities, children at risk of child abuse or neglect, children in foster care, and children whose parents are in school or a training program, in States, tribal communities, or localities where stay-at-home or related orders are not in effect;

(bb) the provider will implement policies in line with guidance from the Centers for Disease Control and Prevention and the corresponding State, tribal, and local authorities, and in accordance with State, tribal, and local orders, for child care providers that remain open, including guidance on sanitization practices, group size limits, and social distancing;

(cc) for each employee, the provider will pay the full compensation described in subsection (e)(1)(C), including any benefits, that was provided to the employee as of March 1, 2020 (referred to in this clause as ''full compensation''), and will not take any action that reduces the weekly amount of the employee's compensation below the weekly amount of full compensation, or that reduces the employee's rate of compensation below the rate of full compensation; and

(dd) the provider will provide relief from copayments and tuition payments for the families enrolled in the provider's program and prioritize such relief for families struggling to make either type of payments;

(III) for a provider described in subparagraph (B)(ii)(II), an assurance that—

(aa) for the duration of the provider's closure due to the COVID–19 public health emergency, for each employee, the provider will pay full compensation, and will not take any action that reduces the weekly amount of the employee's compensation below the weekly amount of full compensation, or that reduces the employee's rate of compensation below the rate of full compensation;

(bb) children enrolled as of March 1, 2020, will maintain their slots, unless their families choose to disenroll the children;

(cc) for the duration of the provider's closure due to the COVID–19 public health emergency, the provider will provide relief from copayments and tuition payments for the families enrolled in the provider's program and prioritize such relief for families struggling to make either type of payments; and

(dd) the provider will resume operations when the provider is able to safely implement policies in line with guidance from the Centers for Disease Control and Prevention and the corresponding State, tribal, and local authorities, and in accordance with State, tribal, and local orders;

(IV) information about the child care provider's—

(aa) program characteristics sufficient to allow the lead agency to establish the child care provider's priority status, as described in subparagraph (F);

(bb) program operational status on the date of submission of the application;

(cc) type of program, including whether the program is a center-based child care, family child care, group home child care, or other non-center-based child care type program;

(dd) total enrollment on the date of submission of the application and total capacity as allowed by the State and tribal authorities; and

(ee) receipt of assistance, and amount of assistance, through a payment or reimbursement described in subparagraph (C)(iv), and the time period for which the assistance was made;

(V) information necessary to determine the amount of the subgrant, such as information about the provider's stated average operating expenses over the appropriate period, described in subparagraph (C)(i); and

(VI) such other limited information as the lead agency shall determine to be necessary to make subgrants to qualified child care providers.

(ii) FREQUENCY.—The lead agency shall accept and process applications submitted under this subparagraph on a rolling basis.

(iii) UPDATES.—The lead agency shall—

(I) at least once a month, verify by obtaining a self-attestation from each qualified child care provider that received such a subgrant from the agency, whether the provider is open and available to provide child care services or is closed due to the COVID–19 public health emergency;

(II) allow the qualified child care provider to update the information provided in a prior application; and

(III) adjust the qualified child care provider's subgrant award as necessary, based on changes to the application information, including changes to the provider's operational status.

(iv) EXISTING APPLICATIONS.—If a lead agency has established and implemented a grant program for child care providers that is in effect on the date of enactment of this Act, and an eligible child care provider has already submitted an application for such a grant to the lead agency containing the information specified in clause (i), the lead agency shall treat that application as an application submitted under this subparagraph. If an eligible child care provider has already submitted such an application containing part of the information specified in clause (i), the provider may submit to the lead agency an abbreviated application that contains the remaining information, and the lead agency shall treat the 2 applications as an application submitted under this subparagraph.

(E) MATERIALS.—

(i) IN GENERAL.—The lead agency shall provide the materials and other resources related to such subgrants, including a notification of subgrant opportunities and application materials, to qualified child care providers in the most commonly spoken languages in the State.

(ii) APPLICATION.—The application shall be accessible on the website of the lead agency within 30 days after the lead agency receives grant funds awarded pursuant to subsection (b) and shall be accessible to all eligible child care providers, including family child care providers, group home child care providers, and other non-center-based child care providers, providers in rural areas, and providers with limited administrative capacity.

(F) PRIORITY.—In making subgrants under this section, the lead agency shall give priority to qualified child care providers that, prior to or on March 1, 2020—

(i) provided child care during nontraditional hours;

(ii) served dual language learners, children with disabilities, children experiencing homelessness, children in foster care, children from low-income families, or infants and toddlers;

(iii) served a high proportion of children whose families received subsidies under the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9857 et seq.) for the child care; or

(iv) operated in communities, including rural communities, with a low supply of child care.

(G) PROVIDERS RECEIVING OTHER ASSISTANCE.—The lead agency, in determining whether a provider is a qualified child care provider, shall not take into consideration receipt of a payment or reimbursement described in subparagraph (C)(iii) or subparagraph (C)(iv).

(H) AWARDS.—The lead agency shall equitably make subgrants under this paragraph to center-based child care providers, family child care providers, group home child care providers, and other non-center-based child care providers, such that qualified child care providers are able to access the subgrant opportunity under this paragraph regardless of the providers' setting, size, or administrative capacity.

(I) OBLIGATION.—The lead agency shall obligate at least 50 percent of funds available to carry out this section for subgrants described in this paragraph, within 6 months of the date of the enactment of this Act.

(e) USES OF FUNDS.—

(1) IN GENERAL.—A qualified child care provider that receives funds through such a subgrant may use the funds for the costs of—

(A) payroll;

(B) employee benefits, including group health plan benefits during periods of paid sick, medical, or family leave, and insurance premiums;

(C) employee salaries or similar compensation, including any income or other compensation to a sole proprietor or independent contractor that is a wage, commission, income, net earnings from self-employment, or similar compensation;

(D) employee recruitment and retention;

(E) payment on any mortgage obligation;

(F) rent (including rent under a lease agreement);

(G) utilities and facility maintenance;

(H) insurance;

(I) providing premium pay for child care providers and other employees who provide services during the COVID–19 public health emergency;

(J) sanitization and other costs associated with cleaning;

(K) personal protective equipment and other equipment necessary to carry out the functions of the child care provider;

(L) training and professional development related to health and safety practices, including the proper implementation of policies in line with guidance from the Centers for Disease Control and Prevention and the corresponding State, tribal, and local authorities, and in accordance with State, tribal, and local orders;

(M) purchasing or updating equipment and supplies to serve children during nontraditional hours

(N) modifications to child care services as a result of the COVID–19 public health emergency, such as limiting group sizes, adjusting staff-to-child ratios, and implementing other heightened health and safety measures;

(O) mental health supports for children and employees; and

(P) other goods and services necessary to maintain or resume operation of the child care program, or to maintain the viability of the child care provider as a going concern during and after the COVID–19 public health emergency.

(2) REIMBURSEMENT.—The qualified child care provider may use the subgrant funds to reimburse the provider for sums obligated or expended before the date of enactment of this Act for the cost of a good or service described in paragraph (1) to respond to the COVID–19 public health emergency.

(f) REPORTING.—

(1) INITIAL REPORT.—A lead agency receiving a grant under this section shall, within 60 days after making the agency's first subgrant under subsection (d)(2) to a qualified child care provider, submit a report to the Secretary that includes—

(A) data on qualified child care providers that applied for subgrants and qualified child care providers that received such subgrants, including—

(i) the number of such applicants and the number of such recipients;

(ii) the number and proportion of such applicants and recipients that received priority and the characteristic or characteristics of such applicants and recipients associated with the priority;

(iii) the number and proportion of such applicants and recipients that are—

(I) center-based child care providers;

(II) family child care providers;

(III) group home child care providers; or

(IV) other non-center-based child care providers; and

(iv) within each of the groups listed in clause (iii), the number of such applicants and recipients that are, on the date of submission of the application—

(I) open and available to provide child care services; or

(II) closed due to the COVID–19 public health emergency;

(B) the total capacity of child care providers that are licensed, regulated, or registered in the State on the date of the submission of the report;

(C) a description of—

(i) the efforts of the lead agency to publicize the availability of subgrants under this section and conduct widespread outreach to eligible child care providers about such subgrants, including efforts to make materials available in languages other than English;

(ii) the lead agency's methodology for determining amounts of subgrants under subsection (d)(2);

(iii) the lead agency's timeline for disbursing the subgrant funds; and

(iv) the lead agency's plan for ensuring that qualified child care providers that receive funding through such a subgrant comply with assurances described in subsection (d)(2)(D) and use funds in compliance with subsection (e); and

(D) such other limited information as the Secretary may require.

(2) QUARTERLY REPORT.—The lead agency shall, following the submission of such initial report, submit to the Secretary a report that contains the information described in subparagraphs (A), (B), and (D) of paragraph (1) once a quarter until all funds allotted for activities authorized under this section are expended.

(3) FINAL REPORT.—Not later than 60 days after a lead agency receiving a grant under this section has obligated all of the grant funds (including funds received under subsection (h)), the lead agency shall submit a report to the Secretary, in such manner as the Secretary may require, that includes—

(A) the total number of eligible child care providers who were providing child care services on or before March 1, 2020, in the State and the number of such providers that submitted an application under subsection (d)(2)(D);

(B) the number of qualified child care providers in the State that received funds through the grant;

(C) the lead agency's methodology for determining amounts of subgrants under subsection (d)(2);

(D) the average and range of the subgrant amounts by provider type (center-based child care, family child care, group home child care, or other non-center-based child care provider);

(E) the percentages of the child care providers that received such a subgrant, that, on or before March 1, 2020—

(i) provided child care during nontraditional hours;

(ii) served dual language learners, children with disabilities, children experiencing homelessness, children in foster care, children from low-income families, or infants and toddlers;

(iii) served a high proportion of children whose families received subsidies under the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9857 et seq.) for the child care; and

(iv) operated in communities, including rural communities, with a low supply of child care;

(F) the number of children served by the child care providers that received such a subgrant, for the duration of the subgrant;

(G) the percentages, of the child care providers that received such a subgrant, that are—

(i) center-based child care providers;

(ii) family child care providers;

(iii) group home child care providers; or

(iv) other non-center-based child care providers;

(H) the percentages, of the child care providers listed in subparagraph (G) that are, on the date of submission of the application—

(i) open and available to provide child care services; or

(ii) closed due to the COVID–19 public health emergency;

(I) information about how child care providers used the funds received under such a subgrant;

(J) information about how the lead agency used funds reserved under subsection (d)(1); and

(K) information about how the subgrants helped to stabilize the child care sector.

(4) REPORTS TO CONGRESS.—

(A) FINDINGS FROM INITIAL REPORTS.—Not later than 60 days after receiving all reports required to be submitted under paragraph (1), the Secretary shall provide a report to the Committee on Education and Labor of the House of Representatives, to the Committee on Health, Education, Labor and Pensions of the Senate, and to the Committees on Appropriations of the House of Representatives and the Senate, summarizing the findings from the reports received under paragraph (1).

(B) FINDINGS FROM FINAL REPORTS.—Not later than 36 months after the date of enactment of this Act, the Secretary shall provide a report to the Committee on Education and Labor of the House of Representatives, to the Committee on Health, Education, Labor and Pensions of the Senate, and to the Committees on Appropriations of the House of Representatives and the Senate, summarizing the findings from the reports received under paragraph (3).

(g) SUPPLEMENT NOT SUPPLANT.—Amounts made available to carry out this section shall be used to supplement and not supplant other Federal, State, and local public funds expended to provide child care services for eligible individuals, including funds provided under the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9857 et seq.) and State child care programs.

(h) REALLOTMENT OF UNOBLIGATED FUNDS.—

(1) UNOBLIGATED FUNDS.— A State, Indian tribe, or tribal organization that anticipates being unable to obligate all grant funds received under this section by September 30, 2022 shall notify the Secretary, at least 60 days prior to such date, of the amount of funds it anticipates being unable to obligate by such date. A State, Indian tribe, or tribal organization shall return to the Secretary any grant funds received under this section that the State, Indian tribe, or tribal organization does not obligate by September 30, 2022.

(2) REALLOTMENT.—The Secretary shall award new allotments and payments, in accordance with subsection (c)(2), to covered States, Indian tribes, or tribal organizations from funds that are returned under paragraph (1) within 60 days of receiving such funds. Funds made available through the new allotments and payments shall remain available to each covered State, Indian tribe, or tribal organization until September 30, 2023.

(3) COVERED STATE, INDIAN TRIBE, OR TRIBAL ORGANIZATION.—For purposes of paragraph (2), a covered State, Indian tribe, or tribal organization is a State, Indian tribe, or tribal organization that received an allotment or payment under this section and was not required to return grant funds under paragraph (1).

(i) EXCEPTIONS.—The Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9857 et seq.), excluding requirements in subparagraphs (C) through (E) of section 658E(c)(3), section 658G, and section 658J(c) of such Act (42 U.S.C. 9858c(c)(3), 9858e, 9858h(c)), shall apply to child care services provided under this section to the extent the application of such Act does not conflict with the provisions of this section. Nothing in this Act shall be construed to require a State, Indian tribe, or tribal organization to submit an application, other than the application described in section 658E or 658O(c) of the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858c, 9858m(c)), to receive a grant under this Act.

(j) APPLICATION.—In carrying out the Child Care and Development Block Grant Act of 1990 with funds other than the funds made available under this heading in this Act, the Secretary shall calculate the amounts of appropriated funds described in subsections (a) and (b) of section 658O of such Act (42 U.S.C. 9858m) by excluding funds made available under this heading in this Act.

CHILDREN AND FAMILIES SERVICES PROGRAMS

For an additional amount for ''Children and Families Services Programs'', $3,700,000,000, to prevent, prepare for, and respond to coronavirus, which shall be used as follows:

(1) $1,700,000,000 for making payments under the Head Start Act, including for Federal administrative expenses, and allocated in an amount that bears the same ratio to such portion as the number of enrolled children served by the agency involved bears to the number of enrolled children by all Head Start agencies: Provided, That none of the funds made available in this paragraph shall be included in the calculation of the ''base grant'' in subsequent fiscal years, as such term is defined in sections 640(a)(7)(A), 641A(h)(1)(B), or 645(d)(3) of the Head Start Act: Provided further, That funds made available in this paragraph are not subject to the allocation requirements of section 640(a) of the Head Start Act;

(2) $100,000,000 for Family Violence Prevention and Services grants as authorized by section 303(a) and 303(b) of the Family Violence Prevention and Services Act with such funds available to grantees without regard to matching requirements under section 306(c)(4) of such Act, of which $2,000,000 shall be for the National Domestic Violence Hotline: Provided, That the Secretary of Health and Human Services may make such funds available for providing temporary housing and assistance to victims of family, domestic, and dating violence;

(3) $75,000,000 for child welfare services as authorized by subpart 1 of part B of title IV of the Social Security Act (other than sections 426, 427, and 429 of such subpart), with such funds available to grantees without regard to matching requirements under section 424(a) of that Act or any applicable reductions in Federal financial participation under section 424(f) of that Act;

(4) $225,000,000 for necessary expenses for community-based grants for the prevention of child abuse and neglect under section 209 of the Child Abuse Prevention and Treatment Act, which the Secretary shall make without regard to sections 203(b)(1) and 204(4) of such Act;

(5) $100,000,000 for necessary expenses for the Child Abuse Prevention and Treatment Act State Grant program as authorized by Section 112 of such Act; and

(6) $1,500,000,000 for necessary expenses for grants to carry out the Low-Income Household Drinking Water and Wastewater Assistance program, as described in section 303 of division U of this Act:

Provided, That funds made available under this heading in this Act may be used for the purposes provided herein to reimburse costs incurred between January 20, 2020, and the date of award: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ADMINISTRATION FOR COMMUNITY LIVING

AGING AND DISABILITY SERVICES PROGRAMS

For an additional amount for ''Aging and Disability Services Programs'', $1,000,000,000, to prevent, prepare for, and respond to the coronavirus: Provided, That of the amount made available under this heading in this Act, $925,000,000 shall be for activities authorized under the Older Americans Act of 1965 (''OAA''), including $200,000,000 for supportive services under part B of title III; $480,000,000 for nutrition services under subparts 1 and 2 of part C of title III; $20,000,000 for nutrition services under title VI; $150,000,000 for supportive services for family caregivers under part E of title III; $44,000,000 for evidence-based health promotion and disease prevention services under part D of title III; $6,000,000 for aging network support activities to develop targeted outreach strategies to reach particularly at-risk populations, including populations targeted under section 306(a)(4)(A)(i)(l) of such Act; $20,000,000 for elder rights protection activities, including the long-term ombudsman program under title VII; and $5,000,000 shall be for grants to States to support the network of statewide senior legal services, including existing senior legal hotlines, efforts to expand such hotlines to all interested States, and legal assistance to providers, in order to ensure seniors have access to legal assistance, with such fund allotted to States consistent with paragraphs (1) through (3) of section 304(a) of the OAA: Provided further, That State matching requirements under sections 304(d)(1)(D) and 373(g)(2) of the OAA shall not apply to funds made available under this heading: Provided further, That of the amount made available under this heading in this Act, $50,000,000 shall be for activities authorized in the Developmental Disabilities Assistance and Bill of Rights Act of 2000: Provided further, That of the amount made available under this heading in this Act, $25,000,000 shall be for activities authorized in the Assistive Technology Act of 2004: Provided further, That of the amount made available in the preceding proviso, $5,000,000 shall be for the purchase of equipment to allow interpreters to provide appropriate and essential services to the hearing-impaired community: Provided further, That for the purposes of the funding provided in the preceding proviso, during the emergency period described in section 1135(g)(1)(B) of the Social Security Act, for purposes of section 4(e)(2)(A) of the Assistive Technology Act of 2004, the term ''targeted individuals and entities'' (as that term is defined in section 3(16) of the Assistive Technology Act of 2004) shall be deemed to include American Sign Language certified interpreters who are providing interpretation services remotely for individuals with disabilities: Provided further, That during such emergency period, for the purposes of the previous two provisos, to facilitate the ability of individuals with disabilities to remain in their homes and practice social distancing, the Secretary shall waive the prohibitions on the use of grant funds for direct payment for an assistive technology device for an individual with a disability under sections 4(e)(2)(A) and 4(e)(5) of such Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

For an additional amount for ''Aging and Disability Services Programs'', $175,000,000, to prevent, prepare for, and respond to the coronavirus, which shall be used as follows:

(1) $5,000,000 for elder abuse, neglect, and exploitation forensic centers, as authorized by section 2031(f) of the Social Security Act (42 U.S.C. 1397l(f));

(2) $14,000,000 for grants for long-term care staffing and technology, as authorized by section 2041(d) of the Social Security Act (42 U.S.C. 1397m(d));

(3) $123,000,000 for adult protective services functions and grants, as authorized by sections

2042(a)(2), 2042(b)(5), and 2042(c)(6) of the Social Security Act (42 U.S.C. 1397m—1);

(4) $18,000,000 for long-term care ombudsman program grants and training, as authorized by sections 2043(a)(2) and 2043(b)(2) of the Social Security Act (42 U.S.C. 1397m—2);

(5) $14,000,000 for investigation systems and training, as authorized by sections 6703(b)(1)(C) and 6703(b)(2)(C) of the Patient Protection and Affordable Care Act (42 U.S.C. 1395i—3a(b)); and

(6) $1,000,000 for assessment reports, as authorized by section 207 of division J of this Act: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF THE SECRETARY

PUBLIC HEALTH AND SOCIAL SERVICES EMERGENCY FUND

For an additional amount for ''Public Health and Social Services Emergency Fund'', $21,025,000,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally, including the development of necessary countermeasures and vaccines, prioritizing platform-based technologies with U.S.-based manufacturing capabilities, the purchase of vaccines, therapeutics, diagnostics, necessary medical supplies, as well as medical surge capacity, addressing blood supply chain, workforce modernization, telehealth access and infrastructure, initial advanced manufacturing, novel dispensing, enhancements to the U.S. Commissioned Corps, and other preparedness and response activities: Provided, That funds appropriated under this paragraph in this Act may be used to develop and demonstrate innovations and enhancements to manufacturing platforms to support such capabilities: Provided further, That the Secretary of Health and Human Services shall purchase vaccines developed using funds made available under this paragraph in this Act to respond to an outbreak or pandemic related to coronavirus in quantities determined by the Secretary to be adequate to address the public health need: Provided further, That products purchased by the Federal government with funds made available under this paragraph in this Act, including vaccines, therapeutics, and diagnostics, shall be purchased in accordance with Federal Acquisition Regulation guidance on fair and reasonable pricing: Provided further, That the Secretary may take such measures authorized under current law to ensure that vaccines, therapeutics, and diagnostics developed from funds provided in this Act will be affordable in the commercial market: Provided further, That in carrying out the previous proviso, the Secretary shall not take actions that delay the development of such products: Provided further, That products purchased with funds appropriated under this paragraph in this Act may, at the discretion of the Secretary of Health and Human Services, be deposited in the Strategic National Stockpile under section 319F–2 of the Public Health Service Act: Provided further, That funds appropriated under this paragraph in this Act may be transferred to, and merged with, the fund authorized by section 319F–4, the Covered Countermeasure Process Fund, of the Public Health Service Act: Provided further, That of the amount made available under this paragraph in this Act, $20,000,000,000 shall be available to the Biomedical Advanced Research and Development Authority for necessary expenses of advanced research, development, manufacturing, production, and purchase of vaccines, therapeutics, and ancillary medical products to prevent the spread of SARS-CoV-2 and COVID-19, as described in section 702 of division K of this Act: Provided further, That of the amount made available under this paragraph in this Act, $500,000,000 shall be available to the Biomedical Advanced Research and Development Authority for the construction, renovation, or equipping of U.S.-based next generation manufacturing facilities, other than facilities owned by the United States Government: Provided further, That of the amount made available under this paragraph in this Act, $500,000,000 shall be available to the Biomedical Advanced Research and Development Authority to promote innovation in antibacterial research and development: Provided further, That funds made available under this paragraph in this Act may be used for grants for the rent, lease, purchase, acquisition, construction, alteration, or renovation of non-Federally owned facilities to improve preparedness and response capability at the State and local level: Provided further, That funds appropriated under this paragraph in this Act may be used for the construction, alteration, renovation or equipping of non-Federally owned facilities for the production of vaccines, therapeutics, diagnostics, and medicines and other items purchased under section 319F–2(a) of the Public Health Service Act where the Secretary determines that such a contract is necessary to assure sufficient domestic production of such supplies: Provided further, That all construction, alteration, or renovation work, carried out, in whole or in part, with fund appropriated under this heading in this Act, the CARES Act (P.L. 116–136), or the Paycheck Protection Program and Health Care Enhancement Act (P.L. 116–139), shall be subject to the requirements of 42 U.S.C. 300s-1(b)(1)(I): Provided further, That not later than seven days after the date of enactment of this Act, and weekly thereafter until the public health emergency related to coronavirus is no longer in effect, the Secretary shall report to the Committees on Appropriations of the House of Representatives and the Senate on the current inventory of ventilators and personal protective equipment in the Strategic National Stockpile, including the numbers of face shields, gloves, goggles and glasses, gowns, head covers, masks, and respirators, as well as deployment of ventilators and personal protective equipment during the previous week, reported by state and other jurisdiction: Provided further, That not later than the first Monday in February of fiscal year 2021 and each fiscal year thereafter, the Secretary shall include in the annual budget submission for the Department, and submit to the Congress, the Secretary's request with respect to expenditures necessary to maintain the minimum level of relevant supplies in the Strategic National Stockpile, including in case of a significant pandemic, in consultation with the working group under section 319F(a) of the Public Health Service Act and the Public Health Emergency Medical Countermeasures Enterprise established under section 2811–1 of such Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

For an additional amount for ''Public Health and Social Services Emergency Fund'', $50,000,000,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, for necessary expenses to make payments under the Health Care Provider Relief Fund as described in section 611 of division K of this Act: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

For an additional amount for ''Public Health and Social Services Emergency Fund'', $75,000,000,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, for necessary expenses to carry out the COVID–19 National Testing and Contact Tracing Initiative, as described in subtitle D of title V of division K of this Act: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DEPARTMENT OF EDUCATION

STATE FISCAL STABILIZATION FUND

For an additional amount for ''State Fiscal Stabilization Fund'', $208,058,000,000, to prevent, prepare for, and respond to coronavirus: Provided, That the Secretary of Education (referred to under this heading as ''Secretary'') shall make grants to the Governor of each State for support of elementary, secondary, and postsecondary education and, as applicable, early childhood education programs and services: Provided further, That of the amount made available, the Secretary shall first allocate up to one-half of 1 percent to the outlying areas and one-half of 1 percent to the Bureau of Indian Education (''BIE'') for BIE-funded schools and Tribal Colleges or Universities for activities consistent with this heading under such terms and conditions as the Secretary may determine and in consultation with the Secretary of the Interior: Provided further, That the Secretary may reserve up to $30,000,000 for administration and oversight of the activities under this heading: Provided further, That the Secretary shall allocate 61 percent of the remaining funds made available to carry out this heading to the States on the basis of their relative population of individuals aged 5 through 24 and allocate 39 percent on the basis of their relative number of children counted under section 1124(c) of the Elementary and Secondary Education Act of 1965 (referred to under this heading as ''ESEA'') as State grants: Provided further, That State grants shall support statewide elementary, secondary, and postsecondary activities; subgrants to local educational agencies; and, subgrants to public institutions of higher education: Provided further, That States shall allocate 85 percent of the funds received under the fourth proviso as subgrants to local educational agencies in proportion to the amount of funds such local educational agencies received under part A of title I of the ESEA in the most recent fiscal year: Provided further, That subgrants provided under the preceding proviso shall be administered by State educational agencies: Provided further, That States shall allocate 13 percent of the funds received under the fourth proviso as subgrants to public institutions of higher education, of which 75 percent shall be apportioned according to the relative share in the State of students who received Pell Grants who are not exclusively enrolled in distance education courses prior to the coronavirus emergency at the institution in the previous award year and 25 percent shall be apportioned according to the relative share in the State of the total enrollment of students at the institution who are not exclusively enrolled in distance education courses prior to the coronavirus emergency at the institution in the previous award year: Provided further, That the Governor may use any funds received under the fourth proviso that are not specifically reserved under this heading for additional support to elementary, secondary, and postsecondary education, including supports for under-resourced institutions, institutions with high burden due to the coronavirus, and institutions who did not possess distance education capabilities prior to the coronavirus emergency: Provided further, That the Governor shall return to the Secretary any funds received that the Governor does not award to local educational agencies and public institutions of higher education or otherwise commit within two years of receiving such funds, and the Secretary shall reallocate such funds to the remaining States in accordance with the fourth proviso: Provided further, That Governors shall use State grants and subgrants to maintain or restore State and local fiscal support for elementary, secondary and postsecondary education: Provided further, That funds for local educational agencies may be used for any activity authorized by the ESEA, including the Native

Hawaiian Education Act and the Alaska Native Educational Equity, Support, and Assistance Act, the Individuals with Disabilities Education Act (''IDEA''), subtitle B of title VII of the McKinney-Vento Homeless Assistance Act, the Adult Education and Family Literacy Act or the Carl D. Perkins Career and Technical Education Act of 2006 (''the Perkins Act''): Provided further, That a State or local educational agency receiving funds under this heading may use the funds for activities coordinated with State, local, tribal, and territorial public health departments to detect, prevent, or mitigate the spread of infectious disease or otherwise respond to coronavirus; support online learning by purchasing educational technology and internet access for students, which may include assistive technology or adaptive equipment, that aids in regular and substantive educational interactions between students and their classroom instructor; provide ongoing professional development to staff in how to effectively provide quality online academic instruction; provide assistance for children and families to promote equitable participation in quality online learning; plan and implement activities related to supplemental afterschool programs and summer learning, including providing classroom instruction or quality online learning during the summer months; plan for and coordinate during long-term closures, provide technology for quality online learning to all students, and how to support the needs of low-income students, racial and ethnic minorities, students with disabilities, English learners (including through such activities as are authorized under Title III of the ESEA, such as ensuring the access of English learners to online learning, supporting professional development on digital instruction for English learners, engagement with the parents of English learners, expanded summer and after-school programs, and mental health supports), students experiencing homelessness, and children in foster care, including how to address learning gaps that are created or exacerbated due to long-term closures; support the continuity of student engagement through social and emotional learning; and other activities that are necessary to maintain the operation of and continuity of services in local educational agencies, including maintaining employment of existing personnel, and reimbursement for eligible costs incurred during the national emergency: Provided further, That a public institution of higher education that receives funds under this heading shall use funds for education and general expenditures (including defraying expenses due to lost revenue, reimbursement for expenses already incurred, and payroll) and grants to students for expenses directly related to coronavirus and the disruption of campus operations (which may include emergency financial aid to students for tuition, food, housing, technology, health care, and child care costs that shall not be required to be repaid by such students) or for the acquisition of technology and services directly related to the need for distance education and the training of faculty and staff to use such technology and services (which shall not include payment to contractors for the provision of pre-enrollment recruitment activities): Provided further, That an institution of higher education may not use funds received under this heading to increase its endowment or provide funding for capital outlays associated with facilities related to athletics, sectarian instruction, or religious worship: Provided further, That funds may be used to support hourly workers, such as education support professionals, classified school employees, and adjunct and contingent faculty: Provided further, That a Governor of a State desiring to receive an allocation under this heading shall submit an application at such time, in such manner, and containing such information as the Secretary may reasonably require: Provided further, That the Secretary shall issue a notice inviting applications not later than 15 days after the date of enactment of this Act: Provided further, That any State receiving funding under this heading shall maintain its percent of total spending on elementary, secondary, and postsecondary education in fiscal year 2019 for fiscal years 2020, 2021, and 2022: Provided further, That a State's application shall include assurances that the State will maintain support for elementary and secondary education in fiscal year 2020, fiscal year 2021, and fiscal year 2022 at least at the level of such support that is the average of such State's support for elementary and secondary education in the 3 fiscal years preceding the fiscal year for which State support for elementary and secondary education is provided: Provided further, That any State receiving funding under this heading shall maintain or exceed its per pupil spending on elementary and secondary education in fiscal year 2019 or the proportion of such State's spending on elementary and secondary education in fiscal year 2019 for fiscal years 2020, 2021, and 2022: Provided further, That a State educational agency shall only be eligible to receive funds under this Act if the State in which such agency is located, in either of fiscal years 2021 and 2022, does not reduce State funding for a high-need local educational agency (defined as a local educational agency that has a higher percentage of economically disadvantaged students than the median local educational agency in the state) such that the per-pupil reduction in State funds in each such high-need local educational agency is more than the overall per-pupil reduction in State funds, as calculated by the total reduction in State funds provided to all local educational agencies in the State divided by the total student enrollment across all local educational agencies in the State: Provided further, That a State's application shall include assurances that the State will maintain State support for higher education (not including support for capital projects or for research and development or tuition and fees paid by students) in fiscal year 2020, fiscal year 2021, and fiscal year 2022 at least at the level of such support that is the average of such State's support for higher education (which shall include State and local government funding to institutions of higher education and state financial aid) in the 3 fiscal years preceding the fiscal year for which State support for higher education is provided, and that any such State's support for higher education funding, as calculated as spending for public higher education per full-time equivalent student, shall be at least the same in fiscal year 2022 as it was in fiscal year 2019: Provided further, That in such application, the Governor shall provide baseline data that demonstrates the State's current status in each of the areas described in such assurances in the preceding provisos: Provided further, That a State's application shall include assurances that the State will not construe any provisions under this heading as displacing any otherwise applicable provision of any collective-bargaining agreement between an eligible entity and a labor organization as defined by section 2(5) of the National Labor Relations Act (29 U.S.C. 152(5)) or analogous State law: Provided further, That a State's application shall include assurances that the State shall maintain the wages, benefits, and other terms and conditions of employment set forth in any collective-bargaining agreement between the eligible entity and a labor organization, as defined in the preceding proviso: Provided further, That a State's application shall include assurances that all students with disabilities (as defined by section 602 of IDEA) are afforded their full rights under IDEA, including all rights and services outlined in individualized education programs (''IEPs'') (as defined in section 614(d) of IDEA), individualized family services plans (as defined by section 636 of IDEA), and in section 504 of the Rehabilitation Act of 1973: Provided further, That a State receiving funds under this heading shall submit a report to the Secretary, at such time and in such manner as the Secretary may require, that describes the use of funds provided under this heading: Provided further, That no recipient of funds under this heading shall use funds to provide financial assistance to students to attend private elementary or secondary schools, unless such funds are used to provide special education and related services to children with disabilities whose IEPs require such placement, and where the school district maintains responsibility for providing such children a free appropriate public education, as authorized by IDEA: Provided further, That a local educational agency, State, institution of higher education, or other entity that receives funds under ''State Fiscal Stabilization Fund'', shall to the greatest extent practicable, continue to pay its employees and contractors during the period of any disruptions or closures related to coronavirus: Provided further, That the terms ''elementary education'' and ''secondary education'' have the meaning given such terms under State law: Provided further, That the term ''institution of higher education'' has the meaning given such term in section 101 of the Higher Education Act of 1965: Provided further, That the term ''fiscal year'' shall have the meaning given such term under State law: Provided further, That the term ''State'' means each of the 50 States, the District of Columbia, and the Commonwealth of Puerto Rico: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ELEMENTARY AND SECONDARY SCHOOL EMERGENCY FACILITIES AID

For an additional amount for ''Elementary and Secondary School Emergency Facilities Aid'', $5,000,000,000 to prevent, prepare for, and respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ADMINISTRATIVE PROVISION—ELEMENTARY AND SECONDARY SCHOOL EMERGENCY FACILITIES AID

SEC. 804. (a)(1) GRANTS.—From the amount made available under this heading in this Act, the Secretary shall make elementary and secondary school emergency facilities grants to each State educational agency with an approved application. The Secretary shall issue a notice inviting applications not later than 30 days of enactment of this Act and approve or deny applications not later than 30 days after receipt.

(2) For purposes of this section, a State designated agency shall mean the State educational agency, unless the Governor of a State designates a State agency other than the educational agency as responsible for school facilities improvement under this section and informs the Secretary of such designation and the term ''State'' means each of the 50 States, the District of Columbia, and the Commonwealth of Puerto Rico .

(b)(1) ALLOCATIONS TO STATES.—The amount of each grant under subsection (a) shall be allocated by the Secretary to each State in the same proportion as each State received under part A of title I of the ESEA of 1965 in the most recent fiscal year.

(2) STATE RESERVATION.—A State may reserve not more than ½ of 1 percent for administration costs.

(3) RESERVATION FOR OUTLYING AREAS AND BUREAU OF INDIAN EDUCATION-FUNDED SCHOOLS.—The Secretary shall reserve from the amount made available under this heading in this Act—

(A) one-half of 1 percent, to provide assistance to the outlying areas; and

(B) one-half of 1 percent, for payments to the Secretary of the Interior to provide assistance to Bureau of Indian Education-funded schools.

(c) SUBGRANTS TO LOCAL EDUCATIONAL AGENCIES.—Within 60 days of the State's approved

application under paragraph (a), each State shall allocate the remaining grant funds awarded to the State under this section as subgrants to local educational agencies in the State, with the grant funds allocated to the local educational agencies with the highest percentages of students eligible for a free or reduced price lunch under the Richard B. Russell National School Lunch Act (42. U.S.C. 1751 et. seq.) with the public school facilities with the highest needs related to the coronavirus as determined by the State.

(1) PUBLIC NOTICE.—The State educational agency shall make subgrant information available to the public on the State educational agency website, including the local educational agencies that received subgrant awards and the amounts provided to each local educational agency.

(2) SUBGRANT APPLICATIONS.—To be considered for a subgrant under this section, a qualified local educational agency shall submit an application to the State educational agency that shall include at minimum—

(A) a description of the coronavirus-related school facility needs within the local educational agency; and

(B) an estimate of how much addressing the coronavirus-related facility needs will cost.

(d) USES OF FUNDS.—A local educational agency that receives funds under this section may use the funds for any of the following:

(1) School facility repairs and improvements to enable operation of schools to reduce risk of virus transmission and exposure to environmental health hazards, and to support student health needs.

(2) Inspection, testing, maintenance, repair, replacement, and upgrade projects to improve the indoor air quality in school facilities, including mechanical and non-mechanical heating, ventilation, and air conditioning systems, filtering, purification and other air cleaning, fans, control systems, and window and door repair and replacement.

(3) School facility repairs and improvements to support improved personal hygiene, such as repair, replacement, and installation of sinks for hand washing and touchless water dispensers for drinking, and health isolation areas.

(4) Inspection, testing, maintenance, repair, and replacement of school facility potable water systems to provide safe drinking water after prolonged shutoffs.

(5) Improvements to finishes, such as painting and other surface repair, needed to enable effective sanitizing.

(6) Improvements to school grounds needed to enable outdoor instruction and other physically distanced school activities.

(7) Training of school facility staff in association with the above uses of funds.

(8) Planning, assessment, management, design, renovation, repair and construction activities in association with the above uses of funds.

(9) Inspection, testing, maintenance, repair, replacement, and upgrade projects to electrical systems to allow or improve information technology to provide virtual education.

(e) PRIORITY.—A local educational agency that receives funds under this section shall prioritize funds for its school facilities that have the most significant facility improvement needs with respect to responding to covid-19, including those identified by the Centers for Disease Control and Prevention.

(f) REPORTING.—(1) The local educational agency shall include the following information in a report to the State educational agency within 60 days of receipt of grant funds—

(A) which schools benefitted from the funds in this section;

(B) how much funding each selected school received; and

(C) a description of how the grant funds were used.

(2) The State educational agency shall include the following information in a report to the Secretary within 6 months of receipt of grant funds—

(A) which local educational agencies received funding;

(B) how much funding was awarded to each receiving local educational agency; and

(C) a summary on the uses of funds for projects receiving funds under this section, including the amount of local or state funds, if any, applied to projects.

(3) The Secretary shall prepare and submit a report to the Committees on Appropriations of the House of Representatives and the Senate, the Committee on Education and Labor of the House of Representatives, and the Committee on Health, Education, Labor and Pensions of the Senate within 10 months of the date of enactment of this Act, that includes a summary of the types of projects that were funded with the grants.

HIGHER EDUCATION

For an additional amount for ''Higher Education'', $11,942,000,000 to prevent, prepare for, and respond to coronavirus, of which $11,000,000 shall be transferred to ''National Technical Institute for the Deaf'' to help defray expenses (which may include lost revenue, reimbursement for expenses already incurred, technology costs associated with a transition to distance education, sign language and captioning costs associated with a transition to distance education, faculty and staff trainings, and payroll) directly caused by coronavirus and to enable emergency financial aid to students for expenses directly related to coronavirus and the disruption of university operations (which may include food, housing, transportation, technology, health care, and child care), of which $20,000,000 shall be transferred to ''Howard University'' to help defray expenses (which may include lost revenue, reimbursement for expenses already incurred, technology costs associated with a transition to distance education, technology costs associated with a transition to distance education, faculty and staff trainings, and payroll) directly related to coronavirus and to enable grants to students for expenses directly related to coronavirus and the disruption of university operations (which may include food, housing, transportation, technology, health care, and child care), of which $11,000,000 shall be transferred to ''Gallaudet University'' to help defray expenses (which may include lost revenue, reimbursement for expenses already incurred, technology costs associated with a transition to distance education, sign language and captioning costs associated with a transition to distance education, faculty and staff trainings, and payroll) directly related to coronavirus and to enable grants to students for expenses directly related to coronavirus and the disruption of university operations (which may include food, housing, transportation, technology, health care, and child care), and of which the remaining amounts shall be used to carry out parts A and B of title III, parts A and B of title V, subpart 4 of part A of title VII, and part B of title VII of the Higher Education Act of 1965 (''HEA'') as follows:

(1) $3,500,000,000 for parts A and B of title III, parts A and B of title V, and subpart 4 of part A of title VII of the HEA to address needs directly related to coronavirus: Provided, That such amount shall be allocated by the Secretary proportionally to such programs covered under this paragraph and based on the relative share of funding appropriated to such programs in the Further Consolidated Appropriations Act, 2020 (Public Law 116–94) and distributed to institutions of higher education as follows:

(A) Except as otherwise provided in subparagraph (B), for eligible institutions under part B of title III and subpart 4 of part A of title VII of the Higher Education Act, the Secretary shall allot to each eligible institution an amount using the following formula:

(i) 70 percent according to a ratio equivalent to the number of Pell Grant recipients in attendance at such institution at the end of the school year preceding the beginning of that fiscal year and the total number of Pell Grant recipients at all such institutions;

(ii) 20 percent according to a ratio equivalent to the total number of students enrolled at such institution at the end of the school year preceding the beginning of that fiscal year and the number of students enrolled at all such institutions; and

(iii) 10 percent according to a ratio equivalent to the total endowment size at all eligible institutions at the end of the school year preceding the beginning of that fiscal year and the total endowment size at such institutions;

(B) For eligible institutions under section 326 of the Higher Education Act, the Secretary shall allot to each eligible institution an amount in proportion to the award received from funding for such institutions in the Further Consolidated Appropriations Act, 2020 (Public Law 116–94);

(C) For eligible institutions under section 316 of the Higher Education Act, the Secretary shall allot funding according to the formula in section 316(d)(3) of the Higher Education Act;

(D) Notwithstanding section 318(f) of the Higher Education Act, for eligible institutions under section 318 of the Higher Education Act, the Secretary shall allot funding according to the formula in section 318(e) of the Higher Education Act;

(E) Except as provided in subparagraphs (C) and (D), for eligible institutions under part A of title III of the Higher Education Act and parts A and B of title V, the Secretary shall issue an application for eligible institutions to demonstrate unmet need, and the Secretary shall allow eligible institutions to apply for funds under one of the programs for which they are eligible.

(2) $8,400,000,000 for part B of title VII of the HEA for institutions of higher education (as defined in section 101 or 102(c) of the HEA) to address needs directly related to coronavirus as follows:

(A) $7,000,000,000 shall be provided to private, nonprofit institutions of higher education, by apportioning—

(i) 75 percent according to the relative share of enrollment of Federal Pell Grant recipients who are not exclusively enrolled in distance education courses prior to the coronavirus emergency; and

(ii) 25 percent according to the relative share of the total enrollment of students who were not Federal Pell Grant recipients who are not exclusively enrolled in distance education courses prior to the coronavirus emergency.

(B) $1,400,000,000 shall be for institutions of higher education with unmet need related to the coronavirus, including institutions of higher education that offer their courses and programs exclusively through distance education:

Provided, That funds shall be used to make payments to such institutions to provide emergency grants to students who attended such institutions at any point during the coronavirus emergency and for any component of the student's cost of attendance (as defined under section 472 of the HEA), including tuition, food, housing, course materials, technology, health care, and child care): Provided further, That institutions of higher education may use such funds to defray expenses (including lost revenue, reimbursement for expenses already incurred, technology costs associated with a transition to distance education, faculty and staff trainings, and payroll) incurred by institutions of higher education: Provided further, That such payments shall not be used to increase endowments, to pay contractors for the provision of pre-enrollment recruitment activities, or provide funding for capital outlays associated with facilities related to athletics, sectarian instruction, or religious worship: Provided further, That any private, nonprofit institution of higher education that is not otherwise eligible for a grant of at

least $1,000,000 under paragraph (2)(A)(ii) of this heading and has a total enrollment of at least 500 students shall be eligible to receive, from amounts reserved under paragraph (2)(A)(i), an amount equal to whichever is the lesser of the total loss of revenue and increased costs associated with the coronavirus or $1,000,000: Provided further, That of the funds provided under paragraph 2(B), the Secretary shall make an application available for institutions of higher education to demonstrate unmet need, which shall include for this purpose a dramatic decline in revenue as a result of campus closure, exceptional costs or challenges implementing distance education platforms due to lack of a technological infrastructure, serving a large percentage of students who lack access to adequate technology to move to distance education, serving a region or community that has been especially impacted by increased unemployment and displaced workers, serving communities or regions where the number of coronavirus cases has imposed exceptional costs on the institution, and other criteria that the Secretary shall identify after consultation with institutions of higher education or their representatives: Provided further, That no institution may receive an award under the preceding proviso unless it has submitted an application that describes the impact of the coronavirus on the institution and the ways that the institution will use the funds to ameliorate such impact: Provided further, That the Secretary shall reallocate any funds received from an institution to remaining institutions in accordance with paragraph 2(A): Provided further, That the Secretary shall brief the Committees on Appropriations fifteen days in advance of making any application available for funds under paragraph (2)(B): Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

INSTITUTE OF EDUCATION SCIENCES

For an additional amount for ''Institute of Education Sciences'', $32,000,000 to prevent, prepare for, and respond to coronavirus for carrying out the National Assessment of Educational Progress Authorization Act (title III of Public Law 107–279): Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DEPARTMENTAL MANAGEMENT

OFFICE OF INSPECTOR GENERAL

For an additional amount for ''Office of Inspector General'', $7,000,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, including for salaries and expenses necessary for oversight, investigations and audits of programs, grants, and projects funded in this Act to respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS—DEPARTMENT OF EDUCATION

SEC. 805. The remaining unobligated balances of funds made available to ''Department of Education—Office of Inspector General'' in title VIII of division B of the CARES Act (Public Law 116–136) are hereby rescinded, and an amount of additional new budget authority equivalent to the amount rescinded is hereby appropriated, for an additional amount for fiscal year 2021, to remain available until expended, for the same purposes and under the same authorities as they were originally appropriated, and shall be in addition to any other funds available for such purposes: Provided, That the amounts appropriated by this section may also be used for investigations and are available until expended: Provided further, That amounts rescinded pursuant to this section that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 806. Section 18004(c) of the Coronavirus Aid, Relief, and Economic Security Act (P.L. 116–136) is amended by striking ''to cover any costs associated with significant changes to the delivery of instruction due to the coronavirus'' and inserting ''to defray expenses (including lost revenue, reimbursement for expenses already incurred, technology costs associated with a transition to distance education, faculty and staff trainings, payroll) incurred by institutions of higher education.'': Provided, That amounts repurposed pursuant to the amendment made by this section that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 807. With respect to the allocation and award of funds under this title, the Secretary of Education is prohibited from—

(a) establishing a priority or preference not specified in this title; and

(b) imposing limits on the use of such funds not specified in this title.

SEC. 808. (a) LOCAL ACTIVITIES AND IN-PERSON CARE.—Notwithstanding each provision in part B of title IV of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7171 et seq.) that requires activities under such part to be carried out during nonschool hours or periods when school is not in session, for school year 2020–2021, an eligible entity that is awarded a subgrant under section 4204 of such Act (20 U.S.C. 7174) for community learning centers may use such subgrant funds—

(1) to carry out activities described in section 4205 of such Act (20 U.S.C. 7175), regardless of whether such activities are conducted in-person or virtually, or during school hours or when school is in session; and

(2) to provide in-person care during—

(A) the regular school day for students eligible to receive services under part B of title IV of such Act (20 U.S.C. 7171 et seq.); and

(B) a period in which full-time in-person instruction is not available for all such students served by such eligible entity.

(b) REQUIREMENTS.—An eligible entity may carry out the activities described in subsection (a)(1) and the in-person care described in subsection (a)(2) if—

(1) such activities and in-person care supplement but do not supplant regular school day requirements;

(2) such eligible entity complies with section 4204(b)(2)(D) of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7174(b)(2)(D)) with respect to the activities carried out pursuant to this Act; and

(3) such eligible entity specifies in an application for a subgrant under section 4204(b) of such Act (20 U.S.C. 7174(b)) with respect to such school year (or in an addendum to such application) how the subgrant funds will be used to carry out such activities or to provide such in-person care, or both.

(c) EMERGENCY DESIGNATION.—The amounts provided by this section are designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 809. The Secretary of Education may allow funds appropriated for grants under part B of title I and title VI of the Rehabilitation Act of 1973 (29 U.S.C. 701 et seq.) for fiscal year 2020 to be available for obligation and expenditure during fiscal years 2020 and 2021: Provided, That the amounts provided by this section are designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RELATED AGENCIES

CORPORATION FOR NATIONAL AND COMMUNITY SERVICE

For an additional amount for the ''Corporation for National and Community Service'' (referred to under this heading as ''CNCS''), $336,000,000, to prevent, prepare for, and respond to coronavirus, including to carry out the Domestic Volunteer Service Act of 1973 (''1973 Act'') and the National and Community Service Act of 1990 (''1990 Act''): Provided, That $228,000,000 of the funds made available in this paragraph may be used to make new and additional awards to new and existing AmeriCorps grantees and may be used to provide adjustments to awards under subtitle C of title I of the 1990 Act for which the Chief Executive Officer of CNCS determines that a waiver of the Federal share limitation is warranted under section 2521.70 of title 45 of the Code of Federal Regulations: Provided further, That of the amount provided in this paragraph, $26,000,000 shall be for programs under title I, part A of the 1973 Act: Provided further, That of the amount provided in this paragraph, $35,000,000 shall be for programs under title II of the 1973 Act, and not less than $23,000,000 of these funds shall be available for the program under title II, part C of the 1973 Act: Provided further, That of the amounts provided under this paragraph: (1) up to 1 percent of the funds in this paragraph may be used to defray the costs of conducting grant application reviews, including the use of outside peer reviewers and electronic management of the grants cycle; (2) $9,000,000 shall be available to provide assistance to State commissions on national and community service, under section 126(a) of the 1990 Act; (3) $5,000,000 shall be available to carry out subtitle E of the 1990 Act; and (4) $12,000,000 shall be available for expenses authorized under section 501(a)(4)(F) of the 1990 Act, which shall be awarded by CNCS on a competitive basis: Provided further, That for the purposes of carrying out the 1990 Act, satisfying the requirements in section 122(c)(1)(D) of such Act may include a determination of need by the local community: Provided further, That up to $21,000,000 may be transferred for necessary expenses of administration as provided under section 501(a)(5) of the 1990 Act and under section 504(a) of the 1973 Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

PAYMENT TO THE NATIONAL SERVICE TRUST

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''National Service Trust'', $14,000,000, to remain available until expended: Provided, That CNCS may transfer additional funds from the amount provided under the heading ''Corporation for National and Community Service'' in this Act for grants made under subtitle C of title I of the 1990 Act to this appropriation upon determination that such transfer is necessary to support the activities of national service participants and after notice is transmitted to the Committees on Appropriations of the House of Representatives and the Senate: Provided further, That the amount appropriated for or transferred to the National Service Trust may be invested under section 145(b) of the 1990 Act without regard to the requirement to apportion funds under 31

U.S.C. 1513(b): Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

CORPORATION FOR PUBLIC BROADCASTING

For an additional amount for fiscal year 2021 for ''Corporation for Public Broadcasting,'' $175,000,000 to prevent, prepare for, and respond to coronavirus, including for fiscal stabilization grants to public telecommunications entities, as defined by 47 U.S.C. 397(12), with no deduction for administrative or other costs of the Corporation, to maintain programming and services and preserve small and rural stations threatened by declines in non-Federal revenues: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

INSTITUTE OF MUSEUM AND LIBRARY SERVICES

OFFICE OF MUSEUM AND LIBRARY SERVICES: GRANTS AND ADMINISTRATION

For an additional amount for ''Institute of Museum and Library Services'', $135,000,000 to prevent, prepare for, and respond to coronavirus, including grants to States, territories, tribes, museums, and libraries, to expand digital network access, purchase internet accessible devices, provide technical support services, and for operational expenses: Provided, That any matching funds requirements for States, tribes, libraries, and museums are waived for grants provided with funds made available under this heading in this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RAILROAD RETIREMENT BOARD

LIMITATION ON ADMINISTRATION

For an additional amount for ''Limitation on Administration'', $4,500,000 to prevent, prepare for, and respond to coronavirus, including the expeditious dispensation of railroad unemployment insurance benefits, and to support full-time equivalents and overtime hours as needed to administer the Railroad Unemployment Insurance Act, and of which $8,300 shall be for administrative costs related to implementing rebate payments: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

LIMITATION ON THE OFFICE OF INSPECTOR GENERAL

For an additional amount for ''Office of the Inspector General'', $500,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, including salaries and expenses necessary for oversight, investigations and audits of the Railroad Retirement Board and railroad unemployment insurance benefits funded in this Act and Public Law 116–136: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SOCIAL SECURITY ADMINISTRATION

LIMITATION ON ADMINISTRATIVE EXPENSES

For an additional amount for ''Limitation on Administrative Expenses'', $40,500,000, to prevent, prepare for, and respond to coronavirus, domestically or internationally, for necessary expenses to carry out additional recovery rebates to individuals, as described in section 101 of division F of this Act: Provided, That of the amount made available under this heading in this Act, $2,500,000, to remain available until September 30, 2025, shall be transferred to ''Social Security Administration—Office of Inspector General'' for necessary expenses in carrying out the provisions of the Inspector General Act of 1978: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS—THIS TITLE

SEC. 810. Notwithstanding any other provision of law, funds made available under each heading in this title shall only be used for the purposes specifically described under that heading.

SEC. 811. Funds appropriated by this title may be used by the Secretary of the Department of Health and Human Services to appoint, without regard to the provisions of sections 3309 through 3319 of title 5 of the United States Code, candidates needed for positions to perform critical work relating to coronavirus for which—

(1) public notice has been given; and

(2) the Secretary has determined that such a public health threat exists.

SEC. 812. Funds made available by this title may be used to enter into contracts with individuals for the provision of personal services (as described in section 104 of part 37 of title 48, Code of Federal Regulations (48 CFR 37.104)) to support the prevention of, preparation for, or response to coronavirus, domestically and internationally, subject to prior notification to the Committees on Appropriations of the House of Representatives and the Senate: Provided, That such individuals may not be deemed employees of the United States for the purpose of any law administered by the Office of Personnel Management: Provided further, That the authority made available pursuant to this section shall expire on September 30, 2024.

SEC. 813. Not later than 30 days after the date of enactment of this Act, the Secretary of Health and Human Services shall provide a detailed spend plan of anticipated uses of funds made available to the Department of Health and Human Services in this Act, including estimated personnel and administrative costs, to the Committees on Appropriations of the House of Representatives and the Senate: Provided, That such plans shall be updated and submitted to such Committees every 60 days until September 30, 2024: Provided further, That the spend plans shall be accompanied by a listing of each contract obligation incurred that exceeds $5,000,000 which has not previously been reported, including the amount of each such obligation.

SEC. 814. Of the funds appropriated by this title under the heading ''Public Health and Social Services Emergency Fund'', $25,000,000 shall be transferred to, and merged with, funds made available under the heading ''Office of the Secretary, Office of Inspector General'', and shall remain available until expended, for oversight of activities supported with funds appropriated to the Department of Health and Human Services in this Act: Provided, That the Inspector General of the Department of Health and Human Services shall consult with the Committees on Appropriations of the House of Representatives and the Senate prior to obligating such funds: Provided further, That the transfer authority provided by this section is in addition to any other transfer authority provided by law.

TITLE IX

LEGISLATIVE BRANCH

SENATE

CONTINGENT EXPENSES OF THE SENATE

SERGEANT AT ARMS AND DOORKEEPER OF THE SENATE

For an additional amount for ''Sergeant at Arms and Doorkeeper of the Senate'', $6,345,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, which shall be allocated in accordance with a spend plan submitted to the Committee on Appropriations of the Senate: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

HOUSE OF REPRESENTATIVES

ALLOWANCES AND EXPENSES

For an additional amount for ''Allowances and Expenses'', $37,000,000, to remain available until expended, for necessary expenses for Business Continuity and Disaster Recovery, to prevent, prepare for, and respond to coronavirus, to be allocated in accordance with a spend plan submitted to the Committee on Appropriations of the House of Representatives by the Chief Administrative Officer and approved by such Committee: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

JOINT ITEMS

OFFICE OF THE ATTENDING PHYSICIAN

For an additional amount for ''Office of the Attending Physician'', $600,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

CAPITOL POLICE

SALARIES

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Salaries'', $12,000,000, to prevent, prepare for, and respond to coronavirus: Provided, That amounts provided under this heading in this Act may be transferred between Capitol Police ''Salaries'' and ''General Expenses'' for the purposes provided herein without the approval requirement of section 1001 of the Legislative Branch Appropriations Act, 2014 (2 U.S.C. 1907a); Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

CONGRESSIONAL BUDGET OFFICE

SALARIES AND EXPENSES

For an additional amount for ''Salaries and Expenses'', $1,200,000, to prevent, prepare for, and respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ARCHITECT OF THE CAPITOL

CAPITAL CONSTRUCTION AND OPERATIONS

For an additional amount for ''Capital Construction and Operations'', $150,000,000, to remain available until expended, to supplement the funding made available to the Architect for the purposes described in title IX of division B of the CARES Act (Public Law 116–136): Provided, That this additional amount also may be used for the purchase and distribution of supplies to respond to coronavirus including, but not limited to, cleaning and sanitation supplies, masks and/or face coverings to Congressional offices, committees, and visitors, including provisions for travel and other necessary work carried out by staff in their Congressional Districts and State Offices, wherever located: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

LIBRARY OF CONGRESS

SALARIES AND EXPENSES

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Salaries and Expenses'', $12,000,000, to prevent, prepare for, and respond to coronavirus, including to offset losses resulting from the coronavirus pandemic

of amounts collected pursuant to the Act of June 28, 1902 (chapter 1301; 32 Stat. 480; 2 U.S.C. 150), for revolving fund activities pursuant to sections 182 and 182a through 182e of title 2, United States Code, sections 708(d) and 1316 of title 17, United States Code, and sections 111(d)(2), 119(b)(3), 803(e), and 1005 of such title, and for reimbursement of the Little Scholars Child Development Center for salaries for employees, as authorized by this title: Provided, That the Library of Congress may transfer amounts appropriated under this heading in this Act to other applicable appropriations of the Library of Congress to prevent, prepare for, and respond to coronavirus: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GOVERNMENT PUBLISHING OFFICE

GOVERNMENT PUBLISHING OFFICE BUSINESS OPERATIONS REVOLVING FUND

For an additional amount for ''Government Publishing Office Business Operations Revolving Fund'', $7,000,000, to prevent, prepare for, and respond to coronavirus, which shall be for offsetting losses resulting from the coronavirus pandemic of amounts collected pursuant to section 309 of title 44, United States Code: Provided, That funds appropriated under this heading in this Act may be made available to restore amounts, either directly or through reimbursement, for obligations incurred to prevent, prepare for, and respond to coronavirus, domestically or internationally, prior to the date of enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GOVERNMENT ACCOUNTABILITY OFFICE

SALARIES AND EXPENSES

For an additional amount for ''Salaries and Expenses'', $88,500,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, which shall be for audits and investigations and for reimbursement of the Tiny Findings Child Development Center for salaries for employees, as authorized by this title: Provided, That not later than 90 days after the date of enactment of this Act, the Government Accountability Office shall submit to the Committees on Appropriations of the House of Representatives and the Senate a spend plan specifying funding estimates and a timeline for such audits and investigations: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS—THIS TITLE

SOURCE OF FUNDS USED FOR PAYMENT OF SALARIES AND EXPENSES OF SENATE EMPLOYEE CHILD CARE CENTER

SEC. 901. The Secretary of the Senate shall reimburse the Senate Employee Child Care Center for personnel costs incurred until September 30, 2021, for employees of such Center who have been ordered to cease working due to measures taken in the Capitol complex to combat coronavirus, from amounts in the appropriations account ''Miscellaneous Items'' within the contingent fund of the Senate.

SEC. 902. Funds appropriated to the Architect of the Capitol in this Act also may be used to restore amounts, either directly or through reimbursement, for obligations incurred by the Architect to prevent, prepare for, and respond to Coronavirus Disease 2019 (COVID–19) prior to the date of enactment of this Act. Funds used to restore amounts to other Architect of the Capitol accounts shall assume the original period of availability of such accounts.

AUTHORITY OF ARCHITECT OF THE CAPITOL TO MAKE EXPENDITURES IN RESPONSE TO EMERGENCIES

SEC. 903. (a) COVERAGE OF COMMUTING EXPENSES.—Section 1305(a)(2) of the Legislative Branch Appropriations Act, 2010 (2 U.S.C. 1827(a)(2)) is amended by inserting after ''refreshments'', the following: ''transportation and other related expenses incurred by employees in commuting between their residence and their place of employment''.

(b) AUTHORITY TO PROVIDE SUPPLIES AND SERVICES THROUGHOUT FACILITIES AND GROUNDS UNDER THE ARCHITECT OF THE CAPITOL'S CARE.—Section 1305 of the Legislative Branch Appropriations Act, 2010 (2 U.S.C. 1827) is further amended by inserting after subsection (a)(2), the following: ''(3) May accept contributions of, and incur obligations and make expenditures for, supplies, products, services, and operational costs necessary to respond to the emergency, which may be provided throughout all facilities and grounds under the care of the Architect of the Capitol wherever located, on a reimbursable or non-reimbursable basis subject to the availability of funds.''.

(c) EFFECTIVE DATE.—The amendment made by subsections (a) and (b) shall apply with respect to fiscal year 2020 and each succeeding fiscal year.

SEC. 904. Notwithstanding the provisions of section 6304(c) of title 5, United States Code, any annual leave accumulated by an employee of the Government Publishing Office in excess of the limits prescribed in section 6304(a) of title 5, United States Code, remains to the credit of the employee until December 31, 2021.

TITLE X

MILITARY CONSTRUCTION, VETERANS AFFAIRS, AND RELATED AGENCIES

DEPARTMENT OF VETERANS AFFAIRS

VETERANS BENEFITS ADMINISTRATION

GENERAL OPERATING EXPENSES, VETERANS BENEFITS ADMINISTRATION

For an additional amount for ''General Operating Expenses, Veterans Benefits Administration'', $338,000,000, to prevent, prepare for, and respond to coronavirus, including the elimination of backlogs that may have occurred: Provided, That amounts provided under this heading in this Act made available for the elimination of backlogs may not be used to increase the number of permanent positions: Provided further, That of the amounts provided under this heading, up to $198,000,000 shall be to improve the Veteran Benefits Administration's education systems, including implementation of changes to chapters 30 through 36 of part III of title 38, United States Code in the Harry W. Colmery Veterans Educational Assistance Act of 2017 (Public Law 115–48), in a bill to authorize the Secretary of Veterans Affairs to treat certain programs of education converted to distance learning by reason of emergencies and health-related situations in the same manner as programs of education pursued at educational institutions, and for other purposes (Public Law 116–128), and in the Student Veteran Coronavirus Response Act of 2020 (Public Law 116–140): Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

VETERANS HEALTH ADMINISTRATION

MEDICAL COMMUNITY CARE

For an additional amount for ''Medical Community Care'', $100,000,000, for a one-time emergency payment to existing State Extended Care Facilities for Veterans, to prevent, prepare for, and respond to coronavirus: Provided, That such payments shall be in proportion to each State's share of the total resident capacity in such facilities as of January 4, 2020 where such capacity includes only veterans on whose behalf the Department pays a per diem amount pursuant to 38 United States Code 1741 or 1745: Provided further, That amounts made available to ''Veterans Health Administration—Medical Services'' in division B of Public Law 116–136, may be transferred to and merged with the Medical Community Care account to be used for the purposes provided under this heading in this Act, and shall be in additional to any other amounts available for such purposes: Provided further, That amounts transferred pursuant to the preceding proviso that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIONAL CEMETERY ADMINISTRATION

For an additional amount for ''National Cemetery Administration'', $26,000,000, to prevent, prepare for, and respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DEPARTMENTAL ADMINISTRATION

BOARD OF VETERANS APPEALS

For an additional amount for ''Board of Veterans Appeals'', $4,000,000, to prevent, prepare for, and respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

INFORMATION TECHNOLOGY SYSTEMS

For an additional amount for ''Information Technology Systems'', $45,000,000, to remain available until September 30, 2021, to prevent, prepare for, and respond to coronavirus: Provided, That amounts provided under this heading shall be to improve the Veteran Benefits Administration's education systems, including implementation of changes to chapters 30 through 36 of part III of title 38, United States Code in the Harry W. Colmery Veterans Educational Assistance Act of 2017 (Public Law 115–48), in a bill to authorize the Secretary of Veterans Affairs to treat certain programs of education converted to distance learning by reason of emergencies and health-related situations in the same manner as programs of education pursued at educational institutions, and for other purposes (Public Law 116–128), and in the Student Veteran Coronavirus Response Act of 2020 (Public Law 116–140): Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RELATED AGENCIES

DEPARTMENT OF DEFENSE—CIVIL

CEMETERIAL EXPENSES, ARMY

SALARIES AND EXPENSES

For an additional amount for ''Salaries and Expenses'', $2,000,000, to prevent, prepare for, and respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

AMERICAN BATTLE MONUMENTS COMMISSION

SALARIES AND EXPENSES

For an additional amount for the ''Salaries and Expenses'', $2,000,000, to prevent, prepare for, and respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to

section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS—THIS TITLE

(INCLUDING TRANSFER OF FUNDS)

SEC. 1001. Title X of division B of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) is amended under the heading ''Department of Veterans Affairs—Departmental Administration—Grants for Construction of State Extended Care Facilities'' by striking ''including to modify or alter existing hospital, nursing home, and domiciliary facilities in State homes: Provided,'' and inserting in lieu thereof the following: ''which shall be for modifying or altering existing hospital, nursing home, and domiciliary facilities in State homes: Provided, That the Secretary shall conduct a new competition or competitions to award grants to States using funds provided under this heading in this Act: Provided further, That such grants may be made to reimburse States for the costs of modifications or alterations that have been initiated or completed before an application for a grant under this section is approved by the Secretary: Provided further, That the use of funds provided under this heading in this Act shall not be subject to state matching fund requirement, application requirements, cost thresholds, the priority list, deadlines, award dates under sections 8134 and 8135 of title 38, United States Code, and part 59 of chapter I of title 38, Code of Federal Regulations, and shall not be subject to requirements of section 501(d) of title 38, United States Code: Provided further, That the Secretary may establish and adjust rolling deadlines for applications for such grants and may issue multiple rounds of application periods for the award of such grants under this section: Provided further,'': Provided, That amounts repurposed pursuant to this section that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 1002. Of the unobligated balances available to the Department of Veterans Affairs from title X of division B of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) for ''Veterans Health Administration, Medical Services'', up to $100,000,000 may be transferred to ''Departmental Administration, Information Technology Systems'' to prevent, prepare for, and respond to coronavirus, domestically or internationally, for improvements to supply chain systems including the Defense Medical Logistics Standard Support system: Provided, That not more than $50,000,000 may be transferred to development subaccount for the Supply Chain Management project: Provided further, That the transferred funds shall be in addition to any other funds made available for this purpose: Provided further, That the amounts transferred in this section that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

TITLE XI

DEPARTMENT OF STATE, FOREIGN OPERATIONS, AND RELATED PROGRAMS

DEPARTMENT OF STATE

ADMINISTRATION OF FOREIGN AFFAIRS

DIPLOMATIC PROGRAMS

For an additional amount for ''Diplomatic Programs'', $500,000,000, for necessary expenses to prevent, prepare for, and respond to coronavirus, including for evacuation expenses, emergency preparedness, maintaining consular operations, and other operations and maintenance requirements related to the consequences of coronavirus, domestically or internationally, of which $425,000,000 shall be for Consular and Border Security Programs, to remain available until expended, for offsetting losses resulting from the coronavirus pandemic of fees collected and deposited into such account pursuant to section 7081 of Public Law 115–31: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF INSPECTOR GENERAL

For an additional amount for ''Office of Inspector General'', $4,400,000, for oversight of activities conducted by the Department of State and made available to prevent, prepare for, and respond to coronavirus by this title and by prior acts: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

UNITED STATES AGENCY FOR INTERNATIONAL DEVELOPMENT

FUNDS APPROPRIATED TO THE PRESIDENT

OPERATING EXPENSES

For an additional amount for ''Operating Expenses'', $50,000,000, to prevent, prepare for, and respond to coronavirus and for other operations and maintenance requirements related to the consequences of coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF INSPECTOR GENERAL

For an additional amount for ''Office of Inspector General'', $3,500,000, for oversight of activities conducted by the United States Agency for International Development and made available to prevent, prepare for, and respond to coronavirus by this title and by prior acts: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985

BILATERAL ECONOMIC ASSISTANCE

FUNDS APPROPRIATED TO THE PRESIDENT

GLOBAL HEALTH PROGRAMS

For an additional amount for ''Global Health Programs'', $3,690,925,000, for necessary expenses to prevent, prepare for, and respond to coronavirus: Provided, That such funds shall be administered by the Administrator of the United States Agency for International Development: Provided further, That of the funds appropriated under this heading in this title, not less than $150,000,000 shall be transferred to, and merged with, funds made available for the Emergency Reserve Fund established pursuant to section 7058(c)(1) of the Department of State, Foreign Operations, and Related Programs Appropriations Act, 2017 (division J of Public Law 115–31): Provided further, That funds made available pursuant to the preceding proviso shall be made available under the terms and conditions of such section, as amended: Provided further, That funds appropriated by this paragraph in this title shall be made available for a contribution to a multilateral vaccine development partnership to support epidemic preparedness: Provided further, That of the funds appropriated by this paragraph in this title, not less than $3,500,000,000 shall be made available for a United States Contribution to The GAVI Alliance: Provided further, That funds appropriated by this paragraph in this title shall be allocated and allotted within 60 days of the date of enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

For an additional amount for ''Global Health Programs'', $4,535,925,000, for necessary expenses to prevent, prepare for, and respond to coronavirus: Provided, That such funds shall be administered by the United States Global AIDS Coordinator: Provided further, That not less than $3,500,000,000 shall be made available as a United States contribution to the Global Fund to Fight AIDS, Tuberculosis and Malaria (Global Fund): Provided further, That funds made available to the Global Fund pursuant to the previous proviso shall be made available notwithstanding section 202(d)(4)(A)(i) of the United States Leadership Against HIV/AIDS, Tuberculosis, and Malaria Act of 2003 (22 U.S.C. 7622(d)(4)(A)(i)): Provided further, That funds appropriated under this heading for fiscal years 2020 and 2021 which are designated as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985 and made available as a United States contribution to the Global Fund shall not be considered a contribution for the purpose of applying section 202(d)(4)(A)(i): Provided further, That funds appropriated by this paragraph in this title shall be allocated and allotted within 60 days of the date of enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DEVELOPMENT ASSISTANCE

For an additional amount for ''Development Assistance'', $250,000,000, for necessary expenses to prevent, prepare for, and respond to coronavirus, including to address related economic, and stabilization requirements, of which not less than $150,000,000 shall be made available to maintain access to basic education and not less than $45,000,000 shall be to maintain access to not-for-profit institutions of higher education for costs related to the consequences of coronavirus: Provided, That such institutions of higher education shall meet standards equivalent to those required for United States institutional accreditation by a regional accreditation agency recognized by the United States Department of Education: Provided further, That funds made available under this heading in this title shall be allocated and allotted within 60 days of the date of enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

INDEPENDENT AGENCIES

INTER-AMERICAN FOUNDATION

For an additional amount for ''Inter-American Foundation'', $15,000,000, for necessary expenses to prevent, prepare for, and respond to coronavirus, including to address related economic and stabilization requirements: Provided, That funds made available under this heading in this title shall be allocated and allotted within 60 days of the enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

UNITED STATES AFRICAN DEVELOPMENT FOUNDATION

For an additional amount for ''United States African Development Foundation'', $15,000,000, for necessary expenses to prevent, prepare for, and respond to coronavirus, including to address related economic and stabilization requirements: Provided, That funds made available under this heading in this title shall be allocated and allotted within 60 days of the enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

MULTILATERAL ASSISTANCE

FUNDS APPROPRIATED TO THE PRESIDENT

INTERNATIONAL ORGANIZATIONS AND PROGRAMS

For an additional amount for ''International Organizations and Programs'', $935,250,000, to remain available until September 30, 2022, for necessary expenses to prevent, prepare for, and respond to coronavirus and to support the United Nations Global Humanitarian Response Plan COVID–19, of which not less than $750,000,000 shall be for the World Food Programme, and not less than $185,250,000 shall be for the United Nations Children's Fund: Provided, That funds made available under this heading in this title shall be allocated and allotted within 60 days of the date of enactment of this Act: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS—THIS TITLE

(INCLUDING TRANSFER OF FUNDS)

SEC. 1101. The authorities and limitations of section 402 of the Coronavirus Preparedness and Response Supplemental Appropriations Act (division A of Public Law 116–123) shall apply to funds appropriated by this title as follows:

(1) Subsections (a), (d), (e), and (f) shall apply to funds under the heading ''Diplomatic Programs''; and

(2) Subsections (c), (d), (e), and (f) shall apply to funds under the heading ''Global Health Programs'', and ''Development Assistance''.

SEC. 1102. Funds appropriated by this title under the headings ''Diplomatic Programs'', ''Operating Expenses'', ''Global Health Programs'', and ''Development Assistance'' may be used to reimburse such accounts administered by the Department of State and the United States Agency for International Development, for obligations incurred to prevent, prepare for, and respond to coronavirus prior to the date of enactment of this Act.

SEC. 1103. The reporting requirements of section 406(b) of the Coronavirus Preparedness and Response Supplemental Appropriations Act, 2020 (division A of Public Law 116–123) shall apply to funds appropriated by this title.

SEC. 1104. Section 404 of the Coronavirus Preparedness and Response Supplemental Appropriations Act (division A of Public Law 116–123) shall apply to funds appropriated by this title under the same headings as specified by such section.

SEC. 1105. Notwithstanding the limitations in sections 609(i) and 609(j) of the Millennium Challenge Act of 2003 (2211 U.S.C. 7708(j), 7715), the Millennium Challenge Corporation may, subject to the availability of funds, extend any compact in effect as of January 29, 2020, for up to one additional year, to account for delays related to coronavirus: Provided, That the Corporation shall notify the Committees on Appropriations and Foreign Relations of the Senate and the Committees on Appropriations and Foreign Affairs of the House of Representatives prior to providing any such extension.

SEC. 1106. The Secretary of State and the heads of other Federal agencies may rely upon the authority of section 5924 of title 5, United States Code, without regard to the foreign area limitations referenced therein, to make payments for education allowances to employees who are in the United States on ordered or authorized departure, or for whom travel to a post in a foreign area has been delayed, to prevent, prepare for, or respond to coronavirus: Provided, That the authority under this section shall expire on December 31, 2024.

SEC. 1107. The Secretary of State and the heads of other Federal agencies whose employees are authorized to receive payments of monetary amounts and other allowances under section 5523 of title 5, United States Code, may rely upon the authority of that section, without regard to the time limitations referenced therein, to continue such payments in connection with authorized or ordered departures from foreign areas, to prevent, prepare for, and respond to coronavirus: Provided, That the authority under this section shall be available to continue such payments for the period beginning on July 21, 2020, through September 30, 2022, when such authority shall expire.

TITLE XII

TRANSPORTATION, HOUSING AND URBAN DEVELOPMENT, AND RELATED AGENCIES

DEPARTMENT OF TRANSPORTATION

OFFICE OF THE SECRETARY

SALARIES AND EXPENSES

For an additional amount for ''Salaries and Expenses'', $20,000,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, including necessary expenses for operating costs and capital outlays: Provided, That such amounts are in addition to any other amounts made available for this purpose: Provided further, That obligations of amounts under this heading in this Act shall not be subject to the limitation on obligations under the heading ''Office of the Secretary—Working Capital Fund'' in division H of the Further Consolidated Appropriations Act, 2020 (Public Law 116–94): Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

ESSENTIAL AIR SERVICE

In addition to funds provided to the ''Payments to Air Carriers'' program in Public Law 116–94 to carry out the essential air service program under section 41731 through 41742 of title 49, United States Code, $75,000,000, to be derived from the general fund of the Treasury, and to be made available to the Essential Air Service and Rural Improvement Fund, to prevent, prepare for, and respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

FEDERAL AVIATION ADMINISTRATION

OPERATIONS

For an additional amount for ''Operations'', $50,000,000, to be derived from the general fund, for necessary expenses to provide Federal Aviation Administration (FAA) employees with masks or protective face coverings, gloves, and sanitizer and wipes with sufficient alcohol content and to ensure FAA facilities are cleaned, disinfected, and sanitized in accordance with Centers for Disease Control and Prevention guidance: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GRANTS-IN-AID FOR AIRPORTS

For an additional amount for ''Grants-In-Aid for Airports'', $13,500,000,000, to prevent, prepare for, and respond to coronavirus, to remain available until September 30, 2026: Provided, That amounts made available under this heading in this Act shall be derived from the general fund of the Treasury: Provided further, That funds provided under this heading in this Act shall only be available to sponsors of airports in categories defined in section 47102 of title 49, United States Code: Provided further, That the requirements of chapter 471 of such title, except for project eligibility, shall apply to funds provided for any contract awarded (after the date of enactment of this Act) for airport development and funded under this heading: Provided further, That funds provided under this heading in this Act may not be used for any purpose not directly related to the airport: Provided further, That of the amounts appropriated under this heading in this Act—

(1) Not less than $500,000,000 shall be to pay the local share of eligible costs for which a grant is made under this heading under the Department of Transportation Appropriations Act, 2021: Provided, That any remaining funds after the apportionment under this paragraph (1) shall be distributed as described in paragraph (2) under this heading in this Act:

(2) Not less than $12,500,000,000 shall be available for any purpose for which airport revenues may lawfully be used: Provided, That such funds shall be allocated among eligible primary airports (as defined in section 47102(16) of title 49 United States Code) based on each airport's calendar year 2019 enplanements as a percentage of total 2019 enplanements for all eligible primary service airports: Provided further, That sponsors provide relief equaling at least 25 percent of the amount allocated to an airport under this paragraph to on-airport car rental, on-airport parking, and in-terminal airport concessions (as defined in part 23 of title 49, Code of Federal Regulations) in the form of waiving rent, minimum annual guarantees, lease obligations, fees, or penalties, or, at the request of the owner of an in-terminal concession, to provide for a buyout of such concession: Provided further, That the sponsor shall give the highest priority to an owner who qualifies as an small businesses with maximum gross receipts less than $56 million: Provided further, That the Federal share payable of the costs for which a grant is made under this paragraph shall be 100 percent; and

(3) Up to $200,000,000 shall be available for general aviation airports and commercial service airports that are not primary airports for any purpose for which airport revenues may lawfully be used, and, which the Secretary shall apportion directly to each eligible airport, as defined in paragraphs (7), (8), and (16) of section 47102 of title 49, United States Code, based on the categories published in the most current National Plan of Integrated Airport Systems, reflecting the percentage of the aggregate published eligible development costs for each such category, and then dividing the allocated funds evenly among the eligible airports in each category, rounding up to the nearest thousand dollars: Provided, That the Federal share payable of the costs for which a grant is made under this paragraph shall be 100 percent: Provided further, That any remaining funds after the apportionment under this paragraph (3) shall be distributed as described in paragraph (2) under this heading in this Act:

Provided further, That the matter preceding the first proviso under this heading in title XII of division B of the CARES Act (Public Law 116-136) is amended by striking ''to remain available until expended'' and inserting ''to remain available until September 30, 2025'': Provided further, That amounts made available under this heading in title XII of division B of the CARES Act (Public Law 116-136) shall not be subject to the limitation on obligations in any act making appropriations: Provided further, That any funds under the previous proviso designated as airport grants that are unobligated, recovered by or returned to the Federal Aviation Administration (FAA) within 5 years from the date of enactment of the CARES Act (Public Law 116-36) shall be pooled and redistributed as described in paragraph (2) under this heading in this Act: Provided further, That the FAA may redistribute funds under the previous proviso on more than one occasion: Provided further, That any airport that had been allocated more than four times annual operating expenses under this heading in title XII of division B of the CARES Act (Public Law 116-136) shall not be eligible for funds allocated or redistributed under this Act: Provided further, That the Administrator of the FAA may retain up to 0.1 percent of the funds provided under this heading in this Act to fund the award and oversight by the Administrator of grants made under this heading in this Act: Provided further, That obligations of funds

under this heading in this Act shall not be subject to any limitations on obligations provided in any Act making appropriations: Provided further, That all airport sponsors receiving funds under this heading in this Act shall continue to employ, through September 30, 2021, at least 90 percent of the number of individuals employed (after making adjustments for retirements or voluntary employee separations) by each airport as of March 27, 2020: Provided further, That the Secretary may waive the workforce retention requirement in the previous proviso, if the Secretary determines the airport is experiencing economic hardship as a direct result of the requirement, or the requirement reduces aviation safety or security: Provided further, That the workforce retention requirement shall not apply to nonhub airports or nonprimary airports receiving funds under this heading in this Act: Provided further, That amounts repurposed by the provisions under this heading in this Act that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION

MOTOR CARRIER SAFETY OPERATIONS AND PROGRAMS

Of prior year unobligated contract authority and liquidating cash provided for Motor Carrier Safety in the Transportation Equity Act for the 21st Century (Public Law 105–178), SAFETEA–LU (Public Law 109–59), or other appropriations or authorization acts, in addition to amounts already appropriated in fiscal year 2020 for ''Motor Carrier Safety Operations and Programs'', $238,500 in additional obligation limitation is provided and repurposed for obligations incurred to support activities to prevent, prepare for, and respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

FEDERAL RAILROAD ADMINISTRATION

NORTHEAST CORRIDOR GRANTS TO THE NATIONAL RAILROAD PASSENGER CORPORATION

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Northeast Corridor Grants to the National Railroad Passenger Corporation'', $1,392,085,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, including to enable the Secretary of Transportation to make or amend existing grants to the National Railroad Passenger Corporation for activities associated with the Northeast Corridor, as authorized by section 11101(a) of the Fixing America's Surface Transportation Act (division A of Public Law 114–94): Provided, That not less than $219,610,000 of the amounts made available under this heading in this Act and the ''National Network Grants to the National Railroad Passenger Corporation'' heading in this Act shall be made available for use by the National Railroad Passenger Corporation in lieu of capital payments from States and commuter rail passenger transportation providers subject to the cost allocation policy developed pursuant to section 24905(c) of title 49, United States Code: Provided further, That, notwithstanding sections 24319(g) and 24905(c)(1)(A)(i) of title 49, United States Code, such use of funds does not constitute cross-subsidization of commuter rail passenger transportation: Provided further, That not more than $91,800,000 of the amounts made available under this heading in this Act shall be made available for use by the National Railroad Passenger Corporation to repay or prepay debt incurred by the National Railroad Passenger Corporation under financing arrangements entered into prior to the enactment of this Act and to pay required reserves, costs, and fees related to such debt, including for loans from the Department of Transportation and loans that would otherwise have been paid from National Railroad Passenger Corporation revenues: Provided further, That the Secretary may retain up to $4,890,000 of the amounts made available under both this heading in this Act and the ''National Network Grants to the National Railroad Passenger Corporation'' heading in this Act to fund the costs of project management and oversight of activities authorized by section 11101(c) of the Fixing America's Surface Transportation Act (division A of Public Law 114–94): Provided further, That $1,000,000 of the amounts made available under both this heading in this Act and the ''National Network Grants to the National Railroad Passenger Corporation'' heading in this Act shall be transferred to ''National Railroad Passenger Corporation—Office of Inspector General—Salaries and Expenses'' for conducting audits and investigations of projects and activities carried out with amounts made available in this Act and in title XII of division B of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) under the headings ''Northeast Corridor Grants to the National Railroad Passenger Corporation'' and ''National Network Grants to the National Railroad Passenger Corporation'': Provided further, That amounts made available under this heading in this Act may be transferred to and merged with ''National Network Grants to the National Railroad Passenger Corporation'' to prevent, prepare for, and respond to coronavirus: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIONAL NETWORK GRANTS TO THE NATIONAL RAILROAD PASSENGER CORPORATION

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''National Network Grants to the National Railroad Passenger Corporation'', $1,007,915,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus, including to enable the Secretary of Transportation to make or amend existing grants to the National Railroad Passenger Corporation for activities associated with the National Network as authorized by section 11101(b) of the Fixing America's Surface Transportation Act (division A of Public Law 114–94): Provided, That not less than $349,700,000 of the amounts made available under this heading in this Act shall be made available for use by the National Railroad Passenger Corporation to be apportioned toward State payments required by the cost methodology policy adopted pursuant to section 209 of the Passenger Rail Investment and Improvement Act of 2008 (Public Law 110–432): Provided further, That a State-supported route's share of such funding under the preceding proviso shall consist of (1) 7 percent of the costs allocated to the route in fiscal year 2019 under the cost methodology policy adopted pursuant to section 209 of the Passenger Rail Investment and Improvement Act of 2008 (Public Law 110–432), and (2) any remaining amounts under the preceding proviso shall be apportioned to a route in proportion to its passenger revenue and other revenue allocated to a State-supported route in fiscal year 2019 divided by the total passenger revenue and other revenue allocated to all State-supported routes in fiscal year 2019: Provided further, That State-supported routes which terminated service on or before February 1, 2020, shall not be included in the cost and revenue calculations made pursuant to the preceding proviso: Provided further, That amounts made available under this heading in this Act may be transferred to and merged with ''Northeast Corridor Grants to the National Railroad Passenger Corporation'' to prevent, prepare for, and respond to coronavirus: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

FEDERAL TRANSIT ADMINISTRATION

TRANSIT INFRASTRUCTURE GRANTS

For an additional amount for ''Transit Infrastructure Grants'', $32,000,000,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus: Provided, That of the amounts appropriated under this heading in this Act—

(1) $18,500,000,000 shall be for grants to recipients eligible under chapter 53 of title 49, United States Code, and administered as if such funds were provided under section 5307 of title 49, United States Code (apportioned in accordance with section 5336 of such title (other than subsections (h)(1) and (h)(4))), and section 5337 of title 49, United States Code (apportioned in accordance with such section), except that funds apportioned under section 5337 shall be added to funds apportioned under 5307 for administration under 5307: Provided, That the Secretary shall allocate the amounts provided in the preceding proviso under sections 5307 and 5337 of title 49, United States Code, in the same ratio as funds were provided under Public Law 116–94 and shall allocate such amounts not later than 14 days after enactment of this Act: Provided further, That the amounts allocated to any urbanized area from amounts made available under this heading in this Act when combined with the amounts allocated to each such urbanized area from funds appropriated under this heading in title XIII of division B of the CARES Act (Public Law 116–136) may not exceed more than 100 percent of any recipient's 2018 operating costs based on data contained in the National Transit Database: Provided further, That for any urbanized area for which the calculation in the previous proviso exceeds 100 percent of the urbanized area's 2018 operating costs, the Secretary shall distribute funds in excess of such percent to urbanized areas for which the calculation in the previous proviso does not exceed 100 percent in the same proportion as amounts allocated under the first proviso of this paragraph;

(2) $2,500,000,000 shall be for grants under section 5309 of title 49, United States Code: Provided, That of the amounts provided under this paragraph—

(A) $1,950,000,000 shall be for grants to recipients that received an allocation under section 5309 of title 49, United States Code, for fiscal year 2019 or fiscal year 2020 as of the date of enactment of this Act: Provided, That the Secretary shall calculate each recipient's non-Capital Investment Grant financial commitment for fiscal years 2019 and 2020 as a percentage of the non-Capital Investment Grant financial commitments of all projects for such fiscal years and shall proportionally allocate such funds within 14 days of enactment of this Act: Provided further, That any recipient with a project open for revenue service for which they received a construction grant agreement are not eligible for funds provided under this paragraph; and

(B) $400,000,000 shall be for grants to recipients that receive an allocation of fiscal year 2019 or fiscal year 2020 funds after the date of enactment of this Act under section 5309 of title 49, United States Code: Provided, That such grants shall be allocated to such recipients in proportion to the allocation of fiscal year 2019 or fiscal 2020 funds provided to all projects allocated funding after the date of enactment of this Act; and

(C) no more than $150,000,000 for any recipient of a grant under section 5309(h) of title 49, United States Code, that may need additional

assistance in completing a project that has received a grant agreement and shall issue a Notice of Funding Opportunity for amounts made available for projects eligible under section 5309(h) of title 49, United States Code, not later than 120 days after the date of enactment of this Act:

Provided further, That if amounts remain available after distributing funds under this paragraph, such amounts shall be added to the amounts made available under paragraph (5) under this heading: Provided further, That amounts made available under this paragraph shall not be included in any calculation of the maximum amount of Federal financial assistance for the project under section 5309(k)(2)(C)(ii) or 5309(h)(7) of title 49, United States Code nor should they be subject to provisions in sections 5309(a)(7)(A) or 5309(l)(1)(B)(ii) of such title;

(3) $250,000,000 shall be for grants to recipients or subrecipients eligible under section 5310 of title 49, United States Code, and the Secretary of Transportation shall apportion such funds in accordance with such section: Provided, That the Secretary shall allocate such funds in the same ratio as funds were provided in Public Law 116–94 and shall allocate such funds not later than 14 days after the date of enactment of this Act;

(4) $750,000,000 shall be for grants to recipients or subrecipients eligible under section 5311 of title 49, United States Code (other than subsection (b)(3) and (c)(1)(A)), and the Secretary of Transportation shall apportion such funds in accordance with such section: Provided, That the Secretary shall allocate these amounts in the same ratio as funds were provided in Public Law 116–94 and shall allocate funds within 14 days of enactment of this Act; and

(5) $10,000,000,000 shall be for grants to eligible recipients or subrecipients of funds under chapter 53 of title 49, United States Code, that, as a result of coronavirus, require additional assistance to maintain operations: Provided, That such funds shall be administered as if they were provided under section 5324 of title 49, United States Code: Provided further, That any recipient or subrecipient of funds under chapter 53 of title 49, United States Code, or an intercity bus service provider that has, since October 1, 2018, partnered with a recipient or subrecipient in order to meet the requirements of section 5311(f) of such title shall be eligible to directly apply for funds under this paragraph: Provided further, That entities that have partnered with a recipient or subrecipient in order to meet the requirements of section 5311(f) of such title shall be eligible to receive not more than 7.5 percent of the total funds provided under this paragraph and shall use assistance provided under this paragraph only for workforce retention or the recall or rehire of any laid off, furloughed, or terminated employee associated with the provision of intercity bus service including, but not limited to, service eligible for funding under section 5311(f) of title 49, United States Code: Provided further, That when evaluating applications of intercity bus service assistance, the Secretary shall give priority to preserving national and regional intercity bus networks and the rural services that make meaningful connections to those networks: Provided further, That the Secretary shall issue a Notice of Funding Opportunity not later than 120 days after the date of enactment of this Act that requires applications to be submitted not later than 180 days after the date of enactment of this Act: Provided further, That the Secretary shall make awards not later than 60 days after the application deadline: Provided further, That the Secretary shall require grantees to provide estimates of financial need, data on reduced ridership, and a spending plan for funds: Provided further, That when evaluating applications for assistance to transit agencies, the Secretary shall give priority to agencies in urbanized areas that received less than 100 percent of their 2018 operating expenses from the funds appropriated in paragraph (1) combined with the funds appropriated under this heading in title XII of division B of the CARES Act (Public Law 116–136), and transit agencies with the largest revenue loss as a percentage of the agency's 2018 operating expenses: Provided further, That States may apply on behalf of a recipient, a subrecipient, or a group of recipients or subrecipients: Provided further, That if applications for assistance do not exceed available funds, the Secretary shall reserve the remaining amounts for grantees to prevent, prepare for, and respond to coronavirus and shall accept applications on a rolling basis: Provided further, That if amounts made available under this paragraph remain unobligated on December 31, 2021, such amounts shall be available for any purpose eligible under section 5324 of title 49, United States Code:

Provided further, That the Secretary shall not waive the requirements of section 5333 of title 49, United States Code, for funds appropriated under this heading in this Act or for funds previously made available under section 5307 of title 49, United States Code, or sections 5310, 5311, 5337, or 5340 of such title as a result of the coronavirus: Provided further, That the provision of funds under this heading in this Act shall not affect the ability of any other agency of the Government, including the Federal Emergency Management Agency, a State agency, or a local governmental entity, organization, or person, to provide any other funds otherwise authorized by law: Provided further, That notwithstanding subsection (a)(1) or (b) of section 5307 of title 49, United States Code, subsection (a)(1) of section 5324 of such title, or any provision of chapter 53 of title 49, funds provided under this heading in this Act are available for the operating expenses of transit agencies related to the response to a coronavirus public health emergency, including, beginning on January 20, 2020, reimbursement for operating costs to maintain service and lost revenue due to the coronavirus public health emergency, including the purchase of personal protective equipment, and paying the administrative leave of operations or contractor personnel due to reductions in service: Provided further, That to the maximum extent possible, funds made available under this heading in this Act and in title XII of division B of the CARES Act (Public Law 116–136) shall be directed to payroll and public transit, unless the recipient certifies to the Secretary that the recipient has not furloughed any employees: Provided further, That such operating expenses are not required to be included in a transportation improvement program, long-range transportation plan, statewide transportation plan, or a statewide transportation improvement program: Provided further, That grants made under this heading in this Act and in title XII of division B of the CARES Act (Public Law 116–136) to recipients or subrecipients may be used to make payments to contractors providing transit operations service or maintenance of rolling stock, right of way and/or stations at pre-COVID-19 service billing levels in such amounts as existed on February 3, 2020, even if such service was reduced due to the COVID-19 public health emergency: Provided further, That the preceding proviso may only apply if a contractor continuously retains its full and part-time workforce at their previous full or part-time status, and/or, where applicable, beginning on the date that employees of the contractor are able to return to work at their previous full or part-time status that it laid off, furloughed or terminated as a result of the COVID-19 public health emergency, or its effects, under the terms of any applicable collective bargaining agreement: Provided further, That private providers of public transportation may be considered eligible sub-recipients of funding provided under this heading: Provided further, That unless otherwise specified, applicable requirements under chapter 53 of title 49, United States Code, shall apply to funding made available under this heading in this Act, except that the Federal share of the costs for which any grant is made under this heading in this Act shall be, at the option of the recipient, up to 100 percent: Provided further, That the amount made available under this heading in this Act shall be derived from the general fund and shall not be subject to any limitation on obligations for transit programs set forth in any Act: Provided further, That not more than one-half of one percent of the funds for transit infrastructure grants, but not to exceed $125,000,000, provided under this heading in this Act shall be available for administrative expenses and ongoing program management oversight as authorized under sections 5334 and 5338(f)(2) of title 49, United States Code, and shall be in addition to any other appropriations for such purpose: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SAINT LAWRENCE SEAWAY DEVELOPMENT CORPORATION

OPERATIONS AND MAINTENANCE

(HARBOR MAINTENANCE TRUST FUND)

For necessary expenses to conduct the operations, maintenance, and capital infrastructure activities of the Seaway International Bridge, $1,500,000, to be derived from the Harbor Maintenance Trust Fund pursuant to section 210 of the Water Resources Development Act of 1986 (33 U.S.C. 2238), to prevent, prepare for, and respond to coronavirus: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF INSPECTOR GENERAL

SALARIES AND EXPENSES

For an additional amount for ''Office of Inspector General'', $5,000,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus: Provided, That the funding made available under this heading in this Act shall be used for conducting audits and investigations of projects and activities carried out by the Department of Transportation to prevent, prepare for, and respond to coronavirus: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT

PUBLIC AND INDIAN HOUSING

TENANT-BASED RENTAL ASSISTANCE

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Tenant-Based Rental Assistance'', $4,000,000,000, to remain available until expended, and to be used under the same authority and conditions as the additional appropriations for fiscal year 2020 under this heading in title XII of division B of the CARES Act (Public Law 116–136), except that any amounts provided for administrative expenses and other expenses of public housing agencies for their section 8 programs, including Mainstream vouchers, under this heading in the CARES Act (Public Law 116–136) and under this heading in this Act shall also be available for Housing Assistance Payments under section 8(o) of the United States Housing Act of 1937 (42 U.S.C. 1437f(o)): Provided, That amounts made available under this heading in this Act and under the same heading in title XII of division B of the CARES Act may be used to cover or reimburse allowable costs incurred to prevent, prepare for, and respond to coronavirus regardless of the date on which such costs were incurred: Provided further, That of the amounts made available under this heading in this Act, $500,000,000 shall be available for administrative

expenses and other expenses of public housing agencies for their section 8 programs, including Mainstream vouchers: Provided further, That of the amounts made available under this heading in this Act, $2,500,000,000 shall be available for adjustments in the calendar year 2020 or 2021 section 8 renewal funding allocations, including Mainstream vouchers, for public housing agencies that experience a significant increase in voucher per-unit costs due to extraordinary circumstances or that, despite taking reasonable cost savings measures, as determined by the Secretary, would otherwise be required to terminate rental assistance for families as a result of insufficient funding: Provided further, That of the amounts made available under this heading in this Act, $1,000,000,000 shall be used for incremental rental voucher assistance under section 8(o) of the United States Housing Act of 1937 for use by individuals and families who are—homeless, as defined under section 103(a) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11302(a)); at risk of homelessness, as defined under section 401(1) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11360(1)); or fleeing, or attempting to flee, domestic violence, dating violence, sexual assault, or stalking: Provided further, That the Secretary shall allocate amounts made available in the preceding proviso to public housing agencies not later than 60 days after the date of enactment of this Act, according to a formula that considers the ability of the public housing agency to use vouchers promptly and the need of geographical areas based on factors to be determined by the Secretary, such as risk of transmission of coronavirus, high numbers or rates of sheltered and unsheltered homelessness, and economic and housing market conditions: Provided further, That if a public housing authority elects not to administer or does not promptly issue all of its authorized vouchers within a reasonable period of time, the Secretary shall reallocate any unissued vouchers and associated funds to other public housing agencies according to the criteria in the preceding proviso: Provided further, That a public housing agency shall not reissue any vouchers under this heading in this Act for incremental rental voucher assistance when assistance for the family initially assisted is terminated: Provided further, That upon termination of incremental rental voucher assistance under this heading in this Act for one or more families assisted by a public housing agency, the Secretary shall reallocate amounts that are no longer needed by such public housing agency for assistance under this heading in this Act to another public housing agency for the renewal of vouchers previously authorized under this heading in this Act: Provided further, That amounts made available in this paragraph are in addition to any other amounts made available for such purposes: Provided further, That up to 0.5 percent of the amounts made available under this heading in this Act may be transferred, in aggregate, to ''Department of Housing and Urban Development, Program Offices—Public and Indian Housing'' to supplement existing resources for the necessary costs of administering and overseeing the obligation and expenditure of these amounts, to remain available until September 30, 2024: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

PUBLIC HOUSING OPERATING FUND

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Public Housing Operating Fund'', as authorized by section 9(e) of the United States Housing Act of 1937 (42 U.S.C. 1437g(e)), $2,000,000,000, to be used under the same authority and conditions as the additional appropriations for fiscal year 2020 under this heading in title XII of division B of the CARES Act (Public Law 116–136): Provided, That amounts made available under this heading in this Act and under the same heading in title XII of division B of the CARES Act may be used to cover or reimburse allowable costs incurred to prevent, prepare for, and respond to coronavirus regardless of the date on which such costs were incurred: Provided further, That up to 0.5 percent of the amounts made available under this heading in this Act may be transferred, in aggregate, to ''Department of Housing and Urban Development, Program Offices—Public and Indian Housing'' to supplement existing resources for the necessary costs of administering and overseeing the obligation and expenditure of these amounts, to remain available until September 30, 2024: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

NATIVE AMERICAN PROGRAMS

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Native American Programs'', $400,000,000, to remain available until September 30, 2024, and to be used under the same authority and conditions as the additional appropriations for fiscal year 2020 under this heading in title XII of division B of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136): Provided, That the amounts made available under this heading in this Act are as follows:

(1) Up to $150,000,000 shall be available for the Native American Housing Block Grants program, as authorized under title I of the Native American Housing Assistance and Self-Determination Act of 1996 (25 U.S.C. 4111 et seq.); and

(2) Not less than $250,000,000 shall be available for grants to Indian tribes under the Indian Community Development Block Grant program under title I of the Housing and Community Development Act of 1974 (42 U.S.C. 5306(a)(1)), notwithstanding section 106(a)(1) of such Act, for emergencies that constitute imminent threats to health and safety:

Provided further, That amounts made available under paragraph (1) under this heading in title XII of division B of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) which are allocated to Indian tribes or tribally designated housing entities, and which are not accepted, are voluntarily returned, or otherwise recaptured for any reason, may be used by the Secretary to make awards under paragraph (2) under this heading in title XII of division B of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136), in addition to amounts otherwise available for such purposes: Provided further, That up to one-half of 1 percent of the amounts made available under this heading in this Act may be transferred, in aggregate, to ''Department of Housing and Urban Development, Program Offices—Public and Indian Housing'' for necessary costs of administering and overseeing the obligation and expenditure of such amounts and of amounts made available under this heading in title XII of division B of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136), to remain available until September 30, 2029, in addition to any other amounts made available for such purposes: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

COMMUNITY PLANNING AND DEVELOPMENT

HOUSING OPPORTUNITIES FOR PERSONS WITH AIDS

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Housing Opportunities for Persons with AIDS'', $65,000,000, to be used under the same authority and conditions as the additional appropriations for fiscal year 2020 under this heading in title XII of division B of the CARES Act (Public Law 116–136): Provided, That amounts provided under this heading in this Act that are allocated pursuant to section 854(c)(5) of the AIDS Housing Opportunity Act (42 U.S.C. 12901 et seq.) shall remain available until September 30, 2022: Provided further, That not less than $15,000,000 of the amount provided under this heading in this Act shall be allocated pursuant to the formula in section 854 of such Act using the same data elements as utilized pursuant to that same formula in fiscal year 2020: Provided further, That up to 0.5 percent of the amounts made available under this heading in this Act may be transferred to ''Department of Housing and Urban Development—Program Offices—Community Planning and Development'' for necessary costs of administering and overseeing the obligation and expenditure of amounts under this heading in this Act, to remain available until September 30, 2030: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

COMMUNITY DEVELOPMENT FUND

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Community Development Fund'', $5,000,000,000, to remain available until September 30, 2023, and to be used under the same authority and conditions as the additional appropriations for fiscal year 2020 under this heading in title XII of division B of the CARES Act (Public Law 116–136): Provided, That such amount made available under this heading in this Act shall be distributed pursuant to section 106 of the Housing and Community Development Act of 1974 (42 U.S.C. 5306) to grantees that received allocations pursuant to such formula in fiscal year 2020, and that such allocations shall be made within 30 days of enactment of this Act: Provided further, That in administering funds under this heading, an urban county shall consider needs throughout the entire urban county configuration to prevent, prepare for, and respond to coronavirus: Provided further, That up to $100,000,000 of amounts made available under this heading in this Act may be used to make new awards or increase prior awards to existing technical assistance providers: Provided further, That of the amounts made available under this heading in this Act, up to $25,000,000 may be transferred to ''Department of Housing and Urban Development, Program Offices—Community Planning and Development'' for necessary costs of administering and overseeing the obligation and expenditure of amounts under this heading in this Act, to remain available until September 30, 2028: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

HOMELESS ASSISTANCE GRANTS

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Homeless Assistance Grants'', $5,000,000,000, to remain available until September 30, 2025, for the Emergency Solutions Grants program as authorized under subtitle B of title IV of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11371 et seq.), as amended, and to be used under the same authority and conditions as the additional appropriations for fiscal year 2020 under this heading in title XII of division B of the CARES Act (Public Law 116–136): Provided, That $3,000,000,000 of the amount made available under this heading in this Act shall be distributed pursuant to 24 CFR 576.3 to grantees that received allocations pursuant to that same formula in fiscal year 2020, and that such allocations shall be made within 30 days of enactment of this Act: Provided further, That, in addition to amounts allocated in the preceding proviso, remaining amounts shall be allocated directly to a State or unit of general local government by

the formula specified in the third proviso under this heading in title XII of division B of the CARES Act (Public Law 116–136): Provided further, That not later than 90 days after the date of enactment of this Act and every 60 days thereafter, the Secretary shall allocate a minimum of an additional $500,000,000, pursuant to the formula referred to in the preceding proviso, based on the best available data: Provided further, That up to 0.5 percent of the amounts made available under this heading in this Act may be transferred to ''Department of Housing and Urban Development—Program Offices—Community Planning and Development'' for necessary costs of administering and overseeing the obligation and expenditure of amounts under this heading in this Act, to remain available until September 30, 2030: Provided further, That funds made available under this heading in this Act and under this heading in title XII of division B of the CARES Act (Public Law 116–136) may be used for eligible activities the Secretary determines to be critical in order to assist survivors of domestic violence, sexual assault, dating violence, and stalking or to assist homeless youth, age 24 and under: Provided further, That a grantee, when contracting with service providers engaged directly in the provision of services to homeless persons served by the program, shall, to the extent practicable, enter into contracts in amounts that cover the actual total program costs and administrative overhead to provide the services contracted: Provided further, That amounts repurposed by this paragraph that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

EMERGENCY RENTAL ASSISTANCE

For activities and assistance authorized in section 201 of division O of this Act (the ''COVID–19 HERO ACT''), $50,000,000,000, to remain available until expended: Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

HOUSING PROGRAMS

PROJECT-BASED RENTAL ASSISTANCE

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Project-Based Rental Assistance'', $750,000,000, to remain available until expended, and to be used under the same authority and conditions as the additional appropriations for fiscal year 2020 under this heading in title XII of division B of the CARES Act (Public Law 116–136): Provided, That up to 0.5 percent of the amounts made available under this heading in this Act may be transferred to ''Department of Housing and Urban Development—Program Offices—Office of Housing'' for necessary costs of administering and overseeing the obligation and expenditure of amounts under this heading in this Act, to remain available until September 30, 2030: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

HOUSING FOR THE ELDERLY

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Housing for the Elderly'', $500,000,000, to remain available until September 30, 2023, and to be used under the same authority and conditions as the additional appropriations for fiscal year 2020 under this heading in title XII of division B of the CARES Act (Public Law 116–136): Provided, That notwithstanding the first proviso under this heading in the CARES Act, $300,000,000 of the amount made available under this heading in this Act shall be for one-time grants for service coordinators, as authorized under section 676 of the Housing and Community Development Act of 1992 (42 U.S.C. 13632), and the continuation of existing congregate service grants for residents of assisted housing projects: Provided further, That up to 0.5 percent of the amounts made available under this heading in this Act may be transferred to ''Department of Housing and Urban Development—Program Offices—Office of Housing'' for necessary costs of administering and overseeing the obligation and expenditure of amounts under this heading in this Act, to remain available until September 30, 2030: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

HOUSING FOR PERSONS WITH DISABILITIES

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Housing for Persons with Disabilities'', $45,000,000, to remain available until September 30, 2023, and to be used under the same authority and conditions as the additional appropriations for fiscal year 2020 under this heading in title XII of division B of the CARES Act (Public Law 116–136): Provided, That up to 0.5 percent of the amounts made available under this heading in this Act may be transferred to ''Department of Housing and Urban Development—Program Offices—Office of Housing'' for necessary costs of administering and overseeing the obligation and expenditure of amounts under this heading in this Act, to remain available until September 30, 2030: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

FAIR HOUSING AND EQUAL OPPORTUNITY

FAIR HOUSING ACTIVITIES

(INCLUDING TRANSFER OF FUNDS)

For an additional amount for ''Fair Housing Activities'', $14,000,000, to remain available until September 30, 2022, and to be used under the same authority and conditions as the additional appropriations for fiscal year 2020 under this heading in title XII of division B of the CARES Act (Public Law 116–136): Provided, That of the funds made available under this heading in this Act, $4,000,000 shall be for Fair Housing Organization Initiative grants through the Fair Housing Initiatives Program (FHIP), made available to existing grantees, which may be used for fair housing activities and for technology and equipment needs to deliver services through use of the Internet or other electronic or virtual means in response to the public health emergency related to the Coronavirus Disease 2019 (COVID–19) pandemic: Provided further, That of the funds made available under this heading in this Act, $10,000,000 shall be for FHIP Education and Outreach grants made available to previously-funded national media grantees and State and local education and outreach grantees, to educate the public and the housing industry about fair housing rights and responsibilities during the COVID–19 pandemic: Provided further, That such grants in the preceding proviso shall be divided evenly between the national media campaign and education and outreach activities: Provided further, That up to 0.5 percent of the amounts made available under this heading in this Act may be transferred to ''Department of Housing and Urban Development—Program Offices—Fair Housing and Equal Opportunity'' for necessary costs of administering and overseeing the obligation and expenditure of amounts under this heading in this Act, to remain available until September 30, 2030: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

OFFICE OF INSPECTOR GENERAL

For an additional amount for ''Office of Inspector General'', $5,000,000, to remain available until expended, to prevent, prepare for, and respond to coronavirus: Provided, That the funding made available under this heading in this Act shall be used for conducting audits and investigations of projects and activities carried by the Department of Housing and Urban Development to prevent, prepare for, and respond to coronavirus: Provided further, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

RELATED AGENCY

NEIGHBORHOOD REINVESTMENT CORPORATION

PAYMENT TO THE NEIGHBORHOOD REINVESTMENT CORPORATION

For an additional amount for ''Payment to the Neighborhood Reinvestment Corporation'', $100,000,000, to remain available until expended, to the Neighborhood Reinvestment Corporation (''NRC'') for housing counseling for households threatened with housing instability due to the economic circumstances caused by the COVID-19 pandemic, under the following terms and conditions:

(1) The NRC shall make grants to counseling intermediaries approved by the Department of Housing and Urban Development (''HUD'') to provide housing counseling assistance to help prevent and respond to the displacement of residents due to eviction, default of mortgages, or foreclosure of mortgages (''Housing Counseling Assistance''). State Housing Finance Agencies may also be eligible to receive grants where they meet all the requirements under this heading. NRC may target grants may to HUD-approved counseling intermediaries and State Housing Finance Agencies based on their ability to serve the most vulnerable communities, based on an analysis by the NRC of which areas are most impacted by the economic circumstances caused by the COVID-19 pandemic.

(2) Housing Counseling Assistance shall be made available to consumers facing housing instability (''Housing Counseling Clients''). Housing Counseling Clients will be provided such assistance that shall consist of activities that are likely to prevent evictions or foreclosures, and result in the long-term affordability of the housing unit retained pursuant to such activity or another positive outcome for the Housing Counseling Client. No funds made available under this heading may be provided directly to lenders, to landlords, or to Housing Counseling Clients to discharge outstanding rent or mortgage balances or for any other direct debt reduction payments.

(3) Not less than 40 percent of grant funds made available under this heading shall be provided to counseling organizations that target Housing Counseling Assistance to minority and low-income homeowners, renters, individuals experiencing homelessness, and individuals at risk of homelessness or provide such services in neighborhoods with high concentrations of minority and low-income homeowners, renters, individuals experiencing homelessness, and individuals at risk of homelessness.

(4) The delivery of Housing Counseling Assistance as provided under this heading shall involve a reasonable analysis of the Housing Counseling Client's financial situation, resources available to the Housing Counseling Client, and advice on applicable laws or rules regarding eviction protections, mortgage forbearance, or foreclosure protection.

(5) NRC may provide up to 15 percent of the Housing Counseling Assistance grant funds

under this heading to its own charter members with expertise in housing counseling, subject to a certification by the NRC that the procedures for selection do not consist of any procedures or activities that could be construed as an unacceptable conflict of interest or have the appearance of impropriety.

(6) The HUD-approved counseling intermediaries and State Housing Finance Agencies receiving funds under this heading shall have demonstrated experience in housing counseling (including foreclosure counseling, rental counseling, homelessness, and/or financial counseling) and outreach. NRC may use other criteria to demonstrate capacity, particularly in underserved areas.

(7) Of the total amount made available under this heading, up to 4 percent of the amounts made available under this heading in this Act may be made available to support non-grant costs associated with the Housing Counseling Assistance grants program, including training, administrative costs, grant compliance, and evaluation.

(8) The NRC shall build the relevant capacities of HUD-approved counseling intermediaries and State Housing Finance Agencies through a comprehensive training program of NRC training courses, except that private financial institutions that participate in NRC training shall pay market rates for such training.

(9) Housing Counseling Assistance grants may include a budget for outreach, advertising, technology, reporting, training, sub-grantee oversight, and other program-related support as determined by the NRC.

(10) The NRC shall report annually to the Committees on Appropriations of the House of Representatives and the Senate as well as the Senate Banking Committee and House Financial Services Committee on its efforts to mitigate housing instability caused by the COVID-19 pandemic.

Provided, That such amount is designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

GENERAL PROVISIONS—THIS TITLE

SEC. 1201. The provision under the heading ''Office of the Inspector General—Salaries and Expenses'' in title XII of division B of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) is amended by striking ''with funds made available in this Act to'' and inserting ''by'': Provided, That the amounts repurposed in this section that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 1202. Amounts made available under the headings ''Project-Based Rental Assistance'', ''Housing for the Elderly'' and ''Housing for Persons With Disabilities'' in title XII of division B of the CARES Act (Public Law 116–136) and under such headings in this title of this Act may be used, notwithstanding any other provision of law, to provide additional funds to maintain operations for such housing, for providing supportive services, and for taking other necessary actions to prevent, prepare for, and respond to coronavirus, including to actions to self-isolate, quarantine, or to provide other coronavirus infection control services as recommended by the Centers for Disease Control and Prevention, including providing relocation services for residents of such housing to provide lodging at hotels, motels, or other locations: Provided, That the amounts repurposed pursuant to this section that were previously designated by the Congress as an emergency requirement pursuant to the Balanced Budget and Emergency Deficit Control Act of 1985 are designated by the Congress as an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. 1203. Amounts made available in this Act under the headings ''Northeast Corridor Grants to the National Railroad Passenger Corporation'' and ''National Network Grants to the National Railroad Passenger Corporation'' shall be used under the same conditions as section 22002 of title XII of division B of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136): Provided, That the amounts made available in this Act under such headings shall be used by the National Railroad Passenger Corporation to prevent employee furloughs as a result of efforts to prevent, prepare for, and respond to coronavirus: Provided further, That none of the funds made available in this Act under such headings may be used by the National Railroad Passenger Corporation to reduce the frequency of rail service on any long-distance route (as defined in section 24102 of title 49, United States Code) below frequencies for such routes in fiscal year 2019, except in an emergency or during maintenance or construction outages impacting such routes: Provided further, That the coronavirus shall not qualify as an emergency in the preceding proviso.

SEC. 1204. For fiscal year 2021, in addition to payments made pursuant to 53106 of title 46, United States Code, the Secretary of Transportation shall pay to the contractor for an operating agreement entered into pursuant to chapter 531 of title 46, United States Code, for each vessel that is covered by such operating agreement as of the date of enactment of this Act, an amount equal to $500,000: Provided, That payments authorized by this section shall be paid not later than 60 days after the date of enactment of this Act: Provided further, That any unobligated balances remaining from the amounts made available for payments under the heading ''Maritime Administration—Maritime Security Program'' in any prior Act may be used for such payments.

SEC. 1205. During the duration of the national emergency declared by the President concerning the novel coronavirus disease (COVID–19), the Secretary may extend the time period referenced in 23 U.S.C. 120(e)(1) to account for delays in access, construction, repair or other similar issues.

TITLE XIII

GENERAL PROVISIONS—THIS DIVISION

SEC. 1301. Not later than 30 days after the date of enactment of this Act, the head of each executive agency that receives funding in any division of this Act, or that received funding in the Coronavirus Preparedness and Response Supplemental Appropriations Act, 2020 (division A of Public Law 116–123), the Second Coronavirus Preparedness and Response Supplemental Appropriations Act, 2020 (division A of Public Law 116–127), the CARES Act (Public Law 116–136), or the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139) shall provide a report detailing the anticipated uses of all such funding to the Committees on Appropriations of the House of Representatives and the Senate: Provided, That each report shall include estimated personnel and administrative costs, as well as the total amount of funding apportioned, allotted, obligated, and expended, to date: Provided further, That each such report shall be updated and submitted to such Committees every 60 days until all funds are expended or expire: Provided further, That reports submitted pursuant to this section shall satisfy the requirements of section 1701 of division A of Public Law 116–127.

SEC. 1302. Each amount appropriated or made available by this Act is in addition to amounts otherwise appropriated for the fiscal year involved.

SEC. 1303. No part of any appropriation contained in this Act shall remain available for obligation beyond the current fiscal year unless expressly so provided herein.

SEC. 1304. Unless otherwise provided for by this Act, the additional amounts appropriated by this Act to appropriations accounts shall be available under the authorities and conditions applicable to such appropriations accounts for fiscal year 2021.

SEC. 1305. Each amount designated in this Act by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985 shall be available (or rescinded or transferred, if applicable) only if the President subsequently so designates all such amounts and transmits such designations to the Congress.

SEC. 1306. (a) STATUTORY PAYGO EMERGENCY DESIGNATION.—The amounts provided under division B and each succeeding division are designated as an emergency requirement pursuant to section 4(g) of the Statutory Pay-As-You-Go Act of 2010 (2 U.S.C. 933(g)), and the budgetary effects shall not be entered on either PAYGO scorecard maintained pursuant to section 4(d) of such Act.

(b) SENATE PAYGO EMERGENCY DESIGNATION.—In the Senate, division B and each succeeding division are designated as an emergency requirement pursuant to section 4112(a) of H. Con. Res. 71 (115th Congress), the concurrent resolution on the budget for fiscal year 2018.

(c) CLASSIFICATION OF BUDGETARY EFFECTS.—Notwithstanding Rule 3 of the Budget Scorekeeping Guidelines set forth in the joint explanatory statement of the committee of conference accompanying Conference Report 105–217 and section 250(c)(8) of the Balanced Budget and Emergency Deficit Control Act of 1985, the budgetary effects of division B and each succeeding division—

(1) shall not be estimated for purposes of section 251 of such Act;

(2) shall not be estimated for purposes of paragraph (4)(C) of section 3 of the Statutory Pay As-You-Go Act of 2010 as being included in an appropriation Act; and

(3) shall be treated as if they were contained in a PAYGO Act, as defined by section 3(7) of the Statutory Pay-As-You-Go Act of 2010 (2 U.S.C. 932(7)).

SEC. 1307. (a) Any contract or agreement entered into by an agency with a State or local government or any other non-Federal entity for the purposes of providing covered assistance, including any information and documents related to the performance of and compliance with such contract or agreement, shall be—

(1) deemed an agency record for purposes of section 552(f)(2) of title 5, United States Code; and

(2) subject to section 552 of title 5, United States Code (commonly known as the ''Freedom of Information Act'').

(b) In this section—

(1) the term ''agency'' has the meaning given the term in section 551 of title 5, United States Code; and

(2) the term ''covered assistance''—

(A) means any assistance provided by an agency in accordance with an Act or amendments made by an Act to provide aid, assistance, or funding related to the outbreak of COVID–19 that is enacted before, on, or after the date of enactment of this Act; and

(B) includes any such assistance made available by an agency under—

(i) any division of this Act;

(ii) the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139), or an amendment made by that Act;

(iii) the CARES Act (Public Law 116–136), or an amendment made by that Act;

(iv) the Families First Coronavirus Response Act (Public Law 116–127), or an amendment made by that Act; or

(v) the Coronavirus Preparedness and Response Supplemental Appropriations Act, 2020

(Public Law 116–123), or an amendment made by that Act.

SEC. 1308. (a) Notwithstanding any other provision of law and in a manner consistent with other provisions in any division of this Act, all laborers and mechanics employed by contractors and subcontractors on projects funded directly by or assisted in whole or in part by and through the Federal Government pursuant to any division of this Act shall be paid wages at rates not less than those prevailing on projects of a character similar in the locality as determined by the Secretary of Labor in accordance with subchapter IV of chapter 31 of title 40, United States Code. With respect to the labor standards specified in this section, the Secretary of Labor shall have the authority and functions set forth in Reorganization Plan Numbered 14 of 1950 (64 Stat. 1267; 5 U.S.C. App.) and section 3145 of title 40, United States Code.

(b) The amounts provided by this section are designated by the Congress as being for an emergency requirement pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985.

This division may be cited as the ''Coronavirus Recovery Supplemental Appropriations Act, 2021''.

DIVISION B—PROVIDING RELIEF TO STUDENTS, INSTITUTIONS OF HIGHER EDUCATION, LOCAL EDUCATIONAL AGENCIES, AND STATE VOCATIONAL REHABILITATION AGENCIES

SEC. 100. SHORT TITLE.

This division may be cited as the ''Pandemic Education Response Act''.

TITLE I—HIGHER EDUCATION PROVISIONS

SEC. 101. DEFINITIONS.

In this title:

(1) AWARD YEAR.—The term ''award year'' has the meaning given the term in section 481(a) of the Higher Education Act of 1965 (20 U.S.C. 1088(a)).

(2) AUTHORIZING COMMITTEES.—The term ''authorizing committees'' has the meaning given the term in section 103 of the Higher Education Act of 1965 (20 U.S.C. 1003).

(3) FAFSA.—The term ''FAFSA'' means an application under section 483 of the Higher Education Act of 1965 (20 U.S.C. 1090) for Federal student financial aid.

(4) INSTITUTION OF HIGHER EDUCATION.—The term ''institution of higher education'' has the meaning given the term in section 102 of the Higher Education Act of 1965 (20 U.S.C. 1002).

(5) QUALIFYING EMERGENCY.—The term ''qualifying emergency'' has the meaning given the term in section 3502 of the CARES Act (Public Law 116–136), as amended by this Act.

(6) QUALIFYING EMERGENCY PERIOD.—The term ''qualifying emergency period'' means the period—

(A) beginning on the first day of a qualifying emergency; and

(B) ending on the later of the date on which the qualifying emergency expires or June 30, 2021.

(7) SECRETARY.—The term ''Secretary'' means the Secretary of Education.

Subtitle A—Cares Act Amendments

SEC. 111. APPLICATION OF CAMPUS-BASED AID WAIVERS.

(a) APPLICATION.—Section 3503 of the CARES Act is amended—

(1) in subsection (a)—

(A) by inserting ''or for any other award year that includes any portion of a qualifying emergency period,'' after ''2020–2021,''; and

(B) by inserting ''and a nonprofit organization providing employment under section 443(b)(5) of such Act'' after ''waive the requirement that a participating institution of higher education''; and

(2) in subsection (b), by striking ''during a period of a qualifying emergency'' and inserting ''during any award year that includes any portion of a qualifying emergency period''.

(b) EFFECTIVE DATE.—The amendments made by subsection (a) shall take effect as if included in the enactment of the CARES Act (Public Law 116–136).

SEC. 112. SUPPLEMENTAL EDUCATIONAL OPPORTUNITY GRANTS FOR EMERGENCY AID.

(a) USE AND TREATMENT.—Section 3504 of the CARES Act (Public Law 116–136) is amended—

(1) in subsection (a), by inserting ''that includes any portion of a qualifying emergency period'' after ''for a fiscal year''; and

(2) by striking subsection (c).

(b) EFFECTIVE DATE.—The amendments made by subsection (a) shall take effect as if included in the enactment of the CARES Act (Public Law 116–136).

SEC. 113. EXTENSION OF FEDERAL WORK-STUDY DURING A QUALIFYING EMERGENCY.

(a) FEDERAL WORK-STUDY DURING A QUALIFYING EMERGENCY.—Section 3505 of the CARES Act (Public Law 116–136) is amended—

(1) in subsection (a)—

(A) in the matter preceding paragraph (1)—

(i) by striking ''In the event of a qualifying emergency'' and inserting ''During a qualifying emergency period''; and

(ii) by striking ''(not to'' and all that follows through the semicolon and inserting ''in which affected students are unable to fulfill the students' work-study obligation due to such qualifying emergency, as follows:'';

(B) in paragraph (1), by striking ''as a one time grant'' and inserting ''as a one-time grant in each payment period the student is awarded work-study''; and

(C) in paragraph (2), by striking ''or was not completing the work obligation necessary to receive work study funds under such part prior to the occurrence of the qualifying emergency''; and

(2) in subsection (b)—

(A) in paragraph (1)—

(i) by striking ''for the academic year during which a qualifying emergency occurred;'' and inserting ''for an academic year that includes any portion of a qualifying emergency period; and''; and

(B) by striking paragraph (2) and redesignating paragraph (3) as paragraph (2).''.

(b) EFFECTIVE DATE.—The amendments made by subsection (a) shall take effect as if included in the enactment of the CARES Act (Public Law 116–136).

SEC. 114. SERVICE OBLIGATIONS FOR TEACHERS AND OTHER PROFESSIONALS.

(a) AMENDMENT.—Section 3519 of the CARES Act (Public Law 116–136) is amended—

(1) in the section heading, by inserting ''**AND OTHER PROFESSIONALS**'' after ''**TEACHERS**''; and

(2) by adding at the end the following:

''(c) FEDERAL PERKINS LOANS.—Notwithstanding section 465 of the Higher Education Act of 1965 (20 U.S.C. 1087ee), the Secretary shall waive the requirements of such section in regard to full-time service and shall consider an incomplete year of service of a borrower as fulfilling the requirement for a complete year of service under such section, if the service was interrupted due to a qualifying emergency.''.

(b) EFFECTIVE DATE.—The amendments made by subsection (a) shall take effect as if included in the enactment of the CARES Act (Public Law 116–136).

SEC. 115. CONTINUING EDUCATION AT AFFECTED FOREIGN INSTITUTIONS.

(a) IN GENERAL.—Section 3510 of the CARES Act (20 U.S.C. 1001 note) is amended—

(1) in subsection (a), by striking ''for the duration of such emergency'' and all that follows through the period at the end and inserting ''for purposes of title IV of the Higher Education Act of 1965 (20 U.S.C. 1070 et seq.) until the end of the covered period applicable to the institution.'';

(2) in subsection (b), by striking ''for the duration of the qualifying emergency and the following payment period for purposes of title IV of the Higher Education Act of 1965 (20 U.S.C. 1070 et seq.).'' and inserting ''until the end of the covered period applicable to the institution.'';

(3) in subsection (c), by striking ''for the duration of the qualifying emergency and the following payment period,'' and inserting ''until all covered periods for foreign institutions carrying out a distance education program authorized under this section have ended,'';

(4) in subsection (d)—

(A) in paragraph (1)—

(i) by striking ''for the duration of a qualifying emergency and the following payment period,'' and inserting ''until the end of the covered period applicable to a foreign institution,''; and

(ii) by striking ''allow a foreign institution'' and inserting ''allow the foreign institution'';

(B) in each of subparagraphs (A) and (B) of paragraph (2), by striking ''subsection (a)'' and inserting ''paragraph (1)'';

(C) in paragraph (3)(B), by striking ''30 days'' and inserting ''10 days''; and

(D) in paragraph (4)—

(i) by striking ''for the duration of the qualifying emergency and the following payment period,'' and inserting ''until all covered periods for foreign institutions that entered into written arrangements under paragraph (1) have ended,''; and

(ii) by striking ''identifies each foreign institution that entered into a written arrangement under subsection (a).'' and inserting the following: ''identifies, for each such foreign institution—

''(A) the name of the foreign institution;

''(B) the name of the institution of higher education located in the United States that has entered into a written arrangement with such foreign institution; and

''(C) information regarding the nature of such written arrangement, including which coursework or program requirements are accomplished at each respective institution.''; and

(5) by adding at the end the following:

''(e) DEFINITION OF COVERED PERIOD.—

''(1) IN GENERAL.—In this section, the term 'covered period', when used with respect to a foreign institution of higher education, means the period—

''(A) beginning on the first day of—

''(i) a qualifying emergency; or

''(ii) a public health emergency, major disaster or emergency, or national emergency declared by the applicable government authorities in the country in which the foreign institution is located; and

''(B) ending on the later of—

''(i) subject to paragraph (2), the last day of the payment period, for purposes of title IV of the Higher Education Act of 1965 (20 U.S.C. 1070 et seq.), following the end of any qualifying emergency or any emergency or disaster described in subparagraph (A)(ii) applicable to the foreign institution; or

''(ii) June 30, 2022.

''(2) SPECIAL RULE FOR CERTAIN PAYMENT PERIODS.—For purposes of subparagraph (B)(i), if the following payment period for an award year ends before June 30 of such award year, the covered period shall be extended until June 30 of such award year.''.

(b) EFFECTIVE DATE.—The amendments made by subsection (a) shall take effect as if included in the enactment of the CARES Act (Public Law 116–136).

SEC. 116. FUNDING FOR HBCU CAPITAL FINANCING; ENDOWMENT CHALLENGE GRANTS.

(a) FUNDING FOR HBCU CAPITAL FINANCING.—

(1) AMENDMENTS.—Section 3512 of division A of the Coronavirus Aid, Relief, and Economic Security Act (20 U.S.C. 1001 note) is amended—

(A) in subsection (a)—

(i) in paragraph (1), by striking ''may'' and inserting ''shall''; and

(ii) in paragraph (2)—

(I) in subparagraph (A), by striking ''or interest'' and inserting ''or interest, or any applicable fees or required funds,''; and

(II) in subparagraph (B)—

(aa) by striking ''payments'' and inserting ''payments, and any payments of applicable fees and required funds,''; and

(bb) by striking the period and inserting ''; and''; and

(III) by adding at the end the following:

''(C) the institution may pay, without penalty, any periodic installment of principal or interest required under the loan agreement for such loan.''; and

(B) in subsection (d), by striking ''$62,000,000'' and inserting ''such sums as may be necessary''.

(2) EFFECTIVE DATE.—The amendments made by this subsection shall take effect as if enacted as part of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136).

(b) ENDOWMENT CHALLENGE GRANTS.—For the duration of a qualifying emergency (as defined in section 3502 of the Coronavirus Aid, Relief, and Economic Security Act (20 U.S.C. 1001 note)), notwithstanding the provisions of subsections (b)(3), (c)(3)(B), and (d) of section 331 of the Higher Education Act of 1965 (20 U.S.C. 1065) applicable during the grant period for an endowment challenge grant awarded to an institution under such section 331 (20 U.S.C. 1065), the institution may use the endowment fund corpus plus any endowment fund income—

(1) for any educational purpose; or

(2) to defray any expenses necessary to the operation of the institution, including expenses of operations and maintenance, administration, academic and support personnel, construction and renovation, community and student services programs, and technical assistance.

SEC. 117. WAIVER AUTHORITY FOR INSTITUTIONAL AID.

(a) IN GENERAL.—Section 3517(a)(1)(D) of the CARES Act (Public Law 116–136) is amended by striking ''(b), (c), and (g)'' and inserting ''(b) and (c)''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall take effect as if included in the enactment of the CARES Act (Public Law 116–136).

SEC. 118. SCOPE OF MODIFICATIONS TO REQUIRED AND ALLOWABLE USES.

(a) AMENDMENT TO INCLUDE MINORITY SCIENCE AND ENGINEERING IMPROVEMENT PROGRAM.—Subsection (a) of section 3518 of the CARES Act (Public Law 116–136) is amended—

(1) by striking ''part A or B of title III,'' and inserting ''part A, part B, or subpart 1 of part E of title III,''; and

(2) by inserting ''1067 et seq.;'' after ''1060 et seq.;''.

(b) AMENDMENT TO MATCHING REQUIREMENT MODIFICATIONS.—Subsection (b) of section 3518 of the CARES Act (Public Law 116–136) is amended—

(1) by striking ''Notwithstanding'' and inserting the following:

''(1) IN GENERAL.—Notwithstanding'';

(2) in paragraph (1), as so designated by this subsection—

(A) by striking ''is authorized to'' and inserting ''shall''; and

(B) by striking ''share'' and inserting ''share, non-Federal share,''; and

(3) by adding at the end the following new paragraph:

''(2) WAIVER OF GEAR UP MATCHING REQUIREMENT.—

''(A) IN GENERAL.—Notwithstanding section 404C(b) of the Higher Education Act of 1965 (20 U.S.C. 1070a–23(b)), the Secretary shall waive, for the duration of the period described in subparagraph (B), any requirement for an eligible entity (as defined in section 404A(c) (20 U.S.C. 1070a–21(c))) to provide a percentage of the cost of the program authorized under chapter 2 of subpart 2 of part A of title IV of the Higher Education Act of 1965 (20 U.S.C. 1070a–21 et seq.) from State, local, institutional, or private funds.

''(B) DESCRIPTION OF PERIOD.—The period described in this subparagraph is the period beginning on the first day of a qualifying emergency and ending on September 30 of the fiscal year following the end of the qualifying emergency.''.

(c) AMENDMENT TO CLARIFY SCOPE OF AUTHORITY.—Section 3518 of the CARES Act (Public Law 116–136) is further amended by adding at the end the following new subsection:

''(d) SCOPE OF AUTHORITY.—Notwithstanding subsection (a), the Secretary may not modify the required or allowable uses of funds for grants awarded under chapter I or II of subpart 2 of part A of title IV of the Higher Education Act of 1965 (20 U.S.C. 1070a–11 et seq.; 1070a–21 et seq.), in a manner that deviates from the overall purpose of the grant program, as provided in the general authorization, findings, or purpose of the grant program under the applicable statutory provision cited in such chapter.''.

(d) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the enactment of the CARES Act (Public Law 116–136).

Subtitle B—Financial Aid Access

SEC. 121. EMERGENCY FINANCIAL AID GRANTS EXCLUDED FROM NEED ANALYSIS.

(a) TREATMENT OF EMERGENCY FINANCIAL AID GRANTS FOR NEED ANALYSIS.—Notwithstanding any provision of the Higher Education Act of 1965 (20 U.S.C. 1001 et seq.), emergency financial aid grants—

(1) shall not be included as income or assets (including untaxed income and benefits under section 480(b) of the Higher Education Act of 1965 (20 U.S.C. 1807vv(b))) in the computation of expected family contribution for any program funded in whole or in part under the Higher Education Act of 1965 (20 U.S.C. 1001 et seq.); and

(2) shall not be treated as estimated financial assistance for the purposes of section 471 or section 480(j) of the Higher Education Act of 1965 (20 U.S.C. 1087kk; 1087vv(j)).

(b) DEFINITION.—In this section, the term ''emergency financial aid grant'' means—

(1) an emergency financial aid grant awarded by an institution of higher education under section 3504 of the CARES Act (Public Law 116–136);

(2) an emergency financial aid grant from an institution of higher education made with funds made available under section 18004 of the CARES Act (Public Law 116–136); and

(3) any other emergency financial aid grant to a student from a Federal agency, a State, an Indian tribe, an institution of higher education, or a scholarship-granting organization (including a tribal organization, as defined in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304)) for the purpose of providing financial relief to students enrolled at institutions of higher education in response to a qualifying emergency.

SEC. 122. FACILITATING ACCESS TO FINANCIAL AID FOR RECENTLY UNEMPLOYED STUDENTS.

(a) TREATMENT AS DISLOCATED WORKER.—

(1) IN GENERAL.—Notwithstanding section 479(d)(1) of the Higher Education Act of 1965 (20 U.S.C. 1087ss(d)(1)), any individual who has applied for, or who is receiving, unemployment benefits at the time of the submission of a FAFSA for a covered award year shall be treated as a dislocated worker for purposes of the need analysis under part F of title IV such Act (20 U.S.C. 1087kk et seq.) applicable to such award year.

(2) INFORMATION TO APPLICANTS AND INSTITUTIONS.—The Secretary—

(A) for each covered award year, shall ensure that—

(i) any question on the FAFSA used to determine whether an applicant (or, as applicable, a spouse or parent of an applicant) is a dislocated worker includes an express reference to individuals who have been laid off;

(ii) any help text associated with a question described in clause (i) includes a description of an applicant's treatment as a dislocated worker under paragraph (1); and

(iii) the FAFSA includes a prominent notification, appearing immediately before questions related to tax returns or income that, if the applicant (or, as applicable, a spouse or parent of an applicant) has lost significant income earned from work due to a qualifying emergency, the applicant should contact the financial aid administrator at the institution where the applicant plans to enroll to provide current income information;

(B) in consultation with institutions of higher education, shall carry out activities to inform applicants for Federal student financial aid under the Higher Education Act of 1965 (20 U.S.C. 1001 et seq.)—

(i) of the treatment of individuals who have applied for, or who are receiving, unemployment benefits as dislocated workers under paragraph (1);

(ii) of the availability of means-tested Federal benefits for which such applicants may be eligible; and

(iii) of the ability of a financial aid administrator of an institution of higher education to use professional judgment as authorized under section 479A of the Higher Education Act of 1965 (20 U.S.C. 1087tt) and in accordance with subsection (b), to determine, where appropriate, that income earned from work is zero and consider unemployment benefits to be zero, if the applicant (or, as applicable, a spouse or parent of an applicant) has applied for or is receiving unemployment benefits;

(C) shall carry out activities to inform institutions of higher education of the authority of such institutions, with explicit written consent of an applicant for Federal student financial aid under the Higher Education Act of 1965 (20 U.S.C. 1001 et seq.), to provide information collected from such applicant's FAFSA to an organization assisting the applicant in applying for and receiving Federal, State, local, or tribal assistance in accordance with section 312 of the Department of Defense and Labor, Health and Human Services, and Education Appropriations Act, 2019 and Continuing Appropriations Act, 2019 (Public Law 115– 245); and

(D) in consultation with the Secretary of Labor, shall carry out activities to inform applicants for, and recipients of, unemployment benefits of the availability of Federal student financial aid under the Higher Education Act of 1965 (20 U.S.C. 1001 et seq.) and the treatment of such applicants and recipients as dislocated workers under paragraph (1).

(3) IMPLEMENTATION.—The Secretary shall implement this subsection not later than 30 days after the date of enactment of this Act.

(4) APPLICABILITY.—Paragraph (1) shall apply with respect to a FAFSA submitted on or after the earlier of—

(A) the date on which the Secretary implements this subsection under paragraph (3); or

(B) the date that is 30 days after the date of enactment of this Act.

(b) PROFESSIONAL JUDGMENT OF FINANCIAL AID ADMINISTRATORS.—For the purposes of making a professional judgment as authorized under section 479A of the Higher Education Act of 1965 (20 U.S.C. 1087tt), a financial aid administrator may, during a covered award year—

(1) determine that the income earned from work for a student, or a parent or spouse of a student, as applicable, is zero, if the student, parent, or spouse provides paper or electronic documentation of receipt of unemployment benefits or confirmation that an application for unemployment benefits was submitted;

(2) consider the value of unemployment benefits for such student, parent, or spouse to be zero; and

(3) make appropriate adjustments to the data items on the FAFSA for a student, parent, or spouse, as applicable, based on the totality of the family's situation.

(c) UNEMPLOYMENT DOCUMENTATION.—For the purposes of documenting unemployment benefits or application for such benefits under subsection (b), such documentation shall be accepted if such documentation is submitted not more than 90 days from the date on which such documentation was issued, unless a financial aid administrator knows that the student, parent, or spouse, as applicable, has already obtained other employment.

(d) ADJUSTMENTS TO PROGRAM REVIEW MODEL.—The Secretary shall make adjustments to the model used to select institutions of higher education participating in title IV of the Higher Education Act of 1965 (20 U.S.C. 1070 et seq.) for program reviews, in order to—

(1) account for any rise in the use of professional judgment as authorized under section 479A of such Act (20 U.S.C. 1087tt) during the 2020–2021 and 2021–2022 award years; and

(2) ensure that institutions are not penalized for an increase in the use of professional judgment during such award years.

(e) DEFINITIONS.—In this section:

(1) COVERED AWARD YEAR.—The term ''covered award year'' means—

(A) an award year during which there is a qualifying emergency; and

(B) the first award year beginning after the end of such qualifying emergency.

(2) MEANS-TESTED FEDERAL BENEFIT.—The term ''means-tested Federal benefit'' includes the following:

(A) The supplemental security income program under title XVI of the Social Security Act (42 U.S.C. 1381 et seq.).

(B) The supplemental nutrition assistance program under the Food and Nutrition Act of 2008 (7 U.S.C. 2011 et seq.).

(C) The free and reduced price school lunch program established under the Richard B. Russell National School Lunch Act (42 U.S.C. 1751 et seq.).

(D) The program of block grants for States for temporary assistance for needy families established under part A of title IV of the Social Security Act (42 U.S.C. 601 et seq.).

(E) The special supplemental nutrition program for women, infants, and children established by section 17 of the Child Nutrition Act of 1966 (42 U.S.C. 1786).

(F) The Medicaid program under title XIX of the Social Security Act (42 U.S.C. 1396 et seq.).

(G) The tax credits provided under the following sections of the Internal Revenue Code of 1986 (title 26, United States Code):

(i) Section 25A (relating to American Opportunity and Lifetime Learning credits).

(ii) Section 32 (relating to earned income).

(iii) Section 36B (relating to refundable credit for coverage under a qualified health plan).

(iv) Section 6428 (relating to 2020 recovery rebates for individuals).

(H) Federal housing assistance programs, including tenant-based assistance under section 8(o) of the United States Housing Act of 1937 (42 U.S.C. 1437f(o)), and public housing, as defined in section 3(b)(1) of such Act (42 U.S.C. 1437a(b)(1)).

(I) Such other Federal means-tested benefits as may be identified by the Secretary.

SEC. 123. STUDENT ELIGIBILITY FOR HIGHER EDUCATION EMERGENCY RELIEF FUND AND OTHER HIGHER EDUCATION FUNDS.

(a) IN GENERAL.—With respect to student eligibility for receipt of funds provided under section 18004 of the CARES Act (Public Law 116–136) and under title VIII of division A of this Act—

(1) the Secretary is prohibited from imposing any restriction on, or defining, the populations of students who may receive such funds other than a restriction based solely on the student's enrollment at the institution of higher education; and

(2) section 401(a) the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1611(a)) shall not apply.

(b) EFFECTIVE DATE.—Subsection (a) shall take effect as if included in the enactment of the CARES Act (Public Law 116–136), and an institution of higher education that provided funds to a student before the date of enactment of this Act shall not be penalized if such provision is consistent with such subsection and section 18004 of the CARES Act (Public Law 116–136).

SEC. 124. DISTANCE EDUCATION.

(a) DEFINITION OF DISTANCE EDUCATION.—

(1) IN GENERAL.—Notwithstanding section 103(7) of the Higher Education Act of 1965 (20 U.S.C. 1003(7)) and except as otherwise specified in section 486 of the Higher Education Act of 1965 (20 U.S.C. 1093), the term ''distance education'' as used in title IV of the Higher Education Act of 1965 (20 U.S.C. 1070 et seq.) shall have the meaning given that term in section 600.2 of title 34, Code of Federal Regulations, as amended by the final regulations entitled ''Distance Education and Innovation'' published by the Department of Education in the Federal Register on September 2, 2020 (85 Fed. Reg. 54809), or any succeeding regulations.

(2) INFORMATION TO ACCREDITING AGENCY.—Not later than 90 days after the date of enactment of this Act, each institution of higher education that participates in a program under title IV of the Higher Education Act of 1965 (20 U.S.C. 1070 et seq.) and that provides one or more educational programs through distance education shall submit to the institution's accrediting agency or association, a description of how the institution plans to meet the requirements of this subsection.

(3) EFFECTIVE DATE.—This subsection shall take effect with respect to any semester (or the equivalent) that begins on or after December 1, 2020.

(b) APPROVAL FOR EXPANDED DISTANCE EDUCATION.—

(1) IN GENERAL.—

(A) IN GENERAL.—Notwithstanding section 481(b)(3) of the Higher Education Act of 1965 (20 U.S.C. 1088(b)(3)), an institution of higher education described in subparagraph (B) may deliver distance education by offering programs in whole or in part through telecommunications and be eligible to participate in a program under title IV if such institution meets the requirements of paragraphs (2) through (4).

(B) INSTITUTION OF HIGHER EDUCATION.—An institution of higher education described in this subparagraph is an institution of higher education that uses or expands distance education—

(i) in accordance with the flexibilities and waivers provided under the guidance of the Secretary on distance education; and

(ii) without following—

(I) the standard approval process for distance education (as in effect before March 5, 2020) of the Secretary; or

(II) the evaluation process of institution's accrediting agency or association described in paragraph (2)(A).

(2) COMMENCEMENT OF EVALUATION PROCESS WITH THE INSTITUTION'S ACCREDITING AGENCY.—

(A) IN GENERAL.—Not later than December 31, 2020, each institution described in paragraph (1)(B) shall demonstrate to the Secretary that such institution has commenced the evaluation process with its accrediting agency or association for the purpose of evaluating distance education to determine whether such institution has the capability to—

(i) effectively deliver distance education programs; and

(ii) meet the applicable policies and procedures of the accrediting agency or association (as such policies and procedures were in effect before March 5, 2020).

(B) ACCREDITING AGENCY OR ASSOCIATION.—In a case in which an accrediting agency or association does not have distance education in the scope of its recognition at the time an institution commences the evaluation process described in this paragraph, and such agency expands its scope of accreditation to include distance education, not later than 30 days after such change in scope, such agency shall notify the Secretary, in writing, of the change in scope to include distance education, in accordance with section 496(a)(4)(B)(i)(II) of the Higher Education Act of 1965 (20 U.S.C. 1099b(a)(4)(B)(i)(II)).

(3) COMMENCEMENT OF APPROVAL PROCESS WITH THE SECRETARY.—Not later than December 31, 2020, each institution described in paragraph (1)(B) shall commence, with the Secretary, the standard approval process for distance education of the Secretary referred to in paragraph (1)(B)(ii)(I).

(4) COMPLETION OF EVALUATION AND APPROVAL PROCESS.—

(A) IN GENERAL.—Not later than July 1, 2021, an institution of higher education described in paragraph (1)(B) shall demonstrate to the Secretary that—

(i) the institution has completed the evaluation process and standard approval process for distance education under paragraphs (2) and (3), respectively, for each of its applicable programs; and

(ii) each such program meets the applicable policies and procedures to offer distance education that are required by the Secretary and the institution's accrediting agency or association under such paragraphs.

(B) LOSS OF ELIGIBILITY.—An institution of higher education that does not meet the requirements of subparagraph (A) shall cease offering distance education programs until such time that such institution demonstrates to the Secretary that the institution and each of its applicable programs meet the requirements of subparagraph (A).

(c) REQUIREMENTS FOR CERTAIN COVERED ARRANGEMENTS.—

(1) ACCREDITOR REVIEW FOR COVERED ARRANGEMENTS WITH FOREIGN INSTITUTIONS.—An institution of higher education with a covered arrangement with a foreign institution shall demonstrate to the Secretary that the institution has commenced the evaluation process with the institution's accrediting agency or association to determine, in a case in which the accrediting agency or association has standards for the provision of educational services to another institution, whether such covered arrangement meets the standards.

(2) REPORTING TO THE SECRETARY.—Beginning not later than 30 days after the date of enactment of this Act, the Secretary shall require the following:

(A) INSTITUTIONS WITH COVERED ARRANGEMENTS WITH NON-TITLE-IV INSTITUTIONS OR ORGANIZATIONS.—An institution of higher education with a covered arrangement with a non-title-IV institution or organization shall report to the Secretary not later than 10 days after the institution of higher education establishes or modifies such covered arrangement—

(i) the name of the institution or organization that is not eligible to participate in a program under title IV;

(ii) a summary of such arrangement, including the percentages and components of the educational program to be offered by the institution of higher education and such institution or organization; and

(iii) an attestation that the institution of higher education and such institution or organization meet the requirements of section 668.5(c) of title 34, Code of Federal Regulations (as such section is in effect on the date of enactment of this Act), including the specific determination

from the institution of higher education's accrediting agency or association that the institution's arrangement meets the agency or association's standards for the contracting out of educational services.

(B) INSTITUTIONS WITH COVERED ARRANGEMENTS WITH FOREIGN INSTITUTIONS.—An institution of higher education with a covered arrangement with a foreign institution shall report to the Secretary—

(i) not later than 10 days after such institution establishes such covered arrangement—

(I) the name of the foreign institution; and

(II) a summary of such arrangement, including the percentages and components of the educational program to be offered by the institution of higher education and the foreign institution; and

(ii) if applicable, not later than 10 days after the date on which the institution's accrediting agency or association provides its determination to the institution in accordance with paragraph (1), the determination made by the institution's accrediting agency or association.

(3) INFORMATION MADE AVAILABLE TO STUDENTS.—

(A) INSTITUTIONS WITH COVERED ARRANGEMENTS WITH NON-TITLE-IV INSTITUTIONS OR ORGANIZATIONS.—An institution of higher education with a covered arrangement with a non-title-IV institution or organization shall provide directly to enrolled and prospective students, and make available on a publicly accessible website of the institution, a description of each covered arrangement with a non-title-IV institution or organization, including information on—

(i) the portion of the educational program that the institution of higher education is not providing;

(ii) the name and location of the non-title-IV institution or organization that is providing such portion of the educational program;

(iii) the method of delivery of such portion of the educational program; and

(iv) the estimated additional costs students may incur as the result of enrolling in an educational program that is provided under the covered arrangement.

(B) INSTITUTIONS WITH COVERED ARRANGEMENTS WITH FOREIGN INSTITUTIONS.—In the case of an institution of higher education with a covered arrangement with a foreign institution, the foreign institution in such arrangement shall provide the information described in subparagraph (A) regarding the covered arrangement in the same manner as applies to an institution of higher education with a covered arrangement with a non-title-IV institution or organization subject to such subparagraph.

(4) ENFORCEMENT.—The Secretary shall take such enforcement actions under section 487(c) of the Higher Education Act of 1965 (20 U.S.C. 1094(c)) as necessary until such time as an institution of higher education with a covered arrangement subject to this subsection can demonstrate that the institution meets—

(A) the standards of the institution's accrediting agency or association for the contracting out of educational services; and

(B) in the case of an institution with a covered arrangement with a foreign institution, the standards, if applicable, of the accrediting agency or association for the provision of educational services to another institution.

(d) REQUIRED REPORTS.—

(1) REPORTS BY ACCREDITING AGENCY OR ASSOCIATION.—

(A) IN GENERAL.—Not later than 15 business days after an accrediting agency or association completes the review of an institution of higher education subject to the requirements of subsection (b) or (c), the accrediting agency or association shall publish a report regarding the review.

(B) REQUIREMENTS.—The report under subparagraph (A) shall—

(i) be published on the website of the accrediting agency or association; and

(ii) include a summary of the conclusion and the relevant findings that such agency or association provided such institution of higher education in granting, as applicable—

(I) the approval or denial for an institution of higher education to deliver distance education under subsection (b); or

(II) the approval or denial of an institution of higher education to enter into or modify a written arrangement in accordance with subsection (c).

(2) REPORTS BY SECRETARY.—By March 31, 2021, and quarterly thereafter, the Secretary shall provide the Committee on Health, Education, Labor, and Pensions of the Senate and the Committee on Education and Labor of the House of Representatives, and publish on a publicly available website, a report of the information collected under paragraph (1) and subsection (c)(2).

(e) OTHER DEFINITIONS.—In this section:

(1) ACCREDITING AGENCY OR ASSOCIATION.—The term ''accrediting agency or association'' means—

(A) an accrediting agency or association that is recognized by the Secretary under subpart 2 of part H of title IV of the Higher Education Act of 1965 (20 U.S.C. 1099b); or

(B) in the case of a public postsecondary vocational institution whose eligibility for Federal student assistance programs is being determined by a State agency listed under section 487(c)(4) of the Higher Education Act of 1965 (20 U.S.C. 1094(c)(4)), such a State agency.

(2) COVERED ARRANGEMENT WITH A FOREIGN INSTITUTION.—The term ''covered arrangement with a foreign institution'' means a written arrangement entered into between an institution of higher education and a foreign institution, on or after March 13, 2020, to provide an educational program.

(3) COVERED ARRANGEMENT WITH A NON-TITLE-IV INSTITUTION OR ORGANIZATION.—The term ''covered arrangement with a non-title-IV institution or organization'' means a written arrangement—

(A) to provide an educational program that satisfies the requirements of section 668.8 of title 34, Code of Federal Regulations (as such section is in effect on the date of enactment of this Act) between an institution of higher education and an institution or organization that is not eligible to participate in a program under title IV;

(B) entered into, or modified, on or after March 13, 2020; and

(C) through which the institution or organization that is not eligible to participate in a program under title IV will provide more than 25 percent, but less than 50 percent of the educational program subject to the arrangement.

(4) FOREIGN INSTITUTION.—The term ''foreign institution'' means an institution located outside the United States that is described in paragraphs (1)(C) and (2) of section 102(a) of the Higher Education Act of 1965 (20 U.S.C. 1002(a)).

(5) GUIDANCE OF THE SECRETARY ON DISTANCE EDUCATION.—The term ''guidance of the Secretary on distance education'' means the guidance of the Secretary entitled ''UPDATED Guidance for interruptions of study related to Coronavirus (COVID–19)'' dated June 16, 2020 (or prior or succeeding guidance).

(6) INSTITUTION OF HIGHER EDUCATION.—The term ''institution of higher education'' has the meaning given that term in section 102 of the Higher Education Act of 1965 (20 U.S.C. 1002).

(7) PROGRAM UNDER TITLE IV.—The term ''program under title IV'' means the following programs under title IV of the Higher Education Act of 1965 (20 U.S.C. 1070 et seq.):

(A) The Federal Pell Grant program under section 401 of such Act (20 U.S.C. 1070a).

(B) The Federal Supplemental Educational Opportunity Grant program under subpart 3 of part A of such title IV (20 U.S.C. 1070b).

(C) The Federal work-study program under part C of such title IV (20 U.S.C. 1087–51 et seq.).

(D) The Federal Direct Loan program under part D of such title IV (20 U.S.C. 1087a et seq.).

SEC. 125. REQUIREMENTS FOR TEACH-OUT PLANS AND TEACH-OUT AGREEMENTS.

(a) REQUIREMENTS.—

(1) IN GENERAL.—Notwithstanding section 487(f)(2) of the Higher Education Act of 1965 (20 U.S.C. 1094(f)(2)), in the event an institution of higher education, during the period described in subsection (d), is required to submit to its accrediting agency or association a teach-out plan (in accordance with section 487(f) and section 496(c)(3) of such Act (20 U.S.C. 1094(f); 1099b(c)(3))), or to submit a teach-out agreement among institutions (in accordance with section 496(c)(6) of such Act (20 U.S.C. 1099b(c)(6))), the following shall apply to such plans and agreements:

(A) The definitions and requirements described in this subsection.

(B) Any other applicable standards of the institution's accrediting agency or association.

(C) Any other provisions the Secretary of Education determines are necessary to protect the interests of the United States and to promote the purposes of this section.

(2) CLOSING INSTITUTION DEFINED.—The term ''closing institution'' means an institution of higher education—

(A) that ceases to operate or plans to cease operations before all enrolled students have completed their program of study; or

(B) that has an institutional location that—

(i) provides 100 percent of at least 1 program offered by the institution of higher education; and

(ii) ceases to operate or plans to cease operations before all enrolled students have completed their program of study.

(3) TEACH-OUT PLANS.—

(A) TEACH-OUT PLAN DEFINED.—The term ''teach-out plan'' means a written plan developed by a closing institution that provides for the equitable treatment of students.

(B) CONTENTS OF TEACH-OUT PLANS.—A teach-out plan shall include a record-retention plan that includes—

(i) a plan for the custody (including by any applicable State authorizing agencies), and the disposition, of teach-out records that meets the requirements of paragraph (5)(B)(iii);

(ii) an assurance that in the event of the closure of the institution or an institutional location of the institution, such institution—

(I) will meet the requirements of paragraph (5)(B)(iv); and

(II) will refund students the amount of any unearned tuition, account balances, and student fees, and refunds due; and

(iii) an estimate of the costs necessary to carry out such record-retention plan.

(4) TEACH-OUT AGREEMENT DEFINED.—The term ''teach-out agreement'' means a written agreement between a closing institution and one or more other institutions of higher education (in this section referred to as a ''teach-out institution)'' that—

(A) provides for the equitable treatment of students and a reasonable opportunity for students to complete their program of study; and

(B) meets the requirements in section 496(c)(6) of the Higher Education Act of 1965 (20 U.S.C. 1099b(c)(6)).

(5) APPROVAL OF TEACH-OUT AGREEMENTS.—In approving a teach-out agreement, the accrediting agency or association shall determine a timeline for an interim teach-out agreement and a final teach-out agreement that provides for the equitable treatment of students and ensures—

(A) that the teach-out institution—

(i) to the extent practicable, is an institution of higher education that meets the requirements of section 101 or section 102(c) of the Higher Education Act of 1965 (20 U.S.C. 1001; 1002(c));

(ii) has the necessary experience, resources, and support services to provide an educational program that is of acceptable quality and reasonably similar in content, delivery modality,

and scheduling to that provided by the closing institution with which the teach-out institution has entered into the teach-out agreement;

(iii) has not been subject to a sanction of probation or equivalent or show cause by its accrediting agency or association or any applicable State authorizing or licensing agency in the past 5 years; and

(iv) shows no evidence of significant problems (including financial stability or administrative capability) that affect the institution's capacity to carry out its mission and meet all obligations to enrolled students, which shall include a showing that there is no evidence of the conditions described in section 602.24(c)(8) of title 34, Code of Federal Regulations, as in effect on the date of enactment of this Act; and

(B) that the closing institution—

(i) provides the accrediting agency or association and the Secretary a complete list of all students who are enrolled in each program at the institution or who have withdrawn from the institution within the last 180 days, including each student's name, contact information, program of study, the program requirements each student has completed, and the estimated date of completion in the absence of the closure of such institution or institutional location;

(ii) provides to the accrediting agency or association and the Secretary, for each program of study at the closing institution, records of any agreements pertaining to the acceptance of students, transfer of credits, articulation agreements, or waiver of program requirements between the closing institution and any other institutions of higher education;

(iii) provides a record-retention plan to all enrolled students that delineates the final disposition of teach-out records, digitally where practicable, including student transcripts, billing, financial aid records, and the amount of any unearned tuition, account balances, student fees, and refunds due to each such student;

(iv) releases all financial holds placed on student records and, for the 3-year period beginning on the date of the closure of such institution or institutional location, provides each student (including each student who withdrew from such institution during the 180-day period prior to the date of such closure) with the student's official transcripts and complete academic records at no cost to the student;

(v) provides students with information, using standard language developed by the Secretary under subsection (b), regarding—

(I) the benefits and consequences of choosing to—

(aa) continue the student's studies by transferring to a teach-out institution; and

(bb) receive a closed school discharge under section 437(c)(1) and section 464(g)(1) of the Higher Education Act of 1965 (20 U.S.C. 1087(c)(1); 1087dd(g)(1)); and

(II) if applicable, information on institutional and State refund policies;

(vi) provides students with information about additional tuition and fee charges, if any, at the teach-out institution; and

(vii) provides students with accurate information on the number and types of credits the teach-out institution is willing to accept prior to the student's enrollment in that institution or any other institution of higher education with which the closing institution has an articulation agreement.

(6) SUBMISSION OF TEACH-OUT PLANS AND TEACH-OUT AGREEMENTS.—

(A) SUBMISSION OF NOTICE.—Not later than 10 days after being required to submit a teach-out plan or teach-out agreement to its accrediting agency or association, the institution of higher education shall submit a notice of such plan or agreement to the Secretary of Education and to any applicable State authorizing agencies of such institution.

(B) SUBMISSION OF PLAN OR AGREEMENT.—Not later than 5 days after receiving approval from its accrediting agency or association of a teach-out plan or teach-out agreement, as applicable, the institution of higher education shall submit the approved plan or agreement to the Secretary of Education and to any applicable State authorizing agencies of such institution.

(b) STANDARD LANGUAGE.—Not later than 60 days after the date of the enactment of this section, the Secretary of Education shall publish standard language relating to closed school discharges for purposes of subsection (a)(5)(B)(v).

(c) PROHIBITION ON MISREPRESENTATIONS.—

(1) IN GENERAL.—An institution of higher education is prohibited from engaging in misrepresentation about the nature of teach-out plans, teach-out agreements, and transfer of credit.

(2) SANCTIONS.— Upon determination, after reasonable notice and opportunity for a hearing, that an institution of higher education is in violation of this subsection, the Secretary of Education—

(A) shall impose a civil penalty not to exceed $25,000 for each misrepresentation; and

(B) may impose an additional sanction described in section 497(c)(3) of the Higher Education Act of 1965 (20 U.S.C. 1094(c)(3)).

(d) COVERED PERIOD.—The provisions of this section shall be in effect during the period beginning on the date of enactment of this Act and ending on the date on which on which sections 487(f) of the Higher Education Act of 1965 (20 U.S.C. 1094(f)) or paragraphs (3) and (6) of section 493(c) of such Act (20 U.S.C. 1098b(c)) are amended or repealed.

Subtitle C—Federal Student Loan Relief

PART 1—TEMPORARY RELIEF FOR FEDERAL STUDENT BORROWERS

SEC. 131. EXPANDING LOAN RELIEF TO ALL FEDERAL STUDENT LOAN BORROWERS.

Section 3502(a) of division A of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) is amended—

(1) by redesignating paragraphs (2) through (5) as paragraphs (3) through (6), respectively; and

(2) by inserting after paragraph (1) the following:

''(2) FEDERAL STUDENT LOAN.—The term 'Federal student loan' means a loan—

''(A) made under part B, part D, or part E of title IV of the Higher Education Act of 1965 (20 U.S.C. 1071 et seq., 1087a et seq., 1087aa et seq.), and held by the Department of Education;

''(B) made, insured, or guaranteed under part B of such title, or made under part E of such title, and not held by the Department of Education; or

''(C) made under—

''(i) subpart II of part A of title VII of the Public Health Service Act (42 U.S.C. 292q et seq.); or

''(ii) part E of title VIII of the Public Health Service Act (42 U.S.C. 297a et seq.).''.

SEC. 132. EXTENDING THE LENGTH OF BORROWER RELIEF DUE TO THE CORONAVIRUS EMERGENCY.

Section 3513 of division A of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) is amended—

(1) by amending subsection (a) to read as follows:

''(a) SUSPENSION OF PAYMENTS.—

''(1) IN GENERAL.—During the period beginning on March 13, 2020, and ending on September 30, 2021, the Secretary or, as applicable, the Secretary of Health and Human Services, shall suspend all payments due on Federal student loans.

''(2) TRANSITION PERIOD.—For one additional 30-day period beginning on the day after the last day of the suspension period described in subsection (a), the Secretary or, as applicable, the Secretary of Health and Human Services, shall ensure that any missed payments on a Federal student loan by a borrower during such additional 30-day period—

''(A) do not result in collection fees or penalties associated with late payments; and

''(B) are not reported to any consumer reporting agency or otherwise impact the borrower's credit history.

''(3) DETERMINATION OF COMPENSATION.—The Secretary or, as applicable, the Secretary of Health and Human Services shall—

''(A) with respect to a holder of a Federal student loan defined in subparagraph (B) or (C) of section 3502(a)(2)—

''(i) determine any losses for such holder due to the suspension of payments on such loan under paragraph (1); and

''(ii) establish reasonable compensation for such losses; and

''(B) not later than 60 days after the date of enactment of the Pandemic Education Response Act, with respect to a borrower who made a payment on a Federal student loan defined in subparagraph (B) or (C) of section 3502(a)(2) during the period beginning on March 13, 2020, and ending on such date of enactment, the Secretary shall pay to the borrower, an amount equal to the lower of—

''(i) the amount paid by the borrower on such loan during such period; or

''(ii) the amount that was due on such loan during such period.

''(4) RECERTIFICATION.—A borrower who is repaying a Federal student loan pursuant to an income-contingent repayment plan under section 455(d)(1)(D) of the Higher Education Act of 1965 (20 U.S.C. 1087e(d)(1)(D)) or an income-based repayment plan under section 493C of such Act (20 U.S.C. 1098e) shall not be required to recertify the income or family size of the borrower under such plan prior to December 31, 2021.'';

(2) in subsection (c), by striking ''part D or B of title IV of the Higher Education Act of 1965 (20 U.S.C. 1087a et seq.; 1071 et seq.)'' and inserting ''part B, D, or E of title IV of the Higher Education Act of 1965 (20 U.S.C. 1087a et seq.; 1071 et seq.; 1087aa et seq.)'';

(3) in subsection (d), by striking ''During the period in which the Secretary suspends payments on a loan under subsection (a), the Secretary'' and inserting ''During the period in which payments on a Federal student loan are suspended under subsection (a), the Secretary or, as applicable, the Secretary of Health and Human Services'';

(4) in subsection (e), by striking ''During the period in which the Secretary suspends payments on a loan under subsection (a), the Secretary'' and inserting ''During the period in which payments on a Federal student loan are suspended under subsection (a), the Secretary or, as applicable, the Secretary of Health and Human Services''; and

(5) in subsection (f), by striking ''the Secretary'' and inserting ''the Secretary or, as applicable, the Secretary of Health and Human Services,''.''

SEC. 133. NO INTEREST ACCRUAL.

Section 3513(b) of division A of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) is amended to read as follows:

''(b) PROVIDING INTEREST RELIEF.—

''(1) NO ACCRUAL OF INTEREST.—

''(A) IN GENERAL.—During the period described in subparagraph (D), interest on a Federal student loan shall not accrue or shall be paid by the Secretary (or the Secretary of Health and Human Services) during—

''(i) the repayment period of such loan;

''(ii) any period excluded from the repayment period of such loan (including any period of deferment or forbearance);

''(iii) any period in which the borrower of such loan is in a grace period; or

''(iv) any period in which the borrower of such loan is in default on such loan.

''(B) DIRECT LOANS AND DEPARTMENT OF EDUCATION HELD FFEL AND PERKINS LOANS.—For purposes of subparagraph (A), interest shall not accrue on a Federal student loan defined in section 3502(a)(2)(A).

''(C) FFEL AND PERKINS LOANS NOT HELD BY THE DEPARTMENT OF EDUCATION AND HHS LOANS.—For purposes of subparagraph (A)—

''(i) in the case of a Federal student loan defined in section 3502(a)(2)(B), the Secretary shall pay, on a monthly basis, the amount of interest due on the unpaid principal of such loan to the holder of such loan, except that any payments made under this clause shall not affect payment calculations under section 438 of the Higher Education Act of 1965 (20 U.S.C. 1087–1); and

''(ii) in the case of a Federal student loan defined in section 3502(a)(2)(C), the Secretary of Health and Human Services shall pay, on a monthly basis, the amount of interest due on the unpaid principal of such loan to the holder of such loan.

''(D) PERIOD DESCRIBED.—

''(i) IN GENERAL.—The period described in this clause is the period beginning on March 13, 2020, and ending on the later of—

''(I) September 30, 2021; or

''(II) the day following the date of enactment of the Pandemic Education Response Act that is 2 months after the national U–5 measure of labor underutilization shows initial signs of recovery.

''(ii) DEFINITIONS.—In this subparagraph:

''(I) NATIONAL U–5 MEASURE OF LABOR UNDERUTILIZATION.—The term 'national U–5 measure of labor underutilization' means the seasonally-adjusted, monthly U–5 measure of labor underutilization published by the Bureau of Labor Statistics.

''(II) INITIAL SIGNS OF RECOVERY.—The term 'initial signs of recovery' means that the average national U–5 measure of labor underutilization for months in the most recent 3-consecutive-month period for which data are available—

''(aa) is lower than the highest value of the average national U–5 measure of labor underutilization for a 3-consecutive-month period during the period beginning in March 2020 and the most recent month for which data from the Bureau of Labor Statistics are available by an amount that is equal to or greater than one-third of the difference between—

''(AA) the highest value of the average national U–5 measure of labor underutilization for a 3-consecutive-month period during such period; and

''(BB) the value of the average national U–5 measure of labor underutilization for the 3-consecutive-month period ending in February 2020; and

''(bb) has decreased for each month during the most recent 2 consecutive months for which data from the Bureau of Labor Statistics are available.

''(E) OTHER DEFINITIONS.—In this paragraph:

''(i) DEFAULT.—The term 'default'—

''(I) in the case of a Federal student loan made, insured, or guaranteed under part B or D of the Higher Education Act of 1965, has the meaning given such term in section 435(l) of the Higher Education Act of 1965 (20 U.S.C. 1085);

''(II) in the case of a Federal student loan made under part E of the Higher Education Act of 1965, has the meaning given such term in section 674.2 of title 34, Code of Federal Regulations (or successor regulations); or

''(III) in the case of a Federal student loan defined in section 3502(a)(2)(C), has the meaning given such term in section 721 or 835 of the Public Health Service Act (42 U.S.C. 292q, 297a), as applicable.

''(ii) GRACE PERIOD.—The term 'grace period' means—

''(I) in the case of a Federal student loan made, insured, or guaranteed under part B or D of the Higher Education Act of 1965, the 6-month period after the date the student ceases to carry at least one-half the normal full-time academic workload, as described in section 428(b)(7) of the Higher Education Act of 1965 (20 U.S.C. 1078(b)(7));

''(II) in the case of a Federal student loan made under part E of the Higher Education Act of 1965, the 9-month period after the date on which a student ceases to carry at least one-half the normal full-time academic workload, as described in section 464(c)(1)(A) of the Higher Education Act of 1965 (20 U.S.C. 1087dd(c)(1)(A)); and

''(III) in the case of a Federal student loan defined in section 3502(a)(2)(C), the 1-year period described in section 722(c) of the Public Health Service Act (42 U.S.C. 292r(c)) or the 9-month period described in section 836(b)(2) of such Act (42 U.S.C. 297b(b)(2)), as applicable.

''(iii) REPAYMENT PERIOD.—The term 'repayment period' means—

''(I) in the case of a Federal student loan made, insured, or guaranteed under part B or D of the Higher Education Act of 1965, the repayment period described in section 428(b)(7) of the Higher Education Act of 1965 (20 U.S.C. 1078(b)(7));

''(II) in the case of a Federal student loan made under part E of the Higher Education Act of 1965, the repayment period described in section 464(c)(4) of the Higher Education Act of 1965 (20 U.S.C. 1087dd(c)(4)); or

''(III) in the case of a Federal student loan defined in section 3502(a)(2)(C), the repayment period described in section 722(c) or 836(b)(2) of the Public Health Service Act (42 U.S.C. 292r(c), 297b(b)(2)), as applicable.

''(2) INTEREST REFUND IN LIEU OF RETROACTIVE APPLICABILITY.—By not later than 60 days after the date of enactment of the Pandemic Education Response Act, the Secretary or, as applicable, the Secretary of Health and Human Services, shall, for each Federal student loan defined in subparagraph (B) or (C) of section 3502(a)(2) for which interest was not paid by such Secretary pursuant to paragraph (1) during the period beginning on March 13, 2020 and ending on such date of enactment—

''(A) determine the amount of interest due (or that would have been due in the absence of being voluntarily paid by the holder of such loan) on such loan during the period beginning March 13, 2020, and ending on such date of enactment; and

''(B) refund the amount of interest calculated under subparagraph (A), by—

''(i) paying the holder of the loan the amount of the interest calculated under subparagraph (A), to be applied to the loan balance for the borrower of such loan; or

''(ii) if there is no outstanding balance or payment due on the loan as of the date on which the refund is to be provided, providing a payment in the amount of the interest calculated under subparagraph (A) directly to the borrower.

''(3) SUSPENSION OF INTEREST CAPITALIZATION.—

''(A) IN GENERAL.—With respect to any Federal student loan, interest that accrued but had not been paid prior to March 13, 2020, and had not been capitalized as of such date, shall not be capitalized.

''(B) TRANSITION.—The Secretary or, as applicable, the Secretary of Health and Human Services, shall ensure that any interest on a Federal student loan that had been capitalized in violation of subparagraph (A) is corrected and the balance of principal and interest due for the Federal student loan is adjusted accordingly.''.

SEC. 134. NOTICE TO BORROWERS.

Section 3513(g) of division A of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) is amended—

(1) in the matter preceding paragraph (1), by striking ''the Secretary'' and inserting ''the Secretary or, as applicable, the Secretary of Health and Human Services,'';

(2) in paragraph (1)(D), by striking the period and inserting a semicolon;

(3) in paragraph (2)—

(A) in the matter preceding subparagraph (A), by striking ''August 1, 2020'' and inserting ''August 1, 2021''; and

(B) by amending subparagraph (B) to read as follows:

''(B) that—

''(i) a borrower of a Federal student loan made, insured, or guaranteed under part B or D of title IV of the Higher Education Act of 1965 may be eligible to enroll in an income-contingent repayment plan under section 455(d)(1)(D) of the Higher Education Act of 1965 (20 U.S.C. 1087e(d)(1)(D)) or an income-based repayment plan under section 493C of such Act (20 U.S.C. 1098e), including a brief description of such repayment plans; and

''(ii) in the case of a borrower of a Federal student loan defined in section 3502(a)(2)(C) or made under part E of title IV of the Higher Education of 1965, the borrower may be eligible to enroll in such a repayment plan if the borrower consolidates such loan with a loan described in clause (i) of this subparagraph, and receives a Federal Direct Consolidation Loan under part D of the Higher Education of 1965 (20 U.S.C. 1087a et seq.); and''; and

(C) by adding at the end the following:

''(3) in a case in which the accrual of interest on Federal student loans is suspended under subsection (b)(1) beyond September 30, 2021, during the 2-month period beginning on the date on which the national U–5 measure of labor underutilization shows initial signs of recovery (as such terms are defined in subsection (b)(1)(D)) carry out a program to provide not less than 6 notices by postal mail, telephone, or electronic communication to borrowers—

''(A) indicating when the interest on Federal student loans of the borrower will resume accrual and capitalization; and

''(B) the information described in paragraph (2)(B).''.

SEC. 135. IMPLEMENTATION.

Section 3513 of division A of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136), as amended by this part, is further amended by adding at the end the following:

''(i) IMPLEMENTATION.—

''(1) INFORMATION VERIFICATION.—

''(A) IN GENERAL.—To facilitate implementation of this section, information for the purposes described in subparagraph (B), shall be reported—

''(i) by the holders of Federal student loans defined in section 3502(a)(2)(B) to the satisfaction of the Secretary; and

''(ii) by the holders of Federal student loans defined in section 3502(a)(2)(C) to the satisfaction of the Secretary of Health and Human Services.

''(B) PURPOSES.—The purposes of the information reported under subparagraph (A) are to—

''(i) verify, at the borrower level, the payments that are provided or suspended under this section; and

''(ii) calculate the amount of any interest due to the holder for reimbursement of interest under subsection (b).

''(2) COORDINATION.—The Secretary shall coordinate with the Secretary of Health and Human Services to carry out the provisions of this section with respect to Federal student loans defined in section 3502(a)(2)(C).''.

SEC. 136. EFFECTIVE DATE.

Except as otherwise provided, this part, and the amendments made by this part, shall take effect as if enacted as part of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136).

PART 2—CONSOLIDATION LOANS AND PUBLIC SERVICE LOAN FORGIVENESS

SEC. 137. SPECIAL RULES RELATING TO FEDERAL DIRECT CONSOLIDATION LOANS.

(a) SPECIAL RULES RELATING TO FEDERAL DIRECT CONSOLIDATION LOANS AND PSLF.—

(1) PUBLIC SERVICE LOAN FORGIVENESS OPTION ON CONSOLIDATION APPLICATION.—

(A) IN GENERAL.—During the period described in subsection (e), the Secretary shall—

(i) include, in any application for a Federal Direct Consolidation Loan under part D of title IV of the Higher Education Act of 1965 (20 U.S.C. 1087a et seq,), an option for the borrower to indicate that the borrower intends to participate in the public service loan forgiveness program under section 455(m) of such Act (20 U.S.C. 1087e(m)); and

(ii) for each borrower who submits an application for a Federal Direct Consolidation Loan, without regard to whether the borrower indicates the intention described in clause (i)—

(I) request that the borrower submit a certification of employment; and

(II) after receiving a complete certification of employment—

(aa) carry out the requirements of paragraph (2); and

(bb) inform the borrower of the number of qualifying monthly payments made on the component loans before consolidation that shall be deemed, in accordance with paragraph (2)(D), to be qualifying monthly payments made on the Federal Direct Consolidation Loan.

(B) HOLD HARMLESS.—The Secretary may not change or otherwise rescind a calculation made under paragraph (2)(D) after informing the borrower of the results of such calculation under subparagraph (A)(ii)(II)(bb).

(2) PROCESS TO DETERMINE QUALIFYING PAYMENTS FOR PURPOSES OF PSLF.—Upon receipt of a complete certification of employment under paragraph (1)(A)(ii)(II) of a borrower who receives a Federal Direct Consolidation Loan described in paragraph (1)(A), the Secretary shall—

(A) review the borrower's payment history to identify each component loan of such Federal Direct Consolidation Loan;

(B) for each such component loan—

(i) calculate the weighted factor of the component loan, which shall be the factor that represents the portion of such Federal Direct Consolidation Loan that is attributable to such component loan; and

(ii) determine the number of qualifying monthly payments made on such component loan before consolidation;

(C) calculate the number of qualifying monthly payments determined under subparagraph (B)(ii) with respect to a component loan that shall be deemed as qualifying monthly payments made on the Federal Direct Consolidation Loan by multiplying—

(i) the weighted factor of such component loan as determined under subparagraph (B)(i), by

(ii) the number of qualifying monthly payments made on such component loan as determined under subparagraph (B)(ii); and

(D) calculate the total number of qualifying monthly payments with respect to the component loans of the Federal Direct Consolidation Loan that shall be deemed as qualifying monthly payments made on such Federal Direct Consolidation Loan by—

(i) adding together the result of each calculation made under subparagraph (C) with respect to each such component loan; and

(ii) rounding the number determined under clause (i) to the nearest whole number.

(3) DEFINITIONS.—For purposes of this subsection:

(A) CERTIFICATION OF EMPLOYMENT.—The term ''certification of employment'', used with respect to a borrower, means a certification of the employment of the borrower in a public service job (as defined in section 455(m)(3)(B) of the Higher Education Act of 1965) on or after October 1, 2007.

(B) COMPONENT LOAN.—The term ''component loan'', used with respect to a Federal Direct Consolidation Loan, means each loan for which the liability has been discharged by the proceeds of the Federal Direct Consolidation Loan, which—

(i) may include a loan that is not an eligible Federal Direct Loan (as defined in section 455(m)(3)(A) of the Higher Education Act of 1965); and

(ii) in the case of a subsequent consolidation loan, only includes loans for which the liability has been directly discharged by such subsequent consolidation loan.

(C) FEDERAL DIRECT CONSOLIDATION LOAN.—The term ''Federal Direct Consolidation Loan'' means a Federal Direct Consolidation Loan made under part D of title IV of the Higher Education Act of 1965 (20 U.S.C. 1087a et seq.).

(D) QUALIFYING MONTHLY PAYMENT.—

(i) COMPONENT LOAN.—The term ''qualifying monthly payment'', used with respect to a component loan, means a monthly payment on such loan made by a borrower, during a period of employment in a public service job (as defined in section 455(m)(3)(B) of the Higher Education Act of 1965 (20 U.S.C. 1087e(m)(3)(B)) on or after October 1, 2007, pursuant to—

(I) a repayment plan under part B, D, or E of title IV of the Higher Education Act of 1965 (20 U.S.C. 1071 et seq.; 1087a et seq.; 1087aa et seq.); or

(II) in the case of a loan made under subpart II of part A of title VII of the Public Health Service Act or under part E of title VIII of the Public Health Service Act, a repayment plan under title VII or VIII of such Act.

(ii) FEDERAL DIRECT CONSOLIDATION LOAN.—The term ''qualifying monthly payment'', used with respect to a Federal Direct Consolidation Loan, means a monthly payment on such loan that counts as 1 of the 120 monthly payments described in section 455(m)(1)(A) of the Higher Education Act of 1965 (20 U.S.C. 1087e(m)(3)(B)).

(b) SPECIAL RULES RELATING TO FEDERAL DIRECT CONSOLIDATION LOANS AND ICR AND IBR.—

(1) IN GENERAL.—During the period described in subsection (e), with respect to a borrower who receives a Federal Direct Consolidation Loan and who intends to repay such loan under an income-contingent repayment plan under section 455(d)(1)(D) of the Higher Education Act of 1965 (20 U.S.C. 1087e(d)(1)(D)) or an income-based repayment plan under section 493C of such Act (20 U.S.C. 1098e), the Secretary shall—

(A) review the borrower's payment history to identify each component loan of such Federal Direct Consolidation Loan;

(B) for each such component loan—

(i) calculate the weighted factor of the component loan, which shall be the factor that represents the portion of such Federal Direct Consolidation Loan that is attributable to such component loan; and

(ii) determine the number of qualifying monthly payments made on such component loan before consolidation;

(C) calculate the number of qualifying monthly payments determined under subparagraph (B)(ii) with respect to a component loan that shall be deemed as qualifying monthly payments made on the Federal Direct Consolidation Loan by multiplying—

(i) the weighted factor of such component loan as determined under subparagraph (B)(i), by

(ii) the number of qualifying monthly payments made on such component loan as determined under subparagraph (B)(ii); and

(D) calculate and inform the borrower of the total number of qualifying monthly payments with respect to the component loans of the Federal Direct Consolidation Loan that shall be deemed as qualifying monthly payments made on such Federal Direct Consolidation Loan by—

(i) adding together the result of each calculation made under subparagraph (C) with respect to each such component loan; and

(ii) rounding the number determined under clause (i) to the nearest whole number.

(2) HOLD HARMLESS.—The Secretary may not change or otherwise rescind a calculation made under paragraph (1)(D) after informing the borrower of the results of such calculation under such paragraph.

(3) DEFINITIONS.—In this subsection:

(A) COMPONENT LOAN; FEDERAL DIRECT CONSOLIDATION LOAN.—The terms ''component loan'' and ''Federal Direct Consolidation Loan'' have the meanings given the terms in subsection (a).

(B) QUALIFYING PAYMENT.—

(i) COMPONENT LOANS.—Subject to clause (ii), the term ''qualifying monthly payment'', used with respect to a component loan, means a monthly payment on such loan made by a borrower pursuant to—

(I) a repayment plan under part B, D, or E of title IV of the Higher Education Act of 1965 (20 U.S.C. 1071 et seq., 1087a et seq., 1087aa et seq.); or

(II) in the case of a loan made under subpart II of part A of title VII of the Public Health Service Act (42 U.S.C. 292q et seq.) or under part E of title VIII of the Public Health Service Act (42 U.S.C. 297a et seq.), a repayment plan under title VII or VIII of such Act.

(ii) CLARIFICATION.—

(I) ICR.—For purposes of determining the number of qualifying monthly payments made on a component loan pursuant to an income-contingent repayment plan under section 455(d)(1)(D) of the Higher Education Act of 1965 (20 U.S.C. 1087e(d)(1)(D)), each month a borrower is determined to meet the requirements of section 455(e)(7)(B)(i) of such Act with respect to such loan shall be treated as such a qualifying monthly payment.

(II) IBR.—For purposes of determining the number of qualifying monthly payments made on a component loan pursuant to an income-based repayment plan under section 493C of such Act (20 U.S.C. 1098e), each month a borrower was determined to meet the requirements of subsection (b)(7)(B) of such section 493C with respect to such loan shall be treated as such a qualifying monthly payment.

(iii) FEDERAL DIRECT CONSOLIDATION LOANS.—The term ''qualifying monthly payment'', used with respect to a Federal Direct Consolidation Loan, means a monthly payment on such loan that counts as a monthly payment under an income-contingent repayment plan under section 455(d)(1)(D) of the Higher Education Act of 1965 (20 U.S.C. 1087e(d)(1)(D)), or an income-based repayment plan under section 493C of the Higher Education Act of 1965 (20 U.S.C. 1098e).

(c) NOTIFICATION TO BORROWERS.—

(1) IN GENERAL.—During the period described in subsection (e), the Secretary and the Secretary of Health and Human Services shall undertake a campaign to alert borrowers of a loan described in paragraph (2)—

(A) on the benefits of consolidating such loans into a Federal Direct Consolidation Loan, including the benefits of the special rules under subsections (a) and (b) of this section; and

(B) under which servicers and holders of Federal student loans shall provide to borrowers such consumer information, and in such manner, as determined appropriate by the Secretaries, based on conducting consumer testing to determine how to make the information as meaningful to borrowers as possible.

(2) FEDERAL STUDENT LOANS.—A loan described in this paragraph is—

(A) a loan made under subpart II of part A of title VII of the Public Health Service Act or under part E of title VIII of such Act; or

(B) a loan made under part E of the Higher Education Act of 1965.

(d) SPECIAL RULE FOR INTEREST ON FEDERAL DIRECT CONSOLIDATION LOANS.—Any Federal Direct Consolidation Loan for which the application is received during the period described in subsection (e), shall bear interest at an annual rate as calculated under section 455(b)(8)(D) of the Higher Education Act of 1965 (20 U.S.C. 1087e(b)(8)(D)), without regard to the requirement to round the weighted average of the interest rate to the nearest higher one-eighth of one percent.

(e) PERIOD.—The period described in this clause is the period beginning on the date of enactment of this Act, and ending on the later of—

(1) September 30, 2021; or

(2) the day following the date of enactment of this Act that is 2 months after the national U–5 measure of labor underutilization shows initial signs of recovery (as such terms are defined in section 3513(b) of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136), as amended by this Act)).

(f) GAO STUDY ON IMPLEMENTATION OF SPECIAL RULES ON CONSOLIDATION.—Not later than 6 months after the date of enactment of this Act, the Comptroller General of the United States shall submit a report to the authorizing committees (defined in section 103 of the Higher Education Act of 1965 (20 U.S.C. 1003) on the implementation of this section, which shall include—

(1) information on borrowers who apply for or receive a Federal Direct Consolidation Loan under part D of the Higher Education Act of 1965 during the period described in subsection (e), disaggregated—

(A) by borrowers who intend to participate in the public service loan forgiveness program under section 455(m) of such Act (20 U.S.C. 1087e(m)); and

(B) by borrowers who intend to repay such loans on an income-contingent repayment plan under section 455(d)(1)(D) of the Higher Education Act of 1965 (20 U.S.C. 1087e(d)(1)(D)) or an income-based repayment plan under section 493C of such Act (20 U.S.C. 1098e);

(2) the extent to which the Secretary has established procedures for carrying out subsections (a) and (b);

(3) the extent to which the Secretary and the Secretary of Health and Human Services have carried out the notification to borrowers required under subsection (c); and

(4) recommendations on improving the implementation of this section to ensure increased borrower participation.

SEC. 138. TREATMENT OF PSLF.

(a) EXCEPTION FOR PURPOSES OF PSLF LOAN FORGIVENESS.—Section 455(m)(1)(B) of the Higher Education Act of 1965 (20 U.S.C. 1087e(m)(1)(B)) shall apply as if clause (i) were struck.

(b) HEALTH CARE PRACTITIONER.—In section 455(m)(3)(B)(i) of the Higher Education Act of 1965 (20 U.S.C. 1087e(m)(3)(B)(i)), the term ''full-time professionals engaged in health care practitioner occupations'' includes an individual who—

(1) has a full-time job as a health care practitioner;

(2) provides medical services in such full-time job at a nonprofit hospital or public hospital or other nonprofit or public health care facility; and

(3) is prohibited by State law from being employed directly by such hospital or other health care facility.

Subtitle D—Protecting Students

SEC. 141. NOTIFICATIONS AND REPORTING RELATING TO HIGHER EDUCATION.

(a) NOTIFICATION OF NON-CARES ACT FLEXIBILITIES.—

(1) NOTICE TO CONGRESS.—

(A) IN GENERAL.—Not later than two days before the date on which the Secretary grants a flexibility described in paragraph (4), the Secretary shall—

(i) submit to the authorizing committees a written notification of the Secretary's intent to grant such flexibility; and

(ii) publish the notification on a publicly accessible website of the Department of Education.

(B) ELEMENTS.—Each notification under subparagraph (A) shall—

(i) identify the provision of law, regulation, or subregulatory guidance to which the flexibility will apply;

(ii) identify any limitations on the flexibility, including any time limits;

(iii) identify the statutory authority under which the flexibility is provided;

(iv) identify the class of covered entities to which the flexibility will apply;

(v) identify whether a covered entity will need to request the flexibility or whether the flexibility will be applied without request;

(vi) in the case of a flexibility that requires a covered entity to request the flexibility, identify the factors the Secretary will consider in approving or denying the flexibility;

(vii) explain how the flexibility is expected to benefit the covered entity or class of covered entities to which it applies; and

(viii) explain the reasons the flexibility is necessary and appropriate due to COVID–19.

(2) QUARTERLY REPORTS.—Not later than 10 days after the end of each fiscal quarter for the duration of the qualifying emergency through the end of the first fiscal year beginning after the conclusion of such qualifying emergency, the Secretary shall submit to the authorizing committees a report that includes, with respect to flexibilities described in paragraph (4) that have been issued by the Secretary in the most recently ended fiscal quarter, the following:

(A) In the case of a flexibility that was issued by the Secretary without request from a covered entity, an explanation of all requirements, including reporting requirements, that the Secretary imposed on the covered entity as a condition of the flexibility.

(B) In the case of a flexibility for which a covered entity requested and received specific approval from the Secretary—

(i) identification of the covered entity that received the flexibility;

(ii) an explanation of the specific reasons for approval of the request;

(iii) a detailed description of the terms of the flexibility, including—

(I) a description of any limitations on the flexibility; and

(II) identification of each provision of law (including regulation and subregulatory guidance) that is waived or modified and, for each such provision, the statutory authority under which the flexibility was provided; and

(iv) a copy of the final document granting the flexibility.

(C) In the case of any request for a flexibility that was denied by the Secretary—

(i) identification of the covered entity or entities that were denied a flexibility;

(ii) a detailed description of the terms of the request for the flexibility; and

(iii) an explanation of the specific reasons for denial of the request.

(3) REPORT ON FLEXIBILITIES GRANTED BEFORE ENACTMENT.—Not later than 30 days after the date of enactment of this Act, the Secretary shall submit to the authorizing committees a report that—

(A) identifies each flexibility described in paragraph (4) that was granted by the Secretary between March 13, 2020, and the date of enactment of this Act; and

(B) with respect to each such flexibility, provides the information specified in paragraph (1)(B).

(4) FLEXIBILITY DESCRIBED.—A flexibility described in this paragraph is modification or waiver of any provision of the Higher Education Act of 1965 (20 U.S.C. 1001 et seq.) (including any regulation or subregulatory guidance issued under such a provision) that the Secretary determines to be necessary and appropriate to modify or waive due to COVID–19, other than a provision of the Higher Education Act of 1965 that the Secretary is specifically authorized to modify or waive pursuant to the CARES Act (Public Law 116–136).

(5) PRIVACY.—The Secretary shall ensure that any report or notification submitted under this subsection does not reveal personally identifiable information about an individual student.

(6) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to authorize the Secretary to waive or modify any provision of law.

(b) REPORTS ON EXERCISE OF CARES ACT WAIVERS BY INSTITUTIONS OF HIGHER EDUCATION.—Not later than 30 days after the date of enactment of this Act, each institution of higher education that exercises an authority provided under section 3503(b), section 3504, section 3505, section 3508(d), section 3509, or section 3517(b) of the CARES Act (Public Law 116–136) shall submit to the Secretary a report that describes the nature and extent of the institution's exercise of such authorities, including the number of students and amounts of aid provided under title IV of the Higher Education Act of 1965 (20 U.S.C. 1070 et seq.) affected by the exercise of such authorities, as applicable.

(c) REPORTS ON CHANGES TO CONTRACTS AND AGREEMENTS.—Not later than 10 days after the end of each fiscal quarter for the duration of the qualifying emergency through the end of the first fiscal year beginning after the conclusion of such qualifying emergency, the Secretary shall submit to the authorizing committees a report that includes, for the most recently ended fiscal quarter—

(1) a summary of all modifications to any contracts with Department of Education contractors relating to Federal student loans, including—

(A) the contractual provisions that were modified;

(B) the names of all contractors affected by the modifications; and

(C) estimates of any costs or savings resulting from the modifications;

(2) a summary of all amendments, addendums, or other modifications to program participation agreements with institutions of higher education under section 487 of the Higher Education Act of 1965 (20 U.S.C. 1094), any provisional program participation agreements entered into under such section, including—

(A) any provisions of such agreements that were modified by the Department of Education; and

(B) the number of institutions of higher education that received such modifications or entered into such provisional agreements, disaggregated by—

(i) status as a four-year, two-year, or less-than-two-year public institution, private nonprofit institution, or proprietary institution; and

(ii) each category of minority-serving institution described in section 371(a) of the Higher Education Act (20 U.S.C. 1067q); and

(3) sample copies of program participation agreements (including provisional agreements), selected at random from among the agreements described in paragraph (2), including at least one agreement from each type of institution (whether a public institution, private nonprofit institution, or proprietary institution) that received a modified or provisional agreement.

(d) REPORT TO CONGRESS.—

(1) IN GENERAL.—Not later than 90 days after the date of enactment of this Act, the Secretary shall submit to the authorizing committees a report that includes the following:

(A) A summary of the reports received by the Secretary under subsection (b).

(B) A description of—

(i) the Secretary's use of the authority under section 3506 of the CARES Act (Public Law 116–136) to adjust subsidized loan usage limits, including the total number of students and the total amount of subsidized loans under title IV of the Higher Education Act of 1965 (20 U.S.C. 1070 et seq.) affected by the Secretary's use of such authority;

(ii) the Secretary's use of the authority under section 3507 of the CARES Act (Public Law 116–136) to exclude certain periods from the Federal Pell Grant duration limit, including the total number of students and the total amount of Federal Pell Grants under section 401 of the Higher Education Act of 1965 (20 U.S.C. 1070a) affected by the Secretary's use of such authority; and

(iii) the Secretary's use of the authority under section 3508 of the CARES Act (Public Law 116–136) to waive certain requirements for the return of Federal funds, including—

(I) in the case of waivers issued to students under such section, the total number of students and the total amount of aid under title IV of the Higher Education Act of 1965 (20 U.S.C. 1070 et seq.) affected by the Secretary's use of such authority; and

(II) in the case of waivers issued to institutions of higher education under such section, the total number of students and the total amount of aid under title IV of the Higher Education Act of 1965 (20 U.S.C. 1070 et seq.) affected by the Secretary's use of such authority.

(C) A summary of the information required to be reported to the authorizing committees under sections 3510 and 3512 of the CARES Act (Public Law 116–136), as amended by this Act, regardless of whether such information has previously been reported to such committees as of the date of the report under this subsection.

(D) Information relating to the temporary relief for Federal student loan borrowers provided under section 3513 of the CARES Act (Public Law 116–136), including—

(i) with respect to the notifications required under subsection (g)(1) of such section—

(I) the total number of individual notifications sent to borrowers in accordance with such subsection, disaggregated by electronic, postal, and telephonic notifications;

(II) the total number of notifications described in clause (i) that were sent within the 15-day period specified in such subsection; and

(III) the actual costs to the Department of Education of making the notifications under such subsection;

(ii) the projected costs to the Department of Education of making the notifications required under subsection (g)(2) of such section;

(iii) the number of Federal student loan borrowers who have affirmatively opted-out of payment suspension under subsection (a) of such section;

(iv) the number of individual notifications sent to employers directing the employers to halt wage garnishment pursuant to subsection (e) of such section, disaggregated by electronic, postal, and telephonic notifications;

(v) the number of Federal student loan borrowers who have had their wages garnished pursuant to section 488A of the Higher Education Act of 1965 (20 U.S.C. 1095a) or section 3720D of title 31, United States Code, between March 13, 2020, and the date of the date of enactment of this Act;

(vi) the number of Federal student loan borrowers subject to interest capitalization as a result of consolidating Federal student loans since March 13, 2020, and the total amount of such interest capitalization;

(vii) the average daily call wait times and call drop rates, disaggregated by student loan servicer, for the period between March 13, 2020, and the date of enactment of this Act; and

(viii) the estimated or projected savings to the Department of Education for student loan servicing activities for the period beginning on March 13, 2020, and ending on September 30, 2020, due to lower reimbursement or contract costs per account for student loan servicers and private collection agencies resulting from the suspension of Federal student loan payments and halt to collection activities under the CARES Act (Public Law 116–136).

(E) Information relating to the special rules relating to Federal Direct Consolidation Loans under section 137 of this Act, including—

(i) the number of borrowers who submitted an application for a Federal Direct Consolidation Loan;

(ii) the number of borrowers who received a Federal Direct Consolidation Loan; and

(iii) the wait time between submitting an application and receiving a Federal Direct Consolidation Loan.

(F) A summary of the information required to be reported to the authorizing committees under section 3517(c) and section 3518(c) of the CARES Act (Public Law 116–136), as amended by this Act, regardless of whether such information has previously been reported to such committees as of the date of the report under this subsection.

(G) A copy of any communication from the Department of Education to grantees and Federal student loan borrowers eligible for rights and benefits under section 3519 of the CARES Act (Public Law 116–136) to inform such grantees and borrowers of their eligibility for such rights and benefits.

(2) DUTY OF HHS.—The Secretary of Health and Human Services shall provide to the Secretary of Education the information necessary for the Secretary of Education to comply with paragraph (1)(D).

(e) AMENDMENTS TO CARES ACT REPORTING REQUIREMENTS.—

(1) REPORTING REQUIREMENT FOR HBCU CAPITAL FINANCING LOAN DEFERMENT.—Section 3512(c) of the CARES Act (Public Law 116–136) is amended by striking the period at the end and inserting '', the terms of the loans deferred, and the schedule for repayment of the deferred loan amount.''.

(2) REPORTING REQUIREMENT FOR INSTITUTIONAL AID MODIFICATIONS.—Section 3517(c) of the CARES Act (Public Law 116–136) is amended by striking the period at the end and inserting '', identifies the statutory provision waived or modified, and describes the terms of the waiver or modification received by the institution.''.

(3) REPORTING REQUIREMENT FOR GRANT MODIFICATIONS.—Section 3518(c) of the CARES Act (Public Law 116–136) is amended by striking the period at the end and inserting ''and describes the terms of the modification received by the institution or other grant recipient.''.

(f) DEFINITIONS.—In this section:

(1) The term ''covered entity'' means an institution of higher education, a Federal contractor, a student, or any other entity that is subject to the Higher Education Act of 1965 (20 U.S.C. 1001 et seq.).

(2) The term ''Federal student loan'' means a loan described in section 3502(a)(2) of the CARES Act (Public Law 116–136), as amended by this Act.

SEC. 142. PROTECTING STUDENTS FROM PREDATORY RECRUITMENT.

(a) UNDERCOVER AND AUDIT-BASED INVESTIGATIONS.—During the covered period, in carrying out the provisions of subpart 3 of part H of title IV of such Act (20 U.S.C. 1099c et seq.), including paragraphs (1) and (2) of section 498A(a) of the Higher Education Act of 1965 (20 U.S.C. 1099c–1(a)), the Secretary of Education shall—

(1) conduct regular undercover and audit-based investigations for the purpose of encouraging the ethical treatment of students and prospective students and detecting fraud and abuse in the Federal student aid programs, including—

(A) violations described in section 487(c)(3) of the Higher Education Act of 1965 (20 U.S.C. 1094(c)(3));

(B) violations of section 487(a)(20) of such Act (20 U.S.C. 1094(a)(20));

(C) violations described in subparagraphs (A) and (B) by any entity with which the institution has contracted for student recruitment or admission activities; and

(D) violations of subsection (b) of this section;

(2) develop written guidelines for the investigations described in paragraph (1)—

(A) in accordance with commonly-accepted practices for undercover operations by Office of Inspector General of the Department of Education; and

(B) in consultation with other relevant agencies, including the Department of Justice, Federal Trade Commission, Consumer Financial Protection Bureau, and the Office of Inspector General of the Department of Education;

(3) ensure that institutions found in violation of the provisions under paragraph (1) shall be subject to a sanction determined by the Secretary of Education under section 487(c) of the Higher Education Act of 1965 (20 U.S.C. 1094(c)); and

(4) provide to the authorizing committees (as defined in section 103 of the Higher Education Act of 1965 (20 U.S.C. 1003)), and make available to the public, an annual report on—

(A) the findings of investigations described in paragraph (1); and

(B) the applicable sanctions imposed on institutions found in violation of the provisions described in paragraph (1).

(b) NOTICE OF INCENTIVE PAYMENT BAN.—During the covered period, each institution of higher education participating in a program under title IV of the Higher Education Act of 1965 (20 U.S.C. 1070 et seq.) shall—

(1) provide notice of the ban on prohibited incentive payment (including commissions and bonuses) under section 487(a)(20) of such Act (20 U.S.C. 1094(a)(20)) (and accompanying regulations) upon hiring an employee or entering into a contract with a third party contractor, and at least once per calendar year to employees and third-party contractors of the institution; and

(2) publish a clear statement in all internal recruitment materials, including guides or manuals, acknowledging such ban.

(c) SUNSET.—For purposes of this section, the term ''covered period'' means the period beginning on the date of enactment of this Act and ending on the date on which subpart 3 of part H of title IV of the Higher Education (20 U.S.C. 1099c) is amended or repealed.

TITLE II—IMPACT AID AND MIGRANT EDUCATION CORONAVIRUS RELIEF

SEC. 201. IMPACT AID.

Due to the national emergency declared by the President under the National Emergencies Act (50 U.S.C. 1601 et seq.) on March 13, 2020, with respect to the coronavirus, and notwithstanding sections 7002(j) and 7003(c) of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 7702(j), 7703(c)), a local educational agency desiring to receive a payment under section 7002 or 7003 of such Act (20 U.S.C. 7702, 7703) for fiscal year 2022 that also submitted an application for such payment for fiscal year 2021 shall, in the application submitted under section 7005 of such Act (20 U.S.C. 7705) for fiscal year 2022—

(1) with respect to a requested payment under section 7002 of such Act (20 U.S.C. 7702)—

(A) use the data described in subsection (j) of such section 7002 relating to calculating such payment that was submitted by the local educational agency in the application for fiscal year 2021; or

(B) use the data relating to calculating such payment for the fiscal year required under such subsection (j); and

(2) with respect to a requested payment under section 7003 of such Act (20 U.S.C. 7703)—

(A) use the student count data relating to calculating such payment that was submitted by the local educational agency in the application for fiscal year 2021, except that payments for fiscal year 2022 shall be calculated by the Secretary using the expenditures and rates described in clauses (i), (ii), (iii), and (iv) of subsection (b)(1)(C) of such section 7003 that would otherwise apply for fiscal year 2022; or

(B) use the student count data relating to calculating such payment for the fiscal year required under subsection (c) of such section 7003.

SEC. 202. EDUCATION OF MIGRATORY CHILDREN.

Due to the national emergency declared by the President under the National Emergencies Act (50 U.S.C. 1601 et seq.) on March 13, 2020, with respect to the coronavirus, and notwithstanding subsections (a)(1) and (f)(1) of section 1303 of the Elementary and Secondary Education Act of 1965 (20 U.S.C. 6393), for the purposes of making determinations under subsections (a)(1) and (f) of such section 1303 for fiscal year 2021 and all subsequent fiscal years for which school year 2019–2020 data would be used in the calculations

under section 1303(a)(1) of such Act (20 U.S.C. 6393(a)(1)) , the Secretary of Education shall use school year 2018–2019 or school year 2019–2020 data, whichever data are greater, wherever school year 2019–2020 data otherwise would be required.

TITLE III—CAREER, TECHNICAL, AND ADULT EDUCATION

SEC. 301. DEFINITIONS.

In this subtitle:

(1) CORONAVIRUS.—The term ''coronavirus'' means coronavirus as defined in section 506 of the Coronavirus Preparedness and Response Supplemental Appropriations Act, 2020 (Public Law 116–123).

(2) COVID–19 NATIONAL EMERGENCY.—The term ''COVID–19 national emergency'' means the national emergency declared by the President under the National Emergencies Act (50 U.S.C. 1601 et seq.) on March 13, 2020, with respect to the coronavirus.

SEC. 302. COVID–19 CAREER AND TECHNICAL EDUCATION RESPONSE FLEXIBILITY.

(a) POOLING OF FUNDS.—An eligible recipient may, in accordance with section 135(c) of the Carl D. Perkins Career and Technical Education Act of 2006 (20 U.S.C. 2355(c)), pool a portion of funds received under such Act with a portion of funds received under such Act available to one or more eligible recipients to support the transition from secondary education to postsecondary education or employment for CTE participants whose academic year was interrupted by the COVID–19 national emergency.

(b) PROFESSIONAL DEVELOPMENT.—During the COVID–19 national emergency, section 3(40)(B) of the Carl D. Perkins Career and Technical Education Act of 2006 (20 U.S.C. 2302(40)(B)) shall apply as if ''sustained (not stand-alone, 1-day, or short-term workshops), intensive, collaborative, job-embedded, data-driven, and classroom-focused,'' were struck.

(c) DEFINITIONS.—Except as otherwise provided, the terms in this section have the meanings given the terms in section 3 of the Carl D. Perkins Career and Technical Education Act of 2006 (20 U.S.C. 2302).

SEC. 303. ADULT EDUCATION AND LITERACY RESPONSE ACTIVITIES.

(a) ONLINE SERVICE DELIVERY OF ADULT EDUCATION AND LITERACY ACTIVITIES.—During the COVID–19 national emergency, an eligible agency may use funds available to such agency under paragraphs (2) and (3) of section 222(a) of the Workforce Innovation and Opportunity Act (20 U.S.C. 3302(a)) for the administrative expenses of the eligible agency related to transitions to online service delivery of adult education and literacy activities.

(b) DEFINITIONS.—Except as otherwise provided, the terms in this section have the meanings given the terms in section 203 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3272).

TITLE IV—DISABILITY EMPLOYMENT

SEC. 401. REHABILITATION ACT WAIVERS.

(a) PROVISIONS ELIGIBLE FOR WAIVER.—The following provisions of the Rehabilitation Act of 1973 (29 U.S.C. 701 et seq.) are eligible for waivers due to the national emergency declared by the President under the National Emergencies Act (50 U.S.C. 1601 et seq.) on March 13, 2020, with respect to the coronavirus:

(1) The Secretary of Education may provide a waiver of section 103(b)(1) to allow the replacement of expired or spoiled food products at vending facilities.

(2) The Secretary of Education may provide a waiver of the service obligation requirement under section 302(b) due to interrupted service obligations.

(b) DURATION.—A waiver approved by the Secretary under subsection (a) shall expire on the earlier of the following dates:

(1) The date that is 1 year after the date of the enactment of this Act.

(2) The last day of the national emergency referred to in subsection (a).

(c) STREAMLINED PROCESS.—The Secretary of Education shall create a streamlined application process to request a waiver under this section, and the Secretary may grant such waiver if the Secretary determines that the waiver is necessary and appropriate.

(d) LIMITATION.—Nothing in this section shall be construed to allow the Secretary to waive any statutory or regulatory requirements under applicable civil rights laws.

(e) REPORTING AND PUBLICATION.—

(1) PUBLIC NOTICE.—A State requesting a waiver under this section shall provide the public notice of, and the opportunity to comment on, the request by posting on the State website information regarding the waiver request and the process for commenting.

(2) NOTIFYING CONGRESS.—Not later than 7 days after—

(A) receiving a waiver request from a State under this section, the Secretary of Education shall notify the Committee on Health, Education, Labor, and Pensions of the Senate, the Committee on Appropriations of the Senate, the Committee on Education and Labor of the House of Representatives, and the Committee on Appropriations of the House of Representatives of such waiver request; and

(B) granting a waiver under this section, the Secretary of Education shall notify the Committee on Health, Education, Labor, and Pensions of the Senate, the Committee on Appropriations of the Senate, the Committee on Education and Labor of the House of Representatives, and the Committee on Appropriations of the House of Representatives of such waiver.

(3) PUBLICATION.—Not later than 30 days after granting a waiver under this section, the Secretary of Education shall publish a notice of the Secretary's decision (including which waiver was granted and the reason for granting the waiver) in the Federal Register and on the website of the Department of Education.

DIVISION C—PROTECTION FOR FAMILIES AND WORKERS

TITLE I—AMENDMENTS TO EMERGENCY FAMILY AND MEDICAL LEAVE EXPANSION ACT AND EMERGENCY PAID SICK LEAVE ACT

Subtitle A—Emergency Family and Medical Leave Expansion Act Amendments

SEC. 101. REFERENCES.

Except as otherwise expressly provided, whenever in this subtitle an amendment or repeal is expressed in terms of an amendment to, or repeal of, a section or other provision, the reference shall be considered to be made to a section or other provision of the Family and Medical Leave Act of 1993 (29 U.S.C. 2601 et seq.), as amended by the Emergency Family and Medical Leave Expansion Act (Public Law 116–127).

SEC. 102. EMPLOYEE ELIGIBILITY AND EMPLOYER CLARIFICATION.

(a) EMPLOYEE ELIGIBILITY.—Section 101(2) is amended by adding at the end the following:

''(F) ALTERNATIVE ELIGIBILITY FOR COVID–19 PUBLIC HEALTH EMERGENCY .—For the period beginning on the date of the enactment of The Heroes Act and ending on December 31, 2022—

''(i) subparagraph (A)(i) shall be applied by substituting '90 days' for '12 months'; and

''(ii) subparagraph (A)(ii) shall not apply.''.

(b) EMPLOYER CLARIFICATION.—Section 101(4) is amended by adding at the end the following:

''(C) CLARIFICATION.—Subparagraph (A)(i) shall not apply with respect to a public agency described in subparagraph (A)(iii).''.

SEC. 103. EMERGENCY LEAVE EXTENSION.

Section 102(a)(1)(F) is amended by striking ''December 31, 2020'' and inserting ''February 28, 2021''.

SEC. 104. EMERGENCY LEAVE DEFINITIONS.

(a) ELIGIBLE EMPLOYEE.—Section 110(a)(1) is amended in subparagraph (A), by striking ''sections 101(2)(A) and 101(2)(B)(ii)'' and inserting ''section 101(2)''.

(b) EMPLOYER THRESHOLD.—Section 110(a)(1)(B) is amended by striking ''fewer than 500 employees'' and inserting ''1 or more employees''.

(c) PARENT.—Section 110(a)(1) is amended by adding at the end the following:

''(C) PARENT.—In lieu of the definition in section 101(7), the term 'parent', with respect to an employee, means any of the following:

''(i) A biological, foster, or adoptive parent of the employee.

''(ii) A stepparent of the employee.

''(iii) A parent-in-law of the employee.

''(iv) A parent of a domestic partner of the employee.

''(v) A legal guardian or other person who stood in loco parentis to an employee when the employee was a child.''.

(d) QUALIFYING NEED RELATED TO A PUBLIC HEALTH EMERGENCY.—Section 110(a)(2)(A) is amended to read as follows:

''(A) QUALIFYING NEED RELATED TO A PUBLIC HEALTH EMERGENCY.—The term 'qualifying need related to a public health emergency', with respect to leave, means that the employee is unable to perform the functions of the position of such employee due to a need for leave for any of the following:

''(i) To self-isolate because the employee is diagnosed with COVID–19.

''(ii) To obtain a medical diagnosis or care if such employee is experiencing the symptoms of COVID–19.

''(iii) To comply with a recommendation or order by a public official with jurisdiction or a health care provider to self isolate, without regard to whether such recommendation or order is specific to the employee, on the basis that the physical presence of the employee on the job would jeopardize the employee's health, the health of other employees, or the health of an individual in the household of the employee because of—

''(I) the possible exposure of the employee to COVID–19; or

''(II) exhibition of symptoms of COVID–19 by the employee.

''(iv) To care for or assist a family member of the employee, without regard to whether another individual other than the employee is available to care for or assist such family member, because—

''(I) such family member—

''(aa) is self-isolating because such family member has been diagnosed with COVID–19; or

''(bb) is experiencing symptoms of COVID–19 and needs to obtain medical diagnosis or care; or

''(II) a public official with jurisdiction or a health care provider makes a recommendation or order with respect to such family member, without regard to whether such determination is specific to such family member, that the presence of the family member in the community would jeopardize the health of other individuals in the community because of—

''(aa) the possible exposure of such family member to COVID–19; or

''(bb) exhibition of symptoms of COVID–19 by such family member.

''(v) To care for the son or daughter of such employee if, due to COVID–19—

''(I) the child care provider of such son or daughter is unavailable;

''(II) the school or place of care of such son or daughter is closed; or

''(III) the school of such son or daughter—-

''(aa) requires or makes optional a virtual learning instruction model; or

''(bb) requires or makes optional a hybrid of in-person and virtual learning instruction models.

''(vi) To care for a family member who is incapable of self-care because of a mental or physical disability or is a senior citizen, without regard to whether another individual other than

the employee is available to care for such family member, if the place of care for such family member is closed or the direct care provider is unavailable due to COVID–19.''.

(e) FAMILY MEMBER.—Section 110(a)(2) is amended by adding at the end the following:

''(E) FAMILY MEMBER.—The term 'family member', with respect to an employee, means any of the following:

''(i) A parent of the employee.

''(ii) A spouse of the employee.

''(iii) A sibling of the employee.

''(iv) Next of kin of the employee or a person for whom the employee is next of kin.

''(v) A son or daughter of the employee.

''(vi) A grandparent or grandchild of the employee.

''(vii) A domestic partner of the employee.

''(viii) Any other individual related by blood or affinity whose close association with the employee is the equivalent of a family relationship.

''(F) DOMESTIC PARTNER.—

''(i) IN GENERAL.—The term 'domestic partner', with respect to an individual, means another individual with whom the individual is in a committed relationship.

''(ii) COMMITTED RELATIONSHIP DEFINED.—The term 'committed relationship' means a relationship between 2 individuals, each at least 18 years of age, in which each individual is the other individual's sole domestic partner and both individuals share responsibility for a significant measure of each other's common welfare. The term includes any such relationship between 2 individuals that is granted legal recognition by a State or political subdivision of a State as a marriage or analogous relationship, including a civil union or domestic partnership.''.

SEC. 105. REGULATORY AUTHORITIES.

(a) IN GENERAL.—Section 110(a) is amended by striking paragraph (3).

(b) FORCE OR EFFECT OF REGULATIONS.—Any regulation issued under section 110(a)(3), as in effect on the day before the date of the enactment of this Act, shall have no force or effect.

SEC. 106. PAID LEAVE.

Section 110(b) of the Family and Medical Leave Act of 1993 is amended—

(1) in the heading, by striking ''Relationship to'';

(2) by amending paragraph (1) to read as follows:

''(1) EMPLOYEE ELECTION.—

''(A) IN GENERAL.—An employee may elect to substitute any vacation leave, personal leave, or medical or sick leave for paid leave under section 102(a)(1)(F) in accordance with section 102(d)(2)(B).

''(B) EMPLOYER REQUIREMENT.—An employer may not require an employee to substitute any leave described in subparagraph (A) for leave under section 102(a)(1)(F).

''(C) RELATIONSHIP TO OTHER FAMILY AND MEDICAL LEAVE.—Leave taken under subparagraph (F) of section 102(a)(1) shall not count towards the 12 weeks of leave to which an employee is entitled under subparagraphs (A) through (E) of such section.

''(D) RELATIONSHIP TO LIMITATION.—PRESUMPTION OF ELIGIBILITY FOR for any vacation leave, personal leave, or medical or sick leave that is substituted for leave under section 102(a)(1)(F) shall not count toward the limitation under paragraph (2)(B)(ii).''; and

(3) in paragraph (2)(A), by striking ''that an employee takes'' and all that follows through ''10 days''.

SEC. 107. WAGE RATE.

Section 110(b)(2)(B) is amended—

(1) by amending clause (i)(I) to read as follows:

''(I) an amount that is not less than the greater of—

''(aa) the minimum wage rate in effect under section 6(a)(1) of the Fair Labor Standards Act of 1938 (29 U.S.C. 206(a)(1));

''(bb) the minimum wage rate in effect for such employee in the applicable State or locality, whichever is greater, in which the employee is employed; or

''(cc) two thirds of an employee's regular rate of pay (as determined under section 7(e) of the Fair Labor Standards Act of 1938 (29 U.S.C. 207(e)); and''; and

(2) in clause (ii), by striking ''$10,000'' and inserting ''$12,000''.

SEC. 108. NOTICE.

Section 110(c) is amended by striking ''for the purpose described in subsection (a)(2)(A)''.

SEC. 109. INTERMITTENT LEAVE.

Section 110 is amended by adding at the end the following:

''(e) LEAVE TAKEN INTERMITTENTLY OR ON A REDUCED WORK SCHEDULE.—Leave under section 102(a)(1)(F) may be taken by an employee intermittently or on a reduced work schedule, without regard to whether the employee and the employer of the employee have an agreement with respect to whether such leave may be taken intermittently or on a reduced work schedule.''.

SEC. 110. CERTIFICATION.

Section 110 is further amended by adding at the end the following:

''(f) CERTIFICATION.—

''(1) IN GENERAL.—If an employer requires that a request for leave under section 102(a)(1)(F) be certified, the employer may require documentation for certification not earlier than 5 weeks after the date on which the employee takes such leave.

''(2) SUFFICIENT CERTIFICATION.—The following documentation shall be sufficient for certification:

''(A) With respect to leave taken for the purposes described in clauses (i) through (iv) of subsection (a)(2)(A)—

''(i) a recommendation or order from a public official having jurisdiction or a health care provider that the employee or relevant family member has symptoms of COVID–19 or should self-isolate; or

''(ii) documentation or evidence, including an oral or written statement from an employee, that the employee or relevant family member has been exposed to COVID–19.

''(B) With respect to leave taken for the purposes described in clause (v) or (vi) of subsection (a)(2)(A), notice—

''(i) from the school, place of care, or child care or direct care provider of the son or daughter or other family member of the employee of closure or unavailability; or

''(ii) from the school of the son or daughter of the requirement or option of a virtual learning instruction model or a hybrid of in-person and virtual learning instruction models.''.

SEC. 111. AUTHORITY OF THE DIRECTOR OF THE OFFICE OF MANAGEMENT AND BUDGET TO EXCLUDE CERTAIN EMPLOYEES.

Section 110(a) is amended by striking paragraph (4).

SEC. 112. TECHNICAL AMENDMENTS.

(a) Section 110(a)(1)(A) is amended by striking ''(ii)'' before ''SPECIAL RULE'' and inserting ''(iii)''.

(b) Section 19008 of the CARES Act is amended—

(1) by striking ''—'' after ''amended'';

(2) by striking paragraph (1); and

(3) by striking ''(2)'' before ''by adding at the end''.

SEC. 113. AMENDMENTS TO THE EMERGENCY FAMILY AND MEDICAL LEAVE EXPANSION ACT.

The Emergency Family and Medical Leave Expansion Act (Public Law 116–127) is amended—

(1) in section 3103(b), by striking ''Employees'' and inserting, ''Notwithstanding section 102(a)(1)(A) of the Family and Medical Leave Act of 1993 (29 U.S.C. 2612(a)(1)(A)), employees''; and

(2) by striking sections 3104 and 3105.

Subtitle B—Emergency Paid Sick Leave Act Amendments

SEC. 121. REFERENCES.

Except as otherwise expressly provided, whenever in this subtitle an amendment or repeal is expressed in terms of an amendment to, or repeal of, a section or other provision, the reference shall be considered to be made to a section or other provision of division E of the Families First Coronavirus Response Act (Public Law 116–127).

SEC. 122. PAID SICK TIME REQUIREMENT.

(a) USES.—Section 5102(a) is amended to read as follows:

''(a) IN GENERAL.—An employer shall provide to each employee employed by the employer paid sick time for any qualifying need related to a public health emergency (as defined in section 110(a)(2)(A) of the Family and Medical Leave Act of 1993 (29 U.S.C. 2620(a)(2)(A)).''.

(b) RECURRENCE.—Section 5102(b) is amended by striking ''An'' and inserting ''During any 12-month period, an''.

(c) EMPLOYERS WITH EXISTING POLICIES.—Section 5102 is amended by striking subsection (f) and inserting the following:

''(f) EMPLOYERS WITH EXISTING POLICIES.—With respect to an employer that provides paid leave on the day before the date of the enactment of this Act—

''(1) the paid sick time under this Act shall be made available to employees of the employer in addition to such paid leave; and

''(2) the employer may not change such paid leave on or after such date of enactment to avoid being subject to paragraph (1).''.

(d) INTERMITTENT LEAVE.—Section 5102 is further amended by adding at the end the following:

''(g) LEAVE TAKEN INTERMITTENTLY OR ON A REDUCED WORK SCHEDULE.—Leave under section 5102 may be taken by an employee intermittently or on a reduced work schedule, without regard to whether the employee and the employer of the employee have an agreement with respect to whether such leave may be taken intermittently or on a reduced work schedule.''.

(e) CERTIFICATION.—Section 5102 is further amended by adding at the end the following:

''(h) CERTIFICATION.—If an employer requires that a request for paid sick time under this section be certified—

''(1) the documentation described in paragraph (2) of section 110(f) of the Family and Medical Leave Act of 1993 (29 U.S.C. 2620(f)) shall be sufficient for certification; and

''(2) an employer may not require such certification unless—

''(A) the employee takes not less than 3 consecutive days of paid sick time; and

''(B) the employer requires documents for such certification not earlier than 7 workdays after the employee returns to work after such paid sick time.''.

(f) NOTICE.—Section 5102 is further amended by adding at the end the following:

''(i) NOTICE.—In any case where the necessity for leave under this section is foreseeable, an employee shall provide the employer with such notice of leave as is practicable.''.

(g) LEAVE TRANSFER TO NEW EMPLOYER.—Section 5102 is further amended by adding at the end the following:

''(j) LEAVE TRANSFER TO NEW EMPLOYER.—A covered employee who begins employment with a new covered employer shall be entitled to the full amount of leave under section 5102 with respect to such employer.''.

(h) RESTORATION TO POSITION.—

(1) IN GENERAL.—Section 5102 is further amended by adding at the end the following:

''(k) RESTORATION TO POSITION.—Any covered employee who takes paid sick time under this section, on return from such paid sick time, shall be entitled—

''(1) to be restored by the employer to the position of employment held by the employee when the leave commenced; or

''(2) if such position is not available, to be restored to an equivalent position with equivalent employment benefits, pay, and other terms and conditions of employment.''.

(2) ENFORCEMENT.—Section 5105 is amended—

(A) by amending subsection (a) to read as follows:

''(a) UNPAID SICK LEAVE.—Subject to subsection (b), a violation of section 5102 shall be deemed a violation of section 7 of the Fair Labor Standards Act of 1938 (29 U.S.C. 207) and unpaid amounts shall be treated as unpaid overtime compensation under such section for the purposes of sections 15 and 16 of such Act (29 U.S.C. 215 and 216).''; and

(B) in subsection (b), by inserting ''section 5102(k) or'' before ''section 5104''.

SEC. 123. SUNSET.

Section 5109 is amended by striking ''December 31, 2020'' and inserting ''February 28, 2021''.

SEC. 124. DEFINITIONS.

(a) EMPLOYER.—Section 5110(2)(B) is amended—

(1) by striking ''terms'' and inserting ''term'';

(2) by amending subclause (I) of clause (i) to read as follows:

''(I) means any person engaged in commerce or in any industry or activity affecting commerce that employs 1 or more employees;''; and

(3) by amending clause (ii) to read as follows:

''(ii) PUBLIC AGENCY AND NON-PROFIT ORGANIZATIONS.—For purposes of clause (i)(III) and (i)(I), a public agency and a nonprofit organization shall be considered to be a person engaged in commerce or in an industry or activity affecting commerce.''.

(b) FMLA TERMS.—Section 5110(4) is amended to read as follows:

''(4) FMLA TERMS.—

''(A) SECTION 101.—The terms 'health care provider', 'next of kin', 'son or daughter', and 'spouse' have the meanings given such terms in section 101 of the Family and Medical Leave Act of 1993 (29 U.S.C. 2611).

''(B) SECTION 110.—The terms 'child care provider', 'domestic partner', 'family member', 'parent', and 'school' have the meanings given such terms in section 110(a)(2) of the Family and Medical and Leave Act of 1993.''.

(c) PAID SICK TIME.—Section 5110(5) is amended—

(1) in subparagraph (A)—

(A) in clause (i), by striking ''reason described in any paragraph of section 2(a)'' and inserting ''qualifying need related to a public health emergency''; and

(B) in clause (ii), by striking ''exceed'' and all that follows and inserting ''exceed $511 per day and $5,110 in the aggregate.'';

(2) in subparagraph (B)—

(A) by striking the following:

''(B) REQUIRED COMPENSATION.—

''(i) IN GENERAL.—Subject to subparagraph (A)(ii),''; and inserting the following:

''(B) REQUIRED COMPENSATION.—Subject to subparagraph (A)(ii),''; and

(B) by striking clause (ii); and

(3) in subparagraph (C), by striking '' section 2(a)'' and inserting ''section 5102(a)''.

(d) QUALIFYING NEED RELATED TO A PUBLIC HEALTH EMERGENCY.—Section 5110 is amended by adding at the end the following:

''(1) QUALIFYING NEED RELATED TO A PUBLIC HEALTH EMERGENCY.—The term 'qualifying need related to a public health emergency' has the meaning given such term in section 110(a)(2)(A) of the Family and Medical Leave Act of 1993 (29 U.S.C. 2620(a)(2)(A)).''.

SEC. 125. EMERGENCY PAID SICK LEAVE FOR EMPLOYEES OF THE DEPARTMENT OF VETERANS AFFAIRS AND THE TRANSPORTATION SECURITY ADMINISTRATION FOR PURPOSES RELATING TO COVID–19.

Section 5110(1) is further amended—

(1) in subparagraph (E) by striking ''or'' after ''Code;'';

(2) by redesignating subparagraph (F) as subparagraph (H); and

(3) by inserting after subparagraph (E) the following:

''(F) notwithstanding sections 7421(a) or 7425(b) of title 38, United States Code, or any other provision of law, an employee of the Department of Veterans Affairs (including employees under chapter 74 of such title);

''(G) any employee of the Transportation Security Administration, including an employee under 111(d) of the Aviation and Transportation Security Act (49 U.S.C. 44935 note); or''.

SEC. 126. AUTHORITY OF THE DIRECTOR OF THE OFFICE OF MANAGEMENT AND BUDGET TO EXCLUDE CERTAIN EMPLOYEES.

Division E is amended by striking section 5112.

SEC. 127. REGULATORY AUTHORITIES.

(a) IN GENERAL.—Division E is amended by striking section 5111.

(b) FORCE OR EFFECT OF REGULATIONS.—Any regulation issued under section 5111 of division E of the Families First Coronavirus Response Act (Public Law 116–127), as in effect on the day before the date of the enactment of this Act, shall have no force or effect.

TITLE II—COVID–19 EVERY WORKER PROTECTION ACT OF 2020

SEC. 201. SHORT TITLE.

This title may be cited as the ''COVID–19 Every Worker Protection Act of 2020''.

SEC. 202. EMERGENCY TEMPORARY AND PERMANENT STANDARDS.

(a) EMERGENCY TEMPORARY STANDARD.—

(1) IN GENERAL.—In consideration of the grave danger presented by COVID–19 and the need to strengthen protections for employees, not later than 7 days after the date of the enactment of this Act, the Secretary of Labor shall promulgate an emergency temporary standard to protect from occupational exposure to SARS–CoV–2—

(A) employees of health care sector employers;

(B) employees of employers in paramedic and emergency medical services, including such services provided by firefighters and other emergency responders; and

(C) employees of employers in other sectors or occupations, including mortuary services, food processing (including poultry, meat, and seafood), agriculture and crop harvesting, manufacturing, indoor and outdoor construction, correctional centers, jails, and detention centers, transportation (including airports, train stations, and bus stations), retail and wholesale grocery, warehousing and package and mail processing and delivery services, call centers, education, social service and daycare, homeless shelters, hotels, restaurants and bars, drug stores and pharmacies, and retail establishments.

(2) CONSULTATION.—In developing the standard under this subsection, the Secretary of Labor—

(A) shall consult with—

(i) the Director of the Centers for Disease Control and Prevention; and

(ii) the Director of the National Institute for Occupational Safety and Health; and

(B) may consult with the professional associations and representatives of the employees described in paragraph (1).

(3) ENFORCEMENT DISCRETION.—If the Secretary of Labor determines it is not feasible for an employer to comply with a requirement of the standard promulgated under this subsection (such as a shortage of the necessary personal protective equipment), the Secretary may exercise discretion in the enforcement of such requirement if the employer demonstrates that the employer—

(A) is exercising due diligence to come into compliance with such requirement; and

(B) is implementing alternative methods and measures to protect employees.

(4) EXTENSION OF STANDARD.—Notwithstanding paragraphs (2) and (3) of section 6(c) of the Occupational Safety and Health Act of 1970 (29 U.S.C. 655(c)), the emergency temporary standard promulgated under this subsection shall be in effect until the date on which the final standard promulgated under subsection (b) is in effect.

(5) STATE PLAN ADOPTION.—With respect to a State with a State plan that has been approved by the Secretary of Labor under section 18 of the Occupational Safety and Health Act of 1970 (29 U.S.C. 667), not later than 14 days after the date of the enactment of this Act, such State shall promulgate an emergency temporary standard that is at least as effective in protecting from occupational exposure to SARS–CoV–2 the employees described in paragraph (1) as the emergency temporary standard promulgated under this subsection.

(6) EMPLOYER DEFINED.—For purposes of the standard promulgated under this subsection, the term ''employer'' (as defined in section 3 of the Occupational Safety and Health Act of 1970 (29 U.S.C. 652)) includes any State or political subdivision of a State, except for a State or political subdivision of a State already subject to the jurisdiction of a State plan approved under section 18(b) of the Occupational Safety and Health Act of 1970 (29 U.S.C. 667(b)).

(7) REQUIREMENTS.—The standard promulgated under this subsection shall include—

(A) a requirement that any employer of an employee in an occupation or sector described in paragraph (1)—

(i) conduct a hazard assessment to assess risks of occupational exposure to SARS–CoV–2;

(ii) develop and implement an exposure control plan, based on the hazard assessment mandated in clause (i), with the input and involvement of employees or the representatives of employees, as appropriate, to address the risk of occupational exposure in such sectors and occupations;

(iii) provide job specific training and education to such employees on such standard, the plan under clause (ii), and prevention of the transmission of SARS–CoV–2;

(iv) implement, as appropriate, engineering controls, including ventilation; work practice controls (including physical distancing of not less than 6 feet while on the job and during paid breaks); and appropriate respiratory protection and other personal protective equipment;

(v) develop and implement procedures for—

(I) sanitation of the work environment;

(II) screening of employees for signs and symptoms of COVID–19;

(III) the return to work for employees who previously tested positive for COVID–19 or who showed signs or symptoms of COVID–19; and

(IV) ensuring that subcontractors comply with the procedures under subclauses (I) through (III); and

(vi) record and report each work-related COVID–19 infection and death, as set forth in part 1904 of title 29, Code of Federal Regulations (as in effect on the date of the enactment of this Act);

(B) no less protection for novel pathogens than precautions mandated by standards adopted by a State plan that has been approved by the Secretary of Labor under section 18 of the Occupational Safety and Health Act of 1970 (29 U.S.C. 667);

(C) the incorporation, as appropriate, of—

(i) guidelines issued by the Centers for Disease Control and Prevention, the National Institute for Occupational Safety and Health, and the Occupational Safety and Health Administration which are designed to prevent the transmission of infectious agents in health care or other occupational settings; and

(ii) relevant scientific research on novel pathogens; and

(D) a requirement for each employer to—

(i) maintain a COVID–19 employee infection log, notify its own employees and report to the appropriate health department of each confirmed positive COVID–19 diagnosis of an employee within 24 hours of the employer learning

of such confirmed positive diagnosis, whether or not the infection is work-related, consistent with the confidentiality requirements of the Americans with Disabilities Act of 1990 (42 U.S.C. 12101 et seq.), the HIPAA privacy regulations (defined in section 1180(b)(3) of the Social Security Act (42 U.S.C. 1320d–9(b)) and other applicable Federal regulations; and

(ii) report to the Occupational Safety and Health Administration any outbreak of three or more confirmed positive COVID–19 diagnoses that have occurred among employees present at the place of employment within a 14-day period, not later than 24 hours after the employer is made aware of such an outbreak.

(8) INAPPLICABLE PROVISIONS OF LAW AND EXECUTIVE ORDER.—The following provisions of law and Executive orders shall not be applicable with respect to the standard promulgated under this subsection:

(A) The requirements of chapter 6 of title 5, United States Code (commonly referred to as the ''Regulatory Flexibility Act'').

(B) Subchapter I of chapter 35 of title 44, United States Code (commonly referred to as the ''Paperwork Reduction Act'').

(C) The Unfunded Mandates Reform Act of 1995 (2 U.S.C. 1501 et seq.).

(D) Executive Order 12866 (58 Fed. Reg. 190; relating to regulatory planning and review), as amended.

(E) Executive Order 13771 (82 Fed. Reg. 9339, relating to reducing regulation and controlling regulatory costs).

(b) PERMANENT STANDARD.—Not later than 24 months after the date of the enactment of this Act, the Secretary of Labor shall, pursuant to section 6 of the Occupational Safety and Health Act (29 U.S.C. 655), promulgate a final standard—

(1) to protect employees described in subsection (a)(1) from occupational exposure to infectious pathogens, including novel pathogens; and

(2) that shall be effective and enforceable in the same manner and to the same extent as a standard promulgated under section 6(b) of the Occupational Safety and Health Act of 1970 (29 U.S.C. 655(b)).

(c) ANTI-RETALIATION.—

(1) POLICY.—Each standard promulgated under this section shall require employers to adopt a policy prohibiting the discrimination and retaliation described in paragraph (2) by any person (including an agent of the employer).

(2) PROHIBITION.—No employer (including an agent of the employer) shall discriminate or retaliate against an employee for—

(A) reporting to the employer, to a local, State, or Federal government agency, or to the media or on a social media platform—

(i) a violation of a standard promulgated pursuant to this Act;

(ii) a violation of an infectious disease exposure control plan described in subsection (c)(1); or

(iii) a good faith concern about a workplace infectious disease hazard;

(B) seeking assistance or intervention from the employer or a local, State, or Federal government agency with respect to such a report;

(C) voluntary use of personal protective equipment with a higher level of protection than is provided by the employer; or

(D) exercising any other right under the Occupational Safety and Health Act of 1970 (29 U.S.C. 651 et seq.).

(3) ENFORCEMENT.—This subsection shall be enforced in the same manner and to the same extent as any standard promulgated under section 6(b) of the Occupational Safety and Health Act of 1970 (29 U.S.C. 655(b)).

(d) EFFECT ON OTHER LAWS, REGULATIONS, OR ORDERS.—

(1) IN GENERAL.—Nothing in this Act shall be construed to—

(A) curtail or limit authority of the Secretary under any other provision of law; or

(B) preempt the application of any other statute, regulation, or order of any State or local government related to SARS–CoV–2 in the workplace except to the extent that such provisions are inconsistent with this Act, or a standard promulgated pursuant to this Act, and in such case only to the extent of the inconsistency.

(2) EQUAL OR GREATER PROTECTION.—A provision of law, regulation, or order of a State or local government shall not be considered inconsistent with this Act or standard promulgated under this Act under paragraph (1)(B) if such provision provides equal or greater health or safety protection to an employee than the protection provided under this Act, an Emergency Temporary Standard, or a final standard promulgated under this Act.

SEC. 203. REPORTING, TRACKING, INVESTIGATION AND SURVEILLANCE OF COVID–19 INFECTIONS AND OUTBREAKS.

The Director of the Centers for Disease Control and Prevention, in conjunction with the Director of the National Institute for Occupational Safety and Health, in cooperation with State and territorial health departments, shall—

(1) collect and analyze case reports, including information on the work status, occupation, and industry classification of an individual, and other data on COVID–19, to identify and evaluate the extent, nature, and source of COVID–19 among employees described in section (a)(1);

(2) compile data and statistics on COVID–19 among such employees and provide to the public periodic reports on such data and statistics; and

(3) based on such reports, make recommendations on needed actions or guidance to protect such employees.

TITLE III—COVID–19 PROTECTIONS UNDER LONGSHORE AND HARBOR WORKERS' COMPENSATION ACT

SEC. 301. COMPENSATION PURSUANT TO THE LONGSHORE AND HARBOR WORKERS' COMPENSATION ACT.

(a) ENTITLEMENT TO COMPENSATION.—

(1) IN GENERAL.—A covered employee who receives a diagnosis or is subject to an order described in paragraph (2)(B) and who provides notice of or files a claim relating to such diagnosis or order under section 12 or 13 of the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 912, 913), respectively, shall—

(A) be deemed to have an injury arising out of or in the course of employment for which compensation is payable under the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 901 et seq.); and

(B) be paid the compensation to which the employee is entitled under such Act (33 U.S.C. 901 et seq.).

(2) COVERED EMPLOYEE.—In this section, the term ''covered employee'' means an employee who—

(A) at any time during the period beginning on January 27, 2020, and ending on January 27, 2022, was engaged in maritime employment; and

(B) was—

(i) at any time during the period beginning on January 27, 2020, and ending on February 27, 2022, diagnosed with COVID–19; or

(ii) at any time during the period described in subparagraph (A), ordered not to return to work by the employee's employer or by a local, State, or Federal agency because of exposure, or the risk of exposure, to 1 or more individuals diagnosed with COVID–19 in the workplace.

(b) REIMBURSEMENT.—

(1) IN GENERAL.—

(A) ENTITLEMENT.—Subject to subparagraph (B), an employer of a covered employee or the employer's carrier shall be entitled to reimbursement for any compensation paid with respect to a notice or claim described in subsection (a), including disability benefits, funeral and burial expenses, medical or other related costs for treatment and care, and reasonable and necessary allocated claims expenses.

(B) SAFETY AND HEALTH REQUIREMENTS.—To be entitled to reimbursement under subparagraph (A)—

(i) an employer shall be in compliance with all applicable safety and health guidelines and standards that are related to the prevention of occupational exposure to the novel coronavirus that causes COVID–19, including such guidelines and standards issued by the Occupational Safety and Health Administration, State plans approved under section 18 of the Occupational Safety and Health Act of 1970 (29 U.S.C. 667), the Coast Guard, and Federal, State or local public health authorities; and

(ii) a carrier—

(I) shall be a carrier for an employer that is in compliance with clause (i); and

(II) shall not adjust the experience rating or the annual premium of the employer based upon the compensation paid by the carrier with respect to a notice or claim described in subparagraph (A).

(2) REIMBURSEMENT PROCEDURES.—To receive reimbursement under paragraph (1)—

(A) a claim for such reimbursement shall be submitted to the Secretary of Labor—

(i) not later than one year after the final payment of compensation to a covered employee pursuant to this section; and

(ii) in the same manner as a claim for reimbursement is submitted in accordance with part 61 of title 20, Code of Federal Regulations (as in effect on the date of the enactment of this Act); and

(B) an employer and the employer's carrier shall make, keep, and preserve such records, make such reports, and provide such information, as the Secretary of Labor determines necessary or appropriate to carry out this section.

(c) SPECIAL FUND.—

(1) IN GENERAL.—A reimbursement under paragraph (1) shall be paid out of the special fund established in section 44 of Longshore and Harbor Workers' Compensation Act (33 U.S.C. 944).

(2) FUNDING.—There are authorized to be appropriated, and there are appropriated, such funds as may be necessary to reimburse the special fund described in paragraph (1) for each reimbursement paid out of such fund under paragraph (1).

(d) REPORT.—Not later than 60 days after the end of fiscal year 2020, 2021, and 2022, the Secretary of Labor shall submit to the Committee on Education and Labor of the House of Representatives and the Committee on Health, Education, Labor and Pensions of the Senate, an annual report enumerating—

(1) the number of claims filed pursuant to section (a)(1);

(2) of such filed claims—

(A) the number and types of claims approved under section 13 of the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 913);

(B) the number and types of claims denied under such section;

(C) the number and types of claims pending under such section; and

(3) the amounts and the number of claims for reimbursement paid out of the special fund under subsection (c)(1) for the fiscal year for which the report is being submitted.

(e) REGULATIONS.—The Secretary of Labor may promulgate such regulations as may be necessary to carry out this section.

(f) DEFINITIONS.—In this section:

(1) LHWCA TERMS.—The terms ''carrier'', ''compensation'', ''employee'', and ''employer'' have the meanings given the terms in section 2 of the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 902).

(2) NOVEL CORONAVIRUS.—The term ''novel coronavirus'' means SARS–CoV–2.

TITLE IV—WORKER'S COMPENSATION FOR FEDERAL AND POSTAL EMPLOYEES DIAGNOSED WITH COVID–19

SEC. 401. PRESUMPTION OF ELIGIBILITY FOR WORKERS' COMPENSATION BENEFITS FOR FEDERAL EMPLOYEES DIAGNOSED WITH COVID–19.

(a) IN GENERAL.—An employee who is diagnosed with COVID–19 during the period described in subsection (b)(2)(A) shall, with respect to any claim made by or on behalf of the employee for benefits under subchapter I of chapter 81 of title 5, United States Code, be deemed to have an injury proximately caused by exposure to coronavirus arising out of the nature of the employee's employment and be presumptively entitled to such benefits, including disability compensation, medical services, and survivor benefits.

(b) DEFINITIONS.—In this section—

(1) the term ''coronavirus'' means SARS–CoV–2 or another coronavirus with pandemic potential; and

(2) the term ''employee''—

(A) means an employee as that term is defined in section 8101(1) of title 5, United States Code, (including an employee of the United States Postal Service, the Transportation Security Administration, or the Department of Veterans Affairs, including any individual appointed under chapter 73 or 74 of title 38, United States Code) employed in the Federal service at anytime during the period beginning on January 27, 2020, and ending on January 30, 2022—

(i) who carried out duties requiring contact with patients, members of the public, or coworkers; or

(ii) whose duties include a risk of exposure to the coronavirus; and

(B) does not include any employee otherwise covered by subparagraph (A) who is teleworking on a full-time basis in the period described in such subparagraph prior to a diagnosis with COVID–19.

TITLE V—COVID–19 WORKFORCE DEVELOPMENT RESPONSE ACTIVITIES

SEC. 501. DEFINITIONS.

(a) IN GENERAL.—Except as otherwise provided, the terms in this title have the meanings given the terms in section 3 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3102).

(b) CORONAVIRUS.—The term ''coronavirus'' means coronavirus as defined in section 506 of the Coronavirus Preparedness and Response Supplemental Appropriations Act, 2020 (Public Law 116–123).

(c) COVID–19 NATIONAL EMERGENCY.—The term ''COVID–19 national emergency'' means the national emergency declared by the President under the National Emergencies Act (50 U.S.C. 1601 et seq.) on March 13, 2020, with respect to the coronavirus.

(d) SECRETARY.—The term ''Secretary'' means the Secretary of Labor.

SEC. 502. JOB CORPS RESPONSE TO THE COVID–19 NATIONAL EMERGENCY.

In order to provide for the successful continuity of services and enrollment periods during the COVID–19 national emergency, additional flexibility shall be provided for Job Corps operators, providers of eligible activities, and practitioners, including the following:

(1) ELIGIBILITY.—Notwithstanding the age requirements for enrollment under section 144(a)(1) of the Workforce Innovation and Opportunity Act (29 U.S.C. 3194(a)(1)), an individual seeking to enroll in Job Corps and who turns 25 during the COVID–19 national emergency is eligible for such enrollment during or up to one year after the end of the qualifying emergency.

(2) ENROLLMENT LENGTH.—Notwithstanding section 146(b) of the Workforce Innovation and Opportunity Act (29 U.S.C. 3196(b)), an individual enrolled in Job Corps during the COVID–19 national emergency may extend their period of enrollment for more than 2 years as long as such extension does not exceed a 2-year, continuous period of enrollment after the COVID–19 national emergency.

(3) ADVANCED CAREER TRAINING PROGRAMS.—Notwithstanding paragraph (2), with respect to advanced career training programs under section 148(c) of the Workforce Innovation and Opportunity Act (29 U.S.C. 3198(c)) in which the enrollees may continue to participate for a period not to exceed 1 year in addition to the period of participation to which the enrollees would otherwise be limited, the COVID–19 national emergency shall not be considered as any portion of such additional 1-year participation period.

(4) COUNSELING, JOB PLACEMENT, AND ASSESSMENT.—The counseling, job placement, and assessment services described in section 149 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3199) shall be available to former enrollees—

(A) whose enrollment was interrupted due to the COVID–19 national emergency;

(B) who graduated from Job Corps on or after January 1, 2020; or

(C) who graduated from Job Corps not later than 3 months after the COVID–19 national emergency.

(5) SUPPORT.—The Secretary shall provide additional support for the transition periods described in section 150 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3200), including the following:

(A) TRANSITION ALLOWANCES.—The Secretary shall provide, subject to the availability of appropriations, for the provision of additional transition allowances as described in subsection (b) of such section for Job Corps students who graduate during the periods described in subparagraph (B) or (C) of paragraph (4).

(B) TRANSITION SUPPORT.—The Secretary shall consider the period during the COVID–19 national emergency and the three month period following the conclusion of the COVID–19 national emergency as the period in which the provision of employment services as described in subsection (c) of such section shall be provided to graduates who have graduated in 2020.

(6) ENROLLMENT ELIGIBILITY.—The requirements described in sections 145(a)(2)(A) and 152(b)(2)(B) of the Workforce Innovation and Opportunity Act (29 U.S.C. 3195(a)(2)(A) and 29 U.S.C. 3202(b)(2)(B)) shall be applicable only for students participating onsite or once returning to onsite after participating in distance learning.

(7) EFFECTIVELY SUPPORTING DISTANCE LEARNING.—The Secretary shall take such steps necessary to modify the agreements required by Sec. 147(a) of the Workforce Innovation and Opportunity Act (29 U.S.C. 3197(a)(1)) to enable operators and service providers to purchase, within the limitations of the contract values or established annual budgets for Job Corps Centers, any equipment, supplies, and services that the operators or service providers determine are necessary to facilitate effective virtual learning and to protect the health of students and staff oncenter during the COVID–19 national emergency, including distance learning technology for students and COVID–19 testing, and shall allow students to retain permanent possession of such equipment and technology without financial penalty regardless of their enrollment status.

SEC. 503. MIGRANT AND SEASONAL FARMWORKER PROGRAM RESPONSE.

During the COVID–19 national emergency, for the purposes of section 167(i)(3)(A) of the Workforce Innovation and Opportunity Act (29 U.S.C. 3222(i)(3)(A)), the term ''low income individual'' shall include an individual with a total family income equal to or less than 150 percent of the poverty line.

SEC. 504. YOUTHBUILD ACTIVITIES RESPONDING TO THE COVID–19 NATIONAL EMERGENCY.

During the COVID–19 national emergency, the Secretary shall provide for flexibility for YouthBuild participants and entities carrying out YouthBuild programs, including the following:

(1) ELIGIBILITY.—Notwithstanding the age requirements for enrollment under section 171(e)(1)(A)(i) of the Workforce Innovation and Opportunity Act (29 U.S.C. 3226(e)(1)(A)(i)), an individual seeking to participate in a YouthBuild program and who turns 25 during the COVID–19 national emergency is eligible for such participation.

(2) PARTICIPATION LENGTH.—Notwithstanding section 171(e)(2) of the Workforce Innovation and Opportunity Act (29 U.S.C. 3226(e)(2)), the period of participation in a YouthBuild program may extend beyond 24 months for an individual participating in such program during the COVID–19 national emergency, as long as such extension does not exceed a 24 month, continuous period of enrollment after the COVID–19 national emergency.

SEC. 505. APPRENTICESHIP SUPPORT DURING THE COVID–19 NATIONAL EMERGENCY.

Not later than 30 days after the date of the enactment of this Act, the Secretary shall identify and disseminate strategies and tools to support virtual and online learning and training in apprenticeship programs.

DIVISION D—HUMAN SERVICES AND COMMUNITY SUPPORTS

SEC. 100. SHORT TITLE.

This division may be cited as the ''Human Services and Community Supports Act''.

TITLE I—STRONGER CHILD ABUSE PREVENTION AND TREATMENT

Subtitle A—General Program

SEC. 101. REPEAL OF FINDINGS.

Section 2 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5101 note) is repealed.

SEC. 102. REPEAL OF ADVISORY BOARD ON CHILD ABUSE AND NEGLECT.

Section 102 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5102) is repealed.

SEC. 103. NATIONAL CLEARINGHOUSE FOR INFORMATION RELATING TO CHILD ABUSE.

Section 103 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5104) is amended—

(1) in subsection (b)(1), by inserting ''early learning programs and'' after ''including'';

(2) in subsection (c)(1)(C)—

(A) in clause (iii), by striking ''and'' at the end;

(B) in clause (iv), by adding ''and'' at the end; and

(C) by adding at the end the following:

''(v) the number of child fatalities and near fatalities due to maltreatment, as reported by States in accordance with the uniform standards established pursuant to subsection (d), and any other relevant information related to such fatalities;''; and

(3) by adding at the end the following:

''(d) UNIFORM STANDARDS FOR TRACKING AND REPORTING OF CHILD FATALITIES RESULTING FROM MALTREATMENT.—

''(1) REGULATIONS REQUIRED.—Not later than 24 months after the date of the enactment of the Human Services and Community Supports Act, the Secretary shall develop and issue final regulations establishing uniform standards for the tracking and reporting of child fatalities and near-fatalities resulting from maltreatment. As a condition on eligibility for receipt of funds under section 106, the standards established under this paragraph shall be used by States for the tracking and reporting of such fatalities under subsection (d) of such section.

''(2) MAINTENANCE OF STATE LAW.—Notwithstanding the uniform standards developed under paragraph (1), a State that defines or describes such fatalities for any purpose other than tracking and reporting under this subsection may continue to use that definition or description for such purpose.

''(3) NEGOTIATED RULEMAKING.—In developing regulations under paragraph (1), the Secretary shall submit such regulations to a negotiated rulemaking process, which shall include the participants described in paragraph (4).

''(4) PARTICIPANTS DESCRIBED.—The participants described in this paragraph are—

''(A) State and county officials responsible for administering the State plans under this Act and parts B and E of title IV of the Social Security Act (42 U.S.C. 621 et seq., 670 et seq.);

''(B) child welfare professionals with field experience;

''(C) child welfare researchers;

''(D) domestic violence researchers;

''(E) domestic violence professionals;

''(F) child development professionals;

''(G) mental health professionals;

''(H) pediatric emergency medicine physicians;

''(I) child abuse pediatricians, as certified by the American Board of Pediatrics, who specialize in treating victims of child abuse;

''(J) forensic pathologists;

''(K) public health administrators;

''(L) public health researchers;

''(M) law enforcement;

''(N) family court judges;

''(O) prosecutors;

''(P) medical examiners and coroners;

''(Q) a representative from the National Center for Fatality Review and Prevention; and

''(R) such other individuals and entities as the Secretary determines to be appropriate.''.

SEC. 104. RESEARCH AND ASSISTANCE ACTIVITIES.

Section 104 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5105) is amended—

(1) in subsection (a)—

(A) by amending paragraph (1) to read as follows:

''(1) TOPICS.—The Secretary shall, in consultation with other Federal agencies and recognized experts in the field, carry out a continuing interdisciplinary program of research, including longitudinal research, that is designed to provide information needed to improve primary prevention of child abuse and neglect, better protect children from child abuse or neglect, and improve the well-being of victims of child abuse or neglect, with at least a portion of such research being field initiated. Such research program may focus on—

''(A) disseminating evidence-based treatment directed to individuals and families experiencing trauma due to child abuse and neglect, including efforts to improve the scalability of the treatments and programs being researched;

''(B) developing a set of evidence-based approaches to support child and family well-being and developing ways to identify, relieve, and mitigate stressors affecting families in rural, urban, and suburban communities;

''(C) establishing methods to promote racial equity in the child welfare system, including a focus on how neglect is defined, how services are provided, and the unique impact on Native American, Alaska Native, and Native Hawaiian communities;

''(D) improving service delivery or outcomes for child welfare service agencies engaged with families experiencing domestic violence, substance use disorder, or other complex needs;

''(E) the extent to which the number of unsubstantiated, unfounded, and false reported cases of child abuse or neglect have contributed to the inability of a State to respond effectively to serious cases of child abuse or neglect;

''(F) the extent to which the lack of adequate resources and the lack of adequate professional development of individuals required by law to report suspected cases of child abuse and neglect have contributed to the inability of a State to respond effectively to serious cases of child abuse and neglect;

''(G) the extent to which unsubstantiated reports return as more serious cases of child abuse or neglect;

''(H) the incidence and outcomes of child abuse and neglect allegations reported within the context of divorce, custody, or other family court proceedings, and the interaction between family courts and the child protective services system;

''(I) the information on the national incidence of child abuse and neglect specified in clauses (i) through (xi) of subparagraph (J); and

''(J) the national incidence of child abuse and neglect, including—

''(i) the extent to which incidents of child abuse and neglect are increasing or decreasing in number and severity;

''(ii) the incidence of substantiated and unsubstantiated reported child abuse and neglect cases;

''(iii) the number of substantiated cases that result in a judicial finding of child abuse or neglect or related criminal court convictions;

''(iv) the extent to which the number of unsubstantiated, unfounded and false reported cases of child abuse or neglect have contributed to the inability of a State to respond effectively to serious cases of child abuse or neglect;

''(v) the extent to which the lack of adequate resources and the lack of adequate education of individuals required by law to report suspected cases of child abuse and neglect have contributed to the inability of a State to respond effectively to serious cases of child abuse and neglect;

''(vi) the number of unsubstantiated, false, or unfounded reports that have resulted in a child being placed in substitute care, and the duration of such placement;

''(vii) the extent to which unsubstantiated reports return as more serious cases of child abuse or neglect;

''(viii) the incidence and prevalence of physical, sexual, and emotional abuse and physical and emotional neglect in substitute care;

''(ix) the incidence and prevalence of child maltreatment by a wide array of demographic characteristics such as age, sex, race, family structure, household relationship (including the living arrangement of the resident parent and family size), school enrollment and education attainment, disability, grandparents as caregivers, labor force status, work status in previous year, and income in previous year;

''(x) the extent to which reports of suspected or known instances of child abuse or neglect involving a potential combination of jurisdictions, such as intrastate, interstate, Federal-State, and State-Tribal, are being screened out solely on the basis of the cross-jurisdictional complications; and

''(xi) the incidence and outcomes of child abuse and neglect allegations reported within the context of divorce, custody, or other family court proceedings, and the interaction between family courts and the child protective services system.'';

(B) in paragraph (2), by striking ''paragraph (1)(O)'' and inserting ''paragraph (1)(J)'';

(C) by amending paragraph (3) to read as follows:

''(3) REPORTING REQUIREMENTS.—

''(A) IN GENERAL.—Not later than 4 years after the date of the enactment of the Human Services and Community Supports Act, the Secretary shall prepare and submit to the Committee on Education and Labor of the House of Representatives and the Committee on Health, Education, Labor and Pensions of the Senate a report that contains the results of the research conducted under paragraph (2).

''(B) NATIONAL INCIDENCE.—The Secretary shall ensure that research conducted, and data collected, under paragraph (1)(J) are reported in a way that will allow longitudinal comparisons as well as comparisons to the national incidence studies conducted under this title.''; and

(D) by striking the second paragraph (4);

(2) in subsection (b), by amending paragraph (2) to read as follows:

''(2) AREAS OF EMPHASIS.—Such technical assistance—

''(A) shall focus on—

''(i) implementing strategies that can leverage existing community-based and State funded resources to prevent child abuse and neglect and providing education for individuals involved in prevention activities;

''(ii) reducing racial bias in child welfare systems, including how such systems interact with health, law enforcement, and education systems;

''(iii) promoting best practices for families experiencing domestic violence, substance use disorder, or other complex needs; and

''(iv) providing professional development and other technical assistance to child welfare agencies to improve the understanding of and to help address the effects of trauma and adverse childhood experiences in parents and children in contact with the child welfare system; and

''(B) may include the identification of—

''(i) various methods and procedures for the investigation, assessment, and prosecution of child physical and sexual abuse cases;

''(ii) ways to mitigate psychological trauma to the child victim;

''(iii) effective programs carried out by the States under titles I and II; and

''(iv) effective approaches being utilized to link child protective service agencies with health care, mental health care, and developmental services and early intervention to improve forensic diagnosis and health evaluations, and barriers and shortages to such linkages.'';

(3) in subsection (c), by striking paragraph (3); and

(4) by striking subsection (e).

SEC. 105. GRANTS TO STATES, INDIAN TRIBES OR TRIBAL ORGANIZATIONS, AND PUBLIC OR PRIVATE AGENCIES AND ORGANIZATIONS.

Section 105 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106) is amended—

(1) in subsection (a)—

(A) by redesignating paragraph (7) as paragraph (11);

(B) by striking paragraphs (1) through (6) and inserting the following:

''(1) PREVENTION SERVICES.—The Secretary may award grants under this subsection to entities to establish or expand prevention services that reduce incidences of child maltreatment and strengthen families.

''(2) TRAUMATIC STRESS.—The Secretary may award grants under this subsection to entities to address instances of traumatic stress in families due to child abuse and neglect, especially for families with complex needs or families that exhibit high levels of adverse childhood experiences.

''(3) PROMOTING A HIGH-QUALITY WORKFORCE.—The Secretary may award grants under this subsection to entities to carry out programs or strategies that promote a high-quality workforce in the child welfare system through—

''(A) improvements to recruitment, support, or retention efforts; or

''(B) education for professionals and paraprofessionals in the prevention, identification, and treatment of child abuse and neglect.

''(4) IMPROVING COORDINATION.—The Secretary may award grants under this subsection to entities to carry out activities to improve intrastate coordination within the child welfare system. Such activities may include—

''(A) aligning information technology systems;

''(B) improving information sharing regarding child and family referrals; or

''(C) creating collaborative voluntary partnerships among public and private agencies, the State's child protective services, local social service agencies, community-based family support programs, State and local legal agencies, developmental disability agencies, substance use disorder treatment providers, health care providers and agencies, domestic violence prevention programs, mental health services, schools and early learning providers, religious entities, and other community-based programs.

''(5) PRIMARY PREVENTION.—The Secretary may award grants under this subsection to entities to carry out or expand primary prevention

programs or strategies that address family or community protective factors.

''(6) NEGLECT DUE TO ECONOMIC INSECURITY.—The Secretary may award grants under this subsection to entities to carry out programs or strategies that reduce findings of child neglect due in full or in part to family economic insecurity.

''(7) EDUCATION OF MANDATORY REPORTERS.—The Secretary may award grants under this subsection to entities for projects that involve research-based strategies for innovative education of mandated child abuse and neglect reporters, and for victims to understand mandatory reporting.

''(8) SENTINEL INJURIES.—The Secretary may award grants under this subsection to entities to identify and test effective practices to improve early detection and management of injuries indicative of potential abuse in infants to prevent future cases of child abuse and related fatalities.

''(9) INNOVATIVE PARTNERSHIPS.—The Secretary may award grants under this subsection to entities to carry out innovative programs or strategies to coordinate the delivery of services to help reduce child abuse and neglect via partnerships among health, mental health, education (including early learning and care programs as appropriate), and child welfare agencies and providers.

''(10) REDUCING CHILD ABUSE AND NEGLECT DUE TO THE SUBSTANCE USE DISORDER OF A PARENT OR CAREGIVER.—The Secretary may award grants under this subsection to entities to carry out activities to reduce child abuse and neglect due to the substance use disorder of a parent or caregiver.''; and

(C) by adding at the end the following:

''(12) NATIONAL CHILD ABUSE HOTLINE.—

''(A) IN GENERAL.—The Secretary may award a grant under this subsection to a nonprofit entity to provide for the ongoing operation of a 24-hour, national, toll-free telephone hotline to provide information and assistance to youth victims of child abuse or neglect, parents, caregivers, mandated reporters, and other concerned community members, including through alternative modalities for communications (such as texting or chat services) with such victims and other information seekers.

''(B) PRIORITY.—In awarding grants described in this paragraph, the Secretary shall give priority to applicants with experience in operating a hotline that provides assistance to victims of child abuse, parents, caregivers, and mandated reporters.

''(C) APPLICATION.—To be eligible to receive a grant described in this paragraph, a nonprofit entity shall submit an application to the Secretary that shall—

''(i) contain such assurances and information, be in such form, and be submitted in such manner, as the Secretary shall prescribe;

''(ii) include a complete description of the entity's plan for the operation of a national child abuse hotline, including descriptions of—

''(I) the professional development program for hotline personnel, including technology professional development to ensure that all persons affiliated with the hotline are able to effectively operate any technological systems used by the hotline;

''(II) the qualifications for hotline personnel;

''(III) the methods for the creation, maintenance, and updating of a comprehensive list of prevention and treatment service providers;

''(IV) a plan for publicizing the availability of the hotline throughout the United States;

''(V) a plan for providing service to non-English speaking callers, including service through hotline personnel who have non-English language capability;

''(VI) a plan for facilitating access to the hotline and alternative modality services by persons with hearing impairments and disabilities;

''(VII) a plan for providing crisis counseling, general assistance, and referrals to youth victims of child abuse; and

''(VIII) a plan to offer alternative services to calling, such as texting or live chat;

''(iii) demonstrate that the entity has the capacity and the expertise to maintain a child abuse hotline and a comprehensive list of service providers;

''(iv) demonstrate the ability to provide information and referrals for contacts, directly connect contacts to service providers, and employ crisis interventions;

''(v) demonstrate that the entity has a commitment to providing services to individuals in need; and

''(vi) demonstrate that the entity complies with State privacy laws and has established quality assurance practices.''; and

(2) by striking subsections (b) and (c) and inserting the following:

''(b) GOALS AND PERFORMANCE.—The Secretary shall ensure that each entity receiving a grant under this section—

''(1) establishes quantifiable goals for the outcome of the project funded with the grant; and

''(2) adequately measures the performance of the project relative to such goals.

''(c) PERFORMANCE REPORT REQUIRED.—

''(1) IN GENERAL.—Each entity that receives a grant under this section shall submit to the Secretary a performance report that includes—

''(A) an evaluation of the effectiveness of the project funded with the grant relative to the goals established for such project under subsection (b)(1); and

''(B) data supporting such evaluation.

''(2) SUBMISSION.—The report under paragraph (1) shall be submitted to the Secretary at such time, in such manner, and containing such information as the Secretary may require.

''(d) CONTINUING GRANTS.—The Secretary may only award a continuing grant to an entity under this section if such entity submits a performance report required under subsection (c) that demonstrates effectiveness of the project funded.''.

SEC. 106. GRANTS TO STATES FOR CHILD ABUSE OR NEGLECT PREVENTION AND TREATMENT PROGRAMS.

(a) DEVELOPMENT AND OPERATION GRANTS.—Subsection (a) of section 106 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106a) is amended to read as follows:

''(a) DEVELOPMENT AND OPERATION GRANTS.—The Secretary shall make grants to the States, from allotments under subsection (f) for each State that applies for a grant under this section, for purposes of assisting the States in improving and implementing a child protective services system that is family-centered, integrates community services, and is capable of providing rapid response to high-risk cases, by carrying out the following:

''(1) Conducting the intake, assessment, screening, and investigation of reports of child abuse or neglect.

''(2) Ensuring that reports concerning a child's living arrangements or subsistence needs are addressed through services or benefits and that no child is separated from such child's parent for reasons of poverty.

''(3) Creating and improving the use of multidisciplinary teams and interagency, intra-agency, interstate, and intrastate protocols to enhance fair investigations; and improving legal preparation and representation.

''(4) Complying with the assurances in section 106(b)(2).

''(5) Establishing State and local networks of child and family service providers that support child and family well-being, which shall—

''(A) include child protective services, as well as agencies and service providers, that address family-strengthening, parenting skills, child development, early childhood care and learning, child advocacy, public health, mental health, substance use disorder treatment, domestic violence, developmental disabilities, housing, juvenile justice, elementary and secondary education, and child placement; and

''(B) address instances of child abuse and neglect by incorporating evaluations that assess the development of a child, including language and communication, cognitive, physical, and social and emotional development, the need for mental health services, including trauma-related services, trauma-informed care, and parental needs.

''(6) Ensuring child protective services is addressing the safety of children and responding to parent and family needs, which shall include—

''(A) family-oriented efforts that emphasize case assessment and follow up casework focused on child safety and child and parent well-being, which may include—

''(i) ensuring parents and children undergo physical and mental health assessments, as appropriate, and ongoing developmental monitoring;

''(ii) multidisciplinary approaches to assessing family needs and connecting the family with services, including prevention services under section 471 of the Social Security Act (42 U.S.C. 671);

''(iii) organizing a treatment team with the goal of preventing child abuse and neglect, and improving parent and child well-being;

''(iv) case monitoring that supports child well-being; and

''(v) differential response efforts; and

''(B) establishing and maintaining a rapid response system that responds promptly to all reports of child abuse or neglect, with special attention to cases involving children under 3 years of age.

''(7) Educating caseworkers, community service providers, attorneys, health care professionals, parents, and others engaged in the prevention, intervention, and treatment of child abuse and neglect, which shall include education on—

''(A) practices that help ensure child safety and well-being;

''(B) approaches to family-oriented prevention, intervention, and treatment of child abuse and neglect;

''(C) early childhood, child, and adolescent development, and the impact of adverse childhood experiences on such development;

''(D) the relationship between child abuse and domestic violence, and support for non-abusing parents;

''(E) strategies to work with families impacted by substance use disorder and mental health issues (and, when appropriate, be coordinated with prevention efforts funded under section 471 of the Social Security Act (42 U.S.C. 671));

''(F) effective use of multiple services to address family and child needs, including needs resulting from trauma;

''(G) efforts to improve family and child well-being;

''(H) support for child welfare workers affected by secondary trauma; and

''(I) supporting families and caregivers to combat and prevent unsubstantiated, unfounded, or false reports, including through education on the rights of families and caregivers.

''(8) Creating or improving data systems that allow for—

''(A) the identification of cases requiring prompt responses;

''(B) real-time case monitoring that tracks assessments, service referrals, follow-up, case reviews, and progress toward parent and child goals; and

''(C) sharing basic identifying data with law enforcement, as necessary.

''(9) Improving the general child protective system by developing, improving, and implementing safety assessment tools, providing that such tools, protocols, and systems shall not authorize the separation of any child from the legal parent or guardian of such child solely on the basis of poverty, or without a judicial order, except in the case of imminent harm.''.

(b) ELIGIBILITY REQUIREMENTS.—

(1) STATE PLAN.—Paragraph (1) of section 106(b) of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106a(b)) is amended to read as follows:

''(1) STATE PLAN.—

''(A) IN GENERAL.—To be eligible to receive a grant under this section, a State shall submit to the Secretary a State plan that—

''(i) specifies how the grant will be used, and the State's strategic plan, to treat child abuse and neglect and enhance community-based, prevention-centered approaches that attempt to prevent child abuse and neglect while strengthening and supporting families whenever possible; and

''(ii) meets the requirements of this subsection.

''(B) COORDINATION AND CONSULTATION.—

''(i) COORDINATION.—Each State, to the maximum extent practicable, shall coordinate its State plan under this subsection with its State plan under part B of title IV of the Social Security Act (42 U.S.C. 621 et seq.) relating to child and family services and, in States electing to provide services under part E of title IV of the Social Security Act (42 U.S.C. 670 et seq.) relating to foster care prevention services, its State plan under such part E.

''(ii) CONSULTATION.—In developing a State plan under this subsection, a State shall consult with community-based prevention and service agencies, parents and families affected by child abuse or neglect in the State, law enforcement, family court judges, prosecutors who handle criminal child abuse cases, and medical professionals engaged in the treatment of child abuse and neglect.

''(C) DURATION AND SUBMISSION OF PLAN.—Each State plan shall—

''(i) be submitted not less than every 5 years; and

''(ii) if necessary, revised by the State to inform the Secretary of any substantive changes, including—

''(I) any changes to State law or regulations, relating to the prevention of child abuse and neglect that may affect the eligibility of the State under this section; or

''(II) any changes in the State's activities, strategies, or programs under this section.''.

(2) CONTENTS.—Paragraph (2) of section 106(b) of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106a(b)) is amended to read as follows:

''(2) CONTENTS.—A State plan submitted under paragraph (1) shall contain a description of the activities that the State will carry out using amounts received under the grant to achieve the objectives of this title, including—

''(A) an assurance in the form of a certification by the Governor of the State that the State has in effect and is enforcing a State law, or has in effect and is operating a statewide program, relating to child abuse and neglect that includes—

''(i) provisions or procedures for an individual to report known and suspected instances of child abuse and neglect, including a State law for mandatory reporting by individuals required to report such instances;

''(ii) procedures for the immediate screening, risk and safety assessment, and prompt investigation of such reports of alleged abuse and neglect in order to ensure the well-being and safety of children;

''(iii) procedures for immediate steps to be taken to ensure and protect the safety of a victim of child abuse or neglect and of any other child under the same care who may also be in danger of child abuse or neglect and ensuring their placement in a safe environment;

''(iv) methods to preserve the confidentiality of all records in order to protect the rights of the child and of the child's parents or guardians, including requirements ensuring that reports and records made and maintained pursuant to the purposes of this Act shall only be made available to—

''(I) individuals who are the subject of the report;

''(II) Federal, State, or local government entities, or any agent of such entities, as described in clause (xi) of this subparagraph;

''(III) child abuse citizen review panels;

''(IV) child fatality review panels;

''(V) a grand jury or court, upon a finding that information in the record is necessary for the determination of an issue before the court or grand jury; and

''(VI) other entities or classes of individuals statutorily authorized by the State to receive such information pursuant to a legitimate State purpose;

''(v) provisions and procedures requiring that in every case involving a victim of child abuse or neglect which results in a judicial proceeding, a guardian ad litem, who has received education appropriate to the role, including education in early childhood, child, and adolescent development, and domestic violence, and who may be an attorney or a court appointed special advocate who has received education appropriate to that role (or both), shall be appointed to represent the child (who, for purposes of this section, shall have any age limit elected by the State pursuant to section 475(8)(B)(iii) of the Social Security Act (42 U.S.C. 675(8)(B)(iii)) in such proceedings—

''(I) to obtain first-hand, a clear understanding of the situation and needs of such child; and

''(II) to make recommendations to the court concerning the best interests of such child;

''(vi) the establishment of citizen review panels in accordance with subsection (c);

''(vii) provisions and procedures to require that a representative of the child protective services agency shall, at the initial time of contact with the individual subject to a child abuse or neglect investigation, advise the individual of the complaints or allegations made against the individual, in a manner that is consistent with laws protecting the rights of the informant;

''(viii) provisions, procedures, and mechanisms—

''(I) for the expedited termination of parental rights in the case of any infant determined to be abandoned under State law; and

''(II) by which individuals who disagree with an official finding of child abuse or neglect can appeal such finding;

''(ix) provisions addressing the professional development of representatives of the child protective services system regarding the legal duties of the representatives, which may consist of various methods of informing such representatives of such duties (including providing such education in different languages if necessary), in order to protect the legal rights and safety of children and their parents and caregivers from the initial time of contact during investigation through treatment;

''(x) provisions for immunity from civil or criminal liability under State and local laws and regulations for individuals making good faith reports of suspected or known instances of child abuse or neglect, or who otherwise provide information or assistance, including medical evaluations or consultations, in connection with a report, investigation, or legal intervention pursuant to a good faith report of child abuse or neglect;

''(xi) provisions to require the State to disclose confidential information to any Federal, State, or local government entity, or any agent of such entity, that has a need for such information in order to carry out its responsibilities under law to protect children from child abuse and neglect;

''(xii) provisions requiring, and procedures in place that facilitate the prompt expungement of any records that are accessible to the general public or are used for purposes of employment or other background checks in cases determined to be unsubstantiated or false, except that nothing in this section shall prevent State child protective services agencies from keeping information on unsubstantiated reports in their casework files to assist in future risk and safety assessment;

''(xiii) provisions and procedures for requiring criminal background record checks that meet the requirements of section 471(a)(20) of the Social Security Act (42 U.S.C. 671(a)(20)) for prospective foster and adoptive parents and other adult relatives and non-relatives residing in the household;

''(xiv) provisions for systems of technology that support the State child protective services system and track reports of child abuse and neglect from intake through final disposition;

''(xv) provisions and procedures requiring identification and assessment of all reports involving children known or suspected to be victims of sex trafficking (as defined in section 103(12) of the Trafficking Victims Protection Act of 2000 (22 U.S.C. 7102 (12));

''(xvi) provisions, procedures, and mechanisms that assure that the State does not require reunification of a surviving child with a parent who has been found by a court of competent jurisdiction—

''(I) to have committed murder (which would have been an offense under section 1111(a) of title 18, United States Code, if the offense had occurred in the special maritime or territorial jurisdiction of the United States) of another child of such parent;

''(II) to have committed voluntary manslaughter (which would have been an offense under section 1112(a) of title 18, United States Code, if the offense had occurred in the special maritime or territorial jurisdiction of the United States) of another child of such parent;

''(III) to have aided or abetted, attempted, conspired, or solicited to commit such murder or voluntary manslaughter;

''(IV) to have committed a felony assault that results in the serious bodily injury to the surviving child or another child of such parent;

''(V) to have committed sexual abuse against the surviving child or another child of such parent; or

''(VI) to be required to register with a sex offender registry under section 113(a) of the Adam Walsh Child Protection and Safety Act of 2006 (42 U.S.C. 16913(a)); and

''(xvii) an assurance that, upon the implementation by the State of the provisions, procedures, and mechanisms under clause (xvi), conviction of any one of the felonies listed in clause (xvi) constitute grounds under State law for the termination of parental rights of the convicted parent as to the surviving children (although case-by-case determinations of whether or not to seek termination of parental rights shall be within the sole discretion of the State);

''(B) an assurance that the State has in place procedures for responding to the reporting of medical neglect (including instances of withholding of medically indicated treatment from infants with disabilities who have life-threatening conditions), procedures or programs, or both (within the State child protective services system), to provide for—

''(i) coordination and consultation with individuals designated by and within appropriate health-care facilities;

''(ii) prompt notification by individuals designated by and within appropriate health-care facilities of cases of suspected medical neglect (including instances of withholding of medically indicated treatment from infants with disabilities who have life-threatening conditions); and

''(iii) authority, under State law, for the State child protective services system to pursue any legal remedies, including the authority to initiate legal proceedings in a court of competent jurisdiction, as may be necessary to prevent the withholding of medically indicated treatment from infants with disabilities who have life-threatening conditions;

''(C) an assurance or certification that programs and education conducted under this title address the unique needs of unaccompanied

homeless youth, including access to enrollment and support services and that such youth are eligible for under parts B and E of title IV of the Social Security Act (42 U.S.C. 621 et seq., 670 et seq.) and meet the requirements of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11301 et seq.); and

''(D) a description of—

''(i) policies and procedures (including appropriate referrals to child welfare service systems and for other appropriate services (including home visiting services and mutual support and parent partner programs) determined by a family assessment) to address the needs of infants born with and identified as being affected by substance use or withdrawal symptoms resulting from prenatal drug exposure, or a Fetal Alcohol Spectrum Disorder, including a requirement that health care providers involved in the delivery or care of such infants notify the child protective welfare service system of the occurrence of such condition in such infants, except that—

''(I) child protective services shall undertake an investigation only when the findings of a family assessment warrant such investigation; and

''(II) such notification shall not be construed to—

''(aa) establish a definition under Federal law of what constitutes child abuse or neglect; or

''(bb) require prosecution for any illegal action;

''(ii) the development of a multi-disciplinary plan of safe care for the infant born and identified as being affected by substance use or withdrawal symptoms or a Fetal Alcohol Spectrum Disorder to ensure the safety and well-being of such infant following release from the care of health care providers, including through—

''(I) using a risk-based approach to develop each plan of safe care;

''(II) addressing, through coordinated service delivery, the health and substance use disorder treatment needs of the infant and affected family or caregiver as determined by a family assessment; and

''(III) the development and implementation by the State of monitoring systems regarding the implementation of such plans of safe care to determine whether and in what manner local entities are providing, in accordance with State requirements, referrals to and delivery of appropriate services for the infant and affected family or caregiver;

''(iii) policies and procedures to make available to the public on the State website the data, findings, and information about all cases of child abuse or neglect resulting in a child fatality or near fatality, including a description of—

''(I) how the State will not create an exception to such public disclosure, except in a case in which—

''(aa) the State would like to delay public release of case-specific findings or information (including any previous reports of domestic violence and subsequent actions taken to assess and address such reports) while a criminal investigation or prosecution of such a fatality or near fatality is pending;

''(bb) the State is protecting the identity of a reporter of child abuse or neglect; or

''(cc) the State is withholding identifying information of members of the victim's family who are not perpetrators of the fatality or near fatality; and

''(II) how the State will ensure that in providing the public disclosure required under this clause, the State will include—

''(aa) the cause and circumstances of the fatality or near fatality;

''(bb) the age and gender of the child; and

''(cc) any previous reports of child abuse or neglect investigations that are relevant to the child abuse or neglect that led to the fatality or near fatality;

''(iv) how the State will use data collected on child abuse or neglect to prevent child fatalities and near fatalities;

''(v) how the State will implement efforts to prevent child fatalities and near fatalities;

''(vi) the cooperation of State law enforcement officials, court of competent jurisdiction, and appropriate State agencies providing human services in the investigation, assessment, prosecution, and treatment of child abuse and neglect;

''(vii) the steps the State will take to improve the professional development, retention, and supervision of caseworkers and how the State will measure the effectiveness of such efforts;

''(viii) the State's plan to ensure each child under the age of 3 who is involved in a substantiated case of child abuse or neglect will be referred to the State's child find system under section 635(a)(5) of the Individuals with Disabilities Education Act (20 U.S.C. 1435(a)(5)) in order to determine if the child is an infant or toddler with a disability (as defined in section 632(5) of such Act (20 U.S.C. 1432(5)));

''(ix) the State's plan to improve, as part of a comprehensive State strategy led by law enforcement, professional development for child protective services workers and their appropriate role in identifying, assessing, and providing comprehensive services for children who are sex trafficking victims, in coordination with law enforcement, juvenile justice agencies, runaway and homeless youth shelters, and health, mental health, and other social service agencies and providers;

''(x) the services to be provided under the grant to individuals, families, or communities, either directly or through referrals, aimed at preventing the occurrence of child abuse and neglect;

''(xi) the State's efforts to ensure professionals who are required to report suspected cases of child abuse and neglect are aware of their responsibilities under subparagraph (A)(i) and receive professional development relating to performing such responsibilities that is specific to their profession and workplace;

''(xii) policies and procedures encouraging the appropriate involvement of families in decision-making pertaining to children who experienced child abuse or neglect;

''(xiii) the State's efforts to improve appropriate collaboration among child protective services agencies, domestic violence services agencies, substance use disorder treatment agencies, and other agencies in investigations, interventions, and the delivery of services and treatment provided to children and families affected by child abuse or neglect, including children exposed to domestic violence, where appropriate;

''(xiv) policies and procedures regarding the use of differential response, as applicable, to improve outcomes for children; and

''(xv) the State's efforts to reduce racial bias in its child protective services system.''.

(3) LIMITATIONS.—Paragraph (3) of section 106(b) of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106a(b)) is amended—

(A) in the paragraph heading, by striking ''LIMITATION'' and inserting ''LIMITATIONS'';

(B) by striking ''With regard to clauses (vi) and (vii) of paragraph (2)(B),'' and inserting the following:

''(A) DISCLOSURE OF CERTAIN IDENTIFYING INFORMATION.—With regard to subparagraphs (A)(iv) and (D)(iii) of paragraph (2),'';

(C) by striking the period at the end and inserting ''; and''; and

(D) by adding at the end the following:

''(B) PUBLIC ACCESS TO COURT PROCEEDINGS.—Nothing in paragraph (2) shall be construed to limit the State's flexibility to determine State policies relating to public access to court proceedings to determine child abuse and neglect, except that such policies shall, at a minimum, ensure the safety and well-being of the child, parents, and families.''.

(4) DEFINITIONS.—Paragraph (4) of section 106(b) of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106a(b)) is amended—

(A) in the paragraph heading, by striking ''DEFINITIONS'' and inserting ''DEFINITION'';

(B) by striking ''this subsection'' and all that follows through ''means an act'' and inserting the following: ''this subsection, the term 'near fatality' means an act'';

(C) by striking ''; and'' and inserting a period; and

(D) by striking subparagraph (B).

(c) CITIZEN REVIEW PANELS.—Section 106(c) of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106a(c)) is amended—

(1) in paragraph (1)(B), by striking ''EXCEPTIONS.'' and all that follows through ''A State may'' and inserting ''EXCEPTION.—A State may'';

(2) in paragraph (4)(A)—

(A) in the matter preceding clause (i), by striking ''and where appropriate, specific cases,''; and

(B) in clause (iii)(I), by striking ''foster care and adoption programs'' and inserting ''foster care, prevention, and permanency programs''; and

(3) by amending the first sentence of paragraph (6) to read as follows: ''Each panel established under paragraph (1) shall prepare and make available to the State and the public, on an annual basis, a report containing a summary of the activities of the panel, the criteria used for determining which activities the panel engaged in, and recommendations or observations to improve the child protective services system at the State and local levels, and the data upon which these recommendations or observations are based.''.

(d) ANNUAL STATE DATA REPORTS.—Section 106(d) of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106a(d)) is amended—

(1) by amending paragraph (13) to read as follows:

''(13) The annual report containing the summary of the activities and recommendations of the citizen review panels of the State required by subsection (c)(6), and the actions taken by the State as a result of such recommendations.'';

(2) in paragraph (15), by striking ''subsection (b)(2)(B)(ii)'' and inserting ''subsection (b)(2)(D)(i)'';

(3) in paragraph (16), by striking ''subsection (b)(2)(B)(xxi)'' and inserting ''subsection (b)(2)(D)(viii)'';

(4) in paragraph (17), by striking ''subsection (b)(2)(B)(xxiv)'' and inserting ''subsection (b)(2)(A)(xv)'';

(5) in paragraph (18)—

(A) in subparagraph (A), by striking ''subsection (b)(2)(B)(ii)'' and inserting ''subsection (b)(2)(D)(i)'';

(B) in subparagraph (B), by striking ''subsection (b)(2)(B)(iii)'' and inserting ''subsection (b)(2)(D)(ii)''; and

(C) in subparagraph (C), by striking ''subsection (b)(2)(B)(iii)'' and inserting ''subsection (b)(2)(D)(ii)''; and

(6) by adding at the end the following:

''(19) The number of child fatalities and near fatalities from maltreatment and related information in accordance with the uniform standards established under section 103(d).''.

(e) ALLOTMENTS.—Section 106(f) of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106a(f)) is amended by adding at the end the following:

''(6) LIMITATION.—For any fiscal year for which the amount allotted to a State or territory under this subsection exceeds the amount allotted to the State or territory under such subsection for fiscal year 2019, the State or territory may use not more than 2 percent of such excess amount for administrative expenses.''.

SEC. 107. MISCELLANEOUS REQUIREMENTS.

Section 108 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106d) is amended—

(1) in subsection (b), by inserting ''Indian tribes, and tribal organizations,'' after ''States,'';

(2) by redesignating subsections (c) through (e) as subsections (d) through (f), respectively; and

(3) by inserting after subsection (b) the following:

''(c) PROTECTING AGAINST SYSTEMIC CHILD SEXUAL ABUSE.—

''(1) REPORTING AND TASK FORCE.—Not later than 24 months after the date of the enactment of the Human Services and Community Supports Act, each State task force established under section 107(c) and expanded as described in paragraph (2) shall study and make recommendations on the following, with a focus on preventing systemic child sexual abuse:

''(A) How to detect systemic child sexual abuse that occurs in an organization.

''(B) How to prevent child sexual abuse and systemic child sexual abuse from occurring in organizations, which shall include recommendations to improve—

''(i) practices and policies for the education of parents, caregivers, and victims, and age appropriate education of children, about risk factors or signs of potential child sexual abuse; and

''(ii) the efficacy of applicable State laws and the role such laws play in deterring or preventing incidences of child sexual abuse.

''(C) The feasibility of making available the disposition of a perpetrator within an organization to—

''(i) the child alleging sexual abuse or the child's family; or

''(ii) an adult who was a child at the time of the sexual abuse claim in question or the adult's family.

''(2) TASK FORCE COMPOSITION.—For purposes of this subsection, a State task force shall include—

''(A) the members of the State task force described in section 107(c) for the State; and

''(B) the following:

''(i) Family court judges.

''(ii) Individuals from religious organizations.

''(iii) Individuals from youth-serving organizations, including youth athletics organizations.

''(3) REPORTING ON RECOMMENDATIONS.—Not later than 6 months after a State task force makes recommendations under paragraph (1), the State maintaining such State task force shall—

''(A) make public the recommendations of such report;

''(B) report to the Secretary on the status of adopting such recommendations; and

''(C) in a case in which the State declines to adopt a particular recommendation, make public the explanation for such declination.

''(4) DEFINITIONS.—For purposes of this subsection—

''(A) the terms 'child sexual abuse' and 'sexual abuse' shall not be limited to an act or a failure to act on the part of a parent or caretaker;

''(B) the term 'organization' means any entity that serves children; and

''(C) the term 'systemic child sexual abuse' means—

''(i) a pattern of informal or formal policy or de facto policy to not follow State and local requirements to report instances of child sexual abuse in violation of State and local mandatory reporting laws or policy; or

''(ii) a pattern of assisting individual perpetrators in maintaining their careers despite substantiated evidence of child sexual abuse.''.

SEC. 108. REPORTS.

(a) SCALING EVIDENCE-BASED TREATMENT OF CHILD ABUSE AND NEGLECT.—Section 110 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106f) is amended to read as follows:

''SEC. 110. STUDY AND REPORT RELATING TO SCALING EVIDENCE-BASED TREATMENT OF CHILD ABUSE AND NEGLECT; STUDY AND REPORT ON MARITAL AGE OF CONSENT; STUDY AND REPORT ON STATE MANDATORY REPORTING LAWS.

''(a) IN GENERAL.—The Secretary shall conduct a study that examines challenges to, and best practices for, the scalability of treatments that reduce the trauma resulting from child abuse and neglect and reduce the risk of revictimization, such as those allowable under sections 105 and 106.

''(b) CONTENT OF STUDY.—The study described in subsection (a) shall be completed in a manner that considers the variability among treatment programs and among populations vulnerable to child abuse and neglect. The study shall include, at minimum:

''(1) A detailed synthesis of the existing research literature examining barriers and challenges to, and best practices for the scalability of child welfare programs and services as well as programs and services for vulnerable children and families in related fields, including healthcare and education.

''(2) Data describing state and local providers' experiences with scaling treatments that reduce the trauma resulting from child abuse and neglect and reduce the risk of revictimization.

''(3) Consultation with experts in child welfare, healthcare, and education.

''(c) REPORT.—Not later than 3 years after the date of the enactment of the Human Services and Community Supports Act, the Secretary shall submit to the Committee on Health, Education, Labor, and Pensions of the Senate and the Committee on Education and Labor of the House of Representatives a report that contains the results of the study conducted under subsection (a), including recommendations for best practices for scaling treatments that reduce the trauma resulting from child abuse and neglect and reduce the risk of revictimization.

''(d) STUDY AND REPORT ON MARITAL AGE OF CONSENT.—

''(1) STUDY.—The Secretary shall study, with respect to each State—

''(A) the State law regarding the minimum marriage age; and

''(B) the prevalence of marriage involving a child who is under the age of such minimum marriage age.

''(2) FACTORS.—The study required under paragraph (1) shall include an examination of—

''(A) the extent to which any statutory exceptions to the minimum marriage age in such laws contribute to the prevalence of marriage involving a child described in paragraph (1)(B);

''(B) whether such exceptions allow such a child to be married without the consent of such child; and

''(C) the impact of such exceptions on the safety of such children.

''(3) REPORT.—Not later than 1 year after the date of enactment of the Human Services and Community Supports Act, the Secretary shall submit to the Committee on Health, Education, Labor, and Pensions of the Senate and the Committee on Education and Labor of the House of Representatives a report containing the findings of the study required by this subsection, including any best practices.

''(e) STUDY AND REPORT ON STATE MANDATORY REPORTING LAWS.—

''(1) STUDY.—The Secretary shall collect information on and otherwise study State laws for mandatory reporting of incidents of child abuse or neglect. Such study shall examine trends in referrals and investigations of child abuse and neglect due to differences in such State laws with respect to the inclusion, as mandatory reporters, of the following individuals:

''(A) Individuals licensed or certified to practice in any health-related field licensed by the State, employees of health care facilities or providers licensed by the State, who are engaged in the admission, examination, care or treatment of individuals, including mental health and emergency medical service providers.

''(B) Individuals employed by a school who have direct contact with children, including teachers, administrators, and independent contractors.

''(C) Peace officers and law enforcement personnel.

''(D) Clergy, including Christian Science practitioners, except where prohibited on account of clergy-penitent privilege.

''(E) Day care and child care operators and employees.

''(F) Employees of social services agencies who have direct contact with children in the course of employment.

''(G) Foster parents.

''(H) Court appointed special advocates (employees and volunteers).

''(I) Camp and after-school employees.

''(J) An individual, paid or unpaid, who, on the basis of the individual's role as an integral part of a regularly scheduled program, activity, or service, accepts responsibility for a child.

''(2) REPORT.—Not later than 4 years after the date of enactment of the Human Services and Community Supports Act, the Secretary shall submit to the Committee on Health, Education, Labor, and Pensions of the Senate and the Committee on Education and Labor of the House of Representatives a report containing the findings of the study required by this subsection, including any best practices related to the inclusion, as mandatory reporters, of individuals described in paragraph (1).''.

(b) REPORT ON CHILD ABUSE AND NEGLECT IN INDIAN TRIBAL COMMUNITIES.—

(1) IN GENERAL.—Not later than 2 years after the date of the enactment of this Act, the Comptroller General, in consultation with the Indian tribes from each of the 12 regions of the Bureau of Indian Affairs, shall study child abuse and neglect in Indian Tribal communities for the purpose of identifying vital information and making recommendations concerning issues relating to child abuse and neglect in such communities, and submit to the Committee on Health, Education, Labor, and Pensions and the Committee on Indian Affairs of the Senate and the Committee on Education and Labor and the Committee on Natural Resources of the House of Representatives a report on such study, which shall include—

(A) the number of Indian tribes providing primary child abuse and neglect prevention activities;

(B) the number of Indian tribes providing secondary child abuse and neglect prevention activities;

(C) promising practices of Indian tribes with respect to child abuse and neglect prevention that are culturally-based or culturally-adapted;

(D) information and recommendations on how such culturally-based or culturally-adapted child abuse and neglect prevention activities could become evidence-based;

(E) the number of Indian tribes that have accessed Federal child abuse and neglect prevention programs;

(F) child abuse and neglect prevention activities that Indian tribes provide using State funds;

(G) child abuse and neglect prevention activities that Indian tribes provide using Tribal funds;

(H) Tribal access to State children's trust fund resources, as described in section 202 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5116a);

(I) how a children's trust fund model could be used to support prevention efforts regarding child abuse and neglect of American Indian and Alaska Native children;

(J) Federal agency technical assistance efforts to address child abuse and neglect prevention and treatment of American Indian and Alaska Native children;

(K) Federal agency cross-system collaboration to address child abuse and neglect prevention and treatment of American Indian and Alaska Native children;

(L) Tribal access to child abuse and neglect prevention research and demonstration grants under the Child Abuse Prevention and Treatment Act (42 U.S.C. 5101 et seq.); and

(M) an examination of child abuse and neglect data systems to identify what Tribal data is being submitted, barriers to submitting data, and recommendations on improving the collection of data from Indian Tribes.

(2) DEFINITIONS.—In this subsection—

(A) the term ''Alaska Native'' has the meaning given the term in section 111 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106g); and

(B) the terms ''child abuse and neglect'' and ''Indian tribe'' have the meaning given the terms in section 3 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5101 note).

SEC. 109. AUTHORIZATION OF APPROPRIATIONS.

Section 112(a) of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106h(a)) is amended—

(1) in paragraph (1)—

(A) by striking ''to carry out'' through ''fiscal year 2010'' and inserting ''to carry out this title $270,000,000 for fiscal year 2021''; and

(B) by striking ''2011 through 2015'' and inserting ''2022 through 2026''; and

(2) by striking paragraph (2)(A) and inserting the following:

''(A) IN GENERAL.—Of the amounts appropriated for a fiscal year under paragraph (1), the Secretary shall make available 30 percent of such amounts, or $100,000,000, whichever is less, to fund discretionary activities under this title.''.

SEC. 110. MONITORING AND OVERSIGHT.

Section 114(1) of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5108(1)) is amended—

(1) in each of subparagraphs (A) and (B), by striking ''and'' at the end; and

(2) by adding at the end the following:

''(C) include written guidance and technical assistance to support States, which shall include guidance on the requirements of this Act with respect to infants born with and identified as being affected by substance use or withdrawal symptoms, Neonatal Abstinence Syndrome, or Fetal Alcohol Spectrum Disorder, as described in clauses (i) and (ii) of section 106(b)(2)(D), including by—

''(i) enhancing States' understanding of requirements and flexibilities under the law, including by clarifying key terms;

''(ii) addressing State-identified challenges with developing, implementing, and monitoring plans of safe care; and

''(iii) disseminating best practices on implementation of plans of safe care, on such topics as differential response, collaboration and coordination, and identification and delivery of services for different populations, while recognizing needs of different populations and varying community approaches across States; and

''(D) include the submission of a report to the Committee on Education and Labor of the House of Representatives and the Committee on Health, Education, Labor, and Pensions of the Senate not later than 1 year after the date of the enactment of this Act that contains a description of the activities taken by the Secretary to comply with the requirements of subparagraph (C); and''.

SEC. 111. ELECTRONIC INTERSTATE DATA EXCHANGE SYSTEM.

Title I of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5101 et seq.) is amended by adding at the end the following:

''SEC. 115. ELECTRONIC INTERSTATE DATA EXCHANGE SYSTEM.

''(a) INTERSTATE DATA EXCHANGE SYSTEM.—

''(1) IN GENERAL.—The Secretary of Health and Human Services shall consider the recommendations included in the reports required under paragraph (8)(A) and subsection (b)(2) in developing an electronic interstate data exchange system that allows State entities responsible under State law for maintaining child abuse and neglect registries to communicate information across State lines.

''(2) STANDARDS.—In developing the electronic interstate data exchange system under paragraph (1), the Secretary shall—

''(A) use interoperable standards developed and maintained by intergovernmental partnerships, such as the National Information Exchange Model;

''(B) develop policies and governance standards that—

''(i) ensure consistency in types of information shared and not shared; and

''(ii) specify circumstances under which data should be shared through the interstate data exchange system; and

''(C) ensure that all standards and policies adhere to the privacy, security, and civil rights laws of each State and Federal law.

''(3) LIMITATION ON USE OF ELECTRONIC INTERSTATE DATA EXCHANGE SYSTEM.—The electronic interstate data exchange system may only be used for purposes relating to child safety.

''(4) PILOT PROGRAM.—

''(A) IMPLEMENTATION.—Not later than 6 months after the date of the enactment of this section, the Secretary of Health and Human Services shall begin implementation of a pilot program to generate recommendations for the full integration of the electronic interstate data exchange system. Such pilot program shall include not less than 10 States and not more than 15 States.

''(B) COMPLETION.—Not later than 30 months after the date of the enactment of this section, the Secretary of Health and Human Services shall complete the pilot program described in subparagraph (A).

''(5) INTEGRATION.—The Secretary of Health and Human Services may assist States in the integration of this system into the infrastructure of each State using funds appropriated under this subsection.

''(6) PARTICIPATION.—As a condition on eligibility for receipt of funds under section 106, each State shall—

''(A) participate in the electronic interstate data exchange system to the fullest extent possible in accordance with State law (as determined by the Secretary of Health and Human Services) not later than December 31, 2027; and

''(B) prior to the participation described in subparagraph (A), provide to the Secretary of Health and Human Services an assurance that the child abuse and neglect registry of such State provides procedural due process protections with respect to including individuals on such registry.

''(7) PROHIBITION.—The Secretary of Health and Human Services may not access or store data from the electronic interstate data exchange system, unless the State to which such data pertains voluntarily shares such data with the Secretary of Health and Human Services.

''(8) REPORTS.—The Secretary of Health and Human Services shall prepare and submit to Congress—

''(A) not later than 3 years after the date of the enactment of this section, a report on the recommendations from the pilot program described in paragraph (4); and

''(B) not later than January 31, 2025, a report on the progress made in implementing this subsection.

''(9) AUTHORIZATION OF APPROPRIATIONS.—Of the funds appropriated under section 112 for a fiscal year—

''(A) for each of fiscal years 2021 and 2022, $2,000,000 shall be reserved to carry out this section; and

''(B) for each of fiscal years 2023 through 2026, $1,000,000 shall be reserved to carry out this section.

''(b) WORKING GROUP.—

''(1) IN GENERAL.— Not later than 60 days after the date of the enactment of this section, the Secretary of Health and Human Services shall convene a working group to study and make recommendations on the following:

''(A) The feasibility of making publicly available on the website of each State definitions and standards of substantiated child abuse and neglect for the State.

''(B) Whether background check requirements under this Act, the Child Care and Development Block Grant Act of 1990 (42 U.S.C. 9858 et seq.), and part E of title IV of the Social Security Act (42 U.S.C. 670 et seq.) are complementary or if there are discrepancies that need to be addressed.

''(C) How to improve communication between and across States, including through the use of technology and the use of the electronic interstate data exchange system established under subsection (a), to allow for more accurate and efficient exchange of child abuse and neglect records.

''(D) How to reduce barriers and establish best practices for the State to provide timely responses to requests from other States for information contained in the State's child abuse and neglect registry through the electronic interstate data exchange system established under subsection (a).

''(E) How to ensure due process for any individual included in a State's child abuse and neglect registry, including the following:

''(i) The level of evidence necessary for inclusion in the State's child abuse and neglect registry.

''(ii) The process for notifying such individual of inclusion in the State's child abuse and neglect registry and the implications of such inclusion.

''(iii) The process for providing such individual the opportunity to challenge such inclusion, and the procedures for resolving such challenge.

''(iv) The length of time an individual's record is to remain in the State's child abuse and neglect registry, and the process for removing such individual's record.

''(v) The criteria for when such individual's child abuse and neglect registry record may be—

''(I) made accessible to the general public;

''(II) made available for purposes of an employment check; and

''(III) be shared for the purposes of participation in the electronic interstate data exchange system described in subsection (a).

''(2) REPORT.—Not later than 18 months after the date of the enactment of this section, the working group convened under paragraph (1) shall submit a report containing its recommendations to the Secretary of Health and Human Services, the Committee on Health, Education, Labor, and Pensions of the Senate, and the Committee on Education and Labor of the House of Representatives.

''(3) CONSTRUCTION.—There shall be no requirement for any State to adopt the recommendations of the working group, nor shall the Secretary of Health and Human Services incentivize or coerce any State to adopt any such recommendation.''.

SEC. 112. TECHNICAL AND CONFORMING AMENDMENTS.

(a) TECHNICAL AMENDMENTS.— The Child Abuse Prevention and Treatment Act (42 U.S.C. 5101 et seq.), as amended by the preceding provisions of this title, is further amended—

(1) by striking ''Committee on Education and the Workforce'' each place it appears and inserting ''Committee on Education and Labor'';

(2) in section 103(c)(1)(F), by striking ''abused and neglected children'' and inserting ''victims of child abuse or neglect''; and

(3) in section 107(f), by striking ''(42 U.S.C. 10603a)'' and inserting ''(34 U.S.C. 20104)''.

(b) CONFORMING AMENDMENTS.—

(1) SECTION 103.—Section 103(b)(5) (42 U.S.C. 5104(b)(5)) is amended by striking ''section 106(b)(2)(B)(iii)'' and inserting ''section 106(b)(2)(D)(ii)''.

(2) SECTION 105.—Section 105(a)(11) (42 U.S.C. 5106(a)(11) (as redesignated by section 105(1)(A) of this title) is amended—

(A) in subparagraph (A), by striking ''section 106(b)(2)(B)(iii)'' and inserting ''section 106(b)(2)(D)(ii)'';

(B) in subparagraph (C)—

(i) in clause (i)(II), by striking ''section 106(b)(2)(B)(iii)'' and inserting ''section 106(b)(2)(D)(ii)'';

(ii) in clause (i)(IV), by striking ''section 106(b)(2)(B)(iii)(II)'' and inserting ''section 106(b)(2)(D)(ii)(II)''; and

(iii) in clause (ii), by striking ''clauses (ii) and (iii) of section 106(b)(2)(B)'' and inserting ''clauses (i) and (ii) of section 106(b)(2)(D)'';

(C) in subparagraph (D)—

(i) in clause (i)(I), by striking ''section 106(b)(2)(B)(iii)(I)'' and inserting ''section 106(b)(2)(D)(ii)(I)'';

(ii) in clause (ii)(I), by striking ''section 106(b)(2)(B)(ii)'' and inserting ''section 106(b)(2)(D)(i)'';

(iii) in clause (ii)(II), by striking ''section 106(b)(2)(B)(iii)'' and inserting ''section 106(b)(2)(D)(ii)(I)'';

(iv) in clause (iii)(I), by striking ''section 106(b)(2)(B)(i)'' and inserting ''section 106(b)(2)(A)(i)'';

(v) in clause (iii)(IV), by striking ''section 106(b)(2)(B)(iii)'' and inserting ''section 106(b)(2)(D)(ii)''; and

(vi) in clause (v), by striking ''section 106(b)(2)(B)(iii)'' and inserting ''section 106(b)(2)(D)(ii)'';

(D) in subparagraph (E), by striking ''section 106(b)(2)(B)(ii)'' and inserting ''section 106(b)(2)(D)(i)''; and

(E) in subparagraph (G)(ii), by striking ''clauses (ii) and (iii) of section 106(b)(2)(B)'' and inserting ''clauses (i) and (ii) of section 106(b)(2)(D)''.

(3) SECTION 114.—Section 114(1)(B) (42 U.S.C. 5108(1)(B)) is amended by striking ''clauses (ii) and (iii) of section 106(b)(2)(B)'' and inserting ''clauses (i) and (ii) of section 106(b)(2)(D)''.

(4) TABLE OF CONTENTS.—The table of contents in section 1(b) of the Child Abuse Prevention and Treatment Act is amended—

(A) by striking the items relating to sections 2 and 102;

(B) by inserting after the item relating to section 114 the following:

''Sec. 115. Electronic interstate data exchange system.''; and

(C) by striking the item relating to section 110, and inserting the following:

''Sec. 110. Study and report relating to scaling evidence-based treatment of child abuse and neglect; study and report on marital age of consent; study and report on State mandatory reporting laws.''.

Subtitle B—Community-based Grants for the Prevention of Child Abuse and Neglect

SEC. 121. PURPOSE AND AUTHORITY.

Section 201 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5116) is amended to read as follows:

''SEC. 201. PURPOSE AND AUTHORITY.

''(a) PURPOSE.—It is the purpose of this title—

''(1) to support community-based efforts to develop, operate, expand, enhance, evaluate, and coordinate initiatives, programs, and activities to strengthen families and prevent child abuse and neglect;

''(2) to support the development of a State strategy to address unmet need and the coordination of State, regional, and local resources and activities to better strengthen and support families to reduce the likelihood of child abuse and neglect; and

''(3) to support local programs in increasing the ability of diverse populations with demonstrated need, including low-income families, racial and ethnic minorities, families with children or caregivers with disabilities, underserved communities, and rural communities, to access a continuum of preventive services that strengthen families in order to more effectively prevent child abuse and neglect.

''(b) AUTHORITY.—The Secretary shall make grants under this title on a formula basis to the entity designated by the State as the lead entity (referred to in this title as the 'lead entity') under section 202(1) for the following purposes—

''(1) supporting local programs in providing community-based family strengthening services designed to prevent child abuse and neglect that help families build protective factors linked to the prevention of child abuse and neglect, such as knowledge of parenting and child development, parental resilience, social connections, time-limited and need-based concrete support, and social and emotional development of children, that—

''(A) are effective, culturally appropriate, and accessible to diverse populations with demonstrated need;

''(B) build upon existing strengths;

''(C) offer assistance to families;

''(D) provide early, comprehensive support for parents;

''(E) promote the development of healthy familial relationships and parenting skills, especially in young parents and parents with very young children;

''(F) increase family stability;

''(G) improve family access to other formal and informal community-based resources, such as providing referrals to early health and developmental services, mental health services, and time-limited and need-based concrete supports, including for homeless families and those at-risk of homelessness;

''(H) support the additional needs of families with children or caregivers with disabilities through respite care and other services; and

''(I) demonstrate a commitment to the continued leadership of parents in the planning, program implementation, and evaluation of the lead entity and local programs funded under this title, including involvement of parents of children with disabilities, parents who are individuals with disabilities, racial and ethnic minorities, and members of other underrepresented or underserved groups;

''(2) promoting the development of a continuum of preventive services that strengthen families and promote child, parent, family, and community well-being, through the development of State and local networks, including collaboration and coordination between local programs and public agencies and private entities that utilize culturally responsive providers;

''(3) financing the start-up, maintenance, expansion, or redesign of core services described in section 205(b)(3) where communities have identified and decided to address unmet need identified in the inventory described in section 204(3), to the extent practicable given funding levels and community priorities;

''(4) maximizing funding through leveraging Federal, State, local, and private funds to carry out the purposes of the title;

''(5) financing public information activities, which may include activities to increase public awareness and education, and developing comprehensive outreach strategies to engage diverse populations with demonstrated need, that focus on the healthy and positive development of parents and children; and

''(6) to the extent practicable—

''(A) promoting the development, enhancement, expansion, and implementation of a statewide strategy to address the unmet need identified in the inventory described in section 204(3), with input from relevant stakeholders, to scale evidence-based and evidence-informed community-based family strengthening services designed to prevent child abuse and neglect; and

''(B) addressing and supporting the capacity of local programs to strengthen families and prevent child abuse and neglect through technical assistance, professional development, and collaboration between local programs.''.

SEC. 122. ELIGIBILITY.

Section 202 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5116a) is amended—

(1) in paragraph (1)—

(A) in subparagraph (A), by inserting '', taking into consideration the capacity and expertise of eligible entities,'' after ''State'';

(B) in subparagraph (B), by striking ''parents who are'' and all that follows and inserting ''parents who are or who have been consumers of preventive supports and who can provide leadership in the planning, implementation, and evaluation of programs and policy decisions of the lead entity in accomplishing the desired outcomes of such efforts; and'';

(C) in subparagraph (C)—

(i) by inserting ''local,'' after ''State,''; and

(ii) by striking ''and'' at the end; and

(D) by striking subparagraph (D);

(2) in paragraph (2)—

(A) in subparagraph (A), by striking ''composed of'' and all that follows through the semicolon at the end and inserting ''carried out by local, collaborative, public-private partnerships;''; and

(B) in subparagraph (C)—

(i) by inserting ''local,'' after ''State,''; and

(ii) by striking ''and'' at the end;

(3) in paragraph (3)—

(A) by striking subparagraph (A) and inserting the following:

''(A) has demonstrated commitment to the continued leadership of parents in the development, operation, evaluation, and oversight of State and local efforts to support community-based family strengthening services designed to prevent child abuse and neglect;'';

(B) in subparagraph (B), by striking ''community-based and prevention-focused programs and activities designed to strengthen and support families'' and inserting ''community-based family strengthening services designed'';

(C) in subparagraph (C)—

(i) by striking ''community-based and prevention-focused programs and activities designed to strengthen and support families to prevent child abuse and neglect'' and inserting ''local programs''; and

(ii) by striking ''and'' at the end; and

(D) by striking subparagraph (D) and inserting the following:

''(D) will integrate efforts with individuals and organizations experienced in working in partnership with families with children with disabilities or parents with disabilities, diverse populations with demonstrated need, sexual and gender minority youth, victims of domestic violence, and with the child abuse and neglect prevention activities in the State, and demonstrate a financial commitment to those activities; and

''(E) will take into consideration access for diverse populations and unmet need when distributing funds to local programs under section 205; and''; and

(4) by adding at the end the following:

''(4) the Governor of the State provides an assurance that, in issuing regulations in consultation with the lead entity to improve the delivery of community-based family strengthening services designed to promote child, family, and community well-being, and to prevent child abuse and neglect, the State will—

''(A) take into account how such regulations will impact activities funded under this Act; and

''(B) where appropriate, attempt to avoid duplication of efforts, minimize costs of compliance with such regulations, and maximize local flexibility with respect to such regulations.''.

SEC. 123. AMOUNT OF GRANT.

Section 203 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5116b) is amended—

(1) by adding at the end of subsection (a) the following: ''For any fiscal year for which the amount appropriated under section 210(a) exceeds the amount appropriated under such section for fiscal year 2019 by more than $2,000,000, the Secretary shall increase the reservation described in this subsection to 5 percent of the amount appropriated under section 210(a) for the fiscal year for the purpose described in the preceding sentence.'';

(2) in subsection (b)(1)(A), by striking ''$175,000'' and inserting ''$200,000''; and

(3) by adding at the end the following:

''(d) LIMITATION.—For any fiscal year for which the amount allotted to a State under subsection (b) exceeds the amount allotted to the State under such subsection for fiscal year 2019, the State's lead entity may use not more than 10 percent of such excess amount for administrative expenses.''.

SEC. 124. APPLICATION.

Section 204 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5116d) is amended to read as follows:

"SEC. 204. APPLICATION.

''A grant may not be made to a State under this title unless an application therefore is submitted by the lead entity to the Secretary and such application contains the types of information specified by the Secretary as essential to carrying out the provisions of section 202, including—

''(1) a description of the lead entity that will be responsible for the administration of funds provided under this title and the oversight of community-based family strengthening services designed to prevent child abuse and neglect that receive assistance from the lead entity in accordance with section 205;

''(2) a description of how community-based family strengthening services designed to prevent child abuse and neglect supported by the lead entity will operate, including how local programs that receive assistance from the lead entity and public agencies and private entities that promote child, parent, family, and community well-being will be integrated into a developing continuum of family centered, holistic, preventive services for children and families;

''(3) a description of the inventory of current unmet need and current community-based family strengthening services designed to prevent child abuse and neglect, and other family resource services operating in the State, including a description of how the lead entity plans to address unmet need in underserved areas;

''(4) a budget for the development, operation, and expansion of the community-based family strengthening services designed to prevent child abuse and neglect that verifies that the State will expend in non-Federal funds an amount equal to not less than 20 percent of the amount received under this title (in cash, not in-kind) for activities under this title;

''(5) an assurance that funds received under this title will supplement, not supplant, other State and local public funds designated for the start-up, maintenance, expansion, and redesign of community-based family strengthening services designed to prevent child abuse and neglect;

''(6) a description of the lead entity's capacity and commitment to ensure the continued leadership of parents who are or have been consumers of preventive supports, including parents of diverse populations with demonstrated need, family advocates, and adult former victims of child abuse or neglect, in the planning, implementation, and evaluation of the programs and policy decisions of the lead entity in accomplishing the desired outcomes for such efforts;

''(7) a description of the criteria that the lead entity will use to identify communities in which to provide services, and select and fund local programs in accordance with section 205, including how the lead entity will take into consideration the local program's ability to—

''(A) collaborate with other community-based organizations and service providers and engage in long-term and strategic planning to support the development of a continuum of preventive services that strengthen families;

''(B) meaningfully partner with parents in the development, implementation, and evaluation of services;

''(C) reduce barriers to access to community-based family strengthening services designed to prevent child abuse and neglect, including for diverse populations with demonstrated need; and

''(D) incorporate evidence-based or evidence-informed practices, to the extent practicable;

''(8) a description of outreach activities that the lead entity and local programs will undertake to maximize the participation of low-income families, racial and ethnic minorities, children and adults with disabilities, sexual and gender minority youth, victims of domestic violence, homeless families and those at risk of homelessness, families experiencing complex needs, and members of other underserved or underrepresented groups;

''(9) a plan for providing operational support, training, and technical assistance to local programs, which may include coordination with public agencies and private entities that promote child, parent, and family well-being to support increased access to a continuum of preventive services that strengthen and support families to prevent child abuse and neglect;

''(10) a description of how the performance of the lead entity and local programs will be measured in accordance with section 206;

''(11) a description of the actions that the lead entity will take to inform systemic changes in State policies, practices, procedures, and regulations to improve the delivery of community-based family strengthening services designed to prevent child abuse and neglect, including improved access for diverse populations with demonstrated need; and

''(12) an assurance that the lead entity will provide the Secretary with reports at such time and containing such information as the Secretary may require.''.

SEC. 125. LOCAL PROGRAM REQUIREMENTS.

Section 205 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5116e) is amended to read as follows:

"SEC. 205. LOCAL PROGRAM REQUIREMENTS.

''(a) IN GENERAL.—Grants or contracts made by the lead entity under this title shall be used to develop, implement, operate, expand, and enhance community-based family strengthening services through a continuum of preventive services to strengthen families and prevent child abuse and neglect in a manner that—

''(1) helps families build protective factors that are linked to the prevention of child abuse and neglect to support child and family well-being, including knowledge of parenting and child development, parental resilience, social connections, time-limited and need-based concrete support, and social and emotional development of children;

''(2) takes into consideration the assets and needs of communities in which they are located; and

''(3) promotes coordination between local programs and public agencies and private entities that promote child, parent, and family well-being.

''(b) LOCAL USES OF FUNDS.—Grant funds from the lead entity shall be used to develop, implement, operate, expand, and enhance community-based family strengthening services designed to prevent child abuse and neglect, which may include the following:

''(1) assessing community assets and needs through a planning process that—

''(A) involves other community-based organizations or agencies that have already performed a needs-assessment, where possible;

''(B) includes the meaningful involvement of parents; and

''(C) uses information and expertise from local public agencies, local nonprofit organizations, and private sector representatives in meaningful roles;

''(2) developing a comprehensive strategy to provide a continuum of preventive, family-centered services to children and families that strengthen and support families to prevent child abuse and neglect, especially to young parents, to parents with young children, to families in hard-to-reach areas, and to parents who are adult former victims of domestic violence or child abuse or neglect, through public-private partnerships;

''(3)(A) providing for core child abuse and neglect prevention services, which may be provided directly by the local recipient of the grant funds or through grants or agreements with other local agencies, such as—

''(i) parenting support and education programs, including services that help parents and other caregivers support children's development;

''(ii) mutual support and self help programs for parents and children;

''(iii) parent leadership skills development programs that support parents as leaders in their families and communities;

''(ii) respite care services;

''(iii) outreach and follow-up services, which may include voluntary home visiting services; and

''(iv) community and social service referrals; and

''(B) connecting individuals and families to additional services, including—

''(i) referral to and counseling for adoption services for individuals interested in adopting a child or relinquishing their child for adoption;

''(ii) child care, early childhood care and education, such as Head Start and Early Head Start under the Head Start Act (42 U.S.C. 9831 et seq.), and early intervention services, including early intervention services for infants and toddlers with disabilities eligible for such services as defined in section 632 of the Individuals with Disabilities Education Act (20 U.S.C. 1432);

''(iii) referral to services and supports to meet the additional needs of families with children with disabilities and parents who are individuals with disabilities;

''(iv) nutrition programs, which may include the special supplemental nutrition programs for women, infants, and children established by section 17 of the Child Nutrition Act of 1966 (42 U.S.C. 1786) and the supplemental nutrition assistance program under the Food and Nutrition Act of 2008 (7 U.S.C. 2011 et seq.);

''(v) referral to educational services and workforce development activities, such as activities described in section 134 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3174), adult education, including literacy and academic tutoring, and activities as described in section 203 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3272);

''(vi) self-sufficiency and life management skills training;

''(vii) community referral services, including early developmental screening of children and mental health services;

''(viii) peer counseling; and

''(ix) domestic violence service programs that provide services and treatment to children and their non-abusing caregivers;

''(4) developing and maintaining leadership roles for the meaningful involvement of parents in the development, operation, evaluation, and oversight of the programs and services, including to promote access to such programs and services in spaces familiar to families;

''(5) providing leadership in mobilizing local public and private resources to support the provision of needed child abuse and neglect prevention program services; and

''(6) coordinating with public agencies and private entities that promote child, parent, and family well-being, including through the development of State and local networks of programs and activities to develop a continuum of preventive services to strengthen families and to prevent child abuse and neglect, where appropriate.

''(b) PRIORITY.—In awarding local grants under this title, a lead entity shall give priority to effective local programs serving low-income communities and those serving young parents or parents with young children, including community-based child abuse and neglect prevention programs.''.

SEC. 126. PERFORMANCE MEASURES.

Section 206 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5116f) is amended to read as follows:

"SEC. 206. PERFORMANCE MEASURES.

''A State receiving a grant under this title, through reports provided to the Secretary—

''(1) shall demonstrate the effective development, operation, and expansion of community-based family strengthening services designed to prevent child abuse and neglect that meets the requirements of this title;

''(2) shall supply an inventory and description of the services provided to families by local programs that meet identified community needs, including core and additional services as described in section 205, which description shall specify whether those services are evidence-based or evidence-informed, and which may include a description of barriers and challenges, if any, to implementing evidence-based or evidence-informed services;

''(3) shall demonstrate that the lead entity addressed unmet need identified by the inventory and description of current services required under section 204(3) including, to the extent practicable, how the lead entity utilized a statewide strategy to address such unmet need;

''(4) shall describe the number of families served, including families with children with disabilities, and parents with disabilities, and demonstrate the involvement of a diverse representation of families in the design, operation, and evaluation of community-based family strengthening services designed to prevent child abuse and neglect, and in the design, operation and evaluation of the networks of such community-based and prevention-focused programs;

''(5) shall demonstrate a high level of satisfaction among families who have participated in the community-based family strengthening services designed to prevent child abuse and neglect;

''(6) shall demonstrate the establishment or maintenance of innovative funding mechanisms, at the State or local level, that blend Federal, State, local, and private funds, and innovative, interdisciplinary service delivery mechanisms, for the development, operation, expansion, and enhancement of the community-based family strengthening services designed to prevent child abuse and neglect;

''(7) shall describe the results of evaluation, or the outcomes of monitoring, conducted under the State program to demonstrate the effectiveness of activities conducted under this title in meeting the purposes of the program, including the number of local programs funded and the number of such programs that collaborate with outside entities; and

''(8) shall demonstrate an implementation plan to ensure the continued leadership of parents in the on-going planning, implementation, and evaluation of such community-based family strengthening services designed to prevent child abuse and neglect.''.

SEC. 127. NATIONAL NETWORK FOR COMMUNITY-BASED FAMILY RESOURCE PROGRAMS.

Section 207 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5116g) is amended—

(1) in the matter preceding paragraph (1), by striking ''such sums as may be necessary'' and inserting ''not more than 5 percent''; and

(2) in paragraph (3), by striking ''community-based and prevention-focused programs and activities designed to strengthen and support families'' and inserting ''community-based family strengthening services designed''.

SEC. 128. DEFINITIONS.

Section 208 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5116h) is amended—

(1) by redesignating paragraphs (1) and (2) as paragraphs (2) and (1), respectively, and transferring paragraph (1) as redesignated to appear before paragraph (2) as redesignated; and

(2) by striking paragraph (1) (as so redesignated) and inserting the following:

''(1) COMMUNITY-BASED FAMILY STRENGTHENING SERVICES.—The term 'community-based family strengthening services' includes family resource programs, family support programs, voluntary home visiting programs, respite care services, parenting education, mutual support programs for parents and children, parent partner programs, and other community programs or networks of such programs that provide activities that are designed to prevent child abuse and neglect.''.

SEC. 129. RULE OF CONSTRUCTION.

(a) IN GENERAL.—Title II of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5116 et seq.) is amended—

(1) by redesignating section 209 as section 210; and

(2) by inserting after section 208 the following:

"SEC. 209. RULE OF CONSTRUCTION.

''Nothing in this title shall be construed to prohibit grandparents, kinship care providers, foster parents, or adoptive parents from receiving or participating in services and programs under this title.''.

(b) CONFORMING AMENDMENT.—The table of contents in section 1(b) of the Child Abuse Prevention and Treatment Act is amended by striking the item relating to section 209 and inserting the following:

''Sec. 209. Rule of construction.
''Sec. 210. Authorization of appropriations.''.

SEC. 130. AUTHORIZATION OF APPROPRIATIONS.

Section 210 of the Child Abuse Prevention and Treatment Act, as redesignated by section 129 of this title, is amended—

(1) by striking ''There are'' and inserting the following:

''(a) IN GENERAL.—There are'';

(2) by striking ''to carry out'' through ''fiscal year 2010'' and inserting ''to carry out this title $270,000,000 for fiscal year 2021'';

(3) by striking ''2011 through 2015'' and inserting ''2022 through 2026''; and

(4) by adding at the end the following:

''(b) TREATMENT OF NON-FEDERAL FUNDS IN CERTAIN FISCAL YEARS.—For any fiscal year for which the amount appropriated under subsection (a) exceeds the amount appropriated under such subsection for fiscal year 2019, the Secretary shall consider non-Federal funds and in-kind contributions as part of the State contribution for the activities specified in section 204(4).''.

SEC. 131. STUDY AND REPORT.

(a) STUDY RELATING TO NEW PREVENTION PROGRAMS.—

(1) IN GENERAL.—The Comptroller General of the United States shall complete a study, using data reported by States to the Secretary of Health and Human Services under section 206 of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5116f), as amended by this title—

(A) to determine how many families and children in the first 3 years after the date of the enactment of this Act are served annually through programs funded under title II of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5116 et seq.); and

(B) to compare the number of such families and children served annually in the first 3 years after the date of the enactment of this Act to the number of such families and children served in fiscal year 2020.

(2) CONTENTS.—The study required under paragraph (1) shall include the following for each of the first 3 years after the date of the enactment of this Act:

(A) An examination of how many families received evidence-based programming under title II of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5116 et seq.).

(B) An examination of the extent to which local programs conduct evaluations using funds provided under such title and the findings of such evaluations.

(C) An examination of whether findings of effectiveness in evaluation studies vary by urban, suburban, or rural community type.

(D) An examination of whether programs partnering with other entities are more effective than those that do not partner with other entities.

(E) An examination of barriers to implement evidence-based programming or to conduct evaluations in instances where such activities do not occur.

(b) REPORT.—Not later than 4 years after the date of the enactment of this Act, the Comptroller General of the United States shall submit to the Committee on Health, Education, Labor, and Pensions of the Senate and the Committee on Education and Labor of the House of Representatives a report that contains the results of the study conducted under paragraph (1).

Subtitle C—Adoption Opportunities

SEC. 141. PURPOSE.

Section 201 of the Child Abuse Prevention and Treatment and Adoption Reform Act of 1978 (42 U.S.C. 5111) is amended—

*(1) in the section heading, by striking ''**CONGRESSIONAL FINDINGS AND DECLARATION OF PURPOSE**'' and inserting ''**PURPOSE**'';*

(2) by striking subsection (a); and

(3) in subsection (b)—

(A) by striking ''(b) PURPOSE.—'';

(B) in the matter preceding paragraph (1), by inserting ''sexual and gender minority youth'' after ''particularly older children, minority children,''; and

(C) in paragraph (1), by inserting ''services and,'' after ''post-legal adoption''.

SEC. 142. REPORT AND GUIDANCE ON UNREGULATED CUSTODY TRANSFERS.

The Child Abuse Prevention and Treatment and Adoption Reform Act of 1978 (42 U.S.C. 5111 et seq.) is amended by inserting after section 201 the following:

"SEC. 202. REPORT AND GUIDANCE ON UNREGULATED CUSTODY TRANSFERS.

''(a) SENSE OF CONGRESS.—It is the sense of Congress that:

''(1) Some adopted children may be at risk of experiencing an unregulated custody transfer because the challenges associated with adoptions (including the child's mental health needs and the difficulties many families face in acquiring support services) may lead families to seek out unregulated custody transfers.

''(2) Some adopted children experience trauma, and the disruption and placement in another home by unregulated custody transfer creates additional trauma and instability for children.

''(3) Children who experience an unregulated custody transfer may be placed with families who have not completed required child welfare or criminal background checks or clearances.

''(4) Social services agencies and courts are often unaware of the placement of children through unregulated custody transfer and therefore do not conduct assessments on the child's safety and well-being in such placements.

''(5) Such lack of placement oversight places a child at risk for future abuse and increases the chance that the child may experience—

''(A) abuse or neglect;

''(B) contact with unsafe adults or youth; and

''(C) exposure to unsafe or isolated environments.

''(6) The caregivers with whom a child is placed through unregulated custody transfer often have no legal responsibility with respect to such child, placing the child at risk for additional unregulated custody transfers.

''(7) Such caregivers also may not have complete records with respect to such child, including the child's birth, medical, or immigration records.

''(8) A child adopted through intercountry adoption may be at risk of not acquiring United States citizenship if an unregulated custody transfer occurs before the adoptive parents complete all necessary steps to finalize the adoption of such child.

''(9) Engaging in, or offering to engage in, unregulated custody transfer places children at risk of harm.

''(b) REPORT TO CONGRESS.—

''(1) IN GENERAL.—Not later than 1 year after the date of the enactment of this section, the Secretary of Health and Human Services shall provide to the Committee on Education and Labor of the House of Representatives, the Committee on Ways and Means of the House of Representatives, the Committee on Finance of the Senate, and the Committee on Health, Education, Labor and Pensions of the Senate a report on unregulated custody transfers of children, including of adopted children.

''(2) ELEMENTS.—The report required under paragraph (1) shall include—

''(A) the causes, methods, and characteristics of unregulated custody transfers, including the use of social media and the internet;

''(B) the effects of unregulated custody transfers on children, including the lack of assessment of a child's safety and well-being by social services agencies and courts due to such unregulated custody transfer;

''(C) the prevalence of unregulated custody transfers within each State and across all States; and

''(D) recommended policies for preventing, identifying, and responding to unregulated custody transfers, including of adopted children, that include—

''(i) amendments to Federal and State law to address unregulated custody transfers;

''(ii) amendments to child protection practices to address unregulated custody transfers; and

''(iii) methods of providing the public information regarding adoption and child protection.

''(c) GUIDANCE TO STATES.—

''(1) IN GENERAL.—Not later than 180 days after the date specified in subsection (b)(1), the Secretary shall issue guidance and technical assistance to States related to preventing, identifying, and responding to unregulated custody transfers, including of adopted children.

''(2) ELEMENTS.—The guidance required under paragraph (1) shall include—

''(A) education materials related to preventing, identifying, and responding to unregulated custody transfers for employees of State, local, and Tribal agencies that provide child welfare services;

''(B) guidance on appropriate pre-adoption education and post-adoption services for domestic and international adoptive families to promote child permanency; and

''(C) the assistance available through the National Resource Center for Special Needs Adoption under section 203(b)(9).

''(d) DEFINITIONS.—In this section:

''(1) STATE.—The term 'State' means each of the several States, the District of Columbia, and any commonwealth, territory, or possession of the United States.

''(2) UNREGULATED CUSTODY TRANSFER.—The term 'unregulated custody transfer' means the abandonment of a child, by the child's parent, legal guardian, or a person or entity acting on behalf, and with the consent, of such parent or guardian—

''(A) by placing a child with a person who is not—

''(i) the child's parent, step–parent, grandparent, adult sibling, legal guardian, or other adult relative;

''(ii) a friend of the family who is an adult and with whom the child is familiar; or

''(iii) a member of the Federally recognized Indian tribe of which the child is also a member;

''(B) with the intent of severing the relationship between the child and the parent or guardian of such child; and

''(C) without—

''(i) reasonably ensuring the safety of the child and permanency of the placement of the child, including by conducting an official home study, background check, and supervision; and

''(ii) transferring the legal rights and responsibilities of parenthood or guardianship under applicable Federal and State law to a person described in subparagraph (A).''.

SEC. 143. INFORMATION AND SERVICES.

(a) NATIONAL RESOURCE CENTER FOR SPECIAL NEEDS ADOPTION.—Section 203(b)(9) of the Child Abuse Prevention and Treatment and Adoption Reform Act of 1978 (42 U.S.C. 5113(b)(9)) is amended by inserting ''not later than 2 years after the date of the enactment of the Human Services and Community Supports Act, establish and'' before ''maintain''.

(b) PLACEMENT WITH ADOPTIVE FAMILIES.—Section 203(b)(11)(C) of the Child Abuse Prevention and Treatment and Adoption Reform Act of 1978 (42 U.S.C. 5113(b)(11)(C)) is amended by striking ''such children'' and inserting ''the children and youth described in the matter preceding paragraph (1) of section 201''.

(c) PRE-ADOPTION SERVICES.—Section 203(c)(1) of the Child Abuse Prevention and Treatment and Adoption Reform Act of 1978 (42 U.S.C. 5113(c)(1)) is amended by striking ''post'' and inserting ''pre- and post-''.

(d) SERVICES.—Section 203(c)(2) of the Child Abuse Prevention and Treatment and Adoption Reform Act of 1978 (42 U.S.C. 5113(c)(2)) is amended by inserting ''and the development of such services,'' after ''not supplant, services''.

(e) ELIMINATION OF BARRIERS TO ADOPTION ACROSS JURISDICTIONAL BOUNDARIES.—Section 203(e)(1) of the Child Abuse Prevention and Treatment and Adoption Reform Act of 1978 (42 U.S.C. 5113(e)(1)) is amended—

(1) by striking ''with, States,'' and inserting ''with States, Indian Tribes,''; and

(2) by inserting '', including through the use of web-based tools such as the electronic interstate case-processing system referred to in section 437(g) of the Social Security Act (42 U.S.C. 629g(g))'' before the period at the end.

SEC. 144. STUDY AND REPORT ON SUCCESSFUL ADOPTIONS.

Section 204 of the Child Abuse Prevention and Treatment and Adoption Reform Act of 1978 (42 U.S.C. 5114) is amended to read as follows:

''SEC. 204. STUDY AND REPORT ON SUCCESSFUL ADOPTIONS.

''(a) STUDY.—The Secretary shall conduct a study (directly or by grant to, or contract with, public or private nonprofit research agencies or organizations) on adoption outcomes and the factors (including parental substance use disorder) affecting those outcomes.

''(b) REPORT.—Not later than the date that is 36 months after the date of the enactment of the Human Services and Community Supports Act the Secretary shall submit a report to Congress that includes the results of the study required under subsection (a).''.

SEC. 145. AUTHORIZATION OF APPROPRIATIONS.

Section 205(a) of the Child Abuse Prevention and Treatment and Adoption Reform Act of 1978 (42 U.S.C. 5115(a)) is amended—

(1) by striking ''fiscal year 2010'' and inserting ''fiscal year 2021''; and

(2) by striking ''fiscal years 2011 through 2015'' and inserting ''fiscal years 2022 through 2026''.

Subtitle D—Amendments to Other Laws

SEC. 151. TECHNICAL AND CONFORMING AMENDMENTS TO OTHER LAWS.

(a) HEAD START ACT.—Section 658E(c)(2)(L) of the Head Start Act (42 U.S.C. 9858c(c)(2)(L)) is amended by striking ''will comply with the child abuse reporting requirements of section 106(b)(2)(B)(i) of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106a(b)(2)(B)(i))'' and inserting ''will comply with the child abuse reporting requirements of section 106(b)(2)(A)(i) of the Child Abuse Prevention and Treatment Act (42 U.S.C. 5106a(b)(2)(A)(i))''.

(b) VICTIMS OF CRIME ACT OF 1984.—Section 1404A of the Victims of Crime Act of 1984 (34 U.S.C. 20104) is amended by striking ''section 109'' and inserting ''section 107''.

TITLE II—CHILD NUTRITION AND THE SPECIAL SUPPLEMENTAL NUTRITION PROGRAM FOR WOMEN, INFANTS, AND CHILDREN

SEC. 201. EMERGENCY COSTS FOR CHILD NUTRITION PROGRAMS DURING COVID–19 PANDEMIC.

(a) USE OF CERTAIN APPROPRIATIONS TO COVER EMERGENCY OPERATIONAL COSTS UNDER SCHOOL MEAL PROGRAMS.—

(1) IN GENERAL.—

(A) REQUIRED ALLOTMENTS.—Notwithstanding any other provision of law, the Secretary shall allocate to each State that participates in the reimbursement program under paragraph (3) such amounts as may be necessary to carry out reimbursements under such paragraph for each reimbursement month, including, subject to paragraph (4)(B), administrative expenses necessary to make such reimbursements.

(B) GUIDANCE WITH RESPECT TO PROGRAM.—Not later than 10 days after the date of the enactment of this section, the Secretary shall issue guidance with respect to the reimbursement program under paragraph (3).

(2) REIMBURSEMENT PROGRAM APPLICATION.—To participate in the reimbursement program under paragraph (3), not later than 30 days after the date described in paragraph (1), a State shall submit an application to the Secretary that includes a plan to calculate and disburse reimbursements under the reimbursement program under paragraph (3).

(3) REIMBURSEMENT PROGRAM.—Using the amounts allocated under paragraph (1)(A), a State participating in the reimbursement program under this paragraph shall make reimbursements for emergency operational costs for each reimbursement month as follows:

(A) For each new school food authority in the State for the reimbursement month, an amount equal to 55 percent of the amount equal to—

(i) the average monthly amount such new school food authority was reimbursed under the reimbursement sections for meals and supplements served by such new school food authority during the alternate period; minus

(ii) the amount such new school food authority was reimbursed under the reimbursement sections for meals and supplements served by such new school food authority during such reimbursement month.

(B) For each school food authority not described in subparagraph (A) in the State for the reimbursement month, an amount equal to 55 percent of—

(i) the amount such school food authority was reimbursed under the reimbursement sections for meals and supplements served by such school food authority for the month beginning one year before such reimbursement month; minus

(ii) the amount such school food authority was reimbursed under the reimbursement sections for meals and supplements served by such school food authority during such reimbursement month.

(4) TREATMENT OF FUNDS.—

(A) AVAILABILITY.—Funds allocated to a State under paragraph (1)(A) shall remain available until June 30, 2021.

(B) ADMINISTRATIVE EXPENSES.—A State may reserve not more than 1 percent of the funds allocated under paragraph (1)(A) for administrative expenses to carry out this subsection.

(C) UNEXPENDED BALANCE.—On December 31, 2021, any amounts allocated to a State under paragraph (1)(A) or reimbursed to a school food authority or new school food authority under paragraph (3) that are unexpended by such State, school food authority, or new school food authority shall revert to the Secretary.

(5) REPORTS.—Each State that carries out a reimbursement program under paragraph (3) shall, not later than December 31, 2021, submit a report to the Secretary that includes a summary of the use of such funds by the State and each school food authority and new school food authority in such State.

(b) USE OF CERTAIN APPROPRIATIONS TO COVER CHILD AND ADULT CARE FOOD PROGRAM CHILD CARE OPERATIONAL EMERGENCY COSTS DURING COVID–19 PANDEMIC.—

(1) IN GENERAL.—

(A) REQUIRED ALLOTMENTS.—Notwithstanding any other provision of law, the Secretary shall allocate to each State that participates in the reimbursement program under paragraph (3) such amounts as may be necessary to carry out reimbursements under such paragraph for each reimbursement month, including, subject to paragraph (4)(C), administrative expenses necessary to make such reimbursements.

(B) GUIDANCE WITH RESPECT TO PROGRAM.—Not later than 10 days after the date of the enactment of this section, the Secretary shall issue guidance with respect to the reimbursement program under paragraph (3).

(2) REIMBURSEMENT PROGRAM APPLICATION.—To participate in the reimbursement program under paragraph (3), not later than 30 days after the date described in paragraph (1), a State shall submit an application to the Secretary that includes a plan to calculate and disburse reimbursements under the reimbursement program under paragraph (3).

(3) REIMBURSEMENT AMOUNT.—Using the amounts allocated under paragraph (1)(A), a State participating in the reimbursement program under this paragraph shall make reimbursements for child care operational emergency costs for each reimbursement month as follows:

(A) For each new covered institution in the State for the reimbursement month, an amount equal to 55 percent of—

(i) the average monthly amount such covered institution was reimbursed under subsection (c) and subsection (f) of section 17 of the Richard B. Russell National School Lunch Act (42 U.S.C. 1766) for meals and supplements served by such new covered institution during the alternate period; minus

(ii) the amount such covered institution was reimbursed under such section for meals and supplements served by such new covered institution during such reimbursement month.

(B) For each covered institution not described in subparagraph (A) in the State for the reimbursement month, an amount equal to 55 percent of—

(i) the amount such covered institution was reimbursed under subsection (c) and subsection (f) of section 17 of the Richard B. Russell National School Lunch Act (42 U.S.C. 1766) for meals and supplements served by such covered institution during the month beginning one year before such reimbursement month; minus

(ii) the amount such covered institution was reimbursed under such section for meals and supplements served by such covered institution during such reimbursement month.

(C) For each new sponsoring organization of a family or group day care home in the State for the reimbursement month, an amount equal to 55 percent of—

(i) the average monthly amount such new sponsoring organization of a family or group day care home was reimbursed under section 17(f)(3)(B) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1766(f)(3)(B)) for administrative funds for the alternate period; minus

(ii) the amount such new sponsoring organization of a family or group day care home was reimbursed under such section for administrative funds for the reimbursement month.

(D) For each sponsoring organization of a family or group day care home not described in subparagraph (C) in the State for the reimbursement month, an amount equal to 55 percent of—

(i) the amount such sponsoring organization of a family or group day care home was reimbursed under section 17(f)(3)(B) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1766(f)(3)(B)) for administrative funds for the month beginning one year before such reimbursement month; minus

(ii) the amount such sponsoring organization of a family or group day care home was reimbursed under such section for administrative funds for such reimbursement month.

(4) TREATMENT OF FUNDS.—

(A) AVAILABILITY.—Funds allocated to a State under paragraph (1)(A) shall remain available until June 30, 2021.

(B) UNAFFILIATED CENTER.—In the case of a covered institution or a new covered institution that is an unaffiliated center that is sponsored by a sponsoring organization and receives funds for a reimbursement month under subparagraph (A) or (B), such unaffiliated center shall provide to such sponsoring organization an amount of such funds as agreed to by the sponsoring organization and the unaffiliated center, except such amount may not be greater be than 15 percent of such funds.

(C) ADMINISTRATIVE EXPENSES.—A State may reserve not more than 1 percent of the funds allocated under paragraph (1)(A) for administrative expenses to carry out this subsection.

(D) UNEXPENDED BALANCE.—On December 31, 2021, any amounts allocated to a State under paragraph (1)(A) or reimbursed to a new covered institution, covered institution, new sponsoring organization of a family or group day care home, or sponsoring organization of a family or group day care home that are unexpended by such State, new covered institution, covered institution, new sponsoring organization of a family or group day care home, or sponsoring organization of a family or group day care home, shall revert to the Secretary.

(5) REPORTS.—Each State that carries out a reimbursement program under paragraph (3) shall, not later than December 31, 2021, submit a report to the Secretary that includes a summary of the use of such funds by the State and each new covered institution, covered institution, new sponsoring organization of a family or group day care home, or sponsoring organization of a family or group day care home.

(c) FUNDING.—There are hereby appropriated to the Secretary, out of any funds in the Treasury not otherwise appropriated, such sum as may be necessary to carry out this section.

(d) DEFINITIONS.—In this section:

(1) ALTERNATE PERIOD.—The term ''alternate period'' means the period beginning January 1, 2020 and ending February 29, 2020.

(2) EMERGENCY OPERATIONAL COSTS.—The term ''emergency operational costs'' means the costs incurred by a school food authority or new school food authority—

(A) during a public health emergency;

(B) that are related to the ongoing operation, modified operation, or temporary suspension of operation (including administrative costs) of such school food authority or new school food authority; and

(C) except as provided under subsection (a), that are not reimbursed under a Federal grant.

(3) CHILD CARE OPERATIONAL EMERGENCY COSTS.—The term ''child care operational emergency costs'' means the costs under the child and adult care food program under section 17 of the Richard B. Russell National School Lunch Act (42 U.S.C. 1766) incurred by a new covered institution, covered institution, new sponsoring organization of a family or group day care home, or sponsoring organization of a family or group day care home—

(A) during a public health emergency;

(B) that are related to the ongoing operation, modified operation, or temporary suspension of operation (including administrative costs) of such new covered institution, covered institution, new sponsoring organization of a family or group day care home, sponsoring organization of a family or group day care home, or sponsoring organization of an unaffiliated center; and

(C) except as provided under subsection (b), that are not reimbursed under a Federal grant.

(4) COVERED INSTITUTION.—The term ''covered institution'' means—

(A) an institution (as defined in section 17(a)(2) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1766(a)(2))); and

(B) a family or group day care home.

(5) NEW COVERED INSTITUTION.—The term ''new covered institution'' means a covered institution for which no reimbursements were made for meals and supplements under section 17(c) or (f) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1766) with respect to the previous reimbursement period.

(6) NEW SCHOOL FOOD AUTHORITY.—The term ''new school food authority'' means a school food authority for which no reimbursements were made under the reimbursement sections with respect to the previous reimbursement period.

(7) NEW SPONSORING ORGANIZATION OF A FAMILY OR GROUP DAY CARE.—The term ''new sponsoring organization of a family or group day care'' means a sponsoring organization of a family or group day care home for which no reimbursements for administrative funds were made under section 17(f)(3)(B) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1766(f)(3)(B)) for the previous reimbursement period.

(8) PREVIOUS REIMBURSEMENT PERIOD.—The term ''previous reimbursement period'' means the period beginning March 1, 2019 and ending June 30, 2019.

(9) PUBLIC HEALTH EMERGENCY.—The term ''public health emergency'' means a public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) resulting from the COVID–19 pandemic.

(10) REIMBURSEMENT MONTH.—The term ''reimbursement month'' means March 2020, April 2020, May 2020, and June 2020.

(11) REIMBURSEMENT SECTIONS.—The term ''reimbursement sections'' means—

(A) section 4(b), section 11(a)(2), section 13, and section 17A(c) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1753(b); 42 U.S.C. 1759a(a)(2); 42 U.S.C. 1761; 42 U.S.C. 1766a(c)); and

(B) section 4 of the Child Nutrition Act (42 U.S.C. 1773).

(12) SECRETARY.—The term ''Secretary'' means the Secretary of Agriculture.

(13) STATE.— The term ''State'' has the meaning given such term in section 12(d)(8) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1760(d)(8)).

SEC. 202. FRESH PRODUCE FOR KIDS IN NEED.

Section 2202(f)(1) of the Families First Coronavirus Response Act (42 U.S.C. 1760 note) is amended by adding at the end the following:

''(E) The fresh fruit and vegetable program under section 19 of the Richard B. Russell National School Lunch Act (42 U.S.C. 1769a).''.

SEC. 203. WIC BENEFIT FLEXIBILITY DURING COVID–19.

(a) IN GENERAL.—

(1) AUTHORITY TO INCREASE AMOUNT OF CASH-VALUE VOUCHER.—During the COVID–19 public health emergency declared under section 319 of the Public Health Service Act (42 U.S.C. 247d) and in response to challenges related to such public health emergency, the Secretary may increase the amount of a cash-value voucher under a qualified food package to an amount less than or equal to $35.

(2) APPLICATION OF INCREASED AMOUNT OF CASH-VALUE VOUCHER TO STATE AGENCIES.—

(A) NOTIFICATION.—An increase to the amount of a cash-value voucher under paragraph (1) shall apply to any State agency that notifies the Secretary of the intent to use such an increased amount, without further application.

(B) USE OF INCREASED AMOUNT.—A State agency that notifies the Secretary under subparagraph (A) may use or not use the increased amount described in such subparagraph during the period beginning on the date of the notification by the State agency under such subparagraph and ending on the date that is 120 days after the date of the enactment of this section.

(3) APPLICATION PERIOD.—An increase to the amount of a cash-value voucher under paragraph (1) may only apply during the period beginning on the date of the enactment of this section and ending on January 31, 2021.

(4) SUNSET.—The authority to make an increase to the amount of a cash-value voucher under paragraph (1) or to use such an increased amount under paragraph (2)(B) shall terminate on the date that is 120 days after the date of the enactment of this section.

(b) DEFINITIONS.—

(1) CASH-VALUE VOUCHER.—The term ''cash-value voucher'' has the meaning given the term in section 246.2 of title 7, Code of Federal Regulations.

(2) QUALIFIED FOOD PACKAGE.—The term ''qualified food package'' means the following food packages under section 246.10(e) of title 7, Code of Federal Regulations:

(A) Food Package IV–Children 1 through 4 years.

(B) Food Package V–Pregnant and partially (mostly) breastfeeding women.

(C) Food Package VI–Postpartum women.

(D) Food Package VII–Fully breastfeeding.

(3) SECRETARY.—The term ''Secretary'' means the Secretary of Agriculture.

(4) STATE AGENCY.—The term ''State agency'' has the meaning given the term in section 17(b) of the Child Nutrition Act of 1966 (42 U.S.C. 1786(b)).

SEC. 204. COVID–19 WIC SAFETY AND MODERNIZATION.

(a) ESTABLISHMENT OF TASK FORCE.—Not later than 90 days after the date of the enactment of this section, the Secretary shall establish a task force on supplemental foods delivery in the special supplemental nutrition program (in this section referred to as the ''Task Force'').

(b) MEMBERSHIP.—

(1) COMPOSITION.—The Task Force shall be composed of at least 1 member but not more than 3 members appointed by the Secretary from each of the following:

(A) Retailers of supplemental foods.

(B) Representatives of State agencies.

(C) Representatives of Indian State agencies.

(D) Representatives of local agencies.

(E) Technology companies with experience maintaining the special supplemental nutrition program information systems and technology, including management information systems or electronic benefit transfer services.

(F) Manufacturers of supplemental foods.

(G) Participants in the special supplemental nutrition program from diverse locations.

(H) Other organizations that have experience with and knowledge of the special supplemental nutrition program.

(2) LIMITATION ON MEMBERSHIP.—The Task Force shall be composed of not more than 20 members.

(c) DUTIES.—

(1) STUDY.—The Task Force shall study measures to streamline the redemption of supplemental foods benefits that promote convenience, safety, and equitable access to supplemental foods, including infant formula, for participants in the special supplemental nutrition program, including—

(A) online and telephonic ordering and curbside pickup of, and payment for, supplemental foods;

(B) online and telephonic purchasing of supplemental foods;

(C) home delivery of supplemental foods;

(D) self checkout for purchases of supplemental foods; and

(E) other measures that limit or eliminate consumer presence in a physical store.

(2) REPORT BY TASK FORCE.—Not later than September 30, 2021, the Task Force shall submit to the Secretary a report that includes—

(A) the results of the study required under paragraph (1); and

(B) recommendations with respect to such results.

(3) REPORT BY SECRETARY.—Not later than 45 days after receiving the report required under paragraph (2), the Secretary shall—

(A) submit to Congress a report that includes—

(i) a plan with respect to carrying out the recommendations received by the Secretary in such report under paragraph (2); and

(ii) an assessment of whether legislative changes are necessary to carry out such plan; and

(B) notify the Task Force of the submission of the report required under subparagraph (A).

(4) PUBLICATION.—The Secretary shall make publicly available on the website of the Department of Agriculture—

(A) the report received by the Secretary under paragraph (2); and

(B) the report submitted by the Secretary under paragraph (3)(A).

(d) TERMINATION.—The Task Force shall terminate on the date the Secretary submits the report required under paragraph (3)(A).

(e) NONAPPLICABILITY OF FACA.—The Federal Advisory Committee Act (5 U.S.C. App.) shall not apply to the Task Force.

(f) DEFINITIONS.—In this section:

(1) LOCAL AGENCY.—The term ''local agency'' has the meaning given the term in section 17(b) of the Child Nutrition Act of 1966 (42 U.S.C. 1786(b)).

(2) SECRETARY.—The term ''Secretary'' means the Secretary of Agriculture.

(3) SPECIAL SUPPLEMENTAL NUTRITION PROGRAM.—The term ''special supplemental nutrition program'' means the special supplemental nutrition program under section 17 of the Child Nutrition Act of 1966 (42 U.S.C. 1786).

(4) STATE AGENCY.—The term ''State agency'' has the meaning given the term in section 17(b) of the Child Nutrition Act of 1966 (42 U.S.C. 1786(b)).

(5) SUPPLEMENTAL FOODS.—The term ''supplemental foods'' has the meaning given the term in section 17(b) of the Child Nutrition Act of 1966 (42 U.S.C. 1786(b)).

SEC. 205. SERVING YOUTH IN THE CHILD AND ADULT CARE FOOD PROGRAM AT EMERGENCY SHELTERS.

(a) PROGRAM FOR AT-RISK SCHOOL CHILDREN.—Beginning on the date of the enactment of this section, notwithstanding paragraph (1)(A) of section 17(r) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1766(r)), during the COVID–19 public health emergency declared under section 319 of the Public Health Service Act (42 U.S.C. 247d), the Secretary shall reimburse institutions that are emergency shelters under such section 17(r) (42 U.S.C. 1766(r)) for meals and supplements served to individuals who at the time of such service have not attained the age of 25.

(b) PARTICIPATION BY EMERGENCY SHELTERS.—Beginning on the date of the enactment of this section, notwithstanding paragraph (5)(A) section 17(t) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1766(t)), during the COVID–19 public health emergency declared under section 319 of the Public Health Service Act (42 U.S.C. 247d), the Secretary shall reimburse emergency shelters under such section 17(t) (42 U.S.C. 1766(t)) for meals and supplements served to individuals who at the time of such service have not attained the age of 25.

(c) FUNDING.—There are hereby appropriated to the Secretary, out of any funds in the Treasury not otherwise appropriated, such sum as may be necessary to carry out this section.

(d) DEFINITIONS.—In this section:

(1) EMERGENCY SHELTER.—The term ''emergency shelter'' has the meaning given the term under section 17(t)(1) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1766(t)(1)).

(2) SECRETARY.—The term ''Secretary'' means the Secretary of Agriculture.

SEC. 206. CALCULATION OF PAYMENTS AND REIMBURSEMENTS FOR CERTAIN CHILD NUTRITION PROGRAMS.

(a) RICHARD B. RUSSELL NATIONAL SCHOOL LUNCH ACT.—

(1) COMMODITY ASSISTANCE.—Notwithstanding any other provision of law, for purposes of providing commodity assistance to a State under section 6(c)(1)(C) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1755(c)(1)(C)) or cash assistance in lieu of such commodity assistance under section 16 of such Act (42 U.S.C. 1765) the Secretary shall deem the number of lunches served by school food authorities in such State during the 2020 period to be equal to the greater of the following:

(A) The number of lunches served by such school food authorities in such State during the 2019 period.

(B) The number of lunches served by such school food authorities in such State during the 2020 period.

(2) SPECIAL ASSISTANCE PAYMENTS.—Notwithstanding any other provision of law, in determining the number of meals served by a school for purposes of making special assistance payments to a State with respect to a school under subparagraph (B), clause (ii) or (iii) of subparagraph (C), or subparagraph (E)(i)(II) of section 11(a)(1) of the Richard B. Russell National School Lunch Act (42 U.S.C. 1759a(a)(1)), the Secretary shall deem the number of meals served by such school during the 2020 period to be equal to the greater of the following:

(A) The number of meals served by such school during the 2019 period.

(B) The number of meals served by such school during the 2020 period.

(b) CHILD NUTRITION ACT OF 1966.—

(1) STATE ADMINISTRATIVE EXPENSES.—Notwithstanding any other provision of law, for purposes of making payments to a State under section 7(a) of the Child Nutrition Act of 1966 (42 U.S.C. 1776(a)), the Secretary shall deem the number of meals and supplements served by such school food authorities in such State during the 2020 period to be equal to the greater of the following:

(A) The number of meals and supplements served by such school food authorities in such State during the 2019 period.

(B) The number of meals and supplements served by such school food authorities in such State during the 2020 period.

(2) TEAM NUTRITION NETWORK.—Notwithstanding any other provision of law, for purposes of making allocations to a State under section 19(d) of the Child Nutrition Act of 1966 (42 U.S.C. 1788(d)), the Secretary shall deem the number of lunches served by school food authorities in such State during the 2020 period to be equal to the greater of the following:

(A) The number of lunches served by such school food authorities in such State during the 2019 period.

(B) The number of lunches served by such school food authorities in such State during the 2020 period.

(c) DEFINITIONS.—In this section:

(1) SECRETARY.—The term ''Secretary'' means the Secretary of Agriculture.

(2) 2019 PERIOD.—The term ''2019 period'' means the period beginning March 1, 2019 and ending June 30, 2019.

(3) 2020 PERIOD.—The term ''2020 period'' means the period beginning March 1, 2020 and ending June 30, 2020.

SEC. 207. REPORTING ON WAIVER AUTHORITY.

(a) APPLICATION TO DOCUMENTS RECEIVED OR ISSUED ON OR AFTER DATE OF ENACTMENT.—Beginning on the date of the enactment of this section, not later than 10 days after the date of the receipt or issuance of each document specified in paragraph (1), (2), or (3) of this subsection, the Secretary of Agriculture shall make publicly available on the website of the Department of Agriculture the following documents:

(1) Any request submitted by State agencies for a qualified waiver.

(2) The Secretary's approval or denial of each such request.

(3) Any guidance issued by the Secretary with respect to a qualified waiver.

(b) INCLUSION OF DATE WITH GUIDANCE.—With respect to the guidance described in subsection (a)(3), the Secretary of Agriculture shall include the date on which such guidance was issued on the publicly available website of the Department of Agriculture on such guidance.

(c) APPLICATION RECEIVED OR ISSUED BEFORE DATE OF ENACTMENT.—In the case of a document specified in paragraph (1), (2), or (3) of subsection (a) received or issued by the Secretary of Agriculture before the date of the enactment of this section, the Secretary of Agriculture shall, not later than 30 days after the date of the enactment of this section, make publicly available on the website of the Department of Agriculture—

(1) the documents described in paragraphs (1) through (3) of subsection (a) with respect to each received or issued document; and

(2) if the Secretary issued guidance with respect to a qualified waiver issued before the date of the enactment of this section, the date on which such guidance was issued.

(d) QUALIFIED WAIVER DEFINED.—In this section, the term ''qualified waiver'' means a waiver under section 2102, 2202, 2203, or 2204 of the Families First Coronavirus Response Act (Public Law 116–127).

TITLE III—RELATED PROGRAMS

SEC. 301. COMMUNITY SERVICES BLOCK GRANT ENHANCEMENT ACT OF 2020.

(a) DISTRIBUTION OF CARES ACT FUNDS TO STATES.—Section 675B(b)(3) of the Community Services Block Grant Act (42 U.S.C. 9906(b)(3)) shall not apply with respect to funds appropriated by the CARES Act (Public Law 116–136) to carry out the Community Services Block Grant Act (42 U.S.C. 9901 et seq.).

(b) INCREASED POVERTY LINE.—For purposes of carrying out the Community Services Block Grant Act (42 U.S.C. 9901 et seq.) with any funds appropriated for fiscal year 2021 for such Act, the term ''poverty line'' as defined in section 673(2) of such Act (42 U.S.C. 9902(2)) means 200 percent of the poverty line otherwise applicable under such section (excluding the last sentence of such section) without regard to this subsection.

(c) DISTRIBUTION OF CARES ACT FUNDS BY STATES TO ELIGIBLE ENTITIES.—Funds appropriated by the CARES Act (Public Law 116–136) to carry out the Community Services Block Grant Act (42 U.S.C. 9901 et seq.) and received by a State shall be made available to eligible entities (as defined in section 673(1)(A) of such Act (42 U.S.C. 9902(1)(A))) not later than either 30 days after such State receives such funds or 30 days after the date of the enactment of this Act, whichever occurs later.

SEC. 302. FLEXIBILITY FOR THE RUNAWAY AND HOMELESS YOUTH PROGRAM.

During the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d) on January 31, 2020, with respect to COVID–19, and any renewal of such declaration, the Secretary may waive with respect to a current or future grantee of funds provided to carry out the Runaway and Homeless Youth Act (42 U.S.C. 11201 et seq.)—

(1) the 21-day maximum period for which shelter may be provided applicable under section 311(a)(2)(B)(i) of such Act (34 U.S.C. 11211(a)(2)(B)(i));

(2) the 20-youth maximum capacity of a center or facility applicable under section 312(b)(2)(A) of such Act (34 U.S.C. 11212(b)(2)(A)) if such grantee provides an assurance that waiving such requirement would not compromise the health and safety of youth or staff and would not compromise such grantee's ability to implement the applicable guidance issued by the Centers for Disease Control and Prevention to mitigate the spread of COVID–19, including the implementation of appropriate social distancing measures;

(3) the 540-day and 635-day maximum continuous periods for which shelter and services may be provided applicable under section 322(a)(2) of such Act (34 U.S.C. 11222(a)(2));

(4) the 20-individual maximum capacity of a shelter or facility applicable under section 322(a)(4) of such Act (34 U.S.C. 11222(a)(4)) if such grantee provides an assurance that waiving such requirement would not compromise the health and safety of youth or staff and would not compromise such grantee's ability to implement the applicable guidance issued by the Centers for Disease Control and Prevention to mitigate the spread of COVID–19, including the implementation of appropriate social distancing measures; and

(5) the 90-percent limitation on the Federal cost share applicable under section 383(a) of such Act (34 U.S.C. 11274(a)).

SEC. 303. EXTENSION OF CERTAIN NUTRITION FLEXIBILITIES FOR OLDER AMERICANS ACT PROGRAMS NUTRITION SERVICES.

(a) TRANSFER AUTHORITY.—Notwithstanding any other provision of the Older Americans Act of 1965 (42 U.S.C. 3001 et seq.), with respect to funds received by a State for fiscal year 2021 and attributable to funds appropriated under paragraph (1) or (2) of section 303(b) of such Act, the State may elect in its plan under section 307(a)(13) of such Act regarding part C of title III of such Act, to transfer between subpart 1 and subpart 2 of part C any amount of the funds so received notwithstanding the limitation on transfer authority provided in subparagraph (A) of section 308(b)(4) of such Act and without regard to subparagraph (B) of such section. The preceding sentence shall apply to such funds until expended by the State.

(b) HOME-DELIVERED NUTRITION SERVICES WAIVER.—For purposes determining eligibility for the delivery of nutrition services under section 337 of the Older Americans Act of 1965 (42 U.S.C. 3030g) with funds received by a State under the Older Americans Act of 1965 (42 U.S.C. 2001 et seq.) for fiscal 2021, the State shall treat an older individual who is unable to obtain nutrition because such individual is practicing social distancing due to the emergency in the same manner as the State treats an older individual who is homebound by reason of illness. The preceding sentence shall apply to such funds until expended by the State.

(c) DIETARY GUIDELINES WAIVER.—To facilitate implementation of subparts 1 and 2 of part C of title III of the Older Americans Act of 1965 (42 U.S.C. 3030d–2 et seq.) with funds received by a State for fiscal year 2021, the Assistant Secretary on Aging may waive, but make every effort practicable to continue to encourage the restoration of, the applicable requirements that meals provided under such subparts comply with the requirements of clauses (I) and (ii) of section 339(2)(A) of such Act (42 U.S.C. 3030g–21(2)(A)). The preceding sentence shall apply to such funds until expended by the State.

SEC. 304. USE OF LIHEAP SUPPLEMENTAL APPROPRIATIONS.

Notwithstanding the Low-Income Home Energy Assistance Act of 1981, with respect to amounts appropriated under title VIII of division A of this Act to carry out the Low-Income Home Energy Assistance Act of 1981, each State, the Commonwealth of Puerto Rico, Guam, American Samoa, the Virgin Islands of the United States, the Commonwealth of the Northern Mariana Islands, and each Indian Tribe, as applicable, that receives an allotment of funds from such amounts shall, in using such funds, for purposes of income eligibility, accept proof of job loss or severe income loss dated after February 29, 2020, such as a layoff or furlough notice or verification of application for unemployment benefits, as sufficient to demonstrate lack of income for an individual or household.

SEC. 305. CORPORATION FOR NATIONAL AND COMMUNITY SERVICE.

(a) CNCS LEGISLATIVE FLEXIBILITIES.—

(1) MATCH WAIVER.—During the period beginning on the date of the enactment of this Act and ending on September 30, 2022, notwithstanding any other provision of law, if a grantee of the Corporation for National and Community Service is unable to meet a requirement to provide matching funds due to funding constraints resulting from the COVID–19 national emergency, the Chief Executive Officer of the Corporation for National and Community Service may—

(A) waive any requirement that such grantee provide matching funds for a program; and

(B) increase the Federal share of the grant for such program up to 100 percent.

(2) END-OF-SERVICE CASH STIPEND.—Section 3514(a)(2)(B) of the CARES Act is amended by inserting '', or the full value of the stipend under section 105(a) of title I of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4955)'' after ''such subtitle''.

(3) SENIOR CORPS VOLUNTEER RECRUITMENT.—During the period beginning on the date of the enactment and ending on September 30, 2022, notwithstanding sections 201(a), 211(d), 211(e), and 213(a) of title II of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 5000 et seq.)—

(A) an individual age 45 years or older may enroll as a volunteer to provide services under parts A, B or C of such title to address the critical needs of local communities across the country during the COVID–19 national emergency; and

(B) for the purposes of parts B and C of such title II, ''low-income person'' and ''person of low income'' mean any person whose income is not more than 400 percent of the poverty line for a single individual.

(b) NATIONAL SERVICE EXPANSION FEASIBILITY STUDY.—

(1) STUDY REQUIRED.—The Corporation for National and Community Service shall conduct a study on the feasibility of increasing the capacity of national service programs to respond to the economic and social impact on communities across the country resulting from the COVID–19 national emergency and public health crisis.

(2) SCOPE OF STUDY.—In conducting the study required under paragraph (1), the Corporation for National and Community Service shall examine new and existing programs, partnerships, organizations, and grantees that could be utilized to respond to the COVID–19 national emergency as described in subsection (a), including—

(A) service opportunities related to food security, education, economic opportunity, and disaster or emergency response;

(B) partnerships with the Department of Health and Human Services, the Centers for Disease Control and Prevention, and public health departments in all 50 States and territories to respond to public health needs related to COVID–19 such as testing, contact tracing, or related activities; and

(C) the capacity and ability of the State Commissions on National and Community Service to respond to the needs of State and local governments in each State or territory in which such State Commission is in operation.

(3) REQUIRED FACTORS OF THE STUDY.—In examining new and existing programs, partnerships, organizations, and grantees as required under paragraph (2), the Corporation for National and Community Service shall examine—

(A) the cost and resources necessary related to increased capacity;

(B) the timeline for implementation of any expanded partnerships or increased capacity;

(C) options to use existing corps programs overseen by the Corporation for National and Community Service for increasing such capacity, and the role of programs, such as AmeriCorps, AmeriCorps VISTA, AmeriCorps National Civilian Community Corps, or Senior Corps, for increasing capacity;

(D) the ability to increase diversity, including economic, racial, ethnic, and gender diversity, among national service volunteers and programs;

(E) the geographic distribution of demand by State due to the economic or health related impacts of COVID–19 for national service volunteer opportunities across the country and the additional volunteer capacity needed to meet such demand, comparing existing demand for volunteer opportunities to expected or realized increases as a result of COVID–19; and

(F) whether any additional administrative capacity at the Corporation for National and Community Service, such as grantee organizational capacity, is needed to respond to the increased capacity of such new or existing programs, partnerships, organizations, and grantees.

(4) REPORTS TO CONGRESSIONAL COMMITTEES.—

(A) IN GENERAL.—Not later than 60 days after the date of the enactment of this Act, the Chief Executive Officer of the Corporation for National and Community Service shall submit to the congressional committees under subparagraph (B) a report on the results of the study under paragraph (1) with recommendations on the role for the Corporation for National and Community Service in responding to the COVID–19 national emergency, including any recommendations for legislative, regulatory, and administrative changes based on findings related to the topics identified under subsection (b).

(B) CONGRESSIONAL COMMITTEES.—The congressional committees under this subparagraph are—

(i) the Committee on Education and Labor and the Committee on Appropriations of the House of Representatives; and

(ii) the Committee on Health, Education, Labor, and Pensions and the Committee on Appropriations of the Senate.

(c) DEFINITIONS.—In this section, the following definitions apply:

(1) COVID–19 NATIONAL EMERGENCY.—The term ''COVID–19 national emergency'' means the national emergency declared by the President under the National Emergencies Act (50 U.S.C. 1601 et seq.) on March 13, 2020, with respect to COVID–19.

(2) GRANTEE.—The term ''grantee'' means a recipient of a grant under the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4950 et seq.) or the National and Community Service Act of 1990 (42 U.S.C. 12501 et seq.) to run a program.

(3) POVERTY LINE FOR A SINGLE INDIVIDUAL.—The term ''poverty line for a single individual'' has the meaning given such term in section 421 of the Domestic Volunteer Service Act of 1973 (42 U.S.C. 5061).

(4) PROGRAM.—The term ''program'' means a program funded under the Domestic Volunteer Service Act of 1973 (42 U.S.C. 4950 et seq.) or the National and Community Service Act of 1990 (42 U.S.C. 12501 et seq.).

(5) STATE COMMISSION.—The term ''State Commission'' has the meaning given such term in section 101 of the National and Community Service Act (42 U.S.C. 12511).

SEC. 306. MATCHING FUNDS WAIVER FOR FORMULA GRANTS AND SUBGRANTS UNDER THE FAMILY VIOLENCE PREVENTION AND SERVICES ACT.

(a) WAIVER OF MATCHING FUNDS FOR AWARDED GRANTS AND SUBGRANTS.—The Secretary of Health and Human Services shall waive—

(1) the non-Federal contributions requirement under subsection (c)(4) of section 306 of the Family Violence Prevention and Services Act (42 U.S.C. 10406) with respect to the grants and subgrants awarded in fiscal years 2019, 2020, and 2021 to each State (as defined in section 302 of such Act (42 U.S.C. 10402)) and the eligible entities within such State under section 306 or 308 of such Act (42 U.S.C. 10406; 10408); and

(2) the reporting requirements required under such grants and subgrants that relate to such non-Federal contributions requirement.

(b) WAIVER OF MATCHING FUNDS FOR GRANTS AWARDED AFTER DATE OF ENACTMENT.—

(1) IN GENERAL.—Subsection (c)(4) of section 306 of the Family Violence Prevention and Services Act (42 U.S.C. 10406) shall not apply to a qualified grant during the period of a public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) resulting from the COVID–19 pandemic.

(2) QUALIFIED GRANT DEFINED.—In this subsection, the term ''qualified grant'' means a grant or subgrant awarded—

(A) after the date of the enactment of this section; and

(B) under section 306, 308, or 309 of the Family Violence Prevention and Services Act (42 U.S.C. 10406; 10408; 10409).

DIVISION E—SMALL BUSINESS PROVISIONS

SEC. 100. SHORT TITLE, ETC.

(a) SHORT TITLE.—This division may be cited as the ''PPP and EIDL Enhancement Act of 2020''.

(b) TABLE OF CONTENTS.—The table of contents for this division is as follows:

Sec. 100. Short Title, etc.

TITLE I—FUNDING PROVISIONS

Sec. 101. Amount authorized for commitments.
Sec. 102. Funding for the paycheck protection program.
Sec. 103. Direct appropriations.

TITLE II—MODIFICATIONS TO THE PAYCHECK PROTECTION PROGRAM

Sec. 201. Periods for loan forgiveness and application submission.
Sec. 202. Supplemental covered loans for certain business concerns.
Sec. 203. Certifications and documentation for forgiveness of covered loans.
Sec. 204. Eligibility of certain organizations for loans under the paycheck protection program.
Sec. 205. Limit on aggregate loan amount for eligible recipients with more than one physical location.
Sec. 206. Allowable uses of covered loans; forgiveness.
Sec. 207. Documentation required for certain eligible recipients.
Sec. 208. Exclusion of certain publicly traded and foreign entities.
Sec. 209. Election of 12-week period by seasonal employers.
Sec. 210. Inclusion of certain refinancing in nonrecourse requirements.
Sec. 211. Credit elsewhere requirements.
Sec. 212. Prohibition on receiving duplicative amounts for payroll costs.
Sec. 213. Application of certain terms through life of covered loan.
Sec. 214. Interest calculation on covered loans.
Sec. 215. Reimbursement for processing.
Sec. 216. Duplication requirements for economic injury disaster loan recipients.
Sec. 217. Reapplication for and modification to paycheck protection program.
Sec. 218. Treatment of certain criminal violations.

TITLE III—TAX PROVISIONS

Sec. 301. Improved coordination between paycheck protection program and employee retention tax credit.

TITLE IV—COVID–19 ECONOMIC INJURY DISASTER LOAN PROGRAM REFORM

Sec. 401. Sense of Congress.
Sec. 402. Notices to applicants for economic injury disaster loans or advances.
Sec. 403. Modifications to emergency EIDL advances.
Sec. 404. Data transparency, verification, and notices for economic injury disaster loans.
Sec. 405. Lifeline funding for small business continuity, adaptation, and resiliency.
Sec. 406. Modifications to economic injury disaster loans.
Sec. 407. Principal and interest payments for certain disaster loans.
Sec. 408. Training.
Sec. 409. Outreach plan.
Sec. 410. Report on best practices.
Sec. 411. Extension of period of availability for administrative funds.

TITLE V—MICRO-SBIC AND EQUITY INVESTMENT ENHANCEMENT

Sec. 501. Micro-SBIC Program.

TITLE VI—MISCELLANEOUS

Sec. 601. Repeal of unemployment grants.
Sec. 602. Subsidy for certain loan payments.
Sec. 603. Modifications to 7(a) loan programs.
Sec. 604. Flexibility in deferral of payments of 7(a) loans.
Sec. 605. Recovery assistance under the microloan program.
Sec. 606. Maximum loan amount for 504 loans.
Sec. 607. Temporary fee reductions.
Sec. 608. Extension of participation in 8(a) program.
Sec. 609. Report on minority, women, and rural lending.
Sec. 610. Comprehensive program guidance.
Sec. 611. Reports on paycheck protection program.
Sec. 612. Prohibiting conflicts of interest for small business programs under the CARES Act.
Sec. 613. Inclusion of SCORE and Veteran Business Outreach Centers in entrepreneurial development programs.
Sec. 614. Clarification of use of CARES Act funds for small business development centers.
Sec. 615. Funding for the Office of Inspector General of the Small Business Administration.
Sec. 616. Extension of waiver of matching funds requirement under the Women's Business Center program.
Sec. 617. Access to Small Business Administration information and databases.
Sec. 618. Small business local relief program.
Sec. 619. Grants for independent live venue operators.

(c) DEFINITIONS.—In this division:

(1) ADMINISTRATION.—The term ''Administration'' means the Small Business Administration.

(2) ADMINISTRATOR.—The term ''Administrator'' means the Administrator of the Small Business Administration.

(d) EFFECTIVE DATE; APPLICABILITY.—Except as otherwise provided in this division, this division and the amendments made by this division shall take effect on the date of the enactment of this Act and shall apply to loans made, or other assistance provided, on or after the date of the enactment of this Act.

TITLE I—FUNDING PROVISIONS

SEC. 101. AMOUNT AUTHORIZED FOR COMMITMENTS.

Section 1102(b)(1) of the CARES Act (Public Law 116–136) is amended to read as follows:

''(1) PPP LOANS.—During the period beginning on the date of enactment of this subsection and ending on December 31, 2020, subject to the availability of appropriations, the Administrator may make commitments under paragraph (36) of section 7(a) of the Small Business Act (15 U.S.C. 636(a)).''.

SEC. 102. FUNDING FOR THE PAYCHECK PROTECTION PROGRAM.

(a) IN GENERAL.—Section 7(a)(36)(S) of the Small Business Act (15 U.S.C. 636(a)(36)(S)) is amended to read as follows:

''(S) SET ASIDE FOR CERTAIN ENTITIES.—The Administrator shall provide for the cost to guarantee covered loans made under this paragraph—

''(i) a set aside of not less than 10 percent of each such amount for covered loans—

''(I) made to eligible recipients with 10 or fewer employees, including individuals who operate under a sole proprietorship or as an independent contractor and eligible self-employed individuals; or

''(II) less than or equal to $250,000 made to an eligible recipient that is located in a low- or moderate-income neighborhoods (as defined under the Community Reinvestment Act of 1977).

''(ii) a set aside of not more than 30 percent of each such amount for covered loan made to nonprofit organizations, organizations described in subparagraph (D)(viii), or housing cooperatives; and

''(iii) a set aside of not more than 50 percent of each such amount for supplemental covered loans made under subparagraph (B)(ii).''.

(b) SET ASIDE FOR COMMUNITY FINANCIAL INSTITUTIONS.—Of amounts appropriated by the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139) under the heading ''Small Business Administration—Business Loans Program Account, CARES Act'' that have not been obligated or expended, the lesser of 25 percent of such amounts or $15,000,000,000 shall be set aside for the cost to guarantee covered loans made under section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)) by community financial institutions (as such term is defined in subparagraph (A)(xi) of such section).

(c) AMOUNTS RETURNED.—Section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)) is amended by adding at the end the following new subparagraph:

''(T) AMOUNTS RETURNED.—Any amounts returned to the Secretary of the Treasury due to the cancellation of a covered loan shall be solely used for the cost to guarantee covered loans made to eligible recipients with 10 or fewer employees or covered loans of less than or equal to $250,000 made to an eligible recipient that is located in a low- or moderate-income neighborhoods (as defined under the Community Reinvestment Act of 1977).''.

SEC. 103. DIRECT APPROPRIATIONS.

There is appropriated, out of amounts in the Treasury not otherwise appropriated, for additional amounts—

(1) for the cost of carrying out section 407 of this division, $8,000,000,000;

(2) for the cost of carrying out title V of this division, $1,000,000,000;

(3) for the cost of carrying out section 603 and 607 of this division, $1,000,000,000;

(4) for the cost of carrying out section 605 of this division, $57,000,000;

(5) for the cost of carrying out section 618 of this division, $15,000,000,000; and

(6) for the cost of carrying out section 619 of this division, $10,000,000,000.

TITLE II—MODIFICATIONS TO THE PAYCHECK PROTECTION PROGRAM

SEC. 201. PERIODS FOR LOAN FORGIVENESS AND APPLICATION SUBMISSION.

(a) PERIOD FOR COSTS THAT ARE ELIGIBLE FOR FORGIVENESS AND APPLICATION SUBMISSION.—Section 1106 of the CARES Act (15 U.S.C. 9005) is amended—

(1) in subsection (a), by striking paragraph (3) and inserting the following:

''(3) the term 'covered period' means the period beginning on the date of the origination of a covered loan and ending on a date selected by the eligible recipient of the covered loan that—

''(A) is not earlier than the date that is 8 weeks after such date of origination; and

''(B) is not later than the date that is 24 weeks after such date of origination;'';

(2) in subsection (d), by striking ''December 31, 2020'' each place it appears and inserting ''September 30, 2021''; and

(3) by striking subsection (l) and inserting the following new subsection:

''(l) APPLICATION DEADLINE.—An eligible recipient may apply for forgiveness under this section any time after covered period if proceeds from a covered loan have been spent and the eligible recipient is in compliance with subsections (e) and (f).''.

(b) APPLICABILITY OF AMENDMENTS.—The amendments made by subsection (b) shall be effective as if included in the CARES Act (Public Law 116–136) and shall apply to any loan made pursuant to section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)) or section 1109 of the CARES Act (15 U.S.C. 9008).

SEC. 202. SUPPLEMENTAL COVERED LOANS FOR CERTAIN BUSINESS CONCERNS.

Section 7(a)(36)(B) of the Small Business Act (15 U.S.C. 636(a)(36)(B)) is amended—

(1) by striking ''Except'' and inserting the following:

''(i) IN GENERAL.—Except''; and

(2) by adding at the end the following new clause:

''(ii) SUPPLEMENTAL COVERED LOANS.—

''(I) DEFINITIONS.—In this clause—

''(aa) the terms 'exchange', 'issuer', and 'security' have the meanings given such terms in section 3(a) of the Securities Exchange Act of 1934 (15 U.S.C. 78c(a));

''(bb) the term 'gross receipts' means gross receipts within the meaning of section 448(c) of the Internal Revenue Code of 1986;

''(cc) the term 'national securities exchange' means an exchange registered as a national securities exchange under section 6 of the Securities Exchange Act of 1934 (15 U.S.C. 78f);

''(dd) the term 'publicly traded entity' means an issuer, the securities of which are listed on a national securities exchange;

''(ee) the term 'smaller concern' means an eligible recipient that—

''(AA) has not more than 200 employees;

''(BB) operates under a sole proprietorship or as an independent contractor; or

''(CC) is an eligible self-employed individual; and

''(ff) the term 'significant loss in revenue' means that, due to the impact of COVID–19—

''(AA) the gross receipts of the eligible recipient during the first, second, or third calendar quarter of 2020 are less than 75 percent of the gross receipts of the eligible recipient during the same calendar quarter in 2019;

''(BB) if the eligible recipient was not in business on April 1, 2019, the gross receipts of the eligible recipient during any 2-month period during the first 3 calendar quarters of 2020 are less than 75 percent of the amount of the gross receipts of the eligible recipient during any prior 2-month period during the first 3 calendar quarters of 2020; or

''(CC) if the eligible recipient is seasonal employer, as determined by the Administrator, the gross receipts of the eligible recipient during any 2-month period during the first 3 calendar quarters of 2020 are less than 75 percent of the amount of the gross receipts of the eligible recipient during the same 2-month period in 2019.

''(II) AUTHORITY.—Except as otherwise provided in this clause, for an eligible recipient that has received a covered loan under clause (i), the Administrator may guarantee a single supplemental covered loan to the eligible recipient under the same terms, conditions, and processes as a covered loan made under clause (i).

''(III) CHOICE OF LENDER.—An eligible recipient may apply for a supplemental covered loan under this clause with the lender that made the covered loan under clause (i) to the eligible recipient or another lender.

''(IV) ELIGIBILITY.—

''(aa) IN GENERAL.—A supplemental covered loan under this clause—

''(AA) may only be made to an eligible recipient that is a smaller concern that has had a significant loss in revenue and has used, or is expending funds at a rate that the eligible recipient will use on or before the expected date of the disbursement of the supplemental covered loan under this clause, the full amount of the covered loan received under clause (i); and

''(BB) may not be made to a publicly traded entity.

''(bb) BUSINESS CONCERNS WITH MORE THAN 1 PHYSICAL LOCATION.—

''(AA) IN GENERAL.—For purposes of a supplemental covered loan under this clause, subparagraph (D)(iii) shall be applied by substituting 'not more than 200 employees per physical location' for 'not more than 500 employees per physical location'.

''(BB) LIMIT FOR MULTIPLE LOCATIONS.—For an eligible recipient with more than 1 physical location, the total amount of all supplemental covered loans made under this clause to the eligible recipient shall not be more than $2,000,000.

''(V) MAXIMUM AMOUNT.—The maximum amount of a supplemental covered loan under this clause is the lesser of—

''(aa) the product obtained by multiplying—

''(AA) the average total monthly payments for payroll costs by the eligible recipient used to determine the maximum amount of the covered loan under clause (i) made to the eligible recipient under this paragraph, by

''(BB) 2.5; or

''(bb) $2,000,000.

''(VI) EXCEPTION FROM CERTAIN CERTIFICATION REQUIREMENTS.—An eligible recipient applying for a supplemental covered loan under this clause shall not be required to make the certification described in clauses (iii) or (iv) of subparagraph (G).

''(VII) REIMBURSEMENT FOR PROCESSING SUPPLEMENTAL PPP.—For a supplemental covered loan under this clause of less than or equal to $50,000, the reimbursement under subparagraph (P)(I) by the Administrator shall not be less than $2,500.''.

SEC. 203. CERTIFICATIONS AND DOCUMENTATION FOR FORGIVENESS OF COVERED LOANS.

Section 1106 of the CARES Act (15 U.S.C. 9005) is amended—

(1) in subsection (e), in the matter preceding paragraph (1), by striking ''An eligible recipient'' and all that follows through ''an application,'' and inserting ''Subject to subsection (f), an eligible recipient applying for loan forgiveness under this section shall provide proof of the use of covered loan proceeds,'';

(2) by amending subsection (f) to read as follows:

''(f) DOCUMENTATION REQUIREMENTS.—To receive loan forgiveness under this section, an eligible recipient shall comply with the following requirements:

''(1) With respect to a covered loan in an amount less than or equal to $50,000, the eligible recipient—

''(A) shall certify to the Administrator that the eligible recipient has used proceeds from the covered loan in compliance with the requirements of section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)), including a description of the amount of proceeds used for payroll costs (as defined in such section) and the number of employees the eligible recipient was able to retain because of such covered loan;

''(B) is not required to submit any documentation or application to receive forgiveness under this section;

''(C) shall certify to the Administrator that the eligible recipient can make the documentation described under subsection (e) available, upon request, for a period of time determined by the Administrator, which period shall be not less than 3 years; and

''(D) may submit to the Administrator demographic information of the owner of the eligible recipient, including the sex, race, ethnicity, and veteran status of the owner, through a process established by the Administrator.

''(2) With respect to a covered loan in an amount greater than $50,000 but less than or equal to $150,000, the eligible recipient—

''(A) shall submit to the lender that is servicing the covered loan the certification described

in paragraph (1)(A) and a simplified one-page application form that does not require the submission of any documentation described under subsection (e);

''(B) shall make the certification described in paragraph (1)(C); and

''(C) may submit to the Administrator demographic information of the owner of the eligible recipient, including the sex, race, ethnicity, and veteran status of the owner, as established by the Administrator on the application form described in subparagraph (A).

''(3) With respect to a covered loan in an amount greater than $150,000, the eligible recipient shall submit to the lender that is servicing the covered loan the documentation described under subsection (e).''; and

(3) by amending subsection (g) to read as follows:

''(g) LENDER SUBMISSION.—Not later than 60 days after the date on which a lender receives an application for loan forgiveness under this section from an eligible recipient, the lender shall only be required to review the application to ensure completion, including that required attestations have been made, before submitting such application to the Administrator.''.

SEC. 204. ELIGIBILITY OF CERTAIN ORGANIZATIONS FOR LOANS UNDER THE PAYCHECK PROTECTION PROGRAM.

Section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36))—

(1) in subparagraph (A)—

(A) in clause (vii), by inserting ''covered'' before ''nonprofit'';

(B) in clause (viii)(II)—

(i) in item (dd), by striking ''or'' at the end;

(ii) in item (ee), by inserting ''or'' at the end; and

(iii) by adding at the end the following new item:

''(ff) any compensation of an employee who is a registered lobbyist under the Lobbying Disclosure Act of 1995;'';

(C) by amending clause (ix) to read as follows:

''(ix) the term 'covered organization' means—

''(I) an organization described in section 501(c) of the Internal Revenue Code of 1986 and exempt from tax under section 501(a) of such Code that is not a covered nonprofit organization;

''(II) an entity created by a State or local government that derives the majority of its operating budget from the production of live events; or

''(III) a destination marketing organization;'';

(D) in clause (xi)(IV), by striking ''and'' at the end;

(E) in clause (xii), by striking the period at the end and inserting a semicolon; and

(F) by adding at the end the following new clauses:

''(xiii) the term 'housing cooperative' means a cooperative housing corporation (as defined in section 216(b) of the Internal Revenue Code of 1986); and

''(xiv) the term 'destination marketing organization' means a nonprofit entity that is not an organization described in section 501(c)(6) of the Internal Revenue Code of 1986 and exempt from tax under section 501(a) of such Code, a State, or a political subdivision of a State (including any instrumentality of such entities) engaged in marketing and promoting communities and facilities to businesses and leisure travelers through a range of activities, including—

''(I) assisting with the location of meeting and convention sites;

''(II) providing travel information on area attractions, lodging accommodations, and restaurants;

''(III) providing maps; and

''(IV) organizing group tours of local historical, recreational, and cultural attractions.''; and

(2) in subparagraph (D)—

(A) in clause (i)—

(i) by inserting ''covered'' before ''nonprofit organization'' each place it appears; and

(ii) by striking ''veterans organization'' each place it appears and inserting ''housing cooperative'';

(B) in clause (iii)—

(i) by amended the clause heading to read as follows: ''REQUIREMENTS FOR RESTAURANTS AND CERTAIN NEWS ORGANIZATIONS'';

(ii) by striking ''During the covered period, any business concern that employs'' and inserting the following: ''Any business concern that—

''(I) during the covered period, employs'';

(iii) in subclause (I), as so designated, by striking the period at the end and inserting a semicolon; and

(iv) by adding at the end the following new subclauses:

''(II) was not eligible to receive a covered loan the day before the date of the enactment of this subclause, is assigned a North American Industry Classification System code beginning with 511110, 515112, or 515120, and an individual physical location of the business concern at the time of disbursal does not exceed the size standard established by the Administrator for the applicable code shall be eligible to receive a covered loan for expenses associated with an individual physical location of that business concern to support the continued provision of local news, information, content, or emergency information, and, at the time of disbursal, the individual physical location; or

''(III) was not eligible to receive a covered loan the day before the date of the enactment of this subclause, is assigned a North American Industry Classification System code of 519130, is identified as a Internet-only news publisher or Internet-only periodical publisher, and is engaged in the collection and distribution of local or regional and national news and information shall be eligible to receive a covered loan for expenses to support the continued provision of news, information, content, or emergency information.'';

(C) in clause (iv)—

(i) in subclause (II), by striking ''and'' at the end;

(ii) in subclause (III), by striking the period at the end and inserting ''; and''; and

(iii) by adding at the end the following new subclause:

''(IV) an individual physical location of a business concern described in clause (iii)(II), if such concern does not pay, distribute, or otherwise provide any portion of the covered loan to any other entity other than the individual physical location that is the intended recipient of the covered loan.'';

(D) in clause (v), by striking ''nonprofit organization, veterans organization,'' and inserting ''covered organization, covered nonprofit organization, housing cooperative,'';

(E) in clause (vi), by striking ''nonprofit organization and a veterans organization'' and inserting ''covered organization, a covered nonprofit organization, and a housing cooperative''; and

(F) by adding at the end the following new clauses:

''(vii) ADDITIONAL REQUIREMENTS FOR COVERED ORGANIZATIONS AND COVERED NONPROFIT ORGANIZATIONS.—

''(I) LOBBYING RESTRICTION.—During the covered period, a covered organization that employs less than 500 employees shall be eligible to receive a covered loan if—

''(aa) the covered organization does not receive more than 10 percent of its receipts from lobbying activities; and

''(bb) the lobbying activities of the covered organization do not comprise more than 10 percent of the total activities of the covered organization.

''(II) LARGER ORGANIZATIONS.—During the covered period, a covered nonprofit organization that employs 500 employees or more, or a covered organization that meets the requirements of items (aa) and (bb) of subclause (I) and employs 500 employees or more, shall be eligible to receive a covered loan if such covered nonprofit organization or covered organization has had a significant loss in revenue (as defined in subparagraph (B)(ii)(I)(ff)).

''(viii) INCLUSION OF CRITICAL ACCESS HOSPITALS.—During the covered period, any covered organization that is a critical access hospital (as defined in section 1861(mm) of the Social Security Act (42 U.S.C. 1395x(mm))) shall be eligible to receive a covered loan, regardless of the status of such a hospital as a debtor in a case under chapter 11 of title 11, Unites States Code, or the status of any debts owed by such a hospital to the Federal Government.

''(ix) ADDITIONAL REQUIREMENTS FOR NEWS BROADCAST ENTITIES.—

''(I) IN GENERAL.—With respect to an individual physical location of a business concern described in clause (iii)(II), each such location shall be treated as an independent, nonaffiliated entity for purposes of this paragraph. A parent company, investment company, or management company of one or more physical locations of a business concern described in clause (iii)(II) shall not be eligible for a covered loan.

''(II) DEMONSTRATION OF NEED.—Any such location that is a franchise or affiliate of, or owned or controlled by a parent company, investment company, or the management thereof, shall demonstrate, upon request of the Administrator, the need for a covered loan to support the continued provision of local news, information, content, or emergency information, and, at the time of disbursal, the individual physical location.''.

SEC. 205. LIMIT ON AGGREGATE LOAN AMOUNT FOR ELIGIBLE RECIPIENTS WITH MORE THAN ONE PHYSICAL LOCATION.

Section 7(a)(36)(E) of the Small Business Act (15 U.S.C. 636(a)(36)(E)) is amended by adding at the end the following flush matter:

''With respect to an eligible recipient with more than 1 physical location, the total amount of all covered loans made under this clause to the eligible recipient shall not be more than $10,000,000.''.

SEC. 206. ALLOWABLE USES OF COVERED LOANS; FORGIVENESS.

(a) PAYCHECK PROTECTION PROGRAM.—Section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)) is amended—

(1) in subparagraph (G)—

(A) in the subparagraph heading, by striking ''BORROWER REQUIREMENTS'' and all that follows through ''eligible recipient applying'' and inserting ''BORROWER CERTIFICATION REQUIREMENTS.—An eligible recipient applying'';

(B) by redesignating subclauses (I) through (IV) as clauses (i) through (iv), respectively; and

(C) in clause (ii), as so redesignated, by striking ''to retain workers'' and all that follows through ''utility payments'' and inserting ''for an allowable use described in subparagraph (F)'';

(2) in subparagraph (F)(i)—

(A) in subclause (VI), by striking ''and'' at the end;

(B) in subclause (VII), by striking the period at the end and inserting a semicolon; and

(C) by adding at the end the following new subclauses:

''(VIII) costs related to the provision of personal protective equipment for employees or other equipment or supplies determined by the employer to be necessary to protect the health and safety of employees and the general public;

''(IX) payments for inventory, raw materials, or supplies; and

''(X) costs related to property damage, vandalism, or looting due to public disturbances that occurred during 2020 that was not covered by insurance or other compensation.''.

(b) FORGIVENESS.—

(1) DEFINITION OF EXPECTED FORGIVENESS AMOUNT.—Section 1106(a)(7) of the CARES Act (15 U.S.C. 9005(a)(7)) is amended—

(A) in subparagraph (C), by striking ''and'' at the end;

(B) in subparagraph (D), by striking ''and'' at the end; and

(C) by adding at the end the following new subparagraphs:

''(E) interest on any other debt obligations that were incurred before the covered period;

''(F) any amount that was a loan made under subsection (b)(2) that was refinanced as part of a covered loan and authorized by section 7(a)(36)(F)(iv) of the Small Business Act;

''(G) payments made for the provision of personal protective equipment for employees or other equipment or supplies determined by the employer to be necessary to protect the health and safety of employees and the general public;

''(H) payments made for inventory, raw materials, or supplies; and

''(I) payments related to property damage, vandalism, or looting due to public disturbances that occurred during 2020 that was not covered by insurance or other compensation; and''.

(2) FORGIVENESS.—Section 1106(b) of the CARES Act (15 U.S.C. 9005(b)), is amended by adding at the end the following new paragraphs:

''(5) Any payment of interest on any other debt obligations that were incurred before the covered period.

''(6) Any amount that was a loan made under section 7(b)(2) of the Small Business Act that was refinanced as part of a covered loan and authorized by section 7(a)(36)(F)(iv) of such Act.

''(7) Any payment made for the provision of personal protective equipment for employees or other equipment or supplies determined by the employer to be necessary to protect the health and safety of employees.

''(8) Any payment made for inventory, raw materials, or supplies.

''(9) Any payments related to property damage, vandalism, or looting due to public disturbances that occurred during 2020 that was not covered by insurance or other compensation.''.

(3) CONFORMING AMENDMENTS.—Section 1106 of the CARES Act (15 U.S.C. 9005) is amended—

(A) in subsection (e), as amended by section 203—

(i) in paragraph (2), by striking ''payments on covered mortgage obligations, payments on covered lease obligations, and covered utility payments'' and inserting ''payments or amounts refinanced described under subsection (b) (other than payroll costs)''; and

(ii) in paragraph (3)(B), by striking '', make interest payments'' and all that follows through ''or make covered utility payments'' and inserting '', make payments described under subsection (b), or that was refinanced as part of a covered loan and authorized by section 7(a)(36)(F)(iv) of the Small Business Act''; and

(B) in subsection (h), by striking ''payments for payroll costs, payments on covered mortgage obligations, payments on covered lease obligations, or covered utility payments'' each place it appears and inserting ''payments or amounts refinanced described under subsection (b)''.

SEC. 207. DOCUMENTATION REQUIRED FOR CERTAIN ELIGIBLE RECIPIENTS.

Section 7(a)(36)(D)(ii)(II) of the Small Business Act (15 U.S.C. 636(a)(36)(D)(ii)(II)) is amended by striking ''as is necessary'' and all that follows through the period at the end and inserting ''as determined necessary by the Administrator and the Secretary, to establish such individual as eligible.''.

SEC. 208. EXCLUSION OF CERTAIN PUBLICLY TRADED AND FOREIGN ENTITIES.

Section 7(a)(36)(D) of the Small Business Act (15 U.S.C. 636(a)(36)(D)), as amended by section 204 is further amended by adding at the end the following new clause:

''(x) EXCLUSION OF CERTAIN PUBLICLY TRADED AND FOREIGN ENTITIES.—Effective on the date of the enactment of this clause—

''(I) an issuer, the securities of which are traded on a national securities exchange, is not eligible to receive a covered loan under this section; and

''(II) an entity that is 51 percent or more owned by a foreign person, or the management and daily business operations of which are controlled by a foreign person (excluding an entity owned and controlled by a person domiciled in a territory or possession of the United States), is not eligible to receive a covered loan under this section.''.

SEC. 209. ELECTION OF 12-WEEK PERIOD BY SEASONAL EMPLOYERS.

Section 7(a)(36)(E)(i)(I)(aa)(AA) of the Small Business Act (15 U.S.C. 636(a)(36)(E)(i)(I)(aa)(AA)) is amended by striking ''an applicant'' and all that follows through ''June 30, 2019'' and inserting the following: ''an applicant that is a seasonal employer, as determined by the Administrator, shall use the average total monthly payments for payroll for any 12-week period selected by the seasonal employer between February 15, 2019, and December 31, 2019''.

SEC. 210. INCLUSION OF CERTAIN REFINANCING IN NONRECOURSE REQUIREMENTS.

Section 7(a)(36)(F)(v) of the Small Business Act (15 U.S.C. 636(a)(36)(F)(v)) is amended by striking ''clause (i)'' and inserting ''clauses (i) and (iv)''.

SEC. 211. CREDIT ELSEWHERE REQUIREMENTS.

Section 7(a)(36)(I) of the Small Business Act (15 U.S.C. 636(a)(36)(I)) is amended to read as follows:

''(I) CREDIT ELSEWHERE.—The requirement that a small business concern is unable to obtain credit elsewhere (as defined in section 3(h))—

''(i) shall not apply to a covered loan approved by the Administrator before the date of enactment of this subparagraph; and

''(ii) shall only apply to covered loans in an amount greater than $350,000 approved by the Administrator on or after the date of the enactment of this subparagraph.''.

SEC. 212. PROHIBITION ON RECEIVING DUPLICATIVE AMOUNTS FOR PAYROLL COSTS.

(a) PAYCHECK PROTECTION PROGRAM.—Clause (iv) of section 7(a)(36)(G) of the Small Business Act (15 U.S.C. 636(a)(36)(G)), as redesignated by section 206, is amended—

(1) by striking ''December 31, 2020'' and inserting ''June 30, 2020''; and

(2) by striking ''the same purpose and'' and inserting ''payments for payroll costs incurred during such period''.

(b) TREASURY PROGRAM.—Section 1109(f) of the CARES Act (15 U.S.C. 9008(f)) is amended—

(1) in paragraph (1), by striking ''for the same purpose'' and inserting ''for payments for payroll costs (as defined in section 7(a)(36)(A)(viii) of the Small Business Act (15 U.S.C. 636(a)(36)(A)(viii))''; and

(2) in paragraph (2), by striking ''December 31, 2020'' and inserting ''June 30, 2020''.

SEC. 213. APPLICATION OF CERTAIN TERMS THROUGH LIFE OF COVERED LOAN.

Section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)) is amended—

(1) in subparagraph (H), by striking ''During the covered period, with'' and inserting ''With'';

(2) in subparagraph (J), by striking ''During the covered period, with'' and inserting ''With'';

(3) in subparagraph (M)—

(A) in clause (ii), by striking ''During the covered period, the'' and inserting ''The''; and

(B) in clause (iii), by striking ''During the covered period, with'' and inserting ''With''.

SEC. 214. INTEREST CALCULATION ON COVERED LOANS.

Section 7(a)(36)(L) of the Small Business Act (15 U.S.C. 636(a)(36)(L)) is amended by inserting '', calculated on a non-compounding, non-adjustable basis'' after ''4 percent''.

SEC. 215. REIMBURSEMENT FOR PROCESSING.

Section 7(a)(36)(P) of the Small Business Act (15 U.S.C. 636(a)(36)(P)) is amended—

(1) in clause (ii), by inserting at the end the following: ''Such fees shall be paid by the eligible recipient and may not be paid out of the proceeds of a covered loan. A lender shall only be responsible for paying fees to an agent for services for which such lender directly contracts with such agent.''; and

(2) by amending clause (iii) to read as follows:

''(iii) TIMING.—A reimbursement described in clause (i) shall be made not later than 5 days after the reported disbursement of the covered loan and may not be required to be repaid by a lender unless the lender is found guilty of an act of fraud in connection with the covered loan.''.

SEC. 216. DUPLICATION REQUIREMENTS FOR ECONOMIC INJURY DISASTER LOAN RECIPIENTS.

Section 7(a)(36)(Q) of the Small Business Act (15 U.S.C. 636(a)(36)(Q)) is amended by striking ''during the period beginning on January 31, 2020, and ending on the date on which covered loans are made available''.

SEC. 217. REAPPLICATION FOR AND MODIFICATION TO PAYCHECK PROTECTION PROGRAM.

Not later than 7 days after the date of the enactment of this Act, the Administrator shall issue rules or guidance to ensure that an eligible recipient of a covered loan made under section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)) that returns amounts disbursed under such covered loan or does not accept the full amount of such covered loan for which such eligible recipient was approved—

(1) in the case of an eligible recipient that returned all or part of a covered loan, such eligible recipient may reapply for a covered loan for an amount equal to the difference between the amount retained and the maximum amount applicable; and

(2) in the case of an eligible recipient that did not accept the full amount of a covered loan, such eligible recipient may request a modification to increase the amount of the covered loan to the maximum amount applicable, subject to the requirements of such section 7(a)(36).

SEC. 218. TREATMENT OF CERTAIN CRIMINAL VIOLATIONS.

(a) IN GENERAL.—Section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)), as amended by section 101, is further amended by adding at the end the following new subparagraph:

''(U) TREATMENT OF CERTAIN CRIMINAL VIOLATIONS.—

''(i) FINANCIAL FRAUD OR DECEPTION.—A entity that is a business, organization, cooperative, or enterprise may not receive a covered loan if an owner of 20 percent or more of the equity of such entity, during the 5-year period preceding the date on which such entity applies for a covered loan, has been convicted of a felony of financial fraud or deception under Federal, State, or Tribal law.

''(ii) ARRESTS OR CONVICTIONS.—An entity that is a business, organization, cooperative, or enterprise shall be an eligible recipient notwithstanding a prior arrest or conviction under Federal, State, or Tribal law of an owner of 20 percent or more of the equity of such entity, unless such owner is currently incarcerated.

''(iii) WAIVER.—The Administrator may waive the requirements of clause (i).''.

(b) RULEMAKING.—Not later than 15 days after the date of enactment of this Act, the Administrator shall make necessary revisions to any rules to carry out the amendment made by this section.

TITLE III—TAX PROVISIONS

SEC. 301. IMPROVED COORDINATION BETWEEN PAYCHECK PROTECTION PROGRAM AND EMPLOYEE RETENTION TAX CREDIT.

(a) AMENDMENT TO PAYCHECK PROTECTION PROGRAM.—Section 1106(a)(8) of the CARES Act (15 U.S.C. 9005(a)(8)) is amended by inserting '', except that such costs shall not include qualified wages taken into account in determining

the credit allowed under section 2301 of this Act'' before the period at the end.

(b) AMENDMENTS TO EMPLOYEE RETENTION TAX CREDIT.—

(1) IN GENERAL.—Section 2301(g) of the CARES Act (Public Law 116–136; 26 U.S.C. 3111 note) is amended to read as follows:

''(g) ELECTION TO NOT TAKE CERTAIN WAGES INTO ACCOUNT.—

''(1) IN GENERAL.—This section shall not apply to so much of the qualified wages paid by an eligible employer as such employer elects (at such time and in such manner as the Secretary may prescribe) to not take into account for purposes of this section.

''(2) COORDINATION WITH PAYCHECK PROTECTION PROGRAM.—The Secretary, in consultation with the Administrator of the Small Business Administration, shall issue guidance providing that payroll costs paid or incurred during the covered period shall not fail to be treated as qualified wages under this section by reason of an election under paragraph (1) to the extent that a covered loan of the eligible employer is not forgiven by reason of a decision under section 1106(g). Terms used in the preceding sentence which are also used in section 1106 shall have the same meaning as when used in such section.''.

(2) CONFORMING AMENDMENTS.—

(A) Section 2301 of the CARES Act (Public Law 116–136; 26 U.S.C. 3111 note) is amended by striking subsection (j).

(B) Section 2301(l) of the CARES Act (Public Law 116–136; 26 U.S.C. 3111 note) is amended by striking paragraph (3) and by redesignating paragraphs (4) and (5) as paragraphs (3) and (4), respectively.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the provisions of the CARES Act (Public Law 116–136) to which they relate.

TITLE IV—COVID–19 ECONOMIC INJURY DISASTER LOAN PROGRAM REFORM

SEC. 401. SENSE OF CONGRESS.

It is the sense of Congress that—

(1) many businesses that have received economic injury disaster loans under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)) continue to suffer from the effects of the COVID–19 pandemic and may not be in a position to make payments in the near term;

(2) the Administrator of the Small Business Administration has the authority under the Small Business Act (15 U.S.C. 631 et seq.) to reduce the interest charged on loans and to offer borrowers up to 4 years of deferment on the payment of interest and principal; and

(3) the Congress encourages the Administrator of the Small Business Administration to use this discretion to provide relief to the hardest hit small businesses that have received or will receive direct loans from the Administration under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2)).

SEC. 402. NOTICES TO APPLICANTS FOR ECONOMIC INJURY DISASTER LOANS OR ADVANCES.

Section 7(b)(11) of the Small Business Act (15 U.S.C. 636(b)(11) is amended—

(1) by striking ''The Administrator'' and inserting the following:

''(A) IN GENERAL.—The Administrator''; and

(2) by adding at the end the following new subparagraphs:

''(B) ACCEPTANCE CRITERIA AND QUALIFICATIONS.—In carrying out subparagraph (A), the Administrator shall—

''(i) publish on the website of the Administration a description of the rules issued with respect to a loan made under this subsection, which shall be clear and easy to understand; and

''(ii) upon receiving an application for a loan under this subsection, provide to the loan applicant the description described in clause (i).

''(C) RIGHT TO EXPLANATION OF DECLINED LOAN OR ADVANCE.—

''(i) IN GENERAL.—The Administrator shall—

''(I) provide all applicants for a loan under this subsection or an advance under section 1110(e) of the CARES Act for which the loan or advance application was fully or partially denied with a complete written application of the reason for the denial at the time the decision is made;

''(II) establish a dedicated telephonic information line and e-mail address to respond to further inquiries about denied applications described in subclause (I); and

''(III) before fully or partially denying an application for a loan under this subsection or an advance under such section 1110(e) because the applicant submitted incomplete information—

''(aa) contact the applicant and give the applicant the opportunity to provide that information; and

''(bb) reconsider the application with any additional information provided.

''(ii) SUBMISSION OF ADDITIONAL INFORMATION.—An applicant for a loan under this subsection or an advance under section 1110(e) of the CARES Act that can remedy the grounds for denial of the application by submitting additional information under clause (i)(III)—

''(I) shall have the opportunity to do so directly with a loan officer; and

''(II) shall not be required to seek a remedy through the appeals process of the Administration.''.

SEC. 403. MODIFICATIONS TO EMERGENCY EIDL ADVANCES.

Section 1110(e)(1) of division A of the CARES Act (15 U.S.C. 90009(e)) is amended to read as follows:

''(1) IN GENERAL.—During the covered period, an entity included for eligibility in subsection (b), including small business concerns, private nonprofit organizations, and small agricultural cooperatives, that applies for a loan under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2)) in response to COVID–19 shall be provided an advance that is, subject to paragraph (3), disbursed within 3 days after the Administrator receives an application from such entity, unless the advance is specifically declined by such entity.''.

SEC. 404. DATA TRANSPARENCY, VERIFICATION, AND NOTICES FOR ECONOMIC INJURY DISASTER LOANS.

(a) IN GENERAL.—Section 1110 of the CARES Act (15 U.S.C. 9009) is amended—

(1) by redesignating subsection (f) as subsection (j); and

(2) by inserting after subsection (e) the following new subsections:

''(f) DATA TRANSPARENCY.—

''(1) IN GENERAL.—In this subsection, the term 'covered application' means an application submitted to the Administrator for a loan under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2)), including an application for such a loan submitted by an eligible entity.

''(2) WEEKLY REPORTS.—Not later than 1 week after the date of enactment of this subsection, and weekly thereafter until the end of the covered period, the Administrator shall publish on the website of the Administration a report that contains the following information:

''(A) For the week covered by the report, the number of covered applications that the Administrator—

''(i) received;

''(ii) processed; and

''(iii) approved and rejected, including the percentage of covered applications that the Administrator approved.

''(B) With respect to the covered applications that the Administrator approved during that week, the number and dollar amount of the loans made with respect to such applications as part of a response to COVID–19.

''(C) The identification number, or other indicator showing the order in which any application was received and intended to be processed, for the most recent covered application processed by the Administrator.

''(D) Demographic data with respect to applicants submitting covered applications during the week covered by the report and loans made pursuant to covered applications during the week covered by the report, which shall include—

''(i) with respect to each such applicant or loan recipient, as applicable, information regarding—

''(I) the geographic area in which the applicant or loan recipient operates;

''(II) if applicable, the sex, race, and ethnicity of each owner of the applicant or loan recipient, which the individual may decline to provide;

''(III) the annual revenue of the applicant or loan recipient;

''(IV) the number of employees employed by the applicant or loan recipient;

''(V) whether the applicant or loan recipient is a for-profit or nonprofit entity; and

''(VI) the industry in which the applicant or loan recipient operates;

''(ii) the number of such loans made to agricultural enterprises; and

''(iii) the average economic injury suffered by—

''(I) applicants, the covered applications of which the Administrator approved; and

''(II) applicants, the covered applications of which the Administrator rejected.

''(g) VERIFICATION OF BUSINESS ELIGIBILITY.—

''(1) IN GENERAL.—With respect to an application submitted to the Administrator during the covered period for a loan under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2)) in response to COVID–19, the Administrator shall verify that each such applicant was in operation on January 31, 2020.

''(2) REPORT.—Not later than 30 days after the date of enactment of this subsection, the Administrator shall submit to Congress a report that describes the steps taken by the Administrator to perform the verification required under paragraph (1).

''(3) SENSE OF CONGRESS.—It is the sense of Congress that the verification required under paragraph (1) constitutes oversight that the Administrator is required to perform under paragraph (15) of section 7(b) of the Small Business Act (15 U.S.C. 636(b)) with respect to entities receiving loans under paragraph (2) of such section 7(b).

''(h) NOTIFICATIONS TO CONGRESS.—

''(1) DEFINITIONS.—In this subsection—

''(A) the term 'appropriate committees of Congress' means—

''(i) the Committee on Small Business and Entrepreneurship and the Subcommittee on Financial Services and General Government of the Committee on Appropriations of the Senate; and

''(ii) the Committee on Small Business and the Subcommittee on Financial Services and General Government of the Committee on Appropriations of the House of Representatives; and

''(B) the term 'covered program, project, or activity' means—

''(i) the program under this section;

''(ii) the loan program under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2));

''(iii) the authorized activities for amounts were appropriated in response to the COVID–19 pandemic under the heading 'Small Business Administration—Salaries and Expenses'; or

''(iv) any other program, project, or activity for which funds are made available to the Administration to respond to the COVID–19 pandemic.

''(2) NOTICE OF APPROACHING FUNDING LAPSE.—The Administrator shall submit to the appropriate committees of Congress a notification not later than 2 days after the date on which unobligated balances of amounts appropriated for a fiscal year for any covered program, project, or activity are less than 25 percent of the total amount appropriated for the covered program, project, or activity for such fiscal year.

''(3) MONTHLY REPORT.—The Administrator shall submit to the appropriate committees of

Congress a monthly report detailing the current and future planned uses of amounts appropriated in response to the COVID–19 pandemic under the heading 'Small Business Administration—Salaries and Expenses', which shall include—

''(A) the number of employees hired and contractors retained using such amounts;

''(B) the number of contracts with a total cost of more than $5,000,000 entered into using such amounts;

''(C) a list of all sole source contracts entered into using such amounts; and

''(D) any program changes, regulatory actions, guidance issuances, or other initiatives relating to the response to the COVID–19 pandemic.''.

(b) RETROACTIVE COLLECTION.—As soon as is practicable after the date of enactment of this Act, the Administrator shall collect the information required under section 1110(f) of the CARES Act (15 U.S.C. 9009(f)), as amended by subsection (a), from applicants that submitted covered applications (as defined in such section 1110(f)) during the period beginning on the date of enactment of the CARES Act (Public Law 116–136) and ending on the date of enactment of this Act.

SEC. 405. LIFELINE FUNDING FOR SMALL BUSINESS CONTINUITY, ADAPTATION, AND RESILIENCY.

Section 1110 of the CARES Act (15 U.S.C. 9009), as amended by section 404, is further amended by inserting after subsection (i) (as added by such section) the following new subsection:

''(i) LIFELINE FUNDING FOR SMALL BUSINESS CONTINUITY, ADAPTATION, AND RESILIENCY.—

''(1) DEFINITIONS.—In this subsection:

''(A) AGRICULTURAL ENTERPRISE.—The term 'agricultural enterprise' has the meaning given the term in section 18(b) of the Small Business Act (15 U.S.C. 647(b)).

''(B) COVERED ENTITY.—The term 'covered entity'—

''(i) means an eligible entity described in subsection (b) of this section, if such eligible entity—

''(I) has not more than 50 employees; and

''(II) has suffered an economic loss of not less than 30 percent; and

''(ii) except with respect to an entity included under section 123.300(c) of title 13, Code of Federal Regulations, or any successor regulation, does not include an agricultural enterprise.

''(C) ECONOMIC LOSS.—The term 'economic loss' means, with respect to a covered entity, the amount by which the gross receipts of the covered entity declined during an 8-week period between March 2, 2020, and December 31, 2020 (as determined by the covered entity), relative to a comparable 8-week period immediately preceding March 2, 2020, or during 2019 (as determined by the covered entity).

''(D) ECONOMICALLY DISADVANTAGED INDIVIDUAL.—The term 'economically disadvantaged individual' means an economically disadvantaged individual under section 124.104 of title 13, Code of Federal Regulations, or any successor regulation.

''(E) LOW-INCOME COMMUNITY.—The term 'low-income community' has the meaning given the term in section 45D(e) of the Internal Revenue Code of 1986.

''(F) REMOTE RECREATIONS ENTERPRISE.—The term 'remote recreational enterprise' means a covered entity that was in operation on or before March 1, 2020, that can document an economic loss caused by the closure of the United States and Canadian border that restricted the ability of American customers to access the location of the covered entity.

''(G) SMALL BUSINESS CONCERN.—The term 'small business concern' has the meaning given the term under section 3(a) of the Small Business Act (15 U.S.C. 632(a)).

''(H) SOCIALLY DISADVANTAGED INDIVIDUAL.—The term 'socially disadvantaged individual' means a socially disadvantaged individual under section 124.103 of title 13, Code of Federal Regulations, or any successor regulation.

''(2) PROCEDURE.—During the covered period, a covered entity that applies for a loan under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2)) may request that the Administrator provide funding for the purposes described in paragraph (6).

''(3) VERIFICATION.—With respect to each request submitted by an entity under paragraph (2), the Administrator shall—

''(A) not later than 14 days after the date on which the Administrator receives the request, verify whether the entity is a covered entity; and

''(B) if the Administrator verifies that the entity is a covered entity under clause (i), and subject to paragraph (8), disburse the funding requested by the covered entity not later than 7 days after the date on which the Administrator completes the verification.

''(4) ORDER OF PROCESSING.—Subject to paragraph (8), the Administrator shall process and approve requests submitted under paragraph (2) in the order the Administrator receives the requests.

''(5) AMOUNT OF FUNDING.—

''(A) IN GENERAL.—The amount of funding provided to a covered entity that submits a request under paragraph (2) shall be in an amount that is the lesser of—

''(i) the amount of working capital needed by the covered entity for the 180-day period beginning on the date on which the covered entity would receive the funding, as determined by the Administrator using a methodology that is identical to the methodology used by the Administrator to determine working capital needs with respect to an application for a loan submitted under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2)); or

''(ii) $50,000.

''(B) ENTITLEMENT TO FULL AMOUNT.—A covered entity that receives funding pursuant to a request submitted under paragraph (2) shall be entitled to receive the full amount of that funding, as determined under subparagraph (A), without regard to—

''(i) if the applicable loan for which the covered entity has applied under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2)) is approved, the amount of the loan;

''(ii) whether the covered entity accepts the offer of the Administrator with respect to an approved loan described in clause (i); or

''(iii) whether the covered entity has previously received any amounts under subsection (e).

''(6) USE OF FUNDS.—A covered entity that receives funding under this subsection—

''(A) may use the funding—

''(i) for any purpose for which a loan received under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2)) may be used;

''(ii) for working capital needs, including investments to implement adaptive changes or resiliency strategies to help the eligible entity maintain business continuity during the COVID–19 pandemic; or

''(iii) to repay any unpaid amount of—

''(I) a loan received under subsection (a)(36) or (b)(2) of section 7 of the Small Business Act (15 U.S.C. 636); or

''(II) mortgage interest; and

''(B) may not use the funding to pay any loan debt, except as provided in subparagraph (A)(iii).

''(7) APPLICABILITY.—In addition to any other restriction imposed under this subsection, any eligibility restriction applicable to a loan made under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2)), including any restriction under section 123.300 or 123.301 of title 13, Code of Federal Regulations, or any successor regulation, shall apply with respect to funding provided under this subsection.

''(8) PRIORITY.—During the 56-day period beginning on the date of enactment of this subsection, the Administrator may approve a request for funding under this subsection only if the request is submitted by—

''(A) a covered entity located in a low-income community;

''(B) a covered entity owned or controlled by a veteran or a member of the Armed Forces;

''(C) a covered entity owned or controlled by an economically disadvantaged individual or a socially disadvantaged individual; or

''(D) a remote recreational enterprise.

''(9) ADMINISTRATION.—In carrying out this subsection, the Administrator may rely on loan officers and other personnel of the Office of Disaster Assistance of the Administration and other resources of the Administration, including contractors of the Administration.

''(10) RETROACTIVE EFFECT.—Any covered entity that, during the period beginning on January 1, 2020, and ending on the day before the date of enactment of this subsection, applied for a loan under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2)) may submit to the Administrator a request under paragraph (2) with respect to that loan.

''(11) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to the Administrator $40,000,000,000 to carry out this subsection, which shall remain available through December 31, 2020, of which—

''(A) $20,00,000,000 is authorized to be appropriated to provide funding to covered entities described in paragraph (8); and

''(B) $20,000,000 is authorized to be appropriated to the Inspector General of the Administration to prevent waste, fraud, and abuse with respect to funding provided under this subsection.''.

SEC. 406. MODIFICATIONS TO ECONOMIC INJURY DISASTER LOANS.

(a) LOANS FOR NEW BORROWERS.—With respect to a loan made under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2)) to a borrower adversely impacted by COVID–19 during the period beginning on the date of enactment of this Act and ending on December 31, 2020—

(1) the borrower shall be eligible for a loan in an amount equal to 6 months of working capital if the borrower otherwise meets the underwriting standards established by the Administration; and

(2) the Administrator—

(A) shall not impose a maximum loan amount limit that is lower than $2,000,000; and

(B) shall not disqualify any applicant for such a loan due to the criminal history or arrest record of the applicant, except in the case of an applicant that, during the 5-year period preceding the date on which the applicant submits an application, has been convicted—

(i) of a felony offense involving fraud, bribery, or embezzlement in any State or Federal court; or

(ii) in connection with a false statement made in—

(I) a loan application; or

(II) an application for Federal financial assistance.

(b) ADDITIONAL LOAN FOR EXISTING BORROWERS.—

(1) IN GENERAL.—A recipient of a loan made under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2)) to a borrower adversely impacted by COVID–19 during the period beginning on January 31, 2020, and ending on the date of enactment of this Act may submit to the Administrator a request for an additional amount to increase in the amount of that loan, provided that the aggregate amount received under such section by the recipient during that period shall be not more than the lesser of—

(A) an amount equal to 6 months of working capital for the recipient; and

(B) $2,000,000; and

(2) CONSIDERATION.—In considering a request submitted under paragraph (1), the Administrator—

(A) may not recalculate the economic injury or creditworthiness of the borrower; and

(B) shall issue a determination based on the documentation submitted by the borrower for the initial loan under such section 7(b)(2), any other new information voluntarily provided by the borrower, and any information obtained to prevent fraud or abuse.

(3) ADDITIONAL DOCUMENTATION.—If the Administrator of the Small Business Administration requires a borrower making a request under paragraph (1) to provide additional documentation, the Administrator shall—

(A) publish those documentation requirements on the website of the Administration not later than 7 days after the date of enactment of this Act; and

(B) proactively provide those requirements to any such borrower that received a loan described in paragraph (1).

SEC. 407. PRINCIPAL AND INTEREST PAYMENTS FOR CERTAIN DISASTER LOANS.

(a) IN GENERAL.—The Administrator shall pay the principal, interest, and any associated fees that are owed on a physical disaster loan or a covered EIDL loan as follows:

(1) With respect to a physical disaster loan—

(A) not in deferment, for the 12-month period beginning with the next payment due on such loan;

(B) in deferment, for the 12-month period beginning with the next payment due on such loan after the deferment period; and

(C) made on or after the date of enactment of this Act, for the 12-month period beginning with the first payment due on such loan.

(2) With respect to a covered EIDL loan—

(A) not in deferment, for the 12-month period beginning with the next payment due on such loan; and

(B) in deferment, for the 12-month period beginning with the next payment due on such loan after the deferment period.

(b) TIMING OF PAYMENT.—The Administrator shall begin making payments under subsection (a) not later than 30 days after the date on which the first such payment is due.

(c) APPLICATION OF PAYMENT.—Any payment made by the Administrator under subsection (a) shall be applied to the physical disaster loan or a covered EIDL loan (as applicable) such that the borrower is relieved of the obligation to pay that amount.

(d) DEFINITIONS.—In this section:

(1) PHYSICAL DISASTER LOAN.—The term ''physical disaster loan'' means a loan made under section 7(b)(1) of the Small Business Act (15 U.S.C. 636(b)(1)) in a regular servicing status.

(2) COVERED EIDL LOAN.—The term ''covered EIDL loan'' means a loan made under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2)) that—

(A) was approved by the Administrator before February 15, 2020; and

(B) is in a regular servicing status.

SEC. 408. TRAINING.

The Administrator shall develop and implement a plan to train any staff responsible for implementing or administering the loan program established under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2)) on specific responsibilities with respect to such program. Such plan shall be submitted to the Committee on Small Business of the House of Representatives and the Committee on Small Business and Entrepreneurship of the Senate.

SEC. 409. OUTREACH PLAN.

Not later than 30 days after the date of the enactment of this Act, the Administrator shall submit to the Committee on Small Business of the House of Representatives and the Committee on Small Business and Entrepreneurship of the Senate an outreach plan to clearly communicate program and policy changes to all offices of the Administration, small business development centers (as defined in section 3 of the Small Business Act (15 U.S.C. 632)), women's business centers (described under section 29 of such Act (15 U.S.C. 656)), chapters of the Service Corps of Retired Executives (established under section 8(b)(1)(B) of such Act (15 U.S.C. 637(b)(1)(B))), Veteran Business Outreach Centers (described under section 32 of such Act (15 U.S.C. 657b)), Members of Congress, congressional committees, small business concerns (as defined in section 3 of such Act (15 U.S.C. 632)), and the public.

SEC. 410. REPORT ON BEST PRACTICES.

Not later than 60 days after the date of the enactment of this Act, the Administrator shall submit to the Committee on Small Business of the House of Representatives and the Committee on Small Business and Entrepreneurship of the Senate a report on outlining the best practices to administer the loan program established under section 7(b)(2) of the Small Business Act (15 U.S.C. 636(b)(2)) during a pandemic.

SEC. 411. EXTENSION OF PERIOD OF AVAILABILITY FOR ADMINISTRATIVE FUNDS.

Section 1107(a) of the CARES Act (15 U.S.C. 9006(a)) is amended in the matter preceding paragraph (1) by striking ''until September 30, 2021'' and inserting ''until December 31, 2021, for amounts appropriated under paragraph (2), and until September 30, 2021, for all other amounts appropriated under this subsection''.

TITLE V—MICRO-SBIC AND EQUITY INVESTMENT ENHANCEMENT

SEC. 501. MICRO-SBIC PROGRAM.

Title III of the Small Business Investment Act of 1958 (15 U.S.C. 681 et seq.) is amended by adding at the end the following:

''PART D—MICRO-SBIC PROGRAM

''SEC. 399A. MICRO-SBIC PROGRAM.

''(a) ESTABLISHMENT.—There is established in the Administration a program to be known as the 'Micro-SBIC Program' under which the Administrator shall issue a license to an applicant for the purpose of making loans to and investments in small business concerns. An applicant licensed under this section shall have the same benefits as an applicant licensed under section 301.

''(b) ELIGIBILITY.—An applicant desiring to receive a license to operate as a micro-SBIC shall submit an application to the Administrator at such time, in such manner, and containing such information as the Administrator may require, including—

''(1) evidence that the applicant holds private capital of not less than $5,000,000;

''(2) evidence that the management of the applicant is qualified and has significant business expertise relevant to the applicant's strategy; and

''(3) an election to receive a seed investment under section 399C or leverage from the Administrator.

''(c) ISSUANCE OF LICENSE.—

''(1) PROCEDURES.—

''(A) STATUS.—Not later than 90 days after the initial receipt by the Administrator of an application under this subsection, the Administrator shall provide the applicant with a written report detailing the status of the application and any requirements remaining for completion of the application.

''(B) APPROVAL OR DISAPPROVAL.—Except as provided in subparagraph (C) and within a reasonable time after providing the report under subparagraph (A) and in accordance with such requirements as the Administrator may prescribe by regulation, the Administrator shall—

''(i) approve the application and issue to the applicant a license to operate as a micro-SBIC; or

''(ii) disapprove the application and notify the applicant in writing of the disapproval.

''(C) PROVISIONAL APPROVAL.—The Administrator may provide provisional approval for an applicant for a period of not more than 12 months before making a final determination of approval or disapproval under subparagraph (B).

''(D) EXPLANATION OF DISAPPROVAL.—An applicant may submit to the Administrator a request for a written explanation regarding the disapproval of an application under subparagraph (B)(ii).

''(2) APPEALS.—

''(A) DISAPPROVED APPLICATIONS.—With respect to an application that is disapproved under paragraph (1)(B)(iii)—

''(i) not later than 30 days after the date on which the application is disapproved, the applicant may submit an appeal to the Chair of the Investment Division Licensing Committee of the Administration (referred to in this subparagraph as the 'Chair'); and

''(ii) not later than 30 days after the date on which the applicant submits an appeal under clause (i), the Chair shall issue a ruling with respect to the appeal and notify the applicant regarding such ruling.

''(B) DENIAL OF APPEAL.—With respect to an application that the Chair denies in an appeal submitted under subparagraph (A)—

''(i) not later than 30 days after the date on which the Chair submits the notification required under subparagraph (A)(ii), the applicant may submit to the Administrator an appeal of the ruling made by the Chair; and

''(ii) not later than 30 days after the date on which the applicant submits an appeal under clause (i), the Administrator shall issue a final ruling with respect to the appeal and notify the applicant regarding such ruling.

''(3) PRIORITY.—In reviewing applications and issuing licenses under this section, the Administrator shall give priority to an applicant the management of which consists of at least two socially disadvantaged individuals or economically disadvantaged individuals and at least one track record investment committee member.

''(4) EXPEDITED PROCEDURES.—The Administrator shall establish expedited procedures for the consideration of an application submitted under subsection (b), including a written report under paragraph (1)(A) not later than 45 days after the initial receipt of an application, for—

''(A) a small business investment companies licensed under section 301;

''(B) a rural business investment company; or

''(C) a bank-owned applicant.

''(d) MAXIMUM LEVERAGE.—

''(1) IN GENERAL.—For a micro-SBIC that elects to receive leverage under subsection (b)(3), the maximum amount of outstanding leverage made available to any one micro-SBIC may not exceed—

''(A) 50 percent of the private capital of such micro-SBIC, not to exceed $25,000,000; or

''(B) in the case of a micro-SBIC owned by persons who also own a small business investment company licensed under section 301, 100 percent of the private capital of such micro-SBIC, not to exceed $50,000,000.

''(2) INVESTMENTS IN CERTAIN BUSINESSES.—In calculating the outstanding leverage of a micro-SBIC for purposes of paragraph (1), the Administrator shall exclude the amount of the cost basis of any investments made in an early-stage small business, growth-stage small business, scale-up small business, or covered small business in an amount not to exceed—

''(A) $25,000,000; or

''(B) in the case of a micro-SBIC owned by persons who also own a small business investment company licensed under section 301, $50,000,000.

''SEC. 399B. MICRO-SBIC PROGRAM REQUIREMENTS.

''(a) SURRENDER OF LICENSE.—A micro-SBIC that voluntarily surrenders a license issued under this section shall enter into an agreement with Administrator for the repayment of leverage received. Such agreement may not require the micro-SBIC to immediately repay all leverage received.

''(b) ADMINISTRATION.—To the extent practicable, for a micro-SBIC that elects to receive leverage under section 399A(b)(3), the Administrator shall administer the Micro-SBIC Program

in a similar manner to the program under section 301.

"SEC. 399C. SEED INVESTMENT PROGRAM.

''(a) ESTABLISHMENT.—The Administrator shall establish and carry out an equity investment program (in this part referred to as the 'Seed Investment Program') to provide seed investments to a micro-SBIC to invest in small business concerns.

''(b) APPLICATION.—A micro-SBIC that elects to receive a seed investment under section 399A(b)(3) shall submit to the Administrator an application that includes the following:

''(1) A business plan describing how the applicant intends to make successful investments in early-stage small businesses, growth-stage small businesses, scale-up small businesses, or covered small businesses, as applicable.

''(2) A description of the extent to which the applicant meets the selection criteria under subsection (c).

''(c) SELECTION.—

''(1) IN GENERAL.—Not later than 90 days after the date of receipt of an application under subsection (b), the Administrator shall make a final determination to approve or disapprove the applicant as a participant in the Seed Investment Program and shall submit such determination to the applicant in writing.

''(2) CRITERIA.—In making a determination under paragraph (1), the Administrator shall consider each of the following criteria:

''(A) The likelihood that the applicant will meet the goals specified in the business plan of the applicant.

''(B) The likelihood that the investments of the applicant will directly and indirectly create or preserve jobs.

''(C) The character and fitness of the management of the applicant.

''(D) The experience and background of the management of the applicant.

''(E) The extent to which the applicant will concentrate investment activities on early-stage small businesses, growth-stage small businesses, scale-up small businesses, or covered small businesses, as applicable.

''(F) The likelihood that the applicant will achieve profitability.

''(G) The experience of the management of the applicant with respect to establishing a profitable investment track record.

"SEC. 399D. REQUIREMENTS FOR SEED INVESTMENTS.

''(a) IN GENERAL.—The Administrator may make one seed investment to a Program participant, which shall be held in an account from which the Program participant may make withdrawals.

''(b) AMOUNTS.—

''(1) NON-FEDERAL CAPITAL.—A seed investment made to a Program participant may not exceed the amount of capital of such Program participant that—

''(A) is not from a Federal source; and

''(B) that is available for investment, including through legally binding commitments, on or before the date on which the seed investment is approved.

''(2) LIMITATION ON AMOUNT.—The amount of a seed investment made to a Program participant may not exceed the lesser of—

''(A) $25,000,000; or

''(B) 100 percent of the private capital committed to the Program participant.

''(c) PROCESS.—

''(1) IN GENERAL.—Amounts held in an account under this section shall remain available to a Program participant—

''(A) for initial seed investments, during the 5-year period beginning on the date on which the Program participant first accesses amounts from the account; and

''(B) for follow-on investments and management fees, during the 10-year period beginning on the date on which the Program participant first accesses amounts from the account.

''(2) EXTENSION.—Upon request by a Program participant, the Administrator may grant a 1-year extension of the period described in paragraph (1)(B) not more than 2 times.

''(3) USE OF AMOUNTS.—A Program participant shall invest all amounts in the account during the 10-year period beginning on the date on which the Program participant first accesses amounts from the account.

''(d) PRIORITY.—The Administrator shall prioritize making seed investments under this section to Program participants in underlicensed States.

''(e) INVESTMENTS IN CERTAIN BUSINESSES.—

''(1) IN GENERAL.—A Program participant that receives a seed investment under this part shall make all of the investments of such Program participant in small business concerns, of which at least 50 percent shall be in covered small businesses.

''(2) MINORITY POSITIONS.—On the date on which a Program participant first accesses amounts from such seed investment, the Program participant may not own or control not more than 50 percent of the shares of any small business concern in which such Program participant invests. A Program participant shall not pursue a buyout strategy as a primary purpose of an investment in such a small business concern, but may take control in follow-on investments if necessary for the success of any such small business concern.

''(3) EVALUATION OF COMPLIANCE.—The Administrator shall evaluate the compliance of a Program participant with the requirements under this section once such Program participant has expended 75 percent of the amount of a seed investment made under this part.

''(f) SEED INVESTMENT INTEREST.—

''(1) IN GENERAL.—

''(A) IN GENERAL.—Subject to paragraph (4), a Program participant that receives a seed investment under the Program shall convey a seed investment interest to the Administrator in accordance with subparagraph (B).

''(B) EFFECT OF CONVEYANCE.—The seed investment interest conveyed under paragraph (1) shall have all the rights and attributes of other investors with respect to the Program participant, but shall not assign control or voting rights to the Administrator. The seed investment interest shall entitle the Administrator to a pro rata portion of any distributions made by the Program participant equal to the percentage of capital in the Program participant that the seed investment comprises. The Administrator shall receive distributions from the Program participant at the same times and in the same amounts as any other investor in the Program participant with a similar interest. The Program participant shall make allocations of income, gain, loss, deduction, and credit to the Administrator with respect to the seed investment interest as if the Administrator were an investor.

''(2) MANAGER PROFITS.—The manager profits interest payable to the managers of a Program participant shall not exceed 20 percent of profits, exclusive of any profits that may accrue as a result of the capital contributions of any such managers with respect to such Program participant. Any excess of this amount, less taxes payable thereon, shall be returned by the managers and paid to the investors and the Administrator in proportion to the capital contributions and seed investments paid in. No manager profits interest (other than a tax distribution) shall be paid prior to the repayment to the investors and the Administrator of all contributed capital and seed investments made. A manager of a Program participant may charge reasonable and customary management and organizational fees.

''(3) DISTRIBUTION REQUIREMENTS.—A Program participant that receives a seed investment under the Program shall make all distributions to all investors in cash and shall make distributions within a reasonable time after exiting investments, including following a public offering or market sale of underlying investments.

''(4) LIMITATION ON GRANT PROFITS.—Once the Administrator has received an amount equal to 110 percent of the amount of the seed investment made to a Program participant, the requirement to convey seed investment interest under this subsection shall be terminated and no further distributions of profits shall be made to the Administrator.

"SEC. 399E. ADMINISTRATION.

''(a) ELECTRONIC SUBMISSIONS.—The Administrator shall permit the electronic submission of any document submitted under this part or pursuant to a regulation carrying out this part, including by permitting an electronic signature for any signature that is required on such a document.

''(b) APPLICATION OF PENALTIES.—To the extent not inconsistent with requirements under this part, the Administrator may take such action as set forth in sections 309, 311, 312, 313, and 314 to activities under this part and an officer, director, employee, agent, or other participant in a micro-SBIC shall be subject to the requirements under such sections.

"SEC. 399F. REPORT.

''The Administrator shall include in the annual report required under section 10(a) of the Small Business Act a description of—

''(1) the number of applications received under this part, including the number of applications received from applicants for which the management consists of at least two socially disadvantaged individuals or economically disadvantaged individuals; and

''(2) the number of licenses issued under section 399A, including the number of such licenses issued to applicants for which the management consists of at least two socially disadvantaged individuals or economically disadvantaged individuals.

"SEC. 399G. DEFINITIONS.

''In this part:

''(1) APPLICANT.—The term 'applicant' means—

''(A) an incorporated body, a limited liability corporation, or a limited partnership organized and chartered or otherwise existing under State law solely for the purpose of performing the functions and conducting the activities contemplated under this section; or

''(B) a bank-owned applicant, rural business investment company, or small business investment company licensed under section 301 that submits an application to operate as a micro-SBIC under section 399A.

''(2) BANK-OWNED APPLICANT.—the term 'bank-owned applicant' means an applicant for a license to operate as a small business investment company under this part that—

''(A) is a national bank or any member bank of the Federal Reserve System or nonmember insured bank that bears the same name as the small business investment company that is the subject of the application;

''(B) is domestically domiciled within the United States; and

''(C) has not had a license issued under this Act revoked or involuntarily surrendered during the 10-year period preceding the date on which the application is submitted;

''(3) COVERED SMALL BUSINESS.—The term 'covered small business' means a small business concern that—

''(A) is a small business concern owned and controlled by women (as defined in section 3(n) of the Small Business Act), small business concern owned and controlled by socially and economically disadvantaged individuals (as defined in section 8(d)(3)(C) of such Act), a small business concern owned and controlled by veterans (as defined in section 3(q) of such Act) or a Tribal business concern (as described in section 31(b)(2)(C) of such Act);

''(B) has its principal place of business located in a rural census tract (as determined under the most recent rural urban commuting area code as set forth by the Office of Management and Budget);

''(C) is a domestic manufacturing business that is assigned a North American Industry Classification System code beginning with 31, 32, or 33 at the time at which the small business concern receives an investment from a micro-SBIC under this section; or

''(D) either—

''(i) had gross receipts during the first or second quarter in 2020 that are not less than 50 percent less than the gross receipts of the concern during the same quarter in 2019;

''(ii) if the concern was not in business during the first or second quarter of 2019, but was in business during the third and fourth quarter of 2019, had gross receipts during the first or second quarter of 2020 that are less than 50 percent of the amount of the gross receipts of the concern during the third or fourth quarter of 2019;

''(iii) if the concern was not in business during the first, second, or third quarter of 2019, but was in business during the fourth quarter of 2019, had gross receipts during the first or second quarter of 2020 that are less than 50 percent of the amount of the gross receipts of the concern during the fourth quarter of 2019; or

''(iv) if the concern was not in business during 2019, but was in operation on February 15, 2020, had gross receipts during the second quarter of 2020 that are less than 50 percent of the amount of the gross receipts of the concern during the first quarter of 2020.

''(4) EARLY-STAGE SMALL BUSINESS.—The term 'early-stage small business' means a small business concern that—

''(A) is domestically domiciled within the United States;

''(B) during the 3-year period preceding the date of application, has not generated gross annual sales revenues exceeding $15,000,000;

''(C) produces a majority of its goods or provides a majority of its services in the United States; and

''(D) does not move production or employment outside the United States.

''(5) ECONOMICALLY DISADVANTAGED INDIVIDUAL; SOCIALLY DISADVANTAGED INDIVIDUAL.—The terms 'economically disadvantaged individual' and 'socially disadvantaged individual' have the meanings given, respectively, in section 8(a) of the Small Business Act.

''(6) GROWTH-STAGE SMALL BUSINESS.—The term 'growth-stage small business' means a small business concern that—

''(A) is domestically domiciled within the United States;

''(B) during the 3-year period preceding the date of application, has not generated gross annual sales revenues exceeding $30,000,000;

''(C) produces a majority of its good or provides a majority of its services in the United States; and

''(D) does not move production or employment outside the United States.

''(7) MANAGEMENT.—The term 'management' means a general partner of an applicant or member of the investment committee of an applicant.

''(8) MICRO-SBIC.—The term 'micro-SBIC' means an applicant licensed under section 399A.

''(9) PROGRAM PARTICIPANT.—The term 'Program participant' means a micro-SBIC that received a seed investment under the Seed Investment Program established by section 399C.

''(10) SCALE-UP SMALL BUSINESS.—The term 'scale-up small business' means a small business concern that—

''(A) is domestically domiciled within the United States;

''(B) during the 3-year period preceding the date of application, has not generated earnings before interest, tax, depreciation, and amortization in excess of $3,000,000;

''(C) produces a majority of its goods or provides a majority of its services in the United States; and

''(D) does not move production or employment outside the United States.

''(11) SMALL BUSINESS CONCERN.—The term 'small business concern' has the meaning given under section 3(a) of the Small Business Act (15 U.S.C. 632(a)).

''(12) TRACK RECORD INVESTMENT COMMITTEE MEMBER.—The term 'track record investment committee member' means a current or former small business investment company licensed under section 301, a private small- and lower-middle-market venture capital firm, or a private equity fund manager with the knowledge, experience, and capability necessary to serve as management for an applicant.

''(13) UNITED STATES.—The term 'United States' means each of the several States, the District of Columbia, each territory or possession of the United States, and each federally recognized Indian Tribe.

''SEC. 399H. FUNDING.

''(a) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the revolving fund established under subsection (b) $1,000,000,000 for the first full fiscal year beginning after the date of the enactment of this part to carry out the requirements of this part.

''(b) REVOLVING FUND.—There is created within the Administration a separate revolving fund for the Seed Investment Program established under section 399C, which shall be available to the Administrator subject to annual appropriations. All amounts received by the Administrator, including any money, property, or assets derived by the Administrator from operations in connection with the Seed Investment Program, including repayments of seed investments, shall be deposited in the revolving fund. All expenses and payments, excluding administrative expenses, pursuant to the operations of the Administrator under the Seed Investment Program shall be paid from the revolving fund.''.

TITLE VI—MISCELLANEOUS

SEC. 601. REPEAL OF UNEMPLOYMENT GRANTS.

Section 1110(e)(6) of the CARES Act (15 U.S.C. 9009) is repealed.

SEC. 602. SUBSIDY FOR CERTAIN LOAN PAYMENTS.

(a) IN GENERAL.—Section 1112 of the CARES Act (15 U.S.C. 9011) is amended—

(1) in subsection (c)—

(A) in paragraph (1)—

(i) in the matter preceding subparagraph (A), by inserting '', without regard to the date on which the covered loan is fully disbursed and subject to availability of funds'' after ''status''; and

(ii) by amending subparagraphs (A), (B), and (C) to read as follows:

''(A) with respect to a covered loan approved by the Administration before the date of enactment of this Act and not on deferment—

''(i) except as provided in clauses (ii) and (iii), for the 6-month period beginning with the next payment due on the covered loan after the covered loan is fully disbursed;

''(ii) for the 11-month period beginning with the next payment due on the covered loan after the covered loan is fully disbursed, with respect to a covered loan that—

''(I) is described in subsection (a)(1)(B) or is a loan guaranteed by the Administration under section 7(a) of the Small Business Act (15 U.S.C. 636(a)) other than a loan described in clause (i) or (ii) of subsection (a)(1)(A); and

''(II) is made to a borrower operating primarily in an industry that is assigned a North American Industry Classification System code beginning with 21, 31, 32, 33, 44, 45, 48, 49, 51, 53, 54, 56, 62, or 81; and

''(iii) for the 18-month period beginning with the next payment due on the covered loan after the covered loan is fully disbursed, with respect to—

''(I) a covered loan described in paragraph (1)(A)(i) or paragraph (2) of subsection (a); or

''(II) any covered loan made to a borrower operating primarily in an industry that is assigned a North American Industry Classification System code of 485510 or that begins with 61, 71, or 72;

''(B) with respect to a covered loan approved by the Administration before the date of enactment of this Act and on deferment—

''(i) except as provided in clauses (ii) and (iii), for the 6-month period beginning with the next payment due on the covered loan after the deferment period and after the covered loan is fully disbursed;

''(ii) for the 11-month period beginning with the next payment due on the covered loan after the deferment period and after the covered loan is fully disbursed, with respect to a covered loan described in subclause (I) or (II) of subparagraph (A)(ii); and

''(iii) for the 18-month period beginning with the next payment due on the covered loan after the deferment period and after the covered loan is fully disbursed, with respect to a covered loan described in subclause (I) or (II) of subparagraph (A)(iii); and

''(C) with respect to a covered loan made during the period beginning on the date of enactment of this Act and ending on the date that is 30 months after such date of enactment—

''(i) except as provided in clause (ii), for the 6-month period beginning with the first payment due after the loan is fully disbursed; and

''(ii) for a covered loan described in paragraph (1)(A)(i) or (2) of subsection (a) that is approved by the Administrator, for the 18-month period beginning with the first payment due after the loan is fully disbursed.''; and

(B) by adding at the end the following:

''(4) ADDITIONAL PROVISIONS FOR NEW LOANS.—With respect to a loan described in paragraph (1)(C)—

''(A) the Administrator may further extend the 30-month period described in paragraph (1)(C) if there are sufficient funds to continue those payments; and

''(B) during the underwriting process, a lender of such a loan may consider the payments under this section as part of a comprehensive review to determine the ability to repay.

''(5) ELIGIBILITY.—Eligibility for a covered loan to receive such payments of principal, interest, and any associated fees under this subsection shall be based on the date on which the covered loan is approved by the Administration.

''(6) AUTHORITY TO REVISE EXTENSIONS.—

''(A) IN GENERAL.—As part of preparing the reports under subsection (i)(5) that are required to be submitted not later than January 15, 2021, and not later than June 15, 2021, the Administrator shall conduct an evaluation of whether amounts made available to make payments under this subsection are sufficient to make the payments for the period described in paragraph (1).

''(B) PLAN.—If the Administrator determines under subparagraph (A) that the amounts made available to make payments under this subsection are insufficient, the Administrator shall—

''(i) develop a plan to proportionally reduce the number of months provided for each period described in paragraph (1), which shall include the goal of using all available amounts made available to make payments under this subsection; and

''(ii) before taking action under the plan developed under clause (i), include in the applicable report under subsection (i)(5) the plan and the data that informs the plan.

''(7) RULE OF CONSTRUCTION.—Nothing in this subsection shall preclude a borrower from receiving full payments of principal, interest, and any associated fees as authorized by subsection, regardless of the application of a plan implemented under paragraph (6)(B).'';

(2) by redesignating subsection (f) as subsection (j); and

(3) by inserting after subsection (e) the following:

''(f) ELIGIBILITY FOR NEW LOANS.—

''(1) IN GENERAL.—With respect to a covered loan made on or after the date of enactment of the PPP and EIDL Enhancement Act of 2020,

the covered loan shall have a maturity of not less than 48 months in order to be eligible for payments made under this section.

''(2) LENDING PROGRAMS.—The minimum maturity requirements of paragraph (1) shall not prohibit the Administrators from establishing a minimum maturity of longer than 48 months for a loan described under subsection (a), taking into consideration the normal underwriting requirements for each such program.

''(g) LIMITATION ON ASSISTANCE.—A borrower may not receive assistance under subsection (c) for more than 1 covered loan of the borrower described in paragraph (1)(C) of that subsection.

''(h) REPORTING AND OUTREACH.—

''(1) UPDATE TO WEBSITE.—Not later than 7 days after the date of enactment of the PPP and EIDL Enhancement Act of 2020, the Administrator shall update the website of the Administration to describe the requirements relating to payments made under this section.

''(2) PUBLICATION OF LIST.—Not later than 14 days after the date of enactment of the PPP and EIDL Enhancement Act of 2020, the Administrator shall transmit to each lender of a covered loan a list of each borrower of a covered loan that includes the North American Industry Classification System code assigned to the borrower, to assist the lenders in identifying which borrowers qualify for an extension of payments under subsection (c).

''(3) EDUCATION AND OUTREACH.—

''(A) IN GENERAL.—The Administrator shall provide education and outreach to lenders, borrowers, district offices, and resource partners of the Administration in order to ensure full and proper compliance with this section, encourage broad participation with respect to covered loans that have not yet been approved by the Administrator, and help lenders transition borrowers from subsidy payments under this section directly to a deferral when suitable for the borrower.

''(B) RESOURCE PARTNERS DEFINED.—In this paragraph, the term 'resource partners ' means small business development centers (as defined in section 3 of the Small Business Act (15 U.S.C. 632)), women's business centers (described under section 29 of such Act (15 U.S.C. 656)), chapters of the Service Corps of Retired Executives (established under section 8(b)(1)(B) of such Act (15 U.S.C. 637(b)(1)(B))), and Veteran Business Outreach Centers (described under section 32 of such Act (15 U.S.C. 657b)).

''(4) NOTIFICATION.—Not later than 30 days after the date of enactment of the PPP and EIDL Enhancement Act of 2020, the Administrator shall mail a letter to each borrower of a covered loan that includes—

''(A) an overview of payments made under this section;

''(B) the rights of the borrower to receive such payments;

''(C) how to seek recourse with the Administrator or the lender of the covered loan if the borrower has not received such payments; and

''(D) the rights of the borrower to request a loan deferral from a lender, and guidance on how to do successfully transition directly to a loan deferral once subsidy payments under this section are concluded.

''(5) MONTHLY REPORTING.—Not later than the 15th of each month beginning after the date of enactment of the PPP and EIDL Enhancement Act of 2020, the Administrator shall submit to Congress a report on payments made under this section, which shall include—

''(A) monthly and cumulative data on payments made under this section as of the date of the report, including a breakdown by—

''(i) the number of participating borrowers;

''(ii) the volume of payments made for each type of covered loan; and

''(iii) the volume of payments made for covered loans made before the date of enactment of this Act and loans made after such date of enactment;

''(B) the names of any lenders of covered loans that have not submitted information on the covered loans to the Administrator during the preceding month; and

''(C) an update on the education and outreach activities of the Administration carried out under paragraph (3).

''(i) REGULATIONS.—Not later than 30 days after the date of enactment of the PPP and EIDL Enhancement Act of 2020, the Administrator shall issue rules to guard against abuse or excessive and unintended use by lenders or borrowers of the payments provided under this section.''.

(b) EFFECTIVE DATE.—The amendments made by this section shall apply as if included in the enactment of section 1112 of the CARES Act (15 U.S.C. 9011).

SEC. 603. MODIFICATIONS TO 7(a) LOAN PROGRAMS.

(a) 7(a) LOAN GUARANTEES.—

(1) IN GENERAL.—Section 7(a)(2)(A) of the Small Business Act (15 U.S.C. 636(a)(2)(A)) is amended by striking ''), such participation by the Administration shall be equal to'' and all that follows through the period at the end and inserting ''or the Community Advantage Pilot Program of the Administration), such participation by the Administration shall be equal to 90 percent of the balance of the financing outstanding at the time of disbursement of the loan.''.

(2) PROSPECTIVE REPEAL.—Effective October 1, 2021, section 7(a)(2)(A) of the Small Business Act (15 U.S.C. 636(a)(2)(A)), as amended by paragraph (1), is amended to read as follows:

''(A) IN GENERAL.—Except as provided in subparagraphs (B), (D), (E), and (F), in an agreement to participate in a loan on a deferred basis under this subsection (including a loan made under the Preferred Lenders Program), such participation by the Administration shall be equal to—

''(i) 75 percent of the balance of the financing outstanding at the time of disbursement of the loan, if such balance exceeds $150,000; or

''(ii) 85 percent of the balance of the financing outstanding at the time of disbursement of the loan, if such balance is less than or equal to $150,000.''.

(b) EXPRESS LOANS.—

(1) LOAN AMOUNT.—Section 1102(c)(2) of the CARES Act (Public Law 116–36; 15 U.S.C. 636 note) is amended to read as follows:

''(2) PROSPECTIVE REPEAL.—Section 7(a)(31)(D) of the Small Business Act (15 U.S.C.

''(A) by striking '$1,000,000' and inserting '$500,000', effective during the period beginning on January 1, 2021, and ending on September 30, 2021; and

''(B) (B) by striking '$500,000' and inserting '$350,000', effective October 1, 2021.''.

(2) GUARANTEE RATES.—

(A) TEMPORARY MODIFICATION.—Section 7(a)(31)(A)(iv) of the Small Business Act (15 U.S.C. 636(a)(31)(A)(iv)) is amended by striking ''with a guaranty rate of not more than 50 percent.'' and inserting the following: ''with a guarantee rate—

''(I) for a loan in an amount less than or equal to $350,000, of not more than 75 percent; and

''(II) for a loan in an amount greater than $350,000, of not more than 50 percent.''.

(B) PROSPECTIVE REPEAL.—Effective October 1, 2021, section 7(a)(31)(A)(iv) of the Small Business Act (15 U.S.C. 636(a)(31)), as amended by subparagraph (A), is amended by striking ''guarantee rate'' and all that follows through the period at the end and inserting ''guarantee rate of not more than 50 percent.''.

SEC. 604. FLEXIBILITY IN DEFERRAL OF PAYMENTS OF 7(A) LOANS.

Section 7(a)(7) of the Small Business Act (15 U.S.C. 636(a)(7)) is amended—

(1) by striking ''The Administration'' and inserting ''(A) IN GENERAL.—The Administrator'';

(2) by inserting ''and interest'' after ''principal''; and

(3) by adding at the end the following new subparagraphs:

''(B) DEFERRAL REQUIREMENTS.—With respect to a deferral provided under this paragraph, the Administrator may allow lenders under this subsection—

''(i) to provide full payment deferment relief (including payment of principal and interest) for a period of not more than 1 year; and

''(ii) to provide an additional deferment period if the borrower provides documentation justifying such additional deferment.

''(C) SECONDARY MARKET.—If an investor declines to approve a deferral or additional deferment requested by a lender under subparagraph (B), the Administrator shall exercise the authority to purchase the loan so that the borrower may receive full payment deferment relief (including payment of principal and interest) or an additional deferment as described under subparagraph (B).''.

SEC. 605. RECOVERY ASSISTANCE UNDER THE MICROLOAN PROGRAM.

(a) LOANS TO INTERMEDIARIES.—

(1) IN GENERAL.—Section 7(m) of the Small Business Act (15 U.S.C. 636(m)) is amended—

(A) in paragraph (3)(C)—

(i) by striking ''and $6,000,000'' and inserting ''$10,000,000 (in the aggregate)''; and

(ii) by inserting before the period at the end the following: '', and $4,500,000 in any of those remaining years'';

(B) in paragraph (4)—

(i) in subparagraph (A), by striking ''subparagraph (C)'' each place that term appears and inserting ''subparagraphs (C) and (G)'';

(ii) in subparagraph (C), by amending clause (i) to read as follows:

''(i) IN GENERAL.—In addition to grants made under subparagraph (A) or (G), each intermediary shall be eligible to receive a grant equal to 5 percent of the total outstanding balance of loans made to the intermediary under this subsection if—

''(I) the intermediary provides not less than 25 percent of its loans to small business concerns located in or owned by one or more residents of an economically distressed area; or

''(II) the intermediary has a portfolio of loans made under this subsection—

''(aa) that averages not more than $10,000 during the period of the intermediary's participation in the program; or

''(bb) of which not less than 25 percent is serving rural areas during the period of the intermediary's participation in the program.''; and

(iii) by adding at the end the following new subparagraph:

''(G) GRANT AMOUNTS BASED ON APPROPRIATIONS.—In any fiscal year in which the amount appropriated to make grants under subparagraph (A) is sufficient to provide to each intermediary that receives a loan under paragraph (1)(B)(i) a grant of not less than 25 percent of the total outstanding balance of loans made to the intermediary under this subsection, the Administration shall make a grant under subparagraph (A) to each intermediary of not less than 25 percent and not more than 30 percent of that total outstanding balance for the intermediary.'';

(C) by striking paragraph (7) and inserting the following:

''(7) PROGRAM FUNDING FOR MICROLOANS.—Under the program authorized by this subsection, the Administration may fund, on a competitive basis, not more than 300 intermediaries.''; and

(D) in paragraph (11)—

(i) in subparagraph (C)(ii), by striking all after the semicolon and inserting ''and''; and

(ii) by striking all after subparagraph (C), and inserting the following:

''(D) the term 'economically distressed area', as used in paragraph (4), means a county or equivalent division of local government of a State in which the small business concern is located, in which, according to the most recent

data available from the Bureau of the Census, Department of Commerce, not less than 40 percent of residents have an annual income that is at or below the poverty level.''.

(2) PROSPECTIVE AMENDMENT.—Effective on October 1, 2021, section 7(m)(3)(C) of the Small Business Act (15 U.S.C. 636(m)(3)(C)), as amended by paragraph (1)(A), is further amended—

(A) by striking ''$10,000,000'' and by inserting ''$7,000,000''; and

(B) by striking ''$4,500,000'' and inserting ''$3,000,000''.

(b) TEMPORARY WAIVER OF TECHNICAL ASSISTANCE GRANTS MATCHING REQUIREMENTS AND FLEXIBILITY ON PRE- AND POST-LOAN ASSISTANCE.—During the period beginning on the date of enactment of this section and ending on September 30, 2021, the Administration shall waive—

(1) the requirement to contribute non-Federal funds under section 7(m)(4)(B) of the Small Business Act (15 U.S.C. 636(m)(4)(B)); and

(2) the limitation on amounts allowed to be expended to provide information and technical assistance under clause (i) of section 7(m)(4)(E) of the Small Business Act (15 U.S.C. 636(m)(4)(E)) and enter into third-party contracts to provide technical assistance under clause (ii) of such section 7(m)(4)(E).

(c) TEMPORARY DURATION OF LOANS TO BORROWERS.—

(1) IN GENERAL.—During the period beginning on the date of enactment of this section and ending on September 30, 2021, the duration of a loan made by an eligible intermediary under section 7(m) of the Small Business Act (15 U.S.C. 636(m))—

(A) to an existing borrower may be extended to not more than 8 years; and

(B) to a new borrower may be not more than 8 years.

(2) REVERSION.—On and after October 1, 2021, the duration of a loan made by an eligible intermediary to a borrower under section 7(m) of the Small Business Act (15 U.S.C. 636(m)) shall be 7 years or such other amount established by the Administrator.

(d) FUNDING.—Section 20 of the Small Business Act (15 U.S.C. 631 note) is amended by adding at the end the following new subsection:

''(h) MICROLOAN PROGRAM.—For each of fiscal years 2021 through 2025, the Administration is authorized to make—

''(1) $80,000,000 in technical assistance grants, as provided in section 7(m); and

''(2) $110,000,000 in direct loans, as provided in section 7(m).''.

(e) AUTHORIZATION OF APPROPRIATIONS.—In addition to amounts provided under the Consolidated Appropriations Act, 2020 (Public Law 116–93) for the program established under section 7(m) of the Small Business Act (15 U.S.C. 636(m)), there is authorized to be appropriated for fiscal year 2020, to remain available until expended—

(1) $50,000,000 to provide technical assistance grants under such section 7(m); and

(2) $7,000,000 to provide direct loans under such section 7(m).

SEC. 606. MAXIMUM LOAN AMOUNT FOR 504 LOANS.

(a) PERMANENT INCREASE FOR SMALL MANUFACTURERS.—Section 502(2)(A)(iii) of the Small Business Investment Act of 1958 (15 U.S.C. 696(2)(A)(iii)) is amended by striking ''$5,500,000'' and inserting ''$6,500,000''.

(b) LOW-INTEREST REFINANCING UNDER THE LOCAL DEVELOPMENT BUSINESS LOAN PROGRAM.—

(1) REPEAL.—Section 521(a) of title V of division E of the Consolidated Appropriations Act, 2016 (Public Law 114–113; 129 Stat. 2463; 15 U.S.C. 696 note) is repealed.

(2) REFINANCING.—Section 502(7) of the Small Business Investment Act of 1958 (15 U.S.C. 696(7)) is amended by adding at the end the following new subparagraph:

''(C) REFINANCING NOT INVOLVING EXPANSIONS.—

''(i) DEFINITIONS.—In this subparagraph—

''(I) the term 'borrower' means a small business concern that submits an application to a development company for financing under this subparagraph;

''(II) the term 'eligible fixed asset' means tangible property relating to which the Administrator may provide financing under this section; and

''(III) the term 'qualified debt' means indebtedness that—

''(aa) was incurred not less than 6 months before the date of the application for assistance under this subparagraph;

''(bb) is a commercial loan;

''(cc) the proceeds of which were used to acquire an eligible fixed asset;

''(dd) was incurred for the benefit of the small business concern; and

''(ee) is collateralized by eligible fixed assets; and

''(ii) AUTHORITY.—A project that does not involve the expansion of a small business concern may include the refinancing of qualified debt if—

''(I) the amount of the financing is not more than 90 percent of the value of the collateral for the financing, except that, if the appraised value of the eligible fixed assets serving as collateral for the financing is less than the amount equal to 125 percent of the amount of the financing, the borrower may provide additional cash or other collateral to eliminate any deficiency;

''(II) the borrower has been in operation for all of the 2-year period ending on the date the loan application is submitted; and

''(III) for a financing for which the Administrator determines there will be an additional cost attributable to the refinancing of the qualified debt, the borrower agrees to pay a fee in an amount equal to the anticipated additional cost.

''(iii) FINANCING FOR BUSINESS EXPENSES.—

''(I) FINANCING FOR BUSINESS EXPENSES.—The Administrator may provide financing to a borrower that receives financing that includes a refinancing of qualified debt under clause (ii), in addition to the refinancing under clause (ii), to be used solely for the payment of business expenses.

''(II) APPLICATION FOR FINANCING.—An application for financing under subclause (I) shall include—

''(aa) a specific description of the expenses for which the additional financing is requested; and

''(bb) an itemization of the amount of each expense.

''(III) CONDITION ON ADDITIONAL FINANCING.—A borrower may not use any part of the financing under this clause for non-business purposes.

''(iv) LOANS BASED ON JOBS.—

''(I) JOB CREATION AND RETENTION GOALS.—

''(aa) IN GENERAL.—The Administrator may provide financing under this subparagraph for a borrower that meets the job creation goals under subsection (d) or (e) of section 501.

''(bb) ALTERNATE JOB RETENTION GOAL.—The Administrator may provide financing under this subparagraph to a borrower that does not meet the goals described in item (aa) in an amount that is not more than the product obtained by multiplying the number of employees of the borrower by $75,000.

''(II) NUMBER OF EMPLOYEES.—For purposes of subclause (I), the number of employees of a borrower is equal to the sum of—

''(aa) the number of full- time employees of the borrower on the date on which the borrower applies for a loan under this subparagraph; and

''(bb) the product obtained by multiplying—

''(AA) the number of part-time employees of the borrower on the date on which the borrower applies for a loan under this subparagraph, by

''(BB) the quotient obtained by dividing the average number of hours each part time employee of the borrower works each week by 40.

''(vi) TOTAL AMOUNT OF LOANS.—The Administrator may provide not more than a total of $7,500,000,000 of financing under this subparagraph for each fiscal year.''.

(c) REFINANCING SENIOR PROJECT DEBT.—During the 1-year period beginning on the date of the enactment of this Act, a development company described under title V of the Small Business Investment Act of 1958 (15 U.S.C. 695 et seq.) is authorized to allow the refinancing of a senior loan on an existing project in an amount that, when combined with the outstanding balance on the development company loan, is not more than 90 percent of the total value of the senior loan. Proceeds of such refinancing can be used to support business operating expenses of such development company.

SEC. 607. TEMPORARY FEE REDUCTIONS.

(a) ADMINISTRATIVE FEE WAIVER.—

(1) IN GENERAL.—During the period beginning on the date of enactment of this Act and ending on September 30, 2021, and to the extent that the cost of such elimination or reduction of fees is offset by appropriations, with respect to each loan guaranteed under section 7(a) of the Small Business Act (15 U.S.C. 636(a)) (including a recipient of assistance under the Community Advantage Pilot Program of the Administration) for which an application is approved or pending approval on or after the date of enactment of this Act, the Administrator shall—

(A) in lieu of the fee otherwise applicable under section 7(a)(23)(A) of the Small Business Act (15 U.S.C. 636(a)(23)(A)), collect no fee or reduce fees to the maximum extent possible; and

(B) in lieu of the fee otherwise applicable under section 7(a)(18)(A) of the Small Business Act (15 U.S.C. 636(a)(18)(A)), collect no fee or reduce fees to the maximum extent possible.

(2) APPLICATION OF FEE ELIMINATIONS OR REDUCTIONS.—To the extent that amounts are made available to the Administrator for the purpose of fee eliminations or reductions under paragraph (1), the Administrator shall—

(A) first use any amounts provided to eliminate or reduce fees paid by small business borrowers under clauses (i) through (iii) of section 7(a)(18)(A) of the Small Business Act (15 U.S.C. 636(a)(18)(A)), to the maximum extent possible; and

(B) then use any amounts provided to eliminate or reduce fees under 7(a)(23)(A) of the Small Business Act (15 U.S.C. 636(a)(23)(A)).

(c) TEMPORARY FEE ELIMINATION FOR THE 504 LOAN PROGRAM.—

(1) IN GENERAL.—During the period beginning on the date of enactment of this section and ending on September 30, 2021, and to the extent the cost of such elimination in fees is offset by appropriations, with respect to each project or loan guaranteed by the Administrator pursuant to title V of the Small Business Investment Act of 1958 (15 U.S.C. 695 et seq.) for which an application is approved or pending approval on or after the date of enactment of this section—

(A) the Administrator shall, in lieu of the fee otherwise applicable under section 503(d)(2) of the Small Business Investment Act of 1958 (15 U.S.C. 697(d)(2)), collect no fee; and

(B) a development company shall, in lieu of the processing fee under section 120.971(a)(1) of title 13, Code of Federal Regulations (relating to fees paid by borrowers), or any successor thereto, collect no fee.

(2) REIMBURSEMENT FOR WAIVED FEES.—

(A) IN GENERAL.—To the extent that the cost of such payments is offset by appropriations, the Administrator shall reimburse each development company that does not collect a processing fee pursuant to paragraph (1)(B).

(B) AMOUNT.—The payment to a development company under subparagraph (A) shall be in an amount equal to 1.5 percent of the net debenture proceeds for which the development company does not collect a processing fee pursuant to paragraph (1)(B).

SEC. 608. EXTENSION OF PARTICIPATION IN 8(A) PROGRAM.

(a) IN GENERAL.—The Administrator shall ensure that a small business concern participating

in the program established under section 8(a) of the Small Business Act on or before March 13, 2020, may elect to extend such participation by a period of 1 year, regardless of whether such concern previously elected to suspend participation in such program pursuant to guidance of the Administrator.

(b) EMERGENCY RULEMAKING AUTHORITY.—Not later than 15 days after the date of enactment of this section, the Administrator shall issue regulations to carry out this section without regard to the notice requirements under section 553(b) of title 5, United States Code.

SEC. 609. REPORT ON MINORITY, WOMEN, AND RURAL LENDING.

Not later than 90 days after the date of the enactment of this Act, the Administrator shall submit to the Committee on Small Business of the House of Representatives and the Committee on Small Business and Entrepreneurship of the Senate a report to determine and quantify the extent to which the programs established under subsections (a) and (m) of section 7 of the Small Business Act, titles III and V of the Small Business Investment Act of 1958, and the Community Advantage Pilot Program of the Small Business Administration have assisted in the establishment, development, and performance of small business concerns owned and controlled by socially and economically disadvantaged individuals (as defined in section 8(d)(3)(C) of the Small Business Act), small business concerns owned and controlled by women (as defined in section 3 of such Act), and rural small businesses, including recommendations to improve such access to capital programs.

SEC. 610. COMPREHENSIVE PROGRAM GUIDANCE.

Not later than 7 days after the date of the enactment of this Act, the Administrator shall—

(1) establish a process for accepting applications for loan forgiveness under section 1106 of the CARES Act (15 U.S.C. 9005);

(2) issue a comprehensive compilation of rules and guidance issued related to covered loans made under section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)); and

(3) before accepting applications for supplemental covered loans under clause (ii) of section 7(a)(36)(B) of the Small Business Act (15 U.S.C. 636(a)(36)(B)), as added by section 202 of this division, the Administrator shall issue comprehensive rules and guidance to ensure that borrowers and lenders are aware of eligibility and terms of receiving a supplemental covered loan and the process for forgiveness of a supplemental covered loan.

SEC. 611. REPORTS ON PAYCHECK PROTECTION PROGRAM.

(a) REPORT TO CONGRESS.—Within 30 days after the date of the enactment of this Act, and every 30 days thereafter until the end of the covered period described under section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)), the Secretary of the Treasury and the Administrator shall submit to the Committee on Small Business of the House of Representatives and the Committee on Small Business and Entrepreneurship of the Senate a report, in a searchable digital format, that includes, with respect to each covered loan made under such section 7(a)(36)—

(1) the business name, address, and ZIP Code of each recipient of the covered loan;

(2) the North American Industry Classification System code and the type of entity of each such recipient;

(3) demographic data of each such recipient;

(4) the number of jobs supported by the covered loan;

(5) loan forgiveness data; and

(6) the amount and origination date of the covered loan.

(b) PUBLICLY AVAILABLE REPORT.—

(1) LARGER COVERED LOANS.—Within 30 days after the date of the enactment of this Act, and every 30 days thereafter until the end of the covered period described under section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)), for covered loans made under such section 7(a)(36) in an amount greater than or equal to $150,000, the Secretary of the Treasury and the Administrator shall make publicly available—

(A) the information described under paragraphs (1) through (4) of subsection (a); and

(B) the loan size range, of those listed below, that the covered loan belongs—

(i) greater than or equal to $150,000 and less than $350,000;

(ii) greater than or equal to $350,000 and less than $1,000,000;

(iii) greater than or equal to $1,000,000 and less than $2,000,000;

(iv) greater than or equal to $2,000,000 and less than $5,000,000; and

(v) greater than or equal to $5,000,000 and less than $10,000,000.

(2) SMALLER COVERED LOANS.—Within 30 days after the date of the enactment of this Act, and every 30 days thereafter until the end of the covered period described under section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36)), for covered loans made under such section 7(a)(36) in an amount less than $150,000, the Secretary of the Treasury and the Administrator shall make publicly available the total number of covered loans made and the amount of each covered loan, disaggregated by ZIP Code of each recipient, industry of each recipient, business type of each recipient, and demographic categories of each recipient.

(3) PUBLICATION.—Information provided under paragraphs (1) and (2) shall be made publicly available in a searchable digital format on websites of the Department of the Treasury and the Small Business Administration.

SEC. 612. PROHIBITING CONFLICTS OF INTEREST FOR SMALL BUSINESS PROGRAMS UNDER THE CARES ACT.

Section 4019 of the CARES Act (15 U.S.C. 9054) is amended—

(1) in subsection (a), by adding at the end the following:

''(7) SMALL BUSINESS ASSISTANCE.—The term 'small business assistance' means assistance provided under—

''(A) section 7(a)(36) of the Small Business Act (15 U.S.C. 636(a)(36));

''(B) subsection (b) or (c) of section 1103 of this Act;

''(C) section 1110 of this Act; or

''(D) section 1112 of this Act.'';

(2) in subsection (b)—

(A) by inserting ''or provisions relating to small business assistance'' after ''this subtitle''; and

(B) by inserting ''or for any small business assistance'' before the period at the end; and

(3) in subsection (c)—

(A) by inserting ''or seeking any small business assistance'' after ''section 4003'';

(B) by inserting ''or small business assistance'' after ''that transaction'';

(C) by inserting ''or the Administrator of the Small Business Administration, as applicable,'' after ''Federal Reserve System''; and

(D) by inserting ''or to receive the small business assistance'' after ''in that transaction''.

SEC. 613. INCLUSION OF SCORE AND VETERAN BUSINESS OUTREACH CENTERS IN ENTREPRENEURIAL DEVELOPMENT PROGRAMS.

(a) IN GENERAL.—Section 1103(a)(2) of the CARES Act (15 U.S.C. 9002(a)(2)) is amended—

(1) in subparagraph (A), by striking ''and'' at the end; and

(2) by adding at the end the following new subparagraphs:

''(C) a Veteran Business Outreach Center (as described under section 32(d) of the Small Business Act); and

''(D) the Service Corps of Retired Executives Association, or any successor or other organization, that receives a grant from the Administrator to operate the SCORE program established under section 8(b)(2)(A) of the Small Business Act;''.

(b) FUNDING.—Section 1107(a)(4) of the CARES Act (15 U.S.C. 9006(a)(4)) is amended—

(1) in subparagraph (A)—

(A) by striking ''$240,000,000'' and inserting ''$220,000,000'';

(B) by striking ''and'' at the end; and

(2) by adding at the end the following new subparagraphs:

''(C) $10,000,000 shall be for a Veteran Business Outreach Center described in section 1103(a)(2)(C) of this Act to carry out activities under such section; and

''(D) $10,000,000 shall be for the Service Corps of Retired Executives Association described in section 1103(a)(2)(D) of this Act to carry out activities under such section;''.

SEC. 614. CLARIFICATION OF USE OF CARES ACT FUNDS FOR SMALL BUSINESS DEVELOPMENT CENTERS.

Section 1103(b)(3)(A) of the CARES Act (15 U.S.C. 9002(b)(3)(A)) is amended by adding at the end the following new sentence: ''Funds awarded under this paragraph shall be in addition to any amounts appropriated for grants under section 21(a) of the Small Business Act, and may be used to complement and support those appropriated program grants to assist small business concerns, with prioritization of such concerns affected directly or indirectly by COVID–19 as described in paragraph (2).''.

SEC. 615. FUNDING FOR THE OFFICE OF INSPECTOR GENERAL OF THE SMALL BUSINESS ADMINISTRATION.

Section 1107(a)(3) of the CARES Act (15 U.S.C. 9006(a)(3)) is amended by striking ''September 30, 2024'' and inserting ''expended''.

SEC. 616. EXTENSION OF WAIVER OF MATCHING FUNDS REQUIREMENT UNDER THE WOMEN'S BUSINESS CENTER PROGRAM.

Section 1105 of the CARES Act (15 U.S.C. 9004) is amended by striking ''During the 3-month period beginning on the date of enactment of this Act,'' and inserting ''Until December 31, 2020,''.

SEC. 617. ACCESS TO SMALL BUSINESS ADMINISTRATION INFORMATION AND DATABASES.

Section 19010 of Division B of the CARES Act (Public Law 116–136) is amended by—

(1) redesignating subsection (e) as subsection (f); and

(2) by inserting after subsection (d) the following new subsection:

''(e) SMALL BUSINESS ADMINISTRATION DATABASES.—

''(1) IN GENERAL.—In conducting monitoring and oversight under this section, the Comptroller General, upon notice to the Administrator of the Small Business Administration, shall have direct access to all information collected or produced in connection with the administration of programs or provision of assistance carried out by the Administrator, including direct access to any information technology systems maintained or utilized by the Administrator to collect, process, or analyze documents or information submitted by borrowers, lenders, or others in connection with any such program or provision of assistance. In this subsection, the term 'direct access' means secured access to the information technology systems maintained by the Administrator that would enable the Comptroller General to independently access, view, download, and retrieve data from such systems.

''(2) INFORMATION TECHNOLOGY SYSTEMS.—The Administrator of the Small Business Administration shall appropriately identify and classify any sensitive information contained in an information technology system accessed by the Comptroller General.''.

SEC. 618. SMALL BUSINESS LOCAL RELIEF PROGRAM.

(a) ESTABLISHMENT.—There is established in the Department of the Treasury a Small Business Local Relief Program to allocate resources to States, units of general local government, and Indian Tribes to provide assistance to eligible

entities and organizations that assist eligible entities.

(b) FUNDING.—

(1) FUNDING TO STATES, LOCALITIES, AND INDIAN TRIBES.—

(A) IN GENERAL.—The Secretary of the Treasury shall allocate—

(i) $10,250,000,000 to States and units of general local government in accordance with subparagraph (B)(i);

(ii) $4,250,000,000 to States in accordance with subparagraph (B)(ii); and

(iii) $500,000,000 to the Secretary of Housing and Urban Development for allocations to Indian Tribes in accordance with subparagraph (B)(iii).

(B) ALLOCATIONS.—

(i) FORMULA FOR STATES AND UNITS OF GENERAL LOCAL GOVERNMENT.—Of the amount described under subparagraph (A)(i)—

(I) 70 percent shall be allocated to entitlement communities in accordance with the formula under section 106(b) of the Housing and Community Development Act of 1974 (42 U.S.C. 5306(b)); and

(II) 30 percent shall be allocated to States, for use in nonentitlement areas, in accordance with the formula under section 106(d)(1) of such Act (42 U.S.C. 5306(d)(1)).

(ii) RURAL BONUS FORMULA FOR STATES.—The Secretary shall allocate the amount described under subparagraph (A)(ii) to States, for use in nonentitlement areas, in accordance with the formula under section 106(d)(1) of such Act (42 U.S.C. 5306(d)(1)).

(iii) COMPETITIVE AWARDS TO INDIAN TRIBES.—

(I) IN GENERAL.—The Secretary of Housing and Urban Development shall allocate to Indian Tribes on a competitive basis the amount described under subparagraph (A)(iii).

(II) REQUIREMENTS.—In making allocations under subclause (I), the Secretary of Housing and Urban Development shall, to the greatest extent practicable, ensure that each Indian Tribe that satisfies requirements established by the Secretary of Housing and Urban Development receives such an allocation.

(C) STATE ALLOCATIONS FOR NONENTITLEMENT AREAS.—

(i) EQUITABLE ALLOCATION.—To the greatest extent practicable, a State shall allocate amounts for nonentitlement areas under clauses (i)(II) and (ii) of subparagraph (B) on an equitable basis.

(ii) DISTRIBUTION OF AMOUNTS.—

(I) DISCRETION.—Not later than 14 days after the date on which a State receives amounts for use in a nonentitlement area under clause (i)(II) or (ii) of subparagraph (B), the State shall—

(aa) distribute the amounts, or a portion thereof, to a unit of general local government located in the nonentitlement area or an entity designated thereby, that has established or will establish a small business emergency fund, for use under paragraph (2); or

(bb) elect to reserve the amounts, or a portion thereof, for use by the State under paragraph (2) for the benefit of eligible entities located in the nonentitlement area.

(II) SENSE OF CONGRESS.—It is the sense of Congress that, in distributing amounts under subclause (I), in the case of amounts allocated for a nonentitlement area in which a unit of general local government or an entity designated thereby has established a small business emergency fund, a State should, as quickly as is practicable, distribute amounts to that unit of general local government or entity, respectively, as described in item (aa) of such subclause.

(iii) TREATMENT OF STATES NOT ACTING AS PASS-THROUGH AGENTS UNDER CDBG.—The Secretary shall allocate amounts to a State under this paragraph without regard to whether the State has elected to distribute amounts allocated under section 106(d)(1) of the Housing and Community Development Act of 1974 (42 U.S.C. 5306(d)(1)).

(2) USE OF FUNDS.—

(A) IN GENERAL.—A State, unit of general local government, or Indian Tribe that receives an allocation under paragraph (1), or an entity designated by a unit of general local government under paragraph (1)(C)(ii)(I)(aa), whether directly or indirectly, may use such allocation, not later than 60 days after receipt of such allocation—

(i) to provide funding to a small business emergency fund established by that State (or entity designated thereby), that unit of general local government (or entity designated thereby), that entity designated by a unit of general local government, or that Indian Tribe (or entity designated thereby), respectively;

(ii) to provide funding to support organizations that provide technical assistance to eligible entities; or

(iii) subject to subparagraph (B), to pay for administrative costs incurred by that State (or entity designated thereby), that unit of general local government (or entity designated thereby), that entity designated by a unit of general local government, or that Indian Tribe (or entity designated thereby), respectively, in establishing and administering a small business emergency fund.

(B) LIMITATION.—A State, unit of general local government, or Indian Tribe, or an entity designated by a unit of general local government under paragraph (1)(C)(ii)(I)(aa), may not use more than 3 percent of an allocation received under paragraph (1) for a purpose described in subparagraph (A)(iii) of this paragraph.

(C) OBLIGATION DEADLINES.—

(i) STATES.—Of the amounts that a State elects under paragraph (1)(C)(ii)(I)(bb) to reserve for use by the State under this paragraph—

(I) any amounts that the State provides to a small business emergency fund under subparagraph (A)(i) of this paragraph shall be obligated by the small business emergency fund for expenditure not later than 74 days after the date on which the State received the amounts from the Secretary under clause (i) or (ii) of paragraph (1)(A); and

(II) any amounts that the State chooses to provide to an organization under subparagraph (A)(ii) of this paragraph, or to use to pay for administrative costs under subparagraph (A)(iii) of this paragraph, shall be obligated by the State for expenditure not later than 74 days after the date on which the State received the amounts from the Secretary under clause (i) or (ii) of paragraph (1)(A).

(ii) ENTITLEMENT COMMUNITIES.—Of the amounts that an entitlement community receives from the Secretary under paragraph (1)(B)(i)(I)—

(I) any amounts that the entitlement community provides to a small business emergency fund under subparagraph (A)(i) of this paragraph shall be obligated by the small business emergency fund for expenditure not later than 74 days after the date on which the entitlement community received the amounts; and

(II) any amounts that the entitlement community chooses to provide to an organization under subparagraph (A)(ii) of this paragraph, or to use to pay for administrative costs under subparagraph (A)(iii) of this paragraph, shall be obligated by the entitlement community for expenditure not later than 74 days after the date on which the entitlement community received the amounts.

(iii) NONENTITLEMENT COMMUNITIES.—Of the amounts that a unit of general local government, or an entity designated thereby, located in a nonentitlement area receives from a State under paragraph (1)(C)(ii)(I)(aa)—

(I) any amounts that the unit of general local government or entity provides to a small business emergency fund under subparagraph (A)(i) of this paragraph shall be obligated by the small business emergency fund for expenditure not later than 60 days after the date on which the unit of general local government or entity received the amounts; and

(II) any amounts that the unit of general local government or entity chooses to provide to a support organization under subparagraph (A)(ii) of this paragraph or to use to pay for administrative costs under subparagraph (A)(iii) of this paragraph shall be obligated by the unit of general local government or entity for expenditure not later than 60 days after the date on which the unit of general local government or entity received the amounts.

(D) RECOVERY OF UNOBLIGATED FUNDS.—If a State, entitlement community, other unit of general local government, entity designated by a unit of general local government under paragraph (1)(C)(ii)(I)(aa), or small business emergency fund fails to obligate amounts by the applicable deadline under subparagraph (C), the Secretary shall recover the amount of those amounts that remain unobligated, as of that deadline.

(E) COLLABORATION.—It is the sense of Congress that—

(i) an entitlement community that receives amounts allocated under paragraph (1)(B)(i)(I) should collaborate with the applicable local entity responsible for economic development and small business development in establishing and administering a small business emergency fund; and

(ii) States, units of general local government, and Indian Tribes that receive amounts under paragraph (1) and are located in the same region should collaborate in establishing and administering one or more small business emergency funds.

(c) SMALL BUSINESS EMERGENCY FUNDS.—With respect to a small business emergency fund that receives funds from an allocation made under subsection (b)—

(1) if the small business emergency fund makes a loan to an eligible entity with those funds, the small business emergency fund may use amounts returned to the small business emergency fund from the repayment of the loan to provide further assistance to eligible entities without regard to the termination date described in subsection (g); and

(2) the small business emergency fund shall conduct outreach to eligible entities that are less likely to participate in programs established under the CARES Act (Public Law 116–136; 134 Stat. 281) and the amendments made by that Act, including minority-owned entities, businesses in low-income communities, businesses in rural and Tribal areas, and other businesses that are underserved by the traditional banking system.

(d) INFORMATION GATHERING.—

(1) IN GENERAL.—When providing assistance to an eligible entity with funds received from an allocation made under subsection (b), the State, unit of general local government, or Indian Tribe, or the entity designated by a State, unit of general local government, or Indian Tribe, that provides assistance through a small business emergency fund shall—

(A) inquire whether the eligible entity is—

(i) in the case of an eligible entity that is a business entity or a nonprofit organization, a women-owned entity or a minority-owned entity; and

(ii) in the case of an eligible entity who is an individual, a woman or a minority; and

(B) maintain a record of the responses to each inquiry conducted under subparagraph (A), which the entity shall promptly submit to the applicable State, unit of general local government, or Indian Tribe.

(2) RIGHT TO REFUSE.—An eligible entity may refuse to provide any information requested under paragraph (1)(A).

(e) REPORTING.—

(1) IN GENERAL.—Not later than 30 days after the date on which a State, unit of general local government, or Indian Tribe initially receives an allocation made under subsection (b), and not

later than 14 days after the date on which that State, unit of local government, or Indian Tribe completes the full expenditure of that allocation, that State, unit of general local government, or Indian Tribe shall submit to the Secretary a report that includes—

(A) the number of recipients of assistance made available from the allocation;

(B) the total amount, and type, of assistance made available from the allocation;

(C) to the extent applicable, with respect to each recipient described in subparagraph (A), information regarding the industry of the recipient, the amount of assistance received by the recipient, the annual sales of the recipient, and the number of employees of the recipient;

(D) to the extent available from information collected under subsection (d), information regarding the number of recipients described in subparagraph (A) that are minority-owned entities, minorities, women, and women-owned entities;

(E) the ZIP Code of each recipient described in subparagraph (A); and

(F) any other information that the Secretary, in the sole discretion of the Secretary, determines to be necessary to carry out the Program.

(2) PUBLIC AVAILABILITY.—As soon as is practicable after receiving each report submitted under paragraph (1), the Secretary shall make all information contained in the report publicly available.

(f) RULES AND GUIDANCE.—The Secretary, in consultation with the Administrator, shall issue any rules and guidance that are necessary to carry out the Program, including by establishing appropriate compliance and reporting requirements in addition to the reporting requirements under subsection (e).

(g) TERMINATION.—The Program, and any rules and guidance issued under subsection (f) with respect to the Program, shall terminate on the date that is 1 year after the date of enactment of this Act.

(h) DEFINITIONS.—In this section:

(1) ADMINISTRATOR.—The term ''Administrator'' means the Administrator of the Small Business Administration.

(2) ELIGIBLE ENTITY.—The term ''eligible entity''—

(A) means a business concern or a nonprofit organization (as defined in section 7(a)(36)(A)(vii) that—

(i) employs—

(I) not more than 20 full-time equivalent employees; or

(II) if the entity or organization is located in a low-income community, not more than 50 full-time equivalent employees;

(ii) has experienced a loss of revenue as a result of the COVID–19 pandemic, according to criteria established by the Secretary; and

(iii) with respect to such an entity or organization that receives assistance from a small business emergency fund, satisfies additional requirements, as determined by the State, unit of general local government, Indian Tribe, or other entity that has established the small business emergency fund; and

(B) includes an individual who operates under a sole proprietorship, an individual who operates as an independent contractor, and an eligible self-employed individual if such an individual has experienced a loss of revenue as a result of the COVID–19 pandemic, according to criteria established by the Secretary.

(3) ELIGIBLE SELF-EMPLOYED INDIVIDUAL.—The term ''eligible self-employed individual'' has the meaning given the term in section 7(a)(36)(A) of the Small Business Act (15 U.S.C. 636(a)(36)(A)).

(4) ENTITLEMENT COMMUNITY.—The term ''entitlement community'' means a metropolitan city or urban county, as those terms are defined in section 102 of the Housing and Community Development Act of 1974 (42 U.S.C. 5302).

(5) FULL-TIME EQUIVALENT EMPLOYEES.—

(A) IN GENERAL.—The term ''full-time equivalent employees'' means a number of employees equal to the number determined by dividing—

(i) the total number of hours of service for which wages were paid by the employer to employees during the taxable year, by

(ii) 2,080.

(B) ROUNDING.—The number determined under subparagraph (A) shall be rounded to the next lowest whole number if not otherwise a whole number.

(C) EXCESS HOURS NOT COUNTED.—If an employee works in excess of 2,080 hours of service during any taxable year, such excess shall not be taken into account under subparagraph (A).

(D) HOURS OF SERVICE.—The Secretary, in consultation with the Secretary of Labor, shall prescribe such regulations, rules, and guidance as may be necessary to determine the hours of service of an employee, including rules for the application of this paragraph to employees who are not compensated on an hourly basis.

(6) INDIAN TRIBE.—The term ''Indian Tribe'' has the meaning given the term ''Indian tribe'' in section 102 of the Housing and Community Development Act of 1974 (42 U.S.C. 5302).

(7) LOW-INCOME COMMUNITY.—The term ''low-income community'' has the meaning given the term in section 45D(e) of the Internal Revenue Code of 1986.

(8) MINORITY.—The term ''minority'' has the meaning given the term in section 1204(c)(3) of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 (12 U.S.C. 1811 note).

(9) MINORITY-OWNED ENTITY.—The term ''minority-owned entity'' means an entity—

(A) more than 50 percent of the ownership or control of which is held by not less than 1 minority; and

(B) more than 50 percent of the net profit or loss of which accrues to not less than 1 minority.

(10) NONENTITLEMENT AREA; STATE; UNIT OF GENERAL LOCAL GOVERNMENT.—

(A) IN GENERAL.—Except as provided in subparagraph (B), the terms ''nonentitlement area'', ''State'', and ''unit of general local government'' have the meanings given those terms in section 102 of the Housing and Community Development Act of 1974 (42 U.S.C. 5302).

(B) STATE.—For purposes of subparagraphs (A)(ii) and (B)(ii) of subsection (b)(1), the term ''State'' means any State of the United States.

(11) PROGRAM.—The term ''Program'' means the Small Business Local Relief Program established under this section.

(12) SECRETARY.—The term ''Secretary'' means the Secretary of the Treasury.

(13) SMALL BUSINESS EMERGENCY FUND.—The term ''small business emergency fund'' means a fund or program—

(A) established by a State, a unit of general local government, an Indian Tribe, or an entity designated by a State, unit of general local government, or Indian Tribe; and

(B) that provides or administers financing to eligible entities in the form of grants, loans, or other means in accordance with the needs of eligible entities and the capacity of the fund or program.

(14) WOMEN-OWNED ENTITY.—The term ''women-owned entity'' means an entity—

(A) more than 50 percent of the ownership or control of which is held by not less than 1 woman; and

(B) more than 50 percent of the net profit or loss of which accrues to not less than 1 woman.

SEC. 619. GRANTS FOR INDEPENDENT LIVE VENUE OPERATORS.

(a) DEFINITIONS.—In this section:

(1) ADMINISTRATOR.—The term ''Administrator'' means the Administrator of the Small Business Administration.

(2) ELIGIBLE OPERATOR, PROMOTER, PRODUCER, OR TALENT REPRESENTATIVE.—

(A) IN GENERAL.—The term ''eligible operator, promoter, producer, or talent representative'' means a live venue operator or producer or promoter or a talent representative that meets the following requirements:

(i) The live venue operator or producer or promoter or the talent representative was fully operational as a live venue operator or producer or promoter or talent representative on February 29, 2020.

(ii) As of the date of the grant under this section—

(I) the live venue operator or producer or promoter is organizing, promoting, producing, managing, or hosting future events described in paragraph (4)(A)(i); or

(II) the talent representative is representing or managing artists and entertainers.

(iii) The venues at which the live venue operator or producer or promoter promotes, produces, manages, or hosts events described in paragraph (4)(A)(i) or the artists and entertainers represented or managed by the talent representative perform have the following characteristics:

(I) A defined performance and audience space.

(II) Mixing equipment, a public address system, and a lighting rig.

(III) Engages 1 or more individuals to carry out not less than 2 of the following roles:

(aa) A sound engineer.

(bb) A booker.

(cc) A promoter.

(dd) A stage manager.

(ee) Security personnel.

(ff) A box office manager.

(IV) There is a paid ticket or cover charge to attend most performances and artists are paid fairly and do not play for free or solely for tips, except for legitimate fundraisers or similar charitable events.

(V) For a venue owned or operated by a nonprofit entity that produces free events, the events are produced and managed by paid employees, not by volunteers.

(VI) Performances are marketed through listings in printed or electronic publications, on websites, by mass email, or on social media.

(iv) The live venue operator or producer or promoter or the talent representative does not have, or is not majority owned or controlled by an entity with, more than 1 of the following characteristics:

(I) Being an issuer, the securities of which are listed on a national securities exchange.

(II) Owning or operating venues or talent agencies or talent management companies with offices in more than 1 country.

(III) Owning or operating venues in more than 10 States.

(IV) Employing more than 500 employees, determined on a full-time equivalent basis in accordance with subparagraph (B).

(V) Receiving more than 10 percent of gross revenue from Federal funding.

(B) CALCULATION OF FULL-TIME EMPLOYEES.—For purposes of determining the number of full-time equivalent employees under subparagraph (A)(iv)(IV)—

(i) any employee working not fewer than 30 hours per week shall be considered a full-time employee; and

(ii) any employee working not fewer than 10 hours and fewer than 30 hours per week shall be counted as one-half of a full-time employee.

(3) EXCHANGE; ISSUER; SECURITY.—The terms ''exchange'', ''issuer'', and ''security'' have the meanings given such terms in section 3(a) of the Securities Exchange Act of 1934 (15 U.S.C. 78c(a)).

(4) LIVE VENUE OPERATOR OR PRODUCER OR PROMOTER.—The term ''live venue operator or producer or promoter''—

(A) means—

(i) an individual or entity—

(I) that organizes, promotes, sells tickets, produces, manages, or hosts live concerts, comedy shows, theatrical productions, or other events by performing artists and applies cover charge through ticketing or front door entrance fee; and

(II) not less than 70 percent of the revenue of which is generated through cover charges or

ticket sales and the sale of beverages, food, or merchandise during such live events; or

(ii) as a principle business activity, makes tickets to events described in clause (i)(I) available for purchase by the public an average of not less than 60 days before the date of the event and pays performers in an event described in clause (i)(I) in an amount that is based on a percentage of sales, guarantee (in writing or standard contract), or another mutually beneficial formal agreement; and

(B) includes an individual or entity described in subparagraph (A) that—

(i) operates for profit or as a nonprofit;

(ii) is government-owned; or

(iii) is a corporation, limited liability company, or partnership or operated as a sole proprietorship.

(5) NATIONAL SECURITIES EXCHANGE.—The term ''national securities exchange'' means an exchange registered as a national securities exchange under section 6 of the Securities Exchange Act of 1934 (15 U.S.C. 78f).

(6) STATE.—The term ''State'' means—

(A) a State;

(B) the District of Columbia;

(C) the Commonwealth of Puerto Rico; and

(D) any other territory or possession of the United States.

(7) TALENT REPRESENTATIVE.—The term ''talent representative''—

(A) means an agent or manager that—

(i) as not less than 70 percent of the operations of the agent or manager, is engaged in representing or managing artists and entertainers;

(ii) books musicians, comedians, actors, or similar performing artists primarily in independent venues or at festivals; and

(iii) represents performers described in clause (ii) that are paid in an amount that is based on the number of tickets sold, or a similar basis; and

(B) includes an agent or manager described in subparagraph (A) that—

(i) operates for profit or as a nonprofit;

(ii) is government-owned; or

(iii) is a corporation, limited liability company, or partnership or operated as a sole proprietorship.

(b) AUTHORITY.—

(1) INITIAL GRANTS.—The Administrator may make initial grants to eligible operators, promoters, and talent representatives in accordance with this section.

(2) SUPPLEMENTAL GRANTS.—The Administrator may make a supplemental grant in accordance with this section to an eligible operator, promoter, producer, or talent representative that receives a grant under paragraph (1) if, as of December 1, 2020, the revenues of the eligible operator, promoter, producer, or talent representative for the most recent calendar quarter are not more than 20 percent of the revenues of the eligible operator, promoter, producer, or talent representative for the corresponding calendar quarter during 2019 due to the COVID–19 pandemic.

(3) CERTIFICATION.—An eligible operator, promoter, producer, or talent representative applying for a grant under this section that is an eligible business described in the matter preceding subclause (I) of section 4003(c)(3)(D)(i) of the CARES Act (15 U.S.C. 9042(c)(3)(D)(i)), shall make a good-faith certification described in subclauses (IX) and (X) of such section.

(c) AMOUNT.—

(1) INITIAL GRANTS.—A grant under subsection (b)(1) shall be in the amount equal to the lesser of—

(A) the amount equal to 45 percent of the gross revenue of the eligible operator, promoter, producer, or talent representative during 2019;

(B) for an eligible operator, promoter, producer, or talent representative that began operations after January 1, 2019, the amount equal to the product obtained by multiplying—

(i) the average monthly gross revenue for each full month during which the entity was in operation during 2019, by

(ii) 6; or

(C) $12,000,000.

(2) SUPPLEMENTAL GRANTS.—A grant under subsection (b)(2) shall be in the amount equal to 50 percent of the grant received by the eligible operator, promoter, producer, or talent representative under subsection (b)(1).

(d) USE OF FUNDS.—

(1) TIMING.—

(A) EXPENSES INCURRED.—

(i) IN GENERAL.—Except as provided in clause (ii), amounts received under a grant under this section may be used for costs incurred during the period beginning on March 1, 2020, and ending on December 31, 2021.

(ii) EXTENSION FOR SUPPLEMENTAL GRANTS.—If an eligible operator, promoter, producer, or talent representative receives a grant under subsection (b)(2), amounts received under either grant under this section may be used for costs incurred during the period beginning on March 1, 2020, and ending on June 30, 2022.

(B) EXPENDITURE.—

(i) IN GENERAL.—Except as provided in clause (ii), an eligible operator, promoter, producer, or talent representative shall return to the Administrator any amounts received under a grant under this section that are not expended on or before the date that is 1 year after the date of disbursement of the grant.

(ii) EXTENSION FOR SUPPLEMENTAL GRANTS.—If an eligible operator, promoter, producer, or talent representative receives a grant under subsection (b)(2), the eligible operator, promoter, producer, or talent representative shall return to the Administrator any amounts received under either grant under this section that are not expended on or before the date that is 18 months after the date of disbursement to the eligible operator, promoter, producer, or talent representative of the grant under subsection (b)(1).

(2) ALLOWABLE EXPENSES.—An eligible operator, promoter, producer, or talent representative may use amounts received under a grant under this section for—

(A) payroll costs for employees and furloughed employees, including—

(i) costs for continuation coverage provided pursuant to part 6 of subtitle B of title I of the Employee Retirement Income Security Act of 1974 (other than under section 609 of such Act), title XXII of the Public Health Service Act, section 4980B of the Internal Revenue Code of 1986 (other than subsection (f)(1) of such section insofar as it relates to pediatric vaccines), or section 8905a of title 5, United States Code, or under a State program that provides comparable continuation coverage, other than coverage under a health flexible spending arrangement under a cafeteria plan within the meaning of section 125 of the Internal Revenue Code of 1986; or

(ii) any other non-cash benefit;

(B) rent;

(C) utilities;

(D) mortgage interest payments on existing mortgages as of February 15, 2020;

(E) scheduled interest payments on other scheduled debt as of February 15, 2020;

(F) costs related to personal protective equipment;

(G) payments of principal on outstanding loans;

(H) payments made to independent contractors, as reported on Form–1099 MISC; and

(I) other ordinary and necessary business expenses, including—

(i) settling existing debts owed to vendors;

(ii) maintenance expenses;

(iii) administrative costs;

(iv) taxes;

(v) operating leases;

(vi) insurance;

(vii) advertising, production transportation, and capital expenditures related to producing a theatrical production, concert, or comedy show; and

(viii) any other capital expenditure or expense required under any State, local, or Federal law or guideline related to social distancing.

(3) PROHIBITED EXPENSES.—An eligible operator, promoter, producer, or talent representative may not use amounts received under a grant under this section—

(A) to purchase real estate;

(B) for payments of interest or principal on loans originated after February 15, 2020;

(C) to invest or re-lend funds;

(D) for contributions or expenditures to, or on behalf of, any political party, party committee, or candidate for elective office; or

(E) for any other use as may be prohibited by the Administrator.

DIVISION F—REVENUE PROVISIONS

SEC. 100. SHORT TITLE, ETC.

(a) SHORT TITLE.—This division may be cited as the ''COVID–19 Tax Relief Act of 2020''.

(b) TABLE OF CONTENTS.—The table of contents for this division is as follows:

Sec. 100. Short title, etc.

TITLE I—ECONOMIC STIMULUS

Subtitle A—Additional Recovery Rebates to Individuals

Sec. 101. Additional recovery rebates to individuals.

Subtitle B—Earned Income Tax Credit

Sec. 111. Strengthening the earned income tax credit for individuals with no qualifying children.

Sec. 112. Taxpayer eligible for childless earned income credit in case of qualifying children who fail to meet certain identification requirements.

Sec. 113. Credit allowed in case of certain separated spouses.

Sec. 114. Elimination of disqualified investment income test.

Sec. 115. Application of earned income tax credit in possessions of the United States.

Sec. 116. Temporary special rule for determining earned income for purposes of earned income tax credit.

Subtitle C—Child Tax Credit

Sec. 121. Child tax credit improvements for 2020.

Sec. 122. Application of child tax credit in possessions.

Subtitle D—Dependent Care Assistance

Sec. 131. Refundability and enhancement of child and dependent care tax credit.

Sec. 132. Increase in exclusion for employer-provided dependent care assistance.

Subtitle E—Credits for Paid Sick and Family Leave

Sec. 141. Extension of credits.

Sec. 142. Repeal of reduced rate of credit for certain leave.

Sec. 143. Increase in limitations on credits for paid family leave.

Sec. 144. Election to use prior year net earnings from self-employment in determining average daily self-employment income.

Sec. 145. Federal, State, and local governments allowed tax credits for paid sick and paid family and medical leave.

Sec. 146. Certain technical improvements.

Sec. 147. Credits not allowed to certain large employers.

Subtitle F—Deduction of State and Local Taxes

Sec. 151. Elimination for 2020 limitation on deduction of State and local taxes.

TITLE II—PROVISIONS TO PREVENT BUSINESS INTERRUPTION

Sec. 201. Improvements to employee retention and rehiring credit.

Sec. 202. Certain loan forgiveness and other business financial assistance under CARES Act not includible in gross income.

Sec. 203. Clarification of treatment of expenses paid or incurred with proceeds from certain grants and loans.

TITLE III—NET OPERATING LOSSES

Sec. 301. Limitation on excess business losses of non-corporate taxpayers restored and made permanent.

Sec. 302. Certain taxpayers allowed carryback of net operating losses arising in 2019 and 2020.

TITLE I—ECONOMIC STIMULUS

Subtitle A—Additional Recovery Rebates to Individuals

SEC. 101. ADDITIONAL RECOVERY REBATES TO INDIVIDUALS.

(a) IN GENERAL.—Subchapter B of chapter 65 of the Internal Revenue Code of 1986 is amended by inserting after section 6428 the following new section:

''SEC. 6428A. ADDITIONAL RECOVERY REBATES TO INDIVIDUALS.

''(a) IN GENERAL.—In the case of an eligible individual, there shall be allowed as a credit against the tax imposed by subtitle A for the first taxable year beginning in 2020 an amount equal to the additional rebate amount determined for such taxable year.

''(b) ADDITIONAL REBATE AMOUNT.—For purposes of this section, the term 'additional rebate amount' means, with respect to any taxpayer for any taxable year, the sum of—

''(1) $1,200 ($2,400 in the case of a joint return), plus

''(2) $500 multiplied by the number of dependents of the taxpayer for such taxable year.

''(c) ELIGIBLE INDIVIDUAL.—For purposes of this section, the term 'eligible individual' means any individual other than—

''(1) any nonresident alien individual,

''(2) any individual with respect to whom a deduction under section 151 is allowable to another taxpayer for a taxable year beginning in the calendar year in which the individual's taxable year begins, and

''(3) an estate or trust.

''(d) LIMITATION BASED ON MODIFIED ADJUSTED GROSS INCOME.—The amount of the credit allowed by subsection (a) (determined without regard to this subsection and subsection (f)) shall be reduced (but not below zero) by 5 percent of so much of the taxpayer's modified adjusted gross income as exceeds—

''(1) $150,000 in the case of a joint return or a surviving spouse (as defined in section 2(a)),

''(2) $112,500 in the case of a head of household (as defined in section 2(b)), and

''(3) $75,000 in any other case.

''(e) DEFINITIONS AND SPECIAL RULES.—

''(1) MODIFIED ADJUSTED GROSS INCOME.—For purposes of this subsection (other than this paragraph), the term 'modified adjusted gross income' means adjusted gross income determined without regard to sections 911, 931, and 933.

''(2) DEPENDENT DEFINED.—For purposes of this section, the term 'dependent' has the meaning given such term by section 152.

''(3) CREDIT TREATED AS REFUNDABLE.—The credit allowed by subsection (a) shall be treated as allowed by subpart C of part IV of subchapter A of chapter 1.

''(4) IDENTIFICATION NUMBER REQUIREMENT.—

''(A) IN GENERAL.—The $1,200 amount in subsection (b)(1) shall be treated as being zero unless the taxpayer includes the TIN of the taxpayer on the return of tax for the taxable year.

''(B) JOINT RETURNS.—In the case of a joint return, the $2,400 amount in subsection (b)(1) shall be treated as being—

''(i) zero if the TIN of neither spouse is included on the return of tax for the taxable year, and

''(ii) $1,200 if the TIN of only one spouse is so included.

''(C) DEPENDENTS.—A dependent shall not be taken into account under subsection (b)(2) unless the TIN of such dependent is included on the return of tax for the taxable year.

''(D) COORDINATION WITH CERTAIN ADVANCE PAYMENTS.—In the case of any payment made pursuant to subsection (g)(5)(A)(ii), a TIN shall be treated for purposes of this paragraph as included on the taxpayer's return of tax if such TIN is provided pursuant to such subsection.

''(f) COORDINATION WITH ADVANCE REFUNDS OF CREDIT.—

''(1) REDUCTION OF REFUNDABLE CREDIT.—The amount of the credit which would (but for this paragraph) be allowable under subsection (a) shall be reduced (but not below zero) by the aggregate refunds and credits made or allowed to the taxpayer (or any dependent of the taxpayer) under subsection (g). Any failure to so reduce the credit shall be treated as arising out of a mathematical or clerical error and assessed according to section 6213(b)(1).

''(2) JOINT RETURNS.—In the case of a refund or credit made or allowed under subsection (g) with respect to a joint return, half of such refund or credit shall be treated as having been made or allowed to each individual filing such return.

''(g) ADVANCE REFUNDS AND CREDITS.—

''(1) IN GENERAL.—Subject to paragraph (5), each individual who was an eligible individual for such individual's first taxable year beginning in 2019 shall be treated as having made a payment against the tax imposed by chapter 1 for such taxable year in an amount equal to the advance refund amount for such taxable year.

''(2) ADVANCE REFUND AMOUNT.—For purposes of paragraph (1), the advance refund amount is the amount that would have been allowed as a credit under this section for such taxable year if this section (other than subsection (f) and this subsection) had applied to such taxable year.

''(3) TIMING AND MANNER OF PAYMENTS.—

''(A) TIMING.—The Secretary shall, subject to the provisions of this title, refund or credit any overpayment attributable to this section as rapidly as possible. No refund or credit shall be made or allowed under this subsection after December 31, 2020.

''(B) DELIVERY OF PAYMENTS.—Notwithstanding any other provision of law, the Secretary may certify and disburse refunds payable under this subsection electronically to any account to which the payee authorized, on or after January 1, 2018, the delivery of a refund of taxes under this title or of a Federal payment (as defined in section 3332 of title 31, United States Code).

''(C) WAIVER OF CERTAIN RULES.—Notwithstanding section 3325 of title 31, United States Code, or any other provision of law, with respect to any payment of a refund under this subsection, a disbursing official in the executive branch of the United States Government may modify payment information received from an officer or employee described in section 3325(a)(1)(B) of such title for the purpose of facilitating the accurate and efficient delivery of such payment. Except in cases of fraud or reckless neglect, no liability under sections 3325, 3527, 3528, or 3529 of title 31, United States Code, shall be imposed with respect to payments made under this subparagraph.

''(4) NO INTEREST.—No interest shall be allowed on any overpayment attributable to this section.

''(5) APPLICATION TO INDIVIDUALS WHO DO NOT FILE A RETURN OF TAX FOR 2019.—

''(A) IN GENERAL.—In the case of an individual who, at the time of any determination made pursuant to paragraph (3), has not filed a tax return for the year described in paragraph (1), the Secretary shall—

''(i) apply paragraph (1) by substituting '2018' for '2019', and

''(ii) in the case of a specified individual who has not filed a tax return for such individual's first taxable year beginning in 2018, determine the advance refund amount with respect to such individual without regard to subsections (d) and on the basis of information with respect to such individual which is provided by—

''(I) in the case of a specified social security beneficiary or a specified supplemental security income recipient, the Commissioner of Social Security,

''(II) in the case of a specified railroad retirement beneficiary, the Railroad Retirement Board, and

''(III) in the case of a specified veterans beneficiary, the Secretary of Veterans Affairs (in coordination with, and with the assistance of, the Commissioner of Social Security if appropriate).

''(B) SPECIFIED INDIVIDUAL.—For purposes of this paragraph, the term 'specified individual' means any individual who is—

''(i) a specified social security beneficiary,

''(ii) a specified supplemental security income recipient,

''(iii) a specified railroad retirement beneficiary, or

''(iv) a specified veterans beneficiary.

''(C) SPECIFIED SOCIAL SECURITY BENEFICIARY.—For purposes of this paragraph—

''(i) IN GENERAL.—The term 'specified social security beneficiary' means any individual who, for the last month that ends prior to the date of enactment of this section, is entitled to any monthly insurance benefit payable under title II of the Social Security Act (42 U.S.C. 401 et seq.), including payments made pursuant to sections 202(d), 223(g), and 223(i)(7) of such Act.

''(ii) EXCEPTION.—Such term shall not include any individual if such benefit is not payable for such month by reason of section 202(x) of the Social Security Act (42 U.S.C. 402(x)) or section 1129A of such Act (42 U.S.C. 1320a–8a).

''(D) SPECIFIED SUPPLEMENTAL SECURITY INCOME RECIPIENT.—For purposes of this paragraph—

''(i) IN GENERAL.—The term 'specified supplemental security income recipient' means any individual who, for the last month that ends prior to the date of enactment of this section, is eligible for a monthly benefit payable under title XVI of the Social Security Act (42 U.S.C. 1381 et seq.) (other than a benefit to an individual described in section 1611(e)(1)(B) of such Act (42 U.S.C. 1382(e)(1)(B)), including—

''(I) payments made pursuant to section 1614(a)(3)(C) of such Act (42 U.S.C. 1382c(a)(3)(C)),

''(II) payments made pursuant to section 1619(a) (42 U.S.C. 1382h) or subsections (a)(4), (a)(7), or (p)(7) of section 1631 (42 U.S.C. 1383) of such Act, and

''(III) State supplementary payments of the type referred to in section 1616(a) of such Act (42 U.S.C. 1382e(a)) (or payments of the type described in section 212(a) of Public Law 93–66) which are paid by the Commissioner under an agreement referred to in such section 1616(a) (or section 212(a) of Public Law 93–66).

''(ii) EXCEPTION.—Such term shall not include any individual if such monthly benefit is not payable for such month by reason of subsection (e)(1)(A) or (e)(4) of section 1611 (42 U.S.C. 1382) or section 1129A of such Act (42 U.S.C. 1320a–8a).

''(E) SPECIFIED RAILROAD RETIREMENT BENEFICIARY.—For purposes of this paragraph, the term 'specified railroad retirement beneficiary' means any individual who, for the last month that ends prior to the date of enactment of this section, is entitled to a monthly annuity or pension payment payable (without regard to section 5(a)(ii) of the Railroad Retirement Act of 1974 (45 U.S.C. 231d(a)(ii))) under—

''(i) section 2(a)(1) of such Act (45 U.S.C. 231a(a)(1)),

''(ii) section 2(c) of such Act (45 U.S.C. 231a(c)),

''(iii) section 2(d)(1) of such Act (45 U.S.C. 231a(d)(1)), or

''(iv) section 7(b)(2) of such Act (45 U.S.C. 231f(b)(2)) with respect to any of the benefit payments described in subparagraph (C)(i).

''(F) SPECIFIED VETERANS BENEFICIARY.—For purposes of this paragraph—

''(i) IN GENERAL.—The term 'specified veterans beneficiary' means any individual who, for the

last month that ends prior to the date of enactment of this section, is entitled to a compensation or pension payment payable under—

''(I) section 1110, 1117, 1121, 1131, 1141, or 1151 of title 38, United States Code,

''(II) section 1310, 1312, 1313, 1315, 1316, or 1318 of title 38, United States Code,

''(III) section 1513, 1521, 1533, 1536, 1537, 1541, 1542, or 1562 of title 38, United States Code, or

''(IV) section 1805, 1815, or 1821 of title 38, United States Code,

to a veteran, surviving spouse, child, or parent as described in paragraph (2), (3), (4)(A)(ii), or (5) of section 101, title 38, United States Code.

''(ii) EXCEPTION.—Such term shall not include any individual if such compensation or pension payment is not payable, or was reduced, for such month by reason of section 1505, 5313, or 5313B of title 38, United States Code.

''(G) SUBSEQUENT DETERMINATIONS AND REDETERMINATIONS NOT TAKEN INTO ACCOUNT.—For purposes of this section, any individual's status as a specified social security beneficiary, a specified supplemental security income recipient, a specified railroad retirement beneficiary, or a specified veterans beneficiary shall be unaffected by any determination or redetermination of any entitlement to, or eligibility for, any benefit, payment, or compensation, if such determination or redetermination occurs after the last month that ends prior to the date of enactment of this section.

''(H) PAYMENT TO REPRESENTATIVE PAYEES AND FIDUCIARIES.—

''(i) IN GENERAL.—If the benefit, payment, or compensation referred to in subparagraph (C)(i), (D)(i), (E), or (F)(i) with respect to any specified individual is paid to a representative payee or fiduciary, payment by the Secretary under paragraph (3) with respect to such specified individual shall be made to such individual's representative payee or fiduciary and the entire payment shall be used only for the benefit of the individual who is entitled to the payment.

''(ii) APPLICATION OF ENFORCEMENT PROVISIONS.—

''(I) In the case of a payment described in clause (i) which is made with respect to a specified social security beneficiary or a specified supplemental security income recipient, section 1129(a)(3) of the Social Security Act (42 U.S.C. 1320a–8(a)(3)) shall apply to such payment in the same manner as such section applies to a payment under title II or XVI of such Act.

''(II) In the case of a payment described in clause (i) which is made with respect to a specified railroad retirement beneficiary, section 13 of the Railroad Retirement Act (45 U.S.C. 231l) shall apply to such payment in the same manner as such section applies to a payment under such Act.

''(III) In the case of a payment described in clause (i) which is made with respect to a specified veterans beneficiary, sections 5502, 6106, and 6108 of title 38, United States Code, shall apply to such payment in the same manner as such sections apply to a payment under such title.

''(6) NOTICE TO TAXPAYER.—Not later than 15 days after the date on which the Secretary distributed any payment to an eligible taxpayer pursuant to this subsection, notice shall be sent by mail to such taxpayer's last known address. Such notice shall indicate the method by which such payment was made, the amount of such payment, and a phone number for the appropriate point of contact at the Internal Revenue Service to report any error with respect to such payment.

''(h) REGULATIONS.—The Secretary shall prescribe such regulations or other guidance as may be necessary or appropriate to carry out the purposes of this section, including—

''(1) regulations or other guidance providing taxpayers the opportunity to provide the Secretary information sufficient to allow the Secretary to make payments to such taxpayers under subsection (g) (including the determination of the amount of such payment) if such information is not otherwise available to the Secretary, and

''(2) regulations or other guidance providing for the proper treatment of joint returns and taxpayers with dependents to ensure that an individual is not taken into account more than once in determining the amount of any credit under subsection (a) and any credit or refund under subsection (g).

''(i) OUTREACH.—The Secretary shall carry out a robust and comprehensive outreach program to ensure that all taxpayers described in subsection (h)(1) learn of their eligibility for the advance refunds and credits under subsection (g); are advised of the opportunity to receive such advance refunds and credits as provided under subsection (h)(1); and are provided assistance in applying for such advance refunds and credits. In conducting such outreach program, the Secretary shall coordinate with other government, State, and local agencies; federal partners; and community-based nonprofit organizations that regularly interface with such taxpayers.''.

(b) TREATMENT OF CERTAIN POSSESSIONS.—

(1) PAYMENTS TO POSSESSIONS WITH MIRROR CODE TAX SYSTEMS.—The Secretary of the Treasury shall pay to each possession of the United States which has a mirror code tax system amounts equal to the loss (if any) to that possession by reason of the amendments made by this section. Such amounts shall be determined by the Secretary of the Treasury based on information provided by the government of the respective possession.

(2) PAYMENTS TO OTHER POSSESSIONS.—The Secretary of the Treasury shall pay to each possession of the United States which does not have a mirror code tax system amounts estimated by the Secretary of the Treasury as being equal to the aggregate benefits (if any) that would have been provided to residents of such possession by reason of the amendments made by this section if a mirror code tax system had been in effect in such possession. The preceding sentence shall not apply unless the respective possession has a plan, which has been approved by the Secretary of the Treasury, under which such possession will promptly distribute such payments to its residents.

(3) COORDINATION WITH CREDIT ALLOWED AGAINST UNITED STATES INCOME TAXES.—No credit shall be allowed against United States income taxes under section 6428A of the Internal Revenue Code of 1986 (as added by this section), nor shall any credit or refund be made or allowed under subsection (g) of such section, to any person—

(A) to whom a credit is allowed against taxes imposed by the possession by reason of the amendments made by this section, or

(B) who is eligible for a payment under a plan described in paragraph (2).

(4) MIRROR CODE TAX SYSTEM.—For purposes of this subsection, the term ''mirror code tax system'' means, with respect to any possession of the United States, the income tax system of such possession if the income tax liability of the residents of such possession under such system is determined by reference to the income tax laws of the United States as if such possession were the United States.

(c) ADMINISTRATIVE PROVISIONS.—

(1) DEFINITION OF DEFICIENCY.—Section 6211(b)(4)(A) of the Internal Revenue Code of 1986 is amended by striking ''and 6428'' and inserting ''6428, and 6428A''.

(2) MATHEMATICAL OR CLERICAL ERROR AUTHORITY.—Section 6213(g)(2) of such Code is amended—

(A) by inserting ''or section 6428A (relating to additional recovery rebates to individuals)'' before the comma at the end of subparagraph (H), and

(B) by striking ''or 6428'' in subparagraph (L) and inserting ''6428, or 6428A''.

(3) EXCEPTION FROM REDUCTION OR OFFSET.—Any credit or refund allowed or made to any individual by reason of section 6428A of the Internal Revenue Code of 1986 (as added by this section) or by reason of subsection (b) of this section shall not be—

(A) subject to reduction or offset pursuant to section 3716 or 3720A of title 31, United States Code,

(B) subject to reduction or offset pursuant to subsection (c), (d), (e), or (f) of section 6402 of the Internal Revenue Code of 1986, or

(C) reduced or offset by other assessed Federal taxes that would otherwise be subject to levy or collection.

(4) ASSIGNMENT OF BENEFITS.—

(A) IN GENERAL.—The right of any person to any applicable payment shall not be transferable or assignable, at law or in equity, and no applicable payment shall be subject to, execution, levy, attachment, garnishment, or other legal process, or the operation of any bankruptcy or insolvency law.

(B) ENCODING OF PAYMENTS.—In the case of an applicable payment described in subparagraph (E)(iii)(I) that is paid electronically by direct deposit through the Automated Clearing House (ACH) network, the Secretary of the Treasury (or the Secretary's delegate) shall—

(i) issue the payment using a unique identifier that is reasonably sufficient to allow a financial institution to identify the payment as an applicable payment, and

(ii) further encode the payment pursuant to the same specifications as required for a benefit payment defined in section 212.3 of title 31, Code of Federal Regulations.

(C) GARNISHMENT.—

(i) ENCODED PAYMENTS.—In the case of a garnishment order that applies to an account that has received an applicable payment that is encoded as provided in subparagraph (B), a financial institution shall follow the requirements and procedures set forth in part 212 of title 31, Code of Federal Regulations, except—

(I) notwithstanding section 212.4 of title 31, Code of Federal Regulations (and except as provided in subclause (II)), a financial institution shall not fail to follow the procedures of sections 212.5 and 212.6 of such title with respect to an garnishment order merely because such order has attached, or includes, a notice of right to garnish federal benefits issued by a State child support enforcement agency, and

(II) a financial institution shall not, with regard to any applicable payment, be required to provide the notice referenced in sections 212.6 and 212.7 of title 31, Code of Federal Regulations.

(ii) OTHER PAYMENTS.—If a financial institution receives a garnishment order (other than an order that has been served by the United States), that has been received by a financial institution and that applies to an account into which an applicable payment that has not been encoded as provided in subparagraph (B) has been deposited electronically or by an applicable payment that has been deposited by check on any date in the lookback period, the financial institution, upon the request of the account holder, shall treat the amount of the funds in the account at the time of the request, up to the amount of the applicable payment (in addition to any amounts otherwise protected under part 212 of title 31, Code of Federal Regulations), as exempt from a garnishment order without requiring the consent of the party serving the garnishment order or the judgment creditor.

(iii) LIABILITY.—A financial institution that acts in good faith in reliance on clauses (i) or (ii) shall not be subject to liability or regulatory action under any Federal or State law, regulation, court or other order, or regulatory interpretation for actions concerning any applicable payments.

(D) PRESERVATION OF RECLAMATION RIGHTS.—This paragraph shall not alter the status of applicable payments as tax refunds or other non-benefit payments for purpose of any reclamation rights of the Department of the Treasury or the

Internal Revenue Service as per part 210 of title 31, Code of Federal Regulations.

(E) DEFINITIONS.—For purposes of this paragraph—

(i) ACCOUNT HOLDER.—The term ''account holder'' means a natural person whose name appears in a financial institution's records as the direct or beneficial owner of an account.

(ii) ACCOUNT REVIEW.—The term ''account review'' means the process of examining deposits in an account to determine if an applicable payment has been deposited into the account during the lookback period. The financial institution shall perform the account review following the procedures outlined in section 212.5 of title 31, Code of Federal Regulations and in accordance with the requirements of section 212.6 of title 31, Code of Federal Regulations.

(iii) APPLICABLE PAYMENT.—The term ''applicable payment'' means—

(I) any advance refund amount paid pursuant to subsection (g) of section 6428A of the Internal Revenue Code of 1986 (as so added),

(II) any payment made by a possession of the United States with a mirror code tax system (as defined in subsection (c) of section 2201 of the CARES Act (Public Law 116–136)) pursuant to such subsection which corresponds to a payment described in subclause (I), and

(III) any payment made by a possession of the United States without a mirror code tax system (as so defined) pursuant to section 2201(c) of such Act.

(iv) GARNISHMENT.—The term ''garnishment'' means execution, levy, attachment, garnishment, or other legal process.

(v) GARNISHMENT ORDER.—The term ''garnishment order'' means a writ, order, notice, summons, judgment, levy, or similar written instruction issued by a court, a State or State agency, a municipality or municipal corporation, or a State child support enforcement agency, including a lien arising by operation of law for overdue child support or an order to freeze the assets in an account, to effect a garnishment against a debtor.

(vi) LOOKBACK PERIOD.—The term ''lookback period'' means the two month period that begins on the date preceding the date of account review and ends on the corresponding date of the month two months earlier, or on the last date of the month two months earlier if the corresponding date does not exist.

(5) TREATMENT OF CREDIT AND ADVANCE PAYMENTS.—For purposes of section 1324 of title 31, United States Code, any credit under section 6428A(a) of the Internal Revenue Code of 1986, any credit or refund under section 6428A(g) of such Code, and any payment under subsection (b) of this section, shall be treated in the same manner as a refund due from a credit provision referred to in subsection (b)(2) of such section 1324.

(6) AGENCY INFORMATION SHARING AND ASSISTANCE.—The Commissioner of Social Security, the Railroad Retirement Board, and the Secretary of Veterans Affairs shall each provide the Secretary of the Treasury (or the Secretary's delegate) such information and assistance as the Secretary of the Treasury (or the Secretary's delegate) may require for purposes of making payments under section 6428A(g) of the Internal Revenue Code of 1986 to individuals described in paragraph (5)(A)(ii) thereof.

(7) CLERICAL AMENDMENT.—The table of sections for subchapter B of chapter 65 of the Internal Revenue Code of 1986 is amended by inserting after the item relating to section 6428 the following new item:

''Sec. 6428A. Additional recovery rebates to individuals.''.

(d) CERTAIN REQUIREMENTS RELATED TO RECOVERY REBATES AND ADDITIONAL RECOVERY REBATES.—

(1) SIGNATURES ON CHECKS AND NOTICES, ETC., BY THE DEPARTMENT OF THE TREASURY.—Any check issued to an individual by the Department of the Treasury pursuant to section 6428 or 6428A of the Internal Revenue Code of 1986, and any notice issued pursuant to section 6428(f)(6) or section 6428A(g)(6) of such Code, may not be signed by or otherwise bear the name, signature, image or likeness of the President, the Vice President or any elected official or cabinet level officer of the United States, or any individual who, with respect to any of the aforementioned individuals, bears any relationship described in subparagraphs (A) through (G) of section 152(d)(2) of the Internal Revenue Code of 1986.

(2) EFFECTIVE DATE.—Paragraph (1) shall apply to checks and notices issued after the date of the enactment of this Act.

(e) REPORTS TO CONGRESS.—Each week beginning after the date of the enactment of this Act and beginning before December 31, 2020, on Friday of such week, not later than 3 p.m. Eastern Time, the Secretary of the Treasury shall provide a written report to the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate. Such report shall include the following information with respect to payments made pursuant to each of sections 6428 and 6428A of the Internal Revenue Code of 1986:

(1) The number of scheduled payments sent to the Bureau of Fiscal Service for payment by direct deposit or paper check for the following week (stated separately for direct deposit and paper check).

(2) The total dollar amount of the scheduled payments described in paragraph (1).

(3) The number of direct deposit payments returned to the Department of the Treasury and the total dollar value of such payments, for the week ending on the day prior to the day on which the report is provided.

(4) The total number of letters related to payments under section 6428 or 6428A of such Code mailed to taxpayers during the week ending on the day prior to the day on which the report is provided.

Subtitle B—Earned Income Tax Credit

SEC. 111. STRENGTHENING THE EARNED INCOME TAX CREDIT FOR INDIVIDUALS WITH NO QUALIFYING CHILDREN.

(a) SPECIAL RULES FOR 2020.—Section 32 of the Internal Revenue Code of 1986 is amended by adding at the end the following new subsection:

''(n) SPECIAL RULES FOR INDIVIDUALS WITHOUT QUALIFYING CHILDREN.—In the case of any taxable year beginning after December 31, 2019, and before January 1, 2021—

''(1) DECREASE IN MINIMUM AGE FOR CREDIT.—

''(A) IN GENERAL.—Subsection (c)(1)(A)(ii)(II) shall be applied by substituting 'the applicable minimum age' for 'age 25'.

''(B) APPLICABLE MINIMUM AGE.—For purposes of this paragraph, the term 'applicable minimum age' means—

''(i) except as otherwise provided in this subparagraph, age 19,

''(ii) in the case of a full-time student (other than a qualified former foster youth or a qualified homeless youth), age 25, and

''(iii) in the case of a qualified former foster youth or a qualified homeless youth, age 18.

''(C) FULL-TIME STUDENT.—For purposes of this paragraph, the term 'full-time student' means, with respect to any taxable year, an individual who is an eligible student (as defined in section 25A(b)(3)) during at least 5 calendar months during the taxable year.

''(D) QUALIFIED FORMER FOSTER YOUTH.—For purposes of this paragraph, the term 'qualified former foster youth' means an individual who—

''(i) on or after the date that such individual attained age 14, was in foster care provided under the supervision or administration of a State or tribal agency administering (or eligible to administer) a plan under part B or part E of the Social Security Act (without regard to whether Federal assistance was provided with respect to such child under such part E), and

''(ii) provides (in such manner as the Secretary may provide) consent for State and tribal agencies which administer a plan under part B or part E of the Social Security Act to disclose to the Secretary information related to the status of such individual as a qualified former foster youth.

''(E) QUALIFIED HOMELESS YOUTH.—For purposes of this paragraph, the term 'qualified homeless youth' means, with respect to any taxable year, an individual who—

''(i) is certified by a local educational agency or a financial aid administrator during such taxable year as being either an unaccompanied youth who is a homeless child or youth, or as unaccompanied, at risk of homelessness, and self-supporting. Terms used in the preceding sentence which are also used in section 480(d)(1) of the Higher Education Act of 1965 shall have the same meaning as when used in such section, and

''(ii) provides (in such manner as the Secretary may provide) consent for local educational agencies and financial aid administrators to disclose to the Secretary information related to the status of such individual as a qualified homeless youth.

''(2) INCREASE IN MAXIMUM AGE FOR CREDIT.—Subsection (c)(1)(A)(ii)(II) shall be applied by substituting 'age 66' for 'age 65'.

''(3) INCREASE IN CREDIT AND PHASEOUT PERCENTAGES.—The table contained in subsection (b)(1) shall be applied by substituting '15.3' for '7.65' each place it appears therein.

''(4) INCREASE IN EARNED INCOME AND PHASEOUT AMOUNTS.—

''(A) IN GENERAL.—The table contained in subsection (b)(2)(A) shall be applied—

''(i) by substituting '$9,720' for '$4,220', and

''(ii) by substituting '$11,490' for '$5,280'.

''(B) COORDINATION WITH INFLATION ADJUSTMENT.—Subsection (j) shall not apply to any dollar amount specified in this paragraph.''.

(b) INFORMATION RETURN MATCHING.—As soon as practicable, the Secretary of the Treasury (or the Secretary's delegate) shall develop and implement procedures to use information returns under section 6050S (relating to returns relating to higher education tuition and related expenses) to check the status of individuals as full-time students for purposes of section 32(n)(1)(B)(ii) of the Internal Revenue Code of 1986 (as added by this section).

(c) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2019.

SEC. 112. TAXPAYER ELIGIBLE FOR CHILDLESS EARNED INCOME CREDIT IN CASE OF QUALIFYING CHILDREN WHO FAIL TO MEET CERTAIN IDENTIFICATION REQUIREMENTS.

(a) IN GENERAL.—Section 32(c)(1) of the Internal Revenue Code of 1986 is amended by striking subparagraph (F).

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after the date of the enactment of this Act.

SEC. 113. CREDIT ALLOWED IN CASE OF CERTAIN SEPARATED SPOUSES.

(a) IN GENERAL.—Section 32(d) of the Internal Revenue Code of 1986 is amended—

(1) by striking ''MARRIED INDIVIDUALS.—In the case of'' and inserting the following: ''MARRIED INDIVIDUALS.—

''(1) IN GENERAL.—In the case of'', and

(2) by adding at the end the following new paragraph:

''(2) DETERMINATION OF MARITAL STATUS.—For purposes of this section—

''(A) IN GENERAL.—Except as provided in subparagraph (B), marital status shall be determined under section 7703(a).

''(B) SPECIAL RULE FOR SEPARATED SPOUSE.—An individual shall not be treated as married if such individual—

''(i) is married (as determined under section 7703(a)) and does not file a joint return for the taxable year,

''(ii) lives with a qualifying child of the individual for more than one-half of such taxable year, and

''(iii)(I) during the last 6 months of such taxable year, does not have the same principal place of abode as the individual's spouse, or

''(II) has a decree, instrument, or agreement (other than a decree of divorce) described in section 121(d)(3)(C) with respect to the individual's spouse and is not a member of the same household with the individual's spouse by the end of the taxable year.''.

(b) CONFORMING AMENDMENTS.—

(1) Section 32(c)(1)(A) of such Code is amended by striking the last sentence.

(2) Section 32(c)(1)(E)(ii) of such Code is amended by striking ''(within the meaning of section 7703)''.

(3) Section 32(d)(1) of such Code, as amended by subsection (a), is amended by striking ''(within the meaning of section 7703)''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after the date of the enactment of this Act.

SEC. 114. ELIMINATION OF DISQUALIFIED INVESTMENT INCOME TEST.

(a) IN GENERAL.—Section 32 of the Internal Revenue Code of 1986 is amended by striking subsection (i).

(b) CONFORMING AMENDMENTS.—

(1) Section 32(j)(1) of such Code is amended by striking ''subsections (b)(2) and (i)(1)'' and inserting ''subsection (b)(2)''.

(2) Section 32(j)(1)(B)(i) of such Code is amended by striking ''subsections (b)(2)(A) and (i)(1)'' and inserting ''subsection (b)(2)(A)''.

(3) Section 32(j)(2) of such Code is amended—

(A) by striking subparagraph (B), and

(B) by striking ''ROUNDING.—'' and all that follows through ''If any dollar amount'' and inserting the following: ''ROUNDING.—If any dollar amount''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after the date of the enactment of this Act.

SEC. 115. APPLICATION OF EARNED INCOME TAX CREDIT IN POSSESSIONS OF THE UNITED STATES.

(a) IN GENERAL.—Chapter 77 of the Internal Revenue Code of 1986 is amended by adding at the end the following new section:

''SEC. 7530. APPLICATION OF EARNED INCOME TAX CREDIT TO POSSESSIONS OF THE UNITED STATES.

''(a) PUERTO RICO.—

''(1) IN GENERAL.—With respect to calendar year 2021 and each calendar year thereafter, the Secretary shall, except as otherwise provided in this subsection, make payments to Puerto Rico equal to—

''(A) the specified matching amount for such calendar year, plus

''(B) in the case of calendar years 2021 through 2025, the lesser of—

''(i) the expenditures made by Puerto Rico during such calendar year for education efforts with respect to individual taxpayers and tax return preparers relating to the earned income tax credit, or

''(ii) $1,000,000.

''(2) REQUIREMENT TO REFORM EARNED INCOME TAX CREDIT.—The Secretary shall not make any payments under paragraph (1) with respect to any calendar year unless Puerto Rico has in effect an earned income tax credit for taxable years beginning in or with such calendar year which (relative to the earned income tax credit which was in effect for taxable years beginning in or with calendar year 2019) increases the percentage of earned income which is allowed as a credit for each group of individuals with respect to which such percentage is separately stated or determined in a manner designed to substantially increase workforce participation.

''(3) SPECIFIED MATCHING AMOUNT.—For purposes of this subsection—

''(A) IN GENERAL.—The term 'specified matching amount' means, with respect to any calendar year, the lesser of—

''(i) the excess (if any) of—

''(I) the cost to Puerto Rico of the earned income tax credit for taxable years beginning in or with such calendar year, over

''(II) the base amount for such calendar year, or

''(ii) the product of 3, multiplied by the base amount for such calendar year.

''(B) BASE AMOUNT.—

''(i) BASE AMOUNT FOR 2020.—In the case of calendar year 2020, the term 'base amount' means the greater of—

''(I) the cost to Puerto Rico of the earned income tax credit for taxable years beginning in or with calendar year 2019 (rounded to the nearest multiple of $1,000,000), or

''(II) $200,000,000.

''(ii) INFLATION ADJUSTMENT.—In the case of any calendar year after 2021, the term 'base amount' means the dollar amount determined under clause (i) increased by an amount equal to—

''(I) such dollar amount, multiplied by—

''(II) the cost-of-living adjustment determined under section 1(f)(3) for such calendar year, determined by substituting 'calendar year 2020' for 'calendar year 2016' in subparagraph (A)(ii) thereof.

Any amount determined under this clause shall be rounded to the nearest multiple of $1,000,000.

''(4) RULES RELATED TO PAYMENTS AND REPORTS.—

''(A) TIMING OF PAYMENTS.—The Secretary shall make payments under paragraph (1) for any calendar year—

''(i) after receipt of the report described in subparagraph (B) for such calendar year, and

''(ii) except as provided in clause (i), within a reasonable period of time before the due date for individual income tax returns (as determined under the laws of Puerto Rico) for taxable years which began on the first day of such calendar year.

''(B) ANNUAL REPORTS.—With respect to calendar year 2021 and each calendar year thereafter, Puerto Rico shall provide to the Secretary a report which shall include—

''(i) an estimate of the costs described in paragraphs (1)(B)(i) and (3)(A)(i)(I) with respect to such calendar year, and

''(ii) a statement of such costs with respect to the preceding calendar year.

''(C) ADJUSTMENTS.—

''(i) IN GENERAL.—In the event that any estimate of an amount is more or less than the actual amount as later determined and any payment under paragraph (1) was determined on the basis of such estimate, proper payment shall be made by, or to, the Secretary (as the case may be) as soon as practicable after the determination that such estimate was inaccurate. Proper adjustment shall be made in the amount of any subsequent payments made under paragraph (1) to the extent that proper payment is not made under the preceding sentence before such subsequent payments.

''(ii) ADDITIONAL REPORTS.—The Secretary may require such additional periodic reports of the information described in subparagraph (B) as the Secretary determines appropriate to facilitate timely adjustments under clause (i).

''(D) DETERMINATION OF COST OF EARNED INCOME TAX CREDIT.—For purposes of this subsection, the cost to Puerto Rico of the earned income tax credit shall be determined by the Secretary on the basis of the laws of Puerto Rico and shall include reductions in revenues received by Puerto Rico by reason of such credit and refunds attributable to such credit, but shall not include any administrative costs with respect to such credit.

''(E) PREVENTION OF MANIPULATION OF BASE AMOUNT.—No payments shall be made under paragraph (1) if the earned income tax credit as in effect in Puerto Rico for taxable years beginning in or with calendar year 2019 is modified after the date of the enactment of this subsection.

''(b) POSSESSIONS WITH MIRROR CODE TAX SYSTEMS.—

''(1) IN GENERAL.—With respect to calendar year 2020 and each calendar year thereafter, the Secretary shall, except as otherwise provided in this subsection, make payments to the Virgin Islands, Guam, and the Commonwealth of the Northern Mariana Islands equal to—

''(A) 75 percent of the cost to such possession of the earned income tax credit for taxable years beginning in or with such calendar year, plus

''(B) in the case of calendar years 2020 through 2024, the lesser of—

''(i) the expenditures made by such possession during such calendar year for education efforts with respect to individual taxpayers and tax return preparers relating to such earned income tax credit, or

''(ii) $50,000.

''(2) APPLICATION OF CERTAIN RULES.—Rules similar to the rules of subparagraphs (A), (B), (C), and (D) of subsection (a)(4) shall apply for purposes of this subsection.

''(c) AMERICAN SAMOA.—

''(1) IN GENERAL.—With respect to calendar year 2020 and each calendar year thereafter, the Secretary shall, except as otherwise provided in this subsection, make payments to American Samoa equal to—

''(A) the lesser of—

''(i) 75 percent of the cost to American Samoa of the earned income tax credit for taxable years beginning in or with such calendar year, or

''(ii) $12,000,000, plus

''(B) in the case of calendar years 2020 through 2024, the lesser of—

''(i) the expenditures made by American Samoa during such calendar year for education efforts with respect to individual taxpayers and tax return preparers relating to such earned income tax credit, or

''(ii) $50,000.

''(2) REQUIREMENT TO ENACT AND MAINTAIN AN EARNED INCOME TAX CREDIT.—The Secretary shall not make any payments under paragraph (1) with respect to any calendar year unless American Samoa has in effect an earned income tax credit for taxable years beginning in or with such calendar year which allows a refundable tax credit to individuals on the basis of the taxpayer's earned income which is designed to substantially increase workforce participation.

''(3) INFLATION ADJUSTMENT.—In the case of any calendar year after 2020, the $12,000,000 amount in paragraph (1)(A)(ii) shall be increased by an amount equal to—

''(A) such dollar amount, multiplied by—

''(B) the cost-of-living adjustment determined under section 1(f)(3) for such calendar year, determined by substituting 'calendar year 2019' for 'calendar year 2016' in subparagraph (A)(ii) thereof.

Any increase determined under this clause shall be rounded to the nearest multiple of $100,000.

''(4) APPLICATION OF CERTAIN RULES.—Rules similar to the rules of subparagraphs (A), (B), (C), and (D) of subsection (a)(4) shall apply for purposes of this subsection.

''(d) TREATMENT OF PAYMENTS.—For purposes of section 1324 of title 31, United States Code, the payments under this section shall be treated in the same manner as a refund due from a credit provision referred to in subsection (b)(2) of such section.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 77 of the Internal Revenue Code of 1986 is amended by adding at the end the following new item:

''Sec. 7529. Application of earned income tax credit to possessions of the United States.''.

SEC. 116. TEMPORARY SPECIAL RULE FOR DETERMINING EARNED INCOME FOR PURPOSES OF EARNED INCOME TAX CREDIT.

(a) IN GENERAL.—If the earned income of the taxpayer for the taxpayer's first taxable year

beginning in 2020 is less than the earned income of the taxpayer for the preceding taxable year, the credit allowed under section 32 of the Internal Revenue Code of 1986 may, at the election of the taxpayer, be determined by substituting—

(1) such earned income for the preceding taxable year, for

(2) such earned income for the taxpayer's first taxable year beginning in 2020.

(b) EARNED INCOME.—

(1) IN GENERAL.—For purposes of this section, the term ''earned income'' has the meaning given such term under section 32(c) of the Internal Revenue Code of 1986.

(2) APPLICATION TO JOINT RETURNS.—For purposes of subsection (a), in the case of a joint return, the earned income of the taxpayer for the preceding taxable year shall be the sum of the earned income of each spouse for such preceding taxable year.

(c) SPECIAL RULES.—

(1) ERRORS TREATED AS MATHEMATICAL ERROR.—For purposes of section 6213 of the Internal Revenue Code of 1986, an incorrect use on a return of earned income pursuant to subsection (a) shall be treated as a mathematical or clerical error.

(2) NO EFFECT ON DETERMINATION OF GROSS INCOME, ETC.—Except as otherwise provided in this subsection, the Internal Revenue Code of 1986 shall be applied without regard to any substitution under subsection (a).

(d) TREATMENT OF CERTAIN POSSESSIONS.—

(1) PAYMENTS TO POSSESSIONS WITH MIRROR CODE TAX SYSTEMS.—The Secretary of the Treasury shall pay to each possession of the United States which has a mirror code tax system amounts equal to the loss (if any) to that possession by reason of the application of the provisions of this section (other than this subsection) with respect to section 32 of the Internal Revenue Code of 1986. Such amounts shall be determined by the Secretary of the Treasury based on information provided by the government of the respective possession.

(2) PAYMENTS TO OTHER POSSESSIONS.—The Secretary of the Treasury shall pay to each possession of the United States which does not have a mirror code tax system amounts estimated by the Secretary of the Treasury as being equal to the aggregate benefits (if any) that would have been provided to residents of such possession by reason of the provisions of this section (other than this subsection) with respect to section 32 of the Internal Revenue Code of 1986 if a mirror code tax system had been in effect in such possession. The preceding sentence shall not apply unless the respective possession has a plan, which has been approved by the Secretary of the Treasury, under which such possession will promptly distribute such payments to its residents.

(3) MIRROR CODE TAX SYSTEM.—For purposes of this section, the term ''mirror code tax system'' means, with respect to any possession of the United States, the income tax system of such possession if the income tax liability of the residents of such possession under such system is determined by reference to the income tax laws of the United States as if such possession were the United States.

(4) TREATMENT OF PAYMENTS.—For purposes of section 1324 of title 31, United States Code, the payments under this section shall be treated in the same manner as a refund due from a credit provision referred to in subsection (b)(2) of such section.

Subtitle C—Child Tax Credit

SEC. 121. CHILD TAX CREDIT IMPROVEMENTS FOR 2020.

(a) IN GENERAL.—Section 24 of the Internal Revenue Code of 1986 is amended by adding at the end the following new subsection:

''(i) SPECIAL RULE FOR REFUNDABLE CREDIT.—In the case of any taxable year beginning in 2020, subsection (h)(5) shall not apply and the increase determined under the first sentence of subsection (d)(1) shall be the amount determined under subsection (d)(1)(A) (determined without regard to subsection (h)(4)).''.

(b) ADVANCE PAYMENT OF CREDIT.—

(1) IN GENERAL.—Chapter 77 of such Code is amended by inserting after section 7527 the following new section:

''SEC. 7527A. ADVANCE PAYMENT OF CHILD TAX CREDIT.

''(a) IN GENERAL.—As soon as practicable after the date of the enactment of this Act, the Secretary shall establish a program for making advance payments of the credit allowed under subsection (a) of section 24 on a monthly basis (determined without regard to subsection (i)(2)) of such section), or as frequently as the Secretary determines to be administratively feasible, to taxpayers determined to be eligible for advance payment of such credit.

''(b) LIMITATION.—

''(1) IN GENERAL.—The Secretary may make payments under subsection (a) only to the extent that the total amount of such payments made to any taxpayer during the taxable year does not exceed an amount equal to the excess, if any, of—

''(A) subject to paragraph (2), the amount determined under subsection (a) of section 24 with respect to such taxpayer (determined without regard to subsection (i)(2)) of such section) for such taxable year, over

''(B) the estimated tax imposed by subtitle A, as reduced by the credits allowable under subparts A and C (other than section 24) of such part IV, with respect to such taxpayer for such taxable year, as determined in such manner as the Secretary deems appropriate.

''(2) APPLICATION OF THRESHOLD AMOUNT LIMITATION.—The program described in subsection (a) shall make reasonable efforts to apply the limitation of section 24(b) with respect to payments made under such program.

''(c) APPLICATION.—The advance payments described in this section shall only be made with respect to credits allowed under section 24 for taxable years beginning during 2020.''.

(2) RECONCILIATION OF CREDIT AND ADVANCE CREDIT.—Section 24(i) of such Code, as amended by subsection (a), is amended—

(A) by striking ''in the case of any taxable year'', and inserting the following:

''(1) IN GENERAL.—'In the case of any taxable year' '', and

(B) by adding at the end the following new paragraph:

''(2) RECONCILIATION OF CREDIT AND ADVANCE CREDIT.—

''(A) IN GENERAL.—The amount of the credit allowed under this section for any taxable year shall be reduced (but not below zero) by the aggregate amount of any advance payments of such credit under section 7527A for such taxable year.

''(B) EXCESS ADVANCE PAYMENTS.—If the aggregate amount of advance payments under section 7527A for the taxable year exceeds the amount of the credit allowed under this section for such taxable year (determined without regard to subparagraph (A)), the tax imposed by this chapter for such taxable year shall be increased by the amount of such excess.''.

(3) CLERICAL AMENDMENT.—The table of sections for chapter 77 of such Code is amended by inserting after the item relating to section 7527 the following new item:

''Sec. 7527A. Advance payment of child tax credit.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after December 31, 2019.

SEC. 122. APPLICATION OF CHILD TAX CREDIT IN POSSESSIONS.

(a) IN GENERAL.—Section 24 of the Internal Revenue Code of 1986, as amended by the preceding provisions of this Act, is amended by adding at the end the following new subsection:

''(j) APPLICATION OF CREDIT IN POSSESSIONS.—

''(1) MIRROR CODE POSSESSIONS.—

''(A) IN GENERAL.—The Secretary shall pay to each possession of the United States with a mirror code tax system amounts equal to the loss to that possession by reason of the application of this section (determined without regard to this subsection) with respect to taxable years beginning after 2019. Such amounts shall be determined by the Secretary based on information provided by the government of the respective possession.

''(B) COORDINATION WITH CREDIT ALLOWED AGAINST UNITED STATES INCOME TAXES.—No credit shall be allowed under this section for any taxable year to any individual to whom a credit is allowable against taxes imposed by a possession with a mirror code tax system by reason of the application of this section in such possession for such taxable year.

''(C) MIRROR CODE TAX SYSTEM.—For purposes of this paragraph, the term 'mirror code tax system' means, with respect to any possession of the United States, the income tax system of such possession if the income tax liability of the residents of such possession under such system is determined by reference to the income tax laws of the United States as if such possession were the United States.

''(2) PUERTO RICO.—In the case of any bona fide resident of Puerto Rico (within the meaning of section 937(a))—

''(A) the credit determined under this section shall be allowable to such resident,

''(B) in the case of any taxable year beginning during 2020, the increase determined under the first sentence of subsection (d)(1) shall be the amount determined under subsection (d)(1)(A) (determined without regard to subsection (h)(4)),

''(C) in the case of any taxable year beginning after December 31, 2020, and before January 1, 2026, the increase determined under the first sentence of subsection (d)(1) shall be the lesser of—

''(i) the amount determined under subsection (d)(1)(A) (determined without regard to subsection (h)(4)), or

''(ii) the dollar amount in effect under subsection (h)(5), and

''(D) in the case of any taxable year after December 31, 2025, the increase determined under the first sentence of subsection (d)(1) shall be the amount determined under subsection (d)(1)(A).

''(3) AMERICAN SAMOA.—

''(A) IN GENERAL.—The Secretary shall pay to American Samoa amounts estimated by the Secretary as being equal to the aggregate benefits that would have been provided to residents of American Samoa by reason of the application of this section for taxable years beginning after 2019 if the provisions of this section had been in effect in American Samoa.

''(B) DISTRIBUTION REQUIREMENT.—Subparagraph (A) shall not apply unless American Samoa has a plan, which has been approved by the Secretary, under which American Samoa will promptly distribute such payments to the residents of American Samoa in a manner which replicates to the greatest degree practicable the benefits that would have been so provided to each such resident.

''(C) COORDINATION WITH CREDIT ALLOWED AGAINST UNITED STATES INCOME TAXES.—

''(i) IN GENERAL.—In the case of a taxable year with respect to which a plan is approved under subparagraph (B), this section (other than this subsection) shall not apply to any individual eligible for a distribution under such plan.

''(ii) APPLICATION OF SECTION IN EVENT OF ABSENCE OF APPROVED PLAN.—In the case of a taxable year with respect to which a plan is not approved under subparagraph (B), rules similar to the rules of paragraph (2) shall apply with respect to bona fide residents of American Samoa (within the meaning of section 937(a)).

''(4) TREATMENT OF PAYMENTS.—The payments made under this subsection shall be treated in the same manner for purposes of section 1324(b)(2) of title 31, United States Code, as refunds due from the credit allowed under this section.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2019.

Subtitle D—Dependent Care Assistance

SEC. 131. REFUNDABILITY AND ENHANCEMENT OF CHILD AND DEPENDENT CARE TAX CREDIT.

(a) IN GENERAL.—Section 21 of the Internal Revenue Code of 1986 is amended by adding at the end the following new subsection:

''(g) SPECIAL RULES FOR 2020.—In the case of any taxable year beginning after December 31, 2019, and before January 1, 2021—

''(1) CREDIT MADE REFUNDABLE.—In the case of an individual other than a nonresident alien, the credit allowed under subsection (a) shall be treated as a credit allowed under subpart C (and not allowed under this subpart).

''(2) INCREASE IN APPLICABLE PERCENTAGE.—Subsection (a)(2) shall be applied—

''(A) by substituting '50 percent' for '35 percent ', and

''(B) by substituting '$120,000' for '$15,000'.

''(3) INCREASE IN DOLLAR LIMIT ON AMOUNT CREDITABLE.—Subsection (c) shall be applied—

''(A) by substituting '$6,000' for '$3,000' in paragraph (1) thereof, and

''(B) by substituting 'twice the amount in effect under paragraph (1)' for '$6,000' in paragraph (2) thereof.''.

(b) CONFORMING AMENDMENT.—Section 1324(b)(2) of title 31, United States Code, is amended by inserting ''21 (by reason of subsection (g) thereof),'' before ''25A''.

(c) COORDINATION WITH POSSESSION TAX SYSTEMS.—Section 21(g)(1) of the Internal Revenue Code of 1986 (as added by this section) shall not apply to any person—

(1) to whom a credit is allowed against taxes imposed by a possession with a mirror code tax system by reason of the application of section 21 of such Code in such possession for such taxable year, or

(2) to whom a credit would be allowed against taxes imposed by a possession which does not have a mirror code tax system if the provisions of section 21 of such Code had been in effect in such possession for such taxable year.

(d) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after December 31, 2019.

SEC. 132. INCREASE IN EXCLUSION FOR EMPLOYER-PROVIDED DEPENDENT CARE ASSISTANCE.

(a) IN GENERAL.—Section 129(a)(2) of the Internal Revenue Code of 1986 is amended by adding at the end the following new subparagraph:

''(D) SPECIAL RULE FOR 2020.—In the case of any taxable year beginning during 2020, subparagraph (A) shall be applied be substituting '$10,500 (half such dollar amount' for '$5,000 ($2,500'.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2019.

(c) RETROACTIVE PLAN AMENDMENTS.—A plan or other arrangement that otherwise satisfies all applicable requirements of sections 106, 125, and 129 of the Internal Revenue Code of 1986 (including any rules or regulations thereunder) shall not fail to be treated as a cafeteria plan or dependent care flexible spending arrangement merely because such plan or arrangement is amended pursuant to a provision under this section and such amendment is retroactive, if—

(1) such amendment is adopted no later than the last day of the plan year in which the amendment is effective, and

(2) the plan or arrangement is operated consistent with the terms of such amendment during the period beginning on the effective date of the amendment and ending on the date the amendment is adopted.

Subtitle E—Credits for Paid Sick and Family Leave

SEC. 141. EXTENSION OF CREDITS.

(a) IN GENERAL.—Sections 7001(g), 7002(e), 7003(g), and 7004(e) of the Families First Coronavirus Response Act are each amended by striking ''December 31, 2020'' and inserting ''February 28, 2021''.

(b) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the provisions of the Families First Coronavirus Response Act to which they relate.

SEC. 142. REPEAL OF REDUCED RATE OF CREDIT FOR CERTAIN LEAVE.

(a) PAYROLL CREDIT.—Section 7001(b) of the Families First Coronavirus Response Act is amended by inserting ''(as in effect immediately before the date of the enactment of the COVID–19 Tax Relief Act of 2020) or any day on or after the date of the enactment of the COVID–19 Tax Relief Act of 2020'' after ''in the case of any day any portion of which is paid sick time described in paragraph (1), (2), or (3) of section 5102(a) of the Emergency Paid Sick Leave Act''.

(b) SELF-EMPLOYED CREDIT.—

(1) IN GENERAL.—Clauses (i) and (ii) of section 7002(c)(1)(B) of the Families First Coronavirus Response Act are each amended by inserting ''(as in effect immediately before the date of the enactment of the COVID–19 Tax Relief Act of 2020) or any day on or after the date of the enactment of the COVID–19 Tax Relief Act of 2020'' after ''in the case of any day any portion of which is paid sick time described in paragraph (1), (2), or (3) of section 5102(a) of the Emergency Paid Sick Leave Act''.

(2) CONFORMING AMENDMENT.—Section 7002(d)(3) of the Families First Coronavirus Response Act is amended by inserting ''(as in effect immediately before the date of the enactment of the COVID–19 Tax Relief Act of 2020) or any day on or after the date of the enactment of the COVID–19 Tax Relief Act of 2020'' after ''in the case of any day any portion of which is paid sick time described in paragraph (1), (2), or (3) of section 5102(a) of the Emergency Paid Sick Leave Act''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to days on or after the date of the enactment of this Act.

SEC. 143. INCREASE IN LIMITATIONS ON CREDITS FOR PAID FAMILY LEAVE.

(a) INCREASE IN OVERALL LIMITATION ON QUALIFIED FAMILY LEAVE WAGES.—

(1) IN GENERAL.—Section 7003(b)(1)(B) of the Families First Coronavirus Response Act is amended by striking ''$10,000'' and inserting ''$12,000''.

(2) CONFORMING AMENDMENT.—Section 7004(d)(3) of the Families First Coronavirus Response Act is amended by striking ''$10,000'' and inserting ''$12,000''.

(b) INCREASE IN QUALIFIED FAMILY LEAVE EQUIVALENT AMOUNT FOR SELF-EMPLOYED INDIVIDUALS.—Section 7004(c)(1)(A) of the Families First Coronavirus Response Act is amended by striking ''50'' and inserting ''60''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the provisions of the Families First Coronavirus Response Act to which they relate.

SEC. 144. ELECTION TO USE PRIOR YEAR NET EARNINGS FROM SELF-EMPLOYMENT IN DETERMINING AVERAGE DAILY SELF-EMPLOYMENT INCOME.

(a) CREDIT FOR SICK LEAVE.—Section 7002(c) of the Families First Coronavirus Response Act is amended by adding at the end the following new paragraph:

''(4) ELECTION TO USE PRIOR YEAR NET EARNINGS FROM SELF-EMPLOYMENT INCOME.—In the case of an individual who elects (at such time and in such manner as the Secretary, or the Secretary's delegate, may provide) the application of this paragraph, paragraph (2)(A) shall be applied by substituting 'the prior taxable year' for 'the taxable year'.''.

(b) CREDIT FOR FAMILY LEAVE.—Section 7004(c) of the Families First Coronavirus Response Act is amended by adding at the end the following new paragraph:

''(4) ELECTION TO USE PRIOR YEAR NET EARNINGS FROM SELF-EMPLOYMENT INCOME.—In the case of an individual who elects (at such time and in such manner as the Secretary, or the Secretary's delegate, may provide) the application of this paragraph, paragraph (2)(A) shall be applied by substituting 'the prior taxable year' for 'the taxable year'.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the provisions of the Families First Coronavirus Response Act to which they relate.

SEC. 145. FEDERAL, STATE, AND LOCAL GOVERNMENTS ALLOWED TAX CREDITS FOR PAID SICK AND PAID FAMILY AND MEDICAL LEAVE.

(a) IN GENERAL.—Sections 7001(e) and 7003(e) of the Families First Coronavirus Response Act are each amended by striking paragraph (4).

(b) COORDINATION WITH APPLICATION OF CERTAIN DEFINITIONS.—

(1) IN GENERAL.—Sections 7001(c) and 7003(c) of the Families First Coronavirus Response Act are each amended—

(A) by inserting '', determined without regard to paragraphs (1) through (22) of section 3121(b) of such Code'' after ''as defined in section 3121(a) of the Internal Revenue Code of 1986'', and

(B) by inserting '', determined without regard to the sentence in paragraph (1) thereof which begins 'Such term does include remuneration' '' after ''as defined in section 3231(e) of the Internal Revenue Code''.

(2) CONFORMING AMENDMENTS.—Sections 7001(e)(3) and 7003(e)(3) of the Families First Coronavirus Response Act are each amended by striking ''Any term'' and inserting ''Except as otherwise provided in this section, any term''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the provisions of the Families First Coronavirus Response Act to which they relate.

SEC. 146. CERTAIN TECHNICAL IMPROVEMENTS.

(a) COORDINATION WITH EXCLUSION FROM EMPLOYMENT TAXES.—Sections 7001(c) and 7003(c) of the Families First Coronavirus Response Act, as amended by the preceding provisions of this Act, are each amended—

(1) by inserting ''and section 7005(a) of this Act,'' after ''determined without regard to paragraphs (1) through (22) of section 3121(b) of such Code'', and

(2) by inserting ''and without regard to section 7005(a) of this Act'' after ''which begins 'Such term does not include remuneration' ''.

(b) CLARIFICATION OF APPLICABLE RAILROAD RETIREMENT TAX FOR PAID LEAVE CREDITS.—Sections 7001(e) and 7003(e) of the Families First Coronavirus Response Act, as amended by the preceding provisions of this Act, are each amended by adding at the end the following new paragraph:

''(4) REFERENCES TO RAILROAD RETIREMENT TAX.—Any reference in this section to the tax imposed by section 3221(a) of the Internal Revenue Code of 1986 shall be treated as a reference to so much of such tax as is attributable to the rate in effect under section 3111(a) of such Code.''.

(c) CLARIFICATION OF TREATMENT OF PAID LEAVE FOR APPLICABLE RAILROAD RETIREMENT TAX.—Section 7005(a) of the Families First Coronavirus Response Act is amended by adding the following sentence at the end of such subsection: ''Any reference in this subsection to the tax imposed by section 3221(a) of such Code shall be treated as a reference to so much of the tax as is attributable to the rate in effect under section 3111(a) of such Code.''

(d) CLARIFICATION OF APPLICABLE RAILROAD RETIREMENT TAX FOR HOSPITAL INSURANCE TAX

CREDIT.—Section 7005(b)(1) of the Families First Coronavirus Response Act is amended to read as follows:

''(1) IN GENERAL.—The credit allowed by section 7001 and the credit allowed by section 7003 shall each be increased by the amount of the tax imposed by section 3111(b) of the Internal Revenue Code of 1986 and so much of the taxes imposed under section 3221(a) of such Code as are attributable to the rate in effect under section 3111(b) of such Code on qualified sick leave wages, or qualified family leave wages, for which credit is allowed under such section 7001 or 7003 (respectively).''.

(e) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the provisions of the Families First Coronavirus Response Act to which they relate.

SEC. 147. CREDITS NOT ALLOWED TO CERTAIN LARGE EMPLOYERS.

(a) CREDIT FOR REQUIRED PAID SICK LEAVE.—

(1) IN GENERAL.—Section 7001(a) of the Families First Coronavirus Response Act is amended by striking ''In the case of an employer'' and inserting ''In the case of an eligible employer''.

(2) ELIGIBLE EMPLOYER.—Section 7001(c) of the Families First Coronavirus Response Act, as amended by the preceding provisions of this Act, is amended by striking ''For purposes of this section, the term'' and all that precedes it and inserting the following:

''(c) DEFINITIONS.—For purposes of this section—

''(1) ELIGIBLE EMPLOYER.—The term 'eligible employer' means any employer other than an applicable large employer (as defined in section 4980H(c)(2), determined by substituting '500' for '50' each place it appears in subparagraphs (A) and (B) thereof and without regard to subparagraphs (D) and (F) thereof). For purposes of the preceding sentence, the Government of the United States, the government of any State or political subdivision thereof, or any agency or instrumentality of any of the foregoing shall not be treated as an applicable large employer.

''(2) QUALIFIED SICK LEAVE WAGES.—The term''.

(b) CREDIT FOR REQUIRED PAID FAMILY LEAVE.—

(1) IN GENERAL.—Section 7003(a) of the Families First Coronavirus Response Act is amended by striking ''In the case of an employer'' and inserting ''In the case of an eligible employer''.

(2) ELIGIBLE EMPLOYER.—Section 7003(c) of the Families First Coronavirus Response Act, as amended by the preceding provisions of this Act, is amended by striking ''For purposes of this section, the term'' and all that precedes it and inserting the following:

''(c) DEFINITIONS.—For purposes of this section—

''(1) ELIGIBLE EMPLOYER.—The term 'eligible employer' means any employer other than an applicable large employer (as defined in section 4980H(c)(2), determined by substituting '500' for '50' each place it appears in subparagraphs (A) and (B) thereof and without regard to subparagraphs (D) and (F) thereof). For purposes of the preceding sentence, the Government of the United States, the government of any State or political subdivision thereof, or any agency or instrumentality of any of the foregoing, shall not be treated as an applicable large employer.

''(2) QUALIFIED FAMILY LEAVE WAGES.—The term''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to wages paid after the date of the enactment of this Act.

Subtitle F—Deduction of State and Local Taxes

SEC. 151. ELIMINATION FOR 2020 LIMITATION ON DEDUCTION OF STATE AND LOCAL TAXES.

(a) IN GENERAL.—Section 164(b)(6)(B) of the Internal Revenue Code of 1986 is amended by inserting ''in the case of a taxable year beginning before January 1, 2020, or after December 31, 2020,'' before ''the aggregate amount of taxes''.

(b) CONFORMING AMENDMENTS.—Section 164(b)(6) of the Internal Revenue Code of 1986 is amended—

(1) by striking ''For purposes of subparagraph (B)'' and inserting ''For purposes of this section'',

(2) by striking ''January 1, 2018'' and inserting ''January 1, 2021'',

(3) by striking ''December 31, 2017, shall'' and inserting ''December 31, 2020, shall'', and

(4) by adding at the end the following: ''For purposes of this section, in the case of State or local taxes with respect to any real or personal property paid during a taxable year beginning in 2020, the Secretary shall prescribe rules which treat all or a portion of such taxes as paid in a taxable year or years other than the taxable year in which actually paid as necessary or appropriate to prevent the avoidance of the limitations of this subsection.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to taxes paid or accrued in taxable years beginning after December 31, 2019.

TITLE II—PROVISIONS TO PREVENT BUSINESS INTERRUPTION

SEC. 201. IMPROVEMENTS TO EMPLOYEE RETENTION AND REHIRING CREDIT.

(a) EMPLOYEE RETENTION CREDIT RENAMED.—Section 2301 of the CARES Act is amended in the heading by striking ''***EMPLOYEE RETENTION CREDIT***'' and inserting ''***EMPLOYEE RETENTION AND REHIRING CREDIT***''.

(b) INCREASE IN CREDIT PERCENTAGE.—Section 2301(a) of the CARES Act is amended by striking ''50 percent'' and inserting ''80 percent''.

(c) INCREASE IN PER EMPLOYEE LIMITATION.—Section 2301(b)(1) of the CARES Act is amended by striking ''for all calendar quarters shall not exceed $10,000.'' and inserting ''shall not exceed—

''(A) $15,000 in any calendar quarter, and

''(B) $45,000 in the aggregate for all calendar quarters.''.

(d) MODIFICATION OF THRESHOLD FOR TREATMENT AS A LARGE EMPLOYER.—

(1) IN GENERAL.—Section 2301(c)(3)(A) of the CARES Act is amended—

(A) by striking ''for which the average number of full-time employees (within the meaning of section 4980H of the Internal Revenue Code of 1986) employed by such eligible employer during 2019 was greater than 100'' in clause (i) and inserting ''which is a large employer'', and

(B) by striking ''for which the average number of full-time employees (within the meaning of section 4980H of the Internal Revenue Code of 1986) employed by such eligible employer during 2019 was not greater than 100'' in clause (ii) and inserting ''which is not a large employer''.

(2) LARGE EMPLOYER DEFINED.—Section 2301(c) of the CARES Act is amended by redesignating paragraph (6) as paragraph (7) and by inserting after paragraph (5) the following new paragraph:

''(6) LARGE EMPLOYER.—The term 'large employer' means any eligible employer if—

''(A) the average number of full-time employees (as determined for purposes of determining whether an employer is an applicable large employer for purposes of section 4980H(c)(2) of the Internal Revenue Code of 1986) employed by such eligible employer during calendar year 2019 was greater than 1,500, and

''(B) the gross receipts (within the meaning of section 448(c) of the Internal Revenue Code of 1986) of such eligible employer during calendar year 2019 was greater than $41,500,000.''.

(e) PHASE-IN OF ELIGIBILITY BASED ON REDUCTION IN GROSS RECEIPTS.—

(1) DECREASE OF REDUCTION IN GROSS RECEIPTS NECESSARY TO QUALIFY FOR CREDIT.—Section 2301(c)(2)(B) of the CARES Act is amended—

(A) by striking ''50 percent'' in clause (i) and inserting ''90 percent'', and

(B) by striking ''80 percent'' in clause (ii) and inserting ''90 percent''.

(2) PHASE-IN OF CREDIT IF REDUCTION IN GROSS RECEIPTS IS LESS THAN 50 PERCENT.—Section 2301(c)(2) of the CARES Act is amended by adding at the end the following new subparagraph:

''(D) PHASE-IN OF CREDIT WHERE BUSINESS NOT SUSPENDED AND REDUCTION IN GROSS RECEIPTS LESS THAN 50 PERCENT.—

''(i) IN GENERAL.—In the case of any calendar quarter with respect to which an eligible employer would not be an eligible employer if subparagraph (B)(i) were applied by substituting '50 percent' for '90 percent', the amount of the credit allowed under subsection (a) shall be reduced by the amount which bears the same ratio to the amount of such credit (determined without regard to this subparagraph) as—

''(I) the excess gross receipts percentage point amount, bears to

''(II) 40 percentage points.

''(ii) EXCESS GROSS RECEIPTS PERCENTAGE POINT AMOUNT.—For purposes of this subparagraph, the term 'excess gross receipts percentage point amount' means, with respect to any calendar quarter, the excess of—

''(I) the lowest of the gross receipts percentage point amounts determined with respect to any calendar quarter during the period ending with such calendar quarter and beginning with the first calendar quarter during the period described in subparagraph (B), over

''(II) 50 percentage points.

''(iii) GROSS RECEIPTS PERCENTAGE POINT AMOUNTS.—For purposes of this subparagraph, the term 'gross receipts percentage point amount' means, with respect to any calendar quarter, the percentage (expressed as a number of percentage points) obtained by dividing—

''(I) the gross receipts (within the meaning of subparagraph (B)) for such calendar quarter, by

''(II) the gross receipts for the same calendar quarter in calendar year 2019.''.

(3) GROSS RECEIPTS OF TAX-EXEMPT ORGANIZATIONS.—Section 2301(c)(2)(C) of the CARES Act is amended—

(A) by striking ''of such Code, clauses (i) and (ii)(I)'' and inserting ''of such Code—

''(i) clauses (i) and (ii)(I)'',

(B) by striking the period at the end and inserting '', and'', and

(C) by adding at the end the following new clause:

''(ii) any reference in this section to gross receipts shall be treated as a reference to gross receipts within the meaning of section 6033 of such Code.''.

(f) MODIFICATION OF TREATMENT OF HEALTH PLAN EXPENSES.—

(1) IN GENERAL.—Section 2301(c)(5) of the CARES Act is amended to read as follows:

''(5) WAGES.—

''(A) IN GENERAL.—The term 'wages' means wages (as defined in section 3121(a) of the Internal Revenue Code of 1986) and compensation (as defined in section 3231(e) of such Code).

''(B) ALLOWANCE FOR CERTAIN HEALTH PLAN EXPENSES.—

''(i) IN GENERAL.—Such term shall include amounts paid or incurred by the eligible employer to provide and maintain a group health plan (as defined in section 5000(b)(1) of the Internal Revenue Code of 1986), but only to the extent that such amounts are excluded from the gross income of employees by reason of section 106(a) of such Code.

''(ii) ALLOCATION RULES.—For purposes of this section, amounts treated as wages under clause (i) shall be treated as paid with respect to any employee (and with respect to any period) to the extent that such amounts are properly allocable to such employee (and to such period) in such manner as the Secretary may prescribe. Except as otherwise provided by the Secretary, such allocation shall be treated as properly made if made on the basis of being pro rata among periods of coverage.''.

(2) CONFORMING AMENDMENT.—Section 2301(c)(3) of the CARES Act is amended by striking subparagraph (C).

(g) QUALIFIED WAGES PERMITTED TO INCLUDE AMOUNTS FOR TIP REPLACEMENT.—Section 2301(c)(3)(B) of the CARES Act is amended by inserting ''(including tips which would have been deemed to be paid by the employer under section 3121(q))'' after ''would have been paid''.

(h) CERTAIN GOVERNMENTAL EMPLOYERS ELIGIBLE FOR CREDIT.—

(1) IN GENERAL.—Section 2301(f) of the CARES Act is amended to read as follows:

''(f) CERTAIN GOVERNMENTAL EMPLOYERS.—

''(1) IN GENERAL.—The credit under this section shall not be allowed to the Federal Government or any agency or instrumentality thereof.

''(2) EXCEPTION.—Paragraph (1) shall not apply to any organization described in section 501(c)(1) of the Internal Revenue Code of 1986 and exempt from tax under section 501(a) of such Code.

''(3) SPECIAL RULES.—In the case of any State government, Indian tribal government, or any agency, instrumentality, or political subdivision of the foregoing—

''(A) clauses (i) and (ii)(I) of subsection (c)(2)(A) shall apply to all operations of such entity, and

''(B) subclause (II) of subsection (c)(2)(A)(ii) shall not apply.''.

(2) COORDINATION WITH APPLICATION OF CERTAIN DEFINITIONS.—

(A) IN GENERAL.—Section 2301(c)(5)(A) of the CARES Act, as amended by the preceding provisions of this Act, is amended by adding at the end the following: ''For purposes of the preceding sentence (other than for purposes of subsection (b)(2)), wages as defined in section 3121(a) of the Internal Revenue Code of 1986 shall be determined without regard to paragraphs (1), (5), (6), (7), (8), (10), (13), (18), (19), and (22) of section 3212(b) of such Code (except with respect to services performed in a penal institution by an inmate thereof).''.

(B) CONFORMING AMENDMENTS.—Sections 2301(c)(6) of the CARES Act is amended by striking ''Any term'' and inserting ''Except as otherwise provided in this section, any term''.

(i) COORDINATION WITH INCOME TAX CREDITS.—Section 2301(h) of the CARES Act, as amended by preceding provisions of this Act, is amended—

(1) by striking paragraphs (1) and (2) and inserting the following:

''(1) COORDINATION WITH INCOME TAX CREDITS.—Any wages taken into account in determining the credit allowed under this section shall not be taken into account as wages for purposes of sections 41, 45A, 45B, 45P, 45S, 51, and 1396 of the Internal Revenue 23 Code of 1986.'', and

(2) by redesignating paragraph (3) as paragraph (2).

(j) APPLICATION OF CREDIT TO EMPLOYERS OF DOMESTIC WORKERS.—

(1) IN GENERAL.—Section 2301(c)(2) of the CARES Act, as amended by the preceding provisions of this Act, is amended by adding at the end the following new subparagraph:

''(E) EMPLOYERS OF DOMESTIC WORKERS.—In the case of an employer with one or more employees who perform domestic service (within the meaning of section 3121(a)(7) of such Code) in the private home of such employer, with respect to such employees—

''(i) subparagraph (A) shall be applied—

''(I) by substituting 'employing an employee who performs domestic service in the private home of such employer' for 'carrying on a trade or business' in clause (i) thereof, and

''(II) by substituting 'such employment' for 'the operation of the trade or business' in clause (ii)(I) thereof.

''(ii) subclause (II) of subparagraph (A)(ii) shall not apply, and

''(iii) such employer shall be treated as a large employer.''.

(2) DENIAL OF DOUBLE BENEFIT.—Section 2301(h)(1) of the CARES Act, as amended by the preceding provisions of this Act, is further amended—

(A) by striking ''shall not be taken into account as wages'' and inserting ''shall not be taken into account as—

''(A) wages'',

(B) by striking the period at the end and inserting '', and'', and

(C) by adding at the end the following:

''(B) if such wages are paid for domestic service described in subsection (c)(2)(E), as employment-related expenses for purposes of section 21 of such Code.

In the case of any individual who pays wages for domestic service described in subsection (c)(2)(E) and receives a reimbursement for such wages which is excludible from gross income under section 129 of such Code, such wages shall not be treated as qualified wages for purposes of this section.''.

(k) COORDINATION WITH GOVERNMENT GRANTS.—Section 2301(h) of the CARES Act, as amended by the preceding provisions of this Act, is further amended by adding at the end the following new paragraph:

''(3) COORDINATION WITH GOVERNMENT GRANTS.—Qualified wages shall not be taken into account under this section to the extent that grants (or similar amounts) are provided by the Federal government for purposes of paying or reimbursing expenses for such wages.''.

(l) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in section 2301 of the CARES Act.

SEC. 202. CERTAIN LOAN FORGIVENESS AND OTHER BUSINESS FINANCIAL ASSISTANCE UNDER CARES ACT NOT INCLUDIBLE IN GROSS INCOME.

(a) UNITED STATES TREASURY PROGRAM MANAGEMENT AUTHORITY.—For purposes of the Internal Revenue Code of 1986, no amount shall be included in gross income by reason of loan forgiveness described in section 1109(d)(2)(D) of the CARES Act.

(b) EMERGENCY EIDL GRANTS.—For purposes of the Internal Revenue Code of 1986, any advance described in section 1110(e) of the CARES Act shall not be included in the gross income of the person that receives such advance.

(c) SUBSIDY FOR CERTAIN LOAN PAYMENTS.—For purposes of the Internal Revenue Code of 1986, any payment described in section 1112(c) of the CARES Act shall not be included in the gross income of the person on whose behalf such payment is made.

(d) RESTAURANTS GRANTS.—For purposes of the Internal Revenue Code of 1986, any grants (or similar amounts) made to an eligible entity under the RESTAURANTS Act of 2020 shall not be included in the gross income of such entity.

(e) EFFECTIVE DATE.—(1) Subsections (a), (b), and (c) shall apply to taxable years ending after the date of the enactment of the CARES Act.

(2) RESTAURANTS GRANTS.—Subsection (d) shall apply to taxable years ending after the date of the enactment of the RESTAURANTS Act of 2020.

SEC. 203. CLARIFICATION OF TREATMENT OF EXPENSES PAID OR INCURRED WITH PROCEEDS FROM CERTAIN GRANTS AND LOANS.

(a) IN GENERAL.—For purposes of the Internal Revenue Code of 1986 and notwithstanding any other provision of law, any deduction and the basis of any property shall be determined without regard to whether any amount is excluded from gross income under section 202 of this Act or section 1106(i) of the CARES Act.

(b) CLARIFICATION OF EXCLUSION OF LOAN FORGIVENESS.—Section 1106(i) of the CARES Act is amended to read as follows:

''(i) TAXABILITY.—For purposes of the Internal Revenue Code of 1986, no amount shall be included in the gross income of the eligible recipient by reason of forgiveness of indebtedness described in subsection (b).''.

(c) EFFECTIVE DATE.—Subsection (a) and the amendment made by subsection (b) shall apply to taxable years ending after the date of the enactment of the CARES Act.

TITLE III—NET OPERATING LOSSES

SEC. 301. LIMITATION ON EXCESS BUSINESS LOSSES OF NON-CORPORATE TAXPAYERS RESTORED AND MADE PERMANENT.

(a) IN GENERAL.—Section 461(l)(1) of the Internal Revenue Code of 1986 is amended to read as follows:

''(1) LIMITATION.—In the case of a taxpayer other than a corporation, any excess business loss of the taxpayer shall not be allowed.''.

(b) FARMING LOSSES.—Section 461 of such Code is amended by striking subsection (j).

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after December 31, 2017.

SEC. 302. CERTAIN TAXPAYERS ALLOWED CARRYBACK OF NET OPERATING LOSSES ARISING IN 2019 AND 2020.

(a) CARRYBACK OF LOSSES ARISING IN 2019 AND 2020.—

(1) IN GENERAL.—Section 172(b)(1)(D)(i) of the Internal Revenue Code of 1986 is amended to read as follows:

''(i) IN GENERAL.—In the case of any net operating loss arising in a taxable year beginning after December 31, 2018, and before January 1, 2021, and to which subparagraphs (B) and (C)(i) do not apply, such loss shall be a net operating loss carryback to each taxable year preceding the taxable year of such loss, but not to any taxable year beginning before January 1, 2018.''.

(2) CONFORMING AMENDMENTS.—

(A) The heading for section 172(b)(1)(D) of such Code is amended by striking ''2018, 2019, AND'' and inserting ''2019 AND''.

(B) Section 172(b)(1)(D) of such Code is amended by striking clause (iii) and by redesignating clauses (iv) and (v) as clauses (iii) and (iv), respectively.

(C) Section 172(b)(1)(D)(iii) of such Code, as so redesignated, is amended by striking ''(i)(I)'' and inserting ''(i)''.

(D) Section 172(b)(1)(D)(iv) of such Code, as so redesignated, is amended—

(i) by striking ''If the 5-year carryback period under clause (i)(I)'' in subclause (I) and inserting ''If the carryback period under clause (i)'', and

(ii) by striking ''2018 or'' in subclause (II).

(b) DISALLOWED FOR CERTAIN TAXPAYERS.—Section 172(b)(1)(D) of such Code, as amended by the preceding provisions of this Act, is amended by adding at the end the following new clauses:

''(v) CARRYBACK DISALLOWED FOR CERTAIN TAXPAYERS.—Clause (i) shall not apply with respect to any loss arising in a taxable year in which—

''(I) the taxpayer (or any related person) is not allowed a deduction under this chapter for the taxable year by reason of section 162(m) or section 280G, or

''(II) the taxpayer (or any related person) is a specified corporation for the taxable year.

''(vi) SPECIFIED CORPORATION.—For purposes of clause (v)—

''(I) IN GENERAL.—The term 'specified corporation' means, with respect to any taxable year, a corporation the fair market value of the aggregate distributions (including redemptions), measured as of the date of each such distribution, of which during all taxable years ending after December 31, 2017, exceed the sum of applicable stock issued of such corporation and 5 percent of the fair market value of the stock of such corporation as of the last day of the taxable year.

''(II) APPLICABLE STOCK ISSUED.—The term 'applicable stock issued' means, with respect to any corporation, the aggregate fair market value of stock (as of the issue date of such stock) issued by the corporation during all taxable years ending after December 31, 2017, in exchange for money or property other than stock in such corporation.

''(III) CERTAIN PREFERRED STOCK DISREGARDED.—For purposes of subclause (I), stock

described in section 1504(a)(4), and distributions (including redemptions) with respect to such stock, shall be disregarded.

''(vii) RELATED PERSON.—For purposes of clause (v), a person is a related person to a taxpayer if the related person bears a relationship to the taxpayer specified in section 267(b) or section 707(b)(1).''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the enactment of section 2303(b) of the Coronavirus Aid, Relief, and Economic Security Act.

DIVISION G—RETIREMENT PROVISIONS

SEC. 100. SHORT TITLE, ETC.

(a) SHORT TITLE.—This division may be cited as the ''Emergency Pension Plan Relief Act of 2020''.

(b) TABLE OF CONTENTS.—The table of contents for this division is as follows:

Sec. 100. Short title, etc.

TITLE I—RELIEF FOR MULTIEMPLOYER PENSION PLANS

Sec. 101. Special partition relief.
Sec. 102. Repeal of benefit suspensions for multiemployer plans in critical and declining status.
Sec. 103. Temporary delay of designation of multiemployer plans as in endangered, critical, or critical and declining status.
Sec. 104. Temporary extension of the funding improvement and rehabilitation periods for multiemployer pension plans in critical and endangered status for 2020 or 2021.
Sec. 105. Adjustments to funding standard account rules.
Sec. 106. PBGC guarantee for participants in multiemployer plans.

TITLE II—RELIEF FOR SINGLE EMPLOYER PENSION PLANS

Sec. 201. Extended amortization for single employer plans.
Sec. 202. Extension of pension funding stabilization percentages for single employer plans.

TITLE III—OTHER RETIREMENT RELATED PROVISIONS

Sec. 301. Waiver of required minimum distributions for 2019.
Sec. 302. Waiver of 60-day rule in case of rollover of otherwise required minimum distributions in 2019 or 2020.
Sec. 303. Exclusion of benefits provided to volunteer firefighters and emergency medical responders made permanent.
Sec. 304. Application of special rules to money purchase pension plans.
Sec. 305. Grants to assist low-income women and survivors of domestic violence in obtaining qualified domestic relations orders.
Sec. 306. Modification of special rules for minimum funding standards for community newspaper plans.
Sec. 307. Minimum rate of interest for certain determinations related to life insurance contracts.

TITLE I—RELIEF FOR MULTIEMPLOYER PENSION PLANS

SEC. 101. SPECIAL PARTITION RELIEF.

(a) APPROPRIATION.—Section 4005 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1305) is amended by adding at the end the following:

''(i)(1) An eighth fund shall be established for partition assistance to multiemployer pension plans, as provided under section 4233A, and to pay for necessary administrative and operating expenses relating to such assistance.

''(2) There is appropriated from the general fund such amounts as necessary for the costs of providing partition assistance under section 4233A and necessary administrative and operating expenses. The eighth fund established under this subsection shall be credited with such amounts from time to time as the Secretary of the Treasury determines appropriate, from the general fund of the Treasury, and such amounts shall remain available until expended.''.

(b) SPECIAL PARTITION AUTHORITY.—The Employee Retirement Income Security Act of 1974 (29 U.S.C. 1001 et seq.) is amended by inserting after section 4233 the following:

''SEC. 4233A. SPECIAL PARTITION RELIEF.

''(a) SPECIAL PARTITION AUTHORITY.—

''(1) IN GENERAL.—Upon the application of a plan sponsor of an eligible multiemployer plan for partition of the plan under this section, the corporation shall order a partition of the plan in accordance with this section.

''(2) INAPPLICABILITY OF CERTAIN REPAYMENT OBLIGATION.—A plan receiving partition assistance pursuant to this section shall not be subject to repayment obligations under section 4261(b)(2).

''(b) ELIGIBLE PLANS.—

''(1) IN GENERAL.—For purposes of this section, a multiemployer plan is an eligible multiemployer plan if—

''(A) the plan is in critical and declining status (within the meaning of section 305(b)(6)) in any plan year beginning in 2020 through 2024;

''(B) a suspension of benefits has been approved with respect to the plan under section 305(e)(9) as of the date of the enactment of this section;

''(C) in any plan year beginning in 2020 through 2024, the plan is certified by the plan actuary to be in critical status (within the meaning of section 305(b)(2)), has a modified funded percentage of less than 40 percent, and has a ratio of active to inactive participants which is less than 2 to 3; or

''(D) the plan is insolvent for purposes of section 418E of the Internal Revenue Code of 1986 as of the date of enactment of this section, if the plan became insolvent after December 16, 2014, and has not been terminated by such date of enactment.

''(2) MODIFIED FUNDED PERCENTAGE.—For purposes of paragraph (1)(C), the term 'modified funded percentage' means the percentage equal to a fraction the numerator of which is current value of plan assets (as defined in section 3(26) of such Act) and the denominator of which is current liabilities (as defined in section 431(c)(6)(D) of such Code and section 304(c)(6)(D) of such Act).

''(c) APPLICATIONS FOR SPECIAL PARTITION.—

''(1) GUIDANCE.—The corporation shall issue guidance setting forth requirements for special partition applications under this section not later than 120 days after the date of the enactment of this section. In such guidance, the corporation shall—

''(A) limit the materials required for a special partition application to the minimum necessary to make a determination on the application; and

''(B) provide for an alternate application for special partition under this section, which may be used by a plan that has been approved for a partition under section 4233 before the date of enactment of this section.

''(2) TEMPORARY PRIORITY CONSIDERATION OF APPLICATIONS.—

''(A) IN GENERAL.—The corporation may specify in guidance under paragraph (1) that, during the first 2 years following the date of enactment of this section, special partition applications will be provided priority consideration, if—

''(i) the plan is likely to become insolvent within 5 years of the date of enactment of this section;

''(ii) the corporation projects a plan to have a present value of financial assistance payments under section 4261 that exceeds $1,000,000,000 if the special partition is not ordered;

''(iii) the plan has implemented benefit suspensions under section 305(e)(9) as of the date of the enactment of this section; or

''(iv) the corporation determines it appropriate based on other circumstances.

''(B) NO EFFECT ON AMOUNT OF ASSISTANCE.—A plan that is approved for special partition assistance under this section shall not receive reduced special partition assistance on account of not receiving priority consideration under subparagraph (A).

''(3) ACTUARIAL ASSUMPTIONS AND OTHER INFORMATION.—The corporation shall accept assumptions incorporated in a multiemployer plan's determination that it is in critical status or critical and declining status (within the meaning of section 305(b)), or that the plan's modified funded percentage is less than 40 percent, unless such assumptions are clearly erroneous. The corporation may require such other information as the corporation determines appropriate for making a determination of eligibility and the amount of special partition assistance necessary under this section.

''(4) APPLICATION DEADLINE.—Any application by a plan for special partition assistance under this section shall be submitted no later than December 31, 2026, and any revised application for special partition assistance shall be submitted no later than December 31, 2027.

''(5) NOTICE OF APPLICATION.—Not later than 120 days after the date of enactment of this section, the corporation shall issue guidance requiring multiemployer plans to notify participants and beneficiaries that the plan has applied for partition under this section, after the corporation has determined that the application is complete. Such notice shall reference the special partition relief internet website described in subsection (p).

''(d) DETERMINATIONS ON APPLICATIONS.—A plan's application for special partition under this section that is timely filed in accordance with guidance issued under subsection (c)(1) shall be deemed approved and the corporation shall issue a special partition order unless the corporation notifies the plan within 120 days of the filing of the application that the application is incomplete or the plan is not eligible under this section. Such notice shall specify the reasons the plan is ineligible for a special partition or information needed to complete the application. If a plan is denied partition under this subsection, the plan may submit a revised application under this section. Any revised application for special partition submitted by a plan shall be deemed approved unless the corporation notifies the plan within 120 days of the filing of the revised application that the application is incomplete or the plan is not eligible under this section. A special partition order issued by the corporation shall be effective no later than 120 days after a plan's special partition application is approved by the corporation or deemed approved.

''(e) AMOUNT AND MANNER OF SPECIAL PARTITION ASSISTANCE.—

''(1) IN GENERAL.—The liabilities of an eligible multiemployer plan that the corporation assumes pursuant to a special partition order under this section shall be the amount necessary for the plan to meet its funding goals described in subsection (g).

''(2) NO CAP.—Liabilities assumed by the corporation pursuant to a special partition order under this section shall not be capped by the guarantee under section 4022A. The corporation shall have discretion on how liabilities of the plan are partitioned.

''(f) SUCCESSOR PLAN.—

''(1) IN GENERAL.—The plan created by a special partition order under this section is a successor plan to which section 4022A applies.

''(2) PLAN SPONSOR AND ADMINISTRATOR.—The plan sponsor of an eligible multiemployer plan prior to the special partition and the administrator of such plan shall be the plan sponsor and the administrator, respectively, of the plan created by the partition.

''(g) FUNDING GOALS.—

''(1) IN GENERAL.—The funding goals of a multiemployer plan eligible for partition under this section are both of the following:

''(A) The plan will remain solvent over 30 years with no reduction in a participant's or beneficiary's accrued benefit (except to the extent of a reduction in accordance with section 305(e)(8) adopted prior to the plan's application for partition under this section).

''(B) The funded percentage of the plan (disregarding partitioned benefits) at the end of the 30-year period is projected to be 80 percent.

''(2) BASIS.—The funding projections under paragraph (1) shall be performed on a deterministic basis.

''(h) RESTORATION OF BENEFIT SUSPENSIONS.—An eligible multiemployer plan that is partitioned under this section shall—

''(1) reinstate any benefits that were suspended under section 305(e)(9) or section 4245(a), effective as of the first month the special partition order is effective, for participants or beneficiaries as of the effective date of the partition; and

''(2) provide payments equal to the amount of benefits previously suspended to any participants or beneficiaries in pay status as of the effective date of the special partition, payable in the form of a lump sum within 3 months of such effective date or in equal monthly installments over a period of 5 years, with no adjustment for interest.

''(i) ADJUSTMENT OF SPECIAL PARTITION ASSISTANCE.—

''(1) IN GENERAL.—Every 5 years, the corporation shall adjust the special partition assistance described in subsection (e) as necessary for the eligible multiemployer plan to satisfy the funding goals described in subsection (g). If the 30 year period described in subsection (g) has lapsed, in applying this paragraph, 5 years shall be substituted for 30 years.

''(2) SUBMISSION OF INFORMATION.—An eligible multiemployer plan that is the subject of a special partition order under subsection (a) shall submit such information as the corporation may require to determine the amount of the adjustment under paragraph (1).

''(3) CESSATION OF ADJUSTMENTS.—Adjustments under this subsection with respect to special partition assistance for an eligible multiemployer plan shall cease and the corporation shall permanently assume liability for payment of any benefits transferred to the successor plan (subject to subsection (l)) beginning with the first plan year that the funded percentage of the eligible multiemployer plan (disregarding partitioned benefits) is at least 80 percent and the plan's projected funded percentage for each of the next 10 years is at least 80 percent. Any accumulated funding deficiency of the plan (within the meaning of section 304(a)) shall be reduced to zero as of the first day of the plan year for which partition assistance is permanent under this paragraph.

''(j) CONDITIONS ON PLANS DURING PARTITION.—

''(1) IN GENERAL.—The corporation may impose, by regulation, reasonable conditions on an eligible multiemployer plan that is partitioned under section (a) relating to increases in future accrual rates and any retroactive benefit improvements, allocation of plan assets, reductions in employer contribution rates, diversion of contributions to, and allocation of, expenses to other retirement plans, and withdrawal liability.

''(2) LIMITATIONS.—The corporation shall not impose conditions on an eligible multiemployer plan as a condition of or following receipt of such partition assistance under this section relating to—

''(A) any reduction in plan benefits (including benefits that may be adjusted pursuant to section 305(e)(8));

''(B) plan governance, including selection of, removal of, and terms of contracts with, trustees, actuaries, investment managers, and other service providers; or

''(C) any funding rules relating to the plan that is partitioned under this section.

''(3) CONDITION.—An eligible multiemployer plan that is partitioned under subsection (a) shall continue to pay all premiums due under section 4007 for participants and beneficiaries in the plan created by a special partition order until the plan year beginning after a cessation of adjustments applies under subsection (i).

''(k) WITHDRAWAL LIABILITY.—An employer's withdrawal liability for purposes of this title shall be calculated taking into account any plan liabilities that are partitioned under subsection (a) until the plan year beginning after the expiration of 15 calendar years from the effective date of the partition.

''(l) CESSATION OF PARTITION ASSISTANCE.—If a plan that receives partition assistance under this section becomes insolvent for purposes of section 418E of the Internal Revenue Code of 1986, the plan shall no longer be eligible for assistance under this section and shall be eligible for assistance under section 4261.

''(m) REPORTING.—An eligible multiemployer plan that receives partition assistance under this section shall file with the corporation a report, including the following information, in such manner (which may include electronic filing requirements) and at such time as the corporation requires:

''(1) The funded percentage (as defined in section 305(j)(2)) as of the first day of such plan year, and the underlying actuarial value of assets and liabilities taken into account in determining such percentage.

''(2) The market value of the assets of the plan (determined as provided in paragraph (1)) as of the last day of the plan year preceding such plan year.

''(3) The total value of all contributions made by employers and employees during the plan year preceding such plan year.

''(4) The total value of all benefits paid during the plan year preceding such plan year.

''(5) Cash flow projections for such plan year and the 9 succeeding plan years, and the assumptions used in making such projections.

''(6) Funding standard account projections for such plan year and the 9 succeeding plan years, and the assumptions relied upon in making such projections.

''(7) The total value of all investment gains or losses during the plan year preceding such plan year.

''(8) Any significant reduction in the number of active participants during the plan year preceding such plan year, and the reason for such reduction.

''(9) A list of employers that withdrew from the plan in the plan year preceding such plan year, the payment schedule with respect to such withdrawal liability, and the resulting reduction in contributions.

''(10) A list of employers that paid withdrawal liability to the plan during the plan year preceding such plan year and, for each employer, a total assessment of the withdrawal liability paid, the annual payment amount, and the number of years remaining in the payment schedule with respect to such withdrawal liability.

''(11) Any material changes to benefits, accrual rates, or contribution rates during the plan year preceding such plan year, and whether such changes relate to the conditions of the partition assistance.

''(12) Details regarding any funding improvement plan or rehabilitation plan and updates to such plan.

''(13) The number of participants and beneficiaries during the plan year preceding such plan year who are active participants, the number of participants and beneficiaries in pay status, and the number of terminated vested participants and beneficiaries.

''(14) The information contained on the most recent annual funding notice submitted by the plan under section 101(f).

''(15) The information contained on the most recent annual return under section 6058 of the Internal Revenue Code of 1986 and actuarial report under section 6059 of such Code of the plan.

''(16) Copies of the plan document and amendments, other retirement benefit or ancillary benefit plans relating to the plan and contribution obligations under such plans, a breakdown of administrative expenses of the plan, participant census data and distribution of benefits, the most recent actuarial valuation report as of the plan year, financial reports, and copies of the portions of collective bargaining agreements relating to plan contributions, funding coverage, or benefits, and such other information as the corporation may reasonably require.

Any information disclosed by a plan to the corporation that could identify individual employers shall be confidential and not subject to publication or disclosure.

''(n) REPORT TO CONGRESS.—

''(1) IN GENERAL.—Not later than 1 year after the date of enactment of this section and annually thereafter, the board of directors of the corporation shall submit to the Committee on Health, Education, Labor, and Pensions and the Committee on Finance of the Senate and the Committee on Education and Labor and the Committee on Ways and Means of the House of Representatives a detailed report on the implementation and administration of this section. Such report shall include—

''(A) information on the name and number of multiemployer plans that have applied for partition assistance under this section;

''(B) the name and number of such plans that have been approved for partition assistance under this section and the name and number of the plans that have not been approved for special partition assistance;

''(C) a detailed rationale for any decision by the corporation to not approve an application for special partition assistance;

''(D) the amount of special partition assistance provided to eligible multiemployer plans (including amounts provided on an individual plan basis and in the aggregate);

''(E) the name and number of the multiemployer plans that restored benefit suspensions and provided lump sum or monthly installment payments to participants or beneficiaries;

''(F) the amount of benefits that were restored and lump sum or monthly installment payments that were paid (including amounts provided on an individual plan basis and in the aggregate);

''(G) the name and number of the plans that received adjustments to partition assistance under subsection (i);

''(H) a list of, and rationale for, each reasonable condition imposed by the corporation on plans approved for special partition assistance under this section;

''(I) the contracts that have been awarded by the corporation to implement or administer this section;

''(J) the number, purpose, and dollar amounts of the contracts that have been awarded to implement or administer the section;

''(K) a detailed summary of the reports required under subsection (m); and

''(L) a detailed summary of the feedback received on the pension relief internet website established under subsection (p).

''(2) PBGC CERTIFICATION.—The board of directors of the corporation shall include with the report under paragraph (1) a certification and affirmation that the amount of special partition assistance provided to each plan under this section is the amount necessary to meet its funding goals under subsection (g), including, if applicable, any adjustment of special partition assistance as determined under subsection (i).

''(3) CONFIDENTIALITY.—Congress may publicize the reports received under paragraph (1) only after redacting all sensitive or proprietary information.

''(o) GAO REPORT.—Not later than 1 year after the first partition application is approved

by the corporation under this section, and biennially thereafter, the Comptroller General of the United States shall submit to the Committee on Health, Education, Labor, and Pensions and the Committee on Finance of the Senate and the Committee on Education and Labor and the Committee on Ways and Means of the House of Representatives a detailed report on the actions of the corporation to implement and administer this section, including an examination of the contracts awarded by such corporation to carry out this section and an analysis of such corporation's compliance with subsections (e) and (g).

''(p) SPECIAL PARTITION RELIEF WEBSITE.—

''(1) ESTABLISHMENT.—Not later than 120 days after the date of enactment of this section, the corporation shall establish and maintain a user-friendly, public-facing internet website to foster greater accountability and transparency in the implementation and administration of this section.

''(2) PURPOSE.—The internet website established and maintained under paragraph (1) shall be a portal to key information relating to this section for multiemployer plan administrators and trustees, plan participants, beneficiaries, participating employers, other stakeholders, and the public.

''(3) CONTENT AND FUNCTION.—The internet website established under paragraph (1) shall—

''(A) describe the nature and scope of the special partition authority and assistance under this section in a manner calculated to be understood by the average plan participant;

''(B) include published guidance, regulations, and all other relevant information on the implementation and administration of this section;

''(C) include, with respect to plan applications for special partition assistance—

''(i) a general description of the process by which eligible plans can apply for special partition assistance, information on how and when the corporation will process and consider plan applications;

''(ii) information on how the corporation will address any incomplete applications as specified in under this section;

''(iii) a list of the plans that have applied for special partition assistance and, for each application, the date of submission of a completed application;

''(iv) the text of each plan's completed application for special partition assistance with appropriate redactions of personal, proprietary, or sensitive information;

''(v) the estimated date that a decision will be made by the corporation on each application;

''(vi) the actual date when such decision is made;

''(vii) the corporation's decision on each application; and

''(viii) as applicable, a detailed rationale for any decision not to approve a plan's application for special partition assistance;

''(D) provide detailed information on each contract solicited and awarded to implement or administer this section;

''(E) include reports, audits, and other relevant oversight and accountability information on this section, including the annual reports submitted by the board of directors of the corporation to Congress required under subsection (n), the Office of the Inspector General audits, correspondence, and publications, and the Government Accountability Office reports under subsection (o);

''(F) provide a clear means for multiemployer plan administrators, plan participants, beneficiaries, other stakeholders, and the public to contact the corporation and provide feedback on the implementation and administration of this section; and

''(G) be regularly updated to carry out the purposes of this subsection.

''(q) OFFICE OF INSPECTOR GENERAL.—There is authorized to be appropriated to the corporation's Office of Inspector General $24,000,000 for fiscal year 2020, which shall remain available through September 30, 2028, for salaries and expenses necessary for conducting investigations and audits of the implementation and administration of this section.

''(r) APPLICATION OF EXCISE TAX.—During the period that a plan is subject to a partition order under this section and prior to a cessation of adjustments pursuant to subsection (i)(3), the plan shall not be subject to section 4971 of the Internal Revenue Code of 1986.''.

SEC. 102. REPEAL OF BENEFIT SUSPENSIONS FOR MULTIEMPLOYER PLANS IN CRITICAL AND DECLINING STATUS.

(a) AMENDMENT TO INTERNAL REVENUE CODE OF 1986.—Paragraph (9) of section 432(e) of the Internal Revenue Code of 1986 is repealed.

(b) AMENDMENT TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Paragraph (9) of section 305(e) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085(e)) is repealed.

(c) EFFECTIVE DATE.—The repeals made by this section shall not apply to plans that have been approved for a suspension of benefit under section 432(e)(9)(G) of the Internal Revenue Code of 1986 and section 305(e)(9)(G) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085(e)(9)(G)) before the date of the enactment of this Act.

SEC. 103. TEMPORARY DELAY OF DESIGNATION OF MULTIEMPLOYER PLANS AS IN ENDANGERED, CRITICAL, OR CRITICAL AND DECLINING STATUS.

(a) IN GENERAL.—Notwithstanding the actuarial certification under section 305(b)(3) of the Employee Retirement Income Security Act of 1974 and section 432(b)(3) of the Internal Revenue Code of 1986, if a plan sponsor of a multiemployer plan elects the application of this section, then, for purposes of section 305 of such Act and section 432 of such Code—

(1) the status of the plan for its first plan year beginning during the period beginning on March 1, 2020, and ending on February 28, 2021, or the next succeeding plan year (as designated by the plan sponsor in such election), shall be the same as the status of such plan under such sections for the plan year preceding such designated plan year, and

(2) in the case of a plan which was in endangered or critical status for the plan year preceding the designated plan year described in paragraph (1), the plan shall not be required to update its plan or schedules under section 305(c)(6) of such Act and section 432(c)(6) of such Code, or section 305(e)(3)(B) of such Act and section 432(e)(3)(B) of such Code, whichever is applicable, until the plan year following the designated plan year described in paragraph (1). If section 305 of the Employee Retirement Income Security Act of 1974 and section 432 of the Internal Revenue Code of 1986 did not apply to the plan year preceding the designated plan year described in paragraph (1), the plan actuary shall make a certification of the status of the plan under section 305(b)(3) of such Act and section 432(b)(3) of such Code for the preceding plan year in the same manner as if such sections had applied to such preceding plan year.

(b) EXCEPTION FOR PLANS BECOMING CRITICAL DURING ELECTION.—If—

(1) an election was made under subsection (a) with respect to a multiemployer plan, and

(2) such plan has, without regard to such election, been certified by the plan actuary under section 305(b)(3) of the Employee Retirement Income Security Act of 1974 and section 432(b)(3) of the Internal Revenue Code of 1986 to be in critical status for the designated plan year described in subsection (a)(1), then such plan shall be treated as a plan in critical status for such plan year for purposes of applying section 4971(g)(1)(A) of such Code, section 302(b)(3) of such Act (without regard to the second sentence thereof), and section 412(b)(3) of such Code (without regard to the second sentence thereof).

(c) ELECTION AND NOTICE.—

(1) ELECTION.—An election under subsection (a)—

(A) shall be made at such time and in such manner as the Secretary of the Treasury or the Secretary's delegate may prescribe and, once made, may be revoked only with the consent of the Secretary, and

(B) if made—

(i) before the date the annual certification is submitted to the Secretary or the Secretary's delegate under section 305(b)(3) of such Act and section 432(b)(3) of such Code, shall be included with such annual certification, and

(ii) after such date, shall be submitted to the Secretary or the Secretary's delegate not later than 30 days after the date of the election.

(2) NOTICE TO PARTICIPANTS.—

(A) IN GENERAL.—Notwithstanding section 305(b)(3)(D) of the Employee Retirement Income Security Act of 1974 and section 432(b)(3)(D) of the Internal Revenue Code of 1986, if the plan is neither in endangered nor critical status by reason of an election made under subsection (a)—

(i) the plan sponsor of a multiemployer plan shall not be required to provide notice under such sections, and

(ii) the plan sponsor shall provide to the participants and beneficiaries, the bargaining parties, the Pension Benefit Guaranty Corporation, and the Secretary of Labor a notice of the election under subsection (a) and such other information as the Secretary of the Treasury (in consultation with the Secretary of Labor) may require—

(I) if the election is made before the date the annual certification is submitted to the Secretary or the Secretary's delegate under section 305(b)(3) of such Act and section 432(b)(3) of such Code, not later than 30 days after the date of the certification, and

(II) if the election is made after such date, not later than 30 days after the date of the election.

(B) NOTICE OF ENDANGERED STATUS.—Notwithstanding section 305(b)(3)(D) of such Act and section 432(b)(3)(D) of such Code, if the plan is certified to be in critical status for any plan year but is in endangered status by reason of an election made under subsection (a), the notice provided under such sections shall be the notice which would have been provided if the plan had been certified to be in endangered status.

SEC. 104. TEMPORARY EXTENSION OF THE FUNDING IMPROVEMENT AND REHABILITATION PERIODS FOR MULTIEMPLOYER PENSION PLANS IN CRITICAL AND ENDANGERED STATUS FOR 2020 OR 2021.

(a) IN GENERAL.—If the plan sponsor of a multiemployer plan which is in endangered or critical status for a plan year beginning in 2020 or 2021 (determined after application of section 4) elects the application of this section, then, for purposes of section 305 of the Employee Retirement Income Security Act of 1974 and section 432 of the Internal Revenue Code of 1986—

(1) except as provided in paragraph (2), the plan's funding improvement period or rehabilitation period, whichever is applicable, shall be 15 years rather than 10 years, and

(2) in the case of a plan in seriously endangered status, the plan's funding improvement period shall be 20 years rather than 15 years.

(b) DEFINITIONS AND SPECIAL RULES.—For purposes of this section—

(1) ELECTION.—An election under this section shall be made at such time, and in such manner and form, as (in consultation with the Secretary of Labor) the Secretary of the Treasury or the Secretary's delegate may prescribe.

(2) DEFINITIONS.—Any term which is used in this section which is also used in section 305 of the Employee Retirement Income Security Act of 1974 and section 432 of the Internal Revenue Code of 1986 shall have the same meaning as when used in such sections.

(c) EFFECTIVE DATE.—This section shall apply to plan years beginning after December 31, 2019.

SEC. 105. ADJUSTMENTS TO FUNDING STANDARD ACCOUNT RULES.

(a) ADJUSTMENTS.—

(1) AMENDMENT TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 304(b)(8) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1084(b)) is amended by adding at the end the following new subparagraph:

''(F) RELIEF FOR 2020 AND 2021.—A multiemployer plan with respect to which the solvency test under subparagraph (C) is met as of February 29, 2020, may elect to apply this paragraph by substituting 'February 29, 2020' for 'August 31, 2008' each place it appears in subparagraphs (A)(i), (B)(i)(I), and (B)(i)(II) (without regard to whether such plan previously elected the application of this paragraph). The preceding sentence shall not apply to a plan with respect to which a partition order is in effect under section 4233A.''.

(2) AMENDMENT TO INTERNAL REVENUE CODE OF 1986.—Section 431(b)(8) of the Internal Revenue Code of 1986 is amended by adding at the end the following new subparagraph:

''(F) RELIEF FOR 2020 AND 2021.—A multiemployer plan with respect to which the solvency test under subparagraph (C) is met as of February 29, 2020, may elect to apply this paragraph by substituting 'February 29, 2020' for 'August 31, 2008' each place it appears in subparagraphs (A)(i), (B)(i)(I), and (B)(i)(II) (without regard to whether such plan previously elected the application of this paragraph). The preceding sentence shall not apply to a plan with respect to which a partition order is in effect under section 4233A of the Employee Retirement Income Security Act of 1974.''.

(b) EFFECTIVE DATES.—

(1) IN GENERAL.—The amendments made by this section shall take effect as of the first day of the first plan year ending on or after February 29, 2020, except that any election a plan makes pursuant to this section that affects the plan's funding standard account for the first plan year beginning after February 29, 2020, shall be disregarded for purposes of applying the provisions of section 305 of the Employee Retirement Income Security Act of 1974 and section 432 of the Internal Revenue Code of 1986 to such plan year.

(2) RESTRICTIONS ON BENEFIT INCREASES.—Notwithstanding paragraph (1), the restrictions on plan amendments increasing benefits in sections 304(b)(8)(D) of such Act and 431(b)(8)(D) of such Code, as applied by the amendments made by this section, shall take effect on the date of enactment of this Act.

SEC. 106. PBGC GUARANTEE FOR PARTICIPANTS IN MULTIEMPLOYER PLANS.

Section 4022A(c)(1) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1322a(c)(1)) is amended by striking subparagraphs (A) and (B) and inserting the following:

''(A) 100 percent of the accrual rate up to $15, plus 75 percent of the lesser of—

''(i) $70; or

''(ii) the accrual rate, if any, in excess of $15; and

''(B) the number of the participant's years of credited service.

For each calendar year after the first full calendar year following the date of the enactment of the Emergency Pension Plan Relief Act, the accrual rates in subparagraph (A) shall increase by the national average wage index (as defined in section 209(k)(1) of the Social Security Act). For purposes of this subsection, the rates applicable for determining the guaranteed benefits of the participants of any plan shall be the rates in effect for the calendar year in which the plan becomes insolvent under section 4245 or the calendar year in which the plan is terminated, if earlier.''.

TITLE II—RELIEF FOR SINGLE EMPLOYER PENSION PLANS

SEC. 201. EXTENDED AMORTIZATION FOR SINGLE EMPLOYER PLANS.

(a) 15-YEAR AMORTIZATION UNDER THE INTERNAL REVENUE CODE OF 1986.—Section 430(c) of the Internal Revenue Code of 1986 is amended by adding at the end the following new paragraph:

''(8) 15-YEAR AMORTIZATION.—With respect to plan years beginning after December 31, 2019—

''(A) the shortfall amortization bases for all plan years preceding the first plan year beginning after December 31, 2019 (and all shortfall amortization installments determined with respect to such bases) shall be reduced to zero, and

''(B) subparagraphs (A) and (B) of paragraph (2) shall each be applied by substituting '15-plan-year period' for '7-plan-year period'.''.

(b) 15-YEAR AMORTIZATION UNDER THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 303(c) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1083(c)) is amended by adding at the end the following new paragraph:

''(8) 15-YEAR AMORTIZATION.—With respect to plan years beginning after December 31, 2019—

''(A) the shortfall amortization bases for all plan years preceding the first plan year beginning after December 31, 2019 (and all shortfall amortization installments determined with respect to such bases) shall be reduced to zero, and

''(B) subparagraphs (A) and (B) of paragraph (2) shall each be applied by substituting '15-plan-year period' for '7-plan-year period'.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to plan years beginning after December 31, 2019.

SEC. 202. EXTENSION OF PENSION FUNDING STABILIZATION PERCENTAGES FOR SINGLE EMPLOYER PLANS.

(a) AMENDMENTS TO INTERNAL REVENUE CODE OF 1986.—

(1) IN GENERAL.—The table contained in subclause (II) of section 430(h)(2)(C)(iv) of the Internal Revenue Code of 1986 is amended to read as follows:

''If the calendar year is:	*The applicable minimum percentage is:*	*The applicable maximum percentage is:*
Any year in the period starting in 2012 and ending in 2019	*90%*	*110%*
Any year in the period starting in 2020 and ending in 2025	*95%*	*105%*
2026	*90%*	*110%*
2027	*85%*	*115%*
2028	*80%*	*120%*
2029	*75%*	*125%*
After 2029	*70%*	*130%.''.*

(2) FLOOR ON 25-YEAR AVERAGES.—Subclause (I) of section 430(h)(2)(C)(iv) of such Code is amended by adding at the end the following: ''Notwithstanding anything in this subclause, if the average of the first, second, or third segment rate for any 25-year period is less than 5 percent, such average shall be deemed to be 5 percent.''.

(b) AMENDMENTS TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—

(1) IN GENERAL.—The table contained in subclause (II) of section 303(h)(2)(C)(iv) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1083(h)(2)(C)(iv)(II)) is amended to read as follows:

''If the calendar year is:	*The applicable minimum percentage is:*	*The applicable maximum percentage is:*
Any year in the period starting in 2012 and ending in 2019	*90%*	*110%*
Any year in the period starting in 2020 and ending in 2025	*95%*	*105%*
2026	*90%*	*110%*
2027	*85%*	*115%*
2028	*80%*	*120%*
2029	*75%*	*125%*
After 2029	*70%*	*130%.''.*

(2) CONFORMING AMENDMENTS.—

(A) IN GENERAL.—Section 101(f)(2)(D) of such Act (29 U.S.C. 1021(f)(2)(D)) is amended—

(i) in clause (i) by striking ''and the Bipartisan Budget Act of 2015'' both places it appears and inserting '', the Bipartisan Budget Act of 2015, and the Emergency Pension Plan Relief Act'', and

(ii) in clause (ii) by striking ''2023'' and inserting ''2029''.

(B) STATEMENTS.—The Secretary of Labor shall modify the statements required under subclauses (I) and (II) of section 101(f)(2)(D)(i) of such Act to conform to the amendments made by this section.

(3) FLOOR ON 25-YEAR AVERAGES.—Subclause (I) of section 303(h)(2)(C)(iv) of such Act (29 U.S.C. 1083(h)(2)(C)(iv)(II)) is amended by adding at the end the following: ''Notwithstanding anything in this subclause, if the average of the

first, second, or third segment rate for any 25-year period is less than 5 percent, such average shall be deemed to be 5 percent.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply with respect to plan years beginning after December 31, 2019.

TITLE III—OTHER RETIREMENT RELATED PROVISIONS

SEC. 301. WAIVER OF REQUIRED MINIMUM DISTRIBUTIONS FOR 2019.

(a) IN GENERAL.—Section 401(a)(9)(I)(i) of the Internal Revenue Code of 1986 is amended by striking ''calendar year 2020'' and inserting ''calendar years 2019 and 2020''.

(b) ELIGIBLE ROLLOVER DISTRIBUTIONS.—Section 402(c)(4) of such Code is amended by striking ''2020'' each place it appears in the last sentence and inserting ''2019 or 2020''.

(c) CONFORMING AMENDMENTS.—Section 401(a)(9)(I) of such Code is amended—

(1) by striking clause (ii) and redesignating clause (iii) as clause (ii), and

(2) by striking ''calendar year 2020'' in clause (ii)(II), as so redesignated, and inserting ''calendar years 2019 and 2020''.

(d) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the enactment of section 2203 of the Coronavirus Aid, Relief, and Economic Security Act, except that subparagraph (c)(1) thereof shall be applied by substituting ''December 31, 2018'' for ''December 31, 2019''.

SEC. 302. WAIVER OF 60-DAY RULE IN CASE OF ROLLOVER OF OTHERWISE REQUIRED MINIMUM DISTRIBUTIONS IN 2019 OR 2020.

(a) QUALIFIED TRUSTS.—402(c)(3) of the Internal Revenue Code of 1986 is amended by adding at the end the following new subparagraph:

''(D) EXCEPTION FOR ROLLOVER OF OTHERWISE REQUIRED MINIMUM DISTRIBUTIONS IN 2019 OR 2020.—In the case of an eligible rollover distribution described in the second sentence of paragraph (4), subparagraph (A) shall not apply to any transfer of such distribution made before December 1, 2020.''.

(b) INDIVIDUAL RETIREMENT ACCOUNTS.—Section 408(d)(3) of such Code is amended by adding at the end the following new subparagraph:

''(J) WAIVER OF 60-DAY RULE AND ONCE PER-YEAR LIMITATION FOR CERTAIN 2019 AND 2020 ROLLOVERS.—In the case of a distribution during 2019 or 2020 to which, under subparagraph (E), this paragraph would not have applied had the minimum distribution requirements of section 401(a)(9) applied during such years, the 60-day requirement under subparagraph (A) and the limitation under subparagraph (B) shall not apply to such distribution to the extent the amount is paid into an individual retirement account, individual retirement annuity (other than an endowment contract), or eligible retirement plan (as defined in subparagraph (A)) as otherwise required under such subparagraph before December 1, 2020.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after December 31, 2018.

SEC. 303. EXCLUSION OF BENEFITS PROVIDED TO VOLUNTEER FIREFIGHTERS AND EMERGENCY MEDICAL RESPONDERS MADE PERMANENT.

(a) IN GENERAL.—Section 139B of the Internal Revenue Code of 1986 is amended by striking subsection (d).

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2020.

SEC. 304. APPLICATION OF SPECIAL RULES TO MONEY PURCHASE PENSION PLANS.

Section 2202(a)(6)(B) of the Coronavirus Aid, Relief, and Economic Security Act is amended by inserting '', and, in the case of a money purchase pension plan, a coronavirus-related distribution which is an in-service withdrawal shall be treated as meeting the distribution rules of section 401(a) of such Code'' before the period.

SEC. 305. GRANTS TO ASSIST LOW-INCOME WOMEN AND SURVIVORS OF DOMESTIC VIOLENCE IN OBTAINING QUALIFIED DOMESTIC RELATIONS ORDERS.

(a) AUTHORIZATION OF GRANT AWARDS.—The Secretary of Labor, acting through the Director of the Women's Bureau and in conjunction with the Assistant Secretary of the Employee Benefits Security Administration, shall award grants, on a competitive basis, to eligible entities to enable such entities to assist low-income women and survivors of domestic violence in obtaining qualified domestic relations orders and ensuring that those women actually obtain the benefits to which they are entitled through those orders.

(b) DEFINITION OF ELIGIBLE ENTITY.—In this section, the term ''eligible entity'' means a community-based organization with proven experience and expertise in serving women and the financial and retirement needs of women.

(c) APPLICATION.—An eligible entity that desires to receive a grant under this section shall submit an application to the Secretary of Labor at such time, in such manner, and accompanied by such information as the Secretary of Labor may require.

(d) MINIMUM GRANT AMOUNT.—The Secretary of Labor shall award grants under this section in amounts of not less than $250,000.

(e) USE OF FUNDS.—An eligible entity that receives a grant under this section shall use the grant funds to develop programs to offer help to low-income women or survivors of domestic violence who need assistance in preparing, obtaining, and effectuating a qualified domestic relations order.

(f) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $100,000,000 for fiscal year 2020 and each succeeding fiscal year.

SEC. 306. MODIFICATION OF SPECIAL RULES FOR MINIMUM FUNDING STANDARDS FOR COMMUNITY NEWSPAPER PLANS.

(a) AMENDMENT TO INTERNAL REVENUE CODE OF 1986.—Subsection (m) of section 430 of the Internal Revenue Code of 1986, as added by the Setting Every Community Up for Retirement Enhancement Act of 2019, is amended to read as follows:

''(m) SPECIAL RULES FOR COMMUNITY NEWSPAPER PLANS.—

''(1) IN GENERAL.—An eligible newspaper plan sponsor of a plan under which no participant has had the participant's accrued benefit increased (whether because of service or compensation) after April 2, 2019, may elect to have the alternative standards described in paragraph (4) apply to such plan.

''(2) ELIGIBLE NEWSPAPER PLAN SPONSOR.—The term 'eligible newspaper plan sponsor' means the plan sponsor of—

''(A) any community newspaper plan, or

''(B) any other plan sponsored, as of April 2, 2019, by a member of the same controlled group of a plan sponsor of a community newspaper plan if such member is in the trade or business of publishing 1 or more newspapers.

''(3) ELECTION.—An election under paragraph (1) shall be made at such time and in such manner as prescribed by the Secretary. Such election, once made with respect to a plan year, shall apply to all subsequent plan years unless revoked with the consent of the Secretary.

''(4) ALTERNATIVE MINIMUM FUNDING STANDARDS.—The alternative standards described in this paragraph are the following:

''(A) INTEREST RATES.—

''(i) IN GENERAL.—Notwithstanding subsection (h)(2)(C) and except as provided in clause (ii), the first, second, and third segment rates in effect for any month for purposes of this section shall be 8 percent.

''(ii) NEW BENEFIT ACCRUALS.—Notwithstanding subsection (h)(2), for purposes of determining the funding target and normal cost of a plan for any plan year, the present value of any benefits accrued or earned under the plan for a plan year with respect to which an election under paragraph (1) is in effect shall be determined on the basis of the United States Treasury obligation yield curve for the day that is the valuation date of such plan for such plan year.

''(iii) UNITED STATES TREASURY OBLIGATION YIELD CURVE.—For purposes of this subsection, the term 'United States Treasury obligation yield curve' means, with respect to any day, a yield curve which shall be prescribed by the Secretary for such day on interest-bearing obligations of the United States.

''(B) SHORTFALL AMORTIZATION BASE.—

''(i) PREVIOUS SHORTFALL AMORTIZATION BASES.—The shortfall amortization bases determined under subsection (c)(3) for all plan years preceding the first plan year to which the election under paragraph (1) applies (and all shortfall amortization installments determined with respect to such bases) shall be reduced to zero under rules similar to the rules of subsection (c)(6).

''(ii) NEW SHORTFALL AMORTIZATION BASE.—Notwithstanding subsection (c)(3), the shortfall amortization base for the first plan year to which the election under paragraph (1) applies shall be the funding shortfall of such plan for such plan year (determined using the interest rates as modified under subparagraph (A)).

''(C) DETERMINATION OF SHORTFALL AMORTIZATION INSTALLMENTS.—

''(i) 30-YEAR PERIOD.—Subparagraphs (A) and (B) of subsection (c)(2) shall be applied by substituting '30-plan-year' for '7-plan-year' each place it appears.

''(ii) NO SPECIAL ELECTION.—The election under subparagraph (D) of subsection (c)(2) shall not apply to any plan year to which the election under paragraph (1) applies.

''(D) EXEMPTION FROM AT-RISK TREATMENT.—Subsection (i) shall not apply.

''(5) COMMUNITY NEWSPAPER PLAN.—For purposes of this subsection—

''(A) IN GENERAL.—The term 'community newspaper plan' means any plan to which this section applies maintained as of December 31, 2018, by an employer which—

''(i) maintains the plan on behalf of participants and beneficiaries with respect to employment in the trade or business of publishing 1 or more newspapers which were published by the employer at any time during the 11-year period ending on the date of the enactment of this subsection,

''(ii)(I) is not a company the stock of which is publicly traded (on a stock exchange or in an over-the-counter market), and is not controlled, directly or indirectly, by such a company, or

''(II) is controlled, directly or indirectly, during the entire 30-year period ending on the date of the enactment of this subsection by individuals who are members of the same family, and does not publish or distribute a daily newspaper that is carrier-distributed in printed form in more than 5 States, and

''(iii) is controlled, directly or indirectly—

''(I) by 1 or more persons residing primarily in a State in which the community newspaper has been published on newsprint or carrier-distributed,

''(II) during the entire 30-year period ending on the date of the enactment of this subsection by individuals who are members of the same family,

''(III) by 1 or more trusts, the sole trustees of which are persons described in subclause (I) or (II), or

''(IV) by a combination of persons described in subclause (I), (II), or (III).

''(B) NEWSPAPER.—The term 'newspaper' does not include any newspaper (determined without regard to this subparagraph) to which any of the following apply:

''(i) Is not in general circulation.

''(ii) Is published (on newsprint or electronically) less frequently than 3 times per week.

''(iii) Has not ever been regularly published on newsprint.

''(iv) Does not have a bona fide list of paid subscribers.

''(C) CONTROL.—A person shall be treated as controlled by another person if such other person possesses, directly or indirectly, the power to direct or cause the direction and management of such person (including the power to elect a majority of the members of the board of directors of such person) through the ownership of voting securities.

''(6) CONTROLLED GROUP.—For purposes of this subsection, the term 'controlled group' means all persons treated as a single employer under subsection (b), (c), (m), or (o) of section 414 as of the date of the enactment of this subsection.''.

(b) AMENDMENT TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Subsection (m) of section 303 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1083(m)), as added by the Setting Every Community Up for Retirement Enhancement Act of 2019, is amended to read as follows:

''(m) SPECIAL RULES FOR COMMUNITY NEWSPAPER PLANS.—

''(1) IN GENERAL.—An eligible newspaper plan sponsor of a plan under which no participant has had the participant's accrued benefit increased (whether because of service or compensation) after April 2, 2019, may elect to have the alternative standards described in paragraph (4) apply to such plan.

''(2) ELIGIBLE NEWSPAPER PLAN SPONSOR.—The term 'eligible newspaper plan sponsor' means the plan sponsor of—

''(A) any community newspaper plan, or

''(B) any other plan sponsored, as of April 2, 2019, by a member of the same controlled group of a plan sponsor of a community newspaper plan if such member is in the trade or business of publishing 1 or more newspapers.

''(3) ELECTION.—An election under paragraph (1) shall be made at such time and in such manner as prescribed by the Secretary of the Treasury. Such election, once made with respect to a plan year, shall apply to all subsequent plan years unless revoked with the consent of the Secretary of the Treasury.

''(4) ALTERNATIVE MINIMUM FUNDING STANDARDS.—The alternative standards described in this paragraph are the following:

''(A) INTEREST RATES.—

''(i) IN GENERAL.—Notwithstanding subsection (h)(2)(C) and except as provided in clause (ii), the first, second, and third segment rates in effect for any month for purposes of this section shall be 8 percent.

''(ii) NEW BENEFIT ACCRUALS.—Notwithstanding subsection (h)(2), for purposes of determining the funding target and normal cost of a plan for any plan year, the present value of any benefits accrued or earned under the plan for a plan year with respect to which an election under paragraph (1) is in effect shall be determined on the basis of the United States Treasury obligation yield curve for the day that is the valuation date of such plan for such plan year.

''(iii) UNITED STATES TREASURY OBLIGATION YIELD CURVE.—For purposes of this subsection, the term 'United States Treasury obligation yield curve' means, with respect to any day, a yield curve which shall be prescribed by the Secretary of the Treasury for such day on interest-bearing obligations of the United States.

''(B) SHORTFALL AMORTIZATION BASE.—

''(i) PREVIOUS SHORTFALL AMORTIZATION BASES.—The shortfall amortization bases determined under subsection (c)(3) for all plan years preceding the first plan year to which the election under paragraph (1) applies (and all shortfall amortization installments determined with respect to such bases) shall be reduced to zero under rules similar to the rules of subsection (c)(6).

''(ii) NEW SHORTFALL AMORTIZATION BASE.—Notwithstanding subsection (c)(3), the shortfall amortization base for the first plan year to which the election under paragraph (1) applies shall be the funding shortfall of such plan for such plan year (determined using the interest rates as modified under subparagraph (A)).

''(C) DETERMINATION OF SHORTFALL AMORTIZATION INSTALLMENTS.—

''(i) 30-YEAR PERIOD.—Subparagraphs (A) and (B) of subsection (c)(2) shall be applied by substituting '30-plan-year' for '7-plan-year' each place it appears.

''(ii) NO SPECIAL ELECTION.—The election under subparagraph (D) of subsection (c)(2) shall not apply to any plan year to which the election under paragraph (1) applies.

''(D) EXEMPTION FROM AT-RISK TREATMENT.—Subsection (i) shall not apply.

''(5) COMMUNITY NEWSPAPER PLAN.—For purposes of this subsection—

''(A) IN GENERAL.—The term 'community newspaper plan' means a plan to which this section applies maintained as of December 31, 2018, by an employer which—

''(i) maintains the plan on behalf of participants and beneficiaries with respect to employment in the trade or business of publishing 1 or more newspapers which were published by the employer at any time during the 11-year period ending on the date of the enactment of this subsection,

''(ii)(I) is not a company the stock of which is publicly traded (on a stock exchange or in an over-the-counter market), and is not controlled, directly or indirectly, by such a company, or

''(II) is controlled, directly, or indirectly, during the entire 30-year period ending on the date of the enactment of this subsection by individuals who are members of the same family, and does not publish or distribute a daily newspaper that is carrier-distributed in printed form in more than 5 States, and

''(iii) is controlled, directly, or indirectly—

''(I) by 1 or more persons residing primarily in a State in which the community newspaper has been published on newsprint or carrier-distributed,

''(II) during the entire 30-year period ending on the date of the enactment of this subsection by individuals who are members of the same family,

''(III) by 1 or more trusts, the sole trustees of which are persons described in subclause (I) or (II), or

''(IV) by a combination of persons described in subclause (I), (II), or (III).

''(B) NEWSPAPER.—The term 'newspaper' does not include any newspaper (determined without regard to this subparagraph) to which any of the following apply:

''(i) Is not in general circulation.

''(ii) Is published (on newsprint or electronically) less frequently than 3 times per week.

''(iii) Has not ever been regularly published on newsprint.

''(iv) Does not have a bona fide list of paid subscribers.

''(C) CONTROL.—A person shall be treated as controlled by another person if such other person possesses, directly or indirectly, the power to direct or cause the direction and management of such person (including the power to elect a majority of the members of the board of directors of such person) through the ownership of voting securities.

''(6) CONTROLLED GROUP.—For purposes of this subsection, the term 'controlled group' means all persons treated as a single employer under subsection (b), (c), (m), or (o) of section 414 of the Internal Revenue Code of 1986 as of the date of the enactment of this subsection.

''(7) EFFECT ON PREMIUM RATE CALCULATION.—Notwithstanding any other provision of law or any regulation issued by the Pension Benefit Guaranty Corporation, in the case of a plan for which an election is made to apply the alternative standards described in paragraph (3), the additional premium under section 4006(a)(3)(E) shall be determined as if such election had not been made.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to plan years ending after December 31, 2017.

SEC. 307. MINIMUM RATE OF INTEREST FOR CERTAIN DETERMINATIONS RELATED TO LIFE INSURANCE CONTRACTS.

(a) MODIFICATION OF MINIMUM RATE FOR PURPOSES OF CASH VALUE ACCUMULATION TEST.—

(1) IN GENERAL.—Section 7702(b)(2)(A) of the Internal Revenue Code of 1986 is amended by striking ''an annual effective rate of 4 percent'' and inserting ''the applicable accumulation test minimum rate''.

(2) APPLICABLE ACCUMULATION TEST MINIMUM RATE.—Section 7702(b) of such Code is amended by adding at the end the following new paragraph:

''(3) APPLICABLE ACCUMULATION TEST MINIMUM RATE.—For purposes of paragraph (2)(A), the term 'applicable accumulation test minimum rate' means the lesser of—

''(A) an annual effective rate of 4 percent, or

''(B) the insurance interest rate (as defined in subsection (f)(11)) in effect at the time the contract is issued.''.

(b) MODIFICATION OF MINIMUM RATE FOR PURPOSES OF GUIDELINE PREMIUM REQUIREMENTS.—

(1) IN GENERAL.—Section 7702(c)(3)(B)(iii) of such Code is amended by striking ''an annual effective rate of 6 percent'' and inserting ''the applicable guideline premium minimum rate''.

(2) APPLICABLE GUIDELINE PREMIUM MINIMUM RATE.—Section 7702(c)(3) of such Code is amended by adding at the end the following new subparagraph:

''(E) APPLICABLE GUIDELINE PREMIUM MINIMUM RATE.—For purposes of subparagraph (B)(iii), the term 'applicable guideline premium minimum rate' means the applicable accumulation test minimum rate (as defined in subsection (b)(3)) plus 2 percentage points.''.

(c) APPLICATION OF MODIFIED MINIMUM RATES TO DETERMINATION OF GUIDELINE LEVEL PREMIUM.—Section 7702(c)(4) of such Code is amended—

(1) by striking ''4 percent'' and inserting ''the applicable accumulation test minimum rate'', and

(2) by striking ''6 percent'' and inserting ''the applicable guideline premium minimum rate''.

(d) INSURANCE INTEREST RATE.—Section 7702(f) of such Code is amended by adding at the end the following new paragraph:

''(11) INSURANCE INTEREST RATE.—For purposes of this section—

''(A) IN GENERAL.—The term 'insurance interest rate' means, with respect to any contract issued in any calendar year, the lesser of—

''(i) the section 7702 valuation interest rate for such calendar year (or, if such calendar year is not an adjustment year, the most recent adjustment year), or

''(ii) the section 7702 applicable Federal interest rate for such calendar year (or, if such calendar year is not an adjustment year, the most recent adjustment year).

''(B) SECTION 7702 VALUATION INTEREST RATE.—The term 'section 7702 valuation interest rate' means, with respect to any adjustment year, the prescribed U.S. valuation interest rate for life insurance with guaranteed durations of more than 20 years (as defined in the National Association of Insurance Commissioners' Standard Valuation Law) as effective in the calendar year immediately preceding such adjustment year.

''(C) SECTION 7702 APPLICABLE FEDERAL INTEREST RATE.—The term 'section 7702 applicable Federal interest rate' means, with respect to any adjustment year, the average (rounded to the nearest whole percentage point) of the applicable Federal mid-term rates (as defined in section 1274(d) but based on annual compounding) effective as of the beginning of each of the calendar months in the most recent 60-month period ending before the second calendar year prior to such adjustment year.

''(D) ADJUSTMENT YEAR.—The term 'adjustment year' means the calendar year following

any calendar year that includes the effective date of a change in the prescribed U.S. valuation interest rate for life insurance with guaranteed durations of more than 20 years (as defined in the National Association of Insurance Commissioners' Standard Valuation Law).

''(E) TRANSITION RULE.—Notwithstanding subparagraph (A), the insurance interest rate shall be 2 percent in the case of any contract which is issued during the period that—

''(i) begins on January 1, 2021, and

''(ii) ends immediately before the beginning of the first adjustment year that beings after December 31, 2021.''.

(e) EFFECTIVE DATE.—The amendments made by this section shall apply to contracts issued after December 31, 2020.

DIVISION H—GIVING RETIREMENT OPTIONS TO WORKERS ACT

SEC. 101. SHORT TITLE, ETC.

(a) SHORT TITLE.—This division may be cited as the ''Giving Retirement Options to Workers Act of 2020'' or the ''GROW Act''.

(b) TABLE OF CONTENTS.—The table of contents for this division is as follows:

Sec. 101. Short title, etc.
Sec. 102. Composite plans.
Sec. 103. Application of certain requirements to composite plans.
Sec. 104. Treatment of composite plans under title IV.
Sec. 105. Conforming changes.
Sec. 106. Effective date.

SEC. 102. COMPOSITE PLANS.

(a) AMENDMENT TO THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—

(1) IN GENERAL.—Title I of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1001 et seq.) is amended by adding at the end the following:

''PART 8—COMPOSITE PLANS AND LEGACY PLANS

''SEC. 801. COMPOSITE PLAN DEFINED.

''(a) IN GENERAL.—For purposes of this Act, the term 'composite plan' means a pension plan—

''(1) which is a multiemployer plan that is neither a defined benefit plan nor a defined contribution plan;

''(2) the terms of which provide that the plan is a composite plan for purposes of this title with respect to which not more than one multiemployer defined benefit plan is treated as a legacy plan within the meaning of section 805, unless there is more than one legacy plan following a merger of composite plans under section 806;

''(3) which provides systematically for the payment of benefits—

''(A) objectively calculated pursuant to a formula enumerated in the plan document with respect to plan participants after retirement, for life; and

''(B) in the form of life annuities, except for benefits which under section 203(e) may be immediately distributed without the consent of the participant;

''(4) for which the plan contributions for the first plan year are at least 120 percent of the normal cost for the plan year;

''(5) which requires—

''(A) an annual valuation of the liability of the plan as of a date within the plan year to which the valuation refers or within one month prior to the beginning of such year;

''(B) an annual actuarial determination of the plan's current funded ratio and projected funded ratio under section 802(a);

''(C) corrective action through a realignment program pursuant to section 803 whenever the plan's projected funded ratio is below 120 percent for the plan year; and

''(D) an annual notification to each participant describing the participant's benefits under the plan and explaining that such benefits may be subject to reduction under a realignment program pursuant to section 803 based on the plan's funded status in future plan years; and

''(6) the board of trustees of which includes at least one retiree or beneficiary in pay status during each plan year following the first plan year in which at least 5 percent of the participants in the plan are retirees or beneficiaries in pay status.

''(b) TRANSITION FROM A MULTIEMPLOYER DEFINED BENEFIT PLAN.—

''(1) IN GENERAL.—The plan sponsor of a defined benefit plan that is a multiemployer plan may, subject to paragraph (2), amend the plan to incorporate the features of a composite plan as a component of the multiemployer plan separate from the defined benefit plan component, except in the case of a defined benefit plan for which the plan actuary has certified under section 305(b)(3) that the plan is or will be in critical status for the plan year in which such amendment would become effective or for any of the succeeding 5 plan years.

''(2) REQUIREMENTS.—Any amendment pursuant to paragraph (1) to incorporate the features of a composite plan as a component of a multiemployer plan shall—

''(A) apply with respect to all collective bargaining agreements providing for contributions to the multiemployer plan on or after the effective date of the amendment;

''(B) apply with respect to all participants in the multiemployer plan for whom contributions are made to the multiemployer plan on or after the effective date of the amendment;

''(C) specify that the effective date of the amendment is—

''(i) the first day of a specified plan year following the date of the adoption of the amendment, except that the plan sponsor may alternatively provide for a separate effective date with respect to each collective bargaining agreement under which contributions to the multiemployer plan are required, which shall occur on the first day of the first plan year beginning after the termination, or if earlier, the re-opening, of each such agreement, or such earlier date as the parties to the agreement and the plan sponsor of the multiemployer plan shall agree to; and

''(ii) not later than the first day of the fifth plan year beginning on or after the date of the adoption of the amendment;

''(D) specify that, as of the amendment's effective date, no further benefits shall accrue under the defined benefit component of the multiemployer plan; and

''(E) specify that, as of the amendment's effective date, the plan sponsor of the multiemployer plan shall be the plan sponsor of both the composite plan component and the defined benefit plan component of the plan.

''(3) SPECIAL RULES.—If a multiemployer plan is amended pursuant to paragraph (1)—

''(A) the requirements of this title and title IV shall be applied to the composite plan component and the defined benefit plan component of the multiemployer plan as if each such component were maintained as a separate plan; and

''(B) the assets of the composite plan component and the defined benefit plan component of the plan shall be held in a single trust forming part of the plan under which the trust instrument expressly provides—

''(i) for separate accounts (and appropriate records) to be maintained to reflect the interest which each of the plan components has in the trust, including separate accounting for additions to the trust for the benefit of each plan component, disbursements made from each plan component's account in the trust, investment experience of the trust allocable to that account, and administrative expenses (whether direct expenses or shared expenses allocated proportionally), and permits, but does not require, the pooling of some or all of the assets of the two plan components for investment purposes; and

''(ii) that the assets of each of the two plan components shall be held, invested, reinvested, managed, administered and distributed for the exclusive benefit of the participants and beneficiaries of each such plan component, and in no event shall the assets of one of the plan components be available to pay benefits due under the other plan component.

''(4) NOT A TERMINATION EVENT.—Notwithstanding section 4041A, an amendment pursuant to paragraph (1) to incorporate the features of a composite plan as a component of a multiemployer plan does not constitute termination of the multiemployer plan.

''(5) NOTICE TO THE SECRETARY.—

''(A) NOTICE.—The plan sponsor of a composite plan shall provide notice to the Secretary of the intent to establish the composite plan (or, in the case of a composite plan incorporated as a component of a multiemployer plan as described in paragraph (1), the intent to amend the multiemployer plan to incorporate such composite plan) at least 30 days prior to the effective date of such establishment or amendment.

''(B) CERTIFICATION.—In the case of a composite plan incorporated as a component of a multiemployer plan as described in paragraph (1), such notice shall include a certification by the plan actuary under section 305(b)(3) that the effective date of the amendment occurs in a plan year for which the multiemployer plan is not in critical status for that plan year and any of the succeeding 5 plan years.

''(6) REFERENCES TO COMPOSITE PLAN COMPONENT.—As used in this part, the term 'composite plan' includes a composite plan component added to a defined benefit plan pursuant to paragraph (1).

''(7) RULE OF CONSTRUCTION.—Paragraph (2)(A) shall not be construed as preventing the plan sponsor of a multiemployer plan from adopting an amendment pursuant to paragraph (1) because some collective bargaining agreements are amended to cease any covered employer's obligation to contribute to the multiemployer plan before or after the plan amendment is effective. Paragraph (2)(B) shall not be construed as preventing the plan sponsor of a multiemployer plan from adopting an amendment pursuant to paragraph (1) because some participants cease to have contributions made to the multiemployer plan on their behalf before or after the plan amendment is effective.

''(c) COORDINATION WITH FUNDING RULES.—Except as otherwise provided in this title, sections 302, 304, and 305 shall not apply to a composite plan.

''(d) TREATMENT OF A COMPOSITE PLAN.—For purposes of this Act (other than sections 302 and 4245), a composite plan shall be treated as if it were a defined benefit plan unless a different treatment is provided for under applicable law.

''SEC. 802. FUNDED RATIOS; ACTUARIAL ASSUMPTIONS.

''(a) CERTIFICATION OF FUNDED RATIOS.—

''(1) IN GENERAL.—Not later than the one-hundred twentieth day of each plan year of a composite plan, the plan actuary of the composite plan shall certify to the Secretary, the Secretary of the Treasury, and the plan sponsor the plan's current funded ratio and projected funded ratio for the plan year.

''(2) DETERMINATION OF CURRENT FUNDED RATIO AND PROJECTED FUNDED RATIO.—For purposes of this section:

''(A) CURRENT FUNDED RATIO.—The current funded ratio is the ratio (expressed as a percentage) of—

''(i) the value of the plan's assets as of the first day of the plan year; to

''(ii) the plan actuary's best estimate of the present value of the plan liabilities as of the first day of the plan year.

''(B) PROJECTED FUNDED RATIO.—The projected funded ratio is the current funded ratio projected to the first day of the fifteenth plan year following the plan year for which the determination is being made.

''(3) CONSIDERATION OF CONTRIBUTION RATE INCREASES.—For purposes of projections under this subsection, the plan sponsor may anticipate contribution rate increases beyond the term of

the current collective bargaining agreement and any agreed-to supplements, up to a maximum of 2.5 percent per year, compounded annually, unless it would be unreasonable under the circumstances to assume that contributions would increase by that amount.

''(b) ACTUARIAL ASSUMPTIONS AND METHODS.—For purposes of this part:

''(1) IN GENERAL.—All costs, liabilities, rates of interest and other factors under the plan shall be determined for a plan year on the basis of actuarial assumptions and methods—

''(A) each of which is reasonable (taking into account the experience of the plan and reasonable expectations);

''(B) which, in combination, offer the actuary's best estimate of anticipated experience under the plan; and

''(C) with respect to which any change from the actuarial assumptions and methods used in the previous plan year shall be certified by the plan actuary and the actuarial rationale for such change provided in the annual report required by section 103.

''(2) FAIR MARKET VALUE OF ASSETS.—The value of the plan's assets shall be taken into account on the basis of their fair market value.

''(3) DETERMINATION OF NORMAL COST AND PLAN LIABILITIES.—A plan's normal cost and liabilities shall be based on the most recent actuarial valuation required under section 801(a)(5)(A) and the unit credit funding method.

''(4) TIME WHEN CERTAIN CONTRIBUTIONS DEEMED MADE.—Any contributions for a plan year made by an employer after the last day of such plan year, but not later than two and one-half months after such day, shall be deemed to have been made on such last day. For purposes of this paragraph, such two and one-half month period may be extended for not more than six months under regulations prescribed by the Secretary of the Treasury.

''(5) ADDITIONAL ACTUARIAL ASSUMPTIONS.—Except where otherwise provided in this part, the provisions of section 305(b)(3)(B) shall apply to any determination or projection under this part.

''SEC. 803. REALIGNMENT PROGRAM.

''(a) REALIGNMENT PROGRAM.—

''(1) ADOPTION.—In any case in which the plan actuary certifies under section 802(a) that the plan's projected funded ratio is below 120 percent for the plan year, the plan sponsor shall adopt a realignment program under paragraph (2) not later than 210 days after the due date of the certification required under such section 802(a). The plan sponsor shall adopt an updated realignment program for each succeeding plan year for which a certification described in the preceding sentence is made.

''(2) CONTENT OF REALIGNMENT PROGRAM.—

''(A) IN GENERAL.—A realignment program adopted under this paragraph is a written program which consists of all reasonable measures, including options or a range of options to be undertaken by the plan sponsor or proposed to the bargaining parties, formulated, based on reasonably anticipated experience and reasonable actuarial assumptions, to enable the plan to achieve a projected funded ratio of at least 120 percent for the following plan year.

''(B) INITIAL PROGRAM ELEMENTS.—Reasonable measures under a realignment program described in subparagraph (A) may include any of the following:

''(i) Proposed contribution increases.

''(ii) A reduction in the rate of future benefit accruals, so long as the resulting rate is not less than 1 percent of the contributions on which benefits are based as of the start of the plan year (or the equivalent standard accrual rate as described in section 305(e)(6)).

''(iii) A modification or elimination of adjustable benefits of participants that are not in pay status before the date of the notice required under subsection (b)(1).

''(iv) Any other lawfully available measures not specifically described in this subparagraph or subparagraph (C) or (D) that the plan sponsor determines are reasonable.

''(C) ADDITIONAL PROGRAM ELEMENTS.—If the plan sponsor has determined that all reasonable measures available under subparagraph (B) will not enable the plan to achieve a projected funded ratio of at least 120 percent for the following plan year, such reasonable measures may also include—

''(i) a reduction of accrued benefits that are not in pay status by the date of the notice required under subsection (b)(1); or

''(ii) a reduction of any benefits of participants that are in pay status before the date of the notice required under subsection (b)(1) other than core benefits as defined in paragraph (4).

''(D) ADDITIONAL REDUCTIONS.—In the case of a composite plan for which the plan sponsor has determined that all reasonable measures available under subparagraphs (B) and (C) will not enable the plan to achieve a projected funded ratio of at least 120 percent for the following plan year, such reasonable measures may also include—

''(i) a further reduction in the rate of future benefit accruals without regard to the limitation applicable under subparagraph (B)(ii); or

''(ii) a reduction of core benefits;

provided that such reductions shall be equitably distributed across the participant and beneficiary population, taking into account factors, with respect to participants and beneficiaries and their benefits, that may include one or more of the factors listed in subclauses (I) through (X) of section 305(e)(9)(D)(vi), to the extent necessary to enable the plan to achieve a projected funded ratio of at least 120 percent for the following plan year, or at the election of the plan sponsor, a projected funded ratio of at least 100 percent for the following plan year and a current funded ratio of at least 90 percent.

''(3) ADJUSTABLE BENEFIT DEFINED.—For purposes of this part, the term 'adjustable benefit' means—

''(A) benefits, rights, and features under the plan, including post-retirement death benefits, 60-month guarantees, disability benefits not yet in pay status, and similar benefits;

''(B) any early retirement benefit or retirement-type subsidy (within the meaning of section 204(g)(2)(A)) and any benefit payment option (other than the qualified joint and survivor annuity); and

''(C) benefit increases that were adopted (or, if later, took effect) less than 60 months before the first day such realignment program took effect.

''(4) CORE BENEFIT DEFINED.—For purposes of this part, the term 'core benefit' means a participant's accrued benefit payable in the normal form of an annuity commencing at normal retirement age, determined without regard to—

''(A) any early retirement benefits, retirement-type subsidies, or other benefits, rights, or features that may be associated with that benefit; and

''(B) any cost-of-living adjustments or benefit increases effective after the date of retirement.

''(5) COORDINATION WITH CONTRIBUTION INCREASES.—

''(A) IN GENERAL.—A realignment program may provide that some or all of the benefit modifications described in the program will only take effect if the bargaining parties fail to agree to specified levels of increases in contributions to the plan, effective as of specified dates.

''(B) INDEPENDENT BENEFIT MODIFICATIONS.—If a realignment program adopts any changes to the benefit formula that are independent of potential contribution increases, such changes shall take effect not later than 180 days after the first day of the first plan year that begins following the adoption of the realignment program.

''(C) CONDITIONAL BENEFIT MODIFICATIONS.—If a realignment program adopts any changes to the benefit formula that take effect only if the bargaining parties fail to agree to contribution increases, such changes shall take effect not later than the first day of the first plan year beginning after the third anniversary of the date of adoption of the realignment program.

''(D) REVOCATION OF CERTAIN BENEFIT MODIFICATIONS.—Benefit modifications described in subparagraph (C) may be revoked, in whole or in part, and retroactively or prospectively, when contributions to the plan are increased, as specified in the realignment program, including any amendments thereto. The preceding sentence shall not apply unless the contribution increases are to be effective not later than the fifth anniversary of the first day of the first plan year that begins after the adoption of the realignment program.

''(b) NOTICE.—

''(1) IN GENERAL.—In any case in which it is certified under section 802(a) that the projected funded ratio is less than 120 percent, the plan sponsor shall, not later than 30 days after the date of the certification, provide notification of the current and projected funded ratios to the participants and beneficiaries, the bargaining parties, and the Secretary. Such notice shall include—

''(A) an explanation that contribution rate increases or benefit reductions may be necessary;

''(B) a description of the types of benefits that might be reduced; and

''(C) an estimate of the contribution increases and benefit reductions that may be necessary to achieve a projected funded ratio of 120 percent.

''(2) NOTICE OF BENEFIT MODIFICATIONS.—

''(A) IN GENERAL.—No modifications may be made that reduce the rate of future benefit accrual or that reduce core benefits or adjustable benefits unless notice of such reduction has been given at least 180 days before the general effective date of such reduction for all participants and beneficiaries to—

''(i) plan participants and beneficiaries;

''(ii) each employer who has an obligation to contribute to the composite plan; and

''(iii) each employee organization which, for purposes of collective bargaining, represents plan participants employed by such employers.

''(B) CONTENT OF NOTICE.—The notice under subparagraph (A) shall contain—

''(i) sufficient information to enable participants and beneficiaries to understand the effect of any reduction on their benefits, including an illustration of any affected benefit or subsidy, on an annual or monthly basis that a participant or beneficiary would otherwise have been eligible for as of the general effective date described in subparagraph (A); and

''(ii) information as to the rights and remedies of plan participants and beneficiaries as well as how to contact the Department of Labor for further information and assistance, where appropriate.

''(C) FORM AND MANNER.—Any notice under subparagraph (A)—

''(i) shall be provided in a form and manner prescribed in regulations of the Secretary of Labor;

''(ii) shall be written in a manner so as to be understood by the average plan participant.

''(3) MODEL NOTICES.—The Secretary shall—

''(A) prescribe model notices that the plan sponsor of a composite plan may use to satisfy the notice requirements under this subsection; and

''(B) by regulation enumerate any details related to the elements listed in paragraph (1) that any notice under this subsection must include.

''(4) DELIVERY METHOD.—Any notice under this part shall be provided in writing and may also be provided in electronic form to the extent that the form is reasonably accessible to persons to whom the notice is provided.

''SEC. 804. LIMITATION ON INCREASING BENEFITS.

''(a) LEVEL OF CURRENT FUNDED RATIOS.—Except as provided in subsections (c), (d), and (e), no plan amendment increasing benefits or establishing new benefits under a composite plan may be adopted for a plan year unless—

''(1) the plan's current funded ratio is at least 110 percent (without regard to the benefit increase or new benefits);

''(2) taking the benefit increase or new benefits into account, the current funded ratio is at least 100 percent and the projected funded ratio for the current plan year is at least 120 percent;

''(3) in any case in which, after taking the benefit increase or new benefits into account, the current funded ratio is less than 140 percent and the projected funded ratio is less than 140 percent, the benefit increase or new benefits are projected by the plan actuary to increase the present value of the plan's liabilities for the plan year by not more than 3 percent; and

''(4) expected contributions for the current plan year are at least 120 percent of normal cost for the plan year, determined using the unit credit funding method and treating the benefit increase or new benefits as in effect for the entire plan year.

''(b) ADDITIONAL REQUIREMENTS WHERE CORE BENEFITS REDUCED.—If a plan has been amended to reduce core benefits pursuant to a realignment program under section 803(a)(2)(D), such plan may not be subsequently amended to increase core benefits unless the amendment—

''(1) increases the level of future benefit payments only; and

''(2) provides for an equitable distribution of benefit increases across the participant and beneficiary population, taking into account the extent to which the benefits of participants were previously reduced pursuant to such realignment program.

''(c) EXCEPTION TO COMPLY WITH APPLICABLE LAW.—Subsection (a) shall not apply in connection with a plan amendment if the amendment is required as a condition of qualification under part I of subchapter D of chapter 1 of the Internal Revenue Code of 1986 or to comply with other applicable law.

''(d) EXCEPTION WHERE MAXIMUM DEDUCTIBLE LIMIT APPLIES.—Subsection (a) shall not apply in connection with a plan amendment if and to the extent that contributions to the composite plan would not be deductible for the plan year under section 404(a)(1)(E) of the Internal Revenue Code of 1986 if the plan amendment is not adopted.

''(e) EXCEPTION FOR CERTAIN BENEFIT MODIFICATIONS.—Subsection (a) shall not apply in connection with a plan amendment under section 803(a)(5)(C), regarding conditional benefit modifications.

''(f) TREATMENT OF PLAN AMENDMENTS.—For purposes of this section—

''(1) if two or more plan amendments increasing benefits or establishing new benefits are adopted in a plan year, such amendments shall be treated as a single amendment adopted on the last day of the plan year;

''(2) all benefit increases and new benefits adopted in a single amendment are treated as a single benefit increase, irrespective of whether the increases and new benefits take effect in more than one plan year; and

''(3) increases in contributions or decreases in plan liabilities which are scheduled to take effect in future plan years may be taken into account in connection with a plan amendment if they have been agreed to in writing or otherwise formalized by the date the plan amendment is adopted.

''SEC. 805. COMPOSITE PLAN RESTRICTIONS TO PRESERVE LEGACY PLAN FUNDING.

''(a) TREATMENT AS A LEGACY PLAN.—

''(1) IN GENERAL.—For purposes of this part and parts 2 and 3, a defined benefit plan shall be treated as a legacy plan with respect to the composite plan under which the employees who were eligible to accrue a benefit under the defined benefit plan become eligible to accrue a benefit under such composite plan.

''(2) COMPONENT PLANS.—In any case in which a defined benefit plan is amended to add a composite plan component pursuant to section 801(b), paragraph (1) shall be applied by substituting 'defined benefit component' for 'defined benefit plan' and 'composite plan component' for 'composite plan'.

''(3) ELIGIBLE TO ACCRUE A BENEFIT.—For purposes of paragraph (1), an employee is considered eligible to accrue a benefit under a composite plan as of the first day in which the employee completes an hour of service under a collective bargaining agreement that provides for contributions to and accruals under the composite plan in lieu of accruals under the legacy plan.

''(4) COLLECTIVE BARGAINING AGREEMENT.—As used in this part, the term 'collective bargaining agreement' includes any agreement under which an employer has an obligation to contribute to a plan.

''(5) OTHER TERMS.—Any term used in this part which is not defined in this part and which is also used in section 305 shall have the same meaning provided such term in such section.

''(b) RESTRICTIONS ON ACCEPTANCE BY COMPOSITE PLAN OF AGREEMENTS AND CONTRIBUTIONS.—

''(1) IN GENERAL.—The plan sponsor of a composite plan shall not accept or recognize a collective bargaining agreement (or any modification to such agreement), and no contributions may be accepted and no benefits may be accrued or otherwise earned under the agreement—

''(A) in any case in which the plan actuary of any defined benefit plan that would be treated as a legacy plan with respect to such composite plan has certified under section 305(b)(3) that such defined benefit plan is or will be in critical status for the plan year in which such agreement would take effect or for any of the succeeding 5 plan years; and

''(B) unless the agreement requires each employer who is a party to such agreement, including employers whose employees are not participants in the legacy plan, to provide contributions to the legacy plan with respect to such composite plan in a manner that satisfies the transition contribution requirements of subsection (d).

''(2) NOTICE.—Not later than 30 days after a determination by a plan sponsor of a composite plan that an agreement fails to satisfy the requirements described in paragraph (1), the plan sponsor shall provide notification of such failure and the reasons for such determination—

''(A) to the parties to the agreement;

''(B) to active participants of the composite plan who have ceased to accrue or otherwise earn benefits with respect to service with an employer pursuant to paragraph (1); and

''(C) to the Secretary, the Secretary of the Treasury, and the Pension Benefit Guaranty Corporation.

''(3) LIMITATION ON RETROACTIVE EFFECT.—This subsection shall not apply to benefits accrued before the date on which notice is provided under paragraph (2).

''(c) RESTRICTION ON ACCRUAL OF BENEFITS UNDER A COMPOSITE PLAN.—

''(1) IN GENERAL.—In any case in which an employer, under a collective bargaining agreement entered into after the date of enactment of the Giving Retirement Options to Workers Act of 2020, ceases to have an obligation to contribute to a multiemployer defined benefit plan, no employees employed by the employer may accrue or otherwise earn benefits under any composite plan, with respect to service with that employer, for a 60-month period beginning on the date on which the employer entered into such collective bargaining agreement.

''(2) NOTICE OF CESSATION OF OBLIGATION.—Within 30 days of determining that an employer has ceased to have an obligation to contribute to a legacy plan with respect to employees employed by an employer that is or will be contributing to a composite plan with respect to service of such employees, the plan sponsor of the legacy plan shall notify the plan sponsor of the composite plan of that cessation.

''(3) NOTICE OF CESSATION OF ACCRUALS.—Not later than 30 days after determining that an employer has ceased to have an obligation to contribute to a legacy plan, the plan sponsor of the composite plan shall notify the bargaining parties, the active participants affected by the cessation of accruals, the Secretary, the Secretary of the Treasury, and the Pension Benefit Guaranty Corporation of the cessation of accruals, the period during which such cessation is in effect, and the reasons therefor.

''(4) LIMITATION ON RETROACTIVE EFFECT.—This subsection shall not apply to benefits accrued before the date on which notice is provided under paragraph (3).

''(d) TRANSITION CONTRIBUTION REQUIREMENTS.—

''(1) IN GENERAL.—A collective bargaining agreement satisfies the transition contribution requirements of this subsection if the agreement—

''(A) authorizes payment of contributions to a legacy plan at a rate or rates equal to or greater than the transition contribution rate established by the legacy plan under paragraph (2); and

''(B) does not provide for—

''(i) a suspension of contributions to the legacy plan with respect to any period of service; or

''(ii) any new direct or indirect exclusion of younger or newly hired employees of the employer from being taken into account in determining contributions owed to the legacy plan.

''(2) TRANSITION CONTRIBUTION RATE.—

''(A) IN GENERAL.—The transition contribution rate for a plan year is the contribution rate that, as certified by the actuary of the legacy plan in accordance with the principles in section 305(b)(3)(B), is reasonably expected to be adequate—

''(i) to fund the normal cost for the plan year;

''(ii) to amortize the plan's unfunded liabilities in level annual installments over 25 years, beginning with the plan year in which the transition contribution rate is first established; and

''(iii) to amortize any subsequent changes in the legacy plan's unfunded liability due to experience gains or losses (including investment gains or losses, gains or losses due to contributions greater or less than the contributions made under the prior transition contribution rate, and other actuarial gains or losses), changes in actuarial assumptions, changes to the legacy plan's benefits, or changes in funding method over a period of 15 plan years beginning with the plan year in which such change in unfunded liability is incurred.

The transition contribution rate for any plan year may not be less than the transition contribution rate for the plan year in which such rate is first established.

''(B) MULTIPLE RATES.—If different rates of contribution are payable to the legacy plan by different employers or for different classes of employees, the certification shall specify a transition contribution rate for each such employer.

''(C) RATE APPLICABLE TO EMPLOYER.—

''(i) IN GENERAL.—Except as provided by clause (ii), the transition contribution rate applicable to an employer for a plan year is the rate in effect for the plan year of the legacy plan that commences on or after 180 days before the earlier of—

''(I) the effective date of the collective bargaining agreement pursuant to which the employer contributes to the legacy plan; or

''(II) 5 years after the last plan year for which the transition contribution rate applicable to the employer was established or updated.

''(ii) EXCEPTION.—The transition contribution rate applicable to an employer for the first plan year beginning on or after the commencement of the employer's obligation to contribute to the composite plan is the rate in effect for the plan year of the legacy plan that commences on or after 180 days before such first plan year.

''(D) EFFECT OF LEGACY PLAN FINANCIAL CIRCUMSTANCES.—If the plan actuary of the legacy plan has certified under section 305 that the plan is in endangered or critical status for a

plan year, the transition contribution rate for the following plan year is the rate determined with respect to the employer under the legacy plan's funding improvement or rehabilitation plan under section 305, if greater than the rate otherwise determined, but in no event greater than 75 percent of the sum of the contribution rates applicable to the legacy plan and the composite plan for the plan year.

''(E) OTHER ACTUARIAL ASSUMPTIONS AND METHODS.—Except as provided in subparagraph (A), the determination of the transition contribution rate for a plan year shall be based on actuarial assumptions and methods consistent with the minimum funding determinations made under section 304 (or, if applicable, section 305) with respect to the legacy plan for the plan year.

''(F) ADJUSTMENTS IN RATE.—The plan sponsor of a legacy plan from time to time may adjust the transition contribution rate or rates applicable to an employer under this paragraph by increasing some rates and decreasing others if the actuary certifies that such adjusted rates in combination will produce projected contribution income for the plan year beginning on or after the date of certification that is not less than would be produced by the transition contribution rates in effect at the time of the certification.

''(G) NOTICE OF TRANSITION CONTRIBUTION RATE.—The plan sponsor of a legacy plan shall provide notice to the parties to collective bargaining agreements pursuant to which contributions are made to the legacy plan of changes to the transition contribution rate requirements at least 30 days before the beginning of the plan year for which the rate is effective.

''(H) NOTICE TO COMPOSITE PLAN SPONSOR.—Not later than 30 days after a determination by the plan sponsor of a legacy plan that a collective bargaining agreement provides for a rate of contributions that is below the transition contribution rate applicable to one or more employers that are parties to the collective bargaining agreement, the plan sponsor of the legacy plan shall notify the plan sponsor of any composite plan under which employees of such employer would otherwise be eligible to accrue a benefit.

''(3) CORRECTION PROCEDURES.—Pursuant to standards prescribed by the Secretary, the plan sponsor of a composite plan shall adopt rules and procedures that give the parties to the collective bargaining agreement notice of the failure of such agreement to satisfy the transition contribution requirements of this subsection, and a reasonable opportunity to correct such failure, not to exceed 180 days from the date of notice given under subsection (b)(2).

''(4) SUPPLEMENTAL CONTRIBUTIONS.—A collective bargaining agreement may provide for supplemental contributions to the legacy plan for a plan year in excess of the transition contribution rate determined under paragraph (2), regardless of whether the legacy plan is in endangered or critical status for such plan year.

''(e) NONAPPLICATION OF COMPOSITE PLAN RESTRICTIONS.—

''(1) IN GENERAL.—The provisions of subsections (a), (b), and (c) shall not apply with respect to a collective bargaining agreement, to the extent the agreement, or a predecessor agreement, provides or provided for contributions to a defined benefit plan that is a legacy plan, as of the first day of the first plan year following a plan year for which the plan actuary certifies that the plan is fully funded, has been fully funded for at least three out of the immediately preceding 5 plan years, and is projected to remain fully funded for at least the following 4 plan years.

''(2) DETERMINATION OF FULLY FUNDED.—A plan is fully funded for purposes of paragraph (1) if, as of the valuation date of the plan for a plan year, the value of the plan's assets equals or exceeds the present value of the plan's liabilities, determined in accordance with the rules prescribed by the Pension Benefit Guaranty Corporation under sections 4219(c)(1)(D) and 4281 for multiemployer plans terminating by mass withdrawal, as in effect for the date of the determination, except the plan's reasonable assumption regarding the starting date of benefits may be used.

''(3) OTHER APPLICABLE RULES.—Except as provided in paragraph (2), actuarial determinations and projections under this section shall be based on the rules in section 305(b)(3) and section 802(b).

''SEC. 806. MERGERS AND ASSET TRANSFERS OF COMPOSITE PLANS.

''(a) IN GENERAL.—Assets and liabilities of a composite plan may only be merged with, or transferred to, another plan if—

''(1) the other plan is a composite plan;

''(2) the plan or plans resulting from the merger or transfer is a composite plan;

''(3) no participant's accrued benefit or adjustable benefit is lower immediately after the transaction than it was immediately before the transaction; and

''(4) the value of the assets transferred in the case of a transfer reasonably reflects the value of the amounts contributed with respect to the participants whose benefits are being transferred, adjusted for allocable distributions, investment gains and losses, and administrative expenses.

''(b) LEGACY PLAN.—

''(1) IN GENERAL.—After a merger or transfer involving a composite plan, the legacy plan with respect to an employer that is obligated to contribute to the resulting composite plan is the legacy plan that applied to that employer immediately before the merger or transfer.

''(2) MULTIPLE LEGACY PLANS.—If an employer is obligated to contribute to more than one legacy plan with respect to employees eligible to accrue benefits under more than one composite plan and there is a merger or transfer of such legacy plans, the transition contribution rate applicable to the legacy plan resulting from the merger or transfer with respect to that employer shall be determined in accordance with the provisions of section 805(d)(2)(B).''.

(2) PENALTIES.—

(A) CIVIL ENFORCEMENT OF FAILURE TO COMPLY WITH REALIGNMENT PROGRAM.—Section 502(a) of such Act (29 U.S.C. 1132(a)) is amended—

(i) in paragraph (10), by striking ''or'' at the end;

(ii) in paragraph (11), by striking the period at the end and inserting ''; or''; and

(iii) by adding at the end the following:

''(12) in the case of a composite plan required to adopt a realignment program under section 803, if the plan sponsor—

''(A) has not adopted a realignment program under that section by the deadline established in such section; or

''(B) fails to update or comply with the terms of the realignment program in accordance with the requirements of such section,

by the Secretary, by an employer that has an obligation to contribute with respect to the composite plan, or by an employee organization that represents active participants in the composite plan, for an order compelling the plan sponsor to adopt a realignment program, or to update or comply with the terms of the realignment program, in accordance with the requirements of such section and the realignment program.''.

(B) CIVIL PENALTIES.—Section 502(c) of such Act (29 U.S.C. 1132(c)) is amended—

(i) by moving paragraphs (8), (10), and (12) each 2 ems to the left;

(ii) by redesignating paragraphs (9) through (12) as paragraphs (12) through (15), respectively; and

(iii) by inserting after paragraph (8) the following:

''(9) The Secretary may assess against any plan sponsor of a composite plan a civil penalty of not more than $1,100 per day for each violation by such sponsor—

''(A) of the requirement under section 802(a) on the plan actuary to certify the plan's current or projected funded ratio by the date specified in such subsection; or

''(B) of the requirement under section 803 to adopt a realignment program by the deadline established in that section and to comply with its terms.

''(10)(A) The Secretary may assess against any plan sponsor of a composite plan a civil penalty of not more than $100 per day for each violation by such sponsor of the requirement under section 803(b) to provide notice as described in such section, except that no penalty may be assessed in any case in which the plan sponsor exercised reasonable diligence to meet the requirements of such section and—

''(i) the plan sponsor did not know that the violation existed; or

''(ii) the plan sponsor provided such notice during the 30-day period beginning on the first date on which the plan sponsor knew, or in exercising reasonable due diligence should have known, that such violation existed.

''(B) In any case in which the plan sponsor exercised reasonable diligence to meet the requirements of section 803(b)—

''(i) the total penalty assessed under this paragraph against such sponsor for a plan year may not exceed $500,000; and

''(ii) the Secretary may waive part or all of such penalty to the extent that the payment of such penalty would be excessive or otherwise inequitable relative to the violation involved.

''(11) The Secretary may assess against any plan sponsor of a composite plan a civil penalty of not more than $100 per day for each violation by such sponsor of the notice requirements under sections 801(b)(5) and 805(b)(2).''.

(3) CONFORMING AMENDMENT.—The table of contents in section 1 of such Act (29 U.S.C. 1001 note) is amended by inserting after the item relating to section 734 the following:

''PART 8—COMPOSITE PLANS AND LEGACY PLANS

''Sec. 801. Composite plan defined.
''Sec. 802. Funded ratios; actuarial assumptions.
''Sec. 803. Realignment program.
''Sec. 804. Limitation on increasing benefits.
''Sec. 805. Composite plan restrictions to preserve legacy plan funding.
''Sec. 806. Mergers and asset transfers of composite plans.''.

(b) AMENDMENT TO THE INTERNAL REVENUE CODE OF 1986.—

(1) IN GENERAL.—Part III of subchapter D of chapter 1 of the Internal Revenue Code of 1986 is amended by adding at the end the following:

''Subpart C—Composite Plans and Legacy Plans

''Sec. 437. Composite plan defined.
''Sec. 438. Funded ratios; actuarial assumptions.
''Sec. 439. Realignment program.
''Sec. 440. Limitation on increasing benefits.
''Sec. 440A. Composite plan restrictions to preserve legacy plan funding.
''Sec. 440B. Mergers and asset transfers of composite plans.

''SEC. 437. COMPOSITE PLAN DEFINED.

''(a) IN GENERAL.—For purposes of this title, the term 'composite plan' means a pension plan—

''(1) which is a multiemployer plan that is neither a defined benefit plan nor a defined contribution plan,

''(2) the terms of which provide that the plan is a composite plan for purposes of this title with respect to which not more than one multiemployer defined benefit plan is treated as a legacy plan within the meaning of section 440A, unless there is more than one legacy plan following a merger of composite plans under section 440B,

''(3) which provides systematically for the payment of benefits—

''(A) objectively calculated pursuant to a formula enumerated in the plan document with respect to plan participants after retirement, for life, and

''(B) in the form of life annuities, except for benefits which under section 411(a)(11) may be immediately distributed without the consent of the participant,

''(4) for which the plan contributions for the first plan year are at least 120 percent of the normal cost for the plan year,

''(5) which requires—

''(A) an annual valuation of the liability of the plan as of a date within the plan year to which the valuation refers or within one month prior to the beginning of such year,

''(B) an annual actuarial determination of the plan's current funded ratio and projected funded ratio under section 438(a),

''(C) corrective action through a realignment program pursuant to section 439 whenever the plan's projected funded ratio is below 120 percent for the plan year, and

''(D) an annual notification to each participant describing the participant's benefits under the plan and explaining that such benefits may be subject to reduction under a realignment program pursuant to section 439 based on the plan's funded status in future plan years, and

''(6) the board of trustees of which includes at least one retiree or beneficiary in pay status during each plan year following the first plan year in which at least 5 percent of the participants in the plan are retirees or beneficiaries in pay status.

''(b) TRANSITION FROM A MULTIEMPLOYER DEFINED BENEFIT PLAN.—

''(1) IN GENERAL.—The plan sponsor of a defined benefit plan that is a multiemployer plan may, subject to paragraph (2), amend the plan to incorporate the features of a composite plan as a component of the multiemployer plan separate from the defined benefit plan component, except in the case of a defined benefit plan for which the plan actuary has certified under section 432(b)(3) that the plan is or will be in critical status for the plan year in which such amendment would become effective or for any of the succeeding 5 plan years.

''(2) REQUIREMENTS.—Any amendment pursuant to paragraph (1) to incorporate the features of a composite plan as a component of a multiemployer plan shall—

''(A) apply with respect to all collective bargaining agreements providing for contributions to the multiemployer plan on or after the effective date of the amendment,

''(B) apply with respect to all participants in the multiemployer plan for whom contributions are made to the multiemployer plan on or after the effective date of the amendment,

''(C) specify that the effective date of the amendment is—

''(i) the first day of a specified plan year following the date of the adoption of the amendment, except that the plan sponsor may alternatively provide for a separate effective date with respect to each collective bargaining agreement under which contributions to the multiemployer plan are required, which shall occur on the first day of the first plan year beginning after the termination, or if earlier, the re-opening, of each such agreement, or such earlier date as the parties to the agreement and the plan sponsor of the multiemployer plan shall agree to, and

''(ii) not later than the first day of the fifth plan year beginning on or after the date of the adoption of the amendment,

''(D) specify that, as of the amendment's effective date, no further benefits shall accrue under the defined benefit component of the multiemployer plan, and

''(E) specify that, as of the amendment's effective date, the plan sponsor of the multiemployer plan shall be the plan sponsor of both the composite plan component and the defined benefit plan component of the plan.

''(3) SPECIAL RULES.—If a multiemployer plan is amended pursuant to paragraph (1)—

''(A) the requirements of this title shall be applied to the composite plan component and the defined benefit plan component of the multiemployer plan as if each such component were maintained as a separate plan, and

''(B) the assets of the composite plan component and the defined benefit plan component of the plan shall be held in a single trust forming part of the plan under which the trust instrument expressly provides—

''(i) for separate accounts (and appropriate records) to be maintained to reflect the interest which each of the plan components has in the trust, including separate accounting for additions to the trust for the benefit of each plan component, disbursements made from each plan component's account in the trust, investment experience of the trust allocable to that account, and administrative expenses (whether direct expenses or shared expenses allocated proportionally), and permits, but does not require, the pooling of some or all of the assets of the two plan components for investment purposes, and

''(ii) that the assets of each of the two plan components shall be held, invested, reinvested, managed, administered and distributed for the exclusive benefit of the participants and beneficiaries of each such plan component, and in no event shall the assets of one of the plan components be available to pay benefits due under the other plan component.

''(4) NOT A TERMINATION EVENT.—Notwithstanding section 4041A of the Employee Retirement Income Security Act of 1974, an amendment pursuant to paragraph (1) to incorporate the features of a composite plan as a component of a multiemployer plan does not constitute termination of the multiemployer plan.

''(5) NOTICE TO THE SECRETARY.—

''(A) NOTICE.—The plan sponsor of a composite plan shall provide notice to the Secretary of the intent to establish the composite plan (or, in the case of a composite plan incorporated as a component of a multiemployer plan as described in paragraph (1), the intent to amend the multiemployer plan to incorporate such composite plan) at least 30 days prior to the effective date of such establishment or amendment.

''(B) CERTIFICATION.—In the case of a composite plan incorporated as a component of a multiemployer plan as described in paragraph (1), such notice shall include a certification by the plan actuary under section 432(b)(3) that the effective date of the amendment occurs in a plan year for which the multiemployer plan is not in critical status for that plan year and any of the succeeding 5 plan years.

''(6) REFERENCES TO COMPOSITE PLAN COMPONENT.—As used in this subpart, the term 'composite plan' includes a composite plan component added to a defined benefit plan pursuant to paragraph (1).

''(7) RULE OF CONSTRUCTION.—Paragraph (2)(A) shall not be construed as preventing the plan sponsor of a multiemployer plan from adopting an amendment pursuant to paragraph (1) because some collective bargaining agreements are amended to cease any covered employer's obligation to contribute to the multiemployer plan before or after the plan amendment is effective. Paragraph (2)(B) shall not be construed as preventing the plan sponsor of a multiemployer plan from adopting an amendment pursuant to paragraph (1) because some participants cease to have contributions made to the multiemployer plan on their behalf before or after the plan amendment is effective.

''(c) COORDINATION WITH FUNDING RULES.—Except as otherwise provided in this title, sections 412, 431, and 432 shall not apply to a composite plan.

''(d) TREATMENT OF A COMPOSITE PLAN.—For purposes of this title (other than sections 412 and 418E), a composite plan shall be treated as if it were a defined benefit plan unless a different treatment is provided for under applicable law.

''SEC. 438. FUNDED RATIOS; ACTUARIAL ASSUMPTIONS.

''(a) CERTIFICATION OF FUNDED RATIOS.—

''(1) IN GENERAL.—Not later than the one-hundred twentieth day of each plan year of a composite plan, the plan actuary of the composite plan shall certify to the Secretary, the Secretary of Labor, and the plan sponsor the plan's current funded ratio and projected funded ratio for the plan year.

''(2) DETERMINATION OF CURRENT FUNDED RATIO AND PROJECTED FUNDED RATIO.—For purposes of this section—

''(A) CURRENT FUNDED RATIO.—The current funded ratio is the ratio (expressed as a percentage) of—

''(i) the value of the plan's assets as of the first day of the plan year, to

''(ii) the plan actuary's best estimate of the present value of the plan liabilities as of the first day of the plan year.

''(B) PROJECTED FUNDED RATIO.—The projected funded ratio is the current funded ratio projected to the first day of the fifteenth plan year following the plan year for which the determination is being made.

''(3) CONSIDERATION OF CONTRIBUTION RATE INCREASES.—For purposes of projections under this subsection, the plan sponsor may anticipate contribution rate increases beyond the term of the current collective bargaining agreement and any agreed-to supplements, up to a maximum of 2.5 percent per year, compounded annually, unless it would be unreasonable under the circumstances to assume that contributions would increase by that amount.

''(b) ACTUARIAL ASSUMPTIONS AND METHODS.—For purposes of this part—

''(1) IN GENERAL.—All costs, liabilities, rates of interest, and other factors under the plan shall be determined for a plan year on the basis of actuarial assumptions and methods—

''(A) each of which is reasonable (taking into account the experience of the plan and reasonable expectations),

''(B) which, in combination, offer the actuary's best estimate of anticipated experience under the plan, and

''(C) with respect to which any change from the actuarial assumptions and methods used in the previous plan year shall be certified by the plan actuary and the actuarial rationale for such change provided in the annual report required by section 6058.

''(2) FAIR MARKET VALUE OF ASSETS.—The value of the plan's assets shall be taken into account on the basis of their fair market value.

''(3) DETERMINATION OF NORMAL COST AND PLAN LIABILITIES.—A plan's normal cost and liabilities shall be based on the most recent actuarial valuation required under section 437(a)(5)(A) and the unit credit funding method.

''(4) TIME WHEN CERTAIN CONTRIBUTIONS DEEMED MADE.—Any contributions for a plan year made by an employer after the last day of such plan year, but not later than two and one-half months after such day, shall be deemed to have been made on such last day. For purposes of this paragraph, such two and one-half month period may be extended for not more than six months under regulations prescribed by the Secretary.

''(5) ADDITIONAL ACTUARIAL ASSUMPTIONS.—Except where otherwise provided in this subpart, the provisions of section 432(b)(3)(B) shall apply to any determination or projection under this subpart.

''SEC. 439. REALIGNMENT PROGRAM.

''(a) REALIGNMENT PROGRAM.—

''(1) ADOPTION.—In any case in which the plan actuary certifies under section 438(a) that the plan's projected funded ratio is below 120 percent for the plan year, the plan sponsor shall adopt a realignment program under paragraph (2) not later than 210 days after the due date of the certification required under section 438(a). The plan sponsor shall adopt an updated realignment program for each succeeding plan

year for which a certification described in the preceding sentence is made.

''(2) CONTENT OF REALIGNMENT PROGRAM.—

''(A) IN GENERAL.—A realignment program adopted under this paragraph is a written program which consists of all reasonable measures, including options or a range of options to be undertaken by the plan sponsor or proposed to the bargaining parties, formulated, based on reasonably anticipated experience and reasonable actuarial assumptions, to enable the plan to achieve a projected funded ratio of at least 120 percent for the following plan year.

''(B) INITIAL PROGRAM ELEMENTS.—Reasonable measures under a realignment program described in subparagraph (A) may include any of the following:

''(i) Proposed contribution increases.

''(ii) A reduction in the rate of future benefit accruals, so long as the resulting rate shall not be less than 1 percent of the contributions on which benefits are based as of the start of the plan year (or the equivalent standard accrual rate as described in section 432(e)(6)).

''(iii) A modification or elimination of adjustable benefits of participants that are not in pay status before the date of the notice required under subsection (b)(1).

''(iv) Any other legally available measures not specifically described in this subparagraph or subparagraph (C) or (D) that the plan sponsor determines are reasonable.

''(C) ADDITIONAL PROGRAM ELEMENTS.—If the plan sponsor has determined that all reasonable measures available under subparagraph (B) will not enable the plan to achieve a projected funded ratio of at least 120 percent the following plan year, such reasonable measures may also include—

''(i) a reduction of accrued benefits that are not in pay status by the date of the notice required under subsection (b)(1), or

''(ii) a reduction of any benefits of participants that are in pay status before the date of the notice required under subsection (b)(1) other than core benefits as defined in paragraph (4).

''(D) ADDITIONAL REDUCTIONS.—In the case of a composite plan for which the plan sponsor has determined that all reasonable measures available under subparagraphs (B) and (C) will not enable the plan to achieve a projected funded ratio of at least 120 percent for the following plan year, such reasonable measures may also include—

''(i) a further reduction in the rate of future benefit accruals without regard to the limitation applicable under subparagraph (B)(ii), or

''(ii) a reduction of core benefits,

provided that such reductions shall be equitably distributed across the participant and beneficiary population, taking into account factors, with respect to participants and beneficiaries and their benefits, that may include one or more of the factors listed in subclauses (I) through (X) of section 432(e)(9)(D)(vi), to the extent necessary to enable the plan to achieve a projected funded ratio of at least 120 percent for the following plan year, or at the election of the plan sponsor, a projected funded ratio of at least 100 percent for the following plan year and a current funded ratio of at least 90 percent.

''(3) ADJUSTABLE BENEFIT DEFINED.—For purposes of this subpart, the term 'adjustable benefit' means—

''(A) benefits, rights, and features under the plan, including post-retirement death benefits, 60-month guarantees, disability benefits not yet in pay status, and similar benefits,

''(B) any early retirement benefit or retirement-type subsidy (within the meaning of section 411(d)(6)(B)(i)) and any benefit payment option (other than the qualified joint and survivor annuity), and

''(C) benefit increases that were adopted (or, if later, took effect) less than 60 months before the first day such realignment program took effect.

''(4) CORE BENEFIT DEFINED.—For purposes of this subpart, the term 'core benefit' means a participant's accrued benefit payable in the normal form of an annuity commencing at normal retirement age, determined without regard to—

''(A) any early retirement benefits, retirement-type subsidies, or other benefits, rights, or features that may be associated with that benefit, and

''(B) any cost-of-living adjustments or benefit increases effective after the date of retirement.

''(5) COORDINATION WITH CONTRIBUTION INCREASES.—

''(A) IN GENERAL.—A realignment program may provide that some or all of the benefit modifications described in the program will only take effect if the bargaining parties fail to agree to specified levels of increases in contributions to the plan, effective as of specified dates.

''(B) INDEPENDENT BENEFIT MODIFICATIONS.—If a realignment program adopts any changes to the benefit formula that are independent of potential contribution increases, such changes shall take effect not later than 180 days following the first day of the first plan year that begins following the adoption of the realignment program.

''(C) CONDITIONAL BENEFIT MODIFICATIONS.—If a realignment program adopts any changes to the benefit formula that take effect only if the bargaining parties fail to agree to contribution increases, such changes shall take effect not later than the first day of the first plan year beginning after the third anniversary of the date of adoption of the realignment program.

''(D) REVOCATION OF CERTAIN BENEFIT MODIFICATIONS.—Benefit modifications described in paragraph (3) may be revoked, in whole or in part, and retroactively or prospectively, when contributions to the plan are increased, as specified in the realignment program, including any amendments thereto. The preceding sentence shall not apply unless the contribution increases are to be effective not later than the fifth anniversary of the first day of the first plan year that begins after the adoption of the realignment program.

''(b) NOTICE.—

''(1) IN GENERAL.—In any case in which it is certified under section 438(a) that the projected funded ratio is less than 120 percent, the plan sponsor shall, not later than 30 days after the date of the certification, provide notification of the current and projected funded ratios to the participants and beneficiaries, the bargaining parties, and the Secretary. Such notice shall include—

''(A) an explanation that contribution rate increases or benefit reductions may be necessary,

''(B) a description of the types of benefits that might be reduced, and

''(C) an estimate of the contribution increases and benefit reductions that may be necessary to achieve a projected funded ratio of 120 percent.

''(2) NOTICE OF BENEFIT MODIFICATIONS.—

''(A) IN GENERAL.—No modifications may be made that reduce the rate of future benefit accrual or that reduce core benefits or adjustable benefits unless notice of such reduction has been given at least 180 days before the general effective date of such reduction for all participants and beneficiaries to—

''(i) plan participants and beneficiaries,

''(ii) each employer who has an obligation to contribute to the composite plan, and

''(iii) each employee organization which, for purposes of collective bargaining, represents plan participants employed by such employers.

''(B) CONTENT OF NOTICE.—The notice under subparagraph (A) shall contain—

''(i) sufficient information to enable participants and beneficiaries to understand the effect of any reduction on their benefits, including an illustration of any affected benefit or subsidy, on an annual or monthly basis that a participant or beneficiary would otherwise have been eligible for as of the general effective date described in subparagraph (A), and

''(ii) information as to the rights and remedies of plan participants and beneficiaries as well as how to contact the Department of Labor for further information and assistance, where appropriate.

''(C) FORM AND MANNER.—Any notice under subparagraph (A)—

''(i) shall be provided in a form and manner prescribed in regulations of the Secretary of Labor,

''(ii) shall be written in a manner so as to be understood by the average plan participant.

''(3) MODEL NOTICES.—The Secretary shall—

''(A) prescribe model notices that the plan sponsor of a composite plan may use to satisfy the notice requirements under this subsection, and

''(B) by regulation enumerate any details related to the elements listed in paragraph (1) that any notice under this subsection must include.

''(4) DELIVERY METHOD.—Any notice under this part shall be provided in writing and may also be provided in electronic form to the extent that the form is reasonably accessible to persons to whom the notice is provided.

''SEC. 440. LIMITATION ON INCREASING BENEFITS.

''(a) LEVEL OF CURRENT FUNDED RATIOS.—Except as provided in subsections (c), (d), and (e), no plan amendment increasing benefits or establishing new benefits under a composite plan may be adopted for a plan year unless—

''(1) the plan's current funded ratio is at least 110 percent (without regard to the benefit increase or new benefits),

''(2) taking the benefit increase or new benefits into account, the current funded ratio is at least 100 percent and the projected funded ratio for the current plan year is at least 120 percent,

''(3) in any case in which, after taking the benefit increase or new benefits into account, the current funded ratio is less than 140 percent or the projected funded ratio is less than 140 percent, the benefit increase or new benefits are projected by the plan actuary to increase the present value of the plan's liabilities for the plan year by not more than 3 percent, and

''(4) expected contributions for the current plan year are at least 120 percent of normal cost for the plan year, determined using the unit credit funding method and treating the benefit increase or new benefits as in effect for the entire plan year.

''(b) ADDITIONAL REQUIREMENTS WHERE CORE BENEFITS REDUCED.—If a plan has been amended to reduce core benefits pursuant to a realignment program under section 439(a)(2)(D), such plan may not be subsequently amended to increase core benefits unless the amendment—

''(1) increases the level of future benefit payments only, and

''(2) provides for an equitable distribution of benefit increases across the participant and beneficiary population, taking into account the extent to which the benefits of participants were previously reduced pursuant to such realignment program.

''(c) EXCEPTION TO COMPLY WITH APPLICABLE LAW.—Subsection (a) shall not apply in connection with a plan amendment if the amendment is required as a condition of qualification under part I of subchapter D of chapter 1 or to comply with other applicable law.

''(d) EXCEPTION WHERE MAXIMUM DEDUCTIBLE LIMIT APPLIES.—Subsection (a) shall not apply in connection with a plan amendment if and to the extent that contributions to the composite plan would not be deductible for the plan year under section 404(a)(1)(E) if the plan amendment is not adopted. The Secretary of the Treasury shall issue regulations to implement this paragraph.

''(e) EXCEPTION FOR CERTAIN BENEFIT MODIFICATIONS.—Subsection (a) shall not apply in connection with a plan amendment under section 439(a)(5)(C), regarding conditional benefit modifications.

''(f) TREATMENT OF PLAN AMENDMENTS.—For purposes of this section—

''(1) if two or more plan amendments increasing benefits or establishing new benefits are

adopted in a plan year, such amendments shall be treated as a single amendment adopted on the last day of the plan year,

''(2) all benefit increases and new benefits adopted in a single amendment are treated as a single benefit increase, irrespective of whether the increases and new benefits take effect in more than one plan year, and

''(3) increases in contributions or decreases in plan liabilities which are scheduled to take effect in future plan years may be taken into account in connection with a plan amendment if they have been agreed to in writing or otherwise formalized by the date the plan amendment is adopted.

''SEC. 440A. COMPOSITE PLAN RESTRICTIONS TO PRESERVE LEGACY PLAN FUNDING.

''(a) TREATMENT AS A LEGACY PLAN.—

''(1) IN GENERAL.—For purposes of this subchapter, a defined benefit plan shall be treated as a legacy plan with respect to the composite plan under which the employees who were eligible to accrue a benefit under the defined benefit plan become eligible to accrue a benefit under such composite plan.

''(2) COMPONENT PLANS.—In any case in which a defined benefit plan is amended to add a composite plan component pursuant to section 437(b), paragraph (1) shall be applied by substituting 'defined benefit component' for 'defined benefit plan' and 'composite plan component' for 'composite plan'.

''(3) ELIGIBLE TO ACCRUE A BENEFIT.—For purposes of paragraph (1), an employee is considered eligible to accrue a benefit under a composite plan as of the first day in which the employee completes an hour of service under a collective bargaining agreement that provides for contributions to and accruals under the composite plan in lieu of accruals under the legacy plan.

''(4) COLLECTIVE BARGAINING AGREEMENT.—As used in this subpart, the term 'collective bargaining agreement' includes any agreement under which an employer has an obligation to contribute to a plan.

''(5) OTHER TERMS.—Any term used in this subpart which is not defined in this part and which is also used in section 432 shall have the same meaning provided such term in such section.

''(b) RESTRICTIONS ON ACCEPTANCE BY COMPOSITE PLAN OF AGREEMENTS AND CONTRIBUTIONS.—

''(1) IN GENERAL.—The plan sponsor of a composite plan shall not accept or recognize a collective bargaining agreement (or any modification to such agreement), and no contributions may be accepted and no benefits may be accrued or otherwise earned under the agreement—

''(A) in any case in which the plan actuary of any defined benefit plan that would be treated as a legacy plan with respect to such composite plan has certified under section 432(b)(3) that such defined benefit plan is or will be in critical status for the plan year in which such agreement would take effect or for any of the succeeding 5 plan years, and

''(B) unless the agreement requires each employer who is a party to such agreement, including employers whose employees are not participants in the legacy plan, to provide contributions to the legacy plan with respect to such composite plan in a manner that satisfies the transition contribution requirements of subsection (d).

''(2) NOTICE.—Not later than 30 days after a determination by a plan sponsor of a composite plan that an agreement fails to satisfy the requirements described in paragraph (1), the plan sponsor shall provide notification of such failure and the reasons for such determination to—

''(A) the parties to the agreement,

''(B) active participants of the composite plan who have ceased to accrue or otherwise earn benefits with respect to service with an employer pursuant to paragraph (1), and

''(C) the Secretary of Labor, the Secretary of the Treasury, and the Pension Benefit Guaranty Corporation.

''(3) LIMITATION ON RETROACTIVE EFFECT.—This subsection shall not apply to benefits accrued before the date on which notice is provided under paragraph (2).

''(c) RESTRICTION ON ACCRUAL OF BENEFITS UNDER A COMPOSITE PLAN.—

''(1) IN GENERAL.—In any case in which an employer, under a collective bargaining agreement entered into after the date of enactment of the Giving Retirement Options to Workers Act of 2020, ceases to have an obligation to contribute to a multiemployer defined benefit plan, no employees employed by the employer may accrue or otherwise earn benefits under any composite plan, with respect to service with that employer, for a 60-month period beginning on the date on which the employer entered into such collective bargaining agreement.

''(2) NOTICE OF CESSATION OF OBLIGATION.—Within 30 days of determining that an employer has ceased to have an obligation to contribute to a legacy plan with respect to employees employed by an employer that is or will be contributing to a composite plan with respect to service of such employees, the plan sponsor of the legacy plan shall notify the plan sponsor of the composite plan of that cessation.

''(3) NOTICE OF CESSATION OF ACCRUALS.—Not later than 30 days after determining that an employer has ceased to have an obligation to contribute to a legacy plan, the plan sponsor of the composite plan shall notify the bargaining parties, the active participants affected by the cessation of accruals, the Secretary, the Secretary of Labor, and the Pension Benefit Guaranty Corporation of the cessation of accruals, the period during which such cessation is in effect, and the reasons therefor.

''(4) LIMITATION ON RETROACTIVE EFFECT.—This subsection shall not apply to benefits accrued before the date on which notice is provided under paragraph (3).

''(d) TRANSITION CONTRIBUTION REQUIREMENTS.—

''(1) IN GENERAL.—A collective bargaining agreement satisfies the transition contribution requirements of this subsection if the agreement—

''(A) authorizes for payment of contributions to a legacy plan at a rate or rates equal to or greater than the transition contribution rate established under paragraph (2), and

''(B) does not provide for—

''(i) a suspension of contributions to the legacy plan with respect to any period of service, or

''(ii) any new direct or indirect exclusion of younger or newly hired employees of the employer from being taken into account in determining contributions owed to the legacy plan.

''(2) TRANSITION CONTRIBUTION RATE.—

''(A) IN GENERAL.—The transition contribution rate for a plan year is the contribution rate that, as certified by the actuary of the legacy plan in accordance with the principles in section 432(b)(3)(B), is reasonably expected to be adequate—

''(i) to fund the normal cost for the plan year,

''(ii) to amortize the plan's unfunded liabilities in level annual installments over 25 years, beginning with the plan year in which the transition contribution rate is first established, and

''(iii) to amortize any subsequent changes in the legacy plan's unfunded liability due to experience gains or losses (including investment gains or losses, gains or losses due to contributions greater or less than the contributions made under the prior transition contribution rate, and other actuarial gains or losses), changes in actuarial assumptions, changes to the legacy plan's benefits, or changes in funding method over a period of 15 plan years beginning with the plan year in which such change in unfunded liability is incurred.

The transition contribution rate for any plan year may not be less than the transition contribution rate for the plan year in which such rate is first established.

''(B) MULTIPLE RATES.—If different rates of contribution are payable to the legacy plan by different employers or for different classes of employees, the certification shall specify a transition contribution rate for each such employer.

''(C) RATE APPLICABLE TO EMPLOYER.—

''(i) IN GENERAL.—Except as provided by clause (ii), the transition contribution rate applicable to an employer for a plan year is the rate in effect for the plan year of the legacy plan that commences on or after 180 days before the earlier of—

''(I) the effective date of the collective bargaining agreement pursuant to which the employer contributes to the legacy plan, or

''(II) 5 years after the last plan year for which the transition contribution rate applicable to the employer was established or updated.

''(ii) EXCEPTION.—The transition contribution rate applicable to an employer for the first plan year beginning on or after the commencement of the employer's obligation to contribute to the composite plan is the rate in effect for the plan year of the legacy plan that commences on or after 180 days before such first plan year.

''(D) EFFECT OF LEGACY PLAN FINANCIAL CIRCUMSTANCES.—If the plan actuary of the legacy plan has certified under section 432 that the plan is in endangered or critical status for a plan year, the transition contribution rate for the following plan year is the rate determined with respect to the employer under the legacy plan's funding improvement or rehabilitation plan under section 432, if greater than the rate otherwise determined, but in no event greater than 75 percent of the sum of the contribution rates applicable to the legacy plan and the composite plan for the plan year.

''(E) OTHER ACTUARIAL ASSUMPTIONS AND METHODS.—Except as provided in subparagraph (A), the determination of the transition contribution rate for a plan year shall be based on actuarial assumptions and methods consistent with the minimum funding determinations made under section 431 (or, if applicable, section 432) with respect to the legacy plan for the plan year.

''(F) ADJUSTMENTS IN RATE.—The plan sponsor of a legacy plan from time to time may adjust the transition contribution rate or rates applicable to an employer under this paragraph by increasing some rates and decreasing others if the actuary certifies that such adjusted rates in combination will produce projected contribution income for the plan year beginning on or after the date of certification that is not less than would be produced by the transition contribution rates in effect at the time of the certification.

''(G) NOTICE OF TRANSITION CONTRIBUTION RATE.—The plan sponsor of a legacy plan shall provide notice to the parties to collective bargaining agreements pursuant to which contributions are made to the legacy plan of changes to the transition contribution rate requirements at least 30 days before the beginning of the plan year for which the rate is effective.

''(H) NOTICE TO COMPOSITE PLAN SPONSOR.—Not later than 30 days after a determination by the plan sponsor of a legacy plan that a collective bargaining agreement provides for a rate of contributions that is below the transition contribution rate applicable to one or more employers that are parties to the collective bargaining agreement, the plan sponsor of the legacy plan shall notify the plan sponsor of any composite plan under which employees of such employer would otherwise be eligible to accrue a benefit.

''(3) CORRECTION PROCEDURES.—Pursuant to standards prescribed by the Secretary of Labor, the plan sponsor of a composite plan shall adopt rules and procedures that give the parties to the collective bargaining agreement notice of the failure of such agreement to satisfy the transition contribution requirements of this subsection, and a reasonable opportunity to correct

such failure, not to exceed 180 days from the date of notice given under subsection (b)(2).

''(4) SUPPLEMENTAL CONTRIBUTIONS.—A collective bargaining agreement may provide for supplemental contributions to the legacy plan for a plan year in excess of the transition contribution rate determined under paragraph (2), regardless of whether the legacy plan is in endangered or critical status for such plan year.

''(e) NONAPPLICATION OF COMPOSITE PLAN RESTRICTIONS.—

''(1) IN GENERAL.—The provisions of subsections (a), (b), and (c) shall not apply with respect to a collective bargaining agreement, to the extent the agreement, or a predecessor agreement, provides or provided for contributions to a defined benefit plan that is a legacy plan, as of the first day of the first plan year following a plan year for which the plan actuary certifies that the plan is fully funded, has been fully funded for at least three out of the immediately preceding 5 plan years, and is projected to remain fully funded for at least the following 4 plan years.

''(2) DETERMINATION OF FULLY FUNDED.—A plan is fully funded for purposes of paragraph (1) if, as of the valuation date of the plan for a plan year, the value of the plan's assets equals or exceeds the present value of the plan's liabilities, determined in accordance with the rules prescribed by the Pension Benefit Guaranty Corporation under sections 4219(c)(1)(D) and 4281 of Employee Retirement Income and Security Act for multiemployer plans terminating by mass withdrawal, as in effect for the date of the determination, except the plan's reasonable assumption regarding the starting date of benefits may be used.

''(3) OTHER APPLICABLE RULES.—Except as provided in paragraph (2), actuarial determinations and projections under this section shall be based on the rules in section 432(b)(3) and section 438(b).

''SEC. 440B. MERGERS AND ASSET TRANSFERS OF COMPOSITE PLANS.

''(a) IN GENERAL.—Assets and liabilities of a composite plan may only be merged with, or transferred to, another plan if—

''(1) the other plan is a composite plan,

''(2) the plan or plans resulting from the merger or transfer is a composite plan,

''(3) no participant's accrued benefit or adjustable benefit is lower immediately after the transaction than it was immediately before the transaction, and

''(4) the value of the assets transferred in the case of a transfer reasonably reflects the value of the amounts contributed with respect to the participants whose benefits are being transferred, adjusted for allocable distributions, investment gains and losses, and administrative expenses.

''(b) LEGACY PLAN.—

''(1) IN GENERAL.—After a merger or transfer involving a composite plan, the legacy plan with respect to an employer that is obligated to contribute to the resulting composite plan is the legacy plan that applied to that employer immediately before the merger or transfer.

''(2) MULTIPLE LEGACY PLANS.—If an employer is obligated to contribute to more than one legacy plan with respect to employees eligible to accrue benefits under more than one composite plan and there is a merger or transfer of such legacy plans, the transition contribution rate applicable to the legacy plan resulting from the merger or transfer with respect to that employer shall be determined in accordance with the provisions of section 440A(d)(2)(B).''.

(2) CLERICAL AMENDMENT.—The table of subparts for part III of subchapter D of chapter 1 of the Internal Revenue Code of 1986 is amended by adding at the end the following new item:

''SUBPART C. COMPOSITE PLANS AND LEGACY PLANS''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to plan years beginning after the date of the enactment of this Act.

SEC. 103. APPLICATION OF CERTAIN REQUIREMENTS TO COMPOSITE PLANS.

(a) AMENDMENTS TO THE EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—

(1) TREATMENT FOR PURPOSES OF FUNDING NOTICES.—Section 101(f) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1021(f)) is amended—

(A) in paragraph (1) by striking ''title IV applies'' and inserting ''title IV applies or which is a composite plan''; and

(B) by adding at the end the following:

''(5) APPLICATION TO COMPOSITE PLANS.—The provisions of this subsection shall apply to a composite plan only to the extent prescribed by the Secretary in regulations that take into account the differences between a composite plan and a defined benefit plan that is a multiemployer plan.''.

(2) TREATMENT FOR PURPOSES OF ANNUAL REPORT.—Section 103 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1023) is amended—

(A) in subsection (d) by adding at the end the following sentence: ''The provisions of this subsection shall apply to a composite plan only to the extent prescribed by the Secretary in regulations that take into account the differences between a composite plan and a defined benefit plan that is a multiemployer plan.'';

(B) in subsection (f) by adding at the end the following:

''(3) ADDITIONAL INFORMATION FOR COMPOSITE PLANS.—With respect to any composite plan—

''(A) the provisions of paragraph (1)(A) shall apply by substituting 'current funded ratio and projected funded ratio (as such terms are defined in section 802(a)(2))' for 'funded percentage' each place it appears; and

''(B) the provisions of paragraph (2) shall apply only to the extent prescribed by the Secretary in regulations that take into account the differences between a composite plan and a defined benefit plan that is a multiemployer plan.''; and

(C) by adding at the end the following:

''(h) COMPOSITE PLANS.—A multiemployer plan that incorporates the features of a composite plan as provided in section 801(b) shall be treated as a single plan for purposes of the report required by this section, except that separate financial statements and actuarial statements shall be provided under paragraphs (3) and (4) of subsection (a) for the defined benefit plan component and for the composite plan component of the multiemployer plan.''.

(3) TREATMENT FOR PURPOSES OF PENSION BENEFIT STATEMENTS.—Section 105(a) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1025(a)) is amended by adding at the end the following:

''(4) COMPOSITE PLANS.—For purposes of this subsection, a composite plan shall be treated as a defined benefit plan to the extent prescribed by the Secretary in regulations that take into account the differences between a composite plan and a defined benefit plan that is a multiemployer plan.''.

(b) AMENDMENTS TO THE INTERNAL REVENUE CODE OF 1986.—Section 6058 of the Internal Revenue Code of 1986 is amended by redesignating subsection (f) as subsection (g) and by inserting after subsection (e) the following:

''(f) COMPOSITE PLANS.—A multiemployer plan that incorporates the features of a composite plan as provided in section 437(b) shall be treated as a single plan for purposes of the return required by this section, except that separate financial statements shall be provided for the defined benefit plan component and for the composite plan component of the multiemployer plan.''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to plan years beginning after the date of the enactment of this Act.

SEC. 104. TREATMENT OF COMPOSITE PLANS UNDER TITLE IV.

(a) DEFINITION.—Section 4001(a) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1301(a)) is amended by striking the period at the end of paragraph (21) and inserting a semicolon and by adding at the end the following:

''(22) COMPOSITE PLAN.—The term 'composite plan' has the meaning set forth in section 801.''.

(b) COMPOSITE PLANS DISREGARDED FOR CALCULATING PREMIUMS.—Section 4006(a) of such Act (29 U.S.C. 1306(a)) is amended by adding at the end the following:

''(9) The composite plan component of a multiemployer plan shall be disregarded in determining the premiums due under this section from the multiemployer plan.''.

(c) COMPOSITE PLANS NOT COVERED.—Section 4021(b)(1) of such Act (29 U.S.C. 1321(b)(1)) is amended by striking ''Act'' and inserting ''Act, or a composite plan, as defined in paragraph (43) of section 3 of this Act''.

(d) NO WITHDRAWAL LIABILITY.—Section 4201 of such Act (29 U.S.C. 1381) is amended by adding at the end the following:

''(c) Contributions by an employer to the composite plan component of a multiemployer plan shall not be taken into account for any purpose under this title.''.

(e) NO WITHDRAWAL LIABILITY FOR CERTAIN PLANS.—Section 4201 of such Act (29 U.S.C. 1381) is further amended by adding at the end the following:

''(d) Contributions by an employer to a multiemployer plan described in the except clause of section 3(35) of this Act pursuant to a collective bargaining agreement that specifically designates that such contributions shall be allocated to the separate defined contribution accounts of participants under the plan shall not be taken into account with respect to the defined benefit portion of the plan for any purpose under this title (including the determination of the employer's highest contribution rate under section 4219), even if, under the terms of the plan, participants have the option to transfer assets in their separate defined contribution accounts to the defined benefit portion of the plan in return for service credit under the defined benefit portion, at rates established by the plan sponsor.

''(e) A legacy plan created under section 805 shall be deemed to have no unfunded vested benefits for purposes of this part, for each plan year following a period of 5 consecutive plan years for which—

''(1) the plan was fully funded within the meaning of section 805 for at least 3 of the plan years during that period, ending with a plan year for which the plan is fully funded;

''(2) the plan had no unfunded vested benefits for at least 3 of the plan years during that period, ending with a plan year for which the plan is fully funded; and

''(3) the plan is projected to be fully funded and to have no unfunded vested benefits for the following four plan years.''.

(f) NO WITHDRAWAL LIABILITY FOR EMPLOYERS CONTRIBUTING TO CERTAIN FULLY FUNDED LEGACY PLANS.—Section 4211 of such Act (29 U.S.C. 1382) is amended by adding at the end the following:

''(g) No amount of unfunded vested benefits shall be allocated to an employer that has an obligation to contribute to a legacy plan described in subsection (e) of section 4201 for each plan year for which such subsection applies.''.

(g) NO OBLIGATION TO CONTRIBUTE.—Section 4212 of such Act (29 U.S.C. 1392) is amended by adding at the end the following:

''(d) NO OBLIGATION TO CONTRIBUTE.—An employer shall not be treated as having an obligation to contribute to a multiemployer defined benefit plan within the meaning of subsection (a) solely because—

''(1) in the case of a multiemployer plan that includes a composite plan component, the employer has an obligation to contribute to the composite plan component of the plan;

''(2) the employer has an obligation to contribute to a composite plan that is maintained

pursuant to one or more collective bargaining agreements under which the multiemployer defined benefit plan is or previously was maintained; or

''(3) the employer contributes or has contributed under section 805(d) to a legacy plan associated with a composite plan pursuant to a collective bargaining agreement but employees of that employer were not eligible to accrue benefits under the legacy plan with respect to service with that employer.''.

(h) NO INFERENCE.—Nothing in the amendment made by subsection (e) shall be construed to create an inference with respect to the treatment under title IV of the Employee Retirement Income Security Act of 1974, as in effect before such amendment, of contributions by an employer to a multiemployer plan described in the except clause of section 3(35) of such Act that are made before the effective date of subsection (e) specified in subsection (h)(2).

(i) EFFECTIVE DATE.—

(1) IN GENERAL.—Except as provided in subparagraph (2), the amendments made by this section shall apply to plan years beginning after the date of the enactment of this Act.

(2) SPECIAL RULE FOR SECTION 414(k) MULTIEMPLOYER PLANS.—The amendment made by subsection (e) shall apply only to required contributions payable for plan years beginning after the date of the enactment of this Act.

SEC. 105. CONFORMING CHANGES.

(a) DEFINITIONS.—Section 3 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1002) is amended—

(1) in paragraph (35), by inserting ''or a composite plan'' after ''other than an individual account plan''; and

(2) by adding at the end the following:

''(43) The term 'composite plan' has the meaning given the term in section 801(a).''.

(b) SPECIAL FUNDING RULE FOR CERTAIN LEGACY PLANS.—

(1) AMENDMENT TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 304(b) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1084(b)) is amended by adding at the end the following:

''(9) SPECIAL FUNDING RULE FOR CERTAIN LEGACY PLANS.—In the case of a multiemployer defined benefit plan that has adopted an amendment under section 801(b), in accordance with which no further benefits shall accrue under the multiemployer defined benefit plan, the plan sponsor may combine the outstanding balance of all charge and credit bases and amortize that combined base in level annual installments (until fully amortized) over a period of 25 plan years beginning with the plan year following the date all benefit accruals ceased.''.

(2) AMENDMENT TO INTERNAL REVENUE CODE OF 1986.—Section 431(b) of the Internal Revenue Code of 1986 is amended by adding at the end the following:

''(9) SPECIAL FUNDING RULE FOR CERTAIN LEGACY PLANS.—In the case of a multiemployer defined benefit plan that has adopted an amendment under section 437(b), in accordance with which no further benefits shall accrue under the multiemployer defined benefit plan, the plan sponsor may combine the outstanding balance of all charge and credit bases and amortize that combined base in level annual installments (until fully amortized) over a period of 25 plan years beginning with the plan year following the date on which all benefit accruals ceased.''.

(c) BENEFITS AFTER MERGER, CONSOLIDATION, OR TRANSFER OF ASSETS.—

(1) AMENDMENT TO EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 208 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1058) is amended—

(A) by striking so much of the first sentence as precedes ''may not merge'' and inserting the following:

''(1) IN GENERAL.—Except as provided in paragraph (2), a pension plan may not merge, and''; and

(B) by striking the second sentence and adding at the end the following:

''(2) SPECIAL REQUIREMENTS FOR MULTIEMPLOYER PLANS.—Paragraph (1) shall not apply to any transaction to the extent that participants either before or after the transaction are covered under a multiemployer plan to which title IV of this Act applies or a composite plan.''.

(2) AMENDMENTS TO INTERNAL REVENUE CODE OF 1986.—

(A) QUALIFICATION REQUIREMENT.—Section 401(a)(12) of the Internal Revenue Code of 1986 is amended—

(i) by striking ''(12) A trust'' and inserting the following:

''(12) BENEFITS AFTER MERGER, CONSOLIDATION, OR TRANSFER OF ASSETS.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), a trust'';

(ii) by striking the second sentence; and

(iii) by adding at the end the following:

''(B) SPECIAL REQUIREMENTS FOR MULTIEMPLOYER PLANS.—Subparagraph (A) shall not apply to any multiemployer plan with respect to any transaction to the extent that participants either before or after the transaction are covered under a multiemployer plan to which title IV of the Employee Retirement Income Security Act of 1974 applies or a composite plan.''.

(B) ADDITIONAL QUALIFICATION REQUIREMENT.—Paragraph (1) of section 414(l) of such Code is amended—

(i) by striking ''(1) IN GENERAL'' and all that follows through ''shall not constitute'' and inserting the following:

''(1) BENEFIT PROTECTIONS: MERGER, CONSOLIDATION, TRANSFER.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), a trust which forms a part of a plan shall not constitute'';

(ii) by striking the second sentence; and

(iii) by adding at the end the following:

''(B) SPECIAL REQUIREMENTS FOR MULTIEMPLOYER PLANS.—Subparagraph (A) does not apply to any multiemployer plan with respect to any transaction to the extent that participants either before or after the transaction are covered under a multiemployer plan to which title IV of the Employee Retirement Income Security Act of 1974 applies or a composite plan.''.

(d) REQUIREMENTS FOR STATUS AS A QUALIFIED PLAN.—

(1) REQUIREMENT THAT ACTUARIAL ASSUMPTIONS BE SPECIFIED.—Section 401(a)(25) of the Internal Revenue Code of 1986 is amended by inserting ''(in the case of a composite plan, benefits objectively calculated pursuant to a formula)'' after ''definitely determinable benefits''.

(2) MISSING PARTICIPANTS IN TERMINATING COMPOSITE PLAN.—Section 401(a)(34) of the Internal Revenue Code of 1986 is amended by striking '', a trust'' and inserting ''or a composite plan, a trust''.

(e) DEDUCTION FOR CONTRIBUTIONS TO A QUALIFIED PLAN.—Section 404(a)(1) of the Internal Revenue Code of 1986 is amended by redesignating subparagraph (E) as subparagraph (F) and by inserting after subparagraph (D) the following:

''(E) COMPOSITE PLANS.—

''(i) IN GENERAL.—In the case of a composite plan, subparagraph (D) shall not apply and the maximum amount deductible for a plan year shall be the excess (if any) of—

''(I) 160 percent of the greater of—

''(aa) the current liability of the plan determined in accordance with the principles of section 431(c)(6)(D), or

''(bb) the present value of plan liabilities as determined under section 438, over

''(II) the fair market value of the plan's assets, projected to the end of the plan year.

''(ii) SPECIAL RULES FOR PREDECESSOR MULTIEMPLOYER PLAN TO COMPOSITE PLAN.—

''(I) IN GENERAL.—Except as provided in subclause (II), if an employer contributes to a composite plan with respect to its employees, contributions by that employer to a multiemployer defined benefit plan with respect to some or all of the same group of employees shall be deductible under sections 162 and this section, subject to the limits in subparagraph (D).

''(II) TRANSITION CONTRIBUTION.—The full amount of a contribution to satisfy the transition contribution requirement (as defined in section 440A(d)) and allocated to the legacy defined benefit plan for the plan year shall be deductible for the employer's taxable year ending with or within the plan year.''.

(f) MINIMUM VESTING STANDARDS.—

(1) YEARS OF SERVICE UNDER COMPOSITE PLANS.—

(A) EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 203 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1053) is amended by inserting after subsection (f) the following:

''(g) SPECIAL RULES FOR COMPUTING YEARS OF SERVICE UNDER COMPOSITE PLANS.—

''(1) IN GENERAL.—In determining a qualified employee's years of service under a composite plan for purposes of this section, the employee's years of service under a legacy plan shall be treated as years of service earned under the composite plan. For purposes of such determination, a composite plan shall not be treated as a defined benefit plan pursuant to section 801(d).

''(2) QUALIFIED EMPLOYEE.—For purposes of this subsection, an employee is a qualified employee if the employee first completes an hour of service under the composite plan (determined without regard to the provisions of this subsection) within the 12-month period immediately preceding or the 24-month period immediately following the date the employee ceased to accrue benefits under the legacy plan.

''(3) CERTIFICATION OF YEARS OF SERVICE.—For purposes of paragraph (1), the plan sponsor of the composite plan shall rely on a written certification by the plan sponsor of the legacy plan of the years of service the qualified employee completed under the defined benefit plan as of the date the employee satisfies the requirements of paragraph (2), disregarding any years of service that had been forfeited under the rules of the defined benefit plan before that date.

''(h) SPECIAL RULES FOR COMPUTING YEARS OF SERVICE UNDER LEGACY PLANS.—

''(1) IN GENERAL.—In determining a qualified employee's years of service under a legacy plan for purposes of this section, and in addition to any service under applicable regulations, the employee's years of service under a composite plan shall be treated as years of service earned under the legacy plan. For purposes of such determination, a composite plan shall not be treated as a defined benefit plan pursuant to section 801(d).

''(2) QUALIFIED EMPLOYEE.—For purposes of this subsection, an employee is a qualified employee if the employee first completes an hour of service under the composite plan (determined without regard to the provisions of this subsection) within the 12-month period immediately preceding or the 24-month period immediately following the date the employee ceased to accrue benefits under the legacy plan.

''(3) CERTIFICATION OF YEARS OF SERVICE.—For purposes of paragraph (1), the plan sponsor of the legacy plan shall rely on a written certification by the plan sponsor of the composite plan of the years of service the qualified employee completed under the composite plan after the employee satisfies the requirements of paragraph (2), disregarding any years of service that has been forfeited under the rules of the composite plan.''.

(B) INTERNAL REVENUE CODE OF 1986.—Section 411(a) of the Internal Revenue Code of 1986 is amended by adding at the end the following:

''(14) SPECIAL RULES FOR DETERMINING YEARS OF SERVICE UNDER COMPOSITE PLANS.—

''(A) IN GENERAL.—In determining a qualified employee's years of service under a composite plan for purposes of this subsection, the employee's years of service under a legacy plan shall be

treated as years of service earned under the composite plan. For purposes of such determination, a composite plan shall not be treated as a defined benefit plan pursuant to section 437(d).

''(B) QUALIFIED EMPLOYEE.—For purposes of this paragraph, an employee is a qualified employee if the employee first completes an hour of service under the composite plan (determined without regard to the provisions of this paragraph) within the 12-month period immediately preceding or the 24-month period immediately following the date the employee ceased to accrue benefits under the legacy plan.

''(C) CERTIFICATION OF YEARS OF SERVICE.—For purposes of subparagraph (A), the plan sponsor of the composite plan shall rely on a written certification by the plan sponsor of the legacy plan of the years of service the qualified employee completed under the legacy plan as of the date the employee satisfies the requirements of subparagraph (B), disregarding any years of service that had been forfeited under the rules of the defined benefit plan before that date.

''(15) SPECIAL RULES FOR COMPUTING YEARS OF SERVICE UNDER LEGACY PLANS.—

''(A) IN GENERAL.—In determining a qualified employee's years of service under a legacy plan for purposes of this section, and in addition to any service under applicable regulations, the employee's years of service under a composite plan shall be treated as years of service earned under the legacy plan. For purposes of such determination, a composite plan shall not be treated as a defined benefit plan pursuant to section 437(d).

''(B) QUALIFIED EMPLOYEE.—For purposes of this paragraph, an employee is a qualified employee if the employee first completes an hour of service under the composite plan (determined without regard to the provisions of this paragraph) within the 12-month period immediately preceding or the 24-month period immediately following the date the employee ceased to accrue benefits under the legacy plan.

''(C) CERTIFICATION OF YEARS OF SERVICE.—For purposes of subparagraph (A), the plan sponsor of the legacy plan shall rely on a written certification by the plan sponsor of the composite plan of the years of service the qualified employee completed under the composite plan after the employee satisfies the requirements of subparagraph (B), disregarding any years of service that has been forfeited under the rules of the composite plan.''.

(2) REDUCTION OF BENEFITS.—

(A) EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 203(a)(3)(E)(ii) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1053(a)(3)(E)(ii)) is amended—

(i) in subclause (I) by striking ''4244A'' and inserting ''305(e), 803,''; and

(ii) in subclause (II) by striking ''4245'' and inserting ''305(e), 4245,''.

(B) INTERNAL REVENUE CODE OF 1986.—Section 411(a)(3)(F) of the Internal Revenue Code of 1986 is amended—

(i) in clause (i) by striking ''section 418D or under section 4281 of the Employee Retirement Income Security Act of 1974'' and inserting ''section 432(e) or 439 or under section 4281 of the Employee Retirement Income Security Act of 1974''; and

(ii) in clause (ii) by inserting ''or 432(e)'' after ''section 418E''.

(3) ACCRUED BENEFIT REQUIREMENTS.—

(A) EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 204(b)(1)(B)(i) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1054(b)(1)(B)(i)) is amended by inserting '', including an amendment reducing or suspending benefits under section 305(e), 803, 4245 or 4281,'' after ''any amendment to the plan''.

(B) INTERNAL REVENUE CODE OF 1986.—Section 411(b)(1)(B)(i) of the Internal Revenue Code of 1986 is amended by inserting '', including an amendment reducing or suspending benefits under section 418E, 432(e) or 439, or under section 4281 of the Employee Retirement Income Security Act of 1974,'' after ''any amendment to the plan''.

(4) ADDITIONAL ACCRUED BENEFIT REQUIREMENTS.—

(A) EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 204(b)(1)(H)(v) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1053(b)(1)(H)(v)) is amended by inserting before the period at the end the following: '', or benefits are reduced or suspended under section 305(e), 803, 4245, or 4281''.

(B) INTERNAL REVENUE CODE OF 1986.—Section 411(b)(1)(H)(iv) of the Internal Revenue Code of 1986 is amended—

(i) in the heading by striking ''BENEFIT'' and inserting ''BENEFIT AND THE SUSPENSION AND REDUCTION OF CERTAIN BENEFITS''; and

(ii) in the text by inserting before the period at the end the following: '', or benefits are reduced or suspended under section 418E, 432(e), or 439, or under section 4281 of the Employee Retirement Income Security Act of 1974''.

(5) ACCRUED BENEFIT NOT TO BE DECREASED BY AMENDMENT.—

(A) EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 204(g)(1) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1053(g)(1)) is amended by inserting after ''302(d)(2)'' the following: '', 305(e), 803, 4245,''.

(B) INTERNAL REVENUE CODE OF 1986.—Section 411(d)(6)(A) of the Internal Revenue Code of 1986 is amended by inserting after ''412(d)(2),'' the following: ''418E, 432(e), or 439,''.

(g) CERTAIN FUNDING RULES NOT APPLICABLE.—

(1) EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—Section 305 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1085) is amended by adding at the end the following:

''(k) LEGACY PLANS.—Sections 302, 304, and 305 shall not apply to an employer that has an obligation to contribute to a plan that is a legacy plan within the meaning of section 805(a) solely because the employer has an obligation to contribute to a composite plan described in section 801 that is associated with that legacy plan.''.

(2) INTERNAL REVENUE CODE OF 1986.—Section 432 of the Internal Revenue Code of 1986 is amended by adding at the end the following:

''(k) LEGACY PLANS.—Sections 412, 431, and 432 shall not apply to an employer that has an obligation to contribute to a plan that is a legacy plan within the meaning of section 440A(a) solely because the employer has an obligation to contribute to a composite plan described in section 437 that is associated with that legacy plan.''.

(h) TERMINATION OF COMPOSITE PLAN.—Section 403(d) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1103(d) is amended—

(1) in paragraph (1), by striking ''regulations of the Secretary.'' and inserting ''regulations of the Secretary, or as provided in paragraph (3).''; and

(2) by adding at the end the following:

''(3) Section 4044(a) of this Act shall be applied in the case of the termination of a composite plan by—

''(A) limiting the benefits subject to paragraph (3) thereof to benefits as defined in section 802(b)(3)(B); and

''(B) including in the benefits subject to paragraph (4) all other benefits (if any) of individuals under the plan that would be guaranteed under section 4022A if the plan were subject to title IV.''.

(i) GOOD FAITH COMPLIANCE PRIOR TO GUIDANCE.—Where the implementation of any provision of law added or amended by this division is subject to issuance of regulations by the Secretary of Labor, the Secretary of the Treasury, or the Pension Benefit Guaranty Corporation, a multiemployer plan shall not be treated as failing to meet the requirements of any such provision prior to the issuance of final regulations or other guidance to carry out such provision if such plan is operated in accordance with a reasonable, good faith interpretation of such provision.

SEC. 106. EFFECTIVE DATE.

Unless otherwise specified, the amendments made by this division shall apply to plan years beginning after the date of the enactment of this Act.

DIVISION I—CONTINUED ASSISTANCE TO UNEMPLOYED WORKERS

TITLE I—EXTENSIONS OF CARES ACT UNEMPLOYMENT BENEFITS FOR WORKERS

SEC. 101. EXTENSION OF FEDERAL PANDEMIC UNEMPLOYMENT COMPENSATION.

(a) IN GENERAL.—Section 2104(e) of the CARES Act (Public Law 116–136) is amended to read as follows:

''(e) APPLICABILITY.—

''(1) IN GENERAL.—An agreement entered into under this section shall apply—

''(A) to weeks of unemployment beginning after the date on which such agreement is entered into and ending on or before July 31, 2020; and

''(B) to weeks of unemployment beginning after September 5, 2020 (or, if later, the date on which such agreement is entered into) and ending on or before January 31, 2021.

''(2) TRANSITION RULE FOR INDIVIDUALS REMAINING ENTITLED TO REGULAR COMPENSATION AS OF JANUARY 31, 2021.—In the case of any individual who, as of the date specified in paragraph (1)(B), has not yet exhausted all rights to regular compensation under the State law of a State with respect to a benefit year that began before such date, Federal Pandemic Unemployment Compensation shall continue to be payable to such individual for any week beginning on or after such date for which the individual is otherwise eligible for regular compensation with respect to such benefit year.

''(3) TERMINATION.—Notwithstanding any other provision of this subsection, no Federal Pandemic Unemployment Compensation shall be payable for any week beginning after March 31, 2021.''.

(b) LIMITATION ON APPLICATION OF TRANSITION RULE.—Section 2104(g) of such Act is amended by inserting ''(except for subsection (e)(2))'' after ''the preceding provisions of this section''.

(c) DISREGARD OF FEDERAL PANDEMIC UNEMPLOYMENT COMPENSATION FOR CERTAIN PURPOSES.—Section 2104(h) of such Act is amended to read as follows:

''(h) DISREGARD OF FEDERAL PANDEMIC UNEMPLOYMENT COMPENSATION FOR PURPOSES OF ALL FEDERAL AND FEDERALLY ASSISTED PROGRAMS.—A Federal Pandemic Unemployment Compensation payment shall not be regarded as income and shall not be regarded as a resource for the month of receipt and the following 9 months, for purposes of determining the eligibility of the recipient (or the recipient's spouse or family) for benefits or assistance, or the amount or extent of benefits or assistance, under any Federal program or under any State or local program financed in whole or in part with Federal funds.''.

(d) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the enactment of the CARES Act (Public Law 116–136).

SEC. 102. EXTENSION OF PANDEMIC UNEMPLOYMENT ASSISTANCE.

Section 2102(c) of the CARES Act (15 U.S.C. 9021(c)) is amended by striking ''December 31, 2020'' and inserting ''January 31, 2021''.

SEC. 103. EXTENSION OF PANDEMIC EMERGENCY UNEMPLOYMENT COMPENSATION.

Section 2107(g)(2) of the CARES Act (15 U.S.C. 9025(g)(2)) is amended by striking ''December 31, 2020'' and inserting ''January 31, 2021''.

SEC. 104. EXTENSION OF TEMPORARY FINANCING OF SHORT-TIME COMPENSATION PAYMENTS IN STATES WITH PROGRAMS IN LAW.

Section 2108(b)(2) of the CARES Act (15 U.S.C. 9026(b)(2)) is amended by striking ''December 31, 2020'' and inserting ''January 31, 2021''.

SEC. 105. EXTENSION OF TEMPORARY FINANCING OF SHORT-TIME COMPENSATION AGREEMENTS.

Section 2109(d)(2) of the CARES Act (15 U.S.C. 9027(d)(2)) is amended by striking ''December 31, 2020'' and inserting ''January 31, 2021''.

SEC. 106. EXTENSION OF FULL FEDERAL FUNDING OF THE FIRST WEEK OF COMPENSABLE REGULAR UNEMPLOYMENT FOR STATES WITH NO WAITING WEEK.

Section 2105(e)(2) of the CARES Act (15 U.S.C. 9024(e)(2)) is amended by striking ''December 31, 2020'' and inserting ''January 31, 2021''.

TITLE II—ADDITIONAL WEEKS OF BENEFIT ELIGIBILITY

SEC. 201. ADDITIONAL WEEKS.

Subtitle A of title II of division A of the CARES Act (15 U.S.C. 9021 et seq.) is amended by inserting after section 2107 the following:

''SEC. 2107A. PANDEMIC EMERGENCY UNEMPLOYMENT EXTENSION COMPENSATION.

''(a) FEDERAL-STATE AGREEMENTS.—

''(1) IN GENERAL.—Any State which desires to do so may enter into and participate in an agreement under this section with the Secretary of Labor (in this section referred to as the 'Secretary'). Any State which is a party to an agreement under this section may, upon providing 30 days' written notice to the Secretary, terminate such agreement.

''(2) PROVISIONS OF AGREEMENT.—Any agreement under paragraph (1) shall provide that the State agency of the State will make payments (in this section referred to as 'pandemic emergency unemployment extension compensation') to individuals who—

''(A) have exhausted all rights to regular compensation, extended compensation, pandemic unemployment assistance under section 2102, and pandemic emergency unemployment compensation under section 2107;

''(B) have no rights to any benefit specified in subparagraph (A) or to compensation under any other Federal law or under the unemployment compensation law of Canada; and

''(C) are able to work, available to work, and actively seeking work.

''(3) EXHAUSTION OF BENEFITS.—For purposes of paragraph (2)(A), an individual shall be deemed to have exhausted such individual's rights to benefits specified in subparagraph (A) when—

''(A) no payments of such benefits can be made because such individual has received all such benefits available to such individual based on employment or wages during such individual's base period; or

''(B) such individual's rights to such benefits have been terminated by reason of the expiration of the benefit year with respect to which such rights existed.

''(4) WEEKLY BENEFIT AMOUNT, ETC.—For purposes of any agreement under this section—

''(A) the amount of pandemic emergency unemployment extension compensation which shall be payable to any individual for any week of total unemployment shall be equal to—

''(i) the amount of the base compensation (including any dependents' allowances) payable to such individual during such individual's benefit year under the State law for a week of total unemployment; and

''(ii) the amount of Federal Pandemic Unemployment Compensation under section 2104;

''(B) the terms and conditions of the State law which apply to claims for regular compensation and to the payment thereof (including terms and conditions relating to availability for work, active search for work, and refusal to accept work) shall apply to claims for pandemic emergency unemployment extension compensation and the payment thereof, except where otherwise inconsistent with the provisions of this section or with the regulations or operating instructions of the Secretary promulgated to carry out this section;

''(C) the maximum amount of pandemic emergency unemployment extension compensation payable to any individual for whom a pandemic emergency unemployment extension compensation account is established under subsection (b) shall not exceed the amount established in such account for such individual; and

''(D) the allowable methods of payment under section 2104(b)(2) shall apply to payments of amounts described in subparagraph (A)(ii).

''(5) NONREDUCTION RULE.—

''(A) IN GENERAL.—An agreement under this section shall not apply (or shall cease to apply) with respect to a State upon a determination by the Secretary that the method governing the computation of regular compensation under the State law of that State has been modified in a manner such that the number of weeks (the maximum benefit entitlement), or the average weekly benefit amount, of regular compensation which will be payable during the period of the agreement will be less than the number of weeks, or the average weekly benefit amount, of the average weekly benefit amount of regular compensation which would otherwise have been payable during such period under the State law, as in effect on January 1, 2020.

''(B) MAXIMUM BENEFIT ENTITLEMENT.—In subparagraph (A), the term 'maximum benefit entitlement' means the amount of regular compensation payable to an individual with respect to the individual's benefit year.

''(6) ACTIVELY SEEKING WORK.—

''(A) IN GENERAL.—For purposes of paragraph (2)(C), the term 'actively seeking work' means, with respect to any individual, that such individual—

''(i) is registered for employment services in such a manner and to such extent as prescribed by the State agency;

''(ii) has engaged in an active search for employment that is appropriate in light of the employment available in the labor market, the individual's skills and capabilities, and includes a number of employer contacts that is consistent with the standards communicated to the individual by the State;

''(iii) has maintained a record of such work search, including employers contacted, method of contact, and date contacted; and

''(iv) when requested, has provided such work search record to the State agency.

''(B) FLEXIBILITY.—Notwithstanding the requirements under subparagraph (A) and paragraph (2)(C), a State shall provide flexibility in meeting such requirements in case of individuals unable to search for work because of COVID–19, including because of illness, quarantine, or movement restriction.

''(b) PANDEMIC EMERGENCY UNEMPLOYMENT COMPENSATION ACCOUNT.—

''(1) IN GENERAL.—Any agreement under this section shall provide that the State will establish, for each eligible individual who files an application for pandemic emergency unemployment extension compensation, a pandemic emergency unemployment extension compensation account with respect to such individual's benefit year.

''(2) AMOUNT IN ACCOUNT.—The amount established in an account under subsection (a) shall be equal to 13 times the individual's average weekly benefit amount, which includes the amount of Federal Pandemic Unemployment Compensation under section 2104, for the benefit year.

''(3) WEEKLY BENEFIT AMOUNT.—For purposes of this subsection, an individual's weekly benefit amount for any week is the amount of base compensation (including any dependents' allowances) under the State law payable to such individual for such week for total unemployment plus the amount of Federal Pandemic Unemployment Compensation under section 2104.

''(c) PAYMENTS TO STATES HAVING AGREEMENTS FOR THE PAYMENT OF PANDEMIC EMERGENCY UNEMPLOYMENT EXTENSION COMPENSATION.—

''(1) IN GENERAL.—There shall be paid to each State that has entered into an agreement under this section an amount equal to 100 percent of the pandemic emergency unemployment extension compensation paid to individuals by the State pursuant to such agreement.

''(2) TREATMENT OF REIMBURSABLE COMPENSATION.—No payment shall be made to any State under this section in respect of any compensation to the extent the State is entitled to reimbursement in respect of such compensation under the provisions of any Federal law other than this section or chapter 85 of title 5, United States Code. A State shall not be entitled to any reimbursement under such chapter 85 in respect of any compensation to the extent the State is entitled to reimbursement under this section in respect of such compensation.

''(3) DETERMINATION OF AMOUNT.—Sums payable to any State by reason of such State having an agreement under this section shall be payable, either in advance or by way of reimbursement (as may be determined by the Secretary), in such amounts as the Secretary estimates the State will be entitled to receive under this section for each calendar month, reduced or increased, as the case may be, by any amount by which the Secretary finds that the Secretary's estimates for any prior calendar month were greater or less than the amounts which should have been paid to the State. Such estimates may be made on the basis of such statistical, sampling, or other method as may be agreed upon by the Secretary and the State agency of the State involved.

''(d) FINANCING PROVISIONS.—

''(1) COMPENSATION.—

''(A) IN GENERAL.—Funds in the extended unemployment compensation account (as established by section 905(a) of the Social Security Act (42 U.S.C. 1105(a)) of the Unemployment Trust Fund (as established by section 904(a) of such Act (42 U.S.C. 1104(a)) shall be used for the making of payments to States having agreements entered into under this section.

''(B) TRANSFER OF FUNDS.—Notwithstanding any other provision of law, the Secretary of the Treasury shall transfer from the general fund of the Treasury (from funds not otherwise appropriated) to the extended unemployment compensation account such sums as the Secretary of Labor estimates to be necessary to make payments described in subparagraph (A). There are appropriated from the general fund of the Treasury, without fiscal year limitation, the sums referred to in the preceding sentence and such sums shall not be required to be repaid.

''(2) ADMINISTRATION.—

''(A) IN GENERAL.—There are appropriated out of the employment security administration account (as established by section 901(a) of the Social Security Act (42 U.S.C. 1101(a)) of the Unemployment Trust Fund, without fiscal year limitation, such funds as may be necessary for purposes of assisting States (as provided in title III of the Social Security Act (42 U.S.C. 501 et seq.)) in meeting the costs of administration of agreements under this section.

''(B) TRANSFER OF FUNDS.—Notwithstanding any other provision of law, the Secretary of the Treasury shall transfer from the general fund of the Treasury (from funds not otherwise appropriated) to the employment security administration account such sums as the Secretary of Labor estimates to be necessary to make payments described in subparagraph (A). There are appropriated from the general fund of the Treasury, without fiscal year limitation, the sums referred to in the preceding sentence and such sums shall not be required to be repaid.

''(3) CERTIFICATION.—The Secretary shall from time to time certify to the Secretary of the

Treasury for payment to each State the sums payable to such State under this subsection. The Secretary of the Treasury, prior to audit or settlement by the Government Accountability Office, shall make payments to the State in accordance with such certification, by transfers from the extended unemployment compensation account (as so established) to the account of such State in the Unemployment Trust Fund (as so established).

''(e) FRAUD AND OVERPAYMENTS.—

''(1) IN GENERAL.—If an individual knowingly has made, or caused to be made by another, a false statement or representation of a material fact, or knowingly has failed, or caused another to fail, to disclose a material fact, and as a result of such false statement or representation or of such nondisclosure such individual has received an amount of pandemic emergency unemployment extension compensation under this section to which such individual was not entitled, such individual—

''(A) shall be ineligible for further pandemic emergency unemployment extension compensation under this section in accordance with the provisions of the applicable State unemployment compensation law relating to fraud in connection with a claim for unemployment compensation; and

''(B) shall be subject to prosecution under section 1001 of title 18, United States Code.

''(2) REPAYMENT.—In the case of individuals who have received amounts of pandemic emergency unemployment extension compensation under this section to which they were not entitled, the State shall require such individuals to repay the amounts of such pandemic emergency unemployment extension compensation to the State agency, except that the State agency may waive such repayment if it determines that—

''(A) the payment of such pandemic emergency unemployment extension compensation was without fault on the part of any such individual; and

''(B) such repayment would be contrary to equity and good conscience.

''(3) RECOVERY BY STATE AGENCY.—

''(A) IN GENERAL.—The State agency shall recover the amount to be repaid, or any part thereof, by deductions from any pandemic emergency unemployment extension compensation payable to such individual under this section or from any unemployment compensation payable to such individual under any State or Federal unemployment compensation law administered by the State agency or under any other State or Federal law administered by the State agency which provides for the payment of any assistance or allowance with respect to any week of unemployment, during the 3-year period after the date such individuals received the payment of the pandemic emergency unemployment extension compensation to which they were not entitled, in accordance with the same procedures as apply to the recovery of overpayments of regular unemployment benefits paid by the State.

''(B) OPPORTUNITY FOR HEARING.—No repayment shall be required, and no deduction shall be made, until a determination has been made, notice thereof and an opportunity for a fair hearing has been given to the individual, and the determination has become final.

''(4) REVIEW.—Any determination by a State agency under this section shall be subject to review in the same manner and to the same extent as determinations under the State unemployment compensation law, and only in that manner and to that extent.

''(f) DEFINITIONS.—In this section—

''(1) the terms 'compensation', 'regular compensation', 'extended compensation', 'benefit year', 'base period', 'State', 'State agency', 'State law', and 'week' have the respective meanings given such terms under section 205 of the Federal-State Extended Unemployment Compensation Act of 1970 (26 U.S.C. 3304 note); and

''(2) the term 'base compensation' means, as applicable—

''(A) regular compensation; or

''(B) pandemic unemployment assistance under section 2102.

''(g) APPLICABILITY.—An agreement entered into under this section shall apply to weeks of unemployment—

''(1) beginning after the date on which such agreement is entered into; and

''(2) ending on or before January 31, 2021.''.

TITLE III—CLARIFICATIONS AND IMPROVEMENTS TO PANDEMIC UNEMPLOYMENT ASSISTANCE

SEC. 301. CLARIFICATION OF PANDEMIC UNEMPLOYMENT ASSISTANCE ELIGIBILITY FOR PRIMARY CAREGIVING.

(a) IN GENERAL.—Section 2102(a)(3)(A)(ii)(I)(dd) of the CARES Act (15 U.S.C. 9021(a)(3)(A)(ii)(I)(dd)) is amended by striking ''that is closed as a direct result of the COVID–19 public health emergency'' and inserting ''because the school or facility is closed or only partially reopened due to COVID–19, because child or family care is not available or affordable during the hours work is available due to COVID–19, or because physical attendance at the school or facility presents an unacceptable health risk for the household or the individual in need of care due to COVID–19,''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall take effect upon the date of the enactment of this Act.

SEC. 302. WAIVER AUTHORITY FOR CERTAIN OVERPAYMENTS OF PANDEMIC UNEMPLOYMENT ASSISTANCE.

(a) IN GENERAL.—Section 2102(d) of the CARES Act (15 U.S.C. 9021(d)) is amended by adding at the end the following:

''(4) WAIVER AUTHORITY.—In the case of individuals who have received amounts of Pandemic Unemployment Assistance to which they were not entitled, the State shall require such individuals to repay the amounts of such Pandemic Unemployment Assistance to the State agency, except that the State agency shall waive such repayment if it determines that—

''(A) the payment of such Pandemic Unemployment Assistance was without fault on the part of any such individual; and

''(B) such repayment would be contrary to equity and good conscience.''.

(b) EFFECTIVE DATE.—The amendments made by this section shall take effect as if included in the enactment of the CARES Act (Public Law 116–136).

SEC. 303. CLARIFICATION OF ACCESS TO PANDEMIC UNEMPLOYMENT ASSISTANCE FOR WORKERS AT BUSINESSES THAT REDUCED STAFF DUE TO THE PANDEMIC.

(a) IN GENERAL.—Section 2102(a)(3)(A)(ii)(I)(jj) of the CARES Act (15 U.S.C. 9021(a)(3)(A)(ii)(I)(jj)) is amended by inserting ''or its operations are otherwise curtailed, including by reducing hours of operation, staffing levels, occupancy, or other changes that are recommended or required,'' after ''closed''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall apply with respect to weeks of unemployment beginning after the date of the enactment of this Act.

SEC. 304. HOLD HARMLESS FOR PANDEMIC UNEMPLOYMENT ASSISTANCE.

(a) IN GENERAL.—Section 2102(c) of the CARES Act (15 U.S.C. 9021(c)) is amended by adding at the end the following:

''(4) CONTINUED ELIGIBILITY FOR ASSISTANCE.—As a condition of continued eligibility for assistance under this section, a covered individual shall submit a recertification to the State for each week after the individual's 1st week of eligibility that certifies that the individual remains an individual described in subsection (a)(3)(A)(ii) for such week.''.

(b) EFFECTIVE DATE; SPECIAL RULE.—

(1) IN GENERAL.—The amendment made by subsection (a) shall apply with respect to weeks beginning on or after the date that is 30 days after the date of enactment of this section.

(2) SPECIAL RULE.—In the case of any State that made a good faith effort to implement section 2102 of the CARES Act in accordance with rules similar to those provided in section 625.6 of title 20, Code of Federal Regulations, for weeks ending before the effective date specified in paragraph (1), an individual who received Pandemic Unemployment Assistance from such State for any such week shall not be considered ineligible for such assistance for such week solely by reason of failure to submit a recertification described in subsection (c)(4) of such section.

TITLE IV—EXTENSION OF RELIEF TO STATES AND EMPLOYERS

SEC. 401. EXTENSION OF FULL FEDERAL FUNDING OF EXTENDED UNEMPLOYMENT COMPENSATION.

Section 4105 of the Families First Coronavirus Response Act (26 U.S.C. 3304 note) is amended by striking ''December 31, 2020'' each place it appears and inserting ''June 30, 2021''.

SEC. 402. EXTENSION OF TEMPORARY ASSISTANCE FOR STATES WITH ADVANCES.

Section 1202(b)(10)(A) of the Social Security Act (42 U.S.C. 1322(b)(10)(A)) is amended by striking ''December 31, 2020'' and inserting ''June 30, 2021''.

SEC. 403. EXTENSION OF EMERGENCY RELIEF FOR GOVERNMENTAL ENTITIES AND NONPROFIT ORGANIZATIONS.

Section 903(i)(1)(D) of the Social Security Act (42 U.S.C. 1103(i)(1)(D)) is amended by striking ''December 31, 2020'' and inserting ''June 30, 2021''.

TITLE V—CORRECTIVE ACTION FOR PROCESSING BACKLOGS

SEC. 501. STATE REPORTING ON CLAIMS BACKLOGS.

(a) IN GENERAL.—Section 2104 of the CARES Act (15 U.S.C. 9023) is amended by adding at the end the following:

''(j) STATE ACCOUNTABILITY RELATING TO CLAIMS BACKLOGS.—As a condition of any agreement under this section, the following rules shall apply:

''(1) CLAIMS REPORTING.—

''(A) IN GENERAL.—Each State participating in such an agreement shall submit to the Secretary of Labor on a weekly basis a report on the status in the State of any backlog of the processing of unemployment claims, including claims for regular compensation, extended compensation, Pandemic Unemployment Assistance, and Pandemic Emergency Unemployment Compensation. Such report shall include a description, with respect to the previous week, of each of the following:

''(i) The number of initial claims still in process, disaggregated by the number of such claims still pending—

''(I) because of nonmonetary determinations;

''(II) because of monetary determinations;

''(III) because of suspected fraud; and

''(IV) for any other reason.

''(ii) The number of initial claims denied.

''(iii) The number of individuals with respect to whom a continued claim was paid.

''(iv) The number of individuals with respect to whom a continued claim is still in process, disaggregated by the number of such claims still pending—

''(I) because of nonmonetary determinations;

''(II) because of monetary determinations;

''(III) because of suspected fraud; and

''(IV) for any other reason.

''(v) The number of individuals with respect to whom a continued claims was denied.

''(B) REPORT TO CONGRESS.—Upon receipt of a report described in subparagraph (A), the Secretary of Labor shall publish such report on the website of the Department of Labor and shall submit such report to the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate.

''(2) CORRECTIVE ACTION PLANS.—

''(A) IN GENERAL.—Not later than 90 days after the date of enactment of this subsection and at least every 90 days thereafter, each State participating in such an agreement shall submit to the Secretary of Labor a corrective action plan that includes a description of the actions the State has taken and intends to take to address any backlog of the processing of unemployment claims described in paragraph (1)(A). The Secretary may waive the requirement under this subparagraph with respect to any State that the Secretary determines has made adequate progress in addressing any such backlog.

''(B) TECHNICAL ASSISTANCE.—The Secretary of Labor shall make technical assistance available to States to the extent feasible to enable States to develop and implement corrective action plans in accordance with this paragraph. If the Secretary of Labor determines at any time that a State has failed to take reasonable actions under a corrective action plan to address a claims backlog, the State shall collaborate with the Secretary to develop a subsequent corrective action plan to achieve clearly defined, targeted outcomes.

''(C) REPORT TO CONGRESS.—Upon receipt of a corrective action plan described in subparagraph (A), the Secretary of Labor shall publish such plan on the website of the Department of Labor and shall submit such report to the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate.''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall apply with respect to weeks beginning after the date of enactment of this Act.

TITLE VI—ADDITIONAL BENEFITS FOR MIXED EARNERS

SECTION 601. MIXED EARNER UNEMPLOYMENT COMPENSATION.

(a) IN GENERAL.—Section 2104(b)(1) of the CARES Act (15 U.S.C. 9023(b)(1)) is amended—

(1) in subparagraph (B), by striking the period at the end and inserting '', plus''; and

(2) by adding at the end the following:

''(C) an additional amount of $125 (in this section referred to as 'Mixed Earner Unemployment Compensation') in any case in which the individual received at least $5,000 of self-employment income (as defined in section 1402(b) of the Internal Revenue Code of 1986) in the most recent taxable year ending prior to the individual's application for regular compensation.''.

(b) CONFORMING AMENDMENTS.—Section 2104 of such Act is amended—

(1) by inserting ''or Mixed Earner Unemployment Compensation'' after ''Federal Pandemic Unemployment Compensation'' each place such term appears in subsection (b)(2), (c), or (f) of such section;

(2) in subsection (d), by inserting ''and Mixed Earner Unemployment Compensation'' after ''Federal Pandemic Unemployment Compensation''; and

(3) in subsection (g), by striking ''provide that'' and all that follows through the end and inserting ''provide that—

''(1) the purposes of the preceding provisions of this section, as such provisions apply with respect to Federal Pandemic Unemployment Compensation, shall be applied with respect to unemployment benefits described in subsection (i)(2) to the same extent and in the same manner as if those benefits were regular compensation; and

''(2) the purposes of the preceding provisions of this section, as such provisions apply with respect to Mixed Earner Unemployment Compensation, shall be applied with respect to unemployment benefits described in subparagraph (B) or (D) of subsection (i)(2) to the same extent and in the same manner as if those benefits were regular compensation.''.

(c) APPLICABILITY.—The amendments made by this section shall not apply with respect to a State participating in an agreement under section 2104 of the CARES Act unless the State so elects, in which case such amendments shall apply with respect to weeks of unemployment beginning on or after the later of the date of such election or the date of enactment of this section.

TITLE VII—TECHNICAL CORRECTIONS

SEC. 701. GRACE PERIOD FOR FULL FINANCING OF SHORT-TIME COMPENSATION PROGRAMS.

Section 2108(c) of the CARES Act (15 U.S.C. 9026(c)) is amended by striking ''shall be eligible'' and all that follows through the end and inserting the following: ''

''shall be eligible—

''(1) for payments under subsection (a) for weeks of unemployment beginning after the effective date of such enactment; and

''(2) for an additional payment equal to the total amount of payments for which the State is eligible pursuant to an agreement under section 2109 for weeks of unemployment before such effective date.''.

SEC. 702. TECHNICAL CORRECTION FOR THE COMMONWEALTH OF NORTHERN MARIANA ISLANDS.

A Commonwealth Only Transitional Worker (as defined in section 6(i)(2) of the Joint Resolution entitled ''A Joint Resolution to approve the 'Covenant To Establish a Commonwealth of the Northern Mariana Islands in Political Union with the United States of America', and for other purposes'' (48 U.S.C. 1806)) shall be considered a qualified alien under section 431 of Public Law 104–193 (8 U.S.C. 1641) for purposes of eligibility for a benefit under section 2102 or 2104 of the CARES Act.

SEC. 703. TECHNICAL AMENDMENT RELATING TO PANDEMIC UNEMPLOYMENT ASSISTANCE.

Section 2102(h) of the CARES Act (15 U.S.C. 9021(h)) is amended by striking ''section 625'' each place it appears and inserting ''part 625''.

DIVISION J—EMERGENCY ASSISTANCE, ELDER JUSTICE, AND CHILD AND FAMILY SUPPORT

TITLE I—EMERGENCY ASSISTANCE

SEC. 101. FUNDING TO STATES, LOCALITIES, AND COMMUNITY-BASED ORGANIZATIONS FOR EMERGENCY AID AND SERVICES.

(a) FUNDING FOR STATES.—

(1) INCREASE IN FUNDING FOR SOCIAL SERVICES BLOCK GRANT PROGRAM.—

(A) IN GENERAL.—The amount specified in subsection (c) of section 2003 of the Social Security Act for purposes of subsections (a) and (b) of such section is deemed to be $11,325,000,000 for fiscal year 2020, of which $9,600,000,000 shall be obligated by States in accordance with this subsection.

(B) APPROPRIATION.—Out of any money in the Treasury of the United States not otherwise appropriated, there are appropriated $9,600,000,000, which shall be available for payments under section 2002 of the Social Security Act, which shall remain available until the end of fiscal year 2021.

(C) DEADLINE FOR DISTRIBUTION OF FUNDS.—Within 45 days after the date of the enactment of this Act, the Secretary of Health and Human Services shall distribute the funds made available by this paragraph, which shall be made available to States on an emergency basis for immediate obligation and expenditure.

(D) SUBMISSION OF REVISED PRE-EXPENDITURE REPORT.—Within 90 days after a State receives funds made available by this paragraph, the State shall submit to the Secretary a revised pre-expenditure report pursuant to title XX of the Social Security Act that describes how the State plans to administer the funds.

(E) DEADLINE FOR OBLIGATION OF FUNDS BY STATES.—A State to which funds made available by this paragraph are distributed shall obligate the funds not later than 120 days after receipt.

(F) DEADLINE FOR EXPENDITURE OF FUNDS.—A grantee to which a State (or a subgrantee to which a grantee) provides funds made available by this paragraph shall expend the funds not later than December 31, 2021.

(2) RULES GOVERNING USE OF ADDITIONAL FUNDS.—A State to which funds made available by paragraph (1)(B) are distributed shall use the funds in accordance with the following:

(A) PURPOSE.—

(i) IN GENERAL.—The State shall use the funds only to support the provision of emergency services to disadvantaged children, families, and households.

(ii) DISADVANTAGED DEFINED.—In this paragraph, the term ''disadvantaged'' means, with respect to an entity, that the entity—

(I) is an individual, or is located in a community, that is experiencing material hardship;

(II) is a household in which there is a child (as defined in section 12(d) of the Richard B. Russell National School Lunch Act) or a child served under section 11(a)(1) of such Act, who, if not for the closure of the school attended by the child during a public health emergency designation and due to concerns about a COVID–19 outbreak, would receive free or reduced price school meals pursuant to such Act;

(III) is an individual, or is located in a community, with barriers to employment; or

(IV) is located in a community that, as of the date of the enactment of this Act, is not experiencing a 56-day downward trajectory of—

(aa) influenza-like illnesses;

(bb) COVID-like syndromic cases;

(cc) documented COVID–19 cases; or

(dd) positive test results as a percentage of total COVID–19 tests.

(B) PASS-THROUGH TO LOCAL ENTITIES.—

(i) In the case of a State in which a county administers or contributes financially to the non-Federal share of the amounts expended in carrying out a State program funded under title IV of the Social Security Act, the State shall pass at least 50 percent of all funds so made available through to the chief elected official of the city or county that administers the program.

(ii) In the case of any other State and any State to which clause (i) applies that does not pass through funds as described in that clause, the State shall—

(I) pass at least 50 percent of the funds through to—

(aa)(AA) local governments that will expend or distribute the funds in consultation with community-based organizations with experience serving disadvantaged families or individuals; or

(BB) community-based organizations with experience serving disadvantaged families and individuals; and

(bb) sub-State areas in proportions based on the population of disadvantaged individuals living in the areas; and

(II) report to the Secretary on how the State determined the amounts passed through pursuant to this clause.

(C) METHODS.—

(i) IN GENERAL.—The State shall use the funds only for—

(I) administering emergency services;

(II) providing short-term cash, non-cash, or in-kind emergency disaster relief;

(III) providing services with demonstrated need in accordance with objective criteria that are made available to the public;

(IV) operational costs directly related to providing services described in subclauses (I), (II), and (III);

(V) local government emergency social service operations; and

(VI) providing emergency social services to rural and frontier communities that may not have access to other emergency funding streams.

(ii) ADMINISTERING EMERGENCY SERVICES DEFINED.—In clause (i), the term ''administering emergency services'' means—

(I) providing basic disaster relief, economic, and well-being necessities to ensure communities are able to safely observe shelter-in-place and social distancing orders;

(II) providing necessary supplies such as masks, gloves, and soap, to protect the public against infectious disease; and

(III) connecting individuals, children, and families to services or payments for which they may already be eligible.

(D) PROHIBITIONS.—

(i) NO INDIVIDUAL ELIGIBILITY DETERMINATIONS BY GRANTEES OR SUBGRANTEES.—Neither a grantee to which the State provides the funds nor any subgrantee of such a grantee may exercise individual eligibility determinations for the purpose of administering short-term, non-cash, in-kind emergency disaster relief to communities.

(ii) APPLICABILITY OF CERTAIN SOCIAL SERVICES BLOCK GRANT FUNDS USE LIMITATIONS.—The State shall use the funds subject to the limitations in section 2005 of the Social Security Act, except that, for purposes of this clause, section 2005(a)(2) and 2005(a)(8) of such Act shall not apply.

(iii) NO SUPPLANTATION OF CERTAIN STATE FUNDS.—The State may use the funds to supplement, not supplant, State general revenue funds for social services.

(iv) BAN ON USE FOR CERTAIN COSTS REIMBURSABLE BY FEMA.—The State may not use the funds for costs that are reimbursable by the Federal Emergency Management Agency, under a contract for insurance, or by self-insurance.

(b) FUNDING FOR INDIAN TRIBES AND TRIBAL ORGANIZATIONS.—

(1) GRANTS.—

(A) IN GENERAL.—Within 90 days after the date of the enactment of this Act, the Secretary of Health and Human Services shall make grants to Indian Tribes and Tribal organizations.

(B) AMOUNT OF GRANT.—The amount of the grant for an Indian Tribe or Tribal organization shall bear the same ratio to the amount appropriated by paragraph (3) as the total amount of grants awarded to the Indian Tribe or Tribal organization under the Low-Income Home Energy Assistance Act of 1981 and the Community Service Block Grant for fiscal year 2020 bears to the total amount of grants awarded to all Indian Tribes and Tribal organizations under such Act and such Grant for the fiscal year.

(2) RULES GOVERNING USE OF FUNDS.—An entity to which a grant is made under paragraph (1) shall obligate the funds not later than September 30, 2021, and the funds shall be expended by grantees and subgrantees not later than September 30, 2022, and used in accordance with the following:

(A) PURPOSE.—

(i) IN GENERAL.—The grantee shall use the funds only to support the provision of emergency services to disadvantaged households.

(ii) DISADVANTAGED DEFINED.—In clause (i), the term ''disadvantaged'' means, with respect to an entity, that the entity—

(I) is an individual, or is located in a community, that is experiencing material hardship;

(II) is a household in which there is a child (as defined in section 12(d) of the Richard B. Russell National School Lunch Act) or a child served under section 11(a)(1) of such Act, who, if not for the closure of the school attended by the child during a public health emergency designation and due to concerns about a COVID–19 outbreak, would receive free or reduced price school meals pursuant to such Act;

(III) is an individual, or is located in a community, with barriers to employment; or

(IV) is located in a community that, as of the date of the enactment of this Act, is not experiencing a 56-day downward trajectory of—

(aa) influenza-like illnesses;

(bb) COVID-like syndromic cases;

(cc) documented COVID–19 cases; or

(dd) positive test results as a percentage of total COVID–19 tests.

(B) METHODS.—

(i) IN GENERAL.—The grantee shall use the funds only for—

(I) administering emergency services;

(II) providing short-term, non-cash, in-kind emergency disaster relief; and

(III) tribal emergency social service operations.

(ii) ADMINISTERING EMERGENCY SERVICES DEFINED.—In clause (i), the term ''administering emergency services'' means—

(I) providing basic economic and well-being necessities to ensure communities are able to safely observe shelter-in-place and social distancing orders;

(II) providing necessary supplies such as masks, gloves, and soap, to protect the public against infectious disease; and

(III) connecting individuals, children, and families to services or payments for which they may already be eligible.

(C) PROHIBITIONS.—

(i) NO INDIVIDUAL ELIGIBILITY DETERMINATIONS BY GRANTEES OR SUBGRANTEES.—Neither the grantee nor any subgrantee may exercise individual eligibility determinations for the purpose of administering short-term, non-cash, in-kind emergency disaster relief to communities.

(ii) BAN ON USE FOR CERTAIN COSTS REIMBURSABLE BY FEMA.—The grantee may not use the funds for costs that are reimbursable by the Federal Emergency Management Agency, under a contract for insurance, or by self-insurance.

(3) APPROPRIATION.—Out of any money in the Treasury of the United States not otherwise appropriated, there are appropriated $400,000,000 to make tribal grants under this subsection.

SEC. 102. EMERGENCY ASSISTANCE TO FAMILIES THROUGH HOME VISITING PROGRAMS.

(a) IN GENERAL.—For purposes of section 511 of the Social Security Act, during the period that begins on February 1, 2020, and ends January 31, 2021—

(1) a virtual home visit shall be considered a home visit;

(2) funding for, and staffing levels of, a program conducted pursuant to such section shall not be reduced on account of reduced enrollment in the program; and

(3) funds provided for such a program may be used—

(A) to train home visitors in conducting a virtual home visit and in emergency preparedness and response planning for families served, and may include training on how to safely conduct intimate partner violence screenings, and training on safety and planning for families served;

(B) for the acquisition by families enrolled in the program of such technological means as are needed to conduct and support a virtual home visit;

(C) to provide emergency supplies (such as diapers, formula, non-perishable food, water, hand soap and hand sanitizer) to families served; and

(D) to provide prepaid grocery cards to an eligible family (as defined in section 511(k)(2) of such Act) for the purpose of enabling the family to meet the emergency needs of the family.

(b) VIRTUAL HOME VISIT DEFINED.—In subsection (a), the term ''virtual home visit'' means a visit that is conducted solely by the use of electronic information and telecommunications technologies.

(c) AUTHORITY TO DELAY DEADLINES.—

(1) IN GENERAL.—The Secretary of Health and Human Services may extend the deadline by which a requirement of section 511 of the Social Security Act must be met, by such period of time as the Secretary deems appropriate.

(2) GUIDANCE.—The Secretary of Health and Human Services shall provide to eligible entities funded under section 511 of the Social Security Act information on the parameters used in extending a deadline under paragraph (1) of this subsection.

(d) SUPPLEMENTAL APPROPRIATION.—In addition to amounts otherwise appropriated, out of any money in the Treasury of the United States not otherwise appropriated, there are appropriated to the Secretary of Health and Human Services $100,000,000, to enable eligible entities to conduct programs funded under section 511 of the Social Security Act pursuant to this section, which shall remain available for obligation not later than January 31, 2021.

TITLE II—REAUTHORIZATION OF FUNDING FOR PROGRAMS TO PREVENT, INVESTIGATE, AND PROSECUTE ELDER ABUSE, NEGLECT, AND EXPLOITATION

SEC. 201. ELDER ABUSE, NEGLECT, AND EXPLOITATION FORENSIC CENTERS.

Section 2031(f) of the Social Security Act (42 U.S.C. 1397l(f)) is amended—

(1) in paragraph (2), by striking ''and'' after the semicolon;

(2) in paragraph (3), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(4) for fiscal year 2021, $5,000,000.''.

SEC. 202. GRANTS FOR LONG-TERM CARE STAFFING AND TECHNOLOGY.

Section 2041(d) of the Social Security Act (42 U.S.C. 1397m(d)) is amended—

(1) in paragraph (2), by striking ''and'' after the semicolon;

(2) in paragraph (3), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(4) for fiscal year 2021, $14,000,000.''.

SEC. 203. ADULT PROTECTIVE SERVICES FUNCTIONS AND GRANT PROGRAMS.

Section 2042 of the Social Security Act (42 U.S.C. 1397m–1) is amended—

(1) in subsection (a)(2), by striking ''$3,000,000'' and all that follows through the period and inserting ''$3,000,000 for fiscal year 2021.'';

(2) in subsection (b)(5), by striking ''$100,000,000'' and all that follows through the period and inserting ''$100,000,000 for fiscal year 2021.''; and

(3) in subsection (c)(6), by striking ''$25,000,000'' and all that follows through the period and inserting ''$20,000,000 for fiscal year 2021.''.

SEC. 204. LONG-TERM CARE OMBUDSMAN PROGRAM GRANTS AND TRAINING.

Section 2043 of the Social Security Act (42 U.S.C. 1397m–2) is amended—

(1) in subsection (a)(2)—

(A) in subparagraph (B), by striking ''and'' after the semicolon;

(B) in subparagraph (C), by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following:

''(D) for fiscal year 2021, $8,000,000.''; and

(2) in subsection (b)(2), by inserting before the period the following: '', and for fiscal year 2021, $10,000,000''.

SEC. 205. INVESTIGATION SYSTEMS AND TRAINING.

Section 6703(b) of the Patient Protection and Affordable Care Act (42 U.S.C. 1395i–3a(b)) is amended—

(1) in paragraph (1)(C), by striking ''for the period'' and all that follows through the period and inserting ''for fiscal year 2021, $10,000,000.''; and

(2) in paragraph (2)(C), by striking ''for each of fiscal years 2011 through 2014, $5,000,000'' and inserting ''for fiscal year 2021, $4,000,000''.

SEC. 206. INCREASED FUNDING FOR STATES AND INDIAN TRIBES FOR ADULT PROTECTIVE SERVICES.

(a) INCREASE IN FUNDING.—

(1) RESERVATION OF FUNDS.—Of the amount made available to carry out subtitle A of title XX of the Social Security Act for fiscal year 2020, $25,000,000 shall be reserved for obligation by States during calendar year 2020 in accordance with subsection (b) of this section.

(2) APPROPRIATION.—Out of any money in the Treasury of the United States not otherwise appropriated, there are appropriated $25,000,000 for fiscal year 2020 to make grants to States under this subsection, which shall remain available until the end of fiscal year 2021.

(3) DEADLINE FOR DISTRIBUTION OF FUNDS.—Within 45 days after the date of the enactment of this Act, the Secretary of Health and Human Services shall distribute the funds reserved under paragraph (1) of this subsection, which shall be made available to States (as defined for purposes of title XX of the Social Security Act in section 1101 of such Act (42 U.S.C. 1301)) on an emergency basis for immediate obligation and expenditure.

(4) SUBMISSION OF REVISED PRE-EXPENDITURE REPORT.—Within 90 days after a State receives funds distributed under paragraph (3), the State shall submit to the Secretary of Health and Human Services a revised pre-expenditure report pursuant to subtitle A of title XX of the Social Security Act (42 U.S.C. 1397 et seq.) that describes how the State plans to administer the funds.

(5) DEADLINE FOR OBLIGATION OF FUNDS BY STATES.—Within 120 days after funds are distributed to a State under paragraph (3), the State shall obligate the funds.

(6) DEADLINE FOR EXPENDITURE OF FUNDS.—A grantee to which a State (or a subgrantee to which a grantee) provides funds distributed under this subsection shall expend the funds not later than December 31, 2021.

(b) RULES GOVERNING USE OF ADDITIONAL FUNDS.—Funds are used in accordance with this subsection if—

(1) the funds are used for adult protective services (as defined in section 2011(2) of the Social Security Act (42 U.S.C. 1397j(2));

(2) the funds are used subject to the limitations in section 2005 of the Social Security Act (42 U.S.C. 1397d); and

(3) the funds are used to supplement, not supplant, State general revenue funds or funds provided under section 2002 of the Social Security Act for adult protective services.

(c) FUNDING FOR INDIAN TRIBES AND TRIBAL ORGANIZATIONS.—

(1) GRANTS.—

(A) IN GENERAL.—Within 90 days after the date of the enactment of this Act, the Secretary of Health and Human Services shall make grants to Indian Tribes and Tribal organizations (as defined in section 677(e)(1) of the Community Services Block Grant Act (42 U.S.C. 9911(e)(1))).

(B) AMOUNT OF GRANT.—The amount of the grant for an Indian Tribe or Tribal organization shall bear the same ratio to the amount appropriated by paragraph (3) as the total amount of grants awarded to the Indian Tribe or Tribal organization under the Low-Income Home Energy Assistance Act of 1981 and the Community Service Block Grant for fiscal year 2020 bears to the total amount of grants awarded to all Indian Tribes and Tribal organizations under such Act and such Grant for the fiscal year.

(2) RULES GOVERNING USE OF FUNDS.—An entity to which a grant is made under paragraph (1) shall obligate the funds not later than September 30, 2021, and the funds shall be expended by grantees and subgrantees not later than December 31, 2021, and used in accordance with subsection (b) of this section (except that paragraph (3) of such subsection shall be applied by substituting ''general revenue funds of the Indian Tribe or Tribal organization'' for ''State general revenue funds'').

(3) REPORTS.—

(A) PRE-EXPENDITURE REPORT AND INTENDED USE PLAN.—Not later than 90 days after an Indian Tribe or Tribal organization receives funds made available by this subsection, the Indian Tribe or Tribal organization shall submit to the Secretary of Health and Human Services a pre-expenditure report on the intended use of such funds including information on the types of activities to be supported and the categories or characteristics of individuals to be served. The Indian Tribe or Tribal organization shall subsequently revise the pre-expenditure report as necessary to reflect substantial changes in the activities to be supported or the categories or characteristics of individuals to be served.

(B) POST-EXPENDITURE REPORT.—Not later than January 1, 2022, each Indian Tribe or Tribal organization that receives funds made available under this section shall submit to the Secretary of Health and Human Services a report on the activities supported by such funds. Such report shall be in such form and contain such information (including the information described in section 2006(c) of the Social Security Act (42 U.S.C. 1397e(c))) as the Tribe or organization finds necessary to provide an accurate description of such activities, to secure a complete record of the purposes for which funds were spent, and to determine the extent to which funds were spent in a manner consistent with the report required by subparagraph (A).

(4) APPROPRIATION.—Out of any money in the Treasury of the United States not otherwise appropriated, there are appropriated $650,000 for making grants to Indian Tribes and Tribal organizations under this subsection.

SEC. 207. ASSESSMENT REPORTS.

(a) IN GENERAL.—Not later than 2 years after the date of enactment of this Act, the Secretary of Health and Human Services shall submit a report to the Congress on the programs, coordinating bodies, registries, and activities established or authorized under subtitle B of title XX of the Social Security Act (42 U.S.C. 1397l et seq.) or section 6703(b) of the Patient Protection and Affordable Care Act (42 U.S.C. 1395i–3a(b)). The report shall assess the extent to which such programs, coordinating bodies, registries, and activities have improved access to, and the quality of, resources available to aging Americans and their caregivers to ultimately prevent, detect, and treat abuse, neglect, and exploitation, and shall include, as appropriate, recommendations to Congress on funding levels and policy changes to help these programs, coordinating bodies, registries, and activities better prevent, detect, and treat abuse, neglect, and exploitation of aging Americans.

(b) LIMITATIONS ON AUTHORIZATION OF APPROPRIATIONS.—For fiscal year 2021, out of any money in the Treasury of the United States not otherwise appropriated, there are authorized to be appropriated to the Secretary of Health and Human Services $1,000,000 to carry out this section.

TITLE III—FAIRNESS FOR SENIORS AND PEOPLE WITH DISABILITIES DURING COVID–19

SEC. 301. SOCIAL SECURITY AND SUPPLEMENTAL SECURITY INCOME BENEFICIARY PROTECTIONS REGARDING INCORRECT PAYMENTS DURING COVID–19.

(a) NO ADJUSTMENT, RECOVERY, OR LIABILITY WITH RESPECT TO CERTAIN INCORRECT PAYMENTS.—

(1) IN GENERAL.—

(A) NO ADJUSTMENT, RECOVERY, OR LIABILITY.—Notwithstanding any other provision of title II, title VIII, title XI, or title XVI of the Social Security Act, and subject to subparagraph (D), in the case of any payment under title II, title VIII, or title XVI of such Act of more than the correct amount for any month during the period beginning on March 1, 2020, and ending on January 31, 2021 (other than a payment described in paragraph (2)), there shall be no adjustment of such payment to, or recovery by the United States from, any person, estate, State, or organization, and no person, estate, State, or organization shall be liable for the repayment of the amount of such payment in excess of the correct amount.

(B) AUTOMATIC RELIEF.—The Commissioner of Social Security shall apply subparagraph (A) to each payment described therein without requiring such person, estate, State, or organization to so request and regardless of whether such person, estate, State, or organization so requests.

(C) PRESUMPTIONS TO APPLY.—For the purposes of precluding such adjustment or recovery, the Commissioner of Social Security may presume—

(i) all such persons, estates, States, or organizations to be not at fault; and

(ii) recovery to be against equity and good conscience.

(D) RULE OF CONSTRUCTION.—Notwithstanding the preceding subparagraphs, in case of any payment described in subparagraph (A) that has been recovered, in full or in part, the Commissioner of Social Security shall have no obligation to issue refunds of such recovered amounts.

(2) AMOUNTS SUBJECT TO LIABILITY AND RECOVERY.—A payment described in this paragraph is a payment of more than the correct amount resulting from—

(A) a conviction for an offense under section 208(a), 811, or 1632(a) of the Social Security Act;

(B) an incorrect or incomplete statement that is knowingly made and material, or the knowing concealment of material information; or

(C) a determination that a representative payee misused benefits made under section 205(j), 807, or 1631(a)(2) of the Social Security Act,

but only if such offense, misstatement, or misuse occurred on or after March 1.

(b) NOTIFICATIONS; SUSPENSION OF RECOVERY UPON REQUEST.—

(1) RECOVERY BY ADJUSTMENT OF BENEFITS.—

(A) IN GENERAL.—Not later than November 30, 2020, the Commissioner of Social Security shall—

(i) notify each covered individual of the opportunity to request that the adjustment of benefits described in subparagraph (B) be reduced or suspended during the period described in subsection (a)(1); and

(ii) reduce or suspend (as requested) such adjustment immediately upon receipt of the request.

(B) COVERED INDIVIDUAL.—In this paragraph, the term ''covered individual'' means an individual with respect to whom the recovery of any payment under title II, title VIII, or title XVI of the Social Security Act of more than the correct amount (other than a payment described in paragraph (a)(2)) is in effect, by adjustment of the individual's monthly benefits or underpayments, for any month during the period described in subsection (a)(1).

(2) RECOVERY BY INSTALLMENT AGREEMENTS.—Not later than November 30, 2020, the Commissioner of Social Security shall notify each party owing a debt to the Social Security Administration (other than a debt arising from a payment described in paragraph (a)(2)) with respect to which an installment agreement is in effect of the opportunity to request that the installment payments under such agreement be suspended during the period described in subsection (a)(1), and shall suspend such payments upon request. The Commissioner of Social Security shall deem a debt for which such a suspension has been made to be not delinquent during such period.

(c) REPORT.—Not later than 30 days after the date of enactment of this Act, the Commissioner of Social Security shall submit a report to the Committee on Ways and Means of the House of Representatives and the Committee on Finance of the Senate describing the Commissioner's activities under this section.

(d) DEEMED ELIGIBILITY FOR SSI FOR PURPOSES OF DETERMINING MEDICAID ELIGIBILITY.—

(1) IN GENERAL.—Notwithstanding any provision of title XVI or title XIX of the Social Security Act (or section 212(a) of Public Law 93–66), each individual who receives a covered supplemental payment for any month during the period described in subsection (a)(1) and is subsequently determined to be ineligible for such payment shall be deemed to be a recipient of supplemental security income benefits under title XVI or State supplementary benefits of the type referred to in section 1616(a) of such Act (or payments of the type described in section 212(a) of Public Law 93–66), as the case may be, for such month for purposes of determining the individual's eligibility for medical assistance under a

State plan approved under title XIX of the Social Security Act (42 U.S.C. 1396 et seq.) (or a waiver of such plan).

(2) COVERED SUPPLEMENTAL PAYMENT.—For purposes of this subsection, a covered supplemental payment is—

(A) a payment of a supplemental security income benefit under title XVI of the Social Security Act; or

(B) a State supplementary payment of the type referred to in section 1616(a) of such title (or a payment of the type described in section 212(a) of Public Law 93–66).

(e) PROTECTION FOR CERTAIN MEDICARE BENEFICIARIES.—Notwithstanding section 226(a) of the Social Security Act, in the case of any individual—

(1) who is entitled to hospital insurance benefits under part A of title XVIII of the Social Security by operation of section 226(a) of such Act; and

(2) whose entitlement to monthly insurance benefits under section 202 of such Act or status as a qualified railroad retirement beneficiary (as defined in section 226(d) of such Act) terminates with any month during the period beginning on March 1, 2020, and ending on January 31, 2021, as a result of a determination made on or after August 31, 2020,

the individual's entitlement to such hospital insurance benefits shall end with the month following the month in which notice of termination of such entitlement to monthly insurance benefits under section 202 of such Act or such status as a qualified railroad retirement beneficiary is mailed to the individual, or if earlier, with the month before the month in which the individual dies.

(f) HOLD HARMLESS FOR THE SOCIAL SECURITY TRUST FUNDS.—There are appropriated, out of any moneys in the Treasury not otherwise appropriated, to each of the Federal Old-Age and Survivors Insurance Trust Fund and the Federal Disability Insurance Trust Fund for each fiscal year such amounts as the chief actuary of the Social Security Administration shall certify are necessary to place each such Trust Fund in the same position at the end of such fiscal year as it would have been in if the amendments made by this section had not been enacted.

TITLE IV—SUPPORTING FOSTER YOUTH AND FAMILIES THROUGH THE PANDEMIC

SEC. 401. SHORT TITLE.

This title may be cited as the ''Supporting Foster Youth and Families through the Pandemic Act''.

SEC. 402. DEFINITIONS.

In this title:

(1) COVID–19 PUBLIC HEALTH EMERGENCY.—The term ''COVID–19 public health emergency'' means the public health emergency declared by the Secretary pursuant to section 319 of the Public Health Service Act, entitled ''Determination that a Public Health Emergency Exists Nationwide as the Result of the 2019 Novel Coronavirus''.

(2) COVID–19 PUBLIC HEALTH EMERGENCY PERIOD.—The term ''COVID–19 public health emergency period'' means the period beginning on April 1, 2020 and ending with September 30, 2021.

(3) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

SEC. 403. CONTINUED SAFE OPERATION OF CHILD WELFARE PROGRAMS AND SUPPORT FOR OLDER FOSTER YOUTH.

(a) FUNDING INCREASES.—

(1) INCREASE IN SUPPORT FOR CHAFEE PROGRAMS.—Out of any money in the Treasury of the United States not otherwise appropriated, there are appropriated $400,000,000 for fiscal year 2020, to carry out section 477 of the Social Security Act, in addition to any amounts otherwise made available for such purpose.

(2) EDUCATION AND TRAINING VOUCHERS.—Of the amount made available by reason of paragraph (1) of this subsection, not less than $50,000,000 shall be reserved for the provision of vouchers pursuant to section 477(h)(2) of the Social Security Act.

(3) APPLICABILITY OF TECHNICAL ASSISTANCE TO ADDITIONAL FUNDS.—

(A) IN GENERAL.—Section 477(g)(2) of the Social Security Act shall apply with respect to the amount made available by reason of paragraph (1) of this subsection as if the amount were included in the amount specified in section 477(h) of such Act.

(B) RESERVATION OF FUNDS.—

(i) IN GENERAL.—Of the amount to which section 477(g)(2) of the Social Security Act applies by reason of subparagraph (A) of this paragraph, the Secretary shall reserve not less than $500,000 to provide technical assistance to a State implementing or seeking to implement a driving and transportation program for foster youth.

(ii) PROVIDER QUALIFICATIONS.—The Secretary shall ensure that the entity providing the assistance has demonstrated the capacity to—

(I) successfully administer activities in 1 or more States to provide driver's licenses to youth who are in foster care under the responsibility of the State; and

(II) increase the number of such foster youth who obtain a driver's license.

(4) INAPPLICABILITY OF STATE MATCHING REQUIREMENT TO ADDITIONAL FUNDS.—In making payments under subsections (a)(4) and (e)(1) of section 474 of the Social Security Act from the additional funds made available as a result of paragraphs (1) and (2) of this subsection, the percentages specified in subsections (a)(4)(A)(i) and (e)(1) of such section are, respectively, deemed to be 100 percent.

(5) MAXIMUM AWARD AMOUNT.—The dollar amount specified in section 477(i)(4)(B) of the Social Security Act through the end of fiscal year 2021 is deemed to be $12,000.

(6) INAPPLICABILITY OF NYTD PENALTY TO ADDITIONAL FUNDS.—In calculating any penalty under section 477(e)(2) of the Social Security Act with respect to the National Youth in Transition Database (NYTD) for the COVID–19 public health emergency period, none of the additional funds made available by reason of paragraphs (1) and (2) of this subsection shall be considered to be part of an allotment to a State under section 477(c) of such Act.

(b) MAXIMUM AGE LIMITATION ON ELIGIBILITY FOR ASSISTANCE.—During fiscal years 2020 and 2021, a child may be eligible for services and assistance under section 477 of the Social Security Act until the child attains 27 years of age, notwithstanding any contrary certification made under such section.

(c) SPECIAL RULE.—With respect to funds made available by reason of subsection (a) that are used during the COVID–19 public health emergency period to support activities due to the COVID–19 pandemic, the Secretary may not require any State to provide proof of a direct connection to the pandemic if doing so would be administratively burdensome or would otherwise delay or impede the ability of the State to serve foster youth.

(d) PROGRAMMATIC FLEXIBILITIES.—During the COVID–19 public health emergency period:

(1) SUSPENSION OF CERTAIN REQUIREMENTS UNDER THE EDUCATION AND TRAINING VOUCHER PROGRAM.—The Secretary shall allow a State to waive the applicability of the requirement in section 477(i)(3) of the Social Security Act that a youth must be enrolled in a postsecondary education or training program or making satisfactory progress toward completion of that program if a youth is unable to do so due to the COVID–19 public health emergency.

(2) AUTHORITY TO USE VOUCHERS TO MAINTAIN TRAINING AND POSTSECONDARY EDUCATION.—A voucher provided under a State educational and training voucher program under section 477(i) of the Social Security Act may be used for maintaining training and postsecondary education, including less than full-time matriculation costs or other expenses that are not part of the cost of attendance but would help support youth in remaining enrolled as described in paragraph (1) of this subsection.

(3) AUTHORITY TO WAIVE LIMITATIONS ON PERCENTAGE OF FUNDS USED FOR HOUSING ASSISTANCE AND ELIGIBILITY FOR SUCH ASSISTANCE.—Notwithstanding section 477(b)(3)(B) of the Social Security Act, a State may use—

(A) more than 30 percent of the amounts paid to the State from its allotment under section 477(c)(1) of such Act for a fiscal year, for room or board payments; and

(B) any of such amounts for youth otherwise eligible for services under section 477 of such Act who—

(i) have attained 18 years of age and not 27 years of age; and

(ii) experienced foster care at 14 years of age or older.

(4) AUTHORITY TO PROVIDE DRIVING AND TRANSPORTATION ASSISTANCE.—

(A) USE OF FUNDS.—Funds provided under section 477 of the Social Security Act may be used to provide driving and transportation assistance to youth described in paragraph (3)(B) who have attained 15 years of age with costs related to obtaining a driver's license and driving lawfully in a State (such as vehicle insurance costs, driver's education class and testing fees, practice lessons, practice hours, license fees, roadside assistance, deductible assistance, and assistance in purchasing an automobile).

(B) MAXIMUM ALLOWANCE.—The amount of the assistance provided for each eligible youth under subparagraph (A) shall not exceed $4,000 per year, and any assistance so provided shall be disregarded for purposes of determining the recipient's eligibility for, and the amount of, any other Federal or federally-supported assistance, except that the State agency shall take appropriate steps to prevent duplication of benefits under this and other Federal or federally-supported programs.

(C) REPORT TO THE CONGRESS.—Within 6 months after the end of the expenditure period, the Secretary shall submit to the Congress a report on the extent to which, and the manner in which, the funds to which subsection (a)(3) applies were used to provide technical assistance to State child welfare programs, monitor State performance and foster youth outcomes, and evaluate program effectiveness.

SEC. 404. PREVENTING AGING OUT OF FOSTER CARE DURING THE PANDEMIC.

(a) ADDRESSING FOSTER CARE AGE RESTRICTIONS DURING THE PANDEMIC.—A State operating a program under part E of title IV of the Social Security Act may not require a child who is in foster care under the responsibility of the State to leave foster care solely by reason of the child's age. A child may not be found ineligible for foster care maintenance payments under section 472 of such Act solely due to the age of the child or the failure of the child to meet a condition of section 475(8)(B)(iv) of such Act before October 1, 2021.

(b) RE-ENTRY TO FOSTER CARE FOR YOUTH WHO AGE OUT DURING THE PANDEMIC.—A State operating a program under the State plan approved under part E of title IV of the Social Security Act (and without regard to whether the State has exercised the option provided by section 475(8)(B) of such Act to extend assistance under such part to older children) shall—

(1) permit any youth who left foster care due to age during the COVID–19 public health emergency to voluntarily re-enter foster care;

(2) provide to each such youth who was formally discharged from foster care during the COVID–19 public health emergency, a notice designed to make the youth aware of the option to return to foster care;

(3) facilitate the voluntary return of any such youth to foster care; and

(4) conduct a public awareness campaign about the option to voluntarily re-enter foster

care for youth who have not attained 22 years of age, who aged out of foster care in fiscal year 2020 or fiscal year 2021, and who are otherwise eligible to return to foster care.

(c) PROTECTIONS FOR YOUTH IN FOSTER CARE.—A State operating a program under the State plan approved under part E of title IV of the Social Security Act shall—

(1) continue to ensure that the safety, permanence, and well-being needs of older foster youth, including youth who remain in foster care and youth who age out of foster care during that period but who re-enter foster care pursuant to this section, are met; and

(2) work with any youth who remains in foster care after attaining 18 years of age (or such greater age as the State may have elected under section 475(8)(B)(iii) of such Act) to develop, or review and revise, a transition plan consistent with the plan referred to in section 475(5)(H) of such Act, and assist the youth with identifying adults who can offer meaningful, permanent connections.

(d) AUTHORITY TO USE ADDITIONAL FUNDING FOR CERTAIN COSTS INCURRED TO PREVENT AGING OUT OF, FACILITATING RE-ENTRY TO, AND PROTECTING YOUTH IN CARE DURING THE PANDEMIC.—

(1) IN GENERAL.—Subject to paragraph (2) of this subsection, a State to which additional funds are made available as a result of section 3(a) may use the funds to meet any costs incurred in complying with subsections (a), (b), and (c) of this section.

(2) RESTRICTIONS.—

(A) The costs referred to in paragraph (1) must be incurred after the date of the enactment of this section and before October 1, 2021.

(B) The costs of complying with subsection (a) or (c) of this section must not be incurred on behalf of children eligible for foster care maintenance payments under section 472 of the Social Security Act, including youth who have attained 18 years of age who are eligible for the payments by reason of the temporary waiver of the age requirement or the conditions of section 475(8)(B)(iv) of such Act.

(C) A State shall make reasonable efforts to ensure that eligibility for foster care maintenance payments under section 472 of the Social Security Act is determined when a youth remains in, or re-enters, foster care as a result of the State complying with subsections (a) and (c) of this section.

(D) A child who re-enters care during the COVID–19 public health emergency period may not be found ineligible for foster care maintenance payments under section 472 of the Social Security Act solely due to age or the requirements of section 475(8)(B)(iv) of such Act before October 1, 2021.

(e) TERMINATION OF CERTAIN PROVISIONS.—The preceding provisions of this section shall have no force or effect after September 30, 2021.

SEC. 405. FAMILY FIRST PREVENTION SERVICES PROGRAM PANDEMIC FLEXIBILITY.

During the COVID–19 public health emergency period, each percentage specified in subparagraphs (A)(i) and (B) of section 474(a)(6) of the Social Security Act is deemed to be 100 percent.

SEC. 406. EMERGENCY FUNDING FOR THE MARYLEE ALLEN PROMOTING SAFE AND STABLE FAMILIES PROGRAM.

(a) IN GENERAL.—Out of any money in the Treasury of the United States not otherwise appropriated, there are appropriated $85,000,000 to carry out section 436(a) of the Social Security Act for fiscal year 2020, in addition to any amounts otherwise made available for such purpose. For purposes of section 436(b) of such Act, the amount made available by the preceding sentence shall be considered part of the amount specified in such section 436(a).

(b) INAPPLICABILITY OF STATE MATCHING REQUIREMENT TO ADDITIONAL FUNDS.—In making payments under section 434(a) of the Social Security Act from the additional funds made available as a result of subsection (a) of this section, the percentage specified in section 434(a)(1) of such Act is deemed to be 100 percent.

(c) CONFORMING AMENDMENTS.—Section 436 of the Social Security Act (42 U.S.C. 629f) is amended in each of subsections (a), (b)(4), and (b)(5) by striking ''2021'' and inserting ''2022''.

SEC. 407. COURT IMPROVEMENT PROGRAM.

(a) RESERVATION OF FUNDS.—Of the additional amounts made available by reason of section 406 of this title, the Secretary shall reserve $10,000,000 for grants under subsection (b) of this section, which shall be considered to be made under section 438 of the Social Security Act.

(b) DISTRIBUTION OF FUNDS.—

(1) IN GENERAL.—From the amounts reserved under subsection (a) of this section, the Secretary shall—

(A) reserve not more than $500,000 for Tribal court improvement activities; and

(B) from the amount remaining after the application of subparagraph (A), make a grant to each highest State court that is approved to receive a grant under section 438 of the Social Security Act for the purpose described in section 438(a)(3) of such Act, for fiscal year 2020.

(2) AMOUNT.—The amount of the grant awarded to a highest State court under this subsection shall be the sum of—

(A) $85,000; and

(B) the amount that bears the same ratio to the amount reserved under subsection (a) that remains after the application of paragraph (1)(A) and subparagraph (A) of this paragraph, as the number of individuals in the State in which the court is located who have not attained 21 years of age bears to the total number of such individuals in all States the highest courts of which were awarded a grant under this subsection (based on the most recent year for which data are available from the Bureau of the Census).

(3) OTHER RULES.—

(A) IN GENERAL.—The grants awarded to the highest State courts under this subsection shall be in addition to any grants made to the courts under section 438 of the Social Security Act for any fiscal year.

(B) NO ADDITIONAL APPLICATION.—The Secretary shall award grants to the highest State courts under this subsection without requiring the courts to submit an additional application.

(C) REPORTS.—The Secretary may establish reporting criteria specific to the grants awarded under this subsection.

(D) REDISTRIBUTION OF FUNDS.—If a highest State court does not accept a grant awarded under this subsection, or does not agree to comply with any reporting requirements imposed under subparagraph (C) or the use of funds requirements specified in subsection (c), the Secretary shall redistribute the grant funds that would have been awarded to that court under this subsection among the other highest State courts that are awarded grants under this subsection and agree to comply with the reporting and use of funds requirements.

(E) NO MATCHING REQUIREMENT.—The limitation on the use of funds specified in section 438(d) of such Act shall not apply to the grants awarded under this section.

(c) USE OF FUNDS.—A highest State court awarded a grant under subsection (b) shall use the grant funds to address needs stemming from the COVID–19 public health emergency, which may include any of the following:

(1) Technology investments to facilitate the transition to remote hearings for dependency courts when necessary as a direct result of the COVID–19 public health emergency.

(2) Training for judges, attorneys, and caseworkers on facilitating and participating in remote hearings that comply with due process and all applicable law, ensure child safety and well-being, and help inform judicial decision-making.

(3) Programs to help families address aspects of the case plan to avoid delays in legal proceedings that would occur as a direct result of the COVID–19 public health emergency.

(4) Other purposes to assist courts, court personnel, or related staff related to the COVID–19 public health emergency.

(d) CONFORMING AMENDMENTS.—Section 438 of the Social Security Act (42 U.S.C. 629h) is amended in each of subsections (c)(1) and (d) by striking ''2021'' and inserting ''2022''.

SEC. 408. KINSHIP NAVIGATOR PROGRAMS PANDEMIC FLEXIBILITY.

(a) INAPPLICABILITY OF MATCHING FUNDS REQUIREMENTS.—During the COVID–19 public health emergency period, the percentage specified in section 474(a)(7) of the Social Security Act is deemed to be 100 percent.

(b) WAIVER OF EVIDENCE STANDARD.—During the COVID–19 public health emergency period, the requirement in section 474(a)(7) of the Social Security Act that the Secretary determine that a kinship navigator program be operated in accordance with promising, supported, or well-supported practices that meet the applicable criteria specified for the practices in section 471(e)(4)(C) of such Act shall have no force or effect.

(c) OTHER ALLOWABLE USES OF FUNDS.—A State may use funds provided to carry out a kinship navigator program—

(1) for evaluations, independent systematic review, and related activities;

(2) to provide short-term support to kinship families for direct services or assistance during the COVID–19 public health emergency period; and

(3) to ensure that kinship caregivers have the information and resources to allow kinship families to function at their full potential, including—

(A) ensuring that those who are at risk of contracting COVID–19 have access to information and resources for necessities, including food, safety supplies, and testing and treatment for COVID–19;

(B) access to technology and technological supports needed for remote learning or other activities that must be carried out virtually due to the COVID–19 public health emergency;

(C) health care and other assistance, including legal assistance and assistance with making alternative care plans for the children in their care if the caregivers were to become unable to continue caring for the children;

(D) services to kinship families, including kinship families raising children outside of the foster care system; and

(E) assistance to allow children to continue safely living with kin.

(d) TERRITORY CAP EXEMPTION.—Section 1108(a)(1) of the Social Security Act shall be applied without regard to any amount paid to a territory pursuant to this section that would not have been paid to the territory in the absence of this section.

SEC. 409. ADJUSTMENT OF FUNDING CERTAINTY BASELINES FOR FAMILY FIRST TRANSITION ACT FUNDING CERTAINTY GRANTS.

Section 602(c)(2) of division N of the Further Consolidated Appropriations Act, 2020 (Public Law 116–94) is amended—

(1) in subparagraph (C), in the matter preceding clause (i), by striking ''The calculation'' and inserting ''Except as provided in subparagraph (G), the calculation''; and

(2) by adding at the end the following:

''(G) ADJUSTMENT OF FUNDING CERTAINTY BASELINES.—

''(i) HOLD HARMLESS FOR TEMPORARY INCREASE IN FMAP.—For each fiscal year specified in subparagraph (B), the Secretary shall increase the maximum capped allocation for fiscal year 2019 or the final cost neutrality limit for fiscal year 2018 for a State or sub-State jurisdiction referred to in subparagraph (A)(i), by the amount equal to the difference between—

''(I) the amount of the foster care maintenance payments portion of such maximum

capped allocation or final cost neutrality limit; and

''(II) the amount that the foster care maintenance payments portion of such maximum capped allocation or final cost neutrality limit would be if the Federal medical assistance percentage applicable to the State under clause (ii) for the fiscal year so specified were used to determine the amount of such portion.

''(ii) APPLICABLE FEDERAL MEDICAL ASSISTANCE PERCENTAGE.—For purposes of clause (i)(II), the Federal medical assistance percentage applicable to a State for a fiscal year specified in subparagraph (B) is the average of the values of the Federal medical assistance percentage applicable to the State in each quarter of such fiscal year under section 474(a)(1) of the Social Security Act (42 U.S.C. 674(a)(1)) after application of any temporary increase in the Federal medical assistance percentage for the State and quarter under section 6008 of the Families First Coronavirus Response Act (42 U.S.C. 1396d note) and any other Federal legislation enacted during the period that begins on July 1, 2020, and ends on September 30, 2021.''.

SEC. 410. TECHNICAL CORRECTION TO TEMPORARY INCREASE OF MEDICAID FMAP.

Section 6008 of the Families First Coronavirus Response Act (Public Law 116–127) is amended by adding at the end the following:

''(e) APPLICATION TO TITLE IV–E PAYMENTS.—If the District of Columbia receives the increase described in subsection (a) in the Federal medical assistance percentage for the District of Columbia with respect to a quarter, the Federal medical assistance percentage for the District of Columbia, as so increased, shall apply to payments made to the District of Columbia under part E of title IV of the Social Security Act (42 U.S.C. 670 et seq.) for that quarter, and the payments under such part shall be deemed to be made on the basis of the Federal medical assistance percentage applied with respect to such District for purposes of title XIX of such Act (42 U.S.C. 1396 et seq.) and as increased under subsection (a).''.

TITLE V—PANDEMIC STATE FLEXIBILITIES

SEC. 501. EMERGENCY FLEXIBILITY FOR STATE TANF PROGRAMS.

(a) STATE PROGRAMS.—Sections 407(a), 407(e)(1), and 408(a)(7)(A) of the Social Security Act shall have no force or effect during the applicable period, and paragraphs (3), (9), (14), and (15) of section 409(a) of such Act shall not apply with respect to conduct engaged in during the period.

(b) TRIBAL PROGRAMS.—The minimum work participation requirements and time limits established under section 412(c) of the Social Security Act shall have no force or effect during the applicable period, and the penalties established under such section shall not apply with respect to conduct engaged in during the period.

(c) PENALTY FOR NONCOMPLIANCE.—

(1) IN GENERAL.—If the Secretary of Health and Human Services finds that a State or an Indian tribe has imposed a work requirement as a condition of receiving assistance, or a time limit on the provision of assistance, under a program funded under part A of title IV of the Social Security Act or any program funded with qualified State expenditures (as defined in section 409(a)(7)(B)(i) of such Act) during the applicable period, or has imposed a penalty for failure to comply with a work requirement during the period, the Secretary shall reduce the grant payable to the State under section 403(a)(1) of such Act or the grant payable to the tribe under section 412(a)(1) of such Act, as the case may be, for fiscal year 2021 by an amount equal to 5 percent of the State or tribal family assistance grant, as the case may be.

(2) APPLICABILITY OF CERTAIN PROVISIONS.—For purposes of section 409(d) of the Social Security Act, paragraph (1) of this subsection shall be considered to be included in section 409(a) of such Act.

(d) DEFINITIONS.—In this section:

(1) APPLICABLE PERIOD.—The term ''applicable period'' means the period that begins on March 1, 2020, and ends January 31, 2021.

(2) WORK REQUIREMENT.—The term ''work requirement'' means a requirement to engage in a work activity (as defined in section 407(d) of the Social Security Act) or other work-related activity as defined by a State or tribal program funded under part A of title IV of such Act.

(3) OTHER TERMS.—Each other term has the meaning given the term in section 419 of the Social Security Act.

SEC. 502. EMERGENCY FLEXIBILITY FOR CHILD SUPPORT PROGRAMS.

(a) IN GENERAL.—With respect to the period that begins on March 1, 2020, and ends January 31, 2021:

(1) Sections 408(a)(2), 409(a)(5), and 409(a)(8) of the Social Security Act shall have no force or effect.

(2) Notwithstanding section 466(d) of such Act, the Secretary of Health and Human Services (in this subsection referred to as the ''Secretary'') may exempt a State from any requirement of section 466 of such Act to respond to the COVID–19 pandemic, except that the Secretary may not exempt a State from any requirement to—

(A) provide a parent with notice of a right to request a review and, if appropriate, adjustment of a support order; or

(B) afford a parent the opportunity to make such a request.

(3) The Secretary may not impose a penalty or take any other adverse action against a State pursuant to section 452(g)(1) of such Act for failure to achieve a paternity establishment percentage of less than 90 percent.

(4) The Secretary may not find that the paternity establishment percentage for a State is not based on reliable data for purposes of section 452(g)(1) of such Act, and the Secretary may not determine that the data which a State submitted pursuant to section 452(a)(4)(C)(i) of such Act and which is used in determining a performance level is not complete or reliable for purposes of section 458(b)(5)(B) of such Act, on the basis of the failure of the State to submit OCSE Form 396 or 34 in a timely manner.

(5) The Secretary may not impose a penalty or take any other adverse action against a State for failure to comply with section 454A(g)(1)(A)(i) or 454B(c)(1) of such Act.

(6) The Secretary may not disapprove a State plan submitted pursuant to part D of title IV of such Act for failure of the plan to meet the requirement of section 454(1) of such Act, and may not impose a penalty or take any other adverse action against a State with such a plan that meets that requirement for failure to comply with that requirement.

(7) To the extent that a preceding provision of this section applies with respect to a provision of law applicable to a program operated by an Indian tribe or tribal organization (as defined in subsections (e) and (l) of section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 450b)), that preceding provision shall apply with respect to the Indian tribe or tribal organization.

(b) CLARIFICATION OF PERFORMANCE INCENTIVE PAYMENT CALCULATION.—Notwithstanding paragraph (3) of section 458(b) of the Social Security Act, the State incentive payment share for each of fiscal years 2020 and 2021 for purposes of such section shall be the State incentive payment share determined under such section for fiscal year 2019.

(c) STATE DEFINED.—In subsection (a), the term ''State'' has the meaning given the term in section 1101(a) of the Social Security Act for purposes of title IV of such Act.

DIVISION K—HEALTH PROVISIONS

SEC. 100. SHORT TITLE.

This division may be cited as the ''Investing in America's Health Care During the COVID–19 Pandemic Act''.

TITLE I—MEDICAID PROVISIONS

SEC. 101. COVID–19-RELATED TEMPORARY INCREASE OF MEDICAID FMAP.

(a) IN GENERAL.—Section 6008 of the Families First Coronavirus Response Act (42 U.S.C. 1396d note) is amended—

(1) in subsection (a)—

(A) by inserting ''(or, if later, September 30, 2021)'' after ''last day of such emergency period occurs''; and

(B) by striking ''6.2 percentage points.'' and inserting ''the percentage points specified in subsection (e). In no case may the application of this section result in the Federal medical assistance percentage determined for a State being more than 95 percent.''; and

(2) by adding at the end the following new subsections:

''(f) SPECIFIED PERCENTAGE POINTS.—For purposes of subsection (a), the percentage points specified in this subsection are—

''(1) for each calendar quarter occurring during the period beginning on the first day of the emergency period described in paragraph (1)(B) of section 1135(g) of the Social Security Act (42 U.S.C. 1320b-5(g)) and ending on September 30, 2020, 6.2 percentage points;

''(2) for each calendar quarter occurring during the period beginning on October 1, 2020, and ending on September 30, 2021, 14 percentage points; and

''(3) for each calendar quarter, if any, occurring during the period beginning on October 1, 2021, and ending on the last day of the calendar quarter in which the last day of such emergency period occurs, 6.2 percentage points.

''(g) CLARIFICATIONS.—

''(1) In the case of a State that treats an individual described in subsection (b)(3) as eligible for the benefits described in such subsection, for the period described in subsection (a), expenditures for medical assistance and administrative costs attributable to such individual that would not otherwise be included as expenditures under section 1903 of the Social Security Act shall be regarded as expenditures under the State plan approved under title XIX of the Social Security Act or for administration of such State plan.

''(2) The limitations on payment under subsections (f) and (g) of section 1108 of the Social Security Act (42 U.S.C. 1308) shall not apply to Federal payments made under section 1903(a)(1) of the Social Security Act (42 U.S.C. 1396b(a)(1)) attributable to the increase in the Federal medical assistance percentage under this section.

''(3) Expenditures attributable to the increased Federal medical assistance percentage under this section shall not be counted for purposes of the limitations under section 2104(b)(4) of such Act (42 U.S.C. 1397dd(b)(4)).

''(4) Notwithstanding the first sentence of section 2105(b) of the Social Security Act (42 U.S.C. 1397ee(b)), the application of the increase under this section may result in the enhanced FMAP of a State for a fiscal year under such section exceeding 85 percent, but in no case may the application of such increase before application of the second sentence of such section result in the enhanced FMAP of the State exceeding 95 percent.

''(h) SCOPE OF APPLICATION.—An increase in the Federal medical assistance percentage for a State under this section shall not be taken into account for purposes of payments under part D of title IV of the Social Security Act (42 U.S.C. 651 et seq.).''.

(b) EFFECTIVE DATE.—The amendments made by subsection (a) shall take effect and apply as if included in the enactment of section 6008 of the Families First Coronavirus Response Act (Public Law 116–127).

SEC. 102. ADDITIONAL SUPPORT FOR MEDICAID HOME AND COMMUNITY-BASED SERVICES DURING THE COVID–19 EMERGENCY PERIOD.

(a) INCREASED FMAP.—

(1) IN GENERAL.—Notwithstanding section 1905(b) of the Social Security Act (42 U.S.C.

1396d(b)), in the case of an HCBS program State, the Federal medical assistance percentage determined for the State under section 1905(b) of such Act and, if applicable, increased under subsection (y), (z), or (aa) of section 1905 of such Act (42 U.S.C. 1396d), section 1915(k) of such Act (42 U.S.C. 1396n(k)), or section 6008(a) of the Families First Coronavirus Response Act (Public Law 116–127), shall be increased by 10 percentage points with respect to expenditures of the State under the State Medicaid program for home and community-based services that are provided during the HCBS program improvement period. In no case may the application of the previous sentence result in the Federal medical assistance percentage determined for a State being more than 95 percent.

(2) DEFINITIONS.—In this section:

(A) HCBS PROGRAM IMPROVEMENT PERIOD.—The term ''HCBS program improvement period'' means, with respect to a State, the period—

(i) beginning on October 1, 2020; and

(ii) ending on September 30, 2021.

(B) HCBS PROGRAM STATE.—The term ''HCBS program State'' means a State that meets the condition described in subsection (b) by submitting an application described in such subsection, which is approved by the Secretary pursuant to subsection (c).

(C) HOME AND COMMUNITY-BASED SERVICES.—The term ''home and community-based services'' means home health care services authorized under paragraph (7) of section 1905(a) of the Social Security Act (42 U.S.C. 1396d(a)), personal care services authorized under paragraph (24) of such section, PACE services authorized under paragraph (26) of such section, services authorized under subsections (b), (c), (i), (j), and (k) of section 1915 of such Act (42 U.S.C. 1396n), such services authorized under a waiver under section 1115 of such Act (42 U.S.C. 1315), and such other services specified by the Secretary.

(b) CONDITION.—The condition described in this subsection, with respect to a State, is that the State submits an application to the Secretary, at such time and in such manner as specified by the Secretary, that includes, in addition to such other information as the Secretary shall require—

(1) a description of which activities described in subsection (d) that a state plans to implement and a description of how it plans to implement such activities;

(2) assurances that the Federal funds attributable to the increase under subsection (a) will be used—

(A) to implement the activities described in subsection (d); and

(B) to supplement, and not supplant, the level of State funds expended for home and community-based services for eligible individuals through programs in effect as of the date of the enactment of this section; and

(3) assurances that the State will conduct adequate oversight and ensure the validity of such data as may be required by the Secretary.

(c) APPROVAL OF APPLICATION.—Not later than 90 days after the date of submission of an application of a State under subsection (b), the Secretary shall certify if the application is complete. Upon certification that an application of a State is complete, the application shall be deemed to be approved for purposes of this section.

(d) ACTIVITIES TO IMPROVE THE DELIVERY OF HCBS.—

(1) IN GENERAL.—A State shall work with community partners, such as Area Agencies on Aging, Centers for Independent Living, nonprofit home and community-based services providers, and other entities providing home and community-based services, to implement—

(A) the purposes described in paragraph (2) during the COVID–19 public health emergency period; and

(B) the purposes described in paragraph (3) after the end of such emergency period.

(2) FOCUSED AREAS OF HCBS IMPROVEMENT.—The purposes described in this paragraph, with respect to a State, are the following:

(A) To increase rates for home health agencies and agencies that employ direct support professionals (including independent providers in a self-directed or consumer-directed model) to provide home and community-based services under the State Medicaid program, provided that any agency or individual that receives payment under such an increased rate increases the compensation it pays its home health workers or direct support professionals.

(B) To provide paid sick leave, paid family leave, and paid medical leave for home health workers and direct support professionals.

(C) To provide hazard pay, overtime pay, and shift differential pay for home health workers and direct support professionals.

(D) To provide home and community-based services to eligible individuals who are on waiting lists for programs approved under sections 1115 or 1915 of the Social Security Act (42 U.S.C. 1315, 1396n).

(E) To purchase emergency supplies and equipment, which may include items not typically covered under the Medicaid program, such as personal protective equipment, necessary to enhance access to services and to protect the health and well-being of home health workers and direct support professionals.

(F) To pay for the travel of home health workers and direct support professionals to conduct home and community-based services.

(G) To recruit new home health workers and direct support professionals.

(H) To support family care providers of eligible individuals with needed supplies and equipment, which may include items not typically covered under the Medicaid program, such as personal protective equipment, and pay.

(I) To pay for training for home health workers and direct support professionals that is specific to the COVID–19 public health emergency.

(J) To pay for assistive technologies, staffing, and other costs incurred during the COVID–19 public health emergency period in order to facilitate community integration and ensure an individual's person-centered service plan continues to be fully implemented.

(K) To prepare information and public health and educational materials in accessible formats (including formats accessible to people with low literacy or intellectual disabilities) about prevention, treatment, recovery and other aspects of COVID–19 for eligible individuals, their families, and the general community served by agencies described in subparagraph (A).

(L) To pay for American sign language interpreters to assist in providing home and community-based services to eligible individuals and to inform the general public about COVID–19.

(M) To allow day services providers to provide home and community-based services.

(N) To pay for other expenses deemed appropriate by the Secretary to enhance, expand, or strengthen Home and Community-Based Services, including retainer payments, and expenses which meet the criteria of the home and community-based settings rule published on January 16, 2014.

(3) PERMISSIBLE USES AFTER THE EMERGENCY PERIOD.—The purpose described in this paragraph, with respect to a State, is to assist eligible individuals who had to relocate to a nursing facility or institutional setting from their homes during the COVID–19 public health emergency period in—

(A) moving back to their homes (including by paying for moving costs, first month's rent, and other one-time expenses and start-up costs);

(B) resuming home and community-based services;

(C) receiving mental health services and necessary rehabilitative service to regain skills lost while relocated during the public health emergency period; and

(D) while funds attributable to the increased FMAP under this section remain available, continuing home and community-based services for eligible individuals who were served from a waiting list for such services during the public health emergency period.

(e) REPORTING REQUIREMENTS.—

(1) STATE REPORTING REQUIREMENTS.—Not later than December 31, 2022, any State with respect to which an application is approved by the Secretary pursuant to subsection (c) shall submit a report to the Secretary that contains the following information:

(A) Activities and programs that were funded using Federal funds attributable to such increase.

(B) The number of eligible individuals who were served by such activities and programs.

(C) The number of eligible individuals who were able to resume home and community-based services as a result of such activities and programs.

(2) HHS EVALUATION.—

(A) IN GENERAL.—The Secretary shall evaluate the implementation and outcomes of this section in the aggregate using an external evaluator with experience evaluating home and community-based services, disability programs, and older adult programs.

(B) EVALUATION CRITERIA.—For purposes of subparagraph (A), the external evaluator shall—

(i) document and evaluate changes in access, availability, and quality of home and community-based services in each HCBS program State;

(ii) document and evaluate aggregate changes in access, availability, and quality of home and community-based services across all such States; and

(iii) evaluate the implementation and outcomes of this section based on—

(I) the impact of this section on increasing funding for home and community-based services;

(II) the impact of this section on achieving targeted access, availability, and quality of home and community-based services; and

(III) promising practices identified by activities conducted pursuant to subsection (d) that increase access to, availability of, and quality of home and community-based services.

(C) DISSEMINATION OF EVALUATION FINDINGS.—The Secretary shall—

(i) disseminate the findings from the evaluations conducted under this paragraph to—

(I) all State Medicaid directors; and

(II) the Committee on Energy and Commerce of the House of Representatives, the Committee on Finance of the Senate, and the Special Committee on Aging of the Senate; and

(ii) make all evaluation findings publicly available in an accessible electronic format and any other accessible format determined appropriate by the Secretary.

(D) OVERSIGHT.—Each State with respect to which an application is approved by the Secretary pursuant to subsection (c) shall ensure adequate oversight of the expenditure of Federal funds pursuant to such increase in accordance with the Medicaid regulations, including section 1115 and 1915 waiver regulations and special terms and conditions for any relevant waiver or grant program.

(3) NON-APPLICATION OF THE PAPERWORK REDUCTION ACT.—Chapter 35 of title 44, United States Code (commonly referred to as the ''Paperwork Reduction Act of 1995''), shall not apply to the provisions of this subsection.

(f) ADDITIONAL DEFINITIONS.—In this section:

(1) COVID–19 PUBLIC HEALTH EMERGENCY PERIOD.—The term ''COVID–19 public health emergency period'' means the portion of the emergency period described in paragraph (1)(B) of section 1135(g) of the Social Security Act (42 U.S.C. 1320b–5(g)) beginning on or after the date of the enactment of this Act.

(2) ELIGIBLE INDIVIDUAL.—The term ''eligible individual'' means an individual who is eligible for or enrolled for medical assistance under a State Medicaid program.

(3) MEDICAID PROGRAM.—The term ''Medicaid program'' means, with respect to a State, the State program under title XIX of the Social Security Act (42 U.S.C. 1396 et seq.) (including any waiver or demonstration under such title or under section 1115 of such Act (42 U.S.C. 1315) relating to such title).

(4) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

(5) STATE.—The term ''State'' has the meaning given such term for purposes of title XIX of the Social Security Act (42 U.S.C. 1396 et seq.).

SEC. 103. COVERAGE AT NO COST SHARING OF COVID–19 VACCINE AND TREATMENT.

(a) MEDICAID.—

(1) IN GENERAL.—Section 1905(a)(4) of the Social Security Act (42 U.S.C. 1396d(a)(4)) is amended—

(A) by striking ''and (D)'' and inserting ''(D)''; and

(B) by striking the semicolon at the end and inserting ''; (E) during the portion of the emergency period described in paragraph (1)(B) of section 1135(g) beginning on the date of the enactment of the Investing in America's Health Care During the COVID–19 Pandemic Act, a COVID–19 vaccine licensed under section 351 of the Public Health Service Act, or approved or authorized under sections 505 or 564 of the Federal Food, Drug, and Cosmetic Act, and administration of the vaccine; (F) during such portion of the emergency period described in paragraph (1)(B) of section 1135(g), items or services for the prevention or treatment of COVID–19, including drugs approved or authorized under such section 505 or such section 564 or, without regard to the requirements of section 1902(a)(10)(B) (relating to comparability), in the case of an individual who is diagnosed with or presumed to have COVID–19, during such portion of such emergency period during which such individual is infected (or presumed infected) with COVID–19, the treatment of a condition that may complicate the treatment of COVID–19;''.

(2) PROHIBITION OF COST SHARING.—

(A) IN GENERAL.—Subsections (a)(2) and (b)(2) of section 1916 of the Social Security Act (42 U.S.C. 1396o) are each amended—

(i) in subparagraph (F), by striking ''or'' at the end;

(ii) in subparagraph (G), by striking ''; and'' and inserting '', or''; and

(iii) by adding at the end the following subparagraphs:

''(H) during the portion of the emergency period described in paragraph (1)(B) of section 1135(g) beginning on the date of the enactment of this subparagraph, a COVID–19 vaccine licensed under section 351 of the Public Health Service Act, or approved or authorized under section 505 or 564 of the Federal Food, Drug, and Cosmetic Act, and the administration of such vaccine, or

''(I) during such portion of the emergency period described in paragraph (1)(B) of section 1135(g), any item or service furnished for the treatment of COVID–19, including drugs approved or authorized under such section 505 or such section 564 or, in the case of an individual who is diagnosed with or presumed to have COVID–19, during the portion of such emergency period during which such individual is infected (or presumed infected) with COVID–19, the treatment of a condition that may complicate the treatment of COVID–19; and''.

(B) APPLICATION TO ALTERNATIVE COST SHARING.—Section 1916A(b)(3)(B) of the Social Security Act (42 U.S.C. 1396o–1(b)(3)(B)) is amended—

(i) in clause (xi), by striking ''any visit'' and inserting ''any service''; and

(ii) by adding at the end the following clauses:

''(xii) During the portion of the emergency period described in paragraph (1)(B) of section 1135(g) beginning on the date of the enactment of this clause, a COVID–19 vaccine licensed under section 351 of the Public Health Service Act, or approved or authorized under section 505 or 564 of the Federal Food, Drug, and Cosmetic Act, and the administration of such vaccine.

''(xiii) During such portion of the emergency period described in paragraph (1)(B) of section 1135(g), an item or service furnished for the treatment of COVID–19, including drugs approved or authorized under such section 505 or such section 564 or, in the case of an individual who is diagnosed with or presumed to have COVID–19, during such portion of such emergency period during which such individual is infected (or presumed infected) with COVID–19, the treatment of a condition that may complicate the treatment of COVID–19.''.

(C) CLARIFICATION.—The amendments made by this subsection shall apply with respect to a State plan of a territory in the same manner as a State plan of one of the 50 States.

(b) STATE PEDIATRIC VACCINE DISTRIBUTION PROGRAM.—Section 1928 of the Social Security Act (42 U.S.C. 1396s) is amended—

(1) in subsection (a)(1)—

(A) in subparagraph (A), by striking ''; and'' and inserting a semicolon;

(B) in subparagraph (B), by striking the period and inserting ''; and''; and

(C) by adding at the end the following subparagraph:

''(C) during the portion of the emergency period described in paragraph (1)(B) of section 1135(g) beginning on the date of the enactment of this subparagraph, each vaccine-eligible child (as defined in subsection (b)) is entitled to receive a COVID–19 vaccine from a program-registered provider (as defined in subsection (h)(7)) without charge for—

''(i) the cost of such vaccine; or

''(ii) the administration of such vaccine.'';

(2) in subsection (c)(2)—

(A) in subparagraph (C)(ii), by inserting '', but, during the portion of the emergency period described in paragraph (1)(B) of section 1135(g) beginning on the date of the enactment of the Investing in America's Health Care During the COVID–19 Pandemic Act, may not impose a fee for the administration of a COVID–19 vaccine'' before the period; and

(B) by adding at the end the following subparagraph:

''(D) The provider will provide and administer an approved COVID–19 vaccine to a vaccine-eligible child in accordance with the same requirements as apply under the preceding subparagraphs to the provision and administration of a qualified pediatric vaccine to such a child.''; and

(3) in subsection (d)(1), in the first sentence, by inserting '', including, during the portion of the emergency period described in paragraph (1)(B) of section 1135(g) beginning on the date of the enactment of the Investing in America's Health Care During the COVID–19 Pandemic Act, with respect to a COVID–19 vaccine licensed under section 351 of the Public Health Service Act, or approved or authorized under section 505 or 564 of the Federal Food, Drug, and Cosmetic Act'' before the period.

(c) CHIP.—

(1) IN GENERAL.—Section 2103(c) of the Social Security Act (42 U.S.C. 1397cc(c)) is amended by adding at the end the following paragraph:

''(11) COVERAGE OF COVID–19 VACCINES AND TREATMENT.—Regardless of the type of coverage elected by a State under subsection (a), child health assistance provided under such coverage for targeted low-income children and, in the case that the State elects to provide pregnancy-related assistance under such coverage pursuant to section 2112, such pregnancy-related assistance for targeted low-income pregnant women (as defined in section 2112(d)) shall include coverage, during the portion of the emergency period described in paragraph (1)(B) of section 1135(g) beginning on the date of the enactment of this paragraph, of—

''(A) a COVID–19 vaccine licensed under section 351 of the Public Health Service Act, or approved or authorized under section 505 or 564 of the Federal Food, Drug, and Cosmetic Act, and the administration of such vaccine; and

''(B) any item or service furnished for the treatment of COVID–19, including drugs approved or authorized under such section 505 or such section 564, or, in the case of an individual who is diagnosed with or presumed to have COVID–19, during the portion of such emergency period during which such individual is infected (or presumed infected) with COVID–19, the treatment of a condition that may complicate the treatment of COVID–19.''.

(2) PROHIBITION OF COST SHARING.—Section 2103(e)(2) of the Social Security Act (42 U.S.C. 1397cc(e)(2)), as amended by section 6004(b)(3) of the Families First Coronavirus Response Act, is amended—

(A) in the paragraph header, by inserting ''A COVID–19 VACCINE, COVID–19 TREATMENT,'' before ''OR PREGNANCY-RELATED ASSISTANCE''; and

(B) by striking ''visits described in section 1916(a)(2)(G), or'' and inserting ''services described in section 1916(a)(2)(G), vaccines described in section 1916(a)(2)(H) administered during the portion of the emergency period described in paragraph (1)(B) of section 1135(g) beginning on the date of the enactment of the Investing in America's Health Care During the COVID–19 Pandemic Act, items or services described in section 1916(a)(2)(I) furnished during such emergency period, or''.

(d) CONFORMING AMENDMENTS.—Section 1937 of the Social Security Act (42 U.S.C. 1396u–7) is amended—

(1) in subsection (a)(1)(B), by inserting '', under subclause (XXIII) of section 1902(a)(10)(A)(ii),'' after ''section 1902(a)(10)(A)(i)''; and

(2) in subsection (b)(5), by adding before the period the following: '', and, effective on the date of the enactment of the Investing in America's Health Care During the COVID–19 Pandemic Act, must comply with subparagraphs (F) through (I) of subsections (a)(2) and (b)(2) of section 1916 and subsection (b)(3)(B) of section 1916A''.

(e) EFFECTIVE DATE.—The amendments made by this section shall take effect on the date of enactment of this Act and shall apply with respect to a COVID–19 vaccine beginning on the date that such vaccine is licensed under section 351 of the Public Health Service Act (42 U.S.C. 262), or approved or authorized under section 505 or 564 of the Federal Food, Drug, and Cosmetic Act.

SEC. 104. OPTIONAL COVERAGE AT NO COST SHARING OF COVID–19 TREATMENT AND VACCINES UNDER MEDICAID FOR UNINSURED INDIVIDUALS.

(a) IN GENERAL.—Section 1902(a)(10) of the Social Security Act (42 U.S.C. 1396a(a)(10)) is amended, in the matter following subparagraph (G), by striking ''and any visit described in section 1916(a)(2)(G)'' and inserting the following: '', any COVID–19 vaccine that is administered during any such portion (and the administration of such vaccine), any item or service that is furnished during any such portion for the treatment of COVID–19, including drugs approved or authorized under section 505 or 564 of the Federal Food, Drug, and Cosmetic Act, or, in the case of an individual who is diagnosed with or presumed to have COVID–19, during the period such individual is infected (or presumed infected) with COVID–19, the treatment of a condition that may complicate the treatment of COVID–19, and any services described in section 1916(a)(2)(G)''.

(b) DEFINITION OF UNINSURED INDIVIDUAL.—

(1) IN GENERAL.—Subsection (ss) of section 1902 of the Social Security Act (42 U.S.C. 1396a) is amended to read as follows:

''(ss) UNINSURED INDIVIDUAL DEFINED.—For purposes of this section, the term 'uninsured individual' means, notwithstanding any other provision of this title, any individual who is not

covered by minimum essential coverage (as defined in section 5000A(f)(1) of the Internal Revenue Code of 1986).''.

(2) EFFECTIVE DATE.—The amendment made by paragraph (1) shall take effect and apply as if included in the enactment of the Families First Coronavirus Response Act (Public Law 116–127).

(c) CLARIFICATION REGARDING EMERGENCY SERVICES FOR CERTAIN INDIVIDUALS.—Section 1903(v)(2) of the Social Security Act (42 U.S.C. 1396b(v)(2)) is amended by adding at the end the following flush sentence:

''For purposes of subparagraph (A), care and services described in such subparagraph include any in vitro diagnostic product described in section 1905(a)(3)(B) (and the administration of such product), any COVID–19 vaccine (and the administration of such vaccine), any item or service that is furnished for the treatment of COVID–19, including drugs approved or authorized under section 505 or 564 of the Federal Food, Drug, and Cosmetic Act, or a condition that may complicate the treatment of COVID–19, and any services described in section 1916(a)(2)(G).''.

(d) INCLUSION OF COVID–19 CONCERN AS AN EMERGENCY CONDITION.—Section 1903(v)(3) of the Social Security Act (42 U.S.C. 1396b(v)(3)) is amended by adding at the end the following flush sentence:

''Such term includes any indication that an alien described in paragraph (1) may have contracted COVID–19.''.

SEC. 105. MEDICAID COVERAGE FOR CITIZENS OF FREELY ASSOCIATED STATES.

(a) IN GENERAL.—Section 402(b)(2) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1612(b)(2)) is amended by adding at the end the following new subparagraph:

''(G) MEDICAID EXCEPTION FOR CITIZENS OF FREELY ASSOCIATED STATES.—With respect to eligibility for benefits for the designated Federal program defined in paragraph (3)(C) (relating to the Medicaid program), section 401(a) and paragraph (1) shall not apply to any individual who lawfully resides in 1 of the 50 States or the District of Columbia in accordance with the Compacts of Free Association between the Government of the United States and the Governments of the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau and shall not apply, at the option of the Governor of Puerto Rico, the Virgin Islands, Guam, the Northern Mariana Islands, or American Samoa as communicated to the Secretary of Health and Human Services in writing, to any individual who lawfully resides in the respective territory in accordance with such Compacts.''.

(b) EXCEPTION TO 5–YEAR LIMITED ELIGIBILITY.—Section 403(d) of such Act (8 U.S.C. 1613(d)) is amended—

(1) in paragraph (1), by striking ''or'' at the end;

(2) in paragraph (2), by striking the period at the end and inserting ''; or''; and

(3) by adding at the end the following new paragraph:

''(3) an individual described in section 402(b)(2)(G), but only with respect to the designated Federal program defined in section 402(b)(3)(C).''.

(c) DEFINITION OF QUALIFIED ALIEN.—Section 431(b) of such Act (8 U.S.C. 1641(b)) is amended—

(1) in paragraph (6), by striking ''; or'' at the end and inserting a comma;

(2) in paragraph (7), by striking the period at the end and inserting '', or''; and

(3) by adding at the end the following new paragraph:

''(8) an individual who lawfully resides in the United States in accordance with a Compact of Free Association referred to in section 402(b)(2)(G), but only with respect to the designated Federal program defined in section 402(b)(3)(C) (relating to the Medicaid program).''.

(d) APPLICATION TO STATE PLANS.—Section 1902(a)(10)(A)(i) of the Social Security Act (42 U.S.C. 1396a(a)(10)(A)(i)) is amended by inserting after subclause (IX) the following:

''(X) who are described in section 402(b)(2)(G) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 and eligible for benefits under this title by reason of application of such section;''.

(e) CONFORMING AMENDMENTS.—Section 1108 of the Social Security Act (42 U.S.C. 1308) is amended—

(1) in subsection (f), in the matter preceding paragraph (1), by striking ''subsections (g) and (h) and section 1935(e)(1)(B)'' and inserting ''subsections (g), (h), and (i) and section 1935(e)(1)(B)''; and

(2) by adding at the end the following:

''(i) EXCLUSION OF MEDICAL ASSISTANCE EXPENDITURES FOR CITIZENS OF FREELY ASSOCIATED STATES.—Expenditures for medical assistance provided to an individual described in section 431(b)(8) of the Personal Responsibility and Work Opportunity Reconciliation Act of 1996 (8 U.S.C. 1641(b)(8)) shall not be taken into account for purposes of applying payment limits under subsections (f) and (g).''.

(f) EFFECTIVE DATE.—The amendments made by this section shall apply to benefits for items and services furnished on or after the date of the enactment of this Act.

SEC. 106. TEMPORARY INCREASE IN MEDICAID DSH ALLOTMENTS.

(a) IN GENERAL.—Section 1923(f)(3) of the Social Security Act (42 U.S.C. 1396r–4(f)(3)) is amended—

(1) in subparagraph (A), by striking ''and subparagraph (E)'' and inserting ''and subparagraphs (E) and (F)''; and

(2) by adding at the end the following new subparagraph:

''(F) TEMPORARY INCREASE IN ALLOTMENTS DURING CERTAIN PUBLIC HEALTH EMERGENCY.—The DSH allotment for any State for each of fiscal years 2020 and 2021 is equal to 102.5 percent of the DSH allotment that would be determined under this paragraph for the State for each respective fiscal year without application of this subparagraph, notwithstanding subparagraphs (B) and (C). For each fiscal year after fiscal year 2021, the DSH allotment for a State for such fiscal year is equal to the DSH allotment that would have been determined under this paragraph for such fiscal year if this subparagraph had not been enacted.''.

(b) DSH ALLOTMENT ADJUSTMENT FOR TENNESSEE.—Section 1923(f)(6)(A)(vi) of the Social Security Act (42 U.S.C. 1396r–4(f)(6)(A)(vi)) is amended—

(1) by striking ''Notwithstanding any other provision of this subsection'' and inserting the following:

''(I) IN GENERAL.—Notwithstanding any other provision of this subsection (except as provided in subclause (II) of this clause)''; and

(2) by adding at the end the following:

''(II) TEMPORARY INCREASE IN ALLOTMENTS.—The DSH allotment for Tennessee for each of fiscal years 2020 and 2021 shall be equal to $54,427,500.''.

(c) SENSE OF CONGRESS.—It is the sense of Congress that a State should prioritize making payments under the State plan of the State under title XIX of the Social Security Act (42 U.S.C. 1396 et seq.) (or a waiver of such plan) to disproportionate share hospitals that have a higher share of COVID–19 patients relative to other such hospitals in the State.

SEC. 107. ALLOWING FOR MEDICAL ASSISTANCE UNDER MEDICAID FOR INMATES DURING 30-DAY PERIOD PRECEDING RELEASE.

(a) IN GENERAL.—The subdivision (A) following paragraph (30) of section 1905(a) of the Social Security Act (42 U.S.C. 1396d(a)) is amended by inserting ''and except during the 30-day period preceding the date of release of such individual from such public institution'' after ''medical institution''.

(b) REPORT.—Not later than June 30, 2022, the Medicaid and CHIP Payment and Access Commission shall submit a report to Congress on the Medicaid inmate exclusion under the subdivision (A) following paragraph (30) of section 1905(a) of the Social Security Act (42 U.S.C. 1396d(a)). Such report may, to the extent practicable, include the following information:

(1) The number of incarcerated individuals who would otherwise be eligible to enroll for medical assistance under a State plan approved under title XIX of the Social Security Act (42 U.S.C. 1396 et seq.) (or a waiver of such a plan).

(2) Access to health care for incarcerated individuals, including a description of medical services generally available to incarcerated individuals.

(3) A description of current practices related to the discharge of incarcerated individuals, including how prisons interact with State Medicaid agencies to ensure that such individuals who are eligible to enroll for medical assistance under a State plan or waiver described in paragraph (1) are so enrolled.

(4) If determined appropriate by the Commission, recommendations for Congress, the Department of Health and Human Services, or States regarding the Medicaid inmate exclusion.

(5) Any other information that the Commission determines would be useful to Congress.

SEC. 108. MEDICAID COVERAGE OF CERTAIN MEDICAL TRANSPORTATION.

(a) CONTINUING REQUIREMENT OF MEDICAID COVERAGE OF NECESSARY TRANSPORTATION.—

(1) REQUIREMENT.—Section 1902(a)(4) of the Social Security Act (42 U.S.C. 1396a(a)(4)) is amended—

(A) by striking ''and including provision for utilization'' and inserting ''including provision for utilization''; and

(B) by inserting after ''supervision of administration of the plan'' the following: '', and, subject to section 1903(i), including a specification that the single State agency described in paragraph (5) will ensure necessary transportation for beneficiaries under the State plan to and from providers and a description of the methods that such agency will use to ensure such transportation''.

(2) APPLICATION WITH RESPECT TO BENCHMARK BENEFIT PACKAGES AND BENCHMARK EQUIVALENT COVERAGE.—Section 1937(a)(1) of the Social Security Act (42 U.S.C. 1396u–7(a)(1)) is amended—

(A) in subparagraph (A), by striking ''subsection (E)'' and inserting ''subparagraphs (E) and (F)''; and

(B) by adding at the end the following new subparagraph:

''(F) NECESSARY TRANSPORTATION.—Notwithstanding the preceding provisions of this paragraph, a State may not provide medical assistance through the enrollment of an individual with benchmark coverage or benchmark equivalent coverage described in subparagraph (A)(i) unless, subject to section 1903(i)(9) and in accordance with section 1902(a)(4), the benchmark benefit package or benchmark equivalent coverage (or the State)—

''(i) ensures necessary transportation for individuals enrolled under such package or coverage to and from providers; and

''(ii) provides a description of the methods that will be used to ensure such transportation.''.

(3) LIMITATION ON FEDERAL FINANCIAL PARTICIPATION.—Section 1903(i) of the Social Security Act (42 U.S.C. 1396b(i)) is amended by inserting after paragraph (8) the following new paragraph:

''(9) with respect to any amount expended for non-emergency transportation authorized under section 1902(a)(4), unless the State plan provides for the methods and procedures required under section 1902(a)(30)(A); or''.

(4) EFFECTIVE DATE.—The amendments made by this subsection shall take effect on the date of the enactment of this Act and shall apply to transportation furnished on or after such date.

(b) MEDICAID PROGRAM INTEGRITY MEASURES RELATED TO COVERAGE OF NONEMERGENCY MEDICAL TRANSPORTATION.—

(1) GAO STUDY.—Not later than two years after the date of the enactment of this Act, the Comptroller General of the United States shall conduct a study, and submit to Congress, a report on coverage under the Medicaid program under title XIX of the Social Security Act of nonemergency transportation to medically necessary services. Such study shall take into account the 2009 report of the Office of the Inspector General of the Department of Health and Human Services, titled ''Fraud and Abuse Safeguards for Medicaid Nonemergency Medical Transportation'' (OEI–06–07–003200). Such report shall include the following:

(A) An examination of the 50 States and the District of Columbia to identify safeguards to prevent and detect fraud and abuse with respect to coverage under the Medicaid program of nonemergency transportation to medically necessary services.

(B) An examination of transportation brokers to identify the range of safeguards against such fraud and abuse to prevent improper payments for such transportation.

(C) Identification of the numbers, types, and outcomes of instances of fraud and abuse, with respect to coverage under the Medicaid program of such transportation, that State Medicaid Fraud Control Units have investigated in recent years.

(D) Identification of commonalities or trends in program integrity, with respect to such coverage, to inform risk management strategies of States and the Centers for Medicare & Medicaid Services.

(2) STAKEHOLDER WORKING GROUP.—

(A) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the Secretary of Health and Human Services, through the Centers for Medicare & Medicaid Services, shall convene a series of meetings to obtain input from appropriate stakeholders to facilitate discussion and shared learning about the leading practices for improving Medicaid program integrity, with respect to coverage of nonemergency transportation to medically necessary services.

(B) TOPICS.—The meetings convened under subparagraph (A) shall—

(i) focus on ongoing challenges to Medicaid program integrity as well as leading practices to address such challenges; and

(ii) address specific challenges raised by stakeholders involved in coverage under the Medicaid program of nonemergency transportation to medically necessary services, including unique considerations for specific groups of Medicaid beneficiaries meriting particular attention, such as American Indians and tribal land issues or accommodations for individuals with disabilities.

(C) STAKEHOLDERS.—Stakeholders described in subparagraph (A) shall include individuals from State Medicaid programs, brokers for nonemergency transportation to medically necessary services that meet the criteria described in section 1902(a)(70)(B) of the Social Security Act (42 U.S.C. 1396a(a)(70)(B)), providers (including transportation network companies), Medicaid patient advocates, and such other individuals specified by the Secretary.

(3) GUIDANCE REVIEW.—Not later than 18 months after the date of the enactment of this Act, the Secretary of Health and Human Services, through the Centers for Medicare & Medicaid Services, shall assess guidance issued to States by the Centers for Medicare & Medicaid Services relating to Federal requirements for nonemergency transportation to medically necessary services under the Medicaid program under title XIX of the Social Security Act and update such guidance as necessary to ensure States have appropriate and current guidance in designing and administering coverage under the Medicaid program of nonemergency transportation to medically necessary services.

(4) NEMT TRANSPORTATION PROVIDER AND DRIVER REQUIREMENTS.—

(A) STATE PLAN REQUIREMENT.—Section 1902(a) of the Social Security Act (42 U.S.C. 1396a(a)) is amended—

(i) by striking ''and'' at the end of paragraph (85);

(ii) by striking the period at the end of paragraph (86) and inserting ''; and''; and

(iii) by inserting after paragraph (86) the following new paragraph:

''(87) provide for a mechanism, which may include attestation, that ensures that, with respect to any provider (including a transportation network company) or individual driver of nonemergency transportation to medically necessary services receiving payments under such plan (but excluding any public transit authority), at a minimum—

''(A) each such provider and individual driver is not excluded from participation in any Federal health care program (as defined in section 1128B(f)) and is not listed on the exclusion list of the Inspector General of the Department of Health and Human Services;

''(B) each such individual driver has a valid driver's license;

''(C) each such provider has in place a process to address any violation of a State drug law; and

''(D) each such provider has in place a process to disclose to the State Medicaid program the driving history, including any traffic violations, of each such individual driver employed by such provider, including any traffic violations.''.

(B) EFFECTIVE DATE.—

(i) IN GENERAL.—Except as provided in clause (ii), the amendments made by subparagraph (A) shall take effect on the date of the enactment of this Act and shall apply to services furnished on or after the date that is one year after the date of the enactment of this Act.

(ii) EXCEPTION IF STATE LEGISLATION REQUIRED.—In the case of a State plan for medical assistance under title XIX of the Social Security Act which the Secretary of Health and Human Services determines requires State legislation (other than legislation appropriating funds) in order for the plan to meet the additional requirement imposed by the amendments made by subparagraph (A), the State plan shall not be regarded as failing to comply with the requirements of such title solely on the basis of its failure to meet this additional requirement before the first day of the first calendar quarter beginning after the close of the first regular session of the State legislature that begins after the date of the enactment of this Act. For purposes of the previous sentence, in the case of a State that has a 2-year legislative session, each year of such session shall be deemed to be a separate regular session of the State legislature.

(5) ANALYSIS OF T–MSIS DATA.—Not later than one year after the date of the enactment of this Act, the Secretary of Health and Human Services, through the Centers for Medicare & Medicaid Services, shall analyze, and submit to Congress a report on, the nation-wide data set under the Transformed Medicaid Statistical Information System to identify recommendations relating to coverage under the Medicaid program under title XIX of the Social Security Act of nonemergency transportation to medically necessary services.

TITLE II—MEDICARE PROVISIONS

SEC. 201. HOLDING MEDICARE BENEFICIARIES HARMLESS FOR SPECIFIED COVID–19 TREATMENT SERVICES FURNISHED UNDER PART A OR PART B OF THE MEDICARE PROGRAM.

(a) IN GENERAL.—Notwithstanding any other provision of law, in the case of a specified COVID–19 treatment service (as defined in subsection (b)) furnished during any portion of the emergency period described in paragraph (1)(B) of section 1135(g) of the Social Security Act (42 U.S.C. 1320b-5(g)) beginning on or after the date of the enactment of this Act to an individual entitled to benefits under part A or enrolled under part B of title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.) for which payment is made under such part A or such part B, the Secretary of Health and Human Services (in this section referred to as the ''Secretary'') shall provide that—

(1) any cost-sharing required (including any deductible, copayment, or coinsurance) applicable to such individual under such part A or such part B with respect to such item or service is paid by the Secretary; and

(2) the provider of services or supplier (as defined in section 1861 of the Social Security Act (42 U.S.C. 1395x)) does not hold such individual liable for such requirement.

(b) DEFINITION OF SPECIFIED COVID–19 TREATMENT SERVICES.—For purposes of this section, the term ''specified COVID–19 treatment service'' means any item or service furnished to an individual for which payment may be made under part A or part B of title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.) if such item or service is included in a claim with an ICD–10–CM code relating to COVID–19 (as described in the document entitled ''ICD–10–CM Official Coding Guidelines - Supplement Coding encounters related to COVID–19 Coronavirus Outbreak'' published on February 20, 2020, or as otherwise specified by the Secretary).

(c) RECOVERY OF COST-SHARING AMOUNTS PAID BY THE SECRETARY IN THE CASE OF SUPPLEMENTAL INSURANCE COVERAGE.—

(1) IN GENERAL.—In the case of any amount paid by the Secretary pursuant to subsection (a)(1) that the Secretary determines would otherwise have been paid by a group health plan or health insurance issuer (as such terms are defined in section 2791 of the Public Health Service Act (42 U.S.C. 300gg–91)), a private entity offering a medicare supplemental policy under section 1882 of the Social Security Act (42 U.S.C. 1395ss), any other health plan offering supplemental coverage, a State plan under title XIX of the Social Security Act, or the Secretary of Defense under the TRICARE program, such plan, issuer, private entity, other health plan, State plan, or Secretary of Defense, as applicable, shall pay to the Secretary, not later than 1 year after such plan, issuer, private entity, other health plan, State plan, or Secretary of Defense receives a notice under paragraph (3), such amount in accordance with this subsection.

(2) REQUIRED INFORMATION.—Not later than 9 months after the date of the enactment of this Act, each group health plan, health insurance issuer, private entity, other health plan, State plan, and Secretary of Defense described in paragraph (1) shall submit to the Secretary such information as the Secretary determines necessary for purposes of carrying out this subsection. Such information so submitted shall be updated by such plan, issuer, private entity, other health plan, State plan, or Secretary of Defense, as applicable, at such time and in such manner as specified by the Secretary.

(3) REVIEW OF CLAIMS AND NOTIFICATION.—The Secretary shall establish a process under which claims for items and services for which the Secretary has paid an amount pursuant to subsection (a)(1) are reviewed for purposes of identifying if such amount would otherwise have been paid by a plan, issuer, private entity, other health plan, State plan, or Secretary of Defense described in paragraph (1). In the case such a claim is so identified, the Secretary shall determine the amount that would have been otherwise payable by such plan, issuer, private entity, other health plan, State plan, or Secretary of Defense and notify such plan, issuer, private entity, other health plan, State plan, or Secretary of Defense of such amount.

(4) ENFORCEMENT.—The Secretary may impose a civil monetary penalty in an amount determined appropriate by the Secretary in the case of a plan, issuer, private entity, other health plan, or State plan that fails to comply with a provision of this section. The provisions of section 1128A of the Social Security Act shall apply

to a civil monetary penalty imposed under the previous sentence in the same manner as such provisions apply to a penalty or proceeding under subsection (a) or (b) of such section.

(d) FUNDING.—The Secretary shall provide for the transfer to the Centers for Medicare & Medicaid Program Management Account from the Federal Hospital Insurance Trust Fund and the Federal Supplementary Trust Fund (in such portions as the Secretary determines appropriate) $100,000,000 for purposes of carrying out this section.

(e) REPORT.—Not later than 3 years after the date of the enactment of this Act, the Inspector General of the Department of Health and Human Services shall submit to Congress a report containing an analysis of amounts paid pursuant to subsection (a)(1) compared to amounts paid to the Secretary pursuant to subsection (c).

(f) IMPLEMENTATION.—Notwithstanding any other provision of law, the Secretary may implement the provisions of this section by program instruction or otherwise.

SEC. 202. ENSURING COMMUNICATIONS ACCESSIBILITY FOR RESIDENTS OF SKILLED NURSING FACILITIES DURING THE COVID–19 EMERGENCY PERIOD.

(a) IN GENERAL.—Section 1819(c)(3) of the Social Security Act (42 U.S.C. 1395i–3(c)(3)) is amended—

(1) in subparagraph (D), by striking ''and'' at the end;

(2) in subparagraph (E), by striking the period and inserting ''; and''; and

(3) by adding at the end the following new subparagraph:

''(F) provide for reasonable access to the use of a telephone, including TTY and TDD services (as defined for purposes of section 483.10 of title 42, Code of Federal Regulations (or a successor regulation)), and the internet (to the extent available to the facility) and inform each such resident (or a representative of such resident) of such access and any changes in policies or procedures of such facility relating to limitations on external visitors.''.

(b) COVID–19 PROVISIONS.—

(1) GUIDANCE.—Not later than 15 days after the date of the enactment of this Act, the Secretary of Health and Human Service shall issue guidance on steps skilled nursing facilities may take to ensure residents have access to televisitation during the emergency period defined in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b–5(g)(1)(B)). Such guidance shall include information on how such facilities will notify residents of such facilities, representatives of such residents, and relatives of such residents of the rights of such residents to such televisitation, and ensure timely and equitable access to such televisitation.

(2) REVIEW OF FACILITIES.—The Secretary of Health and Human Services shall take such steps as determined appropriate by the Secretary to ensure that residents of skilled nursing facilities and relatives of such residents are made aware of the access rights described in section 1819(c)(3)(F) of the Social Security Act (42 U.S.C. 1395i–3(c)(3)(F)).

SEC. 203. MEDICARE HOSPITAL INPATIENT PROSPECTIVE PAYMENT SYSTEM OUTLIER PAYMENTS FOR COVID–19 PATIENTS DURING CERTAIN EMERGENCY PERIOD.

(a) IN GENERAL.—Section 1886(d)(5)(A) of the Social Security Act (42 U.S.C. 1395ww(d)(5)(A)) is amended—

(1) in clause (ii), by striking ''For cases'' and inserting ''Subject to clause (vii), for cases'';

(2) in clause (iii), by striking ''The amount'' and inserting ''Subject to clause (vii), the amount'';

(3) in clause (iv), by striking ''The total amount'' and inserting ''Subject to clause (vii), the total amount''; and

(4) by adding at the end the following new clause:

''(vii) For discharges that have a primary or secondary diagnosis of COVID–19 and that occur during the period beginning on the date of the enactment of this clause and ending on the sooner of January 31, 2021, or the last day of the emergency period described in section 1135(g)(1)(B), the amount of any additional payment under clause (ii) for a subsection (d) hospital for such a discharge shall be determined as if—

''(I) clause (ii) was amended by striking 'plus a fixed dollar amount determined by the Secretary';

''(II) the reference in clause (iii) to 'approximate the marginal cost of care beyond the cutoff point applicable under clause (i) or (ii)' were a reference to 'approximate the marginal cost of care beyond the cutoff point applicable under clause (i), or, in the case of an additional payment requested under clause (ii), be equal to 100 percent of the amount by which the costs of the discharge for which such additional payment is so requested exceed the applicable DRG prospective payment rate'; and

''(III) clause (iv) does not apply.''.

(b) EXCLUSION FROM REDUCTION IN AVERAGE STANDARDIZED AMOUNTS PAYABLE TO HOSPITALS LOCATED IN CERTAIN AREAS.—Section 1886(d)(3)(B) of the Social Security Act (42 U.S.C. 1395ww(d)(3)(B)) is amended by inserting before the period the following: '', other than additional payments described in clause (vii) of such paragraph''.

(c) IMPLEMENTATION.—Notwithstanding any other provision of law, the Secretary of Health and Human Services may implement the amendments made by this section by program instruction or otherwise.

SEC. 204. COVERAGE OF TREATMENTS FOR COVID–19 AT NO COST SHARING UNDER THE MEDICARE ADVANTAGE PROGRAM.

(a) IN GENERAL.—Section 1852(a)(1)(B) of the Social Security Act (42 U.S.C. 1395w–22(a)(1)(B)) is amended by adding at the end the following new clause:

''(vii) SPECIAL COVERAGE RULES FOR SPECIFIED COVID–19 TREATMENT SERVICES.—Notwithstanding clause (i), in the case of a specified COVID–19 treatment service (as defined in section 201(b) of the Investing in America's Health Care During the COVID–19 Pandemic Act) that is furnished during a plan year occurring during any portion of the emergency period defined in section 1135(g)(1)(B) beginning on or after the date of the enactment of this clause, a Medicare Advantage plan may not, with respect to such service, impose—

''(I) any cost-sharing requirement (including a deductible, copayment, or coinsurance requirement); and

''(II) in the case such service is a critical specified COVID–19 treatment service (including ventilator services and intensive care unit services), any prior authorization or other utilization management requirement.

A Medicare Advantage plan may not take the application of this clause into account for purposes of a bid amount submitted by such plan under section 1854(a)(6).''.

(b) IMPLEMENTATION.—Notwithstanding any other provision of law, the Secretary of Health and Human Services may implement the amendments made by this section by program instruction or otherwise.

SEC. 205. REQUIRING COVERAGE UNDER MEDICARE PDPS AND MA–PD PLANS, WITHOUT THE IMPOSITION OF COST SHARING OR UTILIZATION MANAGEMENT REQUIREMENTS, OF DRUGS INTENDED TO TREAT COVID–19 DURING CERTAIN EMERGENCIES.

(a) COVERAGE REQUIREMENT.—

(1) IN GENERAL.—Section 1860D–4(b)(3) of the Social Security Act (42 U.S.C. 1395w–104(b)(3)) is amended by adding at the end the following new subparagraph:

''(I) REQUIRED INCLUSION OF DRUGS INTENDED TO TREAT COVID–19.—

''(i) IN GENERAL.—Notwithstanding any other provision of law, a PDP sponsor offering a prescription drug plan shall, with respect to a plan year, any portion of which occurs during the period described in clause (ii), be required to—

''(I) include in any formulary—

''(aa) all covered part D drugs with a medically accepted indication (as defined in section 1860D–2(e)(4)) to treat COVID–19 that are marketed in the United States; and

''(bb) all drugs authorized under section 564 or 564A of the Federal Food, Drug, and Cosmetic Act to treat COVID–19; and

''(II) not impose any prior authorization or other utilization management requirement with respect to such drugs described in item (aa) or (bb) of subclause (I) (other than such a requirement that limits the quantity of drugs due to safety).

''(ii) PERIOD DESCRIBED.—For purposes of clause (i), the period described in this clause is the period during which there exists the public health emergency declared by the Secretary pursuant to section 319 of the Public Health Service Act on January 31, 2020, entitled 'Determination that a Public Health Emergency Exists Nationwide as the Result of the 2019 Novel Coronavirus' (including any renewal of such declaration pursuant to such section).''.

(b) ELIMINATION OF COST SHARING.—

(1) ELIMINATION OF COST-SHARING FOR DRUGS INTENDED TO TREAT COVID–19 UNDER STANDARD AND ALTERNATIVE PRESCRIPTION DRUG COVERAGE.—Section 1860D–2 of the Social Security Act (42 U.S.C. 1395w–102) is amended—

(A) in subsection (b)—

(i) in paragraph (1)(A), by striking ''The coverage'' and inserting ''Subject to paragraph (8), the coverage'';

(ii) in paragraph (2)—

(I) in subparagraph (A), by inserting after ''Subject to subparagraphs (C) and (D)'' the following: ''and paragraph (8)'';

(II) in subparagraph (C)(i), by striking ''paragraph (4)'' and inserting ''paragraphs (4) and (8)''; and

(III) in subparagraph (D)(i), by striking ''paragraph (4)'' and inserting ''paragraphs (4) and (8)'';

(iii) in paragraph (4)(A)(i), by striking ''The coverage'' and inserting ''Subject to paragraph (8), the coverage''; and

(iv) by adding at the end the following new paragraph:

''(8) ELIMINATION OF COST-SHARING FOR DRUGS INTENDED TO TREAT COVID–19.—The coverage does not impose any deductible, copayment, coinsurance, or other cost-sharing requirement for drugs described in section 1860D–4(b)(3)(I)(i)(I) with respect to a plan year, any portion of which occurs during the period during which there exists the public health emergency declared by the Secretary pursuant to section 319 of the Public Health Service Act on January 31, 2020, entitled 'Determination that a Public Health Emergency Exists Nationwide as the Result of the 2019 Novel Coronavirus' (including any renewal of such declaration pursuant to such section).''; and

(B) in subsection (c), by adding at the end the following new paragraph:

''(4) SAME ELIMINATION OF COST-SHARING FOR DRUGS INTENDED TO TREAT COVID–19.—The coverage is in accordance with subsection (b)(8).''.

(2) ELIMINATION OF COST-SHARING FOR DRUGS INTENDED TO TREAT COVID–19 DISPENSED TO INDIVIDUALS WHO ARE SUBSIDY ELIGIBLE INDIVIDUALS.—Section 1860D–14(a) of the Social Security Act (42 U.S.C. 1395w–114(a)) is amended—

(A) in paragraph (1)—

(i) in subparagraph (D)—

(I) in clause (ii), by striking ''In the case of'' and inserting ''Subject to subparagraph (F), in the case of''; and

(II) in clause (iii), by striking ''In the case of'' and inserting ''Subject to subparagraph (F), in the case of''; and

(ii) by adding at the end the following new subparagraph:

''(F) ELIMINATION OF COST-SHARING FOR DRUGS INTENDED TO TREAT COVID–19.—Coverage that is in accordance with section 1860D–2(b)(8).''; and

(B) in paragraph (2)—

(i) in subparagraph (B), by striking ''A reduction'' and inserting ''Subject to subparagraph (F), a reduction'';

(ii) in subparagraph (D), by striking ''The substitution'' and inserting ''Subject to subparagraph (F), the substitution'';

(iii) in subparagraph (E), by inserting after ''Subject to'' the following: ''subparagraph (F) and''; and

(iv) by adding at the end the following new subparagraph:

''(F) ELIMINATION OF COST-SHARING FOR DRUGS INTENDED TO TREAT COVID–19.—Coverage that is in accordance with section 1860D–2(b)(8).''.

(c) IMPLEMENTATION.—Notwithstanding any other provision of law, the Secretary of Health and Human Services may implement the amendments made by this section by program instruction or otherwise.

SEC. 206. MEDICARE SPECIAL ENROLLMENT PERIOD FOR INDIVIDUALS RESIDING IN COVID–19 EMERGENCY AREAS.

(a) IN GENERAL.—Section 1837(i) of the Social Security Act (42 U.S.C. 1395p(i)) is amended by adding at the end the following new paragraph:

''(5)(A) In the case of an individual who—

''(i) is eligible under section 1836 to enroll in the medical insurance program established by this part,

''(ii) did not enroll (or elected not to be deemed enrolled) under this section during an enrollment period, and

''(iii) during the emergency period (as described in section 1135(g)(1)(B)), resided in an emergency area (as described in such section),

there shall be a special enrollment period described in subparagraph (B).

''(B) The special enrollment period referred to in subparagraph (A) is the period that begins not later than December 1, 2020, and ends on the last day of the month in which the emergency period (as described in section 1135(g)(1)(B)) ends.''.

(b) COVERAGE PERIOD FOR INDIVIDUALS TRANSITIONING FROM OTHER COVERAGE.—Section 1838(e) of the Social Security Act (42 U.S.C. 1395q(e)) is amended—

(1) by striking ''pursuant to section 1837(i)(3) or 1837(i)(4)(B)—'' and inserting the following: ''pursuant to—

''(1) section 1837(i)(3) or 1837(i)(4)(B)—'';

(2) by redesignating paragraphs (1) and (2) as subparagraphs (A) and (B), respectively, and moving the indentation of each such subparagraph 2 ems to the right;

(3) by striking the period at the end of the subparagraph (B), as so redesignated, and inserting ''; or''; and

(4) by adding at the end the following new paragraph:

''(2) section 1837(i)(5), the coverage period shall begin on the first day of the month following the month in which the individual so enrolls.''.

(c) FUNDING.—The Secretary of Health and Human Services shall provide for the transfer from the Federal Hospital Insurance Trust Fund (as described in section 1817 of the Social Security Act (42 U.S.C. 1395i)) and the Federal Supplementary Medical Insurance Trust Fund (as described in section 1841 of such Act (42 U.S.C. 1395t)), in such proportions as determined appropriate by the Secretary, to the Social Security Administration, of $30,000,000, to remain available until expended, for purposes of carrying out the amendments made by this section.

(d) IMPLEMENTATION.—Notwithstanding any other provision of law, the Secretary of Health and Human Services may implement the amendments made by this section by program instruction or otherwise.

SEC. 207. COVID–19 SKILLED NURSING FACILITY PAYMENT INCENTIVE PROGRAM.

(a) IN GENERAL.—Section 1819 of the Social Security Act (42 U.S.C. 1395i–3) is amended by adding at the end the following new subsection:

''(k) COVID–19 DESIGNATION PROGRAM.—

''(1) IN GENERAL.—Not later than 2 weeks after the date of the enactment of this subsection, the Secretary shall establish a program under which a skilled nursing facility that makes an election described in paragraph (2)(A) and meets the requirements described in paragraph (2)(B) is designated (or a portion of such facility is so designated) as a COVID–19 treatment center and receives incentive payments under section 1888(e)(13).

''(2) DESIGNATION.—

''(A) IN GENERAL.—A skilled nursing facility may elect to be designated (or to have a portion of such facility designated) as a COVID–19 treatment center under the program established under paragraph (1) if the facility submits to the Secretary, at a time and in a manner specified by the Secretary, an application for such designation that contains such information as required by the Secretary and demonstrates that such facility meets the requirements described in subparagraph (B).

''(B) REQUIREMENTS.—The requirements described in this subparagraph with respect to a skilled nursing facility are the following:

''(i) The facility has a star rating with respect to staffing of 4 or 5 on the Nursing Home Compare website (as described in subsection (i)) and has maintained such a rating on such website during the 2-year period ending on the date of the submission of the application described in subparagraph (A).

''(ii) The facility has a star rating of 4 or 5 with respect to health inspections on such website and has maintained such a rating on such website during such period.

''(iii) During such period, the Secretary or a State has not found a deficiency with such facility relating to infection control that the Secretary or State determined immediately jeopardized the health or safety of the residents of such facility (as described in paragraph (1) or (2)(A) of subsection (h), as applicable).

''(iv) The facility provides care at such facility (or, in the case of an election made with respect to a portion of such facility, to provide care in such portion of such facility) only to eligible individuals.

''(v) The facility arranges for and transfers all residents of such facility (or such portion of such facility, as applicable) who are not eligible individuals to other skilled nursing facilities (or other portions of such facility, as applicable).

''(vi) The facility complies with the notice requirement described in paragraph (4).

''(vii) The facility meets the reporting requirement described in paragraph (5).

''(viii) Any other requirement determined appropriate by the Secretary.

''(3) DURATION OF DESIGNATION.—

''(A) IN GENERAL.—A designation of a skilled nursing facility (or portion of such facility) as a COVID–19 treatment center shall begin on a date specified by the Secretary and end upon the earliest of the following:

''(i) The revocation of such designation under subparagraph (B).

''(ii) The submission of a notification by such facility to the Secretary that such facility elects to terminate such designation.

''(iii) The termination of the program (as specified in paragraph (6)).

''(B) REVOCATION.—The Secretary may revoke the designation of a skilled nursing facility (or portion of such facility) as a COVID–19 treatment center if the Secretary determines that the facility is no longer in compliance with a requirement described in paragraph (2)(B).

''(4) RESIDENT NOTICE REQUIREMENT.—For purposes of paragraph (2)(B)(vi), the notice requirement described in this paragraph is that, not later than 72 hours before the date specified by the Secretary under paragraph (3)(A) with respect to the designation of a skilled nursing facility (or portion of such facility) as a COVID–19 treatment center, the facility provides a notification to each resident of such facility (and to appropriate representatives or family members of each such resident, as specified by the Secretary) that contains the following:

''(A) Notice of such designation.

''(B) In the case such resident is not an eligible individual (and, in the case such designation is made only with respect to a portion of such facility, resides in such portion of such facility)—

''(i) a specification of when and where such resident will be transferred (or moved within such facility);

''(ii) an explanation that, in lieu of such transfer or move, such resident may arrange for transfer to such other setting (including a home) selected by the resident; and

''(iii) if such resident so arranges to be transferred to a home, information on Internet resources for caregivers who elect to care for such resident at home.

''(C) Contact information for the State long-term care ombudsman (established under section 307(a)(12) of the Older Americans Act of 1965) for the applicable State.

''(5) REPORTING REQUIREMENT.—

''(A) IN GENERAL.—For purposes of paragraph (2)(B)(vii), the reporting requirement described in this paragraph is, with respect to a skilled nursing facility, that the facility reports to the Secretary, weekly and in such manner specified by the Secretary, the following (but only to the extent the information described in clauses (i) through (vii) is not otherwise reported to the Secretary weekly):

''(i) The number of COVID–19 related deaths at such facility.

''(ii) The number of discharges from such facility.

''(iii) The number of admissions to such facility.

''(iv) The number of beds occupied and the number of beds available at such facility.

''(v) The number of residents on a ventilator at such facility.

''(vi) The number of clinical and nonclinical staff providing direct patient care at such facility.

''(vii) Such other information determined appropriate by the Secretary.

''(B) NONAPPLICATION OF PAPERWORK REDUCTION ACT.—Chapter 35 of title 44, United States Code (commonly known as the 'Paperwork Reduction Act'), shall not apply to the collection of information under this paragraph.

''(6) DEFINITION.—For purposes of this subsection, the term 'eligible individual' means an individual who, during the 30-day period ending on the first day on which such individual is a resident of a COVID–19 treatment center (on or after the date such center is so designated), was furnished a test for COVID–19 that came back positive.

''(7) TERMINATION.—The program established under paragraph (1) shall terminate upon the termination of the emergency period described in section 1135(g)(1)(B).

''(8) PROHIBITION ON ADMINISTRATIVE AND JUDICIAL REVIEW.—There shall be no administrative or judicial review under section 1869, 1878, or otherwise of a designation of a skilled nursing facility (or portion of such facility) as a COVID–19 treatment center, or revocation of such a designation, under this subsection.''.

(b) PAYMENT INCENTIVE.—Section 1888(e) of the Social Security Act (42 U.S.C. 1395yy(e)) is amended—

(1) in paragraph (1), in the matter preceding subparagraph (A), by striking ''and (12)'' and inserting ''(12), and (13)''; and

(2) by adding at the end the following new paragraph:

''(13) ADJUSTMENT FOR COVID–19 TREATMENT CENTERS.—In the case of a resident of a skilled

nursing facility that has been designated as a COVID–19 treatment center under section 1819(k) (or in the case of a resident who resides in a portion of such facility that has been so designated), if such resident is an eligible individual (as defined in paragraph (5) of such section), the per diem amount of payment for such resident otherwise applicable shall be increased by 20 percent to reflect increased costs associated with such residents.''.

SEC. 208. FUNDING FOR STATE STRIKE TEAMS FOR RESIDENT AND EMPLOYEE SAFETY IN SKILLED NURSING FACILITIES AND NURSING FACILITIES.

(a) IN GENERAL.—Of the amounts made available under subsection (c), the Secretary of Health and Human Services (referred to in this section as the ''Secretary'') shall allocate such amounts among the States, in a manner that takes into account the percentage of skilled nursing facilities and nursing facilities in each State that have residents or employees who have been diagnosed with COVID–19, for purposes of establishing and implementing strike teams in accordance with subsection (b).

(b) USE OF FUNDS.—A State that receives funds under this section shall use such funds to establish and implement a strike team that will be deployed to a skilled nursing facility or nursing facility in the State with diagnosed or suspected cases of COVID–19 among residents or staff for the purposes of assisting with clinical care, infection control, or staffing.

(c) AUTHORIZATION OF APPROPRIATIONS.—For purposes of carrying out this section, there is authorized to be appropriated $500,000,000.

(d) DEFINITIONS.—In this section:

(1) NURSING FACILITY.—The term ''nursing facility'' has the meaning given such term in section 1919(a) of the Social Security Act (42 U.S.C. 1396r(a)).

(2) SKILLED NURSING FACILITY.—The term ''skilled nursing facility'' has the meaning given such term in section 1819(a) of the Social Security Act (42 U.S.C. 1395i–3(a)).

SEC. 209. PROVIDING FOR INFECTION CONTROL SUPPORT TO SKILLED NURSING FACILITIES THROUGH CONTRACTS WITH QUALITY IMPROVEMENT ORGANIZATIONS.

(a) IN GENERAL.—Section 1862(g) of the Social Security Act (42 U.S.C. 1395y(g)) is amended—

(1) by striking ''The Secretary'' and inserting ''(1) The Secretary''; and

(2) by adding at the end the following new paragraph:

''(2)(A) The Secretary shall ensure that at least 1 contract with a quality improvement organization described in paragraph (1) entered into on or after the date of the enactment of this paragraph and before the end of the emergency period described in section 1135(g)(1)(B) (or in effect as of such date) includes the requirement that such organization provide to skilled nursing facilities with cases of COVID–19 (or facilities attempting to prevent outbreaks of COVID–19) infection control support described in subparagraph (B) during such period.

''(B) For purposes of subparagraph (A), the infection control support described in this subparagraph is, with respect to skilled nursing facilities described in such subparagraph, the development and dissemination to such facilities of protocols relating to the prevention or mitigation of COVID–19 at such facilities and the provision of training materials to such facilities relating to such prevention or mitigation.''.

(b) FUNDING.—The Secretary of Health and Human Services shall provide for the transfer from the Federal Supplementary Medical Insurance Trust Fund (as described in section 1841 of the Social Security Act (42 U.S.C. 1395t)) and the Federal Hospital Insurance Trust Fund (as described in section 1817 of such Act (42 U.S.C. 1395i)), in such proportions as determined appropriate by the Secretary, to the Centers for Medicare & Medicaid Services Program Management Account, of $210,000,000, to remain available until expended, for purposes of entering into contracts with quality improvement organizations under part B of title XI of such Act (42 U.S.C. 1320c et seq.). Of the amount transferred pursuant to the previous sentence, not less that $110,000,000 shall be used for purposes of entering into such a contract that includes the requirement described in section 1862(g)(2)(A) of such Act (as added by subsection (a)).

SEC. 210. REQUIRING LONG TERM CARE FACILITIES TO REPORT CERTAIN INFORMATION RELATING TO COVID–19 CASES AND DEATHS.

(a) IN GENERAL.—The Secretary of Health and Human Services (in this section referred to as the ''Secretary'') shall, as soon as practicable, require that the information described in paragraph (1) of section 483.80(g) of title 42, Code of Federal Regulations, or a successor regulation, be reported by a facility (as defined for purposes of such section).

(b) DEMOGRAPHIC INFORMATION.—The Secretary shall post the following information with respect to skilled nursing facilities (as defined in section 1819(a) of the Social Security Act (42 U.S.C. 1395i–3(a))) and nursing facilities (as defined in section 1919(a) of such Act (42 U.S.C. 1396r(a))) on the Nursing Home Compare website (as described in section 1819(i) of the Social Security Act (42 U.S.C. 1395i–3(i))), or a successor website, aggregated by State:

(1) The age, race/ethnicity, and preferred language of the residents of such skilled nursing facilities and nursing facilities with suspected or confirmed COVID–19 infections, including residents previously treated for COVID–19.

(2) The age, race/ethnicity, and preferred language relating to total deaths and COVID–19 deaths among residents of such skilled nursing facilities and nursing facilities.

(c) CONFIDENTIALITY.—Any information reported under this section that is made available to the public shall be made so available in a manner that protects the identity of residents of skilled nursing facilities and nursing facilities.

(d) IMPLEMENTATION.—The Secretary may implement the provisions of this section be program instruction or otherwise.

SEC. 211. FLOOR ON THE MEDICARE AREA WAGE INDEX FOR HOSPITALS IN ALL-URBAN STATES.

(a) IN GENERAL.—Section 1886(d)(3)(E) of the Social Security Act (42 U.S.C. 1395ww(d)(3)(E)) is amended—

(1) in clause (i), in the first sentence, by striking ''or (iii)'' and inserting '', (iii), or (iv)''; and

(2) by adding at the end the following new clause:

''(iv) FLOOR ON AREA WAGE INDEX FOR HOSPITALS IN ALL-URBAN STATES.—

''(I) IN GENERAL.—For discharges occurring on or after October 1, 2021, the area wage index applicable under this subparagraph to any hospital in an all-urban State (as defined in subclause (IV)) may not be less than the minimum area wage index for the fiscal year for hospitals in that State, as established under subclause (II).

''(II) MINIMUM AREA WAGE INDEX.—For purposes of subclause (I), the Secretary shall establish a minimum area wage index for a fiscal year for hospitals in each all-urban State using the methodology described in section 412.64(h)(4) of title 42, Code of Federal Regulations, as in effect for fiscal year 2018.

''(III) WAIVING BUDGET NEUTRALITY.—Pursuant to the fifth sentence of clause (i), this subsection shall not be applied in a budget neutral manner.

''(IV) ALL-URBAN STATE DEFINED.—In this clause, the term 'all-urban State' means a State in which there are no rural areas (as defined in paragraph (2)(D)) or a State in which there are no hospitals classified as rural under this section.''.

(b) WAIVING BUDGET NEUTRALITY.—

(1) TECHNICAL AMENDATORY CORRECTION.—Section 10324(a)(2) of Public Law 111–148 is amended by striking ''third sentence'' and inserting ''fifth sentence''.

(2) WAIVER.—Section 1886(d)(3)(E)(i) of the Social Security Act (42 U.S.C. 1395ww(d)(3)(E)(i)) is amended, in the fifth sentence—

(A) by striking ''and the amendments'' and inserting '', the amendments''; and

(B) by inserting '', and the amendments made by section 211 of the Investing in America's Health Care During the COVID–19 Pandemic Act'' after ''Care Act''.

SEC. 212. RELIEF FOR SMALL RURAL HOSPITALS FROM INACCURATE INSTRUCTIONS PROVIDED BY CERTAIN MEDICARE ADMINISTRATIVE CONTRACTORS.

Section 1886(d)(5) of the Social Security Act (42 U.S.C. 1395ww(d)(5)) is amended by adding at the end the following new subparagraph:

''(N)(i) Subject to clause (ii), in the case of a sole community hospital or a medicare-dependent, small rural hospital with respect to which a medicare administrative contractor initially determined and paid a volume decrease adjustment under subparagraph (D)(ii) or (G)(iii) for a specified cost reporting period, at the election of the hospital, the Secretary of Health and Human Services shall replace the volume decrease adjustment subsequently determined for that specified cost reporting period by the medicare administrative contractor with the volume decrease adjustment initially determined and paid by the medicare administrative contractor for that specified cost reporting period.

''(ii)(I) Clause (i) shall not apply in the case of a sole community hospital or a medicare-dependent, small rural hospital for which the medicare administrative contractor determination of the volume decrease adjustment with respect to a specified cost reporting period of the hospital is administratively final before the date that is three years before the date of the enactment of this section.

''(II) For purposes of subclause (I), the date on which the medicare administrative contractor determination with respect to a volume decrease adjustment for a specified cost reporting period is administratively final is the latest of the following:

''(aa) The date of the contractor determination (as defined in section 405.1801 of title 42, Code of Federal Regulations).

''(bb) The date of the final outcome of any reopening of the medicare administrative contractor determination under section 405.1885 of title 42, Code of Federal Regulations.

''(cc) The date of the final outcome of the final appeal filed by such hospital with respect to such volume decrease adjustment for such specified cost reporting period.

''(iii) For purposes of this subparagraph, the term 'specified cost reporting period' means a cost reporting period of a sole community hospital or a medicare-dependent, small rural hospital, as the case may be, that begins during a fiscal year before fiscal year 2018.''.

SEC. 213. DEEMING CERTAIN HOSPITALS TO BE LOCATED IN AN URBAN AREA FOR PURPOSES OF PAYMENT FOR INPATIENT HOSPITAL SERVICES UNDER THE MEDICARE PROGRAM.

Section 1886(d)(10) of the Social Security Act (42 U.S.C. 1395ww(d)(10)) is amended by adding at the end the following new subparagraph:

''(G)(i) For purposes of payment under this subsection for discharges occurring during the 3-year period beginning on October 1, 2020, each hospital located in Albany, Saratoga, Schenectady, Montgomery, or Rensselaer County of New York shall be deemed to be located in the urban area of Hartford-East Hartford-Middletown, Connecticut (CBSA 25540), notwithstanding any other reclassification or redesignation that otherwise would have applied for purposes of the wage index under this paragraph or subparagraphs (B) or (E) of paragraph (8).

''(ii) Any deemed location of a hospital pursuant to clause (i) shall be treated as a decision of

the Medicare Geographic Classification Review Board for purposes of paragraph (8)(D).''.

SEC. 214. EFFECTIVE DATE OF MEDICARE COVERAGE OF COVID–19 VACCINES WITHOUT ANY COST-SHARING.

Effective as if included in the enactment of the CARES Act (Public Law 116–136; 42 U.S.C. 13951 note), section 3713(d) of such Act is amended by inserting before the period at the end the following: ''or authorized for emergency use under section 564 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 360bbb–3)''.

TITLE III—PRIVATE INSURANCE PROVISIONS

SEC. 301. SPECIAL ENROLLMENT PERIOD THROUGH EXCHANGES.

(a) SPECIAL ENROLLMENT PERIOD THROUGH EXCHANGES.—Section 1311(c) of the Patient Protection and Affordable Care Act (42 U.S.C. 18031(c)) is amended—

(1) in paragraph (6)—

(A) in subparagraph (C), by striking at the end ''and'';

(B) in subparagraph (D), by striking at the end the period and inserting ''; and''; and

(C) by adding at the end the following new subparagraph:

''(E) subject to subparagraph (B) of paragraph (8), the special enrollment period described in subparagraph (A) of such paragraph.''; and

(2) by adding at the end the following new paragraph:

''(8) SPECIAL ENROLLMENT PERIOD FOR CERTAIN PUBLIC HEALTH EMERGENCY.—

''(A) IN GENERAL.—The Secretary shall, subject to subparagraph (B), require an Exchange to provide—

''(i) for a special enrollment period during the emergency period described in section 1135(g)(1)(B) of the Social Security Act—

''(I) which shall begin on the date that is one week after the date of the enactment of this paragraph and which, in the case of an Exchange established or operated by the Secretary within a State pursuant to section 1321(c), shall be an 8-week period; and

''(II) during which any individual who is otherwise eligible to enroll in a qualified health plan through the Exchange may enroll in such a qualified health plan; and

''(ii) that, in the case of an individual who enrolls in a qualified health plan through the Exchange during such enrollment period, the coverage period under such plan shall begin on the first day of the month following the day the individual selects a plan through such special enrollment period.

''(B) EXCEPTION.—The requirement of subparagraph (A) shall not apply to a State-operated or State-established Exchange if such Exchange, prior to the date of the enactment of this paragraph, established or otherwise provided for a special enrollment period to address access to coverage under qualified health plans offered through such Exchange during the emergency period described in section 1135(g)(1)(B) of the Social Security Act.''.

(b) IMPLEMENTATION.—The Secretary of Health and Human Services may implement the provisions of (including amendments made by) this section through subregulatory guidance, program instruction, or otherwise.

SEC. 302. EXPEDITED MEETING OF ACIP FOR COVID–19 VACCINES.

(a) IN GENERAL.—Notwithstanding section 3091 of the 21st Century Cures Act (21 U.S.C. 360bbb–4 note), the Advisory Committee on Immunization Practices shall meet and issue a recommendation with respect to a vaccine that is intended to prevent or treat COVID–19 not later than 15 business days after the date on which such vaccine is licensed under section 351 of the Public Health Service Act (42 U.S.C. 262).

(b) DEFINITION.—In this section, the term ''Advisory Committee on Immunization Practices'' means the Advisory Committee on Immunization Practices established by the Secretary of Health and Human Services pursuant to section 222 of the Public Health Service Act (42 U.S.C. 217a), acting through the Director of the Centers for Disease Control and Prevention.

SEC. 303. COVERAGE OF COVID–19 RELATED TREATMENT AT NO COST SHARING.

(a) IN GENERAL.—A group health plan and a health insurance issuer offering group or individual health insurance coverage (including a grandfathered health plan (as defined in section 1251(e) of the Patient Protection and Affordable Care Act)) shall provide coverage, and shall not impose any cost sharing (including deductibles, copayments, and coinsurance) requirements, for the following items and services furnished during any portion of the emergency period defined in paragraph (1)(B) of section 1135(g) of the Social Security Act (42 U.S.C. 1320b–5(g)) beginning on or after the date of the enactment of this Act:

(1) Medically necessary items and services (including in-person or telehealth visits in which such items and services are furnished) that are furnished to an individual who has been diagnosed with (or after provision of the items and services is diagnosed with) COVID–19 to treat or mitigate the effects of COVID–19.

(2) Medically necessary items and services (including in-person or telehealth visits in which such items and services are furnished) that are furnished to an individual who is presumed to have COVID–19 but is never diagnosed as such, if the following conditions are met:

(A) Such items and services are furnished to the individual to treat or mitigate the effects of COVID–19 or to mitigate the impact of COVID–19 on society.

(B) Health care providers have taken appropriate steps under the circumstances to make a diagnosis, or confirm whether a diagnosis was made, with respect to such individual, for COVID–19, if possible.

(b) ITEMS AND SERVICES RELATED TO COVID–19.—For purposes of this section—

(1) not later than one week after the date of the enactment of this section, the Secretary of Health and Human Services, Secretary of Labor, and Secretary of the Treasury shall jointly issue guidance specifying applicable diagnoses and medically necessary items and services related to COVID–19; and

(2) such items and services shall include all items or services that are relevant to the treatment or mitigation of COVID–19, regardless of whether such items or services are ordinarily covered under the terms of a group health plan or group or individual health insurance coverage offered by a health insurance issuer.

(c) ENFORCEMENT.—

(1) APPLICATION WITH RESPECT TO PHSA, ERISA, AND IRC.—The provisions of this section shall be applied by the Secretary of Health and Human Services, Secretary of Labor, and Secretary of the Treasury to group health plans and health insurance issuers offering group or individual health insurance coverage as if included in the provisions of part A of title XXVII of the Public Health Service Act, part 7 of the Employee Retirement Income Security Act of 1974, and subchapter B of chapter 100 of the Internal Revenue Code of 1986, as applicable.

(2) PRIVATE RIGHT OF ACTION.—An individual with respect to whom an action is taken by a group health plan or health insurance issuer offering group or individual health insurance coverage in violation of subsection (a) may commence a civil action against the plan or issuer for appropriate relief. The previous sentence shall not be construed as limiting any enforcement mechanism otherwise applicable pursuant to paragraph (1).

(d) IMPLEMENTATION.—The Secretary of Health and Human Services, Secretary of Labor, and Secretary of the Treasury may implement the provisions of this section through sub-regulatory guidance, program instruction or otherwise.

(e) TERMS.—The terms ''group health plan''; ''health insurance issuer''; ''group health insurance coverage'', and ''individual health insurance coverage'' have the meanings given such terms in section 2791 of the Public Health Service Act (42 U.S.C. 300gg–91), section 733 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1191b), and section 9832 of the Internal Revenue Code of 1986, as applicable.

SEC. 304. REQUIRING PRESCRIPTION DRUG REFILL NOTIFICATIONS DURING EMERGENCIES.

(a) ERISA.—

(1) IN GENERAL.—Subpart B of part 7 of subtitle B of title I of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1185 et seq.) is amended by adding at the end the following new section:

''SEC. 716. PROVISION OF PRESCRIPTION DRUG REFILL NOTIFICATIONS DURING EMERGENCIES.

''(a) IN GENERAL.—A group health plan, and a health insurance issuer offering health insurance coverage in connection with a group health plan, that provides benefits for prescription drugs under such plan or such coverage shall provide to each participant or beneficiary under such plan or such coverage who resides in an emergency area during an emergency period—

''(1) not later than 5 business days after the date of the beginning of such period with respect to such area (or, the case of the emergency period described in section 304(d)(2) of the Investing in America's Health Care During the COVID–19 Pandemic Act, not later than 5 business days after the date of the enactment of this section), a notification (written in a manner that is clear and understandable to the average participant or beneficiary)—

''(A) of whether such plan or coverage will waive, during such period with respect to such a participant or beneficiary, any time restrictions under such plan or coverage on any authorized refills for such drugs to enable such refills in advance of when such refills would otherwise have been permitted under such plan or coverage; and

''(B) in the case that such plan or coverage will waive such restrictions during such period with respect to such a participant or beneficiary, that contains information on how such a participant or beneficiary may obtain such a refill; and

''(2) in the case such plan or coverage elects to so waive such restrictions during such period with respect to such a participant or beneficiary after the notification described in paragraph (1) has been provided with respect to such period, not later than 5 business days after such election, a notification of such election that contains the information described in subparagraph (B) of such paragraph.

''(b) EMERGENCY AREA; EMERGENCY PERIOD.—For purposes of this section, an 'emergency area' is a geographical area in which, and an 'emergency period' is the period during which, there exists—

''(1) an emergency or disaster declared by the President pursuant to the National Emergencies Act or the Robert T. Stafford Disaster Relief and Emergency Assistance Act; and

''(2) a public health emergency declared by the Secretary pursuant to section 319 of the Public Health Service Act.''.

(2) CLERICAL AMENDMENT.—The table of contents of the Employee Retirement Income Security Act of 1974 is amended by inserting after the item relating to section 714 the following:

''Sec. 715. Additional market reforms.
''Sec. 716. Provision of prescription drug refill notifications during emergencies.''.

(b) PHSA.—Subpart II of part A of title XXVII of the Public Health Service Act (42 U.S.C. 300gg–11 et seq.) is amended by adding at the end the following new section:

"SEC. 2730. PROVISION OF PRESCRIPTION DRUG REFILL NOTIFICATIONS DURING EMERGENCIES.

''(a) IN GENERAL.—A group health plan, and a health insurance issuer offering group or individual health insurance coverage, that provides benefits for prescription drugs under such plan or such coverage shall provide to each participant, beneficiary, or enrollee enrolled under such plan or such coverage who resides in an emergency area during an emergency period—

''(1) not later than 5 business days after the date of the beginning of such period with respect to such area (or, the case of the emergency period described in section 304(d)(2) of the Investing in America's Health Care During the COVID–19 Pandemic Act, not later than 5 business days after the date of the enactment of this section), a notification (written in a manner that is clear and understandable to the average participant, beneficiary, or enrollee)—

''(A) of whether such plan or coverage will waive, during such period with respect to such a participant, beneficiary, or enrollee, any time restrictions under such plan or coverage on any authorized refills for such drugs to enable such refills in advance of when such refills would otherwise have been permitted under such plan or coverage; and

''(B) in the case that such plan or coverage will waive such restrictions during such period with respect to such a participant, beneficiary, or enrollee, that contains information on how such a participant, beneficiary, or enrollee may obtain such a refill; and

''(2) in the case such plan or coverage elects to so waive such restrictions during such period with respect to such a participant, beneficiary, or enrollee after the notification described in paragraph (1) has been provided with respect to such period, not later than 5 business days after such election, a notification of such election that contains the information described in subparagraph (B) of such paragraph.

''(b) EMERGENCY AREA; EMERGENCY PERIOD.—For purposes of this section, an 'emergency area' is a geographical area in which, and an 'emergency period' is the period during which, there exists—

''(1) an emergency or disaster declared by the President pursuant to the National Emergencies Act or the Robert T. Stafford Disaster Relief and Emergency Assistance Act; and

''(2) a public health emergency declared by the Secretary pursuant to section 319.''.

(c) IRC.—

(1) IN GENERAL.—Subchapter B of chapter 100 of the Internal Revenue Code of 1986 is amended by adding at the end the following new section:

"SEC. 9816. PROVISION OF PRESCRIPTION DRUG REFILL NOTIFICATIONS DURING EMERGENCIES.

''(a) IN GENERAL.—A group health plan that provides benefits for prescription drugs under such plan shall provide to each participant or beneficiary enrolled under such plan who resides in an emergency area during an emergency period, not later than 5 business days after the date of the beginning of such period with respect to such area (or, the case of the emergency period described in section 304(d)(2) of the Investing in America's Health Care During the COVID–19 Pandemic Act, not later than 5 business days after the date of the enactment of this section)—

''(1) a notification (written in a manner that is clear and understandable to the average participant or beneficiary)—

''(A) of whether such plan will waive, during such period with respect to such a participant or beneficiary, any time restrictions under such plan on any authorized refills for such drugs to enable such refills in advance of when such refills would otherwise have been permitted under such plan; and

''(B) in the case that such plan will waive such restrictions during such period with respect to such a participant or beneficiary, that contains information on how such a participant or beneficiary may obtain such a refill; and

''(2) in the case such plan elects to so waive such restrictions during such period with respect to such a participant or beneficiary after the notification described in paragraph (1) has been provided with respect to such period, not later than 5 business days after such election, a notification of such election that contains the information described in subparagraph (B) of such paragraph.

''(b) EMERGENCY AREA; EMERGENCY PERIOD.—For purposes of this section, an 'emergency area' is a geographical area in which, and an 'emergency period' is the period during which, there exists—

''(1) an emergency or disaster declared by the President pursuant to the National Emergencies Act or the Robert T. Stafford Disaster Relief and Emergency Assistance Act; and

''(2) a public health emergency declared by the Secretary pursuant to section 319 of the Public Health Service Act.''.

(2) CLERICAL AMENDMENT.—The table of sections for subchapter B of chapter 100 of the Internal Revenue Code of 1986 is amended by adding at the end the following new item:

''Sec. 9816. Provision of prescription drug refill notifications during emergencies.''.

(d) EFFECTIVE DATE.—The amendments made by this section shall apply with respect to—

(1) emergency periods beginning on or after the date of the enactment of this Act; and

(2) the emergency period relating to the public health emergency declared by the Secretary of Health and Human Services pursuant to section 319 of the Public Health Service Act on January 31, 2020, entitled ''Determination that a Public Health Emergency Exists Nationwide as the Result of the 2019 Novel Coronavirus''.

SEC. 305. IMPROVEMENT OF CERTAIN NOTIFICATIONS PROVIDED TO QUALIFIED BENEFICIARIES BY GROUP HEALTH PLANS IN THE CASE OF QUALIFYING EVENTS.

(a) EMPLOYEE RETIREMENT INCOME SECURITY ACT OF 1974.—

(1) IN GENERAL.—Section 606 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1166) is amended—

(A) in subsection (a)(4), in the matter following subparagraph (B), by striking ''under this subsection'' and inserting ''under this part in accordance with the notification requirements under subsection (c)''; and

(B) in subsection (c)—

(i) by striking ''For purposes of subsection (a)(4), any notification'' and inserting ''For purposes of subsection (a)(4)—

''(1) any notification'';

(ii) by striking '', whichever is applicable, and any such notification'' and inserting ''of subsection (a), whichever is applicable;

''(2) any such notification''; and

(iii) by striking ''such notification is made'' and inserting ''such notification is made; and

''(3) any such notification shall, with respect to each qualified beneficiary with respect to whom such notification is made, include information regarding any Exchange established under title I of the Patient Protection and Affordable Care Act through which such a qualified beneficiary may be eligible to enroll in a qualified health plan (as defined in section 1301 of the Patient Protection and Affordable Care Act), including—

''(A) the publicly accessible Internet website address for such Exchange;

''(B) the publicly accessible Internet website address for the Find Local Help directory maintained by the Department of Health and Human Services on the healthcare.gov Internet website (or a successor website);

''(C) a clear explanation that—

''(i) an individual who is eligible for continuation coverage may also be eligible to enroll, with financial assistance, in a qualified health plan offered through such Exchange, but, in the case that such individual elects to enroll in such continuation coverage and subsequently elects to terminate such continuation coverage before the period of such continuation coverage expires, such individual will not be eligible to enroll in a qualified health plan offered through such Exchange during a special enrollment period; and

''(ii) an individual who elects to enroll in continuation coverage will remain eligible to enroll in a qualified health plan offered through such Exchange during an open enrollment period and may be eligible for financial assistance with respect to enrolling in such a qualified health plan;

''(D) information on consumer protections with respect to enrolling in a qualified health plan offered through such Exchange, including the requirement for such a qualified health plan to provide coverage for essential health benefits (as defined in section 1302(b) of the Patient Protection and Affordable Care Act) and the requirements applicable to such a qualified health plan under part A of title XXVII of the Public Health Service Act; and

''(E) information on the availability of financial assistance with respect to enrolling in a qualified health plan, including the maximum income limit for eligibility for a premium tax credit under section 36B of the Internal Revenue Code of 1986.''.

(2) EFFECTIVE DATE.—The amendments made by paragraph (1) shall apply with respect to qualifying events occurring on or after the date that is 14 days after the date of the enactment of this Act.

(b) PUBLIC HEALTH SERVICE ACT.—

(1) IN GENERAL.—Section 2206 of the Public Health Service Act (42 U.S.C. 300bb–6) is amended—

(A) by striking ''In accordance'' and inserting the following:

''(a) IN GENERAL.—In accordance'';

(B) by striking ''of such beneficiary's rights under this subsection'' and inserting ''of such beneficiary's rights under this title in accordance with the notification requirements under subsection (b)''; and

(C) by striking ''For purposes of paragraph (4),'' and all that follows through ''such notification is made.'' and inserting the following:

''(b) RULES RELATING TO NOTIFICATION OF QUALIFIED BENEFICIARIES BY PLAN ADMINISTRATOR.—For purposes of subsection (a)(4)—

''(1) any notification shall be made within 14 days of the date on which the plan administrator is notified under paragraph (2) or (3) of subsection (a), whichever is applicable;

''(2) any such notification to an individual who is a qualified beneficiary as the spouse of the covered employee shall be treated as notification to all other qualified beneficiaries residing with such spouse at the time such notification is made; and

''(3) any such notification shall, with respect to each qualified beneficiary with respect to whom such notification is made, include information regarding any Exchange established under title I of the Patient Protection and Affordable Care Act through which such a qualified beneficiary may be eligible to enroll in a qualified health plan (as defined in section 1301 of the Patient Protection and Affordable Care Act), including—

''(A) the publicly accessible Internet website address for such Exchange;

''(B) the publicly accessible Internet website address for the Find Local Help directory maintained by the Department of Health and Human Services on the healthcare.gov Internet website (or a successor website);

''(C) a clear explanation that—

''(i) an individual who is eligible for continuation coverage may also be eligible to enroll, with financial assistance, in a qualified health plan offered through such Exchange, but, in the case that such individual elects to enroll in such

continuation coverage and subsequently elects to terminate such continuation coverage before the period of such continuation coverage expires, such individual will not be eligible to enroll in a qualified health plan offered through such Exchange during a special enrollment period; and

''(ii) an individual who elects to enroll in continuation coverage will remain eligible to enroll in a qualified health plan offered through such Exchange during an open enrollment period and may be eligible for financial assistance with respect to enrolling in such a qualified health plan;

''(D) information on consumer protections with respect to enrolling in a qualified health plan offered through such Exchange, including the requirement for such a qualified health plan to provide coverage for essential health benefits (as defined in section 1302(b) of the Patient Protection and Affordable Care Act) and the requirements applicable to such a qualified health plan under part A of title XXVII; and

''(E) information on the availability of financial assistance with respect to enrolling in a qualified health plan, including the maximum income limit for eligibility for a premium tax credit under section 36B of the Internal Revenue Code of 1986.''.

(2) EFFECTIVE DATE.—The amendments made by paragraph (1) shall apply with respect to qualifying events occurring on or after the date that is 14 days after the date of the enactment of this Act.

(c) INTERNAL REVENUE CODE OF 1986.—

(1) IN GENERAL.—Section 4980B(f)(6) of the Internal Revenue Code of 1986 is amended—

(A) in subparagraph (D)—

(i) in clause (ii), by striking ''under subparagraph (C)'' and inserting ''under clause (iii)''; and

(ii) by redesignating clauses (i) and (ii) as subclauses (I) and (II), respectively, and moving the margin of each such subclause, as so redesignated, 2 ems to the right;

(B) by redesignating subparagraphs (A) through (D) as clauses (i) through (iv), respectively, and moving the margin of each such clause, as so redesignated, 2 ems to the right;

(C) by striking ''In accordance'' and inserting the following:

''(A) IN GENERAL.—In accordance'';

(D) by inserting after ''of such beneficiary's rights under this subsection'' the following: ''in accordance with the notification requirements under subparagraph (C)''; and

(E) by striking ''The requirements of subparagraph (B)'' and all that follows through ''such notification is made.'' and inserting the following:

''(B) ALTERNATIVE MEANS OF COMPLIANCE WITH REQUIREMENT FOR NOTIFICATION OF MULTIEMPLOYER PLANS BY EMPLOYERS.—The requirements of subparagraph (A)(ii) shall be considered satisfied in the case of a multiemployer plan in connection with a qualifying event described in paragraph (3)(B) if the plan provides that the determination of the occurrence of such qualifying event will be made by the plan administrator.

''(C) RULES RELATING TO NOTIFICATION OF QUALIFIED BENEFICIARIES BY PLAN ADMINISTRATOR.—For purposes of subparagraph (A)(iv)—

''(i) any notification shall be made within 14 days (or, in the case of a group health plan which is a multiemployer plan, such longer period of time as may be provided in the terms of the plan) of the date on which the plan administrator is notified under clause (ii) or (iii) of subparagraph (A), whichever is applicable;

''(ii) any such notification to an individual who is a qualified beneficiary as the spouse of the covered employee shall be treated as notification to all other qualified beneficiaries residing with such spouse at the time such notification is made; and

''(iii) any such notification shall, with respect to each qualified beneficiary with respect to whom such notification is made, include information regarding any Exchange established under title I of the Patient Protection and Affordable Care Act through which such a qualified beneficiary may be eligible to enroll in a qualified health plan (as defined in section 1301 of the Patient Protection and Affordable Care Act), including—

''(I) the publicly accessible Internet website address for such Exchange;

''(II) the publicly accessible Internet website address for the Find Local Help directory maintained by the Department of Health and Human Services on the healthcare.gov Internet website (or a successor website);

''(III) a clear explanation that—

''(aa) an individual who is eligible for continuation coverage may also be eligible to enroll, with financial assistance, in a qualified health plan offered through such Exchange, but, in the case that such individual elects to enroll in such continuation coverage and subsequently elects to terminate such continuation coverage before the period of such continuation coverage expires, such individual will not be eligible to enroll in a qualified health plan offered through such Exchange during a special enrollment period; and

''(bb) an individual who elects to enroll in continuation coverage will remain eligible to enroll in a qualified health plan offered through such Exchange during an open enrollment period and may be eligible for financial assistance with respect to enrolling in such a qualified health plan;

''(IV) information on consumer protections with respect to enrolling in a qualified health plan offered through such Exchange, including the requirement for such a qualified health plan to provide coverage for essential health benefits (as defined in section 1302(b) of the Patient Protection and Affordable Care Act) and the requirements applicable to such a qualified health plan under part A of title XXVII of the Public Health Service Act; and

''(V) information on the availability of financial assistance with respect to enrolling in a qualified health plan, including the maximum income limit for eligibility for a premium tax credit under section 36B.''.

(2) EFFECTIVE DATE.—The amendments made by paragraph (1) shall apply with respect to qualifying events occurring on or after the date that is 14 days after the date of the enactment of this Act.

(d) MODEL NOTICES.—Not later than 14 days after the date of the enactment of this Act, the Secretary of the Labor, in consultation with the Secretary of the Treasury and the Secretary of Health and Human Services, shall—

(1) update the model Consolidated Omnibus Budget Reconciliation Act of 1985 (referred to in this subsection as ''COBRA'') continuation coverage general notice and the model COBRA continuation coverage election notice developed by the Secretary of Labor for purposes of facilitating compliance of group health plans with the notification requirements under section 606 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1166) to include the information described in paragraph (3) of subsection (c) of such section 606, as added by subsection (a)(1);

(2) provide an opportunity for consumer testing of each such notice, as so updated, to ensure that each such notice is clear and understandable to the average participant or beneficiary of a group health plan; and

(3) rename the model COBRA continuation coverage general notice and the model COBRA continuation coverage election notice as the ''model COBRA continuation coverage and Affordable Care Act coverage general notice'' and the ''model COBRA continuation coverage and Affordable Care Act coverage election notice'', respectively.

SEC. 306. SOONER COVERAGE OF TESTING FOR COVID–19.

Section 6001(a) of division F of the Families First Coronavirus Response Act (42 U.S.C. 1320b–5 note) is amended by striking ''beginning on or after'' and inserting ''beginning before, on, or after''.

SEC. 307. CLARIFYING SCOPE OF COVERAGE REQUIREMENT FOR ITEMS AND SERVICES RELATING TO COVID–19.

Section 6001 of the Families First Coronavirus Response Act (Public Law 116–127) is amended—

(1) in subsection (b), by striking ''subsection (a)'' and inserting ''subsections (a) and (e)''; and

(2) by adding at the end the following new subsection:

''(e) SCOPE OF COVERAGE REQUIREMENT.—A group health plan and a health insurance issuer offering group or individual health insurance coverage (including a grandfathered health plan (as defined in section 1251(e) of the Patient Protection and Affordable Care Act)) shall provide coverage, without cost sharing and without prior authorization or other medical management requirements, in accordance with subsection (a) for tests, items, and services described in such subsection and furnished to an individual during the emergency period defined in paragraph (1)(B) of section 1135(g) of the Social Security Act (42 U.S.C. 1320b-5(g)), regardless of—

''(1) why such individual sought such tests, items, and services;

''(2) the nature of the clinical assessment that was associated with such tests, items, and services;

''(3) whether such individual was showing symptoms prior to being furnished such tests, items, and services;

''(4) in the case of such tests, whether or not such tests were ordered by a provider;

''(5) the frequency with which such individual is furnished such tests, items, and services; and

''(6) any other review of the encounters or events that preceded or followed the furnishing of such tests, items, and services.''.

SEC. 308. GUIDANCE ON BILLING FOR PROVIDER VISITS ASSOCIATED WITH COVID–19 TESTING.

The Secretary of Health and Human Services, the Secretary of Labor, and the Secretary of the Treasury shall jointly issue guidance not later than 30 days after the date of enactment of this Act for purposes of clarifying—

(1) the process for submitting claims for tests, items, and services described in section 6001(a) of the Families First Coronavirus Response Act (Public Law 116–127) to ensure that individuals enrolled in individual or group health insurance coverage or group health plans (including grandfathered health plans (as defined in section 1251(e) of the Patient Protection and Affordable Care Act)) to whom such tests, items, and services are furnished are not subject to cost-sharing (including deductibles, copayments, and coinsurance) or prior authorization or other medical management requirements; and

(2) that providers should not collect cost-sharing amounts from such individuals seeking such tests, items, or services.

SEC. 309. IMPROVEMENTS TO TRANSPARENCY OF THE PRICING OF DIAGNOSTIC TESTING FOR COVID–19.

(a) IN GENERAL.—Section 3202 of the CARES Act (Public Law 116–136) is amended—

(1) in subsection (b)—

(A) in the heading, by inserting ''AND RELATED ITEMS AND SERVICES'' after ''DIAGNOSTIC TESTING FOR COVID–19'';

(B) in paragraph (1)—

(i) by striking ''a diagnostic test for COVID–19'' and inserting ''a test, item, or service described in section 6001(a) of division F of the Families First Coronavirus Response Act''; and

(ii) by striking ''such test'' and inserting ''such test, item, or service''; and

(C) in paragraph (2), by striking ''a diagnostic test for COVID–19'' and inserting ''a test, item,

or service described in section 6001(a) of division F of the Families First Coronavirus Response Act''; and

(2) by adding at the end the following new subsections:

''(c) IMPROVEMENTS TO TRANSPARENCY POLICY.—

''(1) IN GENERAL.—Not later than 30 days after the date of the enactment of this subsection, the Secretary of Health and Human Services shall conduct a survey of providers of the items and services described in section 6001(a) of division F of the Families First Coronavirus Response Act (Public Law 116– 127) regarding the cash prices for such items and services listed by the providers on a public internet website of such provider.

''(2) REPRESENTATIVE SAMPLE.—In carrying out paragraph (1), the Secretary shall survey a sample of providers that is representative of the diversity of sizes, geographic locations, and care settings (such as hospitals, laboratories, and independent freestanding emergency department) in which diagnostic testing for COVID–19 is performed.

''(d) PUBLIC REPORT.—Not later than 60 days after the date of the enactment of this subsection, the Secretary of Health and Human Services shall publish on the Internet website of the Department of Health and Human Services a report on cash prices for items and services published under subsection (b)(1) during the period beginning on the date of the enactment of this Act and ending on the date of the enactment of this subsection, which shall include—

''(1) the percentage of providers that comply with the publication requirement under such subsection;

''(2) the average cash price for each item and service described in section 6001(a) of division F of the Families First Coronavirus Response Act that is published under such subsection;

''(3) with respect to each such item and service, a comparison of such average cash price to the reimbursement rate under the Medicare program under title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.); and

''(4) any cash prices published under such subsection that substantially exceed the average cash price for each such item or service and the name of each provider that charges such prices.''.

SEC. 310. GRANTS FOR EXCHANGE OUTREACH, EDUCATION, AND ENROLLMENT ASSISTANCE.

(a) OUTREACH AND EDUCATION GRANTS TO STATES AND NAVIGATOR ENROLLMENT GRANTS TO EXCHANGES TO ASSIST ELIGIBLE INDIVIDUALS.—

(1) OUTREACH AND EDUCATION GRANTS TO STATES.—

(A) IN GENERAL.—The Secretary of Health and Human Services shall carry out a program that awards grants to States that provide outreach and educational activities for purposes of informing individuals of the availability of coverage under qualified health plans offered through an Exchange and financial assistance for coverage under such plans (including the informing of eligible individuals of the availability of coverage under qualified health plans offered through an Exchange during the application process for unemployment compensation under State or Federal law).

(B) CONSIDERATION OF CERTAIN NEEDS OF POPULATION OF EXCHANGE.—The outreach and educational activities described in subparagraph (A) shall be provided in a manner that is culturally and linguistically appropriate to the needs of the populations being served by the Exchange (including hard-to-reach populations, such as racial and sexual minorities, limited English proficient populations, and young adults).

(C) APPLICATIONS.—To be eligible to receive a grant under this paragraph, a State shall submit to the Secretary an application at such time, in such manner, and containing such information as the Secretary may require.

(D) LIMITATION ON USE OF FUNDS.—No funds appropriated under paragraph (4)(A) shall be used for expenditures for promoting non-ACA compliant health insurance coverage.

(E) GRANT DURATION AND AMOUNT.—

(i) DURATION.—Each grant under this paragraph shall be for a 1-year period that begins on the date of the enactment of this Act (which may be renewed for a 1-year period by the Secretary of Health and Human Services).

(ii) AMOUNT.—

(I) IN GENERAL.—The Secretary of Health and Human Services shall determine the amount of each grant under this paragraph.

(II) MINIMUM.—Each grant under this paragraph shall be for an amount that is at least $500,000 for each 1-year period, and if applicable, at least $500,000 for any 1-year period of renewal.

(2) NAVIGATOR ENROLLMENT GRANTS THROUGH EXCHANGES.—

(A) IN GENERAL.—The Secretary of Health and Human Services shall award grants to Exchanges described in subparagraph (D) for purposes of facilitating the enrollment of individuals in qualified health plans offered through such Exchanges.

(B) USE OF FUNDS.—Funds made available under a grant made under subparagraph (A) may only be used by such Exchanges to carry out the navigator program described in subsection (i)(1) of such section 1311.

(C) APPLICATIONS.—To be eligible to receive a grant under this paragraph, for purposes of carrying out subparagraph (A), an Exchange described in subparagraph (D) shall submit to the Secretary an application at such time, in such manner, and containing such information as the Secretary may require.

(D) EXCHANGE DESCRIBED.—For purposes of this paragraph, an Exchange described in this subparagraph is an Exchange that a State establishes and operates pursuant to section 1311(b)(1) of the Patient Protection and Affordable Care Act (42 U.S.C. 18031(b)(1)).

(3) APPROPRIATIONS.—There are appropriated for each of fiscal years 2021 and 2022, to remain available through fiscal year 2023—

(A) $100,000,000 to carry out paragraph (1)(A); and

(B) $100,000,000—

(i) to carry out paragraph (2)(A); and

(ii) to carry out the navigator program described in section 1311(i) of the Patient Protection and Affordable Care Act (42 U.S.C. 18031(i)) for Exchanges operated by the Secretary pursuant to section 1321(c)(1) of such Act (42 U.S.C. 18041(c)(1))).

(4) DEFINITIONS.—In this subsection:

(A) ELIGIBLE INDIVIDUALS.—The term ''eligible individual'' means, with respect to an Exchange, an individual who is otherwise eligible to enroll through such Exchange.

(B) EXCHANGE.—The term ''Exchange'' means an American Health Benefit Exchange established under section 1311 of the Patient Protection and Affordable Care Act (42 U.S.C. 18031).

(C) NON-ACA COMPLIANT HEALTH INSURANCE COVERAGE.—

(i) IN GENERAL.—The term ''non-ACA compliant health insurance coverage'' means health insurance coverage, or a group health plan, that is not a qualified health plan.

(ii) INCLUSION.—Such term includes the following:

(I) An association health plan.

(II) Short-term limited duration insurance.

(D) QUALIFIED HEALTH PLAN.—The term ''qualified health plan'' has the meaning given such term in section 1301(a)(1) of the Patient Protection and Affordable Care Act (42 U.S.C. 18021(a)(1)).

(b) IMPLEMENTATION.—The Secretary of Health and Human Services may implement the provisions of this section through subregulatory guidance, program instruction, or otherwise.

SEC. 311. APPLICATION OF PREMIUM TAX CREDIT IN CASE OF INDIVIDUALS RECEIVING UNEMPLOYMENT COMPENSATION DURING THE COVID-19 PUBLIC HEALTH EMERGENCY.

(a) IN GENERAL.—Section 36B of the Internal Revenue Code of 1986, as amended by the preceding provisions of this Act, is amended by redesignating subsection (g) as subsection (h) and by inserting after subsection (f) the following new subsection:

''(g) SPECIAL RULE FOR INDIVIDUALS WHO RECEIVE UNEMPLOYMENT COMPENSATION DURING COVID-19 PUBLIC HEALTH EMERGENCY.—

''(1) IN GENERAL.—For purposes of the credit determined under this section, in the case of a taxpayer who has received, or has been approved to receive, unemployment compensation for any week during the applicable period, for the taxable year in which such week begins—

''(A) such taxpayer shall be treated as an applicable taxpayer, and

''(B) there shall not be taken into account any household income of the taxpayer in excess of 133 percent of the poverty line for a family of the size involved.

''(2) APPLICABLE PERIOD.—For purposes of this section, the applicable period is the period that—

''(A) begins on the date of the enactment of this subsection, and

''(B) ends 60 days after the last day of the emergency period described in section 1135(g)(1)(B) of the Social Security Act.

''(3) REASONABLE EVIDENCE OF UNEMPLOYMENT COMPENSATION.—For purposes of this subsection, a taxpayer shall not be treated as having received (or been approved to receive) unemployment compensation for any week unless such taxpayer provides documentation which demonstrates such receipt or approval.

''(4) UNEMPLOYMENT COMPENSATION.—For purposes of this subsection, the term 'unemployment compensation' has the meaning given such term in section 1311(c)(8)(E) of the Patient Protection and Affordable Care Act.''.

(b) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after December 31, 2019.

SEC. 312. INCREASING ACCESSIBILITY AND AFFORDABILITY TO QUALIFIED HEALTH PLANS FOR INDIVIDUALS RECEIVING UNEMPLOYMENT COMPENSATION DURING THE COVID–19 EMERGENCY PERIOD.

(a) ESTABLISHMENT OF SPECIAL ENROLLMENT PERIODS FOR INDIVIDUALS RECEIVING UNEMPLOYMENT COMPENSATION.—Section 1311(c) of the Patient Protection and Affordable Care Act (42 U.S.C. 18031(c)) is amended—

(1) in paragraph (6)—

(A) in subparagraph (C), by striking at the end ''and'';

(B) in subparagraph (D), by striking the period at the end and inserting ''; and''; and

(C) by adding at the end the following new subparagraph:

''(E) special enrollment periods described in paragraph (8).''; and

(2) by adding at the end the following new paragraph:

''(8) SPECIAL ENROLLMENT PERIODS FOR INDIVIDUALS RECEIVING UNEMPLOYMENT COMPENSATION.—

''(A) IN GENERAL.—The special enrollment period described in this paragraph—

''(i) in the case of an individual who becomes eligible for unemployment compensation on any date before January 1, 2021, is the period beginning on the first day on or after such date that the individual is not eligible for minimum essential coverage (as defined in section 5000A(f) of the Internal Revenue Code of 1986) and ending on the later of—

''(I) December 31, 2020; and

''(II) the day that is 60 days after such first day; and

''(ii) in the case of an individual who becomes eligible for unemployment compensation beginning on any date that is on or after January 1,

2021, is the 60-day period beginning on the first day on or after such date that the individual is not eligible for minimum essential coverage.

''(B) SELF-ATTESTATION.—For purposes of this paragraph, eligibility of an individual for unemployment compensation and the date on which such eligibility begins shall be determined by the self-attestation of such individual.

''(C) EXCLUSION.—For purposes of this paragraph, an individual shall not be treated as eligible for minimum essential coverage if—

''(i) such individual is eligible only for coverage described in section 5000A(f)(1)(C) of the Internal Revenue Code of 1986; or

''(ii) such individual would not be treated as eligible for minimum essential coverage pursuant to section 36B(c)(2)(C) of such Code.

''(D) CLARIFICATION.—Nothing in subparagraph (A) shall be construed to prohibit an individual described in such subparagraph from qualifying for multiple special enrollment periods under such subparagraph.

''(E) UNEMPLOYMENT COMPENSATION DEFINED.—In this paragraph, the term 'unemployment compensation' means, with respect to an individual—

''(i) regular compensation and extended compensation (as such terms are defined by section 205 of the Federal-State Extended Unemployment Compensation Act of 1970);

''(ii) unemployment compensation (as defined by section 85(b) of the Internal Revenue Code of 1986) provided under any program administered by a State under an agreement with the Secretary;

''(iii) pandemic unemployment assistance under section 2102 of the CARES Act;

''(iv) pandemic emergency unemployment compensation under section 2107 of the CARES Act;

''(v) pandemic emergency unemployment extension compensation under section 2107A of the CARES Act;

''(vi) unemployment benefits under the Railroad Unemployment Insurance Act; and

''(vii) trade adjustment assistance under title II of the Trade Act of 1974;

for which such individual is eligible for any week during the period beginning on the first day of the emergency period described in section 1135(g)(1)(B) of the Social Security Act and ending on December 31, 2021.''.

(b) REQUIREMENT FOR FIRST DAY OF COVERAGE FOR INDIVIDUALS RECEIVING UNEMPLOYMENT COMPENSATION ENROLLING DURING SPECIAL ENROLLMENT PERIODS.—Section 1303 of the Patient Protection and Affordable Care Act (42 U.S.C. 18023) is amended by adding at the end the following new subsection:

''(e) REQUIREMENT FOR FIRST DAY OF COVERAGE FOR INDIVIDUALS RECEIVING UNEMPLOYMENT COMPENSATION ENROLLING DURING SPECIAL ENROLLMENT PERIODS.—

''(1) IN GENERAL.—In the case of an individual described in section 1311(c)(8)(A) who enrolls in a qualified health plan through an Exchange during a month during a special enrollment period described in such section, such coverage shall be effective beginning on—

''(A) if such individual was enrolled in minimum essential coverage (other than the qualified health plan enrolled through such a special enrollment period) on the first day of such month, the first day of such month on which the individual is longer so enrolled; and

''(B) if such individual was not enrolled in minimum essential coverage (other than the qualified health plan enrolled through such a special enrollment period) on the first day of such month, the first day of such month.

''(2) MINIMUM ESSENTIAL COVERAGE DEFINED.—In this subsection, the term 'minimum essential coverage' has the meaning given such term in section 5000A(f) of the Internal Revenue Code of 1986.''.

(c) MODEL NOTICE AND PUBLICATION OF INFORMATION RELATING TO SPECIAL ENROLLMENT PERIODS AND CREDITS FOR INDIVIDUALS RECEIVING UNEMPLOYMENT COMPENSATION.—

(1) MODEL NOTICE.—The Secretary of Health and Human Services shall make available to States a model notice (which may be sent by mail, email, or electronic means upon the receipt of unemployment compensation (as defined in subparagraph (D) of section 1311(c)(8) of the Patient Protection and Affordable Care Act, as added by subsection (a)) that includes information with respect to the eligibility of individuals described in subparagraph (A) of such section—

(A) to enroll in a qualified health plan offered through an Exchange during a special enrollment period described in section 1311(c)(8)(A) of such Act;

(B) for the premium tax credit under section 36B of the Internal Revenue Code of 1986; and

(C) for any increase to the premium tax credit an individual otherwise receives under section 36B of the Internal Revenue Code of 1986 by reason of subsection (g) of such section.

(2) PUBLICATION OF INFORMATION .—Section 1311(b) of the Patient Protection and Affordable Care Act (42 U.S.C. 18031(b)) by adding at the end the following new paragraph:

''(3) PUBLICATION OF INFORMATION RELATING TO A SPECIAL ENROLLMENT PERIOD AND CREDITS.—An Exchange shall, not later than 7 days after the date of the enactment of this paragraph, prominently post on the homepage of the Internet website for such Exchange information with respect to the special enrollment period described in subsection (c)(8)(A) and hyperlinks to information with respect to the eligibility of individuals described in such subsection—

''(A) to enroll in a qualified health plan offered through an Exchange during a special enrollment period described in such subsection;

''(B) for the premium tax credit under section 36B of the Internal Revenue Code of 1986; and

''(C) for any increase to the premium tax credit an individual otherwise receives under section 36B of the Internal Revenue Code of 1986 by reason of subsection (g) of such section.''.

SEC. 313. TEMPORARY MODIFICATION OF LIMITATIONS ON RECONCILIATION OF TAX CREDITS FOR COVERAGE UNDER A QUALIFIED HEALTH PLAN WITH ADVANCE PAYMENTS OF SUCH CREDIT.

(a) IN GENERAL.—Section 36B(f)(2)(B) of the Internal Revenue Code of 1986 is amended by adding at the end the following new clause:

''(iii) TEMPORARY MODIFICATION OF LIMITATION ON INCREASE.—In the case of any taxable year beginning in 2020 or 2021, clause (i) shall be applied—

''(I) by substituting '600 percent' for '400 percent' the first place it appears therein, and

''(II) by substituting the following table for the table contained therein:

''If the household income (expressed as a percent of poverty line) is:	The applicable dollar amount is:
Less than 500%	$0
At least 500% but less than 550%	$1,600
At least 550% but less than 600%	$2,650

The dollar amounts in the table contained under this clause shall be increased under clause (ii) for taxable years beginning calendar year 2021 by substituting 'calendar year 2020' for 'calendar year 2013' in subclause (II) thereof.''.

(b) EFFECTIVE DATE.—The amendment made by this section shall apply to taxable years beginning after December 31, 2019.

SEC. 314. REQUIREMENTS FOR COBRA NOTICES RELATING TO THE AVAILABILITY OF HEALTH INSURANCE COVERAGE AND ASSISTANCE.

(a) ADDITIONAL NOTIFICATION REQUIREMENT FOR COBRA NOTICES.—

(1) IN GENERAL.—In the case of a notice provided under section 606(a)(4) of the Employee Retirement Income Security Act of 1974 (29 U.S.C. 1166(4)), section 4980B(f)(6)(D) of the Internal Revenue Code of 1986, or section 2206(4) of the Public Health Service Act (42 U.S.C. 300bb–6(4)), with respect to an individual who, during the period described in paragraph (2), becomes entitled to elect COBRA continuation coverage, the requirements of such provisions shall not be treated as met unless such notice includes an additional written notice advising such individual, in clear and understandable language—

(A) that such individual may be eligible for—

(i) a special enrollment period described in section 1311(c)(8)(A) of the Patient Protection and Affordable Care Act; and

(ii) a premium tax credit under section 36B of the Internal Revenue Code of 1986 (including a possible increase to such credit by reason of subsection (g) of such section); and

(B) of the existence and potential effects of the temporary modification of limitations on reconciliation of such credits under section 36B(f)(2)(B)(iii) of such Code.

(2) PERIOD DESCRIBED.—For purposes of paragraph (1), the period described in this paragraph is the period that—

(A) begins 14 days after the date of the enactment of this Act; and

(B) ends 60 days after the last day of the emergency period described in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b–5(g)(1)(B)).

(3) FORM.—The requirement of the additional notification under this subsection may be met by amendment of existing notice forms or by inclusion of a separate document with the notice otherwise required.

(4) MODEL NOTICES.—Not later than 14 days after the date of enactment of this Act, with respect to any individual described in paragraph (1), the Secretary of Labor, in consultation with the Secretary of the Treasury and the Secretary of Health and Human Services, shall prescribe models for the additional notification required under this subsection. Such models shall include an estimate of the amount of the monthly premium of a silver-level qualified health plan offered through an Exchange following the application of tax credits under section 36B of the Internal Revenue Code of 1986 for the average individual eligible for the special enrollment period described in paragraph (1)(A)(i).

(b) OUTREACH BY THE SECRETARY OF LABOR.—The Secretary of Labor, in consultation with the Secretary of the Treasury and the Secretary of Health and Human Services, shall provide outreach consisting of public education and enrollment assistance relating to premium assistance, special enrollment periods, and reconciliation modifications described in subsection (a)(1). Such outreach shall target employers, group health plan administrators, public assistance programs, States, consumers, and other entities as determined appropriate by such Secretaries. Information on such premium assistance, special enrollment periods, and reconciliation modifications shall also be made available on the websites of the Departments of Labor, Treasury, and Health and Human Services.

(c) DEFINITIONS.—In this section:

(1) COBRA CONTINUATION COVERAGE.—The term ''COBRA continuation coverage'' means continuation coverage provided pursuant to

part 6 of subtitle B of title I of the Employee Retirement Income Security Act of 1974 (other than under section 609), title XXII of the Public Health Service Act, or section 4980B of the Internal Revenue Code of 1986 (other than subsection (f)(1) of such section insofar as it relates to pediatric vaccines), or under a State program that provides comparable continuation coverage. Such term does not include coverage under a health flexible spending arrangement under a cafeteria plan within the meaning of section 125 of the Internal Revenue Code of 1986.

(2) EXCHANGE.—The term ''Exchange'' means an American Health Benefit Exchange established under section 1311 of the Patient Protection and Affordable Care Act.

(3) GROUP HEALTH PLAN.—The term ''group health plan'' has the meaning given such term in section 607(1) of the Employee Retirement Income Security Act of 1974.

(4) QUALIFIED HEALTH PLAN.—The term ''qualified health plan'' has the meaning given such term in section 1301(a)(1) of the Patient Protection and Affordable Care Act.

(5) STATE.—The term ''State'' includes the District of Columbia, the Commonwealth of Puerto Rico, the Virgin Islands, Guam, American Samoa, and the Commonwealth of the Northern Mariana Islands.

(6) UNEMPLOYMENT COMPENSATION.—The term ''unemployment compensation'' means, with respect to an individual—

(A) regular compensation and extended compensation (as such terms are defined by section 205 of the Federal-State Extended Unemployment Compensation Act of 1970);

(B) unemployment compensation (as defined by section 85(b) of the Internal Revenue Code of 1986) provided under any program administered by a State under an agreement with the Secretary;

(C) pandemic unemployment assistance under section 2102 of the CARES Act;

(D) pandemic emergency unemployment compensation under section 2107 of the CARES Act;

(E) unemployment benefits under the Railroad Unemployment Insurance Act; and

(F) trade adjustment assistance under title II of the Trade Act of 1974;

for which such individual is eligible for any week during the period described in subsection (a)(2).

TITLE IV—APPLICATION TO OTHER HEALTH PROGRAMS

SEC. 401. PROHIBITION ON COPAYMENTS AND COST SHARING FOR TRICARE BENEFICIARIES RECEIVING COVID–19 TREATMENT.

(a) IN GENERAL.—Section 6006(a) of the Families First Coronavirus Response Act (Public Law 116–127; 38 U.S.C. 1074 note) is amended by striking ''or visits described in paragraph (2) of such section'' and inserting '', visits described in paragraph (2) of such section, or medical care to treat COVID–19''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall apply with respect to medical care furnished on or after the date of the enactment of this Act.

SEC. 402. PROHIBITION ON COPAYMENTS AND COST SHARING FOR VETERANS RECEIVING COVID–19 TREATMENT FURNISHED BY DEPARTMENT OF VETERANS AFFAIRS.

(a) IN GENERAL.—Section 6006(b) of the Families First Coronavirus Response Act (Public Law 116–127; 38 U.S.C. 1701 note) is amended by striking ''or visits described in paragraph (2) of such section'' and inserting '', visits described in paragraph (2) of such section, or hospital care or medical services to treat COVID–19''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall apply with respect to hospital care and medical services furnished on or after the date of the enactment of this Act.

SEC. 403. PROHIBITION ON COPAYMENTS AND COST SHARING FOR FEDERAL CIVILIAN EMPLOYEES RECEIVING COVID–19 TREATMENT.

(a) IN GENERAL.—Section 6006(c) of the Families First Coronavirus Response Act (Public Law 116–127; 5 U.S.C. 8904 note) is amended by striking ''or visits described in paragraph (2) of such section'' and inserting '', visits described in paragraph (2) of such section, or hospital care or medical services to treat COVID–19''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall apply with respect to hospital care and medical services furnished on or after the date of the enactment of this Act.

TITLE V—PUBLIC HEALTH POLICIES

SEC. 501. DEFINITIONS.

In this title:

(1) Except as inconsistent with the provisions of this title, the term ''Secretary'' means the Secretary of Health and Human Services.

(2) The term ''State'' refers to each of the 50 States and the District of Columbia.

(3) The term ''Tribal'', with respect to a department of health (or health department), includes—

(A) Indian Tribes that—

(i) are operating one or more health facilities pursuant to an agreement under the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5301 et seq.); or

(ii) receive services from a facility operated by the Indian Health Services; and

(B) Tribal organizations and Urban Indian organizations.

Subtitle A—Supply Chain Improvements

SEC. 511. MEDICAL SUPPLIES RESPONSE COORDINATOR.

(a) IN GENERAL.—The President shall appoint a Medical Supplies Response Coordinator to coordinate the efforts of the Federal Government regarding the supply and distribution of critical medical supplies and equipment related to detecting, diagnosing, preventing, and treating COVID–19, including personal protective equipment, medical devices, drugs, and vaccines.

(b) QUALIFICATIONS.—To qualify to be appointed as the Medical Supplies Response Coordinator, an individual shall be a senior government official with—

(1) health care training, including training related to infectious diseases or hazardous exposures; and

(2) a familiarity with medical supply chain logistics.

(c) ACTIVITIES.—The Medical Supplies Response Coordinator shall—

(1) consult with State, local, territorial, and Tribal officials to ensure that health care facilities and health care workers have sufficient personal protective equipment and other medical supplies;

(2) evaluate ongoing needs of States, localities, territories, Tribes, health care facilities, and health care workers to determine the need for critical medical supplies and equipment;

(3) serve as a point of contact for industry for procurement and distribution of critical medical supplies and equipment, including personal protective equipment, medical devices, testing supplies, drugs, and vaccines;

(4) procure and distribute critical medical supplies and equipment, including personal protective equipment, medical devices, testing supplies, drugs, and vaccines;

(5)(A) establish and maintain an up-to-date national database of hospital capacity, including beds, ventilators, and supplies, including personal protective equipment, medical devices, drugs, and vaccines; and

(B) provide weekly reports to the Congress on gaps in such capacity and progress made toward closing the gaps;

(6) require, as necessary, industry reporting on production and distribution of personal protective equipment, medical devices, testing supplies, drugs, and vaccines and assess financial penalties as may be specified by the Medical Supplies Response Coordinator for failure to comply with such requirements for reporting on production and distribution;

(7) consult with the Secretary and the Administrator of the Federal Emergency Management Agency, as applicable, to ensure sufficient production levels under the Defense Production Act of 1950 (50 U.S.C. 4501 et seq.); and

(8) monitor the prices of critical medical supplies and equipment, including personal protective equipment and medical devices, drugs, and vaccines related to detecting, diagnosing, preventing, and treating COVID–19 and report any suspected price gouging of such materials to the Federal Trade Commission and appropriate law enforcement officials.

SEC. 512. INFORMATION TO BE INCLUDED IN LIST OF DEVICES DETERMINED TO BE IN SHORTAGE.

Section 506J(g)(2)(A) of the Federal Food, Drug, and Cosmetic Act, as added by section 3121 of the CARES Act (Public Law 116–136), is amended by inserting '', including the device identifier or national product code for such device, if applicable'' before the period at the end.

SEC. 513. EXTENDED SHELF LIFE DATES FOR ESSENTIAL DEVICES.

(a) IN GENERAL.—The Federal Food, Drug, and Cosmetic Act is amended by inserting after section 506J (21 U.S.C. 356j) the following:

''SEC. 506K. EXTENDED SHELF LIFE DATES FOR ESSENTIAL DEVICES.

''(a) IN GENERAL.—A manufacturer of a device subject to notification requirements under section 506J (in this section referred to as an 'essential device') shall—

''(1) submit to the Secretary data and information as required by subsection (b)(1);

''(2) conduct and submit the results of any studies required under subsection (b)(3); and

''(3) make any labeling change described in subsection (c) by the date specified by the Secretary pursuant to such subsection.

''(b) NOTIFICATION.—

''(1) IN GENERAL.—The Secretary may issue an order requiring the manufacturer of any essential device to submit, in such manner as the Secretary may prescribe, data and information from any stage of development of the device (including pilot, investigational, and final product validation) that are adequate to assess the shelf life of the device to determine the longest supported expiration date.

''(2) UNAVAILABLE OR INSUFFICIENT DATA AND INFORMATION.—If the data and information referred to in paragraph (1) are not available or are insufficient, the Secretary may require the manufacturer of the device to—

''(A) conduct studies adequate to provide the data and information; and

''(B) submit to the Secretary the results, data, and information generated by such studies when available.

''(c) LABELING.—The Secretary may issue an order requiring the manufacturer of an essential device to make by a specified date any labeling change regarding the expiration period that the Secretary determines to be appropriate based on the data and information required to be submitted under this section or any other data and information available to the Secretary.

''(d) CONFIDENTIALITY.—Nothing in this section shall be construed as authorizing the Secretary to disclose any information that is a trade secret or confidential information subject to section 552(b)(4) of title 5, United States Code, or section 1905 of title 18, United States Code.''.

(b) CIVIL MONETARY PENALTY.—Section 303(f) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 333(f)) is amended by adding at the end the following:

''(10) CIVIL MONETARY PENALTY WITH RESPECT TO EXTENDED SHELF LIFE DATES FOR ESSENTIAL DEVICES.—If the manufacturer of a device subject to notification requirements under section 506J violates section 506K by failing to

submit data and information as required under section 506K(b)(1), failing to conduct or submit the results of studies as required under section 506K(b)(3), or failing to make a labeling change as required under section 506K(c), such manufacturer shall be liable to the United States for a civil penalty in an amount not to exceed $10,000 for each such violation.''.

(c) EMERGENCY USE ELIGIBLE PRODUCTS.—Subparagraph (A) of section 564A(a)(1) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 360bbb–3a(a)(1)) is amended to read as follows:

''(A) is approved or cleared under this chapter, otherwise listed as a device pursuant to section 510(j), conditionally approved under section 571, or licensed under section 351 of the Public Health Service Act;''.

SEC. 514. AUTHORITY TO DESTROY COUNTERFEIT DEVICES.

(a) IN GENERAL.—Section 801(a) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 381(a)) is amended—

(1) in the fourth sentence, by inserting ''or counterfeit device'' after ''counterfeit drug''; and

(2) by striking ''The Secretary of the Treasury shall cause the destruction of'' and all that follows through ''liable for costs pursuant to subsection (c).'' and inserting the following: ''The Secretary of the Treasury shall cause the destruction of any such article refused admission unless such article is exported, under regulations prescribed by the Secretary of the Treasury, within 90 days of the date of notice of such refusal or within such additional time as may be permitted pursuant to such regulations, except that the Secretary of Health and Human Services may destroy, without the opportunity for export, any drug or device refused admission under this section, if such drug or device is valued at an amount that is $2,500 or less (or such higher amount as the Secretary of the Treasury may set by regulation pursuant to section 498(a)(1) of the Tariff Act of 1930 (19 U.S.C. 1498(a)(1))) and was not brought into compliance as described under subsection (b). The Secretary of Health and Human Services shall issue regulations providing for notice and an opportunity to appear before the Secretary of Health and Human Services and introduce testimony, as described in the first sentence of this subsection, on destruction of a drug or device under the seventh sentence of this subsection. The regulations shall provide that prior to destruction, appropriate due process is available to the owner or consignee seeking to challenge the decision to destroy the drug or device. Where the Secretary of Health and Human Services provides notice and an opportunity to appear and introduce testimony on the destruction of a drug or device, the Secretary of Health and Human Services shall store and, as applicable, dispose of the drug or device after the issuance of the notice, except that the owner and consignee shall remain liable for costs pursuant to subsection (c).''.

(b) DEFINITION.—Section 201(h) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 321(h)) is amended—

(1) by redesignating subparagraphs (1), (2), and (3) as clauses (A), (B), and (C), respectively; and

(2) after making such redesignations—

(A) by striking ''(h) The term'' and inserting ''(h)(1) The term''; and

(B) by adding at the end the following:

''(2) The term 'counterfeit device' means a device which, or the container, packaging, or labeling of which, without authorization, bears a trademark, trade name, or other identifying mark, imprint, or symbol, or any likeness thereof, or is manufactured using a design, of a device manufacturer, packer, or distributor other than the person or persons who in fact manufactured, packed, or distributed such device and which thereby falsely purports or is represented to be the product of, or to have been packed or distributed by, such other device manufacturer, packer, or distributor.

''(3) For purposes of subparagraph (2)—

''(A) the term 'manufactured' refers to any of the following activities: manufacture, preparation, propagation, compounding, assembly, or processing; and

''(B) the term 'manufacturer' means a person who is engaged in any of the activities listed in clause (A).''.

SEC. 515. REPORTING REQUIREMENT FOR DRUG MANUFACTURERS.

(a) ESTABLISHMENTS IN A FOREIGN COUNTRY.—Section 510(i) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 360(i)) is amended by inserting at the end the following new paragraph:

''(5) The requirements of paragraphs (1) and (2) shall apply to establishments within a foreign country engaged in the manufacture, preparation, propagation, compounding, or processing of any drug, including the active pharmaceutical ingredient, that is required to be listed pursuant to subsection (j). Such requirements shall apply regardless of whether the drug or active pharmaceutical ingredient undergoes further manufacture, preparation, propagation, compounding, or processing at a separate establishment or establishments outside the United States prior to being imported or offered for import into the United States.''.

(b) LISTING OF DRUGS.—Section 510(j)(1) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 360(j)(1)) is amended—

(1) in subparagraph (D), by striking ''and'' at the end;

(2) in subparagraph (E), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following new subparagraph:

''(F) in the case of a drug contained in the applicable list, a certification that the registrant has—

''(i) identified every other establishment where manufacturing is performed for the drug; and

''(ii) notified each known foreign establishment engaged in the manufacture, preparation, propagation, compounding, or processing of the drug, including the active pharmaceutical ingredient, of the inclusion of the drug in the list and the obligation to register.''.

(c) QUARTERLY REPORTING ON AMOUNT OF DRUGS MANUFACTURED.—Section 510(j)(3)(A) of the Federal Food, Drug, and Cosmetic Act (as added by section 3112 of the CARES Act (Public Law 116–136)) is amended by striking ''annually'' and inserting ''once during the month of March of each year, once during the month of June of each year, once during the month of September of each year, and once during the month of December of each year''.

SEC. 516. RECOMMENDATIONS TO ENCOURAGE DOMESTIC MANUFACTURING OF CRITICAL DRUGS.

(a) IN GENERAL.—Not later than 14 days after the date of enactment of this Act, the Secretary shall enter into an agreement with the National Academies of Sciences, Engineering, and Medicine (referred to in this section as the ''National Academies'') under which, not later than 90 days after the date of entering into the agreement, the National Academies will—

(1) establish a committee of experts who are knowledgeable about drug and device supply issues, including—

(A) sourcing and production of critical drugs and devices;

(B) sourcing and production of active pharmaceutical ingredients in critical drugs;

(C) the raw materials and other components for critical drugs and devices; and

(D) the public health and national security implications of the current supply chain for critical drugs and devices;

(2) convene a public symposium to—

(A) analyze the impact of United States dependence on the foreign manufacturing of critical drugs and devices on patient access and care, including in hospitals and intensive care units; and

(B) recommend strategies to end United States dependence on foreign manufacturing to ensure the United States has a diverse and vital supply chain for critical drugs and devices to protect the Nation from natural or hostile occurrences; and

(3) submit a report on the symposium's proceedings to the Congress and publish a summary of such proceedings on the public website of the National Academies.

(b) SYMPOSIUM.—In carrying out the agreement under subsection (a), the National Academies shall consult with—

(1) the Department of Health and Human Services, the Department of Homeland Security, the Department of Defense, the Department of Commerce, the Department of State, the Department of Veterans Affairs, the Department of Justice, and any other Federal agencies as appropriate; and

(2) relevant stakeholders, including drug and device manufacturers, health care providers, medical professional societies, State-based societies, public health experts, State and local public health departments, State medical boards, patient groups, health care distributors, wholesalers and group purchasing organizations, pharmacists, and other entities with experience in health care and public health, as appropriate.

(c) DEFINITIONS.—For the purposes of this section:

(1) The term ''critical''—

(A) with respect to a device, refers to a device classified by the Food and Drug Administration as implantable, life-saving, and life-sustaining; or

(B) with respect to a drug, refers to a drug that is described in subsection (a) of section 506C of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 356c) (relating to notification of any discontinuance or interruption in the production of life-saving drugs).

(2) The terms ''device'' and ''drug'' have the meanings given to those terms in section 201 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 321).

SEC. 517. FAILURE TO NOTIFY OF A PERMANENT DISCONTINUANCE OR AN INTERRUPTION.

Section 301 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 331) is amended by adding at the end the following:

''(fff) The failure of a manufacturer of a drug described in section 506C(a) or an active pharmaceutical ingredient of such a drug, without a reasonable basis as determined by the Secretary, to notify the Secretary of a permanent discontinuance or an interruption, and the reasons for such discontinuance or interruption, as required by section 506C.''.

SEC. 518. FAILURE TO DEVELOP RISK MANAGEMENT PLAN.

Section 301 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 331), as amended by section 517, is further amended by adding at the end the following:

''(ggg) The failure to develop, maintain, and implement a risk management plan, as required by section 506C(j).''.

SEC. 519. NATIONAL CENTERS OF EXCELLENCE IN CONTINUOUS PHARMACEUTICAL MANUFACTURING.

(a) IN GENERAL.—Section 3016 of the 21st Century Cures Act (21 U.S.C. 399h) is amended to read as follows:

''SEC. 3016. NATIONAL CENTERS OF EXCELLENCE IN CONTINUOUS PHARMACEUTICAL MANUFACTURING.

''(a) IN GENERAL.—The Secretary of Health and Human Services, acting through the Commissioner of Food and Drugs—

''(1) shall solicit and, beginning not later than 1 year after the date of enactment of the Investing in America's Health Care During the COVID–19 Pandemic Act receive requests from institutions of higher education to be designated as a National Center of Excellence in Continuous Pharmaceutical Manufacturing (in this

section referred to as a 'National Center of Excellence') to support the advancement and development of continuous manufacturing; and

''(2) shall so designate any institution of higher education that—

''(A) requests such designation; and

''(B) meets the criteria specified in subsection (c).

''(b) REQUEST FOR DESIGNATION.—A request for designation under subsection (a) shall be made to the Secretary at such time, in such manner, and containing such information as the Secretary may require. Any such request shall include a description of how the institution of higher education meets or plans to meet each of the criteria specified in subsection (c).

''(c) CRITERIA FOR DESIGNATION DESCRIBED.—The criteria specified in this subsection with respect to an institution of higher education are that the institution has, as of the date of the submission of a request under subsection (a) by such institution—

''(1) physical and technical capacity for research and development of continuous manufacturing;

''(2) manufacturing knowledge-sharing networks with other institutions of higher education, large and small pharmaceutical manufacturers, generic and nonprescription manufacturers, contract manufacturers, and other entities;

''(3) proven capacity to design and demonstrate new, highly effective technology for use in continuous manufacturing;

''(4) a track record for creating and transferring knowledge with respect to continuous manufacturing;

''(5) the potential to train a future workforce for research on and implementation of advanced manufacturing and continuous manufacturing; and

''(6) experience in participating in and leading a continuous manufacturing technology partnership with other institutions of higher education, large and small pharmaceutical manufacturers (including generic and nonprescription drug manufacturers), contract manufacturers, and other entities—

''(A) to support companies with continuous manufacturing in the United States;

''(B) to support Federal agencies with technical assistance, which may include regulatory and quality metric guidance as applicable, for advanced manufacturing and continuous manufacturing;

''(C) with respect to continuous manufacturing, to organize and conduct research and development activities needed to create new and more effective technology, capture and disseminate expertise, create intellectual property, and maintain technological leadership;

''(D) to develop best practices for designing continuous manufacturing; and

''(E) to assess and respond to the workforce needs for continuous manufacturing, including the development of training programs if needed.

''(d) TERMINATION OF DESIGNATION.—The Secretary may terminate the designation of any National Center of Excellence designated under this section if the Secretary determines such National Center of Excellence no longer meets the criteria specified in subsection (c). Not later than 60 days before the effective date of such a termination, the Secretary shall provide written notice to the National Center of Excellence, including the rationale for such termination.

''(e) CONDITIONS FOR DESIGNATION.—As a condition of designation as a National Center of Excellence under this section, the Secretary shall require that an institution of higher education enter into an agreement with the Secretary under which the institution agrees—

''(1) to collaborate directly with the Food and Drug Administration to publish the reports required by subsection (g);

''(2) to share data with the Food and Drug Administration regarding best practices and research generated through the funding under subsection (f);

''(3) to develop, along with industry partners (which may include large and small biopharmaceutical manufacturers, generic and nonprescription manufacturers, and contract manufacturers) and another institution or institutions designated under this section, if any, a roadmap for developing a continuous manufacturing workforce;

''(4) to develop, along with industry partners and other institutions designated under this section, a roadmap for strengthening existing, and developing new, relationships with other institutions; and

''(5) to provide an annual report to the Food and Drug Administration regarding the institution's activities under this section, including a description of how the institution continues to meet and make progress on the criteria listed in subsection (c).

''(f) FUNDING.—

''(1) IN GENERAL.—The Secretary shall award funding, through grants, contracts, or cooperative agreements, to the National Centers of Excellence designated under this section for the purpose of studying and recommending improvements to continuous manufacturing, including such improvements as may enable the Centers—

''(A) to continue to meet the conditions specified in subsection (e); and

''(B) to expand capacity for research on, and development of, continuing manufacturing.

''(2) CONSISTENCY WITH FDA MISSION.—As a condition on receipt of funding under this subsection, a National Center of Excellence shall agree to consider any input from the Secretary regarding the use of funding that would—

''(A) help to further the advancement of continuous manufacturing through the National Center of Excellence; and

''(B) be relevant to the mission of the Food and Drug Administration.

''(3) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this subsection $100,000,000, to remain available until expended.

''(4) RULE OF CONSTRUCTION.—Nothing in this section shall be construed as precluding a National Center for Excellence designated under this section from receiving funds under any other provision of this Act or any other Federal law.

''(g) ANNUAL REVIEW AND REPORTS.—

''(1) ANNUAL REPORT.—Beginning not later than 1 year after the date on which the first designation is made under subsection (a), and annually thereafter, the Secretary shall—

''(A) submit to Congress a report describing the activities, partnerships and collaborations, Federal policy recommendations, previous and continuing funding, and findings of, and any other applicable information from, the National Centers of Excellence designated under this section; and

''(B) make such report available to the public in an easily accessible electronic format on the website of the Food and Drug Administration.

''(2) REVIEW OF NATIONAL CENTERS OF EXCELLENCE AND POTENTIAL DESIGNEES.—The Secretary shall periodically review the National Centers of Excellence designated under this section to ensure that such National Centers of Excellence continue to meet the criteria for designation under this section.

''(3) REPORT ON LONG-TERM VISION OF FDA ROLE.—Not later than 2 years after the date on which the first designation is made under subsection (a), the Secretary, in consultation with the National Centers of Excellence designated under this section, shall submit a report to the Congress on the long-term vision of the Department of Health and Human Services on the role of the Food and Drug Administration in supporting continuous manufacturing, including—

''(A) a national framework of principles related to the implementation and regulation of continuous manufacturing;

''(B) a plan for the development of Federal regulations and guidance for how advanced manufacturing and continuous manufacturing can be incorporated into the development of pharmaceuticals and regulatory responsibilities of the Food and Drug Administration; and

''(C) appropriate feedback solicited from the public, which may include other institutions, large and small biopharmaceutical manufacturers, generic and nonprescription manufacturers, and contract manufacturers.

''(h) DEFINITIONS.—In this section:

''(1) ADVANCED MANUFACTURING.—The term 'advanced manufacturing' means an approach for the manufacturing of pharmaceuticals that incorporates novel technology, or uses an established technique or technology in a new or innovative way (such as continuous manufacturing where the input materials are continuously transformed within the process by two or more unit operations) that enhances drug quality or improves the manufacturing process.

''(2) CONTINUOUS MANUFACTURING.—The term 'continuous manufacturing'—

''(A) means a process where the input materials are continuously fed into and transformed within the process, and the processed output materials are continuously removed from the system; and

''(B) consists of an integrated process that consists of a series of two or more unit operations.

''(3) INSTITUTION OF HIGHER EDUCATION.—The term 'institution of higher education' has the meaning given such term in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a)).

''(4) SECRETARY.—The term 'Secretary' means the Secretary of Health and Human Services, acting through the Commissioner of Food and Drugs.''.

(b) TRANSITION RULE.—Section 3016 of the 21st Century Cures Act (21 U.S.C. 399h), as in effect on the day before the date of the enactment of this section, shall apply with respect to grants awarded under such section before such date of enactment.

Subtitle B—Strategic National Stockpile Improvements

SEC. 531. EQUIPMENT MAINTENANCE.

Section 319F–2 of the Public Health Service Act (42 U.S.C. 247d–6b) is amended—

(1) in subsection (a)(3)—

(A) in subparagraph (I), by striking ''; and'' and inserting a semicolon;

(B) in subparagraph (J), by striking the period at the end and inserting a semicolon; and

(C) by inserting the following new subparagraph at the end:

''(K) ensure the contents of the stockpile remain in good working order and, as appropriate, conduct maintenance services on such contents; and''; and

(2) in subsection (c)(7)(B), by adding at the end the following new clause:

''(ix) EQUIPMENT MAINTENANCE SERVICE.—In carrying out this section, the Secretary may enter into contracts for the procurement of equipment maintenance services.''.

SEC. 532. SUPPLY CHAIN FLEXIBILITY MANUFACTURING PILOT.

(a) IN GENERAL.—Section 319F–2(a)(3) of the Public Health Service Act (42 U.S.C. 247d–6b(a)(3)), as amended by section 531, is further amended by adding at the end the following new subparagraph:

''(L) enhance medical supply chain elasticity and establish and maintain domestic reserves of critical medical supplies (including personal protective equipment, ancillary medical supplies, and other applicable supplies required for the administration of drugs, vaccines and other biological products, and other medical devices (including diagnostic tests)) by—

''(i) increasing emergency stock of critical medical supplies;

''(ii) geographically diversifying production of such medical supplies;

''(iii) purchasing, leasing, or entering into joint ventures with respect to facilities and

equipment for the production of such medical supplies; and

''(iv) working with distributors of such medical supplies to manage the domestic reserves established under this subparagraph by refreshing and replenishing stock of such medical supplies.''.

(b) REPORTING; SUNSET.—Section 319F–2(a) of the Public Health Service Act (42 U.S.C. 247d–6b(a)) is amended by adding at the end the following:

''(6) REPORTING.—Not later than September 30, 2022, the Secretary shall submit to the Committee on Energy and Commerce of the House of Representatives and the Committee on Health, Education, Labor and Pensions of the Senate a report on the details of each purchase, lease, or joint venture entered into under paragraph (3)(L), including the amount expended by the Secretary on each such purchase, lease, or joint venture.

''(7) SUNSET.—The authority to make purchases, leases, or joint ventures pursuant to paragraph (3)(L) shall cease to be effective on September 30, 2023.''.

(c) FUNDING.—Section 319F–2(f) of the Public Health Service Act (42 U.S.C. 247d–6b(f)) is amended by adding at the end the following:

''(3) SUPPLY CHAIN ELASTICITY.—

''(A) IN GENERAL.—For the purpose of carrying out subsection (a)(3)(L), there is authorized to be appropriated $500,000,000 for each of fiscal years 2020 through 2023, to remain available until expended.

''(B) RELATION TO OTHER AMOUNTS.—The amount authorized to be appropriated by subparagraph (A) for the purpose of carrying out subsection (a)(3)(L) is in addition to any other amounts available for such purpose.''.

SEC. 533. REIMBURSABLE TRANSFERS FROM STRATEGIC NATIONAL STOCKPILE.

Section 319F–2(a) of the Public Health Service Act (42 U.S.C. 247d–6b(a)), as amended, is further amended by adding at the end the following:

''(8) TRANSFERS AND REIMBURSEMENTS.—

''(A) IN GENERAL.—Without regard to chapter 5 of title 40, United States Code, the Secretary may transfer to any Federal department or agency, on a reimbursable basis, any drugs, vaccines and other biological products, medical devices, and other supplies in the stockpile if—

''(i) the transferred supplies are less than 6 months from expiry;

''(ii) the stockpile is able to replenish the supplies, as appropriate; and

''(iii) the Secretary decides the transfer is in the best interest of the United States Government.

''(B) USE OF REIMBURSEMENT.—Reimbursement derived from the transfer of supplies pursuant to subparagraph (A) may be used by the Secretary, without further appropriation and without fiscal year limitation, to carry out this section.

''(C) REPORT.—Not later than September 30, 2022, the Secretary shall submit to the Committee on Energy and Commerce of the House of Representatives and the Committee on Health, Education, Labor and Pensions of the Senate a report on each transfer made under this paragraph and the amount received by the Secretary in exchange for that transfer.

''(D) SUNSET.—The authority to make transfers under this paragraph shall cease to be effective on September 30, 2023.''.

SEC. 534. STRATEGIC NATIONAL STOCKPILE ACTION REPORTING.

(a) IN GENERAL.—The Assistant Secretary for Preparedness and Response (in this section referred to as the ''Assistant Secretary''), in coordination with the Administrator of the Federal Emergency Management Agency, shall—

(1) not later than 30 days after the date of enactment of this Act, issue a report to the Committee on Energy and Commerce of the House of Representatives and the Committee on Health, Education, Labor and Pensions of the Senate regarding all State, local, Tribal, and territorial requests for supplies from the Strategic National Stockpile related to COVID–19; and

(2) not less than every 30 days thereafter through the end of the emergency period (as such term is defined in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b–5(g)(1)(B))), submit to such committees an updated version of such report.

(b) REPORTING PERIOD.—

(1) INITIAL REPORT.—The initial report under subsection (a) shall address all requests described in such subsection made during the period—

(A) beginning on January 31, 2020; and

(B) ending on the date that is 30 days before the date of submission of the report.

(2) UPDATES.—Each update to the report under subsection (a) shall address all requests described in such subsection made during the period—

(A) beginning at the end of the previous reporting period under this section; and

(B) ending on the date that is 30 days before the date of submission of the updated report.

(c) CONTENTS OF REPORT.—The report under subsection (a) (and updates thereto) shall include—

(1) the details of each request described in such subsection, including—

(A) the specific medical countermeasures, including devices such as personal protective equipment, and other materials requested; and

(B) the amount of such materials requested; and

(2) the outcomes of each request described in subsection (a), including—

(A) whether the request was wholly fulfilled, partially fulfilled, or denied;

(B) if the request was wholly or partially fulfilled, the fulfillment amount; and

(C) if the request was partially fulfilled or denied, a rationale for such outcome.

SEC. 535. IMPROVED, TRANSPARENT PROCESSES FOR THE STRATEGIC NATIONAL STOCKPILE.

(a) IN GENERAL.—Not later than January 1, 2021, the Secretary, in collaboration with the Assistant Secretary for Preparedness and Response and the Director of the Centers for Disease Control and Prevention, shall develop and implement improved, transparent processes for the use and distribution of drugs, vaccines and other biological products, medical devices, and other supplies (including personal protective equipment, ancillary medical supplies, and other applicable supplies required for the administration of drugs, vaccines and other biological products, diagnostic tests, and other medical devices) in the Strategic National Stockpile under section 319F–2 of the Public Health Service Act (42 U.S.C. 247d–6b) (in this section referred to as the ''Stockpile'').

(b) PROCESSES.—The processes developed under subsection (a) shall include—

(1) the form and manner in which States, localities, Tribes, and territories are required to submit requests for supplies from the Stockpile;

(2) the criteria used by the Secretary in responding to such requests, including the reasons for fulfilling or denying such requests;

(3) what circumstances result in prioritization of distribution of supplies from the Stockpile to States, localities, Tribes, or territories;

(4) clear plans for future, urgent communication between the Secretary and States, localities, Tribes, and territories regarding the outcome of such requests; and

(5) any differences in the processes developed under subsection (a) for geographically related emergencies, such as weather events, and national emergencies, such as pandemics.

(c) REPORT TO CONGRESS.—Not later than January 1, 2021, the Secretary shall—

(1) submit a report to the Committee Energy and Commerce of the House of Representatives and the Committee on Health, Education, Labor and Pensions of the Senate regarding the improved, transparent processes developed under this section; and

(2) include in such report recommendations for opportunities for communication (by telebriefing, phone calls, or in-person meetings) between the Secretary and States, localities, Tribes, and territories regarding such improved, transparent processes.

SEC. 536. GAO STUDY ON THE FEASIBILITY AND BENEFITS OF A STRATEGIC NATIONAL STOCKPILE USER FEE AGREEMENT.

(a) IN GENERAL.— The Comptroller General of the United States shall conduct a study to investigate the feasibility of establishing user fees to offset certain Federal costs attributable to the procurement of single-source materials for the Strategic National Stockpile under section 319F–2 of the Public Health Service Act (42 U.S.C. 247d–6b) and distributions of such materials from the Stockpile. In conducting this study, the Comptroller General shall consider, to the extent information is available—

(1) whether entities receiving such distributions generate profits from those distributions;

(2) any Federal costs attributable to such distributions;

(3) whether such user fees would provide the Secretary with funding to potentially offset procurement costs of such materials for the Strategic National Stockpile; and

(4) any other issues the Comptroller General identifies as relevant.

(b) REPORT.—Not later than February 1, 2023, the Comptroller General of the United States shall submit to the Congress a report on the findings and conclusions of the study under subsection (a).

Subtitle C—Testing and Testing Infrastructure Improvements

SEC. 541. COVID–19 TESTING STRATEGY.

(a) STRATEGY.—Not later than 30 days after the date of the enactment of this Act, the Secretary shall update the COVID–19 strategic testing plan under the heading ''Department of Health and Human Services—Office of the Secretary—Public Health and Social Service Emergency Fund'' in title I of division B of the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139, 134 Stat. 620, 626–627) and submit to the appropriate congressional committees such updated national plan identifying—

(1) what level of, types of, and approaches to testing (including predicted numbers of tests, populations to be tested, and frequency of testing and the appropriate setting whether a health care setting (such as hospital-based, high-complexity laboratory, point-of-care, mobile testing units, pharmacies or community health centers) or non-health care setting (such as workplaces, schools, or child care centers)) are necessary—

(A) to sufficiently monitor and contribute to the control of the transmission of SARS–CoV–2 in the United States;

(B) to ensure that any reduction in social distancing efforts, when determined appropriate by public health officials, can be undertaken in a manner that optimizes the health and safety of the people of the United States, and reduces disparities (including disparities related to race, ethnicity, sex, age, disability status, socioeconomic status, and geographic location) in the prevalence of, incidence of, and health outcomes with respect to, COVID–19; and

(C) to provide for ongoing surveillance sufficient to support contact tracing, case identification, quarantine, and isolation to prevent future outbreaks of COVID–19;

(2) specific plans and benchmarks, each with clear timelines, to ensure—

(A) such level of, types of, and approaches to testing as are described in paragraph (1), with respect to optimizing health and safety;

(B) sufficient availability of all necessary testing materials and supplies, including extraction

and testing kits, reagents, transport media, swabs, instruments, analysis equipment, personal protective equipment if necessary for testing (including point-of-care testing), and other equipment;

(C) allocation of testing materials and supplies in a manner that optimizes public health, including by considering the variable impact of SARS–CoV–2 on specific States, territories, Indian Tribes, Tribal organizations, urban Indian organizations, communities, industries, and professions;

(D) sufficient evidence of validation for tests that are deployed as a part of such strategy;

(E) sufficient laboratory and analytical capacity, including target turnaround time for test results;

(F) sufficient personnel, including personnel to collect testing samples, conduct and analyze results, and conduct testing follow-up, including contact tracing, as appropriate; and

(G) enforcement of the Families First Coronavirus Response Act (Public Law 116–127) to ensure patients who are tested are not subject to cost sharing;

(3) specific plans to ensure adequate testing in rural areas, frontier areas, health professional shortage areas, and medically underserved areas (as defined in section 330I(a) of the Public Health Service Act (42 U.S.C. 254c–14(a))), and for underserved populations, Native Americans (including Indian Tribes, Tribal organizations, and urban Indian organizations), and populations at increased risk related to COVID–19;

(4) specific plans to ensure accessibility of testing to people with disabilities, older individuals, and individuals with underlying health conditions or weakened immune systems; and

(5) specific plans for broadly developing and implementing testing for potential immunity in the United States, as appropriate, in a manner sufficient—

(A) to monitor and contribute to the control of SARS–CoV–2 in the United States;

(B) to ensure that any reduction in social distancing efforts, when determined appropriate by public health officials, can be undertaken in a manner that optimizes the health and safety of the people of the United States; and

(C) to reduce disparities (including disparities related to race, ethnicity, sex, age, disability status, socioeconomic status, and geographic location) in the prevalence of, incidence of, and health outcomes with respect to, COVID–19.

(b) COORDINATION.—The Secretary shall carry out this section—

(1) in coordination with the Administrator of the Federal Emergency Management Agency;

(2) in collaboration with other agencies and departments, as appropriate; and

(3) taking into consideration the State plans for COVID–19 testing prepared as required under the heading ''Department of Health and Human Services—Office of the Secretary—Public Health and Social Service Emergency Fund'' in title I of division B of the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139; 134 Stat. 620, 624).

(c) UPDATES.—

(1) FREQUENCY.—The updated national plan under subsection (a) shall be updated every 30 days until the end of the public health emergency first declared by the Secretary under section 319 of the Public Health Service Act (42 U.S.C. 247d) on January 31, 2020, with respect to COVID–19.

(2) RELATION TO OTHER LAW.—Paragraph (1) applies in lieu of the requirement (for updates every 90 days until funds are expended) in the second to last proviso under the heading ''Department of Health and Human Services—Office of the Secretary—Public Health and Social Service Emergency Fund'' in title I of division B of the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139; 134 Stat. 620, 627).

(d) APPROPRIATE CONGRESSIONAL COMMITTEES.—In this section, the term ''appropriate congressional committees'' means—

(1) the Committee on Appropriations and the Committee on Energy and Commerce of the House of Representatives; and

(2) the Committee on Appropriations and the Committee on Health, Education, Labor and Pensions and of the Senate.

SEC. 542. CENTRALIZED TESTING INFORMATION WEBSITE.

The Secretary shall establish and maintain a public, searchable webpage, to be updated and corrected as necessary through a process established by the Secretary, on the website of the Department of Health and Human Services that—

(1) identifies all in vitro diagnostic and serological tests used in the United States to analyze clinical specimens for detection of SARS–CoV–2 or antibodies specific to SARS–CoV–2, including—

(A) those tests—

(i) that are approved, cleared, or authorized under section 510(k), 513, 515, or 564 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 360(k), 360c, 360e, 360bbb–3);

(ii) that have been validated by the test's developers for use on clinical specimens and for which the developer has notified the Food and Drug Administration of the developer's intent to market the test consistent with applicable guidance issued by the Secretary; or

(iii) that have been developed and authorized by a State that has notified the Secretary of the State's intention to review tests intended to diagnose COVID–19; and

(B) other SARS–CoV–2-related tests that the Secretary determines appropriate in guidance, which may include tests related to the monitoring of COVID–19 patient status;

(2) provides relevant information, as determined by the Secretary, on each test identified pursuant to paragraph (1), which may include—

(A) the name and contact information of the developer of the test;

(B) the date of receipt of notification by the Food and Drug Administration of the developer's intent to market the test;

(C) the date of authorization for use of the test on clinical specimens, where applicable;

(D) the letter of authorization for use of the test on clinical specimens, where applicable;

(E) any fact sheets, manufacturer instructions, and package inserts for the test, including information on intended use;

(F) sensitivity and specificity of the test; and

(G) in the case of tests distributed by commercial manufacturers, the number of tests distributed and, if available, the number of laboratories in the United States with the required platforms installed to perform the test; and

(3) includes—

(A) a list of laboratories certified under section 353 of the Public Health Service Act (42 U.S.C. 263a; commonly referred to as ''CLIA'') that—

(i) meet the regulatory requirements under such section to perform high- or moderate-complexity testing; and

(ii) are authorized to perform SARS–CoV–2 diagnostic or serological tests on clinical specimens; and

(B) information on each laboratory identified pursuant to subparagraph (A), including—

(i) the name and address of the laboratory;

(ii) the CLIA certificate number;

(iii) the laboratory type;

(iv) the certificate type; and

(v) the complexity level.

SEC. 543. MANUFACTURER REPORTING OF TEST DISTRIBUTION.

(a) IN GENERAL.—A commercial manufacturer of an in vitro diagnostic or serological COVID–19 test shall, on a weekly basis, submit a notification to the Secretary regarding distribution of each such test, which notification—

(1) shall include the number of tests distributed and the entities to which the tests are distributed; and

(2) may include the quantity of such tests distributed by the manufacturer.

(b) CONFIDENTIALITY.—Nothing in this section shall be construed as authorizing the Secretary to disclose any information that is a trade secret or confidential information subject to section 552(b)(4) of title 5, United States Code, or section 1905 of title 18, United States Code.

(c) FAILURE TO MEET REQUIREMENTS.—If a manufacturer fails to submit a notification as required under subsection (a), the following applies:

(1) The Secretary shall issue a letter to such manufacturer informing such manufacturer of such failure.

(2) Not later than 7 calendar days after the issuance of a letter under paragraph (1), the manufacturer to whom such letter is issued shall submit to the Secretary a written response to such letter—

(A) setting forth the basis for noncompliance; and

(B) providing information as required under subsection (a).

(3) Not later than 14 calendar days after the issuance of a letter under paragraph (1), the Secretary shall make such letter and any response to such letter under paragraph (2) available to the public on the internet website of the Food and Drug Administration, with appropriate redactions made to protect information described in subsection (b). The preceding sentence shall not apply if the Secretary determines that—

(A) the letter under paragraph (1) was issued in error; or

(B) after review of such response, the manufacturer had a reasonable basis for not notifying as required under subsection (a).

SEC. 544. STATE TESTING REPORT.

For any State that authorizes (or intends to authorize) one or more laboratories in the State to develop and perform in vitro diagnostic COVID–19 tests, the head of the department or agency of such State with primary responsibility for health shall—

(1) notify the Secretary of such authorization (or intention to authorize); and

(2) provide the Secretary with a weekly report—

(A) identifying all laboratories authorized (or intended to be authorized) by the State to develop and perform in vitro diagnostic COVID–19 tests;

(B) including relevant information on all laboratories identified pursuant to subparagraph (A), which may include information on laboratory testing capacity;

(C) identifying all in vitro diagnostic COVID–19 tests developed and approved for clinical use in laboratories identified pursuant to subparagraph (A); and

(D) including relevant information on all tests identified pursuant to subparagraph (C), which may include—

(i) the name and contact information of the developer of any such test;

(ii) any fact sheets, manufacturer instructions, and package inserts for any such test, including information on intended use; and

(iii) the sensitivity and specificity of any such test.

SEC. 545. STATE LISTING OF TESTING SITES.

Not later than 14 days after the date of enactment of this Act, any State receiving funding or assistance under this Act, as a condition on such receipt, shall establish and maintain a public, searchable webpage on the official website of the State that—

(1) identifies all sites located in the State that provide diagnostic or serological testing for SARS–CoV–2; and

(2) provides appropriate contact information for SARS–CoV–2 testing sites pursuant to paragraph (1).

SEC. 546. REPORTING OF COVID–19 TESTING RESULTS.

(a) IN GENERAL.—Every laboratory that performs or analyzes a test that is intended to detect SARS–CoV–2 or to diagnose a possible case

of COVID–19 shall report daily the number of tests performed and the results from each such test to the Secretary of Health and Human Services and to the Secretary of Homeland Security, in such form and manner as such Secretaries may prescribe. Such information shall be made available to the public in a searchable, electronic format as soon as is practicable, and in no case later than one week after such information is received.

(b) ADDITIONAL REPORTING REQUIREMENTS.—The Secretaries specified in subsection (a)—

(1) may specify additional reporting requirements under this section by regulation, including by interim final rule, or by guidance; and

(2) may issue such regulations or guidance without regard to the procedures otherwise required by section 553 of title 5, United States Code.

SEC. 547. GAO REPORT ON DIAGNOSTIC TESTS.

(a) GAO STUDY.—Not later than 18 months after the date of enactment of this Act, the Comptroller General of the United States shall submit to the Committee on Energy and Commerce of the House of Representatives and the Committee on Health, Education, Labor and Pensions of the Senate a report describing the response of entities described in subsection (b) to the COVID–19 pandemic with respect to the development, regulatory evaluation, and deployment of diagnostic tests.

(b) ENTITIES DESCRIBED.—Entities described in this subsection include—

(1) laboratories, including public health, academic, clinical, and commercial laboratories;

(2) diagnostic test manufacturers;

(3) State, local, Tribal, and territorial governments; and

(4) the Food and Drug Administration, the Centers for Disease Control and Prevention, the Centers for Medicare & Medicaid Services, the National Institutes of Health, and other relevant Federal agencies, as appropriate.

(c) CONTENTS.—The report under subsection (a) shall include—

(1) a description of actions taken by entities described in subsection (b) to develop, evaluate, and deploy diagnostic tests;

(2) an assessment of the coordination of Federal agencies in the development, regulatory evaluation, and deployment of diagnostic tests;

(3) an assessment of the standards used by the Food and Drug Administration to evaluate diagnostic tests;

(4) an assessment of the clarity of Federal agency guidance related to testing, including the ability for individuals without medical training to understand which diagnostic tests had been evaluated by the Food and Drug Administration;

(5) a description of—

(A) actions taken and clinical processes employed by States and territories that have authorized laboratories to develop and perform diagnostic tests not authorized, approved, or cleared by the Food and Drug Administration, including actions of such States and territories to evaluate the accuracy and sensitivity of such tests; and

(B) the standards used by States and territories when deciding when to authorize laboratories to develop or perform diagnostic tests;

(6) an assessment of the steps taken by laboratories and diagnostic test manufacturers to validate diagnostic tests, as well as the evidence collected by such entities to support validation; and

(7) based on available reports, an assessment of the accuracy and sensitivity of a representative sample of available diagnostic tests.

(d) DEFINITION.—In this section, the term ''diagnostic test'' means an in vitro diagnostic product (as defined in section 809.3(a) of title 21, Code of Federal Regulations) for—

(1) the detection of SARS–CoV–2;

(2) the diagnosis of the virus that causes COVID–19; or

(3) the detection of antibodies specific to SARS–CoV–2, such as a serological test.

SEC. 548. PUBLIC HEALTH DATA SYSTEM TRANSFORMATION.

Subtitle C of title XXVIII of the Public Health Service Act (42 U.S.C. 300hh–31 et seq.) is amended by adding at the end the following:

''SEC. 2823. PUBLIC HEALTH DATA SYSTEM TRANSFORMATION.

''(a) EXPANDING CDC AND PUBLIC HEALTH DEPARTMENT CAPABILITIES.—

''(1) IN GENERAL.—The Secretary, acting through the Director of the Centers for Disease Control and Prevention, shall—

''(A) conduct activities to expand, enhance, and improve applicable public health data systems used by the Centers for Disease Control and Prevention, related to the interoperability and improvement of such systems (including as it relates to preparedness for, prevention and detection of, and response to public health emergencies); and

''(B) award grants or cooperative agreements to State, local, Tribal, or territorial public health departments for the expansion and modernization of public health data systems, to assist public health departments in—

''(i) assessing current data infrastructure capabilities and gaps to improve and increase consistency in data collection, storage, and analysis and, as appropriate, to improve dissemination of public health-related information;

''(ii) improving secure public health data collection, transmission, exchange, maintenance, and analysis;

''(iii) improving the secure exchange of data between the Centers for Disease Control and Prevention, State, local, Tribal, and territorial public health departments, public health organizations, and health care providers, including by public health officials in multiple jurisdictions within such State, as appropriate, and by simplifying and supporting reporting by health care providers, as applicable, pursuant to State law, including through the use of health information technology;

''(iv) enhancing the interoperability of public health data systems (including systems created or accessed by public health departments) with health information technology, including with health information technology certified under section 3001(c)(5);

''(v) supporting and training data systems, data science, and informatics personnel;

''(vi) supporting earlier disease and health condition detection, such as through near real-time data monitoring, to support rapid public health responses;

''(vii) supporting activities within the applicable jurisdiction related to the expansion and modernization of electronic case reporting; and

''(viii) developing and disseminating information related to the use and importance of public health data.

''(2) DATA STANDARDS.—In carrying out paragraph (1), the Secretary, acting through the Director of the Centers for Disease Control and Prevention, shall, as appropriate and in consultation with the Office of the National Coordinator for Health Information Technology, designate data and technology standards (including standards for interoperability) for public health data systems, with deference given to standards published by consensus-based standards development organizations with public input and voluntary consensus-based standards bodies.

''(3) PUBLIC-PRIVATE PARTNERSHIPS.—The Secretary may develop and utilize public-private partnerships for technical assistance, training, and related implementation support for State, local, Tribal, and territorial public health departments, and the Centers for Disease Control and Prevention, on the expansion and modernization of electronic case reporting and public health data systems, as applicable.

''(b) REQUIREMENTS.—

''(1) HEALTH INFORMATION TECHNOLOGY STANDARDS.—The Secretary may not award a grant or cooperative agreement under subsection (a)(1)(B) unless the applicant uses or agrees to use standards endorsed by the National Coordinator for Health Information Technology pursuant to section 3001(c)(1) or adopted by the Secretary under section 3004.

''(2) WAIVER.—The Secretary may waive the requirement under paragraph (1) with respect to an applicant if the Secretary determines that the activities under subsection (a)(1)(B) cannot otherwise be carried out within the applicable jurisdiction.

''(3) APPLICATION.—A State, local, Tribal, or territorial health department applying for a grant or cooperative agreement under this section shall submit an application to the Secretary at such time and in such manner as the Secretary may require. Such application shall include information describing—

''(A) the activities that will be supported by the grant or cooperative agreement; and

''(B) how the modernization of the public health data systems involved will support or impact the public health infrastructure of the health department, including a description of remaining gaps, if any, and the actions needed to address such gaps.

''(c) STRATEGY AND IMPLEMENTATION PLAN.—Not later than 180 days after the date of enactment of this section, the Secretary, acting through the Director of the Centers for Disease Control and Prevention, shall submit to the Committee on Health, Education, Labor and Pensions of the Senate and the Committee on Energy and Commerce of the House of Representatives a coordinated strategy and an accompanying implementation plan that identifies and demonstrates the measures the Secretary will utilize to—

''(1) update and improve applicable public health data systems used by the Centers for Disease Control and Prevention; and

''(2) carry out the activities described in this section to support the improvement of State, local, Tribal, and territorial public health data systems.

''(d) CONSULTATION.—The Secretary, acting through the Director of the Centers for Disease Control and Prevention, shall consult with State, local, Tribal, and territorial health departments, professional medical and public health associations, associations representing hospitals or other health care entities, health information technology experts, and other appropriate public or private entities regarding the plan and grant program to modernize public health data systems pursuant to this section. Activities under this subsection may include the provision of technical assistance and training related to the exchange of information by such public health data systems used by relevant health care and public health entities at the local, State, Federal, Tribal, and territorial levels, and the development and utilization of public-private partnerships for implementation support applicable to this section.

''(e) REPORT TO CONGRESS.—Not later than 1 year after the date of enactment of this section, the Secretary shall submit a report to the Committee on Health, Education, Labor and Pensions of the Senate and the Committee on Energy and Commerce of the House of Representatives that includes—

''(1) a description of any barriers to—

''(A) public health authorities implementing interoperable public health data systems and electronic case reporting;

''(B) the exchange of information pursuant to electronic case reporting; or

''(C) reporting by health care providers using such public health data systems, as appropriate, and pursuant to State law;

''(2) an assessment of the potential public health impact of implementing electronic case reporting and interoperable public health data systems; and

''(3) a description of the activities carried out pursuant to this section.

''(f) ELECTRONIC CASE REPORTING.—In this section, the term 'electronic case reporting' means the automated identification, generation, and bilateral exchange of reports of health events among electronic health record or health information technology systems and public health authorities.

''(g) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there are authorized to be appropriated $450,000,000 to remain available until expended.''.

SEC. 549. PILOT PROGRAM TO IMPROVE LABORATORY INFRASTRUCTURE.

(a) IN GENERAL.—The Secretary shall award grants to States and political subdivisions of States to support the improvement, renovation, or modernization of infrastructure at clinical laboratories (as defined in section 353 of the Public Health Service Act (42 U.S.C. 263a)) that will help to improve SARS–CoV–2 and COVID–19 testing and response activities, including the expansion and enhancement of testing capacity at such laboratories.

(b) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there is authorized to be appropriated $1,000,000,000 to remain available until expended.

SEC. 550. CORE PUBLIC HEALTH INFRASTRUCTURE FOR STATE, LOCAL, TRIBAL, AND TERRITORIAL HEALTH DEPARTMENTS.

(a) PROGRAM.—The Secretary, acting through the Director of the Centers for Disease Control and Prevention, shall establish a core public health infrastructure program consisting of awarding grants under subsection (b).

(b) GRANTS.—

(1) AWARD.—For the purpose of addressing core public health infrastructure needs, the Secretary—

(A) shall award a grant to each State health department; and

(B) may award grants on a competitive basis to State, local, Tribal, or territorial health departments.

(2) ALLOCATION.—Of the total amount of funds awarded as grants under this subsection for a fiscal year—

(A) not less than 50 percent shall be for grants to State health departments under paragraph (1)(A); and

(B) not less than 30 percent shall be for grants to State, local, Tribal, or territorial health departments under paragraph (1)(B).

(c) USE OF FUNDS.—A State, local, Tribal, or territorial health department receiving a grant under subsection (b) shall use the grant funds to address core public health infrastructure needs, including those identified in the accreditation process under subsection (g).

(d) FORMULA GRANTS TO STATE HEALTH DEPARTMENTS.—In making grants under subsection (b)(1)(A), the Secretary shall award funds to each State health department in accordance with—

(1) a formula based on population size; burden of preventable disease and disability; and core public health infrastructure gaps, including those identified in the accreditation process under subsection (g); and

(2) application requirements established by the Secretary, including a requirement that the State health department submit a plan that demonstrates to the satisfaction of the Secretary that the State's health department will—

(A) address its highest priority core public health infrastructure needs; and

(B) as appropriate, allocate funds to local health departments within the State.

(e) COMPETITIVE GRANTS TO STATE, LOCAL, TRIBAL, AND TERRITORIAL HEALTH DEPARTMENTS.—In making grants under subsection (b)(1)(B), the Secretary shall give priority to applicants demonstrating core public health infrastructure needs identified in the accreditation process under subsection (g).

(f) MAINTENANCE OF EFFORT.—The Secretary may award a grant to an entity under subsection (b) only if the entity demonstrates to the satisfaction of the Secretary that—

(1) funds received through the grant will be expended only to supplement, and not supplant, non-Federal and Federal funds otherwise available to the entity for the purpose of addressing core public health infrastructure needs; and

(2) with respect to activities for which the grant is awarded, the entity will maintain expenditures of non-Federal amounts for such activities at a level not less than the level of such expenditures maintained by the entity for the fiscal year preceding the fiscal year for which the entity receives the grant.

(g) ESTABLISHMENT OF A PUBLIC HEALTH ACCREDITATION PROGRAM.—

(1) IN GENERAL.—The Secretary shall—

(A) develop, and periodically review and update, standards for voluntary accreditation of State, local, Tribal, and territorial health departments and public health laboratories for the purpose of advancing the quality and performance of such departments and laboratories; and

(B) implement a program to accredit such health departments and laboratories in accordance with such standards.

(2) COOPERATIVE AGREEMENT.—The Secretary may enter into a cooperative agreement with a private nonprofit entity to carry out paragraph (1).

(h) REPORT.—The Secretary shall submit to the Congress an annual report on progress being made to accredit entities under subsection (g), including—

(1) a strategy, including goals and objectives, for accrediting entities under subsection (g) and achieving the purpose described in subsection (g)(1)(A);

(2) identification of gaps in research related to core public health infrastructure; and

(3) recommendations of priority areas for such research.

(i) DEFINITION.—In this section, the term ''core public health infrastructure'' includes—

(1) workforce capacity and competency;

(2) laboratory systems;

(3) testing capacity, including test platforms, mobile testing units, and personnel;

(4) health information, health information systems, and health information analysis;

(5) disease surveillance;

(6) contact tracing;

(7) communications;

(8) financing;

(9) other relevant components of organizational capacity; and

(10) other related activities.

(j) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there are authorized to be appropriated $6,000,000,000, to remain available until expended.

SEC. 551. CORE PUBLIC HEALTH INFRASTRUCTURE AND ACTIVITIES FOR CDC.

(a) IN GENERAL.—The Secretary, acting through the Director of the Centers for Disease Control and Prevention, shall expand and improve the core public health infrastructure and activities of the Centers for Disease Control and Prevention to address unmet and emerging public health needs.

(b) REPORT.—The Secretary shall submit to the Congress an annual report on the activities funded through this section.

(c) DEFINITION.—In this section, the term ''core public health infrastructure'' has the meaning given to such term in section 550.

(d) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there is authorized to be appropriated $1,000,000,000, to remain available until expended.

Subtitle D—COVID–19 National Testing and Contact Tracing Initiative

SEC. 561. NATIONAL SYSTEM FOR COVID–19 TESTING, CONTACT TRACING, SURVEILLANCE, CONTAINMENT, AND MITIGATION.

(a) IN GENERAL.—The Secretary, acting through the Director of the Centers for Disease Control and Prevention, and in coordination with State, local, Tribal, and territorial health departments, shall establish and implement a nationwide evidence-based system for—

(1) testing, contact tracing, surveillance, containment, and mitigation with respect to COVID–19;

(2) offering guidance on voluntary isolation and quarantine of individuals infected with, or exposed to individuals infected with, the virus that causes COVID–19; and

(3) public reporting on testing, contact tracing, surveillance, and voluntary isolation and quarantine activities with respect to COVID–19.

(b) COORDINATION; TECHNICAL ASSISTANCE.—In carrying out the national system under this section, the Secretary shall—

(1) coordinate State, local, Tribal, and territorial activities related to testing, contact tracing, surveillance, containment, and mitigation with respect to COVID–19, as appropriate; and

(2) provide technical assistance for such activities, as appropriate.

(c) CONSIDERATION.—In establishing and implementing the national system under this section, the Secretary shall take into consideration—

(1) the State plans referred to in the heading ''Public Health and Social Services Emergency Fund'' in title I of division B of the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139); and

(2) the testing strategy submitted under section 541.

(d) REPORTING.—The Secretary shall—

(1) not later than one month after the date of the enactment of this Act, submit to the Committee on Energy and Commerce of the House of Representatives and the Committee on Health, Education, Labor and Pensions a preliminary report on the effectiveness of the activities carried out pursuant to this subtitle; and

(2) not later than three months after the end of the public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) with respect to COVID–19, submit to such committees a final report on such effectiveness.

SEC. 562. GRANTS.

(a) IN GENERAL.—To implement the national system under section 561, the Secretary, acting through the Director of the Centers for Disease Control and Prevention, shall, subject to the availability of appropriations, award grants to State, local, Tribal, and territorial health departments that seek grants under this section to carry out coordinated testing, contact tracing, surveillance, containment, and mitigation with respect to COVID–19, including—

(1) diagnostic and surveillance testing and reporting;

(2) community-based contact tracing efforts; and

(3) policies related to voluntary isolation and quarantine of individuals infected with, or exposed to individuals infected with, the virus that causes COVID–19.

(b) FLEXIBILITY.—The Secretary shall ensure that—

(1) the grants under subsection (a) provide flexibility for State, local, Tribal, and territorial health departments to modify, establish, or maintain evidence-based systems; and

(2) local health departments receive funding from State health departments or directly from the Centers for Disease Control and Prevention to contribute to such systems, as appropriate.

(c) ALLOCATIONS.—

(1) FORMULA.—The Secretary, acting through the Director of the Centers for Disease Control and Prevention, shall allocate amounts made available pursuant to subsection (a) in accordance with a formula to be established by the Secretary that provides a minimum level of funding to each State, local, Tribal, and territorial health department that seeks a grant under this section and allocates additional funding based on the following prioritization:

(A) The Secretary shall give highest priority to applicants proposing to serve populations in one or more geographic regions with a high burden of COVID–19 based on data provided by the Centers for Disease Control and Prevention, or other sources as determined by the Secretary.

(B) The Secretary shall give second highest priority to applicants preparing for, or currently working to mitigate, a COVID–19 surge in a geographic region that does not yet have a high number of reported cases of COVID–19 based on data provided by the Centers for Disease Control and Prevention, or other sources as determined by the Secretary.

(C) The Secretary shall give third highest priority to applicants proposing to serve high numbers of low-income and uninsured populations, including medically underserved populations (as defined in section 330(b)(3) of the Public Health Service Act (42 U.S.C. 254b(b)(3))), health professional shortage areas (as defined under section 332(a) of the Public Health Service Act (42 U.S.C. 254e(a))), racial and ethnic minorities, or geographically diverse areas, as determined by the Secretary.

(2) NOTIFICATION.—Not later than the date that is one week before first awarding grants under this section, the Secretary shall submit to the Committee on Energy and Commerce of the House of Representatives and the Committee on Health, Education, Labor and Pensions of the Senate a notification detailing the formula established under paragraph (1) for allocating amounts made available pursuant to subsection (a).

(d) USE OF FUNDS.—A State, local, Tribal, and territorial health department receiving a grant under this section shall, to the extent possible, use the grant funds for the following activities, or other activities deemed appropriate by the Director of the Centers for Disease Control and Prevention:

(1) TESTING.—To implement a coordinated testing system that—

(A) leverages or modernizes existing testing infrastructure and capacity;

(B) is consistent with the updated testing strategy required under section 541;

(C) is coordinated with the State plan for COVID–19 testing prepared as required under the heading ''Department of Health and Human Services—Office of the Secretary—Public Health and Social Service Emergency Fund'' in title I of division B of the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139; 134 Stat. 620, 624);

(D) is informed by contact tracing and surveillance activities under this subtitle;

(E) is informed by guidelines established by the Centers for Disease Control and Prevention for which populations should be tested;

(F) identifies how diagnostic and serological tests in such system shall be validated prior to use;

(G) identifies how diagnostic and serological tests and testing supplies will be distributed to implement such system;

(H) identifies specific strategies for ensuring testing capabilities and accessibility in racial and ethnic minority populations;

(I) identifies specific strategies for ensuring testing capabilities and accessibility in medically underserved populations (as defined in section 330(b)(3) of the Public Health Service Act (42 U.S.C. 254b(b)(3))), health professional shortage areas (as defined under section 332(a) of the Public Health Service Act (42 U.S.C. 254e(a))), and geographically diverse areas, as determined by the Secretary;

(J) identifies how testing may be used, and results may be reported, in both health care settings (such as hospitals, laboratories for moderate or high-complexity testing, pharmacies, mobile testing units, and community health centers) and non-health care settings (such as workplaces, schools, childcare centers, or drive-throughs);

(K) allows for testing in sentinel surveillance programs, as appropriate; and

(L) supports the procurement and distribution of diagnostic and serological tests and testing supplies to meet the goals of the system.

(2) CONTACT TRACING.—To implement a coordinated contact tracing system that—

(A) leverages or modernizes existing contact tracing systems and capabilities, including community health workers, health departments, and Federally qualified health centers;

(B) is able to investigate cases of COVID–19, and help to identify other potential cases of COVID–19, through tracing contacts of individuals with positive diagnoses;

(C) establishes culturally competent and multilingual strategies for contact tracing, addressing the specific needs of racial and ethnic minority populations, which may include consultation with and support from faith-based, nonprofit, cultural or civic organizations with established ties to the community;

(D) establishes culturally competent and multilingual strategies for contact tracing, addressing the specific needs of medically underserved populations (as defined in section 330(b)(3) of the Public Health Service Act (42 U.S.C. 254b(b)(3))), health professional shortage areas (as defined under section 332(a) of the Public Health Service Act(42 U.S.C. 2324 254e(a)));

(E) provides individuals identified under the contact tracing program with information and support for containment or mitigation;

(F) enables State, local, Tribal, and territorial health departments to work with a nongovernmental, community partner or partners and State and local workforce development systems (as defined in section 3(67) of Workforce Innovation and Opportunity Act (29 U.S.C. 3102(67))) receiving grants under section 566(b) of this Act to hire and compensate a locally-sourced contact tracing workforce, if necessary, to supplement the public health workforce, to—

(i) identify the number of contact tracers needed for the respective State, locality, territorial, or Tribal health department to identify all cases of COVID–19 currently in the jurisdiction and those anticipated to emerge over the next 18 months in such jurisdiction;

(ii) outline qualifications necessary for contact tracers;

(iii) train the existing and newly hired public health workforce on best practices related to tracing close contacts of individuals diagnosed with COVID–19, including the protection of individual privacy and cybersecurity protection; and

(iv) equip the public health workforce with tools and resources to enable a rapid response to new cases;

(G) identifies the level of contact tracing needed within the State, locality, territory, or Tribal area to contain and mitigate the transmission of COVID–19; and

(H) establishes statewide mechanisms to integrate regular evaluation to the Centers for Disease Control and Prevention regarding contact tracing efforts, makes such evaluation publicly available, and to the extent possible provides for such evaluation at the county level.

(3) SURVEILLANCE.—To strengthen the existing public health surveillance system that—

(A) leverages or modernizes existing surveillance systems within the respective State, local, Tribal, or territorial health department and national surveillance systems;

(B) detects and identifies trends in COVID–19 at the county level;

(C) evaluates State, local, Tribal, and territorial health departments in achieving surveillance capabilities with respect to COVID–19;

(D) integrates and improves disease surveillance and immunization tracking;

(E) identifies specific strategies for ensuring disease surveillance in racial and ethnic minority populations; and

(F) identifies specific strategies for ensuring disease surveillance in medically underserved populations (as defined in section 330(b)(3) of the Public Health Service Act (42 U.S.C. 254b(b)(3))), health professional shortage areas (as defined under section 332(a) of the Public Health Service Act (42 U.S.C. 254e(a))), and geographically diverse areas, as determined by the Secretary.

(4) CONTAINMENT AND MITIGATION.—To implement a coordinated containment and mitigation system that—

(A) leverages or modernizes existing containment and mitigation strategies within the respective State, local, Tribal, or territorial governments and national containment and mitigation strategies;

(B) may provide for, connect to, and leverage existing social services and support for individuals who have been infected with or exposed to COVID–19 and who are isolated or quarantined in their homes, such as through—

(i) food assistance programs;

(ii) guidance for household infection control;

(iii) information and assistance with childcare services; and

(iv) information and assistance pertaining to support available under the CARES Act (Public Law 116–136) and this Act;

(C) provides guidance on the establishment of safe, high-quality, facilities for the voluntary isolation of individuals infected with, or quarantine of the contacts of individuals exposed to COVID–19, where hospitalization is not required, which facilities should—

(i) be prohibited from making inquiries relating to the citizenship status of an individual isolated or quarantined; and

(ii) be operated by a non-Federal, community partner or partners that—

(I) have previously established relationships in localities;

(II) work with local places of worship, community centers, medical facilities, and schools to recruit local staff for such facilities; and

(III) are fully integrated into State, local, Tribal, or territorial containment and mitigation efforts;

(D) identifies specific strategies for ensuring containment and mitigation activities in racial and ethnic minority populations; and

(E) identifies specific strategies for ensuring containment and mitigation activities in medically underserved populations (as defined in section 330(b)(3) of the Public Health Service Act (42 U.S.C. 254b(b)(3))), health professional shortage areas (as defined under section 332(a) of the Public Health Service Act (42 U.S.C. 254e(a))), and geographically diverse areas, as determined by the Secretary.

(e) REPORTING.—The Secretary shall facilitate mechanisms for timely, standardized reporting by grantees under this section regarding implementation of the systems established under this section and coordinated processes with the reporting as required and under the heading ''Department of Health and Human Services—Office of the Secretary—Public Health and Social Service Emergency Fund'' in title I of division B of the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139, 134 Stat. 620), including—

(1) a summary of county or local health department level information from the States receiving funding, and information from directly funded localities, territories, and Tribal entities, about the activities that will be undertaken using funding awarded under this section, including subgrants;

(2) any anticipated shortages of required materials for testing for COVID–19 under subsection (a); and

(3) other barriers in the prevention, mitigation, or treatment of COVID–19 under this section.

(f) PUBLIC LISTING OF AWARDS.—The Secretary shall—

(1) not later than 7 days after first awarding grants under this section, post in a searchable, electronic format a list of all awards made by the Secretary under this section, including the recipients and amounts of such awards; and

(2) update such list not less than every 7 days until all funds made available to carry out this section are expended.

SEC. 563. GUIDANCE, TECHNICAL ASSISTANCE, INFORMATION, AND COMMUNICATION.

(a) IN GENERAL.— Not later than 14 days after the date of the enactment of this Act, the Secretary, in coordination with other Federal agencies, as appropriate, shall issue guidance, provide technical assistance, and provide information to States, localities, Tribes, and territories, with respect to the following:

(1) The diagnostic and serological testing of individuals identified through contact tracing for COVID–19, including information with respect to the reduction of duplication related to programmatic activities, reporting, and billing.

(2) Best practices regarding contact tracing, including the collection of data with respect to such contact tracing and requirements related to the standardization of demographic and syndromic information collected as part of contact tracing efforts.

(3) Best practices regarding COVID–19 disease surveillance, including best practices to reduce duplication in surveillance activities, identifying gaps in surveillance and surveillance systems, and ways in which the Secretary plans to effectively support State, local, Tribal and territorial health departments in addressing such gaps.

(4) Information on ways for State, local, Tribal, and territorial health departments to establish and maintain the testing, contact tracing, and surveillance activities described in paragraphs (1) through (3).

(5) The protection of any personally identifiable health information collected pursuant to this subtitle.

(6) Best practices regarding privacy and cybersecurity protection related to contact tracing, containment, and mitigation efforts.

(7) Best practices related to improving public compliance for isolation and containment measures and reaching medically underserved communities.

(b) GUIDANCE ON PAYMENT.—Not later than 14 days after the date of the enactment of this Act, the Secretary, in coordination with the Administrator of the Centers for Medicare & Medicaid Services, the Director of the Centers for Disease Control and Prevention, and in coordination with other Federal agencies, as appropriate, shall develop and issue to State, local, Tribal, and territorial health departments clear guidance and policies—

(1) with respect to the coordination of claims submitted for payment out of the Public Health and Social Services Emergency Fund for services furnished in a facility referred to in section 562(d)(4)(C);

(2) identifying how an individual who is isolated or quarantined at home or in such a facility—

(A) incurs no out-of-pocket costs for any services furnished to such individual while isolated; and

(B) may receive income support for lost earnings or payments for expenses such as child care or elder care while such individual is isolated at home or in such a facility;

(3) providing information and assistance pertaining to support available under the CARES Act (Public Law 116–136) and this Act; and

(4) identifying State, local, Tribal, and territorial health departments or partner agencies that may provide social support services, such as groceries or meals, health education, internet access, and behavioral health services, to individuals who isolated or quarantined at home or in such a facility.

(c) GUIDANCE ON TESTING.—Not later than 14 days after the date of the enactment of this Act, the Secretary, in coordination with the Commissioner of Food and Drugs, the Director of the National Institutes of Health, and the Director of the Centers for Disease Control and Prevention, and in coordination with other Federal agencies as appropriate, shall develop and issue to State, local, Tribal, and territorial health departments clear guidance and policies regarding—

(1) objective standards to characterize the performance of all diagnostic and serological tests for COVID–19 in order to independently evaluate tests continuously over time;

(2) protocols for the evaluation of the performance of diagnostic and serological tests for COVID–19; and

(3) a repository of characterized specimens to use to evaluate the performance of those tests that can be made available for appropriate entities to use to evaluate performance.

(d) COMMUNICATION.—The Secretary shall identify and publicly announce the form and manner for communication with State, local, Tribal, and territorial health departments for purposes of carrying out the activities addressed by guidance issued under subsections (a) and (b).

(e) AVAILABILITY TO PROVIDERS.—Guidance issued under subsection (a)(1) shall be issued to health care providers.

(f) ONGOING PROVISION OF GUIDANCE AND TECHNICAL ASSISTANCE.—Notwithstanding whether funds are available specifically to carry out this subtitle, guidance and technical assistance shall continue to be provided under this section.

SEC. 564. RESEARCH AND DEVELOPMENT.

The Secretary, in coordination with the Director of the Centers for Disease Control and Prevention and in collaboration with the Director of the National Institutes of Health, the Director of the Agency for Healthcare Research and Quality, the Commissioner of Food and Drugs, and the Administrator of the Centers for Medicare & Medicaid Services, shall support research and development on more efficient and effective strategies—

(1) for the surveillance of SARS–CoV–2 and COVID–19;

(2) for the testing and identification of individuals infected with COVID–19; and

(3) for the tracing of contacts of individuals infected with COVID–19.

SEC. 565. AWARENESS CAMPAIGNS.

The Secretary, acting through the Director of the Centers for Disease Control and Prevention and in coordination with other offices and agencies, as appropriate, shall award competitive grants or contracts to one or more public or private entities, including faith-based organizations, to carry out multilingual and culturally appropriate awareness campaigns. Such campaigns shall—

(1) be based on available scientific evidence;

(2) increase awareness and knowledge of COVID–19, including countering stigma associated with COVID–19;

(3) improve information on the availability of COVID–19 diagnostic testing; and

(4) promote cooperation with contact tracing efforts.

SEC. 566. GRANTS TO STATE AND TRIBAL WORKFORCE AGENCIES.

(a) DEFINITIONS.—In this section:

(1) IN GENERAL.—Except as otherwise provided, the terms in this section have the meanings given the terms in section 3 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3102).

(2) APPRENTICESHIP; APPRENTICESHIP PROGRAM.—The term ''apprenticeship'' or ''apprenticeship program'' means an apprenticeship program registered under the Act of August 16, 1937 (commonly known as the ''National Apprenticeship Act'') (50 Stat. 664, chapter 663; 29 U.S.C. 50 et seq.), including any requirement, standard, or rule promulgated under such Act, as such requirement, standard, or rule was in effect on December 30, 2019.

(3) CONTACT TRACING AND RELATED POSITIONS.—The term ''contact tracing and related positions'' means employment related to contact tracing, surveillance, containment, and mitigation activities as described in paragraphs (2), (3), and (4) of section 562(d).

(4) ELIGIBLE ENTITY.—The term ''eligible entity'' means—

(A) a State or territory, including the District of Columbia and Puerto Rico;

(B) an Indian Tribe, Tribal organization, Alaska Native entity, Indian-controlled organizations serving Indians, or Native Hawaiian organizations;

(C) an outlying area; or

(D) a local board, if an eligible entity under subparagraphs (A) through (C) has not applied with respect to the area over which the local board has jurisdiction as of the date on which the local board submits an application under subsection (c).

(5) ELIGIBLE INDIVIDUAL.—Notwithstanding section 170(b)(2) of the Workforce Innovation and Opportunity Act (29 U.S.C. 3225(b)(2)), the term ''eligible individual'' means an individual seeking or securing employment in contact tracing and related positions and served by an eligible entity or community-based organization receiving funding under this section.

(6) SECRETARY.—The term ''Secretary'' means the Secretary of Labor.

(b) GRANTS.—

(1) IN GENERAL.—Subject to the availability of appropriations under subsection (g), the Secretary shall award national dislocated worker grants under section 170(b)(1)(B) of the Workforce Innovation and Opportunity Act (29 U.S.C. 3225(b)(1)(B)) to each eligible entity that seeks a grant to assist local boards and community-based organizations in carrying out activities under subsections (f) and (d), respectively, for the following purposes:

(A) To support the recruitment, placement, and training, as applicable, of eligible individuals seeking employment in contact tracing and related positions in accordance with the national system for COVID–19 testing, contact tracing, surveillance, containment, and mitigation established under section 561.

(B) To assist with the employment transition to new employment or education and training of individuals employed under this section in preparation for and upon termination of such employment.

(2) TIMELINE.—The Secretary of Labor shall—

(A) issue application requirements under subsection (c) not later than 10 days after the date of enactment of this section; and

(B) award grants to an eligible entity under paragraph (1) not later than 10 days after the date on which the Secretary receives an application from such entity.

(c) GRANT APPLICATION.—An eligible entity applying for a grant under this section shall submit an application to the Secretary, at such time and in such form and manner as the Secretary may reasonably require, which shall include a description of—

(1) how the eligible entity will support the recruitment, placement, and training, as applicable, of eligible individuals seeking employment in contact tracing and related positions by partnering with—

(A) a State, local, Tribal, or territorial health department; or

(B) one or more nonprofit or community-based organizations partnering with such health departments;

(2) how the activities described in paragraph (1) will support State efforts to address the demand for contact tracing and related positions with respect to—

(A) the State plans referred to in the heading ''Public Health and Social Services Emergency Fund'' in title I of division B of the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139);

(B) the testing strategy submitted under section 541; and

(C) the number of eligible individuals that the State plans to recruit and train under the plans

and strategies described in subparagraphs (A) and (B);

(3) the specific strategies for recruiting and placement of eligible individuals from or residing within the communities in which they will work, including—

(A) plans for the recruitment of eligible individuals to serve as contact tracers and related positions, including dislocated workers, individuals with barriers to employment, veterans, new entrants in the workforce, or underemployed or furloughed workers, who are from or reside in or near the local area in which they will serve, and who, to the extent practicable—

(i) have experience or a background in industry-sectors and occupations such as public health, social services, customer service, case management, or occupations that require related qualifications, skills, or competencies, such as strong interpersonal and communication skills, needed for contact tracing and related positions, as described in section 562(d)(2)(E)(ii); or

(ii) seek to transition to public health and public health related occupations upon the conclusion of employment in contact tracing and related positions; and

(B) how such strategies will take into account the diversity of such community, including racial, ethnic, socioeconomic, linguistic, or geographic diversity;

(4) the amount, timing, and mechanisms for distribution of funds provided to local boards or through subgrants as described in subsection (d);

(5) for eligible entities described in subparagraphs (A) through (C) of subsection (a)(4), a description of how the eligible entity will ensure the equitable distribution of funds with respect to—

(A) geography (such as urban and rural distribution);

(B) medically underserved populations (as defined in section 33(b)(3) of the Public Health Service Act (42 U.S.C. 254b(b)));

(C) health professional shortage areas (as defined under section 332(a) of the Public Health Service Act (42 U.S.C. 254e(a))); and

(D) the racial and ethnic diversity of the area; and

(6) for eligible entities who are local boards, a description of how a grant to such eligible entity would serve the equitable distribution of funds as described in paragraph (5).

(d) SUBGRANT AUTHORIZATION AND APPLICATION PROCESS.—

(1) IN GENERAL.—An eligible entity may award a subgrant to one or more community-based organizations for the purposes of partnering with a State or local board to conduct outreach and education activities to inform potentially eligible individuals about employment opportunities in contact tracing and related positions.

(2) APPLICATION.—A community-based organization shall submit an application at such time and in such manner as the eligible entity may reasonably require, including—

(A) a demonstration of the community-based organization's established expertise and effectiveness in community outreach in the local area that such organization plans to serve;

(B) a demonstration of the community-based organization's expertise in providing employment or public health information to the local areas in which such organization plans to serve; and

(C) a description of the expertise of the community-based organization in utilizing culturally competent and multilingual strategies in the provision of services.

(e) GRANT DISTRIBUTION.—

(1) FEDERAL DISTRIBUTION.—

(A) USE OF FUNDS.— The Secretary of Labor shall use the funds appropriated to carry out this section as follows:

(i) Subject to clause (ii), the Secretary shall distribute funds among eligible entities in accordance with a formula to be established by the Secretary that provides a minimum level of funding to each eligible entity that seeks a grant under this section and allocates additional funding as follows:

(I) The formula shall give first priority based on the number and proportion of contact tracing and related positions that the State plans to recruit, place, and train individuals as a part of the State strategy described in subsection (c)(2)(A).

(II) Subject to subclause (I), the formula shall give priority in accordance with section 562(c).

(ii) Not more than 2 percent of the funding for administration of the grants and for providing technical assistance to recipients of funds under this section.

(B) EQUITABLE DISTRIBUTION.—If the geographic region served by one or more eligible entities overlaps, the Secretary shall distribute funds among such entities in such a manner that ensures equitable distribution with respect to the factors under subsection (c)(5).

(2) ELIGIBLE ENTITY USE OF FUNDS.—An eligible entity described in subparagraphs (A) through (C) of subsection (a)(4)—

(A) shall, not later than 30 days after the date on which the entity receives grant funds under this section, provide not less than 70 percent of grant funds to local boards for the purpose of carrying out activities in subsection (f);

(B) may use up to 20 percent of such funds to make subgrants to community-based organizations in the service area to conduct outreach, to potential eligible individuals, as described in subsection (d);

(C) in providing funds to local boards and awarding subgrants under this subsection shall ensure the equitable distribution with respect to the factors described in subsection (c)(5); and

(D) may use not more than 10 percent of the funds awarded under this section for the administrative costs of carrying out the grant and for providing technical assistance to local boards and community-based organizations.

(3) LOCAL BOARD USE OF FUNDS.—A local board, or an eligible entity that is a local board, shall use—

(A) not less than 60 percent of the funds for recruitment and training for COVID–19 testing, contact tracing, surveillance, containment, and mitigation established under section 561;

(B) not less than 30 of the funds to support the transition of individuals hired as contact tracers and related positions into an education or training program, or unsubsidized employment upon completion of such positions; and

(C) not more than 10 percent of the funds for administrative costs.

(f) ELIGIBLE ACTIVITIES.—The State or local boards shall use funds awarded under this section to support the recruitment and placement of eligible individuals, training and employment transition as related to contact tracing and related positions, and for the following activities:

(1) Establishing or expanding partnerships with—

(A) State, local, Tribal, and territorial public health departments;

(B) community-based health providers, including community health centers and rural health clinics;

(C) labor organizations or joint labor management organizations;

(D) two-year and four-year institutions of higher education (as defined in section 101 of the Higher Education Act of 1965 (20 U.S.C. 1001)), including institutions eligible to receive funds under section 371(a) of the Higher Education Act of 1965 (20 U.S.C. 1067q(a)); and

(E) community action agencies or other community-based organizations serving local areas in which there is a demand for contact tracing and related positions.

(2) Providing training for contact tracing and related positions in coordination with State, local, Tribal, or territorial health departments that is consistent with the State or territorial testing and contact tracing strategy, and ensuring that eligible individuals receive compensation while participating in such training.

(3) Providing eligible individuals with—

(A) adequate and safe equipment, environments, and facilities for training and supervision, as applicable;

(B) information regarding the wages and benefits related to contact tracing and related positions, as compared to State, local, and national averages;

(C) supplies and equipment needed by the eligible individuals to support placement of an individual in contact tracing and related positions, as applicable;

(D) an individualized employment plan for each eligible individual, as applicable—

(i) in coordination with the entity employing the eligible individual in a contact tracing and related positions; and

(ii) which shall include providing a case manager to work with each eligible individual to develop the plan, which may include—

(I) identifying employment and career goals, and setting appropriate achievement objectives to attain such goals; and

(II) exploring career pathways that lead to in-demand industries and sectors, including in public health and related occupations; and

(E) services for the period during which the eligible individual is employed in a contact tracing and related position to ensure job retention, which may include—

(i) supportive services throughout the term of employment;

(ii) a continuation of skills training as related to employment in contact tracing and related positions, that is conducted in collaboration with the employers of such individuals;

(iii) mentorship services and job retention support for eligible individuals; or

(iv) targeted training for managers and workers working with eligible individuals (such as mentors), and human resource representatives;

(4) Supporting the transition and placement in unsubsidized employment for eligible individuals serving in contact tracing and related positions after such positions are no longer necessary in the State or local area, including—

(A) any additional training and employment activities as described in section 170(d)(4) of the Workforce Innovation and Opportunity Act (29 U.S.C. 3225(d)(4));

(B) developing the appropriate combination of services to enable the eligible individual to achieve the employment and career goals identified under paragraph (3)(D)(ii)(I); and

(C) services to assist eligible individuals in maintaining employment for not less than 12 months after the completion of employment in contact tracing and related positions, as appropriate.

(5) Any other activities as described in subsections (a)(3) and (b) of section 134 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3174).

(g) LIMITATION.—Notwithstanding section 170(d)(3)(A) of the Workforce Innovation and Opportunity Act (29 U.S.C. 3225(d)(3)(A)), a person may be employed in a contact tracing and related positions using funds under this section for a period not greater than 2 years.

(h) REPORTING BY THE DEPARTMENT OF LABOR.—

(1) IN GENERAL.—Not later than 120 days of the enactment of this Act, and once grant funds have been expended under this section, the Secretary shall report to the Committee on Education and Labor of the House of Representatives and the Committee on Health, Education, Labor and Pensions of the Senate, and make publicly available a report containing a description of—

(A) the number of eligible individuals recruited, hired, and trained in contact tracing and related positions;

(B) the number of individuals successfully transitioned to unsubsidized employment or training at the completion of employment in contact tracing and related positions using funds under this subtitle;

(C) the number of such individuals who were unemployed prior to being hired, trained, or deployed as described in paragraph (1);

(D) the performance of each program supported by funds under this subtitle with respect to the indicators of performance under section 116 of the Workforce Innovation and Opportunity Act (29 U.S.C. 3141), as applicable;

(E) the number of individuals in unsubsidized employment within six months and 1 year, respectively, of the conclusion of employment in contact tracing and related positions and, of those, the number of individuals within a State, territorial, or local public health department in an occupation related to public health;

(F) any information on how eligible entities, local boards, or community-based organizations that received funding under this subsection were able to support the goals of the national system for COVID–19 testing, contact tracing, surveillance, containment, and mitigation established under section 561 of this Act; and

(G) best practices for improving and increasing the transition of individuals employed in contract tracing and related positions to unsubsidized employment.

(2) DISAGGREGATION.—All data reported under paragraph (1) shall be disaggregated by race, ethnicity, sex, age, and, with respect to individuals with barriers to employment, subpopulation of such individuals, except for when the number of participants in a category is insufficient to yield statistically reliable information or when the results would reveal personally identifiable information about an individual participant.

(i) SPECIAL RULE.—Any funds used for programs under this section that are used to fund an apprenticeship or apprenticeship program shall only be used for, or provided to, an apprenticeship or apprenticeship program that meets the definition of such term subsection (a) of this section, including any funds awarded for the purposes of grants, contracts, or cooperative agreements, or the development, implementation, or administration, of an apprenticeship or an apprenticeship program.

(j) INFORMATION SHARING REQUIREMENT FOR HHS.—The Secretary of Health and Human Services, acting through the Director of the Centers for Disease Control and Prevention, shall provide the Secretary of Labor, acting through the Assistant Secretary of the Employment and Training Administration, with information on grants under section 562, including—

(1) the formula used to award such grants to State, local, Tribal, and territorial health departments;

(2) the dollar amounts of and scope of the work funded under such grants;

(3) the geographic areas served by eligible entities that receive such grants; and

(4) the number of contact tracers and related positions to be hired using such grants.

(k) AUTHORIZATION OF APPROPRIATIONS.—Of the amounts appropriated to carry out this subtitle, $500,000,000 shall be used by the Secretary of Labor to carry out subsections (a) through (h) of this section.

SEC. 567. APPLICATION OF THE SERVICE CONTRACT ACT TO CONTRACTS AND GRANTS.

Contracts and grants which include contact tracing as part of the scope of work and that are awarded under this subtitle shall require that contract tracers and related positions are paid not less than the prevailing wage and fringe rates required under chapter 67 of title 41, United States Code (commonly known as the ''Service Contract Act'') for the area in which the work is performed. To the extent that a nonstandard wage determination is required to establish a prevailing wage for contact tracers and related positions for purposes of this subtitle, the Secretary of Labor shall issue such determination not later than 14 days after the date of enactment of this Act, based on a job description used by the Centers for Disease Control and Prevention and contractors or grantees performing contact tracing for State public health agencies.

SEC. 568. AUTHORIZATION OF APPROPRIATIONS.

To carry out this subtitle, there are authorized to be appropriated $75,000,000,000, to remain available until expended.

Subtitle E—Demographic Data and Supply Reporting Related to COVID–19

SEC. 571. COVID–19 REPORTING PORTAL.

(a) IN GENERAL.—Not later than 15 days after the date of enactment of this Act, the Secretary shall establish and maintain an online portal for use by eligible health care entities to track and transmit data regarding their personal protective equipment and medical supply inventory and capacity related to COVID–19.

(b) ELIGIBLE HEALTH CARE ENTITIES.—In this section, the term ''eligible health care entity'' means a licensed acute care hospital, hospital system, or long-term care facility with confirmed cases of COVID–19.

(c) SUBMISSION.—An eligible health care entity shall report using the portal under this section on a biweekly basis in order to assist the Secretary in tracking usage and need of COVID–related supplies and personnel in a regular and real-time manner.

(d) INCLUDED INFORMATION.—The Secretary shall design the portal under this section to include information on personal protective equipment and medical supply inventory and capacity related to COVID–19, including with respect to the following:

(1) PERSONAL PROTECTIVE EQUIPMENT.—Total personal protective equipment inventory, including, in units, the numbers of N95 masks and authorized equivalent respirator masks, surgical masks, exam gloves, face shields, isolation gowns, and coveralls.

(2) MEDICAL SUPPLY.—

(A) Total ventilator inventory, including, in units, the number of universal, adult, pediatric, and infant ventilators.

(B) Total diagnostic and serological test inventory, including, in units, the number of test platforms, tests, test kits, reagents, transport media, swabs, and other materials or supplies determined necessary by the Secretary.

(3) CAPACITY.—

(A) Case count measurements, including confirmed positive cases and persons under investigation.

(B) Total number of staffed beds, including medical surgical beds, intensive care beds, and critical care beds.

(C) Available beds, including medical surgical beds, intensive care beds, and critical care beds.

(D) Total number of COVID–19 patients currently utilizing a ventilator.

(E) Average number of days a COVID–19 patient is utilizing a ventilator.

(F) Total number of additionally needed professionals in each of the following categories: intensivists, critical care physicians, respiratory therapists, registered nurses, certified registered nurse anesthetists, and laboratory personnel.

(G) Total number of hospital personnel currently not working due to self-isolation following a known or presumed COVID–19 exposure.

(e) ACCESS TO INFORMATION RELATED TO INVENTORY AND CAPACITY.—The Secretary shall ensure that relevant agencies and officials, including the Centers for Disease Control and Prevention, the Assistant Secretary for Preparedness and Response, and the Federal Emergency Management Agency, have access to information related to inventory and capacity submitted under this section.

(f) WEEKLY REPORT TO CONGRESS.—On a weekly basis, the Secretary shall transmit information related to inventory and capacity submitted under this section to the appropriate committees of the House and Senate.

SEC. 572. REGULAR CDC REPORTING ON DEMOGRAPHIC DATA.

Not later than 14 days after the date of enactment of this Act, the Secretary, in coordination with the Director of the Centers for Disease Control and Prevention, shall amend the reporting under the heading ''Department of Health and Human Services—Office of the Secretary—Public Health and Social Service Emergency Fund'' in title I of division B of the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139; 134 Stat. 620, 626) on the demographic characteristics, including race, ethnicity, age, sex, gender, geographic region, and other relevant factors of individuals tested for or diagnosed with COVID–19, to include—

(1) providing technical assistance to State, local, and territorial health departments to improve the collection and reporting of such demographic data;

(2) if such data is not so collected or reported, the reason why the State, local, or territorial department of health has not been able to collect or provide such information; and

(3) making a copy of such report available publicly on the website of the Centers for Disease Control and Prevention.

SEC. 573. FEDERAL MODERNIZATION FOR HEALTH INEQUITIES DATA.

(a) IN GENERAL.—The Secretary shall work with covered agencies to support the modernization of data collection methods and infrastructure at such agencies for the purpose of increasing data collection related to health inequities, such as racial, ethnic, socioeconomic, sex, gender, and disability disparities.

(b) COVERED AGENCY DEFINED.—In this section, the term ''covered agency'' means each of the following Federal agencies:

(1) The Agency for Healthcare Research and Quality.

(2) The Centers for Disease Control and Prevention.

(3) The Centers for Medicare & Medicaid Services.

(4) The Food and Drug Administration.

(5) The Office of the National Coordinator for Health Information Technology.

(6) The National Institutes of Health.

(c) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to each covered agency to carry out this section $4,000,000, to remain available until expended.

SEC. 574. MODERNIZATION OF STATE AND LOCAL HEALTH INEQUITIES DATA.

(a) IN GENERAL.—Not later than 6 months after the date of enactment of this Act, the Secretary, acting through the Director of the Centers for Disease Control and Prevention, shall award grants to State, local, and territorial health departments in order to support the modernization of data collection methods and infrastructure for the purposes of increasing data related to health inequities, such as racial, ethnic, socioeconomic, sex, gender, and disability disparities. The Secretary shall—

(1) provide guidance, technical assistance, and information to grantees under this section on best practices regarding culturally competent, accurate, and increased data collection and transmission; and

(2) track performance of grantees under this section to help improve their health inequities data collection by identifying gaps and taking effective steps to support States, localities, and territories in addressing the gaps.

(b) REPORT.—Not later than 1 year after the date on which the first grant is awarded under this section, the Secretary shall submit to the Committee on Energy and Commerce of the House of Representatives and the Committee on Health, Education, Labor and Pensions of the Senate an initial report detailing—

(1) nationwide best practices for ensuring States and localities collect and transmit health inequities data;

(2) nationwide trends which hinder the collection and transmission of health inequities data;

(3) Federal best practices for working with States and localities to ensure culturally competent, accurate, and increased data collection and transmission; and

(4) any recommended changes to legislative or regulatory authority to help improve and increase health inequities data collection.

(c) FINAL REPORT.—Not later than three months after the end of the public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) with respect to COVID–19, the Secretary shall—

(1) update and finalize the initial report under subsection (b); and

(2) submit such final report to the committees specified in such subsection.

(d) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $100,000,000, to remain available until expended.

SEC. 575. TRIBAL FUNDING TO RESEARCH HEALTH INEQUITIES INCLUDING COVID–19.

(a) IN GENERAL.—Not later than 6 months after the date of enactment of this Act, the Director of the Indian Health Service, in coordination with Tribal Epidemiology Centers and other Federal agencies, as appropriate, shall conduct or support research and field studies for the purposes of improved understanding of Tribal health inequities among American Indians and Alaska Natives, including with respect to—

(1) disparities related to COVID–19;

(2) public health surveillance and infrastructure regarding unmet needs in Indian country and Urban Indian communities;

(3) population-based health disparities;

(4) barriers to health care services;

(5) the impact of socioeconomic status; and

(6) factors contributing to Tribal health inequities.

(b) CONSULTATION, CONFER, AND COORDINATION.—In carrying out this section, the Director of the Indian Health Service shall—

(1) consult with Indian Tribes and Tribal organizations;

(2) confer with Urban Indian organizations; and

(3) coordinate with the Director of the Centers for Disease Control and Prevention and the Director of the National Institutes of Health.

(c) PROCESS.—Not later than 60 days after the date of enactment of this Act, the Director of the Indian Health Service shall establish a nationally representative panel to establish processes and procedures for the research and field studies conducted or supported under subsection (a). The Director shall ensure that, at a minimum, the panel consists of the following individuals:

(1) Elected Tribal leaders or their designees.

(2) Tribal public health practitioners and experts from the national and regional levels.

(d) DUTIES.—The panel established under subsection (c) shall, at a minimum—

(1) advise the Director of the Indian Health Service on the processes and procedures regarding the design, implementation, and evaluation of, and reporting on, research and field studies conducted or supported under this section;

(2) develop and share resources on Tribal public health data surveillance and reporting, including best practices; and

(3) carry out such other activities as may be appropriate to establish processes and procedures for the research and field studies conducted or supported under subsection (a).

(e) REPORT.—Not later than 1 year after expending all funds made available to carry out this section, the Director of the Indian Health Service, in coordination with the panel established under subsection (c), shall submit an initial report on the results of the research and field studies under this section to—

(1) the Committee on Energy and Commerce and the Committee on Natural Resources of the House of Representatives; and

(2) the Committee on Indian Affairs and the Committee on Health, Education, Labor and Pensions of the Senate.

(f) TRIBAL DATA SOVEREIGNTY.—The Director of the Indian Health Service shall ensure that all research and field studies conducted or supported under this section are tribally-directed and carried out in a manner which ensures Tribal-direction of all data collected under this section—

(1) according to Tribal best practices regarding research design and implementation, including by ensuring the consent of the Tribes involved to public reporting of Tribal data;

(2) according to all relevant and applicable Tribal, professional, institutional, and Federal standards for conducting research and governing research ethics;

(3) with the prior and informed consent of any Indian Tribe participating in the research or sharing data for use under this section; and

(4) in a manner that respects the inherent sovereignty of Indian Tribes, including Tribal governance of data and research.

(g) FINAL REPORT.—Not later than three months after the end of the public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) with respect to COVID–19, the Director of the Indian Health Service shall—

(1) update and finalize the initial report under subsection (e); and

(2) submit such final report to the committees specified in such subsection.

(h) DEFINITIONS.—In this section:

(1) The terms ''Indian Tribe'' and ''Tribal organization'' have the meanings given to such terms in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304).

(2) The term ''Urban Indian organization'' has the meaning given to such term in section 4 of the Indian Health Care Improvement Act (25 U.S.C. 1603).

(i) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $25,000,000, to remain available until expended.

SEC. 576. CDC FIELD STUDIES PERTAINING TO SPECIFIC HEALTH INEQUITIES.

(a) IN GENERAL.—Not later than 90 days after the date of enactment of this Act, the Secretary, acting through the Centers for Disease Control and Prevention, in collaboration with State, local, and territorial health departments, shall complete (by the reporting deadline in subsection (b)) field studies to better understand health inequities that are not currently tracked by the Secretary. Such studies shall include an analysis of—

(1) the impact of socioeconomic status on health care access and disease outcomes, including COVID–19 outcomes;

(2) the impact of disability status on health care access and disease outcomes, including COVID–19 outcomes;

(3) the impact of language preference on health care access and disease outcomes, including COVID–19 outcomes;

(4) factors contributing to disparities in health outcomes for the COVID–19 pandemic; and

(5) other topics related to disparities in health outcomes for the COVID–19 pandemic, as determined by the Secretary.

(b) REPORT.—Not later than December 31, 2021, the Secretary shall submit to the Committee on Energy and Commerce of the House of Representatives and the Committee on Health, Education, Labor and Pensions of the Senate an initial report on the results of the field studies under this section.

(c) FINAL REPORT.—Not later than three months after the end of the public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) with respect to COVID–19, the Secretary shall—

(1) update and finalize the initial report under subsection (b); and

(2) submit such final report to the committees specified in such subsection.

(d) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $25,000,000, to remain available until expended.

SEC. 577. ADDITIONAL REPORTING TO CONGRESS ON THE RACE AND ETHNICITY RATES OF COVID–19 TESTING, HOSPITALIZATIONS, AND MORTALITIES.

(a) IN GENERAL.—Not later than 30 days after the date of enactment of this Act, the Secretary shall submit to the Committee on Appropriations and the Committee on Energy and Commerce of the House of Representatives and the Committee on Appropriations and the Committee on Health, Education, Labor and Pensions of the Senate an initial report—

(1) describing the testing, positive diagnoses, hospitalization, intensive care admissions, and mortality rates associated with COVID–19, disaggregated by race, ethnicity, age, sex, gender, geographic region, and other relevant factors as determined by the Secretary;

(2) including an analysis of any variances of testing, positive diagnoses, hospitalizations, and deaths by demographic characteristics; and

(3) including proposals for evidenced-based response strategies to reduce disparities related to COVID–19.

(b) FINAL REPORT.—Not later than three months after the end of the public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) with respect to COVID–19, the Secretary shall—

(1) update and finalize the initial report under subsection (a); and

(2) submit such final report to the committees specified in such subsection.

(c) COORDINATION.—In preparing the report submitted under this section, the Secretary shall take into account and otherwise coordinate such report with reporting required under section 572 and under the heading ''Department of Health and Human Services—Office of the Secretary—Public Health and Social Service Emergency Fund'' in title I of division B of the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139; 134 Stat. 620, 626).

Subtitle F—Miscellaneous

SEC. 581. TECHNICAL CORRECTIONS TO AMENDMENTS MADE BY CARES ACT.

(a) The amendments made by this section shall take effect as if included in the enactment of the CARES Act (Public Law 116–136).

(b) Section 3112 of division A of the CARES Act (Public Law 116–136) is amended—

(1) in subsection (a)(2)(A), by striking the comma before ''or a permanent'';

(2) in subsection (d)(1), by striking ''and subparagraphs (A) and (B)'' and inserting ''as subparagraphs (A) and (B)''; and

(3) in subsection (e), by striking ''Drug, Cosmetic Act'' and inserting ''Drug, and Cosmetic Act''.

(c) Section 6001(a)(1)(D) of division F of the Families First Coronavirus Response Act (Public Law 116–127), as amended by section 3201 of division A of the CARES Act (Public Law 116–136), is amended by striking ''other test that''.

(d) Subsection (k)(9) of section 543 of the Public Health Service Act (42 U.S.C. 290dd–2), as added by section 3221(d) of division A of the CARES Act (Public Law 116–136), is amended by striking ''unprotected health information'' and inserting ''unsecured protected health information''.

(e) Section 3401(2)(D) of division A of the CARES Act (Public Law 116–136), is amended by striking ''Not Later than'' and inserting ''Not later than''.

(f) Section 831(f) of the Public Health Service Act, as redesignated by section 3404(a)(6)(E) and amended by section 3404(a)(6)(G) of division A of the CARES Act (Public Law 116–136), is amended by striking ''a health care facility, or a partnership of such a school and facility''.

(g) Section 846(i) of the Public Health Service Act, as amended by section 3404(a)(8)(C) of division A of the CARES Act (Public Law 116–136), is amended by striking ''871(b),,'' and inserting ''871(b),''.

(h) Section 3606(a)(1)(A) of division A of the CARES Act (Public Law 116–136) is amended by

striking ''In general'' and inserting ''IN GENERAL''.

(i) Section 3856(b)(1) of division A of the CARES Act (Public Law 116–136) is amended to read as follows:

''(1) IN GENERAL.—Section 905(b)(4) of the FDA Reauthorization Act of 2017 (Public Law 115–52) is amended by striking 'Section 744H(e)(2)(B) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 379j–52(e)(2)(B))' and inserting 'Section 744H(f)(2)(B) of the Federal Food, Drug, and Cosmetic Act, as redesignated by section 403(c)(1) of this Act,'.''.

TITLE VI—PUBLIC HEALTH ASSISTANCE

SEC. 601. DEFINITION.

In this title, the term ''Secretary'' means the Secretary of Health and Human Services.

Subtitle A—Assistance to Providers and Health System

SEC. 611. HEALTH CARE PROVIDER RELIEF FUND.

(a) IN GENERAL.—Not later than 7 days after the date of enactment of this Act, the Secretary, acting through the Administrator of the Health Resources and Services Administration, shall establish a program under which the Secretary shall reimburse, through grants or other mechanisms, eligible health care providers for eligible expenses or lost revenues occurring during calendar quarters beginning on or after January 1, 2020, to prevent, prepare for, and respond to COVID–19, in an amount calculated under subsection (c).

(b) QUARTERLY BASIS.—

(1) SUBMISSION OF APPLICATIONS.—The Secretary shall give applicants a period of 7 calendar days after the close of a quarter to submit applications under this section with respect to such quarter, except that the Secretary shall give applicants a period of 7 calendar days after the date of enactment of this Act to submit applications with respect to the quarters beginning on January 1 and April 1, 2020, if the applicant has not previously submitted an application with the respect to such quarters.

(2) REVIEW AND PAYMENT.—The Secretary shall—

(A) review applications and make awards of reimbursement under this section on a quarterly basis; and

(B) award the reimbursements under this section for a quarter not later than 14 calendar days after the close of the quarter, except that the Secretary shall award the reimbursements under this section for the quarters beginning on January 1 and April 1, 2020, not later than 14 calendar days after the date of enactment of this Act.

(c) CALCULATION.—

(1) IN GENERAL.—The amount of the reimbursement to an eligible health care provider under this section with respect to a calendar quarter shall equal—

(A) the sum of—

(i) 100 percent of the eligible expenses, as described in subsection (d), of the provider during the quarter; and

(ii) subject to paragraph (3), 60 percent of the lost revenues, as described in subsection (e), of the provider during the quarter; less

(B) any funds that are—

(i) received by the provider during the quarter pursuant to the Coronavirus Preparedness and Response Supplemental Appropriations Act, 2020 (Public Law 116–123), the Families First Coronavirus Response Act (Public Law 116–127), the CARES Act (Public Law 116–136), or the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139); and

(ii) not required to be repaid.

(2) CARRYOVER.—If the amount determined under paragraph (1)(B) for a calendar quarter with respect to an eligible health care provider exceeds the amount determined under paragraph (1)(A) with respect to such provider and quarter, the amount of such difference shall be applied in making the calculation under this subsection, over each subsequent calendar quarter for which the eligible health care provider seeks reimbursement under this section.

(3) LOST REVENUE LIMITATION.—If the amount determined under subsection (e) with respect to the lost revenue of an eligible health care provider for a calendar quarter does not exceed an amount that equals 10 percent of the net patient revenue (as defined in such subsection) of the provider for the corresponding quarter in 2019, the addend under paragraph (1)(A)(ii), in making the calculation under paragraph (1), is deemed to be zero.

(d) ELIGIBLE EXPENSES.—Subject to subsection (h)(1), expenses eligible for reimbursement under this section include expenses for—

(1) building or construction of temporary structures;

(2) leasing of properties;

(3) medical supplies and equipment including personal protective equipment;

(4) in vitro diagnostic tests, serological tests, or testing supplies;

(5) increased workforce and trainings;

(6) emergency operation centers;

(7) construction or retrofitting of facilities;

(8) mobile testing units;

(9) surge capacity;

(10) retention of workforce; and

(11) such other items and services as the Secretary determines to be appropriate, in consultation with relevant stakeholders.

(e) LOST REVENUES.—

(1) IN GENERAL.—Subject to subsection (h)(1), for purposes of subsection (c)(1)(A)(ii), the lost revenues of an eligible health care provider, with respect to the calendar quarter involved, shall be equal to—

(A) net patient revenue of the provider for the corresponding quarter in 2019 minus net patient revenue of the provider for such quarter; less

(B) the savings of the provider during the calendar quarter involved attributable to foregone wages, payroll taxes, and benefits of personnel who were furloughed or laid off by the provider during that quarter.

(2) NET PATIENT REVENUE DEFINED.—For purposes of paragraph (1)(A), the term ''net patient revenue'', with respect to an eligible health care provider and a calendar quarter, means the sum of—

(A) 200 percent of the total amount of reimbursement received by the provider during the quarter for all items and services furnished under a State plan or a waiver of a State plan under title XIX of the Social Security Act (42 U.S.C. 1396 et seq.);

(B) 125 percent of the total amount of reimbursement received by the provider during the quarter for all items and services furnished under title XVIII of the Social Security Act (42 U.S.C. 1395 et seq.); and

(C) 100 percent of the total amount of reimbursement not described in subparagraph (A) or (B) received by the provider during the quarter for all items and services.

(f) INSUFFICIENT FUNDS FOR A QUARTER.—If there are insufficient funds made available to reimburse all eligible health care providers for all eligible expenses and lost revenues for a quarter in accordance with this section, the Secretary shall—

(1) prioritize reimbursement of eligible expenses; and

(2) using the entirety of the remaining funds, uniformly reduce the percentage of lost revenues otherwise applicable under subsection (c)(1)(A)(ii) to the extent necessary to reimburse a portion of the lost revenues of all eligible health care providers applying for reimbursement.

(g) APPLICATION.—A health care provider seeking reimbursement under this section for a calendar quarter shall submit to the Secretary an application that—

(1) provides documentation demonstrating that the health care provider is an eligible health care provider;

(2) includes a valid tax identification number of the health care provider or, if the health care provider does not have a valid tax identification number, an employer identification number or such other identification number as the Secretary may accept or may assign;

(3) attests to the eligible expenses and lost revenues of the health care provider, as described in subsection (d), occurring during the calendar quarter;

(4) includes an itemized listing of each such eligible expense, including expenses incurred in providing uncompensated care;

(5) for purposes of subsection (c)(3), attests to whether the amount determined under subsection (e) with respect to the lost revenue of an eligible health care provider for a calendar quarter exceeds an amount that equals 10 percent of the net patient revenue (as defined in such subsection) of the provider for the corresponding quarter in 2019;

(6) includes projections of the eligible expenses and lost revenues of the health care provider, as described in subsection (c), for the calendar quarter that immediately follows the calendar quarter for which reimbursement is sought; and

(7) indicates the dollar amounts described in each of subparagraphs (A) and (B) of subsection (e)(1) and subparagraphs (A), (B), and (C) of subsection (e)(2) for the calendar quarter and any other information the Secretary determines necessary to determine expenses and lost revenue related to COVID–19.

(h) LIMITATIONS.—

(1) NO DUPLICATIVE REIMBURSEMENT.—The Secretary may not provide, and a health care provider may not accept, reimbursement under this section for expenses or losses with respect to which—

(A) the eligible health care provider is reimbursed from other sources; or

(B) other sources are obligated to reimburse the provider.

(2) NO EXECUTIVE COMPENSATION.—Reimbursement for eligible expenses (as described in subsection (d)) and lost revenues (as described in subsection (e)) shall not include compensation or benefits, including salary, bonuses, awards of stock, or other financial benefits, for an officer or employee described in section 4004(a)(2) of the CARES Act (Public Law 116–136).

(i) NO BALANCE BILLING AS CONDITION OF RECEIPT OF FUNDS.—

(1) PROTECTING INDIVIDUALS ENROLLED IN HEALTH PLANS.—As a condition of receipt of reimbursement under this section, a health care provider, in the case such provider furnishes during the emergency period described in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b–5(g)(1)(B)) (whether before, on, or after, the date on which the provider submits an application under this section) a medically necessary item or service described in subparagraph (A), (B), or (C) of paragraph (3) to an individual who is described in such subparagraph (A), (B), or (C), respectively, and enrolled in a group health plan or group or individual health insurance coverage offered by a health insurance issuer (including grandfathered health plans as defined in section 1251(e) of the Patient Protection and Affordable Care Act (42 U.S.C. 18011(e)) and such provider is a nonparticipating provider, with respect to such plan or coverage or with respect to such item or service, and such plan or coverage and such items and services would otherwise be covered under such plan if furnished by a participating provider—

(A) may not bill or otherwise hold liable such individual for a payment amount for such item or service that is more than the cost-sharing amount that would apply under such plan or coverage for such item or service if such provider furnishing such service were a participating provider with respect to such plan or coverage;

(B) shall reimburse such individual in a timely manner for any amount for such item or service paid by the individual to such provider in excess of such cost-sharing amount;

(C) shall submit any claim for such item or service directly to the plan or coverage; and

(D) shall not bill the individual for such cost-sharing amount until such individual is informed by the plan or coverage of the required payment amount.

(2) PROTECTING UNINSURED INDIVIDUALS.—As a condition of receipt by a health care provider of reimbursement under this section, if the health care provider furnishes any medically necessary item or service described in subparagraph (A), (B), or (C) of paragraph (3) during the emergency period described in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b-5(g)(1)(B)) (whether before, on, or after, the date on which the provider submits an application under this section) to an uninsured individual who is described in such subparagraph (A), (B), or (C), respectively, the health care provider—

(A) shall submit a claim for purposes of reimbursement, with respect to such item or service—

(i) from the uninsured portal established pursuant to the provider relief fund established through the Public Health and Social Services Emergency Fund under the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136), or pursuant to activities authorized under section 2812 of the Public Health Service Act (42 U.S.C. 300hh–11) under the Public Health and Social Services Emergency Fund under the Families First Coronavirus Response Act (Public Law 116–127); or

(ii) if applicable, under this section with respect to expenses incurred in providing uncompensated care (as described in subsection (g)(4)) with respect to such medical care); and

(B) if such claim is eligible for such reimbursement—

(i) shall consider the amount of such reimbursement as payment in full with respect to such item or service so furnished to such individual;

(ii) may not bill or otherwise hold liable such individual for any payment for such item or service so furnished to such individual; and

(iii) shall reimburse such individual in a timely manner for any amount for such item or service paid by the individual to such provider.

(3) MEDICALLY NECESSARY ITEMS AND SERVICES DESCRIBED.—For purposes of this subsection, medically necessary items and services described in this paragraph are—

(A) medically necessary items and services (including in-person or telehealth visits in which such items and services are furnished) that are furnished to an individual who has been diagnosed with (or after provision of the items and services is diagnosed with) COVID–19 to treat or mitigate the effects of COVID–19;

(B) medically necessary items and services (including in-person or telehealth visits in which such items and services are furnished) that are furnished to an individual who is presumed, in accordance with paragraph (4), to have COVID–19 but is never diagnosed as such; and

(C) a diagnostic test (and administration of such test) as described in section 6001(a) of division F of the Families First Coronavirus Response Act (42 U.S.C. 1320b–5 note) administered to an individual.

(4) PRESUMPTIVE CASE OF COVID–19.—For purposes of paragraph (3)(B), an individual shall be presumed to have COVID–19 if the medical record documentation of the individual supports a diagnosis of COVID–19, even if the individual does not have a positive in vitro diagnostic test result in the medical record of the individual.

(5) PENALTY.—In the case of an eligible health care provider that is paid a reimbursement under this section and that is in violation of paragraph (1) or (2), in addition to any other penalties that may be prescribed by law, the Secretary may recoup from such provider up to the full amount of reimbursement the provider receives under this section.

(6) DEFINITIONS.—In this subsection:

(A) NONPARTICIPATING PROVIDER.—The term ''nonparticipating provider'' means, with respect to an item or service and group health plan or group or individual health insurance coverage offered by a health insurance issuer, a health care provider that does not have a contractual relationship directly or indirectly with the plan or issuer, respectively, for furnishing such an item or service under the plan or coverage.

(B) PARTICIPATING PROVIDER.—The term ''participating provider'' means, with respect to an item or service and group health plan or group or individual health insurance coverage offered by a health insurance issuer, a health care provider that has a contractual relationship directly or indirectly with the plan or issuer, respectively, for furnishing such an item or service under the plan or coverage.

(C) GROUP HEALTH PLAN, HEALTH INSURANCE COVERAGE.—The terms ''group health plan'', ''health insurance issuer'', ''group health insurance coverage'', and ''individual health insurance coverage'' shall have the meanings given such terms under section 2791 of the Public Health Service Act (42 U.S.C. 300gg–91).

(D) UNINSURED INDIVIDUAL.—The term ''uninsured individual'' shall have the meaning given such term in the Families First Coronavirus Response Act (Public Law 116–127) for purposes of the additional amount made available under such Act to the Public Health and Social Services Emergency Fund for activities authorized under section 2812 of the Public Health Service Act (42 U.S.C. 300hh–11).

(j) REPORTS.—

(1) AWARD INFORMATION.—In making awards under this section, the Secretary shall post in a searchable, electronic format, a list of all recipients and awards pursuant to funding authorized under this section.

(2) REPORTS BY RECIPIENTS.—Each recipient of an award under this section shall, as a condition on receipt of such award, submit reports and maintain documentation, in such form, at such time, and containing such information, as the Secretary determines is needed to ensure compliance with this section.

(3) PUBLIC LISTING OF AWARDS.—The Secretary shall—

(A) not later than 7 days after the date of enactment of this Act, post in a searchable, electronic format, a list of all awards made by the Secretary under this section, including the recipients and amounts of such awards; and

(B) update such list not less than every 7 days until all funds made available to carry out this section are expended.

(4) INSPECTOR GENERAL REPORT.—

(A) IN GENERAL.—Not later than 3 years after final payments are made under this section, the Inspector General of the Department of Health and Human Services shall transmit a final report on audit findings with respect to the program under this section to the Committee on Energy and Commerce and the Committee on Appropriations of the House of Representatives and the Committee on Health, Education, Labor and Pensions and the Committee on Appropriations of the Senate.

(B) RULE OF CONSTRUCTION.—Nothing in this paragraph shall be construed as limiting the authority of the Inspector General of the Department of Health and Human Services or the Comptroller General of the United States to conduct audits of interim payments earlier than the deadline described in subparagraph (A).

(k) ELIGIBLE HEALTH CARE PROVIDER DEFINED.—In this section:

(1) IN GENERAL.—The term ''eligible health care provider'' means a health care provider described in paragraph (2) that provides diagnostic or testing services or treatment to individuals with a confirmed or possible diagnosis of COVID–19.

(2) HEALTH CARE PROVIDERS DESCRIBED.—A health care provider described in this paragraph is any of the following:

(A) A health care provider enrolled as a participating provider under a State plan approved under title XIX of the Social Security Act (42 U.S.C. 1396 et seq.) (or a waiver of such a plan).

(B) A provider of services (as defined in subsection (u) of section 1861 of the Social Security Act (42 U.S.C. 1395x)) or a supplier (as defined in subsection (d) of such section) that is enrolled as a participating provider of services or participating supplier under the Medicare program under title XVIII of such Act (42 U.S.C. 1395 et seq.).

(C) A public entity.

(D) Any other entity not described in this paragraph as the Secretary may specify.

(l) FUNDING.—

(1) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated for an additional amount to carry out this section $50,000,000,000, to remain available until expended.

(2) HEALTH CARE PROVIDER RELIEF FUND.—

(A) USE OF APPROPRIATED FUNDS.—

(i) IN GENERAL.—In addition to amounts authorized to be appropriated pursuant to paragraph (1), the unobligated balance of all amounts appropriated to the Health Care Provider Relief Fund shall be made available only to carry out this section.

(ii) AMOUNTS.—For purposes of clause (i), the following amounts are deemed to be appropriated to the Health Care Provider Relief Fund:

(I) The unobligated balance of the appropriation of $100,000,000,000 in the third paragraph under the heading ''Department of Health and Human Services—Office of the Secretary—Public Health and Social Services Emergency Fund'' in division B of the CARES Act (Public Law 116–136).

(II) The unobligated balance of the appropriation under the heading ''Department of Health and Human Services—Office of the Secretary—Public Health and Social Services Emergency Fund'' in division B of the Paycheck Protection Program and Health Care Enhancement Act (Public Law 116–139).

(B) LIMITATION.—Of the unobligated balances described in subparagraph (A)(ii), the Secretary may not make available more than $5,000,000,000 to reimburse eligible health care providers for expenses incurred in providing uncompensated care.

(C) FUTURE AMOUNTS.—Any appropriation enacted subsequent to the date of enactment of this Act that is made available for reimbursing eligible health care providers as described in subsection (a) shall be made available only to carry out this section.

SEC. 612. PUBLIC HEALTH WORKFORCE LOAN REPAYMENT PROGRAM.

Part D of title III of the Public Health Service Act (42 U.S.C. 254b et seq.) is amended by adding at the end the following new subpart:

''Subpart XIII—Public Health Workforce

''SEC. 340J. LOAN REPAYMENT PROGRAM.

''(a) ESTABLISHMENT.—The Secretary of Health and Human Services shall establish a program to be known as the Public Health Workforce Loan Repayment Program (referred to in this section as the 'Program') to assure an adequate supply of and encourage recruitment of public health professionals to eliminate critical public health workforce shortages in local, State, territorial, and Tribal public health agencies.

''(b) ELIGIBILITY.—To be eligible to participate in the Program, an individual shall—

''(1)(A) be accepted for enrollment, or be enrolled, as a student in an accredited academic educational institution in a State or territory in the final semester or equivalent of a course of study or program leading to a public health degree, a health professions degree or certificate, or a degree in computer science, information science, information systems, information technology, or statistics and have accepted employment with a local, State, territorial, or Tribal public health agency, or a related training fellowship, as recognized by the Secretary, to commence upon graduation; or

''(B)(i) have graduated, during the preceding 10-year period, from an accredited educational institution in a State or territory and received a public health degree, a health professions degree or certificate, or a degree in computer science, information science, information systems, information technology, or statistics; and

''(ii) be employed by, or have accepted employment with, a local, State, territorial, or Tribal public health agency or a related training fellowship, as recognized by the Secretary;

''(2) be a United States citizen;

''(3)(A) submit an application to the Secretary to participate in the Program; and

''(B) execute a written contract as required in subsection (c); and

''(4) not have received, for the same service, a reduction of loan obligations under section 428K or 428L of the Higher Education Act of 1965 (20 U.S.C. 1078–11, 1078–12).

''(c) CONTRACT.—The written contract referred to in subsection (b)(3)(B) between the Secretary and an individual shall contain—

''(1) an agreement on the part of the Secretary that the Secretary will repay, on behalf of the individual, loans incurred by the individual in the pursuit of the relevant degree or certificate in accordance with the terms of the contract;

''(2) an agreement on the part of the individual that the individual will serve in the full-time employment of a local, State, or Tribal public health agency or a related fellowship program in a position related to the course of study or program for which the contract was awarded for a period of time equal to the greater of—

''(A) 2 years; or

''(B) such longer period of time as determined appropriate by the Secretary and the individual;

''(3) an agreement, as appropriate, on the part of the individual to relocate to a priority service area (as determined by the Secretary) in exchange for an additional loan repayment incentive amount to be determined by the Secretary;

''(4) a provision that any financial obligation of the United States arising out of a contract entered into under this section and any obligation of the individual that is conditioned thereon, is contingent on funds being appropriated for loan repayments under this section;

''(5) a statement of the damages to which the United States is entitled, under this section for the individual's breach of the contract; and

''(6) such other statements of the rights and liabilities of the Secretary and of the individual as the Secretary determines appropriate, not inconsistent with this section.

''(d) PAYMENTS.—

''(1) IN GENERAL.—A loan repayment provided for an individual under a written contract referred to in subsection (b)(3)(B) shall consist of payment, in accordance with paragraph (2), for the individual toward the outstanding principal and interest on education loans incurred by the individual in the pursuit of the relevant degree in accordance with the terms of the contract.

''(2) EQUITABLE DISTRIBUTION.—In awarding contracts under this section, the Secretary shall ensure—

''(A) a certain percentage of contracts are awarded to individuals who are not already working in public health departments;

''(B) an equitable distribution of funds geographically; and

''(C) an equitable distribution among State, local, territorial, and Tribal public health departments.

''(3) PAYMENTS FOR YEARS SERVED.—For each year of service that an individual contracts to serve pursuant to subsection (c)(2), the Secretary may pay not more than $35,000 on behalf of the individual for loans described in paragraph (1). With respect to participants under the Program whose total eligible loans are less than $105,000, the Secretary shall pay an amount that does not exceed ⅓ of the eligible loan balance for each year of such service of such individual.

''(4) TAX LIABILITY.—For purposes of the Internal Revenue Code of 1986, a payment made under this section shall be treated in the same manner as an amount received under section 338B(g) of this Act, as described in section 108(f)(4) of such Code.

''(e) POSTPONING OBLIGATED SERVICE.—With respect to an individual receiving a degree or certificate from a health professions or other related school, the date of the initiation of the period of obligated service may be postponed as approved by the Secretary.

''(f) BREACH OF CONTRACT.—An individual who fails to comply with the contract entered into under subsection (c) shall be subject to the same financial penalties as provided for under section 338E of the Public Health Service Act (42 U.S.C. 254o) for breaches of loan repayment contracts under section 338B of such Act (42 U.S.C. section 254l–1).

''(g) DEFINITION.—For purposes of this section, the term 'full-time' means full-time as such term is used in section 455(m)(3) of the Higher Education Act of 1965.

''(h) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section—

''(1) $100,000,000 for fiscal year 2021; and

''(2) $75,000,000 for fiscal year 2022.''.

SEC. 613. EXPANDING CAPACITY FOR HEALTH OUTCOMES.

(a) IN GENERAL.—The Secretary, acting through the Administrator of the Health Resources and Services Administration, shall award grants to eligible entities to develop and expand the use of technology-enabled collaborative learning and capacity building models to respond to ongoing and real-time learning, health care information sharing, and capacity building needs related to COVID–19.

(b) ELIGIBLE ENTITIES.—To be eligible to receive a grant under this section, an entity shall have experience providing technology-enabled collaborative learning and capacity building health care services—

(1) in rural areas, frontier areas, health professional shortage areas, or medically underserved area; or

(2) to medically underserved populations or Indian Tribes.

(c) USE OF FUNDS.—An eligible entity receiving a grant under this section shall use funds received through the grant—

(1) to advance quality of care in response to COVID–19, with particular emphasis on rural and underserved areas and populations;

(2) to protect medical personnel and first responders through sharing real-time learning through virtual communities of practice;

(3) to improve patient outcomes for conditions affected or exacerbated by COVID–19, including improvement of care for patients with complex chronic conditions; and

(4) to support rapid uptake by health care professionals of emerging best practices and treatment protocols around COVID–19.

(d) OPTIONAL ADDITIONAL USES OF FUNDS.—An eligible entity receiving a grant under this section may use funds received through the grant for—

(1) equipment to support the use and expansion of technology-enabled collaborative learning and capacity building models, including hardware and software that enables distance learning, health care provider support, and the secure exchange of electronic health information;

(2) the participation of multidisciplinary expert team members to facilitate and lead technology-enabled collaborative learning sessions, and professionals and staff assisting in the development and execution of technology-enabled collaborative learning;

(3) the development of instructional programming and the training of health care providers and other professionals that provide or assist in the provision of services through technology-enabled collaborative learning and capacity building models; and

(4) other activities consistent with achieving the objectives of the grants awarded under this section.

(e) TECHNOLOGY-ENABLED COLLABORATIVE LEARNING AND CAPACITY BUILDING MODEL DEFINED.—In this section, the term ''technology-enabled collaborative learning and capacity building model'' has the meaning given that term in section 2(7) of the Expanding Capacity for Health Outcomes Act (Public Law 114–270; 130 Stat. 1395).

(f) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $20,000,000, to remain available until expended.

SEC. 614. ADDITIONAL FUNDING FOR MEDICAL RESERVE CORPS.

Section 2813(i) of the Public Health Service Act (42 U.S.C. 300hh–15(i)) is amended by striking ''$11,200,000 for each of fiscal years 2019 through 2023'' and inserting ''$31,200,000 for each of fiscal years 2021 and 2022 and $11,200,000 for each of fiscal years 2023 through 2025''.

SEC. 615. GRANTS FOR SCHOOLS OF MEDICINE IN DIVERSE AND UNDERSERVED AREAS.

Subpart II of part C of title VII of the Public Health Service Act is amended by inserting after section 749B of such Act (42 U.S.C. 293m) the following:

''SEC. 749C. SCHOOLS OF MEDICINE IN UNDERSERVED AREAS.

''(a) GRANTS.—The Secretary, acting through the Administrator of the Health Resources and Services Administration, may award grants to institutions of higher education (including multiple institutions of higher education applying jointly) for the establishment, improvement, and expansion of an allopathic or osteopathic school of medicine, or a branch campus of an allopathic or osteopathic school of medicine.

''(b) PRIORITY.—In selecting grant recipients under this section, the Secretary shall give priority to institutions of higher education that—

''(1) propose to use the grant for an allopathic or osteopathic school of medicine, or a branch campus of an allopathic or osteopathic school of medicine, in a combined statistical area with fewer than 200 actively practicing physicians per 100,000 residents according to the medical board (or boards) of the State (or States) involved;

''(2) have a curriculum that emphasizes care for diverse and underserved populations; or

''(3) are minority-serving institutions described in the list in section 371(a) of the Higher Education Act of 1965.

''(c) USE OF FUNDS.—The activities for which a grant under this section may be used include—

''(1) planning and constructing—

''(A) a new allopathic or osteopathic school of medicine in an area in which no other school is based; or

''(B) a branch campus of an allopathic or osteopathic school of medicine in an area in which no such school is based;

''(2) accreditation and planning activities for an allopathic or osteopathic school of medicine or branch campus;

''(3) hiring faculty and other staff to serve at an allopathic or osteopathic school of medicine or branch campus;

''(4) recruitment and enrollment of students at an allopathic or osteopathic school of medicine or branch campus;

''(5) supporting educational programs at an allopathic or osteopathic school of medicine or branch campus;

''(6) modernizing infrastructure or curriculum at an existing allopathic or osteopathic school of medicine or branch campus thereof;

''(7) expanding infrastructure or curriculum at existing an allopathic or osteopathic school of medicine or branch campus; and

''(8) other activities that the Secretary determines further the development, improvement, and expansion of an allopathic or osteopathic school of medicine or branch campus thereof.

''(d) DEFINITIONS.—In this section:

''(1) The term 'branch campus' means a geographically separate site at least 100 miles from the main campus of a school of medicine where at least one student completes at least 60 percent of the student's training leading to a degree of doctor of medicine.

''(2) The term 'institution of higher education' has the meaning given to such term in section 101(a) of the Higher Education Act of 1965.

''(e) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there is authorized to be appropriated $1,000,000,000, to remain available until expended.''.

SEC. 616. GAO STUDY ON PUBLIC HEALTH WORKFORCE.

(a) IN GENERAL.—The Comptroller General of the United States shall conduct a study on the public health workforce in the United States during the COVID–19 pandemic.

(b) TOPICS.—The study under subsection (a) shall address—

(1) existing gaps in the Federal, State, local, Tribal, and territorial public health workforce, including—

(A) epidemiological and disease intervention specialists needed during the pandemic for contact tracing, laboratory technicians necessary for testing, community health workers for community supports and services, and other staff necessary for contact tracing, testing, or surveillance activities; and

(B) other personnel needed during the COVID–19 pandemic;

(2) challenges associated with the hiring, recruitment, and retention of the Federal, State, local, Tribal, and territorial public health workforce; and

(3) recommended steps the Federal Government should take to improve hiring, recruitment, and retention of the public health workforce.

(c) REPORT.—Not later than December 1, 2022, the Comptroller General shall submit to the Congress a report on the findings of the study conducted under this section.

SEC. 617. LONGITUDINAL STUDY ON THE IMPACT OF COVID–19 ON RECOVERED PATIENTS.

Part A of title IV of the Public Health Service Act (42 U.S.C. 281 et seq.) is amended by adding at the end the following:

''SEC. 404O. LONGITUDINAL STUDY ON THE IMPACT OF COVID–19 ON RECOVERED PATIENTS.

''(a) IN GENERAL.—The Director of NIH, in consultation with the Director of the Centers for Disease Control and Prevention, shall conduct a longitudinal study, over not less than 10 years, on the full impact of SARS–CoV–2 or COVID–19 on infected individuals, including both short-term and long-term health impacts.

''(b) TIMING.—The Director of NIH shall begin enrolling patients in the study under this section not later than 6 months after the date of enactment of this section.

''(c) REQUIREMENTS.—The study under this section shall—

''(1) be nationwide;

''(2) include diversity of enrollees to account for gender, age, race, ethnicity, geography, comorbidities, and underrepresented populations, including pregnant and lactating women;

''(3) study individuals with COVID–19 who experienced mild symptoms, such individuals who experienced moderate symptoms, and such individuals who experienced severe symptoms;

''(4) monitor the health outcomes and symptoms of individuals with COVID–19, or who had prenatal exposure to SARS–CoV–2 or COVID–19, including lung capacity and function, and immune response, taking into account any pharmaceutical interventions such individuals may have received;

''(5) monitor the mental health outcomes of individuals with COVID–19, taking into account any interventions that affected mental health; and

''(6) monitor individuals enrolled in the study not less frequently than twice per year after the first year of the individual's infection with SARS–CoV–2.

''(d) PUBLIC-PRIVATE RESEARCH NETWORK.—For purposes of carrying out the study under this section, the Director of NIH may develop a network of public-private research partners, provided that all research, including the research carried out through any such partner, is available publicly.

''(e) SUMMARIES OF FINDINGS.—The Director of NIH shall make public a summary of findings under this section not less frequently than once every 3 months for the first 2 years of the study, and not less frequently than every 6 months thereafter. Such summaries may include information about how the findings of the study under this section compare with findings from research conducted abroad.

''(f) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $200,000,000, to remain available until expended.''.

SEC. 618. RESEARCH ON THE MENTAL HEALTH IMPACT OF COVID–19.

(a) IN GENERAL.—The Secretary, acting through the Director of the National Institute of Mental Health, shall conduct or support research on the mental health consequences of SARS–CoV–2 or COVID–19.

(b) USE OF FUNDS.—Research under subsection (a) may include the following:

(1) Research on the mental health impact of SARS–CoV–2 or COVID–19 on health care providers, including—

(A) traumatic stress;

(B) psychological distress; and

(C) psychiatric disorders.

(2) Research on the impact of SARS–CoV–2 or COVID–19 stressors on mental health over time.

(3) Research to strengthen the mental health response to SARS–CoV–2 or COVID–19, including adapting to and maintaining or providing additional services for new or increasing mental health needs.

(4) Research on the reach, efficiency, effectiveness, and quality of digital mental health interventions.

(5) Research on effectiveness of strategies for implementation and delivery of evidence-based mental health interventions and services for underserved populations.

(6) Research on suicide prevention.

(c) RESEARCH COORDINATION.—The Secretary shall coordinate activities under this section with similar activities conducted by national research institutes and centers of the National Institutes of Health to the extent that such institutes and centers have responsibilities that are related to the mental health consequences of SARS–CoV–2 or COVID–19.

(d) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there is authorized to be appropriated $200,000,000, to remain available until expended.

SEC. 619. EMERGENCY MENTAL HEALTH AND SUBSTANCE USE TRAINING AND TECHNICAL ASSISTANCE CENTER.

Subpart 3 of part B of title V of the Public Health Service Act (42 U.S.C. 290bb–31 et seq.) is amended by inserting after section 520A (42 U.S.C. 290bb–32) the following:

''SEC. 520B. EMERGENCY MENTAL HEALTH AND SUBSTANCE USE TRAINING AND TECHNICAL ASSISTANCE CENTER.

''(a) ESTABLISHMENT.—The Secretary, acting through the Assistant Secretary, shall establish or operate a center to be known as the Emergency Mental Health and Substance Use Training and Technical Assistance Center (referred to in this section as the 'Center') to provide technical assistance and support—

''(1) to public or nonprofit entities seeking to establish or expand access to mental health and substance use prevention, treatment, and recovery support services, and increase awareness of such services; and

''(2) to public health professionals, health care professionals and support staff, essential workers (as defined by a State, Tribe, locality, or territory), and members of the public to address the trauma, stress, and mental health needs associated with an emergency period.

''(b) ASSISTANCE AND SUPPORT.—The assistance and support provided under subsection (a) shall include assistance and support with respect to—

''(1) training on identifying signs of trauma, stress, and mental health needs;

''(2) providing accessible resources to assist individuals and families experiencing trauma, stress, or other mental health needs during and after an emergency period;

''(3) providing resources for substance use disorder prevention, treatment, and recovery designed to assist individuals and families during and after an emergency period;

''(4) the provision of language access services, including translation services, interpretation, or other such services for individuals with limited English speaking proficiency or people with disabilities; and

''(5) evaluation and improvement, as necessary, of the effectiveness of such services provided by public or nonprofit entities.

''(c) BEST PRACTICES.—The Center shall periodically issue best practices for use by organizations seeking to provide mental health services or substance use disorder prevention, treatment, or recovery services to individuals during and after an emergency period.

''(d) EMERGENCY PERIOD.—In this section, the term 'emergency period' has the meaning given such term in section 1135(g)(1)(A) of the Social Security Act.

''(e) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $20,000,000 for each of fiscal years 2021 and 2022.''.

SEC. 620. IMPORTANCE OF THE BLOOD AND PLASMA SUPPLY.

(a) IN GENERAL.—Section 3226 of the CARES Act (Public Law 116–136) is amended—

(1) in the section heading after ''**5BLOOD**'' by inserting ''**AND PLASMA**''; and

(2) by inserting after ''blood'' each time it appears ''and plasma''.

(b) CONFORMING AMENDMENT.—The item relating to section 3226 in the table of contents in section 2 of the CARES Act (Public Law 116–136) is amended to read as follows:

''Sec. 3226. Importance of the blood and plasma supply.''.

Subtitle B—Assistance for Individuals and Families

SEC. 631. REIMBURSEMENT FOR ADDITIONAL HEALTH SERVICES RELATING TO CORONAVIRUS.

Title V of division A of the Families First Coronavirus Response Act (Public Law 116–127; 134 Stat. 182) is amended under the heading ''Department of Health and Human Services—Office of the Secretary—Public Health and Social Services Emergency Fund'' by inserting '', or treatment related to SARS–CoV–2 or COVID–19 for uninsured individuals'' after ''or visits described in paragraph (2) of such section for uninsured individuals''.

SEC. 632. CENTERS FOR DISEASE CONTROL AND PREVENTION COVID–19 RESPONSE LINE.

(a) IN GENERAL.—During the public health emergency declared by the Secretary pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) on January 31, 2020, with respect to COVID–19, the Secretary, acting through the Director of the Centers for Disease Control and Prevention, shall maintain a toll-free telephone number to address public health queries, including questions concerning COVID–19.

(b) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there is authorized to be appropriated $10,000,000, to remain available until expended.

SEC. 633. GRANTS TO ADDRESS SUBSTANCE USE DURING COVID–19.

(a) IN GENERAL.—The Assistant Secretary for Mental Health and Substance Use of the Department of Health and Human Services (in this section referred to as the ''Assistant Secretary''), in consultation with the Director of the Centers for Disease Control and Prevention, shall award grants to States, political subdivisions of States, Tribes, Tribal organizations, and community-based entities to address the harms of drug misuse, including by—

(1) preventing and controlling the spread of infectious diseases, such as HIV/AIDS and viral hepatitis, and the consequences of such diseases for individuals with substance use disorder;

(2) connecting individuals at risk for or with a substance use disorder to overdose education, counseling, and health education; or

(3) encouraging such individuals to take steps to reduce the negative personal and public health impacts of substance use or misuse during the emergency period.

(b) CONSIDERATIONS.—In awarding grants under this section, the Assistant Secretary shall prioritize grants to applicants proposing to serve areas with—

(1) a high proportion of people who meet criteria for dependence on or abuse of illicit drugs who have not received any treatment;

(2) high drug overdose death rates;

(3) high telemedicine infrastructure needs; and

(4) high behavioral health and substance use disorder workforce needs.

(c) DEFINITION.—In this section, the term ''emergency period'' has the meaning given to such term in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b–5(g)(1)(B))).

(d) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there is authorized to be appropriated $10,000,000, to remain available until expended.

SEC. 634. GRANTS TO SUPPORT INCREASED BEHAVIORAL HEALTH NEEDS DUE TO COVID–19.

(a) IN GENERAL.—The Secretary, acting through the Assistant Secretary of Mental Health and Substance Use, shall award grants to States, political subdivisions of States, Indian Tribes and Tribal organizations, community-based entities, and primary care and behavioral health organizations to address behavioral health needs caused by the public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) with respect to COVID–19.

(b) USE OF FUNDS.—An entity that receives a grant under subsection (a) may use funds received through such grant to—

(1) increase behavioral health treatment and prevention capacity, including to—

(A) promote coordination among local entities;

(B) train the behavioral health workforce, relevant stakeholders, and community members;

(C) upgrade technology to support effective delivery of health care services through telehealth modalities;

(D) purchase medical supplies and equipment for behavioral health treatment entities and providers;

(E) address surge capacity for behavioral health needs such as through mobile units; and

(F) promote collaboration between primary care and mental health providers; and

(2) support or enhance behavioral health services, including—

(A) emergency crisis intervention, including mobile crisis units, 24/7 crisis call centers, and medically staffed crisis stabilization programs;

(B) screening, assessment, diagnosis, and treatment;

(C) mental health awareness trainings;

(D) evidence-based suicide prevention;

(E) evidence-based integrated care models;

(F) community recovery supports;

(G) outreach to underserved and minority communities; and

(H) for front line health care workers.

(c) PRIORITY.—The Secretary shall give priority to applicants proposing to serve areas with a high number of COVID–19 cases.

(d) EVALUATION.—An entity that receives a grant under this section shall prepare and submit an evaluation to the Secretary at such time, in such manner, and containing such information as the Secretary may reasonably require, including—

(1) an evaluation of activities carried out with funds received through the grant; and

(2) a process and outcome evaluation.

(e) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there is authorized to be appropriated $50,000,000 for each of fiscal years 2021 and 2022, to remain available until expended.

Subtitle C—Assistance to Tribes

SEC. 641. IMPROVING STATE, LOCAL, AND TRIBAL PUBLIC HEALTH SECURITY.

Section 319C–1 of the Public Health Service Act (42 U.S.C. 247d–3a) is amended—

*(1) in the section heading, by striking ''**AND LOCAL**'' and inserting ''**, LOCAL, AND TRIBAL**'';*

(2) in subsection (b)—

(A) in paragraph (1)—

(i) in subparagraph (B), by striking ''or'' at the end;

(ii) in subparagraph (C), by striking ''and'' at the end and inserting ''or''; and

(iii) by adding at the end the following:

''(D) be an Indian Tribe, Tribal organization, or a consortium of Indian Tribes or Tribal organizations; and''; and

(B) in paragraph (2)—

(i) in the matter preceding subparagraph (A), by inserting '', as applicable'' after ''including'';

(ii) in subparagraph (A)(viii)—

(I) by inserting ''and Tribal'' after ''with State'';

(II) by striking ''(as defined in section 8101 of the Elementary and Secondary Education Act of 1965)'' and inserting ''and Tribal educational agencies (as defined in sections 8101 and 6132, respectively, of the Elementary and Secondary Education Act of 1965)''; and

(III) by inserting ''and Tribal'' after ''and State'';

(iii) in subparagraph (G), by striking ''and tribal'' and inserting ''Tribal, and urban Indian organization''; and

(iv) in subparagraph (H), by inserting '', Indian Tribes, and urban Indian organizations'' after ''public health'';

(3) in subsection (e), by inserting ''Indian Tribes, Tribal organizations, urban Indian organizations,'' after ''local emergency plans,'';

(4) in subsection (g)(1), by striking ''tribal officials'' and inserting ''Tribal officials'';

(5) in subsection (h)—

(A) in paragraph (1)(A)—

(i) by striking ''through 2023'' and inserting ''and 2020''; and

(ii) by inserting before the period ''; and $690,000,000 for each of fiscal years 2021 through 2024 for awards pursuant to paragraph (3) (subject to the authority of the Secretary to make awards pursuant to paragraphs (4) and (5)) and paragraph (8), of which not less than $5,000,000 shall be reserved each fiscal year for awards under paragraph (8)'';

(B) in paragraph (2)(B), by striking ''tribal public'' and inserting ''Tribal public'';

(C) in the heading of paragraph (3), by inserting ''FOR STATES'' after ''AMOUNT''; and

(D) by adding at the end the following:

''(8) TRIBAL ELIGIBLE ENTITIES.—

''(A) DETERMINATION OF FUNDING AMOUNT.—

''(i) IN GENERAL.—The Secretary shall award at least 10 cooperative agreements under this section, in amounts not less than the minimum amount determined under clause (ii), to eligible entities described in subsection (b)(1)(D) that submits to the Secretary an application that meets the criteria of the Secretary for the receipt of such an award and that meets other reasonable implementation conditions established by the Secretary, in consultation with Indian Tribes, for such awards. If the Secretary receives more than 10 applications under this section from eligible entities described in subsection (b)(1)(D) that meet the criteria and conditions described in the previous sentence, the Secretary, in consultation with Indian Tribes, may make additional awards under this section to such entities.

''(ii) MINIMUM AMOUNT.—In determining the minimum amount of an award pursuant to clause (i), the Secretary, in consultation with Indian Tribes, shall first determine an amount the Secretary considers appropriate for the eligible entity.

''(B) AVAILABLE UNTIL EXPENDED.—Amounts provided to a Tribal eligible entity under a cooperative agreement under this section for a fiscal year and remaining unobligated at the end of such year shall remain available to such entity during the entirety of the performance period, for the purposes for which said funds were provided.

''(C) NO MATCHING REQUIREMENT.—Subparagraphs (B), (C), and (D) of paragraph (1) shall not apply with respect to cooperative agreements awarded under this section to eligible entities described in subsection (b)(1)(D).''; and

(6) by adding at the end the following:

''(l) SPECIAL RULES RELATED TO TRIBAL ELIGIBLE ENTITIES.—

''(1) MODIFICATIONS.—After consultation with Indian Tribes, the Secretary may make necessary and appropriate modifications to the program under this section to facilitate the use of the cooperative agreement program by eligible entities described in subsection (b)(1)(D).

''(2) WAIVERS.—

''(A) IN GENERAL.—Except as provided in subparagraph (B), the Secretary may waive or specify alternative requirements for any provision of this section (including regulations) that the Secretary administers in connection with this section if the Secretary finds that the waiver or alternative requirement is necessary for the effective delivery and administration of this program with respect to eligible entities described in subsection (b)(1)(D).

''(B) EXCEPTION.—The Secretary may not waive or specify alternative requirements under subparagraph (A) relating to labor standards or the environment.

''(3) CONSULTATION.—The Secretary shall consult with Indian Tribes and Tribal organizations on the design of this program with respect to such Tribes and organizations to ensure the effectiveness of the program in enhancing the security of Indian Tribes with respect to public health emergencies.

''(4) REPORTING.—

''(A) IN GENERAL.—Not later than 2 years after the date of enactment of this subsection, and as an addendum to the biennial evaluations required under subsection (k), the Secretary, in coordination with the Director of the Indian Health Service, shall—

''(i) conduct a review of the implementation of this section with respect to eligible entities described in subsection (b)(1)(D), including any factors that may have limited its success; and

''(ii) submit a report describing the results of the review described in clause (i) to—

''(I) the Committee on Indian Affairs, the Committee on Health, Education, Labor and Pensions, and the Committee on Appropriations of the Senate; and

''(II) the Subcommittee for Indigenous Peoples of the United States of the Committee on Natural Resources, the Committee on Energy and Commerce, and the Committee on Appropriations of the House of Representatives.

''(B) ANALYSIS OF TRIBAL PUBLIC HEALTH EMERGENCY INFRASTRUCTURE LIMITATION.—The Secretary shall include in the initial report submitted under subparagraph (A) a description of

any public health emergency infrastructure limitation encountered by eligible entities described in subsection (b)(1)(D).''.

SEC. 642. PROVISION OF ITEMS TO INDIAN PROGRAMS AND FACILITIES.

(a) STRATEGIC NATIONAL STOCKPILE.—Section 319F–2(a)(3)(G) of the Public Health Service Act (42 U.S.C. 247d–6b(a)(3)(G)) is amended by inserting '', and, in the case that the Secretary deploys the stockpile under this subparagraph, ensure, in coordination with the applicable States and programs and facilities, that appropriate drugs, vaccines and other biological products, medical devices, and other supplies are deployed by the Secretary directly to health programs or facilities operated by the Indian Health Service, an Indian Tribe, a Tribal organization (as those terms are defined in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304)), or an inter-Tribal consortium (as defined in section 501 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5381)) or through an urban Indian organization (as defined in section 4 of the Indian Health Care Improvement Act), while avoiding duplicative distributions to such programs or facilities'' before the semicolon.

(b) DISTRIBUTION OF QUALIFIED PANDEMIC OR EPIDEMIC PRODUCTS TO IHS FACILITIES.—Title III of the Public Health Service Act (42 U.S.C. 241 et seq.) is amended by inserting after section 319F–4 the following:

''SEC. 319F–5. DISTRIBUTION OF QUALIFIED PANDEMIC OR EPIDEMIC PRODUCTS TO INDIAN PROGRAMS AND FACILITIES.

''In the case that the Secretary distributes qualified pandemic or epidemic products (as defined in section 319F–3(i)(7)) to States or other entities, the Secretary shall ensure, in coordination with the applicable States and programs and facilities, that, as appropriate, such products are distributed directly to health programs or facilities operated by the Indian Health Service, an Indian Tribe, a Tribal organization (as those terms are defined in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304)), or an inter-Tribal consortium (as defined in section 501 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5381)) or through an urban Indian organization (as defined in section 4 of the Indian Health Care Improvement Act), while avoiding duplicative distributions to such programs or facilities.''.

SEC. 643. HEALTH CARE ACCESS FOR URBAN NATIVE VETERANS.

Section 405 of the Indian Health Care Improvement Act (25 U.S.C. 1645) is amended—

(1) in subsection (a)(1), by inserting ''urban Indian organizations,'' before ''and tribal organizations''; and

(2) in subsection (c)—

(A) by inserting ''urban Indian organization,'' before ''or tribal organization''; and

(B) by inserting ''an urban Indian organization,'' before ''or a tribal organization''.

SEC. 644. TRIBAL SCHOOL FEDERAL INSURANCE PARITY.

Section 409 of the Indian Health Care Improvement Act (25 U.S.C. 1647b) is amended by inserting ''or the Tribally Controlled Schools Act of 1988 (25 U.S.C. 2501 et seq.)'' after ''(25 U.S.C. 450 et seq.)''.

SEC. 645. PRC FOR NATIVE VETERANS.

Section 405(c) of the Indian Health Care Improvement Act (25 U.S.C. 1645) is amended by inserting before the period at the end the following: '', regardless of whether such services are provided directly by the Service, an Indian tribe, or tribal organization, through contract health services, or through a contract for travel described in section 213(b)''.

Subtitle D—Public Health Assistance to Essential Workers

SEC. 651. CONTAINMENT AND MITIGATION FOR ESSENTIAL WORKERS PROGRAM.

(a) PROGRAM.—The Secretary, acting through the Director of the Centers for Disease Control and Prevention and in consultation with the Director of the National Institute for Occupational Safety and Health, shall establish a COVID–19 containment and mitigation for essential workers program consisting of awarding grants under subsection (b).

(b) GRANTS.—For the purpose of improving essential worker safety, the Secretary—

(1) shall award a grant to each State health department; and

(2) may award grants on a competitive basis to State, local, Tribal, or territorial health departments.

(c) USE OF FUNDS.—A State, local, Tribal, or territorial health department receiving a grant under subsection (b) shall use the grant funds—

(1) to purchase or procure personal protective equipment and rapid testing equipment and supplies for distribution to employers of essential workers, including public employers; or

(2) to support the implementation of other workplace safety measures for use in containment and mitigation of COVID–19 transmission among essential workers in their workplaces, including workplaces of public employers.

(d) FORMULA GRANTS TO STATE HEALTH DEPARTMENTS.—In making grants under subsection (b)(1), the Secretary shall award funds to each State health department in accordance with a formula based on overall population size, essential workers population size, and burden of COVID–19.

(e) COMPETITIVE GRANTS TO STATE, LOCAL, TRIBAL, AND TERRITORIAL HEALTH DEPARTMENTS.—In making grants under subsection (b)(2), the Secretary shall give priority to applicants demonstrating a commitment to containing and mitigating COVID–19 among racial and ethnic minority groups who are disproportionately represented in essential worker settings.

(f) NO DUPLICATIVE ASSISTANCE LIMITATION.—The Secretary may not provide, and a State, local, Tribal, or territorial health department, or employer of essential workers may not accept, assistance under this section for containment and mitigation of COVID–19 transmission among essential workers in their workplaces with respect to which—

(1) the State, local, Tribal, or territorial health department, or employer of essential workers receives assistance from other sources for such purposes; or

(2) other sources are obligated to provide assistance to such health department or employer for such purposes.

(g) TECHNICAL ASSISTANCE.—In carrying out the program under this section, the Secretary shall provide technical assistance to State, local, Tribal, or territorial health departments.

(h) REPORT.—No later than 90 days after the date of enactment of this Act, and every 90 days thereafter, the Secretary shall submit to the Committee on Energy and Commerce and the Committee on Education and Labor of the House of Representatives and the Committee on Health, Education, Labor, and Pensions of the Senate a report on the activities funded through this section, including—

(1) the amount expended and the awardees under subsection (b)(1);

(2) the amount expended and the awardees under subsection (b)(2);

(3) the total amount remaining of the amounts appropriated or otherwise made available to carry out this section under subsection (i); and

(4) evaluating the progress of State, local, Tribal, and territorial health departments in reducing COVID–19 burden among essential workers.

(i) CONSULTATION WITH ESSENTIAL EMPLOYERS, ESSENTIAL WORKERS, AND EMPLOYEE REPRESENTATIVES OF ESSENTIAL WORKERS.—

(1) IN GENERAL.—In developing the strategy and program under subsection (a) and in determining criteria for distribution of competitive grants under this section, the Secretary of Health and Human Services, acting through the Director of the Centers for Disease Control and Prevention and in consultation with the Director of the National Institute for Occupational Safety and Health, shall consult in advance with—

(A) employers of essential workers;

(B) representatives of essential workers; and

(C) labor organizations representing essential workers.

(2) OPTIONAL ADVANCE CONSULTATION.—A State health department may, before receiving funding through a grant under this section, consult with employers of essential workers, representatives of workers, and labor organizations representing essential workers in determining—

(A) priorities for the use of such funds; and

(B) the distribution of COVID–19 containment and mitigation equipment and supplies.

(j) DEFINITIONS.—In this section:

(1) The term ''essential worker'' refers to—

(A) the ''essential critical infrastructure workers'' identified in the Department of Homeland Security's ''Advisory Memorandum on Ensuring Essential Critical Infrastructure Workers Ability to Work During the COVID–19 Response'' released on August 18, 2020 (or any successor document); and

(B) workers included as essential workers in executive orders issued by the Governor of a State.

(2) The term ''containment and mitigation'' includes the use of—

(A) personal protective equipment;

(B) other protections, including expanding or improving workplace infrastructure through engineering and work practice controls, such as ventilation systems, plexiglass partitions, air filters, and the use of hand sanitizer or sanitation supplies;

(C) access to medical evaluations, testing (including rapid testing), and contact tracing; and

(D) other related activities or equipment recommended or required by the Director of Centers of Disease Control and Prevention or required pursuant to the Occupational Safety and Health Act of 1970 (29 U.S.C. 651 et seq.) or a State plan approved pursuant to section 18 of that Act (29 U.S.C. 667); and

(k) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there is authorized to be appropriated $2,000,000,000, to remain available until expended.

TITLE VII—VACCINE DEVELOPMENT, DISTRIBUTION, ADMINISTRATION, AND AWARENESS

SEC. 701. DEFINITIONS.

In this title:

(1) The term ''ancillary medical supplies'' includes—

(A) vials;

(B) bandages;

(C) alcohol swabs;

(D) syringes;

(E) needles;

(F) gloves, masks, and other personal protective equipment;

(G) cold storage equipment; and

(H) other products the Secretary determines necessary for the administration of vaccines.

(2) The term ''Secretary'' means the Secretary of Health and Human Services.

SEC. 702. VACCINE AND THERAPEUTIC DEVELOPMENT AND PROCUREMENT.

(a) ENHANCING DEVELOPMENT, PROCUREMENT AND MANUFACTURING CAPACITY.—

(1) IN GENERAL.—The Secretary shall, as appropriate, award contracts, grants, and cooperative agreements, and, where otherwise allowed by law, enter into other transactions, for purposes of—

(A) expanding and enhancing COVID–19 and SARS–CoV–2 vaccine and therapeutic development and research;

(B) procurement of COVID–19 and SARS–CoV–2 vaccines, therapeutics, and ancillary medical supplies; and

(C) expanding and enhancing capacity for manufacturing vaccines, therapeutics, and ancillary medical supplies to prevent the spread of COVID–19 and SARS–CoV–2 and .

(2) AUTHORIZATION OF APPROPRIATIONS.—To carry out this subsection, there is authorized to be appropriated $20,000,000,000 for the period of fiscal years 2021 through 2025, to remain available until expended.

(b) REPORT ON VACCINE MANUFACTURING AND ADMINISTRATION CAPACITY.—Not later than December 1, 2020, the Secretary shall submit to the Committee on Energy and Commerce and the Committee on Appropriations of the House of Representatives and the Committee on Health, Education, Labor and Pensions and the Committee on Appropriations of the Senate a report detailing—

(1) an assessment of the estimated supply of vaccines and ancillary medical supplies related to vaccine administration necessary to control and stop the spread of SARS–CoV–2 and COVID–19, domestically and internationally;

(2) an assessment of current and future domestic capacity for manufacturing vaccines or vaccine candidates to control or stop the spread of SARS–CoV–2 and COVID–19 and ancillary medical supplies related to the administration of such vaccines, including—

(A) identification of any gaps in capacity for manufacturing; and

(B) the effects of shifting manufacturing resources to address COVID–19;

(3) activities conducted to expand and enhance capacity for manufacturing vaccines, vaccine candidates, and ancillary medical supplies to levels sufficient to control and stop the spread of SARS–CoV–2 and COVID–19, domestically and internationally, including a list and explanation of all contracts, grants, and cooperative agreements awarded, and other transactions entered into, for purposes of such expansion and enhancement and how such activities will help to meet future domestic manufacturing capacity needs;

(4) a plan for the ongoing support of enhanced capacity for manufacturing vaccines, vaccine candidates, and ancillary medical supplies sufficient to control and stop the spread of SARS–CoV–2 and COVID–19, domestically and internationally; and

(5) a plan to support the distribution and administration of vaccines approved or authorized by the Food and Drug Administration to control and stop the spread of SARS–CoV–2 and COVID–19, domestically and internationally, including Federal workforce enhancements necessary to administer such vaccines.

SEC. 703. VACCINE DISTRIBUTION AND ADMINISTRATION.

(a) IN GENERAL.—The Secretary, acting through the Director of the Centers for Disease Control and Prevention, shall—

(1) conduct activities to enhance, expand, and improve nationwide COVID–19 and SARS–CoV–2 vaccine distribution and administration, including activities related to distribution of ancillary medical supplies; and

(2) award grants or cooperative agreements to State, local, Tribal, and territorial public health departments for enhancement of COVID–19 and SARS–CoV–2 vaccine distribution and administration capabilities, including—

(A) distribution of vaccines approved or authorized by the Food and Drug Administration;

(B) distribution of ancillary medical supplies;

(C) workforce enhancements;

(D) information technology and data enhancements, including—

(i) enhancements for purposes of maintaining and tracking real-time information related to vaccine distribution and administration; and

(ii) enhancements to improve immunization information systems, including patient matching capabilities and the interoperability of such systems, that are administered by State, local, Tribal, and territorial public health departments and used by health care providers and health care facilities; and

(E) facilities enhancements.

(b) REPORT TO CONGRESS.—Not later than December 31, 2020, and annually thereafter, the Secretary shall submit a report to the Committee on Energy and Commerce and the Committee on Appropriations of the House of Representatives and the Committee on Health, Education, Labor, and Pensions and the Committee on Appropriations of the Senate detailing activities carried out and grants and cooperative agreements awarded under this section.

(c) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there is authorized to be appropriated $7,000,000,000 for the period of fiscal years 2021 through 2025, to remain available until expended.

SEC. 704. STOPPING THE SPREAD OF COVID–19 AND OTHER INFECTIOUS DISEASES THROUGH EVIDENCE-BASED VACCINE AWARENESS.

(a) IN GENERAL.—The Public Health Service Act is amended by striking section 313 of such Act (42 U.S.C. 245) and inserting the following:

"SEC. 313. PUBLIC AWARENESS CAMPAIGN ON THE IMPORTANCE OF VACCINATIONS.

"(a) IN GENERAL.—The Secretary, acting through the Director of the Centers for Disease Control and Prevention and in coordination with other offices and agencies, as appropriate, shall award competitive grants or contracts to one or more public or private entities to carry out a national, evidence-based campaign for increasing rates of vaccination across all ages, as applicable, particularly in communities with low rates of vaccination, to reduce and eliminate vaccine-preventable diseases by—

"(1) increasing awareness and knowledge of the safety and effectiveness of vaccines approved or authorized by the Food and Drug Administration for the prevention and control of diseases, including COVID–19;

"(2) combating misinformation about vaccines; and

"(3) disseminating scientific and evidence-based vaccine-related information.

"(b) CONSULTATION.—In carrying out the campaign under this section, the Secretary shall consult with appropriate public health and medical experts, including the National Academy of Medicine and medical and public health associations and nonprofit organizations, in the development, implementation, and evaluation of the campaign under this section.

"(c) REQUIREMENTS.—The campaign under this section shall—

"(1) be a nationwide, evidence-based media and public engagement initiative;

"(2) include the development of resources for communities with low rates of vaccination, including culturally and linguistically appropriate resources, as applicable;

"(3) include the dissemination of vaccine information and communication resources to public health departments, health care providers, and health care facilities, including such providers and facilities that provide prenatal and pediatric care;

"(4) be complementary to, and coordinated with, any other Federal, State, local, or Tribal efforts;

"(5) assess the effectiveness of communication strategies to increase rates of vaccination; and

"(6) not be used for partisan political purposes, or to express advocacy in support of or to defeat any clearly identified candidate, clearly identified ballot initiative, or clearly identified legislative or regulatory proposal.

"(d) ADDITIONAL ACTIVITIES.—The campaign under this section may—

"(1) include the use of television, radio, the internet, and other media and telecommunications technologies;

"(2) include the use of in-person activities;

"(3) be focused and directed to address specific needs of communities and populations with low rates of vaccination; and

"(4) include the dissemination of scientific and evidence-based vaccine-related information, such as—

"(A) advancements in evidence-based research related to diseases that may be prevented by vaccines and vaccine development;

"(B) information on vaccinations for individuals and communities, including individuals for whom vaccines are not recommended by the Advisory Committee for Immunization Practices, and the effects of low vaccination rates within a community on such individuals;

"(C) information on diseases that may be prevented by vaccines; and

"(D) information on vaccine safety and the systems in place to monitor vaccine safety.

"(e) EVALUATION.—The Secretary shall—

"(1) establish benchmarks and metrics to quantitatively measure and evaluate the campaign under this section;

"(2) conduct qualitative assessments regarding the campaign under this section; and

"(3) prepare and submit to the Committee on Energy and Commerce of the House of Representatives and the Committee on Health, Education, Labor, and Pensions of the Senate an evaluation of the campaign under this section.

"(f) SUPPLEMENT NOT SUPPLANT.—Funds made available to carry out this section shall be used to supplement and not supplant other Federal, State, local, and Tribal public funds provided for activities described in this section.

"(g) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $200,000,000 for the period of fiscal years 2021 through 2025.".

(b) GRANTS TO ADDRESS VACCINE-PREVENTABLE DISEASES.—Section 317 of the Public Health Service Act (42 U.S.C. 247b) is amended—

(1) in subsection (k)—

(A) in paragraph (1)—

(i) in subparagraph (C), by striking "; and" at the end and inserting a semicolon;

(ii) in subparagraph (D), by striking the period at the end and inserting a semicolon; and

(iii) by adding at the end the following:

"(E) planning, implementation, and evaluation of activities to address vaccine-preventable diseases, including activities—

"(i) to identify communities at high risk of outbreaks related to vaccine-preventable diseases, including through improved data collection and analysis;

"(ii) to pilot innovative approaches to improve vaccination rates in communities and among populations with low rates of vaccination;

"(iii) to reduce barriers to accessing vaccines and evidence-based information about the health effects of vaccines;

"(iv) to partner with community organizations and health care providers to develop and deliver evidence-based, culturally and linguistically appropriate interventions to increase vaccination rates;

"(v) to improve delivery of evidence-based vaccine-related information to parents and others; and

"(vi) to improve the ability of State, local, Tribal, and territorial public health departments to engage communities at high risk for outbreaks related to vaccine-preventable diseases, including, as appropriate, with local educational agencies (as defined in section 8101 of the Elementary and Secondary Education Act of 1965); and

"(F) research related to strategies for improving awareness of scientific and evidence-based vaccine-related information, including for communities with low rates of vaccination, in order to understand barriers to vaccination, improve vaccination rates, and assess the public health outcomes of such strategies."; and

(B) by adding at the end the following:

"(5) In addition to amounts authorized to be appropriated by subsection (j) to carry out this subsection, there is authorized to be appropriated to carry out this subsection $750,000,000 for the period of fiscal years 2021 through 2025."; and

(2) by adding at the end the following:

"(n) VACCINATION DATA.—

"(1) IN GENERAL.—The Secretary, acting through the Director of the Centers for Disease

Control and Prevention, shall expand and enhance, and, as appropriate, establish and improve, programs and conduct activities to collect, monitor, and analyze vaccination coverage data to assess levels of protection from vaccine-preventable diseases including COVID–19, including by—

''(A) assessing factors contributing to underutilization of vaccines and variations of such factors; and

''(B) identifying communities at high risk of outbreaks associated with vaccine-preventable diseases.

''(2) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $50,000,000 for the period of fiscal years 2021 through 2025.''.

(c) SUPPLEMENTAL GRANT FUNDS.—Section 330(d)(1) of the Public Health Service Act (42 U.S.C. 254b(d)(1)) is amended—

(1) in subparagraph (F), by striking ''and'' at the end;

(2) in subparagraph (G), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(H) improving access to recommended immunizations.''.

(d) UPDATE OF 2015 NVAC REPORT.—The National Vaccine Advisory Committee established under section 2105 of the Public Health Service Act (42 U.S.C. 300aa–5) shall, as appropriate, update the report entitled, ''Assessing the State of Vaccine Confidence in the United States: Recommendations from the National Vaccine Advisory Committee'', approved by the National Vaccine Advisory Committee on June 10, 2015, with respect to factors affecting childhood vaccination.

TITLE VIII—OTHER MATTERS

SEC. 801. NON-DISCRIMINATION.

(a) IN GENERAL.—Notwithstanding any provision of a covered law (or an amendment made in any such provision), no person otherwise eligible shall be excluded from participation in, denied the benefits of, or subjected to discrimination in the administration of, programs and services receiving funding under a covered law (or an amendment made by a provision of such a covered law), based on any factor that is not merit-based, such as age, disability, sex (including sexual orientation, gender identity, and pregnancy, childbirth, and related medical conditions), race, color, national origin, immigration status, or religion.

(b) COVERED LAW DEFINED.—In this section, the term ''covered law'' includes—

(1) this Act (other than this section);

(2) title I of division B of the Paycheck Protection Program and Healthcare Enhancement Act (Public Law 116–139);

(3) subtitles A, D, and E of title III of the CARES Act (Public Law 116–136);

(4) division F of the Families First Coronavirus Relief Act (Public Law 116–127); and

(5) division B of the Coronavirus Preparedness and Response Supplemental Appropriations Act, 2020 (Public Law 116–123).

DIVISION L—VETERANS AND SERVICEMEMBERS PROVISIONS

SEC. 101. INCREASE OF AMOUNT OF CERTAIN DEPARTMENT OF VETERANS AFFAIRS PAYMENTS DURING EMERGENCY PERIOD RESULTING FROM COVID–19 PANDEMIC.

(a) IN GENERAL.—During the covered period, the Secretary of Veterans Affairs shall apply each of the following provisions of title 38, United States Code, by substituting for each of the dollar amounts in such provision the amount equal to 125 percent of the dollar amount that was in effect under such provision on the date of the enactment of this Act:

(1) Subsections (l), (m), (r), and (t) of section 1114.

(2) Paragraph (1)(E) of section 1115.

(3) Subsection (c) of section 1311.

(4) Subsection (g) of section 1315.

(5) Paragraphs (1) and (2) of subsection (d) of section 1521.

(6) Paragraphs (2) and (4) of subsection (f) of section 1521.

(b) TREATMENT OF AMOUNTS.—Any amount payable to an individual under subsection (a) in excess of the amount otherwise in effect shall be in addition to any other benefit or any other amount payable to that individual under any provision of law referred to in subsection (a) or any other provision of law administered by the Secretary of Veterans Affairs.

(c) COVERED PERIOD.—In this section, the covered period is the period that begins on the date of the enactment of this Act and ends 60 days after the last day of the emergency period (as defined in section 1135(g)(1) of the Social Security Act (42 U.S.C. 1320b-5(g)(1))) resulting from the COVID–19 pandemic.

SEC. 102. PROHIBITION ON COPAYMENTS AND COST SHARING FOR VETERANS RECEIVING PREVENTIVE SERVICES RELATING TO COVID–19.

(a) PROHIBITION.—The Secretary of Veterans Affairs may not require any copayment or other cost sharing under chapter 17 of title 38, United States Code, for qualifying coronavirus preventive services. The requirement described in this subsection shall take effect with respect to a qualifying coronavirus preventive service on the specified date.

(b) DEFINITIONS.—In this section, the terms ''qualifying coronavirus preventive service'' and ''specified date'' have the meaning given those terms in section 3203 of the CARES Act (Public Law 116–136).

SEC. 103. EMERGENCY TREATMENT FOR VETERANS DURING COVID–19 EMERGENCY PERIOD.

(a) EMERGENCY TREATMENT.—Notwithstanding section 1725 or 1728 of title 38, United States Code, or any other provision of law administered by the Secretary of Veterans Affairs pertaining to furnishing emergency treatment to veterans at non-Department facilities, during the period of a covered public health emergency, the Secretary of Veterans Affairs shall furnish to an eligible veteran emergency treatment at a non-Department facility in accordance with this section.

(b) AUTHORIZATION NOT REQUIRED.—The Secretary may not require an eligible veteran to seek authorization by the Secretary for emergency treatment furnished to the veteran pursuant to subsection (a).

(c) PAYMENT RATES.—

(1) DETERMINATION.—The rate paid for emergency treatment furnished to eligible veterans pursuant to subsection (a) shall be equal to the rate paid by the United States to a provider of services (as defined in section 1861(u) of the Social Security Act (42 U.S.C. 1395x(u))) or a supplier (as defined in section 1861(d) of such Act (42 U.S.C. 1395x(d))) under the Medicare program under title XI or title XVIII of the Social Security Act (42 U.S.C. 1301 et seq.), including section 1834 of such Act (42 U.S.C. 1395m), for the same treatment.

(2) FINALITY.—A payment in the amount payable under paragraph (1) for emergency treatment furnished to an eligible veteran pursuant to subsection (a) shall be considered payment in full and shall extinguish the veteran's liability to the provider of such treatment, unless the provider rejects the payment and refunds to the United States such amount by not later than 30 days after receiving the payment.

(d) CLAIMS PROCESSED BY THIRD PARTY ADMINISTRATORS.—

(1) REQUIREMENT.—Not later than 30 days after the date of the enactment of this Act, the Secretary shall seek to award a contract to one or more entities, or to modify an existing contract, to process claims for payment for emergency treatment furnished to eligible veterans pursuant to subsection (a).

(2) PROMPT PAYMENT STANDARD.—Section 1703D of title 38, United States Code, shall apply with respect to claims for payment for emergency treatment furnished to eligible veterans pursuant to subsection (a).

(e) PRIMARY PAYER.—The Secretary shall be the primary payer with respect to emergency treatment furnished to eligible veterans pursuant to subsection (a), and with respect to the transportation of a veteran by ambulance. In any case in which an eligible veteran is furnished such emergency treatment for a non-service-connected disability described in subsection (a)(2) of section 1729 of title 38, United States Code, the Secretary shall recover or collect reasonable charges for such treatment from a health plan contract described in such section 1729 in accordance with such section.

(f) APPLICATION.—This section shall apply to emergency treatment furnished to eligible veterans during the period of a covered public health emergency, regardless of whether treatment was furnished before the date of the enactment of this Act.

(g) DEFINITIONS.—In this section:

(1) The term ''covered public health emergency'' means the declaration—

(A) of a public health emergency, based on an outbreak of COVID–19 by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d); or

(B) of a domestic emergency, based on an outbreak of COVID–19 by the President, the Secretary of Homeland Security, or a State or local authority.

(2) The term ''eligible veteran'' means a veteran enrolled in the health care system established under section 1705 of title 38, United States Code.

(3) The term ''emergency treatment'' means medical care or services rendered in a medical emergency of such nature that a prudent layperson reasonably expects that delay in seeking immediate medical attention would be hazardous to life or health.

(4) The term ''non-Department facility'' has the meaning given that term in section 1701 of title 38, United States Code.

SEC. 104. HUD–VASH PROGRAM.

The Secretary of Housing and Urban Development shall take such actions with respect to the supported housing program carried out under section 8(o)(19) of the United States Housing Act of 1937 (42 U.S.C. 1437f(o)(19)) in conjunction with the Department of Veterans Affairs (commonly referred to as ''HUD–VASH''), and shall require public housing agencies administering assistance under such program to take such actions, as may be appropriate to facilitate the issuance and utilization of vouchers for rental assistance under such program during the period of the covered public health emergency (as such term is defined in section 1 of this Act), including the following actions:

(1) Establishing mechanisms and procedures providing for referral and application documents used under such program to be received by fax, electronic mail, drop box, or other means not requiring in-person contact.

(2) Establishing mechanisms and procedures for processing applications for participation in such program that do not require identification or verification of identity by social security number or photo ID in cases in which closure of governmental offices prevents confirmation or verification of identity by such means.

(3) Providing for waiver of requirements to conduct housing quality standard inspections with respect to dwelling units for which rental assistance is provided under such program.

SEC. 105. DEFERRAL OF CERTAIN DEBTS ARISING FROM BENEFITS UNDER LAWS ADMINISTERED BY THE SECRETARY OF VETERANS AFFAIRS.

(a) IN GENERAL.—During the covered period, the Secretary of Veterans Affairs may not—

(1) take any action to collect a covered debt (including the offset of any payment by the Secretary);

(2) record a covered debt;

(3) issue notice of a covered debt to a person or a consumer reporting agency;

(4) allow any interest to accrue on a covered debt; or

(5) apply any administrative fee to a covered debt.

(b) EXCEPTION.—Notwithstanding subsection (a), the Secretary may collect a payment regarding a covered debt (including interest or any administrative fee) from a person (or the fiduciary of that person) who elects to make such a payment during the covered period.

(c) DEFINITIONS.—In this section:

(1) The term ''consumer reporting agency'' has the meaning given that term in section 5701 of title 38, United States Code.

(2) The term ''covered debt'' means a debt—

(A) owed by a person (including a fiduciary) to the United States;

(B) arising from a benefit under a covered law; and

(C) that is not subject to recovery under—

(i) section 3729 of title 31, United States Code;

(ii) section 1729 of title 38, United States Code; or

(iii) Public Law 87–693 (42 U.S.C. 2651).

(3) The term ''covered law'' means any law administered by the Secretary of Veterans Affairs through—

(A) the Under Secretary for Health; or

(B) the Under Secretary for Benefits.

(4) The term ''covered period'' means—

(A) the COVID–19 emergency period; and

(B) the 60 days immediately following the date of the end of the COVID–19 emergency period.

(5) The term ''COVID–19 emergency period'' means the emergency period described in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b-5(g)(1)(B)).

SEC. 106. TOLLING OF DEADLINES RELATING TO CLAIMS FOR BENEFITS ADMINISTERED BY SECRETARY OF VETERANS AFFAIRS.

(a) REQUIRED TOLLING.—With respect to claims and appeals made by a claimant, the covered period shall be excluded in computing the following:

(1) In cases where an individual expresses an intent to file a claim, the period in which the individual is required to file the claim in order to have the effective date of the claim be determined based on the date of such intent, as described in section 3.155(b)(1) of title 38, Code of Federal Regulations.

(2) The period in which the claimant is required to take an action pursuant to section 5104C of title 38, United States Code.

(3) The period in which the claimant is required to appeal a change in service-connected or employability status or change in physical condition described in section 5112(b)(6) of such title.

(4) The period in which an individual is required to file a notice of appeal under section 7266 of such title.

(5) Any other period in which a claimant or beneficiary is required to act with respect to filing, perfecting, or appealing a claim, as determined appropriate by the Secretary of Veterans Affairs.

(b) USE OF POSTMARK DATES.—With respect to claims filed using nonelectronic means and appeals made during the covered period, the Secretary of Veterans Affairs and the Court of Appeals for Veterans Claims, as the case may be, shall administer the provisions of title 38, United States Code, as follows:

(1) In section 5110—

(A) in subsection (a)—

(i) in paragraph (1), by substituting ''the earlier of the date of receipt of application therefor and the date of the postmark or other official proof of mailing date of the application therefor'' for ''the date of receipt of application therefor''; and

(ii) in paragraph (3), by substituting ''the earlier of the date of receipt of the supplemental claim and the date of the postmark or other official proof of mailing date of the supplemental claim'' for ''the date of receipt of the supplemental claim''; and

(B) in subsection (b)(2)(A), by substituting ''the earlier of the date of receipt of application and the date of the postmark or other official proof of mailing date of the application'' for ''the date of receipt of the application''.

(2) In section 7266, without regard to subsection (d).

(c) DEFINITIONS.—In this section:

(1) The term ''claimant'' has the meaning given that term in section 5100 of title 38, United States Code.

(2) The term ''covered period'' means the period beginning on the date of the emergency period (as defined in section 1135(g)(1) of the Social Security Act (42 U.S.C. 1320b-5(g)(1))) resulting from the COVID–19 pandemic and ending 90 days after the last day of such emergency period.

SEC. 107. PROVISION OF DEPARTMENT OF VETERANS AFFAIRS HOSPITAL CARE AND MEDICAL SERVICES TO CERTAIN VETERANS WHO ARE UNEMPLOYED OR LOST EMPLOYER-SPONSORED HEALTH CARE COVERAGE BY REASON OF A COVERED PUBLIC HEALTH EMERGENCY.

(a) IN GENERAL.—During the 12-month period beginning on the date on which a covered veteran applies for hospital care or medical services under this section, the Secretary of Veterans Affairs shall consider the covered veteran to be unable to defray the expenses of necessary care for purposes of section 1722 of title 38, United States Code, and shall furnish to such veteran hospital care and medical services under chapter 17 of title 38, United States Code.

(b) COVERED VETERAN.—For purposes of this section, a covered veteran is a veteran—

(1) who—

(A) is unemployed; or

(B) has lost access to a group health plan or group health insurance coverage by reason of a covered public health emergency; and

(2) whose projected attributable income for the 12-month period beginning on the date of application for hospital care or medical services under this section is not more than the amount in effect under section 1722(b) of title 38, United States Code.

(c) DEFINITIONS.—In this section:

(1) The term ''covered public health emergency'' means the declaration—

(A) of a public health emergency, based on an outbreak of COVID–19 by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d); or

(B) of a domestic emergency, based on an outbreak of COVID–19 by the President, the Secretary of Homeland Security, or State, or local authority.

(2) The terms ''group health plan'' and ''group health insurance coverage'' have the meaning given such terms in section 2701 of the Public Health Service Act (42 U.S.C. 300gg-3).

SEC. 108. EXPANSION OF VET CENTER SERVICES TO VETERANS AND MEMBERS OF THE ARMED FORCES WHO PERFORM CERTAIN SERVICE IN RESPONSE TO COVERED PUBLIC HEALTH EMERGENCY.

(a) IN GENERAL.—Section 1712A of title 38, United States Code, is amended—

(1) by striking ''clauses (i) through (iv)'' both places it appears and inserting ''clauses (i) through (v)'';

(2) by striking ''in clause (v)'' both places it appears and inserting ''in clause (vi)'';

(3) in subsection (a)(1)(C)—

(A) by redesignating clauses (iv) and (v) as clauses (v) and (vi), respectively; and

(B) by inserting after clause (iii) the following new clause (iv):

''(iv) Any individual who is a veteran or member of the Armed Forces (including the reserve components), who, in response to a covered public health emergency, performed active service or State active duty for a period of at least 14 days.''; and

(4) in subsection (h), by adding at the end the following new paragraphs:

''(4) The term 'active service' has the meaning given that term in section 101 of title 10.

''(5) The term 'covered public health emergency' means the declaration—

''(A) of a public health emergency, based on an outbreak of COVID–19, by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d); or

''(B) of a domestic emergency, based on an outbreak of COVID–19, by the President, the Secretary of Homeland Security, or a State or local authority.''.

(b) CONFORMING AMENDMENT.—Section 201(q)(4) of the Commander John Scott Hannon Veterans Mental Health Care Improvement Act of 2019 is amended by striking ''clauses (i) through (iv) of section 1712A(a)(1)(C)'' and inserting ''clauses (i) through (v) of section 1712A(a)(1)(C)''.

DIVISION M—CONSUMER PROTECTION AND TELECOMMUNICATIONS PROVISIONS

TITLE I—COVID–19 PRICE GOUGING PREVENTION

SEC. 101. SHORT TITLE.

This title may be cited as the ''COVID–19 Price Gouging Prevention Act''.

SEC. 102. PREVENTION OF PRICE GOUGING.

(a) IN GENERAL.—For the duration of a public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) as a result of confirmed cases of 2019 novel coronavirus (COVID–19), including any renewal thereof, it shall be unlawful for any person to sell or offer for sale a good or service at a price that—

(1) is unconscionably excessive; and

(2) indicates the seller is using the circumstances related to such public health emergency to increase prices unreasonably.

(b) FACTORS FOR CONSIDERATION.—In determining whether a person has violated subsection (a), there shall be taken into account, with respect to the price at which such person sold or offered for sale the good or service, factors that include the following:

(1) Whether such price grossly exceeds the average price at which the same or a similar good or service was sold or offered for sale by such person—

(A) during the 90-day period immediately preceding January 31, 2020; or

(B) during the period that is 45 days before or after the date that is one year before the date such good or service is sold or offered for sale under subsection (a).

(2) Whether such price grossly exceeds the average price at which the same or a similar good or service was readily obtainable from other similarly situated competing sellers before January 31, 2020.

(3) Whether such price reasonably reflects additional costs, not within the control of such person, that were paid, incurred, or reasonably anticipated by such person, or reasonably reflects the profitability of forgone sales or additional risks taken by such person, to produce, distribute, obtain, or sell such good or service under the circumstances.

(c) ENFORCEMENT.—

(1) ENFORCEMENT BY FEDERAL TRADE COMMISSION.—

(A) UNFAIR OR DECEPTIVE ACTS OR PRACTICES.—A violation of subsection (a) shall be treated as a violation of a regulation under section 18(a)(1)(B) of the Federal Trade Commission Act (15 U.S.C. 57a(a)(1)(B)) regarding unfair or deceptive acts or practices.

(B) POWERS OF COMMISSION.—The Commission shall enforce subsection (a) in the same manner, by the same means, and with the same jurisdiction, powers, and duties as though all applicable terms and provisions of the Federal Trade

Commission Act (15 U.S.C. 41 et seq.) were incorporated into and made a part of this section. Any person who violates such subsection shall be subject to the penalties and entitled to the privileges and immunities provided in the Federal Trade Commission Act.

(2) EFFECT ON OTHER LAWS.—Nothing in this section shall be construed in any way to limit the authority of the Commission under any other provision of law.

(3) ENFORCEMENT BY STATE ATTORNEYS GENERAL.—

(A) IN GENERAL.—If the chief law enforcement officer of a State, or an official or agency designated by a State, has reason to believe that any person has violated or is violating subsection (a), the attorney general, official, or agency of the State, in addition to any authority it may have to bring an action in State court under its laws, may bring a civil action in any appropriate United States district court or in any other court of competent jurisdiction, including a State court, to—

(i) enjoin further such violation by such person;

(ii) enforce compliance with such subsection;

(iii) obtain civil penalties; and

(iv) obtain damages, restitution, or other compensation on behalf of residents of the State.

(B) NOTICE AND INTERVENTION BY THE FTC.—The attorney general of a State shall provide prior written notice of any action under subparagraph (A) to the Commission and provide the Commission with a copy of the complaint in the action, except in any case in which such prior notice is not feasible, in which case the attorney general shall serve such notice immediately upon instituting such action. The Commission shall have the right—

(i) to intervene in the action;

(ii) upon so intervening, to be heard on all matters arising therein; and

(iii) to file petitions for appeal.

(C) LIMITATION ON STATE ACTION WHILE FEDERAL ACTION IS PENDING.—If the Commission has instituted a civil action for violation of this section, no State attorney general, or official or agency of a State, may bring an action under this paragraph during the pendency of that action against any defendant named in the complaint of the Commission for any violation of this section alleged in the complaint.

(D) RELATIONSHIP WITH STATE-LAW CLAIMS.—If the attorney general of a State has authority to bring an action under State law directed at acts or practices that also violate this section, the attorney general may assert the State-law claim and a claim under this section in the same civil action.

(4) SAVINGS CLAUSE.—Nothing in this section shall preempt or otherwise affect any State or local law.

(d) DEFINITIONS.—In this section:

(1) COMMISSION.—The term ''Commission'' means the Federal Trade Commission.

(2) GOOD OR SERVICE.—The term ''good or service'' means a good or service offered in commerce, including—

(A) food, beverages, water, ice, a chemical, or a personal hygiene product;

(B) any personal protective equipment for protection from or prevention of contagious diseases, filtering facepiece respirators, medical equipment and supplies (including medical testing supplies), a drug as defined in section 201(g)(1) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 321(g)(1)), cleaning supplies, disinfectants, sanitizers; or

(C) any healthcare service, cleaning service, or delivery service.

(3) STATE.—The term ''State'' means each of the several States, the District of Columbia, each commonwealth, territory, or possession of the United States, and each federally recognized Indian Tribe.

TITLE II—E–RATE SUPPORT FOR WI-FI HOTSPOTS, OTHER EQUIPMENT, CONNECTED DEVICES, AND CONNECTIVITY

SEC. 201. E–RATE SUPPORT FOR WI-FI HOTSPOTS, OTHER EQUIPMENT, CONNECTED DEVICES, AND CONNECTIVITY DURING EMERGENCY PERIODS RELATING TO COVID–19.

(a) REGULATIONS REQUIRED.—Not later than 7 days after the date of the enactment of this Act, the Commission shall promulgate regulations providing for the provision, from amounts made available from the Emergency Connectivity Fund established under subsection (j)(1), of support under section 254(h)(1)(B) of the Communications Act of 1934 (47 U.S.C. 254(h)(1)(B)) to an elementary school, secondary school, or library (including a Tribal elementary school, Tribal secondary school, or Tribal library) for the purchase during an emergency period described in subsection (f) (including any portion of such a period occurring before the date of the enactment of this Act) of equipment described in subsection (c), advanced telecommunications and information services, or equipment described in such subsection and advanced telecommunications and information services, for use by—

(1) in the case of a school, students and staff of such school at locations that include locations other than such school; and

(2) in the case of a library, patrons of such library at locations that include locations other than such library.

(b) TRIBAL ISSUES.—

(1) RESERVATION FOR TRIBAL LANDS.—The Commission shall reserve not less than 5 percent of the amounts available to the Commission under subsection (j)(2) to provide support under the regulations required by subsection (a) to schools and libraries that serve persons who are located on Tribal lands.

(2) ELIGIBILITY OF TRIBAL LIBRARIES.—For purposes of determining the eligibility of a Tribal library for support under the regulations required by subsection (a), the portion of paragraph (4) of section 254(h) of the Communications Act of 1934 (47 U.S.C. 254(h)) relating to eligibility for assistance from a State library administrative agency under the Library Services and Technology Act shall not apply.

(c) EQUIPMENT DESCRIBED.—The equipment described in this subsection is the following:

(1) Wi-Fi hotspots.

(2) Modems.

(3) Routers.

(4) Devices that combine a modem and router.

(5) Connected devices.

(d) PRIORITIZATION OF SUPPORT.—The Commission shall provide in the regulations required by subsection (a) for a mechanism to require a school or library to prioritize the provision of equipment described in subsection (c), advanced telecommunications and information services, or equipment described in such subsection and advanced telecommunications and information services, for which support is received under such regulations, to students and staff or patrons (as the case may be) that the school or library believes do not have access to equipment described in subsection (c), do not have access to advanced telecommunications and information services, or have access to neither equipment described in subsection (c) nor advanced telecommunications and information services, at the residences of such students and staff or patrons.

(e) SUPPORT AMOUNT.—

(1) REIMBURSEMENT OF 100 PERCENT OF COSTS.—In providing support under the regulations required by subsection (a), the Commission shall reimburse 100 percent of the costs associated with the equipment described in subsection (c), advanced telecommunications and information services, or equipment described in such subsection and advanced telecommunications and information services for which such support is provided, except that any reimbursement of a school or library for the costs associated with any such equipment may not exceed an amount that the Commission determines, with respect to the request by such school or library for such reimbursement, is reasonable.

(2) SHORTFALL IN FUNDING.—If requests for reimbursement for equipment described in subsection (c), advanced telecommunications and information services, or equipment described in such subsection and advanced telecommunications and information services exceed amounts available from the Emergency Connectivity Fund established under subsection (j)(1), the Commission shall—

(A) prioritize reimbursements based on the assigned discount percentage of each eligible school or library requesting reimbursement under subpart F of part 54 of title 47, Code of Federal Regulations (or any successor regulation), starting with the eligible schools and libraries with the highest discount percentage established under such subpart; and

(B) not later than 2 days after the Commission determines that the shortfall in funding exists, notify the Committee on Commerce, Science, and Transportation and the Committee on Appropriations of the Senate and the Committee on Energy and Commerce and the Committee on Appropriations of the House of Representatives of such shortfall.

(f) EMERGENCY PERIODS DESCRIBED.—An emergency period described in this subsection is a period that—

(1) begins on the date of a determination by the Secretary of Health and Human Services pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) that a public health emergency exists as a result of COVID–19; and

(2) ends on the June 30 that first occurs after the date on which such determination (including any renewal thereof) terminates.

(g) TREATMENT OF EQUIPMENT AFTER EMERGENCY PERIOD.—The Commission shall provide in the regulations required by subsection (a) that, in the case of a school or library that purchases equipment described in subsection (c) using support received under such regulations, such school or library—

(1) may, after the emergency period with respect to which such support is received, use such equipment for such purposes as such school or library considers appropriate, subject to any restrictions provided in such regulations (or any successor regulation); and

(2) may not sell or otherwise transfer such equipment in exchange for any thing (including a service) of value, except that such school or library may exchange such equipment for upgraded equipment of the same type.

(h) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to affect any authority the Commission may have under section 254(h)(1)(B) of the Communications Act of 1934 (47 U.S.C. 254(h)(1)(B)) to allow support under such section to be used for the purposes described in subsection (a) other than as required by such subsection.

(i) PROCEDURAL MATTERS.—

(1) PART 54 REGULATIONS.—Nothing in this section shall be construed to prevent the Commission from providing that the regulations in part 54 of title 47, Code of Federal Regulations (or any successor regulation), shall apply in whole or in part to support provided under the regulations required by subsection (a), shall not apply in whole or in part to such support, or shall be modified in whole or in part for purposes of application to such support.

(2) EXEMPTION FROM CERTAIN RULEMAKING REQUIREMENTS.—Section 553 of title 5, United States Code, shall not apply to a regulation promulgated under subsection (a) or a rulemaking to promulgate such a regulation.

(3) PAPERWORK REDUCTION ACT EXEMPTION.—A collection of information conducted or sponsored under the regulations required by subsection (a), or under section 254 of the Communications Act of 1934 (47 U.S.C. 254) in connection with support provided under such regulations, shall not constitute a collection of information for the purposes of subchapter I of chapter 35 of title 44, United States Code (commonly referred to as the Paperwork Reduction Act).

(j) EMERGENCY CONNECTIVITY FUND.—

(1) ESTABLISHMENT.—There is established in the Treasury of the United States a fund to be known as the Emergency Connectivity Fund.

(2) USE OF FUNDS.—Amounts in the Emergency Connectivity Fund shall be available to the Commission to provide support under the regulations required by subsection (a).

(3) RELATIONSHIP TO UNIVERSAL SERVICE CONTRIBUTIONS.—Support provided under the regulations required by subsection (a) shall be provided from amounts made available under paragraph (2) and not from contributions under section 254(d) of the Communications Act of 1934 (47 U.S.C. 254(d)).

(k) DEFINITIONS.—In this section:

(1) ADVANCED TELECOMMUNICATIONS AND INFORMATION SERVICES.—The term ''advanced telecommunications and information services'' means advanced telecommunications and information services, as such term is used in section 254(h) of the Communications Act of 1934 (47 U.S.C. 254(h)).

(2) COMMISSION.—The term ''Commission'' means the Federal Communications Commission.

(3) CONNECTED DEVICE.—The term ''connected device'' means a laptop computer, tablet computer, or similar device that is capable of connecting to advanced telecommunications and information services.

(4) LIBRARY.—The term ''library'' includes a library consortium.

(5) TRIBAL LAND.—The term ''Tribal land'' means—

(A) any land located within the boundaries of—

(i) an Indian reservation, pueblo, or rancheria; or

(ii) a former reservation within Oklahoma;

(B) any land not located within the boundaries of an Indian reservation, pueblo, or rancheria, the title to which is held—

(i) in trust by the United States for the benefit of an Indian Tribe or an individual Indian;

(ii) by an Indian Tribe or an individual Indian, subject to restriction against alienation under laws of the United States; or

(iii) by a dependent Indian community;

(C) any land located within a region established pursuant to section 7(a) of the Alaska Native Claims Settlement Act (43 U.S.C. 1606(a));

(D) Hawaiian Home Lands, as defined in section 801 of the Native American Housing Assistance and Self-Determination Act of 1996 (25 U.S.C. 4221); or

(E) those areas or communities designated by the Assistant Secretary of Indian Affairs of the Department of the Interior that are near, adjacent, or contiguous to reservations where financial assistance and social service programs are provided to Indians because of their status as Indians.

(6) TRIBAL LIBRARY.—The term ''Tribal library'' means, only during an emergency period described under subsection (f), a facility owned by an Indian Tribe, serving Indian Tribes, or serving American Indians, Alaskan Natives, or Native Hawaiian communities, including—

(A) a Tribal library or Tribal library consortium; or

(B) a Tribal government building, chapter house, longhouse, community center, or other similar public building.

(7) WI-FI.—The term ''Wi-Fi'' means a wireless networking protocol based on Institute of Electrical and Electronics Engineers standard 802.11 (or any successor standard).

(8) WI-FI HOTSPOT.—The term ''Wi-Fi hotspot'' means a device that is capable of—

(A) receiving mobile advanced telecommunications and information services; and

(B) sharing such services with another device through the use of Wi-Fi.

TITLE III—EMERGENCY BENEFIT FOR BROADBAND SERVICE

SEC. 301. BENEFIT FOR BROADBAND SERVICE DURING EMERGENCY PERIODS RELATING TO COVID–19.

(a) PROMULGATION OF REGULATIONS REQUIRED.—Not later than 7 days after the date of the enactment of this Act, the Commission shall promulgate regulations implementing this section.

(b) REQUIREMENTS.—The regulations promulgated pursuant to subsection (a) shall establish the following:

(1) EMERGENCY BROADBAND BENEFIT.—During an emergency period, a provider shall provide an eligible household with an internet service offering, upon request by a member of such household. Such provider shall discount the price charged to such household for such internet service offering in an amount equal to the emergency broadband benefit for such household.

(2) VERIFICATION OF ELIGIBILITY.—To verify whether a household is an eligible household, a provider shall either—

(A) use the National Lifeline Eligibility Verifier; or

(B) rely upon an alternative verification process of the provider, if the Commission finds such process to be sufficient to avoid waste, fraud, and abuse.

(3) USE OF NATIONAL LIFELINE ELIGIBILITY VERIFIER.—The Commission shall—

(A) expedite the ability of all providers to access the National Lifeline Eligibility Verifier for purposes of determining whether a household is an eligible household; and

(B) ensure that the National Lifeline Eligibility Verifier approves an eligible household to receive the emergency broadband benefit not later than two days after the date of the submission of information necessary to determine if such household is an eligible household.

(4) EXTENSION OF EMERGENCY PERIOD.—An emergency period may be extended within a State or any portion thereof if the State, or in the case of Tribal land, a Tribal government, provides written, public notice to the Commission stipulating that an extension is necessary in furtherance of the recovery related to COVID–19. The Commission shall, within 48 hours after receiving such notice, post the notice on the public website of the Commission.

(5) REIMBURSEMENT.—From the Emergency Broadband Connectivity Fund established in subsection (h), the Commission shall reimburse a provider in an amount equal to the emergency broadband benefit with respect to an eligible household that receives such benefit from such provider.

(6) REIMBURSEMENT FOR CONNECTED DEVICE.—A provider that, in addition to providing the emergency broadband benefit to an eligible household, supplies such household with a connected device may be reimbursed up to $100 from the Emergency Broadband Connectivity Fund established in subsection (h) for such connected device, if the charge to such eligible household is more than $10 but less than $50 for such connected device, except that a provider may receive reimbursement for no more than one connected device per eligible household.

(7) NO RETROACTIVE REIMBURSEMENT.—A provider may not receive a reimbursement from the Emergency Broadband Connectivity Fund for providing an internet service offering discounted by the emergency broadband benefit, or for supplying a connected device, that was provided or supplied (as the case may be) before the date of the enactment of this Act.

(8) CERTIFICATION REQUIRED.—To receive a reimbursement under paragraph (5) or (6), a provider shall certify to the Commission the following:

(A) That the amount for which the provider is seeking reimbursement from the Emergency Broadband Connectivity Fund for an internet service offering to an eligible household is not more than the normal rate.

(B) That each eligible household for which a provider is seeking reimbursement for providing an internet service offering discounted by the emergency broadband benefit—

(i) has not been and will not be charged—

(I) for such offering, if the normal rate for such offering is less than or equal to the amount of the emergency broadband benefit for such household; or

(II) more for such offering than the difference between the normal rate for such offering and the amount of the emergency broadband benefit for such household;

(ii) will not be required to pay an early termination fee if such eligible household elects to enter into a contract to receive such internet service offering if such household later terminates such contract; and

(iii) was not subject to a mandatory waiting period for such internet service offering based on having previously received broadband internet access service from such provider.

(C) That each eligible household for which the provider is seeking reimbursement for supplying such household with a connected device has not been and will not be charged $10 or less or $50 or more for such device.

(D) A description of the process used by the provider to verify that a household is an eligible household, if the provider elects an alternative verification process under paragraph (2)(B), and that such verification process was designed to avoid waste, fraud, and abuse.

(9) AUDIT REQUIREMENTS.—The Commission shall adopt audit requirements to ensure that providers are in compliance with the requirements of this section and to prevent waste, fraud, and abuse in the emergency broadband benefit program established under this section.

(c) ELIGIBLE PROVIDERS.—Notwithstanding subsection (e) of this section, the Commission shall provide a reimbursement to a provider under this section without requiring such provider to be designated as an eligible telecommunications carrier under section 214(e) of the Communications Act of 1934 (47 U.S.C. 214(e)).

(d) RULE OF CONSTRUCTION.—Nothing in this section shall affect the collection, distribution, or administration of the Lifeline Assistance Program governed by the rules set forth in subpart E of part 54 of title 47, Code of Federal Regulations (or any successor regulation).

(e) PART 54 REGULATIONS.—Nothing in this section shall be construed to prevent the Commission from providing that the regulations in part 54 of title 47, Code of Federal Regulations (or any successor regulation), shall apply in whole or in part to support provided under the regulations required by subsection (a), shall not apply in whole or in part to such support, or shall be modified in whole or in part for purposes of application to such support.

(f) ENFORCEMENT.—A violation of this section or a regulation promulgated under this section, including the knowing or reckless denial of an internet service offering discounted by the emergency broadband benefit to an eligible household that requests such an offering, shall be treated as a violation of the Communications Act of 1934 (47 U.S.C. 151 et seq.) or a regulation promulgated under such Act. The Commission shall enforce this section and the regulations promulgated under this section in the same manner, by the same means, and with the same jurisdiction, powers, and duties as though all applicable terms and provisions of the Communications Act of 1934 were incorporated into and made a part of this section.

(g) EXEMPTIONS.—

(1) CERTAIN RULEMAKING REQUIREMENTS.—Section 553 of title 5, United States Code, shall not apply to a regulation promulgated under

subsection (a) or a rulemaking to promulgate such a regulation.

(2) PAPERWORK REDUCTION ACT REQUIREMENTS.—A collection of information conducted or sponsored under the regulations required by subsection (a) shall not constitute a collection of information for the purposes of subchapter I of chapter 35 of title 44, United States Code (commonly referred to as the Paperwork Reduction Act).

(h) EMERGENCY BROADBAND CONNECTIVITY FUND.—

(1) ESTABLISHMENT.—There is established in the Treasury of the United States a fund to be known as the Emergency Broadband Connectivity Fund.

(2) USE OF FUNDS.—Amounts in the Emergency Broadband Connectivity Fund shall be available to the Commission for reimbursements to providers under the regulations required by subsection (a).

(3) RELATIONSHIP TO UNIVERSAL SERVICE CONTRIBUTIONS.—Reimbursements provided under the regulations required by subsection (a) shall be provided from amounts made available under this subsection and not from contributions under section 254(d) of the Communications Act of 1934 (47 U.S.C. 254(d)), except the Commission may use such contributions if needed to offset expenses associated with the reliance on the National Lifeline Eligibility Verifier to determine eligibility of households to receive the emergency broadband benefit.

(i) DEFINITIONS.—In this section:

(1) BROADBAND INTERNET ACCESS SERVICE.—The term ''broadband internet access service'' has the meaning given such term in section 8.1(b) of title 47, Code of Federal Regulations (or any successor regulation).

(2) CONNECTED DEVICE.—The term ''connected device'' means a laptop or desktop computer or a tablet.

(3) ELIGIBLE HOUSEHOLD.—The term ''eligible household'' means, regardless of whether the household or any member of the household receives support under subpart E of part 54 of title 47, Code of Federal Regulations (or any successor regulation), and regardless of whether any member of the household has any past or present arrearages with a provider, a household in which—

(A) at least one member of the household meets the qualifications in subsection (a) or (b) of section 54.409 of title 47, Code of Federal Regulations (or any successor regulation);

(B) at least one member of the household has applied for and been approved to receive benefits under the free and reduced price lunch program under the Richard B. Russell National School Lunch Act (42 U.S.C. 1751 et seq.) or the school breakfast program under section 4 of the Child Nutrition Act of 1966 (42 U.S.C. 1773);

(C) at least one member of the household has experienced a substantial loss of income since February 29, 2020, documented by layoff or furlough notice, application for unemployment insurance benefits, or similar documentation; or

(D) at least one member of the household has received a Federal Pell Grant under section 401 of the Higher Education Act of 1965 (20 U.S.C. 1070a) in the current award year.

(4) EMERGENCY BROADBAND BENEFIT.—The term ''emergency broadband benefit'' means a monthly discount for an eligible household applied to the normal rate for an internet service offering, in an amount equal to such rate, but not more than $50, or, if an internet service offering is provided to an eligible household on Tribal land, not more than $75.

(5) EMERGENCY PERIOD.—The term ''emergency period'' means a period that—

(A) begins on the date of a determination by the Secretary of Health and Human Services pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) that a public health emergency exists as a result of COVID–19; and

(B) ends on the date that is 6 months after the date on which such determination (including any renewal thereof) terminates, except as such period may be extended under subsection (b)(4).

(6) INTERNET SERVICE OFFERING.—The term ''internet service offering'' means, with respect to a provider, broadband internet access service provided by such provider to a household, offered in the same manner, and on the same terms, as described in any of such provider's advertisements for broadband internet access service to such household, as on September 1, 2020.

(7) NORMAL RATE.—The term ''normal rate'' means, with respect to an internet service offering by a provider, the advertised monthly retail rate, as of September 1, 2020, including any applicable promotions and excluding any taxes or other governmental fees.

(8) PROVIDER.—The term ''provider'' means a provider of broadband internet access service.

SEC. 302. ENHANCED LIFELINE BENEFITS DURING EMERGENCY PERIODS.

(a) ENHANCED MINIMUM SERVICE STANDARDS FOR LIFELINE BENEFITS DURING EMERGENCY PERIODS.—During an emergency period—

(1) the minimum service standard for Lifeline supported mobile voice service shall provide an unlimited number of minutes per month;

(2) the minimum service standard for Lifeline supported mobile data service shall provide an unlimited data allowance each month and 4G speeds, where available; and

(3) the Basic Support Amount and Tribal Lands Support Amount, as described in section 54.403 of title 47, Code of Federal Regulations (or any successor regulation), shall be increased by an amount necessary, as determined by the Commission, to offset any incremental increase in cost associated with the requirements in paragraphs (1) and (2), but at a minimum the Basic Support Amount shall be not less than $25 per month and the Tribal Lands Support Amount shall be not less than $40 per month.

(b) EXTENSION OF EMERGENCY PERIOD.—An emergency period may be extended within a State or any portion thereof for a maximum of six months, if the State, or in the case of Tribal land, a Tribal government, provides written, public notice to the Commission stipulating that an extension is necessary in furtherance of the recovery related to COVID–19. The Commission shall, within 48 hours after receiving such notice, post the notice on the public website of the Commission.

(c) REGULATIONS.—

(1) IN GENERAL.—Not later than 7 days after the date of the enactment of this Act, the Commission shall promulgate regulations implementing this section.

(2) EXEMPTIONS.—

(A) CERTAIN RULEMAKING REQUIREMENTS.—Section 553 of title 5, United States Code, shall not apply to a regulation promulgated under paragraph (1) or a rulemaking to promulgate such a regulation.

(B) PAPERWORK REDUCTION ACT REQUIREMENTS.—A collection of information conducted or sponsored under the regulations promulgated under paragraph (1), or under section 254 of the Communications Act of 1934 (47 U.S.C. 254) in connection with support provided under such regulations, shall not constitute a collection of information for the purposes of subchapter I of chapter 35 of title 44, United States Code (commonly referred to as the Paperwork Reduction Act).

(d) EMERGENCY PERIOD DEFINED.—In this section, the term ''emergency period'' means a period that—

(1) begins on the date of a determination by the Secretary of Health and Human Services pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) that a public health emergency exists as a result of COVID–19; and

(2) ends on the date that is 6 months after the date on which such determination (including any renewal thereof) terminates, except as such period may be extended under subsection (b).

SEC. 303. GRANTS TO STATES TO STRENGTHEN NATIONAL LIFELINE ELIGIBILITY VERIFIER.

(a) IN GENERAL.—From amounts appropriated to carry out this section, the Commission shall, not later than 7 days after the date of the enactment of this Act, make a grant to each State, in an amount in proportion to the population of such State, for the purpose of connecting the database used by such State for purposes of the supplemental nutrition assistance program under the Food and Nutrition Act of 2008 (7 U.S.C. 2011 et seq.) to the National Lifeline Eligibility Verifier, so that the receipt by a household of benefits under such program is reflected in the National Lifeline Eligibility Verifier.

(b) DISBURSEMENT OF GRANT FUNDS.—Funds under each grant made under subsection (a) shall be disbursed to the State receiving such grant not later than 7 days after the date of the enactment of this Act.

(c) CERTIFICATION TO CONGRESS.—Not later than 21 days after the date of the enactment of this Act, the Commission shall certify to the Committee on Energy and Commerce of the House of Representatives and the Committee on Commerce, Science, and Transportation of the Senate that the grants required by subsection (a) have been made and that funds have been disbursed as required by subsection (b).

SEC. 304. DEFINITIONS.

In this title:

(1) COMMISSION.—The term ''Commission'' means the Federal Communications Commission.

(2) NATIONAL LIFELINE ELIGIBILITY VERIFIER.—The term ''National Lifeline Eligibility Verifier'' has the meaning given such term in section 54.400 of title 47, Code of Federal Regulations (or any successor regulation).

(3) STATE.—The term ''State'' has the meaning given such term in section 3 of the Communications Act of 1934 (47 U.S.C. 153).

TITLE IV—CONTINUED CONNECTIVITY

SEC. 401. CONTINUED CONNECTIVITY DURING EMERGENCY PERIODS RELATING TO COVID–19.

Title VII of the Communications Act of 1934 (47 U.S.C. 601 et seq.) is amended by adding at the end the following:

''SEC. 723. CONTINUED CONNECTIVITY DURING EMERGENCY PERIODS RELATING TO COVID–19.

''(a) IN GENERAL.—During an emergency period described in subsection (c), it shall be unlawful—

''(1) for a provider of advanced telecommunications service or voice service to—

''(A) terminate, reduce, or change such service provided to any individual customer or small business because of the inability of the individual customer or small business to pay for such service if the individual customer or small business certifies to such provider that such inability to pay is a result of disruptions caused by the public health emergency to which such emergency period relates; or

''(B) impose late fees on any individual customer or small business because of the inability of the individual customer or small business to pay for such service if the individual customer or small business certifies to such provider that such inability to pay is a result of disruptions caused by the public health emergency to which such emergency period relates;

''(2) for a provider of advanced telecommunications service to, during such emergency period—

''(A) employ a limit on the amount of data allotted to an individual customer or small business during such emergency period, except that such provider may engage in reasonable network management; or

''(B) charge an individual customer or small business an additional fee for exceeding the limit on the data allotted to an individual customer or small business; or

''(3) for a provider of advanced telecommunications service that had functioning Wi-Fi

hotspots available to subscribers in public places on the day before the beginning of such emergency period to fail to make service provided by such Wi-Fi hotspots available to the public at no cost during such emergency period.

''(b) WAIVER.—Upon a petition by a provider advanced telecommunications service or voice service, the provisions in subsection (a) may be suspended or waived by the Commission at any time, in whole or in part, for good cause shown.

''(c) EMERGENCY PERIODS DESCRIBED.—An emergency period described in this subsection is any portion beginning on or after the date of the enactment of this section of the duration of a public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) as a result of COVID–19, including any renewal thereof.

''(d) DEFINITIONS.—In this section:

''(1) ADVANCED TELECOMMUNICATIONS SERVICE.—The term 'advanced telecommunications service' means a service that provides advanced telecommunications capability (as defined in section 706 of the Telecommunications Act of 1996 (47 U.S.C. 1302)).

''(2) BROADBAND INTERNET ACCESS SERVICE.—The term 'broadband internet access service' has the meaning given such term in section 8.1(b) of title 47, Code of Federal Regulations (or any successor regulation).

''(3) INDIVIDUAL CUSTOMER.—The term 'individual customer' means an individual who contracts with a mass-market retail provider of advanced telecommunications service or voice service to provide service to such individual.

''(4) REASONABLE NETWORK MANAGEMENT.—The term 'reasonable network management'—

''(A) means the use of a practice that—

''(i) has a primarily technical network management justification; and

''(ii) is primarily used for and tailored to achieving a legitimate network management purpose, taking into account the particular network architecture and technology of the service; and

''(B) does not include other business practices.

''(5) SMALL BUSINESS.—The term 'small business' has the meaning given such term under section 601(3) of title 5, United States Code.

''(6) VOICE SERVICE.—The term 'voice service' has the meaning given such term under section 227(e)(8) of the Communications Act of 1934 (47 U.S.C. 227(e)(8)).

''(7) WI-FI.—The term 'Wi-Fi' means a wireless networking protocol based on Institute of Electrical and Electronics Engineers standard 802.11 (or any successor standard).

''(8) WI-FI HOTSPOT.—The term 'Wi-Fi hotspot' means a device that is capable of—

''(A) receiving mobile broadband internet access service; and

''(B) sharing such service with another device through the use of Wi-Fi.''.

TITLE V—DON'T BREAK UP THE T–BAND

SEC. 501. REPEAL OF REQUIREMENT TO REALLOCATE AND AUCTION T–BAND SPECTRUM.

(a) REPEAL.—Section 6103 of the Middle Class Tax Relief and Job Creation Act of 2012 (47 U.S.C. 1413) is repealed.

(b) CLERICAL AMENDMENT.—The table of contents in section 1(b) of such Act is amended by striking the item relating to section 6103.

TITLE VI—COVID–19 COMPASSION AND MARTHA WRIGHT PRISON PHONE JUSTICE

SEC. 601. FINDINGS.

Congress finds the following:

(1) Prison, jails, and other confinement facilities in the United States have unique telecommunications needs due to safety and security concerns.

(2) Unjust and unreasonable charges for telephone and advanced communications services in confinement facilities negatively impact the safety and security of communities in the United States by damaging relationships between incarcerated persons and their support systems, thereby exacerbating recidivism.

(3) The COVID–19 pandemic has greatly intensified these concerns. Jails and prisons have become epicenters for the spread of the virus, with incarcerated persons concentrated in small, confined spaces and often without access to adequate health care. At Cook County jail alone, hundreds of incarcerated persons and jail staff have tested positive for the virus since its outbreak.

(4) To prevent the spread of the virus, many jails and prisons across the country suspended public visitation, leaving confinement facility communications services as the only way that incarcerated persons can stay in touch with their families.

(5) All people in the United States, including anyone who pays for confinement facility communications services, should have access to communications services at charges that are just and reasonable.

(6) Unemployment has risen sharply as a result of the COVID–19 pandemic, straining the incomes of millions of Americans and making it even more difficult for families of incarcerated persons to pay the high costs of confinement facility communications services.

(7) Certain markets for confinement facility communications services are distorted due to reverse competition, in which the financial interests of the entity making the buying decision (the confinement facility) are aligned with the seller (the provider of confinement facility communications services) and not the consumer (the incarcerated person or a member of his or her family). This reverse competition occurs because site commission payments to the confinement facility from the provider of confinement facility communications services are the chief criterion many facilities use to select their provider of confinement facility communications services.

(8) Charges for confinement facility communications services that have been shown to be unjust and unreasonable are often a result of site commission payments that far exceed the costs incurred by the confinement facility in accommodating these services.

(9) Unjust and unreasonable charges have been assessed for both audio and video services and for both intrastate and interstate communications from confinement facilities.

(10) Though Congress enacted emergency legislation to allow free communications in Federal prisons during the pandemic, it does not cover communications to or from anyone incarcerated in State and local prisons or jails.

(11) Mrs. Martha Wright-Reed led a campaign for just communications rates for incarcerated people for over a decade.

(12) Mrs. Wright-Reed was the lead plaintiff in Wright v. Corrections Corporation of America, CA No. 00–293 (GK) (D.D.C. 2001).

(13) That case ultimately led to the Wright Petition at the Federal Communications Commission, CC Docket No. 96–128 (November 3, 2003).

(14) As a grandmother, Mrs. Wright-Reed was forced to choose between purchasing medication and communicating with her incarcerated grandson.

(15) Mrs. Wright-Reed passed away on January 18, 2015, before fully realizing her dream of just communications rates for all people.

SEC. 602. REQUIREMENTS FOR CONFINEMENT FACILITY COMMUNICATIONS SERVICES, DURING THE COVID–19 PANDEMIC AND OTHER TIMES.

(a) IN GENERAL.—Section 276 of the Communications Act of 1934 (47 U.S.C. 276) is amended by adding at the end the following:

''(e) ADDITIONAL REQUIREMENTS FOR CONFINEMENT FACILITY COMMUNICATIONS SERVICES.—

''(1) AUTHORITY.—

''(A) IN GENERAL.—All charges, practices, classifications, and regulations for and in connection with confinement facility communications services shall be just and reasonable, and any such charge, practice, classification, or regulation that is unjust or unreasonable is declared to be unlawful.

''(B) RULEMAKING REQUIRED.—Not later than 18 months after the date of the enactment of this subsection, the Commission shall issue rules to adopt, for the provision of confinement facility communications services, rates and ancillary service charges that are just and reasonable, which shall be the maximum such rates and charges that a provider of confinement facility communications services may charge for such services. In determining rates and charges that are just and reasonable, the Commission shall adopt such rates and charges based on the average industry costs of providing such services using data collected from providers of confinement facility communications services.

''(C) BIENNIAL REVIEW.—Not less frequently than every 2 years following the issuance of rules under subparagraph (B), the Commission shall—

''(i) determine whether the rates and ancillary service charges authorized by the rules issued under such subparagraph remain just and reasonable; and

''(ii) if the Commission determines under clause (i) that any such rate or charge does not remain just and reasonable, revise such rules so that such rate or charge is just and reasonable.

''(2) INTERIM RATE CAPS.—Until the Commission issues the rules required by paragraph (1)(B), a provider of confinement facility communications services may not charge a rate for any voice service communication using confinement facility communications services that exceeds the following:

''(A) For debit calling or prepaid calling, $0.04 per minute.

''(B) For collect calling, $0.05 per minute.

''(3) ASSESSMENT ON PER-MINUTE BASIS.—Except as provided in paragraph (4), a provider of confinement facility communications services—

''(A) shall assess all charges for a communication using such services on a per-minute basis for the actual duration of the communication, measured from communication acceptance to termination, rounded up to the next full minute, except in the case of charges for services that the confinement facility offers free of charge or for amounts below the amounts permitted under this subsection; and

''(B) may not charge a per-communication or per-connection charge for a communication using such services.

''(4) ANCILLARY SERVICE CHARGES.—

''(A) GENERAL PROHIBITION.—A provider of confinement facility communications services may not charge an ancillary service charge other than—

''(i) if the Commission has not yet issued the rules required by paragraph (1)(B), a charge listed in subparagraph (B) of this paragraph; or

''(ii) a charge authorized by the rules adopted by the Commission under paragraph (1).

''(B) PERMITTED CHARGES AND RATES.—If the Commission has not yet issued the rules required by paragraph (1)(B), a provider of confinement facility communications services may not charge a rate for an ancillary service charge in excess of the following:

''(i) In the case of an automated payment fee, 2.9 percent of the total charge on which the fee is assessed.

''(ii) In the case of a fee for single-call and related services, the exact transaction fee charged by the third-party provider, with no markup.

''(iii) In the case of a live agent fee, $5.95 per use.

''(iv) In the case of a paper bill or statement fee, $2 per use.

''(v) In the case of a third-party financial transaction fee, the exact fee, with no markup, charged by the third party for the transaction.

''(5) PROHIBITION ON SITE COMMISSIONS.—A provider of confinement facility communications services may not assess a site commission.

''(6) RELATIONSHIP TO STATE LAW.—A State or political subdivision of a State may not enforce any law, rule, regulation, standard, or other provision having the force or effect of law relating to confinement facility communications services that allows for higher rates or other charges

to be assessed for such services than is permitted under any Federal law or regulation relating to confinement facility communications services.

''(7) DEFINITIONS.—In this subsection:

''(A) ANCILLARY SERVICE CHARGE.—The term 'ancillary service charge' means any charge a consumer may be assessed for the setting up or use of a confinement facility communications service that is not included in the per-minute charges assessed for individual communications.

''(B) AUTOMATED PAYMENT FEE.—The term 'automated payment fee' means a credit card payment, debit card payment, or bill processing fee, including a fee for a payment made by means of interactive voice response, the internet, or a kiosk.

''(C) COLLECT CALLING.—The term 'collect calling' means an arrangement whereby a credit-qualified party agrees to pay for charges associated with a communication made to such party using confinement facility communications services and originating from within a confinement facility.

''(D) CONFINEMENT FACILITY.—The term 'confinement facility'—

''(i) means a jail or a prison; and

''(ii) includes any juvenile, detention, work release, or mental health facility that is used primarily to hold individuals who are—

''(I) awaiting adjudication of criminal charges or an immigration matter; or

''(II) serving a sentence for a criminal conviction.

''(E) CONFINEMENT FACILITY COMMUNICATIONS SERVICE.—The term 'confinement facility communications service' means a service that allows incarcerated persons to make electronic communications (whether intrastate, interstate, or international and whether made using video, audio, or any other communicative method, including advanced communications services) to individuals outside the confinement facility, or to individuals inside the confinement facility, where the incarcerated person is being held, regardless of the technology used to deliver the service.

''(F) CONSUMER.—The term 'consumer' means the party paying a provider of confinement facility communications services.

''(G) DEBIT CALLING.—The term 'debit calling' means a presubscription or comparable service which allows an incarcerated person, or someone acting on an incarcerated person's behalf, to fund an account set up through a provider that can be used to pay for confinement facility communications services originated by the incarcerated person.

''(H) FEE FOR SINGLE-CALL AND RELATED SERVICES.—The term 'fee for single-call and related services' means a billing arrangement whereby communications made by an incarcerated person using collect calling are billed through a third party on a per-communication basis, where the recipient does not have an account with the provider of confinement facility communications services.

''(I) INCARCERATED PERSON.—The term 'incarcerated person' means a person detained at a confinement facility, regardless of the duration of the detention.

''(J) JAIL.—The term 'jail'—

''(i) means a facility of a law enforcement agency of the Federal Government or of a State or political subdivision of a State that is used primarily to hold individuals who are—

''(I) awaiting adjudication of criminal charges;

''(II) post-conviction and committed to confinement for sentences of one year or less; or

''(III) post-conviction and awaiting transfer to another facility; and

''(ii) includes—

''(I) city, county, or regional facilities that have contracted with a private company to manage day-to-day operations;

''(II) privately-owned and operated facilities primarily engaged in housing city, county, or regional incarcerated persons; and

''(III) facilities used to detain individuals pursuant to a contract with U.S. Immigration and Customs Enforcement.

''(K) LIVE AGENT FEE.—The term 'live agent fee' means a fee associated with the optional use of a live operator to complete a confinement facility communications service transaction.

''(L) PAPER BILL OR STATEMENT FEE.—The term 'paper bill or statement fee' means a fee associated with providing a consumer an optional paper billing statement.

''(M) PER-COMMUNICATION OR PER-CONNECTION CHARGE.—The term 'per-communication or per-connection charge' means a one-time fee charged to a consumer at the initiation of a communication.

''(N) PREPAID CALLING.—The term 'prepaid calling' means a calling arrangement that allows a consumer to pay in advance for a specified amount of confinement facility communications services.

''(O) PRISON.—The term 'prison'—

''(i) means a facility operated by a State or Federal agency that is used primarily to confine individuals convicted of felonies and sentenced to terms in excess of one year; and

''(ii) includes—

''(I) public and private facilities that provide outsource housing to State or Federal agencies such as State Departments of Correction and the Federal Bureau of Prisons; and

''(II) facilities that would otherwise be jails but in which the majority of incarcerated persons are post-conviction or are committed to confinement for sentences of longer than one year.

''(P) PROVIDER OF CONFINEMENT FACILITY COMMUNICATIONS SERVICES.—The term 'provider of confinement facility communications services' means any communications service provider that provides confinement facility communications services, regardless of the technology used.

''(Q) SITE COMMISSION.—The term 'site commission' means any monetary payment, in-kind payment, gift, exchange of services or goods, fee, technology allowance, or product that a provider of confinement facility communications services or an affiliate of a provider of confinement facility communications services may pay, give, donate, or otherwise provide to—

''(i) an entity that operates a confinement facility;

''(ii) an entity with which the provider of confinement facility communications services enters into an agreement to provide confinement facility communications services;

''(iii) a governmental agency that oversees a confinement facility;

''(iv) the State or political subdivision of a State where a confinement facility is located; or

''(v) an agent or other representative of an entity described in any of clauses (i) through (iv).

''(R) THIRD-PARTY FINANCIAL TRANSACTION FEE.—The term 'third-party financial transaction fee' means the exact fee, with no markup, that a provider of confinement facility communications services is charged by a third party to transfer money or process a financial transaction to facilitate the ability of a consumer to make an account payment via a third party.

''(S) VOICE SERVICE.—The term 'voice service'—

''(i) means any service that is interconnected with the public switched telephone network and that furnishes voice communications to an end user using resources from the North American Numbering Plan or any successor to the North American Numbering Plan adopted by the Commission under section 251(e)(1); and

''(ii) includes—

''(I) transmissions from a telephone facsimile machine, computer, or other device to a telephone facsimile machine; and

''(II) without limitation, any service that enables real-time, two-way voice communications, including any service that requires internet protocol-compatible customer premises equipment (commonly known as 'CPE') and permits outbound calling, whether or not the service is one-way or two-way voice over internet protocol.''.

(b) CONFORMING AMENDMENT.—Section 276(d) of the Communications Act of 1934 (47 U.S.C. 276(d)) is amended by striking ''inmate telephone service in correctional institutions'' and inserting ''confinement facility communications services (as defined in subsection (e)(7))''.

(c) EXISTING CONTRACTS.—

(1) IN GENERAL.—In the case of a contract that was entered into and under which a provider of confinement facility communications services was providing such services at a confinement facility on or before the date of the enactment of this Act—

(A) paragraphs (1) through (5) of subsection (e) of section 276 of the Communications Act of 1934, as added by subsection (a) of this section, shall apply to the provision of confinement facility communications services by such provider at such facility beginning on the earlier of—

(i) the date that is 60 days after such date of enactment; or

(ii) the date of the termination of the contract; and

(B) the terms of such contract may not be extended after such date of enactment, whether by exercise of an option or otherwise.

(2) DEFINITIONS.—In this subsection, the terms ''confinement facility'', ''confinement facility communications service'', and ''provider of confinement facility communications services'' have the meanings given such terms in paragraph (7) of subsection (e) of section 276 of the Communications Act of 1934, as added by subsection (a) of this section.

SEC. 603. AUTHORITY.

Section 2(b) of the Communications Act of 1934 (47 U.S.C. 152(b)) is amended by inserting ''section 276,'' after ''227, inclusive,''.

DIVISION N—AGRICULTURE PROVISIONS

SEC. 100. DEFINITIONS.

In this division:

(1) The term ''COVID–19'' means the disease caused by SARS–CoV–2, or any viral strain mutating therefrom with pandemic potential.

(2) The term ''COVID–19 public health emergency'' means the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Services Act (42 U.S.C. 247d) on January 31, 2020, with respect to COVID–19 (including any renewal of that declaration).

(3) The term ''Secretary'' means the Secretary of Agriculture.

TITLE I—LIVESTOCK AND POULTRY

SEC. 101. ESTABLISHMENT OF TRUST FOR BENEFIT OF UNPAID CASH SELLERS OF LIVESTOCK.

The Packers and Stockyards Act, 1921, is amended by inserting after section 317 (7 U.S.C. 217a) the following new section:

''SEC. 318. STATUTORY TRUST ESTABLISHED; DEALER.

''(a) ESTABLISHMENT.—

''(1) IN GENERAL.—All livestock purchased by a dealer in cash sales and all inventories of, or receivables or proceeds from, such livestock shall be held by such dealer in trust for the benefit of all unpaid cash sellers of such livestock until full payment has been received by such unpaid cash sellers.

''(2) EXEMPTION.—Any dealer whose average annual purchases of livestock do not exceed $100,000 shall be exempt from the provisions of this section.

''(3) EFFECT OF DISHONORED INSTRUMENTS.—For purposes of determining full payment under paragraph (1), a payment to an unpaid cash seller shall not be considered to have been made if the unpaid cash seller receives a payment instrument that is dishonored.

''(b) PRESERVATION OF TRUST.—An unpaid cash seller shall lose the benefit of a trust under subsection (a) if the unpaid cash seller has not preserved the trust by giving written notice to

the dealer involved and filing such notice with the Secretary—

''(1) within 30 days of the final date for making a payment under section 409 in the event that a payment instrument has not been received; or

''(2) within 15 business days after the date on which the seller receives notice that the payment instrument promptly presented for payment has been dishonored.

''(c) NOTICE TO LIEN HOLDERS.—When a dealer receives notice under subsection (b) of the unpaid cash seller's intent to preserve the benefits of the trust, the dealer shall, within 15 business days, give notice to all persons who have recorded a security interest in, or lien on, the livestock held in such trust.

''(d) CASH SALES DEFINED.—For the purpose of this section, a cash sale means a sale in which the seller does not expressly extend credit to the buyer.

''(e) PURCHASE OF LIVESTOCK SUBJECT TO TRUST.—

''(1) IN GENERAL.—A person purchasing livestock subject to a dealer trust shall receive good title to the livestock if the person receives the livestock—

''(A) in exchange for payment of new value; and

''(B) in good faith without notice that the transfer is a breach of trust.

''(2) DISHONORED PAYMENT INSTRUMENT.—Payment shall not be considered to have been made if a payment instrument given in exchange for the livestock is dishonored.

''(3) TRANSFER IN SATISFACTION OF ANTECEDENT DEBT.—A transfer of livestock subject to a dealer trust is not for value if the transfer is in satisfaction of an antecedent debt or to a secured party pursuant to a security agreement.

''(f) ENFORCEMENT.—Whenever the Secretary has reason to believe that a dealer subject to this section has failed to perform the duties required by this section or whenever the Secretary has reason to believe that it will be in the best interest of unpaid cash sellers, the Secretary shall do one or more of the following—

''(1) Appoint an independent trustee to carry out the duties required by this section, preserve trust assets, and enforce the trust.

''(2) Serve as independent trustee, preserve trust assets, and enforce the trust.

''(3) File suit in the United States district court for the district in which the dealer resides to enjoin the dealer's failure to perform the duties required by this section, preserve trust assets, and to enforce the trust. Attorneys employed by the Secretary may, with the approval of the Attorney General, represent the Secretary in any such suit. Nothing herein shall preclude unpaid sellers from filing suit to preserve or enforce the trust.''.

SEC. 102. EMERGENCY ASSISTANCE FOR MARKET-READY LIVESTOCK AND POULTRY LOSSES.

(a) IN GENERAL.—The Secretary shall make payments to covered producers to offset the losses of income related to the intentional depopulation of market-ready livestock and poultry due to insufficient regional access to meat and poultry processing related to the COVID–19 public health emergency, as determined by the Secretary.

(b) PAYMENT RATE FOR COVERED PRODUCERS.—

(1) PAYMENTS FOR FIRST 30-DAY PERIOD.—For a period of 30 days beginning, with respect to a covered producer, on the initial date of depopulation described in subsection (a) of the market-ready livestock or poultry of the covered producer, the Secretary shall reimburse such covered producer for 85 percent of the value of losses as determined under subsection (c).

(2) SUBSEQUENT 30-DAY PERIODS.—For each 30-day period subsequent to the 30-day period described in paragraph (1), the Secretary shall reduce the value of the losses as determined under subsection (c) with respect to a covered producer by 10 percent.

(c) VALUATION.—In calculating the amount of losses for purposes of the payment rates under subsection (b), the Secretary shall use the average fair market value, as determined by the Secretary in collaboration with the Chief Economist of the Department of Agriculture and the Administrator of the Agricultural Marketing Service, for market-ready livestock, where applicable, and market-ready poultry, where applicable, during the period beginning on March 1, 2020, and ending on the date of the enactment of this section. In no case shall a payment made under subsection (b) and compensation received from any other source exceed the average market value of market-ready livestock or poultry on the date of depopulation.

(d) PACKER-OWNED ANIMALS EXCLUDED.—The Secretary may not make payments under this section for the actual losses of livestock owned by a packer or poultry owned by a live poultry dealer.

(e) DEFINITIONS.—In this section:

(1) COVERED PRODUCER.—The term ''covered producer'' means a person or legal entity that assumes the production and market risks associated with the agricultural production of livestock and poultry (as such terms are defined in section 2(a) of the Packers and Stockyards Act, 1921 (7 U.S.C. 182(a)).

(2) PACKER.—The term ''packer'' has the meaning given the term in section 201 of the Packers and Stockyards Act, 1921 (7 U.S.C. 191).

(3) LIVE POULTRY DEALER.—The term ''live poultry dealer'' has the meaning given the term in section 2(a) of the Packers and Stockyards Act, 1921 (7 U.S.C. 182(a)).

(4) INTENTIONAL DEPOPULATION.—The term ''intentional depopulation'' means—

(A) the destruction of livestock or poultry; and

(B) the transfer of livestock or poultry to a noncommercial interest.

(f) FUNDING.—Out of any amounts of the Treasury not otherwise appropriated, there is appropriated to carry out this section such sums as may be necessary, to remain available until expended.

SEC. 103. ANIMAL DISEASE PREVENTION AND MANAGEMENT RESPONSE.

Out of any amounts in the Treasury not otherwise appropriated, there is appropriated to carry out section 10409A of the Animal Health Protection Act (7 U.S.C. 8308A) $300,000,000, to remain available until expended.

SEC. 104. GRANTS FOR IMPROVEMENTS TO MEAT AND POULTRY FACILITIES TO ALLOW FOR INTERSTATE SHIPMENT.

(a) IN GENERAL.—The Secretary, acting through the Administrator of the Agricultural Marketing Service and in consultation with the Administrator of the Food Safety Inspection Service, shall make grants to meat and poultry processing facilities (including facilities operating under State inspection or facilities that are exempt from Federal inspection) in operation as of the date on which an application for such a grant is made to assist such facilities with respect to costs incurred in making improvements to such facilities and carrying out other planning activities necessary to be subject to inspection under the Federal Meat Inspection Act (21 U.S.C. 601 et seq.), or the Poultry Products Inspection Act (21 U.S.C. 451 et seq.).

(b) GRANT AMOUNT.—The amount of a grant under this section shall not exceed $100,000.

(c) CONDITION.—As a condition on receipt of a grant under this section, a grant recipient shall agree that if the recipient is not subject to inspection or making a good faith effort to be subject to inspection under the Federal Meat Inspection Act (21 U.S.C. 601 et seq.) or the Poultry Products Inspection Act (21 U.S.C. 451 et seq.) within 36 months of receiving such grant, the grant recipient shall make a payment (or payments) to the Secretary in an amount equal to the amount of the grant.

(d) MATCHING FUNDS.—

(1) IN GENERAL.—Except as provided in paragraph (2), the Secretary shall require a grant recipient under this section to provide matching non-Federal funds in an amount equal to the amount of a grant.

(2) EXCEPTION.—The Secretary shall not require any recipient of a grant under this section to provide matching funds with respect to a grant awarded in fiscal year 2021.

(e) REPORTS.—

(1) REPORTS ON GRANTS MADE.—Beginning not later than one year after the date on which the first grant is awarded under this section, and annually thereafter, the Secretary shall submit to the Committee on Agriculture and the Committee on Appropriations of the House of Representatives and the Committee on Agriculture, Nutrition, and Forestry and the Committee on Appropriations of the Senate a report on grants made under this section and any facilities that were upgraded using such funds during the year covered by the report.

(2) REPORT ON THE COOPERATIVE INTERSTATE SHIPMENT PROGRAM.—Beginning not later than one year after the date of the enactment of this section, the Secretary shall submit to the Committee on Agriculture and the Committee on Appropriations of the House of Representatives and the Committee on Agriculture, Nutrition, and Forestry and the Committee on Appropriations of the Senate a report of any recommendations, developed in consultation with all States, for possible improvements to the cooperative interstate shipment programs under section 501 of the Federal Meat Inspection Act (21 U.S.C. 683) and section 31 of the Poultry Products Inspection Act (21 U.S.C. 472).

(f) FUNDING.—Of the funds of the Treasury not otherwise appropriated, there is appropriated to carry out this section $100,000,000 for the period of fiscal years 2021 through 2023.

SEC. 105. PAYMENTS TO CONTRACT PRODUCERS.

(a) IN GENERAL.—The Secretary shall make payments to contract growers of livestock or poultry to cover revenue losses in response to the COVID–19 pandemic.

(b) LIVESTOCK AND POULTRY LOSSES NOT COVERED BY THE FIRST OR SECOND CORONAVIRUS FOOD ASSISTANCE PROGRAM.—In the case of livestock or poultry related revenue losses for which a contract grower is ineligible to receive direct payments under the first coronavirus food assistance program or the second coronavirus food assistance program, the Secretary shall base payments required under subsection (a), per commodity, by comparing—

(1) the revenue losses for the period beginning on January 15, 2020, and ending on December 31, 2020; and

(2) historical revenue.

(c) ADJUSTED GROSS INCOME LIMITATIONS.—A payment under this section shall be deemed to be a covered benefit under section 1001D(b)(2) of the Food Security Act of 1985 (7 U.S.C. 1308–3a(b)(2)), unless at least 75 percent of the adjusted gross income of the recipient of the payment is derived from activities related to farming, ranching, or forestry.

(d) PAYMENTS.—The Secretary shall begin making payments under subsection (a) not later than 60 days after the date of the enactment of this section.

(e) FUNDING.—There is appropriated, out of any funds in the Treasury not otherwise appropriated, to carry out this section $1,250,000,000, to remain available until expended.

(f) DEFINITIONS.—In this section:

(1) CFAP DEFINITIONS.—

(A) FIRST CORONAVIRUS FOOD ASSISTANCE PROGRAM.—The term ''first coronavirus food assistance program'' means the first coronavirus food assistance program (CFAP1) of the Department of Agriculture under sections 9.101 and 9.102 of title 7, Code of Federal Regulations.

(B) SECOND CORONAVIRUS FOOD ASSISTANCE PROGRAM.—The term ''second coronavirus food assistance program'' means the second coronavirus food assistance program (CFAP2) of the Department of Agriculture under sections

9.201 and 9.202 of title 7, Code of Federal Regulations.

(2) CONTRACT GROWER.—The term ''contract grower'' means a grower of livestock or poultry, including poultry used for egg production, and does not include a packer, live poultry dealer, processor, integrator, or any other business entity relating to livestock or poultry production that does not raise livestock or poultry.

(3) LIVE POULTRY DEALER.—The term ''live poultry dealer'' has the meaning given the term in section 2(a) of the Packers and Stockyards Act, 1921 (7 U.S.C. 182(a)).

(4) PACKER.— The term ''packer'' has the meaning given the term in section 201 of the Packers and Stockyards Act, 1921 (7 U.S.C. 191).

(5) REVENUE.—The term ''revenue'' means income derived only from contract livestock or poultry production.

SEC. 106. REPORTS AND OUTREACH RELATED TO MEAT AND POULTRY PROCESSING.

(a) STUDY AND REPORT ON PROCESSING CAPACITY REQUIRED.—

(1) STUDY REQUIRED.—The Secretary shall conduct a study on covered processing facilities, which shall assess with respect to such facilities in each State and region—

(A) the available monthly and annual slaughter capacity of such facilities, disaggregated by type of facility and whether that capacity is sufficient to meet the national, State, and regional need, including on a local basis;

(B) the available cold storage capacity of such facilities, disaggregated by type of facility;

(C) the number and age of established processing facilities, disaggregated by type of facility;

(D) the ownership demographics of covered processing facilities, including—

(i) whether such facilities are foreign or domestically-owned; and

(ii) the business structure of such processing facilities;

(E) the available slaughter capacity for livestock and poultry not grown under contract, disaggregated by type of facility and species so slaughtered;

(F) with respect to each species slaughtered at covered processing facilities, the estimated distance between livestock and poultry production and processing and the transportation costs associated with such processing;

(G) any opportunities to support new or innovative processing partnerships that would increase resiliency and flexibility of slaughter and processing capacity; and

(H) the barriers to increasing the availability of slaughter and processing of meat and poultry, including with respect to—

(i) expanding existing facilities;

(ii) creating additional facilities; and

(iii) reactivating closed facilities.

(2) COVERED PROCESSING FACILITY DEFINED.—In this section, the term ''covered processing facility'' means a facility that slaughters or otherwise processes meat or poultry in the United States, including the following types of facilities:

(A) Facilities subject to Federal inspection under the Federal Meat Inspection Act (21 U.S.C. 601 et seq.) or the Poultry Products Inspection Act (21 U.S.C. 451 et seq.), as applicable.

(B) Facilities subject to State inspection under a meat and poultry inspection program agreement.

(C) Custom facilities exempt from inspection under the Acts referred to in subparagraph (A).

(3) REPORT TO CONGRESS.—Not later than 1 year after the date of the enactment of this section, the Secretary shall submit to the Committee on Agriculture of the House of Representatives and the Committee on Agriculture, Nutrition, and Forestry of the Senate a report that includes the results of the study conducted under paragraph (1).

(b) STUDY AND REPORT ON FINANCIAL ASSISTANCE AVAILABILITY.—

(1) STUDY REQUIRED.—The Secretary shall conduct a study on the availability and effectiveness of—

(A) Federal loan programs, Federal loan guarantee programs, and grant programs for which—

(i) facilities that slaughter or otherwise process meat and poultry in the United States, which are in operation and subject to inspection under the Federal Meat Inspection Act (21 U.S.C. 601 et seq.) or the Poultry Products Inspection Act (21 U.S.C. 451 et seq.), as of the date of the enactment of this section, and

(ii) entities seeking to establish such a facility in the United States,

may be eligible; and

(B) Federal grant programs intended to support—

(i) business activities relating to increasing the slaughter or processing capacity in the United States; and

(ii) feasibility or marketing studies on the practicality and viability of specific new or expanded projects to support additional slaughter or processing capacity in the United States.

(2) REPORT TO CONGRESS.—Not later than 60 days after the date of the enactment of this section, the Secretary, in consultation with applicable Federal agencies, shall submit a report to the Committee on Agriculture of the House of Representatives and the Committee on Agriculture, Nutrition, and Forestry of the Senate that includes the results of the study required under paragraph (1).

(3) PUBLICATION.—Not later than 90 days after the date of the enactment of this section, the Secretary shall make publicly available on the website of the Food Safety and Inspection Service of the Department of Agriculture a list of each loan program, loan guarantee program, and grant program identified under paragraph (1).

(c) OUTREACH ACTIVITIES.—

(1) IN GENERAL.—To the maximum extent practicable, the Secretary shall conduct outreach and education activities to inform the current or prospective owners and operators of facilities or other entities described in subsection (b)(1)(A), producer groups, and institutions of higher education, of the availability of each loan program, loan guarantee program, and grant program identified under paragraph (1).

(2) FEASIBILITY OR MARKETING STUDIES.—In carrying out paragraph (1), the Secretary may enter into cooperative agreements with eligible entities to conduct feasibility or marketing studies to determine the practicality and viability of specific projects to support additional slaughter or processing capacity in the United States.

(3) MAXIMUM AMOUNT.—The amount of assistance provided through a cooperative agreement under paragraph (2) with respect to a particular project may not exceed $75,000.

(4) REPORTING.—The Secretary shall publish (and update as necessary) on the public website of the Department of Agriculture, an accounting of outreach activities conducted pursuant to this subsection, including a description of each such activity and the amount of Federal funds expended to conduct each such activity.

(d) FUNDING.—To carry out this section, there is appropriated, out of the funds of the Treasury not otherwise appropriated—

(1) $2,000,000 to carry out subsection (a);

(2) $2,000,000 to carry out subsection (b); and

(3) $16,000,000 to carry out subsection (c).

TITLE II—DAIRY

SEC. 201. DAIRY DIRECT DONATION PROGRAM.

(a) DEFINITIONS.—In this section:

(1) ELIGIBLE DAIRY ORGANIZATION.—The term ''eligible dairy organization'' is defined in section 1431(a) of the Agricultural Act of 2014 (7 U.S.C. 9071(a)).

(2) ELIGIBLE DAIRY PRODUCTS.—The term ''eligible dairy products'' means products primarily made from milk.

(3) ELIGIBLE DISTRIBUTOR.—The term ''eligible distributor'' means a public or private nonprofit organization that distributes donated eligible dairy products to recipient individuals and families.

(4) ELIGIBLE PARTNERSHIP.—The term ''eligible partnership'' means a partnership between an eligible dairy organization and an eligible distributor.

(b) ESTABLISHMENT AND PURPOSES.—Not later than 45 days after the date of the enactment of this Act, the Secretary shall establish and administer a direct dairy donation program for the purposes of—

(1) facilitating the timely donation of eligible dairy products; and

(2) preventing and minimizing food waste.

(c) DONATION AND DISTRIBUTION PLANS.—

(1) IN GENERAL.—To be eligible to receive reimbursement under this section, an eligible partnership shall submit to the Secretary a donation and distribution plan that describes the process that the eligible partnership will use for the donation, processing, transportation, temporary storage, and distribution of eligible dairy products.

(2) REVIEW AND APPROVAL.—No later than 15 business days after receiving a plan described in paragraph (1), the Secretary shall—

(A) review such plan; and

(B) issue an approval or disapproval of such plan.

(d) REIMBURSEMENT.—

(1) IN GENERAL.—On receipt of appropriate documentation under paragraph (2), the Secretary shall reimburse an eligible dairy organization at a rate equal to the raw milk cost for the product as priced in the Federal milk marketing orders multiplied by the volume of milk required to make the donated product.

(2) DOCUMENTATION.—

(A) IN GENERAL.—An eligible dairy organization shall submit to the Secretary such documentation as the Secretary may require to demonstrate the eligible dairy product production and donation to the eligible distributor.

(B) VERIFICATION.—The Secretary may verify the accuracy of documentation submitted under subparagraph (A).

(3) RETROACTIVE REIMBURSEMENT.—In providing reimbursements under paragraph (1), the Secretary may provide reimbursements for milk costs incurred before the date on which the donation and distribution plan for the applicable participating partnership was approved by the Secretary.

(e) PROHIBITION ON RESALE OF PRODUCTS.—

(1) IN GENERAL.—An eligible distributor that receives eligible dairy products donated under this section may not sell the products into commercial markets.

(2) PROHIBITION ON FUTURE PARTICIPATION.—An eligible distributor that the Secretary determines has violated paragraph (1) shall not be eligible for any future participation in the program established under this section.

(f) REVIEWS.—The Secretary shall conduct appropriate reviews or audits to ensure the integrity of the program established under this section.

(g) PUBLICATION OF DONATION ACTIVITY.—The Secretary, acting through the Administrator of the Agricultural Marketing Service, shall publish on the publicly accessible website of the Agricultural Marketing Service periodic reports containing donation activity under this section.

(h) SUPPLEMENTAL REIMBURSEMENTS.—

(1) IN GENERAL.—The Secretary may make a supplemental reimbursement to an eligible dairy organization for an approved donation and distribution plan in accordance with the milk donation program established under section 1431 of the Agricultural Act of 2014 (7 U.S.C. 9071).

(2) REIMBURSEMENT CALCULATION.—A supplemental reimbursement described in paragraph (1) shall be equal to the value of—

(A) raw milk cost for the product as priced in the Federal milk marketing orders, less any reimbursement provided under section 1431 of the Agricultural Act of 2014, multiplied by

(B) the volume of eligible dairy products under such approved donation plan.

(i) FUNDING.—Out of any amounts of the Treasury not otherwise appropriated, there is appropriated to carry out this section $500,000,000, to remain available until expended.

(j) AUTHORITY TO CARRY OUT SECTION.—The Secretary may only carry out this section during a period in which—

(1) a public health emergency is—

(A) declared under section 319 of the Public Health Services Act (42 U.S.C. 247d); or

(B) renewed under such section; or

(2) a disaster is designated by the Secretary.

SEC. 202. SUPPLEMENTAL DAIRY MARGIN COVERAGE PAYMENTS.

(a) IN GENERAL.—The Secretary shall provide supplemental dairy margin coverage payments to eligible dairy operations described in subsection (b)(1) whenever the average actual dairy production margin (as defined in section 1401 of the Agricultural Act of 2014 (7 U.S.C. 9051)) for a month is less than the coverage level threshold selected by such eligible dairy operation under section 1406 of such Act (7 U.S.C. 9056).

(b) ELIGIBLE DAIRY OPERATION DESCRIBED.—

(1) IN GENERAL.—An eligible dairy operation described in this subsection is a dairy operation that—

(A) is located in the United States; and

(B) during a calendar year in which such dairy operation is a participating dairy operation (as defined in section 1401 of the Agricultural Act of 2014 (7 U.S.C. 9051)), has a production history established under the dairy margin coverage program under section 1405 of the Agricultural Act of 2014 (7 U.S.C. 9055) of less than 5 million pounds, as determined in accordance with subsection (c) of such section 1405.

(2) LIMITATION ON ELIGIBILITY.—An eligible dairy operation shall only be eligible for payments under this section during a calendar year in which such eligible dairy operation is enrolled in dairy margin coverage (as defined in section 1401 of the Agricultural Act of 2014 (7 U.S.C. 9051)).

(c) SUPPLEMENTAL PRODUCTION HISTORY CALCULATION.—For purposes of determining the production history of an eligible dairy operation under this section, such dairy operation's production history shall be equal to—

(1) the production volume of such dairy operation for the 2019 milk marketing year; minus

(2) the dairy margin coverage production history of such dairy operation established under section 1405 of the Agricultural Act of 2014 (7 U.S.C. 9055).

(d) COVERAGE PERCENTAGE.—

(1) IN GENERAL.—For purposes of calculating payments to be issued under this section during a calendar year, an eligible dairy operation's coverage percentage shall be equal to the coverage percentage selected by such eligible dairy operation with respect to such calendar year under section 1406 of the Agricultural Act of 2014 (7 U.S.C. 9056).

(2) 5-MILLION POUND LIMITATION.—

(A) IN GENERAL.—The Secretary shall not provide supplemental dairy margin coverage on an eligible dairy operation's actual production for a calendar year such that the total covered production history of such dairy operation exceeds 5 million pounds.

(B) DETERMINATION OF AMOUNT.—In calculating the total covered production history of an eligible dairy operation under subparagraph (A), the Secretary shall multiply the coverage percentage selected by such operation under section 1406 of the Agricultural Act of 2014 (7 U.S.C. 9056) by the sum of—

(i) the supplemental production history calculated under subsection (c) with respect to such dairy operation; and

(ii) the dairy margin coverage production history described in subsection (c)(2) with respect to such dairy operation.

(e) PREMIUM COST.—The premium cost for an eligible dairy operation under this section for a calendar year shall be equal to the product of multiplying—

(1) the Tier I premium cost calculated with respect to such dairy operation for such year under section 1407(b) of the Agricultural Act of 2014 (7 U.S.C. 9057(b)); by

(2) the production history calculation with respect to such dairy operation determined under subsection (c) (such that total covered production history does not exceed 5 million pounds).

(f) REGULATIONS.—Not later than 45 days after the date of the enactment of this section, the Secretary shall issue regulations to carry out this section.

(g) PROHIBITION WITH RESPECT TO DAIRY MARGIN COVERAGE ENROLLMENT.—The Secretary may not reopen or otherwise provide a special enrollment for dairy margin coverage (as defined in section 1401 of the Agricultural Act of 2014 (7 U.S.C. 9051)) for purposes of establishing eligibility for supplemental dairy margin coverage payments under this section.

(h) RETROACTIVE APPLICATION FOR CALENDAR YEAR 2020.—The Secretary shall make payments under this section to eligible dairy operations described in subsection (b)(1) for months after and including January, 2020.

(i) SUNSET.—The authority to make payments under this section shall terminate on December 31, 2023.

(j) FUNDING.—There is appropriated, out of any funds in the Treasury not otherwise appropriated, to carry out this section such sums as necessary, to remain available until the date specified in subsection (i).

SEC. 203. RECOURSE LOAN PROGRAM FOR COMMERCIAL PROCESSORS OF DAIRY PRODUCTS.

(a) IN GENERAL.—The Secretary shall make recourse loans available to qualified applicants during the COVID–19 pandemic.

(b) AMOUNT OF LOAN.—

(1) IN GENERAL.—A recourse loan made under this section shall be provided to qualified applicants up to the value of the eligible dairy product inventory of the applicant as determined by the Secretary and in accordance with subsection (c).

(2) VALUATION.—For purposes of making recourse loans under this section, the Secretary shall conduct eligible dairy product valuations to provide, to the maximum extent practicable, funds to continue the operations of qualified applicants.

(c) INVENTORY USED AS COLLATERAL.—Eligible dairy product inventory used as collateral for the recourse loan program under this section shall be pledged on a rotating basis to prevent spoilage of perishable products.

(d) TERM OF LOAN.—A recourse loan under this section may be made for a period as determined by the Secretary, except that no such recourse loan may end after the date that is 24 months after the date of the enactment of this section.

(e) FUNDING.—Out of any amounts in the Treasury not otherwise appropriated, there is appropriated to carry out this section $500,000,000.

(f) DEFINITIONS.—In this section:

(1) ELIGIBLE DAIRY PRODUCTS.—The term ''eligible dairy products'' means all dairy products whether in base commodity or finished product form.

(2) QUALIFIED APPLICANT.—The term ''qualified applicant'' means any commercial processor, packager, or merchandiser of eligible dairy products that is impacted by COVID–19.

SEC. 204. DAIRY MARGIN COVERAGE PREMIUM DISCOUNT FOR A 3-YEAR SIGNUP.

The Secretary shall provide a 15 percent discount for the premiums described in subsections (b) and (c) of section 1407 of the Agricultural Act of 2014 (7 U.S.C. 9051) and the premium described in section 202(e) for a dairy operation (as defined in section 1401 of the Agricultural Act of 2014 (7 U.S.C. 9051)) that makes a 1-time, 3-year election to enroll in dairy margin coverage under part I of subtitle D of such Act for calendar years 2021 through 2024.

TITLE III—SPECIALTY CROPS AND OTHER COMMODITIES

SEC. 301. SUPPORT FOR SPECIALTY CROP SECTOR.

Section 101(l) of the Specialty Crops Competitiveness Act of 2004 (7 U.S.C. 1621 note) is amended by adding at the end the following:

''(3) COVID–19 OUTBREAK SUPPORT.—

''(A) IN GENERAL.—The Secretary shall make grants to States eligible to receive a grant under this section to assist State efforts to support the specialty crop sector for impacts related to the COVID–19 public health emergency.

''(B) FUNDING.—There is appropriated, out of any funds in the Treasury not otherwise appropriated, to carry out subparagraph (A) not less than $500,000,000, to remain available until expended.''.

SEC. 302. SUPPORT FOR LOCAL AGRICULTURAL MARKETS.

Section 210A(i) of the Agricultural Marketing Act of 1946 (7 U.S.C. 1627c(i)) is amended by adding at the end the following:

''(4) GRANTS FOR COVID–19 ASSISTANCE.—

''(A) IN GENERAL.—In addition to grants made under the preceding provisions of this subsection, the Secretary shall make grants to eligible entities specified in paragraphs (5)(B) and (6)(B) of subsection (d) to provide assistance in response to the COVID–19 pandemic.

''(B) MATCHING FUNDS APPLICABILITY.—The Secretary may not require a recipient of a grant under subparagraph (A) to provide any non-Federal matching funds.

''(C) FUNDING.—There is appropriated, out of any funds in the Treasury not otherwise appropriated, to carry out this paragraph, $350,000,000, to remain available until expended.''.

SEC. 303. SUPPORT FOR FARMING OPPORTUNITIES TRAINING AND OUTREACH.

Section 2501 of the Food, Agriculture, Conservation, and Trade Act of 1990 (7 U.S.C. 2279) is amended by adding at the end the following:

''(m) ADDITIONAL FUNDING.—

''(1) IN GENERAL.—The Secretary shall make grants to, or enter into cooperative agreements or contracts with, eligible entities specified in subsection (c)(1) or entities eligible for grants under subsection (d) to provide training, outreach, and technical assistance on operations, financing, and marketing, including identifying Federal, State, or local assistance available, to beginning farmers and ranchers, socially disadvantaged farmers and ranchers, and veteran farmers and ranchers in response to the COVID–19 pandemic.

''(2) MATCHING FUNDS APPLICABILITY.—The Secretary may not require a recipient of a grant under this subsection to provide any non-Federal matching funds.

''(3) FUNDING.—There is appropriated, out of any funds in the Treasury not otherwise appropriated, to carry out this subsection, $50,000,000, to remain available until expended.''.

SEC. 304. SUPPORT FOR FARM STRESS PROGRAMS.

(a) IN GENERAL.—The Secretary shall make grants to State departments of agriculture (or such equivalent department) to expand or sustain stress assistance programs for individuals who are engaged in farming, ranching, and other agriculture-related occupations, including—

(1) programs that meet the criteria specified in section 7522(b)(1) of the Food, Conservation, and Energy Act of 2008 (7 U.S.C. 5936(b)(1)); and

(2) any State initiatives carried out as of the date of the enactment of this Act that provide stress assistance for such individuals.

(b) GRANT TIMING AND AMOUNT.—In making grants under subsection (a), not later than 60 days after the date of the enactment of this Act and subject to subsection (c), the Secretary shall—

(1) make awards to States submitting State plans that meet the criteria specified in paragraph (1) of subsection (c) within the time period specified by the Secretary, in an amount not to exceed $1,500,000 for each State; and

(2) of the amounts made available under subsection (f) and remaining after awards to States under paragraph (1), allocate among such States, an amount to be determined by the Secretary.

(c) STATE PLAN.—

(1) IN GENERAL.—A State department of agriculture seeking a grant under subsection (b) shall submit to the Secretary a State plan to expand or sustain stress assistance programs described in subsection (a) that includes—

(A) a description of each activity and the estimated amount of funding to support each program and activity carried out through such a program;

(B) an estimated timeline for the operation of each such program and activity;

(C) the total amount of funding sought; and

(D) an assurance that the State department of agriculture will comply with the reporting requirement under subsection (e).

(2) GUIDANCE.—Not later than 20 days after the date of the enactment of this Act, the Secretary shall issue guidance for States with respect to the submission of a State plan under paragraph (1) and the allocation criteria under subsection (b).

(3) REALLOCATION.—If, after the first grants are awarded pursuant to allocation made under subsection (b), any funds made available under subsection (f) to carry out this subsection remain unobligated, the Secretary shall—

(A) inform States that submit plans as described in subsection (b), of such availability; and

(B) reallocate such funds among such States, as the Secretary determines to be appropriate and equitable.

(d) COLLABORATION.—The Secretary may issue guidance to encourage State departments of agriculture to use funds provided under this section to support programs described in subsection (a) that are operated by—

(1) Indian tribes (as defined in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304));

(2) State cooperative extension services; and

(3) nongovernmental organizations.

(e) REPORTING.—Not later than 180 days after the COVID–19 public health emergency ends, each State receiving additional grants under subsection (b) shall submit a report to the Secretary describing—

(1) the activities conducted using such funds;

(2) the amount of funds used to support each such activity; and

(3) the estimated number of individuals served by each such activity.

(f) FUNDING.—Out of the funds of the Treasury not otherwise appropriated, there is appropriated to carry out this section $84,000,000, to remain available until expended.

(g) STATE DEFINED.—In this section, the term ''State'' means—

(1) a State;

(2) the District of Columbia;

(3) the Commonwealth of Puerto Rico; and

(4) any other territory or possession of the United States.

SEC. 305. SUPPORT FOR PROCESSED COMMODITIES.

(a) RENEWABLE FUEL REIMBURSEMENT PROGRAM.—

(1) IN GENERAL.—The Secretary shall make payments in accordance with this subsection to eligible entities that experienced unexpected market losses as a result of the COVID–19 pandemic during the applicable period.

(2) DEFINITIONS.—In this section:

(A) APPLICABLE PERIOD.—The term ''applicable period'' means January 1, 2020, through May 1, 2020.

(B) ELIGIBLE ENTITY.—The term ''eligible entity'' means any domestic entity or facility that produced any qualified fuel in the calendar year 2019.

(C) QUALIFIED FUEL.—The term ''qualified fuel'' means any advanced biofuel, biomass-based diesel, cellulosic biofuel, conventional biofuel, or renewable fuel, as such terms are defined in section 211(o)(1) of the Clean Air Act (42 U.S.C. 7545(o)(1)), that is produced in the United States.

(3) AMOUNT OF PAYMENT.—The amount of the payment payable to an eligible entity shall be the sum of—

(A) $0.45 multiplied by the number of gallons of qualified fuel produced by the eligible entity during the applicable period; and

(B) if the Secretary determines that the eligible entity was unable to produce any qualified fuel throughout 1 or more calendar months during the applicable period due to the COVID–19 pandemic, $0.45 multiplied by 50 percent of the number of gallons produced by the eligible entity in the corresponding month or months in calendar year 2019.

(4) REPORT.—Not later than 180 days after the date of the enactment of this Act, the Secretary shall submit to the Committee on Agriculture of the House of Representatives and the Committee on Agriculture, Nutrition, and Forestry of the Senate a report on the payments made under this subsection, including the identity of each payment recipient and the amount of the payment paid to the payment recipient.

(5) FUNDING.—There is appropriated, out of any funds in the Treasury not otherwise appropriated, to carry out this subsection such sums as necessary, to remain available until expended.

(6) ADMINISTRATION.—

(A) IN GENERAL.—The Secretary may use the facilities and authorities of the Commodity Credit Corporation to carry out this subsection.

(B) REGULATIONS.—

(i) IN GENERAL.—Except as otherwise provided in this subsection, not later than 30 days after the date of the enactment of this Act, the Secretary and the Commodity Credit Corporation, as appropriate, shall prescribe such regulations as are necessary to carry out this subsection.

(ii) PROCEDURE.—The promulgation of regulations under, and administration of, this subsection shall be made without regard to—

(I) the notice and comment provisions of section 553 of title 5, United States Code; and

(II) chapter 35 of title 44, United States Code (commonly known as the ''Paperwork Reduction Act'').

(b) EMERGENCY ASSISTANCE FOR TEXTILE MILLS.—

(1) IN GENERAL.—The Secretary shall make emergency assistance available to domestic users of upland cotton and extra long staple cotton in the form of a payment in an amount determined under paragraph (2), regardless of the origin of such upland cotton or extra long staple cotton, during the 10-month period beginning on March 1, 2020.

(2) CALCULATION OF ASSISTANCE.—The amount of the assistance provided under paragraph (1) to a domestic user described in such paragraph shall be equal to 10 multiplied by the product of—

(A) the domestic user's historical monthly average consumption; and

(B) 6 cents per pound so consumed.

(3) ALLOWABLE USE.—Any emergency assistance provided under this section shall be made available only to domestic users of upland cotton and extra long staple cotton that certify that the assistance shall be used only for operating expenses.

(4) HISTORICAL MONTHLY AVERAGE CONSUMPTION DEFINED.—The term ''historical monthly average consumption'' means the average consumption for each month occurring during the period beginning on January 1, 2017, and ending on December 31, 2019.

(5) FUNDING.—There is appropriated, out of any funds in the Treasury not otherwise appropriated, to carry out this subsection, such sums as necessary, to remain available until expended.

TITLE IV—COMMODITY CREDIT CORPORATION

SEC. 401. EMERGENCY ASSISTANCE.

Section 5 of the Commodity Credit Corporation Charter Act (15 U.S.C. 714c) is amended—

(1) by redesignating subsection (h) as subsection (i); and

(2) by inserting after subsection (g) the following:

''(h) Remove and dispose of or aid in the removal or disposition of surplus livestock and poultry due to significant supply chain interruption during an emergency period.''.

SEC. 402. CONGRESSIONAL NOTIFICATION AND REPORT.

(a) NOTIFICATION.—The Commodity Credit Corporation Charter Act (15 U.S.C. 714 et seq.) is amended by adding at the end the following new section:

''SEC. 20. CONGRESSIONAL NOTIFICATION.

''(a) IN GENERAL.—The Secretary shall notify in writing, by first-class mail and electronic mail, the Committee on Agriculture of the House of Representatives and the Committee on Agriculture, Nutrition, and Forestry of the Senate in advance of any obligation or expenditure authorized under this Act.

''(b) WRITTEN NOTICE.—A written notice required under subsection (a) shall specify the commodities that will be affected, the maximum financial benefit per commodity, the expected legal entities or individuals that would receive financial benefits, the intended policy goals, and the projected impacts to commodity markets.

''(c) EXCEPTION TO THE WRITTEN NOTICE REQUIREMENT.—Subsection (a) shall not apply if, prior to obligating or spending any funding described in such subsection, the Secretary obtains approval in writing from each of the following individuals—

''(1) the Chair of the Committee on Agriculture of the House of Representatives;

''(2) the Ranking Member of the Committee on Agriculture of the House of Representatives;

''(3) the Chair of the Committee on Agriculture, Nutrition, and Forestry of the Senate; and

''(4) the Ranking Member of the Committee on Agriculture, Nutrition, and Forestry of the Senate.

''(d) EXCLUSION FOR PREEXISTING AUTHORIZATIONS.—This section shall not apply to obligations and expenditures authorized under the Agriculture Improvement Act of 2018 (Public Law 115–334).''.

(b) CLARIFICATION.—Section 3003 of the Federal Reports Elimination and Sunset Act of 1995 (31 U.S.C. 1113 note) shall not apply to the second sentence of section 13 of the Commodity Credit Corporation Charter Act (15 U.S.C. 714k).

TITLE V—CONSERVATION

SEC. 501. EMERGENCY SOIL HEALTH AND INCOME PROTECTION PILOT PROGRAM.

(a) DEFINITION OF ELIGIBLE LAND.—In this section, the term ''eligible land'' means cropland that—

(1) is selected by the owner or operator of the land for proposed enrollment in the pilot program under this section; and

(2) as determined by the Secretary, had a cropping history or was considered to be planted during each of the 3 crop years preceding enrollment.

(b) ESTABLISHMENT.—

(1) IN GENERAL.—The Secretary shall establish a voluntary emergency soil health and income protection pilot program under which eligible land is enrolled through the use of contracts to assist owners and operators of eligible land to conserve and improve the soil, water, and wildlife resources of the eligible land.

(2) DEADLINE FOR PARTICIPATION.—Eligible land may be enrolled in the program under this section through December 31, 2021.

(c) CONTRACTS.—

(1) REQUIREMENTS.—A contract described in subsection (b) shall—

(A) be entered into by the Secretary, the owner of the eligible land, and (if applicable) the operator of the eligible land; and

(B) provide that, during the term of the contract—

(i) the lowest practicable cost perennial conserving use cover crop for the eligible land, as determined by the applicable State conservationist after considering the advice of the applicable State technical committee, shall be planted on the eligible land;

(ii) subject to paragraph (4), the eligible land may be harvested for seed, hayed, or grazed outside the primary nesting season established for the applicable county;

(iii) the eligible land may be eligible for a walk-in access program of the applicable State, if any; and

(iv) a nonprofit wildlife organization may provide to the owner or operator of the eligible land a payment in exchange for an agreement by the owner or operator not to harvest the conserving use cover.

(2) PAYMENTS.—

(A) RENTAL RATE.—Except as provided in paragraph (4)(B)(ii), the annual rental rate for a payment under a contract described in subsection (b) shall be $70 per acre.

(B) ADVANCE PAYMENT.—At the request of the owner and (if applicable) the operator of the eligible land, the Secretary shall make all rental payments under a contract entered into under this section within 30 days of entering into such contract.

(C) COST SHARE PAYMENTS.—A contract described in subsection (b) shall provide that, during the term of the contract, the Secretary shall pay, of the actual cost of establishment of the conserving use cover crop under paragraph (1)(B)(i), not more than $30 per acre.

(3) TERM.—

(A) IN GENERAL.—Except as provided in subparagraph (B), each contract described in subsection (b) shall be for a term of 3 years.

(B) EARLY TERMINATION.—

(i) SECRETARY.—The Secretary may terminate a contract described in subsection (b) before the end of the term described in subparagraph (A) if the Secretary determines that the early termination of the contract is appropriate.

(ii) OWNERS AND OPERATORS.—An owner and (if applicable) an operator of eligible land enrolled in the pilot program under this section may terminate a contract described in subsection (b) before the end of the term described in subparagraph (A) if the owner and (if applicable) the operator pay to the Secretary an amount equal to the amount of rental payments received under the contract.

(4) HARVESTING, HAYING, AND GRAZING OUTSIDE APPLICABLE PERIOD.—The harvesting for seed, haying, or grazing of eligible land under paragraph (1)(B)(ii) outside of the primary nesting season established for the applicable county shall be subject to the conditions that—

(A) with respect to eligible land that is so hayed or grazed, adequate stubble height shall be maintained to protect the soil on the eligible land, as determined by the applicable State conservationist after considering the advice of the applicable State technical committee; and

(B) with respect to eligible land that is so harvested for seed—

(i) the eligible land shall not be eligible to be insured or reinsured under the Federal Crop Insurance Act (7 U.S.C. 1501 et seq.); and

(ii) the annual rental rate for a payment under a contract described in subsection (b) shall be $52.50 per acre.

(d) ACREAGE LIMITATION.—Not more than 5,000,000 total acres of eligible land may be enrolled under the pilot program under this section.

(e) FUNDING.—There is appropriated, out of any funds in the Treasury not otherwise appropriated, such sums as may be necessary to carry out this section.

TITLE VI—NUTRITION

SEC. 601. DEFINITION OF SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM.

In this title, the term ''supplemental nutrition assistance program'' has the meaning given such term in section 3(t) of the Food and Nutrition Act of 2008 (7 U.S.C. 2012(t)).

SEC. 602. SUPPLEMENTAL NUTRITION ASSISTANCE PROGRAM.

(a) VALUE OF BENEFITS.—Notwithstanding any other provision of law, beginning on November 1, 2020, and for each subsequent month through September 30, 2021, the value of benefits determined under section 8(a) of the Food and Nutrition Act of 2008 (7 U.S.C. 2017(a)), and consolidated block grants for Puerto Rico and American Samoa determined under section 19(a) of such Act (7 U.S.C. 2028(a)), shall be calculated using 115 percent of the June 2020 value of the thrifty food plan (as defined in section 3 of such Act (7 U.S.C. 2012)) if the value of the benefits and block grants would be greater under that calculation than in the absence of this subsection.

(b) MINIMUM AMOUNT.—

(1) IN GENERAL.—The minimum value of benefits determined under section 8(a) of the Food and Nutrition Act of 2008 (7 U.S.C. 2017(a)) for a household of not more than 2 members shall be $30.

(2) EFFECTIVENESS.—Paragraph (1) shall remain in effect through September 30, 2021.

(c) REQUIREMENTS FOR THE SECRETARY.—In carrying out this section, the Secretary shall—

(1) consider the benefit increases described in subsections (a) and (b) to be a ''mass change'';

(2) require a simple process for States to notify households of the increase in benefits;

(3) consider section 16(c)(3)(A) of the Food and Nutrition Act of 2008 (7 U.S.C. 2025(c)(3)(A)) to apply to any errors in the implementation of this section without regard to the 120-day limit described in that section;

(4) disregard the additional amount of benefits that a household receives as a result of this section in determining the amount of overissuances under section 13 of the Food and Nutrition Act of 2008 (7 U.S.C. 2022); and

(5) set the tolerance level for excluding small errors for the purposes of section 16(c) of the Food and Nutrition Act of 2008 (7 U.S.C. 2025(c)) at $50 through September 30, 2021.

(d) ADMINISTRATIVE EXPENSES.—

(1) IN GENERAL.—For the costs of State administrative expenses associated with carrying out this section and administering the supplemental nutrition assistance program established under the Food and Nutrition Act of 2008 (7 U.S.C. 2011 et seq.), the Secretary shall make available $200,000,000 for fiscal year 2021 and $100,000,000 for fiscal year 2022.

(2) TIMING FOR FISCAL YEAR 2021.—Not later than 60 days after the date of the enactment of this Act, the Secretary shall make available to States amounts for fiscal year 2021 under paragraph (1).

(3) ALLOCATION OF FUNDS.—Funds described in paragraph (1) shall be made available as grants to State agencies for each fiscal year as follows:

(A) 75 percent of the amounts available for each fiscal year shall be allocated to States based on the share of each State of households that participate in the supplemental nutrition assistance program as reported to the Department of Agriculture for the most recent 12-month period for which data are available, adjusted by the Secretary (as of the date of the enactment of this Act) for participation in disaster programs under section 5(h) of the Food and Nutrition Act of 2008 (7 U.S.C. 2014(h)); and

(B) 25 percent of the amounts available for each fiscal year shall be allocated to States based on the increase in the number of households that participate in the supplemental nutrition assistance program as reported to the Department of Agriculture over the most recent 12-month period for which data are available, adjusted by the Secretary (as of the date of the enactment of this Act) for participation in disaster programs under section 5(h) of the Food and Nutrition Act of 2008 (7 U.S.C. 2014(h)).

(e) PROVISIONS FOR IMPACTED WORKERS.—Notwithstanding any other provision of law, the requirements of subsections (d)(1)(A)(ii) and (o) of section 6 of the Food and Nutrition Act of 2008 (7 U.S.C. 2015) shall not be in effect during the period beginning on November 1, 2020, and ending 1 year after the date of enactment of this Act.

(f) CERTAIN EXCLUSIONS FROM SNAP INCOME.—A Federal pandemic unemployment compensation payment made to an individual under section 2104 of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) shall not be regarded as income and shall not be regarded as a resource for the month of receipt and the following 9 months, for the purpose of determining eligibility of such individual or any other individual for benefits or assistance, or the amount of benefits or assistance, under any programs authorized under the Food and Nutrition Act of 2008 (7 U.S.C. 2011 et seq.).

(g) PUBLIC AVAILABILITY.—Not later than 10 days after the date of the receipt or issuance of each document listed below, the Secretary shall make publicly available on the website of the Department of Agriculture the following documents:

(1) Any State agency request to participate in the supplemental nutrition assistance program online program under section 7(k) of the Food and Nutrition Act of 2008 (7 U.S.C. 2016(k)).

(2) Any State agency request to waive, adjust, or modify statutory or regulatory requirements of the Food and Nutrition Act of 2008 related to the COVID–19 outbreak.

(3) The Secretary's approval or denial of each such request under paragraphs (1) or (2).

(h) PROVISIONS FOR IMPACTED STUDENTS.—

(1) IN GENERAL.—Notwithstanding any other provision of law, not later than 20 days after the date of the enactment of this Act, eligibility for supplemental nutrition assistance program benefits shall not be limited under section 6(e) of the Food and Nutrition Act of 2008 (7 U.S.C. 2015(e)) for an individual who—

(A) is enrolled at least half-time in an institution of higher education; and

(B) is eligible to participate in a State or federally financed work study program during the regular school year as determined by the institution of higher education.

(2) SUNSET.—

(A) INITIAL APPLICATIONS.—The eligibility standards authorized under paragraph (1) shall be in effect for initial applications for the supplemental nutrition assistance program until 90 days after the COVID–19 public health emergency is lifted.

(B) RECERTIFICATIONS.—The eligibility standards authorized under paragraph (1) shall be in effect until the first recertification of a household beginning no earlier than 90 days after the COVID–19 public health emergency is lifted.

(3) GUIDANCE.—

(A) IN GENERAL.—Not later than 10 days after the date of enactment of this Act, the Secretary shall issue guidance to State agencies on the temporary student eligibility requirements established under this subsection.

(B) COORDINATION WITH THE DEPARTMENT OF EDUCATION.—The Secretary of Education, in consultation with the Secretary of Agriculture and institutions of higher education, shall carry out activities to inform applicants for Federal student financial aid under the Higher Education Act of 1965 (20 U.S.C. 1001 et seq.) and students at institutions of higher education of the temporary student eligibility requirements established under this subsection.

(i) FUNDING.—There are hereby appropriated to the Secretary, out of any money not otherwise appropriated, such sums as may be necessary to carry out this section.

SEC. 603. SNAP HOT FOOD PURCHASES.

During the period beginning 10 days after the date of the enactment of this Act and ending on the termination date of the COVID–19 public health emergency, the term ''food'', as defined in section 3 of the Food and Nutrition Act of 2008 (7 U.S.C. 2012), shall be deemed to exclude ''hot foods or hot food products ready for immediate consumption other than those authorized pursuant to clauses (3), (4), (5), (7), (8), and (9) of this subsection,'' for purposes of such Act, except that such exclusion shall be limited to retail food stores authorized to accept and redeem supplemental nutrition assistance program benefits as of the date of enactment of this Act.

SEC. 604. SNAP NUTRITION EDUCATION FLEXIBILITY.

(a) IN GENERAL.—Notwithstanding any other provision of law, the Secretary may issue nationwide guidance to allow funds allocated under section 28 of the Food and Nutrition Act (7 U.S.C. 2036a) to be used for individuals distributing food in a non-congregate setting under commodity distribution programs and child nutrition programs administered by the Food and Nutrition Service of the Department of Agriculture in States affected by the COVID–19 outbreak, provided that any individuals who distribute school meals under—

(1) the school lunch program established under the Richard B. Russell National School Lunch Act (42 U.S.C. 1751 et seq.); and

(2) the school breakfast program established under section 4 of the Child Nutrition Act of 1966 (42 U.S.C. 1773);

using funds allocated under section 28 of the Food and Nutrition Act of 2008 (7 U.S.C. 2036a) supplement, not supplant, individuals who are employed by local educational authorities as of the date of enactment of this Act.

(b) SUNSET.—The authority provided in this section shall expire 30 days after the COVID–19 public health emergency is terminated.

SEC. 605. FLEXIBILITIES FOR SENIOR FARMERS' MARKET NUTRITION PROGRAM.

(a) AUTHORITY TO MODIFY OR WAIVE RULES.—Notwithstanding any other provision of law and if requested by a State agency, the Secretary may modify or waive any rule issued under section 4402 of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 3007) that applies to such State agency if the Secretary determines that—

(1) such State agency is unable to comply with such rule as a result of COVID–19; and

(2) the requested modification or waiver is necessary to enable such State agency to provide assistance to low-income seniors under such section.

(b) PUBLIC AVAILABILITY.—Not later than 10 days after the date of the receipt or issuance of each document listed in paragraphs (1) and (2) of this subsection, the Secretary shall make publicly available on the website of the Department of Agriculture the following documents:

(1) Any request submitted by State agencies under subsection (a).

(2) The Secretary's approval or denial of each such request.

(c) DEFINITION OF STATE AGENCY.—The term ''State agency'' has the meaning given such term in section 249.2 of title 7 of the Code of Federal Regulations.

(d) EFFECTIVE PERIOD.—Subsection (a) shall be in effect during the period that begins on the date of the enactment of this Act and ends 30 days after the termination of the COVID–19 public health emergency.

SEC. 606. FLEXIBILITIES FOR THE FOOD DISTRIBUTION PROGRAM ON INDIAN RESERVATIONS.

(a) WAIVER OF NON-FEDERAL SHARE REQUIREMENT.—Funds provided in division B of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) for the food distribution program on Indian reservations authorized by section 4(b) of the Food and Nutrition Act of 2008 (7 U.S.C. 2013(b)) shall not be subject to the payment of the non-Federal share requirement described in section 4(b)(4)(A) of such Act (7 U.S.C. 2013(b)(4)(A)).

(b) FLEXIBILITIES FOR CERTAIN HOUSEHOLDS.—

(1) IN GENERAL.—Notwithstanding any other provision of law, the Secretary of Agriculture may issue guidance to waive or adjust section 4(b)(2)(C) of the Food and Nutrition Act of 2008 (7 U.S.C. 2013(b)(2)(C) for any Tribal organization (as defined in section 3(v) of such Act (7 U.S.C. 2012(v)), or for an appropriate State agency administering the program established under section 4(b) of such Act (7 U.S.C. 2013(b)), to ensure that households on the Indian reservation who are participating in the supplemental nutrition assistance program and who are unable to access approved retail food stores due to the outbreak of COVID–19 have access to commodities distributed under section 4(b) of such Act.

(2) PUBLIC AVAILABILITY.—The Secretary shall make available the guidance document issued under paragraph (1) on the public website of the Department of Agriculture not later than 10 days after the date of the issuance of such guidance.

(3) SUNSET.—The authority under this subsection shall expire 30 days after the termination of the COVID–19 public health emergency.

TITLE VII—RURAL DEVELOPMENT

SEC. 701. ASSISTANCE FOR RURAL UTILITIES SERVICE BORROWERS.

(a) DEFINITIONS.—In this section:

(1) ELIGIBLE LOAN.—The term ''eligible loan'' means a loan made by the Secretary under section 4 or 201 of the Rural Electrification Act of 1936 (7 U.S.C. 904 or 922), or made by the Federal Financing Bank and guaranteed by the Secretary under section 306 of such Act (7 U.S.C. 936).

(2) ELIGIBLE ENTITY.—The term ''eligible entity'' means a borrower to whom an eligible loan is made.

(3) RATEPAYER.—The term ''ratepayer'' means an individual who receives utility services from an entity to whom the Rural Utilities Service has made a loan.

(b) IN GENERAL.—

(1) ESTABLISHMENT.—The Secretary shall make grants on a competitive basis to eligible entities to mitigate the effects of the COVID–19 pandemic and support their continued or expanded delivery of critical services (as defined by the Secretary), including covering the cost of forgiving or refinancing ratepayer debt outstanding as of such date of enactment.

(2) TIMELINE.—

(A) NOTICE OF FUNDING AVAILABILITY.—Within 60 days after the date of the enactment of this Act, the Secretary shall publish a Notice of Funding Availability to solicit applications for a grant under this section.

(B) GRANT AWARDS.—The Secretary shall announce the grants awarded under this section no later than 60 days after the publication of the Notice of Funding Availability pursuant to subparagraph (A).

(3) MAXIMUM GRANT AMOUNT.—The amount of the grant awarded to an eligible entity under this section shall not exceed $1,000,000.

(c) APPLICATION.—To be eligible to receive a grant under this section, an eligible entity shall submit to the Secretary an application containing such information as the Secretary may require.

(d) SELECTION CRITERIA.—In awarding grants under this section, the Secretary shall consider—

(1) the degree to which applicants who are eligible entities are experiencing economic hardship due to reduced or delayed payments from ratepayers;

(2) whether applicants who are eligible entities are using eligible loans to provide services primarily to socially disadvantaged groups, as defined in section 355(e) of the Consolidated Farm and Rural Development Act; and

(3) the degree to which applicants who are eligible entities are using eligible loans in providing services in persistent poverty counties, as defined by the Secretary.

(e) REPORT TO THE CONGRESS.—Not later than 1 year after the date of the enactment of this Act, the Secretary shall submit to the Committee on Agriculture of the House of Representatives and the Committee on Agriculture, Nutrition, and Forestry of the Senate a report detailing, for each eligible entity awarded a grant under this section, the name of the eligible entity and the geographic areas benefitting from the grant.

(f) AUTHORIZATION OF APPROPRIATIONS.—To carry out this section, there is authorized to be appropriated not more than $2,600,000,000 for fiscal year 2021, to remain available through fiscal year 2022.

DIVISION O—COVID–19 HERO ACT

SEC. 1. SHORT TITLE.

This division may be cited as the ''COVID–19 Housing, Economic Relief, and Oversight Act'' or the ''COVID–19 HERO Act''.

TITLE I—PROVIDING MEDICAL EQUIPMENT FOR FIRST RESPONDERS AND ESSENTIAL WORKERS

SEC. 101. COVID–19 EMERGENCY MEDICAL SUPPLIES ENHANCEMENT.

(a) DETERMINATION ON EMERGENCY SUPPLIES AND RELATIONSHIP TO STATE AND LOCAL EFFORTS.—

(1) DETERMINATION.—For the purposes of section 101 of the Defense Production Act of 1950 (50 U.S.C. 4511), the following materials shall be deemed to be scarce and critical materials essential to the national defense and otherwise meet the requirements of section 101(b) of such Act during the COVID–19 emergency period:

(A) Diagnostic tests, including serological tests, for COVID–19 and the reagents and other materials necessary for producing or conducting such tests.

(B) Personal protective equipment, including face shields, N–95 respirator masks, and any other masks determined by the Secretary of Health and Human Services to be needed to respond to the COVID–19 pandemic, and the materials to produce such equipment.

(C) Medical ventilators, the components necessary to make such ventilators, and medicines needed to use a ventilator as a treatment for any individual who is hospitalized for COVID–19.

(D) Pharmaceuticals and any medicines determined by the Food and Drug Administration or another Government agency to be effective in treating COVID–19 (including vaccines for COVID–19) and any materials necessary to produce or use such pharmaceuticals or medicines (including self-injection syringes or other delivery systems).

(E) Any other medical equipment or supplies determined by the Secretary of Health and Human Services or the Secretary of Homeland Security to be scarce and critical materials essential to the national defense for purposes of section 101 of the Defense Production Act of 1950 (50 U.S.C. 4511).

(2) EXERCISE OF TITLE I AUTHORITIES IN RELATION TO CONTRACTS BY STATE AND LOCAL GOVERNMENTS.—In exercising authorities under title I of the Defense Production Act of 1950 (50 U.S.C. 4511 et seq.) during the COVID–19 emergency period, the President (and any officer or employee of the United States to which authorities under such title I have been delegated)—

(A) may exercise the prioritization or allocation authority provided in such title I to exclude any materials described in paragraph (1) ordered by a State or local government that are

scheduled to be delivered within 15 days of the time at which—

(i) the purchase order or contract by the Federal Government for such materials is made; or

(ii) the materials are otherwise allocated by the Federal Government under the authorities contained in such Act; and

(B) shall, within 24 hours of any exercise of the prioritization or allocation authority provided in such title I—

(i) notify any State or local government if the exercise of such authorities would delay the receipt of such materials ordered by such government; and

(ii) take such steps as may be necessary to ensure that such materials ordered by such government are delivered in the shortest possible period.

(3) UPDATE TO THE FEDERAL ACQUISITION REGULATION.—Not later than 15 days after the date of the enactment of this Act, the Federal Acquisition Regulation shall be revised to reflect the requirements of paragraph (2)(A).

(b) ENGAGEMENT WITH THE PRIVATE SECTOR.—

(1) SENSE OF CONGRESS.—The Congress—

(A) appreciates the willingness of private companies not traditionally involved in producing items for the health sector to volunteer to use their expertise and supply chains to produce essential medical supplies and equipment;

(B) encourages other manufacturers to review their existing capacity and to develop capacity to produce essential medical supplies, medical equipment, and medical treatments to address the COVID–19 emergency; and

(C) commends and expresses deep appreciation to individual citizens who have been producing personal protective equipment and other materials for, in particular, use at hospitals in their community.

(2) OUTREACH REPRESENTATIVE.—

(A) DESIGNATION.—Consistent with the authorities in title VII of the Defense Production Act of 1950 (50 U.S.C. 4551 et seq.), the Administrator of the Federal Emergency Management Agency, in consultation with the Secretary of Health and Human Services, shall designate or shall appoint, pursuant to section 703 of such Act (50 U.S.C. 4553), an individual to be known as the ''Outreach Representative''. Such individual shall—

(i) be appointed from among individuals with substantial experience in the private sector in the production of medical supplies or equipment; and

(ii) act as the Government-wide single point of contact during the COVID–19 emergency for outreach to manufacturing companies and their suppliers who may be interested in producing medical supplies or equipment, including the materials described under subsection (a).

(B) ENCOURAGING PARTNERSHIPS.—The Outreach Representative shall seek to develop partnerships between companies, in coordination with the Supply Chain Stabilization Task Force or any overall coordinator appointed by the President to oversee the response to the COVID–19 emergency, including through the exercise of the authorities under section 708 of the Defense Production Act of 1950 (50 U.S.C. 4558).

(c) ENHANCEMENT OF SUPPLY CHAIN PRODUCTION.—In exercising authority under title III of the Defense Production Act of 1950 (50 U.S.C. 4531 et seq.) with respect to materials described in subsection (a), the President shall seek to ensure that support is provided to companies that comprise the supply chains for reagents, components, raw materials, and other materials and items necessary to produce or use the materials described in subsection (a).

(d) OVERSIGHT OF CURRENT ACTIVITY AND NEEDS.—

(1) RESPONSE TO IMMEDIATE NEEDS.—

(A) IN GENERAL.—Not later than 7 days after the date of the enactment of this Act, the President, in coordination with the National Response Coordination Center of the Federal Emergency Management Agency, the Administrator of the Defense Logistics Agency, the Secretary of Health and Human Services, the Secretary of Veterans Affairs, and heads of other Federal agencies (as appropriate), shall submit to the appropriate congressional committees a report assessing the immediate needs described in subparagraph (B) to combat the COVID–19 pandemic and the plan for meeting those immediate needs.

(B) ASSESSMENT.—The report required by this paragraph shall include—

(i) an assessment of the needs for medical supplies or equipment necessary to address the needs of the population of the United States infected by the virus SARS–CoV–2 that causes COVID–19 and to prevent an increase in the incidence of COVID–19 throughout the United States, including diagnostic tests, serological tests, medicines that have been approved by the Food and Drug Administration to treat COVID–19, and ventilators and medicines needed to employ ventilators;

(ii) based on meaningful consultations with relevant stakeholders, an identification of the target rate of diagnostic testing for each State and an assessment of the need for personal protective equipment and other supplies (including diagnostic tests) required by—

(I) health professionals, health workers, and hospital staff including supplies needed for worst case scenarios for surges of COVID–19 infections and hospitalizations;

(II) workers in industries and sectors described in the ''Advisory Memorandum on Identification of Essential Critical Infrastructure Workers during the COVID–19 Response'' issued by the Director of Cybersecurity and Infrastructure Security Agency of the Department of Homeland Security on April 17, 2020 (and any expansion of industries and sectors included in updates to such advisory memorandum);

(III) students, teachers, and administrators at primary and secondary schools; and

(IV) other workers determined to be essential based on such consultation;

(iii) an assessment of the quantities of equipment and supplies in the Strategic National Stockpile (established under section 319F–2 of the Public Health Service Act ((42 U.S.C. 247d–6b(a)(1))) as of the date of the report, and the projected gap between the quantities of equipment and supplies identified as needed in the assessment under clauses (i) and (ii) and the quantities in the Strategic National Stockpile;

(iv) an identification of the industry sectors and manufacturers most ready to fulfill purchase orders for such equipment and supplies (including manufacturers that may be incentivized) through the exercise of authority under section 303(e) of the Defense Production Act of 1950 (50 U.S.C. 4533(e)) to modify, expand, or improve production processes to manufacture such equipment and supplies to respond immediately to a need identified in clause (i) or (ii);

(v) an identification of Government-owned and privately-owned stockpiles of such equipment and supplies not included in the Strategic National Stockpile that could be repaired or refurbished;

(vi) an identification of previously distributed critical supplies that can be redistributed based on current need;

(vii) a description of any exercise of the authorities described under paragraph (1)(E) or (2)(A) of subsection (a); and

(viii) an identification of critical areas of need, by county and by areas identified by the Indian Health Service, in the United States and the metrics and criteria for identification as a critical area.

(C) PLAN.—The report required by this paragraph shall include a plan for meeting the immediate needs to combat the COVID–19 pandemic, including the needs described in subparagraph (B). Such plan shall include—

(i) each contract the Federal Government has entered into to meet such needs, including the purpose of each contract, the type and amount of equipment, supplies, or services to be provided under the contract, the entity performing such contract, and the dollar amount of each contract;

(ii) each contract that the Federal Government intends to enter into within 14 days after submission of such report, including the information described in subparagraph (B) for each such contract; and

(iii) whether any of the contracts described in clause (i) or (ii) have or will have a priority rating under the Defense Production Act of 1950 (50 U.S.C. 4501 et seq.), including purchase orders pursuant to Department of Defense Directive 4400.1 (or any successor directive), subpart A of part 101 of title 45, Code of Federal Regulations, or any other applicable authority.

(D) ADDITIONAL REQUIREMENTS.—The report required by this paragraph, and each update required by subparagraph (E), shall include—

(i) any requests for equipment and supplies from State or local governments and Indian Tribes, and an accompanying list of the employers and unions consulted in developing these requests;

(ii) any modeling or formulas used to determine allocation of equipment and supplies, and any related chain of command issues on making final decisions on allocations;

(iii) the amount and destination of equipment and supplies delivered;

(iv) an explanation of why any portion of any contract described under subparagraph (C), whether to replenish the Strategic National Stockpile or otherwise, will not be filled;

(v) of products procured under such contract, the percentage of such products that are used to replenish the Strategic National Stockpile, that are targeted to COVID–19 hotspots, and that are used for the commercial market;

(vi) a description of the range of prices for goods described in subsection (a), or other medical supplies and equipment that are subject to shortages, purchased by the United States Government, transported by the Government, or otherwise known to the Government, which shall also identify all such prices that exceed the prevailing market prices of such goods prior to March 1, 2020, and any actions taken by the Government under section 102 of the Defense Production Act of 1950 or similar provisions of law to prevent hoarding of such materials and charging of such increased prices between March 1, 2020, and the date of the submission of the first report required by this paragraph, and, for all subsequent reports, within each reporting period;

(vii) metrics, formulas, and criteria used to determine COVID–19 hotspots or areas of critical need for a State, county, or an area identified by the Indian Health Service;

(viii) production and procurement benchmarks, where practicable; and

(ix) results of the consultation with the relevant stakeholders required by subparagraph (B)(ii).

(E) UPDATES.—The President, in coordination with the National Response Coordination Center of the Federal Emergency Management Agency, the Administrator of the Defense Logistics Agency, the Secretary of Health and Human Services, the Secretary of Veterans Affairs, and heads of other Federal agencies (as appropriate), shall update such report every 14 days.

(F) PUBLIC AVAILABILITY.—The President shall make the report required by this paragraph and each update required by subparagraph (E) available to the public, including on a Government website.

(2) RESPONSE TO LONGER-TERM NEEDS.—

(A) IN GENERAL.—Not later than 14 days after the date of enactment of this Act, the President, in coordination with the National Response Coordination Center of the Federal Emergency Management Agency, the Administrator of the Defense Logistics Agency, the Secretary of Health and Human Services, the Secretary of

Veterans Affairs, and heads of other Federal agencies (as appropriate), shall submit to the appropriate congressional committees a report containing an assessment of the needs described in subparagraph (B) to combat the COVID–19 pandemic and the plan for meeting such needs during the 6-month period beginning on the date of submission of the report.

(B) ASSESSMENT.—The report required by this paragraph shall include—

(i) an assessment of the elements describe in clauses (i) through (v) and clause (viii) of paragraph (1)(B);

(ii) an assessment of needs related to COVID–19 vaccines;

(iii) an assessment of the manner in which the Defense Production Act of 1950 could be exercised to increase services related to health surveillance to ensure that the appropriate level of contact tracing related to detected infections is available throughout the United States to prevent future outbreaks of COVID–19 infections; and

(iv) an assessment of any additional services needed to address the COVID–19 pandemic.

(C) PLAN.—The report required by this paragraph shall include a plan for meeting the longer-term needs to combat the COVID–19 pandemic, including the needs described in subparagraph (B). This plan shall include—

(i) a plan to exercise authorities under the Defense Production Act of 1950 (50 U.S.C. 4501 et seq.) necessary to increase the production of the medical equipment, supplies, and services that are essential to meeting the needs identified in subparagraph (B), including the number of N–95 respirator masks and other personal protective equipment needed, based on meaningful consultations with relevant stakeholders, by the private sector to resume economic activity and by the public and nonprofit sectors to significantly increase their activities;

(ii) results of the consultations with the relevant stakeholders required by clause (i);

(iii) an estimate of the funding and other measures necessary to rapidly expand manufacturing production capacity for such equipment and supplies, including—

(I) any efforts to expand, retool, or reconfigure production lines;

(II) any efforts to establish new production lines through the purchase and installation of new equipment; or

(III) the issuance of additional contracts, purchase orders, purchase guarantees, or other similar measures;

(iv) each contract the Federal Government has entered into to meet such needs or expand such production, the purpose of each contract, the type and amount of equipment, supplies, or services to be provided under the contract, the entity performing such contract, and the dollar amount of each contract;

(v) each contract that the Federal Government intends to enter into within 14 days after submission of such report, including the information described in clause (iv) for each such contract;

(vi) whether any of the contracts described in clause (iv) or (v) have or will have a priority rating under the Defense Production Act of 1950 (50 U.S.C. 4501 et seq.), including purchase orders pursuant to Department of Defense Directive 4400.1 (or any successor directive), subpart A of part 101 of title 45, Code of Federal Regulations, or any other applicable authority; and

(vii) the manner in which the Defense Production Act of 1950 (50 U.S.C. 4501 et seq.) could be used to increase services necessary to combat the COVID–19 pandemic, including services described in subparagraph (B)(ii).

(D) UPDATES.—The President, in coordination with the National Response Coordination Center of the Federal Emergency Management Agency, the Administrator of the Defense Logistics Agency, the Secretary of Health and Human Services, the Secretary of Veterans Affairs, and heads of other Federal agencies (as appropriate), shall update such report every 14 days.

(E) PUBLIC AVAILABILITY.—The President shall make the report required by this subsection and each update required by subparagraph (D) available to the public, including on a Government website.

(3) REPORT ON EXERCISING AUTHORITIES UNDER THE DEFENSE PRODUCTION ACT OF 1950.—

(A) IN GENERAL.—Not later than 14 days after the date of the enactment of this Act, the President, in consultation with the Administrator of the Federal Emergency Management Agency, the Secretary of Defense, and the Secretary of Health and Human Services, shall submit to the appropriate congressional committees a report on the exercise of authorities under titles I, III, and VII of the Defense Production Act of 1950 (50 U.S.C. 4501 et seq.) prior to the date of such report.

(B) CONTENTS.—The report required under subparagraph (A) and each update required under subparagraph (C) shall include, with respect to each exercise of such authority—

(i) an explanation of the purpose of the applicable contract, purchase order, or other exercise of authority (including an allocation of materials, services, and facilities under section 101(a)(2) of the Defense Production Act of 1950 (50 U.S.C. 4511(a)(2));

(ii) the cost of such exercise of authority; and

(iii) if applicable—

(I) the amount of goods that were purchased or allocated;

(II) an identification of the entity awarded a contract or purchase order or that was the subject of the exercise of authority; and

(III) an identification of any entity that had shipments delayed by the exercise of any authority under the Defense Production Act of 1950 (50 U.S.C. 4501 et seq.).

(C) UPDATES.—The President shall update the report required under subparagraph (A) every 14 days.

(D) PUBLIC AVAILABILITY.—The President shall make the report required by this subsection and each update required by subparagraph (C) available to the public, including on a Government website.

(4) QUARTERLY REPORTING.—The President shall submit to Congress, and make available to the public (including on a Government website), a quarterly report detailing all expenditures made pursuant to titles I, III, and VII of the Defense Production Act of 1950 50 U.S.C. 4501 et seq.).

(5) EXERCISE OF LOAN AUTHORITIES.—

(A) IN GENERAL.—Any loan made pursuant to section 302 or 303 of the Defense Production Act of 1950, carried out by the International Development Finance Corporation pursuant to the authorities delegated by Executive Order 13922, shall be subject to the notification requirements contained in section 1446 of the BUILD Act of 2018 (22 U.S.C. 9656).

(B) APPROPRIATE CONGRESSIONAL COMMITTEES.—For purposes of the notifications required by subparagraph (A), the term ''appropriate congressional committees'', as used section 1446 of the BUILD Act of 2018, shall be deemed to include the Committee on Financial Services of the House of Representatives and the Committee on Banking, Housing and Urban Development of the Senate.

(6) SUNSET.—The requirements of this subsection shall terminate on the later of—

(A) December 31, 2021; or

(B) the end of the COVID–19 emergency period.

(e) ENHANCEMENTS TO THE DEFENSE PRODUCTION ACT OF 1950.—

(1) HEALTH EMERGENCY AUTHORITY.—Section 107 of the Defense Production Act of 1950 (50 U.S.C. 4517) is amended by adding at the end the following:

''(c) HEALTH EMERGENCY AUTHORITY.—With respect to a public health emergency declaration by the Secretary of Health and Human Services under section 319 of the Public Health Service Act, or preparations for such a health emergency, the Secretary of Health and Human Services and the Administrator of the Federal Emergency Management Agency are authorized to carry out the authorities provided under this section to the same extent as the President.''.

(2) EMPHASIS ON BUSINESS CONCERNS OWNED BY WOMEN, MINORITIES, VETERANS, AND NATIVE AMERICANS.—Section 108 of the Defense Production Act of 1950 (50 U.S.C. 4518) is amended—

*(A) in the heading, by striking ''**MODERNIZATION OF SMALL BUSINESS SUPPLIERS**'' and inserting ''**SMALL BUSINESS PARTICIPATION AND FAIR INCLUSION**'';*

(B) by amending subsection (a) to read as follows:

''(a) PARTICIPATION AND INCLUSION.—

''(1) IN GENERAL.—In providing any assistance under this Act, the President shall accord a strong preference for subcontractors and suppliers that are—

''(A) small business concerns; or

''(B) businesses of any size owned by women, minorities, veterans, and the disabled.

''(2) SPECIAL CONSIDERATION.—To the maximum extent practicable, the President shall accord the preference described under paragraph (1) to small business concerns and businesses described in paragraph (1)(B) that are located in areas of high unemployment or areas that have demonstrated a continuing pattern of economic decline, as identified by the Secretary of Labor.''; and

(C) by adding at the end the following:

''(c) MINORITY DEFINED.—In this section, the term 'minority'—

''(1) has the meaning given the term in section 308(b) of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989; and

''(2) includes any indigenous person in the United States, including any territories of the United States.''.

(3) ADDITIONAL INFORMATION IN ANNUAL REPORT.—Section 304(f)(3) of the Defense Production Act of 1950 (50 U.S.C. 4534(f)(3)) is amended by striking ''year.'' and inserting ''year, including the percentage of contracts awarded using Fund amounts to each of the groups described in section 108(a)(1)(B) (and, with respect to minorities, disaggregated by ethnic group), and the percentage of the total amount expended during such fiscal year on such contracts.''.

(4) DEFINITION OF NATIONAL DEFENSE.—Section 702(14) of the Defense Production Act of 1950 is amended by striking ''and critical infrastructure protection and restoration'' and inserting '', critical infrastructure protection and restoration, and health emergency preparedness and response activities''.

(f) SECURING ESSENTIAL MEDICAL MATERIALS.—

(1) STATEMENT OF POLICY.—Section 2(b) of the Defense Production Act of 1950 (50 U.S.C. 4502) is amended—

(A) by redesignating paragraphs (3) through (8) as paragraphs (4) through (9), respectively; and

(B) by inserting after paragraph (2) the following:

''(3) authorities under this Act should be used when appropriate to ensure the availability of medical materials essential to national defense, including through measures designed to secure the drug supply chain, and taking into consideration the importance of United States competitiveness, scientific leadership and cooperation, and innovative capacity;''.

(2) STRENGTHENING DOMESTIC CAPABILITY.—Section 107 of the Defense Production Act of 1950 (50 U.S.C. 4517) is amended—

(A) in subsection (a), by inserting ''(including medical materials)'' after ''materials''; and

(B) in subsection (b)(1), by inserting ''(including medical materials such as drugs to diagnose, cure, mitigate, treat, or prevent disease that essential to national defense)'' after ''essential materials''.

(3) STRATEGY ON SECURING SUPPLY CHAINS FOR MEDICAL ARTICLES.—Title I of the Defense Production Act of 1950 (50 U.S.C. 4511 et seq.) is amended by adding at the end the following:

"SEC. 109. STRATEGY ON SECURING SUPPLY CHAINS FOR MEDICAL MATERIALS.

''(a) IN GENERAL.—Not later than 180 days after the date of the enactment of this section, the President, in consultation with the Secretary of Health and Human Services, the Secretary of Commerce, the Secretary of Homeland Security, and the Secretary of Defense, shall transmit a strategy to the appropriate Members of Congress that includes the following:

''(1) A detailed plan to use the authorities under this title and title III, or any other provision of law, to ensure the supply of medical materials (including drugs to diagnose, cure, mitigate, treat, or prevent disease) essential to national defense, to the extent necessary for the purposes of this Act.

''(2) An analysis of vulnerabilities to existing supply chains for such medical articles, and recommendations to address the vulnerabilities.

''(3) Measures to be undertaken by the President to diversify such supply chains, as appropriate and as required for national defense; and

''(4) A discussion of—

''(A) any significant effects resulting from the plan and measures described in this subsection on the production, cost, or distribution of vaccines or any other drugs (as defined under section 201 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 321));

''(B) a timeline to ensure that essential components of the supply chain for medical materials are not under the exclusive control of a foreign government in a manner that the President determines could threaten the national defense of the United States; and

''(C) efforts to mitigate any risks resulting from the plan and measures described in this subsection to United States competitiveness, scientific leadership, and innovative capacity, including efforts to cooperate and proactively engage with United States allies.

''(b) PROGRESS REPORT.—Following submission of the strategy under subsection (a), the President shall submit to the appropriate Members of Congress an annual progress report evaluating the implementation of the strategy, and may include updates to the strategy as appropriate. The strategy and progress reports shall be submitted in unclassified form but may contain a classified annex.

''(c) APPROPRIATE MEMBERS OF CONGRESS.—The term 'appropriate Members of Congress' means the Speaker, majority leader, and minority leader of the House of Representatives, the majority leader and minority leader of the Senate, the Chairman and Ranking Member of the Committees on Armed Services and Financial Services of the House of Representatives, and the Chairman and Ranking Member of the Committees on Armed Services and Banking, Housing, and Urban Affairs of the Senate.''.

(g) GAO REPORT.—

(1) IN GENERAL.—Not later than 270 days after the date of the enactment of this Act, and annually thereafter, the Comptroller General of the United States shall submit to the appropriate congressional committees a report on ensuring that the United States Government has access to the medical supplies and equipment necessary to respond to future pandemics and public health emergencies, including recommendations with respect to how to ensure that the United States supply chain for diagnostic tests (including serological tests), personal protective equipment, vaccines, and therapies is better equipped to respond to emergencies, including through the use of funds in the Defense Production Act Fund under section 304 of the Defense Production Act of 1950 (50 U.S.C. 4534) to address shortages in that supply chain.

(2) REVIEW OF ASSESSMENT AND PLAN.—

(A) IN GENERAL.—Not later than 30 days after each of the submission of the reports described in paragraphs (1) and (2) of subsection (d), the Comptroller General of the United States shall submit to the appropriate congressional committees an assessment of such reports, including identifying any gaps and providing any recommendations regarding the subject matter in such reports.

(B) MONTHLY REVIEW.—Not later than a month after the submission of the assessment under subparagraph (A), and monthly thereafter, the Comptroller General shall issue a report to the appropriate congressional committees with respect to any updates to the reports described in paragraph (1) and (2) of subsection (d) that were issued during the previous 1-month period, containing an assessment of such updates, including identifying any gaps and providing any recommendations regarding the subject matter in such updates.

(h) DEFINITIONS.—In this section:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means the Committees on Appropriations, Armed Services, Energy and Commerce, Financial Services, Homeland Security, and Veterans' Affairs of the House of Representatives and the Committees on Appropriations, Armed Services, Banking, Housing, and Urban Affairs, Health, Education, Labor, and Pensions, Homeland Security and Governmental Affairs, and Veterans' Affairs of the Senate.

(2) COVID–19 EMERGENCY PERIOD.—The term ''COVID–19 emergency period'' means the period beginning on the date of enactment of this Act and ending after the end of the incident period for the emergency declared on March 13, 2020, by the President under Section 501 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 4121 et seq.) relating to the Coronavirus Disease 2019 (COVID–19) pandemic.

(3) RELEVANT STAKEHOLDER.—The term ''relevant stakeholder'' means—

(A) representative private sector entities;

(B) representatives of the nonprofit sector;

(C) representatives of primary and secondary school systems; and

(D) representatives of labor organizations representing workers, including unions that represent health workers, manufacturers, teachers, other public sector employees, and service sector workers.

(4) STATE.—The term ''State'' means each of the several States, the District of Columbia, the Commonwealth of Puerto Rico, and any territory or possession of the United States.

TITLE II—PROTECTING RENTERS AND HOMEOWNERS FROM EVICTIONS AND FORECLOSURES

SEC. 201. EMERGENCY RENTAL ASSISTANCE AND RENTAL MARKET STABILIZATION.

(a) DEFINITIONS.—In this section:

(1) INDIAN TRIBE.—The term ''Indian tribe'' has the meaning given the such term in section 4 of the Native American Housing Assistance and Self-Determination Act of 1996 (25 U.S.C. 4103).

(2) PUBLIC HOUSING AGENCY.—The term ''public housing agency'' has the meaning given such term in section 3(b) of the United States Housing Act of 1937 (42 U.S.C. 1437a(b)).

(3) SECRETARY .—The term ''Secretary'' means the Secretary of Housing and Urban Development.

(4) TRIBALLY DESIGNATED HOUSING ENTITY.—The term ''tribally designated housing entity'' has the meaning given such term in section 4 of the Native American Housing Assistance and Self-Determination Act of 1996 (25 U.S.C. 4103).

(b) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Secretary $50,000,000,000 for an additional amount for grants under the Emergency Solutions Grants program under subtitle B of title IV of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11371 et seq.), to remain available until expended (subject to subsection (e) of this section), to be used for providing short- or medium-term assistance with rent and rent-related costs (including tenant-paid utility costs, utility- and rent-arrears, fees charged for those arrears, and security and utility deposits) in accordance with paragraphs (4) and (5) of section 415(a) of such Act (42 U.S.C. 11374(a)) and this section.

(c) DEFINITION OF AT RISK OF HOMELESSNESS.—Notwithstanding section 401(1) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11360(1)), for purposes of assistance made available with amounts made available pursuant to subsection (b), the term ''at risk of homelessness'' means, with respect to an individual or family, that the individual or family—

(1) except as provided in subsection (d)(1)(C), has an income below 80 percent of the median income for the area as determined by the Secretary; and

(2) has an inability to attain or maintain housing stability or has insufficient resources to pay for rent or utilities.

(d) INCOME TARGETING AND CALCULATION.—For purposes of assistance made available with amounts made available pursuant to subsection (b)—

(1) each recipient of such amounts shall use—

(A) not less than 40 percent of the amounts received only for providing assistance to individuals or families experiencing homelessness, or for persons or families at risk of homelessness who have incomes not exceeding 30 percent of the median income for the area as determined by the Secretary;

(B) not less than 70 percent of the amounts received only for providing assistance to individuals or families experiencing homelessness, or for persons or families at risk of homelessness who have incomes not exceeding 50 percent of the median income for the area as determined by the Secretary; and

(C) the remainder of the amounts received only for providing assistance to individuals or families experiencing homelessness, or for persons or families at risk of homelessness who have incomes not exceeding 80 percent of the median income for the area as determined by the Secretary, except that the recipient may establish a higher percentage limit for purposes of subsection (c)(1), which shall not in any case exceed 120 percent of the area median income, provided that the recipient—

(i) proposes to permit such assistance to individuals and households in its plan to carry out activities under this section; and

(ii) solicits public comment on the proposal; and

(2) in determining the income of a household for homelessness prevention assistance—

(A) the calculation of income performed at the time of application for the assistance, including arrearages, shall consider only income that the household is receiving at the time of the application, and any income recently terminated shall not be included;

(B) any subsequent calculation of income performed with respect to households receiving ongoing assistance shall consider only the income that the household is receiving at the time of the review; and

(C) the calculation of income performed with respect to households receiving assistance for arrearages shall consider only the income that the household was receiving at the time the arrearages were incurred.

(e) 3-YEAR AVAILABILITY.—

(1) IN GENERAL.—Each recipient of amounts made available pursuant to subsection (b) shall—

(A) expend not less than 60 percent of the grant amounts within 2 years of the date on which the funds became available to the recipient for obligation; and

(B) expend 100 percent of the grant amounts within 3 years of the date on which the funds became available to the recipient for obligation.

(2) REALLOCATION AFTER 2 YEARS.—

(A) IN GENERAL.—The Secretary may recapture any amounts not expended in compliance with paragraph (1)(A) and reallocate those amounts to recipients in compliance with the

formula described in subsection (i) and this paragraph.

(B) STATES, METROPOLITAN CITIES, AND URBAN COUNTIES.—Funds recaptured under subparagraph (A) with respect to a recipient described in subsection (i)(1)(B) shall be reallocated to other participating recipients of funds described in subsection (i)(1)(B).

(C) INDIAN TRIBES, TRIBALLY DESIGNATED HOUSING ENTITIES, AND DEPARTMENT OF HAWAIIAN HOME LANDS.—Funds recaptured under subparagraph (A) with respect to a recipient described in subsection (i)(1)(A)(i)(I) shall be reallocated to other participating recipients of funds described in subsection (i)(1)(A)(i)(I).

(D) INSULAR AREAS.—Funds recaptured under subparagraph (A) with respect to a recipient described in subsection (i)(1)(A)(i)(II) shall be reallocated to other participating recipients of funds described in subsection (i)(1)(A)(i)(II).

(f) RENT RESTRICTIONS.—

(1) INAPPLICABILITY.—Section 576.106(d) of title 24, Code of Federal Regulations, or any successor regulation, shall not apply with respect to homelessness prevention assistance made available with amounts made available pursuant to subsection (b).

(2) AMOUNT OF RENTAL ASSISTANCE.—In providing homelessness prevention assistance with amounts made available pursuant to subsection (b), the maximum amount of rental assistance that may be provided shall be the greater of—

(A) 120 percent of the higher of—

(i) the fair market rent established by the Secretary for the metropolitan area or county; or

(ii) the applicable small area fair market rent established by the Secretary; or

(iii) such higher amount as the Secretary shall determine is needed to cover market rents in the area.

(g) SUBLEASES.—A recipient of amounts made available pursuant to subsection (b) shall not be prohibited from providing assistance authorized under subsection (b) with respect to subleases that are valid under State law.

(h) UTILITY PAYMENT AND RENTAL ARREARAGES.—In providing assistance with amounts made available pursuant to subsection (b) of this section—

(1) sections 576.105(a)(5) and 576.106(a)(3) of title 24, Code of Federal Regulations, shall each be applied by substituting ''12 months'' for ''6 months''; and

(2) notwithstanding section 576.106(g) of title 24, Code of Federal Regulations, where such assistance is solely with respect to rental arrears, the recipient shall not be required to provide a written lease or evidence of an oral agreement.

(i) ALLOCATION OF ASSISTANCE.—

(1) IN GENERAL.—In allocating amounts made available pursuant to subsection (b), the Secretary shall—

(A)(i) for any purpose authorized in this section—

(I) allocate 2 percent of such amount for Indian tribes and tribally designated housing entities under the formula established under section 302 of the Native American Housing Assistance and Self-Determination Act of 1996 (25 U.S.C. 4152), except that 0.3 percent of the amount allocated under this subclause shall be allocated for the Department of Hawaiian Home Lands; and

(II) allocate 0.3 percent of such amount for the Virgin Islands, Guam, American Samoa, and the Northern Mariana Islands; and

(ii) not later than 30 days after the date of enactment of this Act, obligate and disburse the amounts allocated under clause (i) in accordance with those allocations and provide the recipients with any necessary guidance for use of the funds; and

(B)(i) not later than 7 days after the date of enactment of this Act and after setting aside amounts under subparagraph (A)—

(I) allocate 50 percent of any such remaining amounts under the formula specified in subsections (a), (b), and (e) of section 414 of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11373) for each State, metropolitan city, and urban county that is to receive a direct grant of such amounts;

(II) allocate 50 percent of any such remaining amounts through the formula used by the Secretary to distribute the second allocation of grants in accordance with the formula described in the matter under the heading ''Department of Housing and Urban Development—Community Planning and Development—Homeless Assistance Grants'' in title XII of division B of the CARES Act (Public Law 116–136) for each State, metropolitan city, and urban county that is to receive a direct grant of such amounts; and

(III) notify each direct grantee of the total amount to be allocated under this clause; and

(ii) not later than 30 days after the date of enactment of this Act, obligate and disburse the amounts allocated under clause (i) in accordance with those allocations and provide the recipient with any necessary guidance for use of the funds.

(2) ALLOCATIONS TO STATES.—

(A) IN GENERAL.—Notwithstanding section 414(a) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11373(a)) and section 576.202(a) of title 24, Code of Federal Regulations, or any successor regulation, a State recipient of an allocation under this section may elect to use up to 100 percent of its allocation to carry out activities eligible under this section directly.

(B) REQUIREMENT.—Any State recipient making an election described in subparagraph (A) shall serve households throughout the entire State, including households in rural communities and small towns.

(3) ELECTION NOT TO ADMINISTER.—

(A) METROPOLITAN CITIES AND URBAN COUNTIES.—If a recipient under paragraph (1)(B) other than a State elects not to receive funds under this section, such funds shall be allocated to the State recipient in which the recipient is located.

(B) INDIAN TRIBES, TRIBALLY DESIGNATED HOUSING ENTITIES, AND DEPARTMENT OF HAWAIIAN HOMELANDS.—If a recipient under paragraph (1)(A)(i)(I) elects not to receive funds under this section, such funds shall be allocated to other participating recipients of funds under paragraph (1)(A)(i)(I).

(C) INSULAR AREAS.—If a recipient under paragraph (1)(A)(i)(II) elects not to receive funds under this section, such funds shall be allocated to other participating recipients of funds under paragraph (1)(A)(i)(II).

(D) PARTNERSHIPS, SUBGRANTS, AND CONTRACTS.—A recipient of a grant under this section may distribute funds through partnerships, subgrants, or contracts with an entity, such as a public housing agency, that is capable of carrying out activities under this section.

(j) INAPPLICABILITY OF MATCHING REQUIREMENT.—Section 416(a) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11375(a)) shall not apply to any amounts made available pursuant to subsection (b) of this section.

(k) REIMBURSEMENT OF ELIGIBLE ACTIVITIES.—Amounts made available pursuant to subsection (b) may be used by a recipient to reimburse expenditures incurred for eligible activities under this section carried out after the date of enactment of this Act.

(l) PROHIBITION ON PREREQUISITES.—None of the funds made available under this section may be used to require any individual or household receiving assistance under this section to receive treatment or perform any other prerequisite activities as a condition for receiving such assistance.

(m) WAIVERS AND ALTERNATIVE REQUIREMENTS.—

(1) IN GENERAL.—

(A) AUTHORITY.—In administering the amounts made available pursuant to subsection (b), the Secretary may waive, or specify alternative requirements for, any provision of any statute or regulation that the Secretary administers in connection with the obligation by the Secretary or the use by the recipient of such amounts (except for requirements related to fair housing, nondiscrimination, labor standards, prohibition on prerequisites, minimum data reporting, and the environment), if the Secretary finds that good cause exists for the waiver or alternative requirement and such waiver or alternative requirement is necessary to expedite the use of funds made available pursuant to this section, to respond to public health orders or conditions related to the COVID–19 emergency, or to ensure that eligible individuals can attain or maintain housing stability.

(B) PUBLIC NOTICE.—The Secretary shall notify the public through the Federal Register or other appropriate means of any waiver or alternative requirement under this paragraph, and that such public notice shall be provided, at a minimum, on the internet at the appropriate Government website or through other electronic media, as determined by the Secretary.

(C) ELIGIBILITY REQUIREMENTS.—Eligibility for rental assistance or housing relocation and stabilization services shall not be restricted based upon the prior receipt of assistance under the program during the preceding three years.

(D) INSPECTIONS OF CURRENT HOUSING UNITS.—A recipient of funds made available pursuant to subsection (b) may elect not to conduct inspections for minimum habitability standards described in section 576.403 of title 24, Code of Federal Regulations, or any successor regulation, for any assistance under this section that is provided on behalf of an individual or household who will continue to reside in the same housing unit in which they resided immediately before receiving the assistance.

(2) PUBLIC HEARINGS.—

(A) INAPPLICABILITY OF IN-PERSON HEARING REQUIREMENTS DURING THE COVID–19 EMERGENCY.—

(i) IN GENERAL.—A recipient under this section shall not be required to hold in-person public hearings in connection with its citizen participation plan, but shall provide citizens with notice, including publication of its plan for carrying out this section on the internet, and a reasonable opportunity to comment of not less than 5 days.

(ii) RESUMPTION OF IN-PERSON HEARING REQUIREMENTS.—After the period beginning on the date of enactment of this Act and ending on the date of the termination by the Federal Emergency Management Agency of the emergency declared on March 13, 2020, by the President under the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 4121 et seq.) relating to the Coronavirus Disease 2019 (COVID–19) pandemic, and after the period described in subparagraph (B)(i), the Secretary shall direct recipients under this section to resume pre-crisis public hearing requirements.

(B) VIRTUAL PUBLIC HEARINGS.—

(i) IN GENERAL.—During the period that national or local health authorities recommend social distancing and limiting public gatherings for public health reasons, a recipient may fulfill applicable public hearing requirements for all grants from funds made available pursuant to this section by carrying out virtual public hearings.

(ii) REQUIREMENTS.—Any virtual hearings held under clause (i) by a recipient under this section shall provide reasonable notification and access for citizens in accordance with the recipient's certifications, timely responses from local officials to all citizen questions and issues, and public access to all questions and responses.

(n) CONSULTATION.—In addition to any other citizen participation and consultation requirements, in developing and implementing a plan to carry out this section, each recipient of funds made available pursuant to this section shall consult with—

(1) the applicable Continuum or Continuums of Care for the area served by the recipient;

(2) organizations representing underserved communities and populations; and

(3) organizations with expertise in affordable housing, fair housing, and services for people with disabilities.

(o) ADMINISTRATION.—

(1) BY SECRETARY.—Of any amounts made available pursuant to subsection (b)—

(A) not more than the lesser of 0.5 percent, or $15,000,000, may be used by the Secretary for staffing, training, technical assistance, technology, monitoring, research, and evaluation activities necessary to carry out the program carried out under this section, and such amounts shall remain available until September 30, 2024; and

(B) not more than $2,000,000 shall be available to the Office of the Inspector General of the Department of Housing and Urban Development for audits and investigations of the program authorized under this section.

(2) BY RECIPIENTS.—Notwithstanding section 576.108 of title 24 of the Code of Federal Regulations, or any successor regulation, with respect to amounts made available pursuant to subsection (b), a recipient may use up to 10 percent of funds received for payment of administrative costs related to the planning and execution of eligible activities carried out under this section.

SEC. 202. HOMEOWNER ASSISTANCE FUND.

(a) DEFINITIONS.—In this section:

(1) FUND.—The term ''Fund'' means the Homeowner Assistance Fund established under subsection (b).

(2) SECRETARY.—The term ''Secretary'' means the Secretary of the Treasury.

(3) STATE.—The term ''State'' means any State of the United States, the District of Columbia, any territory of the United States, Puerto Rico, Guam, American Samoa, the Virgin Islands, and the Northern Mariana Islands.

(b) ESTABLISHMENT OF FUND.—There is established at the Department of the Treasury a Homeowner Assistance Fund to provide such funds as are made available under subsection (g) to State housing finance agencies for the purpose of preventing homeowner mortgage defaults, foreclosures, and displacements of individuals and families experiencing financial hardship after January 21, 2020.

(c) ALLOCATION OF FUNDS.—

(1) ADMINISTRATION.—Of any amounts made available for the Fund, the Secretary of the Treasury may allocate, in the aggregate, an amount not exceeding 5 percent—

(A) to the Office of Financial Stability established under section 101(a) of the Emergency Economic Stabilization Act of 2008 (12 U.S.C. 5211(a)) to administer and oversee the Fund, and to provide technical assistance to States for the creation and implementation of State programs to administer assistance from the Fund; and

(B) to the Inspector General of the Department of the Treasury for oversight of the program under this section.

(2) FOR STATES.—The Secretary shall establish such criteria as are necessary to allocate the funds available within the Fund for each State. The Secretary shall allocate such funds among all States taking into consideration the number of unemployment claims within a State relative to the nationwide number of unemployment claims.

(3) SMALL STATE MINIMUM.—The amount allocated for each State shall not be less than $80,000,000.

(4) SET-ASIDE FOR INSULAR AREAS.—Notwithstanding any other provision of this section, of the amounts appropriated under subsection (g), the Secretary shall reserve $65,000,000 to be disbursed to Guam, American Samoa, the Virgin Islands, and the Northern Mariana Islands based on each such territory's share of the combined total population of all such territories, as determined by the Secretary. For the purposes of this paragraph, population shall be determined based on the most recent year for which data are available from the United States Census Bureau.

(5) SET-ASIDE FOR INDIAN TRIBES AND NATIVE HAWAIIANS.—

(A) INDIAN TRIBES.—Notwithstanding any other provision of this section, of the amounts appropriated under subsection (g), the Secretary shall use 5 percent to make grants in accordance with subsection (f) to eligible recipients for the purposes described in subsection (e)(1).

(B) NATIVE HAWAIIANS.—Of the funds set aside under subparagraph (A), the Secretary shall use 0.3 percent to make grants to the Department of Hawaiian Home Lands in accordance with subsection (f) for the purposes described in subsection (e)(1).

(d) DISBURSEMENT OF FUNDS.—

(1) ADMINISTRATION.—Except for amounts made available for assistance under subsection (f), State housing finance agencies shall be primarily responsible for administering amounts disbursed from the Fund, but may delegate responsibilities and sub-allocate amounts to community development financial institutions and State agencies that administer Low-Income Home Energy Assistance Program of the Department of Health and Human Services.

(2) NOTICE OF FUNDING.—The Secretary shall provide public notice of the amounts that will be made available to each State and the method used for determining such amounts not later than the expiration of the 14-day period beginning on the date of the enactment of this Act of enactment.

(3) SHFA PLANS.—

(A) ELIGIBILITY.—To be eligible to receive funding allocated for a State under the section, a State housing finance agency for the State shall submit to the Secretary a plan for the implementation of State programs to administer, in part or in full, the amount of funding the state is eligible to receive, which shall provide for the commencement of receipt of applications by homeowners for assistance, and funding of such applications, not later than the expiration of the 6-month period beginning upon the approval under this paragraph of such plan.

(B) MULTIPLE PLANS.—. A State housing finance agency may submit multiple plans, each covering a separate portion of funding for which the State is eligible.

(C) TIMING.—The Secretary shall approve or disapprove a plan within 30 days after the plan's submission and, if disapproved, explain why the plan could not be approved.

(D) DISBURSEMENT UPON APPROVAL.—The Secretary shall disburse to a State housing finance agency the appropriate amount of funding upon approval of the agency's plan.

(E) AMENDMENTS.—A State housing finance agency may subsequently amend a plan that has previously been approved, provided that any plan amendment shall be subject to the approval of the Secretary. The Secretary shall approve any plan amendment or disapprove such amendment explain why the plan amendment could not be approved within 45 days after submission to the Secretary of such amendment.

(F) TECHNICAL ASSISTANCE.—The Secretary shall provide technical assistance for any State housing finance agency that twice fails to have a submitted plan approved.

(4) PLAN TEMPLATES.—The Secretary shall, not later than 30 days after the date of the enactment of this Act, publish templates that States may utilize in drafting the plans required under paragraph (3)(A). The template plans shall include standard program terms and requirements, as well as any required legal language, which State housing finance agencies may modify with the consent of the Secretary.

(e) PERMISSIBLE USES OF FUND.—

(1) IN GENERAL.—Funds made available to State housing finance agencies pursuant to this section may be used for the purposes established under subsection (b), which may include—

(A) mortgage payment assistance, including financial assistance to allow a borrower to reinstate their mortgage or to achieve a more affordable mortgage payment, which may include principal reduction or rate reduction, provided that any mortgage payment assistance is tailored to a borrower's needs and their ability to repay, and takes into consideration the loss mitigation options available to the borrower;

(B) assistance with payment of taxes, hazard insurance, flood insurance, mortgage insurance, or homeowners' association fees;

(C) utility payment assistance, including electric, gas, water, and internet service, including broadband internet access service (as such term is defined in section 8.1(b) of title 47, Code of Federal Regulations (or any successor regulation));

(D) reimbursement of funds expended by a State or local government during the period beginning on January 21, 2020, and ending on the date that the first funds are disbursed by the State under the Fund, for the purpose of providing housing or utility assistance to individuals or otherwise providing funds to prevent foreclosure or eviction of a homeowner or prevent mortgage delinquency or loss of housing or critical utilities as a response to the coronavirus disease 2019 (COVID–19) pandemic; and

(E) any other assistance for homeowners to prevent eviction, mortgage delinquency or default, foreclosure, or the loss of essential utility services.

(2) TARGETING.—

(A) REQUIREMENT.—Not less than 60 percent of amounts made available for each State or other entity allocated amounts under subsection (c) shall be used for activities under paragraph (1) that assist homeowners having incomes equal to or less than 80 percent of the area median income.

(B) DETERMINATION OF INCOME.—In determining the income of a household for purposes of this paragraph, income shall be considered to include only income that the household is receiving at the time of application for assistance from the Fund and any income recently terminated shall not be included, except that for purposes of households receiving assistance for arrearages income shall include only the income that the household was receiving at the time such arrearages were incurred.

(C) LANGUAGE ASSISTANCE.—Each State housing finance agency or other entity allocated amounts under subsection (c) shall make available to each applicant for assistance from amounts from the Fund language assistance in any language for which such language assistance is available to the State housing finance agency or entity in and shall provide notice to each such applicant that such language assistance is available.

(3) ADMINISTRATIVE EXPENSES.—Not more than 15 percent of the amount allocated to a State pursuant to subsection (c) may be used by a State housing financing agency for administrative expenses. Any amounts allocated to administrative expenses that are no longer necessary for administrative expenses may be used in accordance with paragraph (1).

(f) TRIBAL AND NATIVE HAWAIIAN ASSISTANCE.—

(1) DEFINITIONS.—In this subsection:

(A) DEPARTMENT OF HAWAIIAN HOME LANDS.—The term ''Department of Hawaiian Home Lands'' has the meaning given the term in section 801 of the Native American Housing Assistance and Self-Determination Act of 1996 (42 U.S.C. 4221).

(B) ELIGIBLE RECIPIENT.—The term ''eligible recipient'' means any entity eligible to receive a grant under section 101 of the Native American Housing Assistance and Self-Determination Act of 1996 (25 U.S.C. 4111).

(2) REQUIREMENTS.—

(A) ALLOCATION.—Except for the funds set aside under subsection (c)(5)(B), the Secretary shall allocate the funds set aside under subsection (c)(5)(A) using the allocation formula described in subpart D of part 1000 of title 24, Code of Federal Regulations (or any successor regulations).

(B) NATIVE HAWAIIANS.—The Secretary shall use the funds made available under subsection (c)(5)(B) in accordance with part 1006 of title 24, Code of Federal Regulations (or successor regulations).

(3) TRANSFER.—The Secretary shall transfer any funds made available under subsection (c)(5) that have not been allocated by an eligible recipient or the Department of Hawaiian Home Lands, as applicable, to provide the assistance described in subsection (e)(1) by December 31, 2030, to the Secretary of Housing and Urban Development to carry out the Native American Housing Assistance and Self-Determination Act of 1996 (25 U.S.C. 4101 et seq.).

(g) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Homeowner Assistance Fund established under subsection (b), $21,000,000,000, to remain available until expended.

(h) USE OF HOUSING FINANCE AGENCY INNOVATION FUND FOR THE HARDEST HIT HOUSING MARKETS FUNDS.—A State housing finance agency may reallocate any administrative or programmatic funds it has received as an allocation from the Housing Finance Agency Innovation Fund for the Hardest Hit Housing Markets created pursuant to section 101(a) of the Emergency Economic Stabilization Act of 2008 (12 U.S.C. 5211(a)) that have not been otherwise allocated or disbursed as of the date of enactment of this Act to supplement any administrative or programmatic funds received from the Housing Assistance Fund. Such reallocated funds shall not be considered when allocating resources from the Housing Assistance Fund using the process established under subsection (c) and shall remain available for the uses permitted and under the terms and conditions established by the contract with Secretary created pursuant to subsection (d)(1) and the terms of subsection (i).

(i) REPORTING REQUIREMENTS.—The Secretary shall provide public reports not less frequently than quarterly regarding the use of funds provided by the Homeowner Assistance Fund. Such reports shall include the following data by State and by program within each State, both for the past quarter and throughout the life of the program—

(1) the amount of funds allocated;

(2) the amount of funds disbursed;

(3) the number of households and individuals assisted;

(4) the acceptance rate of applicants;

(5) the type or types of assistance provided to each household;

(6) whether the household assisted had a federally backed loan and identification of the Federal entity backing such loan;

(7) the average amount of funding provided per household receiving assistance and per type of assistance provided;

(8) the average number of monthly payments that were covered by the funding amount that a household received, as applicable, disaggregated by type of assistance provided;

(9) the income level of each household receiving assistance; and

(10) the outcome 12 months after the household has received assistance.

Each report under this subsection shall disaggregate the information provided under paragraphs (3) through (10) by State, zip code, racial and ethnic composition of the household, and whether or not the person from the household applying for assistance speaks English as a second language.

SEC. 203. PROTECTING RENTERS AND HOMEOWNERS FROM EVICTIONS AND FORECLOSURES.

(a) EVICTION MORATORIUM.—The CARES Act is amended by striking section 4024 (15 U.S.C. 9058; Public Law 116–136; 134 Stat. 492) and inserting the following new section:

''SEC. 4024. TEMPORARY MORATORIUM ON EVICTION FILINGS.

''(a) CONGRESSIONAL FINDINGS.—The Congress finds that—

''(1) according to the 2018 American Community Survey, 36 percent of households in the United States—more than 43 million households—are renters;

''(2) in 2019 alone, renters in the United States paid $512 billion in rent;

''(3) according to the Joint Center for Housing Studies of Harvard University, 20.8 million renters in the United States spent more than 30 percent of their incomes on housing in 2018 and 10.9 million renters spent more than 50 percent of their incomes on housing in the same year;

''(4) according to data from the Department of Labor, more than 30 million people have filed for unemployment since the COVID–19 pandemic began;

''(5) the impacts of the spread of COVID–19, which is now considered a global pandemic, are expected to negatively impact the incomes of potentially millions of renter households, making it difficult for them to pay their rent on time; and

''(6) evictions in the current environment would increase homelessness and housing instability which would be counterproductive towards the public health goals of keeping individuals in their homes to the greatest extent possible.

''(b) MORATORIUM.—During the period beginning on the date of the enactment of this Act and ending 12 months after such date of enactment, the lessor of a covered dwelling located in such State may not—

''(1) make, or cause to be made, any filing with the court of jurisdiction to initiate a legal action to recover possession of the covered dwelling from the tenant for nonpayment of rent or other fees or charges; or

''(2) charge fees, penalties, or other charges to the tenant related to such nonpayment of rent.

''(c) DEFINITIONS.—For purposes of this section, the following definitions shall apply:

''(1) COVERED DWELLING.—The term 'covered dwelling' means a dwelling that is occupied by a tenant—

''(A) pursuant to a residential lease; or

''(B) without a lease or with a lease terminable at will under State law.

''(2) DWELLING.—The term 'dwelling' has the meaning given such term in section 802 of the Fair Housing Act (42 U.S.C. 3602) and includes houses and dwellings described in section 803(b) of such Act (42 U.S.C. 3603(b)).

''(d) NOTICE TO VACATE AFTER MORATORIUM EXPIRATION DATE.—After the expiration of the period described in subsection (b), the lessor of a covered dwelling may not require the tenant to vacate the covered dwelling by reason of nonpayment of rent or other fees or charges before the expiration of the 30-day period that begins upon the provision by the lessor to the tenant, after the expiration of the period described in subsection (b), of a notice to vacate the covered dwelling.''.

(b) MORTGAGE RELIEF.—

(1) FORBEARANCE AND FORECLOSURE MORATORIUM FOR COVERED MORTGAGE LOANS.—Section 4022 of the CARES Act (15 U.S.C. 9056) is amended—

(A) by striking ''Federally backed mortgage loan'' each place that term appears and inserting ''covered mortgage loan''; and

(B) in subsection (a)—

(i) by amending paragraph (2) to read as follows:

''(2) COVERED MORTGAGE LOAN.—The term 'covered mortgage loan'—

''(A) means any credit transaction that is secured by a mortgage, deed of trust, or other equivalent consensual security interest on a 1- to 4-unit dwelling or on residential real property that includes a 1- to 4-unit dwelling; and

''(B) does not include a credit transaction under an open end credit plan other than a reverse mortgage.''; and

(ii) by adding at the end the following:

''(3) COVERED PERIOD.—With respect to a loan, the term 'covered period' means the period beginning on the date of enactment of this Act and ending 12 months after such date of enactment.''.

(2) AUTOMATIC FORBEARANCE FOR DELINQUENT BORROWERS.—Section 4022(c) of the CARES Act (15 U.S.C. 9056(c)), as amended by paragraph (5) of this subsection, is further amended by adding at the end the following:

''(9) AUTOMATIC FORBEARANCE FOR DELINQUENT BORROWERS OF COVERED MORTGAGE LOANS THAT ARE NOT FEDERALLY-INSURED REVERSE MORTGAGE LOANS.—

''(A) IN GENERAL.—Notwithstanding any other law governing forbearance relief, with respect to any covered mortgage loan that is not a federally-insured reverse mortgage loan—

''(i) any borrower whose covered mortgage loan became 60 days delinquent between March 13, 2020, and the date of enactment of this paragraph, and who has not already received a forbearance under subsection (b), shall automatically be granted a 60-day forbearance that begins on the date of enactment of this paragraph, provided that a borrower shall not be considered delinquent for purposes of this paragraph while making timely payments or otherwise performing under a trial modification or other loss mitigation agreement; and

''(ii) any borrower whose covered mortgage loan becomes 60 days delinquent between the date of enactment of this paragraph and the end of the covered period, and who has not already received a forbearance under subsection (b), shall automatically be granted a 60-day forbearance that begins on the 60th day of delinquency, provided that a borrower shall not be considered delinquent for purposes of this paragraph while making timely payments or otherwise performing under a trial modification or other loss mitigation agreement.

''(B) INITIAL EXTENSION.—An automatic forbearance provided under subparagraph (A) shall be extended for up to an additional 120 days upon the request of the borrower, oral or written, submitted to the servicer of the borrower affirming that the borrower is experiencing a financial hardship that prevents the borrower from making timely payments on the covered mortgage loan due, directly or indirectly, to the COVID–19 emergency.

''(C) SUBSEQUENT EXTENSION.—A forbearance extended under subparagraph (B) shall be further extended by the servicer, for the period or periods requested, for a total forbearance period of up to 12 months (including the period of automatic forbearance), upon the borrower's request, oral or written, submitted to the borrower's servicer affirming that the borrower is experiencing a financial hardship that prevents the borrower from making timely payments on the covered mortgage loan due, directly or indirectly, to the COVID–19 emergency.

''(D) RIGHT TO ELECT TO CONTINUE MAKING PAYMENTS.—

''(i) IN GENERAL.—With respect to a forbearance provided under this paragraph, the borrower of the covered mortgage loan may elect to continue making regular payments on the covered mortgage loan.

''(ii) LOSS MITIGATION.—A borrower who makes an election described in clause (i) shall be offered a loss mitigation option pursuant to subsection (d) within 30 days of resuming regular payments to address any payment deficiency during the forbearance.

''(E) RIGHT TO SHORTEN FORBEARANCE.—

''(i) IN GENERAL.—At the request of a borrower, any period of forbearance provided to the borrower under this paragraph may be shortened.

''(ii) LOSS MITIGATION.—A borrower who makes a request under clause (i) shall be offered a loss mitigation option pursuant to subsection (d) within 30 days of resuming regular payments to address any payment deficiency during the forbearance.

''(10) AUTOMATIC EXTENSION OF DUE AND PAYABLE STATUS FOR CERTAIN REVERSE MORTGAGE LOANS.—

''(A) IN GENERAL.—When any covered mortgage loan that is also a federally-insured reverse mortgage loan, during the covered period, is due and payable due to the death of the last surviving borrower but the property to which the covered mortgage loan relates is not vacant or abandoned, or the covered mortgage loan is eligible to be called due and payable due to a property charge default, or if the borrower defaults on a property charge repayment plan, or if the borrower defaults for failure to complete property repairs, or if an obligation of the borrower under the Security Instrument is not performed, the mortgagee automatically shall be granted a 180-day extension of—

''(i) the mortgagee's deadline to request due and payable status from the Department of Housing and Urban Development, where applicable;

''(ii) the mortgagee's deadline to send notification to the mortgagor or his or her heirs that the loan is due and payable;

''(iii) the deadline to initiate foreclosure;

''(iv) any reasonable diligence period related to foreclosure or the Mortgagee Optional Election;

''(v) any deadline relevant to establishing that a non-borrowing spouse may be eligible for a deferral period;

''(vi) if applicable, the deadline to obtain the due and payable appraisal; and

''(vii) any claim submission deadline, including the 6-month acquired property marketing period.

''(B) LENGTH OF EXTENSION OF DUE AND PAYABLE STATUS.—The mortgagee shall not request due and payable status from the Secretary of Housing and Urban Development nor initiate or continue a foreclosure action during this 180-day period described in subparagraph (A), which shall be considered a forbearance period.

''(C) EXTENSION.—A forbearance provided under subparagraph (B) and related deadline extension authorized under subparagraph (A) shall be extended for the period or periods requested, for a total forbearance period of up to 12 months upon—

''(i) the request of the borrower, oral or written, submitted to the servicer of the borrower affirming that the borrower is experiencing a financial hardship that prevents the borrower from making payments on property charges, completing property repairs, or performing an obligation of the borrower under the Security Instrument due, directly or indirectly, to the COVID–19 emergency;

''(ii) the request of a non-borrowing spouse, oral or written, submitted to the servicer affirming that the non-borrowing spouse has been unable to satisfy all criteria for the Mortgagee Optional Election program due, directly or indirectly, to the COVID–19 emergency, or to perform all actions necessary to become an eligible non-borrowing spouse following the death of all borrowers; or

''(iii) the request of a successor-in-interest of the borrower, oral or written, submitted to the servicer affirming the difficulty of the heir in satisfying the reverse mortgage loan due, directly or indirectly, to the COVID–19 emergency.

''(D) CURTAILMENT OF DEBENTURE INTEREST.—Where any covered mortgage loan that is also a federally insured reverse mortgage loan is in default during the covered period and subject to a prior event which provides for curtailment of debenture interest in connection with a claim for insurance benefits, the curtailment of debenture interest shall be suspended during any forbearance period provided herein.''.

(3) ADDITIONAL FORECLOSURE AND REPOSSESSION PROTECTIONS.—Section 4022(c) of the CARES Act (15 U.S.C. 9056(c)) is amended—

(A) in paragraph (2), by striking ''may not initiate any judicial or non-judicial foreclosure process, move for a foreclosure judgment or order of sale, or execute a foreclosure-related eviction or foreclosure sale for not less than the 60-day period beginning on March 18, 2020'' and inserting ''may not initiate or proceed with any judicial or non-judicial foreclosure process, schedule a foreclosure sale, move for a foreclosure judgment or order of sale, execute a foreclosure related eviction or foreclosure sale for the 6-month period beginning on the date of enactment of the COVID–19 HERO Act''; and

(B) by adding at the end the following:

''(3) REPOSSESSION MORATORIUM.—In the case of personal property, including any recreational or motor vehicle, used as a dwelling, no person may use any judicial or non-judicial procedure to repossess or otherwise take possession of the property for the 6-month period beginning on the date of enactment of this paragraph.''.

(4) MORTGAGE FORBEARANCE REFORMS.—Section 4022 of the CARES Act (15 U.S.C. 9056) is amended—

(A) in subsection (b), by striking paragraphs (1), (2), and (3) and inserting the following:

''(1) IN GENERAL.—During the covered period, a borrower with a covered mortgage loan who has not obtained automatic forbearance pursuant to this section and who is experiencing a financial hardship that prevents the borrower from making timely payments on the covered mortgage loan due, directly or indirectly, to the COVID–19 emergency may request forbearance on the covered mortgage loan, regardless of delinquency status, by—

''(A) submitting a request, orally or in writing, to the servicer of the covered mortgage loan; and

''(B) affirming that the borrower is experiencing a financial hardship that prevents the borrower from making timely payments on the covered mortgage loan due, directly or indirectly, to the COVID–19 emergency.

''(2) DURATION OF FORBEARANCE.—

''(A) IN GENERAL.—Upon a request by a borrower to a servicer for forbearance under paragraph (1), the forbearance shall be granted by the servicer for the period requested by the borrower, up to an initial length of 180 days, the length of which shall be extended by the servicer, at the request of the borrower for the period or periods requested, for a total forbearance period of not more than 12 months.

''(B) MINIMUM FORBEARANCE AMOUNTS.—For purposes of granting a forbearance under this paragraph, a servicer may grant an initial forbearance with a term of not less than 90 days, provided that it is automatically extended for an additional 90 days unless the servicer confirms the borrower does not want to renew the forbearance or that the borrower is no longer experiencing a financial hardship that prevents the borrower from making timely mortgage payments due, directly or indirectly, to the COVID–19 emergency.

''(C) RIGHT TO SHORTEN FORBEARANCE.—

''(i) IN GENERAL.—At the request of a borrower, any period of forbearance described under this paragraph may be shortened.

''(ii) LOSS MITIGATION.—A borrower who makes a request under clause (i) shall be offered a loss mitigation option pursuant to subsection (d) within 30 days of resuming regular payments to address any payment deficiency during the forbearance.

''(3) ACCRUAL OF INTEREST OR FEES.—A servicer shall not charge a borrower any fees, penalties, or interest (beyond the amounts scheduled or calculated as if the borrower made all contractual payments on time and in full under the terms of the mortgage contract) in connection with a forbearance, provided that a servicer may offer the borrower a modification option at the end of a forbearance period granted hereunder that includes the capitalization of past due principal and interest and escrow payments as long as the principal and interest payment of the borrower under such modification remains at or below the contractual principal and interest payments owed under the terms of the mortgage contract before such forbearance period except as the result of a change in the index of an adjustable rate mortgage, or, in the case of loans insured by the Federal Housing Administration, except in a modification compliant with applicable Federal Housing Administration policies.

''(4) COMMUNICATION WITH SERVICERS.—Any communication between a borrower and a servicer described in this section may be made in writing or orally, at the election of the borrower.

''(5) COMMUNICATION WITH BORROWERS WITH A DISABILITY.—

''(A) IN GENERAL.—Upon request from a borrower, servicers shall communicate with borrowers who have a disability in the preferred method of communication of the borrower.

''(B) DEFINITION.—In this paragraph, the term 'disability' has the meaning given the term 'handicap' in section 802 of the Fair Housing Act (42 U.S.C. 3602).''; and

(B) in subsection (c), by amending paragraph (1) to read as follows:

''(1) NO DOCUMENTATION REQUIRED.—A servicer of a covered mortgage loan shall not require any documentation with respect to a forbearance under this section other than the oral or written affirmation of the borrower to a financial hardship that prevents the borrower from making timely payments on the covered mortgage loan due, directly or indirectly, to the COVID–19 emergency. An oral request for forbearance and oral affirmation of hardship by the borrower shall be sufficient for the borrower to obtain or extend a forbearance.''.

(5) OTHER SERVICER REQUIREMENTS DURING FORBEARANCE.—Section 4022(c) of the CARES Act (15 U.S.C. 9056(c)), as amended by paragraph (3) of this subsection, is amended by adding at the end the following:

''(4) FORBEARANCE TERMS NOTICE.—Within 30 days of a servicer of a covered mortgage loan providing forbearance to a borrower under subsection (b) or paragraph (9) or (10), or 10 days if the forbearance is for a term of less than 60 days, but only where the forbearance was provided in response to a request by the borrower for forbearance or when an automatic forbearance was initially provided under paragraph (9) or (10), and not when an existing forbearance is automatically extended, the servicer shall provide the borrower with a notice in accordance with the terms in paragraph (5).

''(5) CONTENTS OF NOTICE.—The written notice required under paragraph (4) shall state in plain language—

''(A) the specific terms of the forbearance;

''(B) the beginning and ending dates of the forbearance;

''(C) that the borrower is eligible for not more than 12 months of forbearance;

''(D) that the borrower may request an extension of the forbearance unless the borrower will have reached the maximum period at the end of the forbearance;

''(E) that the borrower may request that the initial or extended period be shortened at any time;

''(F) that the borrower should contact the servicer before the end of the forbearance period;

''(G) a description of the loss mitigation options that may be available to the borrower at the end of the forbearance period based on the specific covered mortgage loan of the borrower;

''(H) information on how to find a housing counseling agency approved by the Department of Housing and Urban Development;

''(I) in the case of a forbearance provided pursuant to paragraph (9) or (10), that the forbearance was automatically provided and how to contact the servicer to make arrangements for further assistance, including any renewal; and

''(J) where applicable, that the forbearance is subject to an automatic extension, including the terms of any such automatic extensions and when any further extension would require a borrower request.

''(6) TREATMENT OF ESCROW ACCOUNTS.—During any forbearance provided under this section,

a servicer shall pay or advance funds to make disbursements in a timely manner from any escrow account established on the covered mortgage loan.

''(7) NOTIFICATION FOR BORROWERS.—During the period beginning on the date that is 90 days after the date of the enactment of this paragraph and ending on the last day of the covered period, each servicer of a covered mortgage loan shall be required to—

''(A) make available in a clear and conspicuous manner on their web page accurate information, in English and Spanish, for borrowers regarding the availability of forbearance as provided under subsection (b);

''(B) notify every borrower whose payments on a covered mortgage loan are or become 31 days delinquent in any oral communication with or to the borrower that the borrower may be eligible to request forbearance as provided under subsection (b), except that such notice shall not be required if the borrower already has requested forbearance under subsection (b); and

''(C) provide in writing, in both English and Spanish, to any borrower whose payments on the covered mortgage loan are or become 31 days delinquent, a notification that—

''(i) the borrower may be eligible for forbearance under this section;

''(ii) the borrower can seek language assistance and general help through a housing counseling agency certified by the Department of Housing and Urban Development;

''(iii) provides information on how to find a counseling agency described in clause (ii); and

''(iv) shall be provided not later than the 45th day of the delinquency of the borrower.

''(8) CERTAIN TREATMENT UNDER RESPA.—During any period of time that a borrower is in forbearance, has not yet received an offer under subsection (d)(2) or a notice of the determination of the servicer under subsection (d)(3), as applicable, or whose first payment due under an offer under subsection (d)(2) is not yet past due—

''(A) for purposes of section 1024.41 of title 12, Code of Federal Regulations (or any successor regulation), any delinquency on the mortgage loan shall be tolled; and

''(B) the servicer shall not initiate or proceed with any judicial or non-judicial foreclosure process, schedule a foreclosure sale, move for a foreclosure judgment or order of sale, execute a foreclosure related eviction or foreclosure sale, including charging, assessing, or incurring any foreclosure related fees, such as attorney fees, property inspection fees, or title fees.''.

(6) POST-FORBEARANCE LOSS MITIGATION.—

(A) AMENDMENT TO THE CARES ACT.—Section 4022 of the CARES Act (15 U.S.C. 9056) is amended by adding at the end the following:

''(d) POST-FORBEARANCE LOSS MITIGATION.—

''(1) NOTICE OF AVAILABILITY OF ADDITIONAL FORBEARANCE.—With respect to any covered mortgage loan as to which forbearance under this section has been granted and not otherwise extended, including by automatic extension, a servicer shall, not later than 30 days before the end of the forbearance period, in writing, notify the borrower that additional forbearance may be available and how to request such forbearance, except that no such notice is required where the borrower already has requested an extension of the forbearance period, is subject to automatic extension pursuant to subsection (b)(2)(B), or no additional forbearance is available.

''(2) LOSS MITIGATION OFFER BEFORE EXPIRATION OF FORBEARANCE ON A COVERED MORTGAGE LOAN OTHER THAN A FEDERALLY INSURED REVERSE MORTGAGE LOAN.—

''(A) IN GENERAL.—For any covered mortgage loan that is not a federally insured reverse mortgage loan, not later than 30 days before the end of any forbearance period that has not been extended or 30 days after a request by a borrower to terminate the forbearance, which time shall be before the servicer initiates or engages in any foreclosure activity listed in subsection (c)(2), including incurring or charging to a borrower any fees or corporate advances related to a foreclosure, the servicer shall, in writing—

''(i) offer the borrower a loss mitigation option, without the charging of any fees or penalties other than interest, such that the principal and interest payment of the borrower remains the same as it was prior to the forbearance, subject to any adjustment of the index pursuant to the terms of an adjustable rate mortgage, and that—

''(I) defers the payment of total arrearages, including any escrow advances, to the end of the existing term of the loan, without the charging or collection of any additional interest on the deferred amounts; or

''(II) extends the term of the mortgage loan, and capitalizes, defers, or forgives all escrow advances and other arrearages;

''(ii) concurrent with the loss mitigation offer in clause (i), notify the borrower that the borrower has the right to be evaluated for other loss mitigation options if the borrower is not able to make the payment under the option offered in clause (i).

''(B) EXCEPTION.—Notwithstanding subparagraph (A)(i), a servicer may offer a borrower of a covered mortgage loan described in subparagraph (A) a loss mitigation option that reduces the principal and interest payment on the covered mortgage loan and capitalizes, defers, or forgives all escrow advances or arrearages if the servicer has information indicating that the borrower cannot resume the pre-forbearance mortgage payments.

''(3) EVALUATION FOR LOSS MITIGATION PRIOR TO FORECLOSURE INITIATION FOR ANY COVERED MORTGAGE LOAN THAT IS NOT A FEDERALLY INSURED REVERSE MORTGAGE LOAN.—Before a servicer may initiate or engage in any foreclosure activity listed in subsection (c)(2) for any covered mortgage loan that is not a federally insured reverse mortgage loan, including incurring or charging to a borrower any fees or corporate advances related to a foreclosure on the basis that the borrower has failed to perform under the loss mitigation offer in paragraph (2)(A) within the first 90 days after the option is offered, including a failure to accept the loss mitigation offer in paragraph (2)(A), the servicer shall—

''(A) unless the borrower has already submitted a complete application that the servicer is reviewing—

''(i) notify the borrower in writing of the documents and information, if any, needed by the servicer to enable the servicer to consider the borrower for all available loss mitigation options; and

''(ii) exercise reasonable diligence to obtain the documents and information needed to complete the loss mitigation application of the borrower; and

''(B) upon receipt of a complete application or if, despite the exercise by the servicer of reasonable diligence, the loss mitigation application remains incomplete 60 days after the notice in paragraph (2)(A) is sent—

''(i) conduct an evaluation of the complete or incomplete loss mitigation application without reference to whether the borrower has previously submitted a complete loss mitigation application; and

''(ii) offer the borrower all available loss mitigation options for which the borrower qualifies under applicable investor guidelines, including guidelines regarding required documentation.

''(4) EFFECT ON FUTURE REQUESTS FOR LOSS MITIGATION REVIEW FOR BORROWERS WITH COVERED MORTGAGE LOANS THAT ARE NOT FEDERALLY INSURED REVERSE MORTGAGE LOANS.—An application, offer, or evaluation for loss mitigation under this section for a covered mortgage loan that is not a federally insured reverse mortgage loan shall not be the basis for the denial of an application of a borrower as duplicative or for a reduction in the appeal rights of the borrower under Regulation X in part 1024 of title 12, Code of Federal Regulations, in regard to any loss mitigation application submitted after the servicer has complied with the requirements of paragraphs (2) and (3),

''(5) SAFE HARBOR.—For any covered mortgage loan that is not a federally insured reverse mortgage loan, any loss mitigation option authorized by the Federal National Mortgage Association, the Federal Home Loan Corporation, or the Federal Housing Administration shall be deemed to comply with the requirements of paragraph (2)(A) if the loss mitigation option—

''(A) defers the payment of total arrearages, including any escrow advances, to the end of the existing term of the loan, without the charging or collection of any additional interest on the deferred amounts; or

''(B) extends the term of the mortgage loan, and capitalizes, defers, or forgives all escrow advances and other arrearages, without the charging of any fees or penalties beyond interest on any amount capitalized into the loan principal.

''(6) HOME RETENTION OPTIONS FOR CERTAIN REVERSE MORTGAGE LOANS.—

''(A) IN GENERAL.—For a covered mortgage loan that is also a federally insured reverse mortgage loan, the conduct of a servicer shall be deemed to comply with this section, provided that if the loan is eligible to be called due and payable due to a property charge default, the mortgagee shall, as a precondition to sending a due and payable request to the Secretary or initiating or continuing a foreclosure process—

''(i) make a good faith effort to communicate with the borrower regarding available home retention options to cure the property charge default, including encouraging the borrower to apply for home retention options; and

''(ii) consider the borrower for all available home retention options as allowed by the Secretary.

''(B) PERMISSIBLE REPAYMENT PLANS.—The Secretary shall amend the allowable home retention options of the Secretary to permit a repayment plan of not more than 120 months in length, and to permit a repayment plan without regard to prior defaults on repayment plans.

''(C) LIMITATION ON INTEREST CURTAILMENT.—The Secretary may not curtail interest paid to mortgagees who engage in loss mitigation or home retention actions through interest curtailment during such loss mitigation or home retention review or during the period when a loss mitigation or home retention plan is in effect and ending 90 days after any such plan terminates.''.

(B) AMENDMENT TO HOUSING ACT OF 1949.—

(i) IN GENERAL.—Section 505 of the Housing Act of 1949 (42 U.S.C. 1475) is amended—

(I) by striking the section heading and inserting ''LOSS MITIGATION AND FORECLOSURE PROCEDURES'';

(II) in subsection (a), by striking the section designation and all that follows through ''During any'' and inserting the following:

''(a) MORATORIUM.—(1) In determining the eligibility of a borrower for relief, the Secretary shall make all eligibility decisions based on the household income, expenses, and circumstances of the borrower.

''(2) During any'';

(III) by redesignating subsection (b) as subsection (c); and

(IV) by inserting after subsection (a) the following new subsection:

''(b) LOAN MODIFICATION.—(1) Notwithstanding any other provision of this title, for any loan made under section 502 or 504, the Secretary may modify the interest rate and extend the term of such loan for up to 30 years from the date of such modification.

''(2) At the end of any moratorium period granted under this section or under this Act, the Secretary shall reset the principal and interest payments of the borrower—

''(A) based on a reasonable assessment of the ability of the household of the borrower to make principal and interest payments; and

''(B) in accordance with paragraphs (1) and (2) of subsection (a) and paragraphs (1) and (3) of this subsection.

''(3) The amount of the principal and interest payment that is reset under paragraph (2) may not exceed the amount of the principal and interest payment of the borrower before the moratorium.''.

(ii) RULES.—

(I) INTERIM FINAL RULE.—Not later than 60 days after the date of enactment of this Act, the Secretary of Agriculture shall promulgate an interim final rule to carry out the amendments made by this subparagraph.

(II) FINAL RULE.—Not later than 180 days after the date of enactment of this Act, the Secretary of Agriculture shall promulgate a final rule to carry out the amendments made by this subparagraph.

(7) MULTIFAMILY MORTGAGE FORBEARANCE.—Section 4023 of the CARES Act (15 U.S.C. 9057) is amended—

(A) in the section heading, by striking ''with federally backed loans'';

(B) by striking ''Federally backed multifamily mortgage loan'' each place that term appears and inserting ''multifamily mortgage loan'';

(C) in subsection (b), by striking ''during'' and inserting ''due, directly or indirectly, to'';

(D) in subsection (c)(1)—

(i) in subparagraph (A), by adding ''and'' at the end; and

(ii) by striking subparagraphs (B) and (C) and inserting the following:

''(B) provide the forbearance for up to the end of the period described in section 4024(b).'';

(E) by redesignating subsection (f) as subsection (g);

(F) by inserting after subsection (e) the following:

''(f) TREATMENT AFTER FORBEARANCE.—With respect to a multifamily mortgage loan provided a forbearance under this section, the servicer of such loan—

''(1) shall provide the borrower with not less than a 12-month period beginning at the end of the forbearance to become current on the payments under such loan;

''(2) may not charge any late fees, penalties, or other charges with respect to payments on the loan that were due during the forbearance period, if the payments are made before the end of the repayment period under paragraph (1); and

''(3) may not report any adverse information to a credit rating agency (as defined in section 603 of the Fair Credit Reporting Act (12 U.S.C. 1681a)) with respect to any payments on the loan that were due during the forbearance period, if the payments are made before the end of the repayment period under paragraph (1)).''; and

(G) in subsection (g), as so redesignated—

(i) in paragraph (2)—

(I) in the paragraph heading, by striking ''FEDERALLY BACKED MULTIFAMILY'' and inserting ''MULTIFAMILY'';

(II) by striking ''that—'' and all that follows through ''(A) is secured by'' and inserting ''that is secured by'';

(III) by striking ''; and'' and inserting a period; and

(IV) by striking subparagraph (B); and

(ii) by amending paragraph (5) to read as follows:

''(5) COVERED PERIOD.—The term 'covered period' has the meaning given the term in section 4022(a)(3).''.

(8) RENTER PROTECTIONS DURING FORBEARANCE PERIOD.—A borrower that receives a forbearance pursuant to section 4022 or 4023 of the CARES Act (15 U.S.C. 9056, 9057) may not, for the duration of the forbearance—

(A) evict or initiate the eviction of a tenant solely for nonpayment of rent or other fees or charges; or

(B) charge any late fees, penalties, or other charges to a tenant for late payment of rent.

(9) EXTENSION OF GSE PATCH.—

(A) NON-APPLICABILITY OF EXISTING SUNSET.—Section 1026.43(e)(4)(iii)(B) of title 12, Code of Federal Regulations, shall have no force or effect.

(B) EXTENDED SUNSET.—The special rules in section 1026.43(e)(4) of title 12, Code of Federal Regulations, shall apply to covered transactions consummated prior to June 1, 2022, or such later date as the Director of the Bureau of Consumer Financial Protection may determine, by rule.

(10) SERVICER SAFE HARBOR FROM INVESTOR LIABILITY.—

(A) SAFE HARBOR.—

(i) IN GENERAL.—A servicer of covered mortgage loans or multifamily mortgage loans—

(I) shall be deemed not to have violated any duty or contractual obligation owed to investors or other parties regarding those mortgage loans on account of offering or implementing in good faith forbearance during the covered period or offering or implementing in good faith post-forbearance loss mitigation (including after the expiration of the covered period) in accordance with the terms of sections 4022 and 4023 of the CARES Act (15 U.S.C. 9056, 9057) to borrowers, respectively, on covered mortgage loans or multifamily mortgage loans that the servicer services; and

(II) shall not be liable to any party who is owed such a duty or obligation or subject to any injunction, stay, or other equitable relief to such party on account of such offer or implementation of forbearance or post-forbearance loss mitigation.

(ii) OTHER PERSONS.—Any person, including a trustee of a securitization vehicle or other party involved in a securitization or other investment vehicle, who in good faith cooperates with a servicer of covered mortgage loans or multifamily mortgage loans held by that securitization or investment vehicle to comply with the terms of section 4022 and 4023 of the CARES Act (15 U.S.C. 9056, 9057), respectively, to borrowers on covered or multifamily mortgage loans owned by the securitization or other investment vehicle shall not be liable to any party who is owed such a duty or obligation or subject to any injunction, stay, or other equitable relief to such party on account of the cooperation of the servicer with an offer or implementation of forbearance during the covered period or post-forbearance loss mitigation, including after the expiration of the covered period.

(B) STANDARD INDUSTRY PRACTICE.—During the covered period, notwithstanding any contractual restrictions, it is deemed to be standard industry practice for a servicer to offer forbearance (or in the case of a reverse mortgage, an extension of the due and payable period) or loss mitigation options in accordance with the terms of sections 4022 and 4023 of the CARES Act (15 U.S.C. 9056, 9057) to borrowers, respectively, on all covered mortgage loans or multifamily mortgage loans serviced by the servicer.

(C) RULE OF CONSTRUCTION.—Nothing in this paragraph may be construed as affecting the liability of a servicer or other person for actual fraud in the servicing of a mortgage loan or for the violation of a State or Federal law.

(D) DEFINITIONS.—In this paragraph:

(i) COVERED MORTGAGE LOAN.—The term ''covered mortgage loan'' has the meaning given the term in section 4022(a) of the CARES Act (15 U.S.C. 9056(a)).

(ii) COVERED PERIOD.—The term ''covered period'' has the meaning given the term in section 4023(g) of the CARES Act (15 U.S.C. 9057(g)).

(iii) MULTIFAMILY MORTGAGE LOAN.—The term ''multifamily mortgage loan'' has the meaning given the term in section 4023(g) of the CARES Act (15 U.S.C. 9057(g)).

(iv) SERVICER.—The term ''servicer''—

(I) has the meaning given the term in section 6(i) of the Real Estate Settlement Procedures Act of 1974 (12 U.S.C. 2605(i)); and

(II) means a master servicer and a subservicer, as those terms are defined in section 1024.31 of title 12, Code of Federal Regulations.

(v) SECURITIZATION VEHICLE.—The term ''securitization vehicle'' has the meaning given that term in section 129A(f) of the Truth in Lending Act (15 U.S.C. 1639a(f)).

(c) AMENDMENTS TO NATIONAL HOUSING ACT.—Section 306(g)(1) of the National Housing Act (12 U.S.C. 1721(g)(1)) is amended—

(1) in the fifth sentence, by inserting after ''issued'' the following: '', subject to any pledge or grant of security interest of the Federal Reserve under section 4003(b)(4) of the CARES Act (15 U.S.C. 9042(b)(4))) related to any such mortgage or mortgages or any interest therein and the proceeds thereon, which the Association may elect to approve''; and

(2) in the sixth sentence—

(A) by striking ''or (C)'' and inserting ''(C)''; and

(B) by inserting before the period the following: '', or (D) its approval and honoring of any pledge or grant of security interest of the Federal Reserve under section 4003(b)(4) of the CARES Act (15 U.S.C. 9042(b)(4)) related to any such mortgage or mortgages or any interest therein and proceeds thereon''.

SEC. 204. PROMOTING ACCESS TO CREDIT FOR HOMEBUYERS.

(a) FANNIE MAE AND FREDDIE MAC.—

(1) PURCHASE REQUIREMENTS.—During the period that begins 5 days after the date of the enactment of this Act and ends 60 days after the expiration of the covered period with respect to the mortgage, notwithstanding any other provision of law, an enterprise may not refuse to purchase any single-family mortgage originated on or after February 1, 2020, that otherwise would have been eligible for purchase by such enterprise, solely due to the fact that the borrower has, for the borrower's previous mortgage or on the mortgage being purchased—

(A) entered into forbearance as a result of a financial hardship due, directly or indirectly, to the COVID–19 emergency;

(B) requested forbearance as a result of a financial hardship due, directly or indirectly, to the COVID–19 emergency; or

(C) inquired as to options related to forbearance as a result of a financial hardship due, directly or indirectly, to the COVID–19 emergency.

(2) PROHIBITION ON RESTRICTIONS.—With respect to purchase of single-family mortgages described in paragraph (1) and specified in any of subparagraphs (A) through (C) of such paragraph, an enterprise may not—

(A) establish additional restrictions that are not applicable to similarly situated mortgages under which the borrower is not in forbearance;

(B) charge a higher guarantee fee (within the meaning provided such term in section 1327 of the Housing and Community Development Act of 1992 (12 U.S.C. 4547)), or loan level pricing adjustment, or otherwise alter pricing for such mortgages, relative to similarly situated mortgages under which the borrower is not in forbearance;

(C) apply repurchase requirements to such mortgages that are more restrictive than repurchase requirements applicable to similarly situated mortgages under which the borrower is not in forbearance; or

(D) require lender indemnification of such mortgages, solely due to the fact that the borrower is in forbearance.

(3) FRAUD DETECTION.—This subsection may not be construed to prevent an enterprise from conducting oversight and review of single-family mortgages purchased when a borrower is in forbearance on the borrower's previous mortgage, or on the mortgage being purchased, for purposes of detecting fraud. An enterprise shall report any fraud detected to the Director of the Federal Housing Finance Agency.

(4) ENTERPRISE CAPITAL.—During the period that begins 5 days after the date of the enactment of this Act and ends 60 days after the expiration of the covered period with respect to a mortgage, notwithstanding any other provision of law, a forbearance on such mortgage shall

not be considered to be a delinquency under such mortgage for purposes of calculating capital of an enterprise for any purpose under title XIII of the Housing and Community Development Act of 1992 (12 U.S.C. 4501 et seq.).

(5) RULES OF CONSTRUCTION.—

(A) PURCHASE PARAMETERS.—This subsection may not be construed to require an enterprise to purchase single-family mortgages that do not meet existing or amended purchase parameters, other than parameters related to borrower forbearance, established by such enterprise.

(B) EMPLOYMENT; INCOME.—This subsection may not be construed to prevent an enterprise from establishing additional requirements to ensure that a borrower has not lost their job or income prior to a mortgage closing.

(6) IMPLEMENTATION.—The Director may issue any guidance, orders, and regulations necessary to carry out this subsection.

(b) FHA.—

(1) PROHIBITION ON RESTRICTIONS.—During the period that begins 5 days after the date of the enactment of this Act and ends 60 days after the expiration of the covered period with respect to the mortgage, notwithstanding any other provision of law, the Secretary of Housing and Urban Development may not deny the provision of mortgage insurance for a single-family mortgage originated on or after February 1, 2020, may not implement additional premiums or otherwise alter pricing for such a mortgage, may not require mortgagee indemnification, and may not establish additional restrictions on such a mortgagor, solely due to the fact that the borrower has—

(A) entered into forbearance as a result of a financial hardship due, directly or indirectly, to the COVID–19 emergency;

(B) requested forbearance as a result of a financial hardship due, directly or indirectly, to the COVID–19 emergency; or

(C) inquired as to options related to forbearance as a result of a financial hardship due, directly or indirectly, to the COVID–19 emergency.

(2) RULES OF CONSTRUCTION.—

(A) INSURANCE.—This subsection may not be construed to require the Secretary of Housing and Urban Development to provide insurance on single-family mortgages that do not meet existing or amended insurance parameters, other than parameters related to borrower forbearance, established by the Secretary.

(B) EMPLOYMENT; INCOME.—This subsection may not be construed to prevent the Secretary of Housing and Urban Development from establishing additional requirements regarding insurance on single-family mortgages to ensure that a borrower has not lost their job or income prior to a mortgage closing.

(c) REPORTING REQUIREMENTS.—

(1) FHFA ACTIONS.—During the COVID–19 emergency, the Director may not increase guarantee fees, loan level pricing adjustments, or any other fees or implement any restrictions on access to credit unless the Director provides 48-hour advance notice of such increase or restrictions to the Committee on Financial Services of the House of Representatives and the Committee on Banking, Housing, and Urban Affairs of the Senate together with a detailed report of the policy rationale for the decision, including any and all data considered in making such decision.

(2) QUARTERLY REPORTS BY ENTERPRISES AND FHA.—

(A) REQUIREMENT.—Each enterprise and the Secretary of Housing and Urban Development, with respect to the FHA mortgage insurance programs, shall provide reports to the Congress, and make such reports publicly available, not less frequently than quarterly regarding the impact of COVID–19 pandemic on the such enterprises' and program's ability to meet their charter requirements, civil rights responsibilities, mandates under the CARES Act (Public Law 116–136), and other laws enacted in response to the COVID–19 pandemic, and other requirements under law. The first such report shall be submitted not later than the expiration of the 3-month period beginning upon the date of the enactment of this Act and the requirement under this subparagraph to submit such reports shall terminate upon the expiration of the 2-year period beginning upon the termination of the COVID–19 emergency.

(B) CONTENT.—Each report required under subparagraph (A) shall include the following information for the most recent quarter for which data is available:

(i) ENTERPRISES.—For each report required by an enterprise:

(I) The number of single-family and multifamily residential mortgage loans purchased by the enterprise and the unpaid principal balance of such mortgage loans purchased, disaggregated by—

(aa) mortgage loans made to low- and moderate-income borrowers;

(bb) mortgage loans made for properties in low- and moderate-income census tracts; and

(cc) mortgage loans made for properties in central cities, rural areas, and underserved areas.

(II) In the single-family residential mortgage market—

(aa) the total number, unpaid principal balance, and length of forbearances provided to borrowers, including whether or not the forbearance was requested by the borrower;

(bb) a detailed breakdown of the loan modifications offered to borrowers and whether the borrowers accepted the offer including the total number and unpaid principal balance of loan modifications ultimately made to borrowers;

(cc) a detailed breakdown of the home retention options offered to borrowers and whether the borrowers accepted the offer, including the total number and unpaid principal balance of other home retention options ultimately made to borrowers; and

(dd) the total number of outcomes that included short-sales, deed-in-lieu of foreclosure, and foreclosure sales.

(III) A description of any efforts by the enterprise to provide assistance and support to consumers who are not proficient in English.

(IV) A description of any other efforts by the enterprise to provide assistance to low- and moderate-income communities, central cities, rural areas, and other underserved areas, such as financial literacy and education or support of fair housing and housing counseling agencies.

(V) A description of any other assistance provided by the enterprise to consumers in response to the COVID–19 pandemic.

(ii) FHA.—For each report required with respect to the FHA mortgage insurance programs:

(I) The number and unpaid principal balance for all residential mortgage loans, disaggregated by type, insured under such programs.

(II) The total number, unpaid principal balance, and length of forbearances provided to borrowers, including whether or not the forbearance was requested by the borrower.

(III) A detailed breakdown of the loan modifications offered to borrowers and whether the borrowers accepted the offer including the total number and unpaid principal balance of loan modifications ultimately made to borrowers.

(IV) A detailed breakdown of the home retention options offered to borrowers and whether the borrowers accepted the offer including the total number and unpaid principal balance of other home retention options ultimately made to borrowers.

(V) A description of any efforts under such programs to provide assistance and support to consumers who are not proficient in English.

(VI) A description of any other efforts under such programs to provide assistance to low- and moderate-income communities, central cities, rural areas, and other underserved areas, such as financial literacy and education or support of fair housing and housing counseling agencies.

(VII) A description of any other assistance provided under such programs to consumers in response to the COVID–19 pandemic.

(iii) PROVISIONS TO BE INCLUDED IN ALL REPORTS.—Each report required under subparagraph (A) shall include, to the degree reasonably possible, the following information:

(I) An analysis of all loan level data required by clauses (i) and (ii) of this subparagraph disaggregated by race, national origin, gender, disability status, whether or not the borrower seeking or obtaining assistance speaks English as a second language, the preferred language of the borrower, debt-to-income level of the borrower, loan-to-value ratio of the loan, and credit score of the borrower.

(II) A geographical analysis at the census tract level, but if information is not available at the census tract level for any of the items required by clauses (i) and (ii), the geographical analysis shall be provided at the zip code level for the item for which a census tract analysis was not possible.

(III) A description of any policy changes made by the enterprise or Secretary of Housing and Urban Development, as appropriate, in response to the COVID–19 pandemic and analysis of actions taken to ensure that such policy changes were in compliance with all relevant civil rights responsibilities, including the Fair Housing Act, including the Affirmatively Furthering Fair Housing provision, the Equal Credit Opportunity Act, the Community Reinvestment Act of 1977, the Federal Housing Enterprises Financial Safety and Soundness Act of 1992, the Housing and Economic Recovery Act of 2008, Federal Home Loan Bank Act, Executive Orders 11063 and 12892, the Federal National Mortgage Association Charter Act, and the Federal Home Loan Mortgage Corporation Act.

(3) REPORT BY GAO.—Not later than the expiration of the 120-day period that begins upon the termination of the COVID–19 emergency, the Comptroller General of the United States shall submit to the Congress and make public available a report on—

(A) the extent to which the enterprises and the FHA mortgage insurance programs provided loan products, forbearances, loan modifications, and COVID–19-related assistance to consumers;

(B) the availability and type of any such assistance provided post-forbearance; and

(C) the overall ability of the enterprises and the FHA mortgage insurance programs to successfully meet their charter requirements, civil rights responsibilities, and other requirements under law.

(d) DEFINITIONS.—For purposes of this Act, the following definitions shall apply:

(1) COVERED PERIOD.—The term ''covered period'' means, with respect to a federally backed mortgage loan, the period of time during which the borrower under such loan may request forbearance on the loan under section 4022(b) of the CARES Act (15 U.S.C. 9056; Public Law 116–136; 134 Stat. 490).

(2) COVID-19 EMERGENCY.—The term ''COVID–19 emergency'' has the meaning given such term in section 4022 of the CARES Act (15 U.S.C. 9056; Public Law 116–136; 134 Stat. 490).

(3) DIRECTOR.—The term ''Director'' means the Director of the Federal Housing Finance Agency.

(4) ENTERPRISE.—The term ''enterprise'' has the meaning given such term in section 1303 of the Housing and Community Development Act of 1992 (12 U.S.C. 4502).

SEC. 205. LIQUIDITY FOR MORTGAGE SERVICERS AND RESIDENTIAL RENTAL PROPERTY OWNERS.

(a) IN GENERAL.—Section 4003 of the CARES Act (15 U.S.C. 9042), is amended by adding at the end the following:

''(i) LIQUIDITY FOR MORTGAGE SERVICERS.—

''(1) IN GENERAL.—Subject to paragraph (2), the Secretary shall ensure that servicers of covered mortgage loans (as defined under section

4022) and multifamily mortgage loans (as defined under section 4023) are provided the opportunity to participate in the loans, loan guarantees, or other investments made by the Secretary under this section. The Secretary shall ensure that servicers are provided with access to such opportunities under equitable terms and conditions regardless of their size.

''(2) MORTGAGE SERVICER ELIGIBILITY.—In order to receive assistance under subsection (b)(4), a mortgage servicer shall—

''(A) demonstrate that the mortgage servicer has established policies and procedures to use such funds only to replace funds used for borrower assistance, including to advance funds as a result of forbearance or other loss mitigation provided to borrowers;

''(B) demonstrate that the mortgage servicer has established policies and procedures to provide forbearance, post-forbearance loss mitigation, and other assistance to borrowers in compliance with the terms of section 4022 or 4023, as applicable;

''(C) demonstrate that the mortgage servicer has established policies and procedures to ensure that forbearance and post-forbearance assistance is available to all borrowers in a nondiscriminatory fashion and in compliance with the Fair Housing Act, the Equal Credit Opportunity Act, and other applicable fair housing and fair lending laws; and

''(D) comply with the limitations on compensation set forth in section 4004.

''(3) MORTGAGE SERVICER REQUIREMENTS.—A mortgage servicer receiving assistance under subsection (b)(4) may not, while the servicer is under any obligation to repay funds provided or guaranteed under this section—

''(A) pay dividends with respect to the common stock of the mortgage servicer or purchase an equity security of the mortgage servicer or any parent company of the mortgage servicer if the security is listed on a national securities exchange, except to the extent required under a contractual obligation that is in effect on the date of enactment of this subsection; or

''(B) prepay any debt obligation.''.

(b) CREDIT FACILITY FOR RESIDENTIAL RENTAL PROPERTY OWNERS.—

(1) IN GENERAL.—The Board of Governors of the Federal Reserve System shall—

(A) establish a facility, using amounts made available under section 4003(b)(4) of the CARES Act (15 U.S.C. 9042(b)(4)), to make long-term, low-cost loans to residential rental property owners as to temporarily compensate such owners for documented financial losses caused by reductions in rent payments; and

(B) defer such owners' required payments on such loans until after six months after the date of enactment of this Act.

(2) REQUIREMENTS.—A borrower that receives a loan under this subsection may not, for the duration of the loan—

(A) evict or initiate the eviction of a tenant solely for nonpayment of rent or other fees or charges;

(B) charge any late fees, penalties, or other charges to a tenant for late payment of rent; and

(C) with respect to a person or entity described under paragraph (4), discriminate on the basis of source of income.

(3) REPORT ON RESIDENTIAL RENTAL PROPERTY OWNERS.—The Board of Governors shall issue reports to the Congress on a monthly basis containing the following, with respect to each property owner receiving a loan under this subsection:

(A) The number of borrowers that received assistance under this subsection.

(B) The average total loan amount that each borrower received.

(C) The total number of rental units that each borrower owned.

(D) The average rent charged by each borrower.

(4) REPORT ON LARGE RESIDENTIAL RENTAL PROPERTY OWNERS.—The Board of Governors shall issue reports to the Congress on a monthly basis that identify any person or entity that in aggregate owns or holds a controlling interest in any entity that, in aggregate, owns—

(A) more than 100 rental units that are located within in a single Metropolitan Statistical Area;

(B) more than 1,000 rental units nationwide; or

(C) rental units in three or more States.

(c) AMENDMENTS TO NATIONAL HOUSING ACT.—Section 306(g)(1) of the National Housing Act (12 U.S.C. 1721(a)) is amended—

(1) in the fifth sentence, by inserting after ''issued'' the following: '', subject to any pledge or grant of security interest of the Federal Reserve under section 4003(a) of the CARES Act (Public Law 116–136; 134 Stat. 470; 15 U.S.C. 9042(a)) and to any such mortgage or mortgages or any interest therein and the proceeds thereon, which the Association may elect to approve''; and

(2) in the sixth sentence—

(A) by striking ''or (C)'' and inserting ''(C)''; and

(B) by inserting before the period the following: '', or (D) its approval and honoring of any pledge or grant of security interest of the Federal Reserve under section 4003(a) of the CARES Act and to any such mortgage or mortgages or any interest therein and proceeds thereon as''.

SEC. 206. SUPPLEMENTAL FUNDING FOR SUPPORTIVE HOUSING FOR THE ELDERLY AND PERSONS WITH DISABILITIES.

(a) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated $500,000,000 for fiscal year 2021 for additional assistance for supportive housing for the elderly, of which—

(1) $200,000,000 shall be for rental assistance under section 202 of the Housing Act of 1959 (12 U.S.C. 1701q) or section 8 of the United States Housing Act of 1937 (42 U.S.C. 1437f), as appropriate, and for hiring additional staff and for services and costs, including acquiring personal protective equipment, to prevent, prepare for, or respond to the public health emergency relating to Coronavirus Disease 2019 (COVID–19) pandemic; and

(2) $300,000,000 shall be for grants under section 676 of the Housing and Community Development Act of 1992 (42 U.S.C. 13632) for costs of providing service coordinators for purposes of coordinating services to prevent, prepare for, or respond to the public health emergency relating to Coronavirus Disease 2019 (COVID–19).

Any provisions of, and waivers and alternative requirements issued by the Secretary pursuant to, the heading ''Department of Housing and Urban Development—Housing Programs—Housing for the Elderly'' in title XII of division B of the CARES Act (Public Law 116–136) shall apply with respect to amounts made available pursuant to this subsection.

(b) ELIGIBILITY OF SUPPORTIVE HOUSING FOR PERSONS WITH DISABILITIES.—Subsection (a) of section 676 of the Housing and Community Development Act of 1992 (42 U.S.C. 13632(a)) shall be applied, for purposes of subsection (a) of this section, by substituting ''(G), and (H)'' for '' and (G)''.

(c) SERVICE COORDINATORS.—

(1) HIRING.—In the hiring of staff using amounts made available pursuant to this section for costs of providing service coordinators, grantees shall consider and hire, at all levels of employment and to the greatest extent possible, a diverse staff, including by race, ethnicity, gender, and disability status. Each grantee shall submit a report to the Secretary of Housing and Urban Development describing compliance with the preceding sentence not later than the expiration of the 120-day period that begins upon the termination of the emergency declared on March 13, 2020, by the President under the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 4121 et seq.) relating to the Coronavirus Disease 2019 (COVID–19) pandemic.

(2) ONE-TIME GRANTS.—Grants made using amounts made available pursuant to subsection (a) for costs of providing service coordinators shall not be renewable.

(3) ONE-YEAR AVAILABILITY.—Any amounts made available pursuant to this section for costs of providing service coordinators that are allocated for a grantee and remain unexpended upon the expiration of the 12-month period beginning upon such allocation shall be recaptured by the Secretary.

SEC. 207. FAIR HOUSING.

(a) DEFINITION OF COVID–19 EMERGENCY PERIOD.—For purposes of this Act, the term ''COVID–19 emergency period'' means the period that begins upon the date of the enactment of this Act and ends upon the date of the termination by the Federal Emergency Management Agency of the emergency declared on March 13, 2020, by the President under the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 4121 et seq.) relating to the Coronavirus Disease 2019 (COVID–19) pandemic.

(b) FAIR HOUSING ACTIVITIES.—

(1) AUTHORIZATION OF APPROPRIATIONS.—To ensure existing grantees have sufficient resource for fair housing activities and for technology and equipment needs to deliver services through use of the Internet or other electronic or virtual means in response to the public health emergency related to the Coronavirus Disease 2019 (COVID–19) pandemic, there is authorized to be appropriated $4,000,000 for Fair Housing Organization Initiative grants through the Fair Housing Initiatives Program under section 561 of the Housing and Community Development Act of 1987 (42 U.S.C. 3616a).

(2) 3-YEAR AVAILABILITY.—Any amounts made available pursuant paragraph (1) that are allocated for a grantee and remain unexpended upon the expiration of the 3-year period beginning upon such allocation shall be recaptured by the Secretary.

(c) FAIR HOUSING EDUCATION.—There is authorized to be appropriated $10,000,000 for the Office of Fair Housing and Equal Opportunity of the Department of Housing and Urban Development to carry out a national media campaign and local education and outreach to educate the public of increased housing rights during COVID–19 emergency period, that provides that information and materials used in such campaign are available—

(1) in the languages used by communities with limited English proficiency; and

(2) to persons with disabilities.

TITLE III—PROTECTING PEOPLE EXPERIENCING HOMELESSNESS

SEC. 301. HOMELESS ASSISTANCE FUNDING.

(a) EMERGENCY HOMELESS ASSISTANCE.—

(1) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated under the Emergency Solutions Grants program under subtitle B of title IV of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11371 et seq.) $5,000,000,000 for grants under such subtitle in accordance with this subsection to respond to needs arising from the public health emergency relating to Coronavirus Disease 2019 (COVID–19).

(2) FORMULA.—Notwithstanding sections 413 and 414 of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11372, 11373), the Secretary of Housing and Urban Development (in this Act referred to as the ''Secretary'') shall allocate any amounts remaining after amounts are allocated pursuant to paragraph (1) in accordance with a formula to be established by the Secretary that takes into consideration the following factors:

(A) Risk of transmission of coronavirus in a jurisdiction.

(B) Whether a jurisdiction has a high number or rate of sheltered and unsheltered homeless individuals and families.

(C) Economic and housing market conditions in a jurisdiction.

(3) ELIGIBLE ACTIVITIES.—In addition to eligible activities under section 415(a) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11374(a), amounts made available pursuant to paragraph (1) may also be used for costs of the following activities:

(A) Providing training on infectious disease prevention and mitigation.

(B) Providing hazard pay, including for time worked before the effectiveness of this subparagraph, for staff working directly to prevent and mitigate the spread of coronavirus or COVID–19 among people experiencing or at risk of homelessness.

(C) Reimbursement of costs for eligible activities (including activities described in this paragraph) relating to preventing, preparing for, or responding to the coronavirus or COVID–19 that were accrued before the date of the enactment of this Act.

(D) Notwithstanding 24 C.F.R. 576.102(a)(3), providing a hotel or motel voucher for a homeless individual or family.

Use of such amounts for activities described in this paragraph shall not be considered use for administrative purposes for purposes of section 418 of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11377).

(4) INAPPLICABILITY OF PROCUREMENT STANDARDS.—To the extent amounts made available pursuant to paragraph (1) are used to procure goods and services relating to activities to prevent, prepare for, or respond to the coronavirus or COVID–19, the standards and requirements regarding procurement that are otherwise applicable shall not apply.

(5) INAPPLICABILITY OF HABITABILITY AND ENVIRONMENTAL REVIEW STANDARDS.—Any Federal standards and requirements regarding habitability and environmental review shall not apply with respect to any emergency shelter that is assisted with amounts made available pursuant to paragraph (1) and has been determined by a State or local health official, in accordance with such requirements as the Secretary shall establish, to be necessary to prevent and mitigate the spread of coronavirus or COVID–19, such shelters.

(6) INAPPLICABILITY OF CAP ON EMERGENCY SHELTER ACTIVITIES.—Subsection (b) of section 415 of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11374) shall not apply to any amounts made available pursuant to paragraph (1) of this subsection.

(7) INITIAL ALLOCATION OF ASSISTANCE.—Section 417(b) of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11376(b)) shall be applied with respect to amounts made available pursuant to paragraph (1) of this subsection by substituting ''30-day'' for ''60-day''.

(8) WAIVERS AND ALTERNATIVE REQUIREMENTS.—

(A) AUTHORITY.—In administering amounts made available pursuant to paragraph (1), the Secretary may waive, or specify alternative requirements for, any provision of any statute or regulation (except for any requirements related to fair housing, nondiscrimination, labor standards, and the environment) that the Secretary administers in connection with the obligation or use by the recipient of such amounts, if the Secretary finds that good cause exists for the waiver or alternative requirement and such waiver or alternative requirement is consistent with the purposes described in this subsection.

(B) NOTIFICATION.—The Secretary shall notify the public through the Federal Register or other appropriate means 5 days before the effective date of any such waiver or alternative requirement, and any such public notice may be provided on the Internet at the appropriate Government web site or through other electronic media, as determined by the Secretary.

(C) EXEMPTION.—The use of amounts made available pursuant to paragraph (1) shall not be subject to the consultation, citizen participation, or match requirements that otherwise apply to the Emergency Solutions Grants program, except that a recipient shall publish how it has and will utilize its allocation at a minimum on the Internet at the appropriate Government web site or through other electronic media.

(9) INAPPLICABILITY OF MATCHING REQUIREMENT.—Subsection (a) of section 416 of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11375(a)) shall not apply to any amounts made available pursuant to paragraph (1) of this subsection.

(10) PROHIBITION ON PREREQUISITES.—None of the funds authorized under this subsection may be used to require people experiencing homelessness to receive treatment or perform any other prerequisite activities as a condition for receiving shelter, housing, or other services.

(b) RENEWAL OF CONTINUUM OF CARE PROJECTS.—

(1) IN GENERAL.—In allocating and awarding amounts provided for the Continuum of Care program under subtitle C of title IV of the McKinney-Vento Homeless Assistance Act (42 U.S.C. 11381 et seq.), the Secretary of Housing and Urban Development shall renew for one 12-month period, without additional competition, all projects with existing grants expiring during calendar year 2021, including shelter plus care projects expiring during calendar year 2021, notwithstanding any inconsistent provisions in subtitle C of title IV of the McKinney-Vento Homeless Assistance Act or any other Act.

(2) PLANNING AND UNIFIED FUNDING AGENCY AWARDS.—Continuum of Care planning and unified funding agency awards expiring in calendar year 2021 may also be renewed and the continuum of care may designate a new collaborative applicant to receive the award in accordance with the existing process established by the Secretary of Housing and Urban Development.

(3) NOTICE.—The Secretary of Housing and Urban Development shall publish a notice that identifies and lists all projects and awards eligible for such noncompetitive renewal, prescribes the format and process by which the projects and awards from the list will be renewed, makes adjustments to the renewal amount based on changes to the fair market rent, and establishes a maximum amount for the renewal of planning and unified funding agency awards notwithstanding the requirement that such maximum amount be established in a notice of funding availability.

(4) YOUTH HOMELESS DEMONSTRATION PROJECTS AND DOMESTIC VIOLENCE BONUS PROJECTS.— Subsection (a) shall not apply to youth homeless demonstration projects and domestic violence bonus projects under the Continuum of Care program.

(c) HOUSING TRUST FUND.—Notwithstanding any other provision of law, subparagraph (B) of section 1338(c)(10) of the Housing and Community Development Act of 1992 (12 U.S.C. 4568(c)(10)(B)), and any regulations implementing such subparagraph, shall not apply during the 12-month period beginning upon the date of the enactment of this Act.

TITLE IV—SUSPENDING NEGATIVE CREDIT REPORTING AND STRENGTHENING CONSUMER AND INVESTOR PROTECTIONS

SEC. 401. REPORTING OF INFORMATION DURING MAJOR DISASTERS.

(a) IN GENERAL.—The CARES Act (Public Law 116–136) is amended by striking section 4021 and inserting the following:

''SEC. 4021. REPORTING OF INFORMATION DURING MAJOR DISASTERS.

''(a) PURPOSE.—The purpose of this section, and the amendments made by this section, is to protect consumers' credit from negative impacts as a result of financial hardship due to the coronavirus disease (COVID–19) outbreak and future major disasters.

''(b) REPORTING OF INFORMATION DURING MAJOR DISASTERS.—

''(1) IN GENERAL.—The Fair Credit Reporting Act is amended by inserting after section 605B the following:

''§ 605C. Reporting of information during major disasters

''(a) DEFINITIONS.—In this section:

''(1) CONSUMER.—With respect to a covered period, the term ''consumer'' shall only include a consumer who is a resident of the affected area covered by the applicable disaster or emergency declaration.

''(2) COVERED MAJOR DISASTER PERIOD.—The term ''covered major disaster period'' means the period—

''(A) beginning on the date on which a major disaster is declared by the President under—

''(i) section 401 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5170), under which assistance is authorized under section 408 of such Act (42 U.S.C. 5174); or

''(ii) section 501 of such Act; and

''(B) ending on the date that is 120 days after the end of the incident period for such disaster.

''(3) COVERED PERIOD.—The term ''covered period'' means the COVID–19 emergency period or a covered major disaster period.

''(4) COVID–19 EMERGENCY PERIOD.—The term ''COVID–19 emergency period'' means the period beginning on March 13, 2020 (the date the President declared the emergency under section 501 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 4121 et seq.) relating to the Coronavirus Disease 2019 (COVID–19) pandemic) and ending on the later of—

''(A) 120 days after the date of enactment of this section; or

''(B) 120 days after the end of the incident period for such emergency.

''(5) MAJOR DISASTER.—The term ''major disaster'' means a major disaster declared by the President under—

''(A) section 401 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5170), under which assistance is authorized under section 408 of such Act (42 U.S.C. 5174); or

''(B) section 501 of such Act.

''(b) MORATORIUM ON FURNISHING ADVERSE INFORMATION DURING COVERED PERIOD.—No person may furnish any adverse item of information (except information related to a felony criminal conviction) relating to a consumer that was the result of any action or inaction that occurred during a covered period.

''(c) INFORMATION EXCLUDED FROM CONSUMER REPORTS.—In addition to the information described in section 605(a), no consumer reporting agency may make any consumer report containing an adverse item of information (except information related to a felony criminal conviction) relating to a consumer that was the result of any action or inaction that occurred during a covered period.

''(d) SUMMARY OF RIGHTS.—Not later than 60 days after the date of enactment of this section, the Director of the Bureau shall update the model summary of rights under section 609(c)(1) to include a description of the right of a consumer to—

''(1) request the deletion of adverse items of information under subsection (e); and

''(2) request a consumer report or score, without charge to the consumer, under subsection (f).

''(e) DELETION OF ADVERSE ITEMS OF INFORMATION RESULTING FROM THE CORONAVIRUS DISEASE (COVID–19) OUTBREAK AND MAJOR DISASTERS.—

''(1) REPORTING.—

''(A) IN GENERAL.—Not later than 60 days after the date of enactment of this subsection, the Director of the Bureau shall create a website for consumers to report, under penalty of perjury, economic hardship as a result of the coronavirus disease (COVID–19) outbreak or a

major disaster for the purpose of providing credit report protections under this subsection.

''(B) DOCUMENTATION.—The Director of the Bureau shall—

''(i) not require any documentation from a consumer to substantiate the economic hardship; and

''(ii) provide notice to the consumer that a report under subparagraph (A) is under penalty of perjury.

''(C) REPORTING PERIOD.—A consumer may report economic hardship under subparagraph (A) during a covered period and for 60 days thereafter.

''(2) DATABASE.—The Director of the Bureau shall establish and maintain a secure database that—

''(A) is accessible to each consumer reporting agency described in section 603(p) and nationwide specialty consumer reporting agency for purposes of fulfilling their duties under paragraph (3) to check and automatically delete any adverse item of information (except information related to a felony criminal conviction) reported that occurred during a covered period with respect to a consumer; and

''(B) contains the information reported under paragraph (1).

''(3) DELETION OF ADVERSE ITEMS OF INFORMATION BY NATIONWIDE CONSUMER REPORTING AND NATIONWIDE SPECIALTY CONSUMER REPORTING AGENCIES.—

''(A) IN GENERAL.—Each consumer reporting agency described in section 603(p) and each nationwide specialty consumer reporting agency shall, using the information contained in the database established under paragraph (2), delete from the file of each consumer named in the database each adverse item of information (except information related to a felony criminal conviction) that was a result of an action or inaction that occurred during a covered period or in the 270-day period following the end of a covered period.

''(B) TIMELINE.—Each consumer reporting agency described in section 603(p) and each nationwide specialty consumer reporting agency shall check the database at least weekly and delete adverse items of information as soon as practicable after information that is reported under paragraph (1) appears in the database established under paragraph (2).

''(4) REQUEST FOR DELETION OF ADVERSE ITEMS OF INFORMATION.—

''(A) IN GENERAL.—A consumer who has filed a report of economic hardship with the Bureau may submit a request, without charge to the consumer, to a consumer reporting agency described in section 603(p) or nationwide specialty consumer reporting agency to delete from the consumer's file an adverse item of information (except information related to a felony criminal conviction) that was a result of an action or inaction that occurred during a covered period or in the 270-day period following the end of a covered period.

''(B) TIMING.—A consumer may submit a request under subparagraph (A), not later than the end of the 270-day period described in that subparagraph.

''(C) REMOVAL AND NOTIFICATION.—Upon receiving a request under this paragraph to delete an adverse item of information, a consumer reporting agency described in section 603(p) or nationwide specialty consumer reporting agency shall—

''(i) delete the adverse item of information (except information related to a felony criminal conviction) from the consumer's file; and

''(ii) notify the consumer and the furnisher of the adverse item of information of the deletion.

''(f) FREE CREDIT REPORT AND SCORES.—

''(1) IN GENERAL.—During the period between the beginning of a covered period and ending 12-months after the end of the covered period, each consumer reporting agency described under section 603(p) and each nationwide specialty consumer reporting agency shall make all disclosures described under section 609 upon request by a consumer, by mail or online, without charge to the consumer and without limitation as to the number of requests. Such a consumer reporting agency shall also supply a consumer, upon request and without charge, with a credit score that—

''(A) is derived from a credit scoring model that is widely distributed to users by the consumer reporting agency for the purpose of any extension of credit or other transaction designated by the consumer who is requesting the credit score; or

''(B) is widely distributed to lenders of common consumer loan products and predicts the future credit behavior of a consumer.

''(2) TIMING.—A file disclosure or credit score under paragraph (1) shall be provided to the consumer not later than—

''(A) 7 days after the date on which the request is received if the request is made by mail; and

''(B) not later than 15 minutes if the request is made online.

''(3) ADDITIONAL REPORTS.—A file disclosure provided under paragraph (1) shall be in addition to any disclosure requested by the consumer under section 612(a).

''(4) PROHIBITION.—A consumer reporting agency that receives a request under paragraph (1) may not request or require any documentation from the consumer that demonstrates that the consumer was impacted by the coronavirus disease (COVID–19) outbreak or a major disaster (except to verify that the consumer is a resident of the affected area covered by the applicable disaster or emergency declaration) as a condition of receiving the file disclosure or score.

''(g) POSTING OF RIGHTS.—Not later than 30 days after the date of enactment of this section, each consumer reporting agency described under section 603(p) and each nationwide specialty consumer reporting agency shall prominently post and maintain a direct link on the homepage of the public website of the consumer reporting agency information relating to the right of consumers to—

''(1) request the deletion of adverse items of information (except information related to a felony criminal conviction) under subsection (e); and

''(2) request consumer file disclosures and scores, without charge to the consumer, under subsection (f).

''(h) BAN ON REPORTING MEDICAL DEBT INFORMATION RELATED TO COVID–19 OR A MAJOR DISASTER.—

''(1) FURNISHING BAN.—No person shall furnish adverse information to a consumer reporting agency related to medical debt if such medical debt is with respect to medical expenses related to treatments arising from COVID–19 or a major disaster (whether or not the expenses were incurred during a covered period).

''(2) CONSUMER REPORT BAN.—No consumer reporting agency may make a consumer report containing adverse information related to medical debt if such medical debt is with respect to medical expenses related to treatments arising from COVID–19 or a major disaster (whether or not the expenses were incurred during a covered period).

''(i) CREDIT SCORING MODELS.—A person that creates and implements credit scoring models may not treat the absence, omission, or deletion of any information pursuant to this section as a negative factor or negative value in credit scoring models created or implemented by such person.'.

''(2) TECHNICAL AND CONFORMING AMENDMENT.—The table of contents for the Fair Credit Reporting Act is amended by inserting after the item relating to section 605B the following:

''605C. Reporting of information during major disasters.'.

''SEC. 4021A. LIMITATIONS ON NEW CREDIT SCORING MODELS DURING THE COVID–19 EMERGENCY AND MAJOR DISASTERS.

''The Fair Credit Reporting Act (15 U.S.C. 1681 et seq.) is amended—

''(1) by adding at the end the following:

''§ 630. Limitations on new credit scoring models during the COVID–19 emergency and major disasters

''With respect to a person that creates and implements credit scoring models, such person may not, during a covered period (as defined under section 605C), create or implement a new credit scoring model (including a revision to an existing scoring model) if the new credit scoring model would identify a significant percentage of consumers as being less creditworthy when compared to the previous credit scoring models created or implemented by such person.'; and

''(2) in the table of contents for such Act, by adding at the end the following new item:

''630. Limitations on new credit scoring models during the COVID–19 emergency and major disasters.'.

(b) CLERICAL AMENDMENT.—The table of contents in section 2 of the CARES Act is amended by striking the item relating to section 4021 and inserting the following:

''Sec. 4021. Reporting of information during major disasters.

''Sec. 4021A. Limitations on new credit scoring models during the COVID–19 emergency and major disasters.''.

(c) CONFORMING AMENDMENT.—Subparagraph (F) of section 623(a)(1) of the Fair Credit Reporting Act (15 U.S.C. 1681s–2(a)(1)) is hereby repealed.

SEC. 402. RESTRICTIONS ON COLLECTIONS OF CONSUMER DEBT DURING A NATIONAL DISASTER OR EMERGENCY.

(a) IN GENERAL.—The Fair Debt Collection Practices Act (15 U.S.C. 1692 et seq.) is amended by inserting after section 812 (15 U.S.C. 1692j) the following:

''§ 812A. Restrictions on collections of consumer debt during a national disaster or emergency

''(a) DEFINITIONS.—In this section:

''(1) COVERED PERIOD.—The term 'covered period' means the period beginning on the date of enactment of this section and ending 120 days after the end of the incident period for the emergency declared on March 13, 2020, by the President under section 501 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 4121 et seq.) relating to the Coronavirus Disease 2019 (COVID–19) pandemic.

''(2) CREDITOR.—The term 'creditor' means any person—

''(A) who offers or extends credit creating a debt or to whom a debt is owed; or

''(B) to whom any obligation for payment is owed.

''(3) DEBT.—The term 'debt'—

''(A) means any obligation or alleged obligation that is or during the covered period becomes past due, other than an obligation arising out of a credit agreement entered into after the effective date of this section, that arises out of a transaction with a consumer; and

''(B) does not include a mortgage loan.

''(4) DEBT COLLECTOR.—The term 'debt collector' means a creditor and any other person or entity that engages in the collection of debt, including the Federal Government and a State government, irrespective of whether the applicable debt is allegedly owed to or assigned to such creditor, person, or entity.

''(5) MORTGAGE LOAN.—The term 'mortgage loan' means a covered mortgage loan (as defined under section 4022 of the CARES Act) and a multifamily mortgage loan (as defined under section 4023 of the CARES Act).

''(b) PROHIBITIONS.—

''(1) IN GENERAL.—Notwithstanding any other provision of law, no debt collector may, during a covered period—

''(A) enforce a security interest securing a debt through repossession, limitation of use, or foreclosure;

''(B) take or threaten to take any action to deprive an individual of their liberty as a result of nonpayment of or nonappearance at any hearing relating to an obligation owed by a consumer;

''(C) collect any debt, by way of garnishment, attachment, assignment, deduction, offset, or other seizure, from—

''(i) wages, income, benefits, bank, prepaid or other asset accounts; or

''(ii) any assets of, or other amounts due to, a consumer;

''(D) commence or continue an action to evict a consumer from real or personal property for nonpayment;

''(E) disconnect or terminate service from a utility service, including electricity, natural gas, telecommunications or broadband, water, or sewer, for nonpayment; or

''(F) threaten to take any of the foregoing actions.

''(2) RULE OF CONSTRUCTION.—Nothing in this section may be construed to prohibit a consumer from voluntarily paying, in whole or in part, a debt.

''(c) LIMITATION ON FEES AND INTEREST.—After the expiration of a covered period, a debt collector may not add to any past due debt any interest on unpaid interest, higher rate of interest triggered by the nonpayment of the debt, or fee triggered prior to the expiration of the covered period by the nonpayment of the debt.

''(e) VIOLATIONS.—Any person or government entity that violates this section shall be liable to the applicable consumer as provided under section 813, except that, for purposes of applying section 813—

''(1) such person or government entity shall be deemed a debt collector, as such term is defined for purposes of section 813; and

''(2) each dollar figure in such section shall be deemed to be 10 times the dollar figure specified.

''(f) TOLLING.—Any applicable time limitations for exercising an action prohibited under subsection (b) shall be tolled during a covered period.

''(g) PREDISPUTE ARBITRATION AGREEMENTS.—Notwithstanding any other provision of law, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a dispute brought under this section, including a dispute as to the applicability of this section, which shall be determined under Federal law.''.

(b) CLERICAL AMENDMENT.—The table of contents for the Fair Debt Collection Practices Act is amended by inserting after the item relating to section 812 the following:

''812A. Restrictions on collections of consumer debt during a national disaster or emergency.''.

SEC. 403. REPAYMENT PERIOD AND FORBEARANCE FOR CONSUMERS.

Section 812A of the Fair Debt Collection Practices Act (15 U.S.C. 1692 et seq.), as added by section 110402, is amended—

(1) by inserting after subsection (c) the following:

''(d) REPAYMENT PERIOD.—After the expiration of a covered period, a debt collector shall comply with the following:

''(1) DEBT ARISING FROM CREDIT WITH A DEFINED PAYMENT PERIOD.—For any debt arising from credit with a defined term, the debt collector shall extend the time period to repay any past due balance of the debt by—

''(A) 1 payment period for each payment that a consumer missed during the covered period, with the payments due in the same amounts and at the same intervals as the pre-existing payment schedule; and

''(B) 1 payment period in addition to the payment periods described under subparagraph (A).

''(2) DEBT ARISING FROM AN OPEN END CREDIT PLAN.—For debt arising from an open end credit plan, as defined in section 103 of the Truth in Lending Act (15 U.S.C. 1602), the debt collector shall allow the consumer to repay the past-due balance in a manner that does not exceed the amounts permitted by the methods described in section 171(c) of the Truth in Lending Act (15 U.S.C. 1666i–1(c)) and regulations promulgated under that section.

''(3) DEBT ARISING FROM OTHER CREDIT.—

''(A) IN GENERAL.—For debt not described under paragraph (2) or (3), the debt collector shall—

''(i) allow the consumer to repay the past-due balance of the debt in substantially equal payments over time; and

''(ii) provide the consumer with—

''(I) for past due balances of $2,000 or less, 12 months to repay, or such longer period as the debt collector may allow;

''(II) for past due balances between $2,001 and $5,000, 24 months to repay, or such longer period as the debt collector may allow; or

''(III) for past due balances greater than $5,000, 36 months to repay, or such longer period as the debt collector may allow.

''(B) ADDITIONAL PROTECTIONS.—The Director of the Bureau may issue rules to provide greater repayment protections to consumers with debts described under subparagraph (A).

''(C) RELATION TO STATE LAW.—This paragraph shall not preempt any State law that provides for greater consumer protections than this paragraph.''; and

(2) by adding at the end the following:

''(h) FORBEARANCE FOR AFFECTED CONSUMERS.—

''(1) FORBEARANCE PROGRAM.—Each debt collector that makes use of the credit facility described in paragraph (4) shall establish a forbearance program for debts available during the covered period.

''(2) AUTOMATIC GRANT OF FORBEARANCE UPON REQUEST.—Under a forbearance program required under paragraph (1), upon the request of a consumer experiencing a financial hardship due, directly or indirectly, to COVID–19, the debt collector shall grant a forbearance on payment of debt for such time as needed until the end of the covered period, with no additional documentation required other than the borrower's attestation to a financial hardship caused by COVID–19 and with no fees, penalties, or interest (beyond the amounts scheduled or calculated as if the borrower made all contractual payments on time and in full under the terms of the loan contract) charged to the borrower in connection with the forbearance.

''(3) EXCEPTION FOR CERTAIN MORTGAGE LOANS SUBJECT TO THE CARES ACT.—This subsection shall not apply to a mortgage loan subject to section 4022 or 4023 of the CARES Act.''.

SEC. 404. CREDIT FACILITY.

Section 812A(h) of the Fair Debt Collection Practices Act (15 U.S.C. 1692 et seq.), as added by section 110403, is amended by adding at the end the following:

''(4) CREDIT FACILITY.—The Board of Governors of the Federal Reserve System shall—

''(A) establish a facility, using amounts made available under section 4003(b)(4) of the CARES Act (15 U.S.C. 9042(b)(4)), to make long-term, low-cost loans to debt collectors to temporarily compensate such debt collectors for documented financial losses caused by forbearance of debt payments under this subsection; and

''(B) defer debt collectors' required payments on such loans until after consumers' debt payments resume.''.

TITLE V—PROTECTING STUDENT BORROWERS

SEC. 501. PAYMENTS FOR PRIVATE EDUCATION LOAN BORROWERS AS A RESULT OF THE COVID–19 NATIONAL EMERGENCY.

(a) IN GENERAL.—Section 140 of the Truth in Lending Act (15 U.S.C. 1650) is amended by adding at the end the following new subsection:

''(h) COVID–19 NATIONAL EMERGENCY PRIVATE EDUCATION LOAN REPAYMENT ASSISTANCE.—

''(1) AUTHORITY.—

''(A) IN GENERAL.—Effective on the date of the enactment of this section, until February 1, 2021, the Secretary of the Treasury shall, for each borrower of a private education loan, pay the total amount due for such month on the loan, based on the payment plan selected by the borrower or the borrower's loan status.

''(B) LIMITATION ON PAYMENTS.—The maximum amount of aggregate payments that the Secretary of the Treasury may make under subparagraph (A) with respect to an individual borrower is $10,000.

''(2) NO CAPITALIZATION OF INTEREST.—With respect to any loan in repayment until February 1, 2021, interest due on a private education loan during such period shall not be capitalized at any time until after February 1, 2021.

''(3) REPORTING TO CONSUMER REPORTING AGENCIES.—Until February 1, 2021—

''(A) during the period in which the Secretary of the Treasury is making payments on a loan under paragraph (1), the Secretary shall ensure that, for the purpose of reporting information about the loan to a consumer reporting agency, any payment made by the Secretary is treated as if it were a regularly scheduled payment made by a borrower; and

''(B) no adverse credit information may be furnished to a consumer reporting agency for any private education loan.

''(4) NOTICE OF PAYMENTS AND PROGRAM.—Not later than 15 days following the date of enactment of this subsection, and monthly thereafter until February 1, 2021, the Secretary of the Treasury shall provide a notice to all borrowers of private education loans—

''(A) informing borrowers of the actions taken under this subsection;

''(B) providing borrowers with an easily accessible method to opt out of the benefits provided under this subsection; and

''(C) notifying the borrower that the program under this subsection is a temporary program and will end on February 1, 2021.

''(5) SUSPENSION OF INVOLUNTARY COLLECTION.—Until February 1, 2021, the holder of a private education loan shall immediately take action to halt all involuntary collection related to the loan.

''(6) MANDATORY FORBEARANCE.—During the period in which the Secretary of the Treasury is making payments on a loan under paragraph (1), the servicer of such loan shall grant the borrower forbearance as follows:

''(A) A temporary cessation of all payments on the loan other than the payments of interest and principal on the loan that are made under paragraph (1).

''(B) For borrowers who are delinquent but who are not yet in default before the date on which the Secretary begins making payments under paragraph (1), the retroactive application of forbearance to address any delinquency.

''(7) DATA TO IMPLEMENT.—Holders and servicers of private education loans shall report, to the satisfaction of the Secretary of the Treasury, the information necessary to calculate the amount to be paid under this subsection.

''(8) APPLICATION ONLY TO ECONOMICALLY DISTRESSED BORROWERS.—

''(A) IN GENERAL.—This subsection shall only apply to a borrower of a private education loan who is an economically distressed borrower.

''(B) ECONOMICALLY DISTRESSED BORROWER DEFINED.—In this paragraph, the term 'economically distressed borrower' means a borrower of a private education loan who, as of March 12, 2020—

''(i) based on financial state or other conditions, would be otherwise eligible, if the borrower instead had a Federal student loan, of having a monthly payment due on such loan of $0 pursuant to an income-contingent repayment plan under section 455(d)(1)(D) of the Higher

Education Act of 1965 (20 U.S.C. 1087e(d)(1)(D)) or an income-based repayment plan under section 493C of such Act (20 U.S.C. 1098e);

''(ii) was in default on such loan;

''(iii) had a payment due on such loan that was at least 90 days past due; or

''(iv) based on financial state or other conditions, was in forbearance or deferment.

''(C) RULEMAKING.—Not later than 7 days after the date of enactment of this paragraph, the Director of the Bureau, in consultation with the Secretary of Education, shall issue rules to implement this paragraph, including providing a detailed description of how a borrower of a private education loan will be considered an economically distressed borrower as defined under each clause of subparagraph (B).''.

(b) APPROPRIATION.—There is appropriated to the Secretary of the Treasury, out of amounts in the Treasury not otherwise appropriated, $5,000,000,000 to carry out this title and the amendments made by this title.

SEC. 502. ADDITIONAL PROTECTIONS FOR PRIVATE STUDENT LOAN BORROWERS.

(a) IN GENERAL.—

(1) REPAYMENT PLAN AND FORGIVENESS TERMS.—Each private education loan holder who receives a monthly payment pursuant to section 140(h) of the Truth in Lending Act shall modify all private education loan contracts that it holds to provide for the same repayment plan and forgiveness terms available to Direct Loans borrowers under section 685.209(c) of title 34, Code of Federal Regulations, in effect as of January 1, 2020.

(2) TREATMENT OF STATE STATUTES OF LIMITATION.—For a borrower who has defaulted on a private education loan under the terms of the promissory note prior to any loan payment made or forbearance granted under section 140(h) of the Truth in Lending Act, no payment made or forbearance granted under such section 140(h) shall be considered an event that impacts the calculation of the applicable State statutes of limitation.

(3) PROHIBITION ON PRESSURING BORROWERS.—

(A) IN GENERAL.—A private education loan debt collector or creditor may not pressure a borrower to elect to apply any amount received pursuant to subsection (b) to any private education loan.

(B) VIOLATIONS.—A violation of this paragraph is deemed—

(i) an unfair, deceptive, or abusive act or practice under Federal law in connection with any transaction with a consumer for a consumer financial product or service under section 1031 of the Consumer Financial Protection Act of 2010 (12 U.S.C. 5531); and

(ii) with respect to a violation by a debt collector, an unfair or unconscionable means to collect or attempt to collect any debt under section 808 of the Federal Debt Collection Practices Act (15 U.S.C. 1692f).

(C) PRESSURE DEFINED.—In this paragraph, the term ''pressure'' means any communication, recommendation, or other similar communication, other than providing basic information about a borrower's options, urging a borrower to make an election described under subsection (b).

(b) RELIEF FOR PRIVATE STUDENT LOAN BORROWERS AS A RESULT OF THE COVID–19 NATIONAL EMERGENCY.—

(1) STUDENT LOAN RELIEF AS A RESULT OF THE COVID–19 NATIONAL EMERGENCY.—Not later than 90 days after February 1, 2021, the Secretary of the Treasury shall carry out a program under which a borrower, with respect to the private education loans of such borrower, shall receive in accordance with paragraph (3) an amount equal to the lesser of—

(A) the total amount of each private education loan of the borrower; or

(B) $10,000, reduced by the aggregate amount of all payments made by the Secretary of the Treasury with respect to such borrower under section 140(h) of the Truth in Lending Act.

(2) NOTIFICATION OF BORROWERS.—Not later than 90 days after February 1, 2021, the Secretary of the Treasury shall notify each borrower of a private education loan of—

(A) the requirements to provide loan relief to such borrower under this section; and

(B) the opportunity for such borrower to make an election under paragraph (3)(A) with respect to the application of such loan relief to the private education loans of such borrower.

(3) DISTRIBUTION OF FUNDING.—

(A) ELECTION BY BORROWER.—Not later than 45 days after a notice is sent under paragraph (2), a borrower may elect to apply the amount determined with respect to such borrower under paragraph (1) to any private education loan of the borrower.

(B) AUTOMATIC PAYMENT.—

(i) IN GENERAL.—In the case of a borrower who does not make an election under subparagraph (A) before the date described in such subparagraph, the Secretary of the Treasury shall apply the amount determined with respect to such borrower under paragraph (1) in order of the private education loan of the borrower with the highest interest rate.

(ii) EQUAL INTEREST RATES.—In case of two or more private education loans described in clause (i) with equal interest rates, the Secretary of the Treasury shall apply the amount determined with respect to such borrower under paragraph (1) first to the loan with the highest principal.

(c) APPLICATION ONLY TO ECONOMICALLY DISTRESSED BORROWERS.—This section shall only apply to a borrower of a private education loan who is an economically distressed borrower.

(d) DEFINITIONS.—In this section:

(1) FAIR DEBT COLLECTION PRACTICES ACT TERMS.—The terms ''creditor'' and ''debt collector'' have the meaning given those terms, respectively, under section 803 of the Fair Debt Collection Practices Act (15 U.S.C. 1692a).

(2) PRIVATE EDUCATION LOAN.—The term ''private education loan'' has the meaning given the term in section 140 of the Truth in Lending Act (15 U.S.C. 1650).

(3) ECONOMICALLY DISTRESSED BORROWER DEFINED.—The term ''economically distressed borrower'' has the meaning given that term under section 140(h)(8) of the Truth in Lending Act, as added by section 501.

TITLE VI—STANDING UP FOR SMALL BUSINESSES, MINORITY-OWNED BUSINESSES, AND NON-PROFITS

SEC. 601. RESTRICTIONS ON COLLECTIONS OF SMALL BUSINESS AND NONPROFIT DEBT DURING A NATIONAL DISASTER OR EMERGENCY.

(a) IN GENERAL.—The Fair Debt Collection Practices Act (15 U.S.C. 1692 et seq.), as amended by section 110402, is further amended by inserting after section 812A the following:

''§ 812B. Restrictions on collections of small business and nonprofit debt during a national disaster or emergency

''(a) DEFINITIONS.—In this section:

''(1) COVERED PERIOD.—The term 'covered period' means the period beginning on the date of enactment of this section and ending 120 days after the end of the incident period for the emergency declared on March 13, 2020, by the President under section 501 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 4121 et seq.) relating to the Coronavirus Disease 2019 (COVID–19) pandemic.

''(2) CREDITOR.—The term 'creditor' means any person—

''(A) who offers or extends credit creating a debt or to whom a debt is owed; or

''(B) to whom any obligation for payment is owed.

''(3) DEBT.—The term 'debt'—

''(A) means any obligation or alleged obligation that is or during the covered period becomes past due, other than an obligation arising out of a credit agreement entered into after the effective date of this section, that arises out of a transaction with a nonprofit organization or small business; and

''(B) does not include a mortgage loan.

''(4) DEBT COLLECTOR.—The term 'debt collector' means a creditor and any other person or entity that engages in the collection of debt, including the Federal Government and a State government, irrespective of whether the applicable debt is allegedly owed to or assigned to such creditor, person, or entity.

''(5) MORTGAGE LOAN.—The term 'mortgage loan' means a covered mortgage loan (as defined under section 4022 of the CARES Act) and a multifamily mortgage loan (as defined under section 4023 of the CARES Act).

''(6) NONPROFIT ORGANIZATION.—The term 'nonprofit organization' means an organization that is described in section 501(c)(3) of the Internal Revenue Code of 1986 and that is exempt from taxation under section 501(a) of such Code.

''(7) SMALL BUSINESS.—The term 'small business' has the meaning given the term 'small business concern' in section 3 of the Small Business Act (15 U.S.C. 632).

''(b) PROHIBITIONS.—

''(1) IN GENERAL.—Notwithstanding any other provision of law, no debt collector may, during a covered period—

''(A) enforce a security interest securing a debt through repossession, limitation of use, or foreclosure;

''(B) take or threaten to take any action to deprive an individual of their liberty as a result of nonpayment of or nonappearance at any hearing relating to an obligation owed by a small business or nonprofit organization;

''(C) collect any debt, by way of garnishment, attachment, assignment, deduction, offset, or other seizure, from—

''(i) wages, income, benefits, bank, prepaid or other asset accounts; or

''(ii) any assets of, or other amounts due to, a small business or nonprofit organization;

''(D) commence or continue an action to evict a small business or nonprofit organization from real or personal property for nonpayment;

''(E) disconnect or terminate service from a utility service, including electricity, natural gas, telecommunications or broadband, water, or sewer, for nonpayment; or

''(F) threaten to take any of the foregoing actions.

''(2) RULE OF CONSTRUCTION.—Nothing in this section may be construed to prohibit a small business or nonprofit organization from voluntarily paying, in whole or in part, a debt.

''(c) LIMITATION ON FEES AND INTEREST.—After the expiration of a covered period, a debt collector may not add to any past due debt any interest on unpaid interest, higher rate of interest triggered by the nonpayment of the debt, or fee triggered prior to the expiration of the covered period by the nonpayment of the debt.

''(e) VIOLATIONS.—Any person or government entity that violates this section shall be liable to the applicable small business or nonprofit organization as provided under section 813, except that, for purposes of applying section 813—

''(1) such person or government entity shall be deemed a debt collector, as such term is defined for purposes of section 813; and

''(2) such small business or nonprofit organization shall be deemed a consumer, as such term is defined for purposes of section 813.

''(f) TOLLING.—Any applicable time limitations for exercising an action prohibited under subsection (b) shall be tolled during a covered period.

''(g) PREDISPUTE ARBITRATION AGREEMENTS.—Notwithstanding any other provision of law, no predispute arbitration agreement or predispute joint-action waiver shall be valid or enforceable with respect to a dispute brought under this section, including a dispute as to the applicability of this section, which shall be determined under Federal law.''.

(b) CLERICAL AMENDMENT.—The table of contents for the Fair Debt Collection Practices Act, as amended by section 110402, is further amended by inserting after the item relating to section 812A the following:

''812B. Restrictions on collections of small business and nonprofit debt during a national disaster or emergency.''.

SEC. 602. REPAYMENT PERIOD AND FORBEARANCE FOR SMALL BUSINESSES AND NONPROFIT ORGANIZATIONS.

Section 812B of the Fair Debt Collection Practices Act (15 U.S.C. 1692 et seq.), as added by section 110601, is amended—

(1) by inserting after subsection (c) the following:

''(d) REPAYMENT PERIOD.—After the expiration of a covered period, a debt collector shall comply with the following:

''(1) DEBT ARISING FROM CREDIT WITH A DEFINED PAYMENT PERIOD.—For any debt arising from credit with a defined term, the debt collector shall extend the time period to repay any past due balance of the debt by—

''(A) 1 payment period for each payment that a small business or nonprofit organization missed during the covered period, with the payments due in the same amounts and at the same intervals as the pre-existing payment schedule; and

''(B) 1 payment period in addition to the payment periods described under subparagraph (A).

''(2) DEBT ARISING FROM AN OPEN END CREDIT PLAN.—For debt arising from an open end credit plan, as defined in section 103 of the Truth in Lending Act (15 U.S.C. 1602), the debt collector shall allow the small business or nonprofit organization to repay the past-due balance in a manner that does not exceed the amounts permitted by the methods described in section 171(c) of the Truth in Lending Act (15 U.S.C. 1666i–1(c)) and regulations promulgated under that section.

''(3) DEBT ARISING FROM OTHER CREDIT.—

''(A) IN GENERAL.—For debt not described under paragraph (2) or (3), the debt collector shall—

''(i) allow the small business or nonprofit organization to repay the past-due balance of the debt in substantially equal payments over time; and

''(ii) provide the small business or nonprofit organization with—

''(I) for past due balances of $2,000 or less, 12 months to repay, or such longer period as the debt collector may allow;

''(II) for past due balances between $2,001 and $5,000, 24 months to repay, or such longer period as the debt collector may allow; or

''(III) for past due balances greater than $5,000, 36 months to repay, or such longer period as the debt collector may allow.

''(B) ADDITIONAL PROTECTIONS.—The Director of the Bureau may issue rules to provide greater repayment protections to small businesses and nonprofit organizations with debts described under subparagraph (A).

''(C) RELATION TO STATE LAW.—This paragraph shall not preempt any State law that provides for greater small business or nonprofit organization protections than this paragraph.''; and

(2) by adding at the end the following:

''(h) FORBEARANCE FOR AFFECTED SMALL BUSINESSES AND NONPROFIT ORGANIZATIONS.—

''(1) FORBEARANCE PROGRAM.—Each debt collector that makes use of the credit facility described in paragraph (4) shall establish a forbearance program for debts available during the covered period.

''(2) AUTOMATIC GRANT OF FORBEARANCE UPON REQUEST.—Under a forbearance program required under paragraph (1), upon the request of a small business or nonprofit organization experiencing a financial hardship due, directly or indirectly, to COVID–19, the debt collector shall grant a forbearance on payment of debt for such time as needed until the end of the covered period, with no additional documentation required other than the small business or nonprofit organization's attestation to a financial hardship caused by COVID–19 and with no fees, penalties, or interest (beyond the amounts scheduled or calculated as if the borrower made all contractual payments on time and in full under the terms of the loan contract) charged to the borrower in connection with the forbearance.

''(3) EXCEPTION FOR CERTAIN MORTGAGE LOANS SUBJECT TO THE CARES ACT.—This subsection shall not apply to a mortgage loan subject to section 4022 or 4023 of the CARES Act.''.

SEC. 603. CREDIT FACILITY.

Section 812B(h) of the Fair Debt Collection Practices Act (15 U.S.C. 1692 et seq.), as added by section 110602, is amended by adding at the end the following:

''(4) CREDIT FACILITY.—The Board of Governors of the Federal Reserve System shall—

''(A) establish a facility, using amounts made available under section 4003(b)(4) of the CARES Act (15 U.S.C. 9042(b)(4)), to make long-term, low-cost loans to debt collectors to temporarily compensate such debt collectors for documented financial losses caused by forbearance of debt payments under this subsection; and

''(B) defer debt collectors' required payments on such loans until after small businesses or nonprofit organizations' debt payments resume.''.

SEC. 604. MAIN STREET LENDING PROGRAM REQUIREMENTS.

(a) IN GENERAL.—Section 4003(c)(3)(D)(ii) of the CARES Act (15 U.S.C. 9042(c)(3)(D)(ii)) is amended—

(1) by striking ''Nothing in this subparagraph shall limit the discretion of the Board of Governors of the Federal Reserve System to'' and inserting the following:

''(I) IN GENERAL.—The Board of Governors of the Federal Reserve System shall''; and

(2) by adding at the end the following:

''(II) REQUIREMENTS.—In carrying out subclause (I), the Board of Governors of the Federal Reserve System—

''(aa) shall make non-profit organizations and institutions of higher education (as such term is defined in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a)) eligible for any program or facility established under such subclause;

''(bb) shall create a low-cost loan option tailored to the unique needs of non-profit organizations, including the ability to defer payments without capitalization of interest;

''(cc) shall make any 501(c)(4) organization (as defined in section 501(c)(4) of the Internal Revenue Code of 1986) eligible for any facility provided that such 501(c)(4) organization has not made and will not make a contribution, expenditure, independent expenditure, or electioneering communication within the meaning of the Federal Election Campaign Act, and has not undertaken and will not undertake similar campaign finance activities in state and local elections, during the election cycle which ends on the date of the general election in this calendar year;

''(dd) shall ensure loans made available to all eligible borrowers have a maturity of no less than seven years; and

''(ee) shall prohibit eligible lenders from requiring additional collateral beyond minimum collateral requirements the Board of Governors of the Federal Reserve System may require.''.

(b) DEADLINE.—Not later than the end of the 5-day period beginning on the date of enactment of this Act, the Board of Governors of the Federal Reserve System shall issue such rules or take such other actions as may be necessary to implement the requirements made by the amendments made by this section.

SEC. 605. OPTIONS FOR SMALL BUSINESSES AND NON-PROFITS UNDER THE MAIN STREET LENDING PROGRAM.

(a) IN GENERAL.—Section 4003(c)(3)(D)(ii)(II) of the CARES Act (15 U.S.C. 9042(c)(3)(D)(ii)(II)), as added by section 110604, is further amended by adding at the end the following:

''(cc) shall provide at least one low-cost loan option that small businesses, small non-profits, and small institutions of higher education (as such term is defined in section 101(a) of the Higher Education Act of 1965 (20 U.S.C. 1001(a)) are eligible for that does not have a minimum loan size and includes the ability to defer payments, without capitalization of interest.''.

(b) DEADLINE.—Not later than the end of the 5-day period beginning on the date of enactment of this Act, the Board of Governors of the Federal Reserve System shall issue such rules or take such other actions as may be necessary to implement the requirements made by the amendments made by this section.

SEC. 606. SAFE BANKING.

(a) SHORT TITLE; PURPOSE.—

(1) SHORT TITLE.—This section may be cited as the ''Secure And Fair Enforcement Banking Act of 2020'' or the ''SAFE Banking Act of 2020''.

(2) PURPOSE.—The purpose of this section is to increase public safety by ensuring access to financial services to cannabis-related legitimate businesses and service providers and reducing the amount of cash at such businesses.

(b) SAFE HARBOR FOR DEPOSITORY INSTITUTIONS.—

(1) IN GENERAL.—A Federal banking regulator may not—

(A) terminate or limit the deposit insurance or share insurance of a depository institution under the Federal Deposit Insurance Act (12 U.S.C. 1811 et seq.), the Federal Credit Union Act (12 U.S.C. 1751 et seq.), or take any other adverse action against a depository institution under section 8 of the Federal Deposit Insurance Act (12 U.S.C. 1818) solely because the depository institution provides or has provided financial services to a cannabis-related legitimate business or service provider;

(B) prohibit, penalize, or otherwise discourage a depository institution from providing financial services to a cannabis-related legitimate business or service provider or to a State, political subdivision of a State, or Indian Tribe that exercises jurisdiction over cannabis-related legitimate businesses;

(C) recommend, incentivize, or encourage a depository institution not to offer financial services to an account holder, or to downgrade or cancel the financial services offered to an account holder solely because—

(i) the account holder is a cannabis-related legitimate business or service provider, or is an employee, owner, or operator of a cannabis-related legitimate business or service provider;

(ii) the account holder later becomes an employee, owner, or operator of a cannabis-related legitimate business or service provider; or

(iii) the depository institution was not aware that the account holder is an employee, owner, or operator of a cannabis-related legitimate business or service provider;

(D) take any adverse or corrective supervisory action on a loan made to—

(i) a cannabis-related legitimate business or service provider, solely because the business is a cannabis-related legitimate business or service provider;

(ii) an employee, owner, or operator of a cannabis-related legitimate business or service provider, solely because the employee, owner, or operator is employed by, owns, or operates a cannabis-related legitimate business or service provider, as applicable; or

(iii) an owner or operator of real estate or equipment that is leased to a cannabis-related legitimate business or service provider, solely because the owner or operator of the real estate or equipment leased the equipment or real estate to a cannabis-related legitimate business or service provider, as applicable; or

(E) prohibit or penalize a depository institution (or entity performing a financial service for or in association with a depository institution) for, or otherwise discourage a depository institution (or entity performing a financial service for or in association with a depository institution) from, engaging in a financial service for a cannabis-related legitimate business or service provider.

(2) SAFE HARBOR APPLICABLE TO DE NOVO INSTITUTIONS.—Paragraph (1) shall apply to an institution applying for a depository institution charter to the same extent as such subsection applies to a depository institution.

(c) PROTECTIONS FOR ANCILLARY BUSINESSES.—For the purposes of sections 1956 and 1957 of title 18, United States Code, and all other provisions of Federal law, the proceeds from a transaction involving activities of a cannabis-related legitimate business or service provider shall not be considered proceeds from an unlawful activity solely because—

(1) the transaction involves proceeds from a cannabis-related legitimate business or service provider; or

(2) the transaction involves proceeds from—

(A) cannabis-related activities described in subsection (n)(4)(B) conducted by a cannabis-related legitimate business; or

(B) activities described in subsection (n)(13)(A) conducted by a service provider.

(d) PROTECTIONS UNDER FEDERAL LAW.—

(1) IN GENERAL.—With respect to providing a financial service to a cannabis-related legitimate business or service provider within a State, political subdivision of a State, or Indian country that allows the cultivation, production, manufacture, sale, transportation, display, dispensing, distribution, or purchase of cannabis pursuant to a law or regulation of such State, political subdivision, or Indian Tribe that has jurisdiction over the Indian country, as applicable, a depository institution, entity performing a financial service for or in association with a depository institution, or insurer that provides a financial service to a cannabis-related legitimate business or service provider, and the officers, directors, and employees of that depository institution, entity, or insurer may not be held liable pursuant to any Federal law or regulation—

(A) solely for providing such a financial service; or

(B) for further investing any income derived from such a financial service.

(2) PROTECTIONS FOR FEDERAL RESERVE BANKS AND FEDERAL HOME LOAN BANKS.—With respect to providing a service to a depository institution that provides a financial service to a cannabis-related legitimate business or service provider (where such financial service is provided within a State, political subdivision of a State, or Indian country that allows the cultivation, production, manufacture, sale, transportation, display, dispensing, distribution, or purchase of cannabis pursuant to a law or regulation of such State, political subdivision, or Indian Tribe that has jurisdiction over the Indian country, as applicable), a Federal reserve bank or Federal Home Loan Bank, and the officers, directors, and employees of the Federal reserve bank or Federal Home Loan Bank, may not be held liable pursuant to any Federal law or regulation—

(A) solely for providing such a service; or

(B) for further investing any income derived from such a service.

(3) PROTECTIONS FOR INSURERS.—With respect to engaging in the business of insurance within a State, political subdivision of a State, or Indian country that allows the cultivation, production, manufacture, sale, transportation, display, dispensing, distribution, or purchase of cannabis pursuant to a law or regulation of such State, political subdivision, or Indian Tribe that has jurisdiction over the Indian country, as applicable, an insurer that engages in the business of insurance with a cannabis-related legitimate business or service provider or who otherwise engages with a person in a transaction permissible under State law related to cannabis, and the officers, directors, and employees of that insurer may not be held liable pursuant to any Federal law or regulation—

(A) solely for engaging in the business of insurance; or

(B) for further investing any income derived from the business of insurance.

(4) FORFEITURE.—

(A) DEPOSITORY INSTITUTIONS.—A depository institution that has a legal interest in the collateral for a loan or another financial service provided to an owner, employee, or operator of a cannabis-related legitimate business or service provider, or to an owner or operator of real estate or equipment that is leased or sold to a cannabis-related legitimate business or service provider, shall not be subject to criminal, civil, or administrative forfeiture of that legal interest pursuant to any Federal law for providing such loan or other financial service.

(B) FEDERAL RESERVE BANKS AND FEDERAL HOME LOAN BANKS.—A Federal reserve bank or Federal Home Loan Bank that has a legal interest in the collateral for a loan or another financial service provided to a depository institution that provides a financial service to a cannabis-related legitimate business or service provider, or to an owner or operator of real estate or equipment that is leased or sold to a cannabis-related legitimate business or service provider, shall not be subject to criminal, civil, or administrative forfeiture of that legal interest pursuant to any Federal law for providing such loan or other financial service.

(e) RULES OF CONSTRUCTION.—

(1) NO REQUIREMENT TO PROVIDE FINANCIAL SERVICES.—Nothing in this section shall require a depository institution, entity performing a financial service for or in association with a depository institution, or insurer to provide financial services to a cannabis-related legitimate business, service provider, or any other business.

(2) GENERAL EXAMINATION, SUPERVISORY, AND ENFORCEMENT AUTHORITY.—Nothing in this section may be construed in any way as limiting or otherwise restricting the general examination, supervisory, and enforcement authority of the Federal banking regulators, provided that the basis for any supervisory or enforcement action is not the provision of financial services to a cannabis-related legitimate business or service provider.

(f) REQUIREMENTS FOR FILING SUSPICIOUS ACTIVITY REPORTS.—Section 5318(g) of title 31, United States Code, is amended by adding at the end the following:

''(5) REQUIREMENTS FOR CANNABIS-RELATED LEGITIMATE BUSINESSES.—

''(A) IN GENERAL.—With respect to a financial institution or any director, officer, employee, or agent of a financial institution that reports a suspicious transaction pursuant to this subsection, if the reason for the report relates to a cannabis-related legitimate business or service provider, the report shall comply with appropriate guidance issued by the Financial Crimes Enforcement Network. The Secretary shall ensure that the guidance is consistent with the purpose and intent of the SAFE Banking Act of 2020 and does not significantly inhibit the provision of financial services to a cannabis-related legitimate business or service provider in a State, political subdivision of a State, or Indian country that has allowed the cultivation, production, manufacture, transportation, display, dispensing, distribution, sale, or purchase of cannabis pursuant to law or regulation of such State, political subdivision, or Indian Tribe that has jurisdiction over the Indian country.

''(B) DEFINITIONS.—For purposes of this paragraph:

''(i) CANNABIS.—The term 'cannabis' has the meaning given the term 'marihuana' in section 102 of the Controlled Substances Act (21 U.S.C. 802).

''(ii) CANNABIS-RELATED LEGITIMATE BUSINESS.—The term 'cannabis-related legitimate business' has the meaning given that term in subsection (n) of the SAFE Banking Act of 2020.

''(iii) INDIAN COUNTRY.—The term 'Indian country' has the meaning given that term in section 1151 of title 18.

''(iv) INDIAN TRIBE.—The term 'Indian Tribe' has the meaning given that term in section 102 of the Federally Recognized Indian Tribe List Act of 1994 (25 U.S.C. 479a).

''(v) FINANCIAL SERVICE.—The term 'financial service' has the meaning given that term in subsection (n) of the SAFE Banking Act of 2020.

''(vi) SERVICE PROVIDER.—The term 'service provider' has the meaning given that term in subsection (n) of the SAFE Banking Act of 2020.

''(vii) STATE.—The term 'State' means each of the several States, the District of Columbia, Puerto Rico, and any territory or possession of the United States.''.

(g) GUIDANCE AND EXAMINATION PROCEDURES.—Not later than 180 days after the date of enactment of this Act, the Financial Institutions Examination Council shall develop uniform guidance and examination procedures for depository institutions that provide financial services to cannabis-related legitimate businesses and service providers.

(h) ANNUAL DIVERSITY AND INCLUSION REPORT.—The Federal banking regulators shall issue an annual report to Congress containing—

(1) information and data on the availability of access to financial services for minority-owned and women-owned cannabis-related legitimate businesses; and

(2) any regulatory or legislative recommendations for expanding access to financial services for minority-owned and women-owned cannabis-related legitimate businesses.

(i) GAO STUDY ON DIVERSITY AND INCLUSION.—

(1) STUDY.—The Comptroller General of the United States shall carry out a study on the barriers to marketplace entry, including in the licensing process, and the access to financial services for potential and existing minority-owned and women-owned cannabis-related legitimate businesses.

(2) REPORT.—The Comptroller General shall issue a report to the Congress—

(A) containing all findings and determinations made in carrying out the study required under paragraph (1); and

(B) containing any regulatory or legislative recommendations for removing barriers to marketplace entry, including in the licensing process, and expanding access to financial services for potential and existing minority-owned and women-owned cannabis-related legitimate businesses.

(j) GAO STUDY ON EFFECTIVENESS OF CERTAIN REPORTS ON FINDING CERTAIN PERSONS.—Not later than 2 years after the date of the enactment of this Act, the Comptroller General of the United States shall carry out a study on the effectiveness of reports on suspicious transactions filed pursuant to section 5318(g) of title 31, United States Code, at finding individuals or organizations suspected or known to be engaged with transnational criminal organizations and whether any such engagement exists in a State, political subdivision, or Indian Tribe that has jurisdiction over Indian country that allows the cultivation, production, manufacture, sale, transportation, display, dispensing, distribution, or purchase of cannabis. The study shall examine reports on suspicious transactions as follows:

(1) During the period of 2014 until the date of the enactment of this Act, reports relating to marijuana-related businesses.

(2) During the 1-year period after date of the enactment of this Act, reports relating to cannabis-related legitimate businesses.

(k) BANKING SERVICES FOR HEMP BUSINESSES.—

(1) FINDINGS.—The Congress finds that—

(A) the Agriculture Improvement Act of 2018 (Public Law 115–334) legalized hemp by removing it from the definition of ''marihuana'' under the Controlled Substances Act;

(B) despite the legalization of hemp, some hemp businesses (including producers, manufacturers, and retailers) continue to have difficulty gaining access to banking products and services; and

(C) businesses involved in the sale of hemp-derived cannabidiol (''CBD'') products are particularly affected, due to confusion about their legal status.

(2) FEDERAL BANKING REGULATOR HEMP BANKING GUIDANCE.—Not later than the end of the 90-day period beginning on the date of enactment of this Act, the Federal banking regulators shall jointly issue guidance to financial institutions—

(A) confirming the legality of hemp, hemp-derived CBD products, and other hemp-derived cannabinoid products, and the legality of engaging in financial services with businesses selling hemp, hemp-derived CBD products, and other hemp-derived cannabinoid products, after the enactment of the Agriculture Improvement Act of 2018; and

(B) to provide recommended best practices for financial institutions to follow when providing financial services and merchant processing services to businesses involved in the sale of hemp, hemp-derived CBD products, and other hemp-derived cannabinoid products.

(3) FINANCIAL INSTITUTION DEFINED.—In this section, the term ''financial institution'' means any person providing financial services.

(l) APPLICATION OF SAFE HARBORS TO HEMP AND CBD PRODUCTS.—

(1) IN GENERAL.—Except as provided under paragraph (2), the provisions of this section (other than subsections (f) and (j)) shall apply to hemp (including hemp-derived cannabidiol and other hemp-derived cannabinoid products) in the same manner as such provisions apply to cannabis.

(2) RULE OF APPLICATION.—In applying the provisions of this section described under paragraph (1) to hemp, the definition of ''cannabis-related legitimate business'' shall be treated as excluding any requirement to engage in activity pursuant to the law of a State or political subdivision thereof.

(3) HEMP DEFINED.—In this subsection, the term ''hemp'' has the meaning given that term under section 297A of the Agricultural Marketing Act of 1946 (7 U.S.C. 1639o).

(m) REQUIREMENTS FOR DEPOSIT ACCOUNT TERMINATION REQUESTS AND ORDERS.—

(1) TERMINATION REQUESTS OR ORDERS MUST BE VALID.—

(A) IN GENERAL.—An appropriate Federal banking agency may not formally or informally request or order a depository institution to terminate a specific customer account or group of customer accounts or to otherwise restrict or discourage a depository institution from entering into or maintaining a banking relationship with a specific customer or group of customers unless—

(i) the agency has a valid reason for such request or order; and

(ii) such reason is not based solely on reputation risk.

(B) TREATMENT OF NATIONAL SECURITY THREATS.—If an appropriate Federal banking agency believes a specific customer or group of customers is, or is acting as a conduit for, an entity which—

(i) poses a threat to national security;

(ii) is involved in terrorist financing;

(iii) is an agency of the Government of Iran, North Korea, Syria, or any country listed from time to time on the State Sponsors of Terrorism list;

(iv) is located in, or is subject to the jurisdiction of, any country specified in clause (iii); or

(v) does business with any entity described in clause (iii) or (iv), unless the appropriate Federal banking agency determines that the customer or group of customers has used due diligence to avoid doing business with any entity described in clause (iii) or (iv),

such belief shall satisfy the requirement under subparagraph (A).

(2) NOTICE REQUIREMENT.—

(A) IN GENERAL.—If an appropriate Federal banking agency formally or informally requests or orders a depository institution to terminate a specific customer account or a group of customer accounts, the agency shall—

(i) provide such request or order to the institution in writing; and

(ii) accompany such request or order with a written justification for why such termination is needed, including any specific laws or regulations the agency believes are being violated by the customer or group of customers, if any.

(B) JUSTIFICATION REQUIREMENT.—A justification described under subparagraph (A)(ii) may not be based solely on the reputation risk to the depository institution.

(3) CUSTOMER NOTICE.—

(A) NOTICE REQUIRED.—Except as provided under subparagraph (B) or as otherwise prohibited from being disclosed by law, if an appropriate Federal banking agency orders a depository institution to terminate a specific customer account or a group of customer accounts, the depository institution shall inform the specific customer or group of customers of the justification for the customer's account termination described under paragraph (2).

(B) NOTICE PROHIBITED.—

(i) NOTICE PROHIBITED IN CASES OF NATIONAL SECURITY.—If an appropriate Federal banking agency requests or orders a depository institution to terminate a specific customer account or a group of customer accounts based on a belief that the customer or customers pose a threat to national security, or are otherwise described under subsection (a)(2), neither the depository institution nor the appropriate Federal banking agency may inform the customer or customers of the justification for the customer's account termination.

(ii) NOTICE PROHIBITED IN OTHER CASES.—If an appropriate Federal banking agency determines that the notice required under subparagraph (A) may interfere with an authorized criminal investigation, neither the depository institution nor the appropriate Federal banking agency may inform the specific customer or group of customers of the justification for the customer's account termination.

(4) REPORTING REQUIREMENT.—Each appropriate Federal banking agency shall issue an annual report to the Congress stating—

(A) the aggregate number of specific customer accounts that the agency requested or ordered a depository institution to terminate during the previous year; and

(B) the legal authority on which the agency relied in making such requests and orders and the frequency on which the agency relied on each such authority.

(5) DEFINITIONS.—For purposes of this subsection:

(A) APPROPRIATE FEDERAL BANKING AGENCY.—The term ''appropriate Federal banking agency'' means—

(i) the appropriate Federal banking agency, as defined under section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813); and

(ii) the National Credit Union Administration, in the case of an insured credit union.

(B) DEPOSITORY INSTITUTION.—The term ''depository institution'' means—

(i) a depository institution, as defined under section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813); and

(ii) an insured credit union.

(n) DEFINITIONS.—In this section:

(1) BUSINESS OF INSURANCE.—The term ''business of insurance'' has the meaning given such term in section 1002 of the Dodd-Frank Wall Street Reform and Consumer Protection Act (12 U.S.C. 5481).

(2) CANNABIS.—The term ''cannabis'' has the meaning given the term ''marihuana'' in section 102 of the Controlled Substances Act (21 U.S.C. 802).

(3) CANNABIS PRODUCT.—The term ''cannabis product'' means any article which contains cannabis, including an article which is a concentrate, an edible, a tincture, a cannabis-infused product, or a topical.

(4) CANNABIS-RELATED LEGITIMATE BUSINESS.—The term ''cannabis-related legitimate business'' means a manufacturer, producer, or any person or company that—

(A) engages in any activity described in subparagraph (B) pursuant to a law established by a State or a political subdivision of a State, as determined by such State or political subdivision; and

(B) participates in any business or organized activity that involves handling cannabis or cannabis products, including cultivating, producing, manufacturing, selling, transporting, displaying, dispensing, distributing, or purchasing cannabis or cannabis products.

(5) DEPOSITORY INSTITUTION.—The term ''depository institution'' means—

(A) a depository institution as defined in section 3(c) of the Federal Deposit Insurance Act (12 U.S.C. 1813(c));

(B) a Federal credit union as defined in section 101 of the Federal Credit Union Act (12 U.S.C. 1752); or

(C) a State credit union as defined in section 101 of the Federal Credit Union Act (12 U.S.C. 1752).

(6) FEDERAL BANKING REGULATOR.—The term ''Federal banking regulator'' means each of the Board of Governors of the Federal Reserve System, the Bureau of Consumer Financial Protection, the Federal Deposit Insurance Corporation, the Federal Housing Finance Agency, the Financial Crimes Enforcement Network, the Office of Foreign Asset Control, the Office of the Comptroller of the Currency, the National Credit Union Administration, the Department of the Treasury, or any Federal agency or department that regulates banking or financial services, as determined by the Secretary of the Treasury.

(7) FINANCIAL SERVICE.—The term ''financial service''—

(A) means a financial product or service, as defined in section 1002 of the Dodd-Frank Wall Street Reform and Consumer Protection Act (12 U.S.C. 5481);

(B) includes the business of insurance;

(C) includes, whether performed directly or indirectly, the authorizing, processing, clearing, settling, billing, transferring for deposit, transmitting, delivering, instructing to be delivered, reconciling, collecting, or otherwise effectuating or facilitating of payments or funds, where such payments or funds are made or transferred by any means, including by the use of credit cards, debit cards, other payment cards, or other access devices, accounts, original or substitute checks, or electronic funds transfers;

(D) includes acting as a money transmitting business which directly or indirectly makes use of a depository institution in connection with effectuating or facilitating a payment for a cannabis-related legitimate business or service provider in compliance with section 5330 of title 31, United States Code, and any applicable State law; and

(E) includes acting as an armored car service for processing and depositing with a depository institution or a Federal reserve bank with respect to any monetary instruments (as defined under section 1956(c)(5) of title 18, United States Code.

(8) INDIAN COUNTRY.—The term ''Indian country'' has the meaning given that term in section 1151 of title 18.

(9) INDIAN TRIBE.—The term ''Indian Tribe'' has the meaning given that term in section 102 of the Federally Recognized Indian Tribe List Act of 1994 (25 U.S.C. 479a).

(10) INSURER.—The term ''insurer'' has the meaning given that term under section 313(r) of title 31, United States Code.

(11) MANUFACTURER.—The term ''manufacturer'' means a person who manufactures, compounds, converts, processes, prepares, or packages cannabis or cannabis products.

(12) PRODUCER.—The term ''producer'' means a person who plants, cultivates, harvests, or in any way facilitates the natural growth of cannabis.

(13) SERVICE PROVIDER.—The term ''service provider''—

(A) means a business, organization, or other person that—

(i) sells goods or services to a cannabis-related legitimate business; or

(ii) provides any business services, including the sale or lease of real or any other property, legal or other licensed services, or any other ancillary service, relating to cannabis; and

(B) does not include a business, organization, or other person that participates in any business or organized activity that involves handling cannabis or cannabis products, including cultivating, producing, manufacturing, selling, transporting, displaying, dispensing, distributing, or purchasing cannabis or cannabis products.

(14) STATE.—The term ''State'' means each of the several States, the District of Columbia, Puerto Rico, and any territory or possession of the United States.

(o) DISCRETIONARY SURPLUS FUNDS.—Section 7(a)(3)(A) of the Federal Reserve Act (12 U.S.C. 289(a)(3)(A)) is amended by striking ''$6,825,000,000'' and inserting ''$6,821,000,000''.

SEC. 607. SUPPORT FOR RESTAURANTS.

(a) SHORT TITLE.—This section may be cited as the ''Real Economic Support That Acknowledges Unique Restaurant Assistance Needed To Survive Act of 2020'' or the ''RESTAURANTS Act of 2020''.

(b) DEFINITIONS.—In this section:

(1) COVERED PERIOD.—The term ''covered period'' means the period beginning on February 15, 2020, and ending on June 30, 2021.

(2) ELIGIBLE ENTITY.—The term ''eligible entity''—

(A) means a restaurant, food stand, food truck, food cart, caterer, saloon, inn, tavern, bar, lounge, brewpub, tasting room, taproom, licensed facility, or premise of a beverage alcohol producer where the public may taste, sample or purchase products, or other similar place of business—

(i) in which the public or patrons assemble for the primary purpose of being served food or drink; and

(ii) that, as of March 13, 2020, is not part of a chain or franchise with more than 20 locations doing business under the same name, regardless of the type of ownership of the locations;

(B) means an entity that is located in an airport terminal and that, as of March 13, 2020, sold any food and beverage, if, as of March 13, 2020, the entity is not part of a chain or franchise with more than 20 locations doing business under the same name, regardless of the type of ownership of the locations; and

(C) does not include an entity described in subparagraph (A) or (B) that is—

(i) publicly-traded, including a subsidiary or affiliate thereof; or

(ii) part of a State or local government facility, not including an airport.

(3) FUND.—The term ''Fund'' means the Restaurant Revitalization Fund established under section subsection (c).

(4) IMMEDIATE FAMILY MEMBER.—With respect to an individual, the term ''immediate family member'' means any parent or child of the individual.

(5) PAYROLL COSTS.—The term ''payroll costs'' has the meaning given the term in section 7(a)(36)(A) of the Small Business Act (15 U.S.C. 636(a)(36)(A)).

(6) SECRETARY.—The term ''Secretary'' means the Secretary of the Treasury.

(c) ESTABLISHMENT OF A RESTAURANT REVITALIZATION FUND.—

(1) IN GENERAL.—There is established in the Treasury of the United States a fund to be known as the Restaurant Revitalization Fund.

(2) APPROPRIATIONS.—

(A) IN GENERAL.—There is appropriated to the Fund, out of amounts in the Treasury not otherwise appropriated, $120,000,000,000, to remain available until June 30, 2021.

(B) REMAINDER TO TREASURY.—Any amounts remaining in the Fund after June 30, 2021 shall be deposited in the general fund of the Treasury.

(3) USE OF FUNDS.—The Secretary shall use amounts in the Fund to make grants described in section subsection (d).

(d) RESTAURANT REVITALIZATION GRANTS.—

(1) IN GENERAL.—The Secretary shall award grants to eligible entities in the order in which the application is received by the Secretary.

(2) REGISTRATION.—The Secretary shall register each grant awarded under this subsection using the employer identification number of the eligible entity.

(3) APPLICATION.—

(A) IN GENERAL.—An eligible entity desiring a grant under this subsection shall submit to the Secretary an application at such time, in such manner, and containing such information as the Secretary may require.

(B) CERTIFICATION.—An eligible entity applying for a grant under this subsection shall make a good faith certification—

(i) that the uncertainty of current economic conditions makes necessary the grant request to support the ongoing operations of the eligible entity;

(ii) acknowledging that funds will be used to retain workers, for payroll costs, and for other allowable expenses described in paragraph (5) and not for any other purposes;

(iii) that the eligible entity does not have an application pending for a grant under subsection (a)(36) or (b)(2) of section 7 of the Small Business Act (15 U.S.C. 636) for the same purpose and that is duplicative of amounts applied for or received under this section; and

(iv) during the covered period, that the eligible entity has not received amounts under subsection (a)(36) or (b)(2) of section 7 of the Small Business Act (15 U.S.C. 636) for the same purpose and that is duplicative of amounts applied for or received under this section.

(C) HOLD HARMLESS.—An eligible entity applying for a grant under this subsection shall not be ineligible for a grant if the eligible entity is able to document—

(i) an inability to rehire individuals who were employees of the eligible entity on February 15, 2020; and

(ii) an inability to hire similarly qualified employees for unfilled positions on or before June 30, 2021.

(4) PRIORITY IN AWARDING GRANTS.—During the initial 14-day period in which the Secretary awards grants under this subsection, the Secretary shall—

(A) prioritize awarding grants to marginalized and underrepresented communities, with a focus on women- and minority-owned, and women- and minority-operated eligible entities; and

(B) only award grants to eligible entities with annual revenues of less than $1,500,000.

(5) GRANT AMOUNT.—

(A) DETERMINATION OF GRANT AMOUNT.—

(i) IN GENERAL.—The amount of a grant made to an eligible entity under this subsection shall be equal to—

(I) the sum of the revenues or estimated revenues of the eligible entity during each calendar quarter in 2020 subtracted from the sum of such revenues during the same calendar quarter in 2019, if such sum is greater than zero; and

(II) if applicable, the additional amount required to pay for sick leave described under clause (ii).

(ii) SICK LEAVE.—An eligible entity applying for a grant under this section—

(I) may request an additional grant amount based on the amount required to provide 10 days of paid sick leave to each employee of the entity to—

(aa) care for themselves or an immediate family member who is ill; or

(bb) provide care for children when schools or childcare providers are shut down due to COVID–19; and

(II) shall, if provided a grant under this section that includes an additional amount for sick leave described under subclause (I), provide each employee of the entity with such 10 days of paid sick leave.

(iii) VERIFICATION.—An eligible entity shall submit to the Secretary such revenue verification documentation as the Secretary may require to determine the amount of a grant under clause (i).

(iv) REPAYMENT.—Any amount of a grant made under this subsection to an eligible entity based on estimated revenues in a calendar quarter in 2020 that is greater than the actual revenues of the eligible entity during that calendar quarter shall be converted to a loan that has—

(I) an interest rate of 1 percent; and

(II) a maturity date of 10 years beginning on January 1, 2021.

(B) REDUCTION BASED ON PPP FORGIVENESS OR EIDL EMERGENCY GRANT.—If an eligible entity has, at the time of application for a grant under this subsection, received an advance under section 1110(e) of the CARES Act (15 U.S.C. 9009(e)) or loan forgiveness under section 1106 of such Act (15 U.S.C. 9005) related to expenses incurred during the covered period, the maximum amount of a grant awarded to the eligible entity under this subsection shall be reduced by the amount of funds expended by or forgiven for the eligible entity for those expenses using amounts received under such section 1110(e) or forgiven under such section 1106.

(C) LIMITATION.—An eligible entity may not receive more than 1 grant under this subsection.

(6) USE OF FUNDS.—

(A) IN GENERAL.—During the covered period, an eligible entity that receives a grant under this subsection may use the grant funds for—

(i) payroll costs;

(ii) payments of principal or interest on any mortgage obligation;

(iii) rent payments, including rent under a lease agreement;

(iv) utilities;

(v) maintenance, including construction to accommodate outdoor seating;

(vi) supplies, including protective equipment and cleaning materials;

(vii) food, beverage, and operational expenses that are within the scope of the normal business practice of the eligible entity before the covered period;

(viii) debt obligations to suppliers that were incurred before the covered period;

(ix) costs associated with providing employees with 10 days of sick leave, as described under paragraph (5)(A)(ii); and

(x) any other expenses that the Secretary determines to be essential to maintaining the eligible entity.

(B) RETURNING FUNDS.—If an eligible entity that receives a grant under this subsection permanently ceases operations on or before June 30, 2021, the eligible entity shall return to the Treasury any funds that the eligible entity did not use for the allowable expenses under subparagraph (A).

(C) CONVERSION TO LOAN.—Any grant amounts received by an eligible entity under this subsection that are unused after June 30, 2021, shall be immediately converted to a loan with—

(i) an interest rate of 1 percent; and

(ii) a maturity date of 10 years.

(7) REGULATIONS.—Not later than 15 days after the date of enactment of this Act, the Secretary shall issue regulations to carry out this subsection without regard to the notice and comment requirements under section 553 of title 5, United States Code.

(8) APPROPRIATIONS FOR STAFFING AND ADMINISTRATIVE EXPENSES.—

(A) IN GENERAL.—Of the amounts provided by paragraph (2)(A), $300,000,000 shall be for staffing and administrative expenses related to administering grants awarded under this subsection.

(B) SET ASIDE.—Of amounts provided under subparagraph (A), $60,000,000 shall be allocated for outreach to traditionally marginalized and underrepresented communities, with a focus on women, veteran, and minority-owned and operated eligible entities, including the creation of a

resource center targeted toward these communities.

(e) LIMITATION WITH RESPECT TO PRIVATE FUNDS.—

(1) IN GENERAL.—No amounts received under this section may be directly or indirectly used to pay distributions, dividends, consulting fees, advisory fees, interest payments, or any other fees, expenses, or charges to—

(A) a person registered as an investment adviser under the Investment Advisers Act of 1940 who advises a private fund;

(B) any affiliate of such adviser;

(C) any executive of such adviser or affiliate; or

(D) any employee, consultant, or other person with a contractual relationship to provide services for or on behalf of such adviser or affiliate.

(2) ANTI-EVASION.—No company in which a private fund holds an ownership interest that has, directly or indirectly, received amounts under this title may pay any distributions, dividends, consulting fees, advisory fees, interest payments, or any other fees, expenses, or charges in excess of 10 percent of such company's net operating profits for the calendar year ending December 31, 2020 (and for each successive year until the covered period has ended and all loans created under this section have been repaid) to—

(A) a person registered as an investment adviser under the Investment Advisers Act of 1940 who advises a private fund;

(B) any affiliate of such adviser;

(C) any executive of such adviser or affiliate; or

(D) any employee, consultant, or other person with a contractual relationship to provide services for or on behalf of such adviser or affiliate.

(3) DEFINITIONS.—In this section:

(A) AFFILIATE.—The term ''affiliate'' means, with respect to a person, any other person directly or indirectly controlling, controlled by, or under direct or indirect common control with such person. A person shall be deemed to control another person if such person possesses, directly or indirectly, the power to direct or cause the direction of the management and policies of such other person, whether through the ownership of voting securities, by contract, or otherwise.

(B) EXECUTIVE.—The term ''executive'' means—

(i) any individual who serves an executive or director of a person, including the principal executive officer, principal financial officer, comptroller or principal accounting officer; and

(ii) an executive officer, as defined under section 230.405 of title 17, Code of Federal Regulations.

(C) PRIVATE FIND.—The term ''private fund'' means an issuer that would be an investment company, as defined in the Investment Company Act of 1940 (15 U.S.C. 80a-1 et seq.), but for section 3(c)(1) or 3(c)(7) of that Act.

(f) DEMOGRAPHIC DATA AND TRANSPARENCY.—

(1) DEMOGRAPHIC DATA.—In establishing an application process for carrying out this section, the Secretary shall include a voluntary request for certain demographic data with respect to the majority ownership of eligible entities, including race, ethnicity, gender, and veteran-status.

(2) MONTHLY REPORTS.—Not later than the end of the first month in which initial grants are disbursed under this section, and every month thereafter until the date on which the last grant has been disbursed under this section, the Secretary shall submit to the Committee on Financial Services of the House of Representatives and the Committee on Banking, Housing, and Urban Affairs of the Senate a report providing the number and dollar amount of grants approved for or disbursed to all eligible entities, including a list of eligible entities with the grant amount they received, and a breakout of the number and dollar of grants by State, congressional district, demographics (including race, ethnicity, gender, and veteran-status), and business type.

(3) QUARTERLY REPORTS.— Beginning on January 1, 2021, and every subsequent quarter until the last grant that was converted to a loan under this section is repaid, the Secretary shall submit to the Committee on Financial Services of the House of Representatives and the Committee on Banking, Housing, and Urban Affairs of the Senate a report on the number and dollar amount of grants approved for or disbursed to all eligible entities, including a breakout of grants by State, congressional district, demographics (including race, ethnicity, gender, and veteran-status), and business type, as well as the number and dollar amount of grants that converted to loans under this section, including a breakout of outstanding loans by State, congressional district, demographics (including race, ethnicity, gender, and veteran-status), and business type.

(4) DATA TRANSPARENCY.—Not later than 30 days after the date of enactment of this Act, the Secretary shall make available on a publicly available website in a standardized and downloadable format, and update on a monthly basis, any data contained in a report submitted under this section.

SEC. 608. CODIFICATION OF THE MINORITY BUSINESS DEVELOPMENT ADMINISTRATION.

(a) DEFINITIONS.—In this section:

(1) ADMINISTRATION.—The term ''Administration'' means the Minority Business Development Administration.

(2) ADMINISTRATOR.—The term ''Administrator'' means the Administrator of the Minority Business Development Administration.

(3) COVERED ENTITY.—The term ''covered entity'' means a private nonprofit organization that—

(A) is described in section 501(c)(3) of the Internal Revenue Code of 1986 and exempt from tax under section 501(a) of such Code;

(B) can demonstrate to the Administration that—

(i) the primary mission of the organization is to provide services to minority business enterprises, whether through education, making grants, or other similar activities; and

(ii) the organization is unable to pay financial obligations incurred by the organization, including payroll obligations; and

(C) due to the effects of COVID–19, is unable to engage in the same level of fundraising in the year in which this Act is enacted, as compared with the year preceding the year in which this Act is enacted, including through events or the collection of fees.

(4) MINORITY.—The term ''minority'' has the meaning given the term in section 308(b) of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 and includes any indigenous person in the United States or the territories of the United States.

(5) MINORITY BUSINESS DEVELOPMENT CENTER.—The term ''minority business development center'' means a Business Center of the Administration, including its Specialty Center Program.

(6) MINORITY BUSINESS ENTERPRISE.—The term ''minority business enterprise'' means a for-profit business enterprise—

(A) that is not less than 51 percent-owned by 1 or more minority individuals; and

(B) the management and daily business operations of which are controlled by 1 or more minority individuals.

(b) MINORITY BUSINESS DEVELOPMENT ADMINISTRATION.—

(1) ESTABLISHMENT.—

(A) IN GENERAL.—The Minority Business Development Administration is hereby established.

(B) TRANSFER OF FUNCTIONS.—All functions that, immediately before the date of enactment of this Act, were functions of the Minority Business Development Agency of the Department of Commerce shall be functions of the Administration.

(C) TRANSFER OF ASSETS.—So much of the personnel, property, records, and unexpended balances of appropriations, allocations, and other funds employed, used, held, available, or to be made available in connection with a function transferred under subparagraph (B) shall be available to the Administration for use in connection with the functions transferred.

(D) REFERENCES.—Any reference in any other Federal law, Executive order, rule, regulation, or delegation of authority, or any document of or pertaining to the Minority Business Development Agency of the Department of Commerce is deemed to refer to the Administration.

(2) ADMINISTRATOR.—

(A) APPOINTMENT AND DUTIES.—The Administration shall be headed by an Administrator, who shall be—

(i) appointed by the President, by and with the advice and consent of the Senate; and

(ii) except as otherwise expressly provided, responsible for the administration of this Act.

(B) COMPENSATION.—The Administrator shall be compensated at an annual rate of basic pay prescribed for level IV of the Executive Schedule under section 5315 of title 5, United States Code.

(C) TRANSITION PERIOD.—The individual serving as the Director of the Minority Business Development Agency on the day before the date of enactment of this Act shall serve as the Administrator of the Administration until such time as the first Administrator is confirmed by the Senate pursuant to subparagraph (A).

(3) REPORT TO CONGRESS.—Not later than 120 days after the date of enactment of this Act, the Administrator shall submit to Congress a report that describes the organizational structure of the Administration.

(4) ADMINISTRATIVE POWERS AND OTHER POWERS OF THE ADMINISTRATION; MISCELLANEOUS PROVISIONS.—

(A) IN GENERAL.—In carrying out the duties and the responsibilities of the Administration, the Administrator may—

(i) hold hearings, sit and act, and take testimony as the Administrator may determine to be necessary or appropriate;

(ii) acquire, in any lawful manner, any property that the Administrator may determine to be necessary or appropriate;

(iii) make advance payments under grants, contracts, and cooperative agreements awarded by the Administration;

(iv) enter into agreements with other Federal agencies;

(v) coordinate with the heads of the Offices of Small and Disadvantaged Business Utilization of Federal agencies;

(vi) require a coordinated review of all training and technical assistance activities that are proposed to be carried out by Federal agencies in direct support of the development of minority business enterprises to—

(I) assure consistency with the purposes of this Act; and

(II) avoid duplication of existing efforts; and

(vii) prescribe such rules, regulations, and procedures as the Administration may determine to be necessary or appropriate.

(B) EMPLOYMENT OF CERTAIN EXPERTS AND CONSULTANTS.—

(i) IN GENERAL.—The Administrator may employ experts and consultants or organizations that are composed of experts or consultants, as authorized under section 3109 of title 5, United States Code.

(ii) RENEWAL OF CONTRACTS.—The Administrator may annually renew a contract for employment of an individual employed under clause (i).

(C) DONATION OF PROPERTY.—

(i) IN GENERAL.—Subject to clause (ii), the Administrator may, without cost (except for costs of care and handling), donate for use by any public sector entity, or by any recipient nonprofit organization, for the purpose of the development of minority business enterprises, any real or tangible personal property acquired by the Administration.

(ii) TERMS, CONDITIONS, RESERVATIONS, AND RESTRICTIONS.—The Administrator may impose

reasonable terms, conditions, reservations, and restrictions upon the use of any property donated under clause (i).

(c) EMERGENCY GRANTS TO NON-PROFITS THAT SUPPORT MINORITY BUSINESS ENTERPRISES.—

(1) ESTABLISHMENT.—Not later than 15 days after the date of enactment of this Act, the Administration shall establish a grant program for covered entities—

(A) in order to help those covered entities continue the necessary work of supporting minority business enterprises; and

(B) under which the Administration shall make grants to covered entities as expeditiously as possible.

(2) APPLICATION.—

(A) IN GENERAL.—A covered entity desiring a grant under this subsection shall submit to the Administration an application at such time, in such manner, and containing such information as the Administration may require.

(B) PRIORITY.—The Administration shall—

(i) establish selection criteria to ensure that, if the amounts made available to carry out this subsection are not sufficient to make a grant under this subsection to every covered entity that submits an application under subparagraph (A), the covered entities that are the most severely affected by the effects of COVID–19 receive priority with respect to those grants; and

(ii) give priority with respect to the grants made under this subsection to a covered entity that proposes to use the grant funds for—

(I) providing paid sick leave to employees of the covered entity who are unable to work due to the direct effects of COVID–19;

(II) continuing to make payroll payments in order to retain employees of the covered entity during an economic disruption with respect to COVID–19;

(III) making rent or mortgage payments with respect to obligations of the covered entity; or

(IV) repaying non-Federal obligations that the covered entity cannot satisfy because of revenue losses that are attributable to the effects of COVID–19.

(3) AMOUNT OF GRANT.—

(A) IN GENERAL.—A grant made under this subsection shall be in an amount that is not more than $500,000.

(B) SINGLE AWARD.—No covered entity may receive, or directly benefit from, more than 1 grant made under this subsection.

(4) USE OF FUNDS.—A covered entity that receives a grant under this subsection may use the grant funds to address the effects of COVID–19 on the covered entity, including by making payroll payments, making a transition to the provision of online services, and addressing issues raised by an inability to raise funds.

(5) PROCEDURES.—The Administration shall establish procedures to discourage and prevent waste, fraud, and abuse by applicants for, and recipients of, grants made under this subsection.

(6) NON-DUPLICATION.—The Administration shall ensure that covered entities do not receive grants under both this subsection and section 1108 of the CARES Act.

(7) GAO AUDIT.—Not later than 180 days after the date on which the Administration begins making grants under this subsection, the Comptroller General of the United States shall—

(A) conduct an audit of grants made under this subsection, which shall seek to identify any discrepancies or irregularities with respect to the grants; and

(B) submit to Congress a report regarding the audit conducted under subparagraph (A).

(8) UPDATES TO CONGRESS.—Not later than 30 days after the date of enactment of this Act, and once every 30 days thereafter until the date described in paragraph (11), the Administrator shall submit to Congress a report that contains—

(A) the number of grants made under this subsection during the period covered by the report; and

(B) with respect to the grants described in subparagraph (A), the geographic distribution of those grants by State and county.

(9) TERMINATION.—The authority to make grants under this subsection shall terminate on September 30, 2021.

(d) OUTREACH TO BUSINESS CENTERS.—

(1) IN GENERAL.—Not later than 10 days after the date of enactment of this Act, the Administration shall conduct outreach to the business center network of the Administration to provide guidance to those centers regarding other Federal programs that are available to provide support to minority business enterprises, including programs at the Department of the Treasury, the Small Business Administration, and the Economic Development Administration of the Department of Commerce.

(2) OUTREACH TO NATIVE COMMUNITIES.—

(A) IN GENERAL.—In carrying out this subsection, the Administration shall ensure that outreach is conducted in American Indian, Alaska Native, and Native Hawaiian communities.

(B) DIRECT OUTREACH TO CERTAIN MINORITY BUSINESS ENTERPRISES.—If the Administrator determines that a particular American Indian, Alaska Native, or Native Hawaiian community does not receive sufficient grant amounts under subsection (c) or section 1108 of the CARES Act, the Administrator shall carry out additional outreach directly to minority business enterprises located in that community to provide guidance regarding Federal programs that are available to provide support to minority business enterprises.

(3) USE OF APPROPRIATED FUNDS.—If, after carrying out this subsection, there are remaining funds made available to carry out this subsection from the amount appropriated under subsection (e), the Administration may use those remaining funds to carry out other responsibilities of the Administration under subsection (c).

(e) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Administration, in additional to any other amounts so authorized, for the fiscal year ending September 30, 2020, to remain available until September 30, 2021, $60,000,000, of which—

(1) $10,000,000 are authorized for carrying out subsection (c);

(2) $5,000,000 are authorized for carrying out subsection (d); and

(3) $10,000,000 are authorized to be allocated to the White House Initiative on Asian Americans and Pacific Islanders.

(f) AUDITS.—

(1) RECORDKEEPING REQUIREMENT.—Each recipient of assistance under this section shall keep such records as the Administrator shall prescribe, including records that fully disclose, with respect to the assistance received by the recipient under this section—

(A) the amount and nature of that assistance;

(B) the disposition by the recipient of the proceeds of that assistance;

(C) the total cost of the undertaking for which the assistance is given or used;

(D) the amount and nature of the portion of the cost of the undertaking described in subparagraph (C) that is supplied by a source other than the Administration; and

(E) any other records that will facilitate an effective audit of the assistance.

(2) ACCESS BY GOVERNMENT OFFICIALS.—The Administrator and the Comptroller General of the United States shall have access, for the purpose of audit, investigation, and examination, to any book, document, paper, record, or other material of a recipient of assistance.

(g) REVIEW AND REPORT BY COMPTROLLER GENERAL.—Not later than 4 years after the date of enactment of this Act, the Comptroller General of the United States shall—

(1) conduct a thorough review of the programs carried out under this section; and

(2) submit to Congress a detailed report of the findings of the Comptroller General under the review carried out under paragraph (1), which shall include—

(A) an evaluation of the effectiveness of the programs in achieving the purposes of this section;

(B) a description of any failure by any recipient of assistance under this section to comply with the requirements under this section; and

(C) recommendations for any legislative or administrative action that should be taken to improve the achievement of the purposes of this section.

(h) ANNUAL REPORTS; RECOMMENDATIONS.—

(1) ANNUAL REPORT.—Not later than 90 days after the last day of each fiscal year, the Administrator shall submit to Congress, and publish on the website of the Administration, a report of each activity of the Administration carried out under this section during the fiscal year preceding the date on which the report is submitted.

(2) RECOMMENDATIONS.—The Administrator shall periodically submit to Congress and the President recommendations for legislation or other actions that the Administrator determines to be necessary or appropriate to promote the purposes of this section.

(i) EXECUTIVE ORDER 11625.—The powers and duties of the Administration shall be determined—

(1) in accordance with this section and the requirements of this section; and

(2) without regard to Executive Order 11625 (36 Fed. Reg. 19967; relating to prescribing additional arrangements for developing and coordinating a national program for minority business enterprise).

(j) AMENDMENT TO THE FEDERAL ACQUISITION STREAMLINING ACT OF 1994.—Section 7104(c) of the Federal Acquisition Streamlining Act of 1994 (15 U.S.C. 644a(c)) is amended by striking paragraph (2) and inserting the following:

''(2) The Administrator of the Minority Business Development Administration.''.

SEC. 609. EMERGENCY GRANTS TO MINORITY BUSINESS ENTERPRISES.

(a) GRANTS DURING THE COVID–19 PANDEMIC.—The Minority Business Development Agency shall provide grants to address the needs of minority business enterprises impacted by the COVID–19 pandemic.

(b) RECIPIENTS.—The Agency may make grants through non-profit organizations or directly to minority business enterprises.

(c) PRIORITY AREAS.—In providing grants pursuant to subsection (a), the Agency shall prioritize providing assistance to—

(1) minority business enterprises that have been unable to obtain loans from the Small Business Administration's Paycheck Protection Program and other programs established under the CARES Act;

(2) minority business enterprises located in low-income areas or areas that have been significantly impacted by the COVID–19 pandemic; and

(3) minority business enterprises that do not have access to capital and whose business is substantially impaired because of the impact of stay-at-home orders implemented by State and local governments due to the COVID–19 pandemic.

(d) TERMS AND CONDITIONS.—

(1) IN GENERAL.—The Secretary of Commerce, acting through the Minority Business Development Agency, shall set such terms and conditions for the grants made under this section as the Secretary determines appropriate.

(2) NOTIFICATION.—No later than 15 days prior to making any grants under this section, the Secretary, acting through the Agency, shall provide the terms and conditions for grants made under this section to the Committee on Financial Services of the House of Representatives and the Committee on Banking, Housing, and Urban Affairs of the Senate.

(e) GAO OVERSIGHT.—Not later than six months after the date of enactment of this Act, the Comptroller General of the United States shall provide a report on the effectiveness of the grants made under this section, including the manner in which the Agency implemented the priorities described in subsection (c).

(f) DEFINITIONS.—In this section:

(1) MINORITY.—The term ''minority'' has the meaning given the term in section 308(b) of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 and includes any indigenous person in the United States or the territories of the United States.

(2) MINORITY BUSINESS ENTERPRISE.—The term ''minority business enterprise'' means a for-profit business enterprise—

(A) that is not less than 51 percent-owned by 1 or more minority individuals; and

(B) the management and daily business operations of which are controlled by 1 or more minority individuals.

(g) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated $3,000,000,000 to carry out this section. Such funds are authorized to be appropriated to remain available until expended.

TITLE VII—PROMOTING AND ADVANCING COMMUNITIES OF COLOR THROUGH INCLUSIVE LENDING

SEC. 701. SHORT TITLE.

This title may be cited as the ''Promoting and Advancing Communities of Color through Inclusive Lending Act''.

SEC. 702. FINDINGS; SENSE OF CONGRESS.

(a) FINDINGS.—The Congress finds the following:

(1) The Coronavirus 2019 (COVID–19) pandemic and the resulting recession have led to more than 4.8 million cases and at least 157,000 deaths in the United States as of August 6, 2020; a 7.6 percent increase in the unemployment rate from February to June, or approximately 12 million more persons who have lost their job; and an estimated 36 percent of renters and 4.1 million homeowners who are struggling to pay their rent and mortgages.

(2) According to the Centers for Disease Control, ''long-standing systemic health and social inequities have put some members of racial and ethnic minority groups at increased risk of getting COVID–19 or experiencing severe illness''.

(3) Minority-owned businesses are also facing more difficult economic circumstances than others as a result of the COVID–19 pandemic. In April 2020, the Federal Reserve Bank of New York reported that minority- and women-owned businesses were not only more likely to show signs of limited financial health, but also twice as likely to be classified as ''at risk'' or ''distressed'' than their non-minority counterparts.

(4) During the Coronavirus 2019 (COVID–19) pandemic, community development financial institutions (CDFIs) and minority depository institutions (MDIs) have delivered needed capital and relief to underserved communities, many of which have borne a disproportionate impact of the COVID–19 pandemic. Through August 8, 2020, CDFIs and MDIs have provided more than $16.4 billion in Paycheck Protection Program (PPP) loans to small businesses with a smaller median loan size of about $74,000 compared to the overall program median loan size of $101,000.

(5) In addition to establishing relief funds and services for local businesses and individuals experiencing loss of income, CDFIs and MDIs have provided mortgage forbearances, loan deferments, and modifications to help address the needs of their borrowers. CDFIs and MDIs are reaching underserved communities and minority-owned businesses at a critical time.

(6) The Community Development Financial Institutions Fund (CDFI Fund) is an agency of the U.S. Department of the Treasury and was established by the Riegle Community Development and Regulatory Improvement Act of 1994. The mission of the CDFI Fund is ''to expand economic opportunity for underserved people and communities by supporting the growth and capacity of a national network of community development lenders, investors, and financial service providers''. As of September 15, 2020, there were 1,137 certified CDFIs in all 50 States, District of Columbia, Guam, and Puerto Rico.

(7) Following the 2008 financial crisis and the disproportionate impact the Great Recession had on minority communities, the number of MDI banks fell more than 30 percent over the following decade, to 143 as of the second quarter of 2020. Meanwhile, MDI credit unions have seen similar declines, with more than one-third of such institutions disappearing since 2013.

(b) SENSE OF CONGRESS.—The following is the sense of the Congress:

(1) The Department of the Treasury, Board of Governors of the Federal Reserve System, Small Business Administration (SBA), Office of the Comptroller of the Currency, Federal Deposit Insurance Corporation, National Credit Union Administration, and other Federal agencies should take steps to support, engage with, and utilize minority depository institutions and community development financial institutions in the near term, especially as they carry out programs to respond to the COVID–19 pandemic, and the long term.

(2) The Board of Governors of the Federal Reserve System should, consistent with its mandates, work to increase lending by minority depository institutions and community development financial institutions to underserved communities, and when appropriate, should work with the Department of the Treasury to increase lending by minority depository institutions and community development financial institutions to underserved communities.

(3) The Department of the Treasury and prudential regulators should establish a strategic plan identifying concrete steps that they can take to support existing minority depository institutions, as well as the formation of new minority depository institutions consistent with the goals established in the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 (FIRREA) to preserve and promote minority depository institutions.

(4) Congress should increase funding and make other enhancements, including those provided by this legislation, to enhance the effectiveness of the CDFI Fund, especially reforms to support minority-owned and minority led CDFIs in times of crisis and beyond.

(5) Congress should conduct robust and ongoing oversight of the Department of the Treasury, CDFI Fund, Federal prudential regulators, SBA, and other Federal agencies to ensure they fulfill their obligations under the law as well as implement this title and other laws in a manner that supports and fully utilizes minority depository institutions and community development financial intuitions, as appropriate.

(6) The investments made by the Secretary of the Treasury under this title and the amendments made by this title should be designed to maximize the benefit to low- and moderate-income and minority communities and contemplate losses to capital of the Treasury.

SEC. 703. PURPOSE.

The purpose of this title is to—

(1) establish programs to revitalize and provide long-term financial products and service availability for, and provide investments in, low- and moderate-income and minority communities;

(2) respond to the unprecedented loss of Black-owned businesses and unemployment; and

(3) otherwise enhance the stability, safety and soundness of community financial institutions that support low- and moderate-income and minority communities.

SEC. 704. CONSIDERATIONS; REQUIREMENTS FOR CREDITORS.

(a) IN GENERAL.—In exercising the authorities under this title and the amendments made by this title, the Secretary of the Treasury shall take into consideration—

(1) increasing the availability of affordable credit for consumers, small businesses, and nonprofit organizations, including for projects supporting affordable housing, community-serving real estate, and other projects, that provide direct benefits to low- and moderate-income communities, low-income and underserved individuals, and minorities;

(2) providing funding to minority-owned or minority-led eligible institutions and other eligible institutions that have a strong track record of serving minority small businesses;

(3) protecting and increasing jobs in the United States;

(4) increasing the opportunity for small business, affordable housing and community development in geographic areas and demographic segments with poverty and high unemployment rates that exceed the average in the United States;

(5) ensuring that all low- and moderate-income community financial institutions may apply to participate in the programs established under this title and the amendments made by this title, without discrimination based on geography;

(6) providing transparency with respect to use of funds provided under this title and the amendments made by this title;

(7) promoting and engaging in financial education to would-be borrowers; and

(8) providing funding to eligible institutions that serve consumers, small businesses, and nonprofit organizations to support affordable housing, community-serving real estate, and other projects that provide direct benefits to low- and moderate-income communities, low-income individuals, and minorities directly affected by the COVID–19 pandemic.

(b) REQUIREMENT FOR CREDITORS.—Any creditor participating in a program established under this title or the amendments made by this title shall fully comply with all applicable statutory and regulatory requirements relating to fair lending.

SEC. 705. NEIGHBORHOOD CAPITAL INVESTMENT PROGRAM.

Title IV of the CARES Act (Public Law 116–136) is amended—

(1) in section 4002 (15 U.S.C. 9041)—

(A) by redesignating paragraphs (7) through (10) as paragraphs (9) through (12), respectively; and

(B) by inserting after paragraph (6) the following:

''(7) LOW- AND MODERATE-INCOME COMMUNITY FINANCIAL INSTITUTION.—The term 'low- and moderate-income community financial institution' means any financial institution that is—

''(A) a community development financial institution, as defined in section 103 of the Riegle Community Development and Regulatory Improvement Act of 1994 (12 U.S.C. 4702); or

''(B) a minority depository institution.

''(8) MINORITY DEPOSITORY INSTITUTION.—The term 'minority depository institution'—

''(A) has the meaning given that term under section 308 of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 (12 U.S.C. 1463 note);

''(B) means an entity considered to be a minority depository institution by—

''(i) the appropriate Federal banking agency (as such term is defined under section 3 of the Federal Deposit Insurance Act); or

''(ii) the National Credit Union Administration, in the case of an insured credit union; and

''(C) means an entity listed in the Federal Deposit Insurance Corporation's Minority Depository Institutions List published for the Second Quarter 2020.'';

(2) in section 4003 (15 U.S.C. 9042), by adding at the end the following:

''(i) NEIGHBORHOOD CAPITAL INVESTMENT PROGRAM.—

''(1) DEFINITIONS.—In this subsection—

''(A) the term 'community development financial institution' has the meaning given the term in section 103 of the Riegle Community Development and Regulatory Improvement Act of 1994 (12 U.S.C. 4702);

''(B) the term 'Fund' means the Community Development Financial Institutions Fund established under section 104(a) of the Riegle Community Development and Regulatory Improvement Act of 1994 (12 U.S.C. 4703(a));

''(C) the term 'minority' means any Black American, Native American, Hispanic American, or Asian American;

''(D) the term 'Program' means the Neighborhood Capital Investment Program established under paragraph (2); and

''(E) the 'Secretary' means the Secretary of the Treasury.

''(2) ESTABLISHMENT.—The Secretary of the Treasury shall establish a Neighborhood Capital Investment Program (the 'Program') to support the efforts of low- and moderate-income community financial institutions to, among other things, provide loans and forbearance for small businesses, minority-owned businesses, and consumers, especially in low-income and underserved communities, by providing direct capital investments in low- and moderate-income community financial institutions.

''(3) APPLICATION.—

''(A) ACCEPTANCE.—The Secretary shall begin accepting applications for capital investments under the Program not later than the end of the 30-day period beginning on the date of enactment of this subsection, with priority in distribution given to low- and moderate-income community financial institutions that are minority lending institutions, as defined under section 103 of the Community Development Banking and Financial Institutions Act of 1994 (12 U.S.C. 4702).

''(B) REQUIREMENT TO PROVIDE A NEIGHBORHOOD INVESTMENT LENDING PLAN.—

''(i) IN GENERAL.—At the time that an applicant submits an application to the Secretary for a capital investment under the Program, the applicant shall provide the Secretary, along with the appropriate Federal banking agency, an investment and lending plan that—

''(I) demonstrates that not less than 30 percent of the lending of the applicant over the past 2 fiscal years was made directly to low- and moderate income borrowers, to borrowers that create direct benefits for low- and moderate-income populations, to other targeted populations as defined by the Fund, or any combination thereof, as measured by the total number and dollar amount of loans;

''(II) describes how the business strategy and operating goals of the applicant will address community development needs, which includes the needs of small businesses, consumers, nonprofit organizations, community development, and other projects providing direct benefits to low- and moderate-income communities, low-income individuals, and minorities within the minority, rural, and urban low-income and underserved areas served by the applicant;

''(III) includes a plan to provide linguistically and culturally appropriate outreach, where appropriate;

''(IV) includes an attestation by the applicant that the applicant does not own, service, or offer any financial products at an annual percentage rate of more than 36 percent interest, as defined in section 987(i)(4) of title 10, United States Code, and is compliant with State interest rate laws; and

''(V) includes details on how the applicant plans to expand or maintain significant lending or investment activity in low- or moderate-income minority communities, to historically disadvantaged borrowers, and to minorities that have significant unmet capital or financial services needs.

''(ii) COMMUNITY DEVELOPMENT LOAN FUNDS.—An applicant that is not an insured community development financial institution or otherwise regulated by a Federal financial regulator shall submit the plan described in clause (i) only to the Secretary.

''(iii) DOCUMENTATION.—In the case of an applicant that is certified as a community development financial institution as of the date of enactment of this subsection, for purposes of clause (i)(I), the Secretary may rely on documentation submitted the Fund as part of certification compliance reporting.

''(4) INCENTIVES TO INCREASE LENDING AND PROVIDE AFFORDABLE CREDIT.—

''(A) REQUIREMENTS ON PREFERRED STOCK AND OTHER FINANCIAL INSTRUMENT.—Any financial instrument issued to Treasury by a low- and moderate-income community financial institution under the Program shall provide the following:

''(i) No dividends, interest or other payments shall exceed 2 percent per annum.

''(ii) After the first 24 months from the date of the capital investment under the Program, annual payments may be required, as determined by the Secretary and in accordance with this section, and adjusted downward based on the amount of affordable credit provided by the low- and moderate-income community financial institution to borrowers in minority, rural, and urban low-income and underserved communities.

''(iii) During any calendar quarter after the initial 24-month period referred to in clause (ii), the annual payment rate of a low- and moderate-income community financial institution shall be adjusted downward to reflect the following schedule, based on lending by the institution relative to the baseline period:

''(I) If the institution in the most recent annual period prior to the investment provides significant lending or investment activity in low- or moderate-income minority communities, historically disadvantaged borrowers, and to minorities that have significant unmet capital or financial services, the annual payment rate shall not exceed 0.5 percent per annum.

''(II) If the amount of lending within minority, rural, and urban low-income and underserved communities and to low- and moderate-income borrowers has increased dollar for dollar based on the amount of the capital investment, the annual payment rate shall not exceed 1 percent per annum.

''(III) If the amount of lending within minority, rural, and urban low-income and underserved communities and to low- and moderate-income borrowers has increased by twice the amount of the capital investment, the annual payment rate shall not exceed 0.5 percent per annum.

''(B) CONTINGENCY OF PAYMENTS BASED ON CERTAIN FINANCIAL CRITERIA.—

''(i) DEFERRAL.—Any annual payments under this subsection shall be deferred in any quarter or payment period if any of the following is true:

''(I) The low- and moderate-income community institution fails to meet the Tier 1 capital ratio or similar ratio as determined by the Secretary.

''(II) The low- and moderate-income community financial institution fails to achieve positive net income for the quarter or payment period.

''(III) The low- and moderate-income community financial institution determines that the payment would be detrimental to the financial health of the institution.

''(ii) TESTING DURING NEXT PAYMENT PERIOD.—Any deferred annual payment under this subsection shall be tested against the metrics described in clause (i) at the beginning of the next payment period, and such payments shall continue to be deferred until the metrics described in that clause are no longer applicable.

''(5) RESTRICTIONS.—

''(A) IN GENERAL.—Each low- and moderate-income community financial institution may only issue financial instruments or senior preferred stock under this subsection with an aggregate principal amount that is—

''(i) not more than 15 percent of risk-weighted assets for an institution with assets of more than $2,000,000,000;

''(ii) not more than 25 percent of risk-weighted assets for an institution with assets of not less than $500,000,000 and not more than $2,000,000,000; and

''(iii) not more than 30 percent of risk-weighted assets for an institution with assets of less than $500,000,000.

''(B) HOLDING OF INSTRUMENTS.—Holding any instrument of a low- and moderate-income community financial institution described in subparagraph (A) shall not give the Treasury or any successor that owns the instrument any rights over the management of the institution.

''(C) SALE OF INTEREST.—With respect to a capital investment made into a low- and moderate-income community financial institution under this subsection, the Secretary—

''(i) except as provided in clause (iv), during the 10-year period following the investment, may not sell the interest of the Secretary in the capital investment to a third party;

''(ii) shall provide the low- and moderate-income community financial institution a right of first refusal to buy back the investment under terms that do not exceed a value as determined by an independent third party; and

''(iii) shall not sell more than a 5 percent ownership interest in the capital investment to a single third party; and

''(iv) with the permission of the institution, may gift or sell the interest of the Secretary in the capital investment for a de minimus amount to a mission aligned nonprofit affiliate of an applicant that is an insured community development financial institution, as defined in section 103 of the Riegle Community Development and Regulatory Improvement Act of 1994 (12 U.S.C. 4702).

''(v) CALCULATION OF OWNERSHIP FOR MINORITY DEPOSITORY INSTITUTIONS.—The calculation and determination of ownership thresholds for a depository institution to qualify as a minority depository institution described in section 4002(7)(B) shall exclude any dilutive effect of equity investments by the Federal Government, including under the Program or through the Fund.

''(6) AVAILABLE AMOUNTS.—In carrying out the Program, the Secretary shall use not more than $13,000,000,000, from amounts appropriated under section 4027, and shall use not less than $7,000,000,000 of such amount for direct capital investments under the Program.

''(7) TREATMENT OF CAPITAL INVESTMENTS.—In making any capital investment under the Program, the Secretary shall ensure that the terms of the investment are designed to ensure the investment receives Tier 1 capital treatment.

''(8) OUTREACH TO MINORITIES.—The Secretary shall require low- and moderate-income community financial institutions receiving capital investments under the Program to provide linguistically and culturally appropriate outreach and advertising describing the availability and application process of receiving loans made possible by the Program through organizations, trade associations, and individuals that represent or work within or are members of minority communities.

''(9) RESTRICTIONS.—

''(A) IN GENERAL.—Not later than the end of the 30-day period beginning on the date of enactment of this subsection, the Secretary of the Treasury shall issue rules setting restrictions on executive compensation, share buybacks, and dividend payments for recipients of capital investments under the Program.

''(B) RULE OF CONSTRUCTION.—The provisions of section 4019 apply to investments made under the Program.

''(10) TERMINATION OF INVESTMENT AUTHORITY.—The authority to make capital investments in low- and moderate-income community financial institutions, including commitments to purchase preferred stock or other instruments, provided under the Program shall terminate on the date that is 36 months after the date of enactment of this subsection.

''(11) COLLECTION OF DATA.—Notwithstanding the Equal Credit Opportunity Act (15 U.S.C. 1691 et seq.)—

''(A) any low- and moderate-income community financial institution may collect data described in section 701(a)(1) of that Act (15 U.S.C. 1691(a)(1)) from borrowers and applicants for credit for the purpose of monitoring compliance under the plan required under paragraph (4)(B); and

''(B) a low- and moderate-income community financial institution that collects the data described in subparagraph (A) shall not be subject to adverse action related to that collection by the Bureau of Consumer Financial Protection or any other Federal agency.

''(12) DEPOSIT OF FUNDS.—All funds received by the Secretary in connection with purchases made pursuant this subsection, including interest payments, dividend payments, and proceeds from the sale of any financial instrument, shall be deposited into the Fund and used to provide financial and technical assistance pursuant to section 108 of the Riegle Community Development and Regulatory Improvement Act of 1994 (12 U.S.C. 4707), except that subsection (e) of that section shall be waived.

''(13) EQUITY EQUIVALENT INVESTMENT OPTION.—

''(A) IN GENERAL.—The Secretary shall establish an Equity Equivalent Investment Option, under which, with respect to a specific investment in a low- and moderate-income community financial institution—

''(i) 80 percent of such investment is made by the Secretary under the Program; and

''(ii) 20 percent of such investment if made by a banking institution.

''(B) REQUIREMENT TO FOLLOW SIMILAR TERMS AND CONDITIONS.—The terms and conditions applicable to investments made by the Secretary under the Program shall apply to any investment made by a banking institution under this paragraph.

''(C) LIMITATIONS.—The amount of a specific investment described under subparagraph (A) may not exceed $10,000,000, but the receipt of an investment under subparagraph (A) shall not preclude the recipient from being eligible for other assistance under the Program.

''(D) BANKING INSTITUTION DEFINED.—In this paragraph, the term 'banking institution' means any entity with respect to which there is an appropriate Federal banking agency under section 3 of the Federal Deposit Insurance Act.

''(j) APPLICATION OF THE MILITARY LENDING ACT.—

''(1) IN GENERAL.—No low- and moderate-income community financial institution that receives an equity investment under subsection (i) shall, for so long as the investment or participation continues, make any loan at an annualized percentage rate above 36 percent, as determined in accordance with section 987(b) of title 10, United States Code (commonly known as the 'Military Lending Act)'.

''(2) NO EXEMPTIONS PERMITTED.—The exemption authority of the Bureau under section 105(f) of the Truth in Lending Act (15 U.S.C. 1604(f)) shall not apply with respect to this subsection.''.

SEC. 706. EMERGENCY SUPPORT FOR CDFIS AND COMMUNITIES.

(a) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to the Community Development Financial Institutions Fund $2,000,000,000 for fiscal year 2021, for providing financial assistance and technical assistance under subparagraphs (A) and (B) of section 108(a)(1) of the Community Development Banking and Financial Institutions Act of 1994 (12 U.S.C. 4707(a)(1)), except that subsections (d) and (e) of such section 108 shall not apply to the provision of such assistance, for the Bank Enterprise Award program, and for financial assistance, technical assistance, training, and outreach programs designed to benefit Native American, Native Hawaiian, and Alaska Native communities and provided primarily through qualified community development lender organizations with experience and expertise in community development banking and lending in Indian country, Native American organizations, Tribes and Tribal organizations, and other suitable providers.

(b) SET ASIDES.—Of the amounts appropriated pursuant to the authorization under subsection (a), the following amounts shall be set aside:

(1) Up to $400,000,000, to remain available until expended, to provide grants to community development financial institutions—

(A) to expand lending or investment activity in low- or moderate-income minority communities and to minorities that have significant unmet capital or financial services needs, of which not less than $10,000,000 may be for grants to benefit Native American, Native Hawaiian, and Alaska Native communities; and

(B) using a formula that takes into account criteria such as certification status, financial and compliance performance, portfolio and balance sheet strength, a diversity of community development financial institution business model types, and program capacity, as well as experience making loans and investments to those areas and populations identified in this paragraph.

(2) Up to $160,000,000, to remain available until expended, for technical assistance, technology, and training under sections 108(a)(1)(B) and 109, respectively, of the Riegle Community Development and Regulatory Improvement Act of 1994 (12 U.S.C. 4707(a)(1)(B), 4708), with a preference for minority lending institutions.

(3) Up to $800,000,000, to remain available until expended, shall be for providing financial assistance, technical assistance, awards, training, and outreach programs described under subsection (a) to recipients that are minority lending institutions.

(c) ADMINISTRATIVE EXPENSES.—Funds appropriated pursuant to the authorization under subsection (a) may be used for administrative expenses, including administration of Fund programs and the New Markets Tax Credit Program under section 45D of the Internal Revenue Code.

(d) DEFINITIONS.—In this section:

(1) CDFI.—The term ''CDFI'' means a community development financial institution, as defined in section 103 of the Riegle Community Development and Regulatory Improvement Act of 1994 (12 U.S.C. 4702).

(2) FUND.—The term ''Fund'' means the Community Development Financial Institutions Fund established under section 104(a) of the Riegle Community Development and Regulatory Improvement Act of 1994 (12 U.S.C. 4703(a)).

(3) MINORITY; MINORITY LENDING INSTITUTION.—The terms ''minority'' and ''minority lending institution'' have the meaning given those terms, respectively, under section 103 of the Community Development Banking and Financial Institutions Act of 1994 (12 U.S.C. 4702).

SEC. 707. ENSURING DIVERSITY IN COMMUNITY BANKING.

(a) SENSE OF CONGRESS ON FUNDING THE LOAN-LOSS RESERVE FUND FOR SMALL DOLLAR LOANS.—The sense of Congress is the following:

(1) The Community Development Financial Institutions Fund (the ''CDFI Fund'') is an agency of the Department of the Treasury, and was established by the Riegle Community Development and Regulatory Improvement Act of 1994. The mission of the CDFI Fund is ''to expand economic opportunity for underserved people and communities by supporting the growth and capacity of a national network of community development lenders, investors, and financial service providers''. A community development financial institution (a ''CDFI'') is a specialized financial institution serving low-income communities and a Community Development Entity (a ''CDE'') is a domestic corporation or partnership that is an intermediary vehicle for the provision of loans, investments, or financial counseling in low-income communities. The CDFI Fund certifies CDFIs and CDEs. Becoming a certified CDFI or CDE allows organizations to participate in various CDFI Fund programs as follows:

(A) The Bank Enterprise Award Program, which provides FDIC-insured depository institutions awards for a demonstrated increase in lending and investments in distressed communities and CDFIs.

(B) The CDFI Program, which provides Financial and Technical Assistance awards to CDFIs to reinvest in the CDFI, and to build the capacity of the CDFI, including financing product development and loan loss reserves.

(C) The Native American CDFI Assistance Program, which provides CDFIs and sponsoring entities Financial and Technical Assistance awards to increase lending and grow the number of CDFIs owned by Native Americans to help build capacity of such CDFIs.

(D) The New Market Tax Credit Program, which provides tax credits for making equity investments in CDEs that stimulate capital investments in low-income communities.

(E) The Capital Magnet Fund, which provides awards to CDFIs and nonprofit affordable housing organizations to finance affordable housing solutions and related economic development activities.

(F) The Bond Guarantee Program, a source of long-term, patient capital for CDFIs to expand lending and investment capacity for community and economic development purposes.

(2) The Department of the Treasury is authorized to create multi-year grant programs designed to encourage low-to-moderate income individuals to establish accounts at federally insured banks, and to improve low-to-moderate income individuals' access to such accounts on reasonable terms.

(3) Under this authority, grants to participants in CDFI Fund programs may be used for loan-loss reserves and to establish small-dollar loan programs by subsidizing related losses. These grants also allow for the providing recipients with the financial counseling and education necessary to conduct transactions and manage their accounts. These loans provide low-cost alternatives to payday loans and other nontraditional forms of financing that often impose excessive interest rates and fees on borrowers, and lead millions of Americans to fall into debt traps. Small-dollar loans can only be made pursuant to terms, conditions, and practices that are reasonable for the individual consumer obtaining the loan.

(4) Program participation is restricted to eligible institutions, which are limited to organizations listed in section 501(c)(3) of the Internal Revenue Code and exempt from tax under 501(a) of such Code, federally insured depository institutions, community development financial institutions and State, local, or Tribal government entities.

(5) Since its founding, the CDFI Fund has awarded over $3,300,000,000 to CDFIs and CDEs, allocated $54,000,000,000 in tax credits, and $1,510,000,000 in bond guarantees. According to the CDFI Fund, some programs attract as much as $10 in private capital for every $1 invested by the CDFI Fund. The Administration and the Congress should prioritize appropriation of funds for the loan loss reserve fund and technical assistance programs administered by the Community Development Financial Institution Fund.

(b) DEFINITIONS.—In this section:

(1) COMMUNITY DEVELOPMENT FINANCIAL INSTITUTION.—The term ''community development financial institution'' has the meaning given under section 103 of the Riegle Community Development and Regulatory Improvement Act of 1994 (12 U.S.C. 4702).

(2) MINORITY DEPOSITORY INSTITUTION.—The term ''minority depository institution'' has the meaning given under section 308 of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 (12 U.S.C. 1463 note).

(c) ESTABLISHMENT OF IMPACT BANK DESIGNATION.—

(1) IN GENERAL.—Each Federal banking agency shall establish a program under which a depository institution with total consolidated assets of less than $10,000,000,000 may elect to be designated as an impact bank if the total dollar value of the loans extended by such depository institution to low-income borrowers is greater than or equal to 50 percent of the assets of such bank.

(2) NOTIFICATION OF ELIGIBILITY.—Based on data obtained through examinations of depository institutions, the appropriate Federal banking agency shall notify a depository institution if the institution is eligible to be designated as an impact bank.

(3) APPLICATION.—Regardless of whether or not it has received a notice of eligibility under paragraph (2), a depository institution may submit an application to the appropriate Federal banking agency—

(A) requesting to be designated as an impact bank; and

(B) demonstrating that the depository institution meets the applicable qualifications.

(4) LIMITATION ON ADDITIONAL DATA REQUIREMENTS.—The Federal banking agencies may only impose additional data collection requirements on a depository institution under this subsection if such data is—

(A) necessary to process an application submitted by the depository institution to be designated an impact bank; or

(B) with respect to a depository institution that is designated as an impact bank, necessary to ensure the depository institution's ongoing qualifications to maintain such designation.

(5) REMOVAL OF DESIGNATION.—If the appropriate Federal banking agency determines that a depository institution designated as an impact bank no longer meets the criteria for such designation, the appropriate Federal banking agency shall rescind the designation and notify the depository institution of such rescission.

(6) RECONSIDERATION OF DESIGNATION; APPEALS.—Under such procedures as the Federal banking agencies may establish, a depository institution may—

(A) submit to the appropriate Federal banking agency a request to reconsider a determination that such depository institution no longer meets the criteria for the designation; or

(B) file an appeal of such determination.

(7) RULEMAKING.—Not later than 1 year after the date of the enactment of this Act, the Federal banking agencies shall jointly issue rules to carry out the requirements of this subsection, including by providing a definition of a low-income borrower.

(8) REPORTS.—Each Federal banking agency shall submit an annual report to the Congress containing a description of actions taken to carry out this subsection.

(9) FEDERAL DEPOSIT INSURANCE ACT DEFINITIONS.—In this subsection, the terms ''depository institution'', ''appropriate Federal banking agency'', and ''Federal banking agency'' have the meanings given such terms, respectively, in section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813).

(d) MINORITY DEPOSITORIES ADVISORY COMMITTEES.—

(1) ESTABLISHMENT.—Each covered regulator shall establish an advisory committee to be called the ''Minority Depositories Advisory Committee''.

(2) DUTIES.—Each Minority Depositories Advisory Committee shall provide advice to the respective covered regulator on meeting the goals established by section 308 of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 (12 U.S.C. 1463 note) to preserve the present number of covered minority institutions, preserve the minority character of minority-owned institutions in cases involving mergers or acquisitions, provide technical assistance, and encourage the creation of new covered minority institutions. The scope of the work of each such Minority Depositories Advisory Committee shall include an assessment of the current condition of covered minority institutions, what regulatory changes or other steps the respective agencies may be able to take to fulfill the requirements of such section 308, and other issues of concern to covered minority institutions.

(3) MEMBERSHIP.—

(A) IN GENERAL.—Each Minority Depositories Advisory Committee shall consist of no more than 10 members, who—

(i) shall serve for one two-year term;

(ii) shall serve as a representative of a depository institution or an insured credit union with respect to which the respective covered regulator is the covered regulator of such depository institution or insured credit union; and

(iii) shall not receive pay by reason of their service on the advisory committee, but may receive travel or transportation expenses in accordance with section 5703 of title 5, United States Code.

(B) DIVERSITY.—To the extent practicable, each covered regulator shall ensure that the members of the Minority Depositories Advisory Committee of such agency reflect the diversity of covered minority institutions.

(4) MEETINGS.—

(A) IN GENERAL.—Each Minority Depositories Advisory Committee shall meet not less frequently than twice each year.

(B) NOTICE AND INVITATIONS.—Each Minority Depositories Advisory Committee shall—

(i) notify the Committee on Financial Services of the House of Representatives and the Committee on Banking, Housing, and Urban Affairs of the Senate in advance of each meeting of the Minority Depositories Advisory Committee; and

(ii) invite the attendance at each meeting of the Minority Depositories Advisory Committee of—

(I) one member of the majority party and one member of the minority party of the Committee on Financial Services of the House of Representatives and the Committee on Banking, Housing, and Urban Affairs of the Senate; and

(II) one member of the majority party and one member of the minority party of any relevant subcommittees of such committees.

(5) NO TERMINATION OF ADVISORY COMMITTEES.—The termination requirements under section 14 of the Federal Advisory Committee Act (5 U.S.C. app.) shall not apply to a Minority Depositories Advisory Committee established pursuant to this subsection.

(6) DEFINITIONS.—In this subsection:

(A) COVERED REGULATOR.—The term ''covered regulator'' means the Comptroller of the Currency, the Board of Governors of the Federal Reserve System, the Federal Deposit Insurance Corporation, and the National Credit Union Administration.

(B) COVERED MINORITY INSTITUTION.—The term ''covered minority institution'' means a minority depository institution (as defined in section 308(b) of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 (12 U.S.C. 1463 note)).

(C) DEPOSITORY INSTITUTION.—The term ''depository institution'' has the meaning given under section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813).

(D) INSURED CREDIT UNION.—The term ''insured credit union'' has the meaning given in section 101 of the Federal Credit Union Act (12 U.S.C. 1752).

(7) TECHNICAL AMENDMENT.—Section 308(b) of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 (12 U.S.C. 1463 note) is amended by adding at the end the following new paragraph:

''(3) DEPOSITORY INSTITUTION.—The term 'depository institution' means an 'insured depository institution' (as defined in section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813)) and an insured credit union (as defined in section 101 of the Federal Credit Union Act (12 U.S.C. 1752)).''.

(e) FEDERAL DEPOSITS IN MINORITY DEPOSITORY INSTITUTIONS.—

(1) IN GENERAL.—Section 308 of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 (12 U.S.C. 1463 note) is amended—

(A) by adding at the end the following new subsection:

''(d) FEDERAL DEPOSITS.—The Secretary of the Treasury shall ensure that deposits made by Federal agencies in minority depository institutions and impact banks are collateralized or insured, as determined by the Secretary. Such deposits shall include reciprocal deposits as defined in section 337.6(e)(2)(v) of title 12, Code of Federal Regulations (as in effect on March 6, 2019).''; and

(B) in subsection (b), as amended by subsection (d)(7), by adding at the end the following new paragraph:

''(4) IMPACT BANK.—The term 'impact bank' means a depository institution designated by the appropriate Federal banking agency pursuant to section 707(c) of the Promoting and Advancing Communities of Color through Inclusive Lending Act.''.

(2) TECHNICAL AMENDMENTS.—Section 308 of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 (12 U.S.C. 1463 note) is amended—

(A) in the matter preceding paragraph (1), by striking ''section—'' and inserting ''section:''; and

(B) in the paragraph heading for paragraph (1), by striking ''FINANCIAL'' and inserting ''DEPOSITORY''.

(f) MINORITY BANK DEPOSIT PROGRAM.—

(1) IN GENERAL.—Section 1204 of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 (12 U.S.C. 1811 note) is amended to read as follows:

''SEC. 1204. EXPANSION OF USE OF MINORITY DEPOSITORY INSTITUTIONS.

''(a) MINORITY BANK DEPOSIT PROGRAM.—

''(1) ESTABLISHMENT.—There is established a program to be known as the 'Minority Bank Deposit Program' to expand the use of minority depository institutions.

''(2) ADMINISTRATION.—The Secretary of the Treasury, acting through the Fiscal Service, shall—

''(A) on application by a depository institution or credit union, certify whether such depository institution or credit union is a minority depository institution;

''(B) maintain and publish a list of all depository institutions and credit unions that have been certified pursuant to subparagraph (A); and

''(C) periodically distribute the list described in subparagraph (B) to—

''(i) all Federal departments and agencies;

''(ii) interested State and local governments; and

''(iii) interested private sector companies.

''(3) INCLUSION OF CERTAIN ENTITIES ON LIST.—A depository institution or credit union that, on the date of the enactment of this section, has a current certification from the Secretary of the Treasury stating that such depository institution or credit union is a minority depository institution shall be included on the list described under paragraph (2)(B).

''(b) EXPANDED USE AMONG FEDERAL DEPARTMENTS AND AGENCIES.—

''(1) IN GENERAL.—Not later than 1 year after the establishment of the program described in subsection (a), the head of each Federal department or agency shall develop and implement standards and procedures to prioritize, to the maximum extent possible as permitted by law and consistent with principles of sound financial management, the use of minority depository institutions to hold the deposits of each such department or agency.

''(2) REPORT TO CONGRESS.—Not later than 2 years after the establishment of the program described in subsection (a), and annually thereafter, the head of each Federal department or

agency shall submit to Congress a report on the actions taken to increase the use of minority depository institutions to hold the deposits of each such department or agency.

''(c) DEFINITIONS.—For purposes of this section:

''(1) CREDIT UNION.—The term 'credit union' has the meaning given the term 'insured credit union' in section 101 of the Federal Credit Union Act (12 U.S.C. 1752).

''(2) DEPOSITORY INSTITUTION.—The term 'depository institution' has the meaning given in section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813).

''(3) MINORITY DEPOSITORY INSTITUTION.—The term 'minority depository institution' has the meaning given that term under section 308 of this Act.''.

(2) CONFORMING AMENDMENTS.—The following provisions are amended by striking ''1204(c)(3)'' and inserting ''1204(c)'':

(A) Section 808(b)(3) of the Community Reinvestment Act of 1977 (12 U.S.C. 2907(b)(3)).

(B) Section 40(g)(1)(B) of the Federal Deposit Insurance Act (12 U.S.C. 1831q(g)(1)(B)).

(C) Section 704B(h)(4) of the Equal Credit Opportunity Act (15 U.S.C. 1691c–2(h)(4)).

(g) DIVERSITY REPORT AND BEST PRACTICES.—

(1) ANNUAL REPORT.—Each covered regulator shall submit to Congress an annual report on diversity including the following:

(A) Data, based on voluntary self-identification, on the racial, ethnic, and gender composition of the examiners of each covered regulator, disaggregated by length of time served as an examiner.

(B) The status of any examiners of covered regulators, based on voluntary self-identification, as a veteran.

(C) Whether any covered regulator, as of the date on which the report required under this section is submitted, has adopted a policy, plan, or strategy to promote racial, ethnic, and gender diversity among examiners of the covered regulator.

(D) Whether any special training is developed and provided for examiners related specifically to working with depository institutions and credit unions that serve communities that are predominantly minorities, low income, or rural, and the key focus of such training.

(2) BEST PRACTICES.—Each Office of Minority and Women Inclusion of a covered regulator shall develop, provide to the head of the covered regulator, and make publicly available best practices—

(A) for increasing the diversity of candidates applying for examiner positions, including through outreach efforts to recruit diverse candidate to apply for entry-level examiner positions; and

(B) for retaining and providing fair consideration for promotions within the examiner staff for purposes of achieving diversity among examiners.

(3) COVERED REGULATOR DEFINED.—In this subsection, the term ''covered regulator'' means the Comptroller of the Currency, the Board of Governors of the Federal Reserve System, the Federal Deposit Insurance Corporation, and the National Credit Union Administration.

(h) INVESTMENTS IN MINORITY DEPOSITORY INSTITUTIONS AND IMPACT BANKS.—

(1) CONTROL FOR CERTAIN INSTITUTIONS.—Section 7(j)(8)(B) of the Federal Deposit Insurance Act (12 U.S.C. 1817(j)(8)(B)) is amended to read as follows:

''(B) 'control' means the power, directly or indirectly—

''(i) to direct the management or policies of an insured depository institution; or

''(ii)(I) to vote 25 per centum or more of any class of voting securities of an insured depository institution; or

''(II) with respect to an insured depository institution that is an impact bank (as designated pursuant to section 707(c) of the Promoting and Advancing Communities of Color through Inclusive Lending Act) or a minority depository institution (as defined in section 308(b) of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989), of an individual to vote 30 percent or more of any class of voting securities of such an impact bank or a minority depository institution.''.

(2) RULEMAKING.—The Federal banking agencies (as defined in section 3 of the Federal Deposit Insurance Act (12 U.S.C. 1813)) shall jointly issue rules for de novo minority depository institutions to allow 3 years to meet the capital requirements otherwise applicable to minority depository institutions.

(3) REPORT.—Not later than 1 year after the date of the enactment of this Act, the Federal banking agencies shall jointly submit to Congress a report on—

(A) the principal causes for the low number of de novo minority depository institutions during the 10-year period preceding the date of the report;

(B) the main challenges to the creation of de novo minority depository institutions; and

(C) regulatory and legislative considerations to promote the establishment of de novo minority depository institutions.

(i) REPORT ON COVERED MENTOR-PROTEGE PROGRAMS.—

(1) REPORT.—Not later than 6 months after the date of the enactment of this Act and annually thereafter, the Secretary of the Treasury shall submit to Congress a report on participants in a covered mentor-protege program, including—

(A) an analysis of outcomes of such program;

(B) the number of minority depository institutions that are eligible to participate in such program but do not have large financial institution mentors; and

(C) recommendations for how to match such minority depository institutions with large financial institution mentors.

(2) DEFINITIONS.—In this subsection:

(A) COVERED MENTOR-PROTEGE PROGRAM.—The term ''covered mentor-protege program'' means a mentor-protege program established by the Secretary of the Treasury pursuant to section 45 of the Small Business Act (15 U.S.C. 657r).

(B) LARGE FINANCIAL INSTITUTION.—The term ''large financial institution'' means any entity—

(i) regulated by the Comptroller of the Currency, the Board of Governors of the Federal Reserve System, the Federal Deposit Insurance Corporation, or the National Credit Union Administration; and

(ii) that has total consolidated assets greater than or equal to $50,000,000,000.

(j) CUSTODIAL DEPOSIT PROGRAM FOR COVERED MINORITY DEPOSITORY INSTITUTIONS AND IMPACT BANKS.—

(1) IN GENERAL.—Not later than one year after the date of the enactment of this Act, the Secretary of the Treasury shall issue rules establishing a custodial deposit program under which a covered bank may receive deposits from a qualifying account.

(2) REQUIREMENTS.—In issuing rules under paragraph (1), the Secretary of the Treasury shall—

(A) consult with the Federal banking agencies;

(B) ensure each covered bank participating in the program established under this subsection—

(i) has appropriate policies relating to management of assets, including measures to ensure the safety and soundness of each such covered bank; and

(ii) is compliant with applicable law; and

(C) ensure, to the extent practicable that the rules do not conflict with goals described in section 308(a) of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 (12 U.S.C. 1463 note).

(3) LIMITATIONS.—

(A) DEPOSITS.—With respect to the funds of an individual qualifying account, an entity may not deposit an amount greater than the insured amount in a single covered bank.

(B) TOTAL DEPOSITS.—The total amount of funds deposited in a covered bank under the custodial deposit program described under this subsection may not exceed the lesser of—

(i) 10 percent of the average amount of deposits held by such covered bank in the previous quarter; or

(ii) $100,000,000 (as adjusted for inflation).

(4) REPORT.—Each quarter, the Secretary of the Treasury shall submit to Congress a report on the implementation of the program established under this subsection including information identifying participating covered banks and the total amount of deposits received by covered banks under the program.

(5) DEFINITIONS.—In this subsection:

(A) COVERED BANK.—The term ''covered bank'' means—

(i) a minority depository institution that is well capitalized, as defined by the appropriate Federal banking agency; or

(ii) a depository institution designated pursuant to subsection (c) that is well capitalized, as defined by the appropriate Federal banking agency.

(B) INSURED AMOUNT.—The term ''insured amount'' means the amount that is the greater of—

(i) the standard maximum deposit insurance amount (as defined in section 11(a)(1)(E) of the Federal Deposit Insurance Act (12 U.S.C. 1821(a)(1)(E))); or

(ii) such higher amount negotiated between the Secretary of the Treasury and the Federal Deposit Insurance Corporation under which the Corporation will insure all deposits of such higher amount.

(C) FEDERAL BANKING AGENCIES.—The terms ''appropriate Federal banking agency'' and ''Federal banking agencies'' have the meaning given those terms, respectively, under section 3 of the Federal Deposit Insurance Act.

(D) QUALIFYING ACCOUNT.—The term ''qualifying account'' means any account established in the Department of the Treasury that—

(i) is controlled by the Secretary; and

(ii) is expected to maintain a balance greater than $200,000,000 for the following 24-month period.

(k) STREAMLINED COMMUNITY DEVELOPMENT FINANCIAL INSTITUTION APPLICATIONS AND REPORTING.—

(1) APPLICATION PROCESSES.—Not later than 12 months after the date of the enactment of this Act and with respect to any person having assets under $3,000,000,000 that submits an application for deposit insurance with the Federal Deposit Insurance Corporation that could also become a community development financial institution, the Federal Deposit Insurance Corporation, in consultation with the Administrator of the Community Development Financial Institutions Fund, shall—

(A) develop systems and procedures to record necessary information to allow the Administrator to conduct preliminary analysis for such person to also become a community development financial institution; and

(B) develop procedures to streamline the application and annual certification processes and to reduce costs for such person to become, and maintain certification as, a community development financial institution.

(2) IMPLEMENTATION REPORT.—Not later than 18 months after the date of the enactment of this Act, the Federal Deposit Insurance Corporation shall submit to Congress a report describing the systems and procedures required under paragraph (1).

(3) ANNUAL REPORT.—

(A) IN GENERAL.—Section 17(a)(1) of the Federal Deposit Insurance Act (12 U.S.C. 1827(a)(1)) is amended—

(i) in subparagraph (E), by striking ''and'' at the end;

(ii) by redesignating subparagraph (F) as subparagraph (G);

(iii) by inserting after subparagraph (E) the following new subparagraph:

''(F) applicants for deposit insurance that could also become a community development financial institution (as defined in section 103 of the Riegle Community Development and Regulatory Improvement Act of 1994), a minority depository institution (as defined in section 308 of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989), or an impact bank (as designated pursuant to section 707(c) of the Promoting and Advancing Communities of Color through Inclusive Lending Act); and''.

(B) APPLICATION.—The amendment made by this paragraph shall apply with respect to the first report to be submitted after the date that is 2 years after the date of the enactment of this Act.

(l) TASK FORCE ON LENDING TO SMALL BUSINESS CONCERNS.—

(1) IN GENERAL.—Not later than 6 months after the date of the enactment of this Act, the Administrator of the Small Business Administration shall establish a task force to examine methods for improving relationships between the Small Business Administration and community development financial institutions, minority depository institutions, and Impact Banks to increase the volume of loans provided by such institutions to small business concerns (as defined under section 3 of the Small Business Act (15 U.S.C. 632)).

(2) REPORT TO CONGRESS.—Not later than 18 months after the establishment of the task force described in paragraph (1), the Administrator of the Small Business Administration shall submit to Congress a report on the findings of such task force.

SEC. 708. ESTABLISHMENT OF FINANCIAL AGENT PARTNERSHIP PROGRAM.

(a) IN GENERAL.—Section 308 of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 (12 U.S.C. 1463 note), as amended by section 706(e), is further amended by adding at the end the following new subsection:

''(e) FINANCIAL AGENT PARTNERSHIP PROGRAM.—

''(1) IN GENERAL.—The Secretary of the Treasury shall establish a program to be known as the 'Financial Agent Partnership Program' (in this subsection referred to as the 'Program') under which a financial agent designated by the Secretary or a large financial institution may serve as a mentor, under guidance or regulations prescribed by the Secretary, to a small financial institution to allow such small financial institution—

''(A) to be prepared to perform as a financial agent; or

''(B) to improve capacity to provide services to the customers of the small financial institution.

''(2) OUTREACH.—The Secretary shall hold outreach events to promote the participation of financial agents, large financial institutions, and small financial institutions in the Program at least once a year.

''(3) FINANCIAL PARTNERSHIPS.—

''(A) IN GENERAL.—Any large financial institution participating in a program with the Department of the Treasury, if not already required to include a small financial institution, shall offer not more than 5 percent of every contract under that program to a small financial institution.

''(B) ACCEPTANCE OF RISK.—As a requirement of participation in a contract described under subparagraph (A), a small financial institution shall accept the risk of the transaction equivalent to the percentage of any fee the institution receives under the contract.

''(C) PARTNER.—A large financial institution partner may work with small financial institutions, if necessary, to train professionals to understand any risks involved in a contract under the Program.

''(D) INCREASED LIMIT FOR CERTAIN INSTITUTIONS.—With respect to a program described under subparagraph (A), if the Secretary of the Treasury determines that it would be appropriate and would encourage capacity building, the Secretary may alter the requirements under subparagraph (A) to require both—

''(i) a higher percentage of the contract be offered to a small financial institution; and

''(ii) require the small financial institution to be a community development financial institution or a minority depository institution.

''(4) EXCLUSION.—The Secretary shall issue guidance or regulations to establish a process under which a financial agent, large financial institution, or small financial institution may be excluded from participation in the Program.

''(5) REPORT.—The Office of Minority and Women Inclusion of the Department of the Treasury shall include in the report submitted to Congress under section 342(e) of the Dodd-Frank Wall Street Reform and Consumer Protection Act information pertaining to the Program, including—

''(A) the number of financial agents, large financial institutions, and small financial institutions participating in such Program; and

''(B) the number of outreach events described in paragraph (2) held during the year covered by such report.

''(6) DEFINITIONS.—In this subsection:

''(A) COMMUNITY DEVELOPMENT FINANCIAL INSTITUTION.—The term 'community development financial institution' has the meaning given that term under section 103 of the Riegle Community Development and Regulatory Improvement Act of 1994 (12 U.S.C. 4702).

''(B) FINANCIAL AGENT.—The term 'financial agent' means any national banking association designated by the Secretary of the Treasury to be employed as a financial agent of the Government.

''(C) LARGE FINANCIAL INSTITUTION.—The term 'large financial institution' means any entity regulated by the Comptroller of the Currency, the Board of Governors of the Federal Reserve System, the Federal Deposit Insurance Corporation, or the National Credit Union Administration that has total consolidated assets greater than or equal to $50,000,000,000.

''(D) SMALL FINANCIAL INSTITUTION.—The term 'small financial institution' means—

''(i) any entity regulated by the Comptroller of the Currency, the Board of Governors of the Federal Reserve System, the Federal Deposit Insurance Corporation, or the National Credit Union Administration that has total consolidated assets lesser than or equal to $2,000,000,000; or

''(ii) a minority depository institution.''.

(b) EFFECTIVE DATE.—This section and the amendments made by this section shall take effect 90 days after the date of the enactment of this Act.

SEC. 709. STRENGTHENING MINORITY LENDING INSTITUTIONS.

(a) MINORITY LENDING INSTITUTION SET-ASIDE IN PROVIDING ASSISTANCE.—

(1) IN GENERAL.—Section 108 of the Community Development Banking and Financial Institutions Act of 1994 (12 U.S.C. 4707) is amended by adding at the end the following:

''(i) MINORITY LENDING INSTITUTION SET-ASIDE IN PROVIDING ASSISTANCE.—Notwithstanding any other provision of law, in providing any assistance, the Fund shall reserve 40 percent of such assistance for minority lending institutions.''.

(2) DEFINITIONS.—

(A) IN GENERAL.—Section 103 of the Community Development Banking and Financial Institutions Act of 1994 (12 U.S.C. 4702) is amended by adding at the end the following:

''(22) MINORITY LENDING INSTITUTION DEFINITIONS.—

''(A) MINORITY.—The term 'minority' means any Black American, Hispanic American, Asian American, Native American, Native Alaskan, Native Hawaiian, or Pacific Islander.

''(B) MINORITY LENDING INSTITUTION.—The term 'minority lending institution' means a community development financial institution—

''(i) with respect to which a majority of the total number of loans and a majority of the value of investments of the community development financial institution are directed at minorities and other targeted populations;

''(ii) that is a minority depository institution, as defined under section 308 of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 (12 U.S.C. 1463 note), or otherwise considered to be a minority depository institution by the appropriate Federal banking agency; or

''(iii) that is 51 percent owned by one or more socially and economically disadvantaged individuals.

''(C) ADDITIONAL DEFINITIONS.—In this paragraph, the terms 'other targeted populations' and 'socially and economically disadvantaged individual' shall have the meaning given those terms by the Administrator.''.

(B) TEMPORARY SAFE HARBOR FOR CERTAIN INSTITUTIONS.—A community development financial institution that is a minority depository institution listed in the Federal Deposit Insurance Corporation's Minority Depository Institutions List published for the Second Quarter 2020 shall be deemed a ''minority lending institution'' under section 103(22) of the Community Development Banking and Financial Institutions Act of 1994 for purposes of—

(i) any program carried out using appropriations authorized for the Community Development Financial Institutions Fund under section 706; and

(ii) the Neighborhood Capital Investment Program established under section 4003(i) of the CARES Act.

(b) OFFICE OF MINORITY LENDING INSTITUTIONS.—Section 104 of the Community Development Banking and Financial Institutions Act of 1994 (12 U.S.C. 4703) is amended by adding at the end the following:

''(l) OFFICE OF MINORITY LENDING INSTITUTIONS.—

''(1) ESTABLISHMENT.—There is established within the Fund an Office of Minority Lending Institutions, which shall oversee assistance provided by the Fund to minority lending institutions.

''(2) DEPUTY DIRECTOR.—The head of the Office shall be the Deputy Director of Minority Lending Institutions, who shall report directly to the Administrator of the Fund.''.

(c) REPORTING ON MINORITY LENDING INSTITUTIONS.—Section 117 of the Community Development Banking and Financial Institutions Act of 1994 (12 U.S.C. 4716) is amended by adding at the end the following:

''(g) REPORTING ON MINORITY LENDING INSTITUTIONS.—Each report required under subsection (a) shall include a description of the extent to which assistance from the Fund are provided to minority lending institutions.''.

(d) SUBMISSION OF DATA RELATING TO DIVERSITY BY COMMUNITY DEVELOPMENT FINANCIAL INSTITUTIONS.—Section 104 of the Riegle Community Development and Regulatory Improvement Act of 1994 (12 U.S.C. 4703) is amended by adding at the end the following:

''(l) SUBMISSION OF DATA RELATING TO DIVERSITY.—

''(1) DEFINITIONS.—In this subsection—

''(A) the term 'executive officer' has the meaning given the term in section 230.501(f) of title 17, Code of Federal Regulations, as in effect on the date of enactment of this subsection; and

''(B) the term 'veteran' has the meaning given the term in section 101 of title 38, United States Code.

''(2) SUBMISSION OF DISCLOSURE.—Each Fund applicant and recipient shall provide the following:

''(A) Data, based on voluntary self-identification, on the racial, ethnic, and gender composition of—

''(i) the board of directors of the institution;

''(ii) nominees for the board of directors of the institution; and

''(iii) the executive officers of the institution.

''(B) The status of any member of the board of directors of the institution, any nominee for the board of directors of the institution, or any executive officer of the institution, based on voluntary self-identification, as a veteran.

''(C) Whether the board of directors of the institution, or any committee of that board of directors, has, as of the date on which the institution makes a disclosure under this paragraph, adopted any policy, plan, or strategy to promote racial, ethnic, and gender diversity among—

''(i) the board of directors of the institution;

''(ii) nominees for the board of directors of the institution; or

''(iii) the executive officers of the institution.

''(3) ANNUAL REPORT.—Not later than 18 months after the date of enactment of this subsection, and annually thereafter, the Fund shall submit to the Committee on Banking, Housing, and Urban Affairs of the Senate and the Committee on Financial Services of the House of Representatives, and make publicly available on the website of the Fund, a report—

''(A) on the data and trends of the diversity information made available pursuant to paragraph (2); and

''(B) containing all administrative or legislative recommendations of the Fund to enhance the implementation of this title or to promote diversity and inclusion within community development financial institutions.''.

SEC. 710. CDFI BOND GUARANTEE REFORM.

Effective October 1, 2020, section 114A(e)(2)(B) of the Riegle Community Development and Regulatory Improvement Act of 1994 (12 U.S.C. 4713a(e)(2)(B)) is amended by striking ''$100,000,000'' and inserting ''$50,000,000''.

SEC. 711. REPORTS.

(a) IN GENERAL.—The Secretary of the Treasury shall provide to the appropriate committees of Congress—

(1) within 30 days of the end of each month commencing with the first month in which transactions are made under a program established under this title or the amendments made by this title, a written report describing all of the transactions made during the reporting period pursuant to the authorities granted under this title or the amendments made by this title; and

(2) after the end of March and the end of September, commencing March 31, 2021, a written report on all projected costs and liabilities, all operating expenses, including compensation for financial agents, and all transactions made by the Community Development Financial Institutions Fund, including participating institutions and amounts each institution has received under each program described in paragraph (1).

(b) BREAKDOWN OF FUNDS.—Each report required under subsection (a) shall specify the amount of funds under each program described under subsection (a)(1) that went to—

(1) minority depository institutions that are depository institutions;

(2) minority depository institutions that are credit unions;

(3) minority lending institutions;

(4) community development financial institution loan funds;

(5) community development financial institutions that are depository institutions; and

(6) community development financial institutions that are credit unions.

(c) DEFINITIONS.—In this section:

(1) APPROPRIATE COMMITTEES OF CONGRESS.—The term ''appropriate committees of Congress'' means the Committee on Financial Services of the House of Representatives and the Committee on Banking, Housing, and Urban Affairs of the Senate.

(2) COMMUNITY DEVELOPMENT FINANCIAL INSTITUTION.—The term ''community development financial institution'' has the meaning given that term under section 103 of the Riegle Community Development and Regulatory Improvement Act of 1994.

(3) CREDIT UNION.—The term ''credit union'' means a State credit union or a Federal credit union, as such terms are defined, respectively, under section 101 of the Federal Credit Union Act.

(4) DEPOSITORY INSTITUTION.—The term ''depository institution'' has the meaning given that term under section 3 of the Federal Deposit Insurance Act.

(5) MINORITY DEPOSITORY INSTITUTION.—The term ''minority depository institution'' has the meaning given under section 308 of the Financial Institutions Reform, Recovery, and Enforcement Act of 1989 .

(6) MINORITY LENDING INSTITUTION.—The term ''minority lending institution'' has the meaning given that term under section 103 of the Community Development Banking and Financial Institutions Act of 1994.

SEC. 712. INSPECTOR GENERAL OVERSIGHT.

(a) IN GENERAL.—The Inspector General of the Department of the Treasury shall conduct, supervise, and coordinate audits and investigations of any program established under this title or the amendments made by this title.

(b) REPORTING.—The Inspector General of the Department of the Treasury shall issue a report not less frequently than 2 times per year to Congress and the Secretary of the Treasury relating to the oversight provided by the Office of the Inspector General, including any recommendations for improvements to the programs described in subsection (a).

SEC. 713. STUDY AND REPORT WITH RESPECT TO IMPACT OF PROGRAMS ON LOW- AND MODERATE-INCOME AND MINORITY COMMUNITIES.

(a) STUDY.—The Secretary of the Treasury shall conduct a study of the impact of the programs established under this title or any amendment made by this title on low- and moderate-income and minority communities.

(b) REPORT.—Not later than 18 months after the date of enactment of this Act, the Secretary shall submit to Congress a report on the results of the study conducted pursuant to subsection (a), which shall include, to the extent possible, the results of the study disaggregated by ethnic group.

(c) INFORMATION PROVIDED TO THE SECRETARY.—Eligible institutions that participate in any of the programs described in subsection (a) shall provide the Secretary of the Treasury with such information as the Secretary may require to carry out the study required by this section.

TITLE VIII—PROVIDING ASSISTANCE FOR STATE, TERRITORY, TRIBAL, AND LOCAL GOVERNMENTS

SEC. 801. EMERGENCY RELIEF FOR STATE, TERRITORIAL, TRIBAL, AND LOCAL GOVERNMENTS.

(a) PURCHASE OF COVID–19 RELATED MUNICIPAL ISSUANCES.—Section 14(b) of the Federal Reserve Act (12 U.S.C. 355) is amended by adding at the end the following new paragraph:

''(3) UNUSUAL AND EXIGENT CIRCUMSTANCES.—Under unusual and exigent circumstances, to buy any bills, notes, revenue bonds, and warrants issued by any State, county, district, political subdivision, municipality, or entity that is a combination of any of the several States, the District of Columbia, or any of the territories and possessions of the United States. In this paragraph, the term 'State' means each of the several States, the District of Columbia, each territory and possession of the United States, and each federally recognized Indian Tribe.''.

(b) FEDERAL RESERVE AUTHORIZATION TO PURCHASE COVID–19 RELATED MUNICIPAL ISSUANCES.—Within 7 days after the date of the enactment of this subsection, the Board of Governors of the Federal Reserve System shall modify the Municipal Liquidity Facility (established on April 9, 2020, pursuant to section 13(3) of the Federal Reserve Act (12 U.S.C. 343(3))) to—

(1) ensure such facility is operational until February 1, 2021;

(2) allow for the purchase of bills, notes, bonds, and warrants with maximum maturity of 10 years from the date of such purchase;

(3) ensure that any purchases made are at an interest rate equal to the discount window primary credit interest rate most recently published on the Federal Reserve Statistical Release on selected interest rates (daily or weekly), commonly referred to as the ''H.15 release'' or the ''Federal funds rate'';

(4) ensure that an eligible issuer does not need to attest to an inability to secure credit elsewhere; and

(5) include in the list of eligible issuers for such purchases—

(A) any of the territories and possessions of the United States;

(B) a political subdivision of a State with a population of more than 50,000 residents; and

(C) an entity that is a combination of any of the several States, the District of Columbia, or any of the territories and possessions of the United States.

SEC. 802. COMMUNITY DEVELOPMENT BLOCK GRANTS.

(a) FUNDING AND ALLOCATIONS.—

(1) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated $5,000,000,000 for assistance in accordance with this section under the community development block grant program under title I of the Housing and Community Development Act of 1974 (42 U.S.C. 5301 et seq.), which shall remain available until September 30, 2023.

(2) ALLOCATION.—Amounts made available pursuant to paragraph (1) shall be distributed pursuant to section 106 of such Act (42 U.S.C. 5306) to grantees and such allocations shall be made within 30 days after the date of the enactment of this Act.

(b) TIME LIMITATION ON EMERGENCY GRANT PAYMENTS.—Paragraph (4) of section 570.207(b) of the Secretary's regulations (24 C.F.R. 570.207(b)(4)) shall be applied with respect to grants with amounts made available pursuant to subsection (a), by substituting ''12 consecutive months'' for ''3 consecutive months''.

(c) MATCHING OF AMOUNTS USED FOR ADMINISTRATIVE COSTS.—Any requirement for a State to match or supplement amounts expended for program administration of State grants under section 106(d) of the Housing and Community Development Act of 1974 (42 U.S.C. 5306(d)) shall not apply with respect to amounts made available pursuant to subsection (a).

(d) CAPER INFORMATION.—During the period that begins on the date of enactment of this Act and ends on the date of the termination by the Federal Emergency Management Agency of the emergency declared on March 13, 2020, by the President under the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 4121 et seq.) relating to the Coronavirus Disease 2019 (COVID–19) pandemic, the Secretary shall make all information included in Consolidated Annual Performance and Evaluation Reports relating to assistance made available pursuant to this section publicly available on its website on a quarterly basis.

(e) AUTHORITY; WAIVERS.—Any provisions of, and waivers and alternative requirements issued by the Secretary pursuant to, the heading ''Department of Housing and Urban Development—Community Planning and Development —Community Development Fund'' in title XII of division B of the CARES Act (Public Law 116–136) shall apply with respect to amounts made available pursuant to subsection (a) of this section.

TITLE IX—SUPPORT FOR A ROBUST GLOBAL RESPONSE TO THE COVID–19 PANDEMIC

SEC. 901. UNITED STATES POLICIES.

(a) UNITED STATES POLICIES AT THE INTERNATIONAL FINANCIAL INSTITUTIONS.—

(1) IN GENERAL.—The Secretary of the Treasury shall instruct the United States Executive Director at each international financial institution (as defined in section 1701(c)(2) of the

International Financial Institutions Act (22 U.S.C. 262r(c)(2))) to use the voice and vote of the United States at the respective institution—

(A) to seek to ensure adequate fiscal space for world economies in response to the global coronavirus disease 2019 (commonly referred to as ''COVID–19'') pandemic through—

(i) the suspension of all debt service payments to the institution; and

(ii) the relaxation of fiscal targets for any government operating a program supported by the institution, or seeking financing from the institution, in response to the pandemic;

(B) to oppose the approval or endorsement of any loan, grant, document, or strategy that would lead to a decrease in health care spending or in any other spending that would impede the ability of any country to prevent or contain the spread of, or treat persons who are or may be infected with, the SARS–CoV–2 virus; and

(C) to require approval of all Special Drawing Rights allocation transfers from wealthier member countries to countries that are emerging markets or developing countries, based on confirmation of implementable transparency mechanisms or protocols to ensure the allocations are used for the public good and in response the global pandemic.

(2) IMF ISSUANCE OF SPECIAL DRAWING RIGHTS.—It is the policy of the United States to support the issuance of a special allocation of not less than 2,000,000,000,000 Special Drawing Rights so that governments are able to access additional resources to finance their responses to the global COVID–19 pandemic. The Secretary of the Treasury shall use the voice and vote of the United States to support the issuance, and shall instruct the United States Executive Director at the International Monetary Fund to support the same.

(3) ALLOCATION OF U.S. SPECIAL DRAWING RIGHTS.—It is also the policy of the United States, which has large reserves and little use for its Special Drawing Rights, to contribute a significant portion of its current stock, and any future allocation of, Special Drawing Rights to the Poverty Reduction and Growth Facility (PRGF) or a similar special purpose vehicle at the International Monetary Fund to help developing and low-income countries respond to the health and economic impacts of the COVID–19 pandemic.

(4) IMPLEMENTATION.—The Secretary of the Treasury shall instruct the United States Executive Director at the International Monetary Fund to use the voice and vote of the United States to actively promote and take all appropriate actions with respect to implementing the policy goals of the United States set forth in paragraphs (2) and (3), and shall post the instruction on the website of the Department of the Treasury.

(b) UNITED STATES POLICY AT THE G20.—The Secretary of the Treasury shall commence immediate efforts to reach an agreement with the Group of Twenty to extend through the end of 2021 the current moratorium on debt service payments to official bilateral creditors by the world's poorest countries.

(c) REPORT REQUIRED.—The Chairman of the National Advisory Council on International Monetary and Financial Policies shall include in the annual report required by section 1701 of the International Financial Institutions Act (22 U.S.C. 262r) a description of progress made toward advancing the policies described in subsection (a) of this section.

(d) TERMINATION.—Subsections (a) and (c) shall have no force or effect after the earlier of—

(1) the date that is 1 year after the date of the enactment of this Act; or

(2) the date that is 30 days after the date on which the Secretary of the Treasury submits to the Committee on Foreign Relations of the Senate and the Committee on Financial Services of the House of Representatives a report stating that the SARS–CoV–2 virus is no longer a serious threat to public health in any part of the world.

TITLE X—PROVIDING OVERSIGHT AND PROTECTING TAXPAYERS

SEC. 1001. MANDATORY REPORTS TO CONGRESS.

(a) DISCLOSURE OF TRANSACTION REPORTS.—Section 4026(b)(1)(A)(iii) of the CARES Act (Public Law 116–136) is amended—

(1) in subclause (IV)—

(A) by inserting ''and the justification for such exercise of authority'' after ''authority''; and

(B) by striking ''and'' at the end;

(2) in subclause (V), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(VI) the identity of each recipient of a loan or loan guarantee described in subclause (I);

''(VII) the date and amount of each such loan or loan guarantee and the form in which each such loan or loan guarantee was provided;

''(VIII) the material terms of each such loan or loan guarantee, including—

''(aa) duration;

''(bb) collateral pledged and the value thereof;

''(cc) all interest, fees, and other revenue or items of value to be received in exchange for such loan or loan guarantee;

''(dd) any requirements imposed on the recipient with respect to employee compensation, distribution of dividends, or any other corporate decision in exchange for the assistance; and

''(ee) the expected costs to the Federal Government with respect to such loans or loan guarantees.''.

(b) REPORTS BY THE SECRETARY OF THE TREASURY.—Section 4018 of the CARES Act (Public Law 116–136) is amended by adding at the end the following:

''(k) REPORTS BY THE SECRETARY.—Not later than 7 days after the last day of each month, the Secretary shall submit to the Special Inspector General, the Committee on Financial Services of the House of Representatives, and the Committee on Banking, Housing, and Urban Affairs of the Senate a report that includes the information specified in subparagraphs (A) through (E) of subsection (c)(1) with respect to the making, purchase, management, and sale of loans, loan guarantees, and other investments made by the Secretary under any program established by the Secretary under this Act.''.

SEC. 1002. DISCRETIONARY REPORTS TO CONGRESS.

Section 4020(b) of the CARES Act (Public Law 116–136) is amended by adding at the end the following:

''(3) DISCRETIONARY REPORTS TO CONGRESS.—In addition to the reports required under paragraph (2), the Oversight Commission may submit other reports to Congress at such time, in such manner, and containing such information as the Oversight Commission determines appropriate.''.

SEC. 1003. DEFINITION OF APPROPRIATE CONGRESSIONAL COMMITTEES.

(a) PANDEMIC RESPONSE ACCOUNTABILITY COMMITTEE.—Section 15010(a)(2) of the CARES Act (Public Law 116–136) is amended—

(1) by redesignating subparagraphs (B) through (D) as subparagraphs (D) through (F), respectively; and

(2) by inserting after subparagraph (A) the following:

''(B) the Committee on Banking, Housing, and Urban Affairs of the Senate;

''(C) the Committee on Financial Services of the House of Representatives;''.

(b) OVERSIGHT AND AUDIT AUTHORITY.—Section 19010(a)(1) of the CARES Act (Public Law 116–136) is amended—

(1) by redesignating subparagraphs (B) through (G) as subparagraphs (D) through (I), respectively; and

(2) by inserting after subparagraph (A) the following:

''(B) the Committee on Banking, Housing, and Urban Affairs of the Senate;

''(C) the Committee on Financial Services of the House of Representatives;''.

SEC. 1004. ADDITIONAL REPORTING ON FUNDING FOR DIVERSE-OWNED BUSINESSES.

Section 15010(d)(2) of the CARES Act (Public Law 116–136) is amended—

(1) by redesignating subparagraph (C) as subparagraph (D); and

(2) by inserting after subparagraph (B) the following:

''(C) The Committee shall submit to Congress, including the appropriate congressional committees, quarterly reports that include an analysis of Federal funds provided during the pandemic that have been used to support communities of color, including minority-owned businesses and minority depository institutions, broken down by race and ethnicity.''; and

SEC. 1005. REPORTING BY INSPECTORS GENERAL.

(a) DEFINITION OF COVERED AGENCY.—In this section, the term ''covered agency'' means—

(1) the Department of the Treasury;

(2) the Federal Deposit Insurance Corporation;

(3) the Office of the Comptroller of the Currency;

(4) the Board of Governors of the Federal Reserve System;

(5) the National Credit Union Administration;

(6) the Bureau of Consumer Financial Protection;

(7) the Department of Housing and Urban Development;

(8) the Department of Agriculture, Rural Housing Service;

(9) the Securities and Exchange Commission; and

(10) the Federal Housing Finance Agency.

(b) REPORT.—The Inspector General of each covered agency shall include in each semiannual report submitted by the Inspector General the findings of the Inspector General on the effectiveness of—

(1) rulemaking by the covered agency related to COVID–19; and

(2) supervision and oversight by the covered agency of institutions and entities that participate in COVID–19-related relief, funding, lending, or other programs of the covered agency.

(c) SUBMISSION.—The Inspector General of each covered agency shall submit the information required to be included in each semiannual report under subsection (b) to—

(1) the Special Inspector General for Pandemic Recovery appointed under section 4018 of division A of the CARES Act (Public Law 116–136);

(2) the Pandemic Response Accountability Committee established under section 15010 of division B of the CARES Act (Public Law 116–136); and

(3) the Congressional Oversight Commission established under section 4020 of division A of the CARES Act (Public Law 116–136).

DIVISION P—ACCESS ACT

SEC. 101. SHORT TITLE.

This Act may be cited as the ''American Coronavirus/COVID–19 Election Safety and Security Act'' or the ''ACCESS Act''.

SEC. 102. REQUIREMENTS FOR FEDERAL ELECTION CONTINGENCY PLANS IN RESPONSE TO NATURAL DISASTERS AND EMERGENCIES.

(a) IN GENERAL.—

(1) ESTABLISHMENT.—Not later than 90 days after the date of the enactment of this Act, each State and each jurisdiction in a State which is responsible for administering elections for Federal office shall establish and make publicly available a contingency plan to enable individuals to vote in elections for Federal office during a state of emergency, public health emergency, or national emergency which has been declared for reasons including—

(A) a natural disaster; or

(B) an infectious disease.

(2) UPDATING.—Each State and jurisdiction shall update the contingency plan established

under this subsection not less frequently than every 5 years.

(b) REQUIREMENTS RELATING TO SAFETY.—The contingency plan established under subsection (a) shall include initiatives to provide equipment and resources needed to protect the health and safety of poll workers and voters when voting in person.

(c) REQUIREMENTS RELATING TO RECRUITMENT OF POLL WORKERS.—The contingency plan established under subsection (a) shall include initiatives by the chief State election official and local election officials to recruit poll workers from resilient or unaffected populations, which may include—

(1) employees of other State and local government offices; and

(2) in the case in which an infectious disease poses significant increased health risks to elderly individuals, students of secondary schools and institutions of higher education in the State.

(d) ENFORCEMENT.—

(1) ATTORNEY GENERAL.—The Attorney General may bring a civil action against any State or jurisdiction in an appropriate United States District Court for such declaratory and injunctive relief (including a temporary restraining order, a permanent or temporary injunction, or other order) as may be necessary to carry out the requirements of this section.

(2) PRIVATE RIGHT OF ACTION.—

(A) IN GENERAL.—In the case of a violation of this section, any person who is aggrieved by such violation may provide written notice of the violation to the chief election official of the State involved.

(B) RELIEF.—If the violation is not corrected within 20 days after receipt of a notice under subparagraph (A), or within 5 days after receipt of the notice if the violation occurred within 120 days before the date of an election for Federal office, the aggrieved person may, in a civil action, obtain declaratory or injunctive relief with respect to the violation.

(C) SPECIAL RULE.—If the violation occurred within 5 days before the date of an election for Federal office, the aggrieved person need not provide notice to the chief election official of the State involved under subparagraph (A) before bringing a civil action under subparagraph (B).

(e) DEFINITIONS.—

(1) ELECTION FOR FEDERAL OFFICE.—For purposes of this section, the term ''election for Federal office'' means a general, special, primary, or runoff election for the office of President or Vice President, or of Senator or Representative in, or Delegate or Resident Commissioner to, the Congress.

(2) STATE.—For purposes of this section, the term ''State'' includes the District of Columbia, the Commonwealth of Puerto Rico, Guam, American Samoa, the United States Virgin Islands, and the Commonwealth of the Northern Mariana Islands.

(f) EFFECTIVE DATE.—This section shall apply with respect to the regularly scheduled general election for Federal office held in November 2020 and each succeeding election for Federal office.

SEC. 103. EARLY VOTING AND VOTING BY MAIL.

(a) REQUIREMENTS.—Title III of the Help America Vote Act of 2002 (52 U.S.C. 21081 et seq.) is amended by adding at the end the following new subtitle:

''Subtitle C—Other Requirements

''SEC. 321. EARLY VOTING.

''(a) REQUIRING ALLOWING VOTING PRIOR TO DATE OF ELECTION.—

''(1) IN GENERAL.—Each State shall allow individuals to vote in an election for Federal office during an early voting period which occurs prior to the date of the election, in the same manner as voting is allowed on such date.

''(2) LENGTH OF PERIOD.—The early voting period required under this subsection with respect to an election shall consist of a period of consecutive days (including weekends) which begins on the 15th day before the date of the election (or, at the option of the State, on a day prior to the 15th day before the date of the election) and ends on the date of the election.

''(b) MINIMUM EARLY VOTING REQUIREMENTS.—Each polling place which allows voting during an early voting period under subsection (a) shall—

''(1) allow such voting for no less than 10 hours on each day;

''(2) have uniform hours each day for which such voting occurs; and

''(3) allow such voting to be held for some period of time prior to 9:00 a.m (local time) and some period of time after 5:00 p.m. (local time).

''(c) LOCATION OF POLLING PLACES.—

''(1) PROXIMITY TO PUBLIC TRANSPORTATION.—To the greatest extent practicable, a State shall ensure that each polling place which allows voting during an early voting period under subsection (a) is located within walking distance of a stop on a public transportation route.

''(2) AVAILABILITY IN RURAL AREAS.—The State shall ensure that polling places which allow voting during an early voting period under subsection (a) will be located in rural areas of the State, and shall ensure that such polling places are located in communities which will provide the greatest opportunity for residents of rural areas to vote during the early voting period.

''(d) STANDARDS.—

''(1) IN GENERAL.—The Commission shall issue standards for the administration of voting prior to the day scheduled for a Federal election. Such standards shall include the nondiscriminatory geographic placement of polling places at which such voting occurs.

''(2) DEVIATION.—The standards described in paragraph (1) shall permit States, upon providing adequate public notice, to deviate from any requirement in the case of unforeseen circumstances such as a natural disaster, terrorist attack, or a change in voter turnout.

''(e) BALLOT PROCESSING AND SCANNING REQUIREMENTS.—

''(1) IN GENERAL.—The State shall begin processing and scanning ballots cast during early voting for tabulation at least 14 days prior to the date of the election involved.

''(2) LIMITATION.—Nothing in this subsection shall be construed to permit a State to tabulate ballots in an election before the closing of the polls on the date of the election.

''(f) EFFECTIVE DATE.—This section shall apply with respect to the regularly scheduled general election for Federal office held in November 2020 and each succeeding election for Federal office.

''SEC. 322. PROMOTING ABILITY OF VOTERS TO VOTE BY MAIL.

''(a) UNIFORM AVAILABILITY OF ABSENTEE VOTING TO ALL VOTERS.—

''(1) IN GENERAL.—If an individual in a State is eligible to cast a vote in an election for Federal office, the State may not impose any additional conditions or requirements on the eligibility of the individual to cast the vote in such election by absentee ballot by mail.

''(2) ADMINISTRATION OF VOTING BY MAIL.—

''(A) PROHIBITING IDENTIFICATION REQUIREMENT AS CONDITION OF OBTAINING BALLOT.—A State may not require an individual to provide any form of identification as a condition of obtaining an absentee ballot, except that nothing in this paragraph may be construed to prevent a State from requiring a signature of the individual or similar affirmation as a condition of obtaining an absentee ballot.

''(B) PROHIBITING REQUIREMENT TO PROVIDE NOTARIZATION OR WITNESS SIGNATURE AS CONDITION OF OBTAINING OR CASTING BALLOT.—A State may not require notarization or witness signature or other formal authentication (other than voter attestation) as a condition of obtaining or casting an absentee ballot.

''(C) DEADLINE FOR RETURNING BALLOT.—A State may impose a deadline for requesting the absentee ballot and related voting materials from the appropriate State or local election official and for returning the ballot to the appropriate State or local election official.

''(3) APPLICATION FOR ALL FUTURE ELECTIONS.—At the option of an individual, a State shall treat the individual's application to vote by absentee ballot by mail in an election for Federal office as an application to vote by absentee ballot by mail in all subsequent Federal elections held in the State.

''(b) DUE PROCESS REQUIREMENTS FOR STATES REQUIRING SIGNATURE VERIFICATION.—

''(1) REQUIREMENT.—

''(A) IN GENERAL.—A State may not impose a signature verification requirement as a condition of accepting and counting an absentee ballot submitted by any individual with respect to an election for Federal office unless the State meets the due process requirements described in paragraph (2).

''(B) SIGNATURE VERIFICATION REQUIREMENT DESCRIBED.—In this subsection, a 'signature verification requirement' is a requirement that an election official verify the identification of an individual by comparing the individual's signature on the absentee ballot with the individual's signature on the official list of registered voters in the State or another official record or other document used by the State to verify the signatures of voters.

''(2) DUE PROCESS REQUIREMENTS.—

''(A) NOTICE AND OPPORTUNITY TO CURE DISCREPANCY.—If an individual submits an absentee ballot and the appropriate State or local election official determines that a discrepancy exists between the signature on such ballot and the signature of such individual on the official list of registered voters in the State or other official record or document used by the State to verify the signatures of voters, such election official, prior to making a final determination as to the validity of such ballot, shall—

''(i) make a good faith effort to immediately notify the individual by mail, telephone, and (if available) electronic mail that—

''(I) a discrepancy exists between the signature on such ballot and the signature of the individual on the official list of registered voters in the State, and

''(II) if such discrepancy is not cured prior to the expiration of the 10-day period which begins on the date the official notifies the individual of the discrepancy, such ballot will not be counted; and

''(ii) cure such discrepancy and count the ballot if, prior to the expiration of the 10-day period described in clause (i)(II), the individual provides the official with information to cure such discrepancy, either in person, by telephone, or by electronic methods.

''(B) NOTICE AND OPPORTUNITY TO PROVIDE MISSING SIGNATURE.—If an individual submits an absentee ballot without a signature, the appropriate State or local election official, prior to making a final determination as to the validity of the ballot, shall—

''(i) make a good faith effort to immediately notify the individual by mail, telephone, and (if available) electronic mail that—

''(I) the ballot did not include a signature, and

''(II) if the individual does not provide the missing signature prior to the expiration of the 10-day period which begins on the date the official notifies the individual that the ballot did not include a signature, such ballot will not be counted; and

''(ii) count the ballot if, prior to the expiration of the 10-day period described in clause (i)(II), the individual provides the official with the missing signature on a form proscribed by the State.

''(C) OTHER REQUIREMENTS.—An election official may not make a determination that a discrepancy exists between the signature on an absentee ballot and the signature of the individual who submits the ballot on the official list of registered voters in the State or other official record

or other document used by the State to verify the signatures of voters unless—

''(i) at least 2 election officials make the determination; and

''(ii) each official who makes the determination has received training in procedures used to verify signatures.

''(3) REPORT.—

''(A) IN GENERAL.—Not later than 120 days after the end of a Federal election cycle, each chief State election official shall submit to Congress a report containing the following information for the applicable Federal election cycle in the State:

''(i) The number of ballots invalidated due to a discrepancy under this subsection.

''(ii) Description of attempts to contact voters to provide notice as required by this subsection.

''(iii) Description of the cure process developed by such State pursuant to this subsection, including the number of ballots determined valid as a result of such process.

''(B) FEDERAL ELECTION CYCLE DEFINED.—For purposes of this subsection, the term 'Federal election cycle' means the period beginning on January 1 of any odd numbered year and ending on December 31 of the following year.

''(c) METHODS AND TIMING FOR TRANSMISSION OF BALLOTS AND BALLOTING MATERIALS TO VOTERS.—

''(1) METHOD FOR REQUESTING BALLOT.—In addition to such other methods as the State may establish for an individual to request an absentee ballot, the State shall permit an individual to submit a request for an absentee ballot online. The State shall be considered to meet the requirements of this paragraph if the website of the appropriate State or local election official allows an absentee ballot request application to be completed and submitted online and if the website permits the individual—

''(A) to print the application so that the individual may complete the application and return it to the official; or

''(B) request that a paper copy of the application be transmitted to the individual by mail or electronic mail so that the individual may complete the application and return it to the official.

''(2) ENSURING DELIVERY PRIOR TO ELECTION.—If an individual requests to vote by absentee ballot in an election for Federal office, the appropriate State or local election official shall ensure that the ballot and relating voting materials are received by the individual prior to the date of the election so long as the individual's request is received by the official not later than 5 days (excluding Saturdays, Sundays, and legal public holidays) before the date of the election, except that nothing in this paragraph shall preclude a State or local jurisdiction from allowing for the acceptance and processing of ballot requests submitted or received after such required period.

''(d) ACCESSIBILITY FOR INDIVIDUALS WITH DISABILITIES.—The State shall ensure that all absentee ballots and related voting materials in elections for Federal office are accessible to individuals with disabilities in a manner that provides the same opportunity for access and participation (including with privacy and independence) as for other voters.

''(e) UNIFORM DEADLINE FOR ACCEPTANCE OF MAILED BALLOTS.—

''(1) IN GENERAL.—A State may not refuse to accept or process a ballot submitted by an individual by mail with respect to an election for Federal office in the State on the grounds that the individual did not meet a deadline for returning the ballot to the appropriate State or local election official if—

''(A) the ballot is postmarked, signed, or otherwise indicated by the United States Postal Service to have been mailed on or before the date of the election; and

''(B) the ballot is received by the appropriate election official prior to the expiration of the 10-day period which begins on the date of the election.

''(2) RULE OF CONSTRUCTION.—Nothing in this subsection shall be construed to prohibit a State from having a law that allows for counting of ballots in an election for Federal office that are received through the mail after the date that is 10 days after the date of the election.

''(f) ALTERNATIVE METHODS OF RETURNING BALLOTS.—

''(1) IN GENERAL.—In addition to permitting an individual to whom a ballot in an election was provided under this section to return the ballot to an election official by mail, the State shall permit the individual to cast the ballot by delivering the ballot at such times and to such locations as the State may establish, including—

''(A) permitting the individual to deliver the ballot to a polling place on any date on which voting in the election is held at the polling place; and

''(B) permitting the individual to deliver the ballot to a designated ballot drop-off location.

''(2) PERMITTING VOTERS TO DESIGNATE OTHER PERSON TO RETURN BALLOT.—The State—

''(A) shall permit a voter to designate any person to return a voted and sealed absentee ballot to the post office, a ballot drop-off location, tribally designated building, or election office so long as the person designated to return the ballot does not receive any form of compensation based on the number of ballots that the person has returned and no individual, group, or organization provides compensation on this basis; and

''(B) may not put any limit on how many voted and sealed absentee ballots any designated person can return to the post office, a ballot drop off location, tribally designated building, or election office.

''(g) BALLOT PROCESSING AND SCANNING REQUIREMENTS.—

''(1) IN GENERAL.—The State shall begin processing and scanning ballots cast by mail for tabulation at least 14 days prior to the date of the election involved.

''(2) LIMITATION.—Nothing in this subsection shall be construed to permit a State to tabulate ballots in an election before the closing of the polls on the date of the election.

''(h) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to affect the authority of States to conduct elections for Federal office through the use of polling places at which individuals cast ballots.

''(i) NO EFFECT ON BALLOTS SUBMITTED BY ABSENT MILITARY AND OVERSEAS VOTERS.—Nothing in this section may be construed to affect the treatment of any ballot submitted by an individual who is entitled to vote by absentee ballot under the Uniformed and Overseas Citizens Absentee Voting Act (52 U.S.C. 20301 et seq.).

''(j) EFFECTIVE DATE.—This section shall apply with respect to the regularly scheduled general election for Federal office held in November 2020 and each succeeding election for Federal office.

''SEC. 323. ABSENTEE BALLOT TRACKING PROGRAM.

''(a) REQUIREMENT.—Each State shall carry out a program to track and confirm the receipt of absentee ballots in an election for Federal office under which the State or local election official responsible for the receipt of voted absentee ballots in the election carries out procedures to track and confirm the receipt of such ballots, and makes information on the receipt of such ballots available to the individual who cast the ballot, by means of online access using the Internet site of the official's office.

''(b) INFORMATION ON WHETHER VOTE WAS COUNTED.—The information referred to under subsection (a) with respect to the receipt of an absentee ballot shall include information regarding whether the vote cast on the ballot was counted, and, in the case of a vote which was not counted, the reasons therefor.

''(c) USE OF TOLL-FREE TELEPHONE NUMBER BY OFFICIALS WITHOUT INTERNET SITE.—A program established by a State or local election official whose office does not have an Internet site may meet the requirements of subsection (a) if the official has established a toll-free telephone number that may be used by an individual who cast an absentee ballot to obtain the information on the receipt of the voted absentee ballot as provided under such subsection.

''(d) EFFECTIVE DATE.—This section shall begin to apply on that date that is 90 days after the date of the enactment of this section.

''SEC. 324. RULES FOR COUNTING PROVISIONAL BALLOTS.

''(a) STATEWIDE COUNTING OF PROVISIONAL BALLOTS.—

''(1) IN GENERAL.—For purposes of section 302(a)(4), notwithstanding the precinct or polling place at which a provisional ballot is cast within the State, the appropriate election official shall count each vote on such ballot for each election in which the individual who cast such ballot is eligible to vote.

''(2) EFFECTIVE DATE.—This subsection shall apply with respect to the regularly scheduled general election for Federal office held in November 2020 and each succeeding election for Federal office.

''(b) UNIFORM AND NONDISCRIMINATORY STANDARDS.—

''(1) IN GENERAL.—Consistent with the requirements of section 302, each State shall establish uniform and nondiscriminatory standards for the issuance, handling, and counting of provisional ballots.

''(2) EFFECTIVE DATE.—This subsection shall apply with respect to the regularly scheduled general election for Federal office held in November 2020 and each succeeding election for Federal office.

''SEC. 325. COVERAGE OF COMMONWEALTH OF NORTHERN MARIANA ISLANDS.

''In this subtitle, the term 'State' includes the Commonwealth of the Northern Mariana Islands.

''SEC. 326. MINIMUM REQUIREMENTS FOR EXPANDING ABILITY OF INDIVIDUALS TO VOTE.

''The requirements of this subtitle are minimum requirements, and nothing in this subtitle may be construed to prevent a State from establishing standards which promote the ability of individuals to vote in elections for Federal office, so long as such standards are not inconsistent with the requirements of this subtitle or other Federal laws.''.

(b) CONFORMING AMENDMENT RELATING TO ISSUANCE OF VOLUNTARY GUIDANCE BY ELECTION ASSISTANCE COMMISSION.—Section 311(b) of such Act (52 U.S.C. 21101(b)) is amended—

(1) by striking ''and'' at the end of paragraph (2);

(2) by striking the period at the end of paragraph (3) and inserting ''; and''; and

(3) by adding at the end the following new paragraph:

''(4) in the case of the recommendations with respect to subtitle C, June 30, 2020.''.

(c) ENFORCEMENT.—

(1) COVERAGE UNDER EXISTING ENFORCEMENT PROVISIONS.—Section 401 of such Act (52 U.S.C. 21111) is amended by striking ''and 303'' and inserting ''303, and subtitle C of title III''.

(2) AVAILABILITY OF PRIVATE RIGHT OF ACTION.—Title IV of such (52 U.S.C. 21111 et seq.) is amended by adding at the end the following new section:

''SEC. 403. PRIVATE RIGHT OF ACTION FOR VIOLATIONS OF CERTAIN REQUIREMENTS.

''(a) IN GENERAL.—In the case of a violation of subtitle C of title III, section 402 shall not apply and any person who is aggrieved by such violation may provide written notice of the violation to the chief election official of the State involved.

''(b) RELIEF.—If the violation is not corrected within 20 days after receipt of a notice under subsection (a), or within 5 days after receipt of

the notice if the violation occurred within 120 days before the date of an election for Federal office, the aggrieved person may, in a civil action, obtain declaratory or injunctive relief with respect to the violation.

''(c) SPECIAL RULE.—If the violation occurred within 5 days before the date of an election for Federal office, the aggrieved person need not provide notice to the chief election official of the State involved under subsection (a) before bringing a civil action under subsection (b).''.

(d) CLERICAL AMENDMENT.—The table of contents of such Act is amended—

(1) by adding at the end of the items relating to title III the following:

''Subtitle C—Other Requirements

''Sec. 321. Early voting.
''Sec. 322. Promoting ability of voters to vote by mail.
''Sec. 323. Absentee ballot tracking program.
''Sec. 324. Rules for counting provisional ballots.
''Sec. 325. Coverage of Commonwealth of Northern Mariana Islands.
''Sec. 326. Minimum requirements for expanding ability of individuals to vote.''; and

(2) by adding at the end of the items relating to title IV the following new item:

''Sec. 403. Private right of action for violations of certain requirements.''.

SEC. 104. PERMITTING USE OF SWORN WRITTEN STATEMENT TO MEET IDENTIFICATION REQUIREMENTS FOR VOTING.

(a) PERMITTING USE OF STATEMENT.—Subtitle C of title III of the Help America Vote Act of 2002, as added by section 160003(a), is amended—

(1) by redesignating sections 325 and 326 as sections 326 and 327; and

(2) by inserting after section 324 the following new section:

''SEC. 325. PERMITTING USE OF SWORN WRITTEN STATEMENT TO MEET IDENTIFICATION REQUIREMENTS.

''(a) USE OF STATEMENT.—

''(1) IN GENERAL.—Except as provided in subsection (c), if a State has in effect a requirement that an individual present identification as a condition of casting a ballot in an election for Federal office, the State shall permit the individual to meet the requirement—

''(A) in the case of an individual who desires to vote in person, by presenting the appropriate State or local election official with a sworn written statement, signed by the individual under penalty of perjury, attesting to the individual's identity and attesting that the individual is eligible to vote in the election; or

''(B) in the case of an individual who desires to vote by mail, by submitting with the ballot the statement described in subparagraph (A).

''(2) DEVELOPMENT OF PRE-PRINTED VERSION OF STATEMENT BY COMMISSION.—The Commission shall develop a pre-printed version of the statement described in paragraph (1)(A) which includes a blank space for an individual to provide a name and signature for use by election officials in States which are subject to paragraph (1).

''(3) PROVIDING PRE-PRINTED COPY OF STATEMENT.—A State which is subject to paragraph (1) shall—

''(A) make copies of the pre-printed version of the statement described in paragraph (1)(A) which is prepared by the Commission available at polling places for election officials to distribute to individuals who desire to vote in person; and

''(B) include a copy of such pre-printed version of the statement with each blank absentee or other ballot transmitted to an individual who desires to vote by mail.

''(b) REQUIRING USE OF BALLOT IN SAME MANNER AS INDIVIDUALS PRESENTING IDENTIFICATION.—An individual who presents or submits a sworn written statement in accordance with subsection (a)(1) shall be permitted to cast a ballot in the election in the same manner as an individual who presents identification.

''(c) EXCEPTION FOR FIRST-TIME VOTERS REGISTERING BY MAIL.—Subsections (a) and (b) do not apply with respect to any individual described in paragraph (1) of section 303(b) who is required to meet the requirements of paragraph (2) of such section.''.

(b) REQUIRING STATES TO INCLUDE INFORMATION ON USE OF SWORN WRITTEN STATEMENT IN VOTING INFORMATION MATERIAL POSTED AT POLLING PLACES.—Section 302(b)(2) of such Act (52 U.S.C. 21082(b)(2)), is amended—

(1) by striking ''and'' at the end of subparagraph (E);

(2) by striking the period at the end of subparagraph (F) and inserting ''; and''; and

(3) by adding at the end the following new subparagraph:

''(G) in the case of a State that has in effect a requirement that an individual present identification as a condition of casting a ballot in an election for Federal office, information on how an individual may meet such requirement by presenting a sworn written statement in accordance with section 303A.''.

(c) CLERICAL AMENDMENT.—The table of contents of such Act, as amended by section 160003, is amended—

(1) by redesignating the items relating to sections 325 and 326 as relating to sections 326 and 327; and

(2) by inserting after the item relating to section 324 the following new item:

''Sec. 325. Permitting use of sworn written statement to meet identification requirements.''.

(d) EFFECTIVE DATE.—The amendments made by this section shall apply with respect to elections occurring on or after the date of the enactment of this Act.

SEC. 105. VOTING MATERIALS POSTAGE.

(a) PREPAYMENT OF POSTAGE ON RETURN ENVELOPES.—

(1) IN GENERAL.—Subtitle C of title III of the Help America Vote Act of 2002, as added by section 160003(a) and as amended by section 160004(a), is further amended—

(A) by redesignating sections 326 and 327 as sections 327 and 328; and

(B) by inserting after section 325 the following new section:

''SEC. 326. PREPAYMENT OF POSTAGE ON RETURN ENVELOPES FOR VOTING MATERIALS.

''(a) PROVISION OF RETURN ENVELOPES.—The appropriate State or local election official shall provide a self-sealing return envelope with—

''(1) any voter registration application form transmitted to a registrant by mail;

''(2) any application for an absentee ballot transmitted to an applicant by mail; and

''(3) any blank absentee ballot transmitted to a voter by mail.

''(b) PREPAYMENT OF POSTAGE.—Consistent with regulations of the United States Postal Service, the State or the unit of local government responsible for the administration of the election involved shall prepay the postage on any envelope provided under subsection (a).

''(c) NO EFFECT ON BALLOTS OR BALLOTING MATERIALS TRANSMITTED TO ABSENT MILITARY AND OVERSEAS VOTERS.—Nothing in this section may be construed to affect the treatment of any ballot or balloting materials transmitted to an individual who is entitled to vote by absentee ballot under the Uniformed and Overseas Citizens Absentee Voting Act (52 U.S.C. 20301 et seq.).

''(d) EFFECTIVE DATE.—This section shall take effect on the date that is 90 days after the date of the enactment of this section, except that—

''(1) State and local jurisdictions shall make arrangements with the United States Postal Service to pay for all postage costs that such jurisdictions would be required to pay under this section if this section took effect on the date of enactment; and

''(2) States shall take all reasonable efforts to provide self-sealing return envelopes as provided in this section.''.

(2) CLERICAL AMENDMENT.—The table of contents of such Act, as amended by section 160004(c), is amended—

(A) by redesignating the items relating to sections 326 and 327 as relating to sections 327 and 328; and

(B) by inserting after the item relating to section 325 the following new item:

''Sec. 326. Prepayment of postage on return envelopes for voting materials''.

(b) ROLE OF UNITED STATES POSTAL SERVICE.—

(1) IN GENERAL.—Chapter 34 of title 39, United States Code, is amended by adding after section 3406 the following:

''§ 3407. Voting materials

''(a) Any voter registration application, absentee ballot application, or absentee ballot with respect to any election for Federal office shall be carried expeditiously, with postage on the return envelope prepaid by the State or unit of local government responsible for the administration of the election.

''(b) As used in this section—

''(1) the term 'absentee ballot' means any ballot transmitted by a voter by mail in an election for Federal office, but does not include any ballot covered by section 3406; and

''(2) the term 'election for Federal office' means a general, special, primary, or runoff election for the office of President or Vice President, or of Senator or Representative in, or Delegate or Resident Commissioner to, the Congress.

''(c) Nothing in this section may be construed to affect the treatment of any ballot or balloting materials transmitted to an individual who is entitled to vote by absentee ballot under the Uniformed and Overseas Citizens Absentee Voting Act (52 U.S.C. 20301 et seq.).''.

(2) CLERICAL AMENDMENT.—The table of sections for chapter 34 of such title is amended by inserting after the item relating to section 3406 the following:

''3407. Voting materials.''.

SEC. 106. REQUIRING TRANSMISSION OF BLANK ABSENTEE BALLOTS UNDER UOCAVA TO CERTAIN VOTERS.

(a) IN GENERAL.—The Uniformed and Overseas Citizens Absentee Voting Act (52 U.S.C. 20301 et seq.) is amended by inserting after section 103B the following new section:

''SEC. 103C. TRANSMISSION OF BLANK ABSENTEE BALLOTS TO CERTAIN OTHER VOTERS.

''(a) IN GENERAL.—

''(1) STATE RESPONSIBILITIES.—Subject to the provisions of this section, each State shall transmit blank absentee ballots electronically to qualified individuals who request such ballots in the same manner and under the same terms and conditions under which the State transmits such ballots electronically to absent uniformed services voters and overseas voters under the provisions of section 102(f), except that no such marked ballots shall be returned electronically.

''(2) REQUIREMENTS.—Any blank absentee ballot transmitted to a qualified individual under this section—

''(A) must comply with the language requirements under section 203 of the Voting Rights Act of 1965 (52 U.S.C. 10503); and

''(B) must comply with the disability requirements under section 508 of the Rehabilitation Act of 1973 (29 U.S.C. 794d).

''(3) AFFIRMATION.—The State may not transmit a ballot to a qualified individual under this section unless the individual provides the State with a signed affirmation in electronic form that—

''(A) the individual is a qualified individual (as defined in subsection (b));

''(B) the individual has not and will not cast another ballot with respect to the election; and

''(C) acknowledges that a material misstatement of fact in completing the ballot may constitute grounds for conviction of perjury.

''(4) CLARIFICATION REGARDING FREE POSTAGE.—An absentee ballot obtained by a qualified individual under this section shall be considered balloting materials as defined in section 107 for purposes of section 3406 of title 39, United States Code.

''(5) PROHIBITING REFUSAL TO ACCEPT BALLOT FOR FAILURE TO MEET CERTAIN REQUIREMENTS.—A State shall not refuse to accept and process any otherwise valid blank absentee ballot which was transmitted to a qualified individual under this section and used by the individual to vote in the election solely on the basis of the following:

''(A) Notarization or witness signature requirements.

''(B) Restrictions on paper type, including weight and size.

''(C) Restrictions on envelope type, including weight and size.

''(b) QUALIFIED INDIVIDUAL.—

''(1) IN GENERAL.—In this section, except as provided in paragraph (2), the term 'qualified individual' means any individual who is otherwise qualified to vote in an election for Federal office and who meets any of the following requirements:

''(A) The individual—

''(i) has previously requested an absentee ballot from the State or jurisdiction in which such individual is registered to vote; and

''(ii) has not received such absentee ballot at least 2 days before the date of the election.

''(B) The individual—

''(i) resides in an area of a State with respect to which an emergency or public health emergency has been declared by the chief executive of the State or of the area involved within 5 days of the date of the election under the laws of the State due to reasons including a natural disaster, including severe weather, or an infectious disease; and

''(ii) has not previously requested an absentee ballot.

''(C) The individual expects to be absent from such individual's jurisdiction on the date of the election due to professional or volunteer service in response to a natural disaster or emergency as described in subparagraph (B).

''(D) The individual is hospitalized or expects to be hospitalized on the date of the election.

''(E) The individual is an individual with a disability (as defined in section 3 of the Americans with Disabilities Act of 1990 (42 U.S.C. 12102)) and resides in a State which does not offer voters the ability to use secure and accessible remote ballot marking. For purposes of this subparagraph, a State shall permit an individual to self-certify that the individual is an individual with a disability.

''(2) EXCLUSION OF ABSENT UNIFORMED SERVICES AND OVERSEAS VOTERS.—The term 'qualified individual' shall not include an absent uniformed services voter or an overseas voter.

''(c) STATE.—For purposes of this section, the term 'State' includes the District of Columbia, the Commonwealth of Puerto Rico, Guam, American Samoa, the United States Virgin Islands, and the Commonwealth of the Northern Mariana Islands.

''(d) EFFECTIVE DATE.—This section shall apply with respect to the regularly scheduled general election for Federal office held in November 2020 and each succeeding election for Federal office.''.

(b) CONFORMING AMENDMENT.—Section 102(a) of such Act (52 U.S.C. 20302(a)) is amended—

(1) by striking ''and'' at the end of paragraph (10);

(2) by striking the period at the end of paragraph (11) and inserting ''; and''; and

(3) by adding at the end the following new paragraph:

''(12) meet the requirements of section 103C with respect to the provision of blank absentee ballots for the use of qualified individuals described in such section.''.

(c) CLERICAL AMENDMENTS.—The table of contents of such Act is amended by inserting the following after section 103:

''Sec. 103A. Procedures for collection and delivery of marked absentee ballots of absent overseas uniformed services voters.

''Sec. 103B. Federal voting assistance program improvements.

''Sec. 103C. Transmission of blank absentee ballots to certain other voters.''.

SEC. 107. VOTER REGISTRATION.

(a) REQUIRING AVAILABILITY OF INTERNET FOR VOTER REGISTRATION.—

(1) REQUIRING AVAILABILITY OF INTERNET FOR REGISTRATION.—The National Voter Registration Act of 1993 (52 U.S.C. 20501 et seq.) is amended by inserting after section 6 the following new section:

''SEC. 6A. INTERNET REGISTRATION.

''(a) REQUIRING AVAILABILITY OF INTERNET FOR ONLINE REGISTRATION.—

''(1) AVAILABILITY OF ONLINE REGISTRATION AND CORRECTION OF EXISTING REGISTRATION INFORMATION.—Each State, acting through the chief State election official, shall ensure that the following services are available to the public at any time on the official public websites of the appropriate State and local election officials in the State, in the same manner and subject to the same terms and conditions as the services provided by voter registration agencies under section 7(a):

''(A) Online application for voter registration.

''(B) Online assistance to applicants in applying to register to vote.

''(C) Online completion and submission by applicants of the mail voter registration application form prescribed by the Election Assistance Commission pursuant to section 9(a)(2), including assistance with providing a signature as required under subsection (c).

''(D) Online receipt of completed voter registration applications.

''(b) ACCEPTANCE OF COMPLETED APPLICATIONS.—A State shall accept an online voter registration application provided by an individual under this section, and ensure that the individual is registered to vote in the State, if—

''(1) the individual meets the same voter registration requirements applicable to individuals who register to vote by mail in accordance with section 6(a)(1) using the mail voter registration application form prescribed by the Election Assistance Commission pursuant to section 9(a)(2); and

''(2) the individual meets the requirements of subsection (c) to provide a signature in electronic form (but only in the case of applications submitted during or after the second year in which this section is in effect in the State).

''(c) SIGNATURE REQUIREMENTS.—

''(1) IN GENERAL.—For purposes of this section, an individual meets the requirements of this subsection as follows:

''(A) In the case of an individual who has a signature on file with a State agency, including the State motor vehicle authority, that is required to provide voter registration services under this Act or any other law, the individual consents to the transfer of that electronic signature.

''(B) If subparagraph (A) does not apply, the individual submits with the application an electronic copy of the individual's handwritten signature through electronic means.

''(C) If subparagraph (A) and subparagraph (B) do not apply, the individual executes a computerized mark in the signature field on an online voter registration application, in accordance with reasonable security measures established by the State, but only if the State accepts such mark from the individual.

''(2) TREATMENT OF INDIVIDUALS UNABLE TO MEET REQUIREMENT.—If an individual is unable to meet the requirements of paragraph (1), the State shall—

''(A) permit the individual to complete all other elements of the online voter registration application;

''(B) permit the individual to provide a signature at the time the individual requests a ballot in an election (whether the individual requests the ballot at a polling place or requests the ballot by mail); and

''(C) if the individual carries out the steps described in subparagraph (A) and subparagraph (B), ensure that the individual is registered to vote in the State.

''(3) NOTICE.—The State shall ensure that individuals applying to register to vote online are notified of the requirements of paragraph (1) and of the treatment of individuals unable to meet such requirements, as described in paragraph (2).

''(d) CONFIRMATION AND DISPOSITION.—

''(1) CONFIRMATION OF RECEIPT.—Upon the online submission of a completed voter registration application by an individual under this section, the appropriate State or local election official shall send the individual a notice confirming the State's receipt of the application and providing instructions on how the individual may check the status of the application.

''(2) NOTICE OF DISPOSITION.—Not later than 7 days after the appropriate State or local election official has approved or rejected an application submitted by an individual under this section, the official shall send the individual a notice of the disposition of the application.

''(3) METHOD OF NOTIFICATION.—The appropriate State or local election official shall send the notices required under this subsection by regular mail and—

''(A) in the case of an individual who has provided the official with an electronic mail address, by electronic mail; and

''(B) at the option of an individual, by text message.

''(e) PROVISION OF SERVICES IN NONPARTISAN MANNER.—The services made available under subsection (a) shall be provided in a manner that ensures that, consistent with section 7(a)(5)—

''(1) the online application does not seek to influence an applicant's political preference or party registration; and

''(2) there is no display on the website promoting any political preference or party allegiance, except that nothing in this paragraph may be construed to prohibit an applicant from registering to vote as a member of a political party.

''(f) PROTECTION OF SECURITY OF INFORMATION.—In meeting the requirements of this section, the State shall establish appropriate technological security measures to prevent to the greatest extent practicable any unauthorized access to information provided by individuals using the services made available under subsection (a).

''(g) ACCESSIBILITY OF SERVICES.—A state shall ensure that the services made available under this section are made available to individuals with disabilities to the same extent as services are made available to all other individuals.

''(h) USE OF ADDITIONAL TELEPHONE-BASED SYSTEM.—A State shall make the services made available online under subsection (a) available through the use of an automated telephone-based system, subject to the same terms and conditions applicable under this section to the services made available online, in addition to making the services available online in accordance with the requirements of this section.

''(i) NONDISCRIMINATION AMONG REGISTERED VOTERS USING MAIL AND ONLINE REGISTRATION.—In carrying out this Act, the Help America Vote Act of 2002, or any other Federal, State, or local law governing the treatment of registered voters in the State or the administration of elections for public office in the State, a

State shall treat a registered voter who registered to vote online in accordance with this section in the same manner as the State treats a registered voter who registered to vote by mail.''.

(2) SPECIAL REQUIREMENTS FOR INDIVIDUALS USING ONLINE REGISTRATION.—

(A) TREATMENT AS INDIVIDUALS REGISTERING TO VOTE BY MAIL FOR PURPOSES OF FIRST-TIME VOTER IDENTIFICATION REQUIREMENTS.—Section 303(b)(1)(A) of the Help America Vote Act of 2002 (52 U.S.C. 21083(b)(1)(A)) is amended by striking ''by mail'' and inserting ''by mail or online under section 6A of the National Voter Registration Act of 1993''.

(B) REQUIRING SIGNATURE FOR FIRST-TIME VOTERS IN JURISDICTION.—Section 303(b) of such Act (52 U.S.C. 21083(b)) is amended—

(i) by redesignating paragraph (5) as paragraph (6); and

(ii) by inserting after paragraph (4) the following new paragraph:

''(5) SIGNATURE REQUIREMENTS FOR FIRST-TIME VOTERS USING ONLINE REGISTRATION.—

''(A) IN GENERAL.—A State shall, in a uniform and nondiscriminatory manner, require an individual to meet the requirements of subparagraph (B) if—

''(i) the individual registered to vote in the State online under section 6A of the National Voter Registration Act of 1993; and

''(ii) the individual has not previously voted in an election for Federal office in the State.

''(B) REQUIREMENTS.—An individual meets the requirements of this subparagraph if—

''(i) in the case of an individual who votes in person, the individual provides the appropriate State or local election official with a handwritten signature; or

''(ii) in the case of an individual who votes by mail, the individual submits with the ballot a handwritten signature.

''(C) INAPPLICABILITY.—Subparagraph (A) does not apply in the case of an individual who is—

''(i) entitled to vote by absentee ballot under the Uniformed and Overseas Citizens Absentee Voting Act (52 U.S.C. 20302 et seq.);

''(ii) provided the right to vote otherwise than in person under section 3(b)(2)(B)(ii) of the Voting Accessibility for the Elderly and Handicapped Act (52 U.S.C. 20102(b)(2)(B)(ii)); or

''(iii) entitled to vote otherwise than in person under any other Federal law.''.

(C) CONFORMING AMENDMENT RELATING TO EFFECTIVE DATE.—Section 303(d)(2)(A) of such Act (52 U.S.C. 21083(d)(2)(A)) is amended by striking ''Each State'' and inserting ''Except as provided in subsection (b)(5), each State''.

(3) CONFORMING AMENDMENTS.—

(A) TIMING OF REGISTRATION.—Section 8(a)(1) of the National Voter Registration Act of 1993 (52 U.S.C. 20507(a)(1)) is amended—

(i) by striking ''and'' at the end of subparagraph (C);

(ii) by redesignating subparagraph (D) as subparagraph (E); and

(iii) by inserting after subparagraph (C) the following new subparagraph:

''(D) in the case of online registration through the official public website of an election official under section 6A, if the valid voter registration application is submitted online not later than the lesser of 28 days, or the period provided by State law, before the date of the election (as determined by treating the date on which the application is sent electronically as the date on which it is submitted); and''.

(B) INFORMING APPLICANTS OF ELIGIBILITY REQUIREMENTS AND PENALTIES.—Section 8(a)(5) of such Act (52 U.S.C. 20507(a)(5)) is amended by striking ''and 7'' and inserting ''6A, and 7''.

(4) EFFECTIVE DATE.—The amendments made by this subsection shall take effect on the date that is 90 days after the date of the enactment of this subsection.

(b) USE OF INTERNET TO UPDATE REGISTRATION INFORMATION.—

(1) UPDATES TO INFORMATION CONTAINED ON COMPUTERIZED STATEWIDE VOTER REGISTRATION LIST.—

(A) IN GENERAL.—Section 303(a) of the Help America Vote Act of 2002 (52 U.S.C. 21083(a)) is amended by adding at the end the following new paragraph:

''(6) USE OF INTERNET BY REGISTERED VOTERS TO UPDATE INFORMATION.—

''(A) IN GENERAL.—The appropriate State or local election official shall ensure that any registered voter on the computerized list may at any time update the voter's registration information, including the voter's address and electronic mail address, online through the official public website of the election official responsible for the maintenance of the list, so long as the voter attests to the contents of the update by providing a signature in electronic form in the same manner required under section 6A(c) of the National Voter Registration Act of 1993.

''(B) PROCESSING OF UPDATED INFORMATION BY ELECTION OFFICIALS.—If a registered voter updates registration information under subparagraph (A), the appropriate State or local election official shall—

''(i) revise any information on the computerized list to reflect the update made by the voter; and

''(ii) if the updated registration information affects the voter's eligibility to vote in an election for Federal office, ensure that the information is processed with respect to the election if the voter updates the information not later than the lesser of 7 days, or the period provided by State law, before the date of the election.

''(C) CONFIRMATION AND DISPOSITION.—

''(i) CONFIRMATION OF RECEIPT.—Upon the online submission of updated registration information by an individual under this paragraph, the appropriate State or local election official shall send the individual a notice confirming the State's receipt of the updated information and providing instructions on how the individual may check the status of the update.

''(ii) NOTICE OF DISPOSITION.—Not later than 7 days after the appropriate State or local election official has accepted or rejected updated information submitted by an individual under this paragraph, the official shall send the individual a notice of the disposition of the update.

''(iii) METHOD OF NOTIFICATION.—The appropriate State or local election official shall send the notices required under this subparagraph by regular mail and—

''(I) in the case of an individual who has requested that the State provide voter registration and voting information through electronic mail, by electronic mail; and

''(II) at the option of an individual, by text message.''.

(B) CONFORMING AMENDMENT RELATING TO EFFECTIVE DATE.—Section 303(d)(1)(A) of such Act (52 U.S.C. 21083(d)(1)(A)) is amended by striking ''subparagraph (B),'' and inserting ''subparagraph (B) and subsection (a)(6),''.

(2) ABILITY OF REGISTRANT TO USE ONLINE UPDATE TO PROVIDE INFORMATION ON RESIDENCE.—Section 8(d)(2)(A) of the National Voter Registration Act of 1993 (52 U.S.C. 20507(d)(2)(A)) is amended—

(A) in the first sentence, by inserting after ''return the card'' the following: ''or update the registrant's information on the computerized Statewide voter registration list using the online method provided under section 303(a)(6) of the Help America Vote Act of 2002''; and

(B) in the second sentence, by striking ''returned,'' and inserting the following: ''returned or if the registrant does not update the registrant's information on the computerized Statewide voter registration list using such online method,''.

(c) SAME DAY REGISTRATION.—

(1) IN GENERAL.—Subtitle C of title III of the Help America Vote Act of 2002, as added by section 160003(a) and as amended by sections 160004(a) and 160005(a), is further amended—

(A) by redesignating sections 327 and 328 as sections 328 and 329; and

(B) by inserting after section 326 the following new section:

''SEC. 327. SAME DAY REGISTRATION.

''(a) IN GENERAL.—

''(1) REGISTRATION.—Each State shall permit any eligible individual on the day of a Federal election and on any day when voting, including early voting, is permitted for a Federal election—

''(A) to register to vote in such election at the polling place using a form that meets the requirements under section 9(b) of the National Voter Registration Act of 1993 (or, if the individual is already registered to vote, to revise any of the individual's voter registration information); and

''(B) to cast a vote in such election.

''(2) EXCEPTION.—The requirements under paragraph (1) shall not apply to a State in which, under a State law in effect continuously on and after the date of the enactment of this section, there is no voter registration requirement for individuals in the State with respect to elections for Federal office.

''(b) ELIGIBLE INDIVIDUAL.—For purposes of this section, the term 'eligible individual' means, with respect to any election for Federal office, an individual who is otherwise qualified to vote in that election.

''(c) EFFECTIVE DATE.—Each State shall be required to comply with the requirements of subsection (a) for the regularly scheduled general election for Federal office occurring in November 2020 and for any subsequent election for Federal office.''.

(2) CLERICAL AMENDMENT.—The table of contents of such Act, as added by section 160003 and as amended by sections 160004 and 160005, is further amended—

(A) by redesignating the items relating to sections 327 and 328 as relating to sections 328 and 329; and

(B) by inserting after the item relating to section 326 the following new item:

''Sec. 327. Same day registration.''.

(d) PROHIBITING STATE FROM REQUIRING APPLICANTS TO PROVIDE MORE THAN LAST 4 DIGITS OF SOCIAL SECURITY NUMBER.—

(1) FORM INCLUDED WITH APPLICATION FOR MOTOR VEHICLE DRIVER'S LICENSE.—Section 5(c)(2)(B)(ii) of the National Voter Registration Act of 1993 (52 U.S.C. 20504(c)(2)(B)(ii)) is amended by striking the semicolon at the end and inserting the following: '', and to the extent that the application requires the applicant to provide a Social Security number, may not require the applicant to provide more than the last 4 digits of such number;''.

(2) NATIONAL MAIL VOTER REGISTRATION FORM.—Section 9(b)(1) of such Act (52 U.S.C. 20508(b)(1)) is amended by striking the semicolon at the end and inserting the following: '', and to the extent that the form requires the applicant to provide a Social Security number, the form may not require the applicant to provide more than the last 4 digits of such number;''.

(3) EFFECTIVE DATE.—The amendments made by this subsection shall apply with respect to the regularly scheduled general election for Federal office held in November 2020 and each succeeding election for Federal office.

SEC. 108. ACCOMMODATIONS FOR VOTERS RESIDING IN INDIAN LANDS.

(a) ACCOMMODATIONS DESCRIBED.—

(1) DESIGNATION OF BALLOT PICKUP AND COLLECTION LOCATIONS.—Given the widespread lack of residential mail delivery in Indian Country, an Indian Tribe may designate buildings as ballot pickup and collection locations with respect to an election for Federal office at no cost to the Indian Tribe. An Indian Tribe may designate one building per precinct located within Indian lands. The applicable State or political subdivision shall collect ballots from those locations. The applicable State or political subdivision shall provide the Indian Tribe with accurate precinct maps for all precincts located within Indian lands 60 days before the election.

(2) PROVISION OF MAIL-IN AND ABSENTEE BALLOTS.—The State or political subdivision shall

provide mail-in and absentee ballots with respect to an election for Federal office to each individual who is registered to vote in the election who resides on Indian lands in the State or political subdivision involved without requiring a residential address or a mail-in or absentee ballot request.

(3) USE OF DESIGNATED BUILDING AS RESIDENTIAL AND MAILING ADDRESS.—The address of a designated building that is a ballot pickup and collection location with respect to an election for Federal office may serve as the residential address and mailing address for voters living on Indian lands if the tribally designated building is in the same precinct as that voter. If there is no tribally designated building within a voter's precinct, the voter may use another tribally designated building within the Indian lands where the voter is located. Voters using a tribally designated building outside of the voter's precinct may use the tribally designated building as a mailing address and may separately designate the voter's appropriate precinct through a description of the voter's address, as specified in section 9428.4(a)(2) of title 11, Code of Federal Regulations.

(4) LANGUAGE ACCESSIBILITY.—In the case of a State or political subdivision that is a covered State or political subdivision under section 203 of the Voting Rights Act of 1965 (52 U.S.C. 10503), that State or political subdivision shall provide absentee or mail-in voting materials with respect to an election for Federal office in the language of the applicable minority group as well as in the English language, bilingual election voting assistance, and written translations of all voting materials in the language of the applicable minority group, as required by section 203 of the Voting Rights Act of 1965 (52 U.S.C. 10503), as amended by subsection (b).

(5) CLARIFICATION.—Nothing in this section alters the ability of an individual voter residing on Indian lands to request a ballot in a manner available to all other voters in the State.

(6) DEFINITIONS.—In this section:

(A) ELECTION FOR FEDERAL OFFICE.—The term ''election for Federal office'' means a general, special, primary or runoff election for the office of President or Vice President, or of Senator or Representative in, or Delegate or Resident Commissioner to, the Congress.

(B) INDIAN.—The term ''Indian'' has the meaning given the term in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304).

(C) INDIAN LANDS.—The term ''Indian lands'' includes—

(i) any Indian country of an Indian Tribe, as defined under section 1151 of title 18, United States Code;

(ii) any land in Alaska owned, pursuant to the Alaska Native Claims Settlement Act (43 U.S.C. 1601 et seq.), by an Indian Tribe that is a Native village (as defined in section 3 of that Act (43 U.S.C. 1602)) or by a Village Corporation that is associated with an Indian Tribe (as defined in section 3 of that Act (43 U.S.C. 1602));

(iii) any land on which the seat of the Tribal Government is located; and

(iv) any land that is part or all of a Tribal designated statistical area associated with an Indian Tribe, or is part or all of an Alaska Native village statistical area associated with an Indian Tribe, as defined by the Census Bureau for the purposes of the most recent decennial census.

(D) INDIAN TRIBE.—The term ''Indian Tribe'' has the meaning given the term ''Indian tribe'' in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304).

(E) TRIBAL GOVERNMENT.—The term ''Tribal Government'' means the recognized governing body of an Indian Tribe.

(7) ENFORCEMENT.—

(A) ATTORNEY GENERAL.—The Attorney General may bring a civil action in an appropriate district court for such declaratory or injunctive relief as is necessary to carry out this subsection.

(B) PRIVATE RIGHT OF ACTION.—

(i) A person or Tribal Government who is aggrieved by a violation of this subsection may provide written notice of the violation to the chief election official of the State involved.

(ii) An aggrieved person or Tribal Government may bring a civil action in an appropriate district court for declaratory or injunctive relief with respect to a violation of this subsection, if—

(I) that person or Tribal Government provides the notice described in clause (i); and

(II)(aa) in the case of a violation that occurs more than 120 days before the date of an election for Federal office, the violation remains and 90 days or more have passed since the date on which the chief election official of the State receives the notice under clause (i); or

(bb) in the case of a violation that occurs 120 days or less before the date of an election for Federal office, the violation remains and 20 days or more have passed since the date on which the chief election official of the State receives the notice under clause (i).

(iii) In the case of a violation of this section that occurs 30 days or less before the date of an election for Federal office, an aggrieved person or Tribal Government may bring a civil action in an appropriate district court for declaratory or injunctive relief with respect to the violation without providing notice to the chief election official of the State under clause (i).

(b) BILINGUAL ELECTION REQUIREMENTS.—Section 203 of the Voting Rights Act of 1965 (52 U.S.C. 10503) is amended—

(1) in subsection (b)(3)(C), by striking ''1990'' and inserting ''2010''; and

(2) by striking subsection (c) and inserting the following:

''(c) PROVISION OF VOTING MATERIALS IN THE LANGUAGE OF A MINORITY GROUP.—

''(1) IN GENERAL.—Whenever any State or political subdivision subject to the prohibition of subsection (b) of this section provides any registration or voting notices, forms, instructions, assistance, or other materials or information relating to the electoral process, including ballots, it shall provide them in the language of the applicable minority group as well as in the English language.

''(2) EXCEPTIONS.—

''(A) In the case of a minority group that is not American Indian or Alaska Native and the language of that minority group is oral or unwritten, the State or political subdivision shall only be required to furnish, in the covered language, oral instructions, assistance, translation of voting materials, or other information relating to registration and voting.

''(B) In the case of a minority group that is American Indian or Alaska Native, the State or political subdivision shall only be required to furnish in the covered language oral instructions, assistance, or other information relating to registration and voting, including all voting materials, if the Tribal Government of that minority group has certified that the language of the applicable American Indian or Alaska Native language is presently unwritten or the Tribal Government does not want written translations in the minority language.

''(3) WRITTEN TRANSLATIONS FOR ELECTION WORKERS.—Notwithstanding paragraph (2), the State or political division may be required to provide written translations of voting materials, with the consent of any applicable Indian Tribe, to election workers to ensure that the translations from English to the language of a minority group are complete, accurate, and uniform.''.

(c) EFFECTIVE DATE.—This section and the amendments made by this section shall apply with respect to the regularly scheduled general election for Federal office held in November 2020 and each succeeding election for Federal office.

SEC. 109. PAYMENTS BY ELECTION ASSISTANCE COMMISSION TO STATES TO ASSIST WITH COSTS OF COMPLIANCE.

(a) AVAILABILITY OF GRANTS.—Subtitle D of title II of the Help America Vote Act of 2002 (52 U.S.C. 21001 et seq.) is amended by adding at the end the following new part:

''PART 7—PAYMENTS TO ASSIST WITH COSTS OF COMPLIANCE WITH ACCESS ACT

''SEC. 297. PAYMENTS TO ASSIST WITH COSTS OF COMPLIANCE WITH ACCESS ACT.

''(a) AVAILABILITY AND USE OF PAYMENTS.—

''(1) IN GENERAL.—The Commission shall make a payment to each eligible State to assist the State with the costs of complying with the American Coronavirus/COVID–19 Election Safety and Security Act and the amendments made by such Act, including the provisions of such Act and such amendments which require States to pre-pay the postage on absentee ballots and balloting materials.

''(2) PUBLIC EDUCATION CAMPAIGNS.—For purposes of this part, the costs incurred by a State in carrying out a campaign to educate the public about the requirements of the American Coronavirus/COVID–19 Election Safety and Security Act and the amendments made by such Act shall be included as the costs of complying with such Act and such amendments.

''(b) PRIMARY ELECTIONS.—

''(1) PAYMENTS TO STATES.—In addition to any payments under subsection (a), the Commission shall make a payment to each eligible State to assist the State with the costs incurred in voluntarily electing to comply with the American Coronavirus/COVID–19 Election Safety and Security Act and the amendments made by such Act with respect to primary elections for Federal office held in the State in 2020.

''(2) STATE PARTY-RUN PRIMARIES.—In addition to any payments under paragraph (1), the Commission shall make payments to each eligible political party of the State for costs incurred by such parties to send absentee ballots and return envelopes with prepaid postage to eligible voters participating in such primaries during 2020.

''(c) PASS-THROUGH OF FUNDS TO LOCAL JURISDICTIONS.—

''(1) IN GENERAL.—If a State receives a payment under this part for costs that include costs incurred by a local jurisdiction or Tribal government within the State, the State shall pass through to such local jurisdiction or Tribal government a portion of such payment that is equal to the amount of the costs incurred by such local jurisdiction or Tribal government.

''(2) TRIBAL GOVERNMENT DEFINED.—In this subsection, the term 'Tribal Government' means the recognized governing body of an Indian tribe (as defined in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 5304).

''(d) SCHEDULE OF PAYMENTS.—As soon as practicable after the date of the enactment of this part and not less frequently than once each calendar year thereafter, the Commission shall make payments under this part.

''(e) COVERAGE OF COMMONWEALTH OF NORTHERN MARIANA ISLANDS.—In this part, the term 'State' includes the Commonwealth of the Northern Mariana Islands.

''(f) LIMITATION.—No funds may be provided to a State under this part for costs attributable to the electronic return of marked ballots by any voter.

''SEC. 297A. AMOUNT OF PAYMENT.

''(a) IN GENERAL.—The amount of a payment made to an eligible State for a year under this part shall be determined by the Commission.

''(b) CONTINUING AVAILABILITY OF FUNDS AFTER APPROPRIATION.—A payment made to an eligible State or eligible unit of local government under this part shall be available without fiscal year limitation.

''SEC. 297B. REQUIREMENTS FOR ELIGIBILITY.

''(a) APPLICATION.—Each State that desires to receive a payment under this part for a fiscal

year, and each political party of a State that desires to receive a payment under section 297(b)(2), shall submit an application for the payment to the Commission at such time and in such manner and containing such information as the Commission shall require.

''(b) CONTENTS OF APPLICATION.—Each application submitted under subsection (a) shall—

''(1) describe the activities for which assistance under this part is sought; and

''(2) provide such additional information and certifications as the Commission determines to be essential to ensure compliance with the requirements of this part.

''SEC. 297C. AUTHORIZATION OF APPROPRIATIONS.

''There are authorized to be appropriated for payments under this part such sums as may be necessary for fiscal year 2021.

''SEC. 297D. REPORTS.

''(a) REPORTS BY RECIPIENTS.—Not later than 6 months after the end of each fiscal year for which an eligible State received a payment under this part, the State shall submit a report to the Commission on the activities conducted with the funds provided during the year.

''(b) REPORTS BY COMMISSION TO COMMITTEES.—With respect to each fiscal year for which the Commission makes payments under this part, the Commission shall submit a report on the activities carried out under this part to the Committee on House Administration of the House of Representatives and the Committee on Rules and Administration of the Senate.''.

(b) CLERICAL AMENDMENT.—The table of contents of such Act is amended by adding at the end of the items relating to subtitle D of title II the following:

''PART 7—PAYMENTS TO ASSIST WITH COSTS OF COMPLIANCE WITH ACCESS ACT

''Sec. 297. Payments to assist with costs of compliance with Access Act.
''Sec. 297A. Amount of payment.
''Sec. 297B. Requirements for eligibility.
''Sec. 297C. Authorization of appropriations.
''Sec. 297D. Reports.''.

SEC. 110. GRANTS TO STATES FOR CONDUCTING RISK-LIMITING AUDITS OF RESULTS OF ELECTIONS.

(a) AVAILABILITY OF GRANTS.—Subtitle D of title II of the Help America Vote Act of 2002 (52 U.S.C. 21001 et seq.), as amended by section 160009(a), is further amended by adding at the end the following new part:

''PART 8—GRANTS FOR CONDUCTING RISK-LIMITING AUDITS OF RESULTS OF ELECTIONS

''SEC. 298. GRANTS FOR CONDUCTING RISK-LIMITING AUDITS OF RESULTS OF ELECTIONS.

''(a) AVAILABILITY OF GRANTS.—The Commission shall make a grant to each eligible State to conduct risk-limiting audits as described in subsection (b) with respect to the regularly scheduled general elections for Federal office held in November 2020 and each succeeding election for Federal office.

''(b) RISK-LIMITING AUDITS DESCRIBED.—In this part, a 'risk-limiting audit' is a post-election process—

''(1) which is conducted in accordance with rules and procedures established by the chief State election official of the State which meet the requirements of subsection (c); and

''(2) under which, if the reported outcome of the election is incorrect, there is at least a predetermined percentage chance that the audit will replace the incorrect outcome with the correct outcome as determined by a full, hand-to-eye tabulation of all votes validly cast in that election that ascertains voter intent manually and directly from voter-verifiable paper records.

''(c) REQUIREMENTS FOR RULES AND PROCEDURES.—The rules and procedures established for conducting a risk-limiting audit shall include the following elements:

''(1) Rules for ensuring the security of ballots and documenting that prescribed procedures were followed.

''(2) Rules and procedures for ensuring the accuracy of ballot manifests produced by election agencies.

''(3) Rules and procedures for governing the format of ballot manifests, cast vote records, and other data involved in the audit.

''(4) Methods to ensure that any cast vote records used in the audit are those used by the voting system to tally the election results sent to the chief State election official and made public.

''(5) Procedures for the random selection of ballots to be inspected manually during each audit.

''(6) Rules for the calculations and other methods to be used in the audit and to determine whether and when the audit of an election is complete.

''(7) Procedures and requirements for testing any software used to conduct risk-limiting audits.

''(d) DEFINITIONS.—In this part, the following definitions apply:

''(1) The term 'ballot manifest' means a record maintained by each election agency that meets each of the following requirements:

''(A) The record is created without reliance on any part of the voting system used to tabulate votes.

''(B) The record functions as a sampling frame for conducting a risk-limiting audit.

''(C) The record contains the following information with respect to the ballots cast and counted in the election:

''(i) The total number of ballots cast and counted by the agency (including undervotes, overvotes, and other invalid votes).

''(ii) The total number of ballots cast in each election administered by the agency (including undervotes, overvotes, and other invalid votes).

''(iii) A precise description of the manner in which the ballots are physically stored, including the total number of physical groups of ballots, the numbering system for each group, a unique label for each group, and the number of ballots in each such group.

''(2) The term 'incorrect outcome' means an outcome that differs from the outcome that would be determined by a full tabulation of all votes validly cast in the election, determining voter intent manually, directly from voter-verifiable paper records.

''(3) The term 'outcome' means the winner of an election, whether a candidate or a position.

''(4) The term 'reported outcome' means the outcome of an election which is determined according to the canvass and which will become the official, certified outcome unless it is revised by an audit, recount, or other legal process.

''SEC. 298A. ELIGIBILITY OF STATES.

''A State is eligible to receive a grant under this part if the State submits to the Commission, at such time and in such form as the Commission may require, an application containing—

''(1) a certification that, not later than 5 years after receiving the grant, the State will conduct risk-limiting audits of the results of elections for Federal office held in the State as described in section 298;

''(2) a certification that, not later than one year after the date of the enactment of this section, the chief State election official of the State has established or will establish the rules and procedures for conducting the audits which meet the requirements of section 298(c);

''(3) a certification that the audit shall be completed not later than the date on which the State certifies the results of the election;

''(4) a certification that, after completing the audit, the State shall publish a report on the results of the audit, together with such information as necessary to confirm that the audit was conducted properly;

''(5) a certification that, if a risk-limiting audit conducted under this part leads to a full manual tally of an election, State law requires that the State or election agency shall use the results of the full manual tally as the official results of the election; and

''(6) such other information and assurances as the Commission may require.

''SEC. 298B. AUTHORIZATION OF APPROPRIATIONS.

''There are authorized to be appropriated for grants under this part $20,000,000 for fiscal year 2021, to remain available until expended.''.

(b) CLERICAL AMENDMENT.—The table of contents of such Act, as amended by section 160009(b), is further amended by adding at the end of the items relating to subtitle D of title II the following:

''PART 8—GRANTS FOR CONDUCTING RISK-LIMITING AUDITS OF RESULTS OF ELECTIONS

''Sec. 298. Grants for conducting risk-limiting audits of results of elections.
''Sec. 298A. Eligibility of States.
''Sec. 298B. Authorization of appropriations.

(c) GAO ANALYSIS OF EFFECTS OF AUDITS.—

(1) ANALYSIS.—Not later than 6 months after the first election for Federal office is held after grants are first awarded to States for conducting risk-limiting audits under part 8 of subtitle D of title II of the Help America Vote Act of 2002 (as added by subsection (a)) for conducting risk-limiting audits of elections for Federal office, the Comptroller General of the United States shall conduct an analysis of the extent to which such audits have improved the administration of such elections and the security of election infrastructure in the States receiving such grants.

(2) REPORT.—The Comptroller General of the United States shall submit a report on the analysis conducted under subsection (a) to the appropriate congressional committees.

SEC. 111. ADDITIONAL APPROPRIATIONS FOR THE ELECTION ASSISTANCE COMMISSION.

(a) IN GENERAL.—In addition to any funds otherwise appropriated to the Election Assistance Commission for fiscal year 2021, there is authorized to be appropriated $3,000,000 for fiscal year 2021 in order for the Commission to provide additional assistance and resources to States for improving the administration of elections.

(b) AVAILABILITY OF FUNDS.—Amounts appropriated pursuant to the authorization under this subsection shall remain available without fiscal year limitation.

SEC. 112. DEFINITION.

(a) DEFINITION OF ELECTION FOR FEDERAL OFFICE .—Title IX of the Help America Vote Act of 2002 (52 U.S.C. 21141 et seq.) is amended by adding at the end the following new section:

''SEC. 907. ELECTION FOR FEDERAL OFFICE DEFINED.

''For purposes of titles I through III, the term 'election for Federal office' means a general, special, primary, or runoff election for the office of President or Vice President, or of Senator or Representative in, or Delegate or Resident Commissioner to, the Congress.''.

(b) CLERICAL AMENDMENT.—The table of contents of such Act is amended by adding at the end of the items relating to title IX the following new item:

''Sec. 907. Election for Federal office defined.''.

DIVISION Q—TRANSPORTATION AND INFRASTRUCTURE

TITLE I—AVIATION

SECTION 101. SHORT TITLE.

This title may be cited as the ''Payroll Support Program Extension Act''.

SEC. 102. DEFINITIONS.

Unless otherwise specified, the definitions in section 40102(a) of title 49, United States Code, shall apply to this title, except that—

(1) the term ''airline catering employee'' means an employee who performs airline catering services;

(2) the term ''airline catering services''' means preparation, assembly, or both, of food, beverages, provisions and related supplies for delivery, and the delivery of such items, directly to aircraft or to a location on or near airport property for subsequent delivery to aircraft;

(3) the term ''contractor'' means—

(A) a person that performs, under contract with a passenger air carrier conducting operations under part 121 of title 14, Code of Federal Regulations—

(i) catering functions; or

(ii) functions on the property of an airport that are directly related to the air transportation of persons, property, or mail, including but not limited to the loading and unloading of property on aircraft; assistance to passengers under part 382 of title 14, Code of Federal Regulations; security; airport ticketing and check-in functions; ground-handling of aircraft; or aircraft cleaning and sanitization functions and waste removal; or

(B) a subcontractor that performs such functions;

(4) the term ''employee'' means an individual, other than a corporate officer, who is employed by an air carrier or a contractor; and

(5) the term ''Secretary'' means the Secretary of the Treasury.

SEC. 103. PANDEMIC RELIEF FOR AVIATION WORKERS.

(a) FINANCIAL ASSISTANCE FOR EMPLOYEE WAGES, SALARIES, AND BENEFITS.—Notwithstanding any other provision of law, to preserve aviation jobs and compensate air carrier industry workers, the Secretary shall provide financial assistance that shall exclusively be used for the continuation of payment of employee wages, salaries, and benefits to—

(1) passenger air carriers, in an aggregate amount up to $25,000,000,000;

(2) cargo air carriers, in an aggregate amount up to $300,000,000; and

(3) contractors, in an aggregate amount up to $3,000,000,000.

(b) ADMINISTRATIVE EXPENSES.—Notwithstanding any other provision of law, the Secretary may use funds made available under section 4112(b) of the CARES Act (15 U.S.C. 9072(b)) for costs and administrative expenses associated with providing financial assistance under this title.

SEC. 104. PROCEDURES FOR PROVIDING PAYROLL SUPPORT.

(a) AWARDABLE AMOUNTS.—The Secretary shall provide financial assistance under this title—

(1) to an air carrier required to file reports pursuant to part 241 of title 14, Code of Federal Regulations, as of March 27, 2020, in an amount equal to—

(A) the amount such air carrier received under section 4113 of the CARES Act (15 U.S.C. 9073); or

(B) at the request of such air carrier, or in the event such an air carrier did not receive assistance under section 4113 of the CARES Act (15 U.S.C. 9073), the amount of the salaries and benefits reported by the air carrier to the Department of Transportation pursuant to such part 241, for the period from October 1, 2019, through March 31, 2020;

(2) to an air carrier that did not transmit reports under such part 241, as of March 27, 2020, in an amount equal to—

(A) the amount such air carrier received under section 4113 of the CARES Act (15 U.S.C. 9073), plus an additional 15 percent of such amount; or

(B) at the request of such air carrier, or in the event such an air carrier did not receive assistance under section 4113 of the CARES Act (15 U.S.C. 9073), an amount that such an air carrier certifies, using sworn financial statements or other appropriate data, as the amount of total salaries and related fringe benefits that such air carrier incurred and would be required to be reported to the Department of Transportation pursuant to such part 241, if the air carrier were required to transmit such information during the period from October 1, 2019, through March 31, 2020; and

(3) to a contractor in an amount equal to—

(A) the amount such contractor received under section 4113 of the CARES Act (15 U.S.C. 9073); or

(B) or in the event such contractor did not receive assistance under section 4113 of the CARES Act (15 U.S.C. 9073), an amount that the contractor certifies, using sworn financial statements or other appropriate data, as the amount of wages, salaries, benefits, and other compensation that such contractor paid the employees of such contractor during the period from October 1, 2019, through March 31, 2020.

(b) DEADLINES AND PROCEDURES.—

(1) IN GENERAL.—

(A) FORMS; TERMS AND CONDITIONS.—Financial assistance provided to an air carrier or contractor under this title shall—

(i) be in such form, on such terms and conditions (including requirements for audits and the clawback of any financial assistance provided upon failure by a passenger air carrier, cargo air carrier, or contractor to honor the assurances specified in section 105 of this division), as agreed to by the Secretary and the recipient for assistance received under section 4113 of the CARES Act (15 U.S.C. 9073), except where inconsistent with this title; or

(ii) in the event such an air carrier or contractor did not receive assistance under section 4113 of the CARES Act (15 U.S.C. 9073), be in such form, on such terms and conditions (including requirements for audits and the clawback of any financial assistance provided upon failure by a passenger air carrier, cargo air carrier, or contractor to honor the assurances specified in section 105 of this division), as the Secretary determines appropriate.

(B) PROCEDURES.—The Secretary shall publish streamlined and expedited procedures not later than 5 days after the date of enactment of this title for air carriers and contractors to submit requests for financial assistance under this title.

(2) DEADLINE FOR IMMEDIATE PAYROLL ASSISTANCE.—Not later than 10 days after the date of enactment of this title, the Secretary shall make initial payments to air carriers and contractors that submit requests for financial assistance approved by to the Secretary.

(d) PRO RATA REDUCTIONS.—The amounts under subsections (a)(1)(B) and (a)(2)(B) shall, to the maximum extent practicable, be subject to the same pro rata reduction applied by the Secretary to air carriers or contractors, as applicable, that received assistance under section 4113 of the CARES Act (15 U.S.C. 9073).

(e) AUDITS.—The Inspector General of the Department of the Treasury shall audit certifications made under subsection (a).

SEC. 105. REQUIRED ASSURANCES.

(a) IN GENERAL.—To be eligible for financial assistance under this title, an air carrier or contractor shall enter into an agreement with the Secretary, or otherwise certify in such form and manner as the Secretary shall prescribe, that the air carrier or contractor shall—

(1) refrain from conducting involuntary furloughs or reducing pay rates and benefits until—

(A) with respect to air carriers, March 31, 2021; or

(B) with respect to contractors, March 31, 2021, or the date on which the contractor exhausts such financial assistance, whichever is later;

(2) ensure that neither the air carrier or contractor nor any affiliate of the air carrier or contractor may, in any transaction, purchase an equity security of the air carrier or contractor or the parent company of the air carrier or contractor that is listed on a national securities exchange through—

(A) with respect to air carriers, March 31, 2022; or

(B) with respect to contractors, March 31, 2022, or the date on which the contractor exhausts such financial assistance, whichever is later;

(3) ensure that the air carrier or contractor shall not pay dividends, or make other capital distributions, with respect to common stock (or equivalent interest) of the air carrier or contractor through—

(A) with respect to air carriers, March 31, 2022; or

(B) with respect to contractors, March 31, 2022, or the date on which the contractor exhausts such financial assistance, whichever is later;

(4) meet the requirements of sections 106 and 107 of this division; and

(5) affirm that the air carrier or contractor has not conducted involuntary furloughs or reduced pay rates and benefits between—

(A) the date the air carrier or contractor entered into an agreement with the Secretary for loans, loan guarantees, other investments, or financial assistance under title IV of the CARES Act (Public Law 116–136) and the date the air carrier or contractor enters into an agreement with the Secretary for financial assistance under this title; or

(B) in the case of an air carrier or contractor that did not receive loans, loan guarantees, other investments, or financial assistance under title IV of the CARES Act, the date of enactment of this title and the date the air carrier or contractor enters into an agreement with the Secretary for funding under this title.

SEC. 106. PROTECTION OF COLLECTIVE BARGAINING AGREEMENTS.

(a) IN GENERAL.—Neither the Secretary, nor any other actor, department, or agency of the Federal Government, shall condition the issuance of financial assistance under this title on an air carrier's or contractor's implementation of measures to enter into negotiations with the certified bargaining representative of a craft or class of employees of the air carrier or contractor under the Railway Labor Act (45 U.S.C. 151 et seq.) or the National Labor Relations Act (29 U.S.C. 151 et seq.), regarding pay or other terms and conditions of employment.

(b) AIR CARRIER PERIOD OF EFFECT.—With respect to any air carrier to which financial assistance is provided under this title, this section shall be in effect with respect to the air carrier beginning on the date on which the air carrier is first issued such financial assistance and ending on March 31, 2021.

(c) CONTRACTOR PERIOD OF EFFECT.—With respect to any contractor to which financial assistance is provided under this title, this section shall be in effect with respect to contractor beginning on the date on which the contractor is first issued such financial assistance and ending on March 31, 2021, or until the date on which all funds are expended, whichever is later.

SEC. 107. LIMITATION ON CERTAIN EMPLOYEE COMPENSATION.

(a) IN GENERAL.—The Secretary may only provide financial assistance under this title to an air carrier or contractor after such carrier or contractor enters into an agreement with the Secretary which provides that, during the 2-year period beginning October 1, 2020, and ending October 1, 2022, no officer or employee of the air carrier or contractor whose total compensation exceeded $425,000 in calendar year 2019 (other than an employee whose compensation is determined through an existing collective bargaining agreement entered into prior to enactment of this title)—

(1) will receive from the air carrier or contractor total compensation which exceeds, during any 12 consecutive months of such 2-year period, the total compensation received by the officer or employee from the air carrier or contractor in calendar year 2019;

(2) will receive from the air carrier or contractor severance pay or other benefits upon termination of employment with the air carrier or

contractor which exceeds twice the maximum total compensation received by the officer or employee from the air carrier or contractor in calendar year 2019; and

(3) no officer or employee of the air carrier or contractor whose total compensation exceeded $3,000,000 in calendar year 2019 may receive during any 12 consecutive months of such period total compensation in excess of the sum of—

(A) $3,000,000; and

(B) 50 percent of the excess over $3,000,000 of the total compensation received by the officer or employee from the air carrier or contractor in calendar year 2019.

(b) TOTAL COMPENSATION DEFINED.—In this section, the term ''total compensation'' includes salary, bonuses, awards of stock, and other financial benefits provided by an air carrier or contractor to an officer or employee of the air carrier or contractor.

SEC. 108. MINIMUM AIR SERVICE GUARANTEES.

(a) IN GENERAL.—The Secretary of Transportation is authorized to require, to the extent reasonable and practicable, an air carrier provided financial assistance under this title to maintain scheduled air transportation, as the Secretary of Transportation determines necessary, to ensure services to any point served by that air carrier before March 1, 2020, continues to receive a basic level of air service.

(b) REQUIRED CONSIDERATIONS.—When considering whether to exercise the authority provided by this section, the Secretary of Transportation shall take into consideration the air transportation needs of small and remote communities, the need to maintain well-functioning health care supply chains, including medical devices and supplies, and pharmaceutical supply chains, and such other matters as the public interest requires.

(c) SUNSET.—The authority provided under this section shall terminate on September 1, 2022, and any requirements issued by the Secretary of Transportation under this section shall cease to apply after that date.

SEC. 109. TAX PAYER PROTECTION.

(a) CARES ACT ASSISTANCE RECIPIENTS.—With respect to a recipient of assistance under section 4113 of the CARES Act (15 U.S.C. 9073) that receives assistance under this title, the Secretary may receive warrants, options, preferred stock, debt securities, notes, or other financial instruments issued by such recipient in the same form and amount, and under the same terms and conditions, as agreed to by the Secretary and the recipient for assistance received under such section 4113 to provide appropriate compensation to the Federal Government for the provision of the financial assistance under this title.

(b) OTHER APPLICANTS.—With respect to an applicant that did not receive assistance under such section 4113, the Secretary may receive warrants, options, preferred stock, debt securities, notes, or other financial instruments issued by an applicant that receives assistance under this title in a form and amount that are, to the maximum extent practicable, the same as the terms and conditions as agreed to by the Secretary and similarly situated recipients of assistance under such section 4113 to provide appropriate compensation to the Federal Government for the provision of the financial assistance under this title.

SEC. 110. REPORTS.

(a) REPORT.—Not later than May 1, 2021, the Secretary shall update and submit to the Committee on Transportation and Infrastructure and the Committee on Financial Services of the House of Representatives and the Committee on Commerce, Science, and Transportation and the Committee on Banking, Housing, and Urban Affairs of the Senate a report on the financial assistance provided to air carriers and contractors under this title, which includes—

(1) a description of any financial assistance provided to air carrier and contractors under this title;

(2) any audits of air carriers or contractors receiving financial assistance under this title;

(3) any reports filed by air carriers or contractors receiving financial assistance under this title;

(4) any non-compliances by air carriers or contractors receiving financial assistance under this title with the terms and conditions of this title or agreements entered into with the Secretary to receive such financial assistance; and

(5) information relating to any clawback of any financial assistance provided to air carriers or contractors under this title.

(b) INTERNET UPDATES.—The Secretary shall update the website of the Department of the Treasury on a daily basis as necessary to reflect new or revised distributions of financial assistance under this title with respect to each air carrier or contractor that receives such assistance, the identification of any applicant that applied for financial assistance under this title, and the date of application.

(c) SUPPLEMENTAL UPDATE.—Not later than the last day of the 1-year period following the date of enactment of this title, the Secretary shall update and submit to the Committee on Transportation and Infrastructure and the Committee on Financial Services of the House of Representatives and the Committee on Commerce, Science, and Transportation and the Committee on Banking, Housing, and Urban Affairs of the Senate, the report submitted under subsection (a).

SEC. 111. COORDINATION.

In implementing this title, the Secretary shall coordinate with the Secretary of Transportation.

SEC. 112. DIRECT APPROPRIATION.

Notwithstanding any other provision of law, there is appropriated, out of amounts in the Treasury not otherwise appropriated, $28,300,000,000 to carry out this title.

SEC. 113. TECHNICAL CORRECTIONS AND CLARIFICATION.

(a) Section 4003(c)(1)(B) of the CARES Act (15 U.S.C. 9042(c)(1)(B)) is amended—

(1) by striking ''As soon'' and inserting the following:

''(i) IN GENERAL.—Subject to clause (ii), as soon''; and

(2) by adding at the end the following:

''(ii) REQUIREMENT.—The procedures and any related guidance issued under clause (i) shall not prohibit any air carrier from applying for or receiving a loan or loan guarantee under paragraph (1), (2), or (3) of subsection (b) based on the amount of the loan or loan guarantee requested.''; and

(b) Section 4113(c) of the CARES Act (15 U.S.C. 9073(c)) is amended by striking '' section 4112'' and inserting ''subsection (a)''.

(c) Section 4114 of the CARES Act (15 U.S.C. 9074) is amended by adding at the end the following new subsections:

''(c) CONTINUED APPLICATION.—

''(1) IN GENERAL.—If, after September 30, 2020, a contractor expends funds made available pursuant to section 4112 and distributed pursuant to section 4113, the assurances under this section shall continue to apply until all funds are expended, notwithstanding the time limits included in paragraphs (1) through (3) of subsection (a), or section 4115 or 4116.

''(2) SPECIAL RULE.—Not later than January 5, 2021, each contractor that has received funds pursuant to such section 4112 shall report to the Secretary on the amount of such funds that the contractor has expended through December 31, 2020. If the contractor has expended an amount that is less than 50 percent of the total amount of funds the contractor received under such section, the Secretary shall initiate an action to recover any funds that remain unexpended as of January 31, 2021.

''(d) CLAWBACK OF ASSISTANCE.—Any contractor that conducted involuntary furloughs or reduced pay rates and benefits, between March 27, 2020, and the date on which the contractor entered into an agreement with the Secretary related to financial assistance under this subtitle, shall attempt in good faith to rehire employees who were involuntary furloughed, or the Secretary shall claw back such financial assistance, as necessary.''.

SEC. 114. NATIONAL AVIATION PREPAREDNESS PLAN.

(a) IN GENERAL.—Not later than 1 year after the date of enactment of this section, the Secretary of Transportation, in coordination with the Secretary of Health and Human Services, the Secretary of Homeland Security, and the heads of such other Federal departments or agencies as the Secretary considers appropriate, shall develop and regularly update a national aviation preparedness plan to ensure the aviation system is prepared to respond to epidemics and pandemics of infectious diseases.

(b) CONTENTS OF PLAN.—A plan developed under subsection (a) shall, at a minimum—

(1) provide airports and air carriers with an adaptable and scalable framework with which to align the individual plans of such airports and air carriers and provide appropriate guidance as to each individual plan;

(2) improve coordination among airports, air carriers, U.S. Customs and Border Protection, the Centers for Disease Control and Prevention, other appropriate Federal entities, and State and local governments or health agencies on developing policies that increase the effectiveness of screening, quarantining, and contact-tracing with respect to inbound international passengers;

(3) ensure that at-risk employees are equipped with appropriate personal protective equipment to reduce the likelihood of exposure to pathogens in the event of a pandemic;

(4) ensure aircraft and enclosed facilities owned, operated, or used by an air carrier or airport are cleaned, disinfected, and sanitized frequently in accordance with Centers for Disease Control and Prevention guidance; and

(5) incorporate all elements referenced in the recommendation of the Comptroller General of the United States to the Secretary of Transportation contained in the report titled ''Air Travel and Communicable Diseases: Comprehensive Federal Plan Needed for U.S. Aviation System's Preparedness'' issued in December 2015 (GAO–16–127).

(c) CONSULTATION.—When developing a plan under subsection (a), the Secretary of Transportation shall consult with aviation industry and labor stakeholders, including representatives of—

(1) air carriers;

(2) small, medium, and large hub airports;

(3) labor organizations that represent airline pilots, flight attendants, air carrier airport customer service representatives, and air carrier maintenance, repair, and overhaul workers;

(4) the labor organization certified under section 7111 of title 5, United States Code, as the exclusive bargaining representative of air traffic controllers of the Federal Aviation Administration;

(5) the labor organization certified under such section as the exclusive bargaining representative of airway transportation systems specialists and aviation safety inspectors of the Federal Aviation Administration; and

(6) such other stakeholders as the Secretary considers appropriate.

(d) REPORT.—Not later than 30 days after the plan is developed under subsection (a), the Secretary shall submit to the appropriate committees of Congress such plan.

(e) DEFINITION OF AT-RISK EMPLOYEES.—In this section, the term ''at-risk employees'' means—

(1) individuals whose job duties require interaction with air carrier passengers on a regular and continuing basis that are employees of—

(A) air carriers;

(B) air carrier contractors;

(C) airports; and
(D) Federal departments or agencies; and
(2) air traffic controllers and systems safety specialists of the Federal Aviation Administration.

TITLE II—FEDERAL EMERGENCY MANAGEMENT AGENCY

SEC. 201. COST SHARE.

(a) TEMPORARY FEDERAL SHARE.—Notwithstanding sections 403(b), 403(c)(4), 404(a), 406(b), 408(d), 408(g)(2), 428(e)(2)(B), and 503(a) of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5121 et seq.), for any emergency or major disaster declared by the President under such Act during the period beginning on January 1, 2020 and ending on December 31, 2020, the Federal share of assistance provided under such sections shall be not less than 90 percent of the eligible cost of such assistance.

(b) COST SHARE UNDER COVID EMERGENCY DECLARATION.—Notwithstanding subsection (a), assistance provided under the emergency declaration issued by the President on March 13, 2020, pursuant to section 501(b) of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5191(b)), and under any subsequent major disaster declaration under section 401 of such Act (42 U.S.C. 5170) that supersedes such emergency declaration, shall be at a 100 percent Federal cost share.

SEC. 202. CLARIFICATION OF ASSISTANCE.

(a) IN GENERAL.—For the emergency declared on March 13, 2020 by the President under section 501 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5191), the President may provide assistance for activities, costs, and purchases of States, Indian tribal governments, or local governments, including—

(1) activities eligible for assistance under sections 301, 415, 416, and 426 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5141, 5182, 5183, 5189d);

(2) backfill costs for first responders and other essential employees who are ill or quarantined;

(3) increased operating costs for essential government services due to such emergency, including costs for implementing continuity plans, and sheltering or housing for first responders, emergency managers, health providers and other essential employees;

(4) costs of providing guidance and information to the public and for call centers to disseminate such guidance and information, including private nonprofit organizations;

(5) costs associated with establishing and operating virtual services;

(6) costs for establishing and operating remote test sites, including comprehensive community based testing;

(7) training provided specifically in anticipation of or in response to the event on which such emergency declaration is predicated;

(8) personal protective equipment and other critical supplies and services for first responders and other essential employees, including individuals working in public schools, courthouses, and public transit systems;

(9) medical equipment, regardless of whether such equipment is used for emergency or inpatient care;

(10) public health costs, including provision and distribution of medicine and medical supplies;

(11) costs associated with maintaining alternate care facilities or related facilities currently inactive but related to future needs tied to the ongoing pandemic event;

(12) costs of establishing and operating shelters and providing services, including transportation, that help alleviate the need of individuals for shelter; and

(13) costs, including costs incurred by private nonprofit organizations, of procuring and distributing food to individuals affected by the pandemic through networks established by State, local, or Tribal governments, or other organizations, including restaurants and farms, and for the purchase of food directly from food producers and farmers.

(b) APPLICATION TO SUBSEQUENT MAJOR DISASTER.—The activities described in subsection (a) may also be eligible for assistance under any major disaster declared by the President under section 401 of such Act (42 U.S.C. 5170) that supersedes the emergency declaration described in such subsection.

(c) FINANCIAL ASSISTANCE FOR FUNERAL EXPENSES.—For any emergency or major disaster described in subsection (a) or (b), the President shall provide financial assistance to an individual or household to meet disaster-related funeral expenses under section 408(e)(1) of such Act (42 U.S.C. 5174(e)).

(d) ADVANCED ASSISTANCE.—

(1) IN GENERAL.—In order to facilitate activities under this section, the President, acting through the Administrator of the Federal Emergency Management Agency, may provide assistance in advance to an eligible applicant if a failure to do so would prevent the applicant from carrying out such activities.

(2) ANNUAL REPORT.—The Administrator shall submit to the Committee on Transportation and Infrastructure of the House of Representatives and the Committee on Homeland Security and Governmental Affairs of the Senate a report on assistance provided in advance pursuant to paragraph (1).

(e) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to make ineligible any assistance that would otherwise be eligible under section 403, 408, or 502 of such Act (42 U.S.C. 5170b, 5192).

(f) STATE; INDIAN TRIBAL GOVERNMENT; LOCAL GOVERNMENT DEFINED.—In this section, the terms ''State'', ''Indian tribal government'', and ''local government'' have the meanings given such terms in section 102 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5122).

SEC. 203. HAZARD MITIGATION APPROVAL.

For all States or Indian tribal governments, as such terms are defined in section 102 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5122), receiving an emergency declaration on March 13, 2020 by the President under section 501 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5191), and a major disaster declared by the President under section 401 of such Act (42 U.S.C. 5170) that supersedes such emergency declaration, the President shall approve the availability of hazard mitigation assistance pursuant to section 404 of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5170c) as part of such major disaster declarations, if requested, and the President may contribute up to 100 percent of hazard mitigation measures authorized under section 404(a) of such Act.

TITLE III—OTHER MATTERS

SEC. 301. REQUIREMENTS FOR OWNERS AND OPERATORS OF EQUIPMENT OR FACILITIES USED BY PASSENGER OR FREIGHT TRANSPORTATION EMPLOYERS.

(a) DEFINITIONS.—In this section:

(1) AT-RISK EMPLOYEE.—The term ''at-risk employee'' means an employee (including a Federal employee) or contractor of a passenger or freight transportation employer—

(A) whose job responsibilities involve interaction with—

(i) passengers;

(ii) the public; or

(iii) coworkers who interact with the public;

(B) who handles items which are handled or will be handled by the public; or

(C) who works in locations where social distancing and other preventative measures with respect to the Coronavirus Disease 2019 (COVID–19) are not possible.

(2) PASSENGER OR FREIGHT TRANSPORTATION EMPLOYER.—The term ''passenger or freight transportation employer'' includes—

(A) the owner, charterer, managing operator, master, or other individual in charge of a passenger vessel (as defined in section 2101 of title 46, United States Code);

(B) an air carrier (as defined in section 40102 of title 49, United States Code);

(C) a commuter authority (as defined in section 24102 of title 49, United State Code);

(D) an entity that provides intercity rail passenger transportation (as defined in section 24102 of title 49, United States Code);

(E) a rail carrier (as defined in section 10102 of title 49, United States Code);

(F) a regional transportation authority (as defined in section 24102 of title 49, United States Code);

(G) a provider of public transportation (as defined in section 5302 of title 49, United States Code);

(H) a provider of motorcoach services (as defined in section 32702 of the Motorcoach Enhanced Safety Act of 2012 (49 U.S.C. 31136 note; Public Law 112–141));

(I) a motor carrier that owns or operates more than 100 motor vehicles (as those terms are defined in section 390.5 of title 49, Code of Federal Regulations (or successor regulations));

(J) a sponsor, owner, or operator of a public-use airport (as defined in section 47102 of title 49, United States Code);

(K) a marine terminal operator (as defined in section 40102 of title 46, United States Code) and the relevant authority or operator of a port or harbor;

(L) the Transportation Security Administration, exclusively with respect to Transportation Security Officers; and

(M) a marine terminal operator (as defined in section 40102 of title 46, United States Code) and the relevant authority or operator of a port or harbor, or any other employer of individuals covered under section 2(3) of the Longshore and Harbor Workers' Compensation Act (33 U.S.C. 902(3)).

(b) REQUIREMENTS.—For the purposes of responding to, or for purposes relating to operations during the national emergency declared by the President under the National Emergencies Act (50 U.S.C. 1601 et seq.) related to the pandemic of SARS–4CoV–2 or coronavirus disease 2019 (COVID–19), the Secretary shall require—

(1) the owners or operators of equipment, stations, or facilities used by passenger or freight transportation employers, as applicable—

(A) to clean, disinfect, and sanitize, in accordance with guidance issued by the Centers for Disease Control and Prevention or the safety alert for operators issued by the Federal Aviation Administration on May 11, 2020, numbered SAFO 20009 (including any similar successor safety alert or applicable guidance), the equipment and facilities, including, as applicable—

(i) buses and transit vehicles;

(ii) commercial motor vehicles;

(iii) freight and passenger rail locomotives;

(iv) freight and passenger rail cars;

(v) vessels;

(vi) airports;

(vii) fleet vehicles used for the transportation of workers to job sites;

(viii) aircraft, including the cockpit and the cabin; and

(ix) other equipment and facilities;

(B) to ensure that stations and facilities, including enclosed facilities, owned, operated, and used by passenger or freight transportation employers, including facilities used for employee training or the performance of indoor or outdoor maintenance, repair, or overhaul work, are disinfected and sanitized frequently in accordance with guidance issued by the Centers for Disease Control and Prevention or the safety alert for operators issued by the Federal Aviation Administration on May 11, 2020, numbered SAFO 20009

(including any similar successor safety alert or applicable guidance);

(C) to provide to at-risk employees—

(i) masks or protective face coverings;

(ii) gloves;

(iii) hand sanitizer;

(iv) sanitizing wipes with sufficient alcohol content; and

(v) training on the proper use of personal protective equipment and sanitizing equipment;

(D) to ensure that employees whose job responsibilities include the cleaning, disinfecting, or sanitizing described in subparagraph (A) or (B) are provided—

(i) masks or protective face coverings;

(ii) gloves;

(iii) hand sanitizer; and

(iv) sanitizing wipes with sufficient alcohol content;

(E) to establish guidelines, or adhere to any existing applicable guidelines, including the safety alert for operators issued by the Federal Aviation Administration on May 11, 2020, numbered SAFO 20009 (including any similar successor safety alert or applicable guidance), for notifying an employee of the owner or operator of a confirmed diagnosis of the Coronavirus Disease 2019 (COVID–19) with respect to any other employee of the owner or operator with whom the notified employee had physical contact or a physical interaction during the 48-hour period preceding the time at which the diagnosed employee developed symptoms;

(F) to require the wearing of masks or protective face coverings, subject to the requirements of the Americans with Disabilities Act of 1990 (42 U.S.C. 12101 et seq.), section 41705 of title 49, United States Code, (commonly known as the ''Air Carrier Access Act of 1986''), and section 501 of the Rehabilitation Act of 1973 (29 U.S.C. 791), as applicable, by—

(i) passengers traveling on transportation provided by a passenger or freight transportation employer; and

(ii) employees of passenger or freight transportation employers when—

(I) interacting with passengers, the public, or coworkers who interact with the public; or

(II) working in locations where social distancing and other preventative measures with respect to the Coronavirus Disease 2019 (COVID–19) are not possible;

(G) to require each flight crew member to wear a mask or protective face covering while on board an aircraft and outside the flight deck; and

(H) ensure that each contractor of an owner or operator identified under this paragraph provides masks or protective face coverings, gloves, hand sanitizer, and sanitizing wipes with sufficient alcohol content, to employees of such contractor whose job responsibilities include the cleaning, disinfecting, or sanitizing described in subparagraph (A) or (B); and

(2) an air carrier to submit to the Administrator of the Federal Aviation Administration a proposal to permit flight crew members to wear masks or protective face coverings in the flight deck, including a safety risk assessment with respect to that proposal.

(c) MARKET UNAVAILABILITY OF NECESSARY ITEMS.—

(1) NOTICE OF MARKET UNAVAILABILITY.—

(A) IN GENERAL.—If an owner or operator described in paragraph (1) of subsection (b) is unable to acquire 1 or more items necessary to comply with the requirements prescribed under that paragraph due to market unavailability of the items, the owner or operator shall—

(i) not later than 7 days after the date on which the owner or operator is unable to acquire each applicable item, submit to the Secretary a written notice explaining the efforts made and obstacles faced by the owner or operator to acquire that item; and

(ii) continue making efforts to acquire that item until the item is acquired.

(B) UPDATED NOTICE WITH RESPECT TO THE SAME ITEM.—If an owner or operator is unable to acquire an item described in a notice submitted under subparagraph (A) by the date described in paragraph (4)(B)(ii) with respect to the notice, the owner or operator may submit an updated notice with respect to that item.

(2) REASONABLE EFFORT DETERMINATION.—With respect to each notice submitted under paragraph (1), the Secretary shall determine whether the owner or operator submitting the notice has made reasonable efforts to acquire the item described in the notice.

(3) NOTICE OF COMPLIANCE.—Not later than 7 days after the date on which an owner or operator acquires an item described in a notice submitted by that owner or operator under paragraph (1) in a quantity sufficient to comply with the requirements prescribed under subsection (b)(1), the owner or operator shall submit to the Secretary a written notice of compliance with those requirements.

(4) LISTS OF OWNERS AND OPERATORS MAKING REASONABLE EFFORTS TO ACQUIRE UNAVAILABLE ITEMS.—

(A) IN GENERAL.—The Secretary shall publish on a public website of the Department of Transportation a list that, with respect to each notice submitted to the Secretary under paragraph (1) for which the Secretary has made a positive determination under paragraph (2)—

(i) identifies the owner or operator that submitted the notice;

(ii) identifies the item that the owner or operator was unable to acquire; and

(iii) describes the reasonable efforts made by the owner or operator to acquire that item.

(B) REMOVAL FROM LIST.—The Secretary shall remove each entry on the list described in subparagraph (A) on the earlier of—

(i) the date on which the applicable owner or operator submits to the Secretary a notice of compliance under paragraph (3) with respect to the item that is the subject of the entry; and

(ii) the date that is 90 days after the date on which the entry was added to the list.

(d) PROTECTION OF CERTAIN FEDERAL AVIATION ADMINISTRATION EMPLOYEES.—

(1) IN GENERAL.—For the purposes of responding to, or for purposes relating to operations during the national emergency declared by the President under the National Emergencies Act (50 U.S.C. 1601 et seq.) related to the pandemic of SARS–4CoV–2 or coronavirus disease 2019 (COVID–19), in order to maintain the safe and efficient operation of the air traffic control system, the Administrator of the Federal Aviation Administration shall—

(A) provide any air traffic controller and airway transportation systems specialist of the Federal Aviation Administration with masks or protective face coverings, gloves, and hand sanitizer and wipes of sufficient alcohol content, and provide training on the proper use of personal protective equipment and sanitizing equipment;

(B) ensure that each air traffic control facility is cleaned, disinfected, and sanitized frequently in accordance with Centers for Disease Control and Prevention guidance; and

(C) provide any employee of the Federal Aviation Administration whose job responsibilities involve cleaning, disinfecting, and sanitizing a facility described in subparagraph (B) with masks or protective face coverings and gloves, and ensure that each contractor of the Federal Aviation Administration provides any employee of the contractor with those materials.

(2) SOURCE OF EQUIPMENT.—The items described in paragraph (1)(A) may be procured or provided under that paragraph through any source available to the Administrator of the Federal Aviation Administration.

SEC. 302. PROPERTY DISPOSITION FOR AFFORDABLE HOUSING.

Section 5334(h)(1) of title 49, United States Code, is amended to read as follows:

''(1) IN GENERAL.—If a recipient of assistance under this chapter decides an asset acquired under this chapter at least in part with that assistance is no longer needed for the purpose for which such asset was acquired, the Secretary may authorize the recipient to transfer such asset to—

''(A) a local governmental authority to be used for a public purpose with no further obligation to the Government if the Secretary decides—

''(i) the asset will remain in public use for at least 5 years after the date the asset is transferred;

''(ii) there is no purpose eligible for assistance under this chapter for which the asset should be used;

''(iii) the overall benefit of allowing the transfer is greater than the interest of the Government in liquidation and return of the financial interest of the Government in the asset, after considering fair market value and other factors; and

''(iv) through an appropriate screening or survey process, that there is no interest in acquiring the asset for Government use if the asset is a facility or land; or

''(B) a local governmental authority, nonprofit organization, or other third party entity to be used for the purpose of transit-oriented development with no further obligation to the Government if the Secretary decides—

''(i) the asset is a necessary component of a proposed transit-oriented development project;

''(ii) the transit-oriented development project will increase transit ridership;

''(iii) at least 40 percent of the housing units offered in the transit-oriented development , including housing units owned by nongovernmental entities, are legally binding affordability restricted to tenants with incomes at or below 60 percent of the area median income and/or owners with incomes at or below 60 percent the area median income;

''(iv) the asset will remain in use as described in this section for at least 30 years after the date the asset is transferred; and

''(v) with respect to a transfer to a third party entity—

''(I) a local government authority or nonprofit organization is unable to receive the property;

''(II) the overall benefit of allowing the transfer is greater than the interest of the Government in liquidation and return of the financial interest of the Government in the asset, after considering fair market value and other factors; and

''(III) the third party has demonstrated a satisfactory history of construction or operating an affordable housing development.''.

SEC. 303. TREATMENT OF PAYMENTS FROM THE RAILROAD UNEMPLOYMENT INSURANCE ACCOUNT.

(a) IN GENERAL.—Section 256(i)(1) of the Balanced Budget and Emergency Deficit Control Act of 1985 (2 U.S.C. 906(i)(1)) is amended—

(1) in subparagraph (B), by striking ''and'' at the end;

(2) in subparagraph (C), by inserting ''and'' at the end; and

(3) by inserting after subparagraph (C) the following new subparagraph:

''(D) any payment made from the Railroad Unemployment Insurance Account (established by section 10 of the Railroad Unemployment Insurance Act) for the purpose of carrying out the Railroad Unemployment Insurance Act, and funds appropriated or transferred to or otherwise deposited in such Account,''.

(b) EFFECTIVE DATE.—The treatment of payments made from the Railroad Unemployment Insurance Account pursuant to the amendment made by subsection (a) shall take effect 7 days after the date of enactment of this Act and shall apply only to obligations incurred on or after such effective date for such payments.

SEC. 304. CLARIFICATION OF OVERSIGHT AND IMPLEMENTATION OF RELIEF FOR WORKERS AFFECTED BY CORONAVIRUS ACT.

(a) AUDITS, INVESTIGATIONS, AND OVERSIGHT.—Notwithstanding section 2115 of the Relief for Workers Affected by Coronavirus Act

(subtitle A of title II of division A of Public Law 116–136), the authority of the Inspector General of the Department of Labor to carry out audits, investigations, and other oversight activities that are related to the provisions of such Act shall not extend to any activities related to sections 2112, 2113, or 2114 of such Act. Such authority with respect to such sections shall belong to the Inspector General of the Railroad Retirement Board.

(b) OPERATING INSTRUCTIONS OR OTHER GUIDANCE.—Notwithstanding section 2116(b) of the Relief for Workers Affected by Coronavirus Act (subtitle A of title II of division A of Public Law 116–136), the authority of the Secretary of Labor to issue any operating instructions or other guidance necessary to carry out the provisions of such Act shall not extend to any activities related to sections 2112, 2113, or 2114 of such Act. Such authority with respect to such sections shall belong to the Railroad Retirement Board.

SEC. 305. EXTENSION OF WAIVER OF THE 7-DAY WAITING PERIOD FOR BENEFITS UNDER THE RAILROAD UNEMPLOYMENT INSURANCE ACT.

(a) IN GENERAL.—Section 2112(a) of the CARES Act (15 U.S.C. 9030) is amended by striking ''December 31, 2020'' and inserting ''January 31, 2021''.

(b) OPERATING INSTRUCTIONS AND REGULATIONS.—The Railroad Retirement Board may prescribe any operating instructions or regulations necessary to carry out this section.

(c) CLARIFICATION ON AUTHORITY TO USE FUNDS.—Funds appropriated under section 2112(c) of the CARES Act shall be available to cover the cost of additional benefits payable due to section 2112(a) of the CARES Act by reason of the amendments made by subsection (a) as well as to cover the cost of such benefits payable due to section 2112(a) of the CARES Act as in effect on the day before the date of enactment of this Act.

SEC. 306. EXTENDED UNEMPLOYMENT BENEFITS UNDER THE RAILROAD UNEMPLOYMENT INSURANCE ACT.

(a) IN GENERAL.—Section 2(c)(2)(D)(iii) of the Railroad Unemployment Insurance Act (45 U.S.C. 352(c)(2)(D)(iii) is amended—

(1) by striking ''June 30, 2020'' and inserting ''June 30, 2021''; and

(2) by striking ''no extended benefit period under this paragraph shall begin after December 31, 2020'' and inserting ''the provisions of clauses (i) and (ii) shall not apply to any employee with respect to any registration period beginning on or after February 1, 2021''.

(b) CLARIFICATION ON AUTHORITY TO USE FUND.—Funds appropriated under either the first or second sentence of clause (iv) of section 2(c)(2)(D) of the Railroad Unemployment Insurance Act shall be available to cover the cost of additional extended unemployment benefits provided under such section 2(c)(2)(D) by reason of the amendments made by subsection (a) as well as to cover the cost of such benefits provided under such section 2(c)(2)(D) as in effect on the day before the date of enactment of this Act.

SEC. 307. ADDITIONAL ENHANCED BENEFITS UNDER THE RAILROAD UNEMPLOYMENT INSURANCE ACT.

(a) IN GENERAL.—Section 2(a)(5)(A) of the Railroad Unemployment Insurance Act (45 U.S.C. 352(a)(5)(A) is amended—

(1) by inserting ''for registration periods beginning on or after September 6, 2020, but on or before January 31, 2021, and for any registration periods during a period of continuing unemployment which began on or before January 31, 2021,'' after ''July 31, 2020,'';

(2) by striking ''July 1, 2019'' and inserting ''July 1, 2019, or July 1, 2020''; and

(3) by adding at the end ''No recovery benefit under this section shall be payable for any registration period beginning on or after April 1, 2021. For registration periods beginning on or after February 1, 2021, a recovery benefit under this section shall only be payable to a qualified employee with respect to any registration period in which the employee received normal unemployment benefits as defined in paragraph (c)(1), but shall not be payable to a qualified employee who did not receive unemployment benefits or who received extended benefits as defined in paragraph (c)(2) for such registration period.''

(b) ADDITIONAL APPROPRIATIONS.—Section 2(a)(5)(B) of the Railroad Unemployment Insurance Act (45 U.S.C. 352(a)(5)(B) is amended by adding at the end the following:

''In addition to the amount appropriated by the preceding sentence, out of any funds in the Treasury not otherwise appropriated, there are appropriated $300,000,000 to cover the cost of recovery benefits provided under subparagraph (A), to remain available until expended.''.

(c) DISREGARD OF RECOVERY BENEFITS FOR PURPOSES OF ALL FEDERAL AND FEDERALLY ASSISTED PROGRAMS.—Section 2(a)(5) of the Railroad Unemployment Insurance Act (45 U.S.C. 352(a)(5)) is amended by adding at the end the following:

''(C) A recovery benefit payable under subparagraph (A) shall not be regarded as income and shall not be regarded as a resource for the month of receipt and the following 9 months, for purposes of determining the eligibility of the recipient (or the recipient's spouse or family) for benefits or assistance, or the amount or extent of benefits or assistance, under any Federal program or under any State or local program financed in whole or in part with Federal funds.''.

(d) CLARIFICATION ON AUTHORITY TO USE FUNDS.—Funds appropriated under either the first or second sentence of subparagraph (B) of section 2(a)(5) of the Railroad Unemployment Insurance Act shall be available to cover the cost of recovery benefits provided under such section 2(a)(5) by reason of the amendments made by subsection (a) as well as to cover the cost of such benefits provided under such section 2(a)(5) as in effect on the day before the date of enactment of this Act.

SEC. 308. OFFICE OF DISASTER RECOVERY.

(a) IN GENERAL.—Title V of the Public Works and Economic Development Act of 1965 (42 U.S.C. 3191 et seq.) is amended by adding at the end the following:

''SEC. 508. OFFICE OF DISASTER RECOVERY.

''(a) IN GENERAL.—The Secretary shall create an Office of Disaster Recovery to direct and implement the Agency's post-disaster economic recovery responsibilities pursuant to sections 209(c)(2) and 703.

''(b) AUTHORIZATION.—The Secretary is authorized to appoint and fix the compensation of such temporary personnel as may be necessary to implement disaster recovery measures, without regard to the provisions of title 5, United States Code, governing appointments in the competitive service. The Secretary is authorized to appoint such temporary personnel, after serving continuously for 2 years, to positions in the Economic Development Administration in the same manner that competitive service employees with competitive status are considered for transfer, reassignment, or promotion to such positions. An individual appointed under the preceding sentence shall become a career-conditional employee, unless the employee has already completed the service requirements for career tenure.''.

(b) CLERICAL AMENDMENT.—The table of contents for the Public Works and Economic Development Act of 1965 is amended by inserting after the item relating to section 507 the following new item:

''508. Office of Disaster Recovery.''.

SEC. 309. GRADUATION REQUIREMENTS FOR THE UNITED STATES MERCHANT MARINE ACADEMY AND STATE MARITIME ACADEMIES.

(a) UNITED STATES MERCHANT MARINE ACADEMY.—

(1) Notwithstanding section 51309(a)(1)(B) of title 46, United States Code, and subject to such terms and conditions as set forth in this subsection and other conditions as the Secretary may determine, the Superintendent of the United States Merchant Marine Academy may confer degrees on individuals scheduled to receive such degrees from the United States Merchant Marine Academy in calendar year 2020.

(2) With respect to an individual described in paragraph (1), the Secretary of Transportation may—

(A) defer until not later than December 31, 2021, the requirements of section 51306(a)(2) of title 46, United States Code, and relevant regulations;

(B) defer until not later than December 31, 2021, and modify as necessary, requirements under paragraphs (3) through (5) of section 51306(a) of title 46, United States Code, and relevant regulations; and

(C) conditionally waive requirements under paragraphs (2) through (5) of section 51306(a) of title 46, United States Code, and relevant regulations, for an individual who—

(i) within 3 months of receiving a degree has accepted a commission as an officer on active duty in an armed force of the United States or a commission as an officer of the National Oceanic and Atmospheric Administration or the Public Health Service, pursuant to section 51306(e) of title 46, United States Code; and

(ii) serves for the 5-year period following commissioning as an officer on active duty as described in clause (i).

(3) An individual upon whom the United States Merchant Marine Academy confers a degree pursuant to paragraph (1) shall—

(A) fulfill the requirements under section 51306(a)(2) of title 46, United States Code, and relevant regulations, by the date set by the Secretary, which shall be not later than December 31, 2021; or

(B) for the 5-year period following graduation from the Academy as described in paragraph (2)(C)(i), serve as a commissioned officer on active duty in an armed force of the United States or as a commissioned officer of the National Oceanic and Atmospheric Administration or the Public Health Service, pursuant to section 51306(e) of title 46, United States Code.

(4) If the United States Merchant Marine Academy confers a degree upon an individual pursuant to paragraph (1) and the individual fails to comply with the requirements established by the Secretary, the Secretary may—

(A) revoke the degree conferred on the individual by the United States Merchant Marine Academy; and

(B) exercise the remedies under section 51306 of title 46, United States Code.

(b) STATE MARITIME ACADEMY.—

(1) Notwithstanding section 51506(a)(3) of title 46, United States Code, and subject to such terms and conditions as set forth in this subsection and other conditions as the Secretary may determine, a State maritime academy may confer degrees upon individuals scheduled to graduate from a State maritime academy in calendar year 2020. With respect to an individual who has received student incentive payments under section 51509 of title 46, United States Code, and fails to comply with such terms and conditions, the Secretary may exercise the authorities set forth in paragraphs (3) of this subsection.

(2) For an individual to be eligible to be conferred a degree pursuant to paragraph (1), the State maritime academy shall require such individual to pass the examination required for the issuance of a license under section 7101 of title 46, United States Code, by December 31, 2021, and such State maritime academy shall advise all such individuals who have not passed the examination prerequisite to issuance of a license that any degree so awarded is subject to revocation and such State maritime academy shall advise any individuals who have not passed.

(3) The Secretary of Transportation may—

(A) require a State maritime academy, as a condition of receiving an annual payment under section 51506(a) of title 46, United States Code, to report to the Secretary, in a manner determined by the Secretary, on the compliance with paragraph (2);

(B) withhold payments under section 51506(a) of title 46, United States Code, in an amount not greater than the fractional amount of the direct payment that is proportional to the number of graduates who fail to comply with requirements under paragraph (2) and whose degrees have not been revoked by the State maritime academy and the total number of individuals graduating from such State maritime academy in calendar year 2020; and

(C) reduce the amount of direct payments withheld under subparagraph (B) below the maximum amount authorized.

(4) For an individual graduating from a State maritime academy in calendar year 2020 who has received student incentive payments under section 51509 of title 46, United States Code, the Secretary of Transportation may—

(A) defer until not later than December 31, 2021, the requirements under sections 51509(d)(2) of title 46, United States Code, and relevant regulations;

(B) defer until not later than December 31, 2021, and modify as necessary as determined by the Secretary, the requirements under paragraphs (3) through (5) of section 51509(d) of title 46, United States Code, and relevant regulations; and

(C) conditionally waive requirements under paragraphs (2) through (5) of section 51509(d) of title 46, United States Code, and relevant regulations, for an individual who—

(i) within 3 months of graduation is commissioned as an officer on active duty in an armed force of the United States or as a commissioned officer of the National Oceanic and Atmospheric Administration or the Public Health Service, pursuant to section 51509(h) of title 46, United States Code; and

(ii) serves for the 5-year period following commissioning as an officer on active duty as provided for in clause (i).

(5) An individual conferred a degree from a State maritime academy pursuant to paragraph (1) who has received student incentive payments as provided for in section 51509 of title 46, United States Code, shall—

(A) fulfill the requirements under section 51509(d)(2) of title 46, United States Code, and relevant regulations not later than December 31, 2021; or

(B) for the 5-year period following graduation from an academy described in paragraph (4)(C)(ii), serve as a commissioned officer on active duty in an armed force of the United States or as a commissioned officer of the National Oceanic and Atmospheric Administration or the Public Health Service, pursuant to section 51509(h) of title 46, United States Code.

(6) If an individual conferred a degree from a State maritime academy pursuant to paragraph (1) fails to comply with the requirements established by the Secretary, the Secretary may exercise the remedies under section 51509 of title 46, United States Code.

(c) EXTENSION OF AUTHORIZATION.—The Secretary may apply the provisions of subsections (a) and (b) to subsequent graduating classes at the United States Merchant Marine Academy and State maritime academies, and extend compliance dates applicable to such graduates, if the Secretary determines it is necessary to respond to the public health emergency declared by the Secretary of Health and Human Services issued on January 27, 2020, titled ''Concerning the Novel Coronavirus''.

SEC. 310. REGULATION OF ANCHORAGE AND MOVEMENT OF VESSELS DURING NATIONAL EMERGENCY.

Section 70051 of title 46, United States Code, is amended—

(1) in the section heading by inserting ''or public health emergency'' after ''national emergency'';

(2) by inserting ''or whenever the Secretary of Health and Human Services determines a public health emergency exists,'' after ''international relations of the United States'';

(3) by inserting ''or to ensure the safety of vessels and persons in any port and navigable waterway,'' after ''harbor or waters of the United States'';

(4) by inserting ''or public health emergency,'' after ''subversive activity''; and

(5) by inserting ''or to ensure the safety of vessels and persons in any port and navigable waterway,'' after ''injury to any harbor or waters of the United States,''.

DIVISION R—ACCOUNTABILITY AND GOVERNMENT OPERATIONS

TITLE I—ACCOUNTABILITY

SEC. 101. CONGRESSIONAL NOTIFICATION OF CHANGE IN STATUS OF INSPECTOR GENERAL.

(a) CHANGE IN STATUS OF INSPECTOR GENERAL OF OFFICES.—Section 3(b) of the Inspector General Act of 1978 (5 U.S.C. App.) is amended—

(1) by inserting '', is placed on paid or unpaid non-duty status,'' after ''is removed from office'';

(2) by inserting '', change in status,'' after ''any such removal''; and

(3) by inserting '', change in status,'' after ''before the removal''.

(b) CHANGE IN STATUS OF INSPECTOR GENERAL OF DESIGNATED FEDERAL ENTITIES.—Section 8G(e)(2) of the Inspector General Act of 1978 (5 U.S.C. App.) is amended—

(1) by inserting '', is placed on paid or unpaid non-duty status,'' after ''office'';

(2) by inserting '', change in status,'' after ''any such removal''; and

(3) by inserting '', change in status,'' after ''before the removal''.

(c) EFFECTIVE DATE.—The amendments made by this section shall take effect 30 days after the date of the enactment of this Act.

SEC. 102. PRESIDENTIAL EXPLANATION OF FAILURE TO NOMINATE AN INSPECTOR GENERAL.

(a) IN GENERAL.—Subchapter III of chapter 33 of title 5, United States Code, is amended by inserting after section 3349d the following new section:

''§ 3349e. Presidential explanation of failure to nominate an Inspector General

''If the President fails to make a formal nomination for a vacant Inspector General position that requires a formal nomination by the President to be filled within the period beginning on the date on which the vacancy occurred and ending on the day that is 210 days after that date, the President shall communicate, within 30 days after the end of such period, to Congress in writing—

''(1) the reasons why the President has not yet made a formal nomination; and

''(2) a target date for making a formal nomination.''.

(b) CLERICAL AMENDMENT.—The table of sections for chapter 33 of title 5, United States Code, is amended by inserting after the item relating to 3349d the following new item:

''3349e. Presidential explanation of failure to nominate an Inspector General.''.

(c) EFFECTIVE DATE.—The amendment made by subsection (a) shall take effect on the date of the enactment of this Act and shall apply to any vacancy first occurring on or after that date.

SEC. 103. INSPECTOR GENERAL INDEPENDENCE.

(a) SHORT TITLE.—This section may be cited as the ''Inspector General Independence Act''.

(b) AMENDMENT.—The Inspector General Act of 1978 (5 U.S.C. App.) is amended—

(1) in section 3(b)—

(A) by striking ''An Inspector General'' and inserting ''(1) An Inspector General'';

(B) by inserting after ''by the President'' the following: ''in accordance with paragraph (2)''; and

(C) by inserting at the end the following new paragraph:

''(2) The President may remove an Inspector General only for any of the following grounds:

''(A) Permanent incapacity.

''(B) Inefficiency.

''(C) Neglect of duty.

''(D) Malfeasance.

''(E) Conviction of a felony or conduct involving moral turpitude.

''(F) Knowing violation of a law, rule, or regulation.

''(G) Gross mismanagement.

''(H) Gross waste of funds.

''(I) Abuse of authority.''; and

(2) in section 8G(e)(2), by adding at the end the following new sentence: ''An Inspector General may be removed only for any of the following grounds:

''(A) Permanent incapacity.

''(B) Inefficiency.

''(C) Neglect of duty.

''(D) Malfeasance.

''(E) Conviction of a felony or conduct involving moral turpitude.

''(F) Knowing violation of a law, rule, or regulation.

''(G) Gross mismanagement.

''(H) Gross waste of funds.

''(I) Abuse of authority.''.

SEC. 104. USPS INSPECTOR GENERAL OVERSIGHT RESPONSIBILITIES.

The Inspector General of the United States Postal Service shall—

(1) conduct oversight, audits, and investigations of projects and activities carried out with funds provided in division A of this Act to the United States Postal Service; and

(2) not less than 90 days after the Postal Service commences use of funding provided by division A of this Act, and annually thereafter, initiate an audit of the Postal Service's use of appropriations and borrowing authority provided by any division of this Act, including the use of funds to cover lost revenues, costs due to COVID–19, and expenditures, and submit a copy of such audit to the Committee on Homeland Security and Governmental Affairs of the Senate, the Committee on Oversight and Reform of the House of Representatives, and the Committees on Appropriations of the House of Representatives and the Senate.

TITLE II—CENSUS MATTERS

SEC. 201. MODIFICATION OF 2020 CENSUS DEADLINES AND TABULATION OF POPULATION.

(a) CENSUS DEADLINE MODIFICATION.—Notwithstanding the timetables provided in subsections (b) and (c) of section 141 of title 13, United States Code, and section 22(a) of the Act entitled ''An Act to provide for the fifteenth and subsequent decennial censuses and to provide for apportionment of Representatives in Congress'', approved June 18, 1929 (2 U.S.C. 2a(a)), for the 2020 decennial census of population—

(1) the tabulation of total population by States required by subsection (a) of such section 141 for the apportionment of Representatives in Congress among the several States shall be—

(A) completed and reported by the Secretary of Commerce (referred to in this section as the ''Secretary'') to the President no earlier than one year after the decennial census date of April 1, 2020, and not later than April 30, 2021; and

(B) made public by the Secretary not later than the date on which the tabulation is reported to the President under subparagraph (A);

(2) the President shall transmit to Congress a statement showing the whole number of persons in each State, and the number of Representatives to which each State would be entitled under an apportionment of the then existing number of Representatives, as required by such section 22(a), and determined solely as described

therein, immediately upon receipt of the tabulation reported by the Secretary; and

(3) the tabulations of populations required by subsection (c) of such section 141 shall be completed by the Secretary as expeditiously as possible after the census date of April 1, 2020, taking into account the deadlines of each State for legislative apportionment or districting, and reported to the Governor of the State involved and to the officers or public bodies having responsibility for legislative apportionment or districting of that State, except that the tabulations of population of each State requesting a tabulation plan, and basic tabulations of population of each other State, shall be completed, reported, and transmitted to each respective State not later than July 30, 2021.

(b) NRFU OPERATION.—For the 2020 decennial census of population, the Bureau of the Census shall conclude the Nonresponse Followup operation and the self-response operation no earlier than October 31, 2020.

SEC. 202. REPORTING REQUIREMENTS FOR 2020 CENSUS.

On the first day of each month during the period between the date of enactment of this Act and July 1, 2021, the Director of the Bureau of the Census shall submit, to the Committee on Oversight and Reform of the House of Representatives, the Committee on Homeland Security and Governmental Affairs of the Senate, and the Committees on Appropriations of the House and the Senate, a report regarding the 2020 decennial census of population containing the following information:

(1) The total number of field staff, sorted by category, hired by the Bureau compared to the number of field staff the Bureau estimated was necessary to carry out such census.

(2) Retention rates of such hired field staff.

(3) Average wait time for call center calls and average wait time for each language provided.

(4) Anticipated schedule of such census operations.

(5) Total tabulated responses, categorized by race and Hispanic origin.

(6) Total appropriations available for obligation for such census and a categorized list of total disbursements.

(7) Non-Response Follow-Up completion rates by geographic location.

(8) Update/Enumerate and Update/Leave completion rates by geographic location.

(9) Total spending to date on media, advertisements, and partnership specialists, including a geographic breakdown of such spending.

(10) Post-enumeration schedule and subsequent data aggregation and delivery progress.

SEC. 203. LIMITATION ON TABULATION OF CERTAIN DATA.

(a) LIMITATION.—The Bureau of the Census may not compile or produce any data product or tabulation as part of, in combination with, or in connection with, the 2020 decennial census of population or any such census data produced pursuant to section 141(c) of title 13, United States Code, that is based in whole or in part on data that is not collected in such census.

(b) EXCEPTION.—The limitation in subsection (a) shall not apply to any data product or tabulation that is required by sections 141(b) or (c) of such title, that uses the same or substantially similar methodology and data sources as a decennial census data product produced by the Bureau of the Census before January 1, 2019, or that uses a methodology and data sources that the Bureau of the Census finalized and made public prior to January 1, 2018.

TITLE III—FEDERAL WORKFORCE

SEC. 301. COVID–19 TELEWORKING REQUIREMENTS FOR FEDERAL EMPLOYEES.

(a) MANDATED TELEWORK.—

(1) IN GENERAL.—Effective immediately upon the date of enactment of this Act, the head of any Federal agency shall require any employee of such agency who is authorized to telework under chapter 65 of title 5, United States Code, or any other provision of law to telework during the period beginning on the date of enactment of this Act and ending on December 31, 2020.

(2) DEFINITIONS.—In this subsection—

(A) the term ''employee'' means—

(i) an employee of the Library of Congress;

(ii) an employee of the Government Accountability Office;

(iii) a covered employee as defined in section 101 of the Congressional Accountability Act of 1995 (2 U.S.C. 1301), other than an applicant for employment;

(iv) a covered employee as defined in section 411(c) of title 3, United States Code;

(v) a Federal officer or employee covered under subchapter V of chapter 63 of title 5, United States Code; or

(vi) any other individual occupying a position in the civil service (as that term is defined in section 2101(1) of title 5, United States Code); and

(B) the term ''telework'' has the meaning given that term in section 6501(3) of such title.

(b) TELEWORK PARTICIPATION GOALS.—Chapter 65 of title 5, United States Code, is amended as follows:

(1) In section 6502—

(A) in subsection (b)—

(i) in paragraph (4), by striking ''and'' at the end;

(ii) in paragraph (5), by striking the period at the end and inserting a semicolon; and

(iii) by adding at the end the following:

''(6) include annual goals for increasing the percent of employees of the executive agency participating in teleworking—

''(A) three or more days per pay period;

''(B) one or 2 days per pay period;

''(C) once per month; and

''(D) on an occasional, episodic, or short-term basis; and

''(7) include methods for collecting data on, setting goals for, and reporting costs savings to the executive agency achieved through teleworking, consistent with the guidance developed under section 301(c) of division R of The Heroes Act.''; and

(B) by adding at the end the following:

''(d) NOTIFICATION FOR REDUCTION IN TELEWORKING PARTICIPATION.—Not later than 30 days before the date that an executive agency implements or modifies a teleworking plan that would reduce the percentage of employees at the agency who telework, the head of the executive agency shall provide written notification, including a justification for the reduction in telework participation and a description of how the agency will pay for any increased costs resulting from that reduction, to—

''(1) the Director of the Office of Personnel Management;

''(2) the Committee on Oversight and Reform of the House of Representatives; and

''(3) the Committee on Homeland Security and Governmental Affairs of the Senate.

''(e) PROHIBITION ON AGENCY-WIDE LIMITS ON TELEWORKING.—An agency may not prohibit any delineated period of teleworking participation for all employees of the agency, including the periods described in subparagraphs (A) through (D) of subsection (b)(6). The agency shall make any teleworking determination with respect to an employee or group of employees at the agency on a case-by-case basis.''.

(2) In section 6506(b)(2)—

(A) in subparagraph (F)(vi), by striking ''and'' at the end;

(B) in subparagraph (G), by striking the period at the end and inserting a semicolon; and

(C) by adding at the end the following:

''(H) agency cost savings achieved through teleworking, consistent with the guidance developed under section 2(c) of the Telework Metrics and Cost Savings Act; and

''(I) a detailed explanation of a plan to increase the Government-wide teleworking participation rate above such rate applicable to fiscal year 2016, including agency-level plans to maintain or imparove such rate for each of the teleworking frequency categories listed under subparagraph (A)(iii).''.

(c) GUIDANCE.—Not later than 90 days after the date of the enactment of this Act, the Director of the Office of Personnel Management, in collaboration with the Chief Human Capital Officer Council, shall establish uniform guidance for agencies on how to collect data on, set goals for, and report cost savings achieved through, teleworking. Such guidance shall account for cost savings related to travel, energy use, and real estate.

(d) TECHNICAL CORRECTION.—Section 6506(b)(1) of title 5, United States Code, is amended by striking ''with Chief'' and inserting ''with the Chief''.

SEC. 302. RETIREMENT FOR CERTAIN EMPLOYEES.

(a) CSRS.—Section 8336(c) of title 5, United States Code, is amended by adding at the end the following:

''(3)(A) In this paragraph—

''(i) the term 'affected individual' means an individual covered under this subchapter who—

''(I) is performing service in a covered position;

''(II) is diagnosed with COVID–19 before the date on which the individual becomes entitled to an annuity under paragraph (1) of this subsection or subsection (e), (m), or (n), as applicable;

''(III) because of the illness described in subclause (II), is permanently unable to render useful and efficient service in the employee's covered position, as determined by the agency in which the individual was serving when such individual incurred the illness; and

''(IV) is appointed to a position in the civil service that—

''(aa) is not a covered position; and

''(bb) is within an agency that regularly appoints individuals to supervisory or administrative positions related to the activities of the former covered position of the individual;

''(ii) the term 'covered position' means a position as a law enforcement officer, customs and border protection officer, firefighter, air traffic controller, nuclear materials courier, member of the Capitol Police, or member of the Supreme Court Police; and

''(iii) the term 'COVID–19' means the 2019 Novel Coronavirus or 2019-nCoV.

''(B) Unless an affected individual files an election described in subparagraph (E), creditable service by the affected individual in a position described in subparagraph (A)(i)(IV) shall be treated as creditable service in a covered position for purposes of this chapter and determining the amount to be deducted and withheld from the pay of the affected individual under section 8334.

''(C) Subparagraph (B) shall only apply if the affected employee transitions to a position described in subparagraph (A)(i)(IV) without a break in service exceeding 3 days.

''(D) The service of an affected individual shall no longer be eligible for treatment under subparagraph (B) if such service occurs after the individual—

''(i) is transferred to a supervisory or administrative position related to the activities of the former covered position of the individual; or

''(ii) meets the age and service requirements that would subject the individual to mandatory separation under section 8335 if such individual had remained in the former covered position.

''(E) In accordance with procedures established by the Director of the Office of Personnel Management, an affected individual may file an election to have any creditable service performed by the affected individual treated in accordance with this chapter without regard to subparagraph (B).

''(F) Nothing in this paragraph shall be construed to apply to such affected individual any other pay-related laws or regulations applicable to a covered position.''.

(b) FERS.—

(1) IN GENERAL.—Section 8412(d) of title 5, United States Code, is amended—

(A) by redesignating paragraphs (1) and (2) as subparagraphs (A) and (B), respectively;

(B) by inserting ''(1)'' before ''An employee''; and

(C) by adding at the end the following:

''(2)(A) In this paragraph—

''(i) the term 'affected individual' means an individual covered under this chapter who—

''(I) is performing service in a covered position;

''(II) is diagnosed with COVID–19 before the date on which the individual becomes entitled to an annuity under paragraph (1) of this subsection or subsection (e), as applicable;

''(III) because of the illness described in subclause (II), is permanently unable to render useful and efficient service in the employee's covered position, as determined by the agency in which the individual was serving when such individual incurred the illness; and

''(IV) is appointed to a position in the civil service that—

''(aa) is not a covered position; and

''(bb) is within an agency that regularly appoints individuals to supervisory or administrative positions related to the activities of the former covered position of the individual;

''(ii) the term 'covered position' means a position as a law enforcement officer, customs and border protection officer, firefighter, air traffic controller, nuclear materials courier, member of the Capitol Police, or member of the Supreme Court Police; and

''(iii) the term 'COVID–19' means the 2019 Novel Coronavirus or 2019-nCoV.

''(B) Unless an affected individual files an election described in subparagraph (E), creditable service by the affected individual in a position described in subparagraph (A)(i)(IV) shall be treated as creditable service in a covered position for purposes of this chapter and determining the amount to be deducted and withheld from the pay of the affected individual under section 8422.

''(C) Subparagraph (B) shall only apply if the affected employee transitions to a position described in subparagraph (A)(i)(IV) without a break in service exceeding 3 days.

''(D) The service of an affected individual shall no longer be eligible for treatment under subparagraph (B) if such service occurs after the individual—

''(i) is transferred to a supervisory or administrative position related to the activities of the former covered position of the individual; or

''(ii) meets the age and service requirements that would subject the individual to mandatory separation under section 8425 if such individual had remained in the former covered position.

''(E) In accordance with procedures established by the Director of the Office of Personnel Management, an affected individual may file an election to have any creditable service performed by the affected individual treated in accordance with this chapter without regard to subparagraph (B).

''(F) Nothing in this paragraph shall be construed to apply to such affected individual any other pay-related laws or regulations applicable to a covered position.''.

(2) TECHNICAL AND CONFORMING AMENDMENTS.—

(A) Chapter 84 of title 5, United States Code, is amended—

(i) in section 8414(b)(3), by inserting ''(1)'' after ''subsection (d)'';

(ii) in section 8415—

(I) in subsection (e), in the matter preceding paragraph (1), by inserting ''(1)'' after ''subsection (d)''; and

(II) in subsection (h)(2)(A), by striking ''(d)(2)'' and inserting ''(d)(1)(B)'';

(iii) in section 8421(a)(1), by inserting ''(1)'' after ''(d)'';

(iv) in section 8421a(b)(4)(B)(ii), by inserting ''(1)'' after ''section 8412(d)'';

(v) in section 8425, by inserting ''(1)'' after ''section 8412(d)'' each place it appears; and

(vi) in section 8462(c)(3)(B)(ii), by inserting ''(1)'' after ''subsection (d)''.

(B) Title VIII of the Foreign Service Act of 1980 (22 U.S.C. 4041 et seq.) is amended—

(i) in section 805(d)(5) (22 U.S.C. 4045(d)(5)), by inserting ''(1)'' after ''or 8412(d)''; and

(ii) in section 812(a)(2)(B) (22 U.S.C. 4052(a)(2)(B)), by inserting ''(1)'' after ''or 8412(d)''.

(c) CIA EMPLOYEES.—Section 302 of the Central Intelligence Agency Retirement Act (50 U.S.C. 2152) is amended by adding at the end the following:

''(d) EMPLOYEES DISABLED ON DUTY.—

''(1) DEFINITIONS.—In this subsection—

''(A) the term 'affected employee' means an employee of the Agency covered under subchapter II of chapter 84 of title 5, United States Code, who—

''(i) is performing service in a position designated under subsection (a);

''(ii) is diagnosed with COVID–19 before the date on which the employee becomes entitled to an annuity under section 233 of this Act or section 8412(d)(1) of title 5, United States Code;

''(iii) because of the illness described in clause (ii), is permanently unable to render useful and efficient service in the employee's covered position, as determined by the Director; and

''(iv) is appointed to a position in the civil service that is not a covered position but is within the Agency;

''(B) the term 'covered position' means a position as—

''(i) a law enforcement officer described in section 8331(20) or 8401(17) of title 5, United States Code;

''(ii) a customs and border protection officer described in section 8331(31) or 8401(36) of title 5, United States Code;

''(iii) a firefighter described in section 8331(21) or 8401(14) of title 5, United States Code;

''(iv) an air traffic controller described in section 8331(30) or 8401(35) of title 5, United States Code;

''(v) a nuclear materials courier described in section 8331(27) or 8401(33) of title 5, United States Code;

''(vi) a member of the United States Capitol Police;

''(vii) a member of the Supreme Court Police;

''(viii) an affected employee; or

''(ix) a special agent described in section 804(15) of the Foreign Service Act of 1980 (22 U.S.C. 4044(15)); and

''(C) the term 'COVID–19' means the 2019 Novel Coronavirus or 2019-nCoV.

''(2) TREATMENT OF SERVICE AFTER DISABILITY.—Unless an affected employee files an election described in paragraph (3), creditable service by the affected employee in a position described in paragraph (1)(A)(iv) shall be treated as creditable service in a covered position for purposes of this Act and chapter 84 of title 5, United States Code, including eligibility for an annuity under section 233 of this Act or 8412(d)(1) of title 5, United States Code, and determining the amount to be deducted and withheld from the pay of the affected employee under section 8422 of title 5, United States Code.

''(3) BREAK IN SERVICE.—Paragraph (2) shall only apply if the affected employee transitions to a position described in paragraph (1)(A)(iv) without a break in service exceeding 3 days.

''(4) LIMITATION ON TREATMENT OF SERVICE.—The service of an affected employee shall no longer be eligible for treatment under paragraph (2) if such service occurs after the employee is transferred to a supervisory or administrative position related to the activities of the former covered position of the employee.

''(5) OPT OUT.—An affected employee may file an election to have any creditable service performed by the affected employee treated in accordance with chapter 84 of title 5, United States Code, without regard to paragraph (2).''.

(d) FOREIGN SERVICE RETIREMENT AND DISABILITY SYSTEM.—Section 806(a)(6) of the Foreign Service Act of 1980 (22 U.S.C. 4046(a)(6)) is amended by adding at the end the following:

''(D)(i) In this subparagraph—

''(I) the term 'affected special agent' means an individual covered under this subchapter who—

''(aa) is performing service as a special agent;

''(bb) is diagnosed with COVID–19 before the date on which the individual becomes entitled to an annuity under section 811;

''(cc) because of the illness described in item (bb), is permanently unable to render useful and efficient service in the employee's covered position, as determined by the Secretary; and

''(dd) is appointed to a position in the Foreign Service that is not a covered position;

''(II) the term 'covered position' means a position as—

''(aa) a law enforcement officer described in section 8331(20) or 8401(17) of title 5, United States Code;

''(bb) a customs and border protection officer described in section 8331(31) or 8401(36) of title 5, United States Code;

''(cc) a firefighter described in section 8331(21) or 8401(14) of title 5, United States Code;

''(dd) an air traffic controller described in section 8331(30) or 8401(35) of title 5, United States Code;

''(ee) a nuclear materials courier described in section 8331(27) or 8401(33) of title 5, United States Code;

''(ff) a member of the United States Capitol Police;

''(gg) a member of the Supreme Court Police;

''(hh) an employee of the Agency designated under section 302(a) of the Central Intelligence Agency Retirement Act (50 U.S.C. 2152(a)); or

''(ii) a special agent; and

''(III) the term 'COVID–19' means the 2019 Novel Coronavirus or 2019-nCoV.

''(ii) Unless an affected special agent files an election described in clause (iv), creditable service by the affected special agent in a position described in clause (i)(I)(dd) shall be treated as creditable service as a special agent for purposes of this subchapter, including determining the amount to be deducted and withheld from the pay of the individual under section 805.

''(iii) Clause (ii) shall only apply if the special agent transitions to a position described in clause (i)(I)(dd) without a break in service exceeding 3 days.

''(iv) The service of an affected employee shall no longer be eligible for treatment under clause (ii) if such service occurs after the employee is transferred to a supervisory or administrative position related to the activities of the former covered position of the employee.

''(v) In accordance with procedures established by the Secretary, an affected special agent may file an election to have any creditable service performed by the affected special agent treated in accordance with this subchapter, without regard to clause (ii).''.

(e) IMPLEMENTATION.—

(1) OFFICE OF PERSONNEL MANAGEMENT.—The Director of the Office of Personnel Management shall promulgate regulations to carry out the amendments made by subsections (a) and (b).

(2) CIA EMPLOYEES.—The Director of the Central Intelligence Agency shall promulgate regulations to carry out the amendment made by subsection (c).

(3) FOREIGN SERVICE RETIREMENT AND DISABILITY SYSTEM.—The Secretary of State shall promulgate regulations to carry out the amendment made by subsection (d).

(4) AGENCY REAPPOINTMENT.—The regulations promulgated to carry out the amendments made by this section shall ensure that, to the greatest extent possible, the head of each agency appoints affected employees or special agents to supervisory or administrative positions related to the activities of the former covered position of the employee or special agent.

(5) TREATMENT OF SERVICE.—The regulations promulgated to carry out the amendments made

by this section shall ensure that the creditable service of an affected employee or special agent (as the case may be) that is not in a covered position pursuant to an election made under such amendments shall be treated as the same type of service as the covered position in which the employee or agent suffered the qualifying illness.

(f) EFFECTIVE DATE; APPLICABILITY.—The amendments made by this section—

(1) shall take effect on the date of enactment of this section; and

(2) shall apply to an individual who suffers an illness described in section 8336(c)(3)(A)(i)(II) or section 8412(d)(2)(A)(i)(II) of title 5, United States Code (as amended by this section), section 302(d)(1)(A)(ii) of the Central Intelligence Agency Retirement Act (as amended by this section), or section 806(a)(6)(D)(i)(I)(bb) of the Foreign Service Act of 1980 (as amended by this section), on or after the date that is 2 years after the date of enactment of this section.

TITLE IV—FEDERAL CONTRACTING PROVISIONS

SEC. 401. MANDATORY TELEWORK.

(a) IN GENERAL.—During the emergency period, the Director of the Office of Management and Budget shall direct agencies to allow telework for all contractor personnel to the maximum extent practicable. Additionally, the Director shall direct contracting officers to document any decision to not allow telework during the emergency period in the contract file.

(b) EMERGENCY PERIOD DEFINED.—In this section, the term ''emergency period'' means the period that—

(1) begins on the date that is not later than 15 days after the date of the enactment of this Act; and

(2) ends on the date that the public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) as result of COVID–19, including any renewal thereof, expires.

SEC. 402. GUIDANCE ON THE IMPLEMENTATION OF SECTION 3610 OF THE CARES ACT.

Not later than 15 days after the date of the enactment of this Act, the Director of the Office of Management and Budget shall issue guidance to ensure uniform implementation across agencies of section 3610 of the CARES Act (Public Law 116–136). Any such guidance shall—

(1) limit the basic requirements for reimbursement to those included in such Act and the effective date for such reimbursement shall be January 31, 2020; and

(2) clarify that the term ''minimum applicable contract billing rates'' as used in such section includes the financial impact incurred as a consequence of keeping the employees or subcontractors of the contractor in a ready state (such as the base hourly wage rate of an employee, plus indirect costs, fees, and general and administrative expenses).

SEC. 403. PAST PERFORMANCE RATINGS.

Section 1126 of title 41, United States Code, is amended by adding at the end the following new subsection:

''(c) EXCEPTION FOR FAILURE TO DELIVER GOODS OR COMPLETE WORK DUE TO COVID–19.—If the head of an executive agency determines that a contractor failed to deliver goods or complete work as a result of measures taken as a result of COVID–19 under a contract with the agency by the date or within the time period imposed by the contract, any information relating to such failure may not be—

''(1) included in any past performance database used by executive agencies for making source selection decisions; or

''(2) evaluated unfavorably as a factor of past contract performance.''.

SEC. 404. ACCELERATED PAYMENTS.

Not later than 10 days after the date of the enactment of this Act and ending on the expiration of the public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) as a result of COVID–19, including any renewal thereof, the Director of the Office of Management and Budget shall direct contracting officers to establish an accelerated payment date for any prime contract (as defined in section 8701 of title 41, United States Code) with payments due 15 days after the receipt of a proper invoice.

TITLE V—DISTRICT OF COLUMBIA

SEC. 501. SPECIAL BORROWING BY THE DISTRICT OF COLUMBIA.

(a) AUTHORIZING BORROWING UNDER MUNICIPAL LIQUIDITY FACILITY OF FEDERAL RESERVE BOARD AND SIMILAR FACILITIES OR PROGRAMS.—The Council of the District of Columbia (hereafter in this section referred to as the ''Council'') may by act authorize the issuance of bonds, notes, and other obligations, in amounts determined by the Chief Financial Officer of the District of Columbia to meet cash-flow needs of the District of Columbia government, for purchase by the Board of Governors of the Federal Reserve under the Municipal Liquidity Facility of the Federal Reserve or any other facility or program of the Federal Reserve or another entity of the Federal government which is established in response to the COVID–19 Pandemic.

(b) REQUIRING ISSUANCE TO BE COMPETITIVE WITH OTHER FORMS OF BORROWING.—The Council may authorize the issuance of bonds, notes, or other obligations under subsection (a) only if the issuance of such bonds, notes, and other obligations is competitive with other forms of borrowing in the financial market.

(c) TREATMENT AS GENERAL OBLIGATION.—Any bond, note, or other obligation issued under subsection (a) shall, if provided in the act of the Council, be a general obligation of the District.

(d) PAYMENTS NOT SUBJECT TO APPROPRIATION.—No appropriation is required to pay—

(1) any amount (including the amount of any accrued interest or premium) obligated or expended from or pursuant to subsection (a) for or from the sale of any bonds, notes, or other obligation under such subsection;

(2) any amount obligated or expended for the payment of principal of, interest on, or any premium for any bonds, notes, or other obligations issued under subsection (a);

(3) any amount obligated or expended pursuant to provisions made to secure any bonds, notes, or other obligations issued under subsection (a); or

(4) any amount obligated or expended pursuant to commitments, including lines of credit or costs of issuance, made or entered in connection with the issuance of any bonds, notes, or other obligations for operating or capital costs financed under subsection (a).

(e) RENEWAL.—Any bond, note, or other obligation issued under subsection (a) may be renewed if authorized by an act of the Council.

(f) PAYMENT.—Any bonds, notes, or other obligations issued under subsection (a), including any renewal of such bonds, notes, or other obligations, shall be due and payable on such terms and conditions as are consistent with the terms and conditions of the Municipal Liquidity Facility or other facility or program referred to in subsection (a).

(g) INCLUSION OF PAYMENTS IN ANNUAL BUDGET.—The Council shall provide in each annual budget for the District of Columbia government sufficient funds to pay the principal of and interest on all bonds, notes, or other obligations issued under subsection (a) of this section becoming due and payable during such fiscal year.

(h) OBLIGATION TO PAY.—The Mayor of the District of Columbia shall ensure that the principal of and interest on all bonds, notes, or other obligations issued under subsection (a) are paid when due, including by paying such principal and interest from funds not otherwise legally committed.

(i) SECURITY INTEREST IN DISTRICT REVENUES.—The Council may by act provide for a security interest in any District of Columbia revenues as additional security for the payment of any bond, note, or other obligation issued under subsection (a).

TITLE VI—OTHER MATTERS

SEC. 601. ESTIMATES OF AGGREGATE ECONOMIC GROWTH ACROSS INCOME GROUPS.

(a) SHORT TITLE.—This section may be cited as the ''Measuring Real Income Growth Act of 2020''.

(b) DEFINITIONS.—In this section:

(1) BUREAU.—The term ''Bureau'' means the Bureau of Economic Analysis of the Department of Commerce.

(2) GROSS DOMESTIC PRODUCT ANALYSIS.—The term ''gross domestic product analysis''—

(A) means a quarterly or annual analysis conducted by the Bureau with respect to the gross domestic product of the United States; and

(B) includes a revision prepared by the Bureau of an analysis described in subparagraph (A).

(3) RECENT ESTIMATE.—The term ''recent estimate'' means the most recent estimate described in subsection (c) that is available on the date on which the gross domestic product analysis with which the estimate is to be included is conducted.

(c) INCLUSION IN REPORTS.—Beginning in 2020, in each gross domestic product analysis conducted by the Bureau, the Bureau shall include a recent estimate of, with respect to specific percentile groups of income, the total amount that was added to the economy of the United States during the period to which the recent estimate pertains, including in—

(1) each of the 10 deciles of income; and

(2) the highest 1 percent of income.

(d) AUTHORIZATION OF APPROPRIATIONS.—There are authorized to be appropriated to the Secretary of Commerce such sums as are necessary to carry out this section.

SEC. 602. WAIVER OF FEDERAL FUND LIMITATION FOR THE DRUG-FREE COMMUNITIES SUPPORT PROGRAM.

(a) IN GENERAL.—Subject to subsection (b), if the Administrator of the Drug-Free Communities Support Program determines that, as a result of the public health emergency declared pursuant to section 319 of the Public Health Service Act (42 U.S.C. 247d) as a result of COVID–19, an eligible coalition is unable to raise the amount of non-Federal funds, including in-kind contributions, agreed to be raised by the coalition for a fiscal year under an agreement entered into with the Administrator pursuant to paragraph (1)(A) or (3)(D) of section 1032(b) of the Anti-Drug Abuse Act of 1988 (21 U.S.C. 1532(b)), the Administrator may, notwithstanding such paragraphs, provide to the eligible coalition the grant or renewal grant, as applicable, for that fiscal year in an amount—

(1) with respect to an initial grant or renewal grant described under paragraph (1)(A) of such section, that exceeds the amount of non-Federal funds raised by the eligible coalition, including in-kind contributions, for that fiscal year;

(2) with respect to a renewal grant described under paragraph (3)(D)(i) of such section, that exceeds 125 percent of the amount of non-Federal funds raised by the eligible coalition, including in-kind contributions, for that fiscal year; and

(3) with respect to a renewal grant described under paragraph (3)(D)(ii) of such section, that exceeds 150 percent of the amount of non-Federal funds raised by the eligible coalition, including in-kind contributions, for that fiscal year.

SEC. 603. UNITED STATES POSTAL SERVICE BORROWING AUTHORITY.

Subsection (b)(2) of section 6001 of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) is amended to read as follows:

''(2) the Secretary of the Treasury shall lend up to the amount described in paragraph (1) at the request of the Postal Service subject to the

terms and conditions of the note purchase agreement between the Postal Service and the Federal Financing Bank in effect on September 29, 2018.''.

DIVISION S—FOREIGN AFFAIRS PROVISIONS

TITLE I—MATTERS RELATING TO THE DEPARTMENT OF STATE

SEC. 101. EFFORTS TO ASSIST FEDERAL VOTERS OVERSEAS IMPACTED BY COVID–19.

(a) SENSE OF CONGRESS.—It is the sense of Congress that the Secretary of State, in consultation with the Secretary of Defense and the Postmaster General, should undertake efforts to mitigate the effects of limited or curtailed diplomatic pouch capacities or other operations constraints at United States diplomatic and consular posts, due to coronavirus, on overseas voters (as such term is defined in section 107(5) of the Uniformed and Overseas Citizens Absentee Voting Act (52 U.S.C. 20310(5))) seeking to return absentee ballots and other balloting materials under such Act with respect to elections for Federal office held in 2020. Such efforts should include steps to—

(1) restore or augment diplomatic pouch capacities;

(2) facilitate using the Army Post Office, Fleet Post Office, Diplomatic Post Office, the United States mails, or private couriers, if available;

(3) mitigate other operations constraints affecting eligible overseas voters;

(4) develop specific outreach plans to educate eligible overseas voters about accessing all available forms of voter assistance prior to the date of the regularly scheduled general election for Federal office; and

(5) ensure any employees at Department of State overseas posts interacting with Federal overseas voters seeking to return their ballots are informed of and exercise necessary protocols to avoid the spoilage or invalidating of ballots for which the Department of State is helping to facilitate return.

(b) REPORT ON EFFORTS TO ASSIST AND INFORM FEDERAL VOTERS OVERSEAS.—Not later than 15 days before the date of the regularly scheduled general election for Federal office held in November 2020, the Secretary of State, in consultation with the Secretary of Defense, shall report to the appropriate congressional committees on the efforts described in subsection (a).

(c) APPROPRIATE CONGRESSIONAL COMMITTEES DEFINED.—In this section, the term ''appropriate congressional committees'' means—

(1) the Committee on Foreign Affairs and the Committee on Armed Services of the House of Representatives; and

(2) the Committee on Foreign Relations and the Committee on Armed Services of the Senate.

SEC. 102. REPORT ON EFFORTS OF THE CORONAVIRUS REPATRIATION TASK FORCE.

Not later than 90 days after the date of the enactment of this division, the Secretary of State shall submit to the Committee on Foreign Affairs of the House of Representatives and the Committee on Foreign Relations of the Senate a report evaluating the efforts of the Coronavirus Repatriation Task Force of the Department of State to repatriate United States citizens and legal permanent residents in response to the 2020 coronavirus outbreak. The report shall identify—

(1) the most significant impediments to repatriating such persons;

(2) the lessons learned from such repatriations; and

(3) any changes planned to future repatriation efforts of the Department of State to incorporate such lessons learned.

TITLE II—GLOBAL HEALTH SECURITY ACT OF 2020

SEC. 201. SHORT TITLE.

This title may be cited as the ''Global Health Security Act of 2020''.

SEC. 202. FINDINGS.

Congress finds the following:

(1) In December 2009, President Obama released the National Strategy for Countering Biological Threats, which listed as one of seven objectives ''Promote global health security: Increase the availability of and access to knowledge and products of the life sciences that can help reduce the impact from outbreaks of infectious disease whether of natural, accidental, or deliberate origin''.

(2) In February 2014, the United States and nearly 30 other nations launched the Global Health Security Agenda (GHSA) to address several high-priority, global infectious disease threats. The GHSA is a multi-faceted, multi-country initiative intended to accelerate partner countries' measurable capabilities to achieve specific targets to prevent, detect, and respond to infectious disease threats, whether naturally occurring, deliberate, or accidental.

(3) In 2015, the United Nations adopted the Sustainable Development Goals (SDGs), which include specific reference to the importance of global health security as part of SDG 3 ''ensure healthy lives and promote well-being for all at all ages'' as follows: ''strengthen the capacity of all countries, in particular developing countries, for early warning, risk reduction and management of national and global health risks''.

(4) On November 4, 2016, President Obama signed Executive Order 13747, ''Advancing the Global Health Security Agenda to Achieve a World Safe and Secure from Infectious Disease Threats''.

(5) In October 2017 at the GHSA Ministerial Meeting in Uganda, the United States and more than 40 GHSA member countries supported the ''Kampala Declaration'' to extend the GHSA for an additional 5 years to 2024.

(6) In December 2017, President Trump released the National Security Strategy, which includes the priority action: ''Detect and contain biothreats at their source: We will work with other countries to detect and mitigate outbreaks early to prevent the spread of disease. We will encourage other countries to invest in basic health care systems and to strengthen global health security across the intersection of human and animal health to prevent infectious disease outbreaks''.

(7) In September 2018, President Trump released the National Biodefense Strategy, which includes objectives to ''strengthen global health security capacities to prevent local bioincidents from becoming epidemics'', and ''strengthen international preparedness to support international response and recovery capabilities''.

SEC. 203. STATEMENT OF POLICY.

It is the policy of the United States to—

(1) promote global health security as a core national security interest;

(2) advance the aims of the Global Health Security Agenda;

(3) collaborate with other countries to detect and mitigate outbreaks early to prevent the spread of disease;

(4) encourage other countries to invest in basic resilient and sustainable health care systems; and

(5) strengthen global health security across the intersection of human and animal health to prevent infectious disease outbreaks and combat the growing threat of antimicrobial resistance.

SEC. 204. GLOBAL HEALTH SECURITY AGENDA INTERAGENCY REVIEW COUNCIL.

(a) ESTABLISHMENT.—The President shall establish a Global Health Security Agenda Interagency Review Council (in this section referred to as the ''Council'') to perform the general responsibilities described in subsection (c) and the specific roles and responsibilities described in subsection (e).

(b) MEETINGS.—The Council shall meet not less than four times per year to advance its mission and fulfill its responsibilities.

(c) GENERAL RESPONSIBILITIES.—The Council shall be responsible for the following activities:

(1) Provide policy-level recommendations to participating agencies on Global Health Security Agenda (GHSA) goals, objectives, and implementation.

(2) Facilitate interagency, multi-sectoral engagement to carry out GHSA implementation.

(3) Provide a forum for raising and working to resolve interagency disagreements concerning the GHSA.

(4)(A) Review the progress toward and work to resolve challenges in achieving United States commitments under the GHSA, including commitments to assist other countries in achieving the GHSA targets.

(B) The Council shall consider, among other issues, the following:

(i) The status of United States financial commitments to the GHSA in the context of commitments by other donors, and the contributions of partner countries to achieve the GHSA targets.

(ii) The progress toward the milestones outlined in GHSA national plans for those countries where the United States Government has committed to assist in implementing the GHSA and in annual work-plans outlining agency priorities for implementing the GHSA.

(iii) The external evaluations of United States and partner country capabilities to address infectious disease threats, including the ability to achieve the targets outlined within the WHO Joint External Evaluation (JEE) tool, as well as gaps identified by such external evaluations.

(d) PARTICIPATION.—The Council shall consist of representatives, serving at the Assistant Secretary level or higher, from the following agencies:

(1) The Department of State.
(2) The Department of Defense.
(3) The Department of Justice.
(4) The Department of Agriculture.
(5) The Department of Health and Human Services.
(6) The Department of Labor.
(7) The Department of Homeland Security.
(8) The Office of Management and Budget.
(9) The United States Agency for International Development.
(10) The Environmental Protection Agency.
(11) The Centers for Disease Control and Prevention.
(12) The Office of Science and Technology Policy.
(13) The National Institutes of Health.
(14) The National Institute of Allergy and Infectious Diseases.
(15) Such other agencies as the Council determines to be appropriate.

(e) SPECIFIC ROLES AND RESPONSIBILITIES.—

(1) IN GENERAL.—The heads of agencies described in subsection (d) shall—

(A) make the GHSA and its implementation a high priority within their respective agencies, and include GHSA-related activities within their respective agencies' strategic planning and budget processes;

(B) designate a senior-level official to be responsible for the implementation of this division;

(C) designate, in accordance with subsection (d), an appropriate representative at the Assistant Secretary level or higher to participate on the Council;

(D) keep the Council apprised of GHSA-related activities undertaken within their respective agencies;

(E) maintain responsibility for agency-related programmatic functions in coordination with host governments, country teams, and GHSA in-country teams, and in conjunction with other relevant agencies;

(F) coordinate with other agencies that are identified in this section to satisfy programmatic goals, and further facilitate coordination of country teams, implementers, and donors in host countries; and

(G) coordinate across GHSA national plans and with GHSA partners to which the United States is providing assistance.

(2) ADDITIONAL ROLES AND RESPONSIBILITIES.—In addition to the roles and responsibilities described in paragraph (1), the heads of

agencies described in subsection (d) shall carry out their respective roles and responsibilities described in subsections (b) through (i) of section 3 of Executive Order 13747 (81 Fed. Reg. 78701; relating to Advancing the Global Health Security Agenda to Achieve a World Safe and Secure from Infectious Disease Threats), as in effect on the day before the date of the enactment of this division.

SEC. 205. UNITED STATES COORDINATOR FOR GLOBAL HEALTH SECURITY.

(a) IN GENERAL.—The President shall appoint an individual to the position of United States Coordinator for Global Health Security, who shall be responsible for the coordination of the interagency process for responding to global health security emergencies. As appropriate, the designee shall coordinate with the President's Special Coordinator for International Disaster Assistance.

(b) CONGRESSIONAL BRIEFING.—Not less frequently than twice each year, the employee designated under this section shall provide to the appropriate congressional committees a briefing on the responsibilities and activities of the individual under this section.

SEC. 206. SENSE OF CONGRESS.

It is the sense of the Congress that, given the complex and multisectoral nature of global health threats to the United States, the President—

(1) should consider appointing an individual with significant background and expertise in public health or emergency response management to the position of United States Coordinator for Global Health Security, as required by section 205(a), who is an employee of the National Security Council at the level of Deputy Assistant to the President or higher; and

(2) in providing assistance to implement the strategy required under section 207(a), should—

(A) coordinate, through a whole-of-government approach, the efforts of relevant Federal departments and agencies to implement the strategy;

(B) seek to fully utilize the unique capabilities of each relevant Federal department and agency while collaborating with and leveraging the contributions of other key stakeholders; and

(C) utilize open and streamlined solicitations to allow for the participation of a wide range of implementing partners through the most appropriate procurement mechanisms, which may include grants, contracts, cooperative agreements, and other instruments as necessary and appropriate.

SEC. 207. STRATEGY AND REPORTS.

(a) STRATEGY.—The United States Coordinator for Global Health Security (appointed under section 205(a)) shall coordinate the development and implementation of a strategy to implement the policy aims described in section 203, which shall—

(1) set specific and measurable goals, benchmarks, timetables, performance metrics, and monitoring and evaluation plans that reflect international best practices relating to transparency, accountability, and global health security;

(2) support and be aligned with country-owned global health security policy and investment plans developed with input from key stakeholders, as appropriate;

(3) facilitate communication and collaboration, as appropriate, among local stakeholders in support of a multi-sectoral approach to global health security;

(4) support the long-term success of programs by building the capacity of local organizations and institutions in target countries and communities;

(5) develop community resilience to infectious disease threats and emergencies;

(6) leverage resources and expertise through partnerships with the private sector, health organizations, civil society, nongovernmental organizations, and health research and academic institutions; and

(7) support collaboration, as appropriate, between United States universities, and public and private institutions in target countries and communities to promote health security and innovation.

(b) COORDINATION.—The President, acting through the United States Coordinator for Global Health Security, shall coordinate, through a whole-of-government approach, the efforts of relevant Federal departments and agencies in the implementation of the strategy required under subsection (a) by—

(1) establishing monitoring and evaluation systems, coherence, and coordination across relevant Federal departments and agencies; and

(2) establishing platforms for regular consultation and collaboration with key stakeholders and the appropriate congressional committees.

(c) STRATEGY SUBMISSION.—

(1) IN GENERAL.—Not later than 180 days after the date of the enactment of this division, the President, in consultation with the head of each relevant Federal department and agency, shall submit to the appropriate congressional committees the strategy required under subsection (a) that provides a detailed description of how the United States intends to advance the policy set forth in section 203 and the agency-specific plans described in paragraph (2).

(2) AGENCY-SPECIFIC PLANS.—The strategy required under subsection (a) shall include specific implementation plans from each relevant Federal department and agency that describes—

(A) the anticipated contributions of the department or agency, including technical, financial, and in-kind contributions, to implement the strategy; and

(B) the efforts of the department or agency to ensure that the activities and programs carried out pursuant to the strategy are designed to achieve maximum impact and long-term sustainability.

(d) REPORT.—

(1) IN GENERAL.—Not later than 1 year after the date on which the strategy required under subsection (a) is submitted to the appropriate congressional committees under subsection (c), and not later than October 1 of each year thereafter, the President shall submit to the appropriate congressional committees a report that describes the status of the implementation of the strategy.

(2) CONTENTS.—The report required under paragraph (1) shall—

(A) identify any substantial changes made in the strategy during the preceding calendar year;

(B) describe the progress made in implementing the strategy;

(C) identify the indicators used to establish benchmarks and measure results over time, as well as the mechanisms for reporting such results in an open and transparent manner;

(D) contain a transparent, open, and detailed accounting of expenditures by relevant Federal departments and agencies to implement the strategy, including, to the extent practicable, for each Federal department and agency, the statutory source of expenditures, amounts expended, partners, targeted populations, and types of activities supported;

(E) describe how the strategy leverages other United States global health and development assistance programs;

(F) assess efforts to coordinate United States global health security programs, activities, and initiatives with key stakeholders;

(G) incorporate a plan for regularly reviewing and updating strategies, partnerships, and programs and sharing lessons learned with a wide range of stakeholders, including key stakeholders, in an open, transparent manner; and

(H) describe the progress achieved and challenges concerning the United States Government's ability to advance the Global Health Security Agenda across priority countries, including data disaggregated by priority country using indicators that are consistent on a year-to-year basis and recommendations to resolve, mitigate, or otherwise address the challenges identified therein.

(e) FORM.—The strategy required under subsection (a) and the report required under subsection (d) shall be submitted in unclassified form but may contain a classified annex.

SEC. 208. COMPLIANCE WITH THE FOREIGN AID TRANSPARENCY AND ACCOUNTABILITY ACT OF 2016.

Section 2(3) of the Foreign Aid Transparency and Accountability Act of 2016 (Public Law 114–191; 22 U.S.C. 2394c note) is amended—

(1) in subparagraph (C), by striking ''and'' at the end;

(2) in subparagraph (D), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(E) the Global Health Security Act of 2020.''.

SEC. 209. DEFINITIONS.

In this title:

(1) APPROPRIATE CONGRESSIONAL COMMITTEES.—The term ''appropriate congressional committees'' means—

(A) the Committee on Foreign Affairs and the Committee on Appropriations of the House of Representatives; and

(B) the Committee on Foreign Relations and the Committee on Appropriations of the Senate.

(2) GLOBAL HEALTH SECURITY.—The term ''global health security'' means activities supporting epidemic and pandemic preparedness and capabilities at the country and global levels in order to minimize vulnerability to acute public health events that can endanger the health of populations across geographical regions and international boundaries.

SEC. 210. SUNSET.

This title (other than section 205), and the amendments made by this title, shall cease to be effective on December 31, 2024.

TITLE III—SECURING AMERICA FROM EPIDEMICS ACT

SEC. 301. FINDINGS.

Congress finds the following:

(1) Due to increasing population and population density, human mobility, and ecological change, emerging infectious diseases pose a real and growing threat to global health security.

(2) While vaccines can be the most effective tools to protect against infectious disease, the absence of vaccines for a new or emerging infectious disease with epidemic potential is a major health security threat globally, posing catastrophic potential human and economic costs.

(3) The 1918 influenza pandemic infected 500,000,000 people, or about one-third of the world's population at the time, and killed 50,000,000 people—more than died in the First World War.

(4) The economic cost of an outbreak can be devastating. The estimated global cost today, should an outbreak of the scale of the 1918 influenza pandemic strike, is 5 percent of global gross domestic product.

(5) Even regional outbreaks can have enormous human costs and substantially disrupt the global economy and cripple regional economies. The 2014 Ebola outbreak in West Africa killed more than 11,000 and cost $2,800,000,000 in losses in the affected countries alone.

(6) The ongoing novel coronavirus outbreak reflects the pressing need for quick and effective vaccine and countermeasure development.

(7) While the need for vaccines to address emerging epidemic threats is acute, markets to drive the necessary development of vaccines to address them—a complex and expensive undertaking—are very often critically absent. Also absent are mechanisms to ensure access to those vaccines by those who need them when they need them.

(8) To address this global vulnerability and the deficit of political commitment, institutional capacity, and funding, in 2017, several countries and private partners launched the Coalition for Epidemic Preparedness Innovations (CEPI).

CEPI's mission is to stimulate, finance, and coordinate development of vaccines for high-priority, epidemic-potential threats in cases where traditional markets do not exist or cannot create sufficient demand.

(9) Through funding of partnerships, CEPI seeks to bring priority vaccines candidates through the end of phase II clinical trials, as well as support vaccine platforms that can be rapidly deployed against emerging pathogens.

(10) CEPI has funded multiple partners to develop vaccine candidates against the novel coronavirus, responding to this urgent, global requirement.

(11) Support for and participation in CEPI is an important part of the United States own health security and biodefense and is in the national interest, complementing the work of many Federal agencies and providing significant value through global partnership and burden-sharing.

SEC. 302. AUTHORIZATION FOR UNITED STATES PARTICIPATION.

(a) IN GENERAL.—The United States is hereby authorized to participate in the Coalition for Epidemic Preparedness Innovations.

(b) BOARD OF DIRECTORS.—The Administrator of the United States Agency for International Development is authorized to designate an employee of such Agency to serve on the Investors Council of the Coalition for Epidemic Preparedness Innovations as a representative of the United States.

(c) REPORTS TO CONGRESS.—Not later than 180 days after the date of the enactment of this division, the President shall submit to the appropriate congressional committees a report that includes the following:

(1) The United States planned contributions to the Coalition for Epidemic Preparedness Innovations and the mechanisms for United States participation in such Coalition.

(2) The manner and extent to which the United States shall participate in the governance of the Coalition.

(3) How participation in the Coalition supports relevant United States Government strategies and programs in health security and biodefense, to include—

(A) the Global Health Security Strategy required by section 7058(c)(3) of division K of the Consolidated Appropriations Act, 2018 (Public Law 115–141);

(B) the applicable revision of the National Biodefense Strategy required by section 1086 of the National Defense Authorization Act for Fiscal Year 2017 (6 U.S.C. 104); and

(C) any other relevant decision-making process for policy, planning, and spending in global health security, biodefense, or vaccine and medical countermeasures research and development.

(d) APPROPRIATE CONGRESSIONAL COMMITTEES.—In this section, the term ''appropriate congressional committees'' means—

(1) the Committee on Foreign Affairs and the Committee on Appropriations of the House of Representatives; and

(2) the Committee on Foreign Relations and the Committee on Appropriations of the Senate.

DIVISION T—JUDICIARY MATTERS

TITLE I—IMMIGRATION MATTERS

SEC. 101. EXTENSION OF FILING AND OTHER DEADLINES.

(a) NEW DEADLINES FOR EXTENSION OR CHANGE OF STATUS OR OTHER BENEFITS.—

(1) FILING DELAYS.—In the case of an alien who was lawfully present in the United States on January 26, 2020, the alien's application for an extension or change of nonimmigrant status, application for renewal of employment authorization, or any other application for extension or renewal of a period of authorized stay, shall be considered timely filed if the due date of the application is within the period described in subsection (d) and the application is filed not later than 60 days after it otherwise would have been due.

(2) DEPARTURE DELAYS.—In the case of an alien who was lawfully present in the United States on January 26, 2020, the alien shall not be considered to be unlawfully present in the United States during the period described in subsection (d).

(3) SPECIFIC AUTHORITY.—

(A) IN GENERAL.—With respect to any alien whose immigration status, employment authorization, or other authorized period of stay has expired or will expire during the period described in subsection (d), during the one-year period beginning on the date of the enactment of this title, or during both such periods, the Secretary of Homeland Security shall automatically extend such status, authorization, or period of stay until the date that is 90 days after the last day of whichever of such periods ends later.

(B) EXCEPTION.—If the status, authorization, or period of stay referred to in subparagraph (A) is based on a grant of deferred action, or a grant of temporary protected status under section 244 of the Immigration and Nationality Act (8 U.S.C. 1254a), the extension under such subparagraph shall be for a period not less than the period for which deferred action or temporary protected status originally was granted by the Secretary of Homeland Security.

(b) IMMIGRANT VISAS.—

(1) EXTENSION OF VISA EXPIRATION.—Notwithstanding the limitations under section 221(c) of the Immigration and Nationality Act (8 U.S.C. 1201(c)), in the case of any immigrant visa issued to an alien that expires or expired during the period described in subsection (d), the period of validity of the visa is extended until the date that is 90 days after the end of such period.

(2) ROLLOVER OF UNUSED VISAS.—

(A) IN GENERAL.—For fiscal years 2021 and 2022, the worldwide level of family-sponsored immigrants under subsection (c) of section 201 of the Immigration and Nationality Act (8 U.S.C. 1151), the worldwide level of employment-based immigrants under subsection (d) of such section, and the worldwide level of diversity immigrants under subsection (e) of such section shall each be increased by the number computed under subparagraph (B) with respect to each of such worldwide levels.

(B) COMPUTATION OF INCREASE.—For each of the worldwide levels described in subparagraph (A), the number computed under this subparagraph is the difference (if any) between the worldwide level established for the previous fiscal year under the applicable subsection of section 201 of the Immigration and Nationality Act (8 U.S.C. 1151) and the number of visas that were, during the previous fiscal year, issued and used as the basis for an application for admission into the United States as an immigrant described in the applicable subsection.

(C) CLARIFICATIONS.—

(i) ALLOCATION AMONG PREFERENCE CATEGORIES.—The additional visas made available for fiscal years 2021 and 2022 as a result of the computations made under subparagraphs (A) and (B) shall be proportionally allocated as set forth in subsections (a), (b), and (c) of section 203 of the Immigration and Nationality Act (8 U.S.C. 1153).

(ii) ELIMINATION OF FALL ACROSS.—For fiscal years 2021 and 2022, the number computed under subsection (c)(3)(C) of section 201 of the Immigration and Nationality Act (8 U.S.C. 1151), and the number computed under subsection (d)(2)(C) of such section, are deemed to equal zero.

(iii) DIVERSITY VISAS.—The additional visas made available for fiscal year 2021 for the worldwide level of diversity immigrants under subsection (e) of section 201 of the Immigration and Nationality Act (8 U.S.C. 1151) as a result of the computations made under subparagraphs (A) and (B) shall be first made available to diversity immigrants selected in the lottery for fiscal year 2020.

(c) VOLUNTARY DEPARTURE.—Notwithstanding section 240B of the Immigration and Nationality Act (8 U.S.C. 1229c), if a period for voluntary departure under such section expires or expired during the period described in subsection (d), such voluntary departure period is extended until the date that is 90 days after the end of such period.

(d) PERIOD DESCRIBED.—The period described in this subsection—

(1) begins on the first day of the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d) with respect to COVID–19; and

(2) ends 90 days after the date on which such public health emergency terminates.

SEC. 102. TEMPORARY ACCOMMODATIONS FOR NATURALIZATION OATH CEREMONIES DUE TO PUBLIC HEALTH EMERGENCY.

(a) REMOTE OATH CEREMONIES.—Not later than 30 days after the date of the enactment of this title, the Secretary of Homeland Security shall establish procedures for the administration of the oath of renunciation and allegiance under section 337 of the Immigration and Nationality Act (8 U.S.C. 1448) using remote videoconferencing, or other remote means for individuals who cannot reasonably access remote videoconferencing, as an alternative to an in-person oath ceremony.

(b) ELIGIBLE INDIVIDUALS.—Notwithstanding section 310(b) of the Immigration and Nationality Act (8 U.S.C. 1421(b)), an individual may complete the naturalization process by participating in a remote oath ceremony conducted pursuant to subsection (a) if such individual—

(1) has an approved application for naturalization;

(2) is unable otherwise to complete the naturalization process due to the cancellation or suspension of in-person oath ceremonies during the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d) with respect to COVID–19; and

(3) elects to participate in a remote oath ceremony in lieu of waiting for in-person ceremonies to resume.

(c) ADDITIONAL REQUIREMENTS.—Upon establishing the procedures described in subsection (a), the Secretary of Homeland Security shall—

(1) without undue delay, provide written notice to individuals described in subsection (b)(1) of the option of participating in a remote oath ceremony in lieu of a participating in an in-person ceremony;

(2) to the greatest extent practicable, ensure that remote oath ceremonies are administered to individuals who elect to participate in such a ceremony not later than 30 days after the individual so notifies the Secretary; and

(3) administer oath ceremonies to all other eligible individuals as expeditiously as possible after the end of the public health emergency referred to in subsection (b)(2).

(d) AVAILABILITY OF REMOTE OPTION.—The Secretary of Homeland Security shall begin administering remote oath ceremonies on the date that is 60 days after the date of the enactment of this title and shall continue administering such ceremonies until a date that is not earlier than 90 days after the end of the public health emergency referred to in subsection (b)(2).

(e) CLARIFICATION.—Failure to appear for a remote oath ceremony shall not create a presumption that the individual has abandoned his or her intent to be naturalized.

(f) REPORT TO CONGRESS.—Not later than 180 days after the end of the public health emergency referred to in subsection (b)(2), the Secretary of Homeland Security shall submit a report to Congress that identifies, for each State and political subdivision of a State, the number of—

(1) individuals who were scheduled for an in-person oath ceremony that was cancelled due to such public health emergency;

(2) individuals who were provided written notice pursuant to subsection (c)(1) of the option of participating in a remote oath ceremony;

(3) individuals who elected to participate in a remote oath ceremony in lieu of an in-person public ceremony;

(4) individuals who completed the naturalization process by participating in a remote oath ceremony; and

(5) remote oath ceremonies that were conducted within the period described in subsection (d).

SEC. 103. TEMPORARY PROTECTIONS FOR ESSENTIAL CRITICAL INFRASTRUCTURE WORKERS.

(a) PROTECTIONS FOR ESSENTIAL CRITICAL INFRASTRUCTURE WORKERS.—During the period described in subsection (e), an alien described in subsection (d) shall be deemed to be in a period of deferred action and authorized for employment for purposes of section 274A of the Immigration and Nationality Act (8 U.S.C. 1324a).

(b) EMPLOYER PROTECTIONS.—During the period described in subsection (e), the hiring, employment, or continued employment of an alien described in subsection (d) is not a violation of section 274A(a) of the Immigration and Nationality Act (8 U.S.C. 1324a(a)).

(c) CLARIFICATION.—Nothing in this section shall be deemed to require an alien described in subsection (d), or such alien's employer—

(1) to submit an application for employment authorization or deferred action, or register with, or pay a fee to, the Secretary of Homeland Security or the head of any other Federal agency; or

(2) to appear before an agent of the Department of Homeland Security or any other Federal agency for an interview, examination, or any other purpose.

(d) ALIENS DESCRIBED.—An alien is described in this subsection if the alien—

(1) on the date of the enactment of this title—

(A) is physically present in the United States; and

(B) is inadmissible to, or deportable from, the United States; and

(2) engaged in essential critical infrastructure labor or services in the United States prior to the period described in subsection (e) and continues to engage in such labor or services during such period.

(e) PERIOD DESCRIBED.—The period described in this subsection—

(1) begins on the first day of the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d) with respect to COVID–19; and

(2) ends 90 days after the date on which such public health emergency terminates.

(f) ESSENTIAL CRITICAL INFRASTRUCTURE LABOR OR SERVICES.—For purposes of this section, the term ''essential critical infrastructure labor or services'' means labor or services performed in an essential critical infrastructure sector, as described in the ''Advisory Memorandum on Identification of Essential Critical Infrastructure Workers During COVID–19 Response'', revised by the Department of Homeland Security on April 17, 2020.

SEC. 104. SUPPLEMENTING THE COVID RESPONSE WORKFORCE.

(a) EXPEDITED GREEN CARDS FOR CERTAIN PHYSICIANS IN THE UNITED STATES.—

(1) IN GENERAL.—During the period described in paragraph (3), an alien described in paragraph (2) may apply to acquire the status of an alien lawfully admitted to the United States for permanent residence consistent with section 201(b)(1) of the Immigration and Nationality Act (8 U.S.C. 1151(b)(1)).

(2) ALIEN DESCRIBED.—An alien described in this paragraph is an alien physician (and the spouse and children of such alien) who—

(A) has an approved immigrant visa petition under section 203(b)(2)(B)(ii) of the Immigration and Nationality Act (8 U.S.C. 1153(b)(2)(B)(ii)) and has completed the service requirements for a waiver under such section on or before the date of the enactment of this title; and

(B) provides a statement to the Secretary of Homeland Security attesting that the alien is engaged in or will engage in the practice of medicine or medical research involving the diagnosis, treatment, or prevention of COVID–19.

(3) PERIOD DESCRIBED.—The period described in this paragraph is the period beginning on the date of the enactment of this title and ending 180 days after the termination of the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d), with respect to COVID–19.

(b) EXPEDITED PROCESSING OF NONIMMIGRANT PETITIONS AND APPLICATIONS.—

(1) IN GENERAL.—In accordance with the procedures described in paragraph (2), the Secretary of Homeland Security shall expedite the processing of applications and petitions seeking employment or classification of an alien as a nonimmigrant to practice medicine, provide healthcare, engage in medical research, or participate in a graduate medical education or training program involving the diagnosis, treatment, or prevention of COVID–19.

(2) APPLICATIONS OR PETITIONS FOR NEW EMPLOYMENT OR CHANGE OF STATUS.—

(A) INITIAL REVIEW.—Not later than 15 days after the Secretary of Homeland Security receives an application or petition for new employment or change of status described in paragraph (1), the Secretary shall conduct an initial review of such application or petition and, if additional evidence is required, shall issue a request for evidence.

(B) DECISION.—

(i) IN GENERAL.—The Secretary of Homeland Security shall issue a final decision on an application or petition described in paragraph (1) not later than 30 days after receipt of such application or petition, or, if a request for evidence is issued, not later than 15 days after the Secretary receives the applicant or petitioner's response to such request.

(ii) E-MAIL.—In addition to delivery through regular mail services, decisions described in clause (i) shall be transmitted to the applicant or petitioner via electronic mail, if the applicant or petitioner provides the Secretary of Homeland Security with an electronic mail address.

(3) TERMINATION.—This subsection shall take effect on the date of the enactment of this title and shall cease to be effective on the date that is 180 days after the termination of the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d), with respect to COVID–19.

(c) EMERGENCY VISA PROCESSING.—

(1) VISA PROCESSING.—

(A) IN GENERAL.—The Secretary of State shall prioritize the processing of applications submitted by aliens who are seeking a visa based on an approved nonimmigrant petition to practice medicine, provide healthcare, engage in medical research, or participate in a graduate medical education or training program involving the diagnosis, treatment, or prevention of COVID–19.

(B) INTERVIEW.—

(i) IN GENERAL.—The Secretary of State shall ensure that visa appointments are scheduled for aliens described in subparagraph (A) not later than 7 business days after the alien requests such an appointment.

(ii) SUSPENSION OF ROUTINE VISA SERVICES.—If routine visa services are unavailable in the alien's home country—

(I) the U.S. embassy or consulate in the alien's home country shall—

(aa) conduct the visa interview with the alien via video-teleconferencing technology; or

(bb) grant an emergency visa appointment to the alien not later than 10 business days after the alien requests such an appointment; or

(II) the alien may seek a visa appointment at any other U.S. embassy or consulate where routine visa services are available, and such embassy or consulate shall make every reasonable effort to provide the alien with an appointment within 10 business days after the alien requests such an appointment.

(2) INTERVIEW WAIVERS.—Except as provided in section 222(h)(2) of the Immigration and Nationality Act (8 U.S.C. 1202(h)(2)), the Secretary of State shall waive the interview of any alien seeking a nonimmigrant visa based on an approved petition described in paragraph (1)(A), if—

(A) such alien is applying for a visa—

(i) not more than 3 years after the date on which such alien's prior visa expired;

(ii) in the visa classification for which such prior visa was issued; and

(iii) at a consular post located in the alien's country of residence or, if otherwise required by regulation, country of nationality; and

(B) the consular officer has no indication that such alien has failed to comply with the immigration laws and regulations of the United States.

(3) TERMINATION.—This subsection shall take effect on the date of the enactment of this title and shall cease to be effective on the date that is 180 days after the termination of the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 274d), with respect to COVID–19.

(d) IMPROVING MOBILITY OF NONIMMIGRANT COVID–19 WORKERS.—

(1) LICENSURE.—Notwithstanding section 212(j)(2) of the Immigration and Nationality Act (8 U.S.C. 1182(j)(2)), for the period described in paragraph (6), the Secretary of Homeland Security may approve a petition for classification as a nonimmigrant described under section 101(a)(15)(H)(i)(b) of such Act, filed on behalf of a physician for purposes of performing direct patient care if such physician possesses a license or other authorization required by the State of intended employment to practice medicine, or is eligible for a waiver of such requirement pursuant to an executive order, emergency rule, or other action taken by the State to modify or suspend regular licensing requirements in response to the COVID–19 public health emergency.

(2) TEMPORARY LIMITATIONS ON AMENDED H–1B PETITIONS.—

(A) IN GENERAL.—Notwithstanding any other provision of law, the Secretary of Homeland Security shall not require an employer of a nonimmigrant alien described in section 101(a)(15)(H)(i)(b) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(H)(i)(b)) to file an amended or new petition under section 214(a) of such Act (8 U.S.C. 1184(a)) if upon transferring such alien to a new area of employment, the alien will practice medicine, provide healthcare, or engage in medical research involving the diagnosis, treatment, or prevention of COVID–19.

(B) CLARIFICATION ON TELEMEDICINE.—Nothing in the Immigration and Nationality Act or any other provision of law shall be construed to require an employer of a nonimmigrant alien described in section 101(a)(15)(H)(i)(b) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(H)(i)(b)) to file an amended or new petition under section 214(a) of such Act (8 U.S.C. 1184(a)) if the alien is a physician or other healthcare worker who will provide remote patient care through the use of real-time audio-video communication tools to consult with patients and other technologies to collect, analyze, and transmit medical data and images.

(3) PERMISSIBLE WORK ACTIVITIES FOR J–1 PHYSICIANS.—

(A) IN GENERAL.—Notwithstanding any other provision of law, the diagnosis, treatment, or prevention of COVID–19 shall be considered an integral part of a graduate medical education or training program and a nonimmigrant described in section 101(a)(15)(J) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(J)) who is participating in such a program—

(i) may be redeployed to a new rotation within the host training institution as needed to engage in COVID–19 work; and

(ii) may receive compensation for such work.

(B) OTHER PERMISSIBLE EMPLOYMENT ACTIVITIES.—A nonimmigrant described in section 101(a)(15)(J) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(J)) who is participating in a graduate medical education or training program may engage in work outside the scope of the approved program, if—

(i) the work involves the diagnosis, treatment, or prevention of COVID–19;

(ii) the alien has maintained lawful nonimmigrant status and has otherwise complied with the terms of the education or training program; and

(iii) the program sponsor approves the additional work by annotating the nonimmigrant's Certificate of Eligibility for Exchange Visitor (J–1) Status (Form DS–2019) and notifying the Immigration and Customs Enforcement Student and Exchange Visitor Program of the approval of such work.

(C) CLARIFICATION ON TELEMEDICINE.—Section 214(l)(1)(D) of the Immigration and Nationality Act (8 U.S.C. 1184(l)(1)(D)) may be satisfied through the provision of care to patients located in areas designated by the Secretary of Health and Human Services as having a shortage of health care professionals, through the physician's use of real-time audio-video communication tools to consult with patients and other technologies to collect, analyze, and transmit medical data and images.

(4) PORTABILITY OF O–1 NONIMMIGRANTS.—A nonimmigrant who was previously issued a visa or otherwise provided nonimmigrant status under section 101(a)(15)(O)(i) of the Immigration and Nationality Act (8 U.S.C. 1101(a)(15)(O)(i)), and is seeking an extension of such status, is authorized to accept new employment under the terms and conditions described in section 214(n) of such Act (8 U.S.C. 1184(n)).

(5) INCREASING THE ABILITY OF PHYSICIANS TO CHANGE NONIMMIGRANT STATUS.—

(A) CHANGE OF NONIMMIGRANT CLASSIFICATION.—Section 248(a) of the Immigration and Nationality Act (8 U.S.C. 1184(l)), is amended—

(i) in paragraph (1), by inserting ''and'' after the comma at the end;

(ii) by striking paragraphs (2) and (3); and

(iii) by redesignating paragraph (4) as paragraph (2).

(B) ADMISSION OF NONIMMIGRANTS.—Section 214(l)(2)(A) of the Immigration and Nationality Act (8 U.S.C. 1184(l)(2)(A)) is amended by striking ''Notwithstanding section 248(a)(2), the'' and inserting ''The''.

(6) TERMINATION.—This subsection shall take effect on the date of the enactment of this title and except as provided in paragraphs (2)(B), (3)(C), (4), and (5), shall cease to be effective on that date that is 180 days after the termination of the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d), with respect to COVID–19.

(e) CONRAD 30 PROGRAM.—

(1) PERMANENT AUTHORIZATION.—Section 220(c) of the Immigration and Nationality Technical Corrections Act of 1994 (Public Law 103–416; 8 U.S.C. 1182 note) is amended by striking ''and before September 30, 2015''.

(2) ADMISSION OF NONIMMIGRANTS.—Section 214(l) of the Immigration and Nationality Act (8 U.S.C. 1184(l)), is amended—

(A) in paragraph (1)(B)—

(i) by striking ''30'' and inserting ''35''; and

(ii) by inserting '', except as provided in paragraph (4)'' before the semicolon at the end; and

(B) by adding at the end the following:

''(4) ADJUSTMENT IN WAIVER NUMBERS.—

''(A) INCREASES.—

''(i) IN GENERAL.—Except as provided in clause (ii), if in any fiscal year, not less than 90 percent of the waivers provided under paragraph (1)(B) are utilized by States receiving at least 5 such waivers, the number of such waivers allotted to each State shall increase by 5 for each subsequent fiscal year.

''(ii) EXCEPTION.—If 45 or more waivers are allotted to States in any fiscal year, an increase of 5 waivers in subsequent fiscal years shall be provided only in the case that not less than 95 percent of such waivers are utilized by States receiving at least 1 waiver.

''(B) DECREASES.—If in any fiscal year in which there was an increase in waivers, the total number of waivers utilized is 5 percent lower than in the previous fiscal year, the number of such waivers allotted to each State shall decrease by 5 for each subsequent fiscal year, except that in no case shall the number of waivers allotted to each State drop below 35.''.

(f) TEMPORARY PORTABILITY FOR PHYSICIANS AND CRITICAL HEALTHCARE WORKERS IN RESPONSE TO COVID–19 PUBLIC HEALTH EMERGENCY.—

(1) IN GENERAL.—Not later than 30 days after the date of the enactment of this title, the Secretary of Homeland Security, in consultation with the Secretary of Labor and the Secretary of Health and Human Services, shall establish emergency procedures to provide employment authorization to aliens described in paragraph (2), for purposes of facilitating the temporary deployment of such aliens to practice medicine, provide healthcare, or engage in medical research involving the diagnosis, treatment, or prevention of COVID–19.

(2) ALIENS DESCRIBED.—An alien described in this paragraph is an alien who is—

(A) physically present in the United States;

(B) maintaining lawful nonimmigrant status that authorizes employment with a specific employer incident to such status; and

(C) working in the United States in a healthcare occupation essential to COVID–19 response, as determined by the Secretary of Health and Human Services.

(3) EMPLOYMENT AUTHORIZATION.—

(A) APPLICATION.—

(i) IN GENERAL.—The Secretary of Homeland Security may grant employment authorization to an alien described in paragraph (2) if such alien submits an Application for Employment Authorization (Form I–765 or any successor form), which shall include—

(I) evidence of the alien's current nonimmigrant status;

(II) copies of the alien's academic degrees and any licenses, credentials, or other documentation confirming authorization to practice in the alien's occupation; and

(III) any other evidence determined necessary by the Secretary of Homeland Security to establish by a preponderance of the evidence that the alien meets the requirements of paragraph (2).

(ii) CONVERSION OF PENDING APPLICATIONS.—The Secretary of Homeland Security shall establish procedures for the adjudication of any employment authorization applications for aliens described in paragraph (2) that are pending on the date of the enactment of this title, and the issuance of employment authorization documents in connection with such applications in accordance with the terms and conditions of this subsection, upon request by the applicant.

(B) FEES.—The Secretary of Homeland Security shall collect a fee for the processing of applications for employment authorization as provided under this paragraph.

(C) REQUEST FOR EVIDENCE.—If all required initial evidence has been submitted under this subsection but such evidence does not establish eligibility, the Secretary of Homeland Security shall issue a request for evidence not later than 15 days after receipt of the application for employment authorization.

(D) DECISION.—The Secretary of Homeland Security shall issue a final decision on an application for employment authorization under this subsection not later than 30 days after receipt of such application, or, if a request for evidence is issued, not later than 15 days after the Secretary receives the alien's response to such request.

(E) EMPLOYMENT AUTHORIZATION CARD.—An employment authorization document issued under this subsection shall—

(i) be valid for a period of not less than 1 year;

(ii) include the annotation ''COVID–19''; and

(iii) notwithstanding any other provision of law, allow the bearer of such document to engage in employment during its validity period, with any United States employer to perform services described in paragraph (1).

(F) RENEWAL.—Subject to paragraph (5), the Secretary of Homeland Security may renew an employment authorization document issued under this subsection in accordance with procedures established by the Secretary.

(G) CLARIFICATIONS.—

(i) MAINTENANCE OF STATUS.—Notwithstanding a reduction in hours or cessation of work with the employer that petitioned for the alien's underlying nonimmigrant status, an alien granted employment authorization under this subsection, and the spouse and children of such alien shall, for the period of such authorization, be deemed—

(I) to be lawfully present in the United States; and

(II) to have continuously maintained the alien's underlying nonimmigrant status for purposes of an extension of such status, a change of nonimmigrant status under section 248 of the Immigration and Nationality Act (8 U.S.C. 1258), or adjustment of status under section 245 of such Act (8 U.S.C. 1255).

(ii) LIMITATIONS.—An employment authorization document described in subparagraph (E) may not be—

(I) utilized by the alien to engage in any employment other than that which is described in paragraph (1); or

(II) accepted by an employer as evidence of authorization under section 274A(b)(1)(C) of the Immigration and Nationality Act (8 U.S.C. 1324a(b)(1)(C)), to engage in employment other than that which is described in paragraph (1).

(4) TREATMENT OF TIME SPENT ENGAGING IN COVID–19-RELATED WORK.—Notwithstanding any other provision of law, time spent by an alien physician engaged in direct patient care involving the diagnosis, treatment, or prevention of COVID–19 shall count towards—

(A) the 5 years that an alien is required to work as a full-time physician for purposes of a national interest waiver under section 203(b)(2)(B)(ii) of the Immigration and Nationality Act (8 U.S.C. 1153(b)(2)(B)(ii)); and

(B) the 3 years that an alien is required to work as a full-time physician for purposes of a waiver of the 2-year foreign residence requirement under section 212(e) of the Immigration and Nationality Act (8 U.S.C. 1182(e)), as provided in section 214(l) of such Act (8 U.S.C. 1184(l)).

(5) EXTENSION OR TERMINATION.—The procedures described in paragraph (1) shall take effect on the date that is 30 days after the date of the enactment of this title and shall remain in effect until 180 days after the termination of the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d), with respect to COVID–19.

(g) SPECIAL IMMIGRANT STATUS FOR NONIMMIGRANT COVID–19 WORKERS AND THEIR FAMILIES.—

(1) IN GENERAL.—The Secretary of Homeland Security may grant a petition for special immigrant classification to an alien described in paragraph (2) (and the spouse and children of such alien) if the alien files a petition for special immigrant status under section 204 of the Immigration and Nationality Act (8 U.S.C. 1154) for classification under section 203(b)(4) of such Act (8 U.S.C. 1153(b)(4)).

(2) ALIENS DESCRIBED.—An alien is described in this paragraph if, during the period beginning on the date that the COVID–19 public

health emergency was declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d) and ending 180 days after the termination of such emergency, the alien was—

(A) authorized for employment in the United States and maintaining a nonimmigrant status; and

(B) engaged in the practice of medicine, provision of healthcare services, or medical research involving the diagnosis, treatment, or prevention of COVID–19 disease.

(3) PRIORITY DATE.—Subject to paragraph (5), immigrant visas under paragraph (1) shall be made available to aliens in the order in which a petition on behalf of each such alien is filed with the Secretary of Homeland Security, except that an alien shall maintain any priority date that was assigned with respect to an immigrant visa petition or application for labor certification that was previously filed on behalf of such alien.

(4) PROTECTIONS FOR SURVIVING SPOUSES AND CHILDREN.—

(A) SURVIVING SPOUSES AND CHILDREN.—Notwithstanding the death of an alien described in paragraph (2), the Secretary of State may approve an application for an immigrant visa, and the Secretary of Homeland Security may approve an application for adjustment of status to lawful permanent resident, filed by or on behalf of a spouse or child of such alien.

(B) AGE-OUT PROTECTION.—For purposes of an application for an immigrant visa or adjustment of status filed by or on behalf of a child of an alien described in paragraph (2), the determination of whether the child satisfies the age requirement under section 101(b)(1) of the Immigration and Nationality Act (8 U.S.C. 1101(b)(1)) shall be made using the age of the child on the date the immigrant visa petition under paragraph (1) was approved.

(C) CONTINUATION OF NONIMMIGRANT STATUS.—A spouse or child of an alien described in paragraph (2) shall be considered to have maintained lawful nonimmigrant status until the earlier of the date—

(i) on which the Secretary of Homeland Security accepts for filing, an application for adjustment of status based on a petition described in paragraph (1); or

(ii) that is 2 years after the date of the principal nonimmigrant's death.

(5) NUMERICAL LIMITATIONS.—

(A) IN GENERAL.—The total number of principal aliens who may be provided special immigrant status under this subsection may not exceed 4,000 per year for each of the 3 fiscal years beginning after the date of the enactment of this title.

(B) EXCLUSION FROM NUMERICAL LIMITATIONS.—Aliens provided special immigrant status under this subsection shall not be counted against any numerical limitations under section 201(d), 202(a), or 203(b)(4) of the Immigration and Nationality Act (8 U.S.C. 1151(d), 1152(a), or 1153(b)(4)).

(C) CARRY FORWARD.—If the numerical limitation specified in subparagraph (A) is not reached during a given fiscal year referred to in such subparagraph, the numerical limitation specified in such subparagraph for the following fiscal year shall be increased by a number equal to the difference between—

(i) the numerical limitation specified in subparagraph (A) for the given fiscal year; and

(ii) the number of principal aliens provided special immigrant status under this subsection during the given fiscal year.

SEC. 105. ICE DETENTION.

(a) REVIEWING ICE DETENTION.—During the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d) with respect to COVID–19, the Secretary of Homeland Security shall review the immigration files of all individuals in the custody of U.S. Immigration and Customs Enforcement to assess the need for continued detention. The Secretary of Homeland Security shall prioritize for release on recognizance or alternatives to detention individuals who are not subject to mandatory detention laws, unless the individual is a threat to public safety or national security.

(b) ACCESS TO ELECTRONIC COMMUNICATIONS AND HYGIENE PRODUCTS.—During the period described in subsection (c), the Secretary of Homeland Security shall ensure that—

(1) all individuals in the custody of U.S. Immigration and Customs Enforcement—

(A) have access to telephonic or video communication at no cost to the detained individual;

(B) have access to free, unmonitored telephone calls, at any time, to contact attorneys or legal service providers in a sufficiently private space to protect confidentiality;

(C) are permitted to receive legal correspondence by fax or email rather than postal mail; and

(D) are provided sufficient soap, hand sanitizer, and other hygiene products; and

(2) nonprofit organizations providing legal orientation programming or know-your-rights programming to individuals in the custody of U.S. Immigration and Customs Enforcement are permitted broad and flexible access to such individuals—

(A) to provide group presentations using remote videoconferencing; and

(B) to schedule and provide individual orientations using free telephone calls or remote videoconferencing.

(c) PERIOD DESCRIBED.—The period described in this subsection—

(1) begins on the first day of the public health emergency declared by the Secretary of Health and Human Services under section 319 of the Public Health Service Act (42 U.S.C. 247d) with respect to COVID–19; and

(2) ends 90 days after the date on which such public health emergency terminates.

SEC. 106. CONDITION ON FURLOUGH.

U.S. Citizenship and Immigration Services may not furlough any employee in any pay period in fiscal year 2021 if the agency has sufficient available balances for compensation for such employee during such pay period.

SEC. 107. LIMITATION ON USE OF FUNDS BY OTHER AGENCIES.

Notwithstanding any other provision of law, none of the funds deposited into the Immigration Examinations Fee Account pursuant to subsection (m) or (u) of section 286 of the Immigration and Nationality Act (8 U.S.C. 1356), may be made available to any other Federal agency for such other agency's purpose, unless such funds were made available to such agency for such purpose in fiscal year 2019.

SEC. 108. CHIEF FINANCIAL OFFICER.

(a) REPORT TO DIRECTOR.—The Chief Financial Officer of U.S. Citizenship and Immigration Services shall report to the Director of U.S. Citizenship and Immigration Services.

(b) REQUIRED CONSULTATION.—Prior to implementing any substantive change to a policy, program, or process, the Director of U.S. Citizenship and Immigration Services shall consider the impact of such change on the agency's revenue, expenditures, and reserve funding in consultation with the agency's Chief Financial Officer.

SEC. 109. INDEPENDENT VERIFICATION AND VALIDATION REVIEW.

Not later than 180 days after the date of enactment of this Act, the Director of U.S. Citizenship and Immigration Services shall submit to the Committees on the Judiciary of the House of Representatives and the Senate, and the Committees on Appropriations of the House of Representatives and the Senate, the results and recommendations of an Independent Verification and Validation review of each model used by the agency to inform adjustments of fees charged for the adjudication of immigration and citizenship benefit requests.

SEC. 110. REPORTING REQUIREMENT.

(a) IN GENERAL.—In addition to the requirements of section 286(o) of the Immigration and Nationality Act (8 U.S.C. 1356(o)), the Secretary of Homeland Security shall prepare a report on the fiscal status of U.S. Citizenship and Immigration Services that includes the following, disaggregated by funding source—

(1) the annual operating plan broken out by directorate and program office within such agency, which shall include obligations and current year expenditures for the preceding quarter, along with projected obligations and expenditures for the current quarter and the subsequent quarters;

(2) fee receipts for each form type for the preceding quarter and estimates of such receipts for the current and subsequent quarter;

(3) other agency expenses, including payments or transfers to other Federal agencies and general operating expenses;

(4) the percentage of revenue generated from premium processing receipts used for the adjudication of non-premium benefit applications;

(5) carryover or reserve funding projections, obligations, and expenditures;

(6) productivity measurement data, by form type, directorate, and program office, measured against baseline capacity and workload volumes;

(7) the impact on such measurement data from changes in personnel, technology usage, or processes;

(8) processing times by program office and directorate, disaggregated by form type; and

(9) backlogs by form type, including petitions for family- and employment-based immigration benefits and for asylum and other humanitarian protections.

(b) REVIEW.—The report required in subsection (a) shall be—

(1) validated and reviewed by the Chief Financial Officer of the Department of Homeland Security; and

(2) submitted to the Committees on the Judiciary of the Senate and the House of Representatives and the Committees on Appropriations of the Senate and the House of Representatives not later than 90 days after the date of enactment of this Act and every 180 days thereafter.

(c) PUBLIC AVAILABILITY.—The information described in paragraphs (6) through (9) of subsection (a) shall also be made available not later than 15 days after the end of each fiscal quarter on a publicly available website.

(d) REVENUE EARNINGS REPORT.—Not later than 60 days after the date of enactment of this Act and updated monthly thereafter, the Director of U.S. Citizenship and Immigration Services shall publish on a publicly available website in a downloadable, searchable, and sortable format a revenue earnings report that includes data beginning October 1, 2009, which shall be disaggregated by month and revenue source.

(e) INDEPENDENT REVIEW.—The Comptroller General of the United States shall conduct an independent review of the first report submitted pursuant to subsection (b) and shall examine the circumstances that led to fiscal situation for U.S. Citizenship and Immigration Services for the fiscal years 2017 through 2020.

TITLE II—PRISONS AND JAILS

SEC. 201. SHORT TITLE.

This title may be cited as the ''Pandemic Justice Response Act''.

SEC. 202. EMERGENCY COMMUNITY SUPERVISION ACT.

(a) FINDINGS.—Congress finds the following:

(1) As of the date of introduction of this Act, the novel coronavirus has spread to all 50 States, the District of Columbia, and at least 4 territories.

(2) As of September 27, 2020, more than 7,119,400 people in the United States had been infected with the coronavirus and at least 204,400 had died.

(3) Although the United States has less than 5 percent of the world's population, the United

States holds approximately 21 percent of the world's prisoners and leads the world in the number of individuals incarcerated, with nearly 2,200,000 people incarcerated in State and Federal prisons and local jails.

(4) Studies have shown that individuals age out of crime starting around 25 years of age, and released individuals over the age of 50 have a very low recidivism rate.

(5) According to public health experts, incarcerated individuals are particularly vulnerable to being gravely impacted by the novel corona virus pandemic because—

(A) they have higher rates of underlying health issues than members of the general public, including higher rates of respiratory disease, heart disease, diabetes, obesity, HIV/AIDS, substance abuse, hepatitis, and other conditions that suppress immune response; and

(B) the close conditions and lack of access to hygiene products in prisons make these institutions unusually susceptible to viral pandemics.

(6) The spread of communicable disease in the United States generally constitutes a serious, heightened threat to the safety of incarcerated individuals, and there is a serious threat to the general public that prisons may become incubators of community spread of communicable viral disease.

(b) DEFINITIONS.—In this section:

(1) COVERED HEALTH CONDITION.—The term ''covered health condition'' with respect to an individual, means the individual—

(A) is pregnant;

(B) has chronic lung disease or asthma;

(C) has congestive heart failure or coronary artery disease;

(D) has diabetes;

(E) has a neurological condition that weakens the ability to cough or breathe;

(F) has HIV;

(G) has sickle cell anemia;

(H) has cancer; or

(I) has a weakened immune system.

(2) COVERED INDIVIDUAL.—The term ''covered individual''—

(A) means an individual who—

(i) is a juvenile (as defined in section 5031 of title 18, United States Code);

(ii) is 50 years of age or older;

(iii) has a covered health condition; or

(iv) is within 12 months of release from incarceration; and

(B) includes an individual described in subparagraph (A) who is serving a term of imprisonment for an offense committed before November 1, 1987, or who is serving a term of imprisonment in the custody of the Bureau of Prisons for a sentence imposed pursuant to a conviction for a criminal offense under the laws of the District of Columbia.

(3) NATIONAL EMERGENCY RELATING TO A COMMUNICABLE DISEASE.—The term ''national emergency relating to a communicable disease'' means—

(A) an emergency involving Federal primary responsibility determined to exist by the President under the section 501(b) of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5191(b)) with respect to a communicable disease; or

(B) a national emergency declared by the President under the National Emergencies Act (50 U.S.C. 1601 et seq.) with respect to a communicable disease.

(c) PLACEMENT OF CERTAIN INDIVIDUALS IN COMMUNITY SUPERVISION.—

(1) AUTHORITY.—Except as provided in paragraph (2), beginning on the date on which a national emergency relating to a communicable disease is declared and ending on the date that is 60 days after such national emergency expires or is terminated—

(A) notwithstanding any other provision of law, the Director of the Bureau of Prisons shall place in community supervision all covered individuals who are in the custody of the Bureau of Prisons; and

(B) the district court of the United States for each judicial district shall place in community supervision all covered individuals who are in the custody and care of the United States Marshals Service.

(2) EXCEPTIONS.—

(A) BUREAU OF PRISONS.—In carrying out paragraph (1)(A), the Director—

(i) may not place in community supervision any individual determined, by clear and convincing evidence, taking into account the individual's offense of conviction, to be likely to pose a specific and substantial risk of causing bodily injury to or using violent force against the person of another;

(ii) shall place in the file of each individual described in clause (i) documentation of such determination, including the evidence used to make the determination; and

(iii) not later than 180 days after the date on which the national emergency relating to a communicable disease expires, shall provide a report to Congress documenting—

(I) the demographic data (including race, gender, age, offense of conviction, and criminal history level) of the individuals denied placement in community supervision under clause (i); and

(II) the justification for the denials described in subclause (I).

(B) DISTRICT COURTS.—In carrying out paragraph (1)(B), each district court of the United States—

(i) shall conduct an immediate and expedited review of the detention orders of all covered individuals in the custody and care of the United States Marshals Service, which may be conducted sua sponte and ex parte, without—

(I) appearance by the defendant or any party; or

(II) requiring a petition, motion, or other similar document to be filed;

(ii) may not place in community supervision any individual if the court determines, after a hearing and the attorney for the Government shows by clear and convincing evidence based on individualized facts, that detention is necessary because the individual's release will pose a specific and substantial risk that the individual will cause bodily injury or use violent force against the person of another and that no conditions of release will reasonably mitigate that risk;

(iii) in carrying out clauses (i) and (ii), may—

(I) rely on evidence presented in prior court proceedings; and

(II) if the court determines it necessary, request additional information from the parties to make the determination.

(3) LIMITATION ON COMMUNITY SUPERVISION PLACEMENT.—In placing covered individuals into community supervision under this section, the Director of the Bureau of Prisons and the district court of the United States for each judicial district shall take into account and prioritize placements that enable adequate social distancing, which include home confinement or other forms of low in-person-contact supervised release.

(d) LIMITATION ON PRE-TRIAL DETENTION.—

(1) NO BOND CONDITIONS ON RELEASE.—Notwithstanding section 3142 of title 18, United States Code, beginning on the date on which a national emergency relating to a communicable disease is declared and ending on the date that is 60 days after such national emergency expires or is terminated, in imposing conditions of release, the judicial officer may not require payment of cash bail, proof of ability to pay an unsecured bond, execution of a bail bond, a solvent surety to co-sign a secured or unsecured bond, or posting of real property.

(2) LIMITATION.—

(A) IN GENERAL.—Beginning on the date on which a national emergency relating to a communicable disease is declared and ending on the date that is 60 days after such national emergency expires or is terminated, at any initial appearance hearing, detention hearing, hearing on a motion for pretrial release, or any other hearing where the attorney for the Government is seeking the detention or continued detention of any individual, the judicial officer shall order the pretrial release of the individual on personal recognizance or on a condition or combination of conditions under section 3142(c) of title 18, United States Code, unless the attorney for the Government shows by clear and convincing evidence based on individualized facts that detention is necessary because the individual's release will pose a specific and substantial risk that the individual will cause bodily injury or use violent force against the person of another and that no conditions of release will reasonably mitigate that risk.

(B) REQUIRED CONSIDERATION OF CERTAIN FACTORS.—If the judicial officer finds that the attorney for the Government has made the requisite showing under subparagraph (A), the judicial officer shall take into consideration, in determining whether detention is necessary—

(i) whether the individual's age or medical condition renders them especially vulnerable; and

(ii) whether detention will compromise the individual's access to adequate medical treatment, access to medications, or ability to privately consult with counsel and meaningfully prepare a defense.

(C) JUVENILES.—

(i) IN GENERAL.—Beginning on the date on which a national emergency relating to a communicable disease is declared and ending on the date that is 60 days after such national emergency expires or is terminated, notwithstanding sections 5031 through 5035 of title 18, United States Code, and except as provided under clause (ii), in the case of a juvenile alleged to have committed an act of juvenile delinquency, the judicial officer shall release the juvenile to their parent, guardian, custodian, or other responsible party (including the director of a shelter-care facility) upon their promise to bring such juvenile before the appropriate court when requested by the judicial officer.

(ii) EXCEPTION.—A juvenile alleged to have committed an act of juvenile delinquency may be detained pending trial only if, at a hearing at which the juvenile is represented by counsel, the attorney for the Government shows by clear and convincing evidence based on individualized facts that detention is necessary because the juvenile's release will pose a specific and substantial risk that the juvenile will use violent force against a reasonably identifiable person and that no conditions of release will reasonably mitigate that risk, except that in no case may a judicial officer order the detention of a juvenile if it will compromise the juvenile's access to adequate medical treatment, access to medications, or ability to privately consult with counsel and meaningfully prepare a defense.

(iii) LEAST RESTRICTIVE DETENTION.—In the case that the judicial officer orders the detention of a juvenile under clause (ii), the judicial officer shall order the detention of the juvenile in the least restrictive and safest environment possible, taking the national emergency relating to a communicable disease into consideration.

(iv) CONTENTS OF DETENTION ORDER.—In the case that the judicial officer orders the detention of a juvenile under clause (ii), the judicial officer shall issue a written detention order that includes—

(I) findings of fact;

(II) the reasons for the detention;

(III) a description of the risk identified under clause (ii);

(IV) an explanation of why no conditions will reasonably mitigate the risk identified under clause (ii);

(V) a statement that detention will not compromise the juvenile's access to adequate medical treatment, access to medications, or ability to privately consult with counsel and meaningfully prepare a defense; and

(VI) a statement establishing that the detention environment is the least restrictive and

safest possible in accordance with the requirement under clause (iii).

(e) LIMITATION ON SUPERVISED RELEASE.—Beginning on the date on which a national emergency relating to a communicable disease is declared and ending on the date that is 60 days after such national emergency expires, the Office of Probation and Pretrial Services of the Administrative Office of the United States Courts shall take measures to prevent the spread of the communicable disease among individuals under supervision by—

(1) suspending the requirement that individuals determined to be a lower risk of reoffending, or any other individuals determined to be appropriate by the supervising probation officer, report in person to their probation or parole officer;

(2) identifying individuals who have successfully completed not less than 18 months of supervision and transferring such individuals to administrative supervision or petitioning the court to terminate supervision, as appropriate; and

(3) suspending the request for detention and imprisonment as a sanction for violations of probation, supervised release, or parole.

(f) PROHIBITION.—No individual who is granted placement in community supervision, termination of supervision, placement on administrative supervision, or pre-trial release shall be reincarcerated, placed on supervision or active supervision, or ordered detained pre-trial only as a result of the expiration of the national emergency relating to a communicable disease.

(g) PROHIBITION ON TECHNICAL VIOLATIONS AND CERTAIN MANDATORY REVOCATIONS OF PROBATION OR SUPERVISED RELEASE.—

(1) RESENTENCING IN CASES OF PROBATION AND SUPERVISED RELEASE.—

(A) IN GENERAL.—Beginning on the date on which a national emergency relating to a communicable disease is declared and ending on the date that is 60 days after such national emergency expires, and notwithstanding section 3582(b) of title 18, United States Code, a court shall order the resentencing of a defendant who is serving a term of imprisonment resulting from a revocation of probation, or supervised release for a Grade C violation for conduct under section 7B1.1(c)(3)(B) of the United States Sentencing Guidelines, upon motion of the defendant.

(B) RESENTENCING.—The court shall order the resentencing of a defendant described in subparagraph (A) as follows:

(i) In the case of a revoked sentence of probation, the court shall resentence the defendant to probation, the duration of which shall be equal to the period of time remaining on the term of probation originally imposed at the time the defendant was most recently placed in custody, unless the court determines that decreasing the length of the term of probation is in the interest of justice.

(ii) In the case of a revoked term of supervised release, the court shall continue the defendant on supervised release, the duration of which shall be equal to the period of time the defendant had remaining on supervised release when the defendant was most recently placed in custody, unless the court determines that decreasing the term of supervised release is in the interest of justice.

(2) RESENTENCING IN CASES OF PAROLE.—

(A) IN GENERAL.—Beginning on the date on which a national emergency relating to a communicable disease is declared and ending on the date that is 60 days after such national emergency expires, the court shall order the resentencing of a defendant who is serving a term of imprisonment resulting from a technical violation of the defendant's parole.

(B) RESENTENCING.—The court shall resentence the defendant to parole, the duration of which shall be equal to the period of time remaining on the defendant's term of parole at the time the defendant was most recently placed in custody, unless the court determines that decreasing the length of the term of parole is in the interest of justice.

(3) HEARING.—The court may grant, but not deny, a motion without a hearing under this section.

(4) NO MANDATORY REVOCATION.—

(A) IN GENERAL.—Beginning on the date on which a national emergency relating to a communicable disease is declared and ending on the date that is 60 days after such national emergency expires, a court is not required to revoke a defendant's probation or supervised release under sections 3565(b) and 3583(g) of title 18, United States Code, based on a finding that the defendant refused to comply with drug treatment.

(B) DISSEMINATION OF POLICY CHANGE.—Not later than 10 days after the date of enactment of this title, the Judicial Conference of the United States shall issue and disseminate to all district courts of the United States a temporary policy change suspending mandatory revocation of probation or supervised release for refusal to comply with drug testing.

(5) PROMPT DETERMINATION.—Any motion under this subsection shall be determined promptly.

(6) COUNSEL.—To effectuate the purposes of this subsection, counsel shall be appointed as early as possible to represent any indigent defendant.

(7) DEFINITIONS.—In this subsection, the term ''defendant'' includes individuals adjudicated delinquent under the Federal Juvenile Delinquency Act and applies to persons serving time in official detention for a revocation of juvenile probation or supervised release.

SEC. 203. COURT AUTHORITY TO REDUCE SENTENCES AND TEMPORARY RELEASE AUTHORITY FOR NON-VIOLENT OFFENDERS.

(a) COURT AUTHORITY TO REDUCE SENTENCES.—

(1) IN GENERAL.—Notwithstanding section 3582 of title 18, United States Code, the court shall, during the covered emergency period, upon motion of a covered individual (as such term is defined in section 202(b)) or on the court's own motion, reduce a term of imposed imprisonment on that individual, unless the government shows, by clear and convincing evidence, that the individual poses a risk of serious, imminent injury to a reasonably identifiable person.

(2) SENTENCE REDUCTION DEEMED AUTHORIZED.—Any sentence that is reduced under this subsection is deemed to be authorized under section 3582(c)(1)(B) of title 18, United States Code.

(3) RULE OF CONSTRUCTION.—In addition to the reduction of sentences authorized under this subsection, the court may continue to reduce and modify sentences under section 3582 of title 18, United States Code, during the covered emergency period.

(4) SPECIAL RULE.—During the covered emergency period, a covered individual who is serving a term of imprisonment for an offense committed before November 1, 1987, who would not otherwise be eligible to file a motion under section 3582(c)(1)(A) of title 18, United States Code, is eligible to file such a motion and for relief under such section. Any motion for relief filed in accordance with this paragraph before the expiration or termination of the covered emergency period shall not disqualify such motion based solely on such expiration or termination.

(b) COURT AUTHORITY TO AUTHORIZE TEMPORARY RELEASE OF PERSONS AWAITING DESIGNATION OR TRANSPORTATION TO A BUREAU OF PRISONS FACILITY.—Notwithstanding sections 3582 and 3621 of title 18, United States Code, during the covered emergency period, the court, upon motion of an individual (including individuals adjudicated delinquent under the Federal Juvenile Delinquency Act) awaiting designation or transportation to a Bureau of Prisons or other facility for service of sentence or official detention, or on the court's own motion, may, taking into account the individual's offense of conviction or adjudication, order the temporary release of the individual, for a limited period ending not later than the expiration or termination of the COVID–19 emergency, if such release is for the purpose of avoiding or mitigating the risks associated with imprisonment during the covered emergency period, either generally with respect to the individual's place of imprisonment or specifically with respect to the individual.

(c) HEARING REQUIREMENT.—The court may grant, but not deny, a motion without a hearing under this section. Any motion under this section shall be determined promptly.

(d) EFFECTIVE REPRESENTATION DURING NATIONAL EMERGENCY.—

(1) ACCESS TO COURT.—During the covered emergency period, any procedural requirement under section 3582(c)(1)(A) of title 18, United States Code, that would delay a defendant from directly petitioning the court shall not apply, and the defendant may petition the court directly for relief.

(2) APPOINTMENT OF COUNSEL.—The court shall appoint counsel for indigent defendants or prisoners, at no cost to the defendant or prisoner, as early as possible to effectuate the purposes of this section and the purposes of section 3582(c)(1)(A) of title 18, United States Code.

(3) ACCESS TO MEDICAL RECORDS.—

(A) IN GENERAL.—In order to expedite proceedings under this section and proceedings under 3582(c)(1)(A) of title 18, United States Code, during the covered emergency period, the Director of the Bureau of Prisons shall promptly release all medical records in the possession of the Bureau of Prisons to a prisoner who requests them on their own behalf, or to the counsel of record for a prisoner upon submission to the court of an affidavit, signed by such counsel under penalty of perjury, that such counsel has reason to believe that the prisoner has a covered health condition (as such term is defined in section 202(b)) or a condition that would entitle them to relief under section 3582(c)(1)(A) of title 18, United States Code.

(B) INDIVIDUALS IN THE CUSTODY OF THE U.S. MARSHALS SERVICE.—In order to expedite proceedings under this section, in the case of an individual who is in the custody or care of the U.S. Marshals Service, the Director of the U.S. Marshals Service shall facilitate the provision of any medical records of the individual to the individual or the counsel of record of the individual, upon request of the individual or counsel.

SEC. 204. EXEMPTION FROM EXHAUSTING ADMINISTRATIVE REMEDIES DURING COVERED EMERGENCY PERIOD.

Section 7 of the Civil Rights of Institutionalized Persons Act (42 U.S.C. 1997e) is amended by adding at the end the following:

''(i) COVERED EMERGENCY PERIOD.—

''(1) RELIEF WITHOUT EXHAUSTING ADMINISTRATIVE REMEDIES.—Notwithstanding the other provisions of this section, during the covered emergency period, a prisoner may commence, without exhausting all administrative remedies, an action relating to conditions of imprisonment under which the prisoner is at significant risk of harm or under which the prisoner's access to counsel has been impaired. If the court determines the prisoner is reasonably likely to prevail, the court may order such appropriate relief, limited in time and scope, as may be necessary to prevent or remedy the significant risk of harm or provide access to counsel.

''(2) RETALIATION PROHIBITED.—Section 6 shall apply in the case of retaliation against a prisoner who files an administrative claim or lawsuit during the covered emergency period or attempts to so file.

''(3) DEFINITIONS.—For purposes of this subsection, the term 'covered emergency period' has the meaning given the term in section 12003 of the CARES Act (Public Law 116–136).''.

SEC. 205. INCREASING AVAILABILITY OF HOME DETENTION FOR NON-VIOLENT ELDERLY OFFENDERS.

(a) GOOD CONDUCT TIME CREDITS FOR CERTAIN ELDERLY NONVIOLENT OFFENDERS.—Section 231(g)(5)(A)(ii) of the Second Chance Act of 2007 (34 U.S.C. 60541(g)(5)(A)(ii)) is amended by striking ''to which the offender was sentenced'' and inserting ''reduced by any credit toward the service of the prisoner's sentence awarded under section 3624(b) of title 18, United States Code''.

(b) INCREASING ELIGIBILITY FOR HOME DETENTION FOR CERTAIN ELDERLY NONVIOLENT OFFENDERS.—During the covered emergency period an offender who is in the custody of the Bureau of Prisons, including pursuant to a conviction for a criminal offense under the laws of the District of Columbia, shall be considered an eligible elderly offender under section 231(g) of the Second Chance Act of 2007 (34 U.S.C. 60541(g)) if the offender—

(1) is not less than 50 years of age;

(2) has served 1/2 of the term of imprisonment reduced by any credit toward the service of the prisoner's sentence awarded under section 3624(b) of title 18, United States Code; and

(3) is otherwise described in such section 231(g)(5)(A).

SEC. 206. EFFECTIVE ASSISTANCE OF COUNSEL IN THE DIGITAL ERA ACT.

(a) PROHIBITION ON MONITORING.—Not later than 180 days after the date of the enactment of this title, the Attorney General shall create a program or system, or modify any program or system that exists on the date of enactment of this title, through which an incarcerated person sends or receives an electronic communication, to exclude from monitoring the contents of any privileged electronic communication. In the case that the Attorney General creates a program or system in accordance with this subsection, the Attorney General shall, upon implementing such system, discontinue using any program or system that exists on the date of enactment of this title through which an incarcerated person sends or receives a privileged electronic communication, except that any program or system that exists on such date may continue to be used for any other electronic communication.

(b) RETENTION OF CONTENTS.—A program or system or a modification to a program or system under subsection (a) may allow for retention by the Bureau of Prisons of, and access by an incarcerated person to, the contents of electronic communications, including the contents of privileged electronic communications, of the person until the date on which the person is released from prison.

(c) ATTORNEY-CLIENT PRIVILEGE.—Attorney-client privilege, and the protections and limitations associated with such privilege (including the crime fraud exception), applies to electronic communications sent or received through the program or system established or modified under subsection (a).

(d) ACCESSING RETAINED CONTENTS.—Contents retained under subsection (b) may only be accessed by a person other than the incarcerated person for whom such contents are retained under the following circumstances:

(1) ATTORNEY GENERAL.—The Attorney General may only access retained contents if necessary for the purpose of creating and maintaining the program or system, or any modification to the program or system, through which an incarcerated person sends or receives electronic communications. The Attorney General may not review retained contents that are accessed pursuant to this paragraph.

(2) INVESTIGATIVE AND LAW ENFORCEMENT OFFICERS.—

(A) WARRANT.—

(i) IN GENERAL.—Retained contents may only be accessed by an investigative or law enforcement officer pursuant to a warrant issued by a court pursuant to the procedures described in the Federal Rules of Criminal Procedure.

(ii) APPROVAL.—No application for a warrant may be made to a court without the express approval of a United States Attorney or an Assistant Attorney General.

(B) PRIVILEGED INFORMATION.—

(i) REVIEW.—Before retained contents may be accessed pursuant to a warrant obtained under subparagraph (A), such contents shall be reviewed by a United States Attorney to ensure that privileged electronic communications are not accessible.

(ii) BARRING PARTICIPATION.—A United States Attorney who reviews retained contents pursuant to clause (i) shall be barred from—

(I) participating in a legal proceeding in which an individual who sent or received an electronic communication from which such contents are retained under subsection (b) is a defendant; or

(II) sharing the retained contents with an attorney who is participating in such a legal proceeding.

(3) MOTION TO SUPPRESS.—In a case in which retained contents have been accessed in violation of this subsection, a court may suppress evidence obtained or derived from access to such contents upon motion of the defendant.

(e) DEFINITIONS.—In this section—

(1) the term ''agent of an attorney or legal representative'' means any person employed by or contracting with an attorney or legal representative, including law clerks, interns, investigators, paraprofessionals, and administrative staff;

(2) the term ''contents'' has the meaning given such term in 2510 of title 18, United States Code;

(3) the term ''electronic communication'' has the meaning given such term in section 2510 of title 18, United States Code, and includes the Trust Fund Limited Inmate Computer System;

(4) the term ''monitoring'' means accessing the contents of an electronic communication at any time after such communication is sent;

(5) the term ''incarcerated person'' means any individual in the custody of the Bureau of Prisons or the United States Marshals Service who has been charged with or convicted of an offense against the United States, including such an individual who is imprisoned in a State institution; and

(6) the term ''privileged electronic communication'' means—

(A) any electronic communication between an incarcerated person and a potential, current, or former attorney or legal representative of such a person; and

(B) any electronic communication between an incarcerated person and the agent of an attorney or legal representative described in subparagraph (A).

SEC. 207. COVID–19 CORRECTIONAL FACILITY EMERGENCY RESPONSE ACT OF 2020.

Title I of the Omnibus Crime Control and Safe Streets Act of 1968 (34 U.S.C. 10101 et seq.) is amended by adding at the end the following:

''PART OO—PANDEMIC CORRECTIONAL FACILITY EMERGENCY RESPONSE

''SEC. 3061. FINDINGS; PURPOSES.

''(a) IMMEDIATE RELEASE OF VULNERABLE AND LOW-RISK INDIVIDUALS.—The purpose of the grant program under section 3062 is to provide for the testing, initiation and transfer to treatment in the community, and provision of services in the community, by States and units of local government as they relate to preventing, detecting, and stopping the spread of COVID–19 in correctional facilities.

''(b) PRETRIAL CITATION AND RELEASE.—

''(1) FINDINGS.—Congress finds as follows:

''(A) With the dramatic growth in pretrial detention resulting in county and city correctional facilities regularly exceeding capacity, such correctional facilities may serve to rapidly increase the spread of COVID–19, as facilities that hold large numbers of individuals in congregant living situations may promote the spread of COVID–19.

''(B) While individuals arrested and processed at local correctional facilities may only be held for hours or days, exposure to large number of individuals in holding cells and courtrooms promotes the spread of COVID–19.

''(C) Pretrial detainees and individuals in correctional facilities are then later released into the community having being exposed to COVID–19.

''(2) PURPOSE.—The purpose of the grant program under section 3065 is to substantially increase the use of risk-based citation release for all individuals who do not present a public safety risk.

''SEC. 3062. IMMEDIATE RELEASE OF VULNERABLE AND LOW-RISK INDIVIDUALS.

''(a) AUTHORIZATION.—The Attorney General shall carry out a grant program to make grants to States and units of local government that operate correctional facilities, to establish and implement policies and procedures to prevent, detect, and stop the presence and spread of COVID–19 among arrestees, detainees, inmates, correctional facility staff, and visitors to the facilities.

''(b) PROGRAM ELIGIBILITY.—

''(1) IN GENERAL.—Eligible applicants under this section are States and units of local government that release or have a plan to release the persons described in paragraph (2) from custody in order to ensure that, not later than 90 days after enactment of this section, the total population of arrestees, detainees, and inmates at a correctional facility does not exceed the number established under subsection (c).

''(2) PERSONS DESCRIBED.—A person described in this paragraph is a person who, taking into account the person's offense of conviction—

''(A) does not pose a risk of serious, imminent injury to a reasonably identifiable person; or

''(B) is—

''(i) 50 years of age or older;

''(ii) a juvenile;

''(iii) an individual with serious chronic medical conditions, including heart disease, cancer, diabetes, HIV, sickle cell anemia, a neurological disease that interferes with the ability to cough or breathe, chronic lung disease, asthma, or respiratory illness;

''(iv) a pregnant woman;

''(v) an individual who is immunocompromised or has a weakened immune system; or

''(vi) an individual who has a health condition or disability that makes them vulnerable to COVID–19.

''(c) TARGET CORRECTIONAL POPULATION.—

''(1) TARGET POPULATION.—An eligible applicant shall establish individualized, facility-specific target capacities at each correction facility that will receive funds under this section that reflect the maximum number of individuals who may be incarcerated safely in accordance with the Centers for Disease Control and Prevention guidelines for correctional facilities pertaining to COVID–19, with consideration given to Centers for Disease Control and Prevention guidelines pertaining to community-based physical distancing, hygiene, and sanitation. A correctional facility receiving funds under this section may not use isolation in a punitive or non-medical manner as a way of achieving specific target capacities established under this paragraph.

''(2) CERTIFICATION.—An eligible applicant shall include in its application for a grant under this section a certification by a public health professional who is certified in epidemiology or infectious diseases that each correctional facility that will receive funds under this section in its jurisdiction meets the appropriate target capacity standard established under paragraph (1).

''(d) AUTHORIZED USES.—Funds awarded pursuant to this section shall be used by grantees (including acting through nonprofit entities) to—

''(1) test all arrestees, detainees, and inmates, and initiate treatment for COVID–19, and transfer such an individual for an appropriate treatment at external medical facility, as needed;

''(2) test for COVID–19—

''(A) correctional facility staff;

''(B) volunteers;

''(C) visitors, including family members and attorneys;

''(D) court personnel that have regular contact with arrestees, detainees, and inmates;

''(E) law enforcement officers who transport arrestees, detainees, and inmates; and

''(F) personnel outside the correctional facility who provide medical treatment to arrestees, detainees, and inmates;

''(3) curtail booking and in-facility processing for individuals who have committed technical parole or probation violations; and

''(4) provide transition and reentry support services to individuals released pursuant to this section, including programs that—

''(A) increase access to and participation in reentry services;

''(B) promote a reduction in recidivism rates;

''(C) facilitate engagement in educational programs, job training, or employment;

''(D) place reentering individuals in safe and sanitary temporary transitional housing;

''(E) facilitate the enrollment of reentering individuals with a history of substance use disorder in medication-assisted treatment and a referral to overdose prevention services, mental health services, or other medical services; and

''(F) facilitate family reunification or support services, as needed.

''(e) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated $500,000,000 to carry out this section and section 3065 for each of fiscal years 2020 and 2021.

''SEC. 3063. JUVENILE SPECIFIC SERVICES.

''(a) IN GENERAL.—The Attorney General, acting through the Administrator of the Office Juvenile Justice and Delinquency Prevention, consistent with section 261 of the Juvenile Justice and Delinquency Prevention Act of 1974 (34 U.S.C. 11171), is authorized to make grants to States and units of local government or combinations thereof to assist them in planning, establishing, operating, coordinating, and evaluating projects directly, or through grants and contracts with public and private agencies and nonprofit entities (as such term is defined under section 408(5)(A) of the Juvenile Justice and Delinquency Prevention Act of 1974 (34 U.S.C. 11296(5)(A))), for the development of more effective education, training, research, prevention, diversion, treatment, and rehabilitation programs in the area of juvenile delinquency and programs to improve the juvenile justice system, consistent with subsection (b).

''(b) USE OF GRANT FUNDS.—Grants under this section shall be used for the exclusive purpose of providing juvenile specific services that—

''(1) provide rapid mass testing for COVID–19 in juvenile facilities, notification of the results of such tests to juveniles and authorized family members or legal guardians, and include policies and procedures for non-punitive quarantine that does not involve solitary confinement, and provide for examination by a doctor for any juvenile who tests positive for COVID–19;

''(2) examine all pre- and post-adjudication release processes and mechanisms applicable to juveniles and begin employing these as quickly as possible;

''(3) provide juveniles in out of home placements with continued access to appropriate education;

''(4) provide juveniles with access to legal counsel through confidential visits or teleconferencing;

''(5) provide staff and juveniles with appropriate personal protective equipment, hand washing facilities, toiletries, and medical care to reduce the spread of the virus;

''(6) provide juveniles with frequent and no cost calls home to parents, legal guardians, and other family members;

''(7) advance policies and procedures for juvenile delinquency program proceedings (including court proceedings) and probation conditions so that in-person reporting requirements for juveniles are replaced with virtual or telephonic appearances without penalty;

''(8) expand opportunities for juveniles to participate in community based services and social services through videoconferencing or teleconferencing; or

''(9) place a moratorium on all requirements for juveniles to attend and pay for court and probation-ordered programs, community service, and labor, that violate any applicable social distancing or stay at home order.

Each element described in paragraph (1) through (9) shall be trauma-informed, reflect the science of adolescent development, and be designed to meet the needs of at-risk juveniles and juveniles who come into contact with the justice system.

''(c) DEFINITIONS.—Terms used in this section have the meanings given such terms in the Juvenile Justice and Delinquency Prevention Act of 1974. The term 'juvenile' has the meaning given such term in section 1809 of this Act.

''(d) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $75,000,000 for each of fiscal years 2020 and 2021.

''SEC. 3064. RAPID COVID–19 TESTING.

''(a) IN GENERAL.—The Attorney General shall make grants to grantees under section 3062 for the exclusive purpose of providing for rapid COVID–19 testing of arrestees, detainees, and inmates who are exiting the custody of a correctional facility prior to returning to the community.

''(b) USE OF FUNDS.—Grants provided under this section may be used for any of the following:

''(1) Purchasing or leasing medical devices authorized by the U.S. Food and Drug Administration to detect COVID–19 that produce results in less than one hour.

''(2) Purchasing or securing COVID–19 testing supplies and personal protective equipment used by the correctional facility to perform such tests.

''(3) Contracting with medical providers to administer such tests.

''(c) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $25,000,000 for each of fiscal years 2020 and 2021.

''SEC. 3065. PRETRIAL CITATION AND RELEASE.

''(a) AUTHORIZATION.—The Attorney General shall make grants under this section to eligible applicants for the purposes set forth in section 3061(b)(2).

''(b) PROGRAM ELIGIBILITY.—Eligible applicants under this section are States and units of local government that implement or continue operation of a program described in subsection (c)(1) and not fewer than 2 of the other programs enumerated in such subsection.

''(c) USE OF GRANT FUNDS.—A grantee shall use amounts provided as a grant under this section for programs that provide for the following:

''(1) Adopting and operating a cite-and-release process for individuals who are suspected of committing misdemeanor and felony offenses and who do not pose a risk of serious, imminent injury to a reasonably identifiable person.

''(2) Curtailing booking and in-facility processing for individuals who have committed technical parole or probation violations.

''(3) Ensuring that defense counsel is appointed at the earliest hearing that could result in pretrial detention so that low-risk defendants are not unnecessarily further exposed to COVID–19.

''(4) Establishing early review of charges by an experienced prosecutor, so only arrestees and detainees who will be charged are detained.

''(5) Providing appropriate victims' services supports and safety-focused residential accommodations for victims and community members who have questions or concerns about releases described in this subsection.

''SEC. 3066. REPORT.

''(a) IN GENERAL.—Not later than 6 months after the date on which grants are initially made under this part, and biannually thereafter during the grant period, the Attorney General shall submit to Congress a report on the program, which shall include—

''(1) the number of grants made, the number of grantees, and the amount of funding distributed to each grantee pursuant to this part;

''(2) the location of each correctional facility where activities are carried out using grant amounts;

''(3) the number of persons in the custody of correctional facilities where activities are carried out using grant amounts, including incarcerated persons released on parole, community supervision, good time or early release, clemency or commutation, as a result of the national emergency under the National Emergencies Act (50 U.S.C. 1601 et seq.) declared by the President with respect to the Coronavirus Disease 2019 ('COVID–19'), disaggregated by type of offense, age, race, sex, and ethnicity; and

''(4) for each facility receiving funds under section 3062—

''(A) the total number of tests for COVID–19 performed;

''(B) the results of such COVID–19 tests (confirmed positive or negative);

''(C) the total number of probable COVID–19 infections;

''(D) the total number of COVID–19-related hospitalizations, the total number of intensive care unit admissions, and the duration of each such hospitalization;

''(E) recoveries from COVID–19; and

''(F) COVID–19 deaths,

disaggregated by race, ethnicity, age, disability, sex, pregnancy status, and whether the individual is a staff member of or incarcerated at the facility.

''(b) PRIVACY.—Data reported under this section shall be reported in accordance with applicable privacy laws and regulations.

''SEC. 3067. NO MATCHING REQUIRED.

''The Attorney General shall not require grantees to provide any matching funds with respect to the use of funds under this part.

''SEC. 3068. DEFINITION.

''For purposes of this part:

''(1) CORRECTIONAL FACILITY.—The term 'correctional facility' includes a juvenile facility.

''(2) COVERED EMERGENCY PERIOD.—The term 'covered emergency period' has the meaning given the term in section 12003 of the CARES Act (Public Law 116–136).

''(3) COVID–19.—The term 'COVID–19' means a disease caused by severe acute respiratory syndrome coronavirus 2 (SARS–CoV–2).

''(4) DETAINEE; ARRESTEE; INMATE.—The terms 'detainee', 'arrestee', and 'inmate' each include juveniles.''.

SEC. 208. MORATORIUM ON FEES AND FINES.

(a) IN GENERAL.—During the covered emergency period, and for fiscal years 2020, 2021, and 2022, the Attorney General is authorized make grants to State and local courts that comply with the requirement under subsection (b) to ensure that such recipients are able to continue operations.

(b) REQUIREMENT TO IMPOSE MORATORIUM ON IMPOSITION AND COLLECTION OF FEES AND FINES.—To be eligible for a grant under this section, a court shall implement a moratorium on the imposition and collection (including by a unit of local government or a State) of fees and fines imposed by that court—

(1) not later than 120 day after the date of the enactment of this section;

(2) retroactive to a period beginning 30 days prior the covered emergency period; and

(3) continuing for an additional 90 days after the date the covered emergency period terminates.

(c) GRANT AMOUNT.—In making grants under this section, the Attorney General shall—

(1) give preference to applicants that implement a moratorium on the imposition and collection of fines and fees related to juvenile delinquency proceedings for each of fiscal years 2020 through 2022; and

(2) make such grants in amounts that are proportionate to the number of individuals in the jurisdiction of the court.

(d) USE OF FUNDS.—Funds made available under this section may be used to ensure that the recipient is able to continue court operations during the covered emergency period.

(e) NO MATCHING REQUIREMENT.—There is no matching requirement for grants under this section.

(f) DEFINITIONS.—In this section:

(1) The term ''fees''—

(A) means monetary fees that are imposed for the costs of fine surcharges or court administrative fees; and

(B) includes additional late fees, payment-plan fees, interest added if an individual is unable to pay a fine in its entirety, collection fees, and any additional amounts that do not include the fine.

(2) The term ''fines'' means monetary fines imposed as punishment.

(g) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out this section $150,000,000 for each of fiscal years 2020 through 2022.

SEC. 209. DEFINITION.

In this title, the term ''covered emergency period'' has the meaning given the term in section 12003 of the CARES Act (Public Law 116–136).

SEC. 210. SEVERABILITY.

If any provision of this title or any amendment made by this title, or the application of a provision or amendment to any person or circumstance, is held to be invalid, the remainder of this title and the amendments made by this title, and the application of the provisions and amendments to any other person not similarly situated or to other circumstances, shall not be affected by the holding.

TITLE III—VICTIMS OF CRIME ACT AMENDMENTS

SEC. 301. SHORT TITLE.

This title may be cited as the ''Victims of Crime Act Fix Act of 2020''.

SEC. 302. DEPOSITS OF FUNDING INTO THE CRIME VICTIMS FUND.

Section 1402(b) of the Victims of Crime Act of 1984 (34 U.S.C. 20101(b)) is amended—

(1) in paragraph (4), by striking ''and'' at the end;

(2) in paragraph (5), by striking the period at the end and inserting ''; and''; and

(3) by adding at the end the following:

''(6) any funds that would otherwise be deposited in the general fund of the Treasury collected as pursuant to—

''(A) a deferred prosecution agreement; or

''(B) a non-prosecution agreement.''.

SEC. 303. WAIVER OF MATCHING REQUIREMENT.

(a) IN GENERAL.—Notwithstanding any other provision of VOCA, during the COVID–19 emergency period and for the period ending one year after the date on which such period expires or is terminated, the Attorney General, acting through the Director of the Office for Victims of Crime, may not impose any matching requirement as a condition of receipt of funds under any program to provide assistance to victims of crimes authorized under the Victims of Crime Act of 1984 (34 U.S.C. 20101 et seq.).

(b) DEFINITION.—In this section, the term ''COVID–19 emergency period'' means the period beginning on the date on which the President declared a national emergency under the National Emergencies Act (50 U.S.C. 1601 et seq.) with respect to the Coronavirus Disease 2019 (COVID–19) and ending on the date that is 30 days after the date on which the national emergency declaration is terminated.

(c) APPLICATION.—This section shall apply with respect to—

(1) applications submitted during the period described under subsection (a), including applications for which funds will be distributed after such period; and

(2) distributions of funds made during the period described under subsection (a), including distributions made pursuant to applications submitted before such period.

TITLE IV—JABARA-HEYER NO HATE ACT

SEC. 401. SHORT TITLE.

This title may be cited as the ''Jabara-Heyer National Opposition to Hate, Assault, and Threats to Equality Act of 2020'' or the ''Jabara-Heyer NO HATE Act''.

SEC. 402. FINDINGS.

Congress finds the following:

(1) The incidence of violence known as hate crimes or crimes motivated by bias poses a serious national problem.

(2) According to data obtained by the Federal Bureau of Investigation, the incidence of such violence increased in 2017, the most recent year for which data is available.

(3) In 1990, Congress enacted the Hate Crime Statistics Act (Public Law 101–275; 28 U.S.C. 534 note) to provide the Federal Government, law enforcement agencies, and the public with data regarding the incidence of hate crime. The Hate Crimes Statistics Act and the Matthew Shepard and James Byrd, Jr. Hate Crimes Prevention Act (division E of Public Law 111–84; 123 Stat. 2835) have enabled Federal authorities to understand and, where appropriate, investigate and prosecute hate crimes.

(4) A more complete understanding of the national problem posed by hate crime is in the public interest and supports the Federal interest in eradicating bias-motivated violence referenced in section 249(b)(1)(C) of title 18, United States Code.

(5) However, a complete understanding of the national problem posed by hate crimes is hindered by incomplete data from Federal, State, and local jurisdictions through the Uniform Crime Reports program authorized under section 534 of title 28, United States Code, and administered by the Federal Bureau of Investigation.

(6) Multiple factors contribute to the provision of inaccurate and incomplete data regarding the incidence of hate crime through the Uniform Crime Reports program. A significant contributing factor is the quality and quantity of training that State and local law enforcement agencies receive on the identification and reporting of suspected bias-motivated crimes.

(7) The problem of crimes motivated by bias is sufficiently serious, widespread, and interstate in nature as to warrant Federal financial assistance to States and local jurisdictions.

(8) Federal financial assistance with regard to certain violent crimes motivated by bias enables Federal, State, and local authorities to work together as partners in the investigation and prosecution of such crimes.

SEC. 403. DEFINITIONS.

In this title:

(1) HATE CRIME.—The term ''hate crime'' means an act described in section 245, 247, or 249 of title 18, United States Code, or in section 901 of the Civil Rights Act of 1968 (42 U.S.C. 3631).

(2) PRIORITY AGENCY.—The term ''priority agency'' means—

(A) a law enforcement agency of a unit of local government that serves a population of not less than 100,000, as computed by the Federal Bureau of Investigation; or

(B) a law enforcement agency of a unit of local government that—

(i) serves a population of not less than 50,000 and less than 100,000, as computed by the Federal Bureau of Investigation; and

(ii) has reported no hate crimes through the Uniform Crime Reports program in each of the 3 most recent calendar years for which such data is available.

(3) STATE.—The term ''State'' has the meaning given the term in section 901 of title I of the Omnibus Crime Control and Safe Streets Act of 1968 (34 U.S.C. 10251).

(4) UNIFORM CRIME REPORTS.—The term ''Uniform Crime Reports'' means the reports authorized under section 534 of title 28, United States Code, and administered by the Federal Bureau of Investigation that compile nationwide criminal statistics for use—

(A) in law enforcement administration, operation, and management; and

(B) to assess the nature and type of crime in the United States.

(5) UNIT OF LOCAL GOVERNMENT.—The term ''unit of local government'' has the meaning given the term in section 901 of title I of the Omnibus Crime Control and Safe Streets Act of 1968 (34 U.S.C. 10251).

SEC. 404. REPORTING OF HATE CRIMES.

(a) IMPLEMENTATION GRANTS.—

(1) IN GENERAL.—The Attorney General may make grants to States and units of local government to assist the State or unit of local government in implementing the National Incident-Based Reporting System, including to train employees in identifying and classifying hate crimes in the National Incident-Based Reporting System.

(2) PRIORITY.—In making grants under paragraph (1), the Attorney General shall give priority to States and units of local government with larger populations.

(b) REPORTING.—

(1) COMPLIANCE.—

(A) IN GENERAL.—Except as provided in subparagraph (B), in each fiscal year beginning after the date that is 3 years after the date on which a State or unit of local government first receives a grant under subsection (a), the State or unit of local government shall provide to the Attorney General, through the Uniform Crime Reporting system, information pertaining to hate crimes committed in that jurisdiction during the preceding fiscal year.

(B) EXTENSIONS; WAIVER.—The Attorney General—

(i) may provide a 120-day extension to a State or unit of local government that is making good faith efforts to comply with subparagraph (A); and

(ii) shall waive the requirements of subparagraph (A) if compliance with that subparagraph by a State or unit of local government would be unconstitutional under the constitution of the State or of the State in which the unit of local government is located, respectively.

(2) FAILURE TO COMPLY.—If a State or unit of local government that receives a grant under subsection (a) fails to substantially comply with paragraph (1) of this subsection, the State or unit of local government shall repay the grant in full, plus reasonable interest and penalty charges allowable by law or established by the Attorney General.

SEC. 405. GRANTS FOR STATE-RUN HATE CRIME HOTLINES.

(a) GRANTS AUTHORIZED.—

(1) IN GENERAL.—The Attorney General shall make grants to States to create State-run hate crime reporting hotlines.

(2) GRANT PERIOD.—A grant made under paragraph (1) shall be for a period of not more than 5 years.

(b) HOTLINE REQUIREMENTS.—A State shall ensure, with respect to a hotline funded by a grant under subsection (a), that—

(1) the hotline directs individuals to—

(A) law enforcement if appropriate; and

(B) local support services;

(2) any personally identifiable information that an individual provides to an agency of the State through the hotline is not directly or indirectly disclosed, without the consent of the individual, to—

(A) any other agency of that State;

(B) any other State;

(C) the Federal Government; or

(D) any other person or entity;

(3) the staff members who operate the hotline are trained to be knowledgeable about—

(A) applicable Federal, State, and local hate crime laws; and

(B) local law enforcement resources and applicable local support services; and

(4) the hotline is accessible to—

(A) individuals with limited English proficiency, where appropriate; and

(B) individuals with disabilities.

(c) BEST PRACTICES.—The Attorney General shall issue guidance to States on best practices for implementing the requirements of subsection (b).

SEC. 406. INFORMATION COLLECTION BY STATES AND UNITS OF LOCAL GOVERNMENT.

(a) DEFINITIONS.—In this section:

(1) APPLICABLE AGENCY.—The term ''applicable agency'', with respect to an eligible entity that is—

(A) a State, means—

(i) a law enforcement agency of the State; and

(ii) a law enforcement agency of a unit of local government within the State that—

(I) is a priority agency; and

(II) receives a subgrant from the State under this section; and

(B) a unit of local government, means a law enforcement agency of the unit of local government that is a priority agency.

(2) COVERED AGENCY.—The term ''covered agency'' means—

(A) a State law enforcement agency; or

(B) a priority agency.

(3) ELIGIBLE ENTITY.—The term ''eligible entity'' means—

(A) a State; or

(B) a unit of local government that has a priority agency.

(b) GRANTS.—

(1) IN GENERAL.—The Attorney General may make grants to eligible entities to assist covered agencies within the jurisdiction of the eligible entity in conducting law enforcement activities or crime reduction programs to prevent, address, or otherwise respond to hate crime, particularly as those activities or programs relate to reporting hate crimes through the Uniform Crime Reports program, including—

(A) adopting a policy on identifying, investigating, and reporting hate crimes;

(B) developing a standardized system of collecting, analyzing, and reporting the incidence of hate crime;

(C) establishing a unit specialized in identifying, investigating, and reporting hate crimes;

(D) engaging in community relations functions related to hate crime prevention and education such as—

(i) establishing a liaison with formal community-based organizations or leaders; and

(ii) conducting public meetings or educational forums on the impact of hate crimes, services available to hate crime victims, and the relevant Federal, State, and local laws pertaining to hate crimes; and

(E) providing hate crime trainings for agency personnel.

(2) SUBGRANTS.—A State that receives a grant under paragraph (1) may award a subgrant to a priority agency of a unit of local government within the State for the purposes under that paragraph.

(c) INFORMATION REQUIRED OF STATES AND UNITS OF LOCAL GOVERNMENT.—

(1) IN GENERAL.—For each fiscal year in which an eligible entity receives a grant under subsection (b), the eligible entity shall—

(A) collect information from each applicable agency summarizing the law enforcement activities or crime reduction programs conducted by the agency to prevent, address, or otherwise respond to hate crime, particularly as those activities or programs relate to reporting hate crimes through the Uniform Crime Reports program; and

(B) submit to the Attorney General a report containing the information collected under subparagraph (A).

(2) SEMIANNUAL LAW ENFORCEMENT AGENCY REPORT.—

(A) IN GENERAL.—In collecting the information required under paragraph (1)(A), an eligible entity shall require each applicable agency to submit a semiannual report to the eligible entity that includes a summary of the law enforcement activities or crime reduction programs conducted by the agency during the reporting period to prevent, address, or otherwise respond to hate crime, particularly as those activities or programs relate to reporting hate crimes through the Uniform Crime Reports program.

(B) CONTENTS.—In a report submitted under subparagraph (A), a law enforcement agency shall, at a minimum, disclose—

(i) whether the agency has adopted a policy on identifying, investigating, and reporting hate crimes;

(ii) whether the agency has developed a standardized system of collecting, analyzing, and reporting the incidence of hate crime;

(iii) whether the agency has established a unit specialized in identifying, investigating, and reporting hate crimes;

(iv) whether the agency engages in community relations functions related to hate crime, such as—

(I) establishing a liaison with formal community-based organizations or leaders; and

(II) conducting public meetings or educational forums on the impact of hate crime, services available to hate crime victims, and the relevant Federal, State, and local laws pertaining to hate crime; and

(v) the number of hate crime trainings for agency personnel, including the duration of the trainings, conducted by the agency during the reporting period.

(d) COMPLIANCE AND REDIRECTION OF FUNDS.—

(1) IN GENERAL.—Except as provided in paragraph (2), beginning not later than 1 year after the date of enactment of this title, an eligible entity receiving a grant under subsection (b) shall comply with subsection (c).

(2) EXTENSIONS; WAIVER.—The Attorney General—

(A) may provide a 120-day extension to an eligible entity that is making good faith efforts to collect the information required under subsection (c); and

(B) shall waive the requirements of subsection (c) for a State or unit of local government if compliance with that subsection by the State or unit of local government would be unconstitutional under the constitution of the State or of the State in which the unit of local government is located, respectively.

SEC. 407. REQUIREMENTS OF THE ATTORNEY GENERAL.

(a) INFORMATION COLLECTION AND ANALYSIS; REPORT.—In order to improve the accuracy of data regarding the incidence of hate crime provided through the Uniform Crime Reports program, and promote a more complete understanding of the national problem posed by hate crime, the Attorney General shall—

(1) collect and analyze the information provided by States and units of local government under section 406 for the purpose of developing policies related to the provision of accurate data obtained under the Hate Crime Statistics Act (Public Law 101–275; 28 U.S.C. 534 note) by the Federal Bureau of Investigation; and

(2) for each calendar year beginning after the date of enactment of this title, publish and submit to Congress a report based on the information collected and analyzed under paragraph (1).

(b) CONTENTS OF REPORT.—A report submitted under subsection (a) shall include—

(1) a qualitative analysis of the relationship between—

(A) the number of hate crimes reported by State law enforcement agencies or priority agencies through the Uniform Crime Reports program; and

(B) the nature and extent of law enforcement activities or crime reduction programs conducted by those agencies to prevent, address, or otherwise respond to hate crime; and

(2) a quantitative analysis of the number of State law enforcement agencies and priority agencies that have—

(A) adopted a policy on identifying, investigating, and reporting hate crimes;

(B) developed a standardized system of collecting, analyzing, and reporting the incidence of hate crime;

(C) established a unit specialized in identifying, investigating, and reporting hate crimes;

(D) engaged in community relations functions related to hate crime, such as—

(i) establishing a liaison with formal community-based organizations or leaders; and

(ii) conducting public meetings or educational forums on the impact of hate crime, services available to hate crime victims, and the relevant Federal, State, and local laws pertaining to hate crime; and

(E) conducted hate crime trainings for agency personnel during the reporting period, including—

(i) the total number of trainings conducted by each agency; and

(ii) the duration of the trainings described in clause (i).

SEC. 408. ALTERNATIVE SENTENCING.

Section 249 of title 18, United States Code, is amended by adding at the end the following:

''(e) SUPERVISED RELEASE.—If a court includes, as a part of a sentence of imprisonment imposed for a violation of subsection (a), a requirement that the defendant be placed on a term of supervised release after imprisonment under section 3583, the court may order, as an explicit condition of supervised release, that the defendant undertake educational classes or community service directly related to the community harmed by the defendant's offense.''.

TITLE V—BANKRUPTCY PROTECTIONS

SEC. 501. BANKRUPTCY PROTECTIONS.

(a) BANKRUPTCY PROTECTIONS FOR FEDERAL CORONAVIRUS RELIEF PAYMENTS.—Section 541(b) of title 11, United States Code, is amended—

(1) in paragraph (9), in the matter following subparagraph (B), by striking ''or'';

(2) in paragraph (10)(C), by striking the period at the end and inserting ''; or''; and

(3) by inserting after paragraph (10) the following:

''(11) payments made under Federal law relating to the national emergency declared by the President under the National Emergencies Act (50 U.S.C. 1601 et seq.) with respect to the coronavirus disease 2019 (COVID–19).''.

(b) PROTECTION AGAINST DISCRIMINATORY TREATMENT OF HOMEOWNERS IN BANKRUPTCY.—Section 525 of title 11, United States Code, is amended by adding at the end the following:

''(d) A person may not be denied any forbearance, assistance, or loan modification relief made available to borrowers by a mortgage creditor or servicer because the person is or has been a debtor, or has received a discharge, in a case under this title.''.

(c) INCREASING THE HOMESTEAD EXEMPTION.—Section 522 of title 11, United States Code, is amended—

(1) in subsection (d)(1), by striking ''$15,000'' and inserting ''$100,000''; and

(2) by adding at the end the following:

''(r) Notwithstanding any other provision of applicable nonbankruptcy law, a debtor in any State may exempt from property of the estate the property described in subsection (d)(1) not to exceed the value in subsection (d)(1) if the exemption for such property permitted by applicable nonbankruptcy law is lower than that amount.''.

(d) EFFECT OF MISSED MORTGAGE PAYMENTS ON DISCHARGE.—Section 1328 of title 11, United States Code, is amended by adding at the end the following:

''(i) A debtor shall not be denied a discharge under this section because, as of the date of discharge, the debtor did not make 6 or fewer payments directly to the holder of a debt secured by real property.

''(j) Notwithstanding subsections (a) and (b), upon the debtor's request, the court shall grant a discharge of all debts provided for in the plan that are dischargeable under subsection (a) if the debtor—

''(1) has made payments under a confirmed plan for at least 1 year; and

''(2) is experiencing or has experienced a material financial hardship due, directly or indirectly, to the coronavirus disease 2019 (COVID–19) pandemic.''.

(e) EXPANDED ELIGIBILITY FOR CHAPTER 13.—Section 109(e) of title 11, United States Code, is amended—

(1) by striking ''$250,000'' each place the term appears and inserting ''$850,000''; and

(2) by striking ''$750,000'' each place the term appears and inserting ''$2,600,000''.

(f) EXTENDED CURE PERIOD FOR HOMEOWNERS HARMED BY COVID–19 PANDEMIC.—

(1) IN GENERAL.—Chapter 13 of title 11, United States Code, is amended by adding at the end thereof the following:

''§ 1331. Special provisions related to COVID–19 pandemic

''(a) Notwithstanding subsections (b)(2) and (d) of section 1322, if the debtor is experiencing or has experienced a material financial hardship due, directly or indirectly, to the coronavirus disease 2019 (COVID–19) pandemic, a plan may provide for the curing of any default within a reasonable time, not to exceed 7 years after the time that the first payment under the original confirmed plan was due, and maintenance of payments while the case is pending on any unsecured claim or secured claim on which the last payment is due after the expiration of such time. Any such plan provision shall not affect the applicable commitment period under section 1325(b).

''(b) For purposes of sections 1328(a) and 1328(b), any cure or maintenance payments under subsection (a) that are made after the end of the period during which the plan provides for payments (other than payments under subsection (a)) shall not be treated as payments under the plan.

''(c) Notwithstanding section 1329(c), a plan modified under section 1329 at the debtor's request may provide for cure or maintenance payments under subsection (a) over a period that is not longer than 7 years after the time that the first payment under the original confirmed plan was due.

''(d) Notwithstanding section 362(c)(2), during the period after the debtor receives a discharge and the period during which the plan provides for the cure of any default and maintenance of payments under the plan, section 362(a) shall apply to the holder of a claim for which a default is cured and payments are maintained under subsection (a) and to any property securing such claim.

''(e) Notwithstanding section 1301(a)(2), the stay of section 1301(a) terminates upon the granting of a discharge under section 1328 with respect to all creditors other than the holder of a claim for which a default is cured and payments are maintained under subsection (a).''.

(2) TABLE OF CONTENTS.—The table of sections of chapter 13, title 11, United States Code, is amended by adding at the end thereof the following:

''Sec. 1331. Special provisions related to COVID–19 Pandemic.''.

(3) APPLICATION.—The amendments made by this paragraph shall apply only to any case under title 11, United States Code, commenced before 3 years after the date of enactment of this Act and pending on or commenced after such date of enactment, in which a plan under chapter 13 of title 11, United States Code, was not confirmed before March 27, 2020.

DIVISION U—OTHER MATTERS

TITLE I—PRESUMPTION OF SERVICE CONNECTION FOR CORONAVIRUS DISEASE 2019

SEC. 101. PRESUMPTIONS OF SERVICE-CONNECTION FOR MEMBERS OF ARMED FORCES WHO CONTRACT CORONAVIRUS DISEASE 2019 UNDER CERTAIN CIRCUMSTANCES.

(a) IN GENERAL.—Subchapter VI of chapter 11 of title 38, United States Code, is amended by adding at the end the following new section:

''§ 1164. Presumptions of service-connection for Coronavirus Disease 2019

''(a) PRESUMPTIONS GENERALLY.—(1) For purposes of laws administered by the Secretary and subject to section 1113 of this title, if symptoms of Coronavirus Disease 2019 (in this section referred to as 'COVID–19') described in subsection (d) manifest within one of the manifestation periods described in paragraph (2) in an individual who served in a qualifying period of duty described in subsection (b)—

''(A) infection with severe acute respiratory syndrome coronavirus 2 (in this section referred to as 'SARS–CoV–2') shall be presumed to have occurred during the qualifying period of duty;

''(B) COVID–19 shall be presumed to have been incurred during the qualifying period of duty; and

''(C) if the individual becomes disabled or dies as a result of COVID–19, it shall be presumed that the individual became disabled or died during the qualifying period of duty for purposes of establishing that the individual served in the active military, naval, or air service.

''(2)(A) The manifestation periods described in this paragraph are the following:

''(i) During a qualifying period of duty described in subsection (b), if that period of duty was more than 48 continuous hours in duration.

''(ii) Within 14 days after the individual's completion of a qualifying period of duty described in subsection (b).

''(iii) An additional period prescribed under subparagraph (B).

''(B)(i) If the Secretary determines that a manifestation period of more than 14 days after completion of a qualifying period of service is appropriate for the presumptions under paragraph (1), the Secretary may prescribe that additional period by regulation.

''(ii) A determination under clause (i) shall be made in consultation with the Director of the Centers for Disease Control and Prevention.

''(b) QUALIFYING PERIOD OF DUTY DESCRIBED.—A qualifying period of duty described in this subsection is a period of—

''(1) active duty; or

''(2) the following duty or training not covered by paragraph (1) performed under orders issued on or after March 13, 2020, during the national emergency declared by the President under the National Emergencies Act (50 U.S.C. 1601 et seq.):

''(A) Training duty under title 10.

''(B) Full-time National Guard duty (as defined in section 101 of title 10).

''(c) APPLICATION OF PRESUMPTIONS FOR TRAINING DUTY.—When, pursuant to subsection (a), COVID–19 is presumed to have been incurred during a qualifying period of duty described in subsection (b)(2)—

''(1) COVID–19 shall be deemed to have been incurred in the line of duty during a period of active military, naval, or air service; and

''(2) where entitlement to benefits under this title is predicated on the individual who was disabled or died being a veteran, benefits for disability or death resulting from COVID–19 as described in subsection (a) shall be paid or furnished as if the individual was a veteran, without regard to whether the period of duty would constitute active military, naval, or air service under section 101 of this title.

''(d) SYMPTOMS OF COVID–19.—For purposes of subsection (a), symptoms of COVID–19 are those symptoms that competent medical evidence demonstrates are experienced by an individual affected and directly related to COVID–19.

''(e) MEDICAL EXAMINATIONS AND OPINIONS.—If there is a question of whether the symptoms experienced by an individual described in paragraph (1) of subsection (a) during a manifestation period described in paragraph (2) of such subsection are attributable to COVID–19 resulting from infection with SARS–CoV–2 during the qualifying period of duty, in determining whether a medical examination or medical opinion is necessary to make a decision on the claim within the meaning of section 5103A(d) of this title, a qualifying period of duty described in subsection (b) of this section shall be treated as if it were active military, naval, or air service for purposes of section 5103A(d)(2)(B) of this title.''.

(b) CLERICAL AMENDMENT.—The table of sections at the beginning of such subchapter is amended by adding at the end the following new item:

''1164. Presumptions of service-connection for Coronavirus Disease 2019.''.

TITLE II—CORONAVIRUS RELIEF FUND AMENDMENTS

SEC. 201. CONGRESSIONAL INTENT RELATING TO TRIBAL GOVERNMENTS ELIGIBLE FOR CORONAVIRUS RELIEF FUND PAYMENTS.

(a) PURPOSE.—The purpose of this section and the amendments made by subsection (b) is to clarify the intent of Congress that only Federally recognized Tribal governments are eligible for payments from the Coronavirus Relief Fund established in section 601 of the Social Security Act, as added by section 5001(a) of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136).

(b) ELIGIBLE TRIBAL GOVERNMENTS.—Effective as if included in the enactment of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136), section 601 of the Social Security Act, as added by section 5001(a) of the Coronavirus Aid, Relief, and Economic Security Act, is amended—

(1) in subsection (c)(7), by striking ''Indian Tribes'' and inserting ''Tribal governments''; and

(2) in subsection (g)—

(A) by striking paragraph (1);

(B) by redesignating paragraphs (2) through (5) as paragraphs (1) through (4), respectively; and

(C) by striking paragraph (4) (as redesignated by subparagraph (B)) and inserting the following:

''(4) TRIBAL GOVERNMENT.—The term 'Tribal government' means the recognized governing body of any Indian or Alaska Native tribe, band, nation, pueblo, village, community, component band, or component reservation, individually identified (including parenthetically) in the list published most recently as of the date of enactment of this Act pursuant to section 104 of the Federally Recognized Indian Tribe List Act of 1994 (25 U.S.C. 5131).''.

(c) RULES RELATING TO PAYMENTS MADE BEFORE THE DATE OF ENACTMENT OF THIS ACT.—

(1) PAYMENTS MADE TO INELIGIBLE ENTITIES.—The Secretary of the Treasury shall require any entity that was not eligible to receive a payment from the amount set aside for fiscal year 2020 under subsection (a)(2)(B) of section 601 of the Social Security Act, as added by section 5001(a) of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136) and after the application of the amendments made by subsection (a) clarifying congressional intent relating to eligibility for such a payment, to return the full payment to the Department.

(2) DISTRIBUTION OF PAYMENTS RETURNED BY INELIGIBLE ENTITIES.—The Secretary of the Treasury shall distribute payments returned under paragraph (1), without further appropriation or fiscal year limitation and not later than

7 days after receiving any returned funds as required under paragraph (1) to Tribal governments eligible for payments under such section 601 of the Social Security Act, as amended by subsection (a), in accordance with subsection (c)(7) of such Act.

(3) LIMITATION ON SECRETARIAL AUTHORITY.—The Secretary of the Treasury is prohibited from requiring an entity that is eligible for a payment from the amount set aside for fiscal year 2020 under subsection (a)(2)(B) of section 601 of the Social Security Act, as amended by subsection(a), and that received a payment before the date of enactment of this Act, from requiring the entity to return all or part of the payment except to the extent authorized under section 601(f) of such Act in the case of a determination by the Inspector General of the Department of the Treasury that the Tribal government failed to comply with the use of funds requirements of section 601(d) of such Act.

SEC. 202. REDISTRIBUTION OF AMOUNTS RECOVERED OR RECOUPED FROM PAYMENTS FOR TRIBAL GOVERNMENTS; REPORTING REQUIREMENTS.

Effective as if included in the enactment of the Coronavirus Aid, Relief, and Economic Security Act (Public Law 116–136), section 601(c)(7) of the Social Security Act, as added by section 5001(a) of the Coronavirus Aid, Relief, and Economic Security Act, is amended—

(1) by striking ''From the amount'' and inserting the following:

''(A) IN GENERAL.—From the amount''; and

(2) by adding at the end the following:

''(B) REDISTRIBUTION OF FUNDS.—

''(i) REQUIREMENT.—In carrying out the requirement under subparagraph (A) to ensure that all amounts available under subsection (a)(2)(B) for fiscal year 2020 are distributed to Tribal governments, the Secretary of the Treasury shall redistribute any amounts from payments for Tribal governments that are recovered through recoupment activities carried out by the Inspector General of the Department of the Treasury under subsection (f), without further appropriation, using a procedure and methodology determined by the Secretary in consultation with Tribal governments, to Tribal Governments that apply for payments from such amounts.

''(ii) REPAYMENT.—In carrying out the recoupment activities by the Inspector General of the Department of the Treasury under subsection (f), the Secretary of the Treasury shall not impose any additional fees, penalties, or interest payments on Tribal governments associated with any amounts that are recovered.

''(C) DISCLOSURE AND REPORTING REQUIREMENTS.—

''(i) DISCLOSURE OF FUNDING FORMULA AND METHODOLOGY.—Not later than 24 hours before any payments for Tribal governments are distributed by the Secretary of the Treasury pursuant to the requirements under subparagraph (A) and subparagraph (B), the Secretary shall publish on the website of the Department of the Treasury—

''(I) a detailed description of the funding allocation formula; and

''(II) a detailed description of the procedure and methodology used to determine the funding allocation formula.

''(ii) REPORT ON FUND DISTRIBUTION.—No later than 7 days after payments for Tribal governments are distributed by the Secretary of the Treasury pursuant to the requirements under subparagraph (A) or subparagraph (B), the Secretary shall publish on the website of the Department of the Treasury the date and amount of all fund disbursements, broken down by individual Tribal government recipient.''.

SEC. 203. USE OF RELIEF FUNDS.

Effective as if included in the Coronavirus, Aid, Relief, and Economic Security Act (Public Law 116–136), section 601 of the Social Security Act, as added by section 5001(a) of such Act, is amended by striking subsection (d) and inserting the following:

''(d) USE OF FUNDS.—A State, Tribal government, and unit of local government shall use the funds provided under a payment made under this section to

''(1) cover only those costs of the State, Tribal government, or unit of local government that—

''(A) Are necessary expenditures incurred due to the public health emergency with respect to the coronavirus disease 2019 (COVID–19);

''(B) were not accounted for in the budget most recently approved as of the date of enactment of this section for the State or government; and

''(C) were incurred during the period that begins on January 31, 2020, and ends on December 31, 2021; or

''(2) Replace lost, delayed, or decreased revenues, stemming from the public health emergency with respect to the coronavirus disease (COVID–19).''.

TITLE III—ENERGY AND ENVIRONMENT PROVISIONS

SEC. 301. HOME ENERGY AND WATER SERVICE CONTINUITY.

Any entity receiving financial assistance pursuant to any division of this Act shall, to the maximum extent practicable, establish or maintain in effect policies to ensure that no home energy service or public water system service to a residential customer, which is provided or regulated by such entity, is or remains disconnected or interrupted during the emergency period described in section 1135(g)(1)(B) of the Social Security Act because of nonpayment, and all reconnections of such public water system service are conducted in a manner that minimizes risk to the health of individuals receiving such service. For purposes of this section, the term ''home energy service'' means a service to provide home energy, as such term is defined in section 2603 of the Low-Income Home Energy Assistance Act of 1981, or service provided by an electric utility, as such term is defined in section 3 of the Public Utility Regulatory Policies Act of 1978, and the term ''public water system'' has the meaning given that term in section 1401 of the Safe Drinking Water Act. Nothing in this section shall be construed to require forgiveness of any debt incurred or owed to an entity or to absolve an individual of any obligation to an entity for service, nor to preempt any State or local law or regulation governing entities that provide such services to residential customers.

SEC. 302. ENVIRONMENTAL JUSTICE GRANT PROGRAMS.

(a) ENVIRONMENTAL JUSTICE GRANTS.—The Administrator of the Environmental Protection Agency shall continue to carry out—

(1) the Environmental Justice Small Grants Program and the Environmental Justice Collaborative Problem-Solving Cooperative Agreement Program, as those programs are in existence on the date of enactment of this Act; and

(2) the Community Action for a Renewed Environment grant programs I and II, as in existence on January 1, 2012.

(b) USE OF FUNDS FOR GRANTS IN RESPONSE TO COVID–19 PANDEMIC.—With respect to amounts appropriated by division A of this Act that are available to carry out the programs described in subsection (a), the Administrator of the Environmental Protection Agency may only award grants under such programs for projects that will investigate or address the disproportionate impacts of the COVID–19 pandemic in environmental justice communities.

(c) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated to carry out the programs described in subsection (a) $50,000,000 for fiscal year 2021, and such sums as may be necessary for each fiscal year thereafter.

(d) DISTRIBUTION.—Not later than 30 days after amounts are made available pursuant to subsection (c), the Administrator of the Environmental Protection Agency shall make awards of grants under each of the programs described in subsection (a).

SEC. 303. LOW-INCOME HOUSEHOLD DRINKING WATER AND WASTEWATER ASSISTANCE.

(a) AUTHORIZATION OF APPROPRIATIONS.—There is authorized to be appropriated $1,500,000,000 to the Secretary to carry out this section.

(b) LOW-INCOME HOUSEHOLD DRINKING WATER AND WASTEWATER ASSISTANCE.—The Secretary shall make grants to States and Indian Tribes to assist low-income households, particularly those with the lowest incomes, that pay a high proportion of household income for drinking water and wastewater services, by providing funds to owners or operators of public water systems or treatment works to reduce rates charged to such households for such services.

(c) NONDUPLICATION OF EFFORT.—In carrying out this section, the Secretary, States, and Indian Tribes, as applicable, shall, as appropriate and to the extent practicable, use existing processes, procedures, policies, and systems in place to provide assistance to low-income households, including by using existing application and approval processes.

(d) ALLOTMENT.—

(1) IN GENERAL.—Except as provided in paragraph (2), the Secretary shall allot amounts appropriated pursuant to this section to a State or Indian Tribe based on the following:

(A) The percentage of households in the State, or under the jurisdiction of the Indian Tribe, with income equal to or less than 150 percent of the Federal poverty line.

(B) The percentage of such households in the State, or under the jurisdiction of the Indian Tribe, that spend more than 30 percent of monthly income on housing.

(C) The extent to which the State or Indian Tribe has been affected by the public health emergency, including the rate of transmission of COVID–19 in the State or area over which the Indian Tribe has jurisdiction, the number of COVID–19 cases compared to the national average, and economic disruptions resulting from the public health emergency.

(2) RESERVED FUNDS.—The Secretary shall reserve not more than 10 percent of the amounts appropriated pursuant to this section for allotment to States and Indian Tribes based on the economic disruptions to the States and Indian Tribes resulting from the emergency described in the emergency declaration issued by the President on March 13, 2020, pursuant to section 501(b) of the Robert T. Stafford Disaster Relief and Emergency Assistance Act (42 U.S.C. 5191(b)), during the period covered by such emergency declaration and any subsequent major disaster declaration under section 401 of such Act (42 U.S.C. 5170) that supersedes such emergency declaration.

(e) DETERMINATION OF LOW-INCOME HOUSEHOLDS.—

(1) MINIMUM DEFINITION OF LOW-INCOME.—In determining whether a household is considered low-income for the purposes of this section, a State or Indian Tribe—

(A) shall ensure that, at a minimum—

(i) all households with income equal to or less than 150 percent of the Federal poverty line are included as low-income households; and

(ii) all households with income equal to or less than 60 percent of the State median income are included as low-income households;

(B) may include households that have been adversely economically affected by job loss or severe income loss related to the public health emergency; and

(C) may include other households, including households in which 1 or more individuals are receiving—

(i) assistance under the State program funded under part A of title IV of the Social Security Act (42 U.S.C. 601 et seq.);

(ii) supplemental security income payments under title XVI of the Social Security Act (42 U.S.C. 1381 et seq.);

(iii) supplemental nutrition assistance program benefits under the Food and Nutrition Act of 2008 (7 U.S.C. 2011 et seq.); or

(iv) payments under section 1315, 1521, 1541, or 1542 of title 38, United States Code, or under section 306 of the Veterans' and Survivors' Pension Improvement Act of 1978.

(2) HOUSEHOLD DOCUMENTATION REQUIREMENTS.—States and Indian Tribes shall—

(A) to the maximum extent practicable, seek to limit the income history documentation requirements for determining whether a household is considered low-income for the purposes of this section; and

(B) for the purposes of income eligibility, accept proof of job loss or severe income loss dated after February 29, 2020, such as a layoff or furlough notice or verification of application of unemployment benefits, as sufficient to demonstrate lack of income for an individual or household.

(f) APPLICATIONS.—Each State or Indian Tribe desiring to receive a grant under this section shall submit an application to the Secretary, in such form as the Secretary shall require.

(g) UTILITY RESPONSIBILITIES.—Owners or operators of public water systems or treatment works receiving funds pursuant to this section for the purposes of reducing rates charged to low-income households for service shall—

(1) conduct outreach activities designed to ensure that such households are made aware of the rate assistance available pursuant to this section;

(2) charge such households, in the normal billing process, not more than the difference between the actual cost of the service provided and the amount of the payment made by the State or Indian Tribe pursuant to this section; and

(3) within 45 days of providing assistance to a household pursuant to this section, notify in writing such household of the amount of such assistance.

(h) STATE AGREEMENTS WITH DRINKING WATER AND WASTEWATER PROVIDERS.—To the maximum extent practicable, a State that receives a grant under this section shall enter into agreements with owners and operators of public water systems, owners and operators of treatment works, municipalities, nonprofit organizations associated with providing drinking water, wastewater, and other social services to rural and small communities, and Indian Tribes, to assist in identifying low-income households and to carry out this section.

(i) ADMINISTRATIVE COSTS.—A State or Indian Tribe that receives a grant under this section may use up to 8 percent of the granted amounts for administrative costs.

(j) FEDERAL AGENCY COORDINATION.—In carrying out this section, the Secretary shall coordinate with the Administrator of the Environmental Protection Agency and consult with other Federal agencies with authority over the provision of drinking water and wastewater services.

(k) AUDITS.—The Secretary shall require each State and Indian Tribe receiving a grant under this section to undertake periodic audits and evaluations of expenditures made by such State or Indian Tribe pursuant to this section.

(l) REPORTS TO CONGRESS.—The Secretary shall submit to Congress a report on the results of activities carried out pursuant to this section—

(1) not later than 1 year after the date of enactment of this section; and

(2) upon disbursement of all funds appropriated pursuant to this section.

(m) DEFINITIONS.—In this section:

(1) INDIAN TRIBE.—The term ''Indian Tribe'' means any Indian Tribe, band, group, or community recognized by the Secretary of the Interior and exercising governmental authority over a Federal Indian reservation.

(2) MUNICIPALITY.—The term ''municipality'' has the meaning given such term in section 502 of the Federal Water Pollution Control Act (33 U.S.C. 1362).

(3) PUBLIC HEALTH EMERGENCY.—The term ''public health emergency'' means the public health emergency described in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b–5).

(4) PUBLIC WATER SYSTEM.—The term ''public water system'' has the meaning given such term in section 1401 of the Safe Drinking Water Act (42 U.S.C. 300f).

(5) SECRETARY.—The term ''Secretary'' means the Secretary of Health and Human Services.

(6) STATE.—The term ''State'' means a State, the District of Columbia, the Commonwealth of Puerto Rico, the Virgin Islands of the United States, Guam, American Samoa, and the Commonwealth of the Northern Mariana Islands.

(7) TREATMENT WORKS.—The term ''treatment works'' has the meaning given that term in section 212 of the Federal Water Pollution Control Act (33 U.S.C. 1292).

SEC. 304. HOME WATER SERVICE CONTINUITY.

(a) CONTINUITY OF SERVICE.—Any entity receiving financial assistance under division A of this Act shall, to the maximum extent practicable, establish or maintain in effect policies to ensure that, with respect to any service provided by a public water system or treatment works to an occupied residence, which service is provided or regulated by such entity—

(1) no such service is or remains disconnected or interrupted during the emergency period because of nonpayment;

(2) all reconnections of such service are conducted in a manner that minimizes risk to the health of individuals receiving such service; and

(3) no fees for late payment of bills for such service are charged or accrue during the emergency period.

(b) EFFECT.—Nothing in this section shall be construed to require forgiveness of outstanding debt owed to an entity or to absolve an individual of any obligation to an entity for service.

(c) DEFINITIONS.—In this section:

(1) EMERGENCY PERIOD.—The term ''emergency period'' means the emergency period described in section 1135(g)(1)(B) of the Social Security Act (42 U.S.C. 1320b–5).

(2) PUBLIC WATER SYSTEM.—The term ''public water system'' has the meaning given such term in section 1401 of the Safe Drinking Water Act (42 U.S.C. 300f).

(3) TREATMENT WORKS.—The term ''treatment works'' has the meaning given that term in section 212 of the Federal Water Pollution Control Act (33 U.S.C. 1292).

TITLE IV—MISCELLANEOUS MATTERS

SEC. 401. TECHNICAL CORRECTIONS AND CLARIFICATION.

(a) Section 4002 of the CARES Act (Public Law 116–136; 15 U.S.C. 9041) is amended by adding at the end the following new paragraph:

''(13) BUSINESSES CRITICAL TO MAINTAINING NATIONAL SECURITY.—The term 'businesses critical to maintaining national security' includes businesses that manufacture and produce aerospace-related products, civil or defense, including those that design, integrate, assemble, supply, maintain and repair such products, and other businesses as further defined by the Secretary, in consultation with the Secretary of Defense and the Secretary of Transportation. For purposes of the preceding sentence, aerospace-related products include, but are not limited to, components, parts, or systems of aircraft, aircraft engines, or appliances for inclusion in an aircraft, aircraft engine, or appliance.''.

SEC. 402. TRADE OF INJURIOUS SPECIES AND SPECIES THAT POSE A RISK TO HUMAN HEALTH.

Section 42 of title 18, United States Code, is amended—

(1) in subsection (a)—

(A) in paragraph (1)—

(i) by inserting ''or any interstate transport between States within the continental United States,'' after ''shipment between the continental United States, the District of Columbia, Hawaii, the Commonwealth of Puerto Rico, or any possession of the United States,''; and

(ii) by striking ''to be injurious to human beings, to the interests of agriculture'' and inserting ''to be injurious to or to transmit a pathogen that can cause disease in humans, to be injurious to the interests of agriculture''; and

(B) by adding at the end the following:

''(6) In the case of an emergency posing a significant risk to the health of humans, the Secretary of the Interior may designate a species by interim final rule. At the time of publication of the regulation in the Federal Register, the Secretary shall publish therein detailed reasons why such regulation is necessary, and in the case that such regulation applies to a native species, the Secretary shall give actual notice of such regulation to the State agency in each State in which such species is believed to occur. Any regulation promulgated under the authority of this paragraph shall cease to have force and effect at the close of the 365-day period following the date of publication unless, during such 365-day period, the rulemaking procedures which would apply to such regulation without regard to this paragraph are complied with. If at any time after issuing an emergency regulation the Secretary determines, on the basis of the best appropriate data available to the Secretary, that substantial evidence does not exist to warrant such regulation, the Secretary shall withdraw it.

''(7) Not more than 90 days after receiving a petition of an interested person under section 553(e) of title 5, United States Code, to determine that a species is injurious under this section, the Secretary of the Interior shall determine whether such petition has scientific merit. If the Secretary determines a petition has scientific merit, such Secretary shall make a determination regarding such petition not more than 12 months after the date such Secretary received such petition.''; and

(2) by amending subsection (b) to read as follows:

''(b) Any person who knowingly imports, ships, or transports any species in violation of subsection (a) of this section and who reasonably should have known that the species at issue in such violation is a species listed in subsection (a) of this section, or in any regulation issued pursuant thereto, shall be fined under this title or imprisoned not more than six months, or both.''.

SEC. 403. RESCISSION OF FUNDS.

Of the unobligated balances available under section 4027 of division A of the CARES Act (Public Law 116–136), $146,000,000,000 is hereby permanently rescinded.

The SPEAKER pro tempore. Pursuant to House Resolution 1161, the motion shall be debatable for 2 hours equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations.

The gentlewoman from New York (Mrs. LOWEY) and the gentlewoman from Texas (Ms. GRANGER) each will control 1 hour.

The Chair recognizes the gentlewoman from New York.

GENERAL LEAVE

Mrs. LOWEY. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous material on the House amendments to the Senate amendments to H.R. 925.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Mrs. LOWEY. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise in strong support of this updated version of the Heroes Act.

The health and economic catastrophe facing our country continues to cry out for urgent action. In May, a bipartisan majority in the House passed the Heroes Act to provide critical support for our country to crush the coronavirus so that we can protect lives and reopen our economy.

Unfortunately, that legislation has lingered for more than 4 months as President Trump continues to downplay the severity of this pandemic.

This updated version of the Heroes Act seeks to meet Republicans halfway while addressing needs that have grown since May. As Speaker PELOSI and Secretary Mnuchin continue their negotiations, the House's consideration of this legislation formalizes this body's proffer in these negotiations.

To that end, we have updated the earlier versions of the Heroes Act by including strengthened support for small businesses, additional assistance for airline industry workers, and more funds for the children, for schools, for postsecondary education, and for childcare.

Near and dear to my heart, we have also added a substantial investment in global public health that will save lives at home and abroad.

Moreover, House Democrats have maintained many of the earlier priorities of the Heroes Act. That includes: $436 billion for State, local, territorial, and Tribal governments to pay vital frontline workers; $75 billion for coronavirus testing, contact tracing, and isolation measures; and $28 billion for procurement, distribution, and education campaigns for a safe and effective vaccine; additional direct payments to families; strong, enforceable workplace safety standards; changes to preserve healthcare for unemployed Americans; an extension of unemployment benefits; housing assistance so renters and homeowners can stay in their homes; food assistance so struggling families can put food on the table; and protections for our democracy, with funding for safe elections, an accurate Census, and the Postal Service.

Mr. Speaker, this legislation represents a compromise that delivers for American families. Negotiations are continuing, and I ardently hope that we can soon return to this floor with a bipartisan agreement.

In the meantime, a strong vote tonight will show our will to act and bring us closer to delivering much-needed relief to American families.

I urge support for this critical legislation, and I reserve the balance of my time.

Ms. GRANGER. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, I rise today in opposition to this bill.

Unfortunately, by considering this bill today, we are abandoning a spirit of bipartisanship that has allowed us to work across the aisle four times this year to pass critical coronavirus relief legislation. This bill was crafted without input from Members on our side of the aisle, and it does not have the support needed to pass the Senate or be signed by the President.

There are some things included that I support, such as helping small businesses that are desperate for a lifeline, enabling the airline industry to continue to pay its employees, providing additional assistance to help schools continue reopening, and increasing testing for the virus.

Yet, I cannot overlook, nor can I overstate, the significant problems I have with this bill.

First, it totals more than $2 trillion, which is more than we appropriate for an entire year.

But what may be even more concerning is that buried in the more than 2,000 pages of text are partisan provisions that are unrelated to the pandemic. These additions will not move us any closer to defeating this virus. In fact, they will only further divide us.

For example, there is language in the bill that encourages State and local governments to release violent criminals in order to get more funding. It prohibits immigration laws from being carried out and enforcement actions to be taken. It enables illegal immigrants to receive direct payments.

It stalls the Census that is required by the law to occur every 10 years.

It imposes sweeping changes to elections and provides more than $3 billion in election assistance grants.

Including so many unnecessary items just to cater to the demands of a few could result in gridlock at a time when compromise and real results are still in reach.

After all the good work we have done together to provide relief and hope to the American people, I am very disappointed that this is the bill that the majority has chosen to bring to the floor.

I hope my colleagues on the other side of the aisle will come back to the negotiating table and work with us to put the needs of the American people first, just as we have done four other times since the beginning of this devastating pandemic.

It is time for our leaders to come together rather than take a vote on this damaging partisan bill.

Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I reserve the balance of my time.

Ms. GRANGER. Mr. Speaker, I yield 2 minutes to the gentleman from Illinois (Mr. RODNEY DAVIS), the ranking member of the House Administration Committee.

Mr. RODNEY DAVIS of Illinois. Mr. Speaker, today we find ourselves in the exact same situation as we were 5 months ago, voting on a so-called coronavirus relief bill filled with 71 pages of Federal election mandates that have nothing to do with providing relief to those impacted by the coronavirus. It is yet another attempt by Democrats to federalize our elections.

The bill mandates States provide same-day registration, 15 days of early voting. It requires specific rules for polling locations, no-excuse vote-by-mail for every person, nationalizes ballot harvesting, and the list of Federal election mandates goes on and on.

Unlike what my Democrat colleagues continue to tell the American people, these provisions have nothing to do with the pandemic because they were part of H.R. 1, which passed the House nearly a year before the pandemic began.

That said, I have a bill, Mr. Speaker, that would address election issues caused by the pandemic. It is called the EASE Act, and I would welcome House Democrats bringing it up for a vote.

Not only am I troubled by this attempt to federalize our elections, but it would change the rules midgame. Many States are already voting, including my home State of Illinois. The U.S. Elections Project estimates that more than a million people have already voted, meaning some people would vote under one set of rules and, if this passed, others would vote under another set of rules. This is not how fair elections are run in the United States.

We have seen what happens when States have last-minute voting changes. It creates mass voter confusion and leads to people being disenfranchised.

This bill becoming law would be a disaster for election administrators and lead to even more confusion surrounding the 2020 election in 33 days, and, ultimately, more people would be disenfranchised.

If this bill was a serious attempt at helping schools reopen safely, businesses keep their employees on payroll, or others impacted by the coronavirus, 71 provisions aimed at federalizing our elections would not be included.

My friends on the other side of the aisle should drop these provisions and offer a clean bill to help our constituents, the parents, business owners, workers, and others who have found their lives turned upside down because of this pandemic.

Mrs. LOWEY. Mr. Speaker, I am pleased to yield 5 minutes to the distinguished gentleman from Virginia (Mr. SCOTT), the chairman of the Committee on Education and Labor.

Mr. SCOTT of Virginia. Mr. Speaker, I rise in support of the bill. And since House Democrats first passed the Heroes Act in May, congressional Republicans and administration officials have refused to advance any meaningful COVID–19 relief plan that would help our community survive this pandemic.

As a result, the American people are continuing to bear the brunt of an economic and public health crisis that is needlessly dragging on and getting worse.

State and local governments are still facing massive budget shortfalls. Without Federal support, these shortfalls will slash public education funding and other critical public services.

School districts are starting the new academic year without resources they need to open safely, keep their staff on payroll, operate high-quality programs remotely, and other things that they need to make sure that our students can become the best that they can be.

Millions of workers are still unemployed and can no longer access the enhanced unemployment benefits that kept them afloat before they expired in July. Those working during the pandemic are suffering from unsafe working conditions with little protection from COVID–19 infections.

Most significantly, more than 7 million Americans have been infected, and over 200,000 have lost their lives due to the pandemic, and we still do not have a coherent strategy to deal with COVID–19.

Moreover, far too many people still do not have access to affordable healthcare as the virus continues to accelerate in 32 States and in Puerto Rico, according to ABC News.

The updated Heroes Act offers us another chance to get meaningful relief into the hands of students, educators, workers, and families.

First, the updated Heroes Act dedicates over $400 billion to help State and local governments avert massive budget shortfalls. You cannot evaluate any relief package without first looking at what you are doing for State and local support. That is because if you don't have State and local support, there will be massive cuts.

For example, budget shortfalls projected right now for State and local governments suggest that education budgets for State and local governments will be cut by hundreds of billions of dollars.

This package protects and expands student access to quality education by increasing the relief for students, K–12 districts, and institutions of higher learning by more than $200 billion.

□ 1700

The updated Heroes Act also ensures that no Federal student loan borrower has to worry about loan payments, interest accrual, or collections through September of next year.

This package also invests $58 billion to save our childcare industry from collapse and ensures essential workers will be able to access affordable childcare and early learning options. The estimates are that, if we don't put $10 billion a month into the childcare industry, it will slowly dissolve.

The updated Heroes Act supports individuals and families hit by the economic downturn of this crisis by putting money directly into their pockets. The legislation includes a second round of stimulus checks and extends the $600 weekly enhanced unemployment benefits through next January, and it also helps in the housing crisis.

To protect workers who have to work during this pandemic, the legislation directs the Occupational Safety and Health Administration to finally issue enforceable Federal workplace standards that protect all workers from contracting COVID–19. Presently, in spite of all the problems in the meatpacking industries, prisons, nursing homes, and healthcare, there is still no enforceable standard to protect workers from COVID–19.

This legislation also puts the medical and family back into medical and family leave, like expanding access to emergency paid FMLA, family leave protections that were passed in previous relief bills.

The legislation also provides access to healthcare by creating a broad, open enrollment period so that individuals and families can obtain coverage through the Affordable Care Act marketplaces and offers enhanced subsidies for many workers who have lost their jobs.

Regrettably, Mr. Speaker, in America, most workers who lose their jobs also lose their health insurance, and this is a safety net to help them maintain their health insurance coverage.

Finally, the legislation provides robust investments in some of our vital community programs such as the Low Income Home Energy Assistance Program, better known as LIHEAP, and the Older Americans Act programs like Meals on Wheels.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mrs. LOWEY. Mr. Speaker, I yield the gentleman from Virginia an additional 1 minute.

Mr. SCOTT of Virginia. The House first passed the Heroes Act 4 months ago because we have a responsibility to help our constituents recover from this global health emergency. Since then, the need has only grown.

Instead of denying the consequences of this pandemic, we must put politics aside and pass this Heroes Act. The economists have told us, if we don't spend the money now, the economic downturn will be much worse in the future, and so we have to pass this bill.

Mr. Speaker, I urge my colleagues to support the legislation, and I urge the Senate to take it up immediately.

Ms. GRANGER. Mr. Speaker, I yield 2 minutes to the gentleman from Florida (Mr. RUTHERFORD), who is a member of the Appropriations Committee.

Mr. RUTHERFORD. Mr. Speaker, I thank the gentlewoman from Texas for yielding.

Mr. Speaker, I rise today in disbelief—disbelief—that we are back here again wasting Americans' time considering a stimulus package that has absolutely no chance of ever becoming law. The first Heroes Act was bad enough, and this version may actually be worse.

Unfortunately, the Speaker wrote this bill without any input from the rest of Congress. Americans want a bipartisan response, and we stand ready to deliver it, but that is impossible when the Speaker writes bills all on her own.

Now, whether they will admit it or not, I know my colleagues on the other side of the aisle are equally disappointed with this partisan process. In fact, 21 Democrats signed on to a letter urging the Speaker to work with Republicans to find a compromise, and yet here we go again with a 2,000-page version of the Heroes Act filled with the same radical proposals and poison pills that, again, I cannot support.

Here are the facts: The Heroes Act provides PPP loans to bail out Planned Parenthood, bans States from legislating their own voter ID laws, releases illegal immigrants from prison and then allows them to receive stimulus checks from the government. Also, it releases thousands of Federal inmates back out onto the street. It even defunds police support that was in the previous bill.

A Heroes Act? Hardly. These are just a few of the reasons why, as a former first responder, I could never support this legislation.

There is a solution I support, and it is sitting right on the Speaker's desk waiting to be brought to the floor. My colleagues introduced a simple, clean piece of legislation to make available another round of PPP loans with the $137 billion that is left in that program. Who in this Congress would not support that?

Mr. Speaker, I urge Speaker PELOSI to bring a bipartisan bill to the floor so we can get assistance to those struggling American families who deserve our support.

Mrs. LOWEY. Mr. Speaker, I yield 5 minutes to the distinguished gentleman from Massachusetts (Mr. NEAL), who is from my class and is the chair of the Committee on Ways and Means.

Mr. NEAL. Mr. Speaker, I stand today in support of the updated Heroes Act.

The previous gentleman was dismissive of the idea that there is some import to this moment in terms of getting a package done.

So that means expanding unemployment insurance? That is not important, unemployment insurance that we might consider now which is part of the need of the American family?

A reminder: There are 26 million Americans right now collecting unemployment insurance.

Let me put this in terms of what an economist might say. If we don't expand unemployment insurance and keep the $600 supplement, the challenges that people are going to have in terms of daily sustenance for food, paying the rent, and paying their utility bills is going to mean, eventually, that the landlord can't collect rents that then, subsequently, are used to pay for property taxes and mortgage payments, which means then that they can't make their payments to the credit unions or community bankers,

which, overwhelmingly, are the custodians of America's origination in terms of the mortgage markets.

So maybe we, as two parties, might agree on the following: If you don't defeat the virus, Mr. Speaker, you are never going to expedite economic recovery. That is the real argument in front of this Chamber at this moment.

Mr. Speaker, 200,000 Americans—actually, about 205,000 Americans as of today—have died from the pandemic. Every one of us at home are hearing the desperation of our constituents.

Let me submit this as well: When the CARES Act came before this House, only five Members of this institution voted against the CARES Act.

Mr. Speaker, do you know what else we can all agree on? The CARES Act saved the American economy. You hear that at home from conservatives, liberals, moderates, Republicans, and Democrats. They all rally around that theme.

The number of people who are still out of work is astounding. Family members are sick, they are having trouble paying for food, and Republicans suggest somehow you can handle this on your own?

This is about the national principle. We all come to the aid of the American family at moments like this. We don't ask if you are a Democrat or a Republican, from a red State or a blue State, or how you voted in the last Presidential election. We say that is the family, and we have to take care of them. They are looking to this institution today to help them survive this pandemic.

The economic challenges that we have are not about corruption, and it is not about economic malfeasance. It is about the reality that the world is confronting the worst pandemic since 1918. The American people are looking to us for leadership, and House Democrats have stepped up to the plate.

Just think of it. May 15 we passed the Heroes Act. So when the other side says things like, ''Well, if we just do something in a bipartisan fashion,'' what, through this intervening period of time, did they offer? Not much.

We have taken the affirmative position here. The American people need help. The idea of the stimulus checks was, as I noted a moment ago, not just to provide sustenance, but most economists would say, well, also to help create simultaneous demand. The speed with which we moved these payments along was extraordinary, even by contrast to how the institution usually responds.

How about the jarring testimony of the Chairman of the Federal Reserve Board last week about what this economy needs? How unsettling was it to hear the testimony from the Fed about what we should be doing?

I am really proud of the role the Ways and Means Committee played in developing the legislation and unemployment insurance.

How about expanding the retention tax credit? Everybody on the other side of the aisle supports expanding the retention tax credit, but that will get in the way of the eventual vote here later on this evening because somehow it doesn't square with their philosophic beliefs.

This moment calls for leadership, and the chaos that this country has exhibited as it relates to defeating the virus leaves a good deal to be desired. Leadership doesn't mean telling suffering Americans it is what it is. This is about the American family. Our frontline workers need us now more than ever.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mrs. LOWEY. Mr. Speaker, I yield the gentleman from Massachusetts an additional 1 minute.

Mr. NEAL. Every person in this Nation right now needs us more than ever. This is a crisis unlike any we have faced in our lifetimes. It calls for real solutions, and it puts the American family first.

We need to get this done for the American people. Vote for this legislation. It is a good piece of constructive work on behalf of the American people.

Ms. GRANGER. Mr. Speaker, I yield 2½ minutes to the gentleman from New York (Mr. ZELDIN).

Mr. ZELDIN. Mr. Speaker, this is not a bill, a vote, and a debate that is about national principle. This is about politics; this is about grandstanding; this is about political calculations; and this is about the election.

Mr. Speaker, do you want to talk about leadership?

Right now, there is a real deal, a real counteroffer that is on the table: $150 billion more for education, $75 billion more for testing and tracing, $250 billion more for State and local government funding, $400 weekly enhanced unemployment insurance, $15 billion more in food assistance, and $60 billion more in rental and mortgage assistance. It actually adds up to $1.6 trillion, which is more than the House Democrats who are members of the Problem Solvers Caucus asked for. They asked for $1.5 trillion. This is a real counteroffer.

Instead, what you are seeing, Mr. Speaker, is a political calculation that is getting made, and real lives are at stake. This is a serious offer that is on the table, and instead of sending this Chamber home and ending up with nothing, how about we do our jobs and cut a deal?

This debate right now is exactly what the American public hates about Congress. They hate us for this kind of a debate. They want to see us working together, Republicans and Democrats, to cut a deal.

We have a chair of the Appropriations Committee from New York. I view this as a New Yorker. She is a New Yorker. We have an MTA that needs money. Our State needs money. New York City, the Port Authority, and our local governments on the east end of Long Island, hey, we should be working together to get something done.

This bill has poison pills in it that make this bill dead on arrival. There are certain pieces in here where we know this is never going to become law: stimulus checks for people who are not in our country legally, nationwide cashless bail, nationwide ballot harvesting, prohibition on voter ID, and releasing criminals from prison. None of that will ever become law.

Why are we doing that when we have real lives, real people?

Go talk to that person who works for the airline and they are being furloughed first thing this morning. They don't have a job to go to. Go to talk to the MTA, the largest mass transit system in the entire country. What they want us to do is to work together to get something done.

The Speaker is staking her political capital on what benefits her the most politically, and what is crazy is that she benefits the most by having the highest death count. She is benefiting the most by having our economy suffering as much as possible.

The SPEAKER pro tempore. The time of the gentleman has expired.

Ms. GRANGER. Mr. Speaker, I yield the gentleman from New York an additional 1 minute.

Mr. ZELDIN. Mr. Speaker, this is the type of political calculation that my constituents absolutely hate. The Speaker's biggest decision, when we all go home and we go home without a deal, is picking between which of her expensive flavors of gourmet ice cream to eat or which closed-down salon to get her next blowout at; but for that furloughed airline worker, they are expecting us to get the job done.

I will tell you what, Mr. Speaker. There is a real deal on the table, and right now, before we leave, I beg my colleagues—I see Congressman ESPAILLAT here. He has been leading the charge on MTA funding. I thank the gentleman.

We are all working together as Republicans and Democrats to get the victory over the finish line. This Chamber cannot leave without actually getting this done. I tell my Republican colleagues and my Democratic colleagues in the House and in the Senate: Do not leave without getting a deal done. This Heroes Act is dead on arrival, and we all know that.

□ 1715

Mrs. LOWEY. Mr. Speaker, I would address my friend from New York. Thank you for expressing the real needs of New York, and I do hope you will vote for this bill.

Mr. Speaker, I yield 3 minutes to the gentleman from South Carolina (Mr. CLYBURN), the majority whip.

Mr. CLYBURN. Mr. Speaker, I thank the gentlewoman for yielding me the time.

Mr. Speaker, the Select Committee on the Coronavirus Crisis has been working to ensure that our response to

this pandemic is effective, efficient, and equitable.

The Heroes Act will make this outcome possible. The Select Committee has heard from public health experts that testing, tracing, and targeted containment are needed to safely reopen. This bill includes $75 billion for these public health measures.

We heard from essential workers risking their lives, doing their jobs during this pandemic. Mayors of both political parties told us significant Federal assistance is needed to prevent sharp cuts to jobs and vital services.

This bill includes $436 billion for State, local, territorial, and Tribal governments to support our heroes and those they serve. It protects workers by directing OSHA to issue an effective infection control standard.

The Select Committee's investigations have found that PPP and other relief programs need to be improved to reach the most vulnerable businesses. The Heroes Act sets aside funds for the smallest businesses, struggling nonprofits, and second loans to the businesses that have suffered the most. The bill would assist restaurants and airport concessionaires who have been especially hard hit.

Educators and public health experts advised us how to safely reopen schools. This legislation provides robust funding to enable schools to educate students while minimizing health risks.

Mr. Speaker, the current Federal Reserve chair and his two immediate predecessors told us that Congress must provide additional fiscal support for a strong recovery. This bill extends enhanced unemployment benefits, provides additional direct payments, expands food assistance, and provides housing support.

Finally, voting rights advocates and infectious disease doctors alike, told the Select Committee that to ensure a free, fair, and safe election, we must follow science-based recommendations for expanded mail-in voting, early voting, and polling places. The Heroes Act provides the funds for election administration and the Postal Service needed to safeguard our democracy.

Mr. Speaker, I always say that if the difference between me and an opponent on any issue requires five steps, I don't mind taking three of them. But I hope the other side will meet us by taking two.

Ms. GRANGER. Mr. Speaker, I yield 2 minutes to the gentleman from Georgia (Mr. ALLEN).

Mr. ALLEN. Mr. Speaker, here we are once again debating a partisan messaging bill that will never become law. The Heroes Act 2.0 is the Democrat's costly attempt to appease their far-left base, and it comes with a $2.2 trillion price tag.

To name just a few of the progressive provisions of this bill, their social wish list includes allowing illegal immigrants to receive direct stimulus payments, defunding the police, subsidizing ObamaCare, and removing safeguards that would prevent taxpayer money from bailing out Planned Parenthood.

While American families, workers, and businesses are keeping their heads down working to revitalize our economy, Speaker PELOSI and the Democratic leadership are moving forward with a bill that largely has nothing to do in addressing the COVID–19 pandemic, and are ignoring moving forward legislation that could immediately support our small businesses.

Thanks to the leadership of our Governor in my home State of Georgia, we are open for business and leading the Nation in economic recovery. Our biggest problem is that we do still have businesses that need help. But I hear from business leaders every day that we must stop this expanded unemployment because, as their requirements grow, they need their employees to come back to work.

Our COVID cases are down 28 percent. Hospitalizations are down 60 percent. But, yes, we still have businesses that need help. That is why I signed the discharge petition, right down there, to bring legislation to the floor to extend the Paycheck Protection Program, and I urge my colleagues to sign that so that we can get meaningful help to those businesses that need it.

Mr. Speaker, I urge the Speaker to stop holding hostage critical assistance for our small businesses and oppose this partisan power grab.

Mrs. LOWEY. Mr. Speaker, I yield 2 minutes to the distinguished gentlewoman from Florida (Ms. WASSERMAN SCHULTZ), the chairwoman of the Military Construction, Veterans Affairs and Related Agencies Subcommittee.

Ms. WASSERMAN SCHULTZ. Mr. Speaker, I thank the gentlewoman for yielding.

Mr. Speaker, after four, long painful months, Senate Republicans continue to block the House-passed Heroes Act to provide coronavirus relief to the fed-up American people. Since May, thousands more businesses have folded, millions remain jobless, and U.S. deaths doubled to 200,000.

Democrats have been negotiating in good faith. We were at $3 trillion for our original Heroes Act. We have asked the Republicans who were at $1 trillion to meet us halfway, and here we are, with them still stuck in the mud, refusing to do what the American people need us to do, to help make sure they can recover from this deadly viral pandemic.

Sadly, Republicans think we are being too generous with the American people, so many of whom are struggling to stay healthy amid a global pandemic and pay their bills since the worst recession since the Great Depression. My Governor just let a moratorium on evictions expire. He just reopened the State to 100 percent capacity, as if the virus is not still rampaging through our State.

Democrats offered this updated Heroes Act to defeat this virus and put money in the pockets of stressed Americans. It is way past time for Republicans to meet us halfway.

This bill improves the Paycheck Protection Program for small businesses and non-profits and provides billions to local governments and schools.

This bill funds testing and tracing, provides $1,200 in direct payments to Americans, extends $600—not $400—of Federal unemployment payments, and extends the vital Payroll Support Program for airline workers, thousands of whom were laid off starting today.

It also funds daycare, spreads Affordable Care Act coverage, and bolsters housing and food assistance, while protecting our elections by strengthening the Census and the Postal Service.

It does not go as far as Democrats would like—that is because we are here to compromise, because we know the American people need us to do that—but it goes a long way to offer what Americans desperately need right now. Republicans need to stop standing in the way of relief and come to the table so that we can send home a package that is going to take care of the American people in this dire time.

Ms. GRANGER. Mr. Speaker, I yield 3 minutes to the gentleman from Louisiana (Mr. SCALISE), the Republican whip.

Mr. SCALISE. Mr. Speaker, I rise today in opposition to this partisan bill that is not focused on helping families and small businesses. Everybody in this Chamber knows that this bill is going nowhere because they didn't even work with Republicans to try to draft a proposal that could actually address the needs of families who are struggling.

There is a bill already filed at the door right over there, a bill that would help every small business, renew the Paycheck Protection Program using existing money—there are $138 billion frozen in an account that we unlock with Chabot's bill. Congressman CHABOT has a bill with a discharge petition that would actually, in a bipartisan way, help small businesses go for a second round of Paycheck Protection funding.

And what do we get? Do we get today a bill that was brought together by both sides to solve this problem?

No, we don't.

We have a bill that was drawn up basically using the old-failed roadmap of the original Heroes Act. Now they had the Heroes Act passed in a partisan way—it was never going to go anywhere—months ago.

Did they say, okay, let's work with Republicans? Let's work with the President?

No, they didn't. They said, Okay, we want to present a scaled-down bill.

Mr. Speaker, when they scaled the bill down, did they cut the billions of dollars of funding to illegal immigrants that was in the original Heroes Act?

No, they didn't.

Did they cut the hundreds of billions of dollars that go to failed States,

States that had billion-dollar deficits prior to COVID?

No, they kept that money.

And in fact, if you look at the things that had nothing to do with COVID—for example, mandating that States that currently require picture IDs have to remove that, ballot harvesting, which we have seen in so many States, leads to voter fraud. That is what is in the original Heroes Act. That still remains in this bill. What does that have to do with COVID relief?

And so if you look, take the original bill, the original Heroes Act had $600 million for police funding, community policing, things that have been proven effective to make our community safer, that was in the original Heroes Act. When they decided to cut—again, they didn't cut the billions for people here illegally, they still get cash payments if they are here illegally. They cut the police, zeroed out—$600 million defunding the police at a time when our communities need help. This was the original bill. The $600 million, it is gone. That is what they cut. They kept the illegal money, checks going to illegals.

Everybody knows this bill is going nowhere because it is a partisan hack job.

The SPEAKER pro tempore (Mr. CARSON of Indiana). The time of the gentleman has expired.

Ms. GRANGER. Mr. Speaker, I yield an additional 1 minute to the gentleman.

Mr. SCALISE. Mr. Speaker, 23 Democrats, just a few days ago sent a letter to the Speaker saying, ''Passing a bipartisan COVID–19 relief package should be our number one priority in the coming days. It is our request that you continue to negotiate towards a bipartisan deal. Otherwise, a discharge petition is the only potential option for COVID–19 related action. . . . '' That was 23 Democrats.

Mr. Speaker, that is enough people, if they go down, right over there and sign that discharge petition, it will bring that bipartisan relief package bill to the floor, helping small businesses. We already helped millions of small businesses stay afloat with the original Paycheck Protection Program, an incredibly bipartisan success story that we came together to pass. Over 50 million jobs were saved by that.

Mr. Speaker, we know now some of those businesses are doing better, but some of those businesses are still struggling, in fact, dying on the vine. And this bill will give them relief. They can go for a second round of relief requests, PPP funding with money that already exists, not $2.2 trillion borrowed from China.

Let's pass a real bill, the Chabot bill. Let's reject this partisan exercise.

Mrs. LOWEY. Mr. Speaker, I yield 2 minutes to the distinguished gentleman from Rhode Island (Mr. CICILLINE).

Mr. CICILLINE. Mr. Speaker, I thank the gentlewoman for yielding.

Mr. Speaker, I am mindful today that the Major League Baseball playoffs are starting. While House Democrats are ready, once again, to step up to the plate and pass urgently needed relief for our constituents, Senate Republicans and the White House refuse to play ball. But sadly, unlike a ball game, their refusal will have deadly consequences.

This updated, much-needed bill addresses the seriousness of both the public health crisis and the economic crisis American families are dealing with. It provides strong support for small businesses, non-profits, and gives a lifeline to the struggling restaurant industry and independent live-venue operators.

It gives additional assistance for airline industry workers, extending the Payroll Support Program, and adds more funds to bolster education and childcare.

Living up to its name, Heroes 2.0 honors our heroes on the front line by providing assistance to State and local governments who desperately need funding to pay vital workers, like first responders and healthcare workers who are keeping us safe. It provides funds for coronavirus testing, tracing, and ensures every American can access free coronavirus treatment.

These are not radical ideas. This is the basic responsibility to keep the American people healthy and safe.

It provides additional direct payments with a more robust second round of economic stimulus checks of $1,200 per taxpayer and $500 per dependent.

It ensures worker safety by requiring OSHA to issue a strong, enforceable standard for all workplaces to develop and implement infection control plans.

And it protects Americans from losing their employer-provided health insurance by making unemployed Americans automatically eligible to receive the maximum ACA subsidy on the exchanges.

□ 1730

It restores the $600 weekly unemployment benefits through next January.

It helps struggling families afford a safe place to live, assisting renters and homeowners make monthly rent, mortgage, and utility payments, preventing homelessness in the middle of a global health pandemic.

It addresses rising hunger with an increase in maximum SNAP benefits.

Finally, it safeguards our democracy with new resources to ensure safe elections, an accurate Census, and preserving the Postal Service.

I have heard my Republican friends say these are radical, far-left ideas. These are core American responsibilities that we should address in a bipartisan way.

We have met you halfway. That is the compromise. Your constituents are suffering. They need your help. Vote ''yes.''

Ms. GRANGER. Mr. Speaker, I yield 2 minutes to the gentlewoman from North Carolina (Ms. FOXX), the ranking member of the Education and Labor Committee.

Ms. FOXX of North Carolina. Mr. Speaker, our colleagues across the aisle try to convince Americans that this bill is a compromise and bipartisan. That is a joke, Mr. Speaker. Compromise, to Democrats, means do it their way.

When it comes to spending taxpayer dollars, hard-earned money, though, the Democrats just can't seem to help themselves. The latest example is this $2.2 trillion socialist wish list, which is riddled with radical left priorities that are unrelated to the pandemic.

For example, it props up failing pension plans for select community newspapers. What does this have to do with the COVID–19 pandemic? The newspaper industry has been in decline for decades, and these companies have had a longstanding inability to meet their pension obligations.

The bill also forgives up to $10,000 of private student loan debt. Again, this does nothing to combat COVID–19. But massive loan forgiveness, despite the high cost to taxpayers, has long been a Democrat objective.

So why are we considering this partisan scheme? Because come election day, Democrats are hoping to cash in on this bill's many empty promises.

It is disingenuous and it is disappointing. We all must vote ''no.''

Mrs. LOWEY. Mr. Speaker, I yield 1 minute to the gentleman from New York (Mr. ESPAILLAT).

Mr. ESPAILLAT. Mr. Speaker, the Heroes Act is what America needs. It is what my State of New York needs.

Nearly $7 billion for public transportation, that is a compromise.

Aid to struggling small businesses, including restaurants, that is a compromise.

Billions of dollars to help schools operate safely and to help parents afford childcare and get back to work, that is a compromise.

Another round of stimulus checks for the American people, that is a compromise, Mr. Speaker.

Billions of dollars for emergency rental assistance as people face evictions and people don't know where they are going to get the money to pay their rent, they are backed up, that is a compromise.

And, finally, Mr. Speaker, help for States and local government—not red States and blue States, all States. Last time I checked, it was all the United States of America. Let's help all the States. They are not getting the revenue that they need. That is a compromise.

I said the last time we passed the Heroes Act back in May that it was a good thing. I say today that this is a real good thing, and it is a compromise.

Ms. GRANGER. Mr. Speaker, I yield 3 minutes to the gentleman from South Carolina (Mr. RICE).

Mr. RICE of South Carolina. Mr. Speaker, Democrats claim to be the

party of the little guy. It is easy to talk, but actions speak louder than words.

Republicans have offered plan after plan to help ordinary people who need it and to help small businesses struggling to survive, businesses like the 1,700 restaurants along the Myrtle Beach Grand Strand back home that have been devastated by this pandemic. If Speaker PELOSI would allow a vote on any of these bills, they would pass the House and Senate easily, and folks back home would get the help they need.

But Democrats have blocked every plan to help the little guy unless we also bail out broke blue States and restore the deduction for State and local taxes for millionaires and billionaires. You see, 90 percent of the benefit of the State tax deduction goes to earners in the top 10 percent. Over 50 percent of the benefit goes to millionaires and billionaires in the top 1 percent, who don't need a bailout.

Take Michael Bloomberg, for example. He made over $3.5 billion last year. Mr. Bloomberg works in New York City, which has a combined State and local income tax rate of 12.5 percent. That means restoring the State and local tax deduction would reduce Mr. Bloomberg's taxes by $160 million. That is right, Mr. Bloomberg would get a $160 million bailout.

For months, the Democratic leadership has held back help for the little guy who desperately needs it as ransom unless we agree to give a bailout to billionaires like Michael Bloomberg, who would get an extra $160 million. Why would they do that?

Remember in the Presidential debate when Michael Bloomberg bragged that he spent $100 million to buy 21 new Democrat seats and put NANCY PELOSI in charge? Now we know why.

Mrs. LOWEY. Mr. Speaker, I yield 1 minute to the gentleman from Texas (Mr. GREEN).

Mr. GREEN of Texas. Mr. Speaker, how can one say you love the police but you won't fund the municipality that pays the police?

How can you say that you want your children to be taught well in a safe environment, but you won't fund the bill that would fund the school system so that they can be taught well and be in a safe environment?

How can you say you want your fires to be fought but you won't protect firefighters? This bill does that.

Here is why you can't say you protect firefighters and would fund the police: It is because Senator MCCONNELL has said, openly and notoriously, he would have the States go bankrupt.

Bankruptcy is not the way to go for heroes, for firefighters, for police officers, for teachers.

It is time to compromise. This is the bill to be voted on, not the one that is in your mind. Compromise, not the mind.

Ms. GRANGER. Mr. Speaker, I yield 2 minutes to the gentleman from Wisconsin (Mr. GROTHMAN).

Mr. GROTHMAN. Mr. Speaker, there are a lot of provisions in this bill that are offensive. My colleague, Congressman RICE, just pointed out the tax cut aimed primarily at the very wealthy. But I am going to focus on the $1,200.

In my prior life, I used to be an estate planning attorney, and I would write out wills. People would come in to see me, and one of their goals was to leave a shot in the arm, leave something for the next generation, save up some money and give them part of a house, part of a bank account.

In this bill, the $1,200 to everybody in the country, including people who do not need any extra assistance because of this, is a little bit offensive.

I don't know who put together this bill, but kind of unlike the Greatest Generation that always wanted to leave a little more assets to their children and grandchildren, this bill lets everybody spend $1,200 so they can leave increased debt to their children and grandchildren. I think that is a little bit embarrassing.

The second thing that I would point out is that the $1,200 goes not just to American citizens but to illegal immigrants, and this is part of a scary trend around here. Whether you are talking about free medical care for illegal immigrants, welfare for illegal immigrants, or, now, $1,200 checks to illegal immigrants, it is just sending us down the wrong way and pretending we don't even have a country here at all.

Not to mention, at least, when I went to my local Walmart, he said the last time you sent out these checks, there were huge amounts of increase in spending in the electronics department. So we are going to send the next generation further into debt so this generation can buy more, or at least part of this generation can buy more, electronic junk from China at Walmart.

I just can't imagine what went on in the room when they put together this deal, but I am voting ''no'' tomorrow or later tonight.

Mrs. LOWEY. Mr. Speaker, I yield 2 minutes to the gentlewoman from California (Ms. LEE), a senior member of the Appropriations Committee.

Ms. LEE of California. Mr. Speaker, I thank the Chair for her tremendous leadership and that of her staff for getting us to this point on behalf of the American people and ensuring that we put forth a bill that will ensure that they know that we care about their health and economic security during this very serious moment.

Also, I just want to thank Speaker PELOSI and Chairman PALLONE for including language that will help reach communities disproportionately impacted by this deadly virus, as in the African-American, indigenous, Black and Brown community, the AAPI communities, and also treat them as partners to defeat COVID.

Now, it has been 4½ months since the House passed the Heroes Act. Since January, over 200,000 people have died. People are terrified about keeping their families healthy and safe. They are terrified about keeping their jobs and their homes and their businesses. And, still, Republicans continue to block this critical relief from moving forward.

Sadly, but not surprisingly, Black and Brown people are getting the worst of this. Forty thousand African Americans have died from COVID, one out of every five COVID deaths in America. Indigenous and Latinx people are each 50 percent more likely to die from COVID than White Americans. And 20 percent of all deaths in my district are from the AAPI community.

It is clear that the President has no plan. That is why Democrats are taking action, to be sure that we have the robust national testing, tracing, and treatment efforts to reduce the transmission and the deaths that we are experiencing every day. All of us know people who have died from this horrific pandemic.

Also, we were able to include funding for SNAP benefits, unemployment payments, childcare, and education, including funding for my own community in Alameda County.

I am also pleased that the bill contains necessary contributions to the global efforts to fight COVID. This pandemic does not respect borders. We need to work with partners around the globe if we are going to get COVID under control.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mrs. LOWEY. Mr. Speaker, I yield an additional 1 minute to the gentlewoman from California.

Mr. LEE of California. Mr. Speaker, let me also say how important it is that we really understand and recognize that this is a global pandemic and it knows no borders.

This bill will also ramp up testing, contact tracing, and outreach to ensure that those communities most impacted are supported. It strengthens outreach to medically underserved communities. Again, Black and Brown and indigenous people have suffered the most from COVID.

This bill will ensure that the testing and tracing efforts treat people of color as partners in engaging their communities.

This is a health and economic pandemic of enormous proportions that we have never experienced in our lifetime. We must make sure that people have safe places to work and attend school. Their health and economic needs are addressed in this bill. We cannot have one without the other.

So let's pass this comprehensive relief. Let's begin to try to heal our country. Please support this bill, and I ask for an ''aye'' vote.

Ms. GRANGER. Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I yield 1 minute to gentleman from Colorado (Mr. NEGUSE).

Mr. NEGUSE. Mr. Speaker, I rise today in support of the updated Heroes Act.

I want to thank House leadership and, of course, our distinguished chair of the Appropriations Committee, Chairwoman LOWEY, for introducing this vital update.

First, let me just say, look, we are all entitled to our own views and opinions in this Chamber, but we are not entitled to our own set of facts.

As I have heard some of the comments from my friends on the other side of the aisle, I have been a bit confused because, as we all know, 4 months ago, this Chamber passed, on a bipartisan basis, the Heroes Act, $3.4 trillion, to provide an economic lifeline to small business and working families struggling across this country.

The Senate declared a so-called pause, decided that they would do nothing, wouldn't meet us halfway, wouldn't come talk to the House Democrats to try to reach a compromise bill. So we continued to get to work, and we put together an updated Heroes Act that is now a $2 trillion bill that provides an economic lifeline to so many Americans across our great country.

The fact that House Democrats continue to make every effort to work with anyone in good faith to deliver for the people of our country, in my view, is something that we should continue to pursue in this great Chamber.

□ 1745

The SPEAKER pro tempore. The time of the gentleman has expired.

Mrs. LOWEY. Mr. Speaker, I yield an additional minute to the gentleman from Colorado (Mr. NEGUSE).

Mr. NEGUSE. Mr. Speaker, I want to say one of the reasons I support this bill is because it includes significant relief for small businesses, which are the backbone of Colorado's economy.

My Republican colleague and I, JOHN CURTIS, introduced a bill just a few weeks ago to provide EIDL relief, essentially ensuring that we would exclude the EIDL advance when determining forgiveness for PPP loans.

We have heard from countless business owners in my district, in Fort Collins and Loveland, who are struggling and who have told us that this provision would provide needed relief to ensure that they can continue to keep their businesses solvent, keep their doors open, serving the people of our great State of Colorado and, of course, my colleague, the State of Utah, and small business owners across the country.

That provision is in this bill. It is in the updated Heroes Act, alongside so many other important provisions to help small businesses in our country recover.

I say to my colleagues: Let's get this done. Let's pass this bill. Let's provide the relief that the American people are counting on us to provide.

Ms. GRANGER. Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I am pleased to yield 1 minute to the gentlewoman from Washington (Ms. SCHRIER).

Ms. SCHRIER. Mr. Speaker, the people in my district continue to struggle with the economic effects of COVID–19. My constituents and small business owners will be so relieved to know that help that they need is one step closer to being here, including more assistance to small businesses, funding for childcare and education, enhanced unemployment benefits, and rental assistance.

Several of my bills to help children and families have been included in this package as well, including increasing funding for child abuse prevention and more help fighting hunger and boosting access to fresh fruits and vegetables.

Finally, as a doctor, I am very happy that my legislation to improve education about vaccines, including a future or many future COVID–19 vaccines, is in this package. It is important that the American people feel confident that whatever vaccine does get approval, it is truly safe and effective, and that education begins now.

Mr. Speaker, I urge my colleagues to support this bill.

Ms. GRANGER. Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I am delighted to yield 5 minutes to the gentlewoman from California (Ms. WATERS), the chair of the Committee on Financial Services.

Ms. WATERS. Mr. Speaker, I rise in strong support of the House amendment to H.R. 925, the updated version of the Heroes Act.

Mr. Speaker, Democrats have been working every single day to respond to this pandemic and provide much-needed relief and protection for families across the country. 139 days ago, House Democrats voted to pass the Heroes Act. Unfortunately, President Trump, MITCH MCCONNELL, and Senate Republicans have blocked the bill and prevented the essential relief the legislation provides from reaching our neighborhoods and our communities.

Meanwhile, the Nation continues to suffer during this crisis. Even before this pandemic, over half a million people in the United States were experiencing homelessness, including more than 50,000 families with children. It is likely that this number has grown significantly due to the pandemic.

We also continue to head toward a catastrophic eviction crisis as families struggle to pay rent and months of unpaid back rent pile up. Today, the rent is due, but an estimated 14.2 million renter households cannot pay it and are at risk of eviction and homelessness.

In my State of California, there are 1.7 million renter households who are behind on rent and facing eviction. At the same time, more than 8 million homeowners, including almost 780,000 homeowners in California, have already fallen behind on their mortgage payments. Making matters worse, over 1 million small businesses have closed.

To address the ongoing crisis, the updated Heroes Act creates a $50 billion emergency rental assistance fund and a $21 billion homeowner assistance fund, and it provides $5 billion in funding for homeless services providers.

Through no fault of their own, millions of people are also unable to make payments on credit cards, car loans, and their mortgages or rent. By suspending negative credit reporting during the COVID–19 period, the Heroes Act ensures that these innocent consumers do not suffer further damage.

The Heroes Act also suspends debt collection for consumers, small businesses, and nonprofits during this pandemic. Additionally, private student loan borrowers in economic distress, who are disproportionately people of color, will get up to $10,000 in debt relief under the bill.

The Nation continues to face shortages of essential medical supplies and equipment. For example, our heroic healthcare workers are still reusing N95 respirator masks at a time when cases of COVID–19 continue to rise. The Heroes Act strengthens the Defense Production Act to supercharge the production of these supplies and works to ensure that funds are directed to alleviate those shortages.

The updated Heroes Act also builds upon my efforts and those of members of my committee to remove barriers for Community Development Financial Institutions—that is, the CDFIs—and the minority depository institutions, better known as MDIs, trying to serve low-and moderate-income communities during the pandemic.

For example, the bill provides $15 billion in capital and other assistance for CDFIs and MDIs to bolster financing activity in minority communities, which have been hardest hit by this pandemic.

Mr. Speaker, I am so pleased that the bill provides another round of stimulus payments for families and additional funding for small business, including $120 billion for restaurants and airport concessionaires.

Importantly, the bill directs the Treasury Secretary to work with the global community to immediately provide $2 trillion in relief through the International Monetary Fund, which will immediately support developing countries that are experiencing some of the worst effects of COVID–19.

Mr. Speaker, this bill isn't everything that is needed, but it is a good faith effort to bridge the gap in negotiations with our Republican colleagues. It is time for Republicans to stop blocking coronavirus relief and support this legislation.

Ms. GRANGER. Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I yield 1 minute to the gentlewoman from Texas (Ms. JACKSON LEE).

Ms. JACKSON LEE. Mr. Speaker, the American people cannot wait. Help is on the way, and the only thing I can ask from my Republican friends is to

take a walk in neighborhoods in their districts around the Nation where mothers and fathers are waiting on a disbursement needed to put food on their table.

This $2.2 trillion bill is going to help businesses, nonprofits, and faith institutions with the PPP. It is going to give us protective equipment. Yes, the engine of our communities, small independent restaurants, are getting close to $120 billion; more funds to bolster education and childcare; schools that cannot open because they do not have the resources; money for testing—I have opened 33 testing sites in our neighborhoods; contact tracing, of course; making sure the cities' and counties' essential workers and hazard pay is paid.

Is anyone asking the American people if they are suffering and need this resource to help them? To fight COVID–19, we have to stop the evictions; stop the foreclosures; give healthcare, clothes, food, and security; make sure we take care of small businesses, education; and give our people a lifeline.

The American people can't wait. Now is the time to help them. Vote on the Heroes Act for this money and this relief.

Ms. GRANGER. Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I am delighted to yield 1 minute to the gentlemen from Illjnois (Mr. GARCÍA).

Mr. GARCÍA of Illinois. Mr. Speaker, I want to thank Representative LOWEY for this minute.

Mr. Speaker, I rise in strong support of the revised Heroes Act because my community cannot wait.

Schoolteachers, flight attendants, and working families are facing layoffs, and they need our help now.

Tenants and homeowners facing evictions and homelessness need our support now.

Immigrants with U.S.-born children and U.S. citizens who never received the stimulus check need our support now.

We passed the Heroes Act 4½ months ago. Republicans in the Senate wouldn't even consider it. But this is a bill that we are offering as a compromise, and it is common ground because, just like my colleagues across the aisle, I am headed home to my constituents, and I don't want them to think that we failed them.

House Democrats have done our jobs. We passed relief, and we are doing it again. It is the President and Senate Republicans who refuse to pass relief that have failed.

Give the American people the relief that they need so urgently. I urge adoption.

Ms. GRANGER. Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I am delighted to yield 1 minute to the distinguished gentlewoman from California (Ms. PELOSI), the Speaker of the House.

Ms. PELOSI. Mr. Speaker, I am honored to be on the floor today to support a bill brought to the floor by the distinguished chair of the Appropriations Committee, NITA LOWEY from New York. Her service on that committee for decades has been a blessing to our country.

I have seen firsthand her leadership for America's families, for our country, for our communities, and for our children. We have worked together on women's issues, HIV/AIDS, you name it, every subject, minority health issues and the rest.

And here we are today with this legislation that is so needed for our country.

It is really hard to understand what it is that people would oppose in the legislation. The Appropriations Committee has done a masterful job.

You have been a maestro, Madam Chair, as well as your staff, for putting this legislation together.

I am in Congress because of children. I am always here for the children. I wanted to start my comments by saying what this legislation would mean to a family of four.

□ 1800

This is a lifeline for workers and families who are facing this coronavirus disaster. For a family of four earning $24,000, Heroes 2 would mean direct payments, a $3,400 direct payment; unemployment benefits of $600 per week in enhanced UI benefits; tax credits up to $5,920 through the EITC, and a fully refundable $4,000 tax credit, equaling an additional $1,200 in refunds.

I mention that because some have said: Why don't you like this other bill and that bill? None of that that I just said, the tax credits, the earned income tax credit, the fully refundable child tax credit, none of that is in any of the Republican bills. None of the bills that you have seen other than this bill has that consideration for children.

So when people say: Well, why don't you take a half a loaf? Because the children need more than the heel of a loaf of bread. They need the best we can do for them.

It has an increase in SNAP benefits, an increase of $100 a month in most States, plus rental assistance and the ACA premium subsidy. This gives immediate eligibility for parents losing their jobs for the maximum health insurance premium subsidy under the Affordable Care Act, a benefit worth $1,386 per month.

Now, we can't do everything in a bill that is coronavirus focused. We have challenges in our country that we must address in a bigger way. But what we have here is coronavirus-centric, and that is important to note because people are suffering in a different way. Many of these families are food insecure. Millions of children in our country are food insecure, and this Heroes Act addresses some of that.

So in addition to thanking NITA LOWEY for her leadership, I salute BOBBY SCOTT for our children and for our workers. We want our children to go back to school. We want them to do so in a way that is safe. And BOBBY SCOTT has provisions in here for that, whether it is actually in school, whether it is virtual, whether it is hybrid, or whether it calls for the ventilation that is needed.

And, again, for their fathers and mothers to go to work in a safe atmosphere by having strong OSHA language in here to protect workers. That is not in the Republican bill. That is not in the Republican bill.

We can come to terms on money, but the language is what is important.

The Energy and Commerce Committee chairman, FRANK PALLONE, 4½ months ago, and even before that, proposed a strategic plan that I am sure he will talk about, and I thank him for that, a strategic plan in order to crush the virus.

The Republicans want to crush the Affordable Care Act in a time of a pandemic, going into the Supreme Court to crush the Affordable Care Act. Why don't we just come together, crush the virus? We can open our economy and our schools in a safe way.

And I thank you, Chairman PALLONE, for your leadership.

The Natural Resources Committee, Chairman RAÚL GRIJALVA, what he has in the legislation is so important, especially addressing the needs of our Tribal communities in our country, which are so disproportionately affected by the coronavirus. I thank him for his leadership that in so many ways is in the legislation, but that being such an essential piece.

I thank the Oversight Committee chairwoman, CAROLYN MALONEY, for her leadership for the Postal Service, and I think we have finally gotten the message across on the Postal Service. Hopefully, we will get some cooperation there.

But not yet on the Census. The Census is so important. It is the life blood of who we are, the DNA of America, the people, and we are having a problem with that. It is not even about money. It is about policy. So I thank Representative MALONEY for her ongoing leadership, 4 years culminating in this legislation now.

Small Business Committee Chairwoman NYDIA VELÁZQUEZ, so knowledgeable, for decades the chair or ranking member of the Small Business Committee. She knows about women and minority-owned businesses, and the most optimistic thing a person can do is to, I say, plant a flag for a small business.

How more optimistic can you be than to start a business? Perhaps, get married, but you kind of know what your risks are there.

But a small business, so needed the help in here for PPP, other help for hospitals—excuse me, for restaurants. Hospitals are in Mr. PALLONE's section of the bill and the language for the healthcare providers is there.

But back to NYDIA VELÁZQUEZ. This is a big piece of the bill.

So what do we do for PPP? What do we do for restaurants? What do we do for arenas, small spaces around the country for entertainment and bringing people together—spatially distanced, of course. How do we balance all of this?

That is language that we are trying to resolve in our negotiations. I am optimistic that we can get there, but we couldn't do the best job possible without the leadership of NYDIA VELÁZQUEZ.

The Veterans' Affairs Committee, I thank MARK TAKANO for his important work for our veterans and the resources we have in the bill for our veterans.

Ways and Means Committee Chairman RICHIE NEAL just has been brilliant in how we put money in people's pockets with direct payments and some of the other tax provisions that I talked about earlier for children that have no reference in the Republican bill as far as the children are concerned. And, again, my top priority is the children.

I thank PETER DEFAZIO, the chair of the Transportation and Infrastructure Committee for his leadership and having the language in here, not just for the airlines, which is very, very important, and that is important because it is an essential—it is important, but people should know, when they say, ''Well, why should we help airline employees?'' well, we do because they have to have special certifications and special security clearances and the rest. If they lose a job and come back, it is months before they can come back, not like any other industry. So that is important.

But Mr. DEFAZIO also has an important chunk of money in the bill for transportation, writ large and some other ways, that is urgent and coronavirus connected. And that is very important, as well, and I thank him for his leadership in that regard.

But read the bill. I salute the chairs. This is about having scientific, institutional, academic bases for the amount of money that we are asking for.

We had a bigger bill, 3.4. The other side said: We are not going there.

So we came down a trillion dollars.

No, not yet.

We came down another $200 billion, not by violating any of our priorities, but by shortening the time, just shortening the timeframe and moving some issues to the other arena that Madam Chair works in and that are in our regular appropriations bills as we go forward.

So this is really important. One bill is not as good as another.

Why not take something instead of nothing?

Why should that be the standard for America's children? We have to fight for the best that we can get for them, and I feel certain that we will have a level of success. People have to know.

One of the problems that I have, the difference between the Democrats and the Republicans on this issue is, in the Republican bill, they have a $150 billion benefit for some of the wealthiest people in our country—$150 billion.

In our bill, we strive to have $149 billion for our children for the earned income tax credit, for full refundability and the rest.

No.

So we took it down to $54 billion, and it was still waiting to see if we get acceptance of that.

$150 billion for the wealthiest people in America, tax, net operating loss.

149 for America's working families, no. We took it down to 54. We took off $100 billion to gain agreement.

This is not just a money debate and a language debate; it is a values debate. It is important for people to know what this fight is about.

So it is called the Heroes Act, and it is called the Heroes Act because we are honoring our heroes. Everybody wants to wave and have cutouts at the game and all that. Honor our heroes by making sure they have their jobs.

These are our healthcare workers, our police and fire first responders, our teachers, our transportation, our sanitation, our food workers and the rest who make our lives function. We couldn't do what we do without them doing what they are doing. Many of them are risking their lives to save lives, and now they may lose their jobs.

Why?

Let the States go bankrupt. That is what MITCH MCCONNELL said. Let the States go bankrupt.

And what did the President say? Well, those blue States, why should we send them any money?

Because the people have needs, and we have to meet them.

We lose all ability to thank them if we say: That is nice, but we don't care if you lose your job. You can go on unemployment insurance.

What have we accomplished? We have diminished the services to people, probably raise taxes in some of these places, and people lose their jobs. Over a million, closer to a million and a half of State and locals have lost their jobs already, and it is predicted that 3½ million more will lose their jobs if we don't act on this.

So this is an important pillar of this bill, supporting State and local government. That is one of the areas that we are, shall we say, negotiating.

Next, crush the virus. Mr. PALLONE has a plan. Crush the virus so that we can again open our schools, our businesses, our economy. And we are long overdue.

Well, this bill is 4½ months old because, at the time we passed it, the leader in the Senate, Mr. MCCONNELL, pushed the pause button. He pushed the pause button. We have got to wait and see.

Since that time, over 100,000 people have died. Hundreds of thousands have become infected because he pushed the pause button and said: Let the States go bankrupt.

So this is why we come here today, to debate policy on how we think we can best meet the needs of the American people. And we think we can best meet the needs of the American people with the provisions in this bill. I thought it was really important for us to formally put forth the work of our chairs, which is excellent, which meets the needs of the people.

Representative WATERS, you heard from her earlier. Families are on the verge of eviction. Families on the verge of eviction get support in this legislation.

People who can't pay their mortgages are helped in this legislation. I thank Chairwoman WATERS for that as well. It is her work on the restaurant legislation to help many more small businesses get help from this legislation.

This is a tall order.

People say, well, we should have a skinny package. No, we don't have a skinny problem; we have got a massive problem.

Now, you don't believe so much more in the role of government than we do. Let's come together, find our common ground, but let's not just say let the children pay the price because we want to have a bipartisan bill.

No, we don't want the children to pay the price so we can have a bipartisan bill. We want to have a bipartisan bill that supports the children. I feel confident that we can do that.

But we can't do that if we take the path of least resistance and just say let's do whatever they put forth. That is doing their bill. That is not doing the people's work.

So, again, over 200,000 people, we know 207,000 people have already died, more than 7 million affected. A million people in the world have died.

We have legislation because of Chairwoman LOWEY's expertise, respect in the world. We have provisions in the bill that affect our relationship in terms of how we fight the COVID virus globally, because none of us is safe unless we make sure that all of us are safe.

So I urge a ''yes'' vote on this legislation. It goes a long way to doing what we need to do. It sets an example that, as I say, we cut a lot out by just cutting the time on it. Pretty soon, we will have to have legislation again. That will be probably next year. And this legislation goes to early next year rather than later next year, but the timing is really important to do it now. It is long overdue. It is what this country needs.

And, again, I say thank you to our heroes. We thank you by making sure you have the job, the benefits, and the rest that you have earned, and by not just giving you empty gratitude but the gratitude of supporting you and the important roles that you play in our lives with assurance that you will have your job as you risk your lives to save lives.

□ 1815

Your children will be able to go to school safely whether it is virtual, actual, or a hybrid, and when they do

that, they will do so in a way that we have enabled, because education has some funds in here, but without State and local, the education function cannot be borne out to its fullest extent.

Mr. Speaker, again, I thank the distinguished chairwoman for yielding me the time. I have great excitement because of the work of our chairs about the quality of this legislation and the necessity that we come as close to it in a negotiation for the children.

Ms. GRANGER. Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I yield 2 minutes to the gentlewoman from Connecticut (Ms. DELAURO), the chair of the Labor, Health and Human Services, Education, and Related Agencies Subcommittee, and a hardworking, distinguished leader on all these issues.

Ms. DELAURO. Mr. Speaker, the people of Connecticut and of the United States deserve no less than the full support of the Federal Government to get them to the dawn of a recovery.

While the House passed a comprehensive bill for the American people back in May, the Senate has failed to act. So we advanced this $2.2 trillion package that includes $2.7 billion for Connecticut to protect lives, livelihoods, and the life of our democracy.

As chair of the Labor, Health and Human Services, Education, and Related Agencies Appropriations Subcommittee, I am proud of the investments here for patients, working people, children, seniors, and public education.

For health, we provide $75 billion for coronavirus testing, contact tracing, and isolation measures, and $28 billion for a safe and effective vaccine.

For working people, we must save jobs, protect workers and their families, so we strengthen, expand, and protect emergency paid leave. We restore the expanded $600 unemployment benefit through the end of January. And we continue to support work share programs.

For children and families, we must not allow a generation to be lost or to let their bright futures darken. We provide $182 billion for K–12 education, nearly $39 billion for post-secondary; along with the Child Care Is Essential Act, which I introduced with Chairman BOBBY SCOTT, for $15 billion to save the childcare industry; and then my legislation to make the child tax credit fully refundable, to make it accessible to all, including the one-third previously excluded, including half of Black and Latinx children.

I am proud of the provisions to increase the maximum SNAP benefit by 15 percent, to aid nutrition programs, food banks, farmers and producers, as well as small businesses and restaurants.

Mr. Speaker, let us put politics second and let us put people first. Let us vote ''yes'' on this relief bill for the people of this country, for the seniors, for the children, and those who every day are looking toward the Federal Government because they are in desperate shape and they need our help. They need this legislation.

Ms. GRANGER. Mr. Speaker, I reserve the balance of my time.

Mrs. LOWEY. Mr. Speaker, I yield 1 minute to the gentleman from Maryland (Mr. HOYER), the distinguished majority leader.

Mr. HOYER. Mr. Speaker, we live in an interesting age.

I rise in strong support of this legislation.

I have heard my Republican friends lament the fact that we have things in this bill that they don't like and apparently that the Senate doesn't like. I have been here long enough to know and to serve when the Republicans were in charge.

They passed bill after bill with partisan provisions that they knew President Obama wouldn't sign and that could not pass the United States Senate because they couldn't get enough Democrats to get to 60 votes. They knew that.

So both sides pass legislation that they think is good, notwithstanding the fact that the other side does not agree with some of the provisions in the bill.

But, Mr. Speaker, this bill responds to the needs of the American people at a time of crisis. The House passed the Heroes Act more than 4½ months ago.

Normally what would happen is when a bill goes to the Senate, they would pass a bill of their own unless they believed: Ladies and gentlemen of America, you are on your own. And States, as Senator MCCONNELL said, you can go bankrupt.

The minority leader of this House said: Let's wait and see what happens.

And we waited and we waited and we waited, and 120,000 additional Americans have died since May 15.

How long are we going to wait?

The House did its job in May for the American people, yet the Republican Senate and President Trump have still not done theirs.

They talk about compromise on that side of the aisle and working together. So what did the Republican leader of the Senate do? There was a trillion-dollar offer on the table, so he came back with a compromise and cut it in half to $500 billion. And the only reason that bill got a majority of Republicans in the United States Senate—it didn't get a majority of the United States Senate; it did, because there are enough Republicans—is because they thought it wouldn't go anywhere, it was a message bill. That is the only reason it passed with 51. It didn't pass, of course, because it needed 60.

Now, let me tell you what John Boehner did and what Paul Ryan did when the Freedom Caucus wouldn't give them the votes, Mr. Speaker, for the Republicans to pass legislation that they knew was needed, the debt limit, fiscal bills. They knew they were needed. So what did John Boehner do? He walked across the aisle, talked to the Speaker, talked to me, and said, ''We need some votes,'' and we made a deal.

The ranking member of the Appropriations Committee is one of those people who wants the House to work. I am a friend of hers and I respect her, because she is a Member that I have experienced who wants to make it work.

But Senator MCCONNELL doesn't walk across the aisle and say, Let's make a compromise.

So don't preach at us, Mr. Speaker. Don't preach at us about reaching across the aisle. We have seen tax bills that slam bam, there it goes, and so you come up with a bill.

Negotiations are ongoing right now. And I want to congratulate the Speaker of the House. She has been in Washington more than any of the rest of us in the last 6 months—I know that, because I talk to her on a regular basis—trying to get this to work, trying to make a deal.

Mr. Speaker, I applaud Secretary Mnuchin. There are some others who don't make deals, and who have a history of not making deals and have a history of undermining deals that Paul Ryan wanted to make or that John Boehner wanted to make. Not Democrats.

But negotiations are continuing, and I hope we will reach a bipartisan agreement.

Frankly, if we had reached a bipartisan agreement yesterday, we would not have this bill on the floor. If we had reached it the day before or the day before, we wouldn't have this bill on the floor, because we know we want a bill signed.

But we also know we want to let the American people know where we stand, not for just one bill that helps this group or that group or the other group, but all Americans who are suffering and are at risk. So we believe that this bill is a reasonable compromise.

That is why today we will pass a bill that achieves the goals of the Heroes Act and represents a reasonable compromise.

Some people, Mr. Speaker, are saying to themselves, This isn't reasonable.

Remember, McConnell goes from $1 trillion down to half a trillion, which clearly did not cover the needs. Every economist tells us that.

Notwithstanding the passage of this bill, House Democrats will continue to negotiate to reach the kind of bipartisan agreement that we believe is necessary to help Americans get through this crisis. The airlines need the money now, and we ought to be that close.

But our position is clear. The Federal Government cannot shirk its responsibilities to the people it serves, not just some of the people.

We have in this bill the help for small businesses that people on that side of the aisle have been talking about. We are talking about it. They need it.

It includes support for State, local, Tribal, and territorial governments.

I have a letter here—and letters can be sent from the National Governors

Association only if they are unanimous—which says: ''Every major economist, regardless of party or ideological bent, came to the same conclusion after the 2007–2009 financial crisis: The lack of support for State and local governments slowed the Nation's economic growth for more than a decade. As we begin to recover and rebuild from the COVID–19 crisis''—unanimously, Republican and Democratic Governors—''we cannot afford to repeat the mistakes of the past,'' i.e., not giving aid to State and local governments.

That is what the Governors are saying, all of them, Republican and Democrat.

My Governor is a Republican. His name is Hogan. His father served here in the House of Representatives. He is one of those who came up, with Mr. Cuomo, with the amount of money that was needed by State and local governments.

Why do we aid State and local governments? Because they hire police. We hear about defunding police. They are hemorrhaging revenues and they cannot support the personnel they have, the police, fire, emergency medical response teams, sanitation workers, nurses at public hospitals. All of these State and local governments are critical if we are going to solve the economic problem and the COVID–19 problem.

While the Heroes Act provided the level of fiscal support unanimously recommended by the National Governors Association—I want to repeat that. This is not a Democratic idea. Unanimously, the Governors of our States, red and blue States, said we need this money—this bill recognizes the reality that—faced with a Senate Republican leader who suggested that the States go bankrupt—that level might not be possible.

So we reduced that sum in half, cut out $1 trillion of the proposal we thought had merit; actually, $1.2 trillion.

So we offer a compromise: 1 year of funding, cutting in half that which was in the Heroes Act, yet still sufficient to get us into next year.

This legislation renews the expanded emergency unemployment insurance benefits that millions of people are relying on.

And by the way, it goes to them, but what do they do with it, Mr. Speaker? They spend it in the economy at those small businesses that Republicans are worried about, that all of us are worried about.

When we give a family the sustenance that they need to support themselves and the family, they go spend it where? Small businesses and large businesses.

We give that $600 a week through the end of January 2021, which will help small businesses and the general economy.

It will provide another round of direct payments to Americans of $1,200 for each individual adult and $500 to eligible dependents to help families make ends meet.

□ 1830

I think all of you have voted—it might have been a voice vote on the CARES Act, but everybody voted for it. And we are making sure college students aren't left out.

Our bill offers a second round of the Paycheck Protection Program to help small businesses remain viable through the pandemic and includes additional support for workers in the airline, restaurant, and live-entertainment industries. It covers a whole lot of folks who need help.

For 4½ months after we passed the bill, the Senate has not sent us a single piece of legislation, not a single piece because Senator MCCONNELL will not compromise so he can get votes from the Democrats, which he needs to pass a bill, just as John Boehner and Paul Ryan crossed the aisle because they needed the votes for bills they thought were critically important for our country.

To help reopen the economy safely, the bill also includes $75 billion for testing, contact tracing, and other public health initiatives.

And it provides a lifeline to the Postal Service. Now, I know that may be objectionable to some people because they may want to see the mail delayed, for whatever reasons.

I want to thank Chairwoman LOWEY of the Appropriations Committee and all the other chairs and members of all of our committees who worked hard on this legislation. It includes input and contributions from many Members, including many of our outstanding freshmen.

This bill represents a substantial reduction, a 35 percent reduction. I tell my friends who served on the Appropriations Committee with me, if I was in charge and we wanted to make a deal and I said, ''Well, I will come down 35 percent,'' they would have taken it like that.

It is approximately the level of funding—somebody mentioned $2.2 trillion. The CARES Act was $2.2 trillion, and all of you voted for it. It was a voice vote, unanimous. I don't know specifically whether you were here or whether you would say, ''No, no. Silently, I voted no.'' Nobody voted against it, $2.2 trillion.

It is extraordinary the amount of money we are spending, Mr. Speaker. But then again, no one in this body, of whatever age, has experienced the crisis that America has found itself in over the last 8 months—no one.

Every economist said it required that kind of response, and that is why we voted for four bills in a bipartisan way. But then the leadership on the other side of the aisle, Mr. Speaker, said: Let's wait and see what happens.

And, as I said: 120,000 people have died. That is what happened.

We passed an emergency supplemental appropriations bill, 415–2. We passed the Families First Act, 363–40. We passed the CARES Act by voice vote. Nobody voted against it, at least audibly. And the Paycheck Protection Program and Healthcare Enhancement Act was passed by the House on April 23 by a vote of 383–5.

What has changed? The politics have changed.

The needs, Mr. Speaker, have not changed. All four of those bills passed the Senate and were signed into law. Some passed by unanimous consent by the United States Senate.

I urge President Trump and Senate Republicans to work with us to reach bipartisan agreement without further delay.

Yes, we have differences. But we have great needs, and I agree with those on the other side of the aisle and on this side of the aisle who said we must meet those needs if we are going to keep our economy going, keep our families intact, and make sure that we have jobs for the future.

Millions of American families, workers, and small business owners are looking to Congress for help.

Let us, Mr. Speaker, come together, as we have four times came together overwhelmingly and said—not this is a lot of money. It is a lot of money. I am boggled by the figures that we are dealing with. But I am also boggled by the challenge that we confront.

This bill represents a significant compromise, while addressing the priorities we share.

Mr. Speaker, I hope we can show the American people that we can come together to govern responsibly in this crisis and provide much-needed relief to the people we serve.

People pick out individual items in this bill and, unfortunately, deeply mischaracterize some of them. Fake facts are being debated on this floor, Mr. Speaker. I don't have the time to go into all those fake facts.

One of them, though, was that we are defunding the police. There was $600 million in the COPS program in the Heroes bill. Then, subsequently, we passed an appropriations bill at $343 million.

By the way, the Senate hasn't passed a single bill to fund anything—anything—Mr. Speaker.

What did the President do? The President zero-funded—if you will check your budget—zero-funded the COPS program. Zero-funded it. Check it out.

Mr. Speaker, I urge my colleagues to vote for this bill, and I guarantee you that we are going to continue tomorrow and tomorrow and tomorrow to try to get an agreement that we can pass in the House and the Senate, and that the President will sign, because we understand the American people are in need. That is what this bill does, responds to them.

If the Senate doesn't like it, have them pass a bill. Let us go to conference. Let's get it done. We will be here to do it every day.

Ms. GRANGER. Mr. Speaker, I yield 2 minutes to the gentleman from Ohio (Mr. GONZALEZ).

Mr. GONZALEZ of Ohio. Mr. Speaker, I rise in opposition to the legislation before us today.

The gentleman was referencing the budget. We are still waiting for his budget. We will take it whenever he is ready.

Let's be clear about what we are doing today. We are going to be voting on a piece of legislation that was not negotiated, will be dead on arrival in the Senate, and will do nothing for the millions of Americans who are relying on this body to find a solution.

This bill before us today is about wanting the politics of the issue more than results. This is a bill that rejects $1.7 trillion in bipartisan COVID aid that will help families navigate some of the most difficult moments of their lives in favor of zero dollars that will help absolutely no one except for a handful of politicians who want the message more than the result. What a disgrace.

The sad truth is my colleagues know exactly what they are doing. How, in good faith, could they say that this legislation, which takes steps to federalize U.S. elections, that provides a tax break for millionaires and billionaires in blue States—that is right—and directs ICE to release individuals in custody, is an attempt to help their constituents, knowing full well that these provisions will not be signed into law?

Just this morning, the Speaker of the House said that we are not only having a dollars debate, but we are having a values debate. Well, I have heard from the people of Ohio's 16th District and many around the country about what they value since this pandemic broke out.

My constituents value a Congress that puts the people over the politics. They value a Congress that could care less about which party wins or loses an election, so long as, in their greatest moment of need, their government is there for them.

The people are sick and tired of watching this town fight like cats and dogs over who ''wins'' the day. They want to win, and they win when we do our job. That is not what is happening today, and the American people are rightly disgusted.

Just 2 weeks ago, my colleagues from the Problem Solvers Caucus, with 25 members from each side of the aisle, put forward a proposal that showed that we can and should work together on a proposal that keeps our small businesses open, protects our children and schools, helps those who are still unemployed, and offers additional aid to States and localities.

I heard from people across all sides of the political spectrum that this caucus and our package gave them hope that Congress could actually do something for a change. Yet, here we are.

The SPEAKER pro tempore. The time of the gentleman has expired.

Ms. GRANGER. Mr. Speaker, I yield the gentleman from Ohio an additional 1 minute.

Mr. GONZALEZ of Ohio. Yet, here we are, ready to let down the people we serve yet again.

Despite all of this, there remains a path forward to a solution, but it will take leadership on both sides of the aisle to cast aside their partisan hats and negotiate in good faith.

Let me be clear in saying that leadership doesn't need to just come from our elected party leaders. Each Member of the House has a say in how they choose to vote today. A ''yes'' vote is for the status quo, political messaging, and nothing for the American people. A ''no'' vote is a recognition that there is more work to be done and that there is still an opportunity for us to act in the best interest of our constituents.

We have to deliver. It is time.

Mrs. LOWEY. Mr. Speaker, I am very pleased to yield 5 minutes to the distinguished gentleman from New Jersey (Mr. PALLONE), the chairman of the Committee on Energy and Commerce, a member of my class in the Congress.

Mr. PALLONE. Mr. Speaker, I want to thank the chairwoman and commend her for putting together a bill which, while it reduces the amount of money from the original Heroes Act, in my opinion, because of the lessons we have learned in the last few weeks, improves the Heroes Act because of what we have learned.

I know that is not an easy task, Madam Chair. I know that is not an easy task, what you have accomplished here today, so I want to congratulate you.

I also want to say, in response to my colleague on the other side from Ohio, this is a serious attempt to put something forward that we believe that the Republicans can support. Now, maybe they are not going to do it today.

But I just want to say that our Speaker—when I say ''our,'' I mean the Speaker, because she is, you know, the Speaker for the entire House and the entire country—has worked so hard over the last few weeks and months to try to come together with the Republicans. She just met yesterday, and maybe even today again, with Mr. Mnuchin from the White House.

To suggest in any way that this is anything other than a serious attempt by Democrats to put forward something that we think the Republicans can ultimately adopt, or come close to what they would ultimately support, I think is unfortunate because that is what we are doing here today.

I want to go back to what Speaker PELOSI said earlier when she said that what we are really trying to do is crush the virus, and I want to talk about that because much of that language that would accomplish that comes from the Energy and Commerce Committee that I chair.

This is the United States of America. I know we are elected from individual districts, but we come here to represent the whole country. The fact of the matter is the only way that we can crush this virus and end this pandemic is if we work together on a national level to accomplish it.

So what we say in the Heroes Act, both the old one and the new one, is that we need a national plan, and we need a way to bring forth that national plan.

What is happening now is every State competes. I get so mad when I watch the TV and they say Ohio is doing better this week, or New Jersey is doing worse this week. That is not what this is about.

This has to be a united effort. It is the United States of America. And that is not what we have right now because each State is competing, competing for testing, competing for medical supplies, deciding on an individual basis. The hospitals even compete between themselves, and that is not the way it should be.

What we say in the Heroes Act, and it is carried forth again in this legislation today, is a national plan, someone in charge at a national level—I will call it a supply czar for the supply chain—that sets parameters, if you will, for how to crush the virus, guidelines for the schools, for how you should wear a mask, not necessarily all the details, but essentially a national plan, and then delivers the testing supplies, the medical supplies, and, ultimately, the vaccine.

One of the things that is such an improvement in this bill is not only do we continue the $75 billion for testing and contact tracing and quarantine, but we also provide another $25 or $26 billion for distribution, development, and awareness of the vaccine when it is eventually developed because, again, this has to be done equitably. It has to be done nationally. That is what I really want to stress today.

I don't necessarily need to use all my time, Madam Speaker, because I want to stress that we have to do this together, and that is what this bill puts forward.

Let me just say, in addition to that, because I do want to mention a few other things, we have $2 billion in new funding to get essential workers their protective personal and work equipment that they need.

We also have new provisions to address insurance companies declining to cover COVID testing. In the CARES Act, we said that everyone should be able to get a test for free, no out-of-pocket expense.

The bill extends that to the treatment, to the drugs and the vaccine. But the insurance companies, in many cases, are not doing that. So we want to make it quite clear that they have to cover it free, and there is no out-of-pocket expense. And that would be true for the treatment; that would be true for the vaccination as well.

Again, we are one country. I can't stress that enough.

Now, the other thing that is a major problem, and I want to mention it

briefly, is the ability to connect to the internet because the bottom line right now is if you are not in school and you are learning remotely, or you are working remotely, you need to have an internet connection.

□ 1845

There is a lot of inequality with that around the country, too, so the legislation addresses the digital divide by providing $12 billion to schools and libraries for distance learning, for remote learning.

We also continue to help low-income households afford internet service by saying they have to have a discount for service by $50 a month. We have to continue and enhance the lifeline program, which helps people of low income pay the bills for those internet connections.

The last thing I want to mention also is that, finally, we also prevent the shutoffs for any kind of utilities, water service, and other shutoffs, because that is important as well.

So I thank the chair again for the time.

Ms. GRANGER. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. MCCARTHY), who is the Republican leader.

Mr. MCCARTHY. Mr. Speaker, I thank the gentlewoman for yielding.

I just listened to the last speaker, Mr. Speaker. He said that he had a bill that he thought and hoped maybe the Republicans could support, and he used the word, ''united.''

Do you know the easiest way to know if the Republicans support it? Ask them. Let them in the room. Actually work with them. That is probably a quicker way. The united part is a little difficult if you want to unite people and you leave them out.

So let me recap. Having been the leader on this side of the aisle and having worked on numerous COVID relief bills, let's recap what we have gone through each and every time we try to bring America relief.

Mr. Speaker, do you know what? Let's not take my word for it. Let's just read the headlines. I think that will work best.

March 22, The New York Times: ''Emergency Economic Rescue Plan in Limbo as Democrats Block Action.''

Yes, that was The New York Times. That was March 22.

So let's go to April 9. Let's go to the NPR: ''Senate Democrats Block GOP Effort to Boost Small Business Aid.''

A week later, we watched the Speaker of this House appear on ''The Late Show,'' bragging about blocking the relief while eating high-end ice cream. For reference, there were 22 million unemployed Americans at that time.

August 3, CBS News said: Democrats Reject White House Offer for Short-Term Extension of Unemployment Benefits.''

Let's go to September 10, Politico: ''Senate Democrats Block Republican COVID Relief Proposal.''

That is weird. All those headlines, and I never heard ''united.'' I did hear ''blocking.'' I did see the Speaker.

Now, Mr. Speaker, let me tell you a little bit of my personal experience. When we wanted to do the CARES Act, the Senate worked with Republicans and Democrats by committee. They put the bill together. You listened to Leader SCHUMER, that night, say: Yes, we are ready to go. The bill is prepared.

I took the red-eye and flew back. The Speaker did, too. We went into the meeting together. And do you know what, Mr. Speaker? Just read one of these headlines. The Speaker was able to stop it for another whole week.

How many people were laid off that week?

But do you know what? There was change in the bill. The John F. Kennedy Center for the Performing Arts got a little more, but that was the only thing, and then we were able to pass it.

In there, we were able to produce the PPP for small businesses. It allows you to pay your rent and your utilities. But you took that money and you paid your employees.

Why were you paying your employees? Because government shut down your business.

Was it successful? Whoa, was it successful.

Did it go to the owner? No. It went to the people. It went to the workers. Fifty million workers were saved. It was so powerful and so successful that the money was running out.

So do you know what, Mr. Speaker? The Treasury Secretary sent a letter to us and said: You don't need to change anything. Just add a little more money because it is so successful at saving so many jobs.

Well, we got our answer. One person stopped it all, and she did it on ''The Late Show'' for all of America to see.

Mr. Speaker, do you remember her smiling as she opened that refrigerator and denied those 22 million people, that they were going to join those unemployment lines, and she was going to smile about it because she had her ice cream.

Do you know what happened, Mr. Speaker? I listened to the Speaker's words. She said: Do you know what? We are going to get this done. We are not going to leave.

Because she has all the power of whether we stay in here and do our job or not. It doesn't matter if one-third on the other side stays home and votes by proxy and still gets their paycheck. She had everybody leave.

But then I had hope. I had hope for those who were unemployed. I had hope for those who wanted to go back to school and needed the money, because the Speaker called an emergency meeting and forced us to come back here. So I thought maybe she changed, maybe actually what she said she meant this time. So she was going to force Congress back, and she did.

Do you know what? One-third on other side didn't show because they didn't think it was an emergency.

Was it about COVID relief? Was it about the American people who were hurting? No. No. No. No. No. No. It was about the post office. It was political. So we should have everybody come back.

When you are in the minority, there are only certain rules you have and certain options to put something on the floor. So do you know what the Republicans chose to do that day, Mr. Speaker, when the Democrats chose to talk about the post office? We put COVID relief on the floor. So there was an option. There was an opportunity.

The power of the Speaker rose again. She put her thumb down and everybody else on the other side followed.

So do you know what, Mr. Speaker? The American public lost that day, too. They lost one more time.

The facts speak for themselves. The common denominator in holding up relief for the American people is very simple: Speaker PELOSI. She spent the last several months stonewalling negotiations instead of working to solve problems.

You know why we are here today, Mr. Speaker? It is because Republicans put a discharge petition on the floor.

I wonder why we got out early last Friday. Hmm. The discharge petition must have become ripe where people could sign it.

When her Members revolted, she responded by recycling an old, unrelated liberal wish list from her first bill.

Now, at a time when 837 more Americans are filing for unemployment and small businesses are closing permanently, she is wasting Americans' time on yet another multitrillion-dollar special interest bailout that rewards K Street and not Main Street.

Today's so-called compromise isn't realistic or responsible. It is the Pelosi pipe dream 2.0, and it is filled with the same radical, reckless, and ridiculous ideas as the first bill.

Instead of prioritizing new money for small businesses through the Paycheck Protection Program, it provides a massive tax break to the millionaires and billionaires who are totally unrelated to the coronavirus.

Now, let me give you an example. Let's take one person in America who is going to benefit from this. Mr. Speaker, you actually ought to rename this bill the Mike Bloomberg bill.

Mike Bloomberg is reported to have made $3.5 billion last year. He lives in New York. So if you take the State and local taxes and you combine it, it is 12.5 percent. So that would mean, if this bill passes, you just gave him $160 million in his pocket.

That is an interesting number, 160 million. I wonder if $160 million is how much he would save. How would that affect him?

Well, I just read a couple reports, Mr. Speaker. Do you know Michael Bloomberg just put $100 million into Florida to win it for Joe Biden?

In another interesting report, he had given the Democrats $60 million to help

them try to keep the majority this year.

What is even more interesting, Michael Bloomberg ran for President, and when he was on stage, do you know what he said? He said he bought the Democrats the majority. He said he spent $100 million. He bragged about the individuals that he was able to spend that money on.

Hmm. Some people would wonder if that was money well spent. Some people might wonder if they read that bill: Hmm, $160 million.

What does that mean to the person who is unemployed? I don't think Mike Bloomberg needs that.

I know a lot of small businesses and I know a lot of unemployed workers who need the money, but you chose somebody else to respond to. You chose somebody else to reward. Shame on you.

Instead of guaranteeing commonsense protections against frivolous lawsuits for schools, for small businesses, for childcare, and for churches, it gives amnesty, work visas, and taxpayer-funded stimulus checks to illegal immigrants.

Lots of times when you read a bill, you see what you prioritize.

Instead of boosting jobs, it bails out the cannabis industry.

Mr. Speaker, have you read your own bill? In fact, it mentions cannabis more than it mentions jobs. Did you read the bill? It mentions cannabis more than it mentions jobs.

I would challenge anybody in this body to name me one time in their district in one meeting that it mentioned cannabis more than it mentioned jobs with what you are going through right now. Our districts may be different, but I don't believe anybody has that.

Instead of reopening the economy, it releases criminals to our communities. Democrats think the economy should be locked down, but they don't think serial killers should be locked up.

But the Speaker's latest bill does have a noteworthy difference from the original.

At a time when the leftwing mobs are creating chaos in our cities, the bill unequivocally embraces the left's defund the police agenda. In fact, it removes $600 million of the emergency funding for State and local enforcement and community-oriented policing that was in the first bill. That is where they cut. Democrats actually believe the top priority of Congress is fewer cops and more criminals.

Again, sometimes when you read the bills, it lets people know their priorities.

I listened to the Speaker before. She always told me that bills show your values. I heard the Speaker recently say that the Democrats' values are different from Republicans'.

These are your values. Yes, they are. Yes, they are.

Another striking difference is the tens of billions of dollars for public education to combat misinformation about the coronavirus vaccine.

Mr. Speaker, I was happy to hear my colleague on the other side speak a little earlier about the vaccine. I was excited because the Democrat nominee for President and the person he choose to be his running mate don't think that people should take the vaccine even though it is going to be safe and effective and save people's lives.

It is interesting. The individual who is running for President on the Democrat side said that he is the Democratic Party.

Joe Biden, KAMALA HARRIS, and Speaker PELOSI actively spread in public, over the last few weeks, misinformation about an ability to save lives. American families, workers, and small businesses will continue to pay the price for Democrats' refusal to take this crisis seriously.

It doesn't have to be this way. That is the worst part of all of this. It doesn't have to be this way. As the past several months have proven, targeted and timely relief related to COVID hardship actually works.

Fifty million people are without a paycheck because of PPP.

I can't tell you how many people got laid off for every time Speaker PELOSI has delayed our bills.

I can't tell you how many households and how many businesses have gone bankrupt because she didn't keep her word and say that we would stay here and do it.

I can't tell you how many more people wonder if their kids can go to college because NANCY PELOSI, our Speaker, called us back for an emergency, but it wasn't about COVID.

□ 1900

Instead of using American's suffering as leverage to pass a socialist agenda, Congress should be working on getting the American people back to work safely and back to school safely.

Republicans have spent months using every tool available to the minority to build on the CARES Act and get support to Main Street. The American public actually ought to see how people vote here, because just yesterday we put on the floor a vote for PPP. Every single Democrat voted ''no.'' Every single one. It is something they have already supported before. Money is already sitting there—more than $130 billion.

This month, our efforts culminated in a discharge petition to reopen the Paycheck Protection Program, which I have said, has already saved 51 million jobs.

Mr. Speaker, to the American public, what does a discharge petition mean? You see, the Speaker, whoever he or she is, has all the power. They can determine what comes to the floor. But a discharge petition gives the power to the Members. All it takes is 218 Members to sign it. The public knows what it is. All it would do is take the money that is there for the Paycheck Protection Program and make sure the bill comes to the floor and could be voted on. It will be really telling to know how many people back home say they support it and how many times they come here and are fearful, fearful if there are threats if they sign the discharge petition.

The petition is being led by Ranking Member STEVE CHABOT, and JAIME HERRERA BEUTLER. I thank both of them. Because you know what they have done? They put the American people first.

STEVE CHABOT, ranking member of Committee on Small Business, when we were crafting the CARES bill, where the PPP was created—yes, it was him who worked so hard to make sure the small businesses, those who are employed by them, got resources. He did an amazing job.

JAIME HERRERA BEUTLER is probably one of the most bipartisan Members in this body. They didn't do it for political gain. They did it because they listened to their district.

As of Friday, this commonsense solution officially became open for signatures—just 218 to earn a vote on the floor. I think it deserves a vote. I think if you took it to the public, they would pick that a lot sooner than they would pick what this bill is doing.

Mr. Speaker, every Member of this body must make a choice tonight. Members who endorse the Speaker's reckless actions can vote ''yes'' on this recycled liberal wish list. Then they can go home and explain to small businesses in their district why they prioritized politics over people.

They could stand up and say, No, we worked hard for cannabis, a lot harder than we worked for jobs. We made sure the police got cut, and we made sure Mike Bloomberg got paid back. Now that $160 million that he is spending in the campaign today, he will get it all back because the taxpayers will pay him for it. That is exactly what this bill does. It could be the Michael Bloomberg, Cannabis, Cut-the-Cops bill. That is power. That is real power. You can make sure Michael Bloomberg does not lose $1 of the $160 million he has invested to make sure that Joe Biden and the Democrats stay in power.

If you are that proud of this bill, why don't you name what it does? It makes sure all Americans know that cannabis is your number one priority, not jobs.

It makes sure that you take care of those who take care of you in a campaign—Michael Bloomberg.

And it makes sure everybody knows you do not care about the safety of our streets, that you are going to cut the police by $600 million.

That is one heck of a campaign. That is amazing. What is interesting, so many times the leaders, people have said here, the Speaker of the House, she is the Speaker for all of America. And she always tells us, This will tell you what your values are. And I remember what she recently said, That our values are different.

I want to agree with the Speaker. Our values are different. On this side of

the aisle, we believe in a commitment to America. We believe that we will defeat this virus because we will create a safe and secure vaccine. The other difference in our values? Our commitment to America. You can read it. You can go to CommitmentToAmerica.com. And we actually reject defunding the police. We say we will spend $1.75 billion more on the police, not cut by $600 million. You know what we will do with the money? Community policing, more training, and 500,000 body cameras.

We also have a plan. We can tell you how many jobs we are going to create. We are going to create 10 million new jobs. I don't know how big you will expand the marijuana business, but in here, it mentions that more than jobs.

We are going to end the dependency on China. We don't just say it, we actually do it. We just came out with a task force that not only shows you the problem, it shows you the solution.

Mr. Speaker, you know what we did different than what you did with this bill? We didn't produce something and say, Well, we think the Democrats might like some of this. We actually invited you to join us.

Mr. Speaker, a year ago, I went to the Speaker, and I asked her if we could create a bipartisan committee dealing with China. China is representing its 71st anniversary. There is no more freedom in China today than there was 31 years ago in Tiananmen Square.

It took me 8 months of negotiation with the Democrat leadership until they finally said, yes. We actually picked the people who were going to be on it. And right before we went to name it, they decided no. They didn't want to be a part of it. This was before COVID. I just don't understand it. I just don't understand why our values are that different.

Members who want to bring an end to the Speaker's excuses, who believe this is a moment to work for Main Street not K Street should vote ''no'' and sign the Herrera Beutler-Chabot discharge petition. By adding your name, you will be advancing a fair process towards making bipartisan law for American families. That is what our neighborhoods need. They need us to legislate for them, not posture for November.

Mr. Speaker, I urge all my Democrat colleagues to join us. Make a commitment to America, not to Michael Bloomberg, not to cannabis. Focus on who actually voted for you to get here. Do not be so intimidated because somebody supplied so many millions of dollars to try to persuade people to vote a certain way. Listen to those who have been laid off.

I know what it is like to have a dream to open a small business. I know what the hardships are like, but I have not witnessed personally the hardship of what the virus has done when they have been shut down. The least I would expect is this body would act, would put people before politics. But, unfortunately, yes, the values of one side are different than ours.

Every chance we have we have put forth relief for the American public, and the only opportunity we have now is the discharge petition, because no one definitely can vote for this.

Mrs. LOWEY. Mr. Speaker, I yield 2 minutes to the gentleman from Georgia (Mr. BISHOP), the distinguished chair of the Subcommittee on Agriculture, Rural Development, Food and Drug Administration, and Related Agencies.

Mr. BISHOP of Georgia. Mr. Speaker, I thank the gentlewoman for yielding. Mr. Speaker, I rise in support of this updated Heroes Act. This bill is about people and not about politics.

As chairman of the Subcommittee on Agriculture, Rural Development, Food and Drug Administration, and Related Agencies, I will highlight the important provisions of this bill from my section, which touches the lives of every American in some way.

It provides a total of $15.4 billion to help Americans put food on the table, to keep their homes, protect agricultural products from pests and diseases, deliver stress assistance to our farmers and producers, and evaluate coronavirus vaccine applications.

We provide $10 billion to SNAP, an additional $400 million for WIC, for working families who have lost their jobs and are laid off due to the COVID–19 emergency. We included $450 million for TEFAP food banks, and $1.2 billion for nutrition assistance for the territories. All of these programs will increase food security during this crisis.

To keep our food supply safe and thriving during the COVID–19 pandemic, we provided $350 million for the Agricultural Quarantine Inspection Program. We included $2.5 million for the USDA Office of Inspector General to increase their monitoring and oversight activities.

For our farmers and producers who are under increased pressure in an already difficult environment, we provided $20 million to activities and services to provide stress assistance resources.

For our rural Americans, we included $10 million to address the increased workload for the Rural Development program employees; $2.6 billion for grants to our rural electric co-ops so the lights can stay on; and $309 million to the Rural Housing Service to assist rural tenants who have lost their jobs in this pandemic.

Finally, so we can begin to see light at the end of this COVID–19 tunnel, we provided $1.5 million to the Food and Drug Administration to support their safety evaluations of the coronavirus vaccine applications going forward.

Mr. Speaker, I urge my colleagues to support this bill. This is a good bill. It is long overdue. The American people need it and deserve it, and I urge my colleagues to pass it.

Ms. GRANGER. Mr. Speaker, I urge a ''no'' vote, and I yield back the balance of my time.

Mrs. LOWEY. Mr. Speaker, I urge a ''yes'' vote, and I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, as a senior member of the Committees on the Judiciary and on Homeland Security, I rise in strong support of Senate amendments to H.R. 925—America's Conservation Enhancement Act (an update of The Heroes Act), a much needed installment of the necessary assistance and relief provided by Congress to address the adverse health and economic impacts of the COVID–19 pandemic.

To date, there are more than 7,213,419 confirmed cases, over 206,402 dead, including 748,967 cases and 15,711 deaths in my home state of Texas.

I want to thank our frontline healthcare workers and essential workers for their sacrifice and commitment during this crisis.

I have worked along side medical professionals and public health experts in my city of Houston to open 33 remote testing sites.

This update of the HEROES Act provides an additional $2.2 trillion for protects lives, livelihoods and the life of our democracy.

This update to the HEROES Act is needed in order to have the economic vitality to reopen that allows a science-based path to safely reopen our country and helping ensure that every American can access free coronavirus treatment.

In support this legislation also because it provides strong support for our heroes fighting the pandemic on the front lines with nearly $1 trillion for state, local, territorial and tribal governments who desperately need funds to pay the health care workers, police, fire, transportation, and EMS personnel, along with teachers and other vital workers who keep us safe and are in danger of losing their jobs.

The Heroes Act update provides for: small businesses, by improving the Paycheck Protection Program to serve the smallest businesses and struggling nonprofits, hard-hit businesses with second loans, and targeted assistance for the struggling restaurant industry and independent live venue operators.

The bill also provides additional assistance for airline industry workers, extending the highly successful Payroll Support Program to keep airline industry workers paid.

There are more funds to bolster education and childcare, with $225 billion for education—including $182 billion for K–12 schools and nearly $39 billion for postsecondary education—and $57 billion to support child care for families.

Another reason to support this bill is that it puts money in the pockets of workers with a second round of direct payments to families of $1,200 for adults and $500 for each child, new payroll protection measures to keep 60 million workers connected with their jobs, and restores the weekly $600 federal unemployment payments through January 2021.

On top of that, by taking the necessary measures to slow the pandemic and 'flatten the curve' so as not to overwhelm the nation's health care system, economic activity in the United States has experienced a severe shock to the system.

There have been more than 36 million initial unemployment claims in the past month alone.

In addition, on March 23, 2020, the Dow Jones Industrial Average (DJIA) dipped to 18,321.62, which is even lower than it was on Election Night 2016, and far below the 19,827 mark where it stood on January 20, 2017.

In other words, Mr. Speaker, all the gains that were made to the stock market and heralded by this Administration as evidence of its genius have been wiped out, depleting the retirement savings and 401(k) fund of millions of ordinary Americans.

The situation is so dire that Federal Reserve Chair Jerome Powell, appointed by the current President, stressed the importance of Congress providing further fiscal relief, stating this week:

''While the economic response has been both timely and appropriately large, it may not be the final chapter, given that the path ahead is both highly uncertain and subject to significant downside risks. Additional fiscal support could be costly, but worth it if it helps avoid long-term economic damage and leaves us with a stronger recovery.''

The U.S. economy lost over 20 million jobs in April with the unemployment rate spiking to 14.7 percent, the worst since the Great Depression, but actual job losses were near 20 percent according to some estimates.

And in addition to the highly inequitable gender and racial impacts, this economic downturn reveals a strong class dimension to the unemployment wave, with 18.1 million of the 19.5 million jobs lost in the private sector last month classified as production and nonsupervisory workers as opposed to managers.

So, we have simultaneously a public health emergency and an economic calamity, both of which are addressed in the legislation before us.

But before we can get back on our feet economically and restore the booming economy inherited by the current Administration, Americans must be assured and confident that there is a plan and strategy to combat COVID–19; and the resources and commitment needed to implement the plan and execute the strategy.

And that means testing, testing, and more testing, along with contact tracing.

Mr. Speaker, the occasion demands that we rise, and I urge all Members to join me in voting to pass H.R. 925—America's Conservation Enhancement Act (an update of The Heroes Act).

Ms. DEGETTE. Mr. Speaker, I rise today in strong support of the Heroes Act.

Our country has weathered almost seven months of unrelenting tragedy.

200,000 Americans have died. Millions are out of work and millions more are struggling to get by. Families and businesses across the country need our help and they need it now.

As lawmakers, we have a responsibility to ensure we're doing everything in our power to respond to a crisis of this magnitude. The bill we have before us today is exactly the type of bold response that our country desperately needs.

We know that we can't fix our economic crisis without first addressing our public health crisis. The Heroes Act relies on a science-based approach to safely reopening our country, which is essential to ensuring the long-term success of rebuilding our communities.

Until we have a safe plan for vaccine development and distribution, Americans will not feel comfortable returning to work, schools, restaurants, or businesses at pre-pandemic levels.

And until we have a robust national testing and contact tracing system in place, we cannot begin to fully stem this pandemic.

The Heroes Act commits another $75 billion for testing, tracing and treatment.

It also commits another $20 billion to procure vaccine testing and vaccine candidates to prevent the spread of COVID–19, including a bill I authored that requires the Department of Health and Human Services to create a plan to distribute and administer vaccines to stop the spread of COVID–19 once such vaccines are developed and authorized.

We can't just work to prevent the spread of the disease, though. We must also find creative ways to ensure health care is accessible for every American who might need it.

No family should have to choose between putting food on the table or accessing COVID-19 treatment. It's not just wrong, it's dangerous.

I'm proud to say that our bill will require coverage of items and services related to the treatment of COVID–19, ensuring all Americans can seek treatment for COVID–19 without concern for how they're going to pay for it.

It will also provide a 12 month ban on evictions and foreclosures alongside $50 billion in emergency rental assistance and $21 billion in emergency homeowner assistance. On top of everything else they are going through, Americans do not need to worry about being thrown out of their home.

Additionally, the legislation includes my bill to make state and local governments eligible for paid leave payroll tax credits for workers affected by the coronavirus. Without these tax credits, the costs of providing paid leave could undermine successful local coronavirus responses at a time when budgets are already strained due to reduced tax revenues caused by the economic fallout of the pandemic.

Tens of millions of families and small businesses are becoming increasingly desperate amid the ongoing pandemic. House Democrats have been advocating for more money to be put directly into the pockets of these workers and families for months. The Heroes Act would provide a second round of direct payments to families, new payroll protection measures, and extended unemployment payments.

We cannot sit and wait for a solution—we must take bold legislative steps to protect our communities, and to prevent any more tragedy and loss.

The answer is clear: we have before us a bill that will help struggling families. A bill that will reinvigorate our economy, and take concrete steps to limit the spread of the virus.

This is the second time that we've had to vote to approve a version of the Heroes Act. The American people are depending on us. Let's do what we were elected to do, and pass it on behalf of all of them.

Mr. NADLER. Mr. Speaker, I rise in strong support of the updated Heroes Act (H.R. 925), a stimulus package that rises to the seriousness of the crisis that our Nation is facing.

I am pleased that this legislation once again provides economic relief for American families by providing stimulus checks, restoring and expanding the weekly $600 federal unemployment payments through next January, improving unemployment benefits for contract and mixed income workers, bolstering housing assistance through direct rent relief, and strengthening food access for families disproportionately impacted by the pandemic through a 15 percent increase in SNAP benefits. The updated Heroes Act also includes robust support for small businesses by improving the Paycheck Protection Program and providing the hardest-hit small businesses, nonprofits, and entrepreneurs with second loans.

I am incredibly proud that this package contains two pieces of legislation that I cosponsored to provide additional targeted assistance for struggling restaurants and live venues—the Restaurants Act and the Save Our Stages Act New York City independent restaurants and live entertainment venues and theaters have been devastated by the economic impacts of the pandemic, and this bill will provide the immediate relief they need to ensure they can survive as the lifeblood of our city and our neighborhoods. After leading the call for robust funding for our public transit agencies, I am pleased that this package contains substantial assistance for the MTA, which will allow it to continue operations into 2021. The economic relief in the updated Heroes Act is vital to New York City's ability to rebuild and restore its economy.

In addition to economic relief, the updated Heroes Act invests in the health and safety of the American people by providing an additional $75 billion for testing and tracing, an additional $28 billion to procure a safe and effective vaccine and strengthening worker safety protections. The package also includes provisions that will protect unemployed Americans losing their employer-provided health insurance by ensuring they receive the maximum ACA subsidy on the healthcare exchanges. The updated Heroes Act provides additional support by creating a special enrollment period in the ACA exchanges for unemployed Americans.

After fighting for urgently needed funding for New York City's schools, I am proud that this package includes $182 billion for K–12 schools, $39 billion to higher education institutions, and $57 billion to support childcare for families. The package also includes desperately needed funding for museums and libraries and targeted funding to support research universities that are leading clinical research into improving COVID–19 management.

Finally, I am proud that this legislation invests in safeguarding our democracy by fully funding the Postal Service, providing states with new resources to safeguard the safety and security of our elections, and ensuring the integrity of the 2020 Census.

It's been more than four months since House Democrats gathered on this floor to pass a $3.4 trillion COVID–19 relief package that included urgent funding to protect the lives and livelihoods of American families. Unfortunately, MITCH MCCONNELL and Senate Republicans failed to pass that bill and chose instead to ''wait and see'' how much worse the pandemic could get. Well they waited and they saw, and they still did nothing, even as the pandemic spread and millions of Americans remained out of work. Since House Democrats passed the stimulus package in May, the U.S. COVID–19 death toll has more than doubled to top 200,000. The American people are demanding relief, and it is long past time for Congress to assist them. I urge my colleagues across this aisle to stop playing politics and accept this robust and reasonable compromise for the good of the American people.

I urge my colleagues to vote Yay.

Ms. JOHNSON of Texas. Mr. Speaker, I rise in strong support of the updated Heroes Act we are considering on the floor today. We must recognize that the Nation is in great

need of continued emergency assistance—and this legislation, though not a total solution, is a step in the right direction. It prioritizes the needs of the Americans so that they are better prepared to endure the pandemic, as we continue to work together towards a long-term solution.

This updated bill includes several provisions from the original Heroes Act, which passed in the House of Representatives back in May. It also includes much-needed funding for hospitals, community health centers, testing, vaccine research, and related items that would ensure that our country can make a healthy recovery from the pandemic.

To address the economic impact of COVID–19, this bill assists millions of Americans by reinstating the Pandemic Unemployment Assistance, providing a special enrollment period for the health care marketplace, and creating additional tax credits for plans offered that are affordable for everyone.

I am pleased that this bill also addresses the priorities for my district, including emergency funding to resources for affordable housing and homelessness prevention. As co-chair of the Congressional Homelessness Caucus, I have been adamant that any stimulus package must include emergency rental assistance, which is included at $50 billion to help low-income renters avoid eviction due to our Nation's recent economic turmoil. This updated bill also includes $5 billion for Emergency Solutions Grants, which is critical to address the impact of coronavirus on individuals who are homeless or at risk of homelessness.

For the millions of small businesses across the country affected by the pandemic, this bill enhances the Paycheck Protection Program and allows for businesses to apply and receive a second PPP loan. It also helps restaurants struggling to survive the pandemic by creating a $120 billion grant program specifically for their industry. Finally, it eases the process for businesses to get their PPP loans forgiven by simplifying loan forgiveness for loans less than $150,000.

Additionally, this legislation provides assistance to state and local governments across the country, many of which have felt first-hand the adverse impacts COVID–19. This assistance would ensure that first responders and health professionals, who have been on the front lines keeping us safe during the pandemic, would no longer be faced with the possibility of losing their jobs. It would also help these governments continue to provide enhanced services during this time of crisis.

Unlike the CARES Act, this updated version of the Heroes Act would provide funding that would also go to smaller local governments with populations smaller than 50,000. I have heard from local government officials in my district, in cities like Cedar Hill and Lancaster, on how this additional funding would greatly impact the level of service they would be able to provide to their residents.

Over the past few months, I have heard from many constituents in my district employed by businesses in the transportation industry about the adverse effects of COVID–19 on their work. Workers in the aviation industry, who were at risk of being furloughed if Congress failed to act on updated relief legislation, will be provided with job security and additional benefits through the Payroll Support Program. The bill also includes $32 billion in funding for transit-related relief, which will help transit agencies retain employees and continue maintaining regular service.

One of the more important discussions we have had during the pandemic is how to safely reopen schools so that parents, students, teachers, administrators, and other school staff can remain safe and healthy. That is why I was glad to see that this bill provides $225 billion for education—including $182 billion for primary and secondary schools alone—and almost $39 billion for institutions for higher learning. This critical funding will help schools purchase the personal protective equipment necessary to protect the wellbeing of school officials and their students.

In the event of a second COVID–19 wave, schools may be forced to transition to hybrid or remote learning. Therefore, this bill takes a proactive approach to this possibility by providing $12 billion in funding for students to stay connected with mobile hotspots and devices like laptops and tablets. This funding stream would go a long way in helping close the homework gap and allowing internet access to rural and underserved communities across the country.

I am heartened that the Heroes Act also includes provisions to start to address the devastating impacts that the pandemic has had on university research as well as on our federal research agencies. Federally funded research, particularly research carried out at our universities, has long been a critical enabler of U.S. leadership in science and innovation, which in turn will play an important role in assuring our future competitiveness and economic well being. In addition, university research also plays a key role in preparing the next generation of STEM professionals.

The ongoing pandemic has put that research enterprise in serious jeopardy. Without assistance from the federal government, I am deeply concerned that many institutions may not survive, that years of important research will be lost, and that we will suffer irreparable harm to our talent pipeline. I am especially concerned that the fallout from this pandemic will undercut the gains we have made in diversifying our STEM pipeline, including the geographic diversity that will help communities across the Nation revitalize their economies in the coming years. To help deal with the disruptions to university research caused by the pandemic, this legislation provides almost $2.9 billion to the National Science Foundation (NSF), funding that will allow extensions of existing research grants, cooperative agreements, scholarships, fellowships, and apprenticeships. The Heroes Act also contains funding for NOAA, DOE, and NIST to help address the impact of the pandemic on those agencies operations and capabilities.

Taken together, these funding provisions are an important first step, but more needs to be done to mitigate the harmful impact of the pandemic on America's research enterprise and on the students and early-career researchers whose activities have been disrupted. I will continue to advocate for such measures in future legislation.

Finally, this bill provides a second round of direct cash assistance to qualifying Americans in the form of Economic Impact Payments. This new round of cash assistance would extend to mixed families and to students attending college up to the age of 24.

Mr. Speaker, overall, this bill takes great strides to help Americans suffering because of the pandemic, including those with COVID–19, those left unemployed, those on the front lines, and many others. I urge my colleagues to support it.

Mr. HORSFORD. Mr. Speaker, I am thankful for this bill being brought forward on COVID relief before the House goes out of session.

It is important to demonstrate to the American People that we are leading and willing to negotiate to provide real relief.

Unfortunately, this bill does not include a pivotal provision—the Worker that would provide federal assistance to cover the full cost of COBRA premiums for laid off and furloughed workers.

That policy is the only one that would protect the hard-earned benefits that union members and working families have fought for.

So while this bill takes many important steps to protect Medicaid and private coverage, it provides premium tax credits for unemployed Americans—I am concerned that protections for employer-sponsored plans were not included.

I urge this body to include all coverage measures in our relief package—including COBRA coverage for workers who have come to rely on their employer-sponsored plans.

The SPEAKER pro tempore. Pursuant to House Resolution 1161, the previous question is ordered.

The question is on the motion offered by the gentlewoman from New York (Mrs. LOWEY).

The question was taken; and the Speaker pro tempore announced that the noes appear to have it.

Mrs. LOWEY. Mr. Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

The vote was taken by electronic device, and there were—yeas 214, nays 207, not voting 10, as follows:

[Roll No. 214]

YEAS—214

Adams	Costa	Gomez
Aguilar	Courtney	Gonzalez (TX)
Allred	Cox (CA)	Gottheimer
Barragán	Craig	Green, Al (TX)
Bass	Crist	Grijalva
Beatty	Crow	Haaland
Bera	Cuellar	Harder (CA)
Beyer	Davis (CA)	Hastings
Bishop (GA)	Davis, Danny K.	Hayes
Blumenauer	Dean	Heck
Blunt Rochester	DeFazio	Higgins (NY)
Bonamici	DeGette	Himes
Boyle, Brendan F.	DeLauro	Houlahan
	DelBene	Hoyer
Brown (MD)	Delgado	Huffman
Brownley (CA)	Demings	Jackson Lee
Bustos	DeSaulnier	Jayapal
Butterfield	Deutch	Jeffries
Carbajal	Dingell	Johnson (GA)
Cárdenas	Doggett	Johnson (TX)
Carson (IN)	Doyle, Michael F.	Kaptur
Case		Keating
Casten (IL)	Engel	Kelly (IL)
Castor (FL)	Escobar	Kennedy
Castro (TX)	Eshoo	Khanna
Chu, Judy	Espaillat	Kildee
Cicilline	Evans	Kilmer
Cisneros	Finkenauer	Kim
Clark (MA)	Fletcher	Kind
Clarke (NY)	Foster	Kirkpatrick
Clay	Frankel	Krishnamoorthi
Cleaver	Fudge	Kuster (NH)
Clyburn	Gabbard	Langevin
Cohen	Gallego	Larsen (WA)
Connolly	Garamendi	Larson (CT)
Cooper	García (IL)	Lawrence
Correa	Garcia (TX)	Lawson (FL)

Lee (CA)
Lee (NV)
Levin (CA)
Levin (MI)
Lieu, Ted
Loebsack
Lofgren
Lowenthal
Lowey
Luján
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Matsui
McBath
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Mfume
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy (FL)
Nadler
Napolitano
Neal
Neguse
Norcross
O'Halleran
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Pelosi
Perlmutter
Peters
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Rice (NY)
Richmond
Rouda
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrier
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Soto
Speier
Stanton
Stevens
Suozzi
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Trahan
Trone
Underwood
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wild
Wilson (FL)
Yarmuth

NAYS—207

Abraham
Aderholt
Allen
Amash
Amodei
Armstrong
Arrington
Axne
Babin
Bacon
Baird
Balderson
Banks
Barr
Bergman
Biggs
Bilirakis
Bishop (NC)
Bishop (UT)
Bost
Brady
Brindisi
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Budd
Burchett
Burgess
Byrne
Calvert
Carter (GA)
Carter (TX)
Cartwright
Chabot
Cheney
Cline
Cloud
Cole
Collins (GA)
Comer
Conaway
Cook
Crawford
Crenshaw
Cunningham
Curtis
Davids (KS)
Davidson (OH)
Davis, Rodney
DesJarlais
Diaz-Balart
Duncan
Emmer
Estes
Ferguson
Fitzpatrick
Fleischmann
Flores
Fortenberry
Foxx (NC)
Fulcher
Gaetz
Gallagher
Garcia (CA)
Gianforte
Gibbs
Gohmert
Golden
Gonzalez (OH)
Gooden
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Hartzler
Hern, Kevin
Herrera Beutler
Hice (GA)
Higgins (LA)
Hill (AR)
Hollingsworth
Horn, Kendra S.
Horsford
Hudson
Huizenga
Hurd (TX)
Jacobs
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Katko
Keller
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger
Kustoff (TN)
LaHood
LaMalfa
Lamb
Lamborn
Latta
Lesko
Lipinski
Long
Lucas
Luetkemeyer
Luria
Marshall
Massie
Mast
McAdams
McCarthy
McCaul
McClintock
McKinley
Meuser
Miller
Moolenaar
Mooney (WV)
Murphy (NC)
Newhouse
Norman
Nunes
Olson
Palazzo
Palmer
Pence
Perry
Peterson
Phillips
Posey
Reed
Reschenthaler
Rice (SC)
Riggleman
Roby
Rodgers (WA)
Roe, David P.
Rogers (KY)
Rooney (FL)
Rose (NY)
Rose, John W.
Rouzer
Roy
Rutherford
Scalise
Schrader
Schweikert
Scott, Austin
Sensenbrenner
Shimkus
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spanberger
Spano
Stauber
Stefanik
Steil
Steube
Stewart
Stivers
Taylor
Thompson (PA)
Thornberry
Tiffany
Timmons
Tipton
Torres Small (NM)
Turner
Upton
Van Drew
Wagner
Walberg
Walden
Walker
Walorski
Waltz
Watkins
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoho
Young
Zeldin

NOT VOTING—10

Dunn
Graves (GA)
Holding
Loudermilk
Marchant
McHenry
Mitchell
Mullin
Rogers (AL)
Wright

□ 2002

Mr. BUCK changed his vote from ''yea'' to ''nay.''

So the motion to concur was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 965, 116TH CONGRESS

Beatty (Lawrence)
Butterfield (Kildee)
Chu, Judy (Takano)
DeGette (Blunt Rochester)
Demings (Castor (FL))
DeSaulnier (Matsui)
Frankel (Clark (MA))
Fudge (Bass)
Gallego (Stanton)
Garamendi (Sherman)
Grijalva (Garća (IL))
Hastings (Wasserman Schultz)
Hayes (Courtney)
Huffman (Kildee)
Johnson (TX) (Jeffries)
Kaptur (Dingell)
Kennedy (Kuster (NH))
Kirkpatrick (Stanton)
Langevin (Lynch)
Lawson (FL) (Evans)
Levin (MI) (Raskin)
Lieu, Ted (Beyer)
Lipinski (Cooper)
Lofgren (Jeffries)
Lowenthal (Beyer)
McEachin (Wexton)
Meeks (Jeffries)
Meng (Clark (MA))
Moore (Beyer)
Mucarsel-Powell (Wasserman Schultz)
Napolitano (Correa)
Payne (Wasserman Schultz)
Pingree (Clark (MA))
Pocan (Raskin)
Richmond (Davids (KS))
Rooney (FL) (Beyer)
Roybal-Allard (Aguilar)
Rush (Underwood)
Serrano (Jeffries)
Thompson (CA) (Kildee)
Titus (Connolly)
Watson Coleman (Pallone)
Wilson (FL) (Adams)

PROVIDING FOR CONSIDERATION OF H. RES. 1153, CONDEMNING UNWANTED, UNNECESSARY MEDICAL PROCEDURES ON INDIVIDUALS WITHOUT THEIR FULL, INFORMED CONSENT, AND PROVIDING FOR CONSIDERATION OF H. RES. 1154, CONDEMNING QANON AND REJECTING THE CONSPIRACY THEORIES IT PROMOTES

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on ordering the previous question on the resolution (H. Res. 1164) providing for consideration of the resolution (H. Res. 1153) condemning unwanted, unnecessary medical procedures on individuals without their full, informed consent, and providing for consideration of the resolution (H. Res. 1154) condemning QAnon and rejecting the conspiracy theories it promotes, on which the yeas and nays were ordered.

The Clerk read the title of the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The vote was taken by electronic device, and there were—yeas 226, nays 187, not voting 17, as follows:

[Roll No. 215]

YEAS—226

Adams
Aguilar
Allred
Axne
Barragán
Bass
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Boyle, Brendan F.
Brindisi
Brown (MD)
Brownley (CA)
Bustos
Butterfield
Carbajal
Cárdenas
Carson (IN)
Cartwright
Case
Casten (IL)
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Cisneros
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Cooper
Correa
Costa
Courtney
Cox (CA)
Craig
Crist
Crow
Cuellar
Cunningham
Davids (KS)
Davis (CA)
Davis, Danny K.
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Engel
Escobar
Eshoo
Espaillat
Evans
Finkenauer
Fletcher
Foster
Frankel
Fudge
Gabbard
Gallego
Garamendi
García (IL)
Garcia (TX)
Gomez
Gonzalez (TX)
Gottheimer
Green, Al (TX)
Grijalva
Haaland
Harder (CA)
Hastings
Hayes
Higgins (NY)
Himes
Horn, Kendra S.
Horsford
Houlahan
Hoyer
Huffman
Jackson Lee
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Kaptur
Keating
Kelly (IL)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kind
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Lamb
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Levin (CA)
Levin (MI)
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Luján
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Matsui
McAdams
McBath
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Mfume
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy (FL)
Nadler
Napolitano
Neal
Neguse
Norcross
O'Halleran
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Perlmutter
Peters
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Rice (NY)
Richmond
Rose (NY)
Rouda
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Soto
Spanberger
Speier
Stanton
Stevens
Suozzi
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Underwood
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wild
Wilson (FL)
Yarmuth

NAYS—187

Aderholt
Allen
Amash
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bergman
Biggs
Bilirakis
Bishop (NC)
Bishop (UT)
Bost
Brady
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Budd
Burchett
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Cheney
Cline
Cloud
Cole
Collins (GA)
Comer
Conaway
Cook

Crawford
Crenshaw
Curtis
Davidson (OH)
Davis, Rodney
DesJarlais
Diaz-Balart
Duncan
Emmer
Estes
Ferguson
Fitzpatrick
Fleischmann
Flores
Fortenberry
Foxx (NC)
Fulcher
Gaetz
Gallagher
Garcia (CA)
Gianforte
Gibbs
Gohmert
Golden
Gonzalez (OH)
Gooden
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Hartzler
Hern, Kevin
Herrera Beutler
Hice (GA)
Higgins (LA)
Hill (AR)
Hollingsworth
Hudson
Hurd (TX)
Jacobs
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Katko
Keller
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger
Kustoff (TN)
LaHood
LaMalfa
Lamborn
Latta
Lesko
Long
Lucas
Luetkemeyer
Marshall
Massie
Mast
McCarthy
McCaul
McClintock
McHenry
McKinley
Miller
Moolenaar
Mooney (WV)
Murphy (NC)
Newhouse
Norman
Nunes
Olson
Palazzo
Palmer
Pence
Perry
Peterson
Posey
Reed
Reschenthaler
Rice (SC)
Riggleman
Roby
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rogers (KY)
Rose, John W.
Rouzer
Roy
Rutherford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Shimkus
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spano
Stauber
Stefanik
Steil
Steube
Stewart
Stivers
Taylor
Thompson (PA)
Tiffany
Timmons
Tipton
Turner
Upton
Van Drew
Wagner
Walberg
Walden
Walker
Walorski
Waltz
Watkins
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoho
Young
Zeldin

NOT VOTING—17

Abraham
Burgess
Clay
Dunn
Graves (GA)
Heck
Holding
Huizenga
Loudermilk
Lowey
Marchant
Meuser
Mitchell
Mullin
Rooney (FL)
Thornberry
Wright

□ 2045

Ms. FOXX of North Carolina changed her vote from ''yea'' to ''nay.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 965, 116TH CONGRESS

Beatty (Lawrence)
Butterfield (Kildee)
Chu, Judy (Takano)
DeGette (Blunt Rochester)
Demings (Castor (FL))
DeSaulnier (Matsui)
Frankel (Clark (MA))
Fudge (Bass)
Gallego (Stanton)
Garamendi (Sherman)
Grijalva (García (IL))
Hastings (Wasserman Schultz)
Hayes (Courtney)
Huffman (Kildee)
Johnson (TX) (Jeffries)
Kaptur (Dingell)
Kennedy (Kuster (NH))
Kirkpatrick (Stanton)
Langevin (Lynch)
Lawson (FL) (Evans)
Levin (MI) (Raskin)
Lieu, Ted (Beyer)
Lipinski (Cooper)
Lofgren (Jeffries)
Lowenthal (Beyer)
McEachin (Wexton)
Meeks (Jeffries)
Meng (Clark (MA))
Moore (Beyer)
Mucarsel-Powell (Wasserman Schultz)
Napolitano (Correa)
Payne (Wasserman Schultz)
Pingree (Clark (MA))
Pocan (Raskin)
Richmond (Davids (KS))
Roybal-Allard (Aguilar)
Rush (Underwood)
Serrano (Jeffries)
Thompson (CA) (Kildee)
Titus (Connolly)
Watson Coleman (Pallone)
Wilson (FL) (Adams)

The SPEAKER pro tempore (Mr. CICILLINE). The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mrs. LESKO. Mr. Speaker, on that I demand the yeas and nays.

The SPEAKER pro tempore. Pursuant to section 3 of House Resolution 965, the yeas and nays are ordered.

The vote was taken by electronic device, and there were—yeas 226, nays 186, not voting 18, as follows:

[Roll No. 216]

YEAS—226

Adams
Aguilar
Allred
Axne
Barragán
Bass
Beatty
Bera
Beyer
Bishop (GA)
Blumenauer
Blunt Rochester
Bonamici
Boyle, Brendan F.
Brindisi
Brown (MD)
Brownley (CA)
Bustos
Butterfield
Carbajal
Cárdenas
Carson (IN)
Cartwright
Case
Casten (IL)
Castor (FL)
Castro (TX)
Chu, Judy
Cicilline
Cisneros
Clark (MA)
Clarke (NY)
Cleaver
Clyburn
Cohen
Connolly
Cooper
Correa
Costa
Courtney
Cox (CA)
Craig
Crist
Crow
Cuellar
Cunningham
Davids (KS)
Davis (CA)
Davis, Danny K.
Dean
DeFazio
DeGette
DeLauro
DelBene
Delgado
Demings
DeSaulnier
Deutch
Dingell
Doggett
Doyle, Michael F.
Engel
Escobar
Eshoo
Espaillat
Evans
Finkenauer
Fletcher
Foster
Frankel
Fudge
Gabbard
Gallego
Garamendi
García (IL)
Garcia (TX)
Golden
Gomez
Gonzalez (TX)
Gottheimer
Green, Al (TX)
Grijalva
Haaland
Harder (CA)
Hastings
Hayes
Higgins (NY)
Horn, Kendra S.
Horsford
Houlahan
Hoyer
Huffman
Jackson Lee
Jayapal
Jeffries
Johnson (GA)
Johnson (TX)
Kaptur
Keating
Kelly (IL)
Kennedy
Khanna
Kildee
Kilmer
Kim
Kind
Kirkpatrick
Krishnamoorthi
Kuster (NH)
Lamb
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lawson (FL)
Lee (CA)
Lee (NV)
Levin (CA)
Levin (MI)
Lieu, Ted
Lipinski
Loebsack
Lofgren
Lowenthal
Luján
Luria
Lynch
Malinowski
Maloney, Carolyn B.
Maloney, Sean
Matsui
McAdams
McBath
McCollum
McEachin
McGovern
McNerney
Meeks
Meng
Mfume
Moore
Morelle
Moulton
Mucarsel-Powell
Murphy (FL)
Nadler
Napolitano
Neal
Neguse
Norcross
O'Halleran
Ocasio-Cortez
Omar
Pallone
Panetta
Pappas
Pascrell
Payne
Perlmutter
Peters
Phillips
Pingree
Pocan
Porter
Pressley
Price (NC)
Quigley
Raskin
Rice (NY)
Richmond
Rose (NY)
Rouda
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan
Sánchez
Sarbanes
Scanlon
Schakowsky
Schiff
Schneider
Schrader
Schrier
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shalala
Sherman
Sherrill
Sires
Slotkin
Smith (WA)
Soto
Spanberger
Speier
Stanton
Stevens
Suozzi
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tlaib
Tonko
Torres (CA)
Torres Small (NM)
Trahan
Trone
Underwood
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Watson Coleman
Welch
Wexton
Wild
Wilson (FL)
Yarmuth

NAYS—186

Aderholt
Allen
Amash
Amodei
Armstrong
Arrington
Babin
Bacon
Baird
Balderson
Banks
Barr
Bergman
Biggs
Bilirakis
Bishop (NC)
Bishop (UT)
Bost
Brady
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Budd
Burchett
Byrne
Calvert
Carter (GA)
Carter (TX)
Chabot
Cheney
Cline
Cloud
Cole
Collins (GA)
Comer
Conaway
Cook
Crawford
Crenshaw
Curtis
Davidson (OH)
Davis, Rodney
DesJarlais
Diaz-Balart
Duncan
Emmer
Estes
Ferguson
Fitzpatrick
Fleischmann
Flores
Fortenberry
Foxx (NC)
Fulcher
Gaetz
Gallagher
Garcia (CA)
Gianforte
Gibbs
Gohmert
Gonzalez (OH)
Gooden
Gosar
Granger
Graves (LA)
Graves (MO)
Green (TN)
Griffith
Grothman
Guest
Guthrie
Hagedorn
Harris
Hartzler
Hern, Kevin
Herrera Beutler
Hice (GA)
Higgins (LA)
Hill (AR)
Hollingsworth
Hudson
Huizenga
Hurd (TX)
Jacobs
Johnson (LA)
Johnson (OH)
Johnson (SD)
Jordan
Joyce (OH)
Joyce (PA)
Katko
Keller
Kelly (MS)
Kelly (PA)
King (IA)
King (NY)
Kinzinger
Kustoff (TN)
LaHood
LaMalfa
Lamborn
Latta
Lesko
Long
Lucas
Luetkemeyer
Marshall
Mast
McCarthy
McCaul
McClintock
McHenry
McKinley
Meuser
Miller
Moolenaar
Mooney (WV)
Murphy (NC)
Newhouse
Norman
Nunes
Olson
Palazzo
Palmer
Pence
Perry
Peterson
Posey
Reed
Reschenthaler
Rice (SC)
Riggleman
Roby
Rodgers (WA)
Roe, David P.
Rogers (AL)
Rogers (KY)
Rose, John W.
Rouzer
Roy
Rutherford
Scalise
Schweikert
Scott, Austin
Sensenbrenner
Shimkus
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smucker
Spano
Stauber
Stefanik
Steil
Steube
Stewart
Stivers
Taylor
Thompson (PA)
Tiffany
Timmons
Tipton
Turner
Upton
Van Drew
Wagner
Walberg
Walden
Walker
Walorski
Waltz
Watkins
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Williams
Wilson (SC)
Wittman
Womack
Woodall
Young
Zeldin

NOT VOTING—18

Abraham
Burgess
Clay
Dunn
Graves (GA)
Heck
Himes
Holding
Loudermilk
Lowey
Marchant
Massie
Mitchell
Mullin
Rooney (FL)
Thornberry
Wright
Yoho

□ 2121

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

MEMBERS RECORDED PURSUANT TO HOUSE RESOLUTION 965, 116TH CONGRESS

Beatty (Lawrence)
Butterfield (Kildee)
Chu, Judy (Takano)
DeGette (Blunt Rochester)
Demings (Castor (FL))
DeSaulnier (Matsui)
Frankel (Clark (MA))
Fudge (Bass)
Gallego (Stanton)
Garamendi (Sherman)
Grijalva (García (IL))
Hastings (Wasserman Schultz)
Hayes (Courtney)
Huffman (Kildee)
Johnson (TX) (Jeffries)
Kaptur (Dingell)
Kennedy (Kuster (NH))
Kirkpatrick (Stanton)
Langevin (Lynch)
Lawson (FL) (Evans)
Levin (MI) (Raskin)
Lieu, Ted (Beyer)
Lipinski (Cooper)
Lofgren (Jeffries)
Lowenthal (Beyer)
McEachin (Wexton)
Meeks (Jeffries)
Meng (Clark (MA))
Moore (Beyer)
Mucarsel-Powell (Wasserman Schultz)
Napolitano (Correa)
Payne (Wasserman Schultz)

Pingree (Clark (MA))
Pocan (Raskin)
Richmond (Davids (KS))
Roybal-Allard (Aguilar)
Rush (Underwood)
Serrano (Jeffries)
Thompson (CA) (Kildee)
Titus (Connolly)
Watson Coleman (Pallone)
Wilson (FL) (Adams)

REQUEST TO CONSIDER S. 886, INDIAN WATER RIGHTS SETTLEMENT EXTENSION ACT

Mr. BISHOP of Utah. Mr. Speaker, I ask unanimous consent to take from the Speaker's desk S. 886 entitled the Indian Water Rights Settlement Extension Act, and ask for its immediate consideration in the House.

The SPEAKER pro tempore. Under guidelines consistently issued by successive Speakers, as recorded in section 956 of the House Rules and Manual, the Chair is constrained not to entertain the request unless it has been cleared by the bipartisan floor and committee leaderships.

PARLIAMENTARY INQUIRIES

Mr. BISHOP of Utah. Parliamentary inquiry, Mr. Speaker.

The SPEAKER pro tempore. The gentleman will state his parliamentary inquiry.

Mr. BISHOP of Utah. Mr. Speaker, since the minority leader is supportive, or I wouldn't be here, and I am the ranking member and I am supportive of it, and the Navajo Nation has been told. The chairman of the committee is in support of it, does that not constitute the clearance guidelines that would allow the Speaker to entertain the motion?

The SPEAKER pro tempore. A unanimous consent request for consideration of that measure would have to receive clearance by the majority and minority floor and committee leaderships. The Chair is unaware of such clearance; therefore, the Chair cannot entertain that request at this time.

Mr. BISHOP of Utah. Mr. Speaker, further parliamentary inquiry.

The SPEAKER pro tempore. The gentleman will state his parliamentary inquiry.

Mr. BISHOP of Utah. Mr. Speaker, does that clearance have to be in the form of a written statement to the Chair?

The SPEAKER pro tempore. As the Chair previously advised, that request cannot be entertained absent the appropriate clearance, which has not been received by the Chair.

Mr. BISHOP of Utah. Mr. Speaker, one final parliamentary inquiry.

The SPEAKER pro tempore. The gentleman will state his parliamentary inquiry.

Mr. BISHOP of Utah. Mr. Speaker, is the Speaker telling me that if the Republicans have cleared this bill and are in favor of it, it has to have a written clearance from the Democrat side more than simply verbal commitment to the Tribes?

The SPEAKER pro tempore. The Chair has previously stated the clearance is required and has not been received by the Chair.

Mr. BISHOP of Utah. Mr. Speaker, did you tell me the form the clearance has to have? In what form must it be?

The SPEAKER pro tempore. The Chair has advised only that appropriate clearance must be provided. It has not been so provided, and so the Chair cannot entertain the gentleman's request.

Mr. BISHOP of Utah. Mr. Speaker, thank you for your enlightenment.

REPLACING JUSTICE RUTH BADER GINSBURG

(Ms. ADAMS asked and was given permission to address the House for 1 minute.)

Ms. ADAMS. Mr. Speaker, Ruth Bader Ginsburg was the conscience of the Court and one of the greatest fighters American women have ever had. Justice Ginsburg's dissents spoke for all of us—with a righteous anger, a moral clarity, and an eye to equality.

Her lifetime of advocacy for women extended far beyond her service on the bench.

Though she is irreplaceable, Justice Ginsburg will have a successor. But Americans deserve better than an impeached President's last-minute nomination just weeks before the election.

We must honor Justice Ginsburg's dying wish that she not be replaced until the next President is installed. This nominee will shape the future of our country, and the American people deserve a say.

SUPPORT NOMINATION OF JUDGE AMY CONEY BARRETT

(Mrs. WALORSKI asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. WALORSKI. Mr. Speaker, I rise today along with members of the Indiana delegation in support of the nomination of Judge Amy Coney Barrett to the U.S. Supreme Court. We can think of no one better qualified to serve on the Nation's highest court than our fellow Hoosier, Judge Barrett.

Her record as a law professor and appellate judge demonstrates her first-rate legal mind and her unwavering commitment to constitutional principles. She graduated summa cum laude and first in her class at Notre Dame Law School, clerked for Judge Antonin Scalia, and returned to her alma mater as a highly respected professor.

In 2017, she was confirmed by the Senate on a bipartisan vote as judge on the Seventh Circuit Court of Appeals, where she currently serves.

Finally, Judge Barrett is a woman of faith and a dedicated mother of seven. Given her impeccable credentials, she should be qualified and confirmed without delay.

Mr. Speaker, we applaud President Trump for fulfilling his promise to appoint judges who will faithfully uphold the rule of law, defend the Constitution, and protect the life and liberty of every American.

□ 2130

IN PRAISE OF THE HEROIC ACTIONS OF HEIDI DREES

(Mr. CUNNINGHAM asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CUNNINGHAM. Mr. Speaker, I rise today to praise the heroic actions of Heidi Drees, a Jefferson Award winner.

On July 1, 2020, Heidi saved the life of a wounded Charleston County deputy, Mike Costanzo, after deciding to stop when she saw a crumbled human on the ground. Not only did she pull over to report and update details of the accident to 911, Heidi did what any courageous and kindhearted person would do; she comforted Deputy Costanzo in his dire time of need. Heidi held his hand, kept him alert, and she did not leave his side until medical professionals arrived on the scene.

Heidi and Mike have mutually agreed that they are connected for the rest of their lives, and Heidi knows that it was a higher power that put her there on that day.

I rise today to honor Heidi with the hope that she may be an inspiration to us all if we find ourselves in similar situations.

CELEBRATING THE LIFE OF BLAKE LOVETTE

(Ms. FOXX of North Carolina asked and was given permission to address the House for 1 minute.)

Ms. FOXX of North Carolina. Mr. Speaker, on Tuesday, Blake Lovette, a true giant not only in the North Carolina agriculture community, but in the civic community, passed away unexpectedly.

Blake was a good friend, and to say he made a profound impact on the Wilkes County community would be an understatement.

From his time on the Wilkes Board of Education to his role as the president of ConAgra Poultry, Blake was never satisfied with the status quo and believed that complacency was never an option. As chairman of the Wilkes County Republican Party, Blake exercised a level of diligence and grace that was second to none.

To Blake's family, I pray that God will continue to bless you and give you comfort during this difficult time.

HONORING JUSTICE RUTH BADER GINSBURG

(Ms. WASSERMAN SCHULTZ asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. WASSERMAN SCHULTZ. Mr. Speaker, I rise to honor a fearless visionary woman who has transcended

generations with her legal mind, compassion, and wit.

As a Jewish woman, she was a personal inspiration to me, my daughters, and millions of others who follow in her footsteps and are guided by the same values of justice and tikkun olam.

In Hebrew, there is a saying: ''May your memory be for a revolution.'' And that aim is our promise to Justice Ginsburg.

Around this country, access to vital reproductive healthcare is hanging on by a thread.

Yesterday marked the 44th anniversary of the Hyde Amendment.

Low-income women and women of color are forced to make tough economic decisions every day that often put their own lives and that of their families at risk because of their inability to access critical family planning.

Just Ginsburg fought for these women. For all women. She was a tireless defender of our Nation's promise of freedom, justice, and equality for all.

Yet with her passing, we find ourselves in a push to subvert reproductive rights and dismantle healthcare protections that 135 million people, including me, with a preexisting condition, rely upon.

Justice Ginsburg passed on Erev Rosh Hashanah, the start to the Jewish new year. They say that those who die on this day are a tzadik, or a person of righteousness. Ruth Bader Ginsburg was certainly that and more.

May Justice Ginsburg's memory be a blessing and her example a righteous inspiration for us all.

CELEBRATING HISPANIC HERITAGE MONTH

(Mr. NEWHOUSE asked and was given permission to address the House for 1 minute.)

Mr. NEWHOUSE. Mr. Speaker, today I rise in celebration of Hispanic Heritage Month.

In my home district of central Washington, the history and the culture of Hispanic Americans is woven into the fabric of our communities. From small businesses in manufacturing to agriculture and artistry, the success of our communities is dependent on the success of our diverse and vibrant Hispanic populations.

Earlier this year, the House passed legislation to finally establish the National Museum of the American Latino in our Nation's Capital. It is my hope that this museum will empower all of us to learn about and engage with the history of Hispanic Americans and their contributions to our history and our culture.

In central Washington and across the country, we are proud of our Hispanic friends and neighbors who prove that the American Dream is alive and well. Because of them, we are a stronger, more diverse, more prosperous society, and I urge my colleagues to join me in celebrating Hispanic Heritage Month.

FORT BEND COUNTY ROCKS ON

(Mr. OLSON asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. OLSON. Mr. Speaker, COVID–19 hit Fort Bend County hard in March. Our local concert venue, the Smart Financial Centre, has not rocked since, yet Fort Bend County has rocked on.

The Fort Bend Hope Clubhouse kept rocking—proof: ROCKS I received from the director, Kerry Beth Cottingham. We met Monday back home. She gave me these two rocks with a common message, #clubhouserocksTexas.

They rock because they are giving people with mental conditions the skills they need to build confidence and independence. Members choose every day where they want to work: work in the kitchen, go to class, clerical work, technical work, or just outreach about the magic happening at the clubhouse.

Keep rocking, Fort Bend Hope Clubhouse. Let's rock into Mental Health Awareness Week that starts next week.

Mahalo.

PAY TRIBUTE TO JUSTICE RUTH BADER GINSBURG BY VOTING

(Ms. JACKSON LEE asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. JACKSON LEE. Mr. Speaker, I take this time to not only speak to the American people about voting, but also just take a brief moment to pay a beginning tribute to Justice Ruth Bader Ginsburg. She deserves a much longer period of acknowledgment, and I am going to do so as we return back to Washington in the coming days and weeks. In fact, I believe that we should dedicate weeks and days of honoring Justice Ginsburg, even in the midst of this potential nomination to replace her.

I want to speak to the American people as we begin our journey toward November 3 and let them know of the precious right to vote, that citizenship gives them that very precious right to make their own decision. I have no right to tell them that, but as a Member of the United States Congress, I have an obligation to ensure that their vote is protected, however they vote.

I must ensure that there is a truthful understanding of mail ballots. Some States have been voting with mail ballots for decades. I must ensure that the mail ballots are protected, the early vote is protected, and, as well, it is protected on November 3.

I just want to indicate, Justice Ginsburg said in the Shelby case that the majority's logic was akin to ''throwing away your umbrella in a rainstorm because you are not getting wet.''

Justice Ginsburg believed in voting and voting protection. Let's pay tribute to her and vote.

Mr. Speaker, today I rise to honor Supreme Court Justice Ruth Bader Ginsburg, who died on Friday, September 18, 2020 at the age of 87 years old.

As a direct beneficiary of her advancement of women's rights and a long-time admirer of her vigorous defense of the Constitution, I am honored but heartbroken to pay tribute to Justice Ginsburg, an American hero, feminist icon, and role model to millions.

Today, tomorrow, and forever, the American people mourn the loss of a true titan, an American legend, and an inspiration.

Our thoughts and prayers are with Ruth's family, friends, and loved ones.

Ruth Bader Ginsburg dedicated her life to defending the Constitution and protecting the sanctity of America's democratic ideals, and we will forever be indebted to her service to this country.

Joan Ruth Bader, fondly nicknamed Kiki, was born on March 15, 1933 to an immigrant family and grew up in Brooklyn's Flatbush neighborhood.

Ruth Bader Ginsburg often spoke of her mother's large ambitions for her, and how the devastating loss of her mother's death at an early age instilled in her the determination to live a life that her mother would have been proud of.

And so, she did.

Ruth Bader attended Cornell University where she met Martin D. Ginsburg, her future husband and love of her life to whom she was married for 54 years.

At the age of 21, Ruth Bader graduated Phi Beta Kappa from Cornell with a Bachelor of Arts degree in Government on June 23, 1954, and was the highest-ranking female student in her graduating class.

A month after graduating from Cornell, Ruth and Martin were married and moved to Fort Sill, Oklahoma, where Martin was stationed as a Reserve Officers' Training Corps officer in the U.S. Army Reserve after his call-up to active duty.

To help support the family, Ruth Bader Ginsburg worked for the Social Security Administration office in Oklahoma, where she was demoted after becoming pregnant with her first child, Jane, who was born in 1955.

In the fall of 1956, Ruth Bader Ginsburg enrolled at Harvard Law School, where she was one of only 9 women in a class of about 500 men.

Harvard Law Dean Erwin Griswold reportedly invited all the female law students to dinner at his family home and asked the female law students, including Ginsburg, ''Why are you at Harvard Law School, taking the place of a man?''

When her husband took a job in New York City, Ruth Bader Ginsburg transferred to Columbia Law School and became the first woman to be on two major law reviews: Harvard Law Review and Columbia Law Review.

In 1959, she earned her law degree at Columbia and tied for first in her class but despite these enviable credentials and distinguished record of excellence, no law firm in New York City would hire her as a lawyer because she was a woman.

Ruth Bader Ginsburg became a crusader for women's rights and an unstoppable force who transformed the law and defied social convention.

Ruth Bader Ginsburg, later affectionately known as the 'Notorious RBG,' was as instrumental and historically significant to the cause of women's rights as was Thurgood Marshall

to the cause of civil rights for African Americans.

As a young lawyer and Director of the Women's Rights Project of the American Civil Liberties Union, Ruth Bader Ginsburg litigated six landmark cases before the Supreme Court, winning five out of the six cases.

Like Justice Marshall, Ruth Bader Ginsburg's uncanny strategic instincts and careful selection of cases were vital in her persuasion of the all-male Supreme Court to start dismantling the legal institution of sex discrimination one case at a time.

In 1975, Ruth Bader Ginsburg litigated and won Weinberger v. Wiesenfeld, which would become a landmark case in antidiscrimination jurisprudence.

In this case, the widower had been denied survivor benefits, which would allow him to stay at home and raise his son, based on a Social Security provision that assumed only women were secondary providers with unimportant incomes.

While some questioned Ginsburg's choice to challenge instances of sex discrimination by representing a male plaintiff, Ruth Bader Ginsburg saw it as an opportunity to show the court that childcare was not a sex-determined role to be performed only by women.

As with many of her cases, her goal was to free both sexes, men as well as women, from the roles that society had assigned them and to harness the Constitution to break down the structures by which the state maintained and enforced those separate spheres.

As Ruth Bader Ginsburg continued to challenge the stereotypical assumptions of what was considered to be women's work and men's work, she was able to persuade the Court and the nation that discriminating on the basis of sex was not only wrong but also a violation of the 14th Amendment of the Constitution, which guarantees equal protection to all citizens under the law.

As the courts began to recognize the changing roles of men and women, Ruth Bader Ginsburg was able to advance gender equality with the understanding that women are capable of being heads of households or sole providers for their family.

In 1993, President Bill Clinton appointed Ruth Bader Ginsburg to the Supreme Court, making her the second woman to fill this position.

This historic appointment further symbolized the principle that women were equal to men in every respect, that they could have successful careers and also could, if they chose, be devoted wives or mothers, thereby breaking barriers for generations of women to follow in her footsteps.

In fact, many of Ginsburg's opinions helped solidify the constitutional protections she had fought so hard to establish decades earlier.

While we commemorate Justice Ginsburg's work for advancing the women's movement both as a Justice and as a lawyer, all are in her debt who cherish the progress made in the areas of LGBTQ+ equality, immigration reform, environmental justice, voting rights, protections for people with disabilities, and so much more.

Throughout her life, Ruth Bader Ginsburg worked to make the law work so that America would be more just, equitable, fairer, and better for all.

Whether it be in her legendary dissenting opinions or as leader when in the majority, Justice Ginsburg continued to advocate for the marginalized and most vulnerable.

In recent years, she may not have been able to control the outcome of the rulings, but she grew bolder in her dissents, often stating what should have been the outcome.

Throughout her tenure on the bench, Ruth Bader Ginsburg displayed her rigorous and incisive legal mind and employed her formidable skills as a consensus builder, but she could be tough and forceful when the moment demanded.

Nothing illustrates this better than her famous dissent in Shelby County v. Holder, in which the 5-to-4 majority negated the Voting Rights Act of 1965 by invalidating section 4 of the law, which neutralized section 5, the provision of the act that required jurisdictions with a history of racial and ethnic discrimination in voting to obtain preclearance from the federal government before any changes in voting procedures, from polling stations to voter photo IDs could go into effect.

It was in her scathing dissent Justice Ginsburg stated, ''Hubris is a fit word for today's demolition of the VRA'' and that the majority's logic was akin to ''throwing away your umbrella in a rainstorm because you are not getting wet.''

Unlike the others, Justice Ginsburg was able to see the ramifications of the ruling and its allowances for reinvigorated efforts of voter suppression.

Today, I join millions of individuals who are mourning the loss of this legal giant, feminist, and trailblazer.

Justice Ginsburg loved this country, so much so that she served the nation while enduring illnesses and undergoing treatments that would have incapacitated lesser mortals.

She inspired generations of women then and now to shatter glass ceilings, and her legacy will inspire new generations of women in the years to come.

As the news of her passing continues to reverberate across the country and around the world, it is important that we remember and honor what she stood for and continue fighting to realize the goal of equal justice under law.

I am honored to be able to pay tribute to the memory of Supreme Court Justice Ruth Bader Ginsburg, the 'Notorious RBG,' one of the greatest jurists in our nation's history, a tireless and unyielding champion for equal justice, and a fierce defender of the Constitution.

ABANDONED WELLS MUST BE PLUGGED

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, last week, I introduced H.R. 8332, the Plugging Orphan Wells and Environmental Restoration Act, or the POWER Act. This bill would authorize the Federal orphan well remediation program under the Energy Policy of 2005 for 5 years at $50 million per year.

The POWER Act would also establish a grant program for environmental restoration and reclamation of orphaned wells on State as well as private and Tribal lands, authorized at $400 million per year for 5 years.

It is estimated that Pennsylvania has more orphaned wells than any other State. Pennsylvania is the birthplace of the modern petroleum industry, and the Commonwealth's oil and gas industry has helped lead America to energy independence.

We have both an economic and environmental responsibility to ensure abandoned wells are plugged, and the POWER Act would ensure these legacy sites are appropriately handled to protect the environment, while also stimulating jobs in the oil and gas sector. This will be a win-win for America and a win-win, certainly, for Pennsylvania.

I thank GUY RESCHENTHALER, my colleague from Pennsylvania, for joining me on this legislation, and I urge my colleagues to support oil and gas well remediation through the POWER Act.

DESIGNATION OF FUNDING FOR OVERSEAS CONTINGENCY OPERATIONS/GLOBAL WAR ON TERRORISM—MESSAGE FROM THE PRESIDENT OF THE UNITED STATES (H. DOC. NO. 116–156)

The SPEAKER pro tempore (Mr. CASE) laid before the House the following message from the President of the United States; which was read and, together with the accompanying papers, referred to the Committee on Appropriations and ordered to be printed:

To the Congress of the United States:

In accordance with section 114(b) of division A of the Continuing Appropriations Act, 2021 and Other Extensions Act (H.R. 8337; the ''Act''), I hereby designate for Overseas Contingency Operations/Global War on Terrorism all funding (including the rescission of funds) so designated by the Congress in the Act pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985, as outlined in the enclosed list of accounts.

The details of this action are set forth in the enclosed memorandum from the Director of the Office of Management and Budget.

DONALD J. TRUMP.

THE WHITE HOUSE, *October 1, 2020.*

DESIGNATION OF FUNDING AS AN EMERGENCY REQUIREMENT—MESSAGE FROM THE PRESIDENT OF THE UNITED STATES (H. DOC. NO. 116–157)

The SPEAKER pro tempore laid before the House the following message from the President of the United States; which was read and, together with the accompanying papers, referred to the Committee on Appropriations and ordered to be printed:

To the Congress of the United States:

In accordance with section 114(b) of division A of the Continuing Appropriations Act, 2021 and Other Extensions Act (H.R. 8337; the ''Act''), I hereby designate as emergency requirements all funding (including the rescission of funds) so designated by the Congress in the Act pursuant to section

251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985, as outlined in the enclosed list of accounts.

The details of this action are set forth in the enclosed memorandum from the Director of the Office of Management and Budget.

DONALD J. TRUMP.
THE WHITE HOUSE, *October 1, 2020.*

COMMUNICATION FROM CHAIR OF COMMITTEE ON TRANSPORTATION AND INFRASTRUCTURE

The SPEAKER pro tempore laid before the House the following communication from the chair of the Committee on Transportation and Infrastructure; which was read and, without objection, referred to the Committee on Appropriations:

COMMITTEE ON TRANSPORTATION AND INFRASTRUCTURE, HOUSE OF REPRESENTATIVES,
Washington, DC, September 30, 2020.
Hon. NANCY PELOSI ,
Speaker, House of Representatives,
Washington, DC.

DEAR MADAM SPEAKER: On September 30, 2020, pursuant to section 3307 of Title 40, United States Code, the Committee on Transportation and Infrastructure met in open session to consider thirty-three resolutions included in the General Services Administration's Capital Investment and Leasing Programs.

I have enclosed copies of the resolutions adopted.

Sincerely,

PETER A. DEFAZIO,
Chair.

Enclosures.

COMMITTEE RESOLUTION

LEASE—DEPARTMENT OF HOMELAND SECURITY UNITED STATES CITIZENSHIP & IMMIGRATION SERVICES NATIONAL, CAPITAL REGION

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for a lease of up to 247,000 rentable square feet of space, including 4 official parking spaces, for the Department of Homeland Security (DHS)—Citizenship and Immigration Services currently located in two locations at 2200 Crystal Drive in Arlington, VA, and 131 M Street NE in Washington, DC a proposed total annual cost of $12,350,000 in Washington, DC; at a proposed total annual cost of $9,633,000 in Northern Virginia; or at a proposed cost of $8,645,000 in Suburban Maryland for a lease term of up to 20 years, a prospectus for which is attached to and included in this resolution.

Approval of this prospectus constitutes authority to execute an interim lease for all tenants, if necessary, prior to the execution of the new lease.

Provided that, the Administrator of General Services and tenant agency(ies) agree to apply an overall utilization rate of 187 square feet or less per person, except that, if the Administrator determines that the overall utilization rate cannot be achieved, the Administrator shall provide an explanatory statement to the Committee on Transportation and Infrastructure of the House of Representatives prior to exercising any lease authority provided in this resolution.

Provided that, except for interim leases as described above, the Administrator may not enter into any leases that are below prospectus level for the purposes of meeting any of the requirements, or portions thereof, included in the prospectus that would result in an overall utilization rate of 187 square feet or higher per person.

Provided that, to the maximum extent practicable, the Administrator shall include in the lease contract(s) a purchase option that can be exercised at the conclusion of the firm term of the lease.

Provided further, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, that the Administrator shall require that the delineated area of the procurement is identical to the delineated area included in the prospectus, except that, if the Administrator determines that the delineated area of the procurement should not be identical to the delineated area included in the prospectus, the Administrator shall provide an explanatory statement to the Committee on Transportation and Infrastructure of the House of Representatives prior to exercising any lease authority provided in this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided further, the Administrator of General Services may not enter into this lease if it does not contain a provision barring any individual holding a Federally-elected office, regardless of whether such individual took office before or after execution of this lease, to directly participate in, or benefit from or under this lease or any part thereof and that such provision provide that if this lease is found to have been made in violation of the foregoing prohibition or it is found that this prohibition has been violated during the term of the lease, the lease shall be void, except that the foregoing limitation shall not apply if the lease is entered into with a publicly-held corporation or publicly-held entity for the general benefit of such corporation or entity.

Provided further, prior to entering into this lease or approving a novation agreement involving a change of ownership under this lease, the Administrator of General Services shall require the offeror or the parties requesting the novation, as applicable, to identify and disclose whether the owner of the leased space, including an entity involved in the financing thereof, is a foreign person or a foreign-owned entity; provided further, in such an instance, the Administrator of General Services shall notify the occupant agency(ies) in writing, and consult with such occupant agency(ies) regarding security concerns and necessary mitigation measures (if any) prior to award of the lease or approval of the novation agreement.

Provided that, to the maximum extent practicable, the Administrator of General Services shall require that the lease procurement consider the availability of public transportation consistent with agency mission requirements and that the space to be leased be renovated for all cost effective improvements, including renewable energy upgrades, water efficiency improvements, and indoor air quality optimization, that reduce greenhouse gas emissions.

GSA PBS

PROSPECTUS – LEASE
DEPARTMENT OF HOMELAND SECURITY
UNITED STATES CITIZENSHIP & IMMIGRATION SERVICES
NATIONAL CAPITAL REGION

Prospectus Number: PDC-10-WA19
Congressional Districts: DC NA, VA 8, 10, 11 MD 4, 5, 6, 8

Executive Summary

The General Services Administration (GSA) proposes a lease for approximately 247,000 rentable square feet (RSF) for the Department of Homeland Security (DHS)–Citizenship and Immigration Services (USCIS), currently located in two locations at 2200 Crystal Drive in Arlington, VA, and 131 M Street NE in Washington, DC, under leases that expire on October 1, 2020, and September 7, 2026. The proposed lease will house USCIS in one location, providing continued housing as well as modern, streamlined, consolidated, and efficient operations. This prospectus addresses the tactical housing needs of USCIS within the overall context of the strategic DHS consolidation plan.

The lease will provide continued housing for USCIS, improving the office utilization rate from 91 to 78 usable square feet (USF) per person while increasing the overall utilization rate from 156 to 187 USF per person.

Description

Occupant:	DHS / USCIS
Current RSF:	172,624 (Current RSF/USF = 1.17)
Estimated Maximum RSF:	247,000 (Proposed RSF/USF = 1.20)
Expansion/Reduction of RSF:	74,376 RSF Expansion
Current USF/Person:	156
Estimated USF/Person:	187
Proposed Maximum Leasing Authority:	20 years
Expiration Dates of Current Leases:	10/01/20 and 09/07/26
Delineated Area:	Suburban Maryland, Northern Virginia, District of Columbia
Number of Official Parking Spaces[1]:	4
Scoring:	Operating lease
Current Total Annual Cost:	$6,953,303
Estimated Rental Rate for DC[2]:	$50.00 / RSF

[1] Security requirements may necessitate control of parking at the leased location in addition to the official parking spaces identified in the prospectus. If the additional parking resulting from security requirements is included in the leasehold interest in the building, the proposed total annual cost and maximum proposed rental rate may exceed the amounts indicated above.

[2] This estimate is for fiscal year FY 2021 and may be escalated by 2.0 percent annually to the effective date of the lease to account for inflation. The proposed rental rate for each of the jurisdictions of the NCR is fully serviced including all operating expenses whether paid by the lessor or directly by the Government. GSA will conduct the procurement using prevailing market rental rates as a benchmark for negotiating this lease or leases to ensure that lease award is made in the best interest of the Government.

GSA PBS

PROSPECTUS – LEASE
DEPARTMENT OF HOMELAND SECURITY
UNITED STATES CITIZENSHIP & IMMIGRATION SERVICES
NATIONAL CAPITAL REGION

Prospectus Number: PDC-10-WA19
Congressional Districts: DC NA, VA 8, 10, 11 MD 4, 5, 6, 8

Estimated Total Annual Cost[3]:	$12,350,000
Estimated Rental Rate for MD:	$35.00 / RSF
Estimated Total Annual Cost:	$8,645,000
Estimated Rental Rate for VA:	$39.00 / RSF
Estimated Total Annual Cost:	$9,633,000

Acquisition Strategy

In order to maximize flexibility in acquiring space to house USCIS, GSA plans to issue a single, multiple-awards solicitation that will allow offerors to provide blocks of space able to meet these requirements in whole or in part. Although the delineated area for the overall procurement includes all three National Capital Region jurisdictions—Washington, DC; Suburban Maryland; and Northern Virginia—this requirement must be housed in one or more geographically proximate buildings in a single political jurisdiction.

Background

The USCIS mission is to secure America's promise as a nation of immigrants by providing accurate and useful information to its customers, granting immigration and citizenship benefits, promoting an awareness and understanding of citizenship, and ensuring the integrity of the immigration system. USCIS oversees lawful immigration to the United States, providing services that include citizenship, immigration of family members, visas, verification of legal rights to work in the United States, humanitarian programs, adoptions, civic integration, and genealogy.

Justification

The current lease for space at 2200 Crystal Drive expires on October 1, 2020. USCIS has a continuing need to house personnel working in this location to carry out its mission at the NCR Potomac Service Center (PSC). There are five USCIS service centers in the continental United States. Each center processes various immigrant benefit cases in a multi-state area.

The current lease for space at 131 M Street NE expires on September 7, 2026. USCIS has a continuing need to house its personnel currently working in this location, but by

[3] Any new lease may contain escalation clauses to provide for annual changes in real estate taxes and operating costs in each of the three jurisdictions of the NCR.

PROSPECTUS – LEASE
DEPARTMENT OF HOMELAND SECURITY
UNITED STATES CITIZENSHIP & IMMIGRATION SERVICES
NATIONAL CAPITAL REGION

Prospectus Number: PDC-10-WA19
Congressional Districts: DC NA, VA 8, 10, 11 MD 4, 5, 6, 8

consolidating the Immigrant Investor Program Office (IPO) and its personnel with the NCR Potomac Service Center, the agency will realize co-location space efficiencies that will also lower the overall utilization rate. The IPO administers the EB-5 Program for entrepreneurs (and their spouses and unmarried children under 21) who are eligible to apply for a green card (i.e., permanent residence) if they 1) make the necessary investment in a commercial enterprise in the United States and 2) plan to create or preserve 10 permanent full-time jobs for qualified U.S. workers.

Summary of Energy Compliance

GSA will incorporate energy efficiency requirements into the Solicitation for Offers and other documents related to the procurement of space for which this prospectus seeks authorization. GSA encourages offerors to work with energy service providers to exceed minimum requirements set forth in the procurement.

Resolutions of Approval

Resolutions adopted by the House Committee on Transportation and Infrastructure and the Senate Committee on Environment and Public Works approving this prospectus will constitute approval to make appropriations to lease space in a facility that will yield the required rentable area.

Interim Leasing

GSA will execute such interim leasing actions as are necessary to ensure continued housing of the tenant agency prior to the effective date of the new lease. It is in the best interest of the Government to avert the financial risk of holdover tenancy.

GSA **PBS**

PROSPECTUS – LEASE
DEPARTMENT OF HOMELAND SECURITY
UNITED STATES CITIZENSHIP & IMMIGRATION SERVICES
NATIONAL CAPITAL REGION

Prospectus Number: PDC-10-WA19
Congressional Districts: DC NA, VA 8, 10, 11 MD 4, 5, 6, 8

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on 5/18/2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

August 2018

Housing Plan
Department of Homeland Security
United States Citizenship and Immigration Services

PDC-10-WA19
National Capital Region

Leased Locations	CURRENT						ESTIMATED/PROPOSED					
	Personnel		Usable Square Feet (USF)[1]				Personnel		Usable Square Feet (USF)			
	Office	**Total**	**Office**	**Storage**	**Special**	**Total**	**Office**	**Total**	**Office**	**Storage[5]**	**Special[6]**	**Total**
2200 Crystal Drive, Arlington, VA (PSC)	688	688	70,276		16,368	86,644						
131 M Street, NE, Washington, DC (IPO)	257	257	39,760		21,233	60,993						
Estimated/Proposed Lease							1,101	1,101	109,867	15,187	80,479	205,533
Total	**945**	**945**	**110,036**		**37,601**	**147,637**	**1,101**	**1,101**	**109,867**	**15,187**	**80,479**	**205,533**

Office Utilization Rate (UR)[2]		
	Current	Proposed
Rate	91	78

UR = average amount of office space per person
Current UR excludes 24,208 usf of office support space
Proposed UR excludes 24,171 usf of office support space

Overall UR[3]		
	Current	Proposed
Rate	156	187

R/U Factor [4]			
	Total USF	RSF/USF	Max RSF
Current	147,637	1.17	172,624
Estimated/Proposed	205,533	1.20	247,000

Special Space	USF
Clinic/Lactation Room	303
Conference Rooms	5,131
ADP / HSDN	4,076
Break Rooms	7,176
File Processing	48,882
Mail Rooms/Secured Deposit Room	2,610
Receiving (Security)	4,804
Secured Storage/Room	675
Training Rooms	2,766
Copier Rooms	4,056
Total	**80,479**

NOTES:
[1] USF means the portion of the building available for use by a tenant's personnel and furnishings and space available jointly to the occupants of the building.
[2] Calculation excludes Judiciary, Congress and agencies with less than 10 people.
[3] USF/Person = housing plan total USF divided by total personnel.
[4] R/U Factor (R/U) = Max RSF divided by total USF.
[5] Storage excludes warehouse, which is part of Special.

COMMITTEE RESOLUTION

ALTERATION—CONSOLIDATION ACTIVITIES PROGRAM, VARIOUS BUILDINGS

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for the reconfiguration and renovation of space within government-owned and leased buildings during Fiscal Year 2020 to improve space utilization, optimize inventory, decrease reliance on leased space, and reduce the Government's environmental footprint at a total cost of $15,500,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS - ALTERATION
CONSOLIDATION ACTIVITIES PROGRAM
VARIOUS BUILDINGS

Prospectus Number: PCA-0001-MU20

FY 2020 Project Summary

The General Services Administration (GSA) proposes the reconfiguration and renovation of space within Government-owned and leased buildings during fiscal year (FY) 2020 to support GSA's ongoing consolidation efforts to improve space utilization, optimize inventory, decrease reliance on leased space, and reduce the Government's environmental footprint.

Since inception of the Consolidation Activities Program in FY 2014, GSA has received $283 million in support of the program. Through FY 2018, the Consolidation Activities Program has funded 75 projects.[1] When complete, the 75 projects will result in more than a 1.59 million usable square foot (USF) reduction, reduce agency rental payments to GSA by $65 million annually, and generate $130 million in annual Government lease cost avoidance.

FY 2020 Committee Approval and Appropriation Requested $75,000,000

Program Summary

As part of its ongoing effort to improve space utilization, optimize inventory, decrease reliance on leased space, and reduce the Government's environmental footprint, GSA is identifying consolidation opportunities within its inventory of real property assets. These opportunities are presented through surveys and studies, partnering with customer agencies, and through agency initiatives. Projects will vary in size by location and agency mission and operations; however, no single project will exceed $20 million in GSA costs. Funds will support consolidation of customer agencies and will not be available for GSA internal consolidations. Preference will be given to projects that result in an office utilization rate of 130 USF per person or less and a total project payback period of 10 years or less.

Typical projects include the following:

- Reconfiguration and alteration of existing Federal space to accommodate incoming agency relocation/consolidation. (Note: may include reconfigurations of existing occupied Federal tenant space); and

- Incidental alterations and system upgrades, such as fire sprinklers or heating, ventilation, and air conditioning, needed as part of relocation and consolidation.

Projects will be evaluated using the following criteria:

[1] These figures include 4 projects that will be undertaken with FY 2018 appropriations received of $20,000,000. GSA is awaiting Resolution of the FY 2018 Prospectus by the Committee on Environment and Public Works of the U.S. Senate before obligating these funds.

PROSPECTUS - ALTERATION
CONSOLIDATION ACTIVITIES PROGRAM
VARIOUS BUILDINGS

Prospectus Number: PCA-0001-MU20

- Preference will be given to projects that are identified as a reduction opportunity by both GSA and the subject agency, and that meet the other criteria.
- Proposed consolidation projects will result in a reduction in annual rent paid by the impacted customer agency.
- Preference is given to consolidations within or into owned buildings over consolidations within or into leased space.
- Consolidation of expiring leases into owned buildings will be given preference over those business cases for lease cancellations that include a cancellation cost.
- Co-location with other agencies with shared resources and special space will be given preference.
- Links to other consolidation projects will be given preference.

Justification

GSA continually analyzes opportunities to improve space utilization and realize long-term cost savings for the Government. Funding for space consolidations is essential so that GSA can execute those opportunities.

Projects funded under this authorization will enable agencies to consolidate within Government-controlled leased space or relocate from either Government-controlled leased or federally owned space to federally owned space that more efficiently meets mission needs. These consolidations will result in improved space utilization, cost savings for the American taxpayers, and a reduced environmental impact.

GSA PBS

PROSPECTUS - ALTERATION
CONSOLIDATION ACTIVITIES PROGRAM
VARIOUS BUILDINGS

Prospectus Number: PCA-0001-MU20

Certification of Need

Current administration and congressional initiatives call for improved space utilization, lower costs for the Government, and a reduced environmental footprint. GSA has determined that the proposed consolidation program is the most practical solution to meeting those goals.

Submitted at Washington, DC, on March 18, 2019

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

	President's Budget Request ($000's)	Spending Plans Funding Level ($000's)
Repairs and Alterations Program		
Major Repairs and Alterations Allocation		
Washington, DC		
Regional Office Building	$95,642	$95,642
Suitland, MD		
Suitland Federal Center	$49,358	$49,358
Richmond, CA		
Frank Hagel Federal Building	$40,100	$40,100
Portland, ME		
Edward T. Gignoux U.S. Courthouse	$23,067	$23,067
New York, NY		
Silvio V. Mollo Federal Building/Jacob K. Javits Federal Building	$46,600	$46,600
Cleveland, OH		
Anthony J. Celebrezze Federal Building	$63,928	$63,928
Cincinnati, OH		
FDA Forensic Chemistry Center and John Weld Peck Federal Building	$17,546	$17,546
Oklahoma City, OK		
William J. Holloway Jr. U.S. Courthouse and U.S. Post Office and Courthouse	$93,441	$12,129
Austin, TX		
J.J. Pickle Federal Building	$17,408	$17,408
Pittsburgh, PA		
Joseph F. Weis Jr. U.S. Courthouse	$40,634	$11,000
Columbus, OH		
John W. Bricker Federal Building	$6,559	$6,559
Washington, DC		
Lyndon B. Johnson Federal Building	$0	$10,000
Indianapolis, IN		
Major General Emmett J. Bean Federal Center	$3,200	$3,200
Subtotal	**$497,483**	**$396,537**

Transfer Request Allocation		
Repairs and Alterations Program		
Special Emphasis		
Consolidation Activities Program[1]	$75,000	$15,500
Fire Protection and Life Safety Program[1]	$30,000	$11,658
Subtotal	$105,000	**$27,158**
Building Operations Program		
Building Operations	$0	$28,000
Subtotal	$0	**$28,000**
	TOTAL	**$53,158**

[1] Consolidation Activities and Fire Protection and Life Safety Programs were requested as individual line items within the Total FY 2020 Repairs and Alterations Program in the President's Budget.

COMMITTEE RESOLUTION

ALTERATION—FIRE PROTECTION AND LIFE SAFETY PROGRAM, VARIOUS BUILDINGS

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repairs and alterations to upgrade, replace, and improve fire protection systems and life safety features in government-owned buildings during Fiscal Year 2020 at a total cost of $11,658,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS - ALTERATION
FIRE PROTECTION AND LIFE SAFETY PROGRAM
VARIOUS BUILDINGS

Prospectus Number: PFP-0001-MU20

FY 2020 Project Summary

This prospectus proposes alterations to upgrade, replace, and improve fire protection systems and life safety features in Government-owned buildings during FY 2020.

Since FY 2010, GSA has received $121,000,000 in support of this program. These funds supported 101 projects in 86 Government-owned buildings.[1]

FY 2020 Committee Approval and Appropriation Requested.....$30,000,000

Program Summary

As part of its fire protection and life safety efforts, GSA currently is identifying projects in Federal buildings throughout the country through surveys and studies. These projects will vary in size, location, and delivery method. The approval and appropriation requested in this prospectus is for a set of retrofit projects with engineering solutions to reduce fire and life safety hazards. Typical projects include:

- Replacing antiquated fire alarm and detection systems that are in need of repair or for which parts are no longer available.
- Installing emergency voice communication systems to facilitate occupant notification and evacuation in Federal buildings during an emergency.
- Installing or expanding, as necessary, fire sprinkler systems to provide a reasonable degree of protection for life and property from fire in Federal buildings.
- Constructing additional exit stairs or enclosing existing exit stairs to facilitate the safe and timely evacuation of building occupants in the event of an emergency.

Justification

GSA periodically assesses all facilities to identify hazards and initiate correction or risk-reduction protection strategies so that its buildings do not present an unreasonable risk to Government personnel or the general public. Completion of these proposed projects will improve the overall level of safety from fire and similar risks in federally owned buildings in GSA's portfolio nationwide.

[1] These figures include 14 projects in 14 Government-owned buildings that will be undertaken with FY 2018 appropriations received of $25,000,000. GSA is awaiting Resolution of the FY 2018 Prospectus by the Committee on Environment and Public Works of the U.S. Senate before obligating these funds.

GSA PBS

PROSPECTUS - ALTERATION
FIRE PROTECTION AND LIFE SAFETY PROGRAM
VARIOUS BUILDINGS

Prospectus Number: PFP-0001-MU20

Certification of Need

The proposed program is the best solution to meet a validated Government need.

Submitted at Washington, DC, on March 18, 2019

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

	President's Budget Request ($000's)	Spending Plans Funding Level ($000's)
Repairs and Alterations Program		
Major Repairs and Alterations Allocation		
Washington, DC		
Regional Office Building	$95,642	$95,642
Suitland, MD		
Suitland Federal Center	$49,358	$49,358
Richmond, CA		
Frank Hagel Federal Building	$40,100	$40,100
Portland, ME		
Edward T. Gignoux U.S. Courthouse	$23,067	$23,067
New York, NY		
Silvio V. Mollo Federal Building/Jacob K. Javits Federal Building	$46,600	$46,600
Cleveland, OH		
Anthony J. Celebrezze Federal Building	$63,928	$63,928
Cincinnati, OH		
FDA Forensic Chemistry Center and John Weld Peck Federal Building	$17,546	$17,546
Oklahoma City, OK		
William J. Holloway Jr. U.S. Courthouse and U.S. Post Office and Courthouse	$93,441	$12,129
Austin, TX		
J.J. Pickle Federal Building	$17,408	$17,408
Pittsburgh, PA		
Joseph F. Weis Jr. U.S. Courthouse	$40,634	$11,000
Columbus, OH		
John W. Bricker Federal Building	$6,559	$6,559
Washington, DC		
Lyndon B. Johnson Federal Building	$0	$10,000
Indianapolis, IN		
Major General Emmett J. Bean Federal Center	$3,200	$3,200
Subtotal	**$497,483**	**$396,537**

Transfer Request Allocation		
Repairs and Alterations Program		
Special Emphasis		
Consolidation Activities Program[1]	$75,000	$15,500
Fire Protection and Life Safety Program[1]	$30,000	$11,658
Subtotal	$105,000	**$27,158**
Building Operations Program		
Building Operations	$0	$28,000
Subtotal	$0	**$28,000**
	TOTAL	**$53,158**

[1] Consolidation Activities and Fire Protection and Life Safety Programs were requested as individual line items within the Total FY 2020 Repairs and Alterations Program in the President's Budget.

COMMITTEE RESOLUTION

ALTERATION—FRANK HAGEL FEDERAL BUILDING, RICHMOND, CA

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repairs and alterations including repairs and replacements of multiple building infrastructure, system deficiencies and exigent safety issues at the Frank Hagel Federal Building located at 1221 Nevin Avenue, Richmond, CA at a design cost of $3,000,000, an estimated construction cost of $35,200,000, and a management and inspection cost of $1,900,000 for a total estimated project cost of $40,100,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS – ALTERATION
FRANK HAGEL FEDERAL BUILDING
RICHMOND, CA

Prospectus Number: PCA-0213-RI20
Congressional District: 11

FY 2020 Project Summary

The General Services Administration (GSA) proposes a repair and alteration of the Frank Hagel Federal Building (FHFB) located at 1221 Nevin Avenue, Richmond, CA. The proposed repairs and replacements will address key infrastructure and systems deficiencies, exigent safety issues and extend the useful life of the building to meet the long-term housing and mission needs of a key Social Security Administration (SSA) location on the West Coast.

FY 2020 Committee Approval and Appropriation Requested[1]

(Design, Construction, and Management & Inspection).....$40,100,000

Major Work Items

Restroom upgrades; roof replacement and related systems; plumbing, heating, ventilation, and air conditioning (HVAC) and electrical systems replacements/upgrades

Project Budget

Design	$3,000,000
Estimated Construction Cost (ECC)	35,200,000
Management &Inspection (M&I)	1,900,000
Estimated Total Project Cost (ETPC)	**$40,100,000**

*Tenant agency may fund an additional amount for alterations above the standard normally provided by GSA.

Schedule	Start	End
Design and Construction	FY 2020	FY 2022

Building

The FHFB, constructed in 1975, has a total of 618,837 gross square feet and is located on 10.5 acres. The building is six stories (plus mechanical penthouses) with a steel moment frame tower covered with brick/concrete fascia panels. Since construction, SSA has been the sole tenant. The facility serves as one of SSA's seven national claims and post-entitlement processing centers

[1] GSA submitted Prospectus No. PCA-0213-RI11 (larger scope) in FY 2011. The prospectus was approved by the Senate Committee on Environment and Public Works and the House Committee on Transportation and Infrastructure on November 30, 2010 and December 2, 2010, respectively, for $221,670,000, but did not receive appropriations. For FY 2020, GSA is requesting approval and funding of a more limited scope project for the building.

GSA PBS

PROSPECTUS – ALTERATION
FRANK HAGEL FEDERAL BUILDING
RICHMOND, CA

Prospectus Number: PCA-0213-RI20
Congressional District: 11

and houses the Western Processing Center, Remote Operation Communication Center (ROCC), Operations Regional Office, and other regional operating groups. The ROCC, one of the SSA's four National Service Delivery Points, is essential to supporting SSA's computer and telephone systems throughout the Western States. The Operations Regional Office is responsible for the oversight of SSA services in California, Arizona, Nevada, Hawaii, American Samoa, and the Commonwealth of the Northern Mariana Islands. GSA delegated operations & maintenance responsibilities for FHFB to SSA in 1987.

Tenant Agencies

SSA

Proposed Project

The project proposes to address multiple building infrastructure and system deficiencies including the complete demolition of and upgrades to the restrooms in the basement and floors 1 through 4. The existing roofing systems on the main tower, childcare, and auditorium will be replaced, and asbestos and lead paint abatement and removal at the roofs will be undertaken. The existing Rainwater and non-operable window washing systems will be replaced. HVAC upgrades, including the replacement of five air handler units and related fans and ducts, along with the replacement of multiple diffusers and variable air volume (VAV) devices, will be undertaken, and the air intake grilles currently located at ground level will be replaced and relocated to the roof level of the tower building. Plumbing upgrades include the replacement of the tepid water system with a cold and hot water supply. Electrical upgrades, including replacement of all wiring and lighting with LED fixtures throughout the work areas. The main switchgear will be replaced along with the distribution panelboards on each floor in electrical closets.

Major Work Items

Roof System Replacement/Hazardous Materials Abatement	$10,100,000
Restroom Replacement/Upgrades	9,500,000
HVAC/Air Intakes Replacement/Upgrades	7,343,000
Plumbing Replacement/Upgrades	5,330,000
Electrical Replacement/Upgrades	2,927,000
Total ECC	**$35,200,000**

Justification

The original systems are over 40 years old, and many are at the end of, or beyond, their useful life, constraining the building's use as a modern workplace. The building's deficiencies limit

GSA PBS

PROSPECTUS – ALTERATION
FRANK HAGEL FEDERAL BUILDING
RICHMOND, CA

Prospectus Number: PCA-0213-RI20
Congressional District: 11

SSA's ability to respond effectively and efficiently to the changing needs of components housed in the FHFB.

The completion of the proposed upgrades and replacements will address exigent safety issues and deficiencies while extending the useful life of the building. The renovation of the restrooms for the basement to the 4th floor will complete the restrooms modernization for the entire building and meet the Architectural Barriers Act Accessibility Standard (ABAAS) requirements. The replacement of the roofing systems and the rainwater and stormwater drains will ensure building's water tightness for a number of years. Replacement of the existing tepid water system with a new dual pipe water system will lessen the risk of Legionella propagation. Replacement of five air handling units in the basement will complete the replacement of all the air handling units in the past few years. Extending the exterior air intakes to the top of the roofline of the building reduces the building's risk of contamination. Replacement of the electrical switchgear will lessen the risk of another whole building electrical outage.

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages design opportunities to increase energy and water efficiency above the minimum performance criteria.

Prior Appropriations

None

Prior Committee Approvals

None

Prior Prospectus-Level Projects in Building (past 10 years)

None

Alternatives Considered (30-year, present value cost analysis)

There are no feasible alternatives to this project. This project is a limited scope renovation and the cost of the proposed project is far less than the cost of leasing or constructing a new building.

GSA PBS

PROSPECTUS – ALTERATION
FRANK HAGEL FEDERAL BUILDING
RICHMOND, CA

Prospectus Number: PCA-0213-RI20
Congressional District: 11

Recommendation

ALTERATION

GSA PBS

PROSPECTUS – ALTERATION
FRANK HAGEL FEDERAL BUILDING
RICHMOND, CA

Prospectus Number: PCA-0213-RI20
Congressional District: 11

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on March 19, 2019

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

ALTERATION—301 7TH STREET SW REGIONAL OFFICE BUILDING, WASHINGTON, DC

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repairs and alterations for the Regional Office Building located at 301 7th Street SW, in Washington, DC to renovate and modernize the building to house the Department of Homeland Security including upgrades to and replacement of multiple building systems, interior alterations and exterior repairs at a design cost of $8,000,000, an estimated construction cost of $82,308,000 and a management and inspection cost of $5,334,000 for a total estimated project cost of $95,642,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS – ALTERATION
301 7th STREET SW
REGIONAL OFFICE BUILDING
WASHINGTON, DC

Prospectus Number: PDC-0031-WA20

FY 2020 Project Summary

The General Services Administration (GSA) proposes a repair and alteration project for the Regional Office Building (ROB), located at 301 7th Street SW, in downtown Washington, DC. This project will renovate and modernize the building in preparation for the Department of Homeland Security's (DHS) occupancy. Major building systems will be upgraded to accommodate up to 4,074 personnel, resulting in a maximum, all-in utilization rate (UR) of 150 usable square feet (USF) per person. The proposed DHS consolidation provides an annual lease cost avoidance of approximately $13,000,000 and an annual agency rent savings of approximately $525,000.

FY 2020 Committee Approval and Appropriation Requested

(Design, Construction, Management & Inspection) $95,642,000

Major Work Items

Interior alterations; plumbing, HVAC (heating ventilation, and air conditioning), electrical, fire, life safety, and conveyance systems upgrades; exterior construction; hazardous materials abatement; and demolition

Project Budget

Design	$8,000,000
Estimated Construction Cost (ECC)	82,308,000
Management and Inspection (M&I)	5,334,000
Estimated Total Project Cost (ETPC)*	**$95,642,000**

*Tenant agencies may fund an additional amount for tenant improvements above the standard normally provided by GSA. GSA will also consider utilizing an Energy Savings Performance Contract (ESPC) to acquire energy efficiency improvements for this project.

Schedule	Start	End
Design and Construction	FY 2020	FY 2023

Building

ROB is located near the L'Enfant Plaza Metro Station at 301 7th Street SW, in Washington, DC. It contains approximately 941,463 gross square feet, of which there are approximately 845,169 rentable square feet or 612,593 USF. The building was originally built as a warehouse between 1929 and 1932; it was later adapted for office use in a

haphazard fashion resulting in poor circulation and office layout. The building contains seven floors above grade and a basement. Its electrical system has both capacity and distribution issues that make even minor space alterations difficult and costly. Building elevators are far beyond their useful life, resulting in frequent outages of one or more elevators, and often require custom or rebuilt parts for repair. The building's HVAC system is also well past its useful life; air distribution issues create hot and cold areas throughout the building, regardless of the external temperature. The building also has ongoing plumbing issues, and occasionally pipes burst, damaging interior walls and carpet.

Tenant Agencies

Department of Homeland Security–Offices of the Under Secretary of Management and Science and Technology and Office of Biometric Identity Management; U.S. Interagency Council on Homelessness; GSA

Proposed Project

The project will provide for upgrades of most of the major systems in the building, including the conveyance, plumbing, HVAC, electrical, and fire protection systems. A redesign of the building's circulation pattern will recapture rentable office space and increase the space efficiency by utilizing an open-plan office concept to the greatest extent possible. Furthermore, the project will aim to provide an open architecture systems approach to the infrastructure to allow for a high-performance workspace that focuses on the health, safety, and comfort of personnel, and to provide flexibility and ease of accommodation for the operators of the building.

GSA PBS

PROSPECTUS – ALTERATION
301 7th STREET SW
REGIONAL OFFICE BUILDING
WASHINGTON, DC

Prospectus Number: PDC-0031-WA20

Major Work Items

Interior Construction	$21,205,000
HVAC Upgrades	16,403,000
Electrical Upgrades	16,015,000
Conveying System Upgrades	10,043,000
Exterior Construction	6,148,000
Demolition	3,675,000
Plumbing Upgrades	3,888,000
Fire Protection Upgrades	3,707,000
Hazardous Materials Abatement	1,224,000
Total ECC	**$82,308,000**

Justification

ROB currently includes outdated HVAC and lighting equipment, insufficient illumination in several mechanical spaces, and outdated interior office finishes. The proposed accommodation of additional DHS personnel into the ROB requires an open office environment to maximize the building capacity. Additionally, the location of mechanical rooms, electrical and telecommunication closets, and restrooms varies from floor to floor, resulting in inefficient distribution of electrical and plumbing systems and consequent energy waste.

A majority of the building's major systems are outdated and have reached or surpassed the end of their useful lives, resulting in poor indoor air quality and pronounced tenant discomfort in the winter and summer months. Approximately one-fifth of the air handling units are more than 30 years old, and the steam piping and condensate return lines are greater than 50 years old. The HVAC system consists of a central chilled water plant in the basement and rooftop cooling towers, with heating provided by steam supplied by GSA's central heating plant. In accordance with *Facilities Standards for the Public Buildings Service (GSA P-100)*, the existing steam station will be upgraded along with a steam-to-hot water converter to supply heating and hot water to the building's mechanical systems. Six cooling towers located on the roof are in fair to poor condition and require replacement.

GSA PBS

PROSPECTUS – ALTERATION
301 7th STREET SW
REGIONAL OFFICE BUILDING
WASHINGTON, DC

Prospectus Number: PDC-0031-WA20

The existing sub-power and lighting distribution panels throughout the building are in fair to poor condition and will be replaced. Multiple electrical panels are more than 40 years old, and the associated feeders are well beyond the end of their expected useful life. Both the panels and the feeders will be replaced.

The building's vertical transportation systems include 10 passenger elevators and 3 freight elevators, 1 of which has not been operational for several years. Periodic passenger entrapments occur. Such incidents result from high use of aging elevators that run on pulley systems rather than hydraulic systems. Many of the necessary replacement parts are obsolete and can be difficult to obtain. All elevators will be replaced.

The existing fire protection system is outdated and will be upgraded/replaced in renovated space. The entire system will be expanded to provide protection in approximately 40 percent of the building, which is currently without sprinklers.

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service (GSA P-100)*. GSA encourages design opportunities to increase energy and water efficiency above the minimum performance criteria.

Prior Appropriations

None

Prior Committee Approvals

None

Alternatives Considered (30-year, present value cost analysis)

Alteration	$384,297,000
Lease	$600,788,000

The 30-year, present-value cost of alteration is $216,491,000 less than the cost of leasing, with an equivalent annual cost advantage of $10,482,000.

Recommendation

ALTERATION

GSA PBS

PROSPECTUS – ALTERATION
301 7th STREET SW
REGIONAL OFFICE BUILDING
WASHINGTON, DC

Prospectus Number: PDC-0031-WA20

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on September 6, 2019

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

ALTERATION—EDWARD T. GIGNOUX U.S. COURTHOUSE, PORTLAND, ME

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repairs and alterations including repairs and replacements of the heating, ventilation, and air conditioning and fire alarm systems at the Edward T. Gignoux U.S. Courthouse located at 156 Federal Street, Portland, ME at a design cost of $2,241,000, an estimated construction cost of $18,939,000, and a management and inspection cost of $1,887,000 for a total estimated project cost of $23,067,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS – ALTERATION
EDWARD T. GIGNOUX U.S. COURTHOUSE
PORTLAND, ME

Prospectus Number: PME-0034-PO20
Congressional District: 1

FY2020 Project Summary

The General Services Administration (GSA) proposes a repair and alteration project for the Edward T. Gignoux U.S. Courthouse located at 156 Federal Street in Portland, ME. The proposed project will repair and replace the building's deficient heating, ventilation, and air conditioning (HVAC) system, and fire alarm system.

FY2020 Committee Approval and Appropriation Requested

(Design, Construction, and Management & Inspection).....$23,067,000

Major Work Items

HVAC system repairs/replacements; fire and life safety improvements

Project Budget

Design	$2,241,000
Estimated Construction Cost (ECC)	18,939,000
Management and Inspection (M&I)	1,887,000
Estimated Total Project Cost (ETPC)*	**$23,067,000**

*Tenant agencies may fund an additional amount for alterations above the standard normally provided by the GSA.

Schedule	Start	End
Design and Construction	FY 2020	FY 2024

Building

The Gignoux U.S. Courthouse, built in 1911, is a three-story granite block structure in the Second Renaissance Revival style that is listed on the National Register of Historic Places. With a 1932 addition for the U.S. Post Office, the building has approximately 94,000 gross square feet. Since 1970, the U.S. District Court and related agencies have been the principal tenants of the building. The historic features of the Gignoux Courthouse were restored as part of a major renovation project completed in 1996.

GSA PBS

PROSPECTUS – ALTERATION
EDWARD T. GIGNOUX U.S. COURTHOUSE
PORTLAND, ME

Prospectus Number: PME-0034-PO20
Congressional District: 1

Tenant Agencies

Judiciary - District Court, Magistrate; Department of Justice - Marshals Service, Attorneys; GSA

Proposed Project

The proposed project includes replacing air distribution systems including variable air volumes, fan coil units, heating terminal units, distribution piping, duct work, the building automation system (BAS), and the fire alarm system. Outside air intakes will be relocated from the ground level to the roof level. Air handling units and distribution will be upgraded. A new radiator will be provided for the emergency generator. A fall arrest system to the roof will be installed to provide protection for personnel during roof access. The operation of the existing smoke control system will be improved.

Major Work Items

HVAC System Repairs/Replacements	$16,042,000
Fire and Life Safety Improvements	2,897,000
Total ECC	**$18,939,000**

Justification

The majority of the HVAC system is past its useful life and inefficient. The BAS is obsolete resulting in ongoing issues, especially with temperature control and poor air circulation affecting tenant comfort; therefore, comprehensive improvements are required. The proposed project will improve indoor air quality and energy efficiency. Completion of this project will reduce emergency repairs and the risk of a catastrophic system failure.

There are fire and life safety deficiencies, including lack of a fall arrest system on the roof and inadequate smoke control. The air intakes are at ground level, which is a security risk. The fire alarm system is outdated and does not provide voice annunciation. Proposed upgrades will meet current standards.

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

GSA PBS

PROSPECTUS – ALTERATION
EDWARD T. GIGNOUX U.S. COURTHOUSE
PORTLAND, ME

Prospectus Number: PME-0034-PO20
Congressional District: 1

Prior Appropriations

None

Prior Committee Approvals

None

Prior Prospectus-Level Projects in Building (past 10 years)

None

Alternatives Considered (30-year, present value cost analysis)

There are no feasible alternatives to this project. This project is a limited scope renovation and the cost of the proposed project is far less than the cost of leasing or constructing a new building.

Recommendation

ALTERATION

GSA PBS

PROSPECTUS – ALTERATION
EDWARD T. GIGNOUX U.S. COURTHOUSE
PORTLAND, ME

Prospectus Number: PME-0034-PO20
Congressional District: 1

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on March 18, 2019

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

ALTERATION—SILVIO V. MOLLO FEDERAL BUILDING AND JACOB K. JAVITS FEDERAL BUILDING, NEW YORK, NY

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for modernization of the Silvio V. Mollo Federal Building, located at 1 St. Andrew's Plaza, New York, NY and the design and construction of swing space buildout, space recapture, and related improvements at the Jacob K. Javits Federal Building located at 26 Federal Plaza in New York, NY at design cost for Phases I and II of $15,913,000, an estimated construction cost for Phase I of $29,123,000 and a management and inspection cost for Phase I of $1,564,000 for a total Fiscal Year 2020 cost of $46,600,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS – ALTERATION
SILVIO V. MOLLO FEDERAL BUILDING AND
JACOB K. JAVITS FEDERAL BUILDING
NEW YORK, NY

Prospectus Number: PNY-0323/0282-NY20
Congressional District: 10

FY 2020 Project Summary

The General Services Administration (GSA) proposes the first of a two phase project. The first phase is design for the modernization of the Silvio V. Mollo (Mollo) Federal Building located at 1 St. Andrew's Plaza, New York, NY, and the design and construction of swing space buildout, space recapture, and related improvements at the Jacob K. Javits (Javits) Federal Building located at 26 Federal Plaza, New York, NY.

The proposed Mollo project will address seismic, structural deficiencies, mechanical, electrical distribution, security and screening pavilion, and new buildout of the Department of Justice–U.S. Attorney's Office (USAO) Criminal Division space. The proposed Javits Building project will provide swing space as interim housing for the USAO Criminal Division during the Mollo renovations and the long-term housing for the USAO Civil Division currently housed in leased space at 86 Chambers Street, New York, NY. Relocation of the USAO Civil Division provides an annual lease cost avoidance of approximately $3,300,000.

FY 2020 Committee Approval and Appropriation Requested

(Phase I and II Design, Phase I Construction, and Phase I Management & Inspection) $46,600,000

Major Work Items

Heating, ventilation, and air conditioning (HVAC), electrical, fire protection, and plumbing replacement; demolition; and interior construction

Project Budget

Design	
Phase I swing space	$ 2,601,000
Phase II	13,312,000
Total Design (FY20 Request)	**$15,913,000**
Estimated Construction Cost (ECC)	
Phase I swing space **(FY 20 Request)**	$ 29,123,000
Phase II (TBD)	164,003,000
Total ECC	**$193,126,000**

GSA PBS

PROSPECTUS – ALTERATION
SILVIO V. MOLLO FEDERAL BUILDING AND JACOB K. JAVITS FEDERAL BUILDING
NEW YORK, NY

Prospectus Number: PNY-0323/0282-NY20
Congressional District: 10

Management and Inspection (M&I)

Phase I swing space **(FY 20 Request)**	$1,564,000
Phase II (TBD)	7,145,000
Total M&I	**$8,709,000**
Estimated Total Project Cost (ETPC)*	**$217,748,000**

*Tenant agencies may fund an additional amount for alterations above the standard normally provided by GSA.

Schedule	Start	End
Design (Mollo and Javits) and Javits Construction	FY 2020	FY 2024
Construction (Mollo)	TBD	TBD

Building

The Mollo Federal Building is an 11-story office building with a basement. The building was constructed in 1974 of prefabricated aggregate facade with a structural reinforced concrete framework on a poured concrete foundation. The building is connected by secure bridges to the Thurgood Marshall U.S. Courthouse and the Metropolitan Correction Center (MCC).

The Javits Federal Office Building is located at 26 Federal Plaza, New York, NY. It consists of three interconnected buildings: a 45-story Federal office building plus basement, an 8-story courthouse and office building built in 1967 (the James L. Watson Court of International Trade), and a 45-story addition (Annex) built along the west side of the original 45-story building in 1977. The two 45-story buildings function together as the Jacob K. Javits Federal Office Building. The Watson Court of International Trade (CIT) is connected to Javits via a 4-story pedestrian bridge. The entire Javits complex consists of approximately 2.9 million gross square feet.

Tenant Agencies (Impacted)

Department of Justice: USAO Criminal Division, USAO Civil Division, USAO Administrative Services, U.S. Marshals Service (USMS)

Proposed Project

The project proposes a modernization of the Mollo Federal Building to address seismic, security and screening pavilion, structural deficiencies, mechanicals, electrical distribution, and new buildout of USAO space to meet its current design standards. This project will reuse the building foundation and superstructure, and will upgrade the

GSA PBS

PROSPECTUS – ALTERATION
SILVIO V. MOLLO FEDERAL BUILDING AND
JACOB K. JAVITS FEDERAL BUILDING
NEW YORK, NY

Prospectus Number: PNY-0323/0282-NY20
Congressional District: 10

existing structure to meet current standards for seismic and security and screening. The scope of the Mollo project includes complete replacement of building systems, including the facade, roofing, HVAC, electrical infrastructure, and elevators. The project also includes accessibility upgrades, a new integrated main entrance, and construction of tenant space for the USAO Criminal Division and USMS. Swing space in the Javits building will be required so tenants can vacate the existing facility and this work can be executed. The swing space will be constructed on two floors in the Javits Federal Building to accommodate the USAO Criminal Division and USMS and, at the conclusion of this project, will be reused to permanently house the Civil Division of the USAO, currently located in leased space, and USAO Administrative Services operations, currently located in Government-owned space at 201 Varick Street, New York, NY.

This request includes funding for design of the entire project, and construction and M&I for the swing space. GSA intends to submit a prospectus in a future year for the construction portion of the Mollo project.

Major Work Item

HVAC Replacement	$8,181,000
Electrical Replacement	7,521,000
Interior Construction	5,938,000
Demolition	5,426,000
Fire Protection Replacement	1,477,000
Plumbing Replacement	580,000
Total ECC	**$29,123,000**

Justification

It is imperative that the Southern District of New York USAO's Criminal Division remain located long term at the Mollo Federal Building. This location provides USAO with easy access to both the Daniel Patrick Moynihan and Thurgood Marshall U.S. Courthouses, as well as the MCC, the Federal prison serving Manhattan. The commercial real estate market makes it highly unlikely that office space for the USAO Criminal Division could be found in one location within a reasonable distance from the courthouses. If the USAO Criminal Division were to be housed elsewhere, the transit times from the correctional facility and courthouses would be longer, and there would be a chance its operations would have to be split up among multiple locations, impacting security and operational efficiency and resulting in a significantly higher cost to the taxpayer.

GSA PBS

PROSPECTUS – ALTERATION
SILVIO V. MOLLO FEDERAL BUILDING AND
JACOB K. JAVITS FEDERAL BUILDING
NEW YORK, NY

Prospectus Number: PNY-0323/0282-NY20
Congressional District: 10

Mollo Building systems are outdated, at risk for failure, and not in compliance with current codes and standards. Deferring the proposed work will result in running a risk of encountering complicated and costly emergency repairs. In addition, mechanical systems in the Mollo Federal Building provide air conditioning (chilled water) and heating (reduced pressure steam) to the adjacent MCC, so that a failure of the steam reducing system and the chillers at the Mollo Federal Building could result in a lack of heating or air conditioning at the MCC.

Tenant space, as currently configured, is inefficient and does not meet the needs of the agencies. The modernization of the Mollo Federal Building will eliminate and/or minimize these deficiencies. Additionally, security will be enhanced, and the interior space will be handicapped accessible.

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

Prior Appropriations

None

Prior Committee Approvals

None

Prior Prospectus-Level Projects in Mollo (past 10 years)

None

Prior Prospectus-Level Projects in Javits (past 10 years)

Prospectus	Description	FY	Amount
PNY-0282-2-NY14	Core Renovations	2014	$ 6,520,000
Reprogramming	Design	2015	$ 7,660,000
PNY-0282-NY16	Space Buildout	2016	$96,344,000

GSA PBS

PROSPECTUS – ALTERATION
SILVIO V. MOLLO FEDERAL BUILDING AND
JACOB K. JAVITS FEDERAL BUILDING
NEW YORK, NY

Prospectus Number: PNY-0323/0282-NY20
Congressional District: 10

Alternatives Considered (30-year, present value cost analysis)

Alteration: $213,071,986
New Construction: $395,145,909
Lease $284,332,283

The 30-year, present value cost of renovation is $71,260,297 less than the cost of leasing with an equivalent annual cost advantage of $3,450,207.

Recommendation

ALTERATION

GSA PBS

PROSPECTUS – ALTERATION
SILVIO V. MOLLO FEDERAL BUILDING AND
JACOB K. JAVITS FEDERAL BUILDING
NEW YORK, NY

Prospectus Number: PNY-0323/0282-NY20
Congressional District: 10

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on March 19, 2019

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

ALTERATION—FOOD AND DRUG ADMINISTRATION FORENSIC CHEMISTRY CENTER AND JOHN WELD PECK FEDERAL BUILDING, CINCINNATI, OH

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repairs and alterations including multiple system upgrades expansion of laboratory spaces at the Forensic Chemistry Center located at 6751 Steger Drive, Cincinnati, OH and the interior alterations and system upgrades for a consolidation project that will relocate offices of the Food and Drug Administration from the Forensic Chemistry Center and leased space to owned space at the John Weld Peck Federal Building located at 550 Main Street, Cincinnati, OH at a design cost of $1,714,000, an estimated construction cost of $14,245,000, and a management and inspection cost of $1,587,000 for a total estimated project cost of $17,546,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS – ALTERATION
FOOD AND DRUG ADMINISTRATION FORENSIC CHEMISTRY CENTER and JOHN WELD PECK FEDERAL BUILDING
CINCINNATI, OH

Prospectus Number: POH-0306/0189-CN20
Congressional District: 1

FY 2020 Project Summary

The General Services Administration (GSA) proposes a repair and alteration project for the Department of Health and Human Services, Food and Drug Administration (FDA), Forensic Chemistry Center (FCC) located at 6751 Steger Drive in Cincinnati, OH. The proposed project will modernize the building's outdated systems and expand FDA's laboratory spaces in order to meet the agency's long-term requirements.

The project also proposes the buildout of approximately 20,400 usable square feet of office space at the John Weld Peck Federal Building (Peck FB) in Cincinnati, OH. The space will house the FDA District Office that is currently located in the FCC and a component of FDA that is in leased space. The office space consolidation in the Peck FB will allow for the needed expansion of laboratory space in the FCC and provide an annual lease cost avoidance of approximately $177,000.

FY 2020 Committee Approval and Appropriation Requested

(Design, Construction, and Management & Inspection).....$17,546,000

Major Work Items

Interior construction; demolition; heating, ventilation, and air conditioning (HVAC); electrical upgrades; plumbing; security; and fire and life safety upgrades; exterior construction

Project Budget

Design	$1,714,000
Estimated Construction Cost (ECC)	14,245,000
Management &Inspection (M&I)	1,587,000
Estimated Total Project Cost (ETPC)	**$17,546,000**

*Tenant agencies may fund an additional amount for alterations above the standard normally provided by GSA.

Schedule	Start	End
Design and Construction	FY 2020	FY 2024

GSA PBS

PROSPECTUS – ALTERATION
FOOD AND DRUG ADMINISTRATION FORENSIC CHEMISTRY CENTER and
JOHN WELD PECK FEDERAL BUILDING
CINCINNATI, OH

Prospectus Number: POH-0306/0189-CN20
Congressional District: 1

Building

The FCC was constructed in 1998 as a build-to-suit lease specifically for FDA's use. GSA exercised a $500,000 firm fixed price lease purchase option and assumed ownership of the asset in June 2018. The building, which is located on an 8-acre site within the City of Cincinnati, has approximately 77,000 gross square feet, one story above grade, and underground parking for 29 spaces. The building is steel-framed with a concrete and steel curtain wall. FDA's requirement for laboratory space at this location has expanded over the years. A building addition was constructed in 2004.

The Peck FB, located at 550 Main St. in Cincinnati, Ohio, was constructed in 1964 to house Federal agencies. The approximately 792,000 gross square foot steel-framed masonry limestone and glass office building has 10 stories above grade, a basement with inside parking spaces, and a sub-basement. A service and pedestrian tunnel beneath Main Street connects the Peck FB to the Potter Stewart U.S. Courthouse.

Tenant Agencies

FDA

Proposed Project

The project scope in FCC includes demolition of the existing FDA District Office space to accommodate the expansion of the FDA's laboratory. The existing lab will be partially demolished and upgraded with new finishes. Renovations will be made to the building's systems including HVAC upgrades, lighting upgrades, emergency power upgrades, repairs to the building's exterior and roof, replacement of the fire alarm system, restroom upgrades, and improvements to the loading dock. The project will also consolidate the existing FDA District Office space and an office leased for the FDA Resident Post into vacant space within the Peck FB. To accommodate this consolidation, building demolition, interior alterations, electrical, HVAC, and life safety upgrades will be undertaken.

GSA PBS

PROSPECTUS – ALTERATION
FOOD AND DRUG ADMINISTRATION FORENSIC CHEMISTRY CENTER and JOHN WELD PECK FEDERAL BUILDING
CINCINNATI, OH

Prospectus Number: POH-0306/0189-CN20
Congressional District: 1

Major Work Items

Interior Construction	$6,310,000
HVAC Upgrades	2,872,000
Demolition	1,994,000
Electrical Upgrades	1,140,000
Fire and Life Safety Upgrades	971,000
Exterior Construction	619,000
Security Upgrades	265,000
Plumbing Upgrades	74,000
Total ECC	**$14,245,000**

Justification

The FCC provides forensic analyses for high-profile samples collected within FDA's Office of Regulatory Affairs and other Federal and State agencies. The FCC's specialized forensic analysis activities include product tampering, counterfeiting of pharmaceuticals, detection of contaminants in foods and pharmaceuticals, and economic fraud related to foods and pharmaceuticals and illegal drugs. FCC scientists perform original research to develop methodology to identify poisons and other hazardous materials in pharmaceutical and food matrices. Criminal casework and regulatory sample submissions are projected to grow along with an increase of personnel at the FCC. The existing lab is outdated and does not allow the agency to effectively perform critical activities.

Consolidating FDA from leased space and the District Office from the FCC into vacant space in the Peck FB will allow FDA to share resources and will make for efficient operations for FDA's district, regional, State, and Federal agency partners. Approximately $177,000 in annual lease costs will be avoided by relocating FDA from leased space into the Peck FB.

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

Prior Appropriations

None

GSA PBS

PROSPECTUS – ALTERATION
FOOD AND DRUG ADMINISTRATION FORENSIC CHEMISTRY CENTER and JOHN WELD PECK FEDERAL BUILDING
CINCINNATI, OH

Prospectus Number: POH-0306/0189-CN20
Congressional District: 1

Prior Committee Approvals

None

Prior Prospectus-Level Projects in Buildings (past 10 years)

Prospectus	Description	FY	Amount
P011-0189-C115	Reconfiguration of space (Peck)	2015	$35,373,000

Alternatives Considered (30-year, present value cost analysis)

Alteration: $46,388,006
New Construction: $54,502,591
Lease $86,721,223

The 30-year, present value cost of alteration is $8,114,585 less than the cost of new construction with an equivalent annual cost advantage of $392,884.

Recommendation

ALTERATION

GSA PBS

PROSPECTUS – ALTERATION
FOOD AND DRUG ADMINISTRATION FORENSIC CHEMISTRY CENTER and
JOHN WELD PECK FEDERAL BUILDING
CINCINNATI, OH

Prospectus Number: POH-0306/0189-CN20
Congressional District: 1

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on March 18, 2019

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

ALTERATION—ANTHONY J. CELEBREZZE FEDERAL BUILDING, CLEVELAND, OH

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repairs and alterations to the Anthony J. Celebrezze Federal Building (Celebrezze Building) located at 1240 E. 9th Street in Cleveland, OH. The project will renovate and provide consolidated space in the Celebrezze Building for the Veterans Benefits Administration (VBA), the Department of Labor Office of Workers' Compensation Programs (OWCP) and the Department of Education at a design cost of $7,835,000, an estimated construction cost of $59,325,000 and a management and inspection cost of $4,603,000 for a total estimated project cost of $71,763,000, a prospectus for which is attached to and included in this resolution. The approval requested in the FY 2020 amended prospectus reflects a reduction of $2,461,000 for the project, and requests reallocation of the previously approved Design, Construction, and M&I. This resolution amends the authorization of the Committee on June 27, 2018 of Prospectus No. POH–0192–CL18.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

AMENDED PROSPECTUS – ALTERATION
ANTHONY J. CELEBREZZE FEDERAL BUILDING
CLEVELAND, OH

Prospectus Number: POH-0192-FY20
Congressional District: 11

FY 2020 Project Summary

The General Services Administration (GSA) proposes a repair and alteration project for the Anthony J. Celebrezze Federal Building (Celebrezze Building) located at 1240 E. 9th Street in Cleveland, OH. The project will renovate and provide consolidated space in the Celebrezze Building for the Veterans Benefits Administration (VBA), the Department of Labor Office of Workers' Compensation Programs (OWCP) and the Department of Education (Education). OWCP and Education are in leased space and will relocate into the Celebrezze Building when the project is complete. VBA is currently housed in the Celebrezze Building. The OWCP and Education office space consolidations will provide an annual lease cost avoidance of approximately $1,011,000 and an annual rent savings of approximately $273,000. The project will provide long-term housing solutions for all of the agencies.

FY 2020 Senate Committee Approval Requested

(Design, Construction, and Management & Inspection)..... $71,763,000[1]

This prospectus amends Prospectus No. POH-0192-CL18, and requests approval of $71,763,000 to account for a more refined budget estimate.

FY 2020 Appropriation Requested

(Construction and Management & Inspection) ..... $63,928,000[2]

[1] The House Committee on Transportation and Infrastructure approved Design, M&I and Construction of $74,224,000 in Prospectus No. POH-0192-CL18. The approval requested in this FY 2020 amended prospectus reflects a reduction of $2,461,000 for the project, and requests reallocation of the previously approved Design, Construction, and M&I.

[2] While GSA was unable to fund the proposed FY 2018 repair and alteration project within the enacted level of the President's FY 2018 Budget, GSA's FY 2018 Major R&A Spending Plan did provide $7,835,000 for Design and related services.

GSA PBS

AMENDED PROSPECTUS – ALTERATION
ANTHONY J. CELEBREZZE FEDERAL BUILDING
CLEVELAND, OH

Prospectus Number: POH-0192-FY20
Congressional District: 11

Major Work Items

Interior construction; heating, ventilation and air conditioning (HVAC); electrical upgrades/replacement; demolition/hazardous materials abatement; and life safety upgrades

Project Budget

Design (FY 2018)	$7,835,000
Estimated Construction Cost (ECC)	59,325,000
Management &Inspection (M&I)	4,603,000
Estimated Total Project Cost (ETPC)	**$71,763,000**

*Tenant agencies may fund an additional amount for alterations above the standard normally provided by GSA.

Schedule	Start	End
Design and Construction	FY 2019	FY 2026

Building

The Celebrezze Building was built in 1966 and houses approximately 4,000 Federal employees. The building has 1,471,000 gross square feet, including 331 inside parking spaces, and is located within the northeast section of downtown Cleveland. There are 32 floors and a mezzanine level above grade, a basement and a sub-basement. The building is eligible for listing in the National Register of Historic Places.

Tenant Agencies

Department of Defense-Defense Financing and Accounting Service, Chief of Naval Personnel; Veterans Affairs–Veterans Benefits Administration; Internal Revenue Service; Department of Homeland Security-U.S. Coast Guard, U.S. Citizenship & Immigration Services; Equal Employment Opportunity Commission; and the National Labor Relations Board.

Proposed Project

The project proposes the build-out of space in the Celebrezze Building to meet the long-term needs of VBA, OWCP and Education. The project scope includes relocation of several existing tenants within the building to provide VBA with contiguous space, thereby allowing the agency to administer services for veterans more efficiently. OWCP

AMENDED PROSPECTUS – ALTERATION
ANTHONY J. CELEBREZZE FEDERAL BUILDING
CLEVELAND, OH

Prospectus Number: POH-0192-FY20
Congressional District: 11

and Education will be relocated from privately owned leased space into Celebrezze and consolidate their footprints. Existing space will be abated of all hazardous materials. A new ceiling, lighting, and fire and life safety systems will be installed. Mechanical and electrical systems will be upgraded or replaced, as required for build-out of the tenants' spaces. Minor plumbing repairs in tenant spaces and some restrooms will be completed.

Major Work Items

Interior Construction	$28,066,000
Demolition/Hazardous Materials Abatement	15,164,000
HVAC Upgrades/Replacement	9,635,000
Electrical Upgrades/Replacement	3,779,000
Life Safety Upgrades	2,681,000
Total ECC	**$59,325,000**

Justification

VBA currently occupies approximately 113,000 usable square feet in the Celebrezze Building. They have been housed on the 10th through 13th floors of the Federal building since it opened in 1966. Aside from minor space modifications and upgrades to the building's mechanical systems, the VBA office space has not undergone a major renovation. The modernization will provide VBA with contiguous space that meets its current requirements and will assist them in providing veterans services more effectively. Hazardous materials abatement needs to be completed in the renovated spaces to replace the ceiling, lighting and fireproofing, which are original to the building. OWCP and Education will backfill space vacated by VBA.

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

Prior Appropriations

Prior Appropriations			
Public Law	**Fiscal Year**	**Amount**	**Purpose**
115-141 via Major R&A Spending Plan	2018	$7,835,000	Design and Related Services
Appropriations to Date		**$7,835,000**	

GSA PBS

AMENDED PROSPECTUS – ALTERATION
ANTHONY J. CELEBREZZE FEDERAL BUILDING
CLEVELAND, OH

Prospectus Number: POH-0192-FY20
Congressional District: 11

Prior Committee Approvals

Prior Committee Approvals			
Committee	Date	Amount	Purpose
House T&I	6-27-18	$74,224,000	Design, Construction, M&I[3]

Prior Prospectus-Level Projects in Building (past 10 years)

None

Alternatives Considered (30-year, present value cost analysis)

Alteration: $109,053,000
New Construction: $119,738,000
Lease $184,755,000

The 30-year, present value cost of alteration is $10,685,000 less than the cost of new construction with an equivalent annual cost advantage of $517,000.

Recommendation

ALTERATION

[3] The amount approved for Design in Prospectus No. POH-0192-CL18 by the House Committee is $6,008,000 which is $1,827,000 less than the $7,835,000 funding level in GSA's FY18 Major R&A Spending Plan. However, the amounts approved for Construction ($63,362,000) and Management & Inspection ($4,854,000) are $4,037,000 and $251,000 greater than the amounts requested in this prospectus respectively.

GSA PBS

AMENDED PROSPECTUS – ALTERATION
ANTHONY J. CELEBREZZE FEDERAL BUILDING
CLEVELAND, OH

Prospectus Number: POH-0192-FY20
Congressional District: 11

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on March 18, 2019

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

ALTERATION—JOHN W. BRICKER FEDERAL BUILDING, COLUMBUS, OH

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repair and alteration of the John W. Bricker Federal Building located in the Central Business District of Columbus, OH to consolidate the Judiciary's U.S. Bankruptcy Court and the Department of Justice—U.S. Marshals Service at a design cost of $627,000, an estimated construction cost of $5,384,000 and a management and inspection cost of $548,000 for an estimated total project cost of $6,559,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS – ALTERATION
JOHN W. BRICKER FEDERAL BUILDING
COLUMBUS, OH

Prospectus Number: POH-0208-CO20
Congressional District: 3

FY 2020 Project Summary

The General Services Administration (GSA) proposes a repair and alteration project to consolidate the Judiciary's U.S. Bankruptcy Court (USBC) and the Department of Justice–U.S. Marshals Service (USMS) from over 51,000 usable square feet (USF) of leased space to approximately 26,000 USF of owned space in the John W. Bricker Federal Building (Bricker Federal Building). The project will meet the long-term housing needs of the USBC, decrease the Federal Government's reliance on leased space, reduce federally owned vacant space, and improve space utilization in the Bricker Federal Building. The proposed project provides an annual lease cost avoidance of approximately $1.4 million and an annual agency rent savings of approximately $62,000.

FY 2020 Committee Approval and Appropriation Requested

(Design, Construction, and Management & Inspection).....$6,559,000

Major Work Items

Interior construction; demolition/hazardous materials abatement; heating, ventilation, and air conditioning (HVAC) upgrades; electrical upgrades; and plumbing upgrades

Project Budget

Design	$627,000
Estimated Construction Cost (ECC)	5,384,000
Management &Inspection (M&I)	548,000
Estimated Total Project Cost (ETPC)	**$6,559,000**

*Tenant agencies may fund an additional amount for alterations above the standard normally provided by GSA.

Schedule	Start	End
Design and Construction	FY 2020	FY 2022

Building

The Bricker Federal Building is located in the Central Business District of Columbus, Ohio. The seven-story building is designed in the Brutalist style and was constructed in 1977 to house Federal agencies. The structure has a cast-in-place concrete core with a steel frame and a limestone facade. It is part of a 454,000 gross square foot facility that includes an eight-level parking garage.

GSA PBS

PROSPECTUS – ALTERATION
JOHN W. BRICKER FEDERAL BUILDING
COLUMBUS, OH

Prospectus Number: POH-0208-CO20
Congressional District: 3

Tenant Agencies

Judiciary; Department of Justice – U.S. Marshals Service; Department of Agriculture; Department of Labor; Department of the Treasury–Internal Revenue Service; Department of Transportation; Social Security Administration; GSA

Proposed Project

The project proposes to consolidate the USBC, currently in leased space, into the Bricker Federal Building. The project will create two USBC courtrooms, three chambers, clerk space, and support spaces. The project also includes the relocation of the USMS Court Security Office from leased space into the permanent Federal space. As part of the interior space alterations, HVAC, electrical, and plumbing upgrades required to house the USBC in the building will be completed.

Major Work Items

Interior Construction	$2,732,000
Demolition/Hazardous Materials Abatement	901,000
HVAC Upgrades	857,000
Electrical Upgrades	825,000
Plumbing Upgrades	69,000
Total ECC	**$5,384,000**

Justification

The USBC and USMS occupy more than 51,000 USF in leased space. The USBC is reducing their space requirements by roughly 50%, and 26,000 USF of space is currently available at the Bricker Federal Building that can be altered to meet their long-term needs. The consolidation project will result in $1.4 million in lease cost avoidance, increase the utilization of the Federal building, and reduce the Federal Government's footprint.

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service.* GSA encourages cost effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

Prior Appropriations

None

GSA PBS

PROSPECTUS – ALTERATION
JOHN W. BRICKER FEDERAL BUILDING
COLUMBUS, OH

Prospectus Number: POH-0208-CO20
Congressional District: 3

Prior Committee Approvals

None

Prior Prospectus-Level Projects in Building (past 10 years)

None

Alternatives Considered (30-year, present value cost analysis)

Alteration: $22,589,561
New Construction: $26,359,431
Lease $27,610,133

The 30-year, present value cost of alteration is $3,769,870 less than the cost of new construction with an equivalent annual cost advantage of $182,526.

Recommendation

ALTERATION

GSA PBS

PROSPECTUS – ALTERATION
JOHN W. BRICKER FEDERAL BUILDING
COLUMBUS, OH

Prospectus Number: POH-0208-CO20
Congressional District: 3

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on March 18, 2019

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

ALTERATION—WILLIAM J. HOLLOWAY, JR. U.S. COURTHOUSE AND U.S. POST OFFICE AND COURTHOUSE, OKLAHOMA CITY, OK

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repair and alteration of the William J. Holloway, Jr. U.S. Courthouse and U.S. Post Office and Courthouse, located at 200 Northwest Fourth Street, Oklahoma City, OK and the United States Post Office and Courthouse at 215 Dean A McGee Avenue, Oklahoma City, OK at a design cost of $12,129,000, an estimated construction cost of $125,257,000, and a management and inspection cost of $7,060,000 for an estimated total project cost of $144,446,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS – ALTERATION
WILLIAM J. HOLLOWAY, JR. U.S. COURTHOUSE
AND
U.S. POST OFFICE AND COURTHOUSE
OKLAHOMA CITY, OK

Prospectus Number: POK- 0046/0072-OK20
Congressional District: 5

FY 2020 Project Summary

The General Services Administration (GSA) proposes the design and construction of the first of a two-phase repair and alteration project for the William J. Holloway, Jr. United States Courthouse (Holloway CT) at 200 Northwest Fourth Street, Oklahoma City, OK, and the United States Post Office and Courthouse (PO-CT) at 215 Dean A. McGee Avenue. These two buildings are part of a three-building Federal complex that also includes the Federal Parking Garage. Alterations to the Holloway CT and PO-CT include interior alterations; modernization of outdated mechanical, fire alarm, electrical, and plumbing systems; and exterior improvements, such as roof and window system replacements.

FY 2020 Committee Approval Requested

(Design, Construction, and Management & Inspection).....$144,446,000

FY 2020 Appropriation Requested

(Design, Phase I Construction, and Phase I Management & Inspection)...$93,441,000

Major Work Items

Interior construction; heating, ventilation, and air conditioning (HVAC)/mechanical replacement; fire/life safety replacement and upgrades; electrical system replacement; building envelope upgrades, including window replacement; plumbing upgrades; and site work upgrades.

GSA PBS

PROSPECTUS – ALTERATION
WILLIAM J. HOLLOWAY, JR. U.S. COURTHOUSE
AND
U.S. POST OFFICE AND COURTHOUSE
OKLAHOMA CITY, OK

Prospectus Number: POK- 0046/0072-OK20
Congressional District: 5

Project Budget

Design	
Holloway U.S. Courthouse	$7,301,000
PO-CT	4,828,000
Total Design	**$12,129,000**
Estimated Construction Cost (ECC)	
Holloway U.S. Courthouse (Phase I)	$77,145,000
PO-CT (Phase II) (TBD)	48,112,000
Total ECC	**$125,257,000**
Management & Inspection (M&I)	
Holloway U.S. Courthouse (Phase I)	$4,167,000
PO-CT (Phase II) (TBD)	2,893,000
Total M&I	**$7,060,000**
Estimated Total Project Cost (ETPC)*	**$144,446,000**

*Tenant agencies may fund an additional amount for tenant improvements above the standard normally provided by GSA.

Schedule	Start	End
Design and Construction	FY 2020	FY 2024

Buildings

The Holloway CT is located at 200 Northwest Fourth Street in downtown Oklahoma City. The site is located immediately to the south of the former Alfred P. Murrah Federal Office Building that was destroyed in the 1995 bombing.

Constructed in 1960, the five-story building contains 308,691 gross square feet and is eligible for listing in the National Register of Historic Places. The exterior walls are composed of cast concrete panels with limited ornamental detailing and marble veneer at the upper portion of the front facade. A full basement includes a small parking garage. A steel-framed skywalk connects this building to the PO-CT at the third floor level.

GSA PBS

PROSPECTUS – ALTERATION
WILLIAM J. HOLLOWAY, JR. U.S. COURTHOUSE
AND
U.S. POST OFFICE AND COURTHOUSE
OKLAHOMA CITY, OK

Prospectus Number: POK- 0046/0072-OK20
Congressional District: 5

The PO-CT, located at 215 Dean A. McGee Avenue, opened in 1912. It was the first monumental building in Oklahoma City and was designed in the Beaux-Arts style. The building was expanded in 1919 and again in 1932. In 1988, GSA restored the public areas, including the former postal lobby, second floor courtroom (1912), and sixth floor courtroom (1932).

The 221,497 gross square foot building was listed in the National Register of Historic Places in 1974 and is an early symbol of the Federal presence in the State of Oklahoma. It is a massive, nine-story (plus basement) structure.

Tenant Agencies (both buildings)

Judiciary, Department of Justice–U.S. Marshals Service, Department of the Interior, Department of Labor, Department of Agriculture, Department of Defense, GSA, and other smaller agencies.

Proposed Project

The project will provide full design for repair and alteration of both the Holloway CT and the PO-CT. The first phase is repair and alteration of the Holloway CT which requires modernization of outdated building systems, including a complete HVAC replacement. Proposed interior construction in this building includes the replacement of finishes and fixtures in restrooms and common areas, reconfiguration of underground parking areas, and upgrades to comply with the Architectural Barriers Act Accessibility Standards (ABAAS). Electrical system components and the building's lighting system will be replaced. Building envelope upgrades include window replacement and repair of exterior stone. Fire and life safety upgrades include replacement of the entire fire alarm system, installation of additional stairwells for egress, and seismic upgrades. Plumbing fixtures and associated piping will be replaced. Site improvements proposed include replacement of caulking and correction of cracks in the plaza slab, landscape and lighting replacement, and accessibility upgrades.

The second phase includes repair and alteration of the PO-CT. Proposed interior construction includes replacement of finishes and fixtures in restrooms and common areas, as well as repair of water damage to interior woodwork and stone. The HVAC system also will be upgraded. Electrical work includes additional lighting and replacement of electrical panels. Building envelope upgrades include exterior stone restoration and window film for blast and window reinforcement. The mechanical penthouse roof will be replaced and the walls repaired. Fire and life safety upgrades

GSA PBS

PROSPECTUS – ALTERATION
WILLIAM J. HOLLOWAY, JR. U.S. COURTHOUSE
AND
U.S. POST OFFICE AND COURTHOUSE
OKLAHOMA CITY, OK

Prospectus Number: POK- 0046/0072-OK20
Congressional District: 5

include seismic modifications and enhancements to the fire sprinkler system. Plumbing fixtures will be replaced in all restrooms and a basement drainage system installed. Site improvements include walkway repair, landscaping upgrades, and the installation of an accessible entry landing and ramp at the main building entry.

Major Work Items

Interior Construction	$ 46,472,000
HVAC Replacement	29,683,000
Electrical Replacement	20,927,000
Building Envelope Upgrades	18,035,000
Fire/Life Safety Replacement/Upgrades	5,431,000
Plumbing Replacement/Upgrades	3,792,000
Site Upgrade	917,000
Total	**$125,257,000**

Justification

Water infiltration has caused damage to building interiors. Interior stairwells are required to bring emergency egress into compliance with fire safety codes. Reconfiguration of underground parking areas will maximize efficiency. The HVAC systems have exceeded their useful lives and need to be replaced for tenant comfort and efficient operation. Outdated HVAC control systems and related electronic components need frequent repairs, and parts are no longer available. In addition, new controls will support separate control of air on different floors, which will improve tenant comfort and satisfaction. The supply, return, ventilation, and exhaust fans are all original to the buildings and nearing the end of their useful lives. In both buildings, public restrooms, elevator lobbies, and common areas need upgrades for ABAAS compliance.

A replacement of lighting systems and electrical system components is needed to increase efficiency and comply with current code. Together, the buildings obtain only marginal energy performance. Inefficient and leaking windows are original to both buildings. Correction of window system deficiencies, along with repair to plaster, woodwork, and stone damaged by window leaks, is essential to the project. The potential failure of the stone exterior is a serious life safety concern. The fire alarm system is outdated and needs to be replaced. Seismic upgrades are included to address increased seismic activity in the area.

GSA PBS

PROSPECTUS – ALTERATION
WILLIAM J. HOLLOWAY, JR. U.S. COURTHOUSE
AND
U.S. POST OFFICE AND COURTHOUSE
OKLAHOMA CITY, OK

Prospectus Number: POK- 0046/0072-OK20
Congressional District: 5

Plumbing components have exceeded their useful lives and replacement parts are difficult to locate. Site work is needed to eliminate tripping hazards and comply with ABAAS.

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

Prior Appropriations

None

Prior Committee Approvals

None

Alternatives Considered (30-year, present value cost analysis)

Alteration: $169,906,000
New Construction: $231,311,071
Lease: $280,080,639

The 30-year, present value cost of alteration is $61,404,471 less than the cost of new construction with an equivalent annual cost advantage of $2,973,018.

Recommendation

ALTERATION

GSA PBS

PROSPECTUS – ALTERATION
WILLIAM J. HOLLOWAY, JR. U.S. COURTHOUSE
AND
U.S. POST OFFICE AND COURTHOUSE
OKLAHOMA CITY, OK

Prospectus Number: POK- 0046/0072-OK20
Congressional District: 5

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on March 18, 2019

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

	President's Budget Request ($000's)	Spending Plans Funding Level ($000's)
Repairs and Alterations Program		
Major Repairs and Alterations Allocation		
Washington, DC		
Regional Office Building	$95,642	$95,642
Suitland, MD		
Suitland Federal Center	$49,358	$49,358
Richmond, CA		
Frank Hagel Federal Building	$40,100	$40,100
Portland, ME		
Edward T. Gignoux U.S. Courthouse	$23,067	$23,067
New York, NY		
Silvio V. Mollo Federal Building/Jacob K. Javits Federal Building	$46,600	$46,600
Cleveland, OH		
Anthony J. Celebrezze Federal Building	$63,928	$63,928
Cincinnati, OH		
FDA Forensic Chemistry Center and John Weld Peck Federal Building	$17,546	$17,546
Oklahoma City, OK		
William J. Holloway Jr. U.S. Courthouse and U.S. Post Office and Courthouse	$93,441	$12,129
Austin, TX		
J.J. Pickle Federal Building	$17,408	$17,408
Pittsburgh, PA		
Joseph F. Weis Jr. U.S. Courthouse	$40,634	$11,000
Columbus, OH		
John W. Bricker Federal Building	$6,559	$6,559
Washington, DC		
Lyndon B. Johnson Federal Building	$0	$10,000
Indianapolis, IN		
Major General Emmett J. Bean Federal Center	$3,200	$3,200
Subtotal	**$497,483**	**$396,537**

Transfer Request Allocation		
Repairs and Alterations Program		
Special Emphasis		
Consolidation Activities Program[1]	$75,000	$15,500
Fire Protection and Life Safety Program[1]	$30,000	$11,658
Subtotal	$105,000	**$27,158**
Building Operations Program		
Building Operations	$0	$28,000
Subtotal	$0	**$28,000**
	TOTAL	**$53,158**

[1] Consolidation Activities and Fire Protection and Life Safety Programs were requested as individual line items within the Total FY 2020 Repairs and Alterations Program in the President's Budget.

COMMITTEE RESOLUTION

ALTERATION—JOSEPH F. WEIS, JR. U.S. COURTHOUSE, PITTSBURGH, PA

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repair and alteration of the Joseph F. Weis, Jr. U.S. Courthouse, located at 700 Grant Street, Pittsburgh, PA including upgrading/replacing the heating, ventilation, and air conditioning system; upgrading the electrical system; replacing a portion of the roof; and space alterations for the U.S. Bankruptcy Court to support the court's relocations from leased space at an estimated total project cost of $11,000,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS – ALTERATION
JOSEPH F. WEIS, JR. U.S. COURTHOUSE
PITTSBURGH, PA

Prospectus Number: PPA-0158-PI20
Congressional District: 18

FY 2020 Project Summary

The General Services Administration (GSA) proposes a repair and alteration project for the Joseph F. Weis, Jr. U.S. Courthouse (Weis Courthouse) located at 700 Grant Street in Pittsburgh, PA. The project includes upgrading/replacing the heating, ventilation, and air conditioning (HVAC) system; upgrading the electrical system; replacing a portion of the roof; and space alterations for the U.S. Bankruptcy Court to support the court's relocation from leased space into approximately 31,000 usable square feet (USF) of vacant space in the Weis Courthouse. Relocating the U.S. Bankruptcy Court into Federal space provides an annual lease cost avoidance of $1,300,000 to the Government and an annual rent savings of approximately $800,000 to the Judiciary.

FY 2020 Committee Approval and Appropriation Requested

(Design, Construction, and Management and Inspection).....$40,634,000

Major Work Items

HVAC replacement/upgrade, electrical and plumbing upgrades, interior construction, exterior construction, hazardous abatement

Project Budget

Design	$3,430,000
Estimated Construction Cost (ECC)	34,437,000
Management and Inspection (M&I)	2,767,000
Estimated Total Project Cost (ETPC)*	**$40,634,000**

*Tenant agencies may fund an additional amount for tenant improvements above the standard normally provided by the GSA.

Schedule	Start	End
Design and Construction	FY 2020	FY 2023

Building

Built in 1934, the 14-story neoclassic Weis Courthouse is an approximately 825,000 gross square foot building located in the central business district of Pittsburgh. The Weis

PROSPECTUS – ALTERATION
JOSEPH F. WEIS, JR. U.S. COURTHOUSE
PITTSBURGH, PA

Prospectus Number: PPA-0158-PI20
Congressional District: 18

Courthouse includes 18 courtrooms, five of which retain significant historical finishes, including mahogany paneling, murals, and marble work. There are three levels of parking: two inside garage levels and one surface parking area provided at the rear of the building.

Tenant Agencies

Judiciary, Department of Justice, GSA, Department of Agriculture, and Department of Veterans Affairs

Proposed Project

The project proposes replacing 13 air handler units and the associated steam, hot water heating, and chilled water system components in the building. Electrical upgrades, to support the HVAC upgrades and interior construction will be undertaken. In addition, all new and existing equipment, including electrical systems, will be tied into a recently installed building automation system. After the new rooftop cooling towers are installed, the roof over the affected areas of the sixth floor will be replaced.

The project also includes an interior space alteration project to support the U.S. Bankruptcy Court consolidation project. The U.S. Bankruptcy Court will be relocated from leased space to the Weis Courthouse and will reduce its footprint from approximately 43,000 USF to 31,000 USF. As part of this relocation and backfill into Federal space, the Circuit Library and Department of Justice – U. S. Marshals Service, current tenants of the Weis Courthouse, will also be reducing the amount of space they occupy to accommodate the U.S. Bankruptcy Court consolidation project.

Major Work Items

HVAC Replacement /Upgrades	$16,316,000
Electrical Upgrades	6,857,000
Interior Construction	5,310,000
Plumbing Upgrades	4,029,000
Exterior Construction	1,079,000
Hazardous Material Abatement	846,000
Total ECC	**$34,437,000**

GSA PBS

PROSPECTUS – ALTERATION
JOSEPH F. WEIS, JR. U.S. COURTHOUSE
PITTSBURGH, PA

Prospectus Number: PPA-0158-PI20
Congressional District: 18

Justification

The Weis Courthouse currently supports the operations of the U.S. Court of Appeals for the Third Judicial Circuit and the Western District of Pennsylvania for the U.S. District Court. The majority of the HVAC system is more than 50 years old and has exceeded its expected useful life. Older units still utilize the antiquated original pneumatic and communication controls. With multiple system components exceeding the expected service life and in a deteriorated condition, there is increased risk for a system failure and outage to portions of floors. Failures would lead to a significant disruption to the Judiciary's ability to meet caseload requirements.

The sixth floor roof is proposed as part of this project due to the placement of the cooling towers. Both cooling towers are located on the sixth floor roof, and the roof will be affected by the replacement of both towers.

The sixth floor roof will be replaced after the new rooftop cooling towers are replaced.

The proposed project for the Weis Courthouse will result in an annual lease cost avoidance of approximately $1,300,000 and an annual rent savings of approximately $800,000 for the Judiciary. The project fits into the overall asset strategy to repurpose vacant space for the courts and court-related functions, and enables space reduction for three court-related agencies. In addition, combining the HVAC system work with the proposed tenant renovation will reduce future tenant disruptions.

The Weis Courthouse has a significant amount of vacant space. Over the last several years, GSA worked with agencies in leased space to reduce their footprint and relocate into federally owned space. The U.S. Bankruptcy Court, currently located in one of the more costly GSA leases within Pittsburgh, will reduce its space by more than 30% by moving into the Weis Courthouse, including space currently occupied by the Circuit Library. The Circuit Library will be relocating into smaller space on another floor within the Weis Courthouse.

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

GSA PBS

PROSPECTUS – ALTERATION
JOSEPH F. WEIS, JR. U.S. COURTHOUSE
PITTSBURGH, PA

Prospectus Number: PPA-0158-PI20
Congressional District: 18

Prior Appropriations

None

Prior Committee Approvals

None

Prior Prospectus-Level Projects in Building (past 10 years):

None

Alternatives Considered (30-year, present value cost analysis)

There are no feasible alternatives to this project. This is a limited scope renovation, and the cost of the proposed project is far less than the cost of leasing or construction a new building.

Recommendation

ALTERATION

GSA PBS

PROSPECTUS – ALTERATION
JOSEPH F. WEIS, JR. U.S. COURTHOUSE
PITTSBURGH, PA

Prospectus Number: PPA-0158-PI20
Congressional District: 18

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on March 18, 2019

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

	President's Budget Request ($000's)	Spending Plans Funding Level ($000's)
Repairs and Alterations Program		
Major Repairs and Alterations Allocation		
Washington, DC		
Regional Office Building	$95,642	$95,642
Suitland, MD		
Suitland Federal Center	$49,358	$49,358
Richmond, CA		
Frank Hagel Federal Building	$40,100	$40,100
Portland, ME		
Edward T. Gignoux U.S. Courthouse	$23,067	$23,067
New York, NY		
Silvio V. Mollo Federal Building/Jacob K. Javits Federal Building	$46,600	$46,600
Cleveland, OH		
Anthony J. Celebrezze Federal Building	$63,928	$63,928
Cincinnati, OH		
FDA Forensic Chemistry Center and John Weld Peck Federal Building	$17,546	$17,546
Oklahoma City, OK		
William J. Holloway Jr. U.S. Courthouse and U.S. Post Office and Courthouse	$93,441	$12,129
Austin, TX		
J.J. Pickle Federal Building	$17,408	$17,408
Pittsburgh, PA		
Joseph F. Weis Jr. U.S. Courthouse	$40,634	$11,000
Columbus, OH		
John W. Bricker Federal Building	$6,559	$6,559
Washington, DC		
Lyndon B. Johnson Federal Building	$0	$10,000
Indianapolis, IN		
Major General Emmett J. Bean Federal Center	$3,200	$3,200
Subtotal	**$497,483**	**$396,537**

Transfer Request Allocation		
Repairs and Alterations Program		
Special Emphasis		
Consolidation Activities Program[1]	$75,000	$15,500
Fire Protection and Life Safety Program[1]	$30,000	$11,658
Subtotal	$105,000	**$27,158**
Building Operations Program		
Building Operations	$0	$28,000
Subtotal	$0	**$28,000**
	TOTAL	**$53,158**

[1] Consolidation Activities and Fire Protection and Life Safety Programs were requested as individual line items within the Total FY 2020 Repairs and Alterations Program in the President's Budget.

COMMITTEE RESOLUTION

ALTERATION—J.J. PICKLE FEDERAL BUILDING, AUSTIN, TX

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, additional appropriations are authorized for window system replacement at the J.J. Pickle Federal Building located at 300 East Eighth Street, Austin, TX at an additional design cost of $1,640,000, an additional estimated construction cost of $14,689,000 and an additional management and inspection cost of $1,079,000 for a total additional cost of $17,408,000 and an estimated total project cost of $57,669,000, a prospectus for which is attached to and included in this resolution. This resolution amends the authorization of the Committee on February 11, 2014 of Prospectus No. PTX–0227–AU14.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

AMENDED PROSPECTUS – ALTERATION
J. J. PICKLE FEDERAL BUILDING
AUSTIN, TX

Prospectus Number: PTX-0227-AU20
Congressional District: 21

FY 2020 Project Summary

The General Services Administration (GSA) proposes to continue the repair and alteration project at the J.J. Pickle Federal Building (Pickle FB), located at 300 East Eighth Street, in Austin, TX. Through this request, GSA will execute the window replacement which completes the project.

FY 2020 Committee Approval and Appropriation Requested

(Additional Design, ECC, and Management & Inspection) ..... $17,408,000[1]

This prospectus amends Prospectus No. PTX-0227-AU14, and requests approval of an additional $17,408,000 to account for cost escalation due to time and market conditions, and a more complicated window replacement solution.

Major Work Items

Exterior construction

Project Budget

Design (FY 2014)	$3,452,000
Additional Design (FY 2020)	1,640,000
Estimated Construction Cost (ECC) (FY 2014)	33,154,000
Additional Estimated Construction Cost (FY 2020)[2]	14,689,000
Management and Inspection (M&I) (FY 2014)	3,655,000
Additional Management and Inspection (M&I) (FY 2020)	1,079,000
Estimated Total Project Cost (ETPC)	**$57,669,000**

*Tenant agencies may fund an additional amount for alterations above the standard normally provided by GSA.

[1] Prospectus No. PTX-0227-AU14 was approved by the Committee on Transportation and Infrastructure of the House of Representatives and the Committee on Environment and Public Works of the Senate on February 11, 2014, and February 6, 2014, respectively for a design cost of $3,452,000, an estimated construction cost of $33,154,000, and a management and inspection cost of $3,655,000 for an estimated total project cost of $40,261,000.

[2] ECC for window work is $16,717,000. $2,028,000 is remaining balance from Prospectus No. PTX-0227-AU14, thereby lowering the overall ECC request in this prospectus to $14,689,000.

GSA PBS

AMENDED PROSPECTUS – ALTERATION
J. J. PICKLE FEDERAL BUILDING
AUSTIN, TX

Prospectus Number: PTX-0227-AU20
Congressional District: 21

Schedule	Start	End
Design and Construction	FY 2020	FY 2022

Building

The Pickle FB, constructed in 1964, has 11 stories (including a partially below-grade ground level and a basement level) and approximately 275,000 gross square feet. In addition to the Federal office space, the building also houses a suite of rooms used by President Lyndon B. Johnson during his term of office. The building is part of a master facility that includes a large plaza and is connected by an underground tunnel to the smaller Homer Thornberry Building. The Pickle FB is listed in the National Register of Historic Places.

Tenant Agencies

Department of Treasury–Internal Revenue Service, Department of Homeland Security, Department of Transportation, Department of Agriculture, Congressional Offices, and other smaller agencies.

Proposed Project

History: Prospectus No. PTX-0227-AU14 includes modernization of a number of outdated internal building systems, as well as some exterior work. HVAC work includes replacement of the entire distribution system and of the restroom exhaust system. The window systems will be replaced with an energy-efficient insulated glass that will be chosen with sensitivity to the historical aspect of the building's facade. Plaster damaged by window leaks will be repaired. The roof will be replaced with a more energy-efficient roof system with a davit and fall protection system. The entire existing fire alarm system will be replaced. Electrical system components will be replaced. The underground storage tank for the emergency generator is over 20 years old and must be replaced. Exterior cleaning and replacement of exterior caulking and correction of cracks in the plaza slab are also part of the project. Swing space needed to accommodate tenant moves during construction is included in the project.

Current Project: The proposed window system solution will replace the window assembly, including all glass and frame components. While this solution does not allow for retention of the original window frames as originally planned, GSA determined that replacing the building's window system is necessary to resolve air and water infiltration issues that are damaging the interior of the building.

GSA PBS

AMENDED PROSPECTUS – ALTERATION
J. J. PICKLE FEDERAL BUILDING
AUSTIN, TX

Prospectus Number: PTX-0227-AU20
Congressional District: 21

Major Work Items

HVAC/Mechanical Replacement	$10,895,000
Exterior Construction	10,031,000
Exterior Construction (window replacement)	16,717,000
Electrical Replacement	3,696,000
Interior Construction	3,523,000
Life Safety/Emergency System Replacement	2,200,000
Plumbing Replacement	1,573,000
Roof Replacement	1,236,000
Total ECC	**$49,871,000**

Justification

History: The building systems are outdated and have reached the end of their useful life. Outdated HVAC control system and related electronic components need frequent repairs, and parts are no longer available. The majority of the components of the facility's central plant are approaching the end of their useful life, thereby requiring the removal and replacement of boilers, cooling towers, and a chiller. Upgrades to the building's exterior include roof replacement as well as work on the windows and the plaza. The fire alarm is outdated and needs to be replaced to ensure life safety. The windows have been leaking at the Pickle FB for some time, damaging plaster in tenant spaces. In addition, window glazing is extremely stained and window gaskets are near the end of their useful lives. Installation of a waterproof membrane is needed in the plaza between the Pickle FB and Thornberry Building to prevent further water infiltration. This will prevent leakage into Pickle FB office space beneath the plaza. Additionally, replacement of the emergency generator's aging underground storage tank used to store fuel is a critical part of the project to prevent leakage or tank failure, which would be costly and environmentally hazardous.

Current Project: Implementation of the window replacement has proven more complex and costly than originally anticipated in order to fully address air and water infiltration issues as well as satisfy blast, energy, and historic preservation requirements. A window mock-up determined that the original FY 2014 design for the windows did not adequately solve water infiltration issues and created the need for extensive recurring maintenance. Additionally, while the original design included blast protection, the Facility Security Level of the building has increased since the project was authorized, increasing blast protection requirements.

To date, execution of this project has been in two phases. Phase I included all exterior work (except for the window replacement) and was completed in 2017. Costs for the Phase II proposals, for the interior work and the window replacement, were higher than the remaining

AMENDED PROSPECTUS – ALTERATION
J. J. PICKLE FEDERAL BUILDING
AUSTIN, TX

Prospectus Number: PTX-0227-AU20
Congressional District: 21

funding; therefore, GSA removed the window replacement from Phase II and reserved it for Phase III. Heavy rain events continue to cause further water damage to the building interior. The additional funding is needed to proceed with window replacement to avoid damage to the interior work performed in Phase II, which is to be completed in 2019.

The already saturated construction market was further affected by the 2017 hurricane season. The upsurge in demand for labor and materials along the Texas Gulf Coast has increased prices statewide, particularly for labor, as the workforce is being drawn from other cities, including Austin.

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

Prior Appropriations

Prior Appropriations			
Public Law	**Fiscal Year**	**Amount**	**Purpose**
113-76	2014	$ 40,261,000	Design = $3,452,000 ECC = $33,154,000 M&I = $3,655,000
Appropriations to Date		**$ 40,261,000**	

Prior Committee Approvals

Prior Committee Approvals			
Committee	**Date**	**Amount**	**Purpose**
Senate EPW	2/06/2014	$40,261,000	Design = $3,452,000 ECC = $33,154,000 M&I = $3,655,000
House T&I	2/11/2014	$40,261,000	Design = $3,452,000 ECC = $33,154,000 M&I = $3,655,000
Approvals to Date		**$40,261,000**	

GSA PBS

AMENDED PROSPECTUS – ALTERATION
J. J. PICKLE FEDERAL BUILDING
AUSTIN, TX

Prospectus Number: PTX-0227-AU20
Congressional District: 21

Alternatives Considered (30-year, present value cost analysis)

There are no feasible alternatives to this project. This is a limited scope renovation, and the cost of the proposed project is far less than the cost of leasing or constructing a new building.

Recommendation

ALTERATION

GSA PBS

AMENDED PROSPECTUS – ALTERATION
J. J. PICKLE FEDERAL BUILDING
AUSTIN, TX

Prospectus Number: PTX-0227-AU20
Congressional District: 21

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on March 18, 2019

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

DESIGN—MAJOR EMMETT J. BEAN FEDERAL CENTER, INDIANAPOLIS, IN

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for the design of a future repair and alteration project for the Major General Emmett J. Bean Federal Center, located at 8899 E. 56th Street, Indianapolis, IN at a design cost of $3,200,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS – ALTERATION
Prospectus for Design

Prospectus Number: PDS-02020

PROJECT: Major General Emmett J. Bean Federal Center

LOCATION: Indianapolis, IN

ESTIMATED TOTAL PROJECT COST: $31,740,000

DESIGN: $3,200,000

AMOUNT REQUESTED IN FY 2020 (Design): $3,200,000

WORK ITEM SUMMARY: Exterior construction, demolition, heating ventilation and air conditioning (HVAC) upgrades

DESCRIPTION

The General Services Administration (GSA) proposes the design of a future repair and alteration project for the Major General Emmett J. Bean Federal Center located at 8899 E. 56th Street, Indianapolis, IN, that will complete critical repairs and upgrades to the building's exterior. The project proposes rebuilding the existing roof parapet of the building, replacing the north portion of the roof, recoating the building's exterior, repairing the building's windows, and replacing the cooling tower.

The Bean Center is a three-story, concrete-framed structure with brick and stone exterior walls. The building measures approximately 1,660,000 gross square feet and is situated on a 72-acre site. It was constructed in 1953 as a Department of Defense records storage facility. Ownership of the building was transferred to GSA in 1996, at which time the facility was renovated for its current office use.

The building is experiencing a serious structural failure that poses a life safety hazard to its occupants and visitors. The roof parapet is separating from the roof and moving outwardly over the building's perimeter facades. There is a significant risk of large portions of the roof parapet falling off the building, and the risk increases as the parapet continues to move further. The movement is also causing delamination of the building's exterior coating which continues to fall off the building. Access to portions of the exterior has been restricted and temporary protective netting and scaffolding have been installed to protect tenants from any falling debris.

The north roof of the building, which has reached the end of its useful life, is experiencing leaks. The windows are allowing water intrusion into the building during rain events. The building cooling tower has reached the end of its useful life.

GSA PBS

PROSPECTUS – ALTERATION
Prospectus for Design

FISCAL YEAR 2020 ALTERATION DESIGN PROJECT

LOCATION	FY 2020 FUNDING
Indianapolis, IN	
Major General Emmett J. Bean Federal Center	$3,200,000
TOTAL	**$3,200,000**

GSA PBS

PROSPECTUS–ALTERATION
Prospectus for Design

Description

The General Services Administration (GSA) is seeking approval for one design project during fiscal year (FY) 2020, which GSA will schedule for construction in a future year. A description of the project is attached.

Justification

Starting the design for the project prior to receipt of construction-phase funding will facilitate an orderly and timely accomplishment of the planned program. Under the separate funding approach, GSA will submit the construction prospectus along with the future year budget request.

The subject project addresses exterior building repairs/upgrades.

Recommendation

Approve design and related services of $3,200,000 for the attached project. The construction cost indicated at this time is preliminary and will be refined and finalized prior to future requests for funding.

Committee Approval and Appropriation Requested in this Prospectus.....$3,200,000

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on March 18, 2019

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

CONSTRUCTION—SAN LUIS I U.S. LAND PORT OF ENTRY, SAN LUIS, AZ

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for the construction of facilities to modernize and expand the San Luis I Land Port of Entry in San Luis, AZ at a site acquisition cost of $1,100,000, design cost of $18,077,000, an estimated construction cost of $217,317,000, a management and inspection cost of $11,828,000 for a total estimated project cost of $248,322,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS – CONSTRUCTION
SAN LUIS I U.S. LAND PORT OF ENTRY
SAN LUIS, AZ

Prospectus Number: PAZ-BSC-SA20
Congressional District: 3

FY 2020 Project Summary

The General Services Administration (GSA) requests approval for the design and construction of facilities to modernize and expand the San Luis I Land Port of Entry (LPOE) in San Luis, AZ. The project will meet the current and future operational requirements of the Federal inspection agencies.

FY 2020 Committee Approval and Appropriation Requested

(Design, Construction and Management & Inspection)..... $248,322,000[1]

Overview of Project

The San Luis I LPOE was constructed 1984. Originally processing both commercial and noncommercial traffic, the port became exclusively noncommercial in 2010 when San Luis II began processing commercial traffic.

The project includes relocation and expansion of northbound vehicle primary and secondary inspection facilities; replacement of the headhouse to allow for proper sightlines for officers to observe activities at secondary inspection, the main building, and kennels; and development of southbound inspection and detention facilities that comply with the Department of Homeland Security, Customs and Border Protection (CBP) design guide.

Site Area

Government-Owned..... 12.1 acres
Site to be acquired ..... 5.22 acres

Building Area

Building (including canopies).....182,741 gross square feet (GSF)
Building (excluding canopies) ..... 104,141 GSF
Outside parking spaces 363

[1]GSA works closely with Department of Homeland Security program offices responsible for developing and implementing security technology at LPOEs. This prospectus contains funding for infrastructure requirements known at the time of prospectus development. Additional funding by a reimbursable work authorization may be required to provide for as yet unidentified security technology elements at this port.

GSA PBS

PROSPECTUS – CONSTRUCTION
SAN LUIS I U.S. LAND PORT OF ENTRY
SAN LUIS, AZ

Prospectus Number: PAZ-BSC-SA20
Congressional District: 3

Project Budget

Site Acquisition	$ 1,100,000
Design	18,077,000
Estimated Construction Cost (ECC)[2]	217,317,000
Site Development Cost	63,094,000
Building Costs (includes inspection canopies)	154,223,000
Management and Inspection (M&I)	11,828,000
Estimated Total Project Cost (ETPC)*	**$248,322,000**

*Tenant agencies may fund an additional amount for alterations above the standard normally provided by GSA.

Location

The site is located at Highway 95 and the International Border, San Luis, AZ.

Schedule	**Start**	**End**
Design and Construction	FY 2020	FY 2024

Tenant Agencies

Department of Homeland Security: CBP and Immigration and Customs Enforcement

Justification

The San Luis I LPOE is the busiest noncommercial LPOE in Arizona, processing over 3,000,000 vehicles and 2,500,000 pedestrians a year. The port currently processes much greater traffic than it was originally designed to accommodate. Existing facilities are significantly undersized and no longer meet the mission requirements of the Department of Homeland Security. All major building systems are past their useful lives. The expanded facilities will reduce wait times and provide additional capacity for cross-border travelers.

[2] ECC is broken into two parts – Site Development Costs and Building Costs.

GSA PBS

PROSPECTUS – CONSTRUCTION
SAN LUIS I U.S. LAND PORT OF ENTRY
SAN LUIS, AZ

Prospectus Number: PAZ-BSC-SA20
Congressional District: 3

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

Prior Appropriations

None

Prior Committee Approvals

None

Alternatives Considered

GSA has jurisdiction, custody, and control over and maintains the existing facilities at this LPOE. No alternative other than Federal construction was considered.

Recommendation

CONSTRUCTION

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on March 19, 2019

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

LEASE—FEDERAL BUREAU OF INVESTIGATION, CHANTILLY, VA

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for a lease of up to 188,000 rentable square feet of space, including 613 official parking spaces, for the Federal Bureau of Investigation currently located at 15020–15030 Conference Center Drive in Chantilly, VA at a proposed total annual cost of $7,332,000 for a lease term of up to 20 years, a prospectus for which is attached to and included in this resolution.

Approval of this prospectus constitutes authority to execute an interim lease for all tenants, if necessary, prior to the execution of the new lease.

Provided that, the Administrator of General Services and tenant agency(ies) agree to apply an overall utilization rate of 175 square feet or less per person, except that, if the Administrator determines that the overall utilization rate cannot be achieved, the Administrator shall provide an explanatory statement to the Committee on Transportation and Infrastructure of the House of Representatives prior to exercising any lease authority provided in this resolution.

Provided that, except for interim leases as described above, the Administrator may not enter into any leases that are below prospectus level for the purposes of meeting any of the requirements, or portions thereof, included in the prospectus that would result in an overall utilization rate of 175 square feet or higher per person.

Provided that, to the maximum extent practicable, the Administrator shall include in the lease contract(s) a purchase option that can be exercised at the conclusion of the firm term of the lease.

Provided further, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, that the Administrator shall require that the delineated area of the procurement is identical to the delineated area included in the prospectus, except that, if the Administrator determines that the delineated area of the procurement should not be identical to the delineated area included in the prospectus, the Administrator shall provide an explanatory statement to the Committee on Transportation and Infrastructure of the House of Representatives prior to exercising any lease authority provided in this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided further, the Administrator of General Services may not enter into this lease if it does not contain a provision barring any individual holding a Federally-elected office, regardless of whether such individual took office before or after execution of this lease, to directly participate in, or benefit from or under this lease or any part thereof and that such provision provide that if this lease is found to have been made in violation of the foregoing prohibition or it is found that this prohibition has been violated during the term of the lease, the lease shall be void, except that the foregoing limitation shall not apply if the lease is entered into with a publicly-held corporation or publicly-held entity for the general benefit of such corporation or entity.

Provided further, prior to entering into this lease or approving a novation agreement involving a change of ownership under this lease, the Administrator of General Services shall require the offeror or the parties requesting the novation, as applicable, to identify and disclose whether the owner of the leased space, including an entity involved in the financing thereof, is a foreign person or a foreign-owned entity; provided further, in such an instance, the Administrator of General Services shall notify the occupant agency(ies) in writing, and consult with such occupant agency(ies) regarding security concerns and necessary mitigation measures (if any) prior to award of the lease or approval of the novation agreement.

Provided that, to the maximum extent practicable, the Administrator of General Services shall require that the lease procurement consider the availability of public transportation consistent with agency mission requirements and that the space to be leased be renovated for all cost effective improvements, including renewable energy upgrades, water efficiency improvements, and indoor air quality optimization, that reduce greenhouse gas emissions.

GSA PBS

PROSPECTUS – LEASE
FEDERAL BUREAU OF INVESTIGATION
CHANTILLY, VIRGINIA

Prospectus Number: PVA-01-WA20
Congressional District: 8, 10, 11

Executive Summary

The General Services Administration (GSA) proposes a lease of approximately 188,000 rentable square feet (RSF) for the Department of Justice, Federal Bureau of Investigation (FBI), currently located at 15020-15030 Conference Center Drive in Chantilly, VA. The FBI has occupied this space since 2014 under a lease that expires on May 15, 2023. GSA is proposing to continue leasing space for the FBI at the current location pending the results of a cost-benefit analysis, including relocation and duplication costs of real and personal property needed for the FBI to accomplish its mission.

The lease will provide continued housing for the FBI and will maintain the office and overall space utilization rates at 68 and 175 usable square feet (USF) per person, respectively.

Description

Occupant:	Federal Bureau of Investigation
Current RSF:	175,000 (Current RSF/USF = 1.12)
Estimated/Proposed Maximum RSF[1]:	188,000 (Proposed RSF/USF = 1.20)
Expansion/Reduction RSF:	13,000 Expansion
Current USF/Person:	175
Estimated/Proposed USF/Person:	175
Expiration Dates of Current Lease(s):	05/15/2023
Proposed Maximum Leasing Authority:	20 years
Delineated Area:	Northern Virginia
Number of Official Parking Spaces:	613
Scoring:	Operating
Current Total Annual Cost:	$6,240,192 (lease effective 05/16/2013)
Estimated Rental Rate[2]:	$39.00 / RSF
Estimated Annual Rent[3]:	$7,332,000

[1] The RSF/USF at the current location is approximately 1.12; however, to maximize competition a RSF/USF ratio of 1.2 is used for the estimated proposed maximum RSF as indicated in the housing plan.
[2] This estimate is for fiscal year 2023 and may be escalated by 2 percent annually to the effective date of the lease to account for inflation. The proposed rental rate is fully serviced including all operating expenses, whether paid by the lessor or directly by the Government. GSA will conduct the procurement using prevailing market rental rates as a benchmark for the evaluation of competitive offers and as the basis for negotiating with offerors to ensure that lease award is made in the best interest of the Government.
[3] New leases may contain an escalation clause to provide for annual changes in real estate taxes and operating costs.

GSA PBS

PROSPECTUS – LEASE
FEDERAL BUREAU OF INVESTIGATION
CHANTILLY, VIRGINIA

Prospectus Number: PVA-01-WA20
Congressional District: 8, 10, 11

Acquisition Strategy

In order to maximize the flexibility and competition in acquiring space for the FBI, GSA may issue a single, multiple-award solicitation that will allow offerors to provide blocks of space able to meet requirements in whole or in part. All offers must provide space consistent with the delineated area defined by this prospectus.

Background

The mission of the FBI is to protect and defend the United States against terrorist and foreign intelligence threats; to uphold and enforce the criminal laws of the United States; to provide leadership and criminal justice services to Federal, State, municipal, and international agencies and partners; and to perform these responsibilities in a manner that is responsive to the needs of the public and is faithful to the Constitution of the United States.

The current location houses the several technology divisions as well as one support function. The Intelligence Technology and Data Division (ITADD) works to deliver innovative software to help FBI employees accomplish their unique missions and provide agents and analysts with relevant data when and where they need it. The Cyber Division mission is to identify, pursue, and defeat cyber adversaries targeting global U.S. interests through collaborative partnerships and unique combinations of national security and law enforcement authorities. The Operational Technology Division delivers technology-based solutions that enable and enhance the FBI's intelligence, national security, and law enforcement operations. The Operational Technology Division works to counter current and emerging threats through applied technology. The Financial and Facilities Division has created a partnership to improve financial and facility portfolio management and logistics services to provide responsive customer service in support of the FBI's mission.

Justification

The current lease at 15020-15030 Conference Center Drive in Chantilly, VA, expires on May 15, 2023, and this location serves as a Continuity of Operations facility for the divisions housed here as well as their counterparts in the greater Washington, DC, metro area.

The unique nature of operations requires levels of security not easily acquired on the open market. Based on an analysis of other potential locations within the delineated area, GSA will consider whether the FBI's continued housing needs should be satisfied in the existing location. If other potential locations are identified, GSA will conduct a cost-benefit analysis to determine whether the Government can expect to recover the

PROSPECTUS – LEASE
FEDERAL BUREAU OF INVESTIGATION
CHANTILLY, VIRGINIA

Prospectus Number: PVA-01-WA20
Congressional District: 8, 10, 11

relocation and duplication costs of real and personal property needed for the continued housing the FBI requires to carry out its mission.

Summary of Energy Compliance

GSA will incorporate energy efficiency requirements into the Request for Lease Proposals and other documents related to the procurement of space based on the approved prospectus. GSA encourages offerors to exceed minimum requirements set forth in the procurement and to achieve an Energy Star performance rating of 75 or higher.

Resolutions of Approval

Resolutions adopted by the House Committee on Transportation and Infrastructure, and the Senate Committee on Environment and Public Works approving this prospectus will constitute approval to make appropriations to lease space in a facility that will yield the required rentable area.

Interim Leasing

GSA will execute such interim leasing actions as are necessary to ensure continued housing of the tenant agency prior to the effective date of the new lease. It is in the best interest of the Government to avert the financial risk of holdover tenancy.

GSA **PBS**

PROSPECTUS – LEASE
FEDERAL BUREAU OF INVESTIGATION
CHANTILLY, VIRGINIA

Prospectus Number: PVA-01-WA20
Congressional District: 8, 10, 11

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on February 5, 2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

December 2018

Housing Plan
Federal Bureau of Investigation

PVA-01-WA20
Chantilly, VA

Leased Locations	CURRENT						ESTIMATED/PROPOSED					
	Personnel		Usable Square Feet (USF)[1]				Personnel		Usable Square Feet (USF)			
	Office	Total	Office	Storage	Special	Total	Office	Total	Office	Storage[5]	Special[6]	Total
15020-15030 Conference Center Drive	891	891	77,998	2,266	76,012	156,276						
Estimated/Proposed Lease							891	891	77,998	2,266	76,012	156,276
Total	**891**	**891**	**77,998**	**2,266**	**76,012**	**156,276**	**891**	**891**	**77,998**	**2,266**	**76,012**	**156,276**

Office Utilization Rate (UR)[2]		
	Current	Proposed
Rate	68	68

UR = average amount of office space per person
Current UR excludes 17,160 usf of office support space
Proposed UR excludes 17,160 usf of office support space

Overall UR[3]		
	Current	Proposed
Rate	175	175

R/U Factor[4]			
	Total USF	RSF/USF	Max RSF
Current	156,276	1.12	175,000
Estimated/Proposed	156,276	1.20	188,000

Special Space[6]	USF
Conference	15,839
Training Rooms	2,985
Call Center	2,412
SCIF IT Area	2,575
SCIF Work Area	52,201
Total	**76,012**

NOTES:
[1] USF means the portion of the building available for use by a tenant's personnel and furnishings and space available jointly to the occupants of the building.
[2] Calculation excludes the judiciary, Congress, and agencies with fewer than 10 people.
[3] USF/Person = housing plan total USF divided by total personnel
[4] R/U Factor (R/U) = Max RSF divided by total USF
[5] Storage excludes warehouse, which is part of Special Space.
[6] Special spaces listed are examples of such spaces and may be subject to change at the time a Request for Lease Proposal (RLP) is issued to meet specific agency requirements.

COMMITTEE RESOLUTION

LEASE—FEDERAL BUREAU OF INVESTIGATION, MANASSAS, VA

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for a lease of up to 234,000 rentable square feet of space, including 300 official parking spaces, for the Federal Bureau of Investigation currently located at 9325 Discovery Boulevard in Manassas, VA at a proposed total annual cost of $9,126,000 for a lease term of up to 20 years, a prospectus for which is attached to and included in this resolution.

Approval of this prospectus constitutes authority to execute an interim lease for all tenants, if necessary, prior to the execution of the new lease.

Provided that, the Administrator of General Services and tenant agency(ies) agree to apply an overall utilization rate of 238 square feet or less per person, except that, if the Administrator determines that the overall utilization rate cannot be achieved, the Administrator shall provide an explanatory statement to the Committee on Transportation and Infrastructure of the House of Representatives prior to exercising any lease authority provided in this resolution.

Provided that, except for interim leases as described above, the Administrator may not enter into any leases that are below prospectus level for the purposes of meeting any of the requirements, or portions thereof, included in the prospectus that would result in an overall utilization rate of 238 square feet or higher per person.

Provided that, to the maximum extent practicable, the Administrator shall include in the lease contract(s) a purchase option that can be exercised at the conclusion of the firm term of the lease.

Provided further, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, that the Administrator shall require that the delineated area of the procurement is identical to the delineated area included in the prospectus, except that, if the Administrator determines that the delineated area of the procurement should not be identical to the delineated area included in the prospectus, the Administrator shall provide an explanatory statement to the Committee on Transportation and Infrastructure of the House of Representatives prior to exercising any lease authority provided in this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided further, the Administrator of General Services may not enter into this lease if it does not contain a provision barring any individual holding a Federally-elected office, regardless of whether such individual took office before or after execution of this lease, to directly participate in, or benefit from or under this lease or any part thereof and that such provision provide that if this lease is found to have been made in violation of the foregoing prohibition or it is found that this prohibition has been violated during the term of the lease, the lease shall be void, except that the foregoing limitation shall not apply if the lease is entered into with a publicly-held corporation or publicly-held entity for the general benefit of such corporation or entity.

Provided further, prior to entering into this lease or approving a novation agreement involving a change of ownership under this lease, the Administrator of General Services shall require the offeror or the parties requesting the novation, as applicable, to identify and disclose whether the owner of the leased space, including an entity involved in the financing thereof, is a foreign person or a foreign-owned entity; provided further, in such an instance, the Administrator of General Services shall notify the occupant agency(ies) in writing, and consult with such occupant agency(ies) regarding security concerns and necessary mitigation measures (if any) prior to award of the lease or approval of the novation agreement.

Provided that, to the maximum extent practicable, the Administrator of General Services shall require that the lease procurement consider the availability of public transportation consistent with agency mission requirements and that the space to be leased be renovated for all cost effective improvements, including renewable energy upgrades, water efficiency improvements, and indoor air quality optimization, that reduce greenhouse gas emissions.

GSA PBS

PROSPECTUS – LEASE
FEDERAL BUREAU OF INVESTIGATION
MANASSAS, VA

Prospectus Number: PVA-02-WA20
Congressional Districts: 8,10,11

Executive Summary

The General Services Administration (GSA) proposes a lease of approximately 234,000 rentable square feet (RSF) for the Department of Justice, Federal Bureau of Investigation (FBI), currently located at 9325 Discovery Boulevard in Manassas, VA. The FBI has occupied space under a lease that expires on November 30, 2022. GSA is proposing to continue leasing space for the FBI at the current location pending the results of a cost-benefit analysis, including relocation and duplication costs of real and personal property needed for the FBI to accomplish its mission.

This action will provide continued housing for the FBI and will maintain the office and overall space utilization rates at 104 and 238 usable square feet (USF) per person, respectively.

Description

Occupant:	Federal Bureau of Investigation
Current RSF:	222,508 (Current RSF/USF = 1.15)
Estimated/Proposed Maximum RSF[1]:	234,000 (Proposed RSF/USF = 1.20)
Expansion/Reduction RSF:	11,492 Expansion
Current USF/Person:	238
Estimated/Proposed USF/Person:	238
Expiration Dates of Current Lease(s):	11/30/2022
Proposed Maximum Leasing Authority:	20 years
Delineated Area:	Northern Virginia
Number of Official Parking Spaces:	300
Scoring:	Operating
Current Total Annual Cost:	$7,880,816 (leases effective 12/01/2007)
Estimated Rental Rate[2]:	$39.00 / RSF
Estimated Annual Rent[3]:	$9,126,000

[1] The RSF/USF at the current location is approximately 1.15; however, to maximize competition a RSF/USF ratio of 1.2 is used for the estimated proposed maximum RSF as indicated in the housing plan.
[2] This estimate is for fiscal year fiscal year 2023 and may be escalated by 2 percent annually to the effective date of the lease to account for inflation. The proposed rental rate is fully serviced including all operating expenses, whether paid by the lessor or directly by the Government. GSA will conduct the procurement using prevailing market rental rates as a benchmark for the evaluation of competitive offers and as the basis for negotiating with offerors to ensure that lease award is made in the best interest of the Government.
[3] New leases may contain an escalation clause to provide for annual changes in real estate taxes and operating costs.

GSA PBS

PROSPECTUS – LEASE
FEDERAL BUREAU OF INVESTIGATION
MANASSAS, VA

Prospectus Number: PVA-02-WA20
Congressional Districts: 8,10,11

Acquisition Strategy

In order to maximize the flexibility and competition in acquiring space for the FBI, GSA may issue a single, multiple-award solicitation that will allow offerors to provide blocks of space able to meet requirements in whole or in part. All offers must provide space consistent with the delineated area defined by this prospectus.

Background

The mission of the FBI is to protect and defend the United States against terrorist and foreign intelligence threats; to uphold and enforce the criminal laws of the United States; to provide leadership and criminal justice services to Federal, State, municipal, and international agencies and partners; and to perform these responsibilities in a manner that is responsive to the needs of the public and is faithful to the Constitution of the United States.

The current location houses the Northern Virginia Resident Agency (NVRA), which supports the greater Washington Field Office (WFO) through five divisions: the Administrative Division, the Counterintelligence Division, the Counterterrorism Division, the Intelligence Division, and the Criminal Division. These divisions provide human, technical, and capital asset resources to support the priorities of WFO.

Additionally, NVRA identifies, collects, recruits, neutralizes, and eliminates the activities and capabilities of hostile foreign intelligence services by leveraging the capabilities of the United States Intelligence Community partners and friendly foreign nations. NVRA also collects, identifies, evaluates, and disseminates intelligence. NVRA proactively identifies emerging threats, targets, and trends. NVRA personnel also provide analytical support to operations within the FBI and other agencies, as necessary.

Justification

The current lease at 9325 Discovery Boulevard in Manassas, VA, expires on November 30, 2022.

The unique nature of operations requires levels of security not easily acquired on the open market. Based on an analysis of other potential locations within the delineated area, GSA will consider whether the FBI's continued housing needs should be satisfied in the existing location. If other potential locations are identified, GSA will conduct a cost-benefit analysis to determine whether the Government can expect to recover the relocation and duplication costs of real and personal property needed for the continued housing the FBI requires to carry out its mission.

GSA PBS

PROSPECTUS – LEASE
FEDERAL BUREAU OF INVESTIGATION
MANASSAS, VA

Prospectus Number: PVA-02-WA20
Congressional Districts: 8,10,11

Summary of Energy Compliance

GSA will incorporate energy efficiency requirements into the Request for Lease Proposals and other documents related to the procurement of space based on the approved prospectus. GSA encourages offerors to exceed minimum requirements set forth in the procurement and to achieve an Energy Star performance rating of 75 or higher.

Resolutions of Approval

Resolutions adopted by the House Committee on Transportation and Infrastructure, and the Senate Committee on Environment and Public Works approving this prospectus will constitute approval to make appropriations to lease space in a facility that will yield the required rentable area.

Interim Leasing

GSA will execute such interim leasing actions as are necessary to ensure continued housing of the tenant agency prior to the effective date of the new lease. It is in the best interest of the Government to avert the financial risk of holdover tenancy.

GSA PBS

PROSPECTUS – LEASE
FEDERAL BUREAU OF INVESTIGATION
MANASSAS, VA

Prospectus Number: PVA-02-WA2C
Congressional Districts: 8,10,11

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on February 5, 2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

April 2019

Housing Plan
Federal Bureau of Investigation

PVA-02-WA19
Manassas, VA

Leased Locations	CURRENT						ESTIMATED/PROPOSED					
	Personnel		Usable Square Feet (USF)[1]				Personnel		Usable Square Feet (USF)			
	Office	Total	Office	Storage	Special	Total	Office	Total	Office	Storage[5]	Special[6]	Total
9325 Discovery Blvd - NVRA	815	815	108,182	25,306	60,713	194,201						
Estimated/Proposed Lease							815	815	108,182	25,306	60,713	194,201
Total	**815**	**815**	**108,182**	**25,306**	**60,713**	**194,201**	**815**	**815**	**108,182**	**25,306**	**60,713**	**194,201**

Office Utilization Rate (UR)[2]		
	Current	Proposed
Rate	104	104

UR = average amount of office space per person
Current UR excludes 23,800 usf of office support space
Proposed UR excludes 23,800 usf of office support space

Overall UR[3]		
	Current	Proposed
Rate	238	238

R/U Factor [4]			
	Total USF	RSF/USF	Max RSF
Current	194,201	1.15	222,508
Estimated/Proposed	194,201	1.20	234,000

Special Space [6]	USF
Conference	4,752
Training Rooms/Command Ctr	8,968
Fitness & Locker Rooms	3,255
SCIF Utility Rooms	16,863
SCIF Work Area	26,875
Total	**60,713**

NOTES:
[1] USF means the portion of the building available for use by a tenant's personnel and furnishings and space available jointly to the occupants of the building.
[2] Calculation excludes the judiciary, Congress, and agencies with fewer than 10 people.
[3] USF/Person = housing plan total USF divided by total personnel
[4] R/U Factor (R/U) = Max RSF divided by total USF
[5] Storage excludes warehouse, which is part of Special Space.
[6] Special spaces listed are examples of such spaces and may be subject to change at the time a Request for Lease Proposal (RLP) is issued to meet specific agency requirements.

COMMITTEE RESOLUTION

LEASE—FEDERAL BUREAU OF INVESTIGATION, NEWARK, NJ

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for a lease of up to 248,000 rentable square feet of space, including 400 official parking spaces, for the Federal Bureau of Investigation located at 11 Centre Street in Newark, NJ at a proposed total annual cost of $10,292,000 for a lease term of up to 20 years, a prospectus for which is attached to and included in this resolution.

Approval of this prospectus constitutes authority to execute an interim lease for all tenants, if necessary, prior to the execution of the new lease.

Provided that, the Administrator of General Services and tenant agency(ies) agree to apply an overall utilization rate of 345 square feet or less per person, except that, if the Administrator determines that the overall utilization rate cannot be achieved, the Administrator shall provide an explanatory statement to the Committee on Transportation and Infrastructure of the House of Representatives prior to exercising any lease authority provided in this resolution.

Provided that, except for interim leases as described above, the Administrator may not enter into any leases that are below prospectus level for the purposes of meeting any of the requirements, or portions thereof, included in the prospectus that would result in an overall utilization rate of 345 square feet or higher per person.

Provided that, to the maximum extent practicable, the Administrator shall include in the lease contract(s) a purchase option that can be exercised at the conclusion of the firm term of the lease.

Provided further, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, that the Administrator shall require that the delineated area of the procurement is identical to the delineated area included in the prospectus, except that, if the Administrator determines that the delineated area of the procurement should not be identical to the delineated area included in the prospectus, the Administrator shall provide an explanatory statement to the Committee on Transportation and Infrastructure of the House of Representatives prior to exercising any lease authority provided in this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided further, the Administrator of General Services may not enter into this lease if it does not contain a provision barring any individual holding a Federally-elected office, regardless of whether such individual took office before or after execution of this lease, to directly participate in, or benefit from or under this lease or any part thereof and that such provision provide that if this lease is found to have been made in violation of the foregoing prohibition or it is found that this prohibition has been violated during the term of the lease, the lease shall be void, except that the foregoing limitation shall not apply if the lease is entered into with a publicly-held corporation or publicly-held entity for the general benefit of such corporation or entity.

Provided further, prior to entering into this lease or approving a novation agreement involving a change of ownership under this lease, the Administrator of General Services shall require the offeror or the parties requesting the novation, as applicable, to identify and disclose whether the owner of the leased space, including an entity involved in the financing thereof, is a foreign person or a foreign-owned entity; provided further, in such an instance, the Administrator of General Services shall notify the occupant agency(ies) in writing, and consult with such occupant agency(ies) regarding security concerns and necessary mitigation measures (if any) prior to award of the lease or approval of the novation agreement.

Provided that, to the maximum extent practicable, the Administrator of General Services shall require that the lease procurement consider the availability of public transportation consistent with agency mission requirements and that the space to be leased be renovated for all cost effective improvements, including renewable energy upgrades, water efficiency improvements, and indoor air quality optimization, that reduce greenhouse gas emissions.

GSA PBS

PROSPECTUS – LEASE
FEDERAL BUREAU OF INVESTIGATION
NEWARK, NJ

Prospectus Number: PNJ-02-NE20
Congressional District: 8, 10

Executive Summary

The General Services Administration (GSA) proposes a lease for approximately 248,000 rentable square feet (RSF) for the Department of Justice, Federal Bureau of Investigation (FBI), currently located at 11 Centre Street, Newark, NJ, under a lease that expires 11/15/2022. For security reasons, GSA also controls an adjacent lot under a lease that also expires 11/15/2022. GSA is proposing to continue leasing space for FBI at the current location pending the results of a cost-benefit analysis, including relocation and duplication costs of real and personal property needed for FBI to accomplish its mission.

The lease will provide continued housing for FBI and will improve the office and overall space utilization rates from 145 to 133 and from 380 to 345 usable square feet (USF) per person, respectively.

Description

Occupant:	Federal Bureau of Investigation
Current RSF:	247,067 (Current RSF/USF = 1.06)
Estimated/Proposed Maximum RSF:	248,000 (Proposed RSF/USF = 1.06)
Expansion/Reduction RSF:	None
Current USF/Person:	380
Estimated/Proposed USF/Person:	345
Expiration Dates of Current Lease(s):	11/15/2022 (concurrent expirations)
Proposed Maximum Leasing Authority:	20 years
Delineated Area:	North: U.S. Route 280; East: McCarter Hwy. to Centre Place, following Centre Place to City Dock St. Continuing south on City Dock St. to Raymond Blvd. Continuing west on Raymond Blvd. to McCarter Hwy. Continuing south on McCarter Hwy. to East Kinney St.; South: East Kinney St., continuing on West Kinney St.; West: University Ave.

GSA PBS

PROSPECTUS – LEASE
FEDERAL BUREAU OF INVESTIGATION
NEWARK, NJ

Prospectus Number: PNJ-02-NE20
Congressional District: 8, 10

Number of Official Parking Spaces[1]:	400
Scoring:	Operating Lease
Current Total Annual Cost:	$14,032,733 (leases effective 11/16/2022)
Estimated Rental Rate[2]:	$41.50 / RSF
Estimated Total Annual Cost[3]:	$10,292,000

Acquisition Strategy

In order to maximize the flexibility and competition in acquiring space for FBI, GSA may issue a single, multiple-award solicitation that will allow offerors to provide blocks of space able to meet requirements in whole or in part. All offers must provide space consistent with the delineated area defined by this prospectus.

Background

The mission of FBI is to protect and defend the United States against terrorist and foreign intelligence threats; to uphold and enforce the criminal laws of the United States; to provide leadership and criminal justice services to Federal, State, municipal, and international agency partners; and to perform these responsibilities in a manner that is responsive to the needs of the public and is faithful to the Constitution of the United States.

FBI has 56 field offices located in metropolitan areas throughout the United States. The field office locations carry out investigations, assess regional crime threats, and work with partners on cases and operations. The FBI field office in Newark, New Jersey, covers five resident agent offices as well as the counties of Essex, Hudson, and Union in New Jersey. The current location at 11 Centre Street was a build-to-suit lease completed in 2002 for FBI as the sole tenant.

[1] Security requirements may necessitate control of land near the leased location in addition to the official parking spaces identified in the prospectus. This may be accomplished as a lessor-furnished service, under an operating agreement with the lessor or part of the Government's leasehold interest in the building(s).
[2] This estimate is for fiscal year 2023 and may be escalated by 2 percent annually to the effective date of the lease to account for inflation. The proposed rental rate is fully serviced including all operating expenses, whether paid by the lessor or directly by the Government. GSA will conduct the procurement using prevailing market rental rates as a benchmark for the evaluation of competitive offers and as the basis for negotiating with offerors to ensure that lease award is made in the best interest of the Government.
[3] New leases may contain an escalation clause to provide for annual changes in real estate taxes and operating costs.

GSA PBS

PROSPECTUS – LEASE
FEDERAL BUREAU OF INVESTIGATION
NEWARK, NJ

Prospectus Number: PNJ-02-NE20
Congressional District: 8, 10

Justification

FBI is currently housed in a leased building located at 11 Centre Street in Newark, New Jersey, and has been in this location since 2002. The current lease expires 11/15/2022, and FBI anticipates a continued need beyond the proposed term of this lease (20 years).

The unique nature of operations requires levels of security not easily acquired on the open market. GSA will consider whether FBI's continued housing needs should be satisfied in the existing location based on an analysis of other potential locations within the delineated area. If other potential locations are identified, GSA will conduct a cost-benefit analysis to determine whether the Government can expect to recover the relocation and duplication costs of real and personal property needed for FBI to accomplish its mission.

Summary of Energy Compliance

GSA will incorporate energy efficiency requirements into the Request for Lease Proposals and other documents related to the procurement of space based on the approved prospectus. GSA encourages offerors to exceed minimum requirements set forth in the procurement and to achieve an Energy Star performance rating of 75 or higher.

Resolutions of Approval

Resolutions adopted by the House Committee on Transportation and Infrastructure, and the Senate Committee on Environment and Public Works approving this prospectus will constitute approval to make appropriations to lease space in a facility that will yield the required rentable area.

Interim Leasing

GSA will execute such interim leasing actions as are necessary to ensure continued housing of the tenant agency prior to the effective date of the extension. It is in the best interest of the Government to avert the financial risk of holdover tenancy.

GSA PBS

PROSPECTUS – LEASE
FEDERAL BUREAU OF INVESTIGATION
NEWARK, NJ

Prospectus Number: PNJ-02-NE20
Congressional District: 8, 10

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on February 26, 2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

August 2019

Housing Plan
Federal Bureau of Investigation

PNJ-02-NE20
Newark, NJ

Leased Locations	CURRENT						ESTIMATED/PROPOSED					
	Personnel		Usable Square Feet (USF)[1]				Personnel		Usable Square Feet (USF)			
	Office	**Total**	**Office**	**Storage**	**Special**	**Total**	**Office**	**Total**	**Office**	**Storage[5]**	**Special[6]**	**Total**
11 Centre St, Newark, NJ	590	590	109,822	46,733	77,109	233,664						
Estimated/Proposed Lease							649	649	110,554	46,733	76,377	233,664
Total	**590**	**590**	**109,822**	**46,733**	**77,109**	**233,664**	**649**	**649**	**110,554**	**46,733**	**76,377**	**233,664**

Office Utilization Rate (UR)[2]		
	Current	Proposed
Rate	145	133

UR = average amount of office space per person
Current UR excludes 24,161 usf of office support space
Proposed UR excludes 24,322 usf of office support space

Overall UR[3]		
	Current	Proposed
Rate	380	345

R/U Factor [4]			
	Total USF	RSF/USF	Max RSF
Current	233,664	1.06	247,067
Estimated/Proposed	233,664	1.06	248,000

Special Space [6]	USF
ADP	11,192
Automotive Bay	9,445
Conference/Training	19,766
Secure Corridor	166
Evidence Processing	5,991
File/Copy	3,973
Fitness Center/Locker Room	5,076
Food Service/Breakroom	3,328
Health Unit	516
Interview Rooms	1,464
Loading/Receiving Dock	998
Mail Screening	915
Private Toilet	1,065
Evidence Storage	832
Technical/Operations Room	10,734
Visitor Screening Facility	250
Weapons Vault	666
Total	**76,377**

NOTES:
[1] USF means the portion of the building available for use by a tenant's personnel and furnishings and space available jointly to the occupants of the building.
[2] Calculation excludes judiciary, Congress, and agencies with fewer than 10 people.
[3] USF/Person = housing plan total USF divided by total personnel
[4] R/U Factor (R/U) = Max RSF divided by total USF
[5] Storage excludes warehouse, which is part of Special Space.
[6] Special spaces listed are examples of such spaces and may be subject to change at the time a Request for Lease Proposals (RLP) is issued to meet specific agency requirements.

COMMITTEE RESOLUTION

LEASE—DEPARTMENT OF JUSTICE, WASHINGTON, DC

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for a lease of up to 162,000 rentable square feet of space, including 7 official parking spaces, for the Department of Justice (DOJ) Office of Justice Programs (OJP) currently located at 810 Seventh Street NW, Washington, DC at a proposed total annual cost of $8,100,000 for a lease term of up to 20 years, a prospectus for which is attached to and included in this resolution.

Approval of this prospectus constitutes authority to execute an interim lease for all tenants, if necessary, prior to the execution of the new lease.

Provided that, the Administrator of General Services and tenant agency(ies) agree to apply an overall utilization rate of 124 square feet or less per person, except that, if the Administrator determines that the overall utilization rate cannot be achieved, the Administrator shall provide an explanatory statement to the Committee on Transportation and Infrastructure of the House of Representatives prior to exercising any lease authority provided in this resolution.

Provided that, except for interim leases as described above, the Administrator may not enter into any leases that are below prospectus level for the purposes of meeting any of the requirements, or portions thereof, included in the prospectus that would result in an overall utilization rate of 124 square feet or higher per person.

Provided that, to the maximum extent practicable, the Administrator shall include in the lease contract(s) a purchase option that can be exercised at the conclusion of the firm term of the lease.

Provided further, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, that the Administrator shall require that the delineated area of the procurement is identical to the delineated area included in the prospectus, except that, if the Administrator determines that the delineated area of the procurement should not be identical to the delineated area included in the prospectus, the Administrator shall provide an explanatory statement to the Committee on Transportation and Infrastructure of the House of Representatives prior to exercising any lease authority provided in this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided further, the Administrator of General Services may not enter into this lease if it does not contain a provision barring any individual holding a Federally-elected office, regardless of whether such individual took office before or after execution of this lease, to directly participate in, or benefit from or under this lease or any part thereof and that such provision provide that if this lease is found to have been made in violation of the foregoing prohibition or it is found that this prohibition has been violated during the term of the lease, the lease shall be void, except that the foregoing limitation shall not apply if the lease is entered into with a publicly-held corporation or publicly-held entity for the general benefit of such corporation or entity.

Provided further, prior to entering into this lease or approving a novation agreement involving a change of ownership under this lease, the Administrator of General Services shall require the offeror or the parties requesting the novation, as applicable, to identify and disclose whether the owner of the leased space, including an entity involved in the financing thereof, is a foreign person or a foreign-owned entity; provided further, in such an instance, the Administrator of General Services shall notify the occupant agency(ies) in writing, and consult with such occupant agency(ies) regarding security concerns and necessary mitigation measures (if any) prior to award of the lease or approval of the novation agreement.

Provided that, to the maximum extent practicable, the Administrator of General Services shall require that the lease procurement consider the availability of public transportation consistent with agency mission requirements and that the space to be leased be renovated for all cost effective improvements, including renewable energy upgrades, water efficiency improvements, and indoor air quality optimization, that reduce greenhouse gas emissions.

GSA **PBS**

PROSPECTUS – LEASE
DEPARTMENT OF JUSTICE
WASHINGTON, DC

Prospectus Number: PDC-07-WA20

Executive Summary

The General Services Administration (GSA) proposes a lease of approximately 162,000 rentable square feet (RSF) for the Department of Justice (DOJ), Office of Justice Programs (OJP), currently located at 810 Seventh Street NW, Washington, DC. OJP has occupied space in the building since November 1, 2011, under a lease that expires on October 31, 2021.

The lease will provide continued housing for OJP and will improve the office and overall space utilization rates from 122 to 67 and 193 to 124 usable square feet (USF) per person, respectively. The office configuration will be limited to a total number of not more than 881 seats to reflect the telework posture of OJP.

Description

Occupant:	Office of Justice Programs
Current RSF:	251,795 (Current RSF/USF = 1.20)
Estimated/Proposed Maximum RSF:	162,000 (Proposed RSF/USF = 1.20)
Expansion/Reduction RSF:	89,795 RSF Reduction
Current USF/Person:	193
Estimated/Proposed USF/Person:	124
Expiration Dates of Current Lease(s):	10/31/2021
Proposed Maximum Leasing Authority:	20 years
Delineated Area:	Washington, DC, Central Employment Area
Number of Official Parking Spaces[1]:	7
Scoring:	Operating
Current Total Annual Cost:	$15,621,730 (lease effective 11/1/2011)
Estimated Rental Rate[2]:	$50.00 / RSF
Estimated Total Annual Cost[3]:	$8,100,000

[1] Security requirements may necessitate control of the parking at the leased location in addition to the official parking spaces identified in the prospectus. This may be accomplished as a lessor-furnished service, under an operating agreement with the lessor or part of the Government's leasehold interest in the building(s). If the additional parking resulting from security requirements is included in the Government's leasehold interest, the proposed total annual cost and maximum proposed rental rate may exceed the amounts indicated above.

[2] This estimate is for fiscal year FY 2022 and may be escalated by 2 percent annually to the effective date of the lease to account for inflation. The proposed rental rate is fully serviced including all operating expenses, whether paid by the lessor or directly by the Government. GSA will conduct the procurement using prevailing market rental rates as a benchmark for the evaluation of competitive offers and as the basis for negotiating with offerors to ensure that lease award is made in the best interest of the Government.

[3] New leases may contain an escalation clause to provide for annual changes in real estate taxes and operating costs.

GSA PBS

PROSPECTUS – LEASE
DEPARTMENT OF JUSTICE
WASHINGTON, DC

Prospectus Number: PDC-07-WA20

Background

The mission of DOJ is to enforce the law and defend the interests of the United States according to the law; to ensure public safety against threats foreign and domestic; to provide Federal leadership in preventing and controlling crime; to seek just punishment for those guilty of unlawful behavior; and to ensure fair and impartial administration of justice for all Americans.

OJP is a division reporting to the Associate Attorney General, and its mission is to provide leadership, resources, and solutions for creating safe, just, and engaged communities. In addition to sharing knowledge and best practices through training, OJP provides grants to Federal, State, local, and Tribal justice systems to implement various strategies to fight crime.

Justification

The current location houses OJP and serves as the headquarters for the division. It is the training hub for various programs to educate law enforcement officers, and those who support them, on how to work effectively within their communities.

The current lease at 810 Seventh Street NW, Washington, DC, expires on October 31, 2021. The personnel count on the housing plan represents the current number of employees. Due to high telework participation, not more than 881 seats will be provided in the new requirement, making the footprint more efficient. OJP requires continued housing to carry out its mission.

Summary of Energy Compliance

GSA will incorporate energy efficiency requirements into the Request for Lease Proposals and other documents related to the procurement of space based on the approved prospectus. GSA encourages offerors to exceed minimum requirements set forth in the procurement and to achieve an Energy Star performance rating of 75 or higher.

Resolutions of Approval

Resolutions adopted by the House Committee on Transportation and Infrastructure, and the Senate Committee on Environment and Public Works approving this prospectus will constitute approval to make appropriations to lease space in a facility that will yield the required rentable area.

GSA **PBS**

PROSPECTUS – LEASE
DEPARTMENT OF JUSTICE
WASHINGTON, DC

Prospectus Number: PDC-07-WA20

Interim Leasing

GSA will execute such interim leasing actions as are necessary to ensure continued housing of the tenant agency prior to the effective date of the new lease. It is in the best interest of the Government to avert the financial risk of holdover tenancy.

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on 8/25/2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

September 2019

Housing Plan
Department of Justice
Office of Justice Programs

PDC-07-WA20
Washington, DC

Leased Locations	CURRENT						ESTIMATED/PROPOSED					
	Personnel[1]		Usable Square Feet (USF)[2]				Personnel		Usable Square Feet (USF)			
	Office	**Total**	**Office**	**Storage**	**Special**	**Total**	**Office**	**Total**	**Office**	**Storage**	**Special**	**Total**
810 7th St NW	1,087	1,087	169,457	5,513	34,895	209,865						
Estimated/Proposed Lease							1,087	1,087	93,385	5,513	35,594	134,492
Total	**1,087**	**1,087**	**169,457**	**5,513**	**34,895**	**209,865**	**1,087**	**1,087**	**93,385**	**5,513**	**35,594**	**134,492**

Office Utilization Rate (UR)[3]		
	Current	Proposed
Rate	122	67

UR = average amount of office space per person
Current UR excludes 37,281 usf of office support space
Proposed UR excludes 20,545 usf of office support space

Overall UR[4]		
	Current	Proposed
Rate	193	124

R/U Factor [5]			
	Total USF	RSF/USF	Max RSF
Current	209,865	1.20	251,795
Estimated/Proposed	134,492	1.20	162,000

Special Space[6]	USF
Conference/Training	18,364
Food Service	2,421
Automated Data Processing	7,177
Health Unit	1,547
ATM	68
Mail Room	437
Lockers	577
Guard Booth	1,090
Copy Centers	3,913
Total	**35,594**

NOTES:

[1] The personnel count listed on the current and proposed side of the housing plan represents the current and proposed number of Government and contract employees. However, the telework policy will result in a total seat count of not more than 881 seats under the proposed side of the housing plan discussed in the prospectus document.

[2] USF means the portion of the building available for use by a tenant's personnel and furnishings and space available jointly to the occupants of the building.

[3] Calculation excludes judiciary and Congress.

[4] USF/Person = housing plan total USF divided by total personnel

[5] R/U Factor (R/U) = Max RSF divided by total USF

[6] Special Space is to be procured as a maximum as shown, the display is not notional. No additional categories are to be procured.

COMMITTEE RESOLUTION

ALTERATION—ALMERIC CHRISTIAN FEDERAL BUILDING, ST. CROIX, VI

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repairs and alterations including replacement of the aging and deteriorating domestic, storm and sanitary systems, and installation of a new potable water treatment facility and solar water heater system at the Almeric Christian Federal Building located at 3013 Estate Golden Rock in St. Croix, VI at an estimated construction cost of $4,103,000 and an estimated management and inspection cost of $497,000 for a total estimated project cost of $4,600,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

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GSA **PBS**

PROSPECTUS – ALTERATION
ALMERIC CHRISTIAN FEDERAL BUILDING
ST. CROIX, VI

Prospectus Number: PVI-0008-SC20
Congressional District: At Large

FY 2020 Project Summary

The General Services Administration (GSA) proposes a repair and alteration project for the Almeric L. Christian Federal Building, located at 3013 Estate Golden Rock in St. Croix, U.S. Virgin Islands. The project proposes replacement of the aging and deteriorating domestic, storm and sanitary systems, installation of a new potable water treatment facility and solar water heater system, and repairs incidental to the replacements.

FY 2020 Committee Approval Requested

(Construction, Management & Inspection)..... $4,600,000[1]

FY 2020 Committee Appropriation Requested

(Construction, Management & Inspection)..... $0[2]

Major Work Items

Plumbing and electrical systems upgrades; site, exterior and roof-related repairs; interior construction; selective building demolition

Project Budget

Estimated Construction Cost (ECC)	$4,103,000
Management and Inspection (M&I)	497,000
Estimated Total Project Cost (ETPC)	**$4,600,000**

*Tenant agencies may fund an additional amount for alterations above the standard normally provided by GSA.

Schedule	**Start**	**End**
Construction	FY 2020	FY 2022

[1] Design was funded using Minor Repairs and Alterations funding.
[2] GSA is not requesting additional appropriated funds in support of this project at this time. Upon approval of this prospectus and a concurrent reprogramming request, GSA will make use of project savings in the Federal Buildings Fund to undertake these proposed repairs and alterations.

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GSA PBS

PROSPECTUS – ALTERATION
ALMERIC CHRISTIAN FEDERAL BUILDING
ST. CROIX, VI

Prospectus Number: PVI-0008-SC20
Congressional District: At Large

Building

The Almeric L. Christian Federal Building, located half a mile from the Caribbean Sea, is the only Federal building on St. Croix, U.S. Virgin Islands. The 76,000 gross square foot, masonry and steel building was constructed in 1992 and houses the St. Croix Division of the District Court of the U.S. Virgin Islands, along with several Federal agencies. It was named after Almeric L. Christian, who was appointed by President Dwight Eisenhower in 1954 to serve on the seven-member commission that would determine which Federal laws should be applicable to the U.S. Virgin Islands.

Tenant Agencies

Judiciary–U.S. District and Magistrate Courts, Public Defender, Probation; Department of Homeland Security–U.S. Citizenship and Immigrations Services; Department of Justice–U.S. Marshals Service, U.S. Attorneys; Department of Commerce–National Oceanic and Atmospheric Administration; Small Business Administration

Proposed Project

The project proposes to replace the entire domestic and storm water systems and portions of the building's sanitary sewer system. The cast iron piping in the storm water system and portions of the sewer system will be replaced. In addition, a new solar water heater system and a new potable water treatment plant will be installed, and the existing copper piping in the potable water system will be replaced. Incidental repairs to the system replacements will also be undertaken.

Demolition and replacement of the existing water and sewer system piping lines will impact the ground, pavers and concrete around the exterior of the building, the ceilings and the interior of all restrooms and kitchenette areas. Repairs will be made to all disturbed areas, all restrooms noncompliant with the Architectural Barriers Act Accessibility Standards will be replaced to meet current requirements, and all public restroom and kitchenette fixtures will be replaced with water-conserving-type fixtures, faucet and valves.

The existing storm water collection system on the roofs will be replaced, and hot water solar collectors will be installed. Electrical work for the pumps and filtration systems will be undertaken. Incidental repairs due to the major work items will be undertaken.

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GSA **PBS**

PROSPECTUS – ALTERATION
ALMERIC CHRISTIAN FEDERAL BUILDING
ST. CROIX, VI

Prospectus Number: PVI-0008-SC20
Congressional District: At Large

Major Work Items

Plumbing Replacement/Upgrades	$2,126,000
Interior Construction	1,517,000
Selective Building Demolition	348,000
Electrical Upgrades	66,000
Site/Exterior/Roof Repairs	46,000
TOTAL ECC	**$4,103,000**

Justification

The existing domestic water, storm sewer and portions of the sewer piping systems in the Almeric L. Christian Federal Building and Courthouse are experiencing failures and frequent leaks due to extensive corrosion and cracking from the water quality. Due to the presence of chlorides and low alkalinity, the indoor water is highly corrosive for the piping systems, causing thickening loss of up to 85 percent, extensive pitting and cracking, and numerous leaks. The failures are widespread within the building and have been severe enough to interfere with occupant agency operations, cause damage to furniture and equipment, and leave the space vulnerable to mold growth. The conditions may lead to catastrophic failure at any time, which would result in mandatory building closure. In addition, the potable water supplied to the facility has a yellow or brownish color. Due to the chemicals in the water and its color, the water has been deemed not potable. GSA provides water bottles and has placed five-gallon cooler dispensers throughout the building for building occupants and visitors to the building.

Hurricanes Irma and Maria devastated the U.S. Virgin Islands in September 2017 and caused significant damage to the Almeric L. Christian Federal Building and Courthouse. While the disaster repairs are ongoing, the issues with the existing domestic water, storm sewer and sewer piping systems and the impotability of the water were not caused by the hurricanes and are not a part of the scope of the repairs funded under the supplemental appropriation. This project will be coordinated with the disaster repairs.

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages design opportunities to increase energy and water efficiency above the minimum performance criteria.

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GSA **PBS**

PROSPECTUS – ALTERATION
ALMERIC CHRISTIAN FEDERAL BUILDING
ST. CROIX, VI

Prospectus Number: PVI-0008-SC20
Congressional District: At Large

Prior Appropriations

None

Prior Committee Approvals

None

Prior Prospectus-Level Projects in Building (past 10 years)

None

Alternatives Considered (30-year, present value cost analysis)

There are no feasible alternatives to this project. This project is a limited scope renovation, and the cost of the proposed project is far less than the cost of leasing or constructing a new building.

Recommendation

ALTERATION

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GSA **PBS**

PROSPECTUS – ALTERATION
ALMERIC CHRISTIAN FEDERAL BUILDING
ST. CROIX, VI

Prospectus Number: PVI-0008-SC20
Congressional District: At Large

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on 9/2/2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

ALTERATION—CONSOLIDATION ACTIVITIES PROGRAM, VARIOUS BUILDINGS

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for the reconfiguration and renovation of space within government-owned and leased buildings during Fiscal Year 2021 to improve space utilization, optimize inventory, and decrease reliance on leased space at a total cost of $50,000,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS - ALTERATION
CONSOLIDATION ACTIVITIES PROGRAM
VARIOUS BUILDINGS

Prospectus Number: PCA-0001-MU21

FY 2021 Project Summary

The General Services Administration (GSA) proposes the reconfiguration and renovation of space within Government-owned and leased buildings during fiscal year (FY) 2021 to support GSA's ongoing consolidation efforts to improve space utilization, optimize inventory, decrease reliance on leased space, and reduce the Government's environmental footprint.

Since inception of the Consolidation Activities Program in FY 2014, GSA has received $296 million in support of the program. Through FY 2019, the Consolidation Activities Program has funded 81 projects. When complete, the 81 projects will result in a more than 1.64 million usable square foot (USF) reduction, reduce agency rental payments to GSA by $68 million annually, and generate $145 million in annual Government lease cost avoidance.

FY 2021 Committee Approval and Appropriation Requested $50,000,000

Program Summary

As part of its ongoing effort to improve space utilization, optimize inventory, decrease reliance on leased space, and reduce the Government's environmental footprint, GSA is identifying consolidation opportunities within its inventory of real property assets. These opportunities are presented through surveys and studies, partnering with customer agencies, and agency initiatives. Projects will vary in size by location and agency mission and operations; however, no single project will exceed $20 million in GSA costs. Funds will support consolidation of customer agencies and will not be available for GSA internal consolidations. Preference will be given to projects that result in an office utilization rate of 130 USF per person or less and a total project payback period of 10 years or less.

Typical projects include the following:

- Reconfiguration and alteration of existing Federal space to accommodate incoming agency relocation/consolidation. (Note: may include reconfigurations of existing occupied Federal tenant space); and

- Incidental alterations and system upgrades, such as fire sprinklers or heating, ventilation, and air conditioning needed as part of relocation and consolidation.

Projects will be evaluated using the following criteria:

- Preference will be given to projects that are identified as a reduction opportunity by both GSA and the subject agency, and that meet the other criteria.

- Proposed consolidation projects will result in a reduction in annual rent paid by the impacted customer agency.

GSA PBS

PROSPECTUS - ALTERATION
CONSOLIDATION ACTIVITIES PROGRAM
VARIOUS BUILDINGS

Prospectus Number: PCA-0001-MU21

- Preference is given to consolidations within or into owned buildings over consolidations within or into leased space.
- Consolidation of expiring leases into owned buildings will be given preference over those business cases for lease cancellations that include a cancellation cost.
- Co-location with other agencies with shared resources and special space will be given preference.
- Links to other consolidation projects will be given preference.

Justification

GSA continually analyzes opportunities to improve space utilization and realize long-term cost savings for the Government. Funding for space consolidations is essential so that GSA can execute those opportunities.

Projects funded under this authorization will enable agencies to consolidate within Government-controlled leased space or relocate from either Government-controlled leased or federally owned space to federally owned space that more efficiently meets mission needs. These consolidations will result in improved space utilization, cost savings for the American taxpayers, and a reduced environmental impact.

GSA PBS

PROSPECTUS - ALTERATION
CONSOLIDATION ACTIVITIES PROGRAM
VARIOUS BUILDINGS

Prospectus Number: PCA-0001-MU21

Certification of Need

Current administration and congressional initiatives call for improved space utilization, lower costs for the Government, and a reduced environmental footprint. GSA has determined that the proposed consolidation program is the most practical solution to meeting those goals.

Submitted at Washington, DC, on February 5, 2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

ALTERATION—FIRE PROTECTION AND LIFE SAFETY PROGRAM, VARIOUS BUILDINGS

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repairs and alterations to upgrade, replace, and improve fire protection systems and life safety features in government-owned buildings during Fiscal Year 2021 at a total cost of $50,000,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS - ALTERATION
FIRE PROTECTION AND LIFE SAFETY PROGRAM
VARIOUS BUILDINGS

Prospectus Number: PFP-0001-MU21

FY 2021 Project Summary

This prospectus proposes alterations to upgrade, replace, and improve fire protection systems and life safety features in Government-owned buildings during fiscal year (FY) 2021.

Since FY 2010, the General Services Administration (GSA) has received $151,000,000 in support of this program. These funds supported 112 projects in 96 Government-owned buildings.

FY 2021 Committee Approval and Appropriation Requested.....$50,000,000

Program Summary

As part of its fire protection and life safety efforts, GSA is currently identifying projects in Federal buildings throughout the country through surveys and studies. These projects will vary in size, location, and delivery method. The approval and appropriation requested in this prospectus is for a set of retrofit projects with engineering solutions to reduce fire and life safety hazards. Typical projects include:

- Replacing antiquated fire alarm and detection systems that are in need of repair or for which parts are no longer available.
- Installing emergency voice communication systems to facilitate occupant notification and evacuation in Federal buildings during an emergency.
- Installing or expanding, as necessary, fire sprinkler systems to provide a reasonable degree of protection for life and property from fire in Federal buildings.
- Constructing additional exit stairs or enclosing existing exit stairs to facilitate the safe and timely evacuation of building occupants in the event of an emergency.

Justification

GSA periodically assesses all facilities to identify hazards and initiate correction or risk-reduction protection strategies so that its buildings do not present an unreasonable risk to Government personnel or the general public. Completion of these proposed projects will improve the overall level of safety from fire and similar risks in federally owned buildings in GSA's portfolio nationwide.

GSA PBS

PROSPECTUS - ALTERATION
FIRE PROTECTION AND LIFE SAFETY PROGRAM
VARIOUS BUILDINGS

Prospectus Number: PFP-0001-MU21

Certification of Need

The proposed program is the best solution to meet a validated Government need.

Submitted at Washington, DC, on February 4, 2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

ALTERATION—JUDICIARY CAPITAL SECURITY PROGRAM, VARIOUS BUILDINGS

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for alterations to upgrade, replace, and improve physical security in government-owned buildings occupied by the Judiciary and the U.S. Marshals Service at a total cost of $12,500,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS - ALTERATION
JUDICIARY CAPITAL SECURITY PROGRAM
VARIOUS BUILDINGS

Prospectus Number: PJCS-0001-MU21

FY 2021 Project Summary

This prospectus proposes alterations to improve physical security in Government-owned buildings occupied by the Federal judiciary and the Department of Justice, U.S. Marshals Service (USMS) during fiscal year (FY) 2021.

Since FY 2012, GSA has received $128,922,000 in support of this program. These funds were allocated to 12 projects.

FY 2021 Committee Approval and Appropriation Requested..... $12,500,000

Program Summary

The Judiciary Capital Security Program is dedicated to improving physical security in buildings occupied by the Federal judiciary and USMS. These projects are in lieu of constructing new facilities, thereby providing cost savings and expedited delivery. These projects will vary in size, location, and delivery method, and are designed to improve the separation of circulation for the public, judges, and prisoners. Funding provided for the security improvement projects will address elements such as adding doors, reconfiguring or adding corridors, reconfiguring or adding elevators and sallyports, and constructing physical or visual barriers.

Justification

This program provides funding to address security deficiencies in existing Federal facilities in a timely and less costly manner than constructing a new courthouse. The projects in this program are based on studies undertaken by the judiciary. This prospectus requests separate funding to address security conditions at existing Federal courthouses. GSA uses the judiciary's asset management planning process to assist in the identification of potential projects that involve courthouses with poor security ratings nationwide.

GSA PBS

PROSPECTUS - ALTERATION
JUDICIARY CAPITAL SECURITY PROGRAM
VARIOUS BUILDINGS

Prospectus Number: PJCS-0001-MU21

Certification of Need

The proposed program is the best solution to meet a validated Government need.

Submitted at Washington, DC, on February 4, 2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

ALTERATION—RALPH H. METCALFE FEDERAL BUILDING, CHICAGO, IL

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repairs and alterations to optimize the utilization of space and correct major building deficiencies at the Ralph H. Metcalfe Federal Building located at 77 W. Jackson Boulevard, Chicago, IL at a design cost of $9,903,000, an estimated construction cost of $106,950,000, and a management and inspection cost of $7,594,000 for an estimated total project cost of $124,447,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS – ALTERATION
RALPH H. METCALFE FEDERAL BUILDING
CHICAGO, IL

Prospectus Number: PIL-0303-FY21
Congressional District: 7

FY 2021 Project Summary

The General Services Administration (GSA) proposes a repair and alteration project to optimize the utilization of space and correct major building deficiencies in the Ralph H. Metcalfe Federal Building (Metcalfe FB) located at 77 W. Jackson Boulevard, Chicago, IL. The project will downsize the Department of Housing and Urban Development (HUD) and will relocate United States Secret Service (USSS) to this building from leased space, resulting in approximately $3,700,000 in annual lease cost avoidance, and a combined annual agency rent savings of $1,750,000.

The project will also upgrade the building's heating, ventilation, and air conditioning (HVAC), electrical, conveyance, plumbing and fire protections systems; and improve building common services including conference center and childcare spaces.

FY2021 Committee Approval and Appropriation Requested

(Design, Construction, Management & Inspection) $124,447,000

Major Work Items

HVAC, electrical, conveyance, plumbing and fire protection systems upgrades; interior construction; demolition

Project Budget

Design	$9,903,000
Estimated Construction Cost (ECC)	106,950,000
Management and Inspection (M&I)	7,594,000
Estimated Total Project Cost (ETPC)*	**$124,447,000**

*Tenant agencies may fund an additional amount for tenant improvements above the standard normally provided by the GSA.

Schedule	Start	End
Design and Construction	FY 2021	FY 2027

Building

The Metcalfe FB is a 28-story high-rise office building, with one below-grade level, that contains approximately 828,000 gross square feet and is situated in the Chicago Central Business District across the street from the Chicago Federal Center. The building was built as a leased facility in 1991 and was immediately purchased by the Government with

PROSPECTUS – ALTERATION
RALPH H. METCALFE FEDERAL BUILDING
CHICAGO, IL

Prospectus Number: PIL-0303-FY21
Congressional District: 7

a loan from the Federal Financing Bank, which was paid in full in 2014. The building is constructed of structural steel framing with a facade of glass and structural steel plate spandrels.

Tenant Agencies

Environmental Protection Agency, HUD, Department of Agriculture–Food and Consumer Service, Department of State, Department of Health and Human Services–Centers for Disease Control, Department of Homeland Security–USSS, U.S. Commodity Futures Trading Commission, and GSA.

Proposed Project

The project will allow HUD to reduce the amount of space it occupies in the building and improve its utilization rate. As part of this project, HUD will release approximately 55,000 usable square feet, and USSS, currently in leased space, will backfill approximately 67,000 usable square feet. The project will result in annual lease cost avoidance of approximately $3,700,000.

The project will also modernize the building's 17 passenger elevators and 1 freight elevator, replace the building's chiller plant, and upgrade other HVAC components including the Building Automation System, controls, and air handling units.

Building common services, including restrooms, the conference center, former cafeteria space, and daycare center, will also be improved. The childcare center will be reconfigured to improve its efficiency. A two-stop elevator and stairwell will be added to facilitate the safe movement of children between floors that will comply with accessibility requirements, and security countermeasures will be upgraded. The existing conference center will be expanded to meet the conference space needs of federal agencies housed in a number of federal assets. An egress stair will be added to meet National Fire Protection Association requirements.

Major Work Items

HVAC Upgrades	$34,478,000
Interior Construction	29,223,000
Electrical Upgrades	15,497,000
Conveyance Upgrades	13,993,000
Demolition	6,279,000
Plumbing Upgrades	4,995,000
Fire Protection Upgrades	2,485,000
Total ECC	**$106,950,000**

GSA PBS

PROSPECTUS – ALTERATION
RALPH H. METCALFE FEDERAL BUILDING
CHICAGO, IL

Prospectus Number: PIL-0303-FY21
Congressional District: 7

Justification

The space occupied by HUD at the Metcalfe Federal Building is original to the building and therefore outdated and underutilized. The proposed space reduction and reconfiguration will provide efficient, modern space to better support the agency in carrying out its mission and result in significant rental savings to the agency. The space HUD releases, together with existing vacant space, will provide the space needed to relocate USSS to the building from leased space, resulting in an annual lease cost avoidance of approximately $3,700,000.

The elevators are well beyond their useful lives and do not comply with code. Elevator entrapments and prolonged shutdowns due to emergency repairs have led to disruption of mission-critical tenant operations and frequent complaints from building tenants. Replacement parts, particularly the controllers and motor generators are antiquated technology and are not readily available. The building has only one freight elevator and disruption is problematic The elevators do not meet the latest fire and life safety standards and do not have any energy-efficient features.

The chiller plant is at the end of its useful life and inefficient. The chiller plant must be replaced in order to avoid a failure that would cause severe disruption to building operations and the tenants' ability to carry out their missions. In addition, the building's HVAC equipment, including the Building Automation System, controls, and air handling units, are obsolete, inefficient, and beyond their useful lives.

The existing restroom fixtures and plumbing are original and do not comply with national water efficiency standards or Architectural Barriers Act Accessibility Standards.
The building's conference center serves the entire Chicago Federal Center and is undersized to meet the needs of both building tenants and the Federal community.

The second floor former cafeteria space is underutilized. Repurposing the cafeteria to expand the childcare center, provide flexible/hoteling space for the use of Federal workers, and provide a small kitchen area for rotating food vendors will optimize the use of this space.

Summary of Energy Compliance

GSA PBS

PROSPECTUS – ALTERATION
RALPH H. METCALFE FEDERAL BUILDING
CHICAGO, IL

Prospectus Number: PIL-0303-FY21
Congressional District: 7

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

Prior Appropriations

None

Prior Committee Approvals

None

Prior Prospectus-Level Projects in Building (past 10 years)

None

Alternatives Considered (30-year, present value cost analysis)

Alteration: $191,662,000
Lease $792,765,000
New Construction: $572,495,000

The 30-year, present value cost of alteration is $380,833,000 less than the cost of new construction with an equivalent annual cost advantage of $20,967,000.

Recommendation

ALTERATION

Certification of Need

GSA PBS

PROSPECTUS – ALTERATION
RALPH H. METCALFE FEDERAL BUILDING
CHICAGO, IL

Prospectus Number: PIL-0303-FY21
Congressional District: 7

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on February 4, 2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

ALTERATION—MAJOR GENERAL EMMETT J. BEAN FEDERAL CENTER, INDIANAPOLIS, IN

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repairs and alterations related to repairs and upgrades to the exterior, including to window systems, and replacing the cooling tower for the Major General Emmett J. Bean Federal Center located at 8899 E. 56th Street, Indianapolis, IN at an additional design cost of $1,066,000, an estimated construction cost of $37,937,000, and a management and inspection cost of $3,129,000 for an estimated total project cost of $45,332,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS – ALTERATION
MAJOR GENERAL EMMETT J. BEAN FEDERAL CENTER
INDIANAPOLIS, IN

Prospectus Number: PIN-1703-IN21
Congressional District: 07

FY 2021 Project Summary

The U.S. General Services Administration (GSA) proposes a repair and alteration project for the Major General Emmett J. Bean Federal Center located at 8899 E. 56th Street, Indianapolis, IN. The proposed project will complete critical repairs and upgrades to the building's exterior, including to window systems, and replace the building's cooling tower. Additional design is required for repairs to the building's windows as well as to correct the resulting ongoing water infiltration and repair the interior.

FY 2021 Committee Approval and Appropriation Requested

(Design, Construction, and Management & Inspection).....$42,132,000

Major Work Items

Roof repairs/replacement, demolition, and abatement; interior construction; exterior construction; heating, ventilation, and air conditioning (HVAC) upgrades

Project Budget

Design (FY 2020)	$3,200,000
Additional Design	1,066,000
Estimated Construction Cost (ECC)	37,937,000
Management &Inspection (M&I)	3,129,000
Estimated Total Project Cost (ETPC)	**$45,332,000**

*Tenant agencies may fund an additional amount for alterations above the standard normally provided by GSA.

Schedule	Start	End
Design and Construction	FY 2020	FY 2024

Building

The Bean Center is a three-story, concrete-framed structure with brick and stone exterior walls located at 8899 East 56th Street in Indianapolis, IN. The building measures approximately 1,660,000 gross square feet and is situated on a 72-acre site. It was constructed in 1953 as a U.S. Department of Defense (DoD) records storage facility. Ownership of the building was transferred to GSA in 1996, at which time the facility was renovated for its current office use.

Tenant Agencies

U.S. Department of Homeland Security, DoD, and GSA

GSA PBS

PROSPECTUS – ALTERATION
MAJOR GENERAL EMMETT J. BEAN FEDERAL CENTER
INDIANAPOLIS, IN

Prospectus Number: PIN-1703-IN21
Congressional District: 07

Proposed Project

The project proposes to rebuild the existing roof parapet of the building, repair and recoat the building's exterior, replace the north portion of roof, repair the building's windows and interior walls, and replace the cooling tower.

Major Work Items

Roof Repairs/Replacement	$12,461,000
Demolition and Abatement	9,868,000
Interior Construction	6,476,000
Exterior Construction	6,614,000
HVAC Upgrades	2,518,000
Total ECC	**$37,937,000**

Justification

The building is experiencing a serious structural failure that poses life safety hazard to its occupants and visitors. The roof parapet is separating from the roof and moving outwardly over the building's perimeter facades. There is a significant risk of large portions of the roof parapet falling off the building, and the risk grows greater as the parapet continues to move further. The movement is also causing delamination of the building's exterior coating, which continues to fall off the building. Access to portions of the exterior has been restricted, and temporary protective netting and scaffolding have been installed to protect tenants from any falling debris.

The north roof of the building, which has reached the end of its useful life, is experiencing leaks. Failed window sealant is allowing water intrusion into the building, causing water damage to the interior side of the gypsum board below the windows and corrosion of metal studs. The water infiltration below the windows has the potential for mold growth. The building cooling tower is corroding and has reached the end of its useful life.

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost-effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

GSA PBS

PROSPECTUS – ALTERATION
MAJOR GENERAL EMMETT J. BEAN FEDERAL CENTER
INDIANAPOLIS, IN

Prospectus Number: PIN-1703-IN21
Congressional District: 07

Prior Appropriations

Prior Appropriations			
Public Law	**Fiscal Year**	**Amount**	**Purpose**
116-93	2020	$3,200,000	Design = $3,200,000

Prior Committee Approvals

Prior Committee Approvals			
Committee	**Date**	**Amount**	**Purpose**
House T&I	TBD	$3,200,000	Design = $3,200,000
Senate EPW	TBD	$3,200,000	Design = $3,200,000

Prior Prospectus-Level Projects in Building (past 10 years)

Prospectus	Description	FY	Amount
PIN-17032-IN14	Storm Water Drainage System, Parking Lot Renovation	2014	$19,074,000
PIN-1703-IN18	Lease Consolidation	2018	$45,950,000

Alternatives Considered (30-year, present value cost analysis)

There are no feasible alternatives to this project. This project is a limited scope renovation and the cost of the proposed project is far less than the cost of leasing or constructing a new building.

Recommendation

ALTERATION

GSA PBS

PROSPECTUS – ALTERATION
MAJOR GENERAL EMMETT J. BEAN FEDERAL CENTER
INDIANAPOLIS, IN

Prospectus Number: PIN-1703-IN21
Congressional District: 07

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on February 4, 2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

ALTERATION—CHARLES E. WHITTAKER COURTHOUSE, KANSAS CITY, MO

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repairs and alterations to replace the deteriorating curtain wall system and complete roof upgrades at the Charles E. Whittaker Courthouse located at 400 E. 9th Street, Kansas City, MO at a design cost of $4,637,000, an estimated construction cost of $49,680,000, and a management and inspection cost of $2,713,000 for an estimated total project cost of $57,030,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS – ALTERATION
CHARLES E. WHITTAKER COURTHOUSE
KANSAS CITY, MO

Prospectus Number: PMO-0050-KC21
Congressional District: 05

FY 2021 Project Summary

The General Services Administration (GSA) proposes a repair and alteration project for the Charles E. Whittaker Courthouse (Whittaker CT) located at 400 E. 9th Street, Kansas City, MO. The proposed project will replace the deteriorating curtain wall system and complete roof upgrades.

FY 2021 Committee Approval and Appropriation Requested

(Design, Construction, and Management & Inspection).....$57,030,000

Major Work Items

Building exterior; interior alterations; roof upgrades.

Project Budget

Design	$4,637,000
Estimated Construction Cost (ECC)	49,680,000
Management & Inspection (M&I)	2,713,000
Estimated Total Project Cost (ETPC)	**$57,030,000**

*Tenant agencies may fund an additional amount for alterations above the standard normally provided by GSA.

Schedule	Start	End
Design and Construction	FY 2021	FY 2023

Building

The Whittaker CT is a 13-story, 674,508 gross square foot building located on the northeast side of the Kansas City Central Business District. The crescent-shaped courthouse was originally constructed in 1998 and is primarily utilized as a courthouse. The building is 250 feet high and is more typical of a 22-story building because the ceiling heights of courtrooms are twice as high as those of standard office buildings.

Tenant Agencies

Judiciary–U.S. District Courts, U.S. Bankruptcy, U.S. Magistrate, U.S. Court of Appeals, U.S. District Clerk, Probation, Pretrial Services, Circuit Library;
Department of Justice–U.S. Marshals Service, Office of U.S. Attorneys, U.S. Trustees;
Veterans Administration–Veterans Health Administration; U.S. Tax Court; and GSA

GSA PBS

PROSPECTUS – ALTERATION
CHARLES E. WHITTAKER COURTHOUSE
KANSAS CITY, MO

Prospectus Number: PMO-0050-KC21
Congressional District: 05

Proposed Project

The proposed project will replace the deteriorating curtain wall system along with roofing components. The project will replace existing curtain wall at the north, south, east, and west elevations with new curtain wall including framing, glazing, and sealants. The project will replace the punched windows on the east and west elevations. The project will provide new sealants at joints between existing exterior precast panels and provide new draft-stopping at the existing air-intake louvers. Fenestration and skylights will be blast protected for a 35' setback. The project will also replace the existing roof drains and the south-side interior roof gutter, and replace the coping at precast crown structures with fall protection.

The project will construct temporary interior barriers to prevent dust and debris from entering tenant space. Interior alterations are limited to those required to complete the facade and replace mechanical shades on the south side.

Major Work Items

Building Exterior Replacement	$46,353,000
Interior Alterations	2,520,000
Roof Upgrades	807,000
Total ECC	**$49,680,000**

Justification

The curtain wall system is original to the building. It is deteriorating and posing serious safety hazards. The windows are losing integrity throughout the building, resulting in water infiltration in widespread areas. These issues have been specifically noted in the fenestration's structural sealant and pressure plate. Water infiltration is occurring at the north and south elevations curtain walls and at the punched windows on the east and west elevations. Repair work has created additional water infiltration, which may create potential for mold, further deterioration, and fall hazards. In numerous curtain wall areas, temporary supports have been installed to maintain panel integrity and fasten trim material. Window gasketing is separating from the facade. Windows are at risk of failing, creating potential risk to people inside and outside of the building.

Until a full replacement curtain wall system is completed, building occupants have been notified to stay away from the windows and not to lean against them or place any type of load against them. To protect the building occupants and the general public, windows in public areas have been barricaded off.

GSA PBS

PROSPECTUS – ALTERATION
CHARLES E. WHITTAKER COURTHOUSE
KANSAS CITY, MO

Prospectus Number: PMO-0050-KC21
Congressional District: 05

Summary of Energy Compliance

This project will be designed to conform to the requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

Prior Appropriations

None

Prior Committee Approvals

None

Prior Prospectus-Level Projects in Building (past 10 years)

None

Alternatives Considered (30-year, present value cost analysis)

Alteration	$170,653,000
Lease	$209,623,000
New Construction	$224,100,000

The 30-year, present value cost of alteration is $38,970,000 less than the cost of leasing with an equivalent annual cost advantage of $1,837,000.

Recommendation

ALTERATION

GSA PBS

PROSPECTUS – ALTERATION
CHARLES E. WHITTAKER COURTHOUSE
KANSAS CITY, MO

Prospectus Number: PMO-0050-KC21
Congressional District: 05

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on February 5, 2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

ALTERATION—201 VARICK STREET FEDERAL OFFICE BUILDING, NEW YORK, NY

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repairs and alterations for a consolidation project at the Federal Office Building located at 201 Varick Street, New York, NY at a design cost of $3,795,000, an estimated construction cost of $59,638,000, and a management and inspection cost of $3,217,000 for an estimated total project cost of $66,650,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS – ALTERATION
201 VARICK STREET FEDERAL OFFICE BUILDING
NEW YORK, NY

Prospectus Number: PNY-0128-NY21
Congressional District: 10

FY 2021 Project Summary

The General Services Administration (GSA) proposes a consolidation project at the 201 Varick Street Federal Office Building (Varick Street) in New York, NY. The proposed project will renovate approximately 195,000 usable square feet (USF) of space for the Department of Homeland Security, Immigration and Customs Enforcement–Homeland Security Investigations (ICE-HSI), and Veterans Affairs–Veterans Benefits Administration (VBA). ICE-HSI will be relocating from a costly lease in Manhattan into space being vacated by the Department of Veterans Affairs–Veterans Benefits Administration (VBA) which is consolidating into approximately 48,000 USF. The project will result in agency rent savings to VBA of approximately $3,100,000 annually, and the Government will realize $13,000,000 in annual lease cost avoidance, while ICE-HSI will benefit from $7,000,000 in annual agency rent savings.

FY2021 Committee Approval and Appropriation Requested

(Design, ECC, M&I) $66,650,000

Major Work Items

Demolition and abatement, interior construction; heating, ventilation, and air conditioning (HVAC); building structure; exterior construction; conveying system; plumbing, electrical, and life safety

Project Budget

Design	$3,795,000
Estimated Construction Cost (ECC)	59,638,000
Management and Inspection (M&I)	3,217,000
Estimated Total Project Cost (ETPC)	**$66,650,000**

*Tenant agencies will fund an additional amount for alterations above the standard normally provided by the GSA.

Schedule	Start	End
Design and Construction	FY 2021	FY 2024

Building

Built in 1929, the Art Deco style building is situated on the west side of lower Manhattan and is bounded by Varick, King, West Houston, and Hudson Streets in a densely built

PROSPECTUS – ALTERATION
201 VARICK STREET FEDERAL OFFICE BUILDING
NEW YORK, NY

Prospectus Number: PNY-0128-NY21
Congressional District: 10

area of commercial, office, and light industrial buildings. The building is several blocks from the Holland Tunnel, which connects Manhattan with New Jersey beneath the Hudson River. Comprising 14 stories and a basement, it measures just over 1 million gross square feet.

Tenant Agencies

Department of Homeland Security, Department of Veteran Affairs, Department of Labor, Department of State, U.S. Postal Service, Social Security Administration, Department of Justice

Proposed Project

The proposed project will build out approximately 147,000 USF of space for ICE-HSI that is being vacated by VBA and consolidate VBA into approximately 48,000 USF on another floor within the building.

Restacking of the building is necessary to allow for a separate entrance for secure vehicle access for ICE occupancy in contiguous space, along with separate secure internal vertical transportation. VBA is relocating to the fourth floor. As part of an ongoing project, a health unit will also be relocated from the fourth floor to the eleventh floor to allow VBA to fully occupy the floor.

GSA PBS

PROSPECTUS – ALTERATION
201 VARICK STREET FEDERAL OFFICE BUILDING
NEW YORK, NY

Prospectus Number: PNY-0128-NY21
Congressional District: 10

Major Work Items

Interior Construction	$23,157,000
HVAC Upgrades	18,270,000
Demolition/Abatement	6,611,000
Electrical Upgrades	6,421000
Building Structure	3,175,000
Exterior Construction	144,000
Fire and Life Safety Upgrades	1,538,000
Plumbing and Conveying System Repairs	322,000
Total ECC	**$59,638,000**

Justification

The project will result in agency rent savings to VBA of approximately $3,100,000 annually, and Government will benefit from over $13,000,000 in annual lease cost avoidance, and ICE-HSI will benefit from almost $7,000,000 in annual agency rent savings. With VBA's 57,000 USF reduction and ICE-HSI backfilling vacant space, the overall utilization rate for this building will be reduced, and vacant space will be minimal.

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost-effective design opportunities where cost-effective to increase energy and water efficiency above the minimum performance criteria.

Prior Appropriations

None

Prior Committee Approvals

None

Prior Prospectus-Level Projects in Building (past 10 years)

None

GSA PBS

PROSPECTUS – ALTERATION
201 VARICK STREET FEDERAL OFFICE BUILDING
NEW YORK, NY

Prospectus Number: PNY-0128-NY21
Congressional District: 10

Alternatives Considered (30-year, present value cost analysis)

Alteration: $182,738,000
Lease $345,389,000

The 30-year, present value cost of alteration is $162,651,000 less than the cost of leasing, with an equivalent annual cost advantage of $8,955,000.

Recommendation

ALTERATION

GSA PBS

PROSPECTUS – ALTERATION
201 VARICK STREET FEDERAL OFFICE BUILDING
NEW YORK, NY

Prospectus Number: PNY-0128-NY21
Congressional District: 10

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on February 4, 2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

ALTERATION—U.S. CUSTOM HOUSE, PHILADELPHIA, PA

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repairs and alterations to repair/replace domestic and storm water systems and upgrade/replace the hearing, ventilation, and air conditioning system at the U.S. Custom House located at 200 Chestnut Street in Philadelphia, PA at an additional estimated construction cost of $8,026,000 and an additional estimated management and inspection cost of $715,000 for a total additional cost of $8,741,000 and an estimated total project cost of $104,211,000, a prospectus for which is attached to and included in this resolution. This resolution amends the authorization of the Committee on September 27, 2018 of Prospectus No. PPA–0144–PH19.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

AMENDED PROSPECTUS – ALTERATION
U.S. CUSTOM HOUSE
PHILADELPHIA, PA

Prospectus Number: PPA-0144-PH21
Congressional District: 3

FY2021 Project Summary

The General Services Administration (GSA) proposes a repair and alteration project for the U.S. Custom House (Custom House) located at 200 Chestnut Street in Philadelphia, PA. The proposed project will repair/replace the building's domestic and storm water systems and upgrade/replace the heating, ventilation, and air conditioning (HVAC) system to a more efficient, modern design.

FY2021 Committee Approval Requested

(Construction, Management & Inspection)..... $8,741,000[1]

This prospectus amends Prospectus No. PPA-0144-PH19. GSA is requesting approval of an additional estimated construction cost of $8,026,000 and an additional estimated management and inspection cost of $715,000, for a total additional cost of $8,741,000 to account for cost escalation due to time and market conditions.

FY2021 Committee Appropriation Requested

(Construction, Management & Inspection)..... $91,965,000[2]

[1] Prospectus No. PPA-0144-PA19 was approved by the Committee on Transportation and Infrastructure of the House of Representatives on September 27, 2018, and the Committee on Environment and Public Works of the Senate on June 19, 2019, for a total estimated project cost of $95,470,000.

[2] While GSA was unable to fund the entire FY 2019 alteration project within the enacted level of the President's FY 2019 Budget, GSA's FY 2019 Major R&A Spending Plan did provide $12,406,000 for Design and Construction.

GSA PBS

AMENDED PROSPECTUS – ALTERATION
U.S. CUSTOM HOUSE
PHILADELPHIA, PA

Prospectus Number: PPA-0144-PH21
Congressional District: 3

Major Work Items

HVAC upgrades/replacement; interior construction; demolition/abatement; plumbing repair/replacement; electrical, fire and life safety system upgrades; and roof upgrades

Project Budget[3]

Design (FY 2019)	$7,440,000
Estimated Construction Cost (ECC)	
ECC (FY 2019)	4,806,000
ECC (FY 2021)	81,245,000
Total ECC	**86,051,000**
Management and Inspection (M&I)	10,720,000
Estimated Total Project Cost (ETPC)	**$104,211,000**

*Tenant agencies may fund an additional amount for alterations above the standard normally provided by the GSA.

Schedule	Start	End
Design and Construction	FY 2019	FY 2026

Building

The Custom House is a 19-story, approximately 565,000 gross square foot building located on the eastern side of the Philadelphia central business district. The building was originally constructed in 1934 and is primarily used as office space. The Custom House is listed in the National Register of Historic Places and is distinguished by an ornate, three-story rotunda situated in the main lobby.

[3] While GSA was unable to fund the entire FY 2019 alteration project within the enacted level of the President's FY 2019 Budget, GSA's FY 2019 Major R&A Spending Plan did provide $12,406,000 for Design and Construction.

GSA PBS

AMENDED PROSPECTUS – ALTERATION
U.S. CUSTOM HOUSE
PHILADELPHIA, PA

Prospectus Number: PPA-0144-PH21
Congressional District: 3

Tenant Agencies

Department of Homeland Security, Department of Justice, Department of Health and Human Services, Department of State, Department of Agriculture, Department of the Interior, U.S. Tax Court, U.S. Senate, GSA

Proposed Project

The building is suffering from recurring flooding caused by the aged domestic water piping system and significant temperature and indoor air quality issues caused by the insufficient and outdated HVAC system. Electrical system components will be replaced to support the HVAC systems. Mitigation of hazardous materials and associated sprinkler modifications will be accomplished in disturbed areas as part of the project.

To repair the building's domestic water system, the piping will need to be exposed, abated of asbestos, inspected, and repaired. Concurrently, the building's induction unit system will be removed, abated of asbestos, and upgraded to a four-pipe fan coil system. Due to the invasive nature of this work and the presence of hazardous materials, the majority of building tenants will be moved into internal swing space.

The less invasive aspects of the project include repairing the storm water system, replacing the building automation system, replacing the air handling units, partial conversion to variable air volume serving interior zones, replacing the heating and chilled water systems, and replacing the boilers.

As noted above, this renovation is in an occupied building so the proposed project includes allowances for internal swing space. The project minimizes tenant impact by using internal swing space and hazardous materials enclosures, as well as by completing the scope items together.

GSA PBS

AMENDED PROSPECTUS – ALTERATION
U.S. CUSTOM HOUSE
PHILADELPHIA, PA

Prospectus Number: PPA-0144-PH21
Congressional District: 3

Major Work Items

HVAC Upgrades/Replacement	$49,595,000
Interior Construction	13,895,000
Demolition / Abatement	10,285,000
Plumbing Repair / Replacement	3,965,000
Electrical Repair / Replacement	2,440,000
Fire and Life Safety Repair / Replacement	940,000
Roof Repairs	125,000
Total ECC	**$81,245,000**

Justification

The project will address the failing domestic water piping system that has flooded the building three times since 2013, creating millions of dollars in damage to the building and personal property. The damage has displaced tenants for months at a time and interfered with their ability to carry out their missions. The threat of another major flood remains, and there is a serious risk that additional flooding could potentially damage the historic rotunda, which would be enormously costly to repair. If left unaddressed, the building could potentially become uninhabitable and would need to be considered for disposal.

Due to the major disruption caused by the repair of the plumbing system, GSA determined that this project is the best opportunity to upgrade the deficient HVAC systems. The HVAC systems in the buildings are approximately 20 years beyond their useful lives and are vulnerable to a large-scale failure in both the air handling units and the branch piping leading to the perimeter induction units. There have been longstanding temperature and indoor air quality issues caused by a system that was not designed for office space. In addition to affecting occupant comfort, poor dehumidification has caused the paint, plaster, and wall materials to peel at numerous locations in the building, including in the historic rotunda and in areas with lead-based paint. The two pipe induction system is highly inefficient, forcing entire building switchover between heating and cooling to address unseasonable temperatures (e.g. cooling in the winter and heating in the summer). Simultaneously completing these projects will save the Government approximately $13 million in duplicative costs, while minimizing disruption to building tenants.

GSA PBS

AMENDED PROSPECTUS – ALTERATION
U.S. CUSTOM HOUSE
PHILADELPHIA, PA

Prospectus Number: PPA-0144-PH21
Congressional District: 3

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

Prior Appropriations

Prior Appropriations			
Public Law	**Fiscal Year**	**Amount**	**Purpose**
116-6 via Major R&A Spending Plan	2019	$12,246,000	Design and Construction
Appropriations to Date		**$12,246,000**	

Prior Committee Approvals

Prior Committee Approvals			
Committee	**Date**	**Amount**	**Purpose**
House T&I	9/27/2018	$95,470,000	Design = $7,440,000 ECC = $78,025,000 M&I = $10,005,000
Senate EPW	6/19/2019	$95,470,000	Design = $7,440,000 ECC = $78,025,000 M&I = $10,005,000

Prior Prospectus-Level Projects in Building (past 10 years)

None

Alternatives Considered (30-year, present value cost analysis)

There are no feasible alternatives to this project. This is a limited scope renovation and the cost of the proposed project is far less than the cost of leasing or constructing a new building.

Recommendation

ALTERATION

GSA PBS

AMENDED PROSPECTUS – ALTERATION
U.S. CUSTOM HOUSE
PHILADELPHIA, PA

Prospectus Number: PPA-0144-PH21
Congressional District: 3

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on February 4, 2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

CONSTRUCTION—U.S. LAND PORT OF ENTRY, CALEXICO, CA

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, additional appropriations are authorized for Phase IIB of a two-phase project to reconfigure and expand the existing Land Port Of Entry (LPOE) in downtown Calexico, CA at an additional design cost of $3,279,000, an additional estimated construction cost of $6,978,000, and additional management and inspection cost of $4,550,000 for a total additional cost of $14,807,000, a prospectus for which is attached to and included in this resolution. This resolution amends the authorization of the Committee on September 27, 2018 of Prospectus No. PCA–BSC–CA19.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

AMENDED PROSPECTUS – CONSTRUCTION
U.S. LAND PORT OF ENTRY
CALEXICO, CA

Prospectus Number: PCA-BSC-CA21
Congressional District: 51

FY 2021 Project Summary

The General Services Administration (GSA) requests additional approval and funding for construction of Phase IIB of a two-phase project to reconfigure and expand the existing Land Port Of Entry (LPOE) in downtown Calexico, CA. The project includes new pedestrian processing and privately owned vehicle (POV) inspection facilities, a new head house to provide supervision and services to the non-commercial vehicle inspection area, new administration offices, and a parking structure. The expanded facilities will occupy both the existing inspection compound and the site of the former commercial inspection facility, decommissioned in 1996 when commercial traffic was redirected to the newly completed LPOE six miles east of downtown Calexico.

FY 2021 Committee Approval Requested

(Additional Design, Construction, Management & Inspection)..... $14,807,000[1]

This prospectus amends Prospectus No. PCA-BSC-CA19. GSA is requesting approval of additional design cost of $3,279,000, additional estimated construction of $6,978,000, and additional management and inspection cost of $4,550,000 for a total additional cost of $14,807,000 to account for cost escalations and design/constructability review.

FY 2021 Appropriation Requested

(Additional Design, Construction, Management & Inspection)..... $99,707,000[2]

Overview of Project

The existing LPOE is a pedestrian and vehicle inspection facility constructed in 1974. It comprises a main building and a decommissioned commercial inspection building. The project includes the creation of new pedestrian and POV inspection facilities, and expansion of the port onto the site of the former commercial inspection facility. The

[1] Prospectus No. PCA-BSC-CA19 was approved by the Committee on Transportation and Infrastructure of the House of Representatives and the Committee on Environment and Public Works of the Senate on September 27, 2018, and February 5, 2019, respectively, for additional design cost of $970,000, additional construction cost of $14,847,000, and a reduction of management and inspection cost of $1,625,000 for a total additional cost of $14,192,000. Full funding was not enacted in FY 2019.

[2] GSA works closely with Department of Homeland Security program offices responsible for developing and implementing security technology at LPOEs. This prospectus contains funding for infrastructure requirements known at the time of prospectus development. Additional funding by a reimbursable work authorization may be required to provide for as yet unidentified security technology elements to be implemented at this port.

GSA PBS

AMENDED PROSPECTUS – CONSTRUCTION
U.S. LAND PORT OF ENTRY
CALEXICO, CA

Prospectus Number: PCA-BSC-CA21
Congressional District: 51

commercial inspection operation was moved to Calexico East in 1996. POV inspection facilities will include expanded northbound inspection lanes, new southbound inspection lanes, and a parking structure. There will be new administration space, a new head house and design guide-mandated secondary inspection stations serving both northbound and southbound traffic. The project will be constructed in two phases.

The first phase included a head house, 10 of the project's northbound POV inspection lanes, all southbound POV inspection lanes with temporary asphalt paving, and a bridge across the New River for southbound POV traffic.

Due to split funding of the second phase in FY 2019, Phase II has been broken further into two sub-phases: Phase IIA, funded in 2019, includes the remaining northbound POV lanes, expansion of the secondary inspection canopy, southbound POV inspection islands, booths, canopies and concrete paving, an administration building, an employee parking structure, and a vehicle seizure lot.

Phase IIB includes a pedestrian processing building with expanded northbound pedestrian inspection stations, demolition of legacy facilities, and significant earthwork.

Site Information

Government-Owned ..... 13.5 acres
Acquired as part of Phase I ..... 4.3 acres

Building Area

Building (including canopies and indoor parking)[3] ..... 349,827 GSF
Building (excluding canopies and indoor parking) ..... 162,015 GSF
Outside parking spaces 79
Structured parking spaces 264

[3] GSF has changed since Prospectus No. PCA-BSC-CA19 to include recovery of the Historic Custom House (HCH) into the GSA inventory. The HCH is being used for temporary pedestrian processing and will be used for housing other Federal agencies in the future.

GSA PBS

AMENDED PROSPECTUS – CONSTRUCTION
U.S. LAND PORT OF ENTRY
CALEXICO, CA

Prospectus Number: PCA-BSC-CA21
Congressional District: 51

Project Budget

Site Acquisition	
Site Acquisition (FY 2007)	$2,000,000
Additional Site Acquisition (FY 2010)	3,000,000
Total Site Acquisition	**$5,000,000**
Design	
Design (FY 2007)	$12,350,000
Additional Design (FY 2010)	6,437,000
Additional Design Phase IIA (FY 2019)	2,000,000
Additional Design Phase IIB (FY 2021)	2,249,000
Total Design	**$23,036,000**
Estimated Construction Cost (ECC)	
Phase I (FY 2015)	$90,838,000
Phase IIA (FY 2019)	172,000,000
Phase IIB (FY2021)	90,638,000
Total ECC[4]	**$353,476,000**
Site Development Costs	$149,501,000
Building Costs (includes inspection canopies) ($583/GSF)	$203,975,000
Management & Inspection (M&I)	
Phase I (FY 2015)	$7,224,000
Phase IIA (FY 2019)	17,000,000
Phase IIB (FY 2021)	6,820,000
Total M&I	**$31,044,000**
Estimated Total Project Cost (ETPC)*	**$412,556,000**

* Tenant agencies may fund an additional amount for alterations above the standard normally provided by GSA.

Location

The site is located at 200 East 1st Street, Calexico, CA.

[4] ECC is broken into two parts – Site Development Costs and Building Costs.

GSA PBS

AMENDED PROSPECTUS – CONSTRUCTION
U.S. LAND PORT OF ENTRY
CALEXICO, CA

Prospectus Number: PCA-BSC-CA21
Congressional District: 51

Schedule	Start	End
Design		
Phase I	FY 2007	FY 2012
Design/Constructability Review		
Phase IIA	FY 2019	FY 2020
Phase IIB	FY 2021	FY 2022
Construction		
Phase I	FY 2015	FY 2018
Phase IIA	FY 2019	FY 2023
Phase IIB	FY 2021	FY 2026

Tenant Agencies

Department of Homeland Security – Customs and Border Protection, and Immigration and Customs Enforcement; GSA

Justification

On an average day, 12,250 POVs and approximately 12,000 pedestrians enter the U.S. through this LPOE. The existing facilities are undersized relative to existing traffic loads and obsolete in terms of inspection officer safety and border security. The space required to accommodate modern inspection technologies is not available in the existing facility. When completed, the project will provide the port operation with adequate operational space, reduced traffic congestion, and a safe environment for port employees and visitors.

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

GSA PBS

AMENDED PROSPECTUS – CONSTRUCTION
U.S. LAND PORT OF ENTRY
CALEXICO, CA

Prospectus Number: PCA-BSC-CA21
Congressional District: 51

Prior Appropriations

Prior Appropriations			
Public Law	**Fiscal Year**	**Amount**	**Purpose**
110-5	2007	$14,350,000	Site acquisition & design
111-117	2010	$9,437,000	Additional site acquisition & design
113-235	2015	$98,062,000	Phase I Construction
116-6	2019	$191,000,000	Phase IIA Design, Construction, & M&I
Appropriations to Date		**$312,849,000**	

Prior Committee Approvals

Prior Committee Approvals			
Committee	**Date**	**Amount**	**Purpose**
House T&I	4/5/2006	$14,350,000	Design = $12,350,000; Site acquisition = $2,000,000
Senate EPW	5/23/2006	$14,350,000	Site Acquisition & Design
House T&I	11/5/2009	$9,437,000	Additional design = $6,437,000; additional site acquisition = $3,000,000
Senate EPW	2/4/2010	$9,437,000	Additional site acquisition & design
House T&I	12/2/2010	$274,463,000	Construction = $246,344,000; M&I = $28,119,000
Senate EPW	11/30/2010	$274,463,000	Construction = $246,344,000; M&I = $28,119,000
House T&I	7/16/2014	$85,307,000	Additional Construction of $85,307,000
Senate EPW	4/28/2015	$85,307,000	Additional Construction of $85,307,000
House T&I	9/27/2018	$14,192,000	Additional Design = $970,000; Additional Construction = $14,847,000 M&I reduction = (1,625,000).
Senate EPW	2/5/19	$14,192,000	Additional Design = $970,000; Additional Construction = $14,847,000 M&I reduction = (1,625,000).
Approvals to Date		**$397,749,000**	

GSA PBS

AMENDED PROSPECTUS – CONSTRUCTION
U.S. LAND PORT OF ENTRY
CALEXICO, CA

Prospectus Number: PCA-BSC-CA21
Congressional District: 51

Alternatives Considered

GSA has jurisdiction, custody, and control over and maintains the existing facilities at this LPOE. No alternative other than Federal construction was considered.

Recommendation

CONSTRUCTION

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC on February 4, 2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

CONSTRUCTION—DHS CONSOLIDATION AT ST. ELIZABETHS, WASHINGTON, DC

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for the ongoing construction of the Department of Homeland Security (DHS) consolidated headquarters at the St. Elizabeths campus in Washington, DC at an additional design and construction cost of $28,882,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

GSA PBS

PROSPECTUS – CONSTRUCTION
DHS CONSOLIDATION AT ST. ELIZABETHS
WASHINGTON, DC

Prospectus Number: PDC-0002-WA21

FY 2021 Project Summary

The General Services Administration (GSA) proposes to continue the ongoing development of the Department of Homeland Security (DHS) consolidated headquarters (HQ) at the St. Elizabeths Campus by: 1) continuing design and construction on a building to house the Office of Intelligence and Analysis (I&A) and supporting operations center and parking to support Phase 2b; 2) commencing design and construction of a new Federal building to house the headquarters operations of the DHS Immigration and Customs Enforcement (ICE) and a portion of the headquarters function of Customs and Border Protection (CBP) currently located in several leases in Washington, DC; 3) ongoing historic preservation activities; and 4) and management and inspection funding for these activities.

Fiscal Year 2021 Committee Approval and Appropriation Requested

House Committee Approval Requested $28,882,000

Senate Committee Approval Requested $369,093,000

Historic Preservation	1,000,000
Design (Phase 2b and 3a)	27,637,000
Management and Inspection (Phase 2b and 3a)	27,615,000
Estimated Construction Cost (Phase 2b and 3a)	402,748,000
Total	**$459,000,000**

Overview of Project

GSA and DHS have worked collaboratively to update and revise the original DHS HQ consolidation program at the St. Elizabeths West Campus. In January 2015, GSA and DHS finalized an updated program, referred to as the Enhanced Plan, which seeks a more efficient utilization of space at a lower cost. The West Campus is a 176-acre National Historic Landmark, plus an additional 8 contiguous acres of Shepherd Parkway acquired from the National Park Service (NPS). Improvements include existing buildings containing approximately 1 million gross square feet (GSF) and newly constructed buildings such as the Douglas A. Munro Coast Guard Headquarters Building (Munro Building).

In 2015, DHS and GSA cut back on the overall scope of the program. DHS components require less space through realized efficiencies and improved utilization rates; new construction that was planned for the East Campus is planned for the West Campus. The West Campus will continue to be developed in accordance with guidelines set out in the Master Plan as amended and/or as a result of continued compliance with NHPA and NEPA during specific project designs.[1] GSA and stakeholders are updating the Master Plan in accordance with established processes. GSA

[1] The Master Plan can be found at the project's website: http://www.stelizabethsdevelopment.com/

and DHS have also updated the campus occupancy plan to focus tenancy on those agencies with missions that require the most upfront Federal investment, maximizing long-term lease cost avoidance.

Committee approval and appropriations for **Phase 1** of the project—i.e., construction of a new headquarters facility for the U.S. Coast Guard (USCG) named the Munro Building—have already been obtained. Development of **Phase 2a** includes construction of office space to consolidate DHS headquarters and the re-scoped DHS Operations Center (DOC), house various DHS leadership components, and provide amenity space. **Phase 2b** includes construction of a new headquarters facility for the DHS Cybersecurity and Infrastructure Security Agency (CISA), (Building 1), a headquarters facility for Intelligence & Analysis (I&A) (Building 2) to execute its mission. Parking is also included with these later phases. **Phase 3** will accommodate DHS Immigration & Customs Enforcement (ICE) headquarters and a portion of the headquarters of Customs and Border Protection (CBP) (Building 3) via new construction. This phase also will include the future rehabilitation of existing space.

Site Information	
Government-owned[2]	184 acres
Building Area	
Building without parking (GSF)	up to 3,800,000
Building with parking (GSF)	up to 5,215,750
Number of structured parking spaces	up to 4,045

[2] Includes approximately 8 acres of Shepherd Parkway acquired from NPS in accordance with the Master Plan.

GSA PBS

PROSPECTUS – CONSTRUCTION
DHS CONSOLIDATION AT ST. ELIZABETHS
WASHINGTON, DC

Prospectus Number: PDC-0002-WA21

Project Budget

Planning[3]	$20,008,000
Site Acquisition	6,722,000
Design Cost	240,126,000
Management and Inspection	155,216,000
Historic Preservation Mitigations	5,899,000
Estimated Construction Cost	2,406,638,000
Estimated Total Project Cost*	**$2,834,609,000**

*Tenant agencies may fund an additional amount for alterations above the standard normally provided by GSA.

Project Phasing

Phase 1a	USCG – HQ (completed)	Coast Guard headquarters
Phase 1b	USCG – CC (completed)	Coast Guard Command Center / shared use space / GSA Field Office
Phase 2a	DHS (completed)	Office of the Secretary and Senior Leadership
Phase 2a	DOC (ongoing)	DHS Operations Center / West Addition
Phase 2b	CISA (initiated)	CISA
Phase 2b	I&A (to be completed)	Parking, I&A
Phase 3a	ICE/CBP (to be completed)	ICE headquarters elements, portion of CBP headquarters elements
Phase 3b	Historical Adaptive Reuse	Determined at a future date

Tenant Agencies

USCG, DHS headquarters elements, the DOC, CISA, I&A, ICE, and CBP. Future tenant agencies for Phase 3b will be determined at a future date.

[3] Funding provided for planning prior to initial prospectus submission for FY 2006.

PROSPECTUS – CONSTRUCTION
DHS CONSOLIDATION AT ST. ELIZABETHS
WASHINGTON, DC

Prospectus Number: PDC-0002-WA21

I. SITE ACQUISITION PROGRAM SUMMARY

Delineated Areas for Site Acquisition

The sites acquired or to be acquired are as follows:

1. Approximately 2 acres of land located on Firth Sterling Avenue in southeast Washington, DC, where the parcel is contiguous with the northwest corner of the St. Elizabeths West Campus; the land was controlled by DC and the CSX Corporation.
2. Approximately 1 acre of land located along the east side of Martin Luther King, Jr. Avenue in southeast Washington, DC, between the Unified Communications Center and the current tunnel between the East Campus and West Campus. The land is currently controlled by DC.
3. Approximately 14 acres of land located on Shepherd Parkway in southeast Washington, DC, between the St. Elizabeths West Campus and Malcolm X Avenue, parallel to Interstate 295.[4]

Total Site Acquisition Project Budget

Site Acquisition (Firth Sterling Avenue) (FY 2009)	2,722,000
Site Acquisition (Martin Luther King, Jr. Avenue) (ARRA)	500,000
Site Acquisition (Shepherd Parkway) (ARRA)	3,500,000
Total Acquisition Budget[5]	**$6,722,000**

II. INFRASTRUCTURE PROGRAM SUMMARY

Infrastructure repair/replacement costs include: demolition of specific buildings identified by the Master Plan; replacement of site utilities including electricity substations and local utility requirements, an addition to the existing powerplant for a fully functional central utility plant with cogeneration capability; campus support structures; distribution systems for electricity, natural gas, domestic water, storm water, waste water, data systems, and telecommunications; roadways, surface parking, and sidewalks; refurbishment of historical ornamental landscape and creation of new landscape features as needed, including flora; cleanup/repair of existing tunnels on site to improve safety and for potential use as systems distribution pathways; and site security fencing, entry gates, guard stations, and other site security features. The $46 million for the access road construction originally included in the Infrastructure budget in prior years has been moved to the Highway Interchange program budget in Section III of this prospectus.

[4] Per a Transfer of Jurisdiction Agreement between GSA and NPS recorded on 12/02/2016, approximately 8 acres of Shepherd Parkway were transferred to GSA control for construction of the access road to Malcolm X Avenue.

[5] Unused project funds originally requested for acquisition of parcels along Firth Sterling Avenue were redirected to Phase 1b of the project to cover unforeseen conditions. Please see Section V, Phase 1b footnotes.

GSA PBS

PROSPECTUS – CONSTRUCTION
DHS CONSOLIDATION AT ST. ELIZABETHS
WASHINGTON, DC

Prospectus Number: PDC-0002-WA21

The planned alterations are necessary to preserve, maintain, and reuse this historic site. Existing infrastructure and the landscape have suffered from aging and deferred maintenance. The utility distribution systems are antiquated and deteriorated. Building repairs include repair and improvement of structural and life safety systems while maintaining historic integrity. The landscape will be maintained, protected, and preserved to the extent feasible.

Total Infrastructure Project Budget

Design

Design (FY 2006) Phase 1a	$7,645,000
Design (FY 2009) Phase 1b	3,000,000
Design (ARRA) Phase 1b	12,346,000
Design (ARRA) Phase 2a	700,000
Design (future year request) Phase 3	11,430,000
Design Subtotal	**$35,121,000**

Management and Inspection (M&I)

M&I (FY 2006) Phase 1a	$370,000
M&I (FY 2007) Phase 1a	532,000
M&I (ARRA) Phase 1b	5,382,000
M&I (FY 2015) Phase 1b	2,000,000
M&I (FY 2016) Phase 2a	1,000,000
M&I (future year request) Phases 3	9,206,000
M&I Subtotal	**$18,490,000**

Estimated Construction Cost (ECC)

ECC (FY 2006) Phase 1a	$5,080,000
ECC (FY 2007) Phase 1a	5,912,000
ECC (FY 2009) Phase 1a	5,249,000
ECC (ARRA) Phase 1b	131,783,000
ECC (FY 2015) Phase 1b	36,100,000
ECC (FY 2016) Phase 2a	20,900,000
ECC (future year request) Phase 3	136,453,000
ECC Subtotal	**$341,477,000**

Estimated Total Project Cost (ETPC) for Infrastructure $395,088,000

PROSPECTUS – CONSTRUCTION
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III. HIGHWAY INTERCHANGE PROGRAM SUMMARY

The Highway Interchange Program that was developed as part of the Master Plan proposed an access road to the St. Elizabeths West Campus that extends between Firth Sterling Avenue to the north and Malcolm X Avenue to the south, parallel to Interstate-295. Funds for construction of the access road in the amount of $46 million were originally included in the Infrastructure program described above, but additional transportation improvements have subsequently been identified. A new, reconfigured interchange between Malcolm X Avenue and I-295 is one of these improvements. This reconfiguration is necessary to direct St. Elizabeths traffic onto the access road that, in turn, will mitigate the impacts of additional traffic that is anticipated as the result of the redevelopment of St. Elizabeths. GSA worked closely with the Federal Highway Administration (FHWA) and the DC Department of Transportation to prepare an Interchange Justification Report to facilitate required modifications to the Malcolm X Interchange. Other related transportation improvements that are needed as a result of the St. Elizabeths development are also included below as separate line items.

Total Highway Interchange Project Budget

Design	
Design (ARRA)	3,500,000
Design (FY 2012)[6]	2,500,000
Design (FY 2015)	12,210,000
Design Subtotal	**$18,210,000**
Management and Inspection (M&I)	
M&I (FY 2012)[7]	1,500,000
M&I (FY 2015)	9,000,000
M&I (FY 2016)	3,210,000
M&I Subtotal	**$13,710,000**
Estimated Construction Cost (ECC)	
ECC (ARRA) Access Road	38,000,000
ECC (2012) Access Road	33,300,000
ECC (FY 2015) Access Road / Interchange	122,790,000
ECC (FY 2016) Access Road / Interchange	5,415,000
ECC Subtotal	**$199,505,000**
Estimated Total Project Cost (ETPC) for Highway Interchange	**$231,425,000**

[6] These funds were redirected from Infrastructure funds in FY 2012.
[7] See Footnote 6 above.

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DHS CONSOLIDATION AT ST. ELIZABETHS
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IV. HISTORIC PRESERVATION MITIGATIONS PROGRAM SUMMARY

As of December 9, 2008, GSA and DHS along with NCPC entered into a Programmatic Agreement (PA) with the Advisory Council on Historic Preservation (ACHP), the DC Historic Preservation Office (DCHPO), and FHWA. The PA outlines five specific mitigation actions that GSA must undertake to "resolve adverse effects from certain complex project situations."[8] These actions are as follows:

1. Documentation and recordation including buildings and site as needed, archives, historic structure reports, building preservation plans, landscape preservation treatment and management, and archaeological resources treatment and management;

2. Public outreach, interpretation, and education, including the establishment of a citizens advisory panel, a permanent interpretative exhibit, a museum and visitors education center, signage, and public relations materials;

3. Public access program to be developed by GSA and DHS;

4. Conservation and artifact preservation; and

5. Actions for the 19th century cemetery including interpretative program, perpetual care, and public access.

Major Work Items for Mitigation

Documentation and Recordation (FY 2016)	$1,407,000
Documentation and Recordation (FY 2021)	100,000
Documentation and Recordation (future year request)	300,000
Public Outreach (FY 2016)	500,000
Public Outreach (FY 2021)	500,000
Public Outreach (future year request)	875,000
Cemetery (FY 2016)	500,000
Staffing (FY 2014)	200,000
Staffing (FY 2016)	400,000
Staffing (FY 2021)	400,000
Staffing (future year request)	717,000
Total	**$5,899,000**

[8] Programmatic Agreement dated December 9, 2008, page 1.

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V. BUILDING PROGRAM SUMMARY

PHASE 1a – USCG Headquarters

Building Phase 1a[9]

Office and Special Space	1,179,500 GSF
Estimated Total Phase 1a	**1,179,500 GSF**

Cost Information Building Phase 1a

Design (FY 2006)	$24,900,000
Management and Inspection (M&I) (FY 2009)	12,925,000
Estimated Construction Cost (ECC) (FY 2009)	313,465,000
Estimated Total Cost Phase 1a	**$351,290,000**

Schedule for Building Phase 1a

FY 2009 - Design Completion
FY 2009 - Start Construction
FY 2013 - Complete Construction

PHASE 1b – USCG Command Center and Special Space

Building Phase 1b

Command Centers/Fitness Center/Retail	158,450 GSF
GSA Construction Office[10]	17,050 GSF
Estimated Total Phase 1b	**175,500 GSF**
Structured Parking (931 cars)	up to 325,850 GSF
Structured Parking for visitors (170 cars)	up to 59,500 GSF

[9] Square footage is based on USCG housing plan, approved Master Plan, and design documents.
[10] The Construction Office was ready upon completion of Phase 1 and occupancy by USCG; however, DHS security requirements superseded GSA program needs.

GSA PBS

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Cost Information Building Phase 1b

Design (ARRA)	$10,659,000
Management and Inspection (M&I) (ARRA)	15,674,000
Management and Inspection (M&I) (FY 2009)[11]	228,000
Estimated Construction Cost (ECC) (FY 2009)[12]	4,050,000
Estimated Construction Cost (ECC) (ARRA)[13]	167, 936,000
Estimated Total Cost Phase 1b	**$198,547,000**

Schedule for Building Phase 1b

FY 2010 - Design Completion
FY 2010 - Start Construction
FY 2013 - Complete Construction

PHASE 2a – DHS Headquarters Elements and DHS Operations Center (DOC)
Building Phase 2a

Office of DHS Secretary and Executive Management	298,000 GSF
DOC including Office	286,000 GSF
Estimated Total Phase 2a	**584,000 GSF**
Structured Parking (872 cars)	up to 305,200 GSF

Cost Information Building Phase 2a

Design (FY 2009)	5,000,000
Design (ARRA)[14]	11,607,000
Design (FY 2014)	10,837,000
Design (FY 2016)[15]	35,244,000
Management and Inspection (M&I) (FY 2011)	1,500,000
Management and Inspection (M&I) (FY 2014)	7,925,000
Management and Inspection (M&I) (FY 2016)	17,925,000
Estimated Construction Cost (ECC) (ARRA)	26,000,000
Estimated Construction Cost (ECC) (FY 2011)	28,500,000
Estimated Construction Cost (ECC) (FY 2014)	136,038,000
Estimated Construction Cost (ECC) (FY 2016)[16]	125,064,000
Estimated Total Cost Phase 2a	**405,640,000**

[11] Remaining unobligated project funds from site acquisition were used for M&I to complete Phase 1b.
[12] Remaining unobligated project funds from site acquisition were used for ECC to complete Phase 1b.
[13] Remaining unobligated $423 thousand from site acquisition was used for new gate house and rehabilitation work in Building 49.
[14] This includes $132 thousand from Spend Plan 11 for design-bridging documents related to planned rehabilitation work for the Center Building and $175 thousand to complete the DOC.
[15] This includes funds for above-grade office space directly south of the Center Building.
[16] This includes funds for Hitchcock Hall originally planned for completion in Phase 1.

GSA PBS

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WASHINGTON, DC

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Schedule for Building Phase 2a

FY 2018 - Design Completion
FY 2014 - Start Construction
FY 2021 - Complete Construction

PHASE 2b – CISA (Building 1) and I&A (Building 2)
Building Phase 2b

CISA Headquarters[17]	616,000 GSF
I&A Headquarters	175,000 GSF
Estimated Total Phase 2b	**791,000 GSF**
Structured Parking (1,496 cars)	up to 523,600 GSF

Cost Information Building Phase 2b

Design (ARRA)	17,401,000
Design (FY 2019)	14,000,000
Design (FY 2021)	7,137,000
Management and Inspection (M&I) (FY 2019)	14,000,000
Management and Inspection (M&I) (FY 2021)	12,615,000
Estimated Construction Costs (ECC) (FY 2016)	130,000,000
Estimated Construction Costs (ECC) (FY 2019)	92,000,000
Estimated Construction Costs (ECC) (FY 2021)	179,248,000
Estimated Total Cost Phase 2b	**$466,401,000**

Proposed Schedule for Building Phase 2b

FY 2021 - Design Completion
FY 2022 - Start Construction
FY 2024 - Complete Construction

PHASE 3a –ICE HQ and a portion of CBP HQ elements (Building 3)
Building Phase 3a

ICE Headquarters elements and a portion of CBP HQ elements	634,000 GSF
Estimated Total Phase 3	**634,000 GSF**
Structured Parking (106 cars)	up to 37,100 GSF
Structured Parking for Visitors (470 cars)	up to 164,500 GSF

[17] Approximately $130,000,000 in FY 2016 appropriations is to be used for CISA HQ. An additional $120,000,000 was appropriated to DHS by P.L. 116-006 and transferred to GSA in accordance with enacted legislation.

GSA PBS

PROSPECTUS – CONSTRUCTION
DHS CONSOLIDATION AT ST. ELIZABETHS
WASHINGTON, DC

Prospectus Number: PDC-0002-WA21

Cost Information Building Phase 3a

Design (ARRA)	9,884,000
Design (FY 2021)	20,500,000
Design (future year request)	4,000,000
Management and Inspection (M&I) (FY 2021)	15,000,000
Management and Inspection (M&I) (future year request)	5,000,000
Estimated Construction Cost (ECC) (FY 2021)	223,500,000
Estimated Construction Cost (ECC) (future year request)	37,000,000
Estimated Total Cost Phase 3	**$314,884,000**

Proposed Schedule for Building Phase 3a

FY 2022 - Design Completion
FY 2023 - Start Construction
FY 2025 - Complete Construction

PHASE 3b – Determined at a Future Date
Building Phase 3b

Adaptive Reuse Office Space	323,000 GSF
New Construction Office Space	113,000 GSF
Estimated Total Phase 3b	**436,000 GSF**

Cost Information Building Phase 3b

Design (future year request)	15,626,000
Management and Inspection (M&I) (future year request)	20,224,000
Estimated Construction Cost (ECC) (future year request)	402,855,000
Estimated Total Cost Phase 3b	**$438,705,000**

Proposed Schedule for Building Phase 3b

TBD - Design Completion
TBD - Start Construction
TBD - Complete Construction

Summary of Energy Compliance

The project has been designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost-effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

GSA PBS

PROSPECTUS – CONSTRUCTION
DHS CONSOLIDATION AT ST. ELIZABETHS
WASHINGTON, DC
Prospectus Number: PDC-0002-WA21

Prior Appropriations

St. Elizabeths Consolidation Prior Appropriations			
Public Law	**Fiscal Year**	**Amount**	**Purpose**
109-115	2006	$24,900,000	Design of U.S. Coast Guard HQ
109-115	2006	$13,095,000	Infrastructure, Design, Construction and Management and Inspection
110-5	2007	$6,444,000	Infrastructure, Construction, and Management and Inspection
111-5	2009	$454,872,000	Site acquisition, Construction and Development
111-8	2009	$346,639,000	Site acquisition, Design, Infrastructure, Construction, and Management and Inspection
112-10	2011	$30,000,000	Construction of DHS Operations Center
112-74	2012	$37,300,000	Construction of Modular Utility Plant, Pump House, and portion of Access Road related to the U.S. Coast Guard.
113-76	2014	$155,000,000	Adaptive reuse of Center Building, Historic Preservation
113-235	2015	$144,000,000	Highway interchange and access road
113-235	2015	$38,100,000	Central Utility Plant
114-113	2016	$341,000,000	Historic Preservation, Design, Highway Interchange, Infrastructure, Construction, and Management & Inspection
Appropriations to Date [18,19]		**$1,591,350,000**	

[18] This amount does not include $20,008,000 of planning funds expended by DHS and GSA prior to FY 2006.
[19] In FY2019, $120,000,000 was appropriated to DHS by P.L. 116-006 and transferred to GSA in accordance with enacted legislation.

GSA PBS

PROSPECTUS – CONSTRUCTION
DHS CONSOLIDATION AT ST. ELIZABETHS
WASHINGTON, DC

Prospectus Number: PDC-0002-WA21

Prior Committee Approvals

St. Elizabeths Consolidation Prior Committee Approvals			
Committee	**Date**	**Amount**	**Purpose**
House T&I	10/26/2005	$24,900,000	Design of U.S. Coast Guard HQ
Senate EPW	07/20/2005	$24,900,000	Design of U.S. Coast Guard HQ
House T&I	040/5/2006	$383,997,000	Construction and Management and Inspection Phases 1-a and 1-b
House T&I	05/23/2007	$318,887,000	Design, Construction, and Management and Inspection
House T&I	05/23/2007	$7,000,000	Site Acquisition
Senate EPW	09/20/2007	$318,887,000	Design, Construction, and Management and Inspection
Senate EPW	09/20/2007	$7,000,000	Site Acquisition
Senate EPW	09/17/2008	$140,140,000	Additional Design and Construction
House T&I	09/24/2008	$525,236,000	Design, Review, Management and Inspection, and Construction
House T&I	12/02/2010	$1,130,984,000	Design, Review, Management and Inspection, and Construction
Senate EPW	07/13/2011	$281,015,000	Design and Construction of West Campus
House T&I	07/23/2015	$18,422,000	Design of West Campus
Senate EPW	01/20/2016	$221,358,000	Design and Construction of West Campus
Senate EPW	05/18/2016	$266,604,000	Design and Construction of West Campus
House T&I	05/25/2016	$12,755,000	Design of West Campus

GSA PBS

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DHS CONSOLIDATION AT ST. ELIZABETHS
WASHINGTON, DC

Prospectus Number: PDC-0002-WA21

Alternatives Considered (30-year, present value costs)

New Construction	$3,729,094,000
Lease	$4,203,564,000

The 30-year, present-value cost of new construction is $474,470,000 less than the cost of leasing, or an equivalent annual cost advantage of $22,368,000

Recommendation

CONSTRUCTION

Interim Leasing

GSA will execute such interim leasing actions as are necessary to ensure continued housing of the tenant agency prior to the occupancy of the new Federal buildings. It is in the best interest of the Government to avert the financial risk of holdover tenancy.

GSA PBS

PROSPECTUS – CONSTRUCTION
DHS CONSOLIDATION AT ST. ELIZABETHS
WASHINGTON, DC

Prospectus Number: PDC-0002-WA21

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on February 19, 2020

Recommended _____
Commissioner, Public Buildings Service

Approved _____
Administrator, General Services Administration

COMMITTEE RESOLUTION

LEASE—FEDERAL AVIATION ADMINISTRATION, QUEENS, NY

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for a lease extension of up to 209,244 rentable square feet of space, including 815 official parking spaces, for the Federal Aviation Administration currently located at One Aviation Plaza in Queens, NY at a proposed total annual cost of $14,333,214 for a lease term of up to 5 years, a prospectus for which is attached to and included in this resolution.

Approval of this prospectus constitutes authority to execute an interim lease for all tenants, if necessary, prior to the execution of the new lease.

Provided that, the Administrator of General Services and tenant agency(ies) agree to apply an overall utilization rate of 430 square feet or less per person, except that, if the Administrator determines that the overall utilization rate cannot be achieved, the Administrator shall provide an explanatory statement to the Committee on Transportation and Infrastructure of the House of Representatives prior to exercising any lease authority provided in this resolution.

Provided that, except for interim leases as described above, the Administrator may not enter into any leases that are below prospectus level for the purposes of meeting any of the requirements, or portions thereof, included in the prospectus that would result in an overall utilization rate of 430 square feet or higher per person.

Provided that, to the maximum extent practicable, the Administrator shall include in the lease contract(s) a purchase option that can be exercised at the conclusion of the firm term of the lease.

Provided further, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, that the Administrator shall require that the delineated area of the procurement is identical to the delineated area included in the prospectus, except that, if the Administrator determines that the delineated area of the procurement should not be identical to the delineated area included in the prospectus, the Administrator shall provide an explanatory statement to the Committee on Transportation and Infrastructure of the House of Representatives prior to exercising any lease authority provided in this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided further, the Administrator of General Services may not enter into this lease if it does not contain a provision barring any individual holding a Federally-elected office, regardless of whether such individual took office before or after execution of this lease, to directly participate in, or benefit from or under this lease or any part thereof and that such provision provide that if this lease is found to have been made in violation of the foregoing prohibition or it is found that this prohibition has been violated during the term of the lease, the lease shall be void, except that the foregoing limitation shall not apply if the lease is entered into with a publicly-held corporation or publicly-held entity for the general benefit of such corporation or entity.

Provided further, prior to entering into this lease or approving a novation agreement involving a change of ownership under this lease, the Administrator of General Services shall require the offeror or the parties requesting the novation, as applicable, to identify and disclose whether the owner of the leased space, including an entity involved in the financing thereof, is a foreign person or a foreign-owned entity; provided further, in such an instance, the Administrator of General Services shall notify the occupant agency(ies) in writing, and consult with such occupant agency(ies) regarding security concerns and necessary mitigation measures (if any) prior to award of the lease or approval of the novation agreement.

Provided that, to the maximum extent practicable, the Administrator of General Services shall require that the lease procurement consider the availability of public transportation consistent with agency mission requirements and that the space to be leased be renovated for all cost effective improvements, including renewable energy upgrades, water efficiency improvements, and indoor air quality optimization, that reduce greenhouse gas emissions.

GSA **PBS**

PROSPECTUS – LEASE
FEDERAL AVIATION ADMINISTRATION
QUEENS, NY

Prospectus Number: PNY-02-QU21
Congressional District: 5

Executive Summary

The General Services Administration (GSA) proposes a lease extension of up to 5 years for up to approximately 209,244 rentable square feet (RSF) to house the Federal Aviation Administration (FAA), currently located at One Aviation Plaza in Queens, NY. FAA has occupied space in the building since April 3, 2000, under a lease that expires on April 2, 2020.

Extension of the current lease will enable FAA to provide continued housing for current personnel and meet its mission requirements. FAA will maintain its office and overall space utilization rates at 253 and 430 usable square feet (USF) per person, respectively.

Description

Occupant:	Federal Aviation Administration
Current RSF:	209,244 (Current RSF/USF = 1.18)
Estimated/Proposed Maximum RSF[1]:	209,244 (Proposed RSF/USF = 1.18)
Expansion/Reduction RSF:	N/A
Current USF/Person:	430
Estimated/Proposed USF/Person:	430
Expiration Dates of Current Lease(s):	04/02/2020
Proposed Maximum Leasing Authority:	5 years
Delineated Area:	North: S. Conduit Ave. from Lefferts Blvd. to Rockaway Blvd.; East: Rockaway Blvd. to Brookville Blvd. through Head of Bay to Jamaica Bay; South: Jamaica Bay to Bergen Basin; West: Bergen Basin to Lefferts Blvd.
Number of Official Parking Spaces:	815
Scoring:	Operating
Current Total Annual Cost:	$9,907,087
Estimated Rental Rate[2]:	$68.50 / RSF
Estimated Total Annual Cost[3]:	$14,333,214

[1] This estimate is for fiscal year 2020 and may be escalated by 2 percent annually to the effective date of the lease to account for inflation. The proposed rental rate is fully serviced including all operating expenses, whether paid by the lessor or directly by the Government. GSA will conduct the procurement using prevailing market rental rates as a benchmark for the evaluation of competitive offers and as the basis for negotiating with offerors to ensure that lease award is made in the best interest of the Government.
[2] New leases may contain an escalation clause to provide for annual changes in real estate taxes and operating costs.

GSA **PBS**

PROSPECTUS – LEASE
FEDERAL AVIATION ADMINISTRATION
QUEENS, NY

Prospectus Number: PNY-02-QU21
Congressional District: 5

Background

FAA's mission is to provide the safest, most efficient aerospace system in the world. FAA's Eastern Region is responsible for the FAA's aviation-related work in the States of Delaware, Maryland, New Jersey, New York, Pennsylvania, Virginia, and West Virginia, as well as Washington, DC. This Regional Office serves as the primary liaison regarding aviation issues and activities within the greater Northeast corridor.

Justification

The current lease is for a total of 209,244 RSF at One Aviation Plaza and expires on April 2, 2020. FAA occupies 174,040 and there is also approximately 35,000 RSF of vacant space.

FAA requires continued housing to carry out its mission uninterrupted. This extension will provide GSA and FAA the necessary time to fully develop a future housing strategy which could result in consolidation of smaller leases with the regional office requirement, in relocation (of either a smaller or consolidated requirement), or in a reduction of the existing footprint.

Resolutions of Approval

Resolutions adopted by the House Committee on Transportation and Infrastructure and the Senate Committee on Environment and Public Works approving this prospectus will constitute approval to make appropriations to lease space in a facility that will yield the required rentable area.

Interim Leasing

GSA will execute such interim leasing actions as are necessary to ensure continued housing of the tenant agency prior to the effective date of the new lease. It is in the best interest of the Government to avert the financial risk of holdover tenancy.

GSA **PBS**

PROSPECTUS – LEASE
FEDERAL AVIATION ADMINISTRATION
QUEENS, NY

Prospectus Number: PNY-02-QU21
Congressional District: 5

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on April 7, 2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

November 2019

Housing Plan
Federal Aviation Administration

PNY-02-QU21
Queens, NY

Leased Locations	CURRENT						ESTIMATED/PROPOSED					
	Personnel		Usable Square Feet (USF)[1]				Personnel		Usable Square Feet (USF)			
	Office	**Total**	**Office**	**Storage**	**Special**	**Total**	**Office**	**Total**	**Office**	**Storage[5]**	**Special[6]**	**Total**
One Aviation Plaza, Queens, NY	413	413	104,000	17,359	26,367	147,726						
FAA			29,881			29,881						
Estimated/Proposed Lease							413	413	133,881	17,359	26,367	177,607
Total	**413**	**413**	**133,881**	**17,359**	**26,367**	**177,607**	**413**	**413**	**133,881**	**17,359**	**26,367**	**177,607**

Office Utilization Rate (UR)[2]		
	Current	Proposed
Rate	253	253

UR = average amount of office space per person
Current UR excludes 29,454 usf of office support space
Proposed UR excludes 29,454 usf of office support space

Overall UR[3]		
	Current	Proposed
Rate	430	430

R/U Factor [4]			
	Total USF	RSF/USF	Max RSF
Current	177,607	1.18	209,244
Estimated/Proposed	177,607	1.18	209,244

Special Space [6]	USF
ADP	6,918
Auditorium	3,426
Conference/Training	9,528
Food Service/Cafeteria	1,394
Fitness Center	1,885
High Density Filing	3,216
Total	**26,367**

Vehicle Storage/Wareyard 9,000

NOTES:
[1] USF means the portion of the building available for use by a tenant's personnel and furnishings and space available jointly to the occupants of the building.
[2] Calculation excludes the judiciary, Congress, and agencies with fewer than 10 people.
[3] USF/Person = housing plan total USF divided by total personnel
[4] R/U Factor (R/U) = Max RSF divided by total USF
[5] Storage excludes warehouse, which is part of Special Space.
[6] Special spaces listed are examples of such spaces and may be subject to change at the time a Request for Lease Proposal (RLP) is issued to meet specific agency requirements.

COMMITTEE RESOLUTION

LEASE—DEPARTMENT OF HOMELAND SECURITY FEDERAL EMERGENCY MANAGEMENT AGENCY, WASHINGTON, DC

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for a lease of up to 587,000 rentable square feet of space, including 17 official parking spaces, for the Federal Emergency Management Agency currently located at 400 and 500 C Street SW, Washington, DC at a proposed total annual cost of $29,350,000 for a lease term of up to 20 years, a prospectus for which is attached to and included in this resolution.

Approval of this prospectus constitutes authority to execute an interim lease for all tenants, if necessary, prior to the execution of the new lease.

Provided that, the Administrator of General Services and tenant agency(ies) agree to apply an overall utilization rate of 137 square feet or less per person, except that, if the Administrator determines that the overall utilization rate cannot be achieved, the Administrator shall provide an explanatory statement to the Committee on Transportation and Infrastructure of the House of Representatives prior to exercising any lease authority provided in this resolution.

Provided that, except for interim leases as described above, the Administrator may not enter into any leases that are below prospectus level for the purposes of meeting any of the requirements, or portions thereof, included in the prospectus that would result in an overall utilization rate of 137 square feet or higher per person.

Provided that, to the maximum extent practicable, the Administrator shall include in the lease contract(s) a purchase option that can be exercised at the conclusion of the firm term of the lease.

Provided further, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, that the Administrator shall require that the delineated area of the procurement is identical to the delineated area included in the prospectus, except that, if the Administrator determines that the delineated area of the procurement should not be identical to the delineated area included in the prospectus, the Administrator shall provide an explanatory statement to the Committee on Transportation and Infrastructure of the House of Representatives prior to exercising any lease authority provided in this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided further, the Administrator of General Services may not enter into this lease if it does not contain a provision barring any individual holding a Federally-elected office, regardless of whether such individual took office before or after execution of this lease, to directly participate in, or benefit from or under this lease or any part thereof and that such provision provide that if this lease is found to have been made in violation of the foregoing prohibition or it is found that this prohibition has been violated during the term of the lease, the lease shall be void, except that the foregoing limitation shall not apply if the lease is entered into with a publicly-held corporation or publicly-held entity for the general benefit of such corporation or entity.

Provided further, prior to entering into this lease or approving a novation agreement involving a change of ownership under this lease, the Administrator of General Services shall require the offeror or the parties requesting the novation, as applicable, to identify and disclose whether the owner of the leased space, including an entity involved in the financing thereof, is a foreign person or a foreign-owned entity; provided further, in such an instance, the Administrator of General Services shall notify the occupant agency(ies) in writing, and consult with such occupant agency(ies) regarding security concerns and necessary mitigation measures (if any) prior to award of the lease or approval of the novation agreement.

Provided that, to the maximum extent practicable, the Administrator of General Services shall require that the lease procurement consider the availability of public transportation consistent with agency mission requirements and that the space to be leased be renovated for all cost effective improvements, including renewable energy upgrades, water efficiency improvements, and indoor air quality optimization, that reduce greenhouse gas emissions.

GSA **PBS**

PROSPECTUS – LEASE
DEPARTMENT OF HOMELAND SECURITY
FEDERAL EMERGENCY MANAGEMENT AGENCY
WASHINGTON, DC

Prospectus Number: PDC-06-WA21

Executive Summary

The General Services Administration (GSA) proposes a lease of up to 587,000 rentable square feet (RSF) for the Federal Emergency Management Agency (FEMA), currently located at 400 and 500 C Street SW, Washington, DC. FEMA has occupied space in the buildings since 2013 and 1979, respectively, under two leases that expire on January 2, 2021, and August 16, 2020.

The new lease will provide continued housing for FEMA and provide an office and overall utilization rate of 86 and 137 usable square feet (USF) per person, respectively.

Description

Occupant:	FEMA
Current Rentable Square Feet (RSF)	497,299 (Current RSF/USF = 1.10)
Estimated/Proposed Maximum RSF[1]:	587,000 (Proposed RSF/USF = 1.20)
Expansion RSF:	89,701 Expansion
Current Usable Square Feet (USF)/Person:	128
Estimated/Proposed USF/Person:	137
Expiration Dates of Current Lease(s):	01/02/2021 and 08/16/2020
Proposed Maximum Leasing Authority:	20 years
Number of Official Parking Spaces:	17
Delineated Area:	Washington, DC, Central Employment Area
Scoring:	Operating
Current Total Annual Cost:	$20,409,884 (leases effective 01/03/2003 and 08/17/2001)
Estimated Rental Rate[2]:	$50.00/RSF
Estimated Total Annual Cost[3]:	$29,350,000

[1] The RSF/USF at the current location is approximately 1.10; however, to maximize competition a RSF/USF ratio of 1.20 is used for the estimated proposed maximum RSF as indicated in the housing plan.
[2] This estimate is for fiscal year 2020 and may be escalated by 1.9 percent annually to the effective date of the lease to account for inflation. The proposed rental rate is fully serviced, including standard operating expenses, whether paid by the lessor or directly by the Government. GSA will conduct the procurement using prevailing market rental rates as a benchmark for the evaluation of competitive offers and as the basis for negotiating with offerors to ensure that lease award is made in the best interest of the Government.
[3] New leases may contain an escalation clause to provide for annual changes in real estate taxes and operating costs in the District of Columbia.

PROSPECTUS – LEASE
DEPARTMENT OF HOMELAND SECURITY
FEDERAL EMERGENCY MANAGEMENT AGENCY
WASHINGTON, DC

Prospectus Number: PDC-06-WA21

Acquisition Strategy

In order to maximize the flexibility and competition in acquiring space for FEMA, GSA may issue a single, multiple-award solicitation that will allow offerors to provide blocks of space able to meet requirements in whole or in part. All offers must provide space consistent with the delineated area defined by this prospectus.

Background

FEMA's mission is to help people before, during, and after disasters. FEMA seeks to reduce the loss of life and property and protect communities nationwide from all hazards, including natural disasters, acts of terrorism, and man-made disasters.

The Robert T. Stafford Disaster Relief and Emergency Assistance Act, Public Law 100-707, was signed into law on November 23, 1988. It amended the Disaster Relief Act of 1974, Public Law 93-288, and created the system in place today by which a Presidential disaster declaration of emergency triggers financial and physical assistance through FEMA. The Act gives FEMA the responsibility for coordinating governmentwide relief efforts.

Justification

FEMA headquarters was originally planned to relocate to the St. Elizabeths Campus that was master-planned to accommodate those Department of Homeland Security (DHS) components directly involved in programmatic functions for mission execution. Unfunded requests for construction funding for the DHS Headquarters Consolidation project and the increasing financial impact of short-term leases created the need to adjust the overall planning at the St. Elizabeths Campus. FEMA's space requirements are more easily housed in leased space and at a significantly lower cost when taking into account all costs. The components slated to occupy the St. Elisabeths campus have significantly higher tenant improvement costs than FEMA, requiring hundreds of millions in the aggregate of specialized DHS buildout costs to configure the space to meet the mission needs of the Cybersecurity and Infrastructure Security Agency, Office of Intelligence and Analysis, U.S. Immigration and Customs Enforcement, and Customs and Border Protection organizations.

GSA will consider whether FEMA's continued housing needs should be satisfied in the existing location. If other potential locations are identified, GSA will conduct a cost-benefit analysis to determine whether the Government can expect to recover the

PROSPECTUS – LEASE
DEPARTMENT OF HOMELAND SECURITY
FEDERAL EMERGENCY MANAGEMENT AGENCY
WASHINGTON, DC

Prospectus Number: PDC-06-WA21

relocation and duplication costs of real and personal property needed for the continued housing FEMA requires to carry out its mission.

Summary of Energy Compliance

GSA will incorporate energy efficiency requirements into the Request for Lease Proposals and other documents related to the procurement of space based on the approved prospectus. GSA encourages offerors to exceed minimum requirements set forth in the procurement and to achieve an Energy Star performance rating of 75 or higher.

Resolutions of Approval

Resolutions adopted by the House Committee on Transportation and Infrastructure, and the Senate Committee on Environment and Public Works approving this prospectus will constitute approval to make appropriations to lease space in a facility that will yield the required rentable area.

Interim Leasing

GSA will execute such interim leasing actions as are necessary to ensure continued housing of the tenant agency prior to the effective date of the new lease. It is in the best interest of the Government to avert the financial risk of holdover tenancy.

GSA **PBS**

PROSPECTUS – LEASE
DEPARTMENT OF HOMELAND SECURITY
FEDERAL EMERGENCY MANAGEMENT AGENCY
WASHINGTON, DC

Prospectus Number: PDC-06-WA21

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on 6/11/2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

December 2019

Housing Plan
Department of Homeland Security
Federal Emergency Management Agency

PDC-06-WA21
Washington, DC

Leased Locations	CURRENT						ESTIMATED/PROPOSED					
	Personnel		Usable Square Feet (USF)[1]				Personnel		Usable Square Feet (USF)			
	Office	**Total**	**Office**	**Storage**	**Special**	**Total**	**Office**	**Total**	**Office**	**Storage[5]**	**Special[6]**	**Total**
400 C Street, SW	1,483	1,483	157,723		17,705	175,428						
500 C Street, SW	2,047	2,047	196,290	1,248	77,689	275,227						
Estimated/Proposed Lease							3,561	3,561	391,930	1,248	95,253	488,431
Total	**3,530**	**3,530**	**354,013**	**1,248**	**95,394**	**450,655**	**3,561**	**3,561**	**391,930**	**1,248**	**95,253**	**488,431**

Office Utilization Rate (UR)[2]		
	Current	Proposed
Rate	78	86

UR = average amount of office space per person
Current UR excludes 77,883 usf of office support space
Proposed UR excludes 86,225 usf of office support space

Overall UR[3]		
	Current	Proposed
Rate	128	137

R/U Factor4			
Current	450,655	1.10	497,299
Estimated/Proposed	488,431	1.20	587,000

Special Space [6]	**USF**
Conference/Training	29,332
Health Unit	857
Lactation Room	385
Accountable Property Storage	4,154
Print/Graphic/Copy/Mail	6,740
Inter. Dist. Frame	5,287
SCIF	15,732
Command Ctr (NRCC)	10,626
Press Room	1,697
TV Studio	670
Laboratory	4,026
A/V Room	155
Breakroom	8,889
Lockers/Showers	636
Security Command Ctr	2,107
Security Lab	1,096
Ant/Gen/UPS/Quick Con	1,534
Mechanical Rooms	1,330
Total	**95,253**

NOTES:
[1] USF means the portion of the building available for use by a tenant's personnel and furnishings and space available jointly to the occupants of the building.
[2] Calculation excludes Judiciary, Congress, and agencies with fewer than 10 people.
[3] USF/Person = housing plan total USF divided by total personnel.
[4] R/U Factor (R/U) = Max RSF divided by total USF.
[5] Storage excludes warehouse, which is part of Special Space.
[6] Special spaces listed are examples of such spaces and may be subject to change at the time a Request for Lease Proposal (RLP) is issued to meet specific agency requirements.

COMMITTEE RESOLUTION

ALTERATION—THOMAS G. ABERNETHY FEDERAL BUILDING, ABERDEEN, MS

Resolved by the Committee on Transportation and Infrastructure of the U.S. House of Representatives, that pursuant to 40 U.S.C. §3307, appropriations are authorized for repairs and alterations including replacing the heating ventilation and air conditioning system, building automation and associated electrical systems; remediate mold; abate asbestos-containing materials and lead-based paint; and undertake exterior envelope repairs and life safety upgrades for the Thomas G. Abernethy Federal Building located at 301 West Commerce Street in Aberdeen, MS at a design cost of $1,941,000, an estimated construction cost of $21,125,000, and a management and inspection cost of $1,265,000 for a total estimated project cost of $24,331,000, a prospectus for which is attached to and included in this resolution.

Provided, that the General Services Administration shall not delegate to any other agency the authority granted by this resolution.

Provided further, not later than 30 calendar days after the date on which a request from the Chair or Ranking Member of the Committee on Transportation and Infrastructure of the House of Representatives is received by the Administrator of General Services, the Administrator shall provide such Member a response in writing that provides any information requested regarding the project.

Provided, that the Administrator of General Services shall aim to achieve net zero carbon buildings, if determined by the Administrator to be practical and cost-effective.

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GSA **PBS**

PROSPECTUS – ALTERATION
THOMAS G. ABERNETHY FEDERAL BUILDING
ABERDEEN, MS

Prospectus Number: PMS-0082-AB21
Congressional District: 1

FY 2021 Project Summary

The General Services Administration (GSA) proposes a repair and alteration project for the Thomas G. Abernethy Federal Building (Abernethy Building), located at 301 West Commerce Street in Aberdeen, Mississippi. Heating ventilation and air conditioning (HVAC) system failures led to the inability of the systems to regulate humidity, heat, and air quality. These system failures and water infiltration from the building envelope resulted in mold propagation and the relocation of the Judiciary and Department of Justice. The project will replace the building's outdated and failed HVAC, building automation and associated electrical systems; remediate mold; abate asbestos-containing materials and lead-based paint; and undertake exterior envelope repairs and life safety upgrades. The Judiciary and Department of Justice will return to the building upon completion of this proposed project.

FY 2021 Committee Approval Requested

(Design, Construction, Management and Inspection) $24,331,000

FY 2021 Appropriation Requested[1] $0

Major Work Items

HVAC replacement, exterior and interior construction, demolition, mold remediation and hazardous materials abatement, electrical system and fire protection/life safety upgrades

Project Budget

Design	$ 1,941,000
Estimated Construction Cost (ECC)	21,125,000
Management and Inspection (M&I)	1,265,000
Estimated Total Project Cost (ETPC)*	**$24,331,000**

*Tenant agencies may fund an additional amount for tenant improvements above the standard normally provided by GSA.

Schedule	Start	End
Design and Construction	FY 2021	FY 2024

[1] GSA is not requesting additional appropriated funds in support of this project at this time. Upon approval of this prospectus and a concurrent transfer request, GSA will make use of project savings in the Federal Buildings Fund to undertake these proposed repairs and alterations.

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GSA **PBS**

PROSPECTUS – ALTERATION
THOMAS G. ABERNETHY FEDERAL BUILDING
ABERDEEN, MS

Prospectus Number: PMS-0082-AB21
Congressional District: 1

Building

The Abernethy Building, constructed in 1973 as a Government facility, contains three stories with a mechanical penthouse, and is the only federally owned building in Aberdeen, Mississippi. The 56,720 gross square foot building is one of the more prominent buildings in downtown Aberdeen and houses the U.S. District Court for the Northern District of Mississippi, which serves 13 counties in the State.

Tenant Agencies

Judiciary–U.S. District Court, U.S. Office of Probation and Pretrial Services; Department of Justice–U.S. Marshals Service; USPS

Proposed Project

The proposed project includes full replacement and modernization of the HVAC, abatement of hazardous materials including asbestos-containing materials and lead-based paint, remediation of the exterior envelope, including replacement of the roof and windows, and construction of an entry vestibule to mitigate the loss of conditioned air. Alterations of the interior space impacted by the modernization and remediation efforts will be completed.

In addition to addressing the indoor air quality, mold propagation, HVAC and envelope failures, limited building repairs and enhancements will be made to allow for the safe re-occupancy of the building. Enhanced building fire protection and suppression, life safety features, upgrades to the building's electrical system including replacement of the switchgear and transformers, sufficient capacity to support the new HVAC and fire suppression system and a temporary power system for USPS will be installed. This combination of work items will substantially enhance the preservation and efficiency of the building, thereby enabling the premises to be reoccupied.

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GSA **PBS**

PROSPECTUS – ALTERATION
THOMAS G. ABERNETHY FEDERAL BUILDING
ABERDEEN, MS

Prospectus Number: PMS-0082-AB21
Congressional District: 1

Major Work Items

HVAC Replacement	$12,232,000
Exterior Construction	3,935,000
Interior Construction	1,577,000
Demolition/Hazardous Materials Abatement	1,281,000
Electrical Upgrades	1,217,000
Fire Protection/Life Safety Upgrades	883,000
Total ECC	**$21,125,000**

Justification

Failures in the Abernethy Building's exterior envelope have allowed water intrusion and outside air infiltration that, when combined with a failing mechanical system, have created untenable conditions for the Judiciary and the Department of Justice. Indoor air quality concerns and the presence of mold have resulted in the relocation of the Judiciary and Department of Justice occupants to other locations in Mississippi. Currently, the Judiciary operates from the U.S. Bankruptcy Court offices in Aberdeen, the Gilmore Foundation Building in Amory, Mississippi, and the Federal Building/U.S. Courthouse in Oxford, Mississippi, as well as leased space for the Office of Probation and Pretrial Services in Tupelo, Mississippi.

The HVAC system is original to the building and has lost the ability to regulate indoor air temperatures and relative humidity, as is evidenced by the presence of hot and cold spots, condensation buildup on interior walls, mold blooms on interior surfaces, and respiratory complaints from the occupants. The building's roofing system requires full replacement to prevent further water intrusion. Window replacement and the addition of an entry vestibule are needed to control air and moisture infiltration. The building automation system and associated electrical components have also sustained damage due to excessive humidity and are difficult to operate and service. Replacement of the associated existing electrical systems with additional capacity including replacement of the switchgear and transformers will provide a reliable source of power for the building. USPS has elected to remain in the building during construction and will require temporary power while work is underway. A fire suppression system does not currently exist in the building, and fire alarm upgrades are needed for the safety of the building occupants. Mold, asbestos-containing materials and lead-based paint associated with the original HVAC system require remediation and abatement. Mold damaged interiors require repair or replacement.

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GSA **PBS**

PROSPECTUS – ALTERATION
THOMAS G. ABERNETHY FEDERAL BUILDING
ABERDEEN, MS

Prospectus Number: PMS-0082-AB21
Congressional District: 1

Summary of Energy Compliance

This project will be designed to conform to requirements of the *Facilities Standards for the Public Buildings Service*. GSA encourages cost effective design opportunities to increase energy and water efficiency above the minimum performance criteria.

Prior Appropriations:

None

Prior Committee Approvals:

None

Prior Prospectus-Level Projects in Building (past 10 years):

None

Alternatives Considered (30-year, present value cost analysis):

Alteration: $27,142,000
Lease: $88,448,000
New Construction: $24,798,000

GSA has determined that renovating the existing Thomas G. Abernethy Federal Building is the most efficient means of housing the U.S. District Court in Aberdeen, Mississippi. The 30-year, present value cost of renovation is $2,344,000 more than the cost of new construction, with an equivalent annual cost disadvantage of $110,000, and $63,650,000 less costly than leasing, with an annual cost advantage of $3,001,000. At this time, the Federal Buildings Fund has the necessary funds available to support the repair and alteration project without additional appropriations. Significantly, the repair and alteration project will provide a long-term housing solution for the U.S. District Court more quickly than constructing a new courthouse.

Recommendation

ALTERATION

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GSA **PBS**

PROSPECTUS – ALTERATION
THOMAS G. ABERNETHY FEDERAL BUILDING
ABERDEEN, MS

Prospectus Number: PMS-0082-AB21
Congressional District: 1

Certification of Need

The proposed project is the best solution to meet a validated Government need.

Submitted at Washington, DC, on 9/2/2020

Recommended: _____
Commissioner, Public Buildings Service

Approved: _____
Administrator, General Services Administration

There was no objection.

FIRE FACTS

The SPEAKER pro tempore. Under the Speaker's announced policy of January 3, 2019, the Chair recognizes the gentleman from Arkansas (Mr. WESTERMAN) until 10 p.m. as the designee of the minority leader.

GENERAL LEAVE

Mr. WESTERMAN. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days within which to revise and extend their remarks and include extraneous material on the topic of this Special Order.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Arkansas?

There was no objection.

Mr. WESTERMAN. Mr. Speaker, fires are ravaging the West. I want to talk a little bit about what is going on with the fires, and I want to talk about what is not going on here in Congress.

To start with, I just want to take a quick look at the science of fire.

This fire triangle shows that three things are required to have a fire. You have to have fuel, heat, and oxygen.

There is a lot of talk about the role climate change is playing in these fires. Climate increasing temperatures can draw fuel. If it gets windy, you can have more oxygen. Lightning can be one of the things to ignite fires, but a lot of fires obviously are ignited by man-made ways.

When we talk about putting out fire, the first thing we do is try to get the fuel out of the way, or we use water to cool the fire and remove the oxygen. But we have to spend way too much time working on extinguishing fires when we can take the actions to reduce the fuel to reduce the fires.

Any time I talk about forest management, I get accused of wanting to clear-cut the national forests, and I can promise you the last thing I want to do is clear-cut the national forests. I want to use good management on the national forests. That is what we should be doing. But I often wonder if those people who talk about clear-cutting even have any idea of what a clear-cut is.

I have put this chart together that shows a comparison between a clear-cut and a catastrophic wildfire, and I will go on the record and say that catastrophic wildfires are worse than clear-cuts.

Look at the data.

During a clear-cut, the trees are killed. During a catastrophic wildfire, the trees are killed.

During a clear-cut, the trees are removed. During a catastrophic wildfire, you are left with dead snags that can be fuel for additional wildfires. All vegetation is killed. That is what happens in a catastrophic wildfire. At least in a clear-cut you leave the residual grasses and the shrubs.

□ 2145

Stream zones are protected when a clear-cut is done. You leave vegetation around the stream. Catastrophic wildfire burns to the edge of the water.

Soil and organic materials are all burned up in a catastrophic wildfire. Special care is taken to protect the soil in a clear-cut.

When a clear-cut is planned, a plan for reforestation is also in place. Often on catastrophic wildfire, there is no reforestation.

As far as planting goes, it is extensive with a clear-cut. It is unplanned and uncontrolled in a catastrophic wildfire.

The size of a clear-cut, in California, it is less than 20 acres. Wildfires are huge, burning millions of acres. We have almost burned 8 million acres to date in the wildfire season this year in the U.S.

We can continue going down the list, but you can see, even talking about carbon, at least with a clear-cut, you are putting the wood into material that stores carbon. With a wildfire, you are releasing the carbon into the air. And these dead snags eventually rot. And they are not just releasing carbon dioxide like the fire does; they are releasing methane, which is a worse greenhouse gas.

Clear-cutting is not something that we want to do in a national forest, but people who are not allowing good forest management—and that is Congress with the rules that we have—are doing something much more devastating than clear-cutting by allowing these catastrophic wildfires to continue unabated.

Just as an example, this is the Angora fire. That is a natural clear-cut. That is a stand replacing fire.

This is 12 years later, where you have no regrowth on the site.

On top of that, according to the USGS, in 2018, the carbon emissions from wildfires released the same amount of carbon as the emissions that would be produced by generating enough electricity to power California for a whole year.

Mr. Speaker, we need to take action. It is not that the Forest Service doesn't know how to manage the land, it is that we have tied their hands and we have allowed activists and lawyers to manage the forests rather than the professionals in the Forest Service.

If we don't want to see the same things repeating over and over, with loss of life, loss of property, loss of a resource that actually pulls carbon dioxide out of the air and could be used to reduce the effects of climate change, we should do something proactive and actually start managing these forests.

It is time to act, and unfortunately, Congress has sat on their hands while we continue to watch the West burn.

Mr. Speaker, I yield to the gentleman from Arizona (Mr. GOSAR).

Mr. GOSAR. Mr. Speaker, first of all, I thank the gentleman from Arkansas (Mr. WESTERMAN), my friend, for organizing this Special Order and for his leadership and expertise on forestry issues.

The events of the last month and the last decade plus show how poorly our current forest management policies are and that they are broken and in drastic need of reform.

Nearly every corner of the West has been touched by catastrophic wildfire. My district has been home to several major fires this year, including the Bush fire that burned over 193,000 acres. 700,000 acres of land has been burned across my State.

Even before this year's fire season, the evidence of our forest management practices being broken are clear. In the last 10 years alone, wildfires have burned over 74 million acres of land in the West, and our Federal Government's reaction to this has been extremely lacking.

These catastrophic fires have devastating impacts on the environment and human health. For example, one large wildfire is roughly the equivalent of a major volcanic eruption, releasing large amounts of dangerous particles into the air. This increase of air pollution exacerbates respiratory illnesses, such as COVID–19.

Because of this, earlier this year, I wrote a letter to Agriculture Secretary Perdue and Interior Secretary Bernhardt. This letter urged them to act quickly to secure contracts with private businesses to ensure that firefighters could be properly protected from COVID–19 and that the aerial support they needed to adequately fight catastrophic fires was there.

Recent studies conducted at George Mason University showed that on average, a fire stands a higher probability of being contained within 24 hours if air tankers are deployed on that fire within the first few hours. Fires that do not receive air tanker support for a period of 13 hours or more are likely to take days or weeks to achieve containment.

I also wrote a letter to Attorney General Barr that urged him to ensure that the Justice Department's Natural Resources Division was adequately resourced to fight frivolous lawsuits from radical leftwing environmental organizations.

Lawsuits from radical environmentalists are nothing new. We have seen this already in Arizona with the disastrous WildEarth Guardians lawsuit regarding the Mexican Spotted Owl. In that case, a U.S. District Court judge in Tucson issued a ruling based on bad and debunked science that stopped active forest management activities in six national forests, including the Tonto National Forest in Arizona, which was the home of the Bush fire.

This decision was a massive setback, and it is directly contributing to the enhanced fire risk that threatens our communities that we are seeing across the West.

A devastating wildfire season is not inevitable. It isn't something that we must just accept. There are steps that can be taken now to ensure that our communities are protected.

I will continue to urge the Federal agencies tasked with managing our forests and fighting catastrophic fires that bold action is necessary. Lives depend on it.

Just last year, as chairman of the Congressional Western Caucus, I had the opportunity to visit the district of my friend from California, Mr. MCCLINTOCK, where aggressive forest management practices in the Lake Tahoe Basin have prevented catastrophic fire. This active management was made possible by getting unnecessary red tape out of the way and putting what is most important first: protecting our communities from the destruction of wildfire.

Just in the last 2 years, this administration has taken steps to manage vegetation inside utility corridors, build additional firebreaks, and reform the NEPA process within the Forest Service. However, after so many years of inaction, there is a long road to hoe to where we have to get, which is why I am so pleased we are here tonight calling for serious action by this House.

There are a few pieces of legislation that have been introduced. Just to name a few: H.R. 7978, a bipartisan, comprehensive forestry reform bill led by the gentleman from California (Mr. LAMALFA), as well as H.R. 2607, the Resilient Federal Forests Act, by Mr. WESTERMAN, both of which I am proud to support.

The Democratic leadership in this House has been transparent about the fact that they do not view forest management to prevent wildfires as a legislative priority, and that has deadly consequences.

Again, Mr. Speaker, I thank my friend from Arkansas for holding this Special Order and for his leadership and expertise on this issue.

Mr. WESTERMAN. Mr. Speaker, I thank the gentleman from Arizona (Mr. GOSAR) for being here tonight.

Mr. Speaker, I yield to the gentleman from Washington (Mr. NEWHOUSE).

Mr. NEWHOUSE. Mr. Speaker, I thank the gentleman from Arkansas (Mr. WESTERMAN), my good friend, for yielding.

As we all know, the West has been on fire.

In my home State of Washington, over 700,000 acres have burned, causing thousands of families to evacuate, leaving their homes, their businesses, and their farms behind. Whole towns have essentially been wiped off the map.

Smoke blanketed central Washington, with fires raging up and down the West Coast. The air quality of our cities and our rural areas ranked the worst in the world.

As the people of central Washington and many of my colleagues in Congress understand, healthy, resilient forests are the key to wildfire prevention. We have made significant progress, but there is still much work to be done.

Without our leadership in Congress, families will continue to lose their homes and their businesses, and jobs will continue to be lost, and our public health will continue to be threatened.

While a loss of homes and livelihoods is heartbreaking, there is nothing more tragic than the loss of life.

Today, I join the people of central Washington in mourning the loss of 1-year-old Baby Hyland, whose life was tragically cut short as his parents fled to escape the Cold Springs fire that was raging across Okanogan County. The Hyland family has suffered immeasurable loss with the deaths of both their toddler as well as the death of their unborn child. My heart aches and my prayers go out for the Hylands as they recover from their own wounds in this unimaginable heartbreak.

These tragic circumstances fall on us, Mr. Speaker. We are responsible, as the Federal Government, for failing to deliver a management strategy that enables us to prevent these catastrophic events.

We cannot continue to sit idly by.

We have to responsibly log our forests and graze our lands, or we will watch them burn.

These wildfires and this year have truly tested our resilience, but of this I am certain: in the face of catastrophe, central Washington will recover.

Now it is the Federal Government's responsibility to do everything in its power to prevent another disaster like this again.

For years, extreme environmentalist groups have insisted that we leave our forests and natural lands alone, leaving them in their quote ''natural state.'' But as we witness, year-after-year, that strategy simply does not work.

Many point to climate change as a contributing factor; I am not here to refute that. At the end of the day though, the facts remain: our land management—or lack thereof—is a serious problem.

Decades of mismanagement, misguided environmental policies, and lackluster forestry and grazing practices have led to forests and grasslands that act as tinder for wildfires, just waiting to be set ablaze each summer.

We cannot continue to sit idly by. We have to responsibly log our forests and graze our lands, or we will watch them burn.

As I have stated all along throughout the many challenges this year has presented: Central Washington's communities are resilient.

Wildfire recovery is no easy feat, but I have seen firsthand how citizens, volunteers, local organizations, and government entities work together to revive our communities, rebuild our fallen structures, and actively work to prevent future devastation.

I have heard stories of students and volunteers jumping into action, working to clear burnt areas, making way for new structures. Fairgrounds and community groups opened to help house and treat evacuated or injured livestock and animals. Donations continue to pour in from across the state, region, and country to families and firefighters in need.

I am working closely with FEMA and USDA to ensure our communities receive the federal assistance they need, and I stand ready to help the people of our district in any way I can.

These wildfires—and this year—have tested our resilience, but of this I am certain: In the face of catastrophe, Central Washington will recover. Now it is the federal government's responsibility to do everything in its power to prevent another disaster like this again.

Mr. WESTERMAN. Mr. Speaker, I thank the gentleman from Washington (Mr. NEWHOUSE) for his comments tonight.

Mr. Speaker, I yield to the gentleman from Alabama (Mr. PALMER).

Mr. PALMER. Mr. Speaker, I thank the gentleman from Arkansas (Mr. WESTERMAN) for holding this discussion about forest management.

Mr. Speaker, I rise today because ''California's forests suffer from neglect and mismanagement, resulting in overcrowding that leaves them susceptible to disease, insects and wildfire.'' These are not my words. They are the words of the Little Hoover Commission, an independent State oversight agency in California.

In their 2018 report entitled ''Fire on the Mountain,'' the Little Hoover Commission called for a transformational change in California forest management practices after ''A century of mismanaging Sierra Nevada forests has bought an unprecedented environmental catastrophe that impacts all Californians.'' That is a direct quote from the report.

California's own Legislative Analyst's Office agreed and found that limitations on timber harvests and emphasis on fire suppression and an increasing number of environmental permitting requirements have led to unhealthily dense forests.

Thankfully, both groups recognize that commonsense forest management practices could not only help prevent wildfires, but also reduce carbon emissions. Properly managed and healthy forests are more resilient and sequester more carbon than overgrown forests.

Simple recommendations like shifting from fire suppression to using fire as a tool and setting up long-term forest management strategies are just a couple of the low-cost solutions that can help us achieve healthier forests.

Unlike policies such as the Green New Deal, these practices would actually help address wildfires and would not cost trillions of dollars to implement. Furthermore, these actions can all be taken today, and they fall in line with some of the things that my Republican colleagues and I have been suggesting on the Select Committee on the Climate Crisis: that if we take action to mitigate and adapt to the climate change that we know is going to occur, we could avoid some of the catastrophes that we are seeing play out in California right now and in other places in the West.

If you care about protecting our citizens from wildfires and reducing carbon emissions, then you should support responsible forest management. Instead of wasting time on unrealistic solutions, we should take serious action to prevent unnecessary wildfires and

improve the carbon sequestration potential of our forests.

Mr. WESTERMAN. Mr. Speaker, I thank the gentleman from Alabama (Mr. PALMER) for his comments.

Mr. Speaker, I yield to the gentleman from Pennsylvania (Mr. THOMPSON).

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I thank the gentleman from Arkansas (Mr. WESTERMAN) for hosting this Special Order on wildfire.

Mr. Speaker, over the past decade, there has been an average of 64,100 wildfires and 6.8 million acres burned every year.

With over 10 million acres burned, we saw the highest number of Federal acres burned in 2015—and nearly that amount in 2017.

But this year, it has been even worse. 2020 has been an extremely difficult wildfire year for our firefighters, our responders, and many rural communities in and near the forests.

As of today, October 1, over 44,000 wildfires have burned nearly 7.7 million acres this year alone.

In addition to the destruction of these forests, homes, and property, we sadly continue to see lost lives.

Over the past 25 years, active management has plummeted across the national forest system; consequently, it is no coincidence that the larger, more intense fires are happening on Federal lands, where there is less management, versus State and private lands.

More individual fires occur in the East, but the wildfires in the West are larger and burn more acres. Wildfires also have significant impacts on eastern forests because of the budgetary effects on the Forest Service's ability to manage and personnel.

We must be encouraging more active forest management across the National Forest system. This includes thinning, prescribed fires, and hazardous fuels reduction, especially in the roughly 19 million acres of Federal lands that are already known to be at high risk.

Mr. Speaker, I thank my colleague, Mr. WESTERMAN, for his great work during the last farm bill and his leadership with the Resilient Federal Forests Act and the Trillion Trees Act.

Through the next farm bill, I am hopeful that we can continue to build on those commonsense reforms, and we will provide more authorities to help the Forest Service better manage and encourage more partnerships.

Mr. WESTERMAN. Mr. Speaker, I thank the gentleman from Pennsylvania (Mr. THOMPSON) for being here tonight.

Mr. Speaker, I just want to illustrate here that this isn't difficult. It is not rocket science.

This is a control in the first picture. You see all the underbrush, the ladder fuels. This is on Federal land as well.

You see the forest management in the middle where you thin it out, you do controlled burns. You do those every few years, and you get a resilient forest that looks like this.

California and Oregon and Arizona and Washington State, Nevada, they could have forests that look like this. Now, it would be those species that are out there, and the management would be done accordingly, but there is no reason we can't do this.

It is Speaker PELOSI's State that is on fire. It is Chairman GRIJALVA's State that is on fire. It is Chairman DEFAZIO's State that is on fire.

I wish that Democrats would take time to do what is right, to address these fires, to quit playing politics with relief bills that are going nowhere and do something that could really help the people and their States.

We want to help, but we can't do it on our own. We are in the minority.

We will work together and offer suggestions, but it is going to take a bipartisan effort to change these rules so that management can take place.

Mr. Speaker, I yield back the balance of my time.

Mr. CALVERT. Mr. Speaker, I rise to honor our firefighters who put their lives on the line to keep our communities safe every day. As new wildfires start every week, these brave men and women selflessly join the fight to protect life and property, while their families must live with the uncertainty of the threats they face on the frontlines. I commend these individuals, and Congress must provide all the support necessary to ensure our firefighters can return safely to their families.

I also commend the heroes joining the fight from across the country. California's firefighting resources are strained by the sheer number and size of the fires we face, and it is a testament to our nation's highest ideals that firefighters from across the West have come to our aid as these historic fires rage in every corner of our state.

Riverside County has already faced four distinct fires this wildfire season, burning over 60,000 acres in and around my district. In these fires alone, 17 individuals have been injured, and one firefighter lost his life trying to put out the El Dorado fire. Charlie Morton was a 14-year veteran of the Forest Service, and I send my deepest condolences to Charlie's family for their terrible loss.

Nearly every year California seems to break some record during the fire season.

It doesn't have to be this way.

For years, top congressional Democrats have rejected bipartisan proposals to reform our nation's forest management practices. Many Democrats have outright rejected the idea that how we manage our National Forests has anything to do with the increasing frequency and intensity of wildfires in the West.

Well, here are some of the facts:

Since 2010, approximately 150 million trees have died across federal, state, and private lands in California.

It is estimated that over 2 million properties are at extreme risk of wildfire due to high fuel loads nearby.

Between 60 and 80 million acres of national forest are at high- to very-high risk of catastrophic wildfire, but the Forest Service treats between just 1 and 2 percent of high risk acres each year.

In January, a study in Nature found that California needs to treat approximately 20 million acres to meaningfully impact wildfire risk. We treat closer to 13,000 acres annually.

Bureaucratic delays and frivolous lawsuits have halted much of this proactive work. The town of Berry Creek, received a grant to remove hazardous fuels, but it took the state nearly two years to review the project and allow it to proceed. By the time they did, it was too late, and the North Complex fire was already raging, destroying more than 50 homes in this community.

Salvage logging is another example of a win-win solution where companies still have an economic incentive to harvest the timber while helping prevent the next catastrophic wildfire. Charred trees left in the wake of wildfires are extremely flammable and hazardous fuels. Salvage operations must be conducted quickly or the economic value is lost, and extreme environmental groups frequently file lawsuits to halt these efforts.

In 2018 when I served as Chairman of the Interior Appropriations Subcommittee, I worked in a bipartisan fashion with Congresswoman MCCOLLUM to prioritize forest management and fuel reduction on our federal lands. We worked in good faith to achieve some meaningful reforms including a funding fix for the Forest Service and some limited regulatory reforms. Still, much more needs to be done to protect our communities.

We need to eliminate the red-tape that prevents these common-sense management efforts. We must take forest management decisions out of the courts and put the forest managers back in the driver's seat. Fortunately, House Republicans have solutions.

Congressman MCCLINTOCK's Proven Forest Management Act takes lessons learned from a pilot program in Lake Tahoe National Forest. Land managers were able to approve the first forest management project in under four months in a 16-page report, compared to an average of 4.5 years and 500 pages. We should pass this bill and expand this successful program nationwide.

Congressman WESTERMAN's Resilient Federal Forests Act is another example. This legislation has passed the House twice with overwhelming bipartisan support but was never considered by the Senate. This bill would streamline permitting for a wide array of forest management projects. When it comes to forest management, time is of the essence, and this legislation would dramatically increase our national capability to reduce the frequency and severity of catastrophic fires across the West.

I call on Speaker PELOSI to take up these bills and pass meaningful, comprehensive forestry reform. More bureaucracy is not the answer to our wildfire crisis, and we in Congress must act like there are lives at stake, because that is the reality of the threat we face.

EXPENDITURES BY THE OFFICE OF GENERAL COUNSEL UNDER HOUSE RESOLUTION 6, 116TH CONGRESS

HOUSE OF REPRESENTATIVES,
COMMITTEE ON HOUSE ADMINISTRATION,
Washington, DC, October 1, 2020.

Hon. NANCY PELOSI,
Speaker, House of Representatives,
Washington, DC.

DEAR MADAM SPEAKER: Pursuant to section 302(c) of House Resolution 6 (116th Congress) I hereby submit the attached statement ''setting forth the aggregate amounts expended by the Office of General Counsel on outside counsel and other experts pursuant

to this title on a quarterly basis'' for the quarter beginning on July 1, 2020 and ending on September 30, 2020, for publication in the Congressional Record.

Sincerely,

ZOE LOFGREN,
Chairperson.

Attachment.

AGGREGATE AMOUNT EXPENDED ON OUTSIDE COUNSEL OR OTHER EXPERTS—H. RES. 6

January 1–March 31, 2019	0.00
April 1–June 30, 2019	0.00
July 1–September 30, 2019	0.00
October 1–December 31, 2019	0.00
January 1–March 31, 2020	0.00
April 1–June 30, 2020	0.00
July 1–September 30, 2020	0.00
Total	0.00

ENROLLED BILL SIGNED

Cheryl L. Johnson, Clerk of the House, reported and found truly enrolled a bill of the House of the following title, which was thereupon signed by the Speaker:

H.R. 8337. An act making continuing appropriations for fiscal year 2021, and for other purposes.

BILL PRESENTED TO THE PRESIDENT

Cheryl L. Johnson, Clerk of the House, reported that on September 30, 2020, she presented to the President of the United States, for his approval, the following bill:

H.R. 8337. Making continuing appropriations for fiscal year 2021, and for other purposes.

ADJOURNMENT

The SPEAKER pro tempore. Pursuant to section 4(b) of House Resolution 967, the House stands adjourned until 9 a.m. tomorrow.

Thereupon (at 10 p.m.), under its previous order, the House adjourned until tomorrow, Friday, October 2, 2020, at 9 a.m.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

5394. A letter from the Secretary, Department of Defense, transmitting a letter on the approved retirement of Vice Admiral DeWolf H. Miller III, United States Navy, and his advancement to the grade of vice admiral on the retired list, pursuant to 10 U.S.C. 1370(c)(1); Public Law 96-513, Sec. 112 (as amended by Public Law 104-106, Sec. 502(b)); (110 Stat. 293); to the Committee on Armed Services.

5395. A letter from the Secretary, Department of Defense, transmitting a letter on the approved retirement of Vice Admiral Timothy J. White, United States Navy, and his advancement to the grade of vice admiral on the retired list, pursuant to 10 U.S.C. 1370(c)(1); Public Law 96-513, Sec. 112 (as amended by Public Law 104-106, Sec. 502(b)); (110 Stat. 293); to the Committee on Armed Services.

5396. A letter from the Secretary, Department of Defense, transmitting a letter on the approved retirement of Lieutenant General Jay B. Silveria, United States Air Force, and his advancement to the grade of lieutenant general on the retired list, pursuant to 10 U.S.C. 1370(c)(1); Public Law 96-513, Sec. 112 (as amended by Public Law 104-106, Sec. 502(b)); (110 Stat. 293); to the Committee on Armed Services.

5397. A letter from the OSD FRLO, Office of the Secretary, Department of Defense, transmitting The Department's final rule — Defense Intelligence Agency Privacy Program [Docket ID: DoD-2019-OS-0040] (RIN: 0790-AK65) received September 17, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Armed Services.

5398. A letter from the Program Analyst, Office of Managing Director, Performance and Records Management, International Bureau, Federal Communications Commission, transmitting the Commission's final rule — Update to Parts 2 and 25 Concerning Non-Geostationary, Fixed-Satellite Service Systems and Related Matters [IB Docket No.: 16-408] received September 17, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Energy and Commerce.

5399. A letter from the Director, Office of Acquisition Policy, Office of Government-wide Policy, General Services Administration, transmitting the Administration's summary presentation of an interim rule — Federal Acquisition Regulation; Federal Acquisition Circular 2020-09; Introduction [Docket No.: FAR-2020-0051, Sequence No. 5] received September 14, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Oversight and Reform.

5400. A letter from the Secretary, Office of the General Counsel, Federal Trade Commission, transmitting the Commission's Policy Statement — Vertical Merger Guidelines received September 14, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on the Judiciary.

5401. A letter from the Chief Counsel, Department of Homeland Security, transmitting the Department's Major temporary final rule — Prioritization and Allocation of Certain Scarce and Critical Health and Medical Resources for Domestic Use [Docket ID: FEMA-2020-0018] (RIN: 1660-AB01) received September 14, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

5402. A letter from the Chairman, Office of Proceedings and the Office of Economics, Surface Transportation Board, transmitting the Board's final rule — Regulations Governing Fees for Services Performed in Connection with Licensing and Related Services—-Update [Docket No.: EP 542 (Sub-No. 28)] received September 14, 2020, pursuant to 5 U.S.C. 801(a)(1)(A); Public Law 104-121, Sec. 251; (110 Stat. 868); to the Committee on Transportation and Infrastructure.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Ms. SCANLON: Committee on Rules. House Resolution 1164. Resolution providing for consideration of the resolution (H. Res. 1153) condemning unwanted, unnecessary medical procedures on individuals without their full, informed consent, and providing for consideration of the resolution (H. Res. 1154) condemning QAnon and rejecting the conspiracy theories it promotes (Rept. 116–557). Referred to the House Calendar.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Ms. BARRAGÁN:

H.R. 8470. A bill to establish procedures related to the coronavirus disease 2019 (COVID-19) in correctional facilities; to the Committee on the Judiciary, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Miss GONZÁLEZ-COLÓN of Puerto Rico (for herself, Ms. SHALALA, Mr. YOUNG, Mr. WEBER of Texas, Ms. MUCARSEL-POWELL, and Mr. RUTHERFORD):

H.R. 8471. A bill to establish a Federal Maritime Task Force and a private sector advisory committee to address the health, safety, security, and logistical issues relating to the continuation of maritime travel and the resumption of cruise operations in United States waters during the COVID-19 public health emergency; to the Committee on Transportation and Infrastructure.

By Mr. COURTNEY:

H.R. 8472. A bill to provide that, due to the disruptions caused by COVID-19, applications for impact aid funding for fiscal year 2022 may use certain data submitted in the fiscal year 2021 application; to the Committee on Education and Labor.

By Mr. GONZALEZ of Ohio (for himself and Mr. WESTERMAN):

H.R. 8473. A bill to amend the Internal Revenue Code of 1986 to consolidate health accounts into Medisave Accounts, and for other purposes; to the Committee on Ways and Means, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. BASS:

H.R. 8474. A bill to provide for a Community-Based Emergency and Non-Emergency Response Grant Program; to the Committee on Education and Labor, and in addition to the Committees on Energy and Commerce, and the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BERA:

H.R. 8475. A bill to amend the Internal Revenue Code of 1986 to temporarily increase the deduction for certain expenses of elementary and secondary school teachers; to the Committee on Ways and Means.

By Ms. BLUNT ROCHESTER (for herself and Mr. BURGESS):

H.R. 8476. A bill to provide for strategies to increase access to telehealth under the Medicaid program and Children's Health Insurance Program, and for other purposes; to the Committee on Energy and Commerce.

By Mr. BROOKS of Alabama (for himself, Mr. GAETZ, Mr. GOSAR, and Mr. GOODEN):

H.R. 8477. A bill to amend the Immigration and Nationality Act to improve the H-1B visa program, to repeal the diversity visa lottery program, and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Education and

Labor, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BUDD (for himself and Mr. CORREA):

H.R. 8478. A bill to amend the Americans with Disabilities Act of 1990 to include consumer facing websites and mobile applications owned or operated by a private entity, to establish web accessibility compliance standards for such websites and mobile applications, and for other purposes; to the Committee on Energy and Commerce.

By Mr. CARTER of Georgia (for himself and Ms. BLUNT ROCHESTER):

H.R. 8479. A bill to amend the Public Health Service Act to provide for stockpiles to ensure that all Americans have access to generic drugs at risk of shortage, and for other purposes; to the Committee on Energy and Commerce.

By Mr. CASE (for himself, Mr. BILIRAKIS, Ms. TITUS, Mr. YOUNG, Ms. SHALALA, Mr. PANETTA, Mr. HUFFMAN, Mr. CÁRDENAS, and Mr. PETERS):

H.R. 8480. A bill to authorize the position of Assistant Secretary of Commerce for Travel and Tourism, to statutorily establish the United States Travel and Tourism Advisory Board, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committees on Foreign Affairs, and the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. COHEN:

H.R. 8481. A bill to amend the provisions of title 5, United States Code, relating to the Federal Vacancies Reform Act of 1998, and for other purposes; to the Committee on Oversight and Reform.

By Mr. CRAWFORD (for himself, Mr. KELLY of Mississippi, and Mr. LAMALFA):

H.R. 8482. A bill to require the Secretary of Agriculture to support the efforts of State and local governments to provide for priority testing of essential critical food and agriculture workers with respect to COVID-19, and for other purposes; to the Committee on Agriculture.

By Mr. CUNNINGHAM (for himself, Mr. BILIRAKIS, Mr. TAKANO, Mr. LEVIN of California, Mr. PAPPAS, Mr. ROSE of New York, and Ms. BROWNLEY of California):

H.R. 8483. A bill to amend title 38, United States Code, to make certain modifications to the educational assistance programs of the Department of Veterans Affairs in light of the COVID-19 emergency, and for other purposes; to the Committee on Veterans' Affairs, and in addition to the Committees on Armed Services, and the Budget, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. DAVIDSON of Ohio (for himself, Mr. O'HALLERAN, Mr. HUDSON, Mrs. TRAHAN, Ms. GABBARD, and Mr. WALKER):

H.R. 8484. A bill to require the Secretary of Veterans Affairs to secure medical opinions for veterans with service-connected disabilities who die from COVID-19 to determine whether their service-connected disabilities were the principal or contributory cases of death, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. FITZPATRICK (for himself and Mr. QUIGLEY):

H.R. 8485. A bill to establish a $30,000,000,000 Health Club Recovery Fund to provide structured relief to health and fitness service establishments through December 31, 2020, and for other purposes; to the Committee on Financial Services, and in addition to the Committees on Ways and Means, and the Budget, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GALLAGHER:

H.R. 8486. A bill to establish a competitive grant program to increase financial literacy instruction in elementary schools and secondary schools; to the Committee on Education and Labor.

By Mr. KEVIN HERN of Oklahoma (for himself, Mr. GOSAR, Mr. MULLIN, Mr. NEWHOUSE, Mr. DUNCAN, Mr. BALDERSON, Mr. STAUBER, Mr. WEBER of Texas, Mr. ALLEN, Mr. DAVID P. ROE of Tennessee, Mr. BISHOP of Utah, and Ms. CHENEY):

H.R. 8487. A bill to prevent energy poverty in at-risk communities, and for other purposes; to the Committee on Natural Resources, and in addition to the Committees on Agriculture, Energy and Commerce, the Budget, and Rules, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. HOYER:

H.R. 8488. A bill to establish the Southern Maryland National Heritage Area, and for other purposes; to the Committee on Natural Resources.

By Mr. JOHNSON of South Dakota (for himself, Mr. SOTO, Mr. CONAWAY, Mr. CUELLAR, Mr. LUCAS, Mr. MARSHALL, Mr. ROUZER, Mr. THOMPSON of Pennsylvania, Mr. CRAWFORD, Mr. GIANFORTE, Mr. HAGEDORN, Mr. EMMER, and Mr. SMITH of Missouri):

H.R. 8489. A bill to make improvements with respect to the pricing of cattle in the United States, and for other purposes; to the Committee on Agriculture, and in addition to the Committees on Financial Services, Energy and Commerce, and Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. KATKO (for himself and Mr. BRINDISI):

H.R. 8490. A bill to provide that for taxable years beginning before 1980 the Federal income tax deductibility of flight training expenses shall be determined without regard to whether such expenses were reimbursed through certain veterans educational assistance allowances, and for other purposes; to the Committee on Veterans' Affairs, and in addition to the Committees on Ways and Means, and Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. PERRY (for himself, Mr. BURCHETT, and Mr. DESJARLAIS):

H.R. 8491. A bill to designate the Chinese Communist Party (CCP) as a transnational organized crime group; to the Committee on the Judiciary.

By Mr. PRICE of North Carolina:

H.R. 8492. A bill to amend title 3, United States Code, to extend the date provided for the meeting of electors of the President and Vice President in the States and the date provided for the joint session of Congress held for the counting of electoral votes, and for other purposes; to the Committee on House Administration.

By Mr. RYAN (for himself and Mr. RESCHENTHALER):

H.R. 8493. A bill to amend the Passport Act of 1920 to exempt from the collection of certain passport fees an individual who was awarded the Purple Heart, and for other purposes; to the Committee on Foreign Affairs.

By Mr. SCHNEIDER (for himself, Mr. DEUTCH, Mr. FITZPATRICK, Mr. SHERMAN, Mr. KATKO, Ms. WASSERMAN SCHULTZ, Mr. REED, Mr. GOTTHEIMER, Mr. BERA, Mrs. MURPHY of Florida, Mr. TED LIEU of California, Mr. TRONE, Mr. CISNEROS, Mrs. LURIA, Mr. PANETTA, Mr. ROSE of New York, Ms. TORRES SMALL of New Mexico, and Mr. SUOZZI):

H.R. 8494. A bill to reaffirm the critical role of congressional consultation and to require appropriate deliberation to assess the effects of the sale or export of major defense equipment to countries in the Middle East on the qualitative military edge of Israel, and for other purposes; to the Committee on Foreign Affairs.

By Mr. SHERMAN (for himself, Ms. WATERS, Mrs. CAROLYN B. MALONEY of New York, Mr. GREEN of Texas, and Mr. SAN NICOLAS):

H.R. 8495. A bill to prohibit United States persons from engaging in transactions relating to Russian sovereign debt; to the Committee on Financial Services, and in addition to the Committees on Foreign Affairs, Intelligence (Permanent Select), and Rules, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. SHERRILL (for herself, Ms. DELBENE, Ms. SEWELL of Alabama, Mr. THOMPSON of Mississippi, Mr. ENGEL, Ms. NORTON, Mr. SUOZZI, and Mr. DANNY K. DAVIS of Illinois):

H.R. 8496. A bill to amend title XVIII of the Social Security Act to revise payment amounts for results of COVID-19 PCR diagnostic panels, to require laboratories to furnish the results such panels within 28 days as a condition of participation under such title, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. SMITH of Missouri:

H.R. 8497. A bill to prohibit certain business concerns from receiving assistance from the Small Business Administration, and for other purposes; to the Committee on Small Business.

By Mr. SMITH of New Jersey (for himself, Mrs. WALORSKI, and Ms. FOXX of North Carolina):

H.R. 8498. A bill to amend title 18, United States Code, to criminalize any abortion or sterilization procedure performed without the informed consent of the person on whom such procedure is performed, and for other purposes; to the Committee on the Judiciary.

By Ms. SPEIER (for herself, Mr. SAN NICOLAS, Mr. SIRES, and Mr. COHEN):

H.R. 8499. A bill to amend the Food and Nutrition Act of 2008 to permit the use of benefits to purchase diapering supplies for small children; to the Committee on Agriculture.

By Mr. TAKANO:

H.R. 8500. A bill to establish an electronic system by which members of the press may file a complaint with the Department of Justice alleging misconduct by Federal, State, and local law enforcement agencies, and for other purposes; to the Committee on the Judiciary.

By Mr. VELA:

H.R. 8501. A bill to establish minimum competency standards for tax return preparers, and for other purposes; to the Committee on Ways and Means.

By Mr. YOHO (for himself, Mr. SOTO, Mr. RUTHERFORD, Mr. DIAZ-BALART, Mr. SPANO, Mr. LAWSON of Florida, Mr. BILIRAKIS, Mr. HASTINGS, Ms. SHALALA, and Ms. FRANKEL):

H.R. 8502. A bill to authorize the Secretary of the Interior to conduct a special resource study of the site formerly known as ''Rosewood'', located in Levy County, Florida, and for other purposes; to the Committee on Natural Resources.

By Ms. SPEIER (for herself, Mr. SCHIFF, Mr. PALLONE, Mr. BILIRAKIS, Mr. SHERMAN, Ms. ESHOO, Mr. CICILLINE, Ms. LOFGREN, Mr. SARBANES, Mr. MCGOVERN, Mr. COSTA, Mr. COOPER, Ms. JUDY CHU of California, Mr. TED LIEU of California, Mrs. TRAHAN, Mr. SUOZZI, Mr. DEUTCH, Mr. LEVIN of Michigan, Mr. CÁRDENAS, Ms. LEE of California, Mr. LANGEVIN, Mrs. NAPOLITANO, Ms. MENG, Mr. COX of California, Mr. ROUDA, Ms. GABBARD, Ms. OMAR, Ms. SCHAKOWSKY, Mr. SMITH of New Jersey, Ms. SÁNCHEZ, Mrs. WATSON COLEMAN, Mr. CISNEROS, Mr. SIRES, Mr. NUNES, Mr. GOTTHEIMER, and Ms. PRESSLEY):

H. Res. 1165. A resolution condemning Azerbaijan's military operation in Nagorno-Karabakh and denouncing Turkish interference in the conflict; to the Committee on Foreign Affairs.

By Mr. COX of California (for himself, Mr. CASE, and Mr. SCOTT of Virginia):

H. Res. 1166. A resolution expressing support for the designation of the month of October 2020, as Filipino American History Month and celebrating the history and culture of Filipino Americans and their immense contributions to the United States; to the Committee on Oversight and Reform.

By Mr. FITZPATRICK (for himself, Mr. EVANS, Ms. WILD, Ms. HOULAHAN, and Ms. DEAN):

H. Res. 1167. A resolution honoring the life of Dr. Frank Erdman Boston as a World War I veteran, military surgeon, community doctor, and founder of the Elm Terrace/Abington Lansdale Hospital and the Volunteer Medical Service Corps (VMSC) ambulance corps; to the Committee on Oversight and Reform.

By Mr. GREEN of Texas (for himself, Mrs. WAGNER, Mr. LARSEN of Washington, Mr. OLSON, Mr. SCOTT of Virginia, Mr. CUELLAR, Mr. FITZPATRICK, Mr. SIRES, Mr. PRICE of North Carolina, Mr. RUSH, Ms. GARCIA of Texas, Mr. BISHOP of Georgia, Mr. CASTEN of Illinois, Mr. MALINOWSKI, Mr. WELCH, Ms. LEE of California, Mr. DANNY K. DAVIS of Illinois, Mrs. LEE of Nevada, Ms. NORTON, Mr. HASTINGS, Ms. TITUS, Mr. O'HALLERAN, and Mr. GRIJALVA):

H. Res. 1168. A resolution supporting the goals and ideals of October as ''National Domestic Violence Awareness Month''; to the Committee on Education and Labor.

By Ms. JOHNSON of Texas (for herself, Mr. GRIJALVA, Mr. LUCAS, Mr. TONKO, Mr. PERLMUTTER, Ms. STEVENS, Mr. LIPINSKI, Mr. COHEN, Ms. WEXTON, Mr. BEYER, Mr. FOSTER, Ms. SHERRILL, Ms. BONAMICI, Mr. CRIST, Mr. CASTEN of Illinois, Mrs. FLETCHER, Ms. LOFGREN, Mr. WEBER of Texas, Mr. WALTZ, Mr. MARSHALL, Mr. POSEY, Mr. ROONEY of Florida, Mr. BAIRD, Mr. MURPHY of North Carolina, Mr. HUFFMAN, Mr. LOWENTHAL, Mr. CASE, Mrs. DINGELL, and Mr. YOUNG):

H. Res. 1169. A resolution recognizing the 50th Anniversary of the National Oceanic and Atmospheric Administration; to the Committee on Natural Resources, and in addition to the Committee on Science, Space, and Technology, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. KRISHNAMOORTHI (for himself, Mr. SHERMAN, Mr. HOLDING, Mr. BERA, Ms. SCHAKOWSKY, Mr. ENGEL, Mr. CONNOLLY, Mr. FITZPATRICK, Mr. COHEN, Mr. KHANNA, Mr. RASKIN, Mr. YOHO, Mr. MCGOVERN, Mr. COX of California, Mr. WILSON of South Carolina, Mr. SAN NICOLAS, Mr. PRICE of North Carolina, Ms. JAYAPAL, and Mr. PALLONE):

H. Res. 1170. A resolution commemorating the life of Mohandas Karamchand Gandhi; to the Committee on Foreign Affairs.

By Ms. MCCOLLUM (for herself and Mr. SMITH of New Jersey):

H. Res. 1171. A resolution recognizing the instrumental role United States global food security programs, particularly the Feed the Future program, have played in reducing global poverty, building resilience and tackling hunger and malnutrition around the world, and calling for continued investment in global food security in the face of the economic impact of COVID-19; to the Committee on Foreign Affairs.

By Ms. MUCARSEL-POWELL (for herself, Ms. SHALALA, Ms. WASSERMAN SCHULTZ, Mr. SIRES, Mr. SOTO, Mr. DEUTCH, Mr. CRIST, Mrs. MURPHY of Florida, Mr. MAST, Mr. HASTINGS, Mr. SHERMAN, Mr. VARGAS, Mr. KIND, Mr. SCHNEIDER, Mr. LAWSON of Florida, Mr. PAYNE, and Ms. WILSON of Florida):

H. Res. 1172. A resolution calling for the release of Cuban political prisoner Silverio Portal Contreras; to the Committee on Foreign Affairs.

By Mr. PHILLIPS (for himself, Mr. REED, Mr. RASKIN, Mr. DEUTCH, Ms. SCHAKOWSKY, Ms. BASS, and Mr. ENGEL):

H. Res. 1173. A resolution honoring the life, legacy, and example of former Israeli Prime Minister Yitzhak Rabin on the 25th anniversary of his death; to the Committee on Foreign Affairs.

By Mr. POCAN (for himself, Mr. BAIRD, Mr. CASE, Mr. KHANNA, Mr. KIND, Mr. SAN NICOLAS, and Mr. WELCH):

H. Res. 1174. A resolution expressing support for the designation of October 2020 as ''National Co-Op Month'' and commending the cooperative business model and the member-owners, businesses, employees, farmers, ranchers, and practitioners that use the cooperative business model to positively impact the economy and society; to the Committee on Energy and Commerce.

PRIVATE BILLS AND RESOLUTIONS

Under clause 3 of rule XII,

Mr. WALDEN introduced a bill (H.R. 8503) to authorize the honorary promotion to corporal of Private First Class Delbert Littrell, United States Marine Corps; which was referred to the Committee on Armed Services.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Ms. BARRAGÁN:

H.R. 8470.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the United States Constitution

By Miss GONZÁLEZ-COLÓN of Puerto Rico:

H.R. 8471.

Congress has the power to enact this legislation pursuant to the following:

The Congress has the power to enact this legislation pursuant to Article I, Section 8, Clauses I and 18 of the U.S. Constitution, which provide as follows:

The Congress shall have Power To lay and collect Taxes, Duties, Imposts and Excises, to pay the Debts and provide for the common Defense and general Welfare of the United States; [. . .]—And

To make all laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

By Mr. COURTNEY:

H.R. 8472.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

By Mr. GONZALEZ of Ohio:

H.R. 8473.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18

To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department of Officer thereof.

By Ms. BASS:

H.R. 8474.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 1 of the United States Constitution, providing—''All legislative Powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.''

By Mr. BERA:

H.R. 8475.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution

By Ms. BLUNT ROCHESTER:

H.R. 8476.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the U.S. Constitution

By Mr. BROOKS of Alabama:

H.R. 8477.

Congress has the power to enact this legislation pursuant to the following:

Article I Section 8 of the Constitution of the United States.

By Mr. BUDD:

H.R. 8478.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the U.S. Constitution.

By Mr. CARTER of Georgia:

H.R. 8479.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

By Mr. CASE:

H.R. 8480.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution

By Mr. COHEN:

H.R. 8481.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 1: All legislative Powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.

Article I, Section 8: To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

Article II, Section 2: the Congress may by Law vest the Appointment of such inferior Officers, as they think proper, in the President alone, in the Courts of Law, or in the Heads of Departments.

By Mr. CRAWFORD:

H.R. 8482.

Congress has the power to enact this legislation pursuant to the following:

Article One

By Mr. CUNNINGHAM:

H.R. 8483.

Congress has the power to enact this legislation pursuant to the following:

Art. 1, Sec. 8, Cl. 1 ''The Congress shall have Power To . . . provide for the common Defense and general Welfare of the United States;''

Art. 1, Sec. 8, Cl. 18 ''To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States or in any Department or Officer thereof'

By Mr. DAVIDSON of Ohio:

H.R. 8484.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8,. Clause 18 of the United States Constitution states that ''Congress shall have the authority to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States, or in any Department or Officer thereof.''

By Mr. FITZPATRICK:

H.R. 8485.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section VIII, Clause I.

By Mr. GALLAGHER:

H.R. 8486.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8

By Mr. KEVIN HERN of Oklahoma:

H.R. 8487.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution

By Mr. HOYER:

H.R. 8488.

Congress has the power to enact this legislation pursuant to the following:

U.S. Constitution, Article I

By Mr. JOHNSON of South Dakota:

H.R. 8489.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3

By Mr. KATKO:

H.R. 8490.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the U.S. Constitution.

By Mr. PERRY:

H.R. 8491.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section VIII

By Mr. PRICE of North Carolina:

H.R. 8492.

Congress has the power to enact this legislation pursuant to the following:

Article II, Section 1, Clause 3 states: ''The Congress may determine the Time of chusing the Electors, and the Day on which they shall give their Votes; which Day shall be the same throughout the United States.''

By Mr. RYAN:

H.R. 8493.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8: To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this Constitution in the government of the United States, or in any department or officer thereof.

By Mr. SCHNEIDER:

H.R. 8494.

Congress has the power to enact this legislation pursuant to the following:

Article I

By Mr. SHERMAN:

H.R. 8495.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution.

By Ms. SHERRILL:

H.R. 8496.

Congress has the power to enact this legislation pursuant to the following:

Clause 18 of Section 8 of Article 1 of the Constitution of the United States of America.

By Mr. SMITH of Missouri:

H.R. 8497.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the U.S. Constitution

By Mr. SMITH of New Jersey:

H.R. 8498.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this bill is based is Congress's power under the Commerce Clause in Article I, Section 8 of the Constitution and under the Constitution's grants of power to Congress under the Equal Protection, Due Process, and Enforcement Clauses of the Fourteenth Amendment.

By Ms. SPEIER:

H.R. 8499.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article 1, Section 8 of the United States Constitution.

By Mr. TAKANO:

H.R. 8500.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8.

By Mr. VELA:

H.R. 8501.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 18: The Congress shall have Power To make all Laws which shall be necessary and proper for carrying into Execution the forgoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.

By Mr. YOHO:

H.R. 8502.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8 Clause 17

By Mr. WALDEN:

H.R. 8503.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to Article I, Section 8, Clause 18 of the United States Constitution.

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 38: Mr. JACOBS.

H.R. 692: Mr. SMITH of Missouri.

H.R. 1042: Ms. DAVIDS of Kansas.

H.R. 1074: Ms. PINGREE.

H.R. 1175: Mr. LUCAS and Mr. HIMES.

H.R. 1224: Ms. KENDRA S. HORN of Oklahoma.

H.R. 1597: Mr. GROTHMAN, Ms. SHALALA, Mr. TIMMONS, Mr. FERGUSON, Mr. PETERSON, and Ms. SLOTKIN.

H.R. 1814: Mr. SMITH of Missouri.

H.R. 1884: Mr. AGUILAR.

H.R. 1954: Mr. BYRNE.

H.R. 2235: Mr. EVANS.

H.R. 2442: Mr. SOTO, Mr. SCHNEIDER, and Mr. BEYER.

H.R. 2746: Mr. CARTWRIGHT and Mr. PANETTA.

H.R. 2842: Mr. SUOZZI.

H.R. 2859: Mr. CLINE.

H.R. 2914: Mr. MCNERNEY.

H.R. 3104: Mr. PASCRELL, Mr. SOTO, and Mr. FOSTER.

H.R. 3208: Mrs. MURPHY of Florida, Ms. JAYAPAL, and Mr. LYNCH.

H.R. 3235: Ms. FINKENAUER.

H.R. 3453: Mr. O'HALLERAN and Mr. GARAMENDI.

H.R. 3580: Mr. KELLER.

H.R. 3654: Ms. FINKENAUER.

H.R. 3711: Ms. DEAN.

H.R. 3796: Mr. KELLER.

H.R. 3884: Mr. TAKANO.

H.R. 3975: Mr. EVANS.

H.R. 4000: Mr. BLUMENAUER.

H.R. 4150: Mr. FLEISCHMANN and Mr. MOONEY of West Virginia.

H.R. 4507: Mr. SHERMAN.

H.R. 4540: Ms. SPANBERGER and Mrs. LURIA.

H.R. 4605: Mr. SERRANO.

H.R. 4681: Ms. DELAURO and Mr. KUSTOFF of Tennessee.

H.R. 4924: Mr. CÁRDENAS and Ms. WATERS.

H.R. 5046: Mr. ROGERS of Kentucky.

H.R. 5091: Mr. CLEAVER and Ms. BARRAGÁN.

H.R. 5359: Mr. GOTTHEIMER.

H.R. 5516: Mr. HAGEDORN and Mr. PETERS.

H.R. 5534: Mr. BURCHETT, Mr. PRICE of North Carolina, Mr. BOST, Mr. KIM, Mr. BRINDISI, Mr. YARMUTH, Mr. NADLER, Ms. KAPTUR, Mr. LEVIN of Michigan, and Ms. KENDRA S. HORN of Oklahoma.

H.R. 5603: Mr. GOSAR.

H.R. 5605: Mr. MEUSER.

H.R. 5867: Mr. BALDERSON.

H.R. 6128: Mr. FLORES.

H.R. 6197: Mr. AGUILAR.

H.R. 6285: Mr. GOHMERT.

H.R. 6427: Mr. GROTHMAN.

H.R. 6654: Mr. LOEBSACK.

H.R. 6666: Mr. GREEN of Texas.

H.R. 6718: Ms. LOFGREN.

H.R. 6745: Ms. WILD, Mr. LYNCH, Mr. HECK, Mr. SMITH of Washington, Mr. GOMEZ, Mr. ESPAILLAT, and Mr. TONKO.

H.R. 6821: Mr. BILIRAKIS, Mr. GOODEN, Mr. MEUSER, and Mr. YOHO.

H.R. 6829: Mr. MEUSER and Mr. JOHNSON of Ohio.

H.R. 6841: Mr. CUELLAR.

H.R. 6930: Mr. RICE of South Carolina.

H.R. 6940: Mr. JOYCE of Pennsylvania.

H.R. 6958: Mr. ROSE of New York, Ms. MCCOLLUM, Ms. DELAURO, Ms. PORTER, Mrs. DEMINGS, Mr. CISNEROS, Ms. SHALALA, Ms. MATSUI, Mr. BLUMENAUER, Mr. EVANS, and Ms. HAALAND.

H.R. 6978: Ms. SPANBERGER.
H.R. 6984: Ms. SPEIER.
H.R. 6986: Ms. TITUS.
H.R. 7015: Mr. DELGADO, Mrs. NAPOLITANO, and Mr. GARAMENDI.
H.R. 7057: Mr. LUJÁN, Mr. POSEY, Ms. FRANKEL, Mr. STANTON, Mr. AMODEI, Mr. RODNEY DAVIS of Illinois, Mrs. WATSON COLEMAN, Mr. O'HALLERAN, Mr. COX of California, Ms. Craig, and Ms. WILSON of Florida.
H.R. 7059: Mr. TAYLOR, Mr. SMUCKER, Mr. BACON, Mr. MURPHY of North Carolina, Mr. BUDD, Mr. POSEY, Mr. VAN DREW, Miss GONZÁLEZ-COLÓN of Puerto Rico, Mr. MULLIN, Mr. JACOBS, Mr. FERGUSON, Mr. MOONEY of West Virginia, Mr. BURGESS, and Mr. LOUDERMILK.
H.R. 7071: Mr. MCCAUL, Mr. JOYCE of Ohio, Mr. SUOZZI, Ms. CLARKE of New York, Mr. KRISHNAMOORTHI, Mr. ROSE of New York, Mr. BISHOP of Georgia, Mr. MAST, Mr. SMITH of Nebraska, Mr. WATKINS, Mr. ZELDIN, Mr. AUSTIN SCOTT of Georgia, and Mr. EVANS.
H.R. 7072: Mr. JOYCE of Ohio.
H.R. 7114: Mr. GOTTHEIMER.
H.R. 7197: Mr. KATKO, Mr. MEEKS, Mr. SERRANO, and Mr. POCAN.
H.R. 7217: Mr. SHERMAN.
H.R. 7443: Mr. NEGUSE, Ms. KELLY of Illinois, Mr. AMODEI, and Ms. HAALAND.
H.R. 7481: Mr. DEUTCH, Ms. SEWELL of Alabama, Mrs. TORRES of California, Mr. SUOZZI, Ms. MATSUI, Ms. FINKENAUER, and Mr. STIVERS.
H.R. 7535: Mr. CUELLAR.
H.R. 7577: Mr. THOMPSON of California.
H.R. 7640: Mr. KHANNA.
H.R. 7642: Mrs. MURPHY of Florida, Mr. KEVIN HERN of Oklahoma, Mr. TAYLOR, Mr. BERA, Mr. SCOTT of Virginia, Mrs. MCBATH, Mr. JOYCE of Pennsylvania, Mr. HILL of Arkansas, Mr. SCHNEIDER, Mr. JACOBS, and Mrs. HARTZLER.
H.R. 7673: Mr. DEUTCH, Mr. GONZALEZ of Texas, and Ms. HOULAHAN.
H.R. 7688: Mr. LUETKEMEYER.
H.R. 7772: Mr. PASCRELL.
H.R. 7806: Mr. CASTEN of Illinois, Mr. DEFAZIO, and Mr. PRICE of North Carolina.
H.R. 7809: Mr. KRISHNAMOORTHI, Mr. LAHOOD, Mr. BERA, and Mr. QUIGLEY.
H.R. 7822: Ms. HAALAND and Ms. NORTON.
H.R. 7859: Mr. AGUILAR.
H.R. 7863: Mr. TRONE.
H.R. 7876: Mr. CÁRDENAS, Ms. BLUNT ROCHESTER, Mr. CROW, Mr. PALLONE, Mr. HECK, Ms. JUDY CHU of California, Mr. COHEN, Mr. POCAN, Mr. COOPER, Ms. BROWNLEY of California, and Mr. VARGAS.
H.R. 7894: Mr. PHILLIPS.
H.R. 7927: Mrs. WAGNER.
H.R. 7947: Ms. DAVIDS of Kansas and Mr. SMITH of Missouri.
H.R. 7950: Mr. SIRES.
H.R. 7965: Mr. DANNY K. DAVIS of Illinois and Mr. LAHOOD.
H.R. 7970: Mr. PETERS and Mr. COSTA.
H.R. 8016: Mr. CÁRDENAS.
H.R. 8017: Mrs. HAYES and Ms. KAPTUR.
H.R. 8058: Mr. GAETZ, Mr. STEWART, and Mr. ROGERS of Alabama.
H.R. 8075: Mrs. HARTZLER.
H.R. 8081: Mr. HASTINGS.
H.R. 8094: Mr. STANTON.
H.R. 8113: Mr. GARCÍA of Illinois, Ms. KELLY of Illinois, Mr. CONNOLLY, Ms. CLARKE of New York, Mr. BROWN of Maryland, Ms. WATERS, Mr. LEVIN of Michigan, Ms. ESCOBAR, Ms. JOHNSON of Texas, Mr. VEASEY, Ms. MATSUI, Ms. GARCIA of Texas, Mr. SEAN PATRICK MALONEY of New York, and Ms. LEE of California.
H.R. 8141: Mr. DESAULNIER and Mr. AGUILAR.
H.R. 8150: Ms. KAPTUR.
H.R. 8179: Mr. COMER, Mr. ROGERS of Alabama, Mr. BLUMENAUER, and Mr. PETERSON.
H.R. 8181: Ms. PORTER and Mr. THOMPSON of California.
H.R. 8186: Mr. PANETTA, Mr. AUSTIN SCOTT of Georgia, and Mr. HUDSON.
H.R. 8192: Mr. BUTTERFIELD, Ms. JAYAPAL, and Mr. WELCH.
H.R. 8236: Mr. BARR, Mr. SMITH of Nebraska, Mr. AMODEI, and Mr. KELLY of Pennsylvania.
H.R. 8250: Mr. CÁRDENAS, Mr. JOHNSON of South Dakota, Ms. UNDERWOOD, Mr. PRICE of North Carolina, Ms. TORRES SMALL of New Mexico, Mr. PANETTA, Mrs. DINGELL, Mrs. LEE of Nevada, Mr. ROUDA, and Mr. TRONE.
H.R. 8254: Ms. BONAMICI, Mr. ESPAILLAT, Mr. BARR, Mr. PALAZZO, and Ms. FRANKEL.
H.R. 8259: Mr. SIRES, Mr. SHERMAN, and Ms. TITUS.
H.R. 8270: Mr. MOOLENAAR, Ms. DAVIDS of Kansas, Mr. GARCÍA of California, Mr. NEGUSE, Ms. WEXTON, Mr. ROUDA, and Mr. BERA.
H.R. 8280: Mr. STEIL.
H.R. 8285: Mr. CLINE, Mr. DAVIDSON of Ohio, and Mr. BURGESS.
H.R. 8305: Mr. GOLDEN.
H.R. 8313: Mr. EVANS and Mr. ESPAILLAT.
H.R. 8345: Mr. BISHOP of Georgia, Mr. CASTRO of Texas, Mr. JACOBS, Ms. LEE of California, Mr. LOWENTHAL, Mr. PANETTA, Ms. SÁNCHEZ, Ms. WATERS, Mr. WRIGHT, and Mr. ZELDIN.
H.R. 8351: Mr. CÁRDENAS and Mrs. HAYES.
H.R. 8353: Mr. WENSTRUP and Mr. MAST.
H.R. 8367: Mr. MCGOVERN and Mr. MCADAMS.
H.R. 8368: Mr. KUSTOFF of Tennessee.
H.R. 8401: Ms. JAYAPAL.
H.R. 8409: Mr. SIRES.
H.R. 8422: Mrs. HAYES.
H.R. 8428: Ms. PORTER, Mr. MCGOVERN, and Mr. RUSH.
H.R. 8436: Mr. HASTINGS.
H.R. 8453: Ms. JOHNSON of Texas.
H.R. 8465: Mr. LYNCH and Mr. GARAMENDI.
H. Con. Res. 10: Mr. JOHN W. ROSE of Tennessee.
H. Con. Res. 27: Mr. DAVID SCOTT of Georgia.
H. Con. Res. 28: Mr. LIPINSKI.
H. Con. Res. 116: Mr. CASE.
H. Res. 467: Mr. MCGOVERN.
H. Res. 751: Mr. SIRES, Mr. GARAMENDI, and Mr. DEUTCH.
H. Res. 768: Mr. SIRES, Mr. DEUTCH, and Mr. PHILLIPS.
H. Res. 989: Mr. YARMUTH.
H. Res. 1077: Mr. RESCHENTHALER, Mr. CRIST, Mr. YOHO, Mr. BILIRAKIS, Mr. RODNEY DAVIS of Illinois, and Mr. LARSEN of Washington.
H. Res. 1100: Mr. SMITH of Nebraska.
H. Res. 1115: Mr. SHERMAN.
H. Res. 1121: Mr. DEUTCH and Mr. MAST.
H. Res. 1140: Mr. LUJÁN and Mr. SIMPSON.
H. Res. 1143: Mr. SCHIFF.
H. Res. 1145: Mr. CHABOT and Mr. KEATING.
H. Res. 1156: Mr. HICE of Georgia and Mr. BROOKS of Alabama.

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Senate

The Senate met at 12 noon and was called to order by the President pro tempore (Mr. GRASSLEY).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Eternal God, our heavenly Father, we cry to You, but sometimes You seem so far away. In our despair, You sometimes seem distant, and we are tempted to surmise that we are all alone.

When we shout, we seem to hear the echoes of our anguish. Nonetheless, we know that You are holy, mighty, and good. We have trusted You too long to let go.

Empower our Senators for these challenging times. Remove from their minds all bitterness and contempt for one another. Keep their hearts clean, their spirits courageous, and their minds clear as they face these daunting times.

We pray in Your omnipotent Name. Amen.

PLEDGE OF ALLEGIANCE

The President pro tempore led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

RESERVATION OF LEADER TIME

The PRESIDING OFFICER (Mrs. FISCHER). Under the previous order, the leadership time is reserved.

The President pro tempore.

Mr. GRASSLEY. Madam President, I ask unanimous consent to speak for 1 minute in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

ELECTION SECURITY

Mr. GRASSLEY. Madam President, President Trump was rightly criticized for dodging a question about the peaceful transfer of power. Instead, Trump criticized mail-in ballots and rejected the premise that he will lose.

No, that doesn't mean that he is planning some sort of coup, but it is important for any President to choose their words very carefully.

The same is true for partisans on the other side whipping up fear that our democracy is in jeopardy or that the ballots will not be counted. Even worse is the rhetoric setting the stage to delegitimize any future Trump victory.

We now hear full-blown conspiracy theories. Let me mention a few. A group of Biden supporters conducted a war game speculating that the President will not leave office without a Biden landslide, questioning what the military would do.

The Chairman of the Joint Chiefs of Staff stepped in with a simple civics lesson. The U.S. military has no role in the elections, he said.

Democrats have doubled down on this debunked theory that the Postal Service is plotting with Trump to disrupt the election mail. The Postal Service does not answer to the President of the United States. It has plenty of capacity to deliver election mail. Plus, the Federal Government doesn't run elections; the 50 States run those elections.

A key goal of Russian ''active measures,'' dating back to the Cold War, has been to get Americans to doubt their government, its leaders, and democratic institutions. Let's not do Russia's dirty work for them. No American should be questioning our free and fair elections.

Now to my State of Iowa. Our people who have requested absentee ballots will have ballots mailed to them starting on October 5. Remember to fill it out completely, including your driver's license or voter PIN number, and mail them to your county auditor well before election day but not later than the day before.

Your ballot can be tracked on the secretary of state's website. Check out where your ballot is.

I have great faith in Iowa's election officials and our postal workers. Iowans who vote in person or absentee can be assured that your vote will count—the same as any election.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

RECOGNITION OF THE MAJORITY LEADER

The PRESIDING OFFICER. The majority leader is recognized.

NOMINATION OF AMY CONEY BARRETT

Mr. MCCONNELL. Madam President, at this time last week, the Nation did not know whom President Trump would be nominating to the Supreme Court, but, amazingly, we did know what kinds of false attacks the far left would deploy against whoever it was.

Democrats and special interests have been telling the country for 45 years—45 years—that every Supreme Court vacancy under a Republican President was going to bring about the apocalypse. John Paul Stevens, they said, was anti-woman. David Souter, they said, wanted to hurt vulnerable people. John Roberts was out to get health insurance.

And wouldn't you know, the President had barely finished saying Judge Amy Coney Barrett's name before the same old attacks began rolling in. Our 77-year-old male former Vice President and our 69-year-old male Senate Democratic leader have tried to inform

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

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American women that this 48-year-old working mom wants to roll back her own rights as a woman—roll back her own rights as a woman.

Democrats have tried to fearmonger around a 4-year-old academic paper that reinforced one unfair penalty in ObamaCare, which Congress, by the way, already eliminated 3 years ago.

As an aside, if the American people are interested in which Senators are serious about protecting Americans with preexisting conditions, they can simply look up the vote Senators took last night—just last night. Every single Democrat voted against legislation from Senator TILLIS that would have cemented protections for these vulnerable Americans.

Democrats voted to block protections for preexisting conditions just like they voted to block hundreds of billions of dollars for coronavirus relief and just like they voted to block police reform—and a thousand other things they tell Americans they support but vote against to block bipartisan progress.

So here is another one of the made-up attacks: Democrats are demanding that Judge Barrett commit in advance—in advance—to recuse herself from entire categories of cases for no reason. This is another totally invented standard. Nobody has ever suggested that Supreme Court Justices should categorically sit on the sidelines until the President who nominated them has left office. What an absurd suggestion.

Justices Ginsburg and Breyer were confirmed during President Clinton's very first term. Justices Sotomayor and Kagan were confirmed during President Obama's first term. All four of these Justices went on to participate in election-related proceedings while the President who had nominated them was on the ballot.

Justices Breyer and Ginsburg participated actively in Clinton v. Jones and other matters connected to President Clinton's eventual impeachment. In fact, they urged and attempted to get the Supreme Court even more involved.

This is a sideshow—a sideshow. If Judge Barrett is confirmed, she will swear an oath. She will have a lifetime appointment. Nobody seriously is suggesting she lacks any bit of the integrity which everyone trusted Justice Ginsburg, Justice Breyer, Justice Sotomayor, Justice Kagan, and countless others to exercise. In fact, her integrity and independence are precisely what Judge Barrett's peers across the political spectrum go out of their way to applaud.

Judge Barrett has no obligation to make any of the bizarre—bizarre—prejudgments that our Democratic colleagues are demanding. Like I said, much of the script has been entirely predictable.

I will tell you one thing I did not predict. I honestly did not expect the Democratic leader to come to the Senate floor and say that concerns about anti-religious discrimination are ''manufactured hysterics.'' I didn't expect that.

I do not expect we will hear the leader of the Democratic conference stand on the Senate floor and say that America's freedom of religion is ''an imaginary issue.''

The Democratic leader claimed indignantly that his fellow Democrats would never—never—make an issue out of a nominee's personal religious beliefs. He took great offense that such a thing would even be suggested.

But the whole country knows that, 3 years ago, when the Judiciary Committee was considering this very nominee—this one—for her current position, Senate Democrats did precisely that, exactly that. The senior Senator from California literally implied in front of the entire country that Judge Barrett was too Catholic—too Catholic—to be a judge. Here was the quote: ''The dogma lives loudly within you,'' she said. ''And that's of concern.''

The senior Senator from Illinois asked Judge Barrett in the official record—listen to this—''Do you consider yourself an 'orthodox Catholic?' ''

The junior Senator from Hawaii felt compelled to tell the nominee—listen to this—''You would be a Catholic judge.'' ''You would be a Catholic judge.''

No one imagined these exchanges, but they happened on video before the entire Nation. Multiple sitting Senators fretted in an open hearing that Judge Barrett's religious views created doubts about her fitness to serve.

Outside the Senate, it was not imaginary when one faith group in which Judge Barrett and her family participate reportedly came under cyber attack a few days ago. Their membership directory was reportedly hacked, just as Judge Barrett emerged as a frontrunner.

Nobody had to imagine the ominous articles from AP, Reuters, the Washington Post, and POLITICO, all implying there was something questionable—questionable—or problematic about Judge Barrett's faith practices.

Nobody had to imagine POLITICO sending a contributing editor to snoop around the church buildings and report what a youth group had written on their whiteboard.

So, no, Americans don't have to imagine this elite disdain. All they have to do is read it.

It is not just this one nominee. Nobody imagined it when the junior Senator from Vermont accused a different nominee of hatred and Islamophobia because he had previously expressed a personal view that Christianity gets things right, which Islam gets wrong.

It is not imaginary when the junior Senator from California cast aspersions on yet another nominee for—listen to this—belonging to the Knights of Columbus. And another Democrat implied he should quit this mainstream Catholic group if he wanted to hold public office. Quit the Knights of Columbus if you want to hold public office? In America?

The Democratic leader says these are manufactured hysterics. He says people who call this out are hysterical. Frankly, it would be better for our country if that were true, but that is not the case.

Just yesterday, 24 hours after the Democratic leader swore that Democrats would not make this an issue, the junior Senator from Hawaii tried to say Judge Barrett's faith is ''irrelevant'' but immediately proceeded to question ''whether her closely held views can be separated from her ability to make objective, fair decisions.'' No one—no one—should be deceived by these thinly veiled euphemisms.

This is the exact form that religious discrimination had taken in America for decades—for decades—especially when it comes to public service.

We do not often hear people say they simply dislike a particular religion altogether. Thank goodness we are mostly past that kind of bigotry. No, going all the way back to Jack Kennedy, the more common accusation has been something a little more subtle—that people of deep faith or certain faiths are incapable of being fair or objective; that they are incapable of doing certain jobs well; that such Americans are torn between divided loyalties and not to be trusted.

Here is what the left is trying to say: Oh, we have no problems—no problems—with Judge Barrett's faith in an abstract sense. We just think it disqualifies her from this promotion.

Madam President, that is the definition of discrimination.

About a century ago, openly anti-Catholic political cartoons pictured the Pope or the Catholic Church as an octopus wrapping its tentacles around the institutions of American Government. Thankfully those displays are long gone, but the core attitude clearly is not.

Americans of faith are not imagining the increasingly hostile climate that the political left and the media have spent literally years sowing. And, no, there is no free pass, as some commentators have suggested, because many prominent liberal voices or prominent Democrats themselves identify as Catholic. You don't get a free pass just by calling yourself a Catholic.

More than one-fifth of our country belongs to the same church as Judge Barrett—one-fifth of our country. Tens and tens of millions of Americans—all of them—like all Americans, must be free to live their faiths in diverse and different ways without being barred—without being barred—from public service. These kinds of aspersions do not become any more acceptable if the call is coming from inside the house.

Sadly, none of these problems are imaginary. The American people's concerns are not manufactured.

The Little Sisters of the Poor did not wake up thinking it would be good fun if the Obama-Biden administration tried to force them to violate their own

consciences. These nuns did not manufacture their lengthy legal battle for the fun of it. It was the secularizing left that went on offense.

Churches all across America did not go looking for one of this cycle's Democratic Presidential contenders to suggest places of workshop should lose their tax exempt status if they preach or practice traditional teaching. It was the secularizing left that went on offense.

If parts of the elite American left have become this out of touch with mainstream religious beliefs held by millions and millions of their fellow citizens, it will take more than victim blaming to dig out of it. They could start this week. They could start today.

They could commit to evaluating Judge Barrett on her credentials and her qualifications, and they could stop gawking at deeply religious Americans like they have encountered extraterrestrial life or bought a ticket for a safari.

MEASURES PLACED ON THE CALENDAR—S. 4773, S. 4774, S. 4775

Mr. MCCONNELL. Madam President, I understand there are three bills at the desk due for a second reading, en bloc.

The PRESIDING OFFICER. The leader is correct.

The clerk will read the bills by title for the second time.

The senior assistant legislative clerk read as follows:

A bill (S. 4773) to establish the Paycheck Protection Program Second Draw Loan, and for other purposes.

A bill (S. 4774) to provide support for air carrier workers, and for other purposes.

A bill (S. 4775) to provide continued emergency assistance, educational support, and health care response for individuals, families, and businesses affected by the 2020 coronavirus pandemic.

Mr. MCCONNELL. In order to place the bills on the calendar under the provisions of rule XIV, I would object to further proceedings, en bloc.

The PRESIDING OFFICER. Objection being heard, the measures will be placed on the calendar, en bloc.

PROTECT ACT—MOTION TO PROCEED

Mr. MCCONNELL. Madam President, I move to proceed to Calendar No. 554, S. 4675.

The PRESIDING OFFICER. The clerk will report the motion to proceed.

The senior assistant legislative clerk read as follows:

Motion to proceed to S. 4675, a bill to amend the Health Insurance Portability and Accountability Act.

The PRESIDING OFFICER. The assistant Democratic leader.

UNANIMOUS CONSENT REQUEST—H.R. 5602

Mr. DURBIN. Madam President, I come to the floor today to speak to one of the most significant issues facing the security of our Nation. It is a question of domestic terrorism, specifically the threat of violent White supremacists.

In Tuesday's Presidential debate, moderator Chris Wallace asked President Trump to condemn White supremacists and rightwing militia. President Trump refused. Instead, he replied—and I quote—''Proud Boys, stand back and stand by.''

The Proud Boys, a far-right group that promotes and engages in violence, viewed President Trump's words as a call to action. The group's leader Joe Biggs said he took the President's words as a directive to ''[F] . . . them up.''

I was appalled, but not surprised, by the President's words. He has a long history of inflammatory, racist remarks. Now, President Trump claims that violence is a ''left-wing problem, not a right-wing problem''—his words.

Let me be clear. I join Vice President Biden in condemning all violence, but we know that White supremacists pose a great threat. An unclassified May 2017 FBI-DHS joint intelligence bulletin found that ''white supremacist extremism poses [a] persistent threat of lethal violence.'' This was a finding by the lead law enforcement agencies of the Trump administration. They went on to say that White supremacists were responsible for more homicides from 2000 to 2016 than any other domestic extremist movement. The director of the FBI, Christopher Wray, in response to a question I posed in the Senate Judiciary Committee last year, said that the majority of domestic terrorism arrests involved White supremacists.

Now, for years, I have urged the Trump administration to respond to the ongoing threat of violent White supremacists and other far-rightwing extremists. Instead, they have repeatedly downplayed this very lethal and real threat.

Attorney General Barr has never responded to the multiple letters I have sent, asking what the Department of Justice was doing to combat White supremacist violence.

Unfortunately, as we have learned from former Trump administration officials themselves, the Trump administration has downplayed the threat of violent White supremacists. POLITICO recently reported that a draft homeland threat assessment report from DHS was edited to weaken language on the threat posed by violent White supremacists. And a DHS whistleblower alleged that DHS officials, including Ken Cuccinelli, requested the modification of the report to make the threat of White supremacists ''appear less severe'' and add information on violent leftwing groups.

It is not enough to just stand here and condemn the President's remarks at the infamous debate. The American people sent us to Congress to act. There is something we can do now. There is something that we can do that will show we are prepared to respond to this threat to law and order, to this threat of violent White supremacists.

I am the lead sponsor of the Domestic Terrorism Prevention Act, bipartisan legislation that would address the threat of violent White supremacists and other domestic terrorists.

Our bill would establish offices to combat domestic terrorism at the Department of Justice, the FBI, and the Department of Homeland Security. It would require these offices to regularly assess the domestic terrorism threat and focus their limited resources on the most significant threats. Critically, they would provide training resources to assist State, local, and Tribal law enforcement in addressing the domestic terrorism threat. The House companion to my bill was introduced by my colleague and friend Congressman BRAD SCHNEIDER of Illinois.

Just last week, the House of Representatives passed our bill on a unanimous voice vote. The Senate should pass it today.

In a few moments, staff will provide me with the language to ask for a unanimous consent. I am waiting so there is an opportunity for both sides to discuss the procedure moving forward. In the meantime, several of my colleagues have asked to come to the floor and address the issue. I would yield to them for comment or question, through the Chair, with the hopes that when the procedural language arrives, I might be able to make the unanimous consent request.

The PRESIDING OFFICER. The Senator from Connecticut.

Mr. BLUMENTHAL. Madam President, we are here today on probably one of the most serious national security issues that we will confront. I say that as a member of the Armed Services Committee, having received a variety of classified briefings on threats to this country. Some of them regarding ongoing foreign interference in our election are truly chilling. But the threat to our national security from White supremacists, now operating so openly that the Director of the FBI has said they are one of the paramount threats and an ongoing security threat to our Nation, demands that there should be action now.

The bill that my colleague Senator DURBIN is offering passed unanimously by the House of Representatives within recent days. Let me repeat. It passed unanimously by the House of Representatives. It reflects the real and urgent danger of this threat.

The President has refused to denounce White supremacists. The President has told one of the most prominent of those groups to stand by. That failure—an abject failure on the part of the Commander in Chief—to respond to an ongoing security threat demands this action now. We must stand up for the integrity of our elections, the security of our Nation, and the fundamental freedoms that we prize as American people.

We will not allow this cancer to metastasize in this country and thwart the will of Americans who are going to the polls, in effect, right now. The ballots are being cast. The threat to our electoral will is ongoing.

I am proud to join my colleagues who are here on the floor who represent an ideological spectrum, as did the House of Representatives in unanimously approving this bill. The paramount threat to our Nation and the integrity of our elections is White supremacy, violent extremism, and nationalism that potentially jeopardize the very pillars of our democracy.

I yield the floor.

Mr. DURBIN. The Senator from Virginia.

The PRESIDING OFFICER. The Senator from Virginia.

Mr. KAINE. Madam President, I rise to support the efforts of my colleagues to bring the unanimous House bill establishing legal procedures for dealing with White supremacy to the floor of the Senate. I do so in honor of four Virginians.

In August of 2017, a group called Unite the Right held a White supremacist rally in Charlottesville, VA. They started on a Friday evening, when Jewish residents of Charlottesville were gathering in synagogues and when students were coming to the University of Virginia to start their academic careers. They rampaged through the campus and community chanting slogans from Nazi rallies like ''Jews will not replace us'' or ''Blood and soil.''

As if that were not terrorizing enough, on the next day, they escalated physical attacks against many. Heather Heyer was a Charlottesville resident and paralegal with an amazing background and story who was peacefully protesting that day, and a White supremacist from another State revved his car up, hit her and killed her.

DeAndre Harris was a special education instructional aide in Charlottesville, and he was set upon by a number of White supremacists and beaten severely with objects.

There were two Virginia State Troopers, Jay Cullen and Berke Bates, both of whom I knew. Jay Cullen often flew me in a helicopter when I was Governor, and I met Berke Bates, the trooper, because he was part of Governor McCullough's security detail. They were called out on that day, which would have been a day off. They were called out on that day because they needed to provide extra security as this White supremacist rally ran amuck in Charlottesville. On that day, both of them lost their lives as their helicopter malfunctioned.

I stand on the floor of the Senate thinking of these four Virginians—two of whom I knew, three of whom lost their lives, and one who was injured severely in this Unite the Right rally—to say that it is time we have laws in this country that would enable us to appropriately deal with the chief source of domestic terrorism. For that, I thank my colleague.

I yield the floor.

The PRESIDING OFFICER. The Senator from Alabama.

Mr. JONES. Thank you, Senator DURBIN for this bill. Thank you for the colleagues who are on here.

I was struck when Senator KAINE rose in honor of those who died in Virginia. The list goes on and on. You can go to Emmett Till. You can go to the four girls, Addie Mae Collins, Carole Robertson, Denise McNair, and Cynthia Wesley. You can go to those who lost their lives in a church in Charleston, SC. The thing that connects them all is not just that they died because of the color of their skin, not just because of the White supremacists who were trying to change the political dynamic in this country. It is an unbroken stream that goes back decades and generations. It goes back to the time of the great original sin of slavery, when White supremacy tried to dominate this country, and it goes back to a string of unbroken deaths that are occurring even as we speak.

Hate crimes across this country have proliferated, whether it is not just White on Black or it is the Tree of Life synagogue. It is so many things that we have to stop.

The interesting thing to me of what happened this week is that the day after the Presidential debates when the President of the United States refused to condemn White supremacy, the Governor of the State of Alabama, my friend Kay Ivey—Republican Governor of the State of Alabama—apologized to the victims of the 16th Street Baptist Church bombing that occurred 57 years ago. It was an implicit acknowledgement that words matter, that statements of public officials have an effect on people. They give a green light to violence, often even unintended.

This bill Senator DURBIN has proposed that passed, as Senator BLUMENTHAL and others said, unanimously is a statement that we cannot allow this to continue. It is a statement that we will—as law enforcement, as citizens, as people in a free country—we will put an end to this kind of rhetoric and this kind of hate.

Folks, we cannot let this moment pass in this body. The House passed this bill unanimously and so should the U.S. Senate. We should make a stand with our colleagues in the House—Republican and Democrat—that this is an important statement right now because what is unsaid so much right now is that we see this playing out in this country. We see it playing out in the streets. And we can talk about it from the right or the left, and we can talk about it from Republicans or Democrats, but the fact is, we need to be talking about it in terms of people and victims—innocent victims. That is what this bill is about—protecting the lives of all Americans, regardless of the color of their skin, regardless of their religion, regardless of their political persuasion. This bill will do that.

Give the FBI the tools necessary. Give the statement from the U.S. Senate that we will not stand for this. Support this bill.

I yield the floor.

The PRESIDING OFFICER. The Senator from New Jersey.

Mr. BOOKER. I am really grateful, Madam President.

It has been said, and it is quite true, that the only thing necessary for evil to be triumphant is for good people to do nothing.

Here we are at a time where we know our history. Since 9/11, the greatest terrorism we have seen in our country, actions from a church in South Carolina to a synagogue in Pittsburgh, to a Walmart in El Paso, time and time again, the violence that we have seen and the greatest terrorist activities since 9/11 have been domestic terrorism—rightwing extremists, the majority of them White supremacists.

The warnings we are now getting from our intelligence officials, according to one Judiciary hearing from the Department of Homeland Security, are that the most significant threat right now to the security of our country is White supremacy and violent White supremacy.

The FBI has given a number of warnings. We now are heading toward an election where we are seeing signs of increased activity, increased hate, increased focus. This body—this good body, friends on both sides of the aisle—this is not a time where we can do nothing. We must act. We must take measures and steps to end this kind of violent scourge in our country.

Obviously, this will not accomplish everything. But in a time like this, we must do something. I join my colleagues in support of this legislation. I want to, again, affirm the fact, quite encouraging, that it passed in a bipartisan manner in the U.S. House of Representatives. That is so encouraging. We should do the same here.

The PRESIDING OFFICER. The assistant Democratic leader.

ADDITIONAL COSPONSOR

Mr. DURBIN. Madam President, I ask unanimous consent that Senator MANCHIN's name be added as a cosponsor to S. 3190.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. DURBIN. Madam President, we are asking for unanimous consent to pass a bill that has passed the House of Representatives unanimously by a voice vote—unanimously—to empower and direct the law enforcement agencies of the United States to use their talents and resources to stop domestic terrorism, to stop the killing. We are identifying, in the course of it, the White supremacy and far-right extremism as one of the sources.

Listen to what a Trump administration Department of Justice official wrote last year in the New York Times:

White supremacy and far-right extremism are among the greatest domestic-security threats facing the United States. Regrettably, over the past 25 years, law enforcement at the Federal and State levels have been slow to respond.

Killings committed by individuals in groups associated with far-right extremist groups have risen significantly. We are not manufacturing a crisis. The Trump administration Department of Justice official concurs with our actions that they are needed.

How did I get involved in this? It goes back to 2012. As chairman of a Senate Judiciary subcommittee, I held a hearing on the threat of violent rightwing extremism after a White supremacist murdered six worshippers at a Sikh gurdwara in Oak Creek, WI. Officials from the Department of Justice, Homeland Security, and FBI—even at that time—testified about the threat posed by violent domestic extremists.

When President Trump was asked and challenged to condemn this violence, he refused.

The question is whether the U.S. Senate, now given the same opportunity, will stand as the House of Representatives has on a unanimous, bipartisan basis to say ''enough'' when it comes to domestic terrorism inspired by White supremacy and rightwing extremism.

Let me add that there is nothing in this bill to stop the efforts of those same agencies to police and stop leftwing extremism—all extremism. I have no problem in condemning all of it, but we are focusing on the one that is the most significant in the words of the Department of Justice.

I ask unanimous consent that the Committee on the Judiciary be discharged from further consideration of H.R. 5602 and that the Senate proceed to its immediate consideration; further, that the bill be considered read a third time and passed; and that the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Is there objection?

The Senator from Wisconsin.

Mr. JOHNSON. Madam President, reserving the right to object, I just found out about this bill a couple of hours ago. I have been busy. I haven't really been able to really research it, and that is part of the problem with what our Democratic colleagues are trying to do here in just quickly rushing it through the U.S. Senate. Maybe this has had a full vetting in the House of Representatives, but here, in the U.S. Senate, it hasn't gone through any committee process whatsoever.

Unfortunately, I also have to make the point—because I am sure they are trying to make a political point as opposed to trying to make law today—that I am opposed to all forms of domestic terrorism, including White supremacists. I think I speak for all of my Republican colleagues, and I think I speak for every U.S. Senator: We all abhor domestic violence and terror, including White supremacists.

Again, I don't have much knowledge about this even though I am chairman of the committee of jurisdiction of one of the Departments that would be subject to this piece of legislation. I know that the Department was not consulted on this piece of legislation. I have been given notice here that the Department of Justice does not support this piece of legislation because it says it would seriously impede its ability to work in the domestic terrorism space. Again, I am not exactly sure why the Department of Justice does not like this piece of legislation. Suffice it to say that it doesn't. The Department of Homeland Security was not even consulted on this. As chairman of the Homeland Security Committee, I don't know anything about this bill.

This is not the way to pass a serious piece of legislation that deals with a serious issue. If it is a good piece of legislation, the sponsors should have no problem running it through the normal committee of jurisdiction process. In this case, apparently, it is with the Judiciary Committee, but I would think my committee would also have some pretty strong equities in this space, not to mention the fact that I have been working with my ranking member on precisely these types of issues.

Instead of just trying to make a political point, what I have always tried to do is get a result and make law, but that has to go through a thoughtful process that uses the full committee process, which is not the case here.

So I object.

The PRESIDING OFFICER. Objection is heard.

Mr. DURBIN. Madam President, yes, I am trying to make a political point, and it should be a bipartisan political point. It should be Republicans and Democrats in the Senate, as there was a unanimous voice vote in the House of Representatives on that same measure, and I am sorry my colleague from Wisconsin has left.

The Senate's version of this bill has been pending for 9 months—for 9 months. The House has moved its version of it. It is a timely issue. Why waste a day in making America safer? Why not tell our law enforcement agencies: Now, roll up your sleeves. Go to work. Find the most dangerous things happening in this country, and stop them.

We know one of them is White supremacists and their rightwing extremism. The President fumbled and couldn't come up with an answer 2 days ago. Today, sadly, from the Republican side, we get an objection to coming together on a bipartisan basis, as they did in the House, to address this very real issue. I am troubled by this. It is a sad moment.

I do believe the Senator from Wisconsin and many others will say they are against extremism. They had a chance to prove it by passing a measure here and refused.

I yield the floor.

The PRESIDING OFFICER. The Senator from Alabama.

Mr. JONES. Madam President, I am compelled to talk about this process that I just heard about.

There is no process, folks. Let's just be candid. This Senate is not the deliberative process body that the Senator from Wisconsin talked about. We don't have that. This bill has been pending for 9 months. But we don't have that. This is not the Senate in which I worked in 1979, where there was a deliberative attempt. There were debates on the floor, and there were debates in committee. This is not a process. Whether it is on the floor of this Senate or whether it is in the media or wherever else, when someone says that this should go through the normal process, those processes were killed a long time ago. I have been in this body for almost 3 years, and we have had only a relatively handful of amendments on any bill that has come here. We have had virtually no markups and debates in committees. Those don't exist. This bill has been pending for 9 months, which is more than adequate time for the Homeland Security Committee to have taken a look at it, more than enough time for the Committee on the Judiciary to have taken a look at it, and more than enough time to have had a hearing on it.

Apparently, our colleagues in the House felt it was OK, but this body has gotten to be so dysfunctional that, to send a statement, we will not allow a unanimously passed bill that has been pending in the Senate of the United States for 9 months to be passed.

There is one thing with which I might disagree a little bit with Senator DURBIN. For me, this is not a political statement. This is a statement about law enforcement and increasing the ability of law enforcement. It is a statement to protect victims of crime. That is what this bill is about for me. I have seen it all too often in my State and throughout the South. Again, that unbroken string—that is what I see this bill as.

So I don't need lectures about process when I see a Senate that does not function but that leapfrogs substantive legislation simply to ram a Supreme Court nominee through—one that hasn't been pending for very long, either. This is the kind of thing the Senate needs to be doing and passing, and we should be ashamed of ourselves for not doing it. Hopefully, that will change.

I yield the floor.

RECOGNITION OF THE MINORITY LEADER

The PRESIDING OFFICER. The Democratic leader is recognized.

Mr. SCHUMER. Madam President, before I get into the subject of this pending vote, I do want to thank my colleagues from Illinois and Connecticut for bringing this important topic before the Senate.

President Trump's refusal to condemn violent White supremacist groups in the Presidential debate has been around for several days. We have hardly heard anything out of most of our colleagues, and no one—no one, no one—is going to buy the argument that it came too suddenly. White supremacy

hasn't come too suddenly. The President's remarks have been out there for several days. It is the flimsiest of excuses to avoid criticizing the President even when every American of decency—the overwhelming majority of all Americans—would know he should be condemned.

They don't care if you are a Democrat or a Republican or are liberal or conservative. You never know how low President Trump can go, but his refusal to condemn White supremacy is among the lowest things he has done, and—boy, oh, boy—there are lots of them lined up. I am ashamed of my Republican colleagues and ashamed—for America, for decency—that they have chosen to block this.

S. 4653

Madam President, now, on another issue of great importance to America, the nomination of Judge Amy Coney Barrett to the Supreme Court has thrust the issue of healthcare back into the spotlight. Her confirmation to the highest Court in the land could put healthcare for hundreds of millions of Americans at risk.

As you would imagine, taking away healthcare is deeply unpopular with the American people. So it seems the strategy from the Republican majority is to invent some new distraction—a fresh outrage—to talk about. My colleagues on the other side would rather talk about anything besides the fact that their President, their party, and their Supreme Court nominee pose a dire threat to Americans' healthcare.

The outrage from the Republican leader was directed today, once again, at the idea that the Democrats would attack a nominee's religious beliefs, but of course, in their zeal to manufacture this issue, the Republican Senators began telegraphing this line of attack even before the nominee had been named. One Republican Senator wrote me a letter to warn against anti-Catholic attacks that hadn't happened yet against a nominee who had not been named. That is how transparent this Republican diversion—ruse—is.

It appears the Republican majority will crank up the outrage machine to any level of absurdity to avoid talking about America's healthcare—the healthcare that so many Americans desperately want and need. In fact, all week, the Republican leader has mocked the idea that a far-right Supreme Court majority might strike down the Affordable Care Act and that Judge Barrett might play a decisive role. Of course, President Trump promised to nominate Supreme Court Justices who would terminate the Affordable Care Act, and he picked Judge Barrett. Those are the President's words. He is only going to pick Justices who would terminate the Affordable Care Act, and it is no mystery why he picked Judge Barrett.

In both major cases brought against the ACA, Judge Barrett twice sided against the law. She publicly criticized Justice Roberts for upholding the law and said that, if the Supreme Court were to read the statute the way she does, they would have to ''invalidate it.'' President Trump: ''terminate it.'' Judge Barrett: ''invalidate it.'' Guess what. President Trump and Republican attorneys general are in court right now, suing to do just that—invalidate our healthcare law in a case that will be heard 1 week after the election.

The threat to Americans' healthcare is very, very real, and Senate Republicans are tying themselves in knots in trying to explain how it is not. Leader MCCONNELL, from the floor of the Senate, called it a joke—a joke—that Judge Barrett and the far-right majority of the Court might vote to take away healthcare or to turn back the clock on women's rights.

Maybe he didn't get that message around to his conference, because the Republican Senator from Utah, only a few days earlier, claimed that the Affordable Care Act was unconstitutional and that striking it down shouldn't tarnish Judge Barrett if that is what she chooses to do.

Another Republican Senator said he wanted to see evidence that the nominee understood that Roe was wrongly decided, that Roe was an act of judicial imperialism, and I do believe Amy Coney Barrett's record bears that out. That was his quote.

The junior Senator from Missouri expressed confidence that Judge Barrett believes Roe v. Wade was wrongly decided. On the Supreme Court, a Justice Barrett could enforce that view.

So which is it, Republican leader? Is it absurd to think that Judge Barrett might strike down the Affordable Care Act, or is it a good thing that shouldn't tarnish her reputation?

Is it a joke that Judge Barrett could curtail women's fundamental rights, or are Republican Senators relieved to think that she thinks Roe v. Wade is judicial imperialism?

Americans are starting to get pretty sick of these double standards and mealy-mouthed talking points—pretty sick of politicians who, just 4 years ago, declared they couldn't possibly confirm a Democratic nominee to the Supreme Court in the early months of an election year but are now rushing to confirm a Republican nominee in the middle of an election that is already underway. Most of all, pretty sick are Republicans claiming they support protections for Americans with preexisting conditions while, at the same time, they support a lawsuit that would eliminate them.

Well, we are about to put a few of these Senate Republicans on the record. Soon, the Senate will vote on a bill that, if passed, would protect the healthcare of hundreds of millions of Americans and prevent efforts by the Department of Justice to advocate that courts strike down the Affordable Care Act. I was able to move this measure to the floor despite the fact that Republicans didn't want it, and now we will have a vote.

Will Republican Senators vote to stop President Trump's Justice Department from spending taxpayer dollars trying to eliminate the taxpayers' healthcare? We will see very shortly.

If Senators truly want to support protections for Americans with preexisting conditions, they would vote to damage President Trump's legal effort to eliminate them. It is as simple as that.

No amount of sophistry or explanation is needed. Yes or no?

Madam President, I ask unanimous consent that I be given a chance to finish my remarks in the next few minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. SCHUMER. Thank you, Madam President.

It is as simple as that. Are they with the people who want protection or not, or are they standing with President Trump, who wants to destroy it? It is that simple, because if President Trump and the Republican lawsuit are successful, every single American stands to lose vital healthcare protections or access to care. Millions of Americans would see drug costs skyrocket. Tens of millions of families would lose healthcare coverage during the worst health crisis in a century. More than 130 million Americans with preexisting conditions would lose vital protections, including every American who contracted COVID, which would be treated as a preexisting condition. Women would see their country hurtle backward to a time when they could be charged more than men for insurance simply because they are women.

This vote, which I was fortunate enough to obtain, will show America which party stands with protecting Americans' healthcare and protections for preexisting conditions and which party opposes it.

It is plain and simple. Are you with Leader MCCONNELL, who wants to rip away people's protections? Are you with President Trump, who wants to wound our American healthcare by eliminating ACA? Are you with the American people, who desperately need these protections? Are you with the mother or father whose son or daughter has cancer and the insurance company says ''You are not getting any insurance,'' or are you going to require that company to give them the insurance that family so desperately needs?

The eyes of America are on this body and on Republican Senators right now. Whose side are you on—President Trump's or the American people who want healthcare?

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. JOHNSON. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. YOUNG). Without objection, it is so ordered.

Mr. JOHNSON. Mr. President, I ask unanimous consent that the mandatory quorum call be waived.

The PRESIDING OFFICER. Is there objection?

Without objection, it is so ordered.

CONCLUSION OF MORNING BUSINESS

Morning business is closed.

EXECUTIVE SESSION

EXECUTIVE CALENDAR

The PRESIDING OFFICER. Under the previous order, the Senate will proceed to executive session to resume consideration of the following nomination, which the clerk will report.

The legislative clerk read the nomination of Michael Jay Newman, of Ohio, to be United States District Judge for the Southern District of Ohio.

CLOTURE MOTION

The PRESIDING OFFICER. Pursuant to rule XXII, the Chair lays before the Senate the pending cloture motion, which the clerk will state.

The legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, do hereby move to bring to a close debate on the motion to proceed to Calendar No. 551, S. 4653, a bill to protect the healthcare of hundreds of millions of people of the United States and prevent efforts of the Department of Justice to advocate courts to strike down the Patient Protection and Affordable Care Act.

Charles E. Schumer, Richard J. Durbin, Patty Murray, Tim Kaine, Martin Heinrich, Jack Reed, Jeff Merkley, Bernard Sanders, Jon Tester, Benjamin L. Cardin, Brian Schatz, Debbie Stabenow, Richard Blumenthal, Angus S. King, Jr., Michael F. Bennet, Edward J. Markey, Chris Van Hollen, Sheldon Whitehouse, Kirsten E. Gillibrand.

The PRESIDING OFFICER. The question is, Is it the sense of the Senate that debate on the motion to proceed to S. 4653, a bill to protect the healthcare of hundreds of millions of people of the United States and prevent efforts of the Department of Justice to advocate courts to strike down the Patient Protection and Affordable Care Act, shall be brought to a close?

The yeas and nays are mandatory under the rule.

The clerk will call the roll.

The legislative clerk called the roll.

Mr. THUNE. The following Senators are necessarily absent: the Senator from Tennessee (Mr. ALEXANDER), the Senator from South Carolina (Mr. GRAHAM), the Senator from Utah (Mr. LEE), and the Senator from Florida (Mr. RUBIO).

Further, if present and voting, the Senator from Tennessee (Mr. ALEXANDER) would have voted ''yea.''

Mr. DURBIN. I announce that the Senator from California (Ms. HARRIS) and the Senator from Montana (Mr. TESTER) are necessarily absent.

The yeas and nays resulted—yeas 51, nays 43, as follows:

[Rollcall Vote No. 200 Ex.]

YEAS—51

Baldwin	Gillibrand	Peters
Bennet	Hassan	Reed
Blumenthal	Heinrich	Rosen
Booker	Hirono	Sanders
Brown	Jones	Schatz
Cantwell	Kaine	Schumer
Cardin	King	Shaheen
Carper	Klobuchar	Sinema
Casey	Leahy	Smith
Collins	Manchin	Stabenow
Coons	Markey	Sullivan
Cortez Masto	McSally	Udall
Duckworth	Menendez	Van Hollen
Durbin	Merkley	Warner
Ernst	Murkowski	Warren
Feinstein	Murphy	Whitehouse
Gardner	Murray	Wyden

NAYS—43

Barrasso	Fischer	Risch
Blackburn	Grassley	Roberts
Blunt	Hawley	Romney
Boozman	Hoeven	Rounds
Braun	Hyde-Smith	Sasse
Burr	Inhofe	Scott (FL)
Capito	Johnson	Scott (SC)
Cassidy	Kennedy	Shelby
Cornyn	Lankford	Thune
Cotton	Loeffler	Tillis
Cramer	McConnell	Toomey
Crapo	Moran	Wicker
Cruz	Paul	Young
Daines	Perdue	
Enzi	Portman	

NOT VOTING—6

Alexander	Harris	Rubio
Graham	Lee	Tester

The PRESIDING OFFICER. On this vote, the yeas are 51, the nays are 43.

Three-fifths of the Senators duly chosen and sworn not having voted in the affirmative, the motion is rejected.

The PRESIDING OFFICER. The Senator from Louisiana.

UNANIMOUS CONSENT REQUEST—S. 4756

Mr. KENNEDY. Mr. President, I want to talk just for a few moments about the internet and social media, and I want to make it clear, first, that I believe firmly in free will and responsibility. I believe that no matter what kind of day you are having or what is going on in your life, that you are responsible for your actions.

But I think we all know, as a matter of experience and common sense, that there are things in this world that can influence our actions. Social media, which I consider to be an American invention, has many virtues and many advantages, and we know that. I think it has brought the world closer today. I think it has given many people a voice. I think it is an extraordinary source of knowledge.

But like other innovations in this world, it has a downside. And one of those downsides is the fact that, too often, social media becomes an endless electronic brawl, and rather than bringing us together and exposing us to other points of view and causing us to test our assumptions against the arguments of others, it brings us apart. I think social media is, in part, responsible for that.

We all know that many social media platforms are free. Let's take Facebook, for example. Facebook is a free service. You open an account; you go on Facebook; and you can find out what your high school friends had for dinner Saturday night. Now, we give up a lot from that privilege of watching what our high school friends had for dinner Saturday night. Facebook collects an enormous amount of information about us. And, once again, I am not just picking on Facebook. I am using them as an example because it is such a popular platform that we all know about. Facebook uses that information in a number of ways.

First, Facebook uses it to make money. They know a lot of stuff about us from collecting information about us so they can sell advertisers' ads, and they can tailor those ads to the individuals who are on Facebook according to the information that the social media platform—in this case, Facebook—has about them. You can even sell more ads if you can keep people who are on Facebook coming back and coming back and coming back.

So this is what happens. Some see this as a virtue, and some see it as a vice. A social media platform like Facebook gathers an enormous amount of information about us, and they learn, in intricate detail, what motivates us and what our interests are. Another way of saying that would be they learn what our hot buttons are. And they continually show us—what is the word I am looking for—advertisements, information, and postings of other people on Facebook that reinforce our beliefs, and, in some cases, they show us very radical bits of information that really push our hot buttons.

Now, why do they do that? Well, No. 1, it will keep us coming back to Facebook, and it will keep us on Facebook longer, which means that advertisers like us better because we are seeing their ads, and it means that Facebook can sell more ads at a higher price. I am not criticizing them. That is just the way the business works.

But the downside of it is that we only see one point of view. Our point of view is reaffirmed. We never see other points of view. We are never encouraged to question our assumptions or to test our assumptions against the arguments of others.

Now, how does Facebook do this? And, again, I don't mean to just pick on Facebook, but it is an example we are all aware of. They use algorithms. I am not going to try to explain algorithms, but that is how they show us information that pushes our hot buttons.

The social media platforms contend that they are not involved in content and that they are just publishers. So when somebody pushes your hot button and you get angry and you say something that you probably shouldn't say—that is why Facebook has turned into an endless electronic brawl—Facebook says: Hey, it is not our fault. We are just a publisher. That is why, under the law, Facebook enjoys what we call section 230 liability.

But as long as these algorithms are used to push our hot buttons, to reaffirm our points of view, to not show us

other points of view—one point of view is that Facebook and other social media platforms are not just publishers. They are clearly content providers, and they are having an impact on our behavior.

My bill is very simple. It just says that if you are a social media platform and you use algorithms based on the information you, the social media provider, have collected about us, if you use that information to push our hot buttons by continuously showing us information that just reaffirms our point of view without showing us other points of view, that is fine. That is perfectly legal. That is your business model. But in return, you are no longer going to enjoy section 230 liability.

This would not eliminate section 230 liability in a pervasive manner, but it would say that if you are going to use algorithms to push hot buttons and to keep other points of view away from us and monetize that practice, then you shouldn't enjoy section 230 liability. That is all my bill does.

For that reason, as if in legislative session, I ask unanimous consent that the Committee on Commerce be discharged from further consideration of S. 4756, which is my Don't Push My Buttons Act, to which I just referred, and the Senate proceed to its immediate consideration. I further ask unanimous consent that the bill be considered read a third time and passed and that the motion to reconsider be considered made and laid upon the table, all in the vein of, we have talked now for years about section 230 liability, and I think we ought to actually try to do something about it.

The PRESIDING OFFICER. Is there objection?

Mr. WYDEN. Reserving the right to object.

The PRESIDING OFFICER. The Senator from Oregon.

Mr. WYDEN. Mr. President, this bill is, on its surface, a privacy bill. It appears to have been introduced 2 days ago, and the sponsor has arrived on the floor of the Senate and says that this bill ought to be passed immediately and without debate.

My guess is that a small circle of beltway insiders have seen the text, but I just want the Senator to know that passing this bill this way would just make a mockery of the proposition that we ought to have open, public debate on significant laws. We are dealing with a rush job here.

I will just tell you that based on what we have picked up, the legislation certainly leaves more questions than answers.

First, who does the Senator from Louisiana intend to target with the bill? On a first reading, it could apply to anybody, from Glassdoor, to Spotify, to Cloudflare, to my neighbor's blog, to local media outlets.

At a higher level, if my colleague wants to protect Americans' data from collection and abuse, this bill certainly doesn't do that. On the contrary, his legislation would push the platforms to simply force users to consent to their data being collected and used as a condition of using their service. That is already being done now, and this bill wouldn't change a thing for Americans' privacy.

Very significantly, our reading is that the Kennedy bill only requires consent if user data is both collected and used by the same company, and it has a massive loophole for data brokers and other shady middlemen who are already compiling dossiers of Americans' sensitive data and selling it to just about anybody with a credit card.

For the last several years, I have been blowing the whistle on these data brokers and these shady middlemen. We have investigated sector after sector where we are seeing these people who really adhere to some of the sleaziest business practices engaging in these tactics where they can get their hands on Americans' sensitive data and basically just sell it to anybody with a credit card.

I guarantee you, there is not a Senator in this body who is going to go home this weekend and tell their constituents: Gee, I want those data brokers and those middlemen to be able to sell my sensitive data to hither and yon, whatever nefarious purposes somebody might want to buy it for.

The Facebooks, the Googles, and the Twitters of the world have all the resources to pay these guys to outsource their data collection and be A-OK. Yet again, as I have said for some time, it is the startups and the little guys who are going to be left behind.

I have been working on these issues since I came to the Senate, and the only person here, really, who knew how to use the computer was the wonderful Senator from Vermont, Senator LEAHY. So as we began to write these formative laws, I said that my interest is the startup and the little guy because the big guys always do great.

That is why, when we were on the floor talking about the change to 230 before, who sold out the little guys? Facebook. And all that happened was the bad guys went off to the dark web.

So this is another bill where the Facebooks and the Googles all have the resources to pay the guys to outsource data collection, as I have been talking about, and the little guy is going to be left behind.

This bill does not require consent to collect your data. It doesn't require consent to use it and follow you around the internet. It wouldn't stop Chinese companies from harvesting American data and selling it to the Chinese Government.

If the Senator from Louisiana wants to protect Americans' sensitive data, I have a bill for doing that. I have comprehensive privacy legislation. It is called the Mind Your Own Business Act. We have been soliciting input on it literally for years. It is the toughest bill in terms of holding the executives actually accountable, for example, if they lie about their privacy policy, if an executive of one of the major companies, generating billions in revenue, lies about their privacy policy.

The Mind Your Own Business Act is the bill that is the toughest in terms of protecting the consumer. It sets tough privacy and cyber security standards for companies that collect Americans' private data, gives the Federal Trade Commission more authority to issue serious fines, and it is backed up with the strongest enforcement provisions on offer if a CEO lies to the government.

It is not as if you can't write tough privacy proposals. It certainly can be done, and others have ideas on how to do it. But based on everything I have read, and particularly this provision that is going to be a holiday for data brokers and shady middlemen to be able to get people's sensitive data, for all of those reasons and, frankly, others that are too numerous to mention, I object.

The PRESIDING OFFICER. The objection is heard.

The PRESIDING OFFICER. The Senator from Massachusetts.

UNANIMOUS CONSENT REQUEST—H.R. 451

Mr. MARKEY. Mr. President, I rise today on behalf of the first responders in our country. Every day, brave women and men on the frontlines of the COVID–19 pandemic rely on T-Band, a spectrum that makes it possible for them to communicate with each other.

T-Band is the radio frequency that is set aside for these public safety officials so that they can talk to each other to keep all of us safe, all of us healthy. In 11 metropolitan areas, the T-Band system enables our courageous public safety personnel to work quickly and effectively during life-and-death situations.

T-Band allows emergency medical service teams to relay important information about patients' conditions. T-Band permits 9–1–1 dispatchers to send first responders to emergency scenes. Firefighters use T-Band to quickly coordinate strategy.

After the Boston bombing, after the marathon bombing, first responders used T-Band to communicate with each other during the ensuing manhunt.

This resource is nothing short of a lifesaver. T-Band really stands for ''trusted band.'' It is the resource public safety can rely upon.

Unfortunately, the Middle Class Tax Relief and Job Creation Act of 2012 required the Federal Communications Commission to begin to auction off the T-Band, the trusted band, by February of 2021, but it would cost between $5 billion and $6 billion for first responders—police and fire—to relocate from the T-Band. That is much more money than an auction of that spectrum would ever generate.

Plus, for many first responders, there is simply no alternative to the T-Band; this is their only option. That is why this body must pass the Don't Break

Up the T-Band Act, which repeals the requirement that public safety stop using this spectrum.

The heroes who jump into action when we need them shouldn't have to scramble to figure out how they will communicate with each other. They shouldn't be left in limbo.

My legislation has support from an inspiring coalition of advocates and public safety groups. The International Association of Fire Chiefs, the International Association of Chiefs of Police, the National Sheriffs' Association, the National League of Cities, the United States Conference of Mayors, the National Association of Counties, the Association of Public-Safety Communications Officials, the National Public Safety Telecommunications Council, and many others are demanding that we preserve the T-Band.

These groups and the people they represent are not asking for a favor; they are just asking to be allowed to do their jobs effectively.

I thank Leader SCHUMER for his partnership on this issue and his longstanding commitment to the public safety community. I also want to thank Ranking Member CANTWELL and Ranking Member SCHATZ for their work and dedication to this effort.

But don't just take our word for it. Listen to what the current Republican chairman of the Federal Communications Commission recently said about T-Band. Earlier this year, Chairman Ajit Pai stated: ''An FCC auction of the T-Band is a bad idea.''

This is not a partisan issue. It is a public safety imperative. There is no cost associated with stopping the T-Band auction, and Congress must ensure that the people who step up to keep us safe are taken care of.

If we fail to act, the FCC will have no choice but to move forward and strip this resource from our first responders. To allow that to happen during a public health crisis like the one we face today would be reckless.

First responders already face enormous strain economically and enormous pressure to address the pandemic, as well as deadly natural disasters across the country. The last thing we should be doing is saddling them with millions or billions of dollars in costs to needlessly alter their critical communications system.

Congress can no longer drag its feet. We have run out of time. The FCC has called on this body to stop the T-Band auction, but the Commission has no choice but to start laying the groundwork to auction the T-Band. We can and we must resolve this problem today. Today is the day to do it.

Mr. President, as in legislative session, I ask unanimous consent that the Committee on Commerce, Science, and Transportation be discharged from further consideration of H.R. 451 and that the Senate proceed to its immediate consideration. I further ask that the bill be read a third time and passed and that the motion to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Is there objection?

The Senator from Wyoming.

Mr. BARRASSO. Mr. President, reserving the right to object, I am here today to object to this unanimous consent request on behalf of the junior Senator from Texas, Senator CRUZ.

As the Senator from Massachusetts knows, Senator CRUZ is also deeply interested in this issue. Both Senators have complementary pieces of legislation. They have had the language of their legislation agreed to unanimously by both the majority and the minority of the Commerce Committee.

So I would ask the Senator from Massachusetts to reach out to the Senator from Texas, and I understand he is fully willing to work with the Senator from Massachusetts on amending the House bill to ensure that it passes the Senate with the Cruz amendment that would not be objectionable to supporters of this bill.

As a result, I object.

The PRESIDING OFFICER. Objection is heard.

Mr. MARKEY. Mr. President, I just think that we are missing an enormous opportunity here. It is a shame the Senate is not acting with the urgency it needs in order to help our brave men and women who are first responders in our country.

We can work on issues of spectrum going to the private sector. We can do that in a separate bill, and we can do it together. But, here, we have an opportunity to help our first responders, the brave men and women who every day risk their lives, and we have to make sure they have the spectrum they need to communicate.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

The PRESIDING OFFICER. The Senator from Nebraska.

Mrs. FISCHER. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

REMEMBERING LAURIE SMITH CAMP

Mrs. FISCHER. Mr. President, less than 2 weeks ago, this country lost one of its most brilliant legal minds—Justice Ruth Bader Ginsburg. Her passing has left a void that can be felt all across our Nation from Nebraska to Washington.

Sadly, Nebraska recently lost another great jurist—Judge Laurie Smith Camp. Judge Smith Camp was the first woman to serve my State as a Federal judge, a position she had held since 2001. This body voted 100 to 0 to confirm her just 6 weeks after President George W. Bush nominated her. That doesn't happen very often anymore, and her unanimous approval was a testament to her incredible talent.

Judge Smith Camp grew up in Omaha, but she left Nebraska to attend college at Stanford University. She graduated with distinction. And I am glad to say that she came back home to attend the University of Nebraska Law School where she distinguished herself again as editor-in-chief of the Nebraska Law Review.

Before becoming a Federal judge, she served her State through a series of jobs that spanned the legal profession. She began her career in private practice but soon moved on to become general counsel for the Nebraska Department of Correctional Services, the head of the Nebraska attorney general's civil rights section, and then the chief deputy attorney general for criminal matters for the Nebraska attorney general. These wide-ranging experiences were part of what made her an exceptional Federal judge.

Another part was her love for the law and the compassion that flowed from it. She was well known for her dedication to equal treatment for all, regardless of background, and for a sentencing philosophy that preferred rehabilitation to punishment.

She also understood that success isn't just about achieving your professional goals. She was profoundly generous with her time and, when she wasn't leading Nebraska's district court, she could be found promoting women's participation in the legal profession or mentoring young Nebraska attorneys. This was in addition to recently being elected president of the Omaha Bar Association—a job that she had held since June.

Laurie was also my friend. She spoke at an event I held in 2016 called Bridging the Gap, which aims to encourage women to engage in their communities at the local, State, and Federal level. I am lucky to have known her personally and to have seen up close the wise advice and the quick wit that made her famous among her colleagues and those she mentored.

Through her example, she inspired a generation of young women in Nebraska and beyond to pursue careers as attorneys, advocates, and community leaders, just as Justice Ginsburg did. Both of these extraordinary women blazed a trail that today's young women and girls can follow. I join with both their families in mourning their passing and celebrating their lives.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Ms. CORTEZ MASTO. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

ANNIVERSARY OF THE ROUTE 91 HARVEST FESTIVAL SHOOTING

Ms. CORTEZ MASTO. Mr. President, immediately after a tragedy, we wake up each day and feel the full force of it

again. The shock, sorrow, and anger can hit us so strongly, it is hard to breathe, and that is the first part of mourning.

Eventually, the darkest times in our lives start to feel more familiar. They still hurt as much as ever, but they don't surprise us, and they become part of us.

Three years ago tonight, bullets split the air at the Route 91 Harvest Music Festival in my hometown of Las Vegas, NV. They sounded like fireworks, like a celebration, but these were the first shots in the worst mass shooting in modern American history.

Within minutes, those present at the outdoor festival understood at least some of what was happening. A gunman, high up in a hotel room, had taken aim at the people blow. Hundreds of people were shot, and hundreds more wounded trying to get to safety. Fifty-eight people lost their lives that night and 2 more have passed from grievous wounds since.

Within minutes, Nevadans began working together to save lives and help those in need. From those with years of training as first responders to just bystanders whose only qualification to help was a car at the ready, Las Vegans pulled together. Nurses and doctors rushed to hospitals, and ordinary Nevadans stood in line to give blood. Individuals and corporations donated their time and energy, as well as blankets, food, and other support.

In the 3 years since, many all over the State of Nevada have worked to mark what happened through memorial crosses, sculpture, a commemorative community center, and many scholarships honoring the memory of those who lost their lives.

Those 3 years have not erased the loss of the victims, the pain of the survivors, or the scars of the first responders who rushed into danger to save lives. If anything, the legacy of the Route 91 shooting has expanded during that time, not contracted.

Like ripples on a pond, the impacts of this shooting linger. It affects different people in different ways. For many, fireworks on the Fourth of July are a reminder of what they went through that day. Geena Marano has learned to prepare herself for Independence Day and New Year's Eve, but if a car backfires unexpectedly, she has to start the process of reminding herself: You are safe. It is OK.

Her sister Marisa, who was also at the festival with her, says that her own daughter has picked up the habit of reacting to loud noises. She says: ''It breaks my heart because my trauma has passed to her.''

The fear resurfaces for these sisters in so many situations—on anniversaries, including of all the shootings since then; at high schools where Geena was doing outreach to students and feared that she was putting herself at risk of another shooting; passing the Strip, eerily empty during the pandemic like it was on the days after the festival; anywhere where there is darkness and music, even on an evening out.

The Marano sisters are not alone. While the tragedy of the Route 91 shooting may be 3 years behind us, for many survivors, a moment can bring it all roaring back. This is one of the reasons I am so committed to getting more funding and support for mental health and substance abuse treatment in this country. Just because you can't see many of the scars from the Route 91 festival, it doesn't mean they are not there. That is true for mental health in general. So many Americans deal, on a daily basis, with challenges that even their closest loved ones can struggle to understand.

Many first responders, for instance, carry the trauma they see at scenes of crime, disaster, and tragedy with them. I introduced legislation to provide confidentiality to Federal law enforcement who use peer counseling services and to track law enforcement suicides in order to develop more effective prevention programs for our first responders.

For everyone struggling with mental health concerns, peer support can be key, which is why I have introduced the Virtual Peer Support Act to help these key behavioral health programs move online to meet huge community needs during this pandemic because it really does take a community of support to help people through tough times.

Treating the wounds, visible and invisible, from the Route 91 Harvest Festival shooting is only one part of what we owe the survivors. The other part is to take more action at the Federal level, to prevent attacks likes this in the first place, to reduce the gun violence that we have become far too accustomed to.

Overwhelming majorities of Americans want commonsense gun reform, including many responsible gun owners like those in my own family. We can do this here in Congress. Nevada has done it. At the State level, we have banned the bump stocks used in the Route 91 shooting; we have closed the loophole that lets private sellers sell guns without background checks.

We can and should do all of these things at the Federal level. I have pushed for all of these things during my time here in the Senate because no family should have to go through what I saw that Monday night at the Reunification Center in Las Vegas when families were waiting to hear what happened to their loved ones the night before at that concert. No one should have to struggle for years with chronic pain, physical or mental, when we can take sensible measures to prevent it.

To all of the families I met who have been touched by this tragedy and for the hundreds more that I have spoken with, I want you to know that Nevadans haven't forgotten you. We are all still Vegas Strong. We are all still here with you. We are still working together to get you what you need in the wake of a tragedy whose impact has not faded over time; it has just changed and shifted.

Tonight, at home, let us all remember those who felt the impact of the Route 91 shooting, from survivors, to families, to firefighters, nurses, and volunteers. Let us move toward an America that protects its communities from violence and that helps those who lived through it heal.

I yield the floor.

The PRESIDING OFFICER. The Senator from Nevada.

Ms. ROSEN. Mr. President, 3 years ago on this very date, in my hometown of Las Vegas, a gunman opened fire from the 32nd floor of the Mandalay Bay Hotel onto the unsuspecting crowd below. This horrific attack lasted just over 10 minutes, but in that brief window of time, 58 innocent lives were taken and over 400 were injured. It was the worst mass shooting in American history. I stand here today to recognize the third anniversary of this act of terror.

I want to speak today about how that October 1 shooting changed Nevada. This mass shooting irrevocably altered the lives of countless families in Las Vegas, NV, and across the country forever.

Many of that night's victims are still dealing with the injuries, visible and not visible. Many are still grieving and working through the effects of this devastating trauma. All of them have suffered through a pain that no family, no friend, no spouse, no child should ever, ever have to endure.

In the 3 years since the shooting, two more victims have passed away due to injuries they sustained that night—1 in 2019 and 1 earlier this year—bringing the number of lives lost up to 60—sons, daughters, parents, friends, neighbors—people who were loved, people who were part of our community, people who were taken from us far too soon, 60 families who will forever have an empty chair at their Thanksgiving table.

Amidst the violence and the terror, there were also heroes who made the choice to run toward danger and help others, like the courageous first responders who risked their lives to provide aid and everyday citizens who helped others escape in their cars.

Nevada remembers October 1 because it showed us the darkest side of humanity, but in the aftermath, it also showed us the brightest and best of who we are.

Today we commemorate the 60 lives that were lost. Today we recognize those who were injured and are still struggling. Today we celebrate. We celebrate the heroism of our community—not just in the immediate aftermath of that attack but in the days, weeks, months, and years since. We saw heroes spring into action that night and the following days to save lives. In the following days, we saw so many members of our community display incredible

heroism. Our community lined up to donate blood. They helped to reunite friends and family in the aftermath, and they helped to financially support victims and their families.

The phrase ''Vegas Strong'' came into being after that time, and let me assure you, it is a phrase that could not be more true. The strength of our city is simply astounding. We work to build ourselves back up from crisis, side by side, arm in arm. It has taken time. It hasn't been easy. Even now, we are still not all the way there, but every day, the people of Las Vegas show unparalleled resilience. Nevadans carried that resilience with them. They carry it in every challenge and in every crisis that we face.

I stand here today to honor the men and women who lost their lives on October 1, those who were injured in the attack, and the heroes who helped bring our city back.

I also call on Congress to show the same kind of strength that the people of Las Vegas have shown. Our Nation currently faces many challenges. However, my colleagues must recognize the threat that gun violence poses to our communities. We must honor the memories of those who were lost. We must take commonsense action to reduce gun violence and ensure that more lives aren't lost.

As a legislative body, we must act. The Bipartisan Background Checks Act—a bill passed by the House 582 days ago—has been waiting for a vote here in the Senate. Today, in honor of the memories of the lives that were lost, I request that the Senate bring this bill, this important bill, for a vote.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. CORNYN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

NOMINATION OF AMY CONEY BARRETT

Mr. CORNYN. Mr. President, yesterday I had the pleasure of meeting—or should I say re-meeting—Judge Amy Coney Barrett, who has been nominated, as we all know, to the U.S. Supreme Court, to the vacancy left by the death of Justice Ruth Bader Ginsburg.

Over the last few days, Judge Barrett's nomination has been applauded by people across the political spectrum—and for good reason. Her background in practicing law and academia and on the Federal bench has provided her with an unquestionable knowledge of the law. Much of the praise has come from her colleagues who worked closely with her over the years.

Marcus Cole, who is dean of the University of Notre Dame Law School, where she teaches, said:

> Judge Amy Coney Barrett is an absolutely brilliant legal scholar and jurist. She is also one of the most popular teachers we have ever had here at Notre Dame Law School.

A group of her former students have published a piece recently that said:

> While we hold a variety of views regarding how best to interpret statutes in the Constitution, we all agree on this: The nation could not ask for a more qualified candidate than the professor we have come to know and revere.

We have also seen support for Judge Barrett from unlikely sources. Harvard University Law Professor Noah Feldman clerked with Judge Barrett at the Supreme Court more than 20 years ago. He was also a prominent witness for Democrats during the impeachment process earlier this year. But he has written an opinion piece titled ''Amy Coney Barrett Deserves to Be on the Supreme Court.'' He wrote that he knows her to be a ''brilliant and conscientious lawyer who will analyze and decide cases in good faith, applying the jurisprudential principles to which she is committed. Those are the basic criteria for being a good justice. Barrett meets them and exceeds them.''

There is really no question that Judge Barrett has a brilliant legal mind and deep respect for the Constitution and an unwavering commitment to the law, but these qualities alone are not what set this exceptional judge apart. Both Republicans and Democrats who have worked with Judge Barrett throughout her career have spoken about her personal qualities, like humility and integrity. These make her an ideal candidate for this influential position.

A group of her former students wrote about the kindness that she has shown to them, both in the classroom and during meals they shared at her home. They said:

> Her genuine interest in the personal lives of her students outside the classroom, and the seamless way that she modeled for all of us the integration of her professional and family life, reinforces that there is more to life than the pursuit of professional accolades.

She has certainly proven that to be the case. In addition to rising to the very top of her field, Judge Barrett is a mother of seven children ranging from the age of 8 to 19. Following her nomination on Saturday, Judge Barrett credited her family's ability to balance her and her husband's successful careers with the needs of their children to the unwavering support of her husband Jesse, who is also an accomplished attorney.

In every respect, Judge Barrett is an inspiring role model for young people and I could say as the father of two daughters, of young women in particular, who are pursuing their professional and personal ambitions with equal vigor.

If confirmed, Judge Barrett—soon-to-be Justice Barrett—would become the first mother of school-age children to serve as a Justice and only the fifth woman throughout American history to serve on the U.S. Supreme Court. Considering the woman whose seat she will fill if confirmed, the significance of that fact cannot be overstated.

She would be the only current Justice with a degree from a law school other than Harvard or Yale and bring much needed educational diversity to the Bench.

I have always thought it bizarre that, among all the highly qualified lawyers and judges in America, for some reason, it is overly populated with people educated in the Northeast, on the coast.

On top of that, she would join Justice Thomas as the only Justice born in the South and bring another perspective to the Court, whose members largely hail from the coast.

If confirmed, Judge Barrett would bring an underrepresented view to the Supreme Court. I know we would all be proud to have somebody like her—a woman of such strong character—serving our Nation in this very important capacity.

I want to commend President Trump for selecting this outstanding nominee. I was glad to spend some time with her yesterday. She has an unquestionable character, a brilliant mind, and the kind of temperament needed to serve on the Court. I am eager for the American people to see that for themselves as we begin the public confirmation process.

As we know, this is the second time Judge Barrett has appeared before the Judiciary Committee in the last few years. It was 3 years ago when the committee and the Senate confirmed her to her current position on the Seventh Circuit Court of Appeals. However, there were some warning flags.

During her confirmation hearing back then, 3 years ago, the Democrats on the committee raised questions over Judge Barrett's strong Catholic faith and questioned whether it would somehow disqualify her or impair her ability to discharge her responsibilities.

One Senator went so far as to say: ''The dogma lives loudly within you, and that's of concern.'' Another asked her whether she was an ''orthodox Catholic.'' Well, this statement and that insinuation were discriminatory at best and unconstitutional at worst.

The Constitution itself includes that there is no religious test. Article VI reads: ''No religious Test shall ever be required as a Qualification to any Office or public Trust under the United States.''

This is not the first time somebody has been targeted for one's Catholic faith. I was reminded of the speech that John Fitzgerald Kennedy gave in 1960 in Houston, TX, to the Greater Houston Ministerial Association. In addressing some of the explicit and implicit arguments that somehow he would be beholden to the Vatican rather than be able to discharge his responsibilities as President of the United States, he pointed out, as a Catholic, it was not the only concern because, if people would do that to a Catholic, why not do it to a Baptist or a Muslim or a Jew?

He said:

For while this year it may be a Catholic against whom the finger of suspicion is pointed, in other years it has been, and may someday be again, a Jew—or a Quaker or a Unitarian or a Baptist. It was Virginia's harassment of Baptist preachers, for example, that helped lead to Jefferson's statute of religious freedom. Today I may be the victim, but tomorrow it may be you—until the whole fabric of our harmonious society is ripped at a time of great national peril.

He made the important point that seems so obvious that he shouldn't have had to make.

He said:

I am not the Catholic candidate for president. I am the Democratic Party's candidate for president, who happens also to be a Catholic.

Finally, he said:

But if this election is decided on the basis that 40 million Americans lost their chance of being president on the day they were baptized, then it is the whole nation that will be the loser—in the eyes of Catholics and non-Catholics around the world, in the eyes of history, and in the eyes of our own people.

Throughout her career, Judge Barrett has impressed the brightest legal minds with her deep understanding of the law and commitment to judicial independence. She made it clear at her hearing 3 years ago that she would be loyal to her oath, and that is to uphold and defend the Constitution and laws of the United States.

It is clear, under the appropriate canons of judicial ethics, that if for some reason a judge can't apply the law because of some personal opinion or conviction, then one needs to disqualify oneself. President Kennedy said that, if it violates your conscience and your faith and you can't reconcile the two, you should resign.

Well, there is just no legitimate reason to question whether Judge Barrett's religious beliefs would make her unfit to serve on the Supreme Court, and I hope our colleagues on the other side will refrain from, once again, imposing a religious test on Judge Barrett as we consider her nomination.

CORONAVIRUS

Mr. President, on another matter, with the school year well underway, I, like, I am sure, many of my colleagues, am continuing to listen to and learn from our teachers and administrators about how this unprecedented school year is unfolding. Whether kicking off the year in person or online or with some hybrid model, educators are facing a whole new range of challenges that have made the past several weeks anything but ordinary.

Over August, I spent some time talking to kindergarten through 12th grade teachers and students to learn how they were preparing to overcome the hurdles brought on by this pandemic. I also visited our colleges and universities to see how they were handling the start of the new year, and since then, I have stayed in close contact with all of them to learn more about how it is proceeding.

Our college campuses, for example, in most cases, are home to more than just classrooms and libraries. They are whole communities unto themselves with student housing, offices, dining facilities, gyms, convenience stores, and with, in some cases, full-service utility companies.

Lee Tyner, who serves as general counsel for Texas Christian University in Fort Worth, testified before the Judiciary Committee earlier this year and compared running a campus to leading a small city. You have a vast set of responsibilities that extend far beyond the education you are providing to your students, and those responsibilities have only grown more challenging during the pandemic.

Back in July, I spoke with some of the chancellors of our public colleges and universities to learn more about how they were preparing to deal with the immense challenges higher education was facing, and last Friday, I was able to catch up and see how things had gone—whether they had gone according to plan or whether they had encountered problems they had not been able to anticipate.

I learned about the University of Texas System's comprehensive plan to keep students and staff safe at each of their campuses across the State, which involves a serious testing infrastructure. Four institutions have built labs on their own campuses to conduct the testing that is necessary, and each has the capacity to test between 500 and 2,000 people each day. Other campuses are partnering with the UT Health Science Center institutions for their own testing, and these are providing a no-out-of-pocket cost testing opportunity for students, faculty, and staff.

The University of North Texas System has reopened campuses with a mix of in-person, online, and hybrid instruction, and it has been very effective at stopping the transmission of the virus. If a student or any close relative tests positive, there are clear guidelines for isolating and then contact tracing to minimize the spread.

When I spoke last week with the chancellors, UNT had only 27 active cases on campus, and it has seen no evidence of COVID–19 transmission in the classrooms or buildings where they conduct face-to-face activities.

This is the trend most campuses are seeing. There is a low to zero transmission rate in classrooms, thanks to these preparations and these precautions. The biggest risk to students, staff, and the surrounding communities actually comes from off-campus activities or people who bring it onto the campus who are not part of that student body or administration.

In Texas and States across the country, we have seen news articles about how off-campus parties and gatherings have been linked to clusters of these new cases. Appropriately, the universities have cracked down on these campus groups or individuals hosting those events, and they are trying to do what they can to identify them and then stop the spread.

John Sharp, who is the chancellor of the Texas A&M University System, talked about one unconventional way that A&M is trying to pinpoint potential outbreaks as soon as possible.

A&M has adopted the practice of wastewater surveillance, which has been used for years as a way to detect viruses or diseases within a community. Now it is being used to find the source of individual COVID–19 cases or clusters of cases in student housing, particularly dormitories. The university takes wastewater samples from sewage systems on campus, and a positive test allows them to then go back and target individuals for testing.

Obviously, if there is no virus detected, they know there is no need for that conditional testing, at least at this time. This practice can help to detect an outbreak at a dorm that can otherwise go unnoticed for several days and, thus, be spread far and wide.

Our colleges and universities across the State have gone to great lengths to manage the crisis that did not come with a manual. They have implemented the best practices to protect the health and safety of students and staff members and to ensure that their students have access to a quality education, which is the very purpose for which they exist.

In our conversation last week, these chancellors told me how helpful the CARES Act funding has been over the last several months, and they reiterated that they need more help. They need Congress to come together and provide more help. It is not just colleges and universities. It is also our elementary, middle, and high schools.

Congress has already provided more than $30 billion in emergency relief for education, including $2.6 billion in Texas alone. This funding has gone a long way to prepare for this school year and to allow these leaders to manage the risks associated with the spread of the virus.

They say they need more help, and it is incredibly frustrating that, despite this being a bipartisan goal and something we were able to do together in four separate bills, we have now been unable to pass another relief bill to give our schools and our children the resources they need in order to be safe. You would think this would be a priority.

The two House proposals we have seen—one of which passed the House earlier this year and the other of which was introduced last week—did include additional funding for education, and a bill we proposed over the summer included another $105 billion for education—more than tripling the investment that has already been made in the CARES Act.

History has proven that legislation gets harder to do the closer we get to an election, and perhaps nothing is better evidence of that than where we find

ourselves today, but the need for additional help should transcend those partisan differences.

I spoke to Secretary Mnuchin less than an hour ago, and he continues talking to Speaker PELOSI, but at some point, while talking is good—it is better than not talking—sometimes it is important not just to talk but to actually do something. In this case, that would mean the House and the Senate working with the President to agree on another bill. So I hope we are at a point at which we can see some relief soon.

I am thinking about the airline industry and the tens of thousands of airline employees who are being furloughed, actually, starting today. American Airlines and Southwest Airlines are headquartered in my State. I know, through no fault of their own, the airlines are struggling. We have tried to help them, and we have helped them, but we need to help the airlines' employees by providing them with more assistance during this challenging time. We can do that if we would get off of dead center and work out some mutually agreeable compromise.

Nobody is going to get everything one wants. It is not the nature of life or the nature of this business, but the American people are depending on us to do our jobs, and we cannot let them down.

I yield the floor.

I suggest the absence of a quorum.

The PRESIDING OFFICER (Mr. SCOTT of Florida). The clerk will call the roll.

The senior assistant legislative clerk proceeded to call the roll.

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. SCOTT of Florida). Without objection, it is so ordered.

LEGISLATIVE SESSION

MORNING BUSINESS

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to legislative session for a period of morning business, with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

BLACK REVOLUTIONARY WAR PATRIOTS

Mr. GRASSLEY. Mr. President, America's founding principles, including that all men are created equal and endowed by our Creator with unalienable rights, are timeless and apply equally to all Americans.

Commitment to these founding principles is what ties us together as Americans, so it is vital that all Americans feel connected to them.

That is why I have been working for years to establish a memorial on the National Mall to those Black Revolutionary War patriots who fought for our founding ideals.

I commend to all Americans the insights of the founder of the organization working to build this memorial, who argues that these patriots' service and sacrifice completed the Founders' vision.

(At the request of Mr. DURBIN, the following statement was ordered to be printed in the RECORD.)

VOTE EXPLANATION

● Mr. TESTER. Mr. President, I was absent due to an urgent family matter requiring my attention when the Senate voted on vote No. 200 on the motion to invoke cloture on the motion to proceed to Calendar No. 551, S. 4653. On vote No. 200, had I been present, I would have voted yea.●

YOM KIPPUR

Mr. LEAHY. Mr. President, Rabbi Michael Cohen is a longtime friend of Marcelle and me. He occasionally sends me a Sunday sermon, which I thoroughly enjoy and share with family members. Following a week of mourning the passing of Justice Ginsburg, it was comforting to have this sermon to read after church this last Sunday.

I ask unanimous consent that this sermon be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From the Jerusalem Post, Sept. 24, 2020]

THE ECHOES OF YOM KIPPUR

(By Rabbi Michael M. Cohen)

When the gates of heaven close during the Ne'ila service of Yom Kippur, many of us put the avodah, the work, of Yom Kippur behind us. But that is an illusion. As the expression goes, when one door closes, another opens.

Commentating on the Kol Nidre service at the beginning of Yom Kippur, when the gates are open wide, Rabbi Max Arzt teaches the goal of Yom Kippur is, ''to lessen the distance between what we are and what we ought to be.''

If the long day of introspection has worked, then at Ne'ila those gates close on who we were and open to a lighter, better and more refined version of who we are.

But that too is an illusion. It is a fleeting moment of personal triumph. Like the sunset that gives way to the night, the dawn to the morning, the moon and its phases, the high tide and the low tide; stasis is not derech haolam, the way of the world.

Each morning the siddur, the prayer book, reminds us, ''Day after day You renew creation.'' In that unfolding story we are, truth be told, composed of stardust. Most of the elements of our bodies originated in stars and the Big Bang.

Like the rest of the universe, our course is one of continual renewal. Yom Kippur highlights that awareness and the work we began on Rosh Hodesh *Elul*, the beginning of the month of Elul, 40 days earlier. Our work reaches a higher level on Rosh Hashanah and the Ten Days of Repentance, aseret yomei teshuva, culminating with Yom Kippur.

Those 40 days parallel the period when Moses returned to Mount Sinai to receive the second set of tablets following the incident of the Golden Calf. Moses, Moshe rabbeinu, Moses our teacher, literally models teshuva, repentance, return, when after the first tablets lay shattered at his feet he turned around and returned to once again climb Mount Sinai.

We are no different, as the echo of Yom Kippur is always with us, pushing us to climb the mountain all year long. Yom Kippur Katan, the small Yom Kippur, observed by some in most months on the day preceding Rosh Hodesh, is one of those echoes. It includes a daylight-hours' fast and special liturgy.

Rabbi Shefa Gold elucidates the origins of Yom Kippur Katan, teaching, ''Kabbalists were moon watchers. The lenses through which they gazed were intensely focused on issues of exile and redemption. And so as the moon waned, the exile of the Shechina (the Divine Presence) was noted and mourned.

With the moon's return came the celebration of the miracle of redemption, a redemption that could be tasted and known but briefly before the cycle of exile continued. They based their custom on a legend that was recorded in the Babylonian Talmud in which God says to Israel, ''Bring atonement upon me for making the moon smaller.'' (Hullin 60b) THAT EPISODE in the Talmud is fascinating in and of itself. There God admits after God made the moon smaller than the sun that God had wronged the moon, and because of that God needed to do teshuva! Implied within that radical text: If God can admit to wrongdoing and address transgression, who are we not to?

In addition to Yom Kippur Katan, another echo of Yom Kippur is the sixth paragraph of the weekday Amidah prayer. There we say the confessional selach lanu, forgive us, in the same manner that we say the confessional prayers ashamnu and al chet of Yom Kippur. Interspersed within the al chet Yom Kippur liturgy itself we also say selach lanu as we do during the rest of the year: ''Ve'al kulam eloha selichot selach lanu. Mechal lanu. Kaper lanu,'' And for them all, God of forgiveness, please forgive, pardon us, help us atone.'' The selach lanu paragraph follows the fourth and fifth paragraphs of the Amidah. We first ask for binah, understanding, including self-understanding, so we can ask in the next prayer for help with teshuvah, repentance. There is a logic within the order of the Amidah: first self-understanding followed by repentance, and only then forgiveness.

Three times a day the weekday Amidah is said. This means three times a day—evening, morning, and afternoon—we ask for forgiveness. In Judaism there is the concept of not saying a bracha levatala, a blessing whose purpose is not going to be fulfilled. This means that when we ask for forgiveness throughout the day there is the implied understanding, since we can't say the bracha in vain, that we did something wrong in the morning, afternoon and evening.

For some this is proof Judaism is a religion of guilt. Rabbi Art Green teaches the opposite when he says that Judaism is actually about guilt relief. This system provides us precious moments throughout the day to check in with ourselves and recalibrate as needed.

Elaborating, Rabbi Daniel Kamesar, z''l (of blessed memory), looks to the past daily sacrificial system of the Temple in Jerusalem as a model for that guilt relief when we would bring a chatat or an asham offering as expiation for our wrong choices, for missing the mark. Watching the smoke rise heavenly could be a cathartic, like watching the breadcrumbs of the Tashlich service float downstream away from us.

''Burn it up and let it go,'' Daniel points out. ''Most therapists are trying desperately to help us achieve that.''

While we are talking about the echoes of Yom Kippur throughout the year, we also note on Yom Kippur itself we have echoes of the Temple service. The chatat offering became the al chet prayer, and the asham offering became the ashamnu of the Yom Kippur liturgy.

One of the most profound moments in our daily prayer life emanates from the Ne'ila service. The Talmud (Yoma 87b) discusses the wording for the service. Shmuel and Ulla bar Rav suggest we say, ''What are we? What is our life? What is our kindness? What is our righteousness? What is our salvation? What is our power? What is our might?'' THOSE QUESTIONS eventually migrated into the daily morning prayers of the siddur. In the context of the Talmud and the siddur they are traditionally understood as questions arising from a sense of ''our iniquities too many to count,'' as Rav Judah states.

However, they can also be read as seven existential questions addressing the essence of our lives. We start by asking, ''What are we?'' The ultimate question, but in some ways too immense to answer, and so we fine tune and arrive at, ''What is our life?'' That is to say, what do we do with our lives, this precious gift? We want to define who we are. To answer that question, we realize our lives are measured by how we treat others, and so we ask, ''What is our kindness?'' and ''What is our righteousness?'' In other words, what care and consideration do we bring to others, and in a broader social reach, how do we strengthen justice in our communities and the world?

Our lives are also measured and grounded by our inner spiritual lives, and so we ask, ''What is our salvation?'' Answering and living by the answers to these questions takes energy, and so we conclude by asking, ''What is our power? What is our might?''

While they are the final questions, they are both cautionary, giving us pause to think how we use our strength and efficacy while at the same time reminding us that we have agency.

There is another lesson with these questions. Only the first two actually appear in the Talmud. As the scholar of Jewish liturgy Lawrence Hoffman points out, ''Frequently, prayers were ad libbed. They began with a starting point, like Mah anu? Mah chayeinu? What are we? What is our life? But they then moved in whatever direction the prayer leader preferred. It could be made up on the spot. What was done one year would not have been the same as in later years. There were no ''right'' and ''wrong'' as we think of them.

''Right'' was just making up the prayer and delivering it on the proper theme, with, ideally, some biblical texts to support the idea. Congregants would recognize the biblical support and nod in recognition. So the Talmudic writer of this section might have had his own practice in mind, or no practice in mind at all, other than the idea that we start with the citation in question, and then develop the theme in a way that makes sense at the time.

Such a process invites us to go deeper than the printed words on the page of the siddur. It asks us to drink from the essence of its message. What a liberating, creative, empowering approach; an approach with immense responsibility as well.

Ne'ila metaphorically suggests the gates of heaven close at the end of Yom Kippur, while at the same time we remember those daily Yom Kippur touch points and messages throughout the year. They remind us throughout the year that we always have the gift and opportunity to improve who we are, as well as to repair our shared world.

ARMS SALES NOTIFICATION

Mr. RISCH. Mr. President, section 36(b) of the Arms Export Control Act requires that Congress receive prior notification of certain proposed arms sales as defined by that statute. Upon such notification, the Congress has 30 calendar days during which the sale may be reviewed. The provision stipulates that, in the Senate, the notification of proposed sales shall be sent to the chairman of the Senate Foreign Relations Committee.

In keeping with the committee's intention to see that relevant information is available to the full Senate, I ask unanimous consent to have printed in the RECORD the notifications which have been received. If the cover letter references a classified annex, then such annex is available to all Senators in the office of the Foreign Relations Committee, room SD–423.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

DEFENSE SECURITY COOPERATION AGENCY,
Arlington, VA.

Hon. JAMES E. RISCH,
Chairman, Committee on Foreign Relations, U.S. Senate, Washington, DC.

DEAR MR. CHAIRMAN: Pursuant to the reporting requirements of Section 36(b)(1) of the Arms Export Control Act, as amended, we are forwarding herewith Transmittal No. 20–17 concerning the Navy's proposed Letter(s) of Offer and Acceptance to the Government of Egypt for defense articles and services estimated to cost $417 million. After this letter is delivered to your office, we plan to issue a news release to notify the public of this proposed sale.

Sincerely,

HEIDI H. GRANT,
Director.

Enclosures.

TRANSMITTAL NO. 20–17

Notice of Proposed Issuance of Letter of Offer Pursuant to Section 36(b)(1) of the Arms Export Control Act, as amended

(i) Prospective Purchaser: Government of Egypt.

(ii) Total Estimated Value:
Major Defense Equipment* $0 million.
Other $417 million.
TOTAL $417 million.

(iii) Description and Quantity or Quantities of Articles or Services under Consideration for Purchase:
Major Defense Equipment (MDE):
None.

Non-MDE: A Maritime Domain Awareness (MDA) system that includes multi-site Acquisition Radars (fixed and mobile) with supporting facilities, Electro-Optical/Infrared Sensors (fixed, mobile, airborne), Radio Communications suites, Hybrid Power Generation Systems, Closed Circuit Television, Power and Data Distribution Units, Automatic Identification System, and various other surveillance and communications systems; and other related elements of logistical and program support. Equipment includes: thirty-four (34) Integrated Fixed Towers with supporting equipment; twenty-eight (28) Communication Towers with supporting equipment; twelve (12) Relay Towers with supporting equipment; six (6) Naval Base Operations Rooms, two (2) regional Operations Centers, and one (1) Strategic Operation Center all with supporting equipment; six (6) Harbor Protection Systems with supporting equipment; Intelligent Fiber Intrusion Detection System; twelve (12) Vertical Take Off and Landing UAV with six (6) Ground Stations; fourteen (14) Mobile Maritime Surveillance Vehicles; and, three (3) Aerostat ISR Integrated Platform with supporting equipment.

(iv) Military Department: Navy (EG–P–LGQ).

(v) Prior Related Cases. if any: EG–D–DAB.

(vi) Sales Commission. Fee. etc., Paid, Offered, or Agreed to be Paid: None.

(vii) Sensitivity of Technologv Contained in the Defense Article or Defense Services Proposed to be Sold: None.

(viii) Date Report Delivered to Congress: October 1, 2020.

*As defined in Section 47(6) of the Arms Export Control Act.

POLICY JUSTIFICATION

Egypt—Maritime Domain Awareness System

The Government of Egypt has requested a possible sale of a Maritime Domain Awareness (MDA) system that includes multi-site Acquisition Radars (fixed and mobile) with supporting facilities, Electro-Optical/Infrared Sensors (fixed, mobile, airborne), Radio Communications suites, Hybrid Power Generation Systems, Closed Circuit Television, Power and Data Distribution Units, Automatic Identification System, and various other surveillance and communications systems; and other related elements of logistical and program support. Equipment includes: thirty-four (34) Integrated Fixed Towers with supporting equipment; twenty-eight (28) Communication Towers with supporting equipment; twelve (12) Relay Towers with supporting equipment; six (6) Naval Base Operations Rooms, two (2) regional Operations Centers, and one (1) Strategic Operation Center all with supporting equipment; six (6) Harbor Protection Systems with supporting equipment; Intelligent Fiber Intrusion Detection System; twelve (12) Vertical Take Off and Landing UAV with six (6) Ground Stations; fourteen (14) Mobile Maritime Surveillance Vehicles; and, three (3) Aerostat ISR Integrated Platform with supporting equipment. The estimated total program cost is $417 million.

This proposed sale will support the foreign policy and national security of the United States by helping to improve the security of a Major Non-NATO Ally country that continues to be an important strategic partner in the Middle East.

Egypt intends to use this Maritime Domain Awareness system to provide the Egyptian Armed Forces with a maritime surveillance capability with real-time situational awareness in the defense of Egypt maritime boundary, natural resources, and ports. Egypt will have no difficulty absorbing this equipment into its armed forces.

The proposed sale of this equipment and support will not alter the basic military balance in the region.

The prime contractor will be the Advanced Technology Systems Company (ATSC), McLean, VA. There are no known offset agreements proposed in connection with this potential sale.

Implementation of this proposed sale will require annual trips to Egypt involving U.S. Government and contractor representatives for technical reviews, support, and oversight for approximately five years.

There will be no adverse impact on U.S. defense readiness as a result of this proposed sale.

ARMS SALES NOTIFICATION

Mr. RISCH. Mr. President, section 36(b) of the Arms Export Control Act

requires that Congress receive prior notification of certain proposed arms sales as defined by that statute. Upon such notification, the Congress has 30 calendar days during which the sale may be reviewed. The provision stipulates that, in the Senate, the notification of proposed sales shall be sent to the chairman of the Senate Foreign Relations Committee.

In keeping with the committee's intention to see that relevant information is available to the full Senate, I ask unanimous consent to have printed in the RECORD the notifications which have been received. If the cover letter references a classified annex, then such annex is available to all Senators in the office of the Foreign Relations Committee, room SD–423.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

DEFENSE SECURITY COOPERATION AGENCY,
Arlington, VA.

Hon. JAMES E. RISCH,
Chairman, Committee on Foreign Relations, U.S. Senate, Washington, DC.

DEAR MR. CHAIRMAN: Pursuant to the reporting requirements of Section 36(b)(1) of the Arms Export Control Act, as amended, we are forwarding herewith Transmittal No. 20–60 concerning the Navy's proposed Letter(s) of Offer and Acceptance to the Republic of Korea for defense articles and services estimated to cost $158.1 million. After this letter is delivered to your office, we plan to issue a news release to notify the public of this proposed sale.

Sincerely,

HEIDI H. GRANT,
Director.

Enclosures.

TRANSMITTAL NO. 20–60

Notice of Proposed Issuance of Letter of Offer Pursuant to Section 36(b)(1) of the Arms Export Control Act, as amended

(i) Prospective Purchaser: Republic of Korea.

(ii) Total Estimated Value:

Major Defense Equipment* $135.9 million.

Other $22.2 million.

Total $158.1 million.

(iii) Description and Quantity or Quantities of Articles or Services under Consideration for Purchase:

Major Defense Equipment (MDE):

One hundred fifteen (115) AIM–9X Block II Tactical Sidewinder Missiles.

Fifty (50) AIM–9X Block II Captive Air Training Missiles (CATM).

Twenty (20) AIM–9X Block II Tactical Missile Guidance Units.

Twenty (20) AIM–9X Block II CATM Guidance Units.

Non-MDE:

Also included are containers, weapon system support, software, surface transportation, missile technical assistance, and other technical assistance; and other related elements of program support.

(iv) Military Department: Navy (KS-P-AMV).

(v) Prior Related Cases, if any: KS-P-ALE.

(vi) Sales Commission, Fee, etc., Paid, Offered, or Agreed to be Paid: None.

(vii) Sensitivity of Technology Contained in the Defense Article or Defense Services Proposed to be Sold: See Attached Annex.

(viii) Date Report Delivered to Congress: October 1, 2020.

*As defined in Section 47(6) of the Arms Export Control Act.

POLICY JUSTIFICATION

Korea—AIM–9X Block II Tactical Sidewinder Missiles

The Republic of Korea has requested to buy one hundred fifteen (115) AIM–9X Block II Tactical Sidewinder missiles; fifty (50) AIM–9X Block II Captive Air Training Missiles (CATM): twenty (20) AIM–9X Block II Tactical Missile Guidance Units; and twenty (20) AIM–9X Block II CATM Guidance Units. Also included are containers, weapon system support, software, surface transportation, missile technical assistance, and other technical assistance: and other related elements of program support. The estimated total cost is $158.1 million.

This proposed sale will support the foreign policy goals and national security objectives of the United States by helping to improve the security of a treaty ally that continues to be an important force for political stability, peace, and economic progress in North East Asia.

The proposed sale will assist the Republic of Korea in developing and maintaining a strong and ready self-defense capability. The Republic of Korea will have no difficulty absorbing these missiles into its armed forces.

The proposed sale of this equipment and support will not alter the basic military balance in the region.

The principal contractor will be Raytheon Corporation, Tucson, AZ. There are no known offset agreements proposed in connection with this potential sale.

Implementation of this proposed sale will not require the assignment of any additional U.S. Government or contractor representatives to the Republic of Korea.

There will be no adverse impact on U.S. defense readiness as a result of this proposed sale.

TRANSMITTAL NO. 20–60

Notice of Proposed Issuance of Letter of Offer Pursuant to Section 36(b)(1) of the Arms Export Control Act

Annex Item No. vii

(vii) Sensitivity of Technology:

1. The AIM–9X Block II SIDEWINDER Missile is a short-range, air-to-air missile. The AIM–9X Block II SIDEWINDER Missile provides a high off-boresight seeker, enhanced countermeasure rejection capability, low drag/high angle of attack airframe and the ability to integrate the Helmet Mounted Cueing System. The software algorithms are the most sensitive portion of the AIM–9X missile. The software continues to be modified via a pre-planned product improvement (P^3I) program in order to improve its counter-countermeasure capabilities. No software source code or algorithms will be released.

2. The highest level of classification of defense articles, components, and services included in this potential sale is SECRET.

3. If a technologically advanced adversary were to obtain knowledge of the specific hardware and software elements, the information could be used to develop countermeasures that might reduce weapon system effectiveness or be used in the development of a system with similar or advanced capabilities.

4. A determination has been made that the Republic of Korea can provide substantially the same degree of protection for the sensitive technology being released as the US. Government. This sale is necessary in furtherance of the U.S. foreign policy and national security objectives outlined in the Policy Justification.

5. All defense articles and services listed in this transmittal have been authorized for release and export to the Republic of Korea.

NOMINATION OF AMY CONEY BARRETT

Mrs. BLACKBURN. Mr. President, I don't think I am overstating the severity of the situation when I say that this past week has been one of the most chaotic and divisive in our Nation's history. The American people met the news of Supreme Court Justice Ruth Bader Ginsburg's death with an outpouring of sympathy; but, of course, rather than let an opportunity go to waste, radicals and activists, fueled by the same hatred that still fills our streets with violence, emerged from the shadows and exploited a nation's grief.

Rarely—or perhaps, never before—in the history of this country have the so-called progressive movement, the activist left, and even some members of the Senate minority worked so tirelessly to scare the American people into submission.

Their willingness to use differences in family, religion, and personal morality to impugn the integrity and competence of Supreme Court Associate Justice nominee Judge Amy Coney Barrett without giving her the benefit of even a single conversation shocks the conscience. It is a scandal beneath the dignity of this body.

In the coming weeks, I would encourage my colleagues on both sides of the aisle to meet with Judge Barrett, as I did today. I think you will find that she is not trying to get off easy. As a fellow conservative woman who cherishes a deep faith and commitment to family, I can assure you, she has already been tested by fire and passed with flying colors.

ONLINE FREEDOM AND VIEWPOINT DIVERSITY ACT

Mrs. BLACKBURN. Mr. President, this week, the Senate Committee on Commerce, Science, and Transportation subpoenaed testimony from Mr. Jack Dorsey of Twitter, Mr. Sundar Pichai of Alphabet, Inc., and Mr. Mark Zuckerberg of Facebook.

I supported the issuance of these subpoenas, and I look forward to hearing testimony on the content moderation policies used by their respective platforms.

Over the past few months, I have worked with many members of this body on a statutory fix to section 230 of the Communications Decency Act, specifically to the ingrained liability shield that platforms like Facebook use to defend their content moderation policies. Over the years, we have seen Big Tech's biggest players stretch this shield beyond all recognition, far beyond the limits Congress envisioned when they passed the original act in 1996.

Now, content moderators wield their power with abandon, banning and deleting content they disagree with right alongside content of the most vile, universally repulsive nature. Last month,

in response to growing outcries over censorship, I introduced the Online Freedom and Viewpoint Diversity Act with Chairman LINDSEY GRAHAM and Chairman ROGER WICKER to introduce accountability into our dealings with digital platforms and services.

This bill is unique because it doesn't do specifically what so many here in Washington would like it to do: It doesn't delete section 230 from the U.S. Code, nor does it put the power to decide what information should and should not be available online in Congress's or regulators' hands. All it does is remove ambiguities from the original statutory language to help companies and consumers better understand when that liability shield is and is not applicable.

Still, as we move forward with legislation, it is important to remember that we are creating policy for the internet we have now and will have in the future and not the internet we had back in 1996, hence the reason for the subpoenas we are sending to those three Silicon Valley executives. They are the ones who created the internet we have today, and their justifications and perspectives regarding the future of content moderation could prove useful. Subpoenas do change the tone of the conversation, but we view this as a rare opportunity to glean both insight and accountability from the tech industry.

TRIBUTE TO FRANK CALVELLI

Mr. WARNER. Mr. President, I rise today to recognize and celebrate the career of an outstanding civil servant, Mr. Frank Calvelli, who is one of my constituents. Mr. Calvelli recently announced his plan to retire after 34 years of government service, most recently as the Principal Deputy Director for the National Reconnaissance Office, where he has provided commendable leadership and operational management for the past 8 years. Mr. Calvelli will complete his government service at the end of this year.

During Frank's 30-year tenure at the NRO, he has been responsible for leading various internal organizations and overseeing the acquisition and operation of many of our Nation's most vital overhead reconnaissance assets. These platforms perform essential intelligence collection roles to better inform U.S. Government and allied partner nation defense policies and deter potential aggressors. Frank contributed to 11-plus-years of consecutive clean financial audits, an unequaled record within the U.S. intelligence community. Mr. Calvelli has played an important role developing a permanent employee cadre and leading the more than 3,000 people who work at the NRO. When called upon in 2019 to take on the responsibility of acting in the capacity of the Director, he often testified on behalf of the NRO before Congress and specifically the Senate Select Committee on Intelligence.

While Mr. Calvelli has shouldered the responsibility of overseeing large, complex government acquisition programs, his fondest memories will be of the NRO's people. Like any successful organization, the NRO relies on its talented and skilled workforce to accomplish its national security mission. Their wellbeing and success have always been a top priority for him, and it is especially important that the women and men of the NRO have leadership that backs them in their primary imperative as intelligence professionals: to speak truth to power.

I also understand that Frank's love of NASCAR is well known at the NRO. I, too, share an appreciation of NASCAR and hope he has greater opportunities to enjoy racing and more time with his family. On behalf of a grateful nation, as he transitions to future opportunities, I would like to publicly thank Mr. Calvelli for his valuable contributions to the Nation and our national security, and I personally thank the Calvelli family for their critical role in supporting him throughout his service to the Nation.

TRIBUTE TO ROBINSON DESROCHES

Mr. PAUL. Mr. President, I rise today to honor one of Louisville's finest, Louisville Metro Police Officer Robinson Desroches. Police work is an unquestionably difficult and dangerous job, but it is among the noblest callings. Each and every day, officers risk their lives to keep our communities safe. Officers such as Louisville Metro Police Officer Robinson Desroches meet the challenges they encounter every day with professionalism, class, and courage. Officer Desroches joined the LMPD in 2019. Serving to keep the peace in Louisville during a time of uncertainty, Officer Desroches has served his community with class and courage during this difficult time. Dedicated service from officers like Officer Desroches during times of protest is important to keep protests peaceful instead of a riot. Officer Desroches and his fellow officers deserve and have our respect and admiration. Officer Desroches was shot on Wednesday night during the protest in Louisville. Fortunately, he is expected to make a full recovery. I join my fellow Kentuckians in wishing Officer Desroches a speedy recovery.

TRIBUTE TO AUBREY GREGORY

Mr. PAUL. Mr. President, I rise today to honor one of Louisville's finest, Louisville Metro Police Major Aubrey Gregory. Police work is an unquestionably difficult and dangerous job, but it is among the noblest callings. Each and every day, officers risk their lives to keep our communities safe. Officers such as Louisville Metro Police Major Aubrey Gregory meet the challenges they encounter every day with professionalism, class, and courage. Major Gregory joined the LMPD in 1999 and leads Louisville Metro Police Special Operations Unit. Serving to keep the peace in Louisville during a time of uncertainty, Major Gregory has led his fellow officers with class and courage during this difficult time. Dedicated service from officers like Major Gregory during times of protest is important to keep protests peaceful instead of a riot. Major Gregory and his fellow officers deserve and have our respect and admiration. Major Gregory was shot on Wednesday night during the protest in Louisville. Fortunately, Major Gregory is expected to make a full recovery. I join my fellow Kentuckians in wishing Major Gregory a speedy recovery.

ADDITIONAL STATEMENTS

THE MAGIC CITY DISCOVERY CENTER

● Mr. CRAMER. Mr. President, I recognize today the city of Minot, the Minot Air Force Base, and other community members who have come together to present their youngest citizens a gift they will enjoy for generations to come.

Groundbreaking will be held on October 7 for the Magic City Discovery Center, a children's museum that will develop 12 interactive galleries on math, engineering, technology, science, and art for children up to 14 years old. The musuem will encourage children of all ages to learn both independently and in groups as they invent, play, discover, and create.

Making this center a reality has been a significant challenge to its supporters, and only with many partners could the nearly $14 million in construction costs be met. A large boost came from the Minot Air Force Base, which worked with the community to secure a $6.3 million grant from the Defense Community Infrastructure Pilot Program. This Department of Defense program helps fund projects that prioritize quality of life for Active military families. The commanders of the Minot Air Force Base supported this grant so their more than 1,300 children of military families from kindergarten through fifth grade have year-round learning opportunities.

I congratulate the city of Minot and Minot Air Force Base on another successful community partnership. The men and women stationed at the base perform exemplary work every day critical to the safety of our Nation. We must do all we can to support them and their families during their time as North Dakota residents.

North Dakota's quality of life is consistently ranked as one of the best in the Nation. An excellent example of why we have this high ranking is the dedication of the citizens of Minot to give their children a Magic City Discovery Center.●

MESSAGES FROM THE PRESIDENT

Messages from the President of the United States were communicated to the Senate by Ms. Roberts, one of his secretaries.

PRESIDENTIAL MESSAGE

TRANSMITTING AS OUTLINED IN THE ENCLOSED LIST OF ACCOUNTS—PM 60

The PRESIDING OFFICER laid before the Senate the following message from the President of the United States, together with an accompanying report; which was referred to the Committee on the Budget:

To the Congress of the United States:

In accordance with section 114(b) of division A of the Continuing Appropriations Act, 2021 and Other Extensions Act (H.R. 8337; the ''Act''), I hereby designate as emergency requirements all funding (including the rescission of funds) so designated by the Congress in the Act pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985, as outlined in the enclosed list of accounts.

The details of this action are set forth in the enclosed memorandum from the Director of the Office of Management and Budget.

DONALD J. TRUMP.

THE WHITE HOUSE, *October 1, 2020.*

PRESIDENTIAL MESSAGE

TRANSMITTING AS OUTLINED IN THE ENCLOSED LIST OF ACCOUNTS—PM 61

The PRESIDING OFFICER laid before the Senate the following message from the President of the United States, together with an accompanying report; which was referred to the Committee on the Budget:

To the Congress of the United States:

In accordance with section 114(b) of division A of the Continuing Appropriations Act, 2021 and Other Extensions Act (H.R. 8337; the ''Act''), I hereby designate for Overseas Contingency Operations/Global War on Terrorism all funding (including the rescission of funds) so designated by the Congress in the Act pursuant to section 251(b)(2)(A) of the Balanced Budget and Emergency Deficit Control Act of 1985, as outlined in the enclosed list of accounts.

The details of this action are set forth in the enclosed memorandum from the Director of the Office of Management and Budget.

DONALD J. TRUMP.

THE WHITE HOUSE, *October 1, 2020.*

MESSAGE FROM THE HOUSE

At 12:20 p.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the House has passed the following bills, in which it requests the concurrence of the Senate:

H.R. 2454. An act to designate the facility of the United States Postal Service located at 123 East Sharpfish Street in Rosebud, South Dakota, as the ''Ben Reifel Post Office Building''.

H.R. 3005. An act to designate the facility of the United States Postal Service located at 13308 Midland Road in Poway, California, as the ''Ray Chavez Post Office Building''.

H.R. 3680. An act to designate the facility of the United States Postal Service located at 415 North Main Street in Henning, Tennessee, as the ''Paula Croom Robinson and Judy Spray Memorial Post Office Building''.

H.R. 4725. An act to designate the facility of the United States Postal Service located at 8585 Criterion Drive in Colorado Springs, Colorado, as the ''Chaplain (Capt.) Dale Goetz Memorial Post Office Building''.

H.R. 4764. An act to reauthorize the Stem Cell Therapeutic and Research Act of 2005, and for other purposes.

H.R. 4875. An act to designate the facility of the United States Postal Service located at 2201 E. Maple Street in North Canton, Ohio, as the ''Lance Cpl. Stacy 'Annie' Dryden Post Office''.

H.R. 4971. An act to designate the facility of the United States Postal Service located at 15 East Market Street in Leesburg, Virginia, as the ''Norman Duncan Post Office Building''.

H.R. 5307. An act to designate the facility of the United States Postal Service located at 115 Nicol Avenue in Thomasville, Alabama, as the ''Postmaster Robert Ingram Post Office''.

H.R. 5736. An act to direct the Under Secretary for Intelligence and Analysis of the Department of Homeland Security to develop and disseminate a threat assessment regarding threats to the United States associated with foreign violent white supremacist extremist organizations, and for other purposes.

H.R. 5780. An act to enhance stakeholder outreach to and operational engagement with owners and operators of critical infrastructure and other relevant stakeholders by the Cybersecurity and Infrastructure Security Agency to bolster security against acts of terrorism and other homeland security threats, including by maintaining a clearinghouse of security guidance, best practices, and other voluntary content developed by the Agency or aggregated from trusted sources, and for other purposes.

H.R. 5804. An act to amend the Homeland Security Act of 2002 to enhance the Blue Campaign of the Department of Homeland Security, and for other purposes.

H.R. 5811. An act to require the Transportation Security Administration to provide nursing facilities and paid parental leave for Administration personnel, and for other purposes.

H.R. 5822. An act to amend the Homeland Security Act of 2002 to establish an acquisition professional career program, and for other purposes.

H.R. 5823. An act to establish a program to make grants to States to address cybersecurity risks and cybersecurity threats to information systems of State, local, Tribal, or territorial governments, and for other purposes.

H.R. 5901. An act to establish a program to facilitate the adoption of modern technology by executive agencies, and for other purposes.

H.R. 5954. An act to designate the facility of the United States Postal Service located at 108 West Maple Street in Holly, Michigan, as the ''Holly Veterans Memorial Post Office''.

H.R. 5987. An act to designate the facility of the United States Postal Service located at 909 West Holiday Drive in Fate, Texas, as the ''Ralph Hall Post Office''.

H.R. 5988. An act to designate the facility of the United States Postal Service located in 2600 Wesley Street in Greenville, Texas, as the ''Audie Murphy Post Office Building''.

H.R. 6270. An act to amend the Securities Exchange Act of 1934 to require issuers to make certain disclosures relating to the Xinjiang Uyghur Autonomous Region, and for other purposes.

H.R. 7340. An act to ensure that personal protective equipment and other equipment and supplies needed to fight coronavirus are provided to employees required to return to Federal offices, and for other purposes.

H.R. 7496. An act to require Federal agencies to submit plans for responding to any resurgence of COVID–19, and far other purposes.

The message also announced that pursuant to 20 U.S.C. 1011c, and the order of the House of January 3, 2019, the Speaker appoints the following individuals on the part of the House of Representatives to the National Advisory Committee on Institutional Quality and Integrity for a term of 6 years: Upon the recommendation of the Minority Leader: Dr. Arthur E. Keiser of Fort Lauderdale, Florida, Ms. Jennifer Blum of Washington, DC, Mr. Robert G. Mayes. Jr., of Elberta, Alabama; Upon the recommendation of the Majority Leader: Ms. Kathleen Sullivan Alioto of New York, New York, Mr. Robert Shireman of Berkeley, California, Dr. Roslyn Clark Artis of Columbia, South Carolina.

MEASURES REFERRED

The following bills were read the first and the second times by unanimous consent, and referred as indicated:

H.R. 2454. An act to designate the facility of the United States Postal Service located at 123 East Sharpfish Street in Rosebud, South Dakota, as the ''Ben Reifel Post Office Building''; to the Committee on Homeland Security and Governmental Affairs.

H.R. 3005. An act to designate the facility of the United States Postal Service located at 13308 Midland Road in Poway, California, as the ''Ray Chavez Post Office Building''; to the Committee on Homeland Security and Governmental Affairs.

H.R. 3680. An act to designate the facility of the United States Postal Service located at 415 North Main Street in Henning, Tennessee, as the ''Paula Croom Robinson and Judy Spray Memorial Post Office Building''; to the Committee on Homeland Security and Governmental Affairs.

H.R. 4725. An act to designate the facility of the United States Postal Service located at 8585 Criterion Drive in Colorado Springs, Colorado, as the ''Chaplain (Capt.) Dale Goetz Memorial Post Office Building''; to the Committee on Homeland Security and Governmental Affairs.

H.R. 4875. An act to designate the facility of the United States Postal Service located at 2201 E. Maple Street in North Canton, Ohio, as the ''Lance Cpl. Stacy 'Annie' Dryden Post Office''; to the Committee on Homeland Security and Governmental Affairs.

H.R. 4971. An act to designate the facility of the United States Postal Service located at 15 East Market Street in Leesburg, Virginia, as the ''Norman Duncan Post Office

Building''; to the Committee on Homeland Security and Governmental Affairs.

H.R. 5307. An act to designate the facility of the United States Postal Service located at 115 Nicol Avenue in Thomasville, Alabama, as the ''Postmaster Robert Ingram Post Office''; to the Committee on Homeland Security and Governmental Affairs.

H.R. 5736. An act to direct the Under Secretary for Intelligence and Analysis of the Department of Homeland Security to develop and disseminate a threat assessment regarding threats to the United States associated with foreign violent white supremacist extremist organizations, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

H.R. 5780. An act to enhance stakeholder outreach to and operational engagement with owners and operators of critical infrastructure and other relevant stakeholders by the Cybersecurity and Infrastructure Security Agency to bolster security against acts of terrorism and other homeland security threats, including by maintaining a clearinghouse of security guidance, best practices, and other voluntary content developed by the Agency or aggregated from trusted sources, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

H.R. 5804. An act to amend the Homeland Security Act of 2002 to enhance the Blue Campaign of the Department of Homeland Security, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

H.R. 5811. An act to require the Transportation Security Administration to provide nursing facilities and paid parental leave for Administration personnel, and for other purposes; to the Committee on Commerce, Science, and Transportation.

H.R. 5822. An act to amend the Homeland Security Act of 2002 to establish an acquisition professional career program, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

H.R. 5823. An act to establish a program to make grants to States to address cybersecurity risks and cybersecurity threats to information systems of State, local, Tribal, or territorial governments, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

H.R. 5954. An act to designate the facility of the United States Postal Service located at 108 West Maple Street in Holly, Michigan, as the ''Holly Veterans Memorial Post Office''; to the Committee on Homeland Security and Governmental Affairs.

H.R. 6270. An act to amend the Securities Exchange Act of 1934 to require issuers to make certain disclosures relating to the Xinjiang Uyghur Autonomous Region, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

H.R. 7340. An act to ensure that personal protective equipment and other equipment and supplies needed to fight coronavirus are provided to employees required to return to Federal offices, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

H.R. 7496. An act to require Federal agencies to submit plans for responding to any resurgence of COVID–19, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

MEASURES DISCHARGED

The following bill was discharged from the Committee on Agriculture, Nutrition, and Forestry, and referred to the Committee on Energy and Natural Resources:

S. 4433. A bill to authorize the National Medal of Honor Museum Foundation to establish a commemorative work in the District of Columbia and its environs, and for other purposes.

MEASURES PLACED ON THE CALENDAR

The following bills were read the second time, and placed on the calendar:

S. 4773. A bill to establish the Paycheck Protection Program Second Draw Loan, and for other purposes.

S. 4774. A bill to provide support for air carrier workers, and for other purposes.

S. 4775. A bill to provide continued emergency assistance, educational support, and health care response for individuals, families, and businesses affected by the 2020 coronavirus pandemic.

The following bills were read the first and second times by unanimous consent, and placed on the calendar:

H.R. 5987. An act to designate the facility of the United States Postal Service located at 909 West Holiday Drive in Fate, Texas, as the ''Ralph Hall Post Office''.

H.R. 5988. An act to designate the facility of the United States Postal Service located at 2600 Wesley Street in Greenville, Texas, as the ''Audie Murphy Post Office Building''.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–5602. A communication from the Under Secretary of Defense (Personnel and Readiness), transmitting, pursuant to law, a report relative to the administration of Workplace and Gender Relations Surveys; to the Committee on Armed Services.

EC–5603. A communication from the Secretary of the Treasury, transmitting, pursuant to law, a six-month periodic report on the national emergency with respect to the situation in or in relation to the Democratic Republic of the Congo that was declared in Executive Order 13413 of October 27, 2006; to the Committee on Banking, Housing, and Urban Affairs.

EC–5604. A communication from the Director of Regulations and Policy Management Staff, Food and Drug Administration, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Postmarketing Safety Reports for Approved New Animal Drugs; Electronic Submission Requirements; Correction'' (RIN0910–AH51) received during adjournment of the Senate in the Office of the President of the Senate on September 25, 2020; to the Committee on Health, Education, Labor, and Pensions.

EC–5605. A communication from the Chief of Negotiations and Restructuring, Pension Benefit Guaranty Corporation, transmitting, pursuant to law, a notification that the Corporation has issued an order partitioning the Bricklayers and Allied Craftsmen Local 7 Pension Plan pursuant to section 4233 of the Employee Retirement Income Security Act of 1974, as amended; to the Committees on Health, Education, Labor, and Pensions; and Finance.

EC–5606. A communication from the General Counsel, Railroad Retirement Board, transmitting, pursuant to law, the Board's 2020 Annual Report; to the Committee on Health, Education, Labor, and Pensions.

EC–5607. A communication from the Assistant Attorney General, Office of Legislative Affairs, Department of Justice, transmitting, pursuant to law, three (3) reports relative to vacancies in the Department of Justice, received in the Office of the President of the Senate on September 29, 2020; to the Committee on the Judiciary.

EC–5608. A communication from the Attorney General, Office of Legislative Affairs, Department of Justice, transmitting, pursuant to law, a legislative proposal relative to modernizing and clarifying the immunity that 47 U.S.C. section 230 provides to online platforms that host and moderate content; to the Committee on Commerce, Science, and Transportation.

PETITIONS AND MEMORIALS

The following petition or memorial was laid before the Senate and was referred or ordered to lie on the table as indicated:

POM–243. A petition from a citizen of the State of Texas relative to credit history and employment; to the Committee on Health, Education, Labor, and Pensions.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. WICKER, from the Committee on Commerce, Science, and Transportation, with an amendment in the nature of a substitute:

S. 1046. A bill to establish the Office of Internet Connectivity and Growth, and for other purposes (Rept. No. 116–274).

By Mr. WICKER, from the Committee on Commerce, Science, and Transportation, with amendments:

S. 2203. A bill to extend the transfer of Electronic Travel Authorization System fees from the Travel Promotion Fund to the Corporation for Travel Promotion (Brand USA) through fiscal year 2027, and for other purposes (Rept. No. 116–275).

By Mr. JOHNSON, from the Committee on Homeland Security and Governmental Affairs, without amendment:

S. 4138. A bill to amend title 5, United States Code, to make permanent the authority of the United States Patent and Trademark Office to conduct a telework travel expenses program (Rept. No. 116–276).

By Mr. JOHNSON, from the Committee on Homeland Security and Governmental Affairs, with an amendment in the nature of a substitute:

S. 4200. A bill to establish a program to facilitate the adoption of modern technology by executive agencies, and for other purposes (Rept. No. 116–277).

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mrs. CAPITO (for herself and Mr. MANCHIN):

S. 4778. A bill to require the Secretary of Veterans Affairs to submit to Congress a report on the use of security cameras in medical centers of the Department of Veterans Affairs; to the Committee on Veterans' Affairs.

By Mr. YOUNG:

S. 4779. A bill to authorize additional district judges for the district courts and convert temporary judgeships; to the Committee on the Judiciary.

By Mr. KENNEDY:

S. 4780. A bill to amend the Internal Revenue Code of 1986 to provide for qualified Hurricane Laura recovery opportunity zones, and for other purposes; to the Committee on Finance.

By Mr. SCHUMER (for Ms. HARRIS (for herself, Mr. BROWN, Ms. BALDWIN, Ms. WARREN, and Mr. MERKLEY)):

S. 4781. A bill to direct the Occupational Safety and Health Administration to issue an occupational safety and health standard to protect workers from heat-related injuries and illnesses; to the Committee on Health, Education, Labor, and Pensions.

By Mr. HEINRICH:

S. 4782. A bill to authorize the Secretary of Education to award grants to improve indoor air quality in elementary schools and secondary schools in response to the COVID–19 public health emergency using proven technologies; to the Committee on Health, Education, Labor, and Pensions.

By Mr. MENENDEZ (for himself and Mr. WICKER):

S. 4783. A bill to amend the Internal Revenue Code of 1986 to provide a credit for economic activity in possessions of the United States; to the Committee on Finance.

By Mr. GRASSLEY:

S. 4784. A bill to extend the Generalized System of Preferences, and for other purposes; to the Committee on Finance.

By Mr. PORTMAN (for himself and Mr. PETERS):

S. 4785. A bill to require the Director of the Office of Management and Budget to develop a model for risk-based budgeting, and for other purposes; to the Committee on Homeland Security and Governmental Affairs.

By Mr. WYDEN:

S. 4786. A bill to require the Secretary of the Interior to convey to, and take into trust for the benefit of, the Burns Paiute Tribe certain land in the State of Oregon; to the Committee on Indian Affairs.

By Ms. MCSALLY:

S. 4787. A bill to amend the Indian Child Protection and Family Violence Prevention Act; to the Committee on Indian Affairs.

By Mr. TOOMEY (for himself, Mr. CRAMER, Mrs. LOEFFLER, Mr. SASSE, and Mr. PERDUE):

S. 4788. A bill to prohibit States and localities that seek to impede the free formation of education pods from receiving Federal emergency education funds, to provide a teacher expense deduction for home educators, and for other purposes; to the Committee on Finance.

By Mr. CORNYN (for himself and Mr. MANCHIN):

S. 4789. A bill to amend the Communications Act of 1934 to provide funding to States for extending broadband service to unserved areas in partnership with broadband service providers, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Ms. CORTEZ MASTO (for herself and Mr. SCOTT of Florida):

S. 4790. A bill to improve the ability of separating or retiring members of the Armed Forces to seek services provided by accredited veterans service officers, and for other purposes; to the Committee on Veterans' Affairs.

By Mr. VAN HOLLEN:

S. 4791. A bill to provide for a Community-Based Emergency and Non-Emergency Response Grant Program; to the Committee on Health, Education, Labor, and Pensions.

By Mr. MORAN (for himself and Mr. ROBERTS):

S. 4792. A bill to extend the availability of Coronavirus Relief Fund payment funds for States or governments that use such funds to respond to the COVID–19 public health emergency in accordance with a qualifying economic development plan; to the Committee on Finance.

By Mr. TILLIS (for himself and Mrs. BLACKBURN):

S. 4793. A bill to authorize the imposition of sanctions with respect to certain activities that threaten the national security, foreign policy, public health, economic health, or financial stability of the United States, and for other purposes; to the Committee on Foreign Relations.

By Ms. SMITH (for herself and Mr. ROUNDS):

S. 4794. A bill making emergency supplemental appropriations for the COVID–19 Telehealth Program of the Federal Communications Commission for the fiscal year ending September 30, 2020; to the Committee on Appropriations.

By Ms. ROSEN (for herself and Mr. HOEVEN):

S. 4795. A bill to require the Secretary of Energy to establish a voluntary Cyber Sense program to test the cybersecurity of products and technologies intended for use in the bulk-power system, and for other purposes; to the Committee on Energy and Natural Resources.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. MANCHIN (for himself, Mr. HAWLEY, Mr. REED, Mrs. CAPITO, Mr. SCOTT of South Carolina, and Mr. GRAHAM):

S. Res. 742. A resolution designating September 2020 as ''National Childhood Cancer Awareness Month''; considered and agreed to.

By Mr. ENZI (for himself, Mr. CARDIN, Ms. COLLINS, Mr. YOUNG, Mr. ALEXANDER, Mrs. MURRAY, Ms. HASSAN, and Mr. BARRASSO):

S. Res. 743. A resolution supporting the goals and ideals of National Retirement Security Month, including raising public awareness of the various tax-preferred retirement vehicles, increasing personal financial literacy, and engaging the people of the United States on the keys to success in achieving and maintaining retirement security throughout their lifetimes; considered and agreed to.

By Mr. VAN HOLLEN (for himself and Mr. CARDIN):

S. Res. 744. A resolution congratulating the National Federation of Federal Employees on the celebration of its 51st Convention on October 5, 2020, and recognizing the vital contributions to the United States made by the members of the National Federation of Federal Employees for 103 years; to the Committee on Homeland Security and Governmental Affairs.

By Mr. CARDIN (for himself, Mr. PORTMAN, Mr. LEAHY, Mrs. CAPITO, Mr. MURPHY, Ms. COLLINS, Mrs. FEINSTEIN, Mr. CRAMER, and Mr. KAINE):

S. Res. 745. A resolution honoring the life, legacy, and example of former Israeli Prime Minister Yitzhak Rabin on the 25th anniversary of his death; to the Committee on Foreign Relations.

ADDITIONAL COSPONSORS

S. 578

At the request of Mr. COTTON, the name of the Senator from North Dakota (Mr. HOEVEN) was added as a cosponsor of S. 578, a bill to amend title II of the Social Security Act to eliminate the five-month waiting period for disability insurance benefits under such title for individuals with amyotrophic lateral sclerosis.

S. 633

At the request of Mr. MORAN, the names of the Senator from Washington (Mrs. MURRAY) and the Senator from Indiana (Mr. BRAUN) were added as cosponsors of S. 633, a bill to award a Congressional Gold Medal to the members of the Women's Army Corps who were assigned to the 6888th Central Postal Directory Battalion, known as the ''Six Triple Eight''.

S. 1125

At the request of Mr. TILLIS, the name of the Senator from Mississippi (Mrs. HYDE-SMITH) was added as a cosponsor of S. 1125, a bill to amend the Health Insurance Portability and Accountability Act.

S. 1163

At the request of Mr. CRAPO, the name of the Senator from Arkansas (Mr. BOOZMAN) was added as a cosponsor of S. 1163, a bill to amend the Internal Revenue Code of 1986 to provide for an exclusion for assistance provided to participants in certain veterinary student loan repayment or forgiveness programs.

S. 2815

At the request of Mr. SCHUMER, the names of the Senator from Oregon (Mr. WYDEN), the Senator from South Dakota (Mr. THUNE), the Senator from Virginia (Mr. WARNER), the Senator from Arkansas (Mr. BOOZMAN), the Senator from West Virginia (Mrs. CAPITO), the Senator from Iowa (Mr. GRASSLEY) and the Senator from Georgia (Mrs. LOEFFLER) were added as cosponsors of S. 2815, a bill to require the Secretary of the Treasury to mint coins in commemoration of the National Purple Heart Honor Mission.

S. 2981

At the request of Mr. SULLIVAN, the name of the Senator from Washington (Ms. CANTWELL) was added as a cosponsor of S. 2981, a bill to reauthorize and amend the National Oceanic and Atmospheric Administration Commissioned Officer Corps Act of 2002, and for other purposes.

S. 3190

At the request of Mr. DURBIN, the name of the Senator from West Virginia (Mr. MANCHIN) was added as a cosponsor of S. 3190, a bill to authorize dedicated domestic terrorism offices within the Department of Homeland Security, the Department of Justice, and the Federal Bureau of Investigation to analyze and monitor domestic terrorist activity and require the Federal Government to take steps to prevent domestic terrorism.

S. 3471

At the request of Mr. INHOFE, his name was added as a cosponsor of S. 3471, a bill to ensure that goods made with forced labor in the Xinjiang

Uyghur Autonomous Region of the People's Republic of China do not enter the United States market, and for other purposes.

At the request of Mr. SCOTT of Florida, his name was added as a cosponsor of S. 3471, supra.

S. 3595

At the request of Ms. ROSEN, the names of the Senator from Arizona (Ms. SINEMA) and the Senator from Maine (Ms. COLLINS) were added as cosponsors of S. 3595, a bill to require a longitudinal study on the impact of COVID–19.

S. 4106

At the request of Mr. BRAUN, the name of the Senator from Alaska (Mr. SULLIVAN) was added as a cosponsor of S. 4106, a bill to amend the Public Health Service Act to provide for hospital and insurer price transparency.

S. 4150

At the request of Mr. REED, the name of the Senator from North Dakota (Mr. HOEVEN) was added as a cosponsor of S. 4150, a bill to require the Secretary of the Treasury to provide assistance to certain providers of transportation services affected by the novel coronavirus.

At the request of Ms. COLLINS, the name of the Senator from Ohio (Mr. PORTMAN) was added as a cosponsor of S. 4150, supra.

S. 4166

At the request of Ms. SINEMA, the name of the Senator from Arkansas (Mr. BOOZMAN) was added as a cosponsor of S. 4166, a bill to require the Secretary of Veterans Affairs to secure medical opinions for veterans with service-connected disabilities who die from COVID–19 to determine whether their service-connected disabilities were the principal or contributory cases of death, and for other purposes.

S. 4272

At the request of Mr. RISCH, the name of the Senator from Alaska (Mr. SULLIVAN) was added as a cosponsor of S. 4272, a bill to advance a policy for managed strategic competition with the People's Republic of China.

S. 4384

At the request of Mr. SULLIVAN, the name of the Senator from Minnesota (Ms. SMITH) was added as a cosponsor of S. 4384, a bill to require the Secretary of Veterans Affairs to address exposure by members of the Armed Forces to toxic substances at Karshi-Khanabad Air Base, Uzbekistan, and for other purposes.

S. 4453

At the request of Ms. STABENOW, the name of the Senator from Washington (Mrs. MURRAY) was added as a cosponsor of S. 4453, a bill to protect the continuity of the food supply chain of the United States in response to COVID–19, and for other purposes.

S. 4548

At the request of Mr. CARDIN, the names of the Senator from New Jersey (Mr. BOOKER), the Senator from Pennsylvania (Mr. CASEY) and the Senator from Illinois (Mr. DURBIN) were added as cosponsors of S. 4548, a bill to direct the Administrator of the United States Agency for International Development to submit to Congress a report on the impact of the COVID–19 pandemic on global basic education programs.

S. 4609

At the request of Mr. COTTON, the name of the Senator from Arizona (Ms. MCSALLY) was added as a cosponsor of S. 4609, a bill to withdraw normal trade relations treatment from, and apply certain provisions of title IV of the Trade Act of 1974 to, products of the People's Republic of China, and to expand the eligibility requirements for products of the People's Republic of China to receive normal trade relations treatment in the future, and for other purposes.

S. 4634

At the request of Mr. WICKER, the name of the Senator from South Carolina (Mr. SCOTT) was added as a cosponsor of S. 4634, a bill to provide support for air carrier workers, and for other purposes.

S. 4694

At the request of Mr. BARRASSO, the names of the Senator from Indiana (Mr. BRAUN) and the Senator from Idaho (Mr. CRAPO) were added as cosponsors of S. 4694, a bill to extend and expand limitations on the importation of uranium from the Russian Federation, and for other purposes.

S. 4708

At the request of Mr. LANKFORD, the name of the Senator from Wyoming (Mr. BARRASSO) was added as a cosponsor of S. 4708, a bill to establish a commission to review certain regulatory obstacles to preparedness for, response to, and recovery from the Coronavirus SARS–CoV–2 pandemic and other pandemics, and for other purposes.

S. 4730

At the request of Ms. CORTEZ MASTO, the names of the Senator from Delaware (Mr. COONS) and the Senator from Alaska (Ms. MURKOWSKI) were added as cosponsors of S. 4730, a bill to amend title 31, United States Code, to require the Secretary of the Treasury to mint and issue quarter dollars in commemoration of the Nineteenth Amendment, and for other purposes.

S. 4757

At the request of Mr. DURBIN, the names of the Senator from New Jersey (Mr. BOOKER) and the Senator from New York (Mrs. GILLIBRAND) were added as cosponsors of S. 4757, a bill to amend the Animal Welfare Act to establish additional requirements for dealers, and for other purposes.

S. 4765

At the request of Mr. YOUNG, the name of the Senator from Arkansas (Mr. BOOZMAN) was added as a cosponsor of S. 4765, a bill to amend title 10, United States Code, to eliminate the inclusion of certain personally identifying information from the information furnished to promotion selection boards for commissioned officers of the Armed Forces, and for other purposes.

S. RES. 684

At the request of Mr. CARDIN, the name of the Senator from New Jersey (Mr. BOOKER) was added as a cosponsor of S. Res. 684, a resolution calling on the Government of Cameroon and separatist armed groups from the English-speaking Northwest and Southwest regions to end all violence, respect the human rights of all Cameroonians, and pursue a genuinely inclusive dialogue toward resolving the ongoing civil conflict in Anglophone Cameroon.

S. RES. 689

At the request of Mr. RISCH, the names of the Senator from Maine (Ms. COLLINS) and the Senator from North Carolina (Mr. TILLIS) were added as cosponsors of S. Res. 689, a resolution condemning the crackdown on peaceful protestors in Belarus and calling for the imposition of sanctions on responsible officials.

S. RES. 701

At the request of Mr. CARDIN, the names of the Senator from New Jersey (Mr. BOOKER), the Senator from Washington (Ms. CANTWELL), and the Senator from Maine (Ms. COLLINS) were added as cosponsors of S. Res. 701, a resolution urging the Government of Burma to hold free, fair, inclusive, transparent, participatory, and credible elections on November 8, 2020.

S. RES. 709

At the request of Mr. SCOTT of Florida, his name was added as a cosponsor of S. Res. 709, a resolution expressing the sense of the Senate that the August 13, 2020, and September 11, 2020, announcements of the establishment of full diplomatic relations between the State of Israel and the United Arab Emirates and the State of Israel and the Kingdom of Bahrain are historic achievements.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 742—DESIGNATING SEPTEMBER 2020 AS ''NATIONAL CHILDHOOD CANCER AWARENESS MONTH''

Mr. MANCHIN (for himself, Mr. HAWLEY, Mr. REED, Mrs. CAPITO, Mr. SCOTT of South Carolina, and Mr. GRAHAM) submitted the following resolution; which was considered and agreed to:

S. RES. 742

Whereas each year more than 15,700 children in the United States, and more than 300,000 children under the age of 19 globally, are diagnosed with cancer;

Whereas every year more than 1,700 children in the United States, and 328,000 children under the age of 19 globally, lose their lives to cancer;

Whereas childhood cancer is the leading cause of death from disease and the second overall leading cause of death for children in the United States;

Whereas the 5-year survival rate for children with cancer has increased from 58 percent in the mid-1970s to 84 percent in 2020,

representing significant improvement from previous decades;

Whereas ⅔ of children who survive cancer will develop at least 1 chronic health condition, and ¼ of all survivors will face a late-effect from treatment that could be considered severe or life-threatening;

Whereas cancer patients face a higher risk of contracting the Coronavirus Disease 2019 (COVID–19) due to a weakened immune system; and

Whereas cancer occurs regularly and randomly and spares no racial or ethnic group, socioeconomic class, or geographic region: Now, therefore, be it

Resolved, That the Senate—

(1) designates September 2020 as ''National Childhood Cancer Awareness Month'';

(2) requests that the Federal Government, States, localities, and nonprofit organizations observe the month with appropriate programs and activities, with the goal of increasing public knowledge of the risks of cancer;

(3) encourages survivors of childhood cancer to continue to receive ongoing monitoring and physical and psychosocial care throughout their adult lives;

(4) recognizes the human toll of cancer and pledges to make the prevention and cure of cancer a public health priority; and

(5) reminds the people of the United States that these children are the definition of bravery, and commends and honors their courage.

SENATE RESOLUTION 743—SUPPORTING THE GOALS AND IDEALS OF NATIONAL RETIREMENT SECURITY MONTH, INCLUDING RAISING PUBLIC AWARENESS OF THE VARIOUS TAX-PREFERRED RETIREMENT VEHICLES, INCREASING PERSONAL FINANCIAL LITERACY, AND ENGAGING THE PEOPLE OF THE UNITED STATES ON THE KEYS TO SUCCESS IN ACHIEVING AND MAINTAINING RETIREMENT SECURITY THROUGHOUT THEIR LIFETIMES

Mr. ENZI (for himself, Mr. CARDIN, Ms. COLLINS, Mr. YOUNG, Mr. ALEXANDER, Mrs. MURRAY, Ms. HASSAN, and Mr. BARRASSO) submitted the following resolution; which was considered and agreed to:

S. RES. 743

Whereas people in the United States are living longer, and the cost of retirement is increasing significantly;

Whereas Social Security remains the bedrock of retirement income for the great majority of the people of the United States but was never intended by Congress to be the sole source of retirement income for families;

Whereas data from the Employee Benefit Research Institute indicates that, in the United States—

(1) up to 40 percent of households in which the head of household is between the ages of 35 and 64 are likely to run out of money in retirement; and

(2) the amount that workers have saved for retirement is much less than the amount those workers need to adequately fund their retirement years;

Whereas the financial literacy of workers in the United States is important so that those workers understand the need to save for retirement;

Whereas saving for retirement is a key component of overall financial health and security during retirement years, and the importance of financial literacy in planning for retirement must be advocated;

Whereas many workers may not—

(1) be aware of their various options in saving for retirement; or

(2) have focused on the importance of, and need for, saving for retirement and successfully achieving retirement security;

Whereas, although many employees have access to defined benefit and defined contribution plans through their employers to assist such employees in preparing for retirement, many of those employees may not be taking advantage of those plans at all or to the full extent allowed by Federal law;

Whereas saving for retirement is necessary even during economic downturns or market declines, underscoring the importance of continued contributions;

Whereas all workers, including public and private sector employees, employees of tax-exempt organizations, and self-employed individuals, can benefit from developing personal budgets and financial plans that include retirement savings strategies that take advantage of tax-preferred retirement savings vehicles;

Whereas effectively and sustainably withdrawing retirement resources throughout an individual's retirement years is as important and crucial as saving and accumulating funds for retirement; and

Whereas the month of October 2020, has been designated as ''National Retirement Security Month'': Now, therefore, be it

Resolved, That the Senate—

(1) supports the goals and ideals of National Retirement Security Month, including raising public awareness of the importance of saving adequately for retirement;

(2) acknowledges the need to raise public awareness of the variety of tax-preferred retirement vehicles that are used by many people in the United States, but remain underutilized; and

(3) calls on States, localities, schools, universities, nonprofit organizations, businesses, other entities, and the people of the United States to observe National Retirement Security Month with appropriate programs and activities, with the goal of increasing the retirement savings and personal financial literacy of all people in the United States and enhancing the retirement security of the people of the United States.

SENATE RESOLUTION 744—CONGRATULATING THE NATIONAL FEDERATION OF FEDERAL EMPLOYEES ON THE CELEBRATION OF ITS 51ST CONVENTION ON OCTOBER 5, 2020, AND RECOGNIZING THE VITAL CONTRIBUTIONS TO THE UNITED STATES MADE BY THE MEMBERS OF THE NATIONAL FEDERATION OF FEDERAL EMPLOYEES FOR 103 YEARS

Mr. VAN HOLLEN (for himself and Mr. CARDIN) submitted the following resolution; which was referred to the Committee on Homeland Security and Governmental Affairs:

S. RES. 744

Whereas the National Federation of Federal Employees (referred to in this preamble as the ''NFFE'') was created in 1917 as the first union in the United States to exclusively represent civil service Federal employees;

Whereas the NFFE preserves, promotes, and improves the rights and working conditions of Federal employees and other professionals through all lawful means, including collective bargaining, legislative activities, and contributing to civic and charitable organizations;

Whereas the contributions of the NFFE are noted in history through a century of achievements for the Federal labor movement, including numerous reforms to workforce policies and working conditions;

Whereas members of the NFFE serve the United States by performing critical functions throughout Federal agencies, including the Department of Defense, the Department of Housing and Urban Development, the Department of Veterans Affairs, the Bureau of Land Management, the Forest Service, the National Park Service, the Federal Aviation Administration, the General Services Administration, the Indian Health Service, the Passport Service of the Bureau of Consular Affairs, and the Corps of Engineers;

Whereas, through a partnership with the International Association of Machinists and Aerospace Workers and the American Federation of Labor and Congress of Industrial Organizations, the NFFE promotes better working conditions and an improved quality of life for working families across the United States;

Whereas the NFFE represents more than 110,000 Federal employees; and

Whereas the NFFE continues to ensure that the voices of Federal civil servants are properly represented: Now, therefore, be it

Resolved, That the Senate—

(1) congratulates and honors the National Federation of Federal Employees on the celebration of its 51st Convention; and

(2) recognizes the vital contributions of the members of the National Federal of Federal Employees to the United States during the 103-year period since the founding of the National Federation of Federal Employees.

SENATE RESOLUTION 745—HONORING THE LIFE, LEGACY, AND EXAMPLE OF FORMER ISRAELI PRIME MINISTER YITZHAK RABIN ON THE 25TH ANNIVERSARY OF HIS DEATH

Mr. CARDIN (for himself, Mr. PORTMAN, Mr. LEAHY, Mrs. CAPITO, Mr. MURPHY, Ms. COLLINS, Mrs. FEINSTEIN, Mr. CRAMER, and Mr. KAINE) submitted the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 745

Whereas Yitzhak Rabin was born March 1, 1922, in Jerusalem;

Whereas Yitzhak Rabin served as Ambassador to the United States from 1968 to 1973, Minister of Defense from 1984 to 1990, and Prime Minister from 1974 to 1977 and from 1992 until his assassination in 1995;

Whereas, in 1975, Prime Minister Yitzhak Rabin signed the interim agreement with Egypt which laid the groundwork for the 1979 Camp David Peace Treaty between Israel and Egypt;

Whereas, on September 13, 1993, in Washington, D.C., Yitzhak Rabin signed the Declaration of Principles framework agreement between Israel and the Palestinians, also known as the Oslo Accords;

Whereas Yitzhak Rabin, along with Shimon Peres and Yasser Arafat, received the 1994 Nobel Peace Prize for their efforts to create peace in the Middle East;

Whereas, in his acceptance speech for the Nobel Prize, Rabin said, ''We will pursue the course of peace with determination and fortitude. We will not let up. We will not give in. Peace will triumph over all our enemies,

because the alternative is grim for us all. And we will prevail. We will prevail because we regard the building of peace as a great blessing for us, and for our children after us.'';

Whereas, on October 26, 1994, Yitzhak Rabin and King Hussein of Jordan signed a peace treaty between Israel and Jordan, saying at the time: ''There is only one radical means of sanctifying human lives. Not armored plating, or tanks, or planes, or concrete fortifications. The one radical solution is peace.'';

Whereas, on November 4, 1995, Yitzhak Rabin was assassinated after attending a peace rally in Tel Aviv, where his last words were, ''I have always believed that the majority of the people want peace, are prepared to take risks for peace . . . Peace is what the Jewish People aspire to.'';

Whereas Yitzhak Rabin dedicated his life to the cause of peace and security for the State of Israel by defending his nation against all threats, including terrorism and invasion, and undertaking courageous risks in the pursuit of peace;

Whereas, in the years following Yitzhak Rabin's assassination, successive United States administrations have sought to help Israel and the Palestinians achieve a negotiated two-state solution that ends their conflict; and

Whereas, twenty-five years later, the leadership of Yitzhak Rabin can be a model for securing peace during a time of conflict: Now, therefore, be it

Resolved, That the Senate—

(1) honors the historic role of Yitzhak Rabin for his distinguished service to the Israeli people and extends its deepest sympathy and condolences to the family of Yitzhak Rabin and the people of Israel on the 25th anniversary of his death;

(2) recognizes and reiterates its continued support for the close ties and special relationship between the United States and Israel;

(3) expresses support and admiration for community leaders and government officials who work tirelessly to encourage co-existence and cooperation between the Israelis and Palestinians; and

(4) reaffirms its strong support for a negotiated solution to the Israeli-Palestinian conflict resulting in two states—a democratic Jewish State of Israel, and a viable, democratic Palestinian state—living side-by-side in peace, security, and mutual recognition.

AMENDMENTS SUBMITTED AND PROPOSED

SA 2678. Mr. CRUZ submitted an amendment intended to be proposed by him to the bill S. 4653, to protect the healthcare of hundreds of millions of people of the United States and prevent efforts of the Department of Justice to advocate courts to strike down the Patient Protection and Affordable Care Act; which was ordered to lie on the table.

SA 2679. Mr. CRUZ submitted an amendment intended to be proposed by him to the bill S. 4653, supra; which was ordered to lie on the table.

TEXT OF AMENDMENTS

SA 2678. Mr. CRUZ submitted an amendment intended to be proposed by him to the bill S. 4653, to protect the healthcare of hundreds of millions of people of the United States and prevent efforts of the Department of Justice to advocate courts to strike down the Patient Protection and Affordable Care Act; which was ordered to lie on the table; as follows:

Strike all after the enacting clause and insert the following:

SECTION 1. POINT OF ORDER AGAINST LEGISLATION MODIFYING THE NUMBER OF JUSTICES OF THE SUPREME COURT OF THE UNITED STATES.

(a) POINT OF ORDER.—

(1) IN GENERAL.—In the Senate, it shall not be in order to consider a provision in a bill, joint resolution, motion, amendment, amendment between the Houses, or conference report amending section 1 of title 28, United States Code, to modify, or that otherwise modifies, the total number of Justices of the Supreme Court of the United States.

(2) POINT OF ORDER SUSTAINED.—If a point of order is made by a Senator against a provision described in paragraph (1), and the point of order is sustained by the Chair, that provision shall be stricken from the measure and may not be offered as an amendment from the floor.

(b) CONFERENCE REPORTS.—When the Senate is considering a conference report on, or an amendment between the Houses in relation to, a bill or joint resolution, upon a point of order being made by any Senator pursuant to subsection (a)(1), and such point of order being sustained, such material contained in such conference report or House amendment shall be stricken, and the Senate shall proceed to consider the question of whether the Senate shall recede from its amendment and concur with a further amendment, or concur in the House amendment with a further amendment, as the case may be, which further amendment shall consist of only that portion of the conference report or House amendment, as the case may be, not so stricken. Any such motion in the Senate shall be debatable. In any case in which such point of order is sustained against a conference report (or Senate amendment derived from such conference report by operation of this subsection), no further amendment shall be in order.

(c) SUPERMAJORITY WAIVER AND APPEAL.—In the Senate, this section may be waived or suspended only by an affirmative vote of two-thirds of the Members, duly chose and sworn. An affirmative vote of two-thirds of Members of the Senate, duly chosen and sworn shall be required to sustain an appeal of the ruling of the Chair on a point of order raised under this section.

SA 2679. Mr. CRUZ submitted an amendment intended to be proposed by him to the bill S. 4653, to protect the healthcare of hundreds of millions of people of the United States and prevent efforts of the Department of Justice to advocate courts to strike down the Patient Protection and Affordable Care Act; which was ordered to lie on the table; as follows:

At the end, add the following:

SEC. 2. POINT OF ORDER AGAINST LEGISLATION MODIFYING THE NUMBER OF JUSTICES OF THE SUPREME COURT OF THE UNITED STATES.

(a) POINT OF ORDER.—

(1) IN GENERAL.—In the Senate, it shall not be in order to consider a provision in a bill, joint resolution, motion, amendment, amendment between the Houses, or conference report amending section 1 of title 28, United States Code, to modify, or that otherwise modifies, the total number of Justices of the Supreme Court of the United States.

(2) POINT OF ORDER SUSTAINED.—If a point of order is made by a Senator against a provision described in paragraph (1), and the point of order is sustained by the Chair, that provision shall be stricken from the measure and may not be offered as an amendment from the floor.

(b) CONFERENCE REPORTS.—When the Senate is considering a conference report on, or an amendment between the Houses in relation to, a bill or joint resolution, upon a point of order being made by any Senator pursuant to subsection (a)(1), and such point of order being sustained, such material contained in such conference report or House amendment shall be stricken, and the Senate shall proceed to consider the question of whether the Senate shall recede from its amendment and concur with a further amendment, or concur in the House amendment with a further amendment, as the case may be, which further amendment shall consist of only that portion of the conference report or House amendment, as the case may be, not so stricken. Any such motion in the Senate shall be debatable. In any case in which such point of order is sustained against a conference report (or Senate amendment derived from such conference report by operation of this subsection), no further amendment shall be in order.

(c) SUPERMAJORITY WAIVER AND APPEAL.—In the Senate, this section may be waived or suspended only by an affirmative vote of two-thirds of the Members, duly chose and sworn. An affirmative vote of two-thirds of Members of the Senate, duly chosen and sworn shall be required to sustain an appeal of the ruling of the Chair on a point of order raised under this section.

AUTHORITY FOR COMMITTEES TO MEET

Mr. CORNYN. Mr. President, I have 3 requests for committees to meet during today's session of the Senate. They have the approval of the Majority and Minority leaders.

Pursuant to rule XXVI, paragraph 5(a), of the Standing Rules of the Senate, the following committees are authorized to meet during today's session of the Senate:

COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION

The Committee on Commerce, Science, and Transportation is authorized to meet during the session of the Senate on Thursday, October 1, 2020, at 9:30 a.m., to conduct a hearing.

COMMITTEE ON THE JUDICIARY

The Committee on the Judiciary is authorized to meet during the session of the Senate on Thursday, October 1, 2020, at 10 a.m., to conduct a hearing.

SUBCOMMITTEE ON READINESS AND MANAGEMENT SUPPORT

The Subcommittee on Readiness and Management Support of the Committee on Armed Services is authorized to meet during the session of the Senate on Thursday, October 1, 2020, at 9:15 a.m., to conduct a hearing.

NATIONAL CHILDHOOD CANCER AWARENESS MONTH

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 742, submitted earlier today.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the resolution by title.

The bill clerk read as follows:

A resolution (S. Res. 742) designating September 2020 as National Childhood Cancer Awareness Month.

There being no objection, the Senate proceeded to consider the resolution.

Mr. MCCONNELL. I know of no further debate on the measure.

The PRESIDING OFFICER. Is there further debate?

If not, the question is on agreeing to the resolution.

The resolution (S. Res. 742) was agreed to.

Mr. MCCONNELL. I ask unanimous consent that the preamble be agreed to and that the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

SUPPORTING THE GOALS AND IDEALS OF NATIONAL RETIREMENT SECURITY MONTH

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the consideration of S. Res. 743, submitted earlier today.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the resolution by title.

The bill clerk read as follows:

A resolution (S. Res. 743) supporting the goals and ideals of National Retirement Security Month, including raising public awareness of the various tax-preferred retirement vehicles, increasing personal financial literacy, and engaging the people of the United States on the keys to success in achieving and maintaining retirement security throughout their lifetimes.

There being no objection, the Senate proceeded to consider the resolution.

Mr. MCCONNELL. I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and that the motions to reconsider be considered made and laid upon the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The resolution (S. Res. 743) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

FLOODS ACT

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Committee on Commerce, Science, and Transportation be discharged from further consideration of S. 4462 and that the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. The clerk will report the bill by title.

The bill clerk read as follows:

A bill (S. 4462) to establish a national integrated flood information system within the National Oceanic and Atmospheric Administration, and for other purposes.

There being no objection, the committee was discharged, and the Senate proceeded to consider the bill.

Mr. MCCONNELL. I ask unanimous consent that the Wicker substitute amendment at the desk be agreed to; that the bill, as amended, be considered read a third time and passed; and that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The amendment in the nature of a substitute, was agreed to.

The bill (S. 4462), as amended, was ordered to be engrossed for a third reading, was read the third time, and passed.

WHOLE VETERAN ACT

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Senate proceed to the immediate consideration of H.R. 2359, which was received from the House.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the bill by title.

The bill clerk read as follows:

A bill (H.R. 2359) to direct the Secretary of Veterans Affairs to submit to Congress a report on the Department of Veterans Affairs advancing of whole health transformation.

There being no objection, the Senate proceeded to consider the bill.

Mr. MCCONNELL. I ask unanimous consent that the bill be considered read a third time.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill was ordered to a third reading and was read the third time.

Mr. MCCONNELL. I know of no further debate on the bill.

The PRESIDING OFFICER. Is there further debate on the bill?

Hearing none, the bill having been read the third time, the question is, Shall the bill pass?

The bill (H.R. 2359) was passed.

Mr. MCCONNELL. I ask unanimous consent that the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

IDENTIFYING BARRIERS AND BEST PRACTICES STUDY ACT

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Committee on Veterans' Affairs be discharged from further consideration of H.R. 4183 and the Senate proceed to its immediate consideration.

The PRESIDING OFFICER. Without objection, it is so ordered.

The clerk will report the bill by title.

The bill clerk read as follows:

A bill (H.R. 4183) to direct the Comptroller General of the United States to conduct a study on disability and pension benefits provided to members of the National Guard and members of reserve components of the Armed Forces by the Department of Veterans Affairs, and for Other purposes.

There being no objection, the committee was discharged and the Senate proceeded to consider the bill, which was reported from the Committee on Veterans' Affairs.

Mr. MCCONNELL. I ask unanimous consent that the bill be considered read a third time and passed and the motion to reconsider be considered made and laid upon the table.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (H.R. 4183) was ordered to a third reading, was read the third time, and passed.

DISCHARGE AND REFERRAL—S. 4433

Mr. MCCONNELL. Mr. President, I ask unanimous consent that the Committee on Agriculture, Nutrition, and Forestry be discharged from further consideration of S. 4433 and the bill be referred to the Committee on Energy and Natural Resources.

The PRESIDING OFFICER. Without objection, it is so ordered.

UNANIMOUS CONSENT AGREEMENT—S. 4462

Mr. MCCONNELL. Mr. President, I ask unanimous consent that we vitiate action on S. 4462.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDERS FOR MONDAY, OCTOBER 5, 2020

Mr. MCCONNELL. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 4:30 p.m., Monday, October 5; further, that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; finally, that following leader remarks, the Senate proceed to executive session for the consideration of the Newman nomination.

The PRESIDING OFFICER. Without objection, it is so ordered.

ADJOURNMENT UNTIL MONDAY, OCTOBER 5, 2020, AT 4:30 P.M.

Mr. MCCONNELL. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it stand adjourned under the previous order.

There being no objection, the Senate, at 4:31 p.m., adjourned until Monday, October 5, 2020, at 4:30 p.m.

EXTENSIONS OF REMARKS

IN RECOGNITION OF MARK ANTHONY

HON. LAUREN UNDERWOOD

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Ms. UNDERWOOD. Madam Speaker, I rise to recognize Mark Anthony for his service in my office in Washington, D.C.

Mark joined our office as a legislative fellow and served as an advisor for my work on the House Committee on Veterans' Affairs, in addition to handling a policy portfolio that included defense, foreign affairs, agriculture, and trade. Among other accomplishments, he coordinated legislation to improve mental health care delivery at the VA and worked with our agricultural community to navigate the challenges of COVID–19 and ongoing trade tensions. Mark was instrumental in the development and introduction of the Lethal Means Safety Training Act, the Veterans in STEM Act, and the No Coronavirus Copays for Veterans Act.

Mark's professionalism, work ethic, and dedication were invaluable assets throughout his time in my office. I commend his drive to advance mental health and suicide prevention services for veterans and to improve outcomes for women veterans and younger veterans. Although Mark may be leaving our office, our veterans in northern Illinois and our community members who support and honor them will continue to benefit from the results of his hard work and expertise.

Prior to joining my staff, Mark earned a Bachelor of Science from George Mason University and served our country as an officer in the United States Marine Corps, where he deployed twice in support of Operation Enduring Freedom. I am grateful he chose to continue his career in public service by joining my office. Our office will miss his kindness, diligence, and friendship.

Madam Speaker, I would like to formally thank Mark Anthony for his service to my office, to Illinois' 14th Congressional District, and to our country.

UYGHUR FORCED LABOR DISCLOSURE ACT OF 2020

SPEECH OF

HON. SHEILA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Wednesday, September 30, 2020

Ms. JACKSON LEE. Mr. Speaker, as a cosponsor and a senior member of the Committees on the Judiciary and Homeland Security, I rise in strong support of H.R. 6270, the ''Uyghur Forced Labor Disclosure Act of 2020'', which directs the Securities and Exchange Commission to issue rules requiring U.S. publicly traded companies to disclose imports of manufactured goods and materials that originate in or are sourced in part from the Xinjiang Uyghur Autonomous Region (XUAR) on an annual basis.

With this bill, companies would also be required to disclose that the goods and materials did not originate from forced labor as well as describe the nature and extent of commercial activity related to the products.

Furthermore, companies must also provide the gross revenue and net profits attributable to the good.

The legislation also stipulates that companies must say whether they intend to continue importing from that entity.

H.R. 6270 ensures that both the SEC and GAO would be required to report to Congress on compliance, oversight, and effectiveness.

For years, the Chinese government has engaged in a systematic campaign of repression targeting Uyghurs and other Muslim groups.

Chinese authorities have used the pretext of terrorism to suspend the Uyghurs' civil and political rights and pursue the internment of Uyghurs in ''educational training centers'' where they are forbidden from practicing their religious and cultural beliefs.

These same education centers are forced labor camps.

According to the BBC, approximately one million Uyghurs have been detained without trial, forced into mass internment camps, and subjected to forced labor, torture, political indoctrination, forced renunciations of faith, and other severe human rights abuses.

The U.S. Holocaust Museum's Simon-Skjodt Center for the Prevention of Genocide recently determined that there is reasonable basis to believe crimes against humanity are being committed in the XUAR.

Furthermore, satellite imagery, leaked official documents from the Chinese government, and the testimony of camp survivors have confirmed a widespread and pervasive forced labor system that exists inside the mass internment camps.

This is a systematic, widespread, and shocking violation of basic human rights for which the Government of China must be held accountable.

The United States cannot and should not sit idly by while these gross injustices are happening.

According to numerous reports, forced labor by the Uyghur detainees in labor camps and factories feed into the supply chains of more than 80 well-known global brands.

In its 2019 Annual Report, the Congressional-Executive Commission on China found that goods produced with forced labor included textiles, electronics, food products, shoes, tea, and handicrafts.

Mr. Speaker, companies have a moral duty to ensure the goods they purchase are made using free workers who are paid a fair wage, and the transparency measures in this bill are key to ending the persistence of modern-day slavery in supply chains.

Importing products made wholly or in part from forced or prison labor is not only against U.S. law but also international human rights standards.

However, audits and due diligence efforts to ensure clean supply chains are nearly impossible due to government surveillance and the pervasiveness of forced labor in the regional economy.

Time and time again, the United States has been the beacon of freedom in the world and a fierce defender of human rights.

Today, we, as Members of Congress, have a duty to continue that legacy by condemning the heinous human rights violations against the Uyghur people in the XUAR.

By passing H.R. 6270, our actions send a message to China that Congress not only stands in solidarity with the Uyghur people but also that we will always speak up for the vulnerable and the voiceless whether that is in the Xinjiang region of China or anywhere else in the world.

Lastly, Mr. Speaker, I wish to thank Congresswoman WEXTON for introducing this vital piece of legislation, and I am proud to do my part in leading this bill through the House.

I urge my colleagues on both sides of the aisle to join me in voting for H.R. 6270.

HONORING THE LIFE OF JUDY CHRISTOFOLIS

HON. SUSAN W. BROOKS

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mrs. BROOKS of Indiana. Madam Speaker, I rise today to honor the life and legacy of my dear friend, Judy Christofolis. Not only was she my close friend, she was also a community leader and a successful businesswoman. Over the last ten plus years of her life, she exhibited her incredible spirit and determination as she bravely fought metastatic breast cancer. Sadly, she lost her battle on March 12, 2020. I will forever cherish my memories of her.

Judy was born on January 19, 1962, in Indianapolis, Indiana, to Gerald and Martha Morford. She proudly attended school in Warren Township in Indianapolis at Moorehead Elementary, Woodview Junior High, and graduated from Warren Central High School in 1980. Judy attended Butler University, graduating in 1984 with a Bachelor of Science in accounting and finance.

Judy began her career as a CPA with Geo. S. Olive, a regional accounting firm. There she met her future husband, Ted, whom she married in 1986. Judy later was controller at Baker & Daniels law firm but eventually founded her own accounting business, Windsor Accounting Services, which later became Redwood Accounting Services. In 1998, she and Ted started Redwood Investment Advisors, an independent fee-only investment advisory firm. In 2011, Judy joined my campaign team, and served as my treasurer since 2012.

Judy and I met as members of the Junior League of Indianapolis, an organization of women committed to promoting voluntarism,

developing the potential of women and improving the community through the effective action and leadership of trained volunteers. Judy was an exemplary and active member, serving as treasurer twice and was a board member for multiple years. She used her financial skills in the volunteer world, developing the investment strategy for the Junior League's endowment, making the Indianapolis chapter one of the most successful chapters in the country. The Indianapolis Art Center (IAC) benefitted from her accounting, financial and investment skills during her tenure on its board. Ted and Judy enjoyed taking clients and friends to ArtSparkle, the summer party supporting IAC. In addition, Judy was on the board of Indianapolis Day Nursery, Indiana's oldest and largest early childhood education non-profit.

In the last decade of Judy's life, while she battled breast cancer, she was a founding member of the Indianapolis American Cancer Society Guild and served as its treasurer. The Guild's mission is to support the Central Indiana office of the American Cancer Society by generating awareness, raising funds and providing support for community outreach programs to achieve the shared goal of saving lives by helping people stay well, get well, find cures and fight back. This mission epitomized Judy's fight against breast cancer.

Judy was known for her compassion and friendship and lived her life with passion. She was cherished by many, including her dear friends in her book club as well as the ''Kool Kat'' Club, made up of long-time high school girlfriends. Every Christmas, she entertained clients and friends at a much anticipated and beloved party, exclusively catered by Judy. She learned her skills from studying at the Culinary Institute of America in New York. The cookies and dog treats were especially prized by those fortunate enough to attend!

Judy had a love for animals that was unmatched. Often times, Judy found dogs but sometimes they found her as was the case with Jasmine, one of her favorite strays. Ted and Judy's beautiful homes were always full of dogs adored by them both.

Judy spent summers at Lake Wawasee in Syracuse, Indiana as a child, and later she and Ted built a beautiful home on Syracuse Lake which was always full of family, friends and fun. I was pleased to be a guest there several times.

She was a loving wife, sister, daughter, aunt and friend who will be missed deeply by so many people. She was strong and courageous throughout her entire fight with breast cancer, never lost her positivity and fought hard until the very end.

I stand today in honor of the wonderful life my friend Judy lived. I know so many will miss her and remember her as a shining light in their lives. I send my sincerest condolences to her husband Ted, her fur babies Jasmine, Big Boy Joe, J.B., Josie and the late Brady, her brother Richard and his family and all who were fortunate enough to know her.

CELEBRATING FILIPINO AMERICAN HISTORY MONTH

HON. BEN McADAMS

OF UTAH

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. McADAMS. Madam Speaker, I rise today in celebration of Filipino American History Month which commemorates the arrival of the first Filipinos, or ''Luzones Indios,'' landing in what is now known as Morro Bay, California on October 18, 1587. For over 400 years, Filipino Americans have been key participants in the American experiment, striving towards equality and justice for all.

This continues today. As our nation battles the COVID–19 pandemic, Filipino American healthcare workers have been essential in our response to the virus. Nearly 150,000 healthcare workers across the country are second or third-generation Filipino American. I deeply appreciate the hard work and sacrifice of these heroes who fight every day to protect and heal their fellow Americans.

Since 1900, Filipino Americans have enriched the fabric of Utah as artists, farmers, educators, healthcare workers, and activists. Over 15,000 Filipino Americans call Utah home and are one of our state's fastest growing communities. As we commemorate Filipino American History Month, I am so grateful for the contributions that have been made to our great state and Nation by Filipino Americans.

JUDGE RICHARD E. FIELDS 100TH BIRTHDAY

HON. JOE CUNNINGHAM

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. CUNNINGHAM. Madam Speaker, I rise today to celebrate the 100th birthday of Judge Richard E. Fields of Charleston, South Carolina. I am in awe of his continued public service to the Lowcountry and his trailblazing legacy for the African American community of our state.

After graduating from Howard University School of Law in 1947, Judge Fields was the first black attorney to open a law firm in Charleston. He found success after success an serve honorably as a South Carolina Circuit Court judge until his retirement in 1992.

Judge Fields is a proud worshiper at the historic Centenary Methodist Church, where he was elected as Treasurer in 1950 and still holds that position to this date. For more than 50 years, he served as the delegate to the South Carolina Annual Conference and was a member of the Merger Committee that desegregated the white and Black conferences of the United Methodist Church during the late 1960s and early 1970s. A voting rights ''champion, Judge Fields helped form the Charleston County Political Action Committee where he organized black voters and helped elect Black South Carolinians to office.

Anyone who knows Judge Fields can attest that he is a friend who quickly becomes family. He is more than willing to offer legal advice or spiritual affirmations and he does so with integrity and kindness. Not many people can say they have a U.S. Post Office named after them like Judge Fields; even less can say they have lived such a fulfilling and philanthropic life like Judge Fields. I thank Judge Fields for an incredible century of service to South Carolina.

PERSONAL EXPLANATION

HON. PETE STAUBER

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. STAUBER. Madam Speaker, due to commitments back in my district, I had to miss votes on September 30, 2020. Had I been present, I would have voted YEA on Roll Call No. 209; YEA on Roll Call No. 210; YEA on Roll Call No. 211; NAY on Roll Call No. 212; and NAY on Roll Call No. 213.

HOMELAND SECURITY ACQUISITION PROFESSIONAL CAREER PROGRAM ACT

SPEECH OF

HON. SHEILA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Wednesday, September 30, 2020

Ms. JACKSON LEE. Mr. Speaker, I rise in support of H.R. 5822, the ''Homeland Security Acquisition Professional Career Program Act,'' which would authorize an acquisition professional career program (APCP) within DHS.

This program, which DHS established in 2008, is a pipeline for a cadre of acquisition professionals to support the Department's multi-billion dollar investments in goods and services.

Under APCP, DHS hires individuals, many of which are new to the Federal government or recent college graduates, at the GS–7 grade level to work in one of six acquisition positions.

Upon successful completion of the three-year program, participants are placed into permanent full-time positions at the GS–12 grade level.

The bill outlines the requirements for the program, which includes acquisition training, on-the-job experience, Department-wide rotations, mentorship, shadowing, and other career development opportunities for participants.

The bill also requires the Secretary of Homeland Security to report annually to Congress through fiscal year 2026 on various aspects of the program, including the DHS components and offices that participated, attrition and retention rates, and the Department's recruiting efforts for the program.

The Department of Homeland Security is the third largest Department of the U.S. government, with a workforce of 229,000 employees and 22 components including TSA, Customs and Border Protection, Immigration and Customs Enforcement, U.S. Citizenship and Immigration Services, FEMA, the Coast Guard, Secret Service, Federal Law Enforcement Training Centers, the National Protection and Programs Directorate, and the Science and Technology Directorate.

This year, the House Appropriations Committee approved $50.72 billion in FY 2021 discretionary funding, including $48.1 billion in

nondefense discretionary funding, for the Department of Homeland Security.

These taxpayer dollars must be used in a manner consistent with the mission and purpose of the Department of Homeland Security, while using the best methods for assuring adherence to good government principles.

I ask my colleagues to join me in supporting this bill.

PERSONAL EXPLANATION

HON. SETH MOULTON

OF MASSACHUSETTS

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. MOULTON. Madam Speaker, I was unavoidably detained from the floor on Wednesday, September 30, 2020 and missed one vote. Had I been present to vote, I would have voted in the following manner: YEA on roll call No. 213.

CELEBRATING LOVELAND CHAPTER 211'S 150TH RE-CONSECRATION

HON. BRAD R. WENSTRUP

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. WENSTRUP. Madam Speaker, I am honored to recognize the Royal Arch Masons at Loveland Chapter 211's re-consecration on October 7, 2020.

Loveland Chapter 211 has served the community since 1870, building a network of over 600 members through the years. Currently, the association has 57 members who proudly dedicate their charter to service, personal development, and the betterment of their community.

Congratulations to Loveland Chapter 211 on this notable anniversary and re-consecration. We are grateful for their many years of service.

RECOGNIZING THE ACHIEVEMENTS OF LIEUTENANT GENERAL ASHLEY

HON. ADAM B. SCHIFF

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. SCHIFF. Madam Speaker, I rise today to recognize Lieutenant General Robert Ashley on the eve of his retirement, after over 35 years of service to his nation as an Army intelligence officer.

As testament to his competence and character, on two-separate occasions, the Nation entrusted General Ashley with the responsibility to lead different elements of our Intelligence Community.

The congressional intelligence committees are unique as they must truly partner with the organizations they are charged to oversee.

In my time on the Intelligence Committee, and his time leading military intelligence organizations, I have appreciated General Ashley's candor and ability to think strategically.

As the Army's Intelligence Chief, he implemented reforms that saved struggling acquisition programs and delivered tools directly to warfighters.

Most recently, in his tenure as Director of DIA, General Ashley led key initiatives that ensured continuing the transformation of the DIA.

Perhaps most importantly, and in the best tradition of service, General Ashley took time out of his busy schedule to mentor junior intelligence officers. I am confident that this next generation of intelligence professionals will be his most significant and lasting legacy.

General Ashley has done his part to leave the Army, the Department of Defense, the Defense Intelligence Agency, and the Intelligence Community in a stronger position for his successors and the Nation. We wish him well.

HONORING WILLIAM LANSON FOR HIS UNIQUE AND INVALUABLE CONTRIBUTIONS TO THE CITY OF NEW HAVEN

HON. ROSA L. DeLAURO

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Ms. DELAURO. Madam Speaker, I am honored to rise today to join the Amistad Committee, the City of New Haven, and all of those gathered today in paying tribute to a pioneering African American who quite literally changed the landscape of the City of New Haven, William Lanson, and who ultimately faced defamation and destitution from a white Majority that used its levers of state power to put him into ruin. But, today, we return him to his rightful and honorable place in the history of our town as a bronze statue is dedicated in his honor.

According to a Hartford Courant piece in 2001, quote, ''William Lanson was an extraordinary figure in early 19th-century New Haven. Almost certainly an escaped slave, Lanson overcame incredible odds to become a highly successful businessman, one of the earliest black entrepreneurs in Connecticut.'' William Lanson was a man ahead of his time in many ways, none more so than in the innovative engineering concepts that he brought to his successful projects in the City of New Haven. Though little is known about his earliest years, we do know that Lanson and his family moved to New Haven around 1803 and within just seven years he became the city's principal wharf builder.

In 1810, he was the only contractor able to complete the complicated 1,350-foot extension to the city's Long Wharf, enabling larger boats to dock in the city's port and allowing the city to compete with nearby ports including New York. The extension was only possible because he employed specially designed scows, carefully designed by Lanson himself, capable of carrying twenty-five tons of stone at a time. The stone was quarried by him and his laborers, from nearby East Rock, floated on the scows to the harbor where they were installed to stabilize the pilings for the wharf's extension. Following his success at Long Wharf, Lanson was contracted to build the retaining wall for the newly planned Farmington Canal where it flowed into the harbor basin. These two projects changed the very character of New Haven Harbor and the City itself, further allowing both to thrive and prosper—a feat which would have not been accomplished without William Lanson's invaluable contributions.

It was more than the architecture of the city to which he contributed. It was its business landscape, its civic culture, and its moral fiber, as an African American leader who fought their disenfranchisement. He was a successful businessman, operating a hotel, grocery, and livery service, as well as a founding member of the Temple Street Church, which later became the Dixwell Avenue Congregational United Church of Christ. He was a fierce abolitionist and advocate for voting rights.

According to research by Yale, in 1811, the Reverend Timothy Dwight, President of Yale College, praised William Lanson, as quote, ''honourable proof of the character which they sustain, both for capacity, and integrity, in the view of respectable men.'' But, as the Yale research said, quote, ''By the end of the 1820s such praise had all but vanished . . . . and Lanson found himself beset financially and attacked and ridiculed.'' According to Amy L. Trout, curator at the New Haven Colony Historical Society, quote, ''he was constantly harassed by the police. The minute he was released from the police station and got home, he would be arrested for something else.''

Late in life, Lanson wrote that he was jailed five times in six years for a total of 450 days, for selling liquor at his hotel, the Liberian, a very common practice. The pressure continued until he died forgotten, defamed, and destitute. So, we right that wrong. And, we must. Lanson was an unbelievably important and impressive man, an African American who reshaped, reformed, and re-invigorated. Doing so as an African American in the 19th century. He was a force.

William Lanson left an indelible mark on the City of New Haven and I am glad to be able to witness our community coming together to recognize, celebrate, and preserve his story. My deepest thanks to the dedicated members of the Amistad Committee and the City of New Haven who have ensured that William Lanson's contributions to our community will always be remembered.

COVID PREPAREDNESS, RESPONSE, AND EFFECTIVE PLANNING FOR ADVANCED REQUIREMENTS BY THE EXECUTIVE BRANCH ACT OF 2020

SPEECH OF

HON. SHEILA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Wednesday, September 30, 2020

Ms. JACKSON LEE. Mr. Speaker, as the Founding Chair of the Coronavirus Task Force and a senior member of the Judiciary and Homeland Committees, I rise in strong support of H.R. 7496, the ''COVID PREPARE Act,'' which requires every federal agency to submit a report to Congress on the steps they are taking to respond to a potential resurgence of COVID–19, including measurable goals, anticipated challenges, and how they will consult with Congress.

I would like to thank Representatives BRAD SCHNEIDER and JOHN KATKO for introducing and leading this important piece of legislation.

By passing this bipartisan bill today, Congress has taken it upon itself to ensure that all federal agencies are aware of the risks associated with any resurgence in coronavirus cases and are prepared to address them efficiently.

This legislation stipulates that Congress will receive regular updates from these agencies until the President ends the emergency declaration related to the coronavirus pandemic.

At the beginning of this pandemic, the federal government's response to COVID–19 was delayed, disorganized, and haphazard.

It is because of these inefficiencies that the United States currently has over 7 million cases of the coronavirus and over 205,000 related deaths.

In the state of Texas alone, there are currently 761,332 cases of the virus and approximately 15,820 deaths.

We must not make the same mistakes again.

As the COVID–19 pandemic continues to wreak havoc on American communities and take thousands of American lives, experts have warned that things might get even worse in the fall, especially as schools, businesses, and communities continue to reopen.

Over the last six months, federal agencies have learned many hard lessons, and they have crafted new, effective strategies that will protect families and communities across the country fight against a possible resurgence of coronavirus cases this fall.

We must put our faith in science and continue to invest in testing, contact tracing, as well as vaccine development.

In my own district, I have facilitated the opening of 32 testing sites since the beginning of the pandemic in an effort to curb the spread of the virus.

Mr. Speaker, Congress has a duty to assure the American people that the federal government is doing everything in its power to beat back the dual health and economic crises of this pandemic.

H.R. 7496 honors that responsibility entrusted to us by the American people, and I urge my colleagues on both sides of the aisle to come together and vote for this important legislation.

COMMEMORATING THE VICTIMS OF THE NAZI MASSACRE AT BABYN YAR IN UKRAINE BETWEEN 29–30 SEPTEMBER 1941

HON. ELIOT L. ENGEL

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. ENGEL. Madam Speaker, I rise today to commemorate all those who lost their lives in the Holocaust and honor the memory of those who were so brutally murdered in the atrocities that took place between 29–30 September 1941 at Babyn Yar in Ukraine.

It is of great importance to me to bring this issue to the attention of the United States Congress because of my Jewish heritage and family ties to Ukraine, but also to shine a light on one of the darkest chapters in our shared history. The past must never be forgotten, and the lessons we learn, especially the painful ones, should guide us to a better future.

As we see a resurgence of antisemitism and Holocaust denial across the world, and when there are fewer and fewer living survivors to tell the story first hand, it is essential that we learn the tragedies of the past and educate future generations so we can prevent these events from never happening again.

Today, it is critically important to remember one of the Holocaust's most oft-forgotten horrors—the massacre that took place at Babyn Yar in Ukraine and in other Eastern Europe countries, silenced for so long by the former Soviet Union.

The massacre of Kyiv's Jews at Babyn Yar was one of the largest mass killings by the Nazi regime at a single location during World War II. It is incumbent upon us to remember the sorrow and grief of the victims and their families of the Babyn Yar massacre, and I commend the Ukrainian people for coming together to deal with this tragedy and commemorate the horrific atrocity at Babyn Yar.

In honor of the 79th anniversary of the horrifying massacres at Babyn Yar, where it was officially estimated that up to 100,000 people were murdered during the Nazi occupation of Kyiv from 1941 to 1943, I rise today to honor all those who lost their lives, remind our colleagues and the world of the tremendous evil that took place at Babyn Yar, and commend the people of Ukraine for their commitment to remembering these horrific events. We must continue to stand up and say, ''never again.''

A review of the timeline of events surrounding the Babyn Yar tragedy are an important part of our solemn duty to ensure that terrible events like these can never happen again:

On September 19, 1941, Axis forces occupied Kyiv. A week later, the Nazi occupational government and SS leadership convened at Rear Headquarters Army Group South and made the decision to exterminate the Jews of Kyiv.

On September 28, 1941, the Nazi occupiers of Kyiv posted the following notice: ''All [Jews] living in the city of Kiev and its vicinity are to report by 8 o'clock on the morning of Monday, September 29, 1941, at the corner of Melnykova and Dokterivska Streets (near the cemeteries). They are to take with them documents, money, valuables, as well as warm clothes, underwear, etc. Any [Jew] not carrying out this instruction and who is found elsewhere will be shot. Any civilian entering homes vacated by [Jews] and stealing property will be shot''.

On September 29–30, 1941, the eve of Yom Kippur, the holiest day of the year in Judaism, 33,771 Jewish civilians were shot and killed by machine-gun fire at Babyn Yar, a ravine northwest of Kyiv. Between September and early October 1941, about 38,000 Jews were murdered at or near Babyn Yar; and the total Jewish death toll there until the Nazi retreat was around 40,000.

When Nazi forces retreated from the Soviet Union, they attempted to hide evidence of the massacres at Babyn Yar by exhuming the bodies and burning them, but in 1991, the government of independent Ukraine erected a monument in the shape of a menorah dedicated to the Jewish victims at Babyn Yar. Sadly, the names of many of these civilians who perished have been lost forever.

IN RECOGNITION OF ADAM GROGG

HON. CAROLYN B. MALONEY

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mrs. CAROLYN B. MALONEY of New York. Madam Speaker, I would like to take this opportunity to recognize the extraordinary service of Adam Grogg, who served in the House's Office of General Counsel as an Associate General Counsel. During his tenure, Mr. Grogg played an integral role in safeguarding the legal interests of the House of Representatives and its Members, Officers, and employees in connection with federal court litigation involving issues of the highest institutional importance. Specifically, Mr. Grogg provided invaluable legal counsel and representation to numerous Committees of the House, greatly assisting them both in fulfilling their constitutionally authorized oversight functions and defending those prerogatives in litigation. In particular, Mr. Grogg's legal work has significantly contributed to the Committee on Oversight and Reform's investigation and litigation related to the 2020 decennial census.

Additionally, Mr. Grogg has provided vital legal counsel to the House regarding the presidential impeachment, as well as with respect to the defense of long-standing institutional powers, including the House's constitutional authority to adopt rules permitting its Members to participate in the legislative process remotely by proxy during an unprecedented global pandemic.

Mr. Grogg's work on behalf of the House has been of the highest caliber and I have no doubt that his next employer will benefit from his exceptional legal counsel. On behalf of the entire House community, I thank Mr. Grogg for his dedicated service to the House, and I wish for him the very best in all of his future endeavors.

PERSONAL EXPLANATION

HON. BRIAN BABIN

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. BABIN. Madam Speaker, had I been present, I would have voted: NAY on Roll Call No. 212, P.Q. for H. Res. 1161, and NAY on Roll Call No. 213, Adoption of H. Res. 1161.

INTRODUCTION OF A BILL TO GRANT HONORARY PROMOTION TO WORLD WAR II VETERAN, PRIVATE FIRST CLASS DELBERT LITTRELL TO CORPORAL

HON. GREG WALDEN

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. WALDEN. Madam Speaker, I rise today to introduce a bill to grant an honorary promotion to World War II veteran, Private First Class Delbert Littrell of the United States Marine Corps from Private First Class to Corporal.

PFC Delbert Littrell is an extraordinary World War II veteran. PFC Littrell served in

five major campaigns as a member of the 14th Marine Regiment, 4th Marine Division. He not only survived the combat rigors and horrors of Iwo Jima, but also assaults on the Marshall Islands, Saipan, Tinian, and Okinawa. All of these battles were some of the heaviest battles fought in the Pacific theater during World War II.

The Secretary of the Navy when recommending this honorary promotion said, ''Littrell's extraordinary service to the Marine Corps is noteworthy and rises to the service that warrants favorable consideration for this unique honor. The recommendation to concur with the request is a testament to his enduring selflessness and sacrifice.''

In addition to his service during the war, PFC Littrell has long served his community. The Marine Corps League Coquille River Detachment recognized PFC Littrell as their 2016 Marine of the Year. In 2019, he was awarded with a Marine Corps League Distinguished Service Award and was also recognized as the Marine Corps League Marine of the Year for the Department of Oregon.

PFC Littrell reliably and honorably performed his duties in the Marine Corps throughout his period of active service. PFC Littrell is worthy of an honorary promotion to Corporal. By passing this legislation, we have the opportunity to honor the notable service of this outstanding veteran.

This honorary promotion is championed by the Navy and Marine Corp and I strongly urge my colleagues to support this bill's swift passage.

IN REMEMBRANCE OF GERRY LYNN

HON. BRETT GUTHRIE

OF KENTUCKY

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. GUTHRIE. Madam Speaker, I rise today in remembrance of Gerald Allen ''Gerry'' Lynn of Brandenburg, Kentucky. Gerry passed away on September 6, 2020, and I will miss him deeply.

Gerry was a passionate servant of his community. He always tried to bring people together. I first met him when he served in the Kentucky State House of Representatives. He then went on to serve as the Meade County Judge Executive, a role in which he worked tirelessly to better Meade County and the region. I always enjoyed spending time with him because he was interested in everything—and he could do anything. Whether it was paragliding, wiring his own home, or working hard to help Meade County, he accomplished anything he put his mind to. In addition to serving his community, Gerry also served our Nation in the Army.

Of all of Gerry's accomplishments, he was proudest of his family. My prayers are with his wife Nancye, his children, and his grandchildren. Gerry was an honorable man and a pillar in our community who will be missed by all.

HONORING SHELBY HAMLETT

HON. H. MORGAN GRIFFITH

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. GRIFFITH. Madam Speaker, I rise in honor of Shelby Paisley Hamlett, who passed away on September 14, 2020 at the age of 82. Shelby was dedicated to helping others in an array of volunteer and charitable organizations.

Shelby was born in Wytheville, Virginia on August 20, 1938, to Alton and Rachael Paisley. She grew up in the town and then attended Hollins University, which took her to the Roanoke area where she would spend much of the rest of her life.

Shelby was deeply devoted to several causes and organizations that sought to improve lives in her community and around the world. At the age of 18, she became involved in the General Federation of Women's Clubs (GFWC), starting with the Brambleton Jr. Woman's Club in Blue Ridge District, GFWC Virginia. The organization became a lifelong commitment, and Shelby went on to serve in post after post, including Virginia President 1980 to 1982 and ultimately International President 2000 to 2002. In this role, she helped develop the GFWC Leadership Education and Development Seminar, attended the Women's World Vision Conference in China, and participated in an Operation Smile Medical mission.

Her passion for helping others extended to other causes. I met Shelby when I served on the board of Easter Seals Virginia, an organization devoted to helping Americans living with disabilities, which she assisted in creating and longed served as a member of the Board of Directors. She was also on the national Board of Directors. As the local level, she was part of the Roanoke County PTA Association, helped develop special education classes for the county's schools, and was a longtime active member and deacon at Heights Community Church in Roanoke.

Shelby is survived by her son David, brothers Monte and Randal Paisley, and several nieces and nephews. I would like to extend my condolences to them on their loss.

STATE AND LOCAL CYBERSECURITY IMPROVEMENT ACT

SPEECH OF

HON. SHEILA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Wednesday, September 30, 2020

Ms. JACKSON LEE. Mr. Speaker, I rise in support of H.R. 5823, the State and Local Cybersecurity Improvement Act, which authorizes a new DHS grant program to address cybersecurity vulnerabilities on State and local government networks.

The new grant program would be authorized at $400 million with a graduating cost-share that incentivizes States to increase funding for cybersecurity in their budgets.

Under the bill, State, tribal, and territorial governments would be required to develop comprehensive cybersecurity plans to guide the use of grant funds.

This bill tasks the Cybersecurity and Infrastructure Security Agency (CISA), the Nation's cyber risk advisor, that works with partners to defend against today's threats and collaborating to build more secure and resilient infrastructure for the future to provide support to state and local governments.

The bill also requires CISA to develop a strategy to improve the cybersecurity of State, local, tribal, and territorial governments, among other things, identify Federal resources that could be made available to State and local governments for cybersecurity purposes, and set baseline objectives for State and local cybersecurity efforts.

CISA would also be required to assess the feasibility of implementing a short-term rotational program for the detail of approved State, local, Tribal, and territorial government employees in cyber workforce positions at CISA.

Lastly, the bill establishes a State and Local Cybersecurity Resiliency Committee comprised of representatives from State, local, tribal, and territorial governments to advise and provide situational awareness to CISA regarding the cybersecurity needs of such governments.

As a member of the House Committee on Homeland Security since its establishment, and current Ranking Member of the Judiciary Subcommittee on Crime, Terrorism and Homeland Security. This bill is of importance to me.

The threats we face—digital and physical, man-made, technological, and natural—are more complex, and the threat actors more diverse, than at any point in our history. CISA is at the heart of mobilizing a collective defense as we lead the Nation's efforts to understand and manage risk to our critical infrastructure.

I am a cosponsor of H.R. 5823, and ask my colleagues to join me in supporting this important step to improving cybersecurity of state and local governments.

HONORING SENATOR BILL MONNING

HON. JIMMY PANETTA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. PANETTA. Madam Speaker, I ride today to honor Bill Monning, the retiring Senator representing the 17th Senate District of California, for his career in advocacy and public service and his commitment to serving the people of the central coast of California. His leadership has improved the lives of many, and I am honored to acknowledge this legacy today.

Senator Monning was born in Culver City, California, in 1951 and raised in Pasadena. After finishing high school at Flintridge Preparatory School, where he excelled as an athlete, Monning attended college at the University of California, Berkeley. Following his graduation, he attained his Juris Doctorate from the University of San Francisco. His time spent in the Bay Area in the 1970s led him to commit himself to a career of advocating for and serving others.

After passing the California Bar Examination, Senator Monning worked as an attorney protecting the rights of migrant farm workers

at the United Farm Workers of America and the Migrant Farm Worker Project at California Rural Legal Assistance. Monning served as the Director of the Salvadoran Medical Relief Fund from 1982 through 1987 and was the Executive Director of the Nobel Peace Prize winning organization International Physicians for the Prevention of Nuclear War from 1987 through 1991. Monning then went on to serve as a professor at the Monterey College of Law and Monterey Institute of International Studies and president and co-founder of Global Majority, Inc., an organization committed to education, training and advocacy in the field of non-violent conflict resolution.

Senator Monning's service in the California State Legislature began with his election as Assemblymember for the 27th Assembly District, representing parts of Monterey, Santa Cruz, and Santa Clara counties from 2008 to 2012. In 2012, he was elected Senator of the 17th Senate District, which includes all of San Luis Obispo and Santa Cruz counties and portions of Monterey and Santa Clara counties. He was reelected in 2016 and served as Senate Majority Leader from 2015 through 2018. Currently, Monning serves as Vice Chair of the Joint Committee on Rules and is a member of the Joint Legislative Audit Committee and the Senate Committees on Budget, Health, Judiciary, Natural Resources and Water, and Rules. He also represents the Senate on the California Air Resources Board. Throughout his time as a legislator, he has been a leader in protecting natural resources and the environment, improving the health of all Californians, and serving veterans.

As Senator Monning prepares to celebrate his retirement, I am proud to commend him on his lifetime of serving others. I have no doubt he will enjoy spending this time with his wife, Dr. Dana T. Kent, his two children, and three grandchildren. On behalf of Central Coast residents, I ask my colleagues to join me in thanking Senator Bill Monning for his public service and wishing him a long and healthy retirement.

HONORING FRANK VARDEMAN, JR.

HON. LUCY McBATH

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mrs. McBATH. Madam Speaker, I rise today in honor of the life of Frank Burton "Burt" Vardeman, Jr., a life built on faith, service, and family. Mr. Vardeman passed away peacefully on September 13, 2020 at the age of 95. He is survived by his wife Martha Frances Hay Vardeman, their four children Frances, Frank, Cile, and Marty; nine grandchildren; and seven great-grandchildren.

The first of four brothers, Burt was born in Columbus, Georgia and grew up in Covington. He attended public schools and graduated from Covington High School in 1942. During his freshman year at North Georgia College, Burt was drafted into the United States Army Air Corps. He served his country during World War II as a Flight Radio Operator on B–24 Liberator bombers with the 15th Air Force, surviving 31 combat missions over Nazi-occupied Europe. During one mission, Nazis destroyed three of the engines on Burt's plane, and he and his crewmates considered jumping into the Aegean Sea. Fortunately, they spotted an airstrip in the distance, where they landed and were housed by the Tuskegee Airmen, who frequently escorted his Bomb Group, while waiting for another plane. Burt frequently said throughout his life, "I owe my life to the Red Tails."

After the war, Burt came home and studied at Auburn University using the GI Bill, where he met Martha, his "Sweetie Pie." Graduating in 1949 with a B.S. in Building Construction, Burt and Martha moved to Tuscaloosa, Alabama to join Martha's father, a Presbyterian minister who had just been named president of Stillman College, a historically black college. Serving as Business and Property Manager at Stillman College, Burt helped the school become an accredited four-year institution by overseeing the construction and management of IO major campus buildings, a considerable achievement during the Civil Rights Movement.

Burt, Martha, and their four children moved to Atlanta in 1965, where Burt worked until his retirement in 1989. His accomplishments during that career included overseeing the construction and administration of the Presbyterian Church USA headquarters. In retirement, he spoke of a deep gratitude for the heroism of the Tuskegee Airmen and was made an honorary Tuskegee Airman himself. Burt volunteered for numerous organizations, including North Decatur Presbyterian Church and Kiwanis, enjoyed golfing and fishing, and was an avid bowtie enthusiast. More than anything, however, he cherished his family.

Burt and Martha built a family rooted in love and support. He selflessly served his American family overseas by defending democracy and at home by building the foundation for a more just and equal future. Through his children, grandchildren, and great-grandchildren, Burt's legacy of faith, service, and family is destined to live on for generations.

It is my distinct privilege to help honor and celebrate the storied life of Burt Vardeman. As his family continues to grieve this profound loss, I offer my deepest condolences. On behalf of myself, the Sixth Congressional District, and the United States House of Representatives, I am eternally grateful to Burt for his unbounded dedication to the betterment of humanity and the overflowing passion with which he lived.

HONORING THE LIFE AND MINISTRY OF PASTOR DAVID E. KELLER OF FORT WAYNE, INDIANA

HON. JIM BANKS

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. BANKS. Madam Speaker, I rise today to honor the life and ministry or Pastor David E. Keller of Fort Wayne, Indiana, After 34 years of service to the Greater Fort Wayne community, Pastor Keller is retiring from his role as Senior Pastor or Abundant Lire Church.

In June of 1986, Pastor Keller began his ministry at a small church just across the street from Saint Francis College in Fort Wayne. Through the help of God, he sought to grow his church to include every culture, every tongue, and every nationality. After a significant investment of his own finance and will, what started as an 1,800 square fool facility has grown to a massive 98,000 square fool facility that is completely debt free.

Pastor Keller has established a diverse outreach that now ministers to 3 major ethnic groups: Asian, Hispanic, and African. This is in addition to a ministry dedicated to the deaf and hard of hearing, and the main weekend congregation. He has also helped sponsor and establish a Bible school and Christian orphanage in India, and fostered a multi-campus ministry in Ghana, Africa.

Today, Pastor Keller is leaving behind a thriving, dynamic, and diverse congregation that ministers to hundreds of people each week. Under his leadership, the Abundant Life congregation has truly become a multi-cultural, multi-ethnic and multigenerational assembly who understand that "we are all level, at the foot or the cross."

I wish Pastor Keller, his wife Marta, and their children and grandchildren the very best as he moves on to the next chapter of his life. While we will sorely miss his leadership, there can be no doubt that many in the community are better off today because of his great work.

THE NOMINATION OF JUDGE AMY CONEY BARRETT TO THE UNITED STATES SUPREME COURT

HON. LARRY BUCSHON

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. BUCSHON. Madam Speaker, I rise today to thank President Trump for nominating Judge Amy Coney Barrett to the United States Supreme Court, and urge her immediate confirmation.

Currently serving on the Seventh Circuit of the United States Court of Appeals in South Bend, Indiana, Judge Barrett has shown throughout her highly-successful legal career that she has an outstanding legal mind and that she is more than qualified to serve on the Supreme Court.

As a fellow Hoosier, I have the utmost confidence that Judge Barrett would honorably carry out the duties of a Supreme Court Justice and would help defend the constitutional rights of all Americans.

I also believe that she appropriately understands the role of the Federal Judiciary in our Republic is to rule on the law—not to make it up from the bench.

I thank Indiana's Senators for indicating their support of Judge Barrett's nomination, and urge the rest of the United States Senate to follow suit and quickly confirm this highly-qualified Hoosier to the bench.

HONORING THE LIFE AND LEGACY OF JUSTICE RUTH BADER GINSBURG

HON. BARBARA LEE

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Ms. LEE of California. Madam Speaker, I rise today to honor the life and legacy of Justice Ruth Bader Ginsburg. I want to thank my

friends, the co-chairs of the Democratic Women's Caucus, Representatives SPEIER, FRANKEL, LAWRENCE, HAALAND, and ESCOBAR, for organizing and convening this fitting tribute to a trailblazing American heroine.

As a lawyer with the ACLU and as the second woman on the Supreme Court, Justice Ginsburg was a pioneer for reproductive rights, civil rights, and equal protection under the law. Without her leadership and conviction, the world would be a different place for women, people of color, the LGBTQI community, and others who have not been afforded equity and justice under the law. Her tenacious fight for gender equality in the face of powerful opposition, and her historic opinions and dissents on the bench, bent the arc of history towards justice.

Her legal brilliance, bravery, and her commitment to a democracy that serves all, make her a model for the next Supreme Court Associate Justice and for all justices who follow.

When Justice Ginsburg wrote decisions, she wrote with a clarity that helped the broader public understand the moral and legal issues at stake. She also had an empathy for the experiences of others. When I had the chance to meet and have dinner with her, I felt that she understood the particular challenges that Black women and women of color faced. And she was a powerful ally for justice movements whether they sought to dismantle unjust systems built along lines of race, ethnicity, gender, class, sexual orientation or gender identity.

We mourn the loss of such a brilliant, bold and visionary woman whose legacy will continue to live. We have a responsibility to continue her fight for equality and justice.

My thoughts are with her children, grandchildren and loved ones during this difficult time.

SUPPORTING AMY CONEY BARRETT

HON. JAMES R. BAIRD

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. BAIRD. Madam Speaker, today I rise in support of fellow Hoosier Amy Coney Barrett to be confirmed to the Supreme Court.

Barrett is immensely qualified to serve as a Supreme Court justice.

She clerked for Justice Antonin Scalia before teaching law school in Indiana at the University of Notre Dame, where she received the ''Distinguished Professor of the Year'' award three times.

Three years ago, she was confirmed with bipartisan support to the Seventh Circuit of the Court of Appeals. There she developed a reputation of being an exemplary jurist who follows and upholds the Constitution.

In addition to her distinguished record and qualifications, Mrs. Barrett is a role model for women. She is a devoted wife and a loving mother to seven children, while still effectively performing her responsibilities as a justice.

Judge Barrett will be an excellent addition to the United States Supreme Court, and I look forward to her confirmation without delay.

HONORING SUPERVISOR JANE PARKER

HON. JIMMY PANETTA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, October 1, 2020

Mr. PANETTA. Madam Speaker, I rise today to honor Jane Parker, the retiring County Supervisor for the Fourth District of Monterey County, for her commitment to serving the people of the central coast of California.

Supervisor Parker was raised on the Monterey Peninsula and graduated from Monterey High School. After studying at the Monterey Institute for International Studies and LaVarenne Cooking School and traveling across Europe, Parker made a name for herself as a chef in southern California, where she lived for 15 years. After travelling through Asia and Africa, Parker felt it was time to return home and settled in Monterey once again in 1991. There, she established a healthy meal preparation service for working families and homebound seniors.

Back at home on the Central Coast, Supervisor Parker felt a responsibility to give back to her community. In 1995, she began working for Planned Parenthood Mar Monte, eventually serving as vice president of development until 2005. As part of the organization's executive leadership team, Parker helped Planned Parenthood Mar Monte serve a record number of patients and earn it the title of most successful Planned Parenthood in the nation. During this time, Parker ran for and was elected to serve on the Monterey Peninsula College (MPC) Board of Trustees from 1999 to 2003. As a Trustee, she effectively advocatd for policies to protect MPC's reputation for providing outstanding and affordable education and student services. From 2005 to 2009, Parker was Associate Director of the ACTION Council of Monterey County, where she helped address unmet needs in the county and improve the quality of life for residents through the pursuit of economic and social justice.

Supervisor Parker was first elected as County Supervisor for the Fourth District of Monterey County in 2008 and reelected in 2012 to 2016. As a County Supervisor, Parker has prioritized delivering responsible land-use policies, equitable healthcare access and high-quality healthcare services, water and mass transit solutions, increased accountability and customer service for County services, and prevention-based law enforcement strategies. As a result of efforts she has led, the Board now posts Agenda packets online for the public to view and conducts performance evaluations of the Chief Administrative Officer and other direct reports.

As she begins her retirement, I have no doubt that Jane will continue to serve her community. We, on the Central Coast, are grateful for her contributions to our community and celebrate her successful career.

Daily Digest

HIGHLIGHTS

See Résumé of Congressional Activity.

Senate

Chamber Action

Routine Proceedings, pages S6009–S6031

Measures Introduced: Eighteen bills and four resolutions were introduced, as follows: S. 4778–4795, and S. Res. 742–745. **Pages S6026–27**

Measures Reported:

S. 1046, to establish the Office of Internet Connectivity and Growth, with an amendment in the nature of a substitute. (S. Rept. No. 116–274)

S. 2203, to extend the transfer of Electronic Travel Authorization System fees from the Travel Promotion Fund to the Corporation for Travel Promotion (Brand USA) through fiscal year 2027, with amendments. (S. Rept. No. 116–275)

S. 4138, to amend title 5, United States Code, to make permanent the authority of the United States Patent and Trademark Office to conduct a telework travel expenses program. (S. Rept. No. 116–276)

S. 4200, to establish a program to facilitate the adoption of modern technology by executive agencies, with an amendment in the nature of a substitute. (S. Rept. No. 116–277) **Page S6026**

Measures Passed:

National Childhood Cancer Awareness Month: Senate agreed to S. Res. 742, designating September 2020 as "National Childhood Cancer Awareness Month". **Pages S6028–29, S6030–31**

National Retirement Security Month: Senate agreed to S. Res. 743, supporting the goals and ideals of National Retirement Security Month, including raising public awareness of the various tax-preferred retirement vehicles, increasing personal financial literacy, and engaging the people of the United States on the keys to success in achieving and maintaining retirement security throughout their lifetimes. **Page S6029**

Whole Veteran Act: Senate passed H.R. 2359, to direct the Secretary of Veterans Affairs to submit to Congress a report on the Department of Veterans Affairs advancing of whole health transformation. **Page S6031**

Identifying Barriers and Best Practices Study Act: Committee on Veterans' Affairs was discharged from further consideration of H.R. 4183, to direct the Comptroller General of the United States to conduct a study on disability and pension benefits provided to members of the National Guard and members of reserve components of the Armed Forces by the Department of Veterans Affairs, and the bill was then passed. **Page S6031**

Measures Considered:

Protect Act: Senate began consideration of the motion to proceed to consideration of S. 4675, to amend the Health Insurance Portability and Accountability Act. **Pages S6011–15**

Healthcare Protections: By 51 yeas to 43 nays (Vote No. 200), three-fifths of those Senators duly chosen and sworn, not having voted in the affirmative, Senate rejected the motion to close further debate on the motion to proceed to consideration of S. 4653, to protect the healthcare of hundreds of millions of people of the United States and prevent efforts of the Department of Justice to advocate courts to strike down the Patient Protection and Affordable Care Act. **Page S6015**

National Medal of Honor Monument Act—Referral Agreement: A unanimous-consent agreement was reached providing that the Committee on Agriculture, Nutrition, and Forestry be discharged from further consideration of S. 4433, to authorize the National Medal of Honor Museum Foundation to establish a commemorative work in the District of Columbia and its environs, and the bill then be referred to the Committee on Energy and Natural Resources. **Page S6026**

Messages from the President: Senate received the following messages from the President of the United States:

Transmitting, pursuant to law, a report relative to the designation as an emergency requirement all funding (including the rescission of funds) so designated by the Congress in the Continuing Appropriations Act, 2021, pursuant to section 251 (b) (2) (A) of the Balanced Budget and Emergency Deficit Control Act of 1985, as outlined in the enclosed list of accounts; which was referred to the Committee on the Budget. (PM–60) **Page S6025**

Transmitting, pursuant to law, a report relative to the designation for Overseas Contingency Operations/Global War on Terrorism all funding (including the rescission of funds) so designated by the Congress in the Continuing Appropriations Act, 2021, pursuant to section 251 (b) (2) (A) of the Balanced Budget and Emergency Deficit Control Act of 1985, as outlined in the enclosed list of accounts; which was referred to the Committee on the Budget. (PM–61) **Page S6025**

Newman Nomination—Agreement: Senate continued consideration of the nomination of Michael Jay Newman, of Ohio, to be United States District Judge for the Southern District of Ohio. **Pages S6015–21**

A unanimous-consent agreement was reached providing that at approximately 4:30 p.m., on Monday, October 5, 2020, Senate resume consideration of the nomination. **Page S6031**

Messages from the House: **Page S6025**

Measures Referred: **Pages S6025–26**

Measures Placed on the Calendar: **Pages S6011, S6026**

Executive Communications: **Page S6026**

Petitions and Memorials: **Page S6026**

Additional Cosponsors: **Pages S6027–28**

Additional Statements: **Page S6024**

Amendments Submitted: **Page S6030**

Authorities for Committees to Meet: **Page S6030**

Record Votes: One record vote was taken today. (Total—200) **Page S6015**

Adjournment: Senate convened at 12 noon and adjourned at 4:31 p.m., until 4:30 p.m. on Monday, October 5, 2020. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S6031.)

Committee Meetings

(Committees not listed did not meet)

SUPPLY CHAIN INTEGRITY

Committee on Armed Services: Subcommittee on Readiness and Management Support concluded a hearing to examine supply chain integrity, after receiving testimony Ellen M. Lord, Under Secretary of Defense for Acquisition and Sustainment.

BUSINESS MEETING

Committee on Commerce, Science, and Transportation: Committee approved the authorization to subpoena the attendance of a witness for purpose of a hearing to Jack Dorsey, Chief Executive Officer, Twitter; to subpoena the attendance of a witness for purpose of a hearing to Sundar Pichai, Chief Executive Officer, Alphabet Inc., Google; and to subpoena the attendance of a witness for purpose of a hearing to Mark Zuckerberg, Chief Executive Officer, Facebook.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 33 public bills, H.R. 8470–8502; 1 private bill, H.R. 8503; and 10 resolutions, H. Res. 1165–1174, were introduced. **Pages H5637–39**

Additional Cosponsors: **Pages H5640–41**

Report Filed: A report was filed today as follows:

H. Res. 1164, providing for consideration of the resolution (H. Res. 1153) condemning unwanted, unnecessary medical procedures on individuals without their full, informed consent, and providing for consideration of the resolution (H. Res. 1154) condemning QAnon and rejecting the conspiracy theories it promotes (H. Rept. 116–557). **Pages H5123, H5123–36**

Speaker: Read a letter from the Speaker wherein she appointed Representative Cuellar to act as Speaker pro tempore for today. **Page H5109**

Recess: The House recessed at 10:18 a.m. and reconvened at 11 a.m. **Page H5120**

Point of Personal Privilege: Representative King (IA) rose to a point of personal privilege and was recognized to proceed for one hour. **Pages H5136–42**

Suspensions: The House agreed to suspend the rules and pass the following measures: Criminal Judicial Administration Act of 2020: H.R. 8124, amended, to amend title 18, United States Code, to provide for transportation and subsistence for criminal justice defendants; **Pages H5142–43**

Protecting the Health and Wellness of Babies and Pregnant Women in Custody Act: H.R. 7718, amended, to address the health needs of incarcerated women related to pregnancy and childbirth; **Pages H5143–49**

Fight Notario Fraud Act of 2020: H.R. 8225, amended, to amend title 18, United States Code, to prohibit certain types of fraud in the provision of immigration services; **Pages H5149–51**

Empowering Olympic, Paralympic, and Amateur Athletes Act: S. 2330, to amend the Ted Stevens Olympic and Amateur Sports Act to provide for congressional oversight of the board of directors of the United States Olympic and Paralympic Committee and to protect amateur athletes from emotional, physical, and sexual abuse; **Pages H5151–60**

Promoting Alzheimer's Awareness to Prevent Elder Abuse Act: H.R. 6813, to amend the Elder Abuse Prevention and Prosecution Act to improve the prevention of elder abuse and exploitation of individuals with Alzheimer's disease and related dementias; **Pages H5160–63**

America's Conservation Enhancement Act: S. 3051, to improve protections for wildlife; **Pages H5163–76**

Direct Enhancement of Snapper Conservation and the Economy through Novel Devices Act: H.R. 5126, amended, to require individuals fishing for Gulf reef fish to use certain descending devices; **Pages H5176–78**

Women Who Worked on the Home Front World War II Memorial Act: H.R. 5068, amended, to authorize the Women Who Worked on the Home Front Foundation to establish a commemorative work in the District of Columbia and its environs; **Pages H5178–80**

Amending the Klamath Basin Water Supply Enhancement Act of 2000 to make certain technical corrections: S. 3758, to amend the Klamath Basin Water Supply Enhancement Act of 2000 to make certain technical corrections; **Pages H5180–83**

Stop Sexual Assault and Harassment in Transportation Act: H.R. 5139, amended, to protect transportation personnel and passengers from sexual assault and harassment; **Pages H5183–88**

Friendly Airports for Mothers Improvement Act: S. 2638, to amend title 49, United State Code, to require small hub airports to construct areas for nursing mothers; **Pages H5188–89**

Reinvigorating Lending for the Future Act: S. 4075, to amend the Public Works and Economic Development Act of 1965 to provide for the release of certain Federal interests in connection with certain grants under that Act; **Pages H5189–90**

Expedited Delivery of Airport Infrastructure Act of 2020: H.R. 5912, amended, to amend title 49, United States Code, to permit the use of incentive payments to expedite certain federally financed airport development projects; **Pages H5190–91**

Renaming the Saint Lawrence Seaway Development Corporation the Great Lakes St. Lawrence Seaway Development Corporation: H.R. 4470, amended, to rename the Saint Lawrence Seaway Development Corporation the Great Lakes St. Lawrence Seaway Development Corporation; and **Pages H5191–92**

Save Our Seas 2.0 Act: S. 1982, amended, to improve efforts to combat marine debris. **Pages H5192–H5202**

Correcting the enrollment of S. 2330: The House agreed to take from the Speaker's table and agree to S. Con. Res. 46, to correct the enrollment of S. 2330. **Page H5160**

Designating the airport traffic control tower located at Piedmont Triad International Airport in Greensboro, North Carolina, as the "Senator Kay Hagan Airport Traffic Control Tower": The House agreed to take from the Speaker's table and pass S. 4762, to designate the airport traffic control tower located at Piedmont Triad International Airport in Greensboro, North Carolina, as the "Senator Kay Hagan Airport Traffic Control Tower". **Page H5183**

Family Support Services for Addiction Act of 2020: Agreed by unanimous consent that the ordering of the yeas and nays on the motion that the House suspend the rules and pass the bill, H.R. 5572, as amended, to establish a grant program for family community organizations that provide support for individuals struggling with substance use disorder and their families, be vacated, to the end that the Chair put the question de novo. Subsequently, H.R. 5572, as amended, was agreed to by voice vote. **Page H5202**

North American Wetlands Conservation Extension Act: The House agreed to the Lowey motion to concur in the Senate amendments to H.R. 925, to extend the authorization of appropriations for allocation to carry out approved wetlands conservation

projects under the North American Wetlands Conservation Act through fiscal year 2024, with an amendment consisting of the text of Rules Committee Print 116–66, by a yea-and-nay vote of 214 yeas to 207 nays, Roll No. 214. **Pages H5202–H5435**

Agreed to amend the title so as to read: "To improve protections for wildlife, and for other purposes.". **Pages H5163–76**

H. Res. 1161, the rule providing for consideration of the Senate amendments to the bill (H.R. 925), was agreed to yesterday, September 30th.

Condemning unwanted, unnecessary medical procedures on individuals without their full, informed consent and Condemning QAnon and rejecting the conspiracy theories it promotes—Rule for Consideration: The House agreed to H. Res. 1164, providing for consideration of the resolution (H. Res. 1153) condemning unwanted, unnecessary medical procedures on individuals without their full, informed consent, and providing for consideration of the resolution (H. Res. 1154) condemning QAnon and rejecting the conspiracy theories it promotes, by a yea-and-nay vote of 226 yeas to 186 nays, Roll No. 216, after the previous question was ordered by a yea-and-nay vote of 226 yeas to 187 nays, Roll No. 215. **Pages H5435–37**

Committee on Transportation and Infrastructure—Communication: Read a letter from Chairman DeFazio wherein he transmitted copies of thirty-three resolutions included in the General Services Administration's Capital Investment and Leasing Programs. The resolutions were adopted by the Committee on Transportation and Infrastructure on September 30, 2020. **Pages H5440–H5634**

Presidential Messages: Read a message from the President wherein he notified Congress of the designation of funds for Overseas Contingency Operations/Global War on Terrorism—referred to the Committee on Appropriations and ordered to be printed (H. Doc. 116–156). **Page H5439**

Read a message from the President wherein he notified Congress of the designation of funds as emergency requirements—referred to the Committee on Appropriations and ordered to be printed (H. Doc. 116–157). **Pages H5439–40**

Senate Referrals: S. 910 was held at the desk. S. 1069 was held at the desk. S. 3681 was held at the desk. S. 4403 was held at the desk.

Senate Message: Message received from the Senate today appears on page H5149.

Quorum Calls—Votes: Three yea-and-nay votes developed during the proceedings of today and appear on pages H5434–35, H5435–36, and H5436.

Adjournment: The House met at 9 a.m. and adjourned at 10 p.m.

Committee Meetings

CHALLENGES AND SUCCESSES OF CONSERVATION PROGRAMS IN 2020

Committee on Agriculture: Subcommittee on Conservation and Forestry held a hearing entitled "Challenges and Successes of Conservation Programs in 2020". Testimony was heard from Kevin D. Norton, Acting Chief, Natural Resources Conservation Service, Department of Agriculture; and public witnesses.

GENERATING EQUITY: IMPROVING CLEAN ENERGY ACCESS AND AFFORDABILITY

Committee on Energy and Commerce: Subcommittee on Energy held a hearing entitled "Generating Equity: Improving Clean Energy Access and Affordability". Testimony was heard from public witnesses.

MISCELLANEOUS MEASURES

Committee on Foreign Affairs: Full Committee held a markup on H.R. 6986, the "Protecting Human Rights During Pandemic Act"; H.R. 7990, the "FENTANYL Results Act"; H.R. 7673, the "Represent America Abroad Act"; H. Res. 1012, recognizing the 70th anniversary of the outbreak of the Korean war and the transformation of the United States—Korea alliance into a mutually beneficial, global partnership; H. Res. 697, recognizing the significance of the genuine autonomy of Tibet and the Tibetan people and the work His Holiness the 14th Dalai Lama has done to promote global peace, harmony, and understanding; H. Res. 1100, reaffirming the strategic partnership between the United States and Mongolia and observing the 30th anniversary of democracy in Mongolia; H. Res. 751, reaffirming the partnership between the United States and the African Union and recognizing the importance of diplomatic, security, and trade relations; H. Res. 1077, expressing the sense of the House of Representatives on the continued importance of the United States—Lebanon relationship; H.R. 8409, the "Department of State Student Internship Program Act"; H. Res. 672, expressing support of the Three Seas Initiative in its efforts to increase energy independence and infrastructure connectivity thereby strengthening the United States and European national security; H. Res. 17, expressing concern over the detention of Austin Tice, and for other purposes; H.R. 4507, the "Protection of Saudi Dissidents Act"; H. Res. 823, condemning the Government of Iran's state-sponsored persecution of its Baha'i minority and its continued violation of the International Covenants on Human Rights; H. Res. 996, expressing the sense of Congress that the activities

of Russian national Yevgeniy Prigozhin and his affiliated entities pose a threat to the national interests and security of the United States and of its allies and partners; H. Res. 958, condemning the practice of politically motivated imprisonment and calling for the immediate release of political prisoners in the Russian Federation and urging action by the United States Government to impose sanctions with respect to persons responsible for that form of human rights abuse; H.R. 8428, the ''Hong Kong People's Freedom and Choice Act of 2020''; H.R. 8405, the ''American Values and Security in International Athletics Act''; H.R. 8259, to prohibit Russian participation in the G7, and for other purposes; H. Res. 825, recognizing the importance of entry into force of the Treaty on the Nonproliferation of Nuclear Weapons (NPT); H.R. 4636, the ''Partnering and Leveraging Assistance to Stop Trash for International Cleaner Seas Act''; H. Res. 1121, urging the Government of Burma to hold free, fair, inclusive, transparent, participatory, and credible elections on November 8, 2020; H. Res. 1115, calling for the immediate release of Trevor Reed, a United States citizen who was unjustly sentenced to 9 years in a Russian prison; H. Res. 768, calling on African governments to protect and promote human rights through internet freedom and digital integration for all citizens across the continent of Africa; H. Res. 1150, urging the Government of Côte d'Ivoire, opposition leaders, and all citizens to respect democratic principles, refrain from violence, and hold free, fair, transparent, and peaceful elections in October 2020; H. Res. 1145, condemning the poisoning of Russian opposition leader Alexei Navalny and calling for a robust United States and international response; H.R. 4326, the ''Sex Trafficking Demand Reduction Act''; H.R. 7954, the ''Tropical Forest and Coral Reef Conservation Reauthorization Act of 2020''; and H.R. 8438, to reauthorize the Belarus Democracy Act of 2004. H.R. 6986, H.R. 7990, H. Res. 1012, H. Res. 697, H. Res. 1100, H. Res. 1077, H.R. 8409, H. Res. 672, H. Res. 823, H. Res. 996, H. Res. 958, H.R. 8259, H. Res. 825, H.R. 4636, H. Res. 1121, H. Res. 1115, H. Res. 768, H. Res. 1145, H.R. 4326, H.R. 7673, and H.R. 4507 were ordered reported, as amended. H. Res. 751, H. Res. 17, H.R. 8428, H.R. 8405, H. Res. 1150, H.R. 7954, and H.R. 8438 were ordered reported, without amendment.

PROPOSALS TO STRENGTHEN THE ANTITRUST LAWS AND RESTORE COMPETITION ONLINE

Committee on the Judiciary: Subcommittee on Antitrust, Commercial, and Administrative Law held a hearing entitled ''Proposals to Strengthen the Antitrust Laws and Restore Competition Online''. Testimony was heard from public witnesses.

LEGISLATIVE MEASURE

Committee on Natural Resources: Full Committee held a hearing on H.R. 5986, the ''Environmental Justice for All Act''. Testimony was heard from public witnesses.

UNSUSTAINABLE DRUG PRICES: TESTIMONY FROM THE CEOS, PART II

Committee on Oversight and Reform: Full Committee held a hearing entitled ''Unsustainable Drug Prices: Testimony from the CEOs, Part II''. Testimony was heard from public witnesses.

MEMBERS' DAY HEARING ON PROPOSED RULES CHANGES FOR THE 117TH CONGRESS

Committee on Rules: Full Committee held a hearing entitled ''Members' Day Hearing on Proposed Rules Changes for the 117th Congress'' [Original Jurisdiction Hearing]. Testimony was heard from Chairman Kilmer, Chairman Thompson of Mississippi, and Representatives Hoyer, Cline, Clyburn, Rodney Davis of Illinois, Castro of Texas, Taylor, Crist, Woodall, Davids of Kansas, Eshoo, Langevin, Ted Lieu of California, Murphy of Florida, Schneider, and Wasserman Schultz.

PREVENTING FRAUD AND ABUSE OF PPP AND EIDL: AN UPDATE WITH THE SBA OFFICE OF INSPECTOR GENERAL AND GOVERNMENT ACCOUNTABILITY OFFICE

Committee on Small Business: Subcommittee on Investigations, Oversight, and Regulations held a hearing entitled ''Preventing Fraud and Abuse of PPP and EIDL: An Update with the SBA Office of Inspector General and Government Accountability Office''. Testimony was heard from Hannibal Ware, Inspector General, Office of the Inspector General, U.S. Small Business Administration; and William Shear, Director, Financial Markets and Community Investment, Government Accountability Office.

CREATING A CLIMATE RESILIENT AMERICA: STRENGTHENING THE U.S. FINANCIAL SYSTEM AND EXPANDING ECONOMIC OPPORTUNITY

Select Committee on the Climate Crisis: Full Committee held a hearing entitled ''Creating a Climate Resilient America: Strengthening the U.S. Financial System and Expanding Economic Opportunity''. Testimony was heard from public witnesses.

Joint Meetings

No joint committee meetings were held.

NEW PUBLIC LAWS

(For last listing of Public Laws, see DAILY DIGEST, *p. D763)*

H.R. 8337, making continuing appropriations for fiscal year 2021. Signed on October 1, 2020. (Public Law 116–159)

COMMITTEE MEETINGS FOR FRIDAY, OCTOBER 2, 2020

(Committee meetings are open unless otherwise indicated)

Senate

No meetings/hearings scheduled.

House

Committee on Foreign Affairs, Subcommittee on Asia, the Pacific, and Nonproliferation; and Subcommittee on Intelligence and Emerging Threats and Capabilities of the House Committee on Armed Services, joint hearing entitled ''Strengthening Biological Security: Traditional Threats and Emerging Challenges'', 10 a.m., 2172 Rayburn and Webex.

Committee on Oversight and Reform, Select Subcommittee on the Coronavirus Crisis, hearing entitled ''Hybrid Hearing with Secretary of Health and Human Services Alex M. Azar II'', 9 a.m., 2154 Rayburn and Webex.

Permanent Select Committee on Intelligence, Full Committee, hearing entitled ''DHS Senior Official Performing the Duties of the Under Secretary for Intelligence and Analysis Joseph B. Maher'', 10 a.m., CVC Auditorium and HVC–304 Hearing Room. This hearing is closed.

Résumé of Congressional Activity

SECOND SESSION OF THE ONE HUNDRED SIXTEENTH CONGRESS

The first table gives a comprehensive résumé of all legislative business transacted by the Senate and House. The second table accounts for all nominations submitted to the Senate by the President for Senate confirmation.

DATA ON LEGISLATIVE ACTIVITY

January 3 through September 30, 2020

	Senate	*House*	*Total*
Days in session	140	123	..
Time in session	717 hrs., 33′	432 hrs., 38′	..
Congressional Record:			
Pages of proceedings	6,007	5,107	..
Extensions of Remarks	..	907	..
Public bills enacted into law	25	28	53
Private bills enacted into law	..	..	..
Bills in conference	..	1	..
Measures passed, total	285	358	643
Senate bills	86	39	..
House bills	36	238	..
Senate joint resolutions	5	4	..
House joint resolutions	4	6	..
Senate concurrent resolutions	4	2	..
House concurrent resolutions	6	8	..
Simple resolutions	144	61	..
Measures reported, total	*128	183	311
Senate bills	98	2	..
House bills	19	155	..
Senate joint resolutions	..	..	..
House joint resolutions	..	1	..
Senate concurrent resolutions	..	..	..
House concurrent resolutions	..	2	..
Simple resolutions	11	23	..
Special reports	3	8	..
Conference reports	..	..	..
Measures pending on calendar	371	78	..
Measures introduced, total	1,938	3,374	5,312
Bills	1,629	2,933	..
Joint resolutions	13	16	..
Concurrent resolutions	17	37	..
Simple resolutions	279	388	..
Quorum calls	1	1	..
Yea-and-nay votes	199	178	..
Recorded votes	..	34	..
Bills vetoed	1	1	..
Vetoes overridden	..	..	..

*These figures include all measures reported, even if there was no accompanying report. A total of 84 written reports have been filed in the Senate, 191 reports have been filed in the House.

DISPOSITION OF EXECUTIVE NOMINATIONS

January 3 through September 30, 2020

Civilian nominees, totaling 350 (including 87 nominees carried over from the First Session), disposed of as follows:

Confirmed	119
Unconfirmed	216
Withdrawn	15

Other Civilian nominees, totaling 1,299 (including 1 nominee carried over from the First Session), disposed of as follows:

Confirmed	1,148
Unconfirmed	151

Air Force nominees, totaling 4,324, disposed of as follows:

Confirmed	4,136
Unconfirmed	188

Army nominees, totaling 6,213 (including 3 nominees carried over from the First Session), disposed of as follows:

Confirmed	5,704
Unconfirmed	507
Withdrawn	2

Navy nominees, totaling 1,887 (including 2 nominees carried over from the First Session), disposed of as follows:

Confirmed	1,863
Unconfirmed	24

Marine Corps nominees, totaling 1,451, disposed of as follows:

Confirmed	1,438
Unconfirmed	13

Space Force nominees, totaling 652, disposed of as follows:

Confirmed	9
Unconfirmed	643

Summary

Total nominees carried over from the First Session	93
Total nominees received this Session	16,083
Total confirmed	14,417
Total unconfirmed	1,742
Total withdrawn	17
Total returned to the White House	0

Next Meeting of the **SENATE**

4:30 p.m., Monday, October 5

Senate Chamber

Program for Monday: Senate will resume consideration of the nomination of Michael Jay Newman, of Ohio, to be United States District Judge for the Southern District of Ohio.

At 5:30 p.m., Senate will vote on the motion to invoke cloture on the nomination of Aileen Mercedes Cannon, of Florida, to be United States District Judge for the Southern District of Florida.

Next Meeting of the **HOUSE OF REPRESENTATIVES**

9 a.m., Friday, October 2

House Chamber

Program for Friday: Consideration of H. Res. 1153—Condemning unwanted, unnecessary medical procedures on individuals without their full, informed consent. Consideration of H. Res. 1154—Condemning QAnon and rejecting the conspiracy theories it promotes.

Extensions of Remarks, as inserted in this issue

HOUSE

Babin, Brian, Tex., E912
Baird, James R., Ind., E915
Banks, Jim, Ind., E914
Brooks, Susan W., Ind., E909
Bucshon, Larry, Ind., E914
Cunningham, Joe, S.C., E910
DeLauro, Rosa L., Conn., E911
Engel, Eliot L., N.Y., E912
Griffith, H. Morgan, Va., E913
Guthrie, Brett, Ky., E913
Jackson Lee, Sheila, Tex., E909, E910, E911, E913
Lee, Barbara, Calif., E914
Maloney, Carolyn B., N.Y., E912
McAdams, Ben, Utah, E910
McBath, Lucy, Ga., E914
Moulton, Seth, Mass., E911
Panetta, Jimmy, Calif., E913, E915
Schiff, Adam B., Calif., E911
Stauber, Pete, Minn., E910
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